SUPPLEMENT NO. 32
VOLUMES I AND II
July 2026

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5965, enacted December 16, 2025.

The Code is up-to-date through:

Ordinance No. 5943, enacted February 24, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T2:3—T2:4.1	T2:3—T2:4.1
T5:27, T5:28	T5:27, T5:28
T7:3, T7:4	T7:3—T7:4.1
T11:51—T11:60.2	T11:51—T11:60.5
	VOLUME II
xiii—xxii	xiii—xxii
T12:49—T12:52	T12:49—T12:52.2
CCT:53, CCT:54	CCT:53, CCT:54
CDi:1—CDi:238	CDi:1—CDi:238

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SUPPLEMENT NO. 31
VOLUMES I AND II
August 2025

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5937, enacted April 8, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
T5:17—T5:20.1	T5:17—T5:20.1
	VOLUME II
CCT:53, CCT:54	CCT:53, CCT:54

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SUPPLEMENT NO. 30
VOLUMES I AND II
May 2025

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5932, enacted February 18, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:1—CDi:238	CDi:1—CDi:238

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SUPPLEMENT NO. 29
VOLUMES I AND II
February 2025

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5916, enacted September 24, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
T6:177—T6:178.2	T6:177—T6:178.2
T9:107—T9:110	T9:107—T9:110
T11:67, T11:68	T11:67—T11:68.2
	VOLUME II
xiii—xxii	xiii—xxii
CCT:53, CCT:54	CCT:53, CCT:54
CDi:1—CDi:247	CDi:1—CDi:238

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SUPPLEMENT NO. 28
VOLUMES I AND II
October 2024

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5905, enacted June 25, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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SUPPLEMENT NO. 27
VOLUMES I AND II
July 2024

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5896, enacted February 20, 2024.

See the Code Comparative Table for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T6:11, T6:12	T6:11—T6:12.1
T6:26.3, T6:26.4	T6:26.3—T6:26.4.6
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SUPPLEMENT NO. 26
VOLUMES I AND II
December 2023

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5875, enacted July 11, 2023.

See the Code Comparative Table for further information.

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VOLUME I	
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SH:5	SH:5
T2:3—T2:4.1	T2:3—T2:4.1
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T4:7—T4:18	T4:7—T4:18.1
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SUPPLEMENT NO. 25
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July 2023

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5841, enacted December 20, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xix—xxi	xix—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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SUPPLEMENT NO. 24
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December 2022

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5825, enacted June 7, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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SUPPLEMENT NO. 23
VOLUMES I AND II
April 2022

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5812, enacted December 21, 2021.

See the Code Comparative Table for further information.

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VOLUME I	
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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SUPPLEMENT NO. 22
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May 2021

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5770, enacted January 26, 2021.

See the Code Comparative Table for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T3:11—T3:18	T3:11, T3:12
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SUPPLEMENT NO. 21
VOLUMES I AND II
December 2020

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5761, enacted October 6, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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T2:61—T2:64	T2:61—T2:64
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SUPPLEMENT NO. 20
VOLUMES I AND II
September 2020

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5751, enacted June 16, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 19
VOLUMES I AND II
April 2020

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5739, enacted December 17, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxi	xiii—xxi
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SUPPLEMENT NO. 18
VOLUMES I AND II
December 2019

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5729, enacted August 20, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xvii—xxi	xvii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T9:46.1—T9:64	T9:47—T9:61
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SUPPLEMENT NO. 17
VOLUMES I AND II
May 2019

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5722, enacted March 5, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
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T2:97, T2:98	T2:97—T2:101
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T7:3—T7:8	T7:3—T7:8
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CDi:237, CDi:238	CDi:237, CDi:238
CDi:245, CDi:246	CDi:245, CDi:246
CDi:251—CDi:256	CDi:251—CDi:256.1
CDi:259—CDi:260.1	CDi:259—CDi:260.1
CDi:267—CDi:274	CDi:267—CDi:274

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SUPPLEMENT NO. 16
VOLUMES I AND II
October 2018

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5701, enacted August 28, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxi	xvii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
T9:71—T9:88	T9:71—T9:88.11
	VOLUME II
xvii—xxi	xvii—xxi
CCT:51	CCT:51

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SUPPLEMENT NO. 15
VOLUMES I AND II
July 2018

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5679, enacted March 6, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix—xxi	xix—xxi
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3
T11:1	T11:1
T11:81	T11:81—T11:87
	VOLUME II
xix—xxi	xix—xxi
CCT:51	CCT:51
CDi:55, CDi:56	CDi:55, CDi:56
CDi:129, CDi:130	CDi:129—CDi:130.1
CDi:151—CDi:152.1	CDi:151—CDi:152.1
CDi:259, CDi:260	CDi:259—CDi:260.1

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SUPPLEMENT NO. 14
VOLUMES I AND II
June 2018

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5678, enacted February 6, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T2:3—T2:4.1	T2:3—T2:4.1
T6:11—T6:26	T6:11—T6:26.5
VOLUME II	
xiii—xxi	xiii—xxi
T12:1	T12:1
T12:57—T12:62.1	T12:57—T12:62.2
T12:76.1—T12:78.1	T12:77—T12:78.4
CCT:49—CCT:51	CCT:49—CCT:51
SLT:1—SLT:6	SLT:1—SLT:6
CDi:2.1—CDi:4	CDi:3—CDi:4.1
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:25—CDi:32	CDi:25—CDi:32.1
CDi:41—CDi:48	CDi:41—CDi:48.1
CDi:53—CDi:56.1	CDi:53—CDi:56
CDi:63—CDi:72	CDi:63—CDi:72.1
CDi:77—CDi:90	CDi:77—CDi:86
CDi:99—CDi:117	CDi:99—CDi:117
CDi:143—CDi:152	CDi:143—CDi:152.1
CDi:165—CDi:168	CDi:165—CDi:168.1
CDi:173, CDi:174	CDi:173, CDi:174
CDi:179—CDi:196	CDi:179—CDi:192
CDi:203—CDi:206	CDi:203—CDi:206.1

Remove Old Pages	*Insert New Pages*
CDi:215—CDi:218	CDi:215—CDi:218.1
CDi:229, CDi:230	CDi:229—CDi:230.1
CDi:237—CDi:240.1	CDi:237—CDi:240
CDi:245—CDi:254	CDi:245—CDi:254.1

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SUPPLEMENT NO. 13
VOLUMES I AND II
January 2018

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5662, enacted November 7, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T2:3, T2:4	T2:3—T2:4.1
T2:23—T2:26.3	T2:23—T2:26.3
T6:155—T6:178	T6:155—T6:178.2
T9:145, T9:146	T9:145—T9:146.1
VOLUME II	
xiii—xxi	xiii—xxi
CCT:43, CCT:44	CCT:43—CCT:44.1
CCT:51	CCT:51
CDi:7—CDi:8.1	CDi:7—CDi:8.1
CDi:25—CDi:37	CDi:25—CDi:37
CDi:43—CDi:54	CDi:43—CDi:54
CDi:57, CDi:58	CDi:57, CDi:58
CDi:63—CDi:66	CDi:63—CDi:66
CDi:71, CDi:72	CDi:71, CDi:72
CDi:77, CDi:78	CDi:77, CDi:78
CDi:99—CDi:102	CDi:99—CDi:102
CDi:107, CDi:108	CDi:107, CDi:108
CDi:113, CDi:114	CDi:113, CDi:114
CDi:163—CDi:172	CDi:163—CDi:172
CDi:179—CDi:186	CDi:179—CDi:186
CDi:205, CDi:206	CDi:205, CDi:206
CDi:219, CDi:220	CDi:219, CDi:220

Remove Old Pages	*Insert New Pages*
CDi:245, CDi:246	CDi:245, CDi:246
CDi:267—CDi:268.1	CDi:267, CDi:268

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SUPPLEMENT NO. 12
VOLUMES I AND II
September 2017

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5651, enacted July 25, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T2:61, T2:62	T2:61, T2:62
T2:85, T2:86	T2:85—T2:86.1
T4:49—T4:50.2	T4:49—T4:50.3
T7:3—T7:4.1	T7:3, T7:4
T7:9—T7:16	T7:9—T7:16
T8:13, T8:14	T8:13, T8:14
VOLUME II	
xv—xxi	xv—xxi
T12:1	T12:1
T12:9—T12:18	T12:9—T12:18
T12:69—T12:72	T12:69, T12:70
T13:27—T13:32	T13:27—T13:32.1
T14:1	T14:1
T14:101—T14:108	T14:101, T14:102
CCT:47—CCT:50	CCT:47—CCT:51
SLT:1—SLT:6	SLT:1—SLT:6
CDi:3, CDi:4	CDi:3, CDi:4
CDi:17, CDi:18	CDi:17, CDi:18
CDi:25, CDi:26	CDi:25, CDi:26
CDi:33, CDi:34	CDi:33, CDi:34
CDi:45—CDi:48	CDi:45—CDi:48
CDi:53, CDi:54	CDi:53, CDi:54
CDi:59, CDi:60	CDi:59, CDi:60

Remove Old Pages	*Insert New Pages*
CDi:64.1—CDi:66	CDi:65, CDi:66
CDi:71—CDi:74	CDi:71—CDi:74
CDi:77, CDi:78	CDi:77, CDi:78
CDi:83, CDi:84	CDi:83, CDi:84
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CDi:149, CDi:150	CDi:149, CDi:150
CDi:159, CDi:160	CDi:159, CDi:160
CDi:171, CDi:172	CDi:171, CDi:172
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CDi:219, CDi:220	CDi:219, CDi:220
CDi:237, CDi:238	CDi:237, CDi:238
CDi:243, CDi:244	CDi:243, CDi:244
CDi:255, CDi:256	CDi:255, CDi256

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SUPPLEMENT NO. 11
VOLUMES I AND II
April 2017

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5486, enacted December 18, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xvii—xxi	xvii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T9:71—T9:86	T9:71—T9:86.3
VOLUME II	
xvii—xxi	xvii—xxi
CCT:47—CCT:50	CCT:47—CCT:50

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SUPPLEMENT NO. 10
VOLUMES I AND II
October 2016

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5619, enacted June 21, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T5:17—T5:20.1	T5:17—T5:20.1
T8:11—T8:14	T8:11—T8:14.1
	VOLUME II
CCT:47—CCT:50	CCT:47—CCT:50
CDi:21, CDi:22	CDi:21, CDi:22

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SUPPLEMENT NO. 9
VOLUMES I AND II
July 2016

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5615, enacted May 3, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
T2:39—T2:42	T2:39—T2:42.1
T4:11—T4:14.2	T4:11—T4:14.2
T5:17, T5:18	T5:17—T5:18.1
T5:27, T5:28	T5:27—T5:29
T7:3, T7:4	T7:3—T7:4.1
T7:11, T7:12	T7:11—T7:12.1
	VOLUME II
Title Page	Title Page
xix, xx	xix, xx
T12:76.3—T12:78	T12:77—T12:78.1
CCT:49, CCT:50	CCT:49, CCT:50
SLT:1—SLT:6	SLT:1—SLT:6
CDi:54.1—CDi:56	CDi:55—CDi:56.1
CDi:81, CDi:82	CDi:81, CDi:82
CDi:205—CDi:208.1	CDi:205—CDi:208.1

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SUPPLEMENT NO. 8
VOLUMES I AND II
January 2016

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5606, enacted November 17, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
T2:21—T2:26	T2:21—T2:26.3
T4:47—T4:50.1	T4:47—T4:50.2
T5:1	T5:1
T5:17—T5:20	T5:17—T5:20.1
T5:25, T5:26	T5:25—T5:28
T10:1	T10:1
T10:27	T10:27
	VOLUME II
xiii—xxi	xiii—xxi
CCT:49, CCT:50	CCT:49, CCT:50
SLT:1—SLT:6	SLT:1—SLT:6
CDi:5—CDi:8	CDi:5—CDi:8.1
CDi:223, CDi:224	CDi:223—CDi:224.1
CDi:251, CDi:252	CDi:251—CDi:252.1

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SUPPLEMENT NO. 7
VOLUMES I AND II
September 2015

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5585, enacted May 19, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
T6:63—T6:64.1	T6:63—T6:64.1
T6:74.1—T6:76	T6:75—T6:76.11
T9:11—T9:14	T9:11—T9:14
T9:43—T9:46.1	T9:43—T9:46.1
VOLUME II	
xiii—xxi	xiii—xxi
CCT:49, CCT:50	CCT:49, CCT:50
SLT:1—SLT:6	SLT:1—SLT:6
CDi:17—CDi:20	CDi:17—CDi:20
CDi:49, CDi:50	CDi:49, CDi:50
CDi:53, CDi:54	CDi:53—CDi:54.1
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:145, CDi:146	CDi:145—CDi:146.1
CDi:151—CDi:154	CDi:151—CDi:154.1
CDi:175, CDi:176	CDi:175—CDi:176.1
CDi:207, CDi:208	CDi:207—CDi:208.1
CDi:267, CDi:268	CDi:267—CDi:268.1

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SUPPLEMENT NO. 6
VOLUMES I AND II
April 2015

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5574, enacted January 6, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
T2:29, T2:30	T2:29—T2:30.1
T4:1	T4:1
T4:7—T4:14.2	T4:7—T4:14.2
T4:37, T4:38	T4:37—T4:38.1
T4:48.1—T4:50	T4:49—T4:50.1
T4:69, T4:70	T4:69—T4:79
T11:7—T11:18	T11:7—T11:18.2
T11:23, T11:24	T11:23, T11:24
T11:35, T11:36	T11:35, T11:36
	VOLUME II
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CCT:49	CCT:49, CCT:50
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:255, CDi:256	CDi:255, CDi:256
CDi:263, CDi:264	CDi:263, CDi:264

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SUPPLEMENT NO. 5
VOLUMES I AND II
January 2015

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5558, enacted September 16, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
T3:7, T3:8	T3:7—T3:8.1
T5:5, T5:6	T5:5—T5:6.1
T5:17—T5:20.1	T5:17—T5:20
T6:63, T6:64	T6:63—T6:64.1
T6:73, T6:74	T6:73—T6:74.2
T9:136.1—T9:142.1	T9:137—T9:142.2
T9:151—T9:154	T9:151—T9:154.1
T11:11—T11:16	T11:11—T11:16
T11:22.1—T11:24	T11:23—T11:24.1
T11:35, T11:36	T11:35—T11:36.1
T11:47, T11:48	T11:47—T11:48.1
T11:78.3—T11:81	T11:79—T11:81
	VOLUME II
xiii—xxi	xiii—xxi
T15:1—T15:539	T15:1
CCT:47—CCT:49	CCT:47—CCT:49
CDi:1—CDi:14	CDi:1—CDi:13
CDi:19—CDi:38	CDi:19—CDi:37
CDi:43—CDi:88	CDi:43—CDi:84
CDi:99—CDi:119	CDi:99—CDi:117
CDi:127—CDi:136	CDi:127—CDi:135
CDi:143—CDi:194.1	CDi:143—CDi:190
CDi:203—CDi:212	CDi:203—CDi:211

Remove Old Pages	*Insert New Pages*
CDi:217—CDi:234	CDi:217—CDi:233
CDi:245—CDi:368	CDi:245—CDi:274

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SUPPLEMENT NO. 4
VOLUMES I AND II
April 2014

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5542, enacted December 17, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xvii—xxi	xvii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
T9:91—T9:122	T9:91—T9:105
T9:131—T9:136	T9:131—T9:136.2
VOLUME II	
xvii—xxi	xvii—xxi
CCT:49	CCT:49
SLT:1—SLT:6	SLT:1—SLT:6
CDi:19—CDi:22	CDi:19—CDi:22.1
CDi:29—CDi:36	CDi:29—CDi:35
CDi:43—CDi:52	CDi:43—CDi:52
CDi:61—CDi:68	CDi:61—CDi:68
CDi:77—CDi:86	CDi:77—CDi:86
CDi:103—CDi:106	CDi:103—CDi:106
CDi:111—CDi:120	CDi:111—CDi:119
CDi:129—CDi:132	CDi:129—CDi:132
CDi:143—CDi:148	CDi:143—CDi:148
CDi:153—CDi:160	CDi:153—CDi:160
CDi:165—CDi:188	CDi:165—CDi:187
CDi:193—CDi:194.1	CDi:193—CDi:194.1
CDi:205—CDi:212	CDi:205—CDi:212
CDi:219—CDi:224	CDi:219—CDi:224
CDi:229—CDi:232	CDi:229—CDi:232
CDi:237, CDi:238	CDi:237, CDi:238
CDi:245—CDi:246.1	CDi:245—CDi:246.1

Remove Old Pages	*Insert New Pages*
CDi:251—CDi:256	CDi:251—CDi:256
CDi:347—CDi:356	CDi:347—CDi:356
CDi:363—CDi:369	CDi:363—CDi:368

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SUPPLEMENT NO. 3
VOLUMES I AND II
October 2013

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5531, enacted August 20, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxi	xvii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
T2:33—T2:36	T2:33—T2:36
T3:8.1—T3:10	T3:9—T3:10.1
T4:43, T4:44	T4:43—T4:44.1
T9:43—T9:46	T9:43—T9:46.1
T9:51—T9:62	T9:51—T9:62.1
T11:9—T11:16	T11:9—T11:16.1
T11:60.3—T11:62	T11:61—T11:62.2
	VOLUME II
xvii—xxi	xvii—xxi
T13:29, T13:30	T13:29, T13:30
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SUPPLEMENT NO. 2
VOLUMES I AND II
June 2013

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5502, enacted March 19, 2013.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 1
VOLUMES I AND II
December 2012

CODE OF ORDINANCES

City of

MEMPHIS, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5470, enacted September 18, 2012.

See the Code Comparative Table for further information.

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MEMPHIS, TENNESSEE

MUNICIPAL CODE*

2007
Volume I

A Codification of the General Ordinances of Memphis, Tennessee

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**Beginning with Supp. No. 7,
Supplemented by Municipal Code Corporation**

Republished 2012 by Municipal Code Corporation

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OFFICIALS

of the

CITY OF MEMPHIS, TENNESSEE

AT THE TIME OF THIS REPUBLICATION

A C Wharton, Jr.
Mayor

George M. Little
Chief Administrative Officer

Herman Morris, Jr.
City Attorney

Patrice Thomas
City Comptroller

Bill Morrison, District 1
City Council Chairman

William C. Boyd, District 2
Harold B. Collins, District 3
Wanda M. Halbert, District 4
Jim Strickland, District 5
Edmund Ford, Jr., District 6
Lee Harris, District 7
Joe Brown, District 8-1
Janis Fullilove, District 8-2
Myron Lowery, District 8-3
Kemp Conrad, District 9-1
Shea Flinn, District 9-2
Reid Hedgepeth, District 9-3
City Council

Zayid A. Saleem, Assistant City Attorney
Iyona H. Houston, Assistant City Attorney
Republication Project Managers

PREFACE

The Memphis, Tennessee Municipal Code, originally published by Matthew Bender & Company, has been kept current by regular supplementation by Matthew Bender & Company, Inc., its successor in interest.

Beginning with Supplement 7, Municipal Code Corporation will be keeping this code current by regular supplementation.

This 2012 republication includes all amendatory legislation through Ord. No. 5414, adopted November 1, 2011, and was accomplished under the supervision of Beth Tattershall, Code Editor.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of Matthew & Company.

The Code is organized by subject matter under an expandable three-factor decimal [hyphen] numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2.* In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

***Editor's note—**The section numbering used prior to and in the 2012 republication consists of a three-part numbering system, with each part referring to title, chapter, and section, separated by hyphens. Section 4 of Chapter 2-12 of Title 2 would therefore be numbered 2-12-4.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the Code, listing by number all ordinances, their subjects, and where they appear in the codification; and beginning with Supplement No. 7, legislation can be tracked using the "Code Comparative Table and Disposition List."

A subject-matter index, with complete cross-referencing, locates specific Code provisions by individual section numbers.

Municipal Code Corporation
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HOW TO USE YOUR CODE

This Code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this Code.

Numbering System.

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with **title**, then **chapter**, and ending with **section**. Each part is represented in the Code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.*

***Editor's note—**The section numbering used prior to and in the 2012 republication consists of a three-part numbering system, with each part referring to title, chapter, and section, separated by hyphens. Section 1 of Chapter 2-4 of Title 2 would therefore be numbered 2-4-1.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This Code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the Code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the Code without renumbering.*

***Editor's note—**The section numbering used prior to and in the 2012 republication does not separate sections by "tens," as described above. Instead, sections are numbered in sequential whole numbers. In the event a new section is to be inserted between two existing sections, the new section will be assigned a decimal number falling between the two sections. For example, a new section inserted between sections 2-4-1 and 2-4-2 would become section 2-4-1.5.

Tables of Contents.

There are many tables of contents in this Code to assist in locating specific information. At the beginning of the Code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note.

At the end of each Code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. No. 272, § 1, 1992).)

Beginning with Supplement No. 7 a secondary ordinance history note will be appended to affected sections. Ordinance history notes will be amended with the most recent ordinance added to the end. These history notes can be cross referenced to the Code Comparative Table and Disposition List appearing at the back of the volume preceding the index.

Statutory References.

The statutory references direct the Code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table.

When a Code is based on an earlier codification, the cross-reference table will help users find older or "prior" code references in the new Code. The cross-reference table is located near the end of the code, under the tabbed divider "Tables." This table lists the prior code section in the column labeled "Prior Code Section" and the new Code section in the column labeled "Herein."

As of the 2012 republication, this information can be found in the Code Comparative Table.

Ordinance List and Disposition Table.

To find a specific ordinance in the Code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for inclusion in the Code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the Code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Beginning with Supplement No. 7, this table will be replaced with the "Code Comparative Table and Disposition List."

Code Comparative Table and Disposition List.

Beginning with Supplement No. 7, a Code Comparative Table and Disposition List has been added for use in tracking legislative history. Located in the back of this volume, this table is a chronological listing of each ordinance considered for codification. The Code Comparative Table and Disposition List specifies the ordinance number, adoption date, description of the ordinance and the disposition within the Code of each ordinance. By use of the Code Comparative Table and Disposition List, the reader can locate any section of the Code as supplemented, and any subsequent ordinance included herein.

Index.

If you are not certain where to look for a particular subject in this Code, start with the index. This is an alphabetical multi-tier subject index which uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE
See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the Code text is amended.

Insertion Guide.

Each supplement to the new Code will be accompanied by an Insertion Guide. This guide will tell the Code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the Code and the new pages that must be inserted. Following these instructions carefully will ensure that the Code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers.*

When originally published, this Code was numbered with consecutive page numbers. As it is amended, new material may require the insertion of new pages that are numbered with hyphens. (Example: 31, 32, 32-1.) Backs of pages that are blank (in Codes that are printed double-sided) are left unnumbered but the number is "reserved" for later use.

***Editor's note—**The page numbering system used in the 2012 republication is a prefix system. The letters and numbers to the left of the colon are an abbreviation which represents the title number of the volume. The number to the right of the colon represents the number of the page in that portion. For example, the page number assigned to page 25 of Title 4 would be T4:25.

Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your Code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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Supp. No. 1		
5416	12- 6-2011	Include
5417	10-18-2011	Include
5418	10-18-2011	Include
5421	11- 1-2011	Include
5423	12- 6-2011	Include
5428	12- 6-2011	Include
5429	12- 6-2011	Include
5430	12-20-2011	Include
5432	1- 3-2012	Include
5433	1- 3-2012	Include
5434	1- 3-2012	Include
5440	2- 7-2012	Omit
5444	3-20-2012	Omit
5445	4- 3-2012	Include
5446	4- 3-2012	Include
5448	6- 5-2012	Include
5457	7- 3-2012	Include
5462	8- 7-2012	Include
5463	8- 7-2012	Include
5468	9- 4-2012	Include
5470	9-18-2012	Include
Supp. No. 2		
5472	11-20-2012	Include
5474	1- 8-2013	Include
5475	1- 8-2013	Include
5477	4- 2-2013	Include
5489	1- 8-2013	Include
5490	1-22-2013	Include
5493	2-19-2013	Include
5494	3- 5-2013	Include
5498	3- 5-2013	Include
5502	3-19-2013	Include

Ord. No.	Date Adopted	Include/Omit
Supp. No. 3		
5505	5-21-2013	Include
5506	5-21-2013	Include
5507	6- 4-2013	Include
5508	8-20-2013	Include
5511	8-20-2013	Include
5513	6- 4-2013	Include
5514	6- 4-2013	Include
5515	6-18-2013	Omit
5527	7-16-2013	Include
5530	8-20-2013	Include
5531	8-20-2013	Include
Supp. No. 4		
5537	12- 3-2013	Include
5538	12- 3-2013	Omit
5539	12-17-2013	Omit
5540	12-17-2013	Include
5541	12-17-2013	Omit
5542	12-17-2013	Include
Supp. No. 5		
5543	4- 1-2014	Include
5545	4- 1-2014	Include
5550	8- 5-2014	Omit
5558	9-16-2014	Include
5559	9- 2-2014	Include
5560	9- 2-2014	Include
5561	9- 2-2014	Include
Supp. No. 6		
5568	10-21-2014	Include
5573	12-16-2014	Include
5574	1- 6-2015	Include
5576	12-16-2014	Include
Supp. No. 7		
5581	4-21-2015	Include
5582	4-21-2015	Include
5583	5- 5-2015	Omit
5585	5-19-2015	Include
5591	8- 4-2015	Omit
5592	8-18-2015	Omit
Supp. No. 8		
5567	10-21-2014	Include
5595	9- 1-2015	Include
5596	9- 1-2015	Include
5597	9- 1-2015	Omit
5599	9-15-2015	Include
5606	11-17-2015	Include

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Supp. No. 9		
5611	4- 5-2016	Include
5612	4- 5-2016	Include
5614	5- 3-2016	Include
5615	5- 3-2016	Include
Supp. No. 10		
5619	6-21-2016	Include
Supp. No. 11		
5486	12-18-2012	Include
Supp. No. 12		
5459	7-17-2012	Include
5630	11- 1-2016	Include
5650	7-25-2017	Omit
5651	7-25-2017	Include
Supp. No. 13		
5219	10-16-2007	Include
5361	6- 8-2010	Omit
5631	10-18-2016	Omit
5632	10-18-2016	Include
5636	1- 3-2017	Include
5656	8-22-2017	Include
5657	9- 5-2017	Omit
5658	9-19-2017	Include
5659	10- 3-2017	Omit
5660	10- 3-2017	Include
5661	10-17-2017	Omit
5662	11- 7-2017	Include
Supp. No. 14		
5551	11-18-2014	Include
5670	12- 5-2017	Include
5672	12-19-2017	Include
5674	1- 9-2018	Include
5675	2- 6-2018	Include
5678	2- 6-2018	Include
Supp. No. 15		
5679	3- 6-2018	Include
5682	4-10-2018	Omit
5683	6- 5-2018	Omit
5684	6- 5-2018	Omit
5685	4-24-2018	Omit
5686	4-24-2018	Omit
5687	5- 8-2018	Omit
5688	5-22-2018	Omit
5689	6- 5-2018	Omit
Supp. No. 16		
5690	6- 5-2018	Omit
5700	8-28-2018	Include

Ord. No.	Date Adopted	Include/Omit
5701	8-28-2018	Include
Supp. No. 17		
5639	3-21-2017	Include
5703	9-25-2018	Omit
5704	9-25-2018	Omit
5707	9-25-2018	Include
5708	12-18-2018	Include
5710	12-18-2018	Include
5711	12-18-2018	Include
5712	12-18-2018	Include
5713	12-18-2018	Include
5714	12-18-2018	Include
5715	12-18-2018	Include
5716	12-18-2018	Include
5717	12-18-2018	Include
5718	2-19-2019	Omit
5719	12-18-2018	Include
5720	1-22-2019	Include
5722	3- 5-2019	Include
Supp. No. 18		
5726	6- 4-2019	Omit
5729	8-20-2019	Include
Supp. No. 19		
5641	4-11-2017	Include
5652	6-20-2017	Include
5727	11- 5-2019	Include
5732	11-19-2019	Include
5734	12- 3-2019	Omit
5736	12- 3-2019	Omit
5737	12- 3-2019	Omit
5738	12- 3-2019	Include
5739	12-17-2019	Include
5740	12-17-2019	Omit
5741	12-17-2019	Omit
5742	12-17-2019	Omit
5746	3- 3-2020	Omit
Supp. No. 20		
5747	4- 7-2020	Include
5751	6-16-2020	Include
Supp. No. 21		
5759	9- 1-2020	Include
5760	9- 1-2020	Include
5761	10- 6-2020	Omit
Supp. No. 22		
5763	12-15-2020	Include
5765	1- 5-2021	Include
5766	1- 5-2021	Include

Ord. No.	Date Adopted	Include/Omit
5767	1- 5-2021	Include
5770	1-26-2021	Include
Supp. No. 23		
5771	7- 6-2021	Include
5793	8-17-2021	Include
5807	11-16-2021	Include
5808	11-16-2021	Include
5809	11-16-2021	Include
5811	12- 7-2021	Include
5812	12-21-2021	Include
Supp. No. 24		
5819	3-22-2022	Omit
5820	4- 5-2022	Include
5822	5-24-2022	Omit
5823	5-24-2022	Omit
5825	6- 7-2022	Include
Supp. No. 25		
5829	6-21-2022	Omit
5830	6-21-2022	Omit
5831	8- 9-2022	Omit
5832	8-23-2022	Include
5833	8-23-2022	Omit
5834	Withdrawn	Omit
5835	10-11-2022	Omit
5836	11-15-2022	Omit
5837	11-15-2022	Omit
5838	12-20-2022	Omit
5839	11-15-2022	Omit
5840	12-20-2022	Omit
5841	12-20-2022	Include
Supp. No. 26		
5843	7-11-2023	Include
5856	3-21-2023	Include
5857	3-21-2023	Include
5859	4-11-2023	Include
5866	5- 2-2023	Include
5868	5-16-2023	Include
5870	6-27-2023	Omit
5873	7-11-2023	Include
5874	6-27-2023	Omit
5875	7-11-2023	Include
Supp. No. 27		
5818	3-22-2022	Include
5861	4- 9-2024	Include
5876	11- 7-2023	Include
5885	11- 7-2023	Include

Ord. No.	Date Adopted	Include/Omit
5887	11-21-2023	Include
5891	12-19-2023	Include
5896	2-20-2024	Include
Supplement 28		
5905	6-25-2024	Include
Supplement 29		
5904	6-25-2024	Include
5912	8- 6-2024	Include
5916	9-24-2024	Include
Supplement 30		
5921	12-17-2024	Include
5926	2- 4-2025	Include
5928	2-18-2025	Include
5932	2-18-2025	Include
Supplement 31		
5937	4- 8-2025	Include
Supplement 32		
5933	4- 8-2025	Include
5943	2-24-2026	Include
5952	8-19-2025	Omit
5953	8-19-2025	Omit
5961	12- 2-2025	Include
5965	12-16-2025	Include
5967	2-24-2026	Omit

Title 1

GENERAL PROVISIONS

Chapters:

1-1. Code Adoption
1-4. General Provisions
1-8. City Seal and City Flag
1-12. Ward Boundaries
1-16. Elections
1-20. City Block Map
1-24. General Penalty

CHAPTER 1-1. CODE ADOPTION

(Reserved)

CHAPTER 1-4. GENERAL PROVISIONS

Sections:

Sec. 1-4-1.	How Code designated and cited.
Sec. 1-4-2.	Definitions and rules of construction.
Sec. 1-4-3.	Catchlines of sections.
Sec. 1-4-4.	Code as evidence.
Sec. 1-4-5.	Severability of parts of Code.
Sec. 1-4-6.	Ordinances not affected by adoption of Code.

Sec. 1-4-1. How Code designated and cited.

The ordinances embraced in the following titles, chapters and sections shall constitute and be designated as the "Code of Ordinances, City of Memphis, Tennessee," and may be so cited. The Code may also be cited as the "Memphis City Code" or "Memphis Municipal Code." (Code 1985, § 1-1; Editorially amended during 2004 codification)

Charter reference—Authority to codify ordinances, § 361.

Sec. 1-4-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the city council or the context clearly requires otherwise.

City. The term "the city" or "this city" means the city of Memphis, in the County of Shelby and State of Tennessee.

City council. The term "city council" means the legislative branch of the city government of Memphis, Tennessee.

Computation of time. The time within which an act is to be done shall be computed by excluding the first and including the last day, and if the last day is a Saturday, Sunday or a legal holiday, that shall be excluded.

Councilmember. The term "city councilmember" means a member of the city council, and include women as well as men.

County. Whenever the words "the county" or "this county" are used, they shall be construed as meaning and referring to Shelby County, Tennessee.

Delegation of authority. Whenever a provision appears requiring the head of a department or some other city officer to do some act or perform some duty, it shall be construed to authorize the head of the department or other officer to designate, delegate and authorize subordinates to perform the required act or perform the duty, unless the terms of the provision or section specify otherwise.

Gender. Words importing the masculine gender shall include the feminine and neuter.

Health department. The term "health department" means the Memphis and Shelby County Health Department and employees of Memphis and Shelby County who have been assigned to such department and are directed by the health officer.

Health officer. The term "health officer" means the health authority of the city and the director of the health department or his or her authorized representatives.

Joint authority. All words giving a joint authority to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Month. The word "month" means a calendar month.

Number. Words used in the singular include the plural and the plural includes the singular number.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Or, and. "Or" may be read "and," and "and" may be read "or" if the sense requires it.

Owner. The word "owner," applied to a building or land, includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

Person. The word "person" includes a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

Personal property. The term "personal property" includes money, goods, chattels, things in action and evidences of debt.

Preceding, following. The words "preceding" and "following" mean next before and next after, respectively.

Property. The word "property" includes real and personal property.

Real property. The term "real property" includes lands, tenements and hereditaments, and all rights thereto and interests therein, equitable as well as legal.

Shall; may. "Shall" is mandatory; "may" is permissive.

Sidewalk. The word "sidewalk" means any portion of a street between the curb line and the adjacent property line, intended for the use of pedestrians.

Signature or *subscription.* The term "signature" or "subscription" includes a mark when the person cannot write, the name being written near the mark and witnessed.

State. The words "the state" or "this state" shall be construed as meaning and referring to the State of Tennessee.

Street. The word "street" means and includes any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge and the approaches thereto within the city.

Tenant or *occupant.* The word "tenant" or "occupant," applied to a building or land, includes any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Writing or *written.* The words "writing" and "written" include printing, typewriting, engraving, lithography, and any other mode of representing words and letters.

Year. The word "year" means a calendar year.
(Code 1985, § 1-2)

State law reference—Definitions applicable to state statutes, T.C.A. § 1-3-101 et seq.

Sec. 1-4-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.
(Code 1967, § 1-3; Code 1985, § 1-3)

State law reference—Similar provisions as to state statutes, T.C.A. § 1-3-109.

Sec. 1-4-4. Code as evidence.

Any printed copy of the Memphis City Code, certified under the facsimile signature of the comptroller, shall be held to be a true and correct copy of such codification and may be read in evidence in all courts of the state without further proof of the laws contained in such Code.
(Code 1967, § 1-4; Code 1985, § 1-4)

Sec. 1-4-5. Severability of parts of Code.

It is declared to be the intention of the city council that the sections, paragraphs, sentences, clauses, and words of this Code are severable, and if any word, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining words, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the city council without the incorporation in this Code of any such unconstitutional word, clause, sentence, paragraph or section.
(Code 1967, § 1-11; Code 1985, § 1-10)

State law reference—Similar provisions applicable to state statutes, T.C.A. § 1-3-110.

Sec. 1-4-6. Ordinances not affected by adoption of Code.

The repeal provided for in the ordinance adopting this Code shall not affect any of the following:

A. Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of the ordinance adopting this Code;

B. Any ordinance or resolution promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligations assumed by the city;

C. The administrative ordinances or resolutions of the city not in conflict or inconsistent with the provisions of this Code;

D. Any ordinance or resolution fixing salaries or compensation of officers or employees of the city, or establishing the personnel policies and procedures;

E. Any appropriation ordinance or resolution;

F. Any right or franchise granted by the council to any person, firm or corporation;

G. Any ordinance or resolution dedicating, naming, establishing, locating, relocating, opening, closing, paving, widening, vacating, etc., any street or public way in the city;

H. Any ordinance or resolution establishing and prescribing the street grades of any streets in the city;

I. Any ordinance or resolution providing for local improvements or assessing taxes therefor;

J. Any ordinance establishing fees, rates and charges, not inconsistent with this Code;

K. Any ordinance annexing property to the city;

L. Any zoning ordinance of the city or amendments thereto;

M. Any ordinance authorizing formation of joint agencies with other governments;

N. Ordinances or resolutions prescribing traffic regulations for specific locations, prescribing through streets, parking limitations, parking prohibitions, one-way traffic, limitations on loads of vehicles or loading zones, speed limits and other specific traffic regulations, not inconsistent with this Code;

O. Any ordinance levying taxes;

P. Any ordinance relating to boiler, compressor, refrigeration equipment, etc., installers and operators;

Q. Any ordinance adopting a building code or amending the same;

R. Any ordinance adopting an electric code or amending the same;

S. Any ordinance providing gas fitting regulations;

T. Any ordinance providing plumbing regulations;

U. Any ordinance adopting a fire safety code or amending the same;

V. Any subdivision ordinance or amendments thereto;

W. Any ordinance enacted after September 4, 1984; nor shall such repeal be construed to revive any ordinance or part of an ordinance that has been repealed by a subsequent ordinance which is repealed by the ordinance adopting this Code.

(Code 1985, § 1-11; Editorially amended during 2004 codification)

CHAPTER 1-8. CITY SEAL AND CITY FLAG

Sections:

Sec. 1-8-1. City seal—Design.
Sec. 1-8-2. Seal to be impressed or imprinted on official instruments.
Sec. 1-8-3. City flag or banner.

Sec. 1-8-1. City seal—Design.

A. The official seal of the city shall have the following design:

B. The seal shall have at the top thereof the word "MEMPHIS," on the right side, the word "COUNTY," at the bottom thereof the word "TENNESSEE," and on the left, the word "SHELBY"; in the middle there shall be the design of a "Steam Boat"; in the upper right shall be depicted a "Gear"; in the upper left shall be an "Oak Leaf' and on the bottom immediately beneath the steam boat shall be a "Cotton Boll" with two leaves attached.

C. Below is printed a facsimile of the design which shall be the official seal of the city:



(Code 1967, § 1-5; Code 1985, § 1-5)

Sec. 1-8-2. Seal to be impressed or imprinted on official instruments.

The official seal provided for by section 1-8-1 shall be impressed or imprinted on all official instruments of the city.
(Code 1967, § 1-6; Code 1985, § 1-6)

Sec. 1-8-3. City flag or banner.

A. The municipal flag or banner of the city shall be rectangular in shape. Its length shall be 1⅔ times its width. The field or background shall be divided into three parts, the colors being red, white and blue. Upon the conjunction of the lines bounding the three fields shall be centered the official seal of the city, its colors being gold and white.

B. The white portion of the city flag or banner is more particularly described as follows:

Beginning at a point in the inner edge (secured edge) of such flag or banner, such point being the uppermost corner of said flag; thence along the upper edge a distance of one-half the length of the entire flag; thence toward the bottom edge of such flag angling toward the secured edge to a point in the bottom edge of such flag or banner, such point being two-thirds the distance from the free edge of such flag or banner; thence one-third the length of the flag to a point, such point being the bottom corner of the inner or secured edge of such flag; thence along the secured or inner edge toward the top the entire width of the flag to a point of beginning; such described portion being white in color except for that part being overlaid with the official seal of the city.

C. The red portion of the city flag or banner is more particularly described as follows:

Beginning in the uppermost corner of the free edge or outer edge; thence along the free or outer edge toward the bottom edge of such flag or banner a distance of one-half the width of such flag; thence toward the secured edge, parallel to the top and bottom, to a point where such line contacts the white portion of such flag; thence angling toward the free or outer edge to a point in the top of such flag or banner; thence along the top edge of such flag a distance of one-half its length to a point in the uppermost corner of the free edge, such point being the point of beginning; described portion being red in color except for that part being overlaid by the seal of the city.

D. The blue portion of the city flag or banner is more particularly described as follows:

Beginning at a point in the free or outer edge of such flag or banner, such point being the bottom corner; thence along the bottom edge of such flag a distance of two-thirds its length to a point; thence angling toward the free or outer edge to a point, such point being located halfway between the top and bottom edges of such flag, such point also being the point where the City of Memphis seal shall be centered on such flag or banner; thence toward the outer or free edge, parallel to the top and bottom, to a point in the outer or free edge of such flag or banner, such point being centered between the top and bottom edges at the outer or free edge of such flag; thence along the outer or free edge of such flag one-half the distance of the width to the bottom corner of the free edge, such point being the point of beginning; such described portion being blue in color except for that part being overlaid by the seal of the city.

E. The seal of the city as described in section 1-8-1 shall be affixed and overlaid on the city flag or banner, its center being located at the conjunction of the three principal colors of the main fields. The diameter of the seal shall be one-half the width of the flag or banner. The background of the seal shall be gold in color and all lettering, illustrations and inscriptions found on the seal shall be white in color.

F. The above described backgrounds, colors, proportions and the overlaid city seal shall be on both sides of the material or cloth of the flag or banner.
(Code 1967, § 1-7; Code 1985, § 1-7)

CHAPTER 1-12. WARD BOUNDARIES*

Sections:

Sec. 1-12-1. Wards established and described.

Sec. 1-12-1. Wards established and described.

The territory embraced within the boundaries of the city shall be divided into the following wards, having boundaries and limits as set out herein:

***State law reference—**Authority to redistrict into new wards, T.C.A. § 6-54-102.

Ward 1

Ward 1 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of the Mississippi River with a westward projection of the center line of Waterworks Avenue; thence in a eastward direction along said westward projection of Waterworks Avenue to its intersection with the center line of the Wolf River; thence in a southerly direction following the center line of Wolf River to its intersection with a westward projection of the center line of Bethel Avenue; thence in a southeasterly direction along such westerly projection of Bethel Avenue to its intersection with the center line of North Seventh Street; thence in a southerly direction along the center line of North Seventh Street to its intersection with a westward projection of the north property line of Pope School (Memphis Board of Education); thence in an easterly direction along such westerly projection and the north property line of Pope School (Memphis Board of Education) property to the northeast corner of such property; thence in a southerly direction along the easterly property line of Pope School (Memphis Board of Education) property and a southward projection of such property line to its intersection with the center line of Auction Avenue; thence in an easterly direction along the center line of Auction Avenue to its intersection with the center line of Danny Thomas Boulevard; thence in a southerly direction along the center line of Danny Thomas Boulevard to its intersection with the center line of North Parkway; thence in a southwesterly direction along the center line of North Parkway to a point; such point being the intersection of the center line of North Parkway with the center line of Seventh Street; thence in a southwesterly direction along an imaginary line to a point; such point being the intersection of the center line of Lauderdale Street with the center line of Alabama Avenue; thence in a southerly direction along the center line of Lauderdale Street to its intersection with the center line of Poplar Avenue; thence in a westerly direction along the center line of Poplar Avenue and a westward projection of said center line to its intersection with the midstream of the Mississippi River; thence in a northerly direction following the midstream of the Mississippi to its intersection with a westward projection of Waterworks Avenue, said point of intersection being the point of beginning.

Ward 2

Ward 2 shall be and is bounded as follows: Beginning at the intersection of the midstream of the Mississippi River with a westward projection of the center line of Poplar Avenue; thence eastwardly with such projection and the center line of Poplar Avenue to the center line of Gayoso Bayou; thence southwardly with the center line of Gayoso Bayou to the center line of Madison Avenue; thence eastwardly with the center line of Madison Avenue to the center line of Danny Thomas Boulevard; thence southwardly with the center line of Danny Thomas Boulevard to its intersection with an eastward project of the center line of Calhoun Avenue; thence westwardly with such projection and the center line of Calhoun Avenue to the center line of South Third Street; thence southwardly with the center line of South Third Street to the center line of Carolina Avenue; thence westwardly with the center line of Carolina Avenue and a westerly projection of said center line to its intersection with the midstream of the Mississippi River; thence in a generally northerly direction with the midstream of the Mississippi River to its intersection with a westerly projection of the center line of Poplar Avenue, said point of intersection being the point of beginning.

Ward 3

Ward 3 shall be and is bounded as follows: Beginning at a point in the midstream of Gayoso Bayou at its intersection with the center line of Poplar Avenue, running south with the center line of Gayoso Bayou to a point where the center line of Gayoso Bayou intersects the center line of Madison Avenue; thence west with the center line of Madison Avenue to a point of intersection with the midstream of Wolf River; thence north with the midstream of Wolf River to a point where the center line of Poplar Avenue, if extended west, would intersect the midstream of Wolf River; thence east with this extension and the center line of Poplar Avenue, to the midstream of Gayoso Bayou, the point of beginning.

Ward 4

Ward 4 shall be and is bounded as follows: Beginning at a point in the center line of Bayou Gayoso, where the same is intersected by the center line of Madison Avenue, and running thence westwardly with the center line of Madison Avenue to the point where the same is intersected by the midstream of the

Wolf River; thence southwardly with the line of midstream of the Wolf River to the point where same is intersected by the western extension of the center line of Beale Street; thence eastwardly with the center line of Beale Street to the center line of Hernando Street; thence northwardly with the center line of Hernando Street to the line of midstream of Bayou Gayoso; thence northwardly and eastwardly with the midstream line of Bayou Gayoso to the point where same is intersected by the center line of Madison Avenue, the point of beginning.

Ward 5

Ward 5 shall be and is bounded as follows: Beginning at a point in the midstream of Bayou Gayoso where same is intersected by the center line of Madison Avenue and running thence eastwardly with the center line of Madison Avenue to the center line of Wellington Street; thence southward with the center line of South Wellington Street to the intersection of the eastern extension of the center line of East Calhoun Avenue; thence westwardly with the center line of East Calhoun Avenue to its intersection with the center line of Hadden Street; thence northwardly with the center line of Hadden Street and South Third Street to its intersection with the center line of Beale Street; thence eastwardly along the center line of Beale Street to its intersection with the center line of Hernando Street; thence northwardly with the center line of Hernando Street to its intersection with midstream of Bayou Gayoso; thence northwardly and eastwardly with the midstream of Bayou Gayoso to its intersection with the center tine of Madison Avenue, the point of beginning.

Ward 6

Ward 6 shall be and is bounded as follows: Beginning at a point in the midstream of the Wolf River where the same is intersected by the western projection of the center line of Beale Street and running thence eastwardly with the center line of Beale Street to the center line of South Third Street; thence southwardly along the center line of South Third and Hadden Streets to the center line of East Calhoun Avenue; thence eastwardly with the center line of East Calhoun Avenue to the center line of South Third Street; thence southwardly with the center line of South Third Street to the center line of Carolina Avenue; thence westwardly with the center line of Carolina Avenue and its westward extension to the line of the midstream of the Mississippi River; thence northwardly along the midstream of the Mississippi River to the intersection of the midstream of the Wolf River; thence northwardly along the midstream of the Wolf River to its intersection with a westwardly projection of Beale Street, this being the point of beginning.

Ward 7

Ward 7 shall be and is bounded as follows: Beginning at the intersection of the center line of Poplar Avenue with the center line of Dunlap Street; thence southwardly with the center line of Dunlap Street to the center line of Union Avenue; thence westwardly with the center line of Union Avenue to the center line of Walnut Street; thence southwardly with the center line of Walnut Street to the center line of Kings Alley; thence westwardly with the center line of Kings Alley and a westerly projection of such center line to its intersection with the center line of Danny Thomas Boulevard; thence northwardly with the center line of Danny Thomas Boulevard to the center line of Madison Avenue; thence westwardly with the center line of Madison Avenue to the center line of Gayoso Bayou; thence northwardly with the center line of Gayoso Bayou to the center line of Poplar Avenue; thence eastwardly with the center line of Poplar Avenue to the center line of Dunlap Street; such point being the point of beginning.

Ward 8

Ward 8 shall be and is bounded as follows: Beginning at the point in the midstream of Bayou Gayoso where same is intersected by the center line of the right-of-way of Louisville and Nashville Railroad, and running thence eastwardly along the center line of the right-of-way of L. & N. Railroad to the point where the same is intersected by the center line of North Manassas Street; thence southward with the center line of North Manassas Street to the point where the same is intersected by the center line of Lane Avenue and thence westward with the center line of Lane Avenue to its intersection with the center line of Jones Street; thence southward with the center line of Jones Street to its intersection with the center line of Alabama Avenue; thence southeasterly with the center line of Alabama Avenue to its intersection with the center line of Poplar Avenue; thence westward

with the center line of Poplar Avenue to its intersection with the midstream of Bayou Gayoso; thence northwardly with the midstream of Bayou Gayoso to the point of beginning.

Ward 9

Ward 9 shall be and is bounded as follows: Beginning at a point in the midstream of the Wolf River at its intersection with the midstream of Bayou Gayoso; thence eastwardly and southwardly along the midstream of Bayou Gayoso to a point where it is intersected by the center line of the right-of-way of the Louisville and Nashville Railroad Company; thence eastwardly along the center line of the right-of-way of the Louisville and Nashville Railroad Company to its intersection with the center line of Dunlap Street; thence northwardly along the center line of Dunlap Street to its intersection with the center line of Jackson Avenue; thence westwardly along the center line of Jackson Avenue to its intersection with the center line of Woodlawn Street; thence northward with the center line of Woodlawn Street to its intersection with the center line of Saffarans Avenue; thence northeastwardly with the center line of Saffarans Avenue to its intersection with the center line of North Manassas Street; thence northwardly with the center line of North Manassas Street to its intersection with the center line of Bethel Avenue; thence southwestwardly and northwestwardly with the center line of Bethel Avenue and the center line of Bethel Avenue produced in a straight line westwardly until such line converges with the center line of Chelsea Avenue; thence westwardly with the center line of Chelsea Avenue and the center line of Chelsea Avenue produced in a straight line westwardly to its intersection with the midstream of the Wolf River; thence southwardly with the midstream of the Wolf River to the point of beginning.

Ward 10

Ward 10 shall be and is bounded as follows: Beginning at that point in the midstream of the Mississippi River where it is intersected by the center line of Calhoun Avenue produced westwardly in a straight line; thence east along the production of such center line and the center line of Calhoun Avenue to its intersection with the center line of Hernando Street; thence southwardly along the center line of Hernando Street to its intersection with the center line of East Georgia Avenue; thence eastwardly along the center line of East Georgia Avenue to its intersection with the center line of Hernando Street; thence southwardly along the center line of Hernando Street to its intersection with the center line of East Railroad Avenue; thence westwardly along the center line of East Railroad Avenue to its intersection with Bayou Gayoso; thence southwardly along the midstream of Bayou Gayoso to its intersection with the center of E. H. Crump Boulevard; thence westwardly along the center line of E. H. Crump Boulevard produced westwardly to midstream of the Mississippi River; thence northwardly along midstream of the Mississippi River to the point of beginning.

Ward 11

Ward 11 shall be and is bounded as follows: Beginning at the intersection of the center line of East Calhoun Avenue with the enter line of South Third Street and thence eastward with the center line of East Calhoun Avenue and its eastern extension to the intersection of the center line of South Wellington Street; thence southward along the center line of South Wellington Street to its intersection with the south boundary line of the South Memphis Tract; thence eastwardly with the south boundary line of the South Memphis Tract to its intersection with the center line of Walnut Street; thence southward with the center line of Walnut Street to the intersection with the center line of East Railroad Avenue; thence westward with the center line of East Railroad Avenue to the intersection of the center line of South Third Street; thence northwardly with the center line of South Third Street to the center line of Calhoun Avenue, this being the point of beginning.

Ward 12

Ward 12 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of Carolina Avenue with the center line of South Third Street; thence southwardly with the center line of South Third Street to the center line of Railroad Avenue; thence westwardly with the center line of Railroad Avenue to the center line of Gayoso Bayou; thence southwardly with the center line of Gayoso Bayou and its meanderings to the center line of E. H. Crump Boulevard; thence westwardly with the center line of E. H. Crump Boulevard to the center line of the Illinois Central

Railroad right-of-way; thence southwardly with the center line of the Illinois Central Railroad right-of-way to the center line of South Parkway West; thence westwardly with the center line of South Parkway West and a westward projection of such center line to its intersection with the center line of McKellar Lake; thence northwardly with the center line of McKellar Lake and a northward projection of said center line to its intersection with the midstream of the Mississippi River; thence northeastwardly with the midstream of the Mississippi River to its intersection with a westward projection of the center line of Carolina Avenue; thence eastwardly with such projection and the center line of Carolina Avenue to its intersection with the center line of South Third Street, said point of intersection being the point of beginning.

Ward 13

Ward 13 shall be and is bounded as follows: Beginning at the point where the center line of East Railroad Avenue is intersected by the midstream of Bayou Gayoso, and running thence eastwardly with the center line of East Railroad Avenue to the center line of South Wellington Street; thence south with the center line of South Wellington Street, following the offsets in same at East McLemore Avenue and at East Trigg Avenue, to the intersection with the south line of South Parkway east; thence westwardly with the south line of South Parkway east to the intersection with the main line of the Illinois Central Railroad; thence northwardly with the main line of the said railroad to its intersection with the center line of E. H. Crump Boulevard; thence eastwardly with the center line of E. H. Crump Boulevard to its intersection with the midstream of Bayou Gayoso; thence northeastwardly along the midstream of said bayou to its intersection with the center line of East Railroad Avenue, the point of beginning.

Ward 14

Ward 14 shall be and is bounded as follows: Beginning at the point where the center line of Mississippi Boulevard intersects the center line of East Railroad Avenue and running thence eastwardly with the center line of East Railroad Avenue to its intersection with the center line of Neptune Street; thence southwardly with the center line of Neptune Street to the center line of Walker Avenue; thence east with the center line of Walker Avenue to the center line of College Street; thence south with the center line of College Street to the center line of East McLemore Avenue; thence east with the center line of East McLemore Avenue to its intersection with the center line of College Street; thence south with the center line of College Street, offsetting at East Trigg Avenue, to the south line of Kerr Avenue; thence westwardly along the south line of Kerr Avenue to the center line of Mississippi Boulevard; thence northwardly along the center line of such boulevard to the point of beginning.

Ward 15

Ward 15 shall be and is bounded as follows: Beginning at the intersection of the center lines of Harbert Avenue and South Bellevue Boulevard; thence south along the center line of Bellevue Boulevard to its intersection with the center line of the right-of-way of the Southern Railway Company or Railroad Avenue; thence southeastwardly along the center line of the right-of-way of the Southern Railway Company to its intersection with the center line of South Willett Street; thence northwardly along the center line of South Willett Street to its intersection with the center line of Harbert Avenue; thence westwardly along the center line of Harbert Avenue to the point of beginning.

Ward 16

Ward 16 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Bellevue Boulevard with the center line of Poplar Avenue; thence eastwardly with the center line of Poplar Avenue to the center line of Watkins Street; thence southwardly with the center line of Watkins Street to the center line of Union Avenue; thence eastwardly with the center line of Union Avenue to the center line of Tucker Street; thence northwardly with the center line of Tucker Street to the center line of Poplar Avenue; thence eastwardly with the center line of Poplar Avenue to the center line of Cooper Street; thence southwardly with the center line of Cooper Street to the center line of Harbert Avenue; thence westwardly with the center line of Harbert Avenue to the center line of Bellevue Boulevard; thence northwardly with the center line of Bellevue Boulevard to the center line of Union Avenue; thence westwardly with the center line of Union Avenue to the center line of Bellevue Boule-

vard; thence northwardly with the center line of Bellevue Boulevard to the center line of Madison Avenue; thence westwardly with the center line of Madison Avenue to the center line of Bellevue Boulevard; thence northwardly with the center line of Bellevue Boulevard to its intersection with the center line of Poplar Avenue, such point of intersection being the point of beginning.

Ward 17

Ward 17 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Watkins Street with the center line of Poplar Avenue; thence eastwardly with the center line of Poplar Avenue to the center line of Tucker Street; thence southwardly with the center line of Tucker Street to the center line of Union Avenue; thence westwardly with the center line of Union Avenue to the center line of Watkins Street; thence northwardly with the center line of Watkins Street to its intersection with the center line of Poplar Avenue, such point of intersection being the point of beginning.

Ward 18

Ward 18 shall be and is bounded as follows: Beginning at the intersection of the center line of Union Avenue with the center line of Walnut Street, and running in an eastwardly direction with the center line of Union Avenue to its intersection with the center line of South Bellevue Boulevard; thence south with the center line of South Bellevue Boulevard to its intersection with the center line of Peabody Avenue; thence west with the center line of Peabody Avenue to its intersection with the center line of Pauline Street; thence south with the center line of Pauline Street to its intersection with the center line of E. H. Crump Boulevard; thence west with the center line of E. H. Crump Boulevard to its intersection with the center line of Dudley Street; thence south with the center line of Dudley Street to its intersection with the center line of Southern Railway's right-of-way; thence northwestwardly with the center line of the Southern Railway's right-of-way to its intersection with the center line of Walnut Street; thence north with the center line of Walnut Street to its intersection with the center line of Union Avenue, the point of beginning.

Ward 19

Ward 19 shall be and is bounded as follows: Beginning at the point of the intersection of the center line of North Dunlap Street with the center line of Poplar Avenue and running east with the center line of Poplar Avenue to the center line of North Bellevue Boulevard; thence south with the center line of North Bellevue Boulevard to the center line of Madison Avenue; thence east with the center line of Madison Avenue to the center line of South Bellevue Boulevard; thence south with the center line of South Bellevue Boulevard to the center line of Union Avenue; thence west with the center line of Union Avenue to the center line of South Dunlap Street; thence north with the center line of South Dunlap Street to its intersection with the center line of Madison Avenue, and continuing north with the center line of North Dunlap Street to its intersection with the center line of Poplar Avenue, the point of beginning.

Ward 20

Ward 20 shall be and is bounded as follows: Beginning at the intersection of the center line of North Parkway with the center line of Decatur Street and running thence eastwardly with the center line of North Parkway to the east line of East Parkway north; thence southwardly with the east line of East Parkway north to the center line of Poplar Avenue; thence westwardly with the center line of Poplar Avenue to its intersection with the center line of Decatur Street; thence northward with the center line of Decatur Street to its intersection with the center line of North Parkway, such point being the point of beginning.

Ward 21

Ward 21 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Ayers Street with the center line of North Parkway; running thence northwardly with the center line of Ayers Street to the center line of an eastern extension of Wells Avenue produced eastwardly; thence eastwardly with said eastwardly extension of the center line of Wells Avenue produced to a point in the center line of Morehead Street; thence northwardly with the center line of Morehead Street to the center line of the Union Railway right-of-way; thence eastwardly with the center line of the Union Railway right-of-way to the center line of Alma Street; thence northwardly with the center line of Alma Street to the

center line of Smith Avenue; thence eastwardly offsetting at Bellevue to the center line of Speed Street; thence in a southwardly direction with the center line of Speed Street offsetting at Union Railway right-of-way to the center line of Brown Avenue; thence eastward with the center line of Brown Avenue to a point 127.8 feet east of the east line of Randle Street; thence southwardly parallel to Randle Street to the center line of Vollintine Avenue; thence eastwardly with the center line of Vollintine Avenue to the center line of Mansfield Street; thence southwardly with the center line of Mansfield Street to a point of termination in the center line of Jackson Avenue; such point also being a point in the center line of Watkins Street; thence southward with the center line of North Watkins Street to the center line of North Parkway; thence in a westwardly direction with the center line of North Parkway to the center line of Decatur Street; thence southwardly with the center line of Decatur Street to the center line of the L. & N. Railroad right-of-way; thence in a westwardly direction with the center line of the L. & N. Railroad right-of-way to its intersection with the center line of Dunlap Street; thence northwardly with the center line of Dunlap Street to the center line of North Parkway; thence in, an eastwardly direction with the center line of North Parkway to its intersection with the center line of Ayers Street; such point being the point of beginning.

Ward 22

Ward 22 shall be and is bounded as follows: Beginning at a point in the midstream of the Wolf River where it is intersected by a production westwardly of the north line of Waterworks Avenue; thence eastwardly along such line produced and the north line of Waterworks Avenue, to the west line of North Second Street; thence northwardly along the west line of North Second Street to an intersection with the projection westwardly of the south line of Wells Avenue; thence eastwardly along the south line of Wells Avenue produced westwardly and the south line of Wells Avenue to its intersection with the center line of Thomas Street; thence southwardly with the center line of Thomas Street to its intersection with the center line of Bethel Avenue; thence westwardly along the center line of Bethel Avenue and the center line of Bethel Avenue produced in a straight line westwardly to midstream of the Wolf River; thence north with midstream of the Wolf River to the point of beginning.

Ward 23

Ward 23 shall be and is bounded as follows: Beginning at the point where the midstream of Bayou Gayoso is intersected by the center line of Madison Avenue and running thence northwardly with the midstream of Bayou Gayoso to the point where same is intersected by the center line of Poplar Avenue; thence eastwardly with the center line of Poplar Avenue to the intersection of the center line of North Dunlap Street; thence southwardly with the center line of North Dunlap Street to the center line of Madison Avenue; thence westwardly with the center line of Madison Avenue to the point of beginning.

Ward 24

Ward 24 shall be and is bounded as follows: Beginning at that point in the center of Lake McKellar where same is intersected by a western production of the south line of the South Parkway West, and running thence northwardly with the center of Lake McKellar and with a northwardly production thereof to the point where same is intersected by the western production of the center line of Wisconsin Avenue; thence eastwardly with the western production of and with the center line of Wisconsin Avenue to a point where it is intersected by the center line of Riverside Boulevard; thence southwardly with the center line of Riverside Boulevard to a point where it is intersected by the center line of the St. Louis-San Francisco Railroad Company right-of-way; thence southeastwardly with the center line of the St. Louis-San Francisco Railroad Company right-of-way and a southeastwardly production thereof to a point where it is intersected by the center lines of Arkansas Street and West McLemore Avenue; thence eastwardly with the center line of West and East McLemore to the center line of the main line of the Illinois Central Railroad Company; thence southwardly with the center line of the main line of the Illinois Central Railroad Company to a point where it is intersected by the south line of the South Parkway East; thence westwardly with the south line of the South Parkway east and west to the point of beginning.

Ward 25

Ward 25 shall be and is bounded as follows: Beginning at the intersection of the center line of South Wellington Street with the center line of East Railroad Avenue, and running thence eastwardly with

the center line of East Railroad Avenue to the intersection of the center line of Mississippi Boulevard; thence southwardly with the center line of Mississippi Boulevard to the south line of Kerr Avenue; thence westwardly with the south line of Kerr Avenue and South Parkway east to its intersection with the center line of South Wellington Street; thence northwardly with the center line of South Wellington Street to the intersection with the center line of East Railroad Avenue, the point of beginning, making the offsets at East McLemore Avenue and at East Trigg Avenue.

Ward 26

Ward 26 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of the Frisco Railroad with a northward projection of the center line of James Street; thence in a southeasterly direction following the center line of the Frisco Railroad to its intersection with the center line of Ragen Street; thence in a southerly direction with the center line of Ragen Street to its intersection with an eastward projection of the south right-of-way line of Quinn Avenue; thence in a westerly direction following said easterly projection and the south right-of-way line of Quinn Avenue and a westward projection of the south right-of-way line of Quinn Avenue to its intersection with the center line of Woodbine Street; thence in a southerly direction following the center line of Woodbine Street to its intersection with the center line of Kerr Avenue; thence in a westerly direction following the center line of Kerr Avenue to its intersection with the center line of College Street; thence in a northerly direction following the center line of College Street to its intersection with the center line of East McLemore Avenue; thence in a westerly direction following the center line of East McLemore Avenue to its intersection with the center line of College Street; thence in a westerly direction following the center line of East McLemore Avenue to its intersection with the center line of College Street; thence continuing in a northerly direction with the center line of College Street to its intersection with the center line of Walker Avenue; thence in an easterly direction following the center line of Walker Avenue to its intersection with the center line of James Street; thence in a northerly direction following the center line of James Street and a northerly projection of such center line to a point in the Frisco Railroad, such point being the point of beginning.

Ward 27

Ward 27 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of Bethel Avenue with the center line of Thomas Street; thence in a northerly direction following the center line of Thomas Street to its intersection with the center line of Wells Avenue; thence in an easterly direction following the center line of Wells Avenue and an easterly projection of such center line to its intersection with the center line of Ayres Street; thence in a southerly direction following the center line of Ayres Street to its intersection with the center line of North Parkway; thence in a westerly direction following the center line of North Parkway to its intersection with the center line of Dunlap Street; thence in a southerly direction following the center line of Dunlap Street to its intersection with the center line of the L. & N. Railroad; thence in a westerly direction following the center line of the L. & N. Railroad to its intersection with the center line of Manassas Street; thence in a southerly direction following the center line of Manassas Street to its intersection with the center line of Lane Avenue; thence in a westerly direction following the center line of Lane Avenue to its intersection with the center line of James Street; thence in a southerly direction following the center line of James Street to its intersection with the center line of Alabama Avenue; thence in an easterly direction following the center line of Alabama Street to its intersection with the center line of Poplar Avenue; thence in a westerly direction following the center line of Poplar Avenue to its intersection with the center line of Lauderdale Street; thence in a northerly direction following the center line of Lauderdale Street to its intersection with the center line of Alabama Avenue; thence in a northeasterly direction following an imaginary line to a point, such point being the intersection of the center line of North Parkway with the center line of North Seventh Street; thence in a northeasterly direction following the center line of North Parkway to its intersection with the center line of Thomas Street; thence in a northerly direction following the center line of Thomas Street to its intersection with the center line of Auction Avenue; thence in a westerly direction following the center line of Auction Avenue to its intersection with a southward projection of the easterly property line of Pope School (Memphis Board of Education) property; thence in a northerly direction following such southward projection and the

easterly line of the Pope School (Memphis Board of Education) property to the northeast corner of such property; thence in a westerly direction following the north line of the Pope School (Memphis Board of Education) property and a westward projection of such property line to its intersection with the center line of North Seventh Street; thence in a northerly direction following the center line of North Seventh Street to its intersection with the center line of Bethel Avenue; thence in an easterly direction following the center line of Bethel Avenue to its intersection with the center line of Thomas Street, such point of intersection being the point of beginning.

Ward 28

Ward 28 shall be and is bounded as follows: Beginning at the intersection of the center line of Cooper Street and the center line of Poplar Boulevard, thence eastwardly with the center line of Poplar Boulevard to the center line of Buntyn Street produced northwardly, thence southwardly along said projection and center line of Buntyn Street to the center line of Lombardy Avenue; thence westwardly along the center line of Lombardy Avenue and Central Avenue to the center line of Cooper Street; thence northwardly along the center line of Cooper Street to the point of beginning.

Ward 29

Ward 29 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of Cooper Street with the center line of Central Avenue; thence in an easterly direction with the center line of Central Avenue to the enter line of Hollywood Street; thence southwardly with the enter line of Hollywood Street to the center line of Milton Avenue; thence easterly with the center line of Milton Avenue to the enter line of Boston Street; thence southwardly with the center line of Boston Street to the center line of Midland Avenue; thence eastwardly with the center line of Midland Avenue to the center line of Buntyn Street; thence southwardly with the center line of Buntyn Street to the center line of Southern Avenue; thence eastwardly with the center line of Southern Avenue to the center line of Josephine Street; thence southwardly with the center line of Josephine Street to the center line of Canes Avenue; thence eastwardly with the center line of Carnes Avenue to the center line of Inez Street; thence southwardly with the center line of Inez Street to the center line of Douglass Avenue; thence westerly with the center line of Douglass Avenue to the center line of Laurel Street; thence northwardly with the center line of Laurel Street to the center line of Douglass Avenue; thence continuing westerly with the center line of Douglass Avenue to the center line of Bey Street; thence southwardly with the center line of Bey Street to the center line of Douglass Avenue; thence continuing westwardly with the center line of Douglass Avenue to the center line of Airways Boulevard; thence southwardly with the center line of Airways Boulevard to the center line of Park Avenue; thence westwardly with the center line of Park Avenue to the center line of Lamar Avenue; thence in a northwestwardly direction with the center line of Lamar Avenue to the center line of East Parkway South; thence northwardly and eastwardly with the center line of East Parkway South to the center line of Cooper Street; thence northwardly with the center line of Cooper Street to its intersection with the center line of Central Avenue, such point of intersection being the point of beginning.

Ward 30

Ward 30 shall be and is bounded as follows: Beginning at the intersection of the center line of Harbert Avenue with the center line of Willett Street, and running in an easterly direction with the center line of Harbert Avenue to its intersection with the center line of Cooper Street; thence south with the center line of Cooper Street to its intersection with the center line of the Nashville, Chattanooga & St. Louis Railway's right-of-way; thence westwardly with the center line of the Nashville, Chattanooga & St. Louis Railway's right-of-way to its intersection with the center line of Willett Street; thence north with the center line of Willett Street to its intersection with the center line of Harbert Avenue, the point of beginning.

Ward 31

Ward 31 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of Wabash Avenue with the center line of Cooper Street; thence in a northerly direction with the center line of Cooper Street to its intersection with the center line of the I. C. Railroad R.O.W.; thence in a northeasterly direction with the center line of the I. C. Railroad R.O.W. to its intersection with the

center line of Lamar Avenue; thence in a northwesterly direction with the center line of Lamar Avenue to its intersection with the center line of East Parkway south; thence in a northerly direction with the center line of East Parkway south to the center line of Cooper Street; thence in a northerly direction with the center line of Cooper Street to the center line of the L. & N. Railroad R.O.W.; thence in a southerly and westerly direction with the center line of the L. & N. Railroad R.O.W. to its intersection with the center line of Willett Street; thence southwardly with the center line of Willett Street to its intersection with the center line of the Southern Railroad R.O.W.; thence in a northwesterly direction with the center line bf the Southern Railroad R.O.W. to its intersection with the center line of the Frisco Railroad R.O.W; thence in a southeasterly direction with the center line of the Frisco Railroad R.O.W. to its intersection with the center line of the I. C. Railroad; thence in a northeasterly direction with the center line of I. C. Railroad to its intersection with the center line of Castalia Street; thence in a southerly direction with the center line of Castalia Street to its intersection with the center line of Wabash Avenue; thence in an easterly direction with the center line of Wabash Avenue to the center line of Cooper Street, such point being the point of beginning.

Ward 32

Ward 32 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Peabody Avenue with the center line of Bellevue Boulevard; thence in a southerly direction following the center line of Bellevue Boulevard to its intersection with the center line of the Frisco Railroad; thence in a northwesterly direction following the center line of the Frisco Railroad to its intersection with a northward projection of the center line of James Street; thence in a southerly direction along said northward projection and the center line of James Street to its intersection with the center line of Walker Avenue; thence in a westerly direction following the center line of Walker Avenue to its intersection with the center line of Neptune Street; thence in a northerly direction following the center line of Neptune Street to its intersection with the center line of Railroad Avenue; thence in a westerly direction following the center line of Railroad Avenue to its intersection with the center line of Walnut Street; thence in a northerly direction following the center line of Walnut Street to its intersection with the center line of the Frisco Railroad; thence in a southeasterly direction following the center line of the Frisco Railroad to its intersection with the center line of South Dudley Street; thence in a northerly direction following the center line of South Dudley Street to its intersection with the center line of E. H. Crump Boulevard; thence in an easterly direction following the center line of E. H. Crump Boulevard to its intersection with the center line of Pauline Street; thence in a northerly direction following the center line of Pauline Street to its intersection with the center line of Peabody Avenue; thence in an easterly direction following the center line of Peabody Avenue to its intersection with the center line of Bellevue Boulevard, such point of intersection being the point of beginning.

Ward 33

Ward 33 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Poplar Avenue with a center line of East Parkway North, running thence north with the center line of East Parkway North to a point of intersection with the center line of Summer Avenue; thence east with the center line of Summer Avenue to its point of intersection with the center line of the L. & N. Railroad; thence south with the center line of the L. & N. Railroad to its point of intersection with the center line of Poplar Avenue; thence in a westwardly direction with the center line of Poplar Avenue to its intersection with the center line of East Parkway North, the point of beginning.

Ward 34

Ward 34 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Kerr Avenue with a northward projection of the westerly property line of Calvary Cemetery; thence in a southerly direction following such northward projection and the westerly property line of Calvary Cemetery to its intersection with the center line of Person Avenue; thence in a westerly direction following the center line of Person Avenue to its intersection with the center line of Hernando Road; thence in a generally southerly direction following the center line of Hernando Road to its intersection with the center line of Dunn Avenue; thence in a westerly direction following the center line

of Dunn Avenue to its intersection with the center line of Marjorie Street; thence in a northwesterly direction following the center line of Marjorie Street to its intersection with the center line of Lucille Avenue; thence in a southwesterly direction following the center line of Lucille Street to its intersection with the center line of Benton Street; thence in a southerly direction following the center line of Benton Street to its intersection with the center line of Woodland Avenue; thence in a westerly direction following the center line of Woodland Avenue to its intersection with the center line of Alice Avenue; thence in a westerly direction following the center line of Alice Avenue to its intersection with the center line of Orleans Street; thence in a northerly direction following the center line of Orleans Street and a northerly projection of said center line to its intersection with the center line of the Union Railroad; thence in a northeasterly direction following the center line of the Union Railroad to the intersection with Person Avenue; thence in a westerly direction following the center line of Person Avenue to its intersection with the center line of the Illinois Central Railroad; thence in a northerly direction following the center line of the Illinois Central Railroad to its intersection with the center line of Kerr Avenue; thence in an easterly direction following the center line of Kerr Avenue to its intersection with a northward projection of the westerly property line of Calvary Cemetery, such point of intersection being the point of beginning.

Ward 35

Ward 35 shall be and is bounded as follows: Beginning at a point in the midstream of Lake McKellar where it is intersected by the center line of South Parkway West, produced westwardly; thence eastwardly along such production and the center line of South Parkway West and east to its intersection with the center line of the right-of-way of the Illinois Central Railroad Company; thence southwardly along the center line of said railroad right-of-way to its intersection with the south line of Person Avenue; thence westwardly along the south line of Person Avenue and the south line of Person Avenue produced westwardly to its intersection with the east line of Kansas Street; thence southwardly and southwestwardly along the east line of Kansas Street to its intersection with the center line of Pretoria Avenue; thence in a westward direction with the center line of Pretoria Avenue to the center line of the first main drainage ditch; thence southward with the center line of such drainage ditch to the south line of Joubert Avenue produced across Kansas Street; thence westwardly along the south line of Joubert Avenue to its intersection with the easterly right-of-way line of Interstate Highway I-55; thence southwardly with the easterly right-of-way line of Interstate I-55, to its intersection with an eastward projection of the southerly boundary of Riverside Park; thence in a westerly direction with such projection and the southerly boundary of Riverside Park and a westerly projection of such southerly boundary to the midstream of Lake McKellar; thence northwardly along the midstream of Lake McKellar to the point of beginning.

Ward 36

Ward 36 shall be and is bounded as follows: Beginning at the intersection of the center lines of North Parkway and Watkins Street, running thence northwardly along the center line of Watkins Street to the center line of Jackson Avenue; running thence northwardly along the center line of Mansfield Street to the center line of Vollintine Avenue; running thence eastwardly along the center line of Vollintine Avenue to the east line of Springdale Street; running thence southwardly with the east line of Springdale Street to the center line of Jackson Avenue to the center line of Trezevant Street; running thence southwardly along the center line of Trezevant Street to the center line of North Parkway; running thence westwardly along the center line of North Parkway to the point of beginning.

Ward 37

Ward 37 shall be and is bounded as follows: Beginning at the point of intersection of the center line of the L. & N. Railroad with the center line of Summer Avenue and running thence eastwardly with the center line of Summer Avenue to its intersection with the center line of Cypress Creek; thence in a southwardly direction with the meanderings of the center line of Cypress Creek to its intersection with the center line of Johnson Avenue; thence westwardly with the center line of Johnson Avenue to its intersection with the center line of Tillman Street to the south; thence southwardly with the center line of Tillman Street to its intersection with the center line of Poplar Avenue; thence in a northwestwardly direction with the center line of Poplar Avenue to its intersection

with the center line of the L. & N. Railroad right-of-way; thence northwardly with the center line of the L. & N. Railroad right-of-way to its intersection with the center line of Summer Avenue; such point being the point of beginning.

Ward 38

Ward 38 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Jackson Avenue with the center line of Macon Road; thence in a generally easterly direction following the center line of Macon Road to its intersection with the center line of Homer Street; thence in a northerly direction following the center line of Homer Street to its intersection with the center line of Macon Road; thence in an easterly direction following the center line of Macon Road to its intersection with the center line of Graham Street; thence in a southerly direction following the center line of Graham Street to its intersection with the center line of Tutwiler Avenue; thence in a westerly direction following the center line of Tutwiler Avenue to its intersection with the center line of Isabelle Street; thence in a southerly direction following the center line of Isabelle Street to its intersection with the center line of Summer Avenue; thence in a westerly direction following the center line of Summer Avenue to its intersection with the center line of Pope Street; thence in a northerly direction following the center line of Pope Street to its intersection with the center line of Powell Avenue; thence in an easterly direction following the center line of Powell Avenue to its intersection with the center line of Hudson Street; thence in a northerly direction following the center line of Hudson Street to its intersection with the center line of Lyndale Avenue; thence in an easterly direction following the center line of Lyndale Avenue to its intersection with the center line of Holmes Street; thence in a northerly direction with the center line of Holmes Street to its intersection with the center line of Given Avenue; thence in an easterly direction following the center line of Given Avenue to its intersection with the center line of National Street; thence in a northerly direction following the center line of National Street to its intersection with the center line of Lamphier Avenue; thence in a westerly direction following the center line of Lamphier Avenue to its intersection with the center line of Hudson Street; thence in a northwesterly direction following the center line of Hudson Street to its intersection with the center line of Jackson Avenue; thence in a northeasterly direction following the center line of Jackson Avenue to its intersection with the center line of Macon Road, such point of intersection being the point of beginning.

Ward 39

Ward 39 shall be and is bounded as follows: Beginning at the point of intersection of the projection westwardly of the center line of Waterworks Avenue with the midstream of Wolf River, running thence northwardly and eastwardly with the midstream of Wolf River to the point of intersection with a projection westwardly of the center line of the Wolf River Flood Control Wall, as surveyed and monumented by the United States Engineers, which runs on a straight line westwardly 705 feet from the west right-of-way line of the Illinois Central Railroad; thence eastwardly with such projection and with such center line of the Flood Wall, as surveyed and monumented by the United States Engineers to the center line of Thomas Street; thence eastwardly and southeastwardly with the center line of the Wolf River Flood Control Levee, as surveyed and monumented by the United States Engineers, to the point of intersection of a northwardly projection of the center line of Morehead Street; thence southwardly with the projection of and the center line of Morehead Street offsetting at Firestone Boulevard to the point of intersection with an eastwardly projection of the center line of Wells Avenue; thence westwardly with the projection of and the center line of Wells Avenue to the center line of North Second Street; thence southwardly with the center line of North Second Street to the center line of Waterworks Avenue; thence westwardly with the center line of and a westwardly projection of Waterworks Avenue to the midstream of Wolf River, this being the point of beginning.

Ward 40

Ward 40 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Evergreen Street with the center line of Vollintine Avenue; thence running westwardly with the center line of Vollintine Avenue to a point 127.8 feet east of the east line of Randle Street as dedicated north of Vollintine Avenue; thence northwardly parallel to Randle Street to the center line of Brown Avenue; thence westwardly with the center line of

Brown Avenue to the center line of Speed Street; thence in a northward direction with the center line of Speed Street to its intersection with the center line of Smith Avenue; thence westward with center line of Smith Avenue offsetting at Bellevue Boulevard to the center line of Alma Street; thence southward with the center line of Alma Street to the center line of the Union Railroad right-of-way; thence westward with the center line of the Union Railway right-of-way to the center line of Morehead Street; thence northwardly with the center line of Morehead Street, offsetting at Firestone Boulevard; and a projection northwardly of such center line to its point of intersection with the center line of the Wolf River Flood Control Levee, as surveyed and monumented by the United States Engineers; thence in an eastwardly direction with the center line of the Wolf River Flood Control Levee to its point of intersection of a projection westwardly of the center line of Missouri Avenue; thence eastwardly with such projection of and the center line of Missouri Avenue to the center line of St. Louis Street; thence southwardly with the center line of St. Louis Street and a southward projection of such street to the center line of Chelsea Avenue; thence eastwardly with the center line of Chelsea Avenue to the center line of Evergreen Street; thence southwardly with the center line of Evergreen Street to the center line of Vollintine Avenue; such point being the point of beginning.

Ward 41

Ward 41 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Chelsea Avenue with a southerly projection of the center line of St. Louis Street; thence in a northerly direction following such southerly projection and the center line of St. Louis Street to its intersection with the center line of Missouri Avenue; thence in an easterly direction following an eastward projection of the center line of Missouri Avenue to a point of intersection with the north line of the Homeland Subdivision at the west property line of the J. W. Garrison Estate 79 acre tract; thence in a northerly direction following the west property line of the J. W. Garrison 79 acre tract to the north line of such J. W. Garrison 79 acre tract; thence in an easterly direction following the north property line of such J. W. Garrison 79 acre tract to its intersection with the west property line of the J. W. Garrison 18 acre tract; thence in a northerly direction following the west property line of the J. W. Garrison 18 acre tract to the northwest corner of said tract; thence in an easterly direction following the northerly property line of such J. W. Garrison 18 acre tract to its intersection with a northerly projection of the easterly property line of the Shannon Elementary School (Memphis Board of Education) property; thence in a southerly direction following such northerly projection and the easterly property line of the Shannon Elementary School (Memphis Board of Education) property to the southwest corner of such school property; thence in a westerly direction following the south property line of the Shannon Elementary School (Memphis Board of Education) property a distance of 120 feet to a point; thence in a southerly direction 120 feet west of and parallel to the west right-of-way line of Boxwood Street to the center line of Chelsea Avenue; thence in a westerly direction following the center line of Chelsea Avenue to its intersection with the center line of Hollywood Street; thence in a southerly direction with the center line of Hollywood Street to its intersection with the center line of Hunter Avenue; thence in a westerly direction with the center line of Hunter Avenue to its intersection with the center line of Springdale Street; thence southwardly with the center line of Springdale Street to its intersection with the center line of Vollintine Avenue; thence in a westerly direction following the center line of Vollintine Avenue to its intersection with the center line of Evergreen Street; thence in a northerly direction following the center line of Evergreen Street to its intersection with the center line of Chelsea Avenue; thence in a westerly direction following the center line of Chelsea Avenue to its intersection with a southerly projection of the center line of St. Louis Street, such point of intersection being the point of beginning.

Ward 42

Ward 42 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Springdale Street with the center line of the L. & N. Railroad right-of-way; thence in a northerly direction following the center line of Springdale Street to its intersection with the center line of Hunter Avenue; thence in an easterly direction following the center line of Hunter Avenue to its intersection with the center line of Hollywood Street; thence in a northerly direction following the center line of Hollywood Street to its intersection with the center line of Chelsea Avenue; thence in a westerly direction following the center line of Chelsea Avenue

to a point 120 feet west of the west line of Boxwood Street; thence in a northerly direction 120 feet west of and parallel to the west line of Boxwood Street to a point in the south property line of the Shannon Elementary School (Memphis Board of Education) property; thence in an easterly direction following the south property line of such school property to the southeast corner of such property; thence in a northerly direction following the east property line of the Shannon Elementary School (Memphis Board of Education) property and a northward projection of such easterly property line to its intersection with the north line of the J. W. Garrison 18 acre tract; thence in an easterly direction following the north line of the J. W. Garrison 18 acre tract to its intersection with the westerly right-of-way line of Belmont Circle; thence northwardly, eastwardly and southwardly following the right-of-way line of Belmont Circle to a point 365.2 feet north of the north line of East Belmont Park Subdivision, such point being located in the east right-of-way line of Hollywood Street; thence in an easterly direction following the north property line of a tract of land belonging to E. H. Curry and wife, trustees, and the north line of a tract of land belonging to the Hollywood Sand and Gravel Company to its intersection with the west property line of the Fisher Lime and Cement Company 40.39 acre tract; thence in a southerly direction following the west property line of the Fisher Lime and Cement Company's 40.39 acre tract to the southwest corner of such tract; thence in an easterly direction following the south property line of said 40.39 acre tract to its intersection with the center line of the Illinois Central Railroad right-of-way; thence in a southerly direction following the center line of the Illinois Central Railroad right-of-way to its intersection with the center line of the L. & N. Railroad right-of-way; thence in a southwesterly direction following the center line of the L. & N. Railroad right-of-way to its intersection with the center line of Springdale Street; such point of intersection being the point of beginning.

Ward 43

Ward 43 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of the Illinois Central Railroad with an eastward projection of the south property line of the Fisher Lime and Cement Company's 40.39 acre tract; thence eastwardly with such projection of the Fisher Lime and Cement Company's south property line and the north lines of the Warford Avenue Subdivision, the Douglass Place Subdivision and an eastward extension of such subdivision lines to their intersection with the center line of Highland Street; thence southwardly with the center line of Highland Street to the center line of the L. & N. Railroad right-of-way; thence northeastwardly with the center line of the L. & N. Railroad right-of-way to its intersection with a northwestward projection of the southwesterly property line of the National Cemetery; thence southeastwardly with such projection and the southwesterly property line of the National Cemetery to the center line of Bayliss Road; thence eastwardly with the center line of Bayliss Road to the center line of Salem Street; thence southwardly with the center line of Salem Street to the center line of Macon Road; thence in a westerly direction with the center line of Macon Road to the center line of Homer Street; thence southwardly with the center line of Homer Street to the center line of Macon Road; thence northwestwardly with the center line of Macon Road to the center line of Jackson Avenue; thence southwestwardly with the center line of Jackson Avenue to the center line of Warford Street; thence northwardly with the center line of Warford Street to the center line of the L. & N. Railroad right-of-way; thence southwestwardly with the center line of the L. & N. Railroad right-of-way to the center line of the Illinois Central Railroad right-of-way; thence northwardly with the center line of the Illinois Central Railroad right-of-way to its intersection with an eastward projection of the southerly property line of the Fisher Lime and Cement Company's 40.39 acre tract, such point being the point of beginning.

Ward 44

Ward 44 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Cypress Creek, with the center line of Summer Avenue and running eastwardly with the center line of Summer Avenue to its intersection with the center line of Graham Street; thence running southwardly with the center line of Graham Street to its intersection with the center line of Goodlett Street; thence in a southwardly direction with the center line of Goodlett Street to the center line of Central Avenue; thence westwardly with the center line of Central Avenue to the center line of Highland Street; thence northwardly with the center line of Highland Street to its intersection with the center line of Poplar Avenue; thence in a

northwestwardly direction with the center line of Poplar Avenue to the center line of Tillman Street; thence northwardly with the center line of Tillman Street to its intersection with the center line of Johnson Avenue; thence eastwardly with the center line of Johnson Avenue to its intersection with the center line of Cypress Creek; thence northwardly with the center line of Cypress Creek channel to its intersection with the center line of Summer Avenue, said point being the point of beginning.

Ward 45

Ward 45 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Poplar Avenue with the center line of Highland Street; thence southwardly with the center line of Highland Street to the center line of Park Avenue; thence westwardly with the center line of Park Avenue to the center line of Maywood Street; thence northwardly with the center line of Maywood Street to the center line of Douglass Avenue; thence eastwardly with the center line of Douglass Avenue to the center line of Inez Street; thence northwardly with the center line of Inez Street to the center line of Carnes Avenue; thence westwardly with the center line of Carnes Avenue to the center line of Josephine Street; thence northwardly with the center line of Josephine Street to the center line of Southern Avenue; thence westwardly with the center line of Southern Avenue to the center line of Buntyn Street; thence northwardly with the center line of Buntyn Street to the center line of Midland Avenue; thence westwardly with the center line of Midland Avenue to the center line of Boston Street; thence northwardly with the center line of Boston Street to the center line of Milton Avenue; thence westwardly with the center line of Milton Avenue to the center line of Hollywood Street; thence northwardly with the center line of Hollywood Street to the center line of Central Avenue; thence in an eastwardly direction with the center line of Central Avenue to a point of intersection with the center line of Lombardy Avenue; thence continuing eastwardly with the center line of Lombardy Avenue to the center line of Buntyn Street; thence northwardly with the center line of Buntyn Street crossing the L. & N. Railroad to its intersection with the center line of Flicker Street; thence continuing northwardly with the center line of Flicker Street and a northward projection of such center line to its intersection with the center line of Poplar Avenue; thence southeastwardly with the center line of Poplar Avenue to its intersection with the center line of Highland Street, such point of intersection being the point of beginning.

Ward 46

Ward 46 shall be and is bounded as follows: Beginning at the intersection of the center line of Highland Street and the center line of Central Avenue; thence eastward with the center line of Central Avenue to its intersection with the center line of Goodlett Street; thence southwardly with the center line of Goodlett Street to its intersection with the center line of Southern Avenue; thence eastward with the center line of Southern Avenue to its intersection with the center line of Cherry Road; thence southward with the center line of Cherry Road to its intersection with the center line of Park Avenue; thence westward with the center line of Park Avenue to its intersection with the center line of Highland Street; thence northward with the center line of Highland Street to its intersection with the center line of Central Avenue, such point being the point of beginning.

Ward 47

Ward 47 shall be and is bounded as follows: Beginning at the intersection at the center line of the I. C. Railroad right-of-way with the center line of the Frisco Railroad right-of-way; thence in northeasterly direction with the center line of the I. C. Railroad right-of-way to its intersection with the center line of Castalia Street; thence in a southerly direction with the center line of Castalia Street to the center line of Wabash Avenue; thence in an easterly direction with the center line of Wabash Avenue to the center line of Cooper Street; thence in a northerly direction with the center line of Cooper Street to the center line of the I. C. Railroad right-of-way; thence in a northeasterly direction with the center line of the I. C. Railroad right-of-way to the center line of Lamar Avenue; thence in a southeasterly direction with the center line of Lamar Avenue to its intersection with the center line of Park Avenue; thence in an easterly direction with the center line of Park Avenue to the center line of Airways Boulevard; thence in a southerly direction with the center line of Airways Boulevard to the center line of Trezevant Street; thence in a southerly direction with the center line of Trezevant Street to the center line of Deadrick Avenue; thence in an easterly direction with the center line of Deadrick Avenue to

the center line of Pendleton Street; thence in a southerly direction with the center line of Pendleton Street to its intersection with the center line of the Frisco Railroad right-of-way; thence in a northwesterly direction with the center line of the Frisco Railroad right-of-way to the center line of Labell Street; thence in a southerly direction with the center line of Labell Street to the center line of Frisco Avenue; thence in a northwesterly direction with the center line of Frisco Avenue to the center line of Castalia Street; thence in a northerly direction with the center line of Castalia Street to the center line of the Frisco Railroad right-of-way; thence in a northwesterly direction with the center line of the Frisco Railroad right-of-way to its intersection with the center line of the I. C. Railroad right-of-way; such point being the point of beginning.

Ward 48

Ward 48 shall be and is bounded as follows: Beginning at the intersection of the south line of Kerr Avenue with the west line of Calvary Cemetery, running thence eastwardly with the south line of Kerr Avenue to the east line of Woodbine Street; thence northwardly with the east line of Woodbine Street to a point 400 feet south of the south line of South Parkway East; thence eastwardly with a line 400 feet south of and parallel to South Parkway East to the center line of the St. Louis & San Francisco Railroad right-of-way; thence southeastwardly with the center line of St. Louis & San Francisco Railroad right-of-way to the center line of Castalia Street; thence southwardly with the center line of Castalia Street to the center line of Person Avenue; thence westwardly with the center line of Person Avenue to the west line of Calvary Cemetery; thence northwardly with the west line of Calvary Cemetery to the south line of Kerr Avenue, this being the point of beginning.

Ward 49

Ward 49 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of East Person Avenue with the center line of the Illinois Central Railroad; thence in an easterly direction following the center line of East Person Avenue to its intersection with the center line of Union Railroad; thence in a southwesterly direction following the center line of the Union Railroad to its intersection with a northwesterly projection of the center line of Orleans Street; thence in a southeasterly direction following such northwesterly projection and the center line of Orleans Street to its intersection with the center line of Alice Avenue; thence in an easterly direction following the center line of Alice Avenue to its intersection with the center line of Woodland Avenue; thence in a northeasterly direction following the center line of Woodland Avenue to its intersection with the center line of Benton Street; thence in a northerly direction following the center line of Benton Street to its intersection with the center line of Lucille Avenue; thence in a northeasterly direction following the center line of Lucille Avenue to its intersection with the center line of Marjorie Street; thence in a southeasterly direction following the center line of Marjorie Street to its intersection with the center line of Dunn Avenue; thence in an easterly direction following the center line of Dunn Avenue to its intersection with the center line of Hernando Road; thence in a southerly direction following the center line of Hernando Road to its intersection with the center line of the Illinois Central (Memphis and State Line) Railroad; thence in a southwesterly direction following the center line of the Illinois Central (Memphis and State Line) Railroad to its intersection with the center line of the Nonconnah Creek Levee; thence in a generally southwesterly direction following the center line of the Nonconnah Creek Levee to its intersection with the center line of the Illinois Central Railroad; thence in a northerly direction following the center line of the Illinois Central Railroad to its intersection with the center line of East Person Avenue, such point of intersection being the point of beginning.

Ward 50

Ward 50 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Person Avenue with the center line of the Illinois Central Railroad right-of-way; thence southwardly with the center line of the Illinois Central Railroad right-of-way to the midstream of the Nonconnah Creek Drainage Canal; thence in a generally northwestwardly direction with the midstream of the Nonconnah Creek Drainage Canal and its meanderings to the westerly right-of-way line of U.S. Highway No. 61 South; thence northwardly with the westerly right-of-way line of U.S. Highway No. 61 South to the center line of the Nonconnah Creek Flood Control Levee; thence westwardly with the

center line of the Nonconnah Creek Flood Control Levee, as surveyed and monumented by the United States Engineers to a point 100 feet west of the center line of the Yazoo and Mississippi Valley Railroad; thence southwardly along the western right-of-way line of the Yazoo and Mississippi Valley Railroad and continuing westwardly and southwardly along the northern and western right-of-way line of the Yazoo and Mississippi Valley Railroad low line or south bound main line to the north line of Holmes Road extended westwardly; thence westward with the extension of the north line of Holmes Road to the center line of the Mississippi River, being the boundary between the State of Tennessee and the State of Arkansas; thence northwardly with the center line of the Mississippi River to the intersection of the center line of the main channel of the Mississippi River with the center line of Lake McKellar extended northwardly; thence in a southerly direction with the center line of Lake McKellar to its intersection with a westward projection of the southerly line of Riverside Park; thence in an easterly direction with such projection and with the southerly line of Riverside Park to an intersection with the west line of Riverside Boulevard; thence northwardly with the west line of Riverside Boulevard to the south line of Joubert Avenue; thence eastwardly with the south line of Joubert Avenue to the east line of Kansas Street; thence northwardly with the east line of Kansas Street to the center line of Person Avenue projected westwardly; thence eastwardly with such projection and the center line of Person Avenue to the center line of the Illinois Central Railroad right-of-way, such point being the point of beginning.

Ward 51

Ward 51 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Poplar Avenue with the center line of Alabama Avenue; thence northwestwardly with the center line of Alabama Avenue to its intersection with the center line of Jones Street; thence northwardly with the center line of Jones Street; and a northward projection of the center line of Jones Street crossing Interstate I-40 to the center line of Lane Avenue; thence eastwardly with the center line of Lane Avenue to its intersection with the center line of Manassas Street; thence northwardly with the center line of Manassas Street to its intersection with the center line of the L. & N. Railroad right-of-way; thence eastwardly with the center line of the L. & N. Railroad to its intersection with the center line of Decatur Street; thence southwardly with the center line of Decatur Street and a southward projection of the center line of Decatur Street crossing Interstate I-40 to its intersection with the center line of Poplar Avenue; thence westwardly with the center line of Poplar Avenue to its intersection with the center line of Alabama Avenue, said point being the point of beginning.

Ward 52

Ward 52 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Springdale Street with the center line of the L. & N. Railroad right-of-way; thence in a northeasterly direction with the center line of the L. & N. Railroad right-of-way to the center line of Warford Street; thence southwardly with the center line of Warford street to the center line of Jackson Avenue; thence northeastwardly with the center line of Jackson Avenue to the center line of Hudson Street; thence southeastwardly with the center line of Hudson Street to the center line of Lamphier Avenue; thence eastwardly with the center line of Lamphier Avenue to the center line of National Street; thence southwardly with the center line of National Street to the center line of Given Avenue; thence westwardly with the center line of Given Avenue to the center line of Holmes Street; thence southwardly with the center line of Holmes Street to the center line of Lyndale Avenue; thence westwardly with the center line of Lyndale Avenue to the center line of Hudson Street; thence southwardly with the center line of Hudson Street to the center line of Powell Avenue; thence westwardly with the center line of Powell Avenue to the center line of Pope Street; thence southwardly with the center line of Pope Street to the center line of Summer Avenue; thence westwardly with the center line of Summer Avenue to the center line of Trezevant Street; thence northwardly with the center line of Trezevant Street to the center line of Jackson Avenue; thence westwardly with the center line of Jackson Avenue to the center line of Springdale Street; thence northwardly with the center line of Springdale Street to its intersection with the center line of the L. & N. Railroad right-of-way, said point of intersection being the point of beginning.

Ward 53

Ward 53 shall be and is bounded as follows: Beginning at the intersection of the center line of

Macon Road with the center line of Salem Street; running thence northwardly with the center line of Salem Street to the center line of Bayliss Avenue; thence westwardly with the center line of Bayliss Avenue to a projection of the southwest line of National Cemetery; thence northwestwardly with such projection and the southwest property line of the National Cemetery to the center line of the Louisville and Nashville Railroad right-of-way; thence northeastwardly with the center line of the Louisville and Nashville Railroad right-of-way line to its intersection with a southward projection of the center line of Hartland Street; thence northwardly with such projection to the north right-of-way line of such Louisville and Nashville Railroad; thence northeastwardly with the north right-of-way line of the Louisville and Nashville Railroad to the center line of Wells Station Road; thence southwardly with the center line of Wells Station Road to a point 830 feet more or less south of the south right-of-way line of the Louisville and Nashville Railroad; thence eastwardly to the north line of Lot 127 of the Thrifthaven Subdivision; thence eastwardly and southwardly along the north and east line of the Thrifthaven Subdivision to the north line of the old Jiedel ten acre tract (now known as M. C. Williams Subdivision); thence southwardly to the northeast corner of Lot 247 of the Second Addition to Lynwood Park and continuing southwardly along the east line of the Second Addition to Lynwood Park Subdivision and the east line of the first addition to Lynwood Park Subdivision and the east line of Lynwood Park Subdivision to the north line of the First Addition to Rendale Subdivision; thence eastwardly along the north line of the First Addition to the Rendale Subdivision to the east line of the First Addition to Rendale Subdivision, such point being the northeast corner of Lot 92; thence southwardly along the east line of such subdivision to a north line of the Dattel Subdivision, such point being located in the north line of Lot 22; thence eastwardly with the north line of the Dattel Subdivision to the northeast corner of Lot 23 of said subdivision; thence southwardly and eastwardly with an east line of the Dattel Subdivision to a point in a north line of Lot No. 30 of the Dattel Subdivision; thence eastwardly along the north lot lines of Lots No. 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43 and 44 of Dattel Subdivision to the west lot line of Lot No. 48 of said subdivision; thence northwardly to the northwest corner of Lot No. 50 of the Dattel Subdivision; thence eastwardly with the north line of Lots No. 50 and 51 to the northeast corner of Lot No. 51; thence southwardly along the east line of Lots 51, 52, and 53 of Dattel Subdivision a distance of 175 feet more or less to a point in the existing city limits as established, March of 1953, such city limits being an eastward extension of the north line of Gailwood Avenue; thence eastward with such extension to its intersection with a northward projection of the east line of Stratford Road; thence southwardly with such extension to the center line of Macon Road; thence westwardly with the center line of Macon Road to the center line of Salem Street, such point being the point of beginning.

Ward 54

Ward 54 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Graham Street with the center line of Macon Road; thence in an eastwardly direction with the center line of Macon Road to the center line of Berclair Road; thence southwardly with the center line of Berclair Road to the center line of Novarese Avenue; thence in an easterly direction with the center line of Novarese Avenue to a point where such avenue turns south and becomes Novarese Street; thence southwardly with the center line of Novarese street to the center line of Owen Road; thence westwardly with the center line of Owen Road to the center line of Berclair Road; thence southwardly with the center line of Berclair Road and a southward projection of such center line to its intersection with the center line of the L. & N. Railroad right-of-way; thence westwardly with the center line of the L. & N. Railroad right-of-way to the center line of Harrison Creek; thence northwardly with the center line of Harrison Creek to the center line of Tutwiler Avenue; thence westwardly with the center line of Tutwiler Avenue to the center line of Graham Street; thence northwardly with the center line of Graham Street to its intersection with the center line of Macon Road, such point of intersection being the point of beginning.

Ward 55

Ward 55 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Walnut Grove Road with the center line of Goodlett Street and running thence northwestwardly with the center line of Goodlett Street to the center

line of Graham Street; running thence northwardly with the center line of Graham Street to the center line of Summer Avenue; thence westwardly with the center line of Summer Avenue to the center line of Isabelle Street; thence northwardly with the center line of Isabelle Street to the center line of Tutwiler Avenue; thence eastwardly with the center line of Tutwiler to the center line of Harrison Creek; thence in a southwardly direction with the center line of Harrison Creek to the center line of the L. & N. Railroad right-of-way; thence in a northeastwardly direction with the center line of such railroad right-of-way to its intersection with the center line of Mendenhall Road; thence southwardly with the center line of Mendenhall Road to the center line of Walnut Grove Road; thence westwardly with the center line of Walnut Grove Road to the center line of Goodlett Street; such point being the point of beginning.

Ward 56

Ward 56 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Perkins Road with the center line of Walnut Grove Road; thence eastwardly with the center line of Walnut Grove Road to the center line of Fernway Road; thence southwardly with the center line of Fernway Road to the center line of Mendenhall Road; thence southwardly with the center line of Mendenhall Road to the center line of Cole Road; thence easterwardly with the center line of Cole Road to the center line of Winton Street; thence southwardly with the center line of Winton Street to the center line of Sanderlin Avenue; thence easterly with the center line of Sanderlin Avenue to the center line of White Station Road; thence northwardly with the center line of White Station Road to the center line of Brantford Road; thence eastwardly with the center line of Brantford Road to the center line of Yates Road; thence northwardly with the center line of Yates Road to its intersection with a westward projection of the southerly property lines of Lots 20, 7, 21 and 6 of the Shady Woods Cove Subdivision, the T. W. Hoehn, and Lots 3 and 4 of Section B of the Forest Subdivision; thence eastwardly with the aforesaid southerly property lines to the westerly property line of Lot 5 of said Forest Subdivision, Section B; thence southwardly with the west property lines of said Lots 5 and 6 of the Forest Subdivision, Section B to the most southerly line of Section B of the Forest Subdivision; thence eastwardly with the southerly property lines of Lots 6 and 7 of said Section B of the Forest Subdivision and eastward projection of said property lines to the westerly right-of-way line of Interstate Highway I-240; thence southwardly with the westerly right-of-way line of Interstate Highway I-240 to the center line of the Southern Railroad right-of-way; thence in a northwesterly direction with the center line of the Southern Railroad right-of-way to its intersection with a northward projection of the center line of Winrow Street; thence southwardly with such projection and the center line of Winrow Street to the center line of Truse Avenue; thence westwardly with the center line of Truse Avenue to the center line of Mendenhall Road; thence southwardly with the center line of Mendenhall Road to the center line of Park Avenue; thence westerly with the center line of Park Avenue to the center line of Perkins Road; thence northwardly with the center line of Perkins Road to its intersection with a southwestward projection of the southeasterly property line of Lot 40 of the Heard Subdivision; thence northeastwardly with such projection and the southeasterly property line of Lot 40 to the most easterly line of such Heard Subdivision; thence northwardly with the easterly property line of such Heard Subdivision and a northward projection of such easterly line to its intersection with the center line of the Southern Railroad right-of-way; thence eastwardly with the center line of the Southern Railroad right-of-way line to its intersection with a southerly projection of the center line of a private road, such private road being the first road lying east of the Seessel Commercial Subdivision; thence northwardly with such projection and the center line of such private road to the center line of Poplar Avenue; thence northwestwardly with the center line of Poplar Avenue to the center line of Perkins Road; thence northwardly with the center line of Perkins Road to its intersection with the center line of Walnut Grove Road, such point of intersection being the point of beginning.

Ward 57

Ward 57 shall be and is bounded as follows: Beginning at the intersection of the center line of Cherry Road with the center line of Park Avenue; thence northward with the center line of Cherry Road to its intersection with the center line of Southern Avenue; thence westward with the center line of Southern Avenue to its intersection with the center line of Goodlett Street; thence northward with the center line of Goodlett Street to its intersection with

the center line of Walnut Grove Road; thence eastward with the center line of Walnut Grove Road to its intersection with the center line of Perkins Road; thence southward with the center line of Perkins Road to the center line of Poplar Avenue; thence southeastwardly with the center line of Poplar Avenue to the center line of Colonial Lane; thence southwardly with a projection of the center line of Colonial Lane and the center line of Colonial Lane to the south right-of-way line of the Southern Railway right-of-way; thence westwardly with the south right-of-way line of the Southern Railway to a projection of the east line of Lot 33 of the Heard Subdivision, such point being 199.4 feet more or less east of the east line of Perkins Road; thence southwardly along the projection of the east line of such Lot 33 and with the east line of Lots 33, 34, 35, 36, 37, 38, 39 and 40 of Heard Subdivision; thence westwardly to the center line of Perkins Road; thence southward with the center line of Perkins Road to its intersection with the center line of Park Avenue; thence westward with the center line of Park Avenue to its intersection with the center line of Cherry Road, such point being the point of beginning.

Ward 58

Ward 58 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Park Avenue with the center line of Prescott Road; running thence eastwardly with the center line of Park Avenue to the center line of Cherry Road; thence southwardly with the center line of Cherry Road to the center line of Willow Road; thence westwardly with the center line of Willow Road to a point 643.5 feet east of the east line of Goodlett Road; thence southwardly parallel with the east line of Goodlett Road and 643.5 feet east of the east line of Goodlett road to a point 1,150 feet south of the projection of the south line of Mallory Road; thence westwardly with a line parallel to, and 1,150 feet south of the south line of Mallory Road to a point 605 feet west of the west line of Old Highland Road; said road also being identified as a southward projection of Robinhood Lane; thence northwardly with a line parallel to, and 605 feet west, of the west line of Robinhood Lane to the center line of Norris Avenue; thence westwardly with the projection of the center line of Norris Avenue to the center line of Prescott Road; thence northwardly with the center line of Prescott Road to the center line of Rhodes Avenue; thence eastwardly with the center line of Rhodes Avenue to the center line of Catalina Street; thence northwardly with the center line of Catalina to the center line of Vanuys Road; thence westwardly with the center line of Vanuys Road to the center line of Prescott Road; thence northward with the center line of Prescott Road to the center line of Park Avenue, said point being the point of beginning.

Ward 59

Ward 59 shall be and is bounded as follows: Beginning at a point of intersection of the center line of Pendleton Street with the center line of Park Avenue running thence eastwardly with the center line of Park Avenue to the center line of Prescott Road; thence southwardly with the center line of Prescott Road to the center line of Vanuys Road; thence eastwardly with the center line of Vanuys Road to the center line of Catalina Street; thence southwardly with the center line of Catalina to the center line of Rhodes Avenue; thence westwardly with the center line of Rhodes Avenue to the center line of Prescott; thence southwardly and southwestwardly with the center line of Prescott Road and its projection to a point of intersection of the projection of Prescott Road with the center line of Ketchum Road as projected eastwardly; thence westwardly along the projection of the center line and the center line of Ketchum Road to the center line of Pendleton Street; thence northwardly with the center line of Pendleton Street to the center line of Park Avenue, this being the point of beginning.

Ward 60

Ward 60 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Pendleton Street with the center line of Ketchum Road and running eastwardly with the center line of Ketchum Road and its extension to the southwestwardly right-of-way line of the Frisco Railroad; thence southwardly with such right-of-way line crossing Nonconnah Creek to the southerly right-of-way line of Democrat Road; thence continuing in a southerly direction with the southwestwardly right-of-way line of the Frisco Railroad to the easterly boundary of the Metropolitan Airport property; thence in a southerly direction with such airport boundary and the westerly right-of-way line of Tchulahoma Road to a point in a southern boundary of the airport property; thence in an easterly direction with an eastward

projection of such southerly airport boundary to the easterly right-of-way line of Tchulahoma Road; thence in a southerly direction with the easterly right-of-way line of Tchulahoma Road offsetting to the west at Winchester Road to the easterly right-of-way line of Tchulahoma Road; thence in a southerly direction, with the easterly right-of-way line of Tchulahoma Road to its intersection with an eastward projection of the southerly property line of the Alice J. Field Tract; thence in a westerly direction with such projection to the southeasterly corner of such Alice J. Field tract; thence continuing in a westerly direction along the southerly property line of the Alice J. Field tract to the southwesterly corner of such tract; thence in a northerly direction with the western property line of the Alice J. Field tract and the easterly property line of the A. N. Phillips tract to a point in the southerly property line of the Andrew Jackson Estate property, said point being 1,320 feet more or less southwardly of Whitehaven Capleville Road (Shelby Drive); thence in a westerly direction with the southerly property line of the Andrew Jackson Estate property to the southeasterly corner of the J. F. Farris 60 AC tract; thence continuing westwardly with the southerly property line of the J F. Farris 60 AC tract to the southwesterly corner of said tract said corner being located in the easterly boundary line of McKellar Park; thence in a southerly direction with the easterly boundary line of McKellar Park property to its intersection with the northerly right-of-way line of Holmes Road; thence in a westerly direction with the northerly right-of-way line of Holmes Road to the center line of Airways Road; thence in a northerly direction with the center line of Airways Road to the northerly right-of-way of Brooks Road; thence in a westerly direction with the northerly right-of-way line of Brooks Road to the center line of the Illinois Central Railroad right-of-way; thence in a northerly direction along the center line of the Illinois Central Railroad right-of-way to the enter line of the Nonconnah Creek Flood Control Levee; thence in a generally easterly and northerly direction following the center line of the Nonconnah Creek Flood Control Levee to the center line of the Illinois Central Railroad; thence northeastwardly with the center line of said railroad right-of-way to the center line of Hernando Road; thence northwardly with the center line of Hernando Road to the center line of Person Avenue; thence eastwardly along the center line of Person Avenue and a projection of such center line of Person Avenue to the center line of Castalia Street; thence southwardly with the center line of Castalia Street to the center line of Frisco Avenue; thence southeastwardly with the center line of Frisco Avenue to the center line of LaBelle Street; thence northwardly with the center line of LaBelle Street to the southerly right-of-way line of the Frisco Railroad; thence southeastwardly with the southerly right-of-way line of the Frisco Railroad (St. Louis and San Francisco Railroad) to the center line of Pendleton Street; thence southwardly with the center line of Pendleton Street to the center line of Ketchum Road, this being the point of beginning.

Ward 61

Ward 61 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Douglass Avenue with the center line of Airways Boulevard, and running thence eastwardly with the center line of Douglass Avenue to the center line of Maywood Street; thence southwardly with the center line of Maywood Street to the center line of Park Avenue; thence westwardly with the center line of Park Avenue to the center line of Pendleton Street; thence southwardly with the center line of Pendleton Street to the center line of Deadrick Avenue; thence westwardly with the center line of Deadrick Avenue to the center line of Trezevant Street; thence northwardly with the center line of Trezevant Street and the center line of Airways Boulevard to the center line of Douglass Avenue, this being the point of beginning.

Ward 62

Ward 62 shall be and is bounded as follows: Beginning at the point of intersection of the center line of Highland Road with the center line of the Louisville and Nashville Railroad Company right-of-way and running thence northwardly with the center line of Highland Road to the production of the north line of Lot 22 Block B of the National Park Land Company's Union Villa Subdivision; thence eastwardly along the north line of such Union Villa Subdivision to the center line of the right-of-way of the Old Raleigh Springs Railroad Company; thence northeastwardly along the center line of the Old Raleigh Springs Railroad right-of-way to the west line of the McMath and Johnston Subdivision of the Kallaher 22⅓ acres; thence northwardly with the west line of the McMath and Johnston Subdivision and such line produced to a westwardly production of the

center line of Burrow Road; thence eastwardly with the production of the center line of Burrow Road to a point 200 feet west of the west line of Jackson Avenue; thence northeastwardly parallel to and 200 feet west of the west line of Jackson Avenue to a westwardly production of the center line of Wendt Road; thence eastwardly along said production to the west line of Jackson; thence northeastwardly with the west line of Jackson Avenue to an extension of the north line of Watteker Road; thence eastwardly with such extension and with the north line of Watteker Road to the east line of Tant Road; thence southwardly with the east line of Tant Road to a point in such line 450 feet south of the south line of Burrow Avenue; thence eastwardly to a point 140 feet east of the east line of Tant Road; thence southwardly parallel to Tant Road to the north line of Mamie Avenue; thence eastwardly along the north line of Mamie Avenue to the end of Mamie Avenue 200 feet east of Tant Road; thence southwardly across the end of Mamie Avenue and along the east line of Lot No. 59 of the Kupferschmidt Subdivision to the north line of Lot No. 55 of Kupferschmidt Subdivision; thence eastwardly along the north line of Lot numbers 55, 56, 57 and 58 of the Kupferschmidt Subdivision; thence southwardly along the east line of Lot No. 58 of the Kupferschmidt Subdivision to a point 137 feet north of the north line of Wales Avenue; thence eastwardly parallel to Wales Avenue to an intersection with a northward extension of the west line of the third addition to Thrifthaven Subdivision; thence southwardly with such extension to the north line of the Paul S. Dougher property; thence eastwardly with such north line of the Paul S. Dougher property to the northeast corner of such Paul S. Dougher lot; thence southwardly with the east property line of the Paul S. Dougher lot to a point in the north property line of Lot No. 36 of the third addition to Thrifthaven Subdivision; thence eastwardly with the north property line of Lot No. 36 of Thrifthaven Subdivision to the northeast corner of Lot No. 36, of Thrifthaven Subdivision; thence southward with the east line of Lots 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50 and 51, of Thrifthaven Subdivision to a point in the east property line of Lot No. 51 of Thrifthaven Subdivision, such point being the northwest corner of the John G. Grey lot; thence northeastwardly with the north lines of the John G. Grey lot and the C. L. James lot to a point; such point being the northeast corner of the C. L. James lot; thence southward with the east line of the C. L. James lot to the northwest corner of the Larence Hallis lot; thence northeastwardly with the north property lines of the Larence Hallis lot, the Oliver L. Myers lot and the Alvin V. Mattes lot to the northeast corner of the Alvin V. Mattes lot; thence southeastwardly with the east property line of the Alvin V. Mattes lot and an extension of such lot line to the north right-of-way line of the Louisville and Nashville Railroad Company; thence southwestwardly with the north right-of-way line of the Louisville and Nashville Railroad to a southward extension of the center line of Hartland Street; thence southwardly with such extension to the center line of the Louisville and Nashville Railroad right-of-way; thence southwestwardly with such center line to the center line of Highland Road; such point being the point of beginning.

Ward 63

Ward 63 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Berclair Road with the center line of Macon Road; thence eastwardly with the center line of Macon Road to the northwest corner of Lot 1 of the First Addition of Section "A" of the Danita Terrace Subdivision; thence continuing eastward with the north line of such subdivision to a point, such point being the southwest corner of Lot 19 of the Hillmont Subdivision; thence northerly and northeastwardly with the westerly property lines of Lots 19 and 1 of the Hillmont Subdivision to the northwest corner of Lot 1 of such subdivision; thence in a southeastwardly direction along the northerly property lines of Lots 1 thru 13 to the westerly right-of-way line of Buckner Road at its dead end; thence continuing in a southeasterly direction crossing Buckner Road to the northwest corner of Lot 14 of the Hillmont Subdivision; thence continuing in a southeasterly direction with the northerly property lines of Lots 14 thru 18 to the northeast corner of Lot 18 of such subdivision; thence in a southerly direction with the easterly property lines of Lots 18 and 40 of the Hillmont Subdivision to the southeast corner of Lot 40, such southeast corner also being the northerly property line of Lot 67 of the Avon Meadows Subdivision, Section "B"; thence southeastwardly with the north lines of such Avon Meadows Subdivision, Section "B" and the Avon Meadows Subdivision Section "C" to the southwest corner of Lot 18 of Avon Meadows Subdivision, Section "C"; thence northwardly with the west property lines of Lots 18 and 19 to the

north line of Avon Meadows Subdivision, Section "C"; thence eastwardly with the north line of such subdivision to the northeast corner of Lot 21; thence southwardly and southeastwardly with the east lines of Lots 22 thru 32 to the northwest corner of Lot 33 of Section "C" of Avon Meadows Subdivision; thence eastwardly with the north lines of Lots 33 thru 40 of such subdivision to a point, such point being the northeast corner of Lot 40; thence southwardly to the northerly right-of-way line of Macon Road; thence eastwardly and northeastwardly with such northerly right-of-way line of Macon Road to its intersection with the west bank of the Wolf River; thence southeastwardly with the west bank of the Wolf River and its meanderings to the center line of Summer Avenue (U.S. Highway No. 64, 70 and 79); thence southwestwardly with the center line of Summer Avenue (U.S. Highway No. 64, 70 and 79), to the center line of White Station Road; thence southwardly with the center line of White Station Road to its intersection with the center line of the L. & N. Railroad right-of-way; thence westwardly with the center line of the L. & N. Railroad right-of-way to its intersection with a southward projection of the center line of Berclair Road; thence northwardly with such southward projection and the center line of Berclair Road to the center line of Owen Road; thence eastwardly with the center line of Owen Road to the center line of Novarese Street; thence northwardly with the center line of Novarese Street to the center line of Novarese Avenue; thence westwardly with the center line of Novarese Avenue to the center line of Berclair Road; thence northwardly with the center line of Berclair Road to its intersection with the center line of Macon Road, such point of intersection being the point of beginning.

Ward 64

Ward 64 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of the L. & N. Railroad with the center line of Mendenhall Road; thence eastwardly with the center line of the L. & N. Railroad to the center line of White Station Road; thence southwardly with the center line of White Station Road to the center line of Cole Road; thence westwardly with the center line of Cole Road to the center line of Mendenhall Road; thence northwardly with the center line of Mendenhall Road to the center line of Fernway Road; thence northwardly with the center line of Fernway Road to the center line of Walnut Grove Road; thence westwardly with the center line of Walnut Grove Road to the center line of Mendenhall Road; thence northwardly with the center line of Mendenhall Road to its intersection with the center line of the L. & N. Railroad, such point of intersection being the point of beginning.

Ward 65

Ward 65 shall be and is bounded as follows: Beginning at a point, said point being the intersection of the center line of Cherry Road with the center line of Park Avenue; thence eastwardly with the center line of Park Avenue to the center line of Mt. Moriah Road; thence southwardly with the center line of Mt. Moriah Road to the center line of Sea Isle Road; thence westwardly with the center line of Sea Isle Road to the center line of Colonial Road; thence northwardly with the center line of Colonial Road to the center line of Sea Isle Road; thence continuing westwardly with the center line of Sea Isle Road to the center line of Perkins Road; thence southwardly with the center line of Perkins Road to the center line of Boyce Road; thence westwardly with the center line of Boyce Road to the center line of Cherry Road; thence northwardly with the center line of Cherry Road to its intersection with the center line of Park Avenue, such point of intersection being the point of beginning.

Ward 66

Ward 66 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Cherry Road with the center line of Boyce Road; thence eastwardly with the center line of Boyce Road to the center line of Perkins Road; thence northwardly with the center line of Perkins Road to the center line of Sea Isle Road; thence eastwardly with the center line of Sea Isle Road to the center line of Colonial Road; thence southwardly with the center line of Colonial Road to the center line of Sea Isle Road; thence continuing eastwardly with the center line of Sea Isle Road to the center line of Mt. Moriah Road; thence southwardly with the center line of Mt. Moriah Road to the northerly right-of-way line of Interstate Highway I-240; thence in a generally westerly direction with the northerly right-of-way line of Interstate Highway I-240 to a point 643.5 feet east of the east right-of-way line of Goodlett Street; thence in a northerly direction from such point and parallel to

the center line of Denison Street to the center line of Elliston Road; thence eastwardly with the center line of Elliston Road to the center line of Cherry Road; thence northwardly with the center line of Cherry Road to its intersection with the center line of Boyce Road, such point of intersection being the point of beginning.

Ward 67

Ward 67 shall be and is bounded as follows: Beginning at a point in the center line of Mt. Moriah Road where such center line is intersected by a westward projection of the south line of Truse Subdivision; thence southward with the center line of Mt. Moriah Road to a point where it first contacts the north right-of-way line of the Interstate Highway as surveyed and monumented by the Tennessee State Highway Department; thence eastwardly and northwardly with the north and west right-of-way line of the interstate highway to its intersection with the center line of the Southern Railway right-of-way; thence northwestwardly with the center line of the Southern Railway right-of-way to a point in said center line where it is intersected by a northward projection of the east line of Truse Subdivision; thence in a southerly direction with the said northward projection and the east line of Truse Subdivision to the south line of Truse Subdivision; thence westward with the south line of Truse Subdivision and an extension of said line to the center line of Mt. Moriah Road, said point being the point of beginning.

Ward 68

Ward 68 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Summer Avenue with the center line of White Station Road; hence in a northeasterly direction with the center line of Summer Avenue (U.S. Highway No. 64, 70 and 79) to its intersection with the southwesterly bank of the Wolf River; thence in a northwesterly direction following the southwesterly bank of the Wolf River to the northwesterly right-of-way line of U.S. Highway No. 64, 70 and 79; thence northeastwardly along said northwesterly right-of-way line of U.S. Highway No. 64, 70 and 79 to its intersection with a westward projection of the northerly boundary line of the Shelby County Penal Farm; thence eastwardly along such projection to the southeasterly right-of-way line of U.S. Highway 64, 70 and 79; thence continuing eastwardly, southwardly and eastwardly with the northerly boundary line of the Shelby County Penal Farm to its intersection with the westerly right-of-way line of Mullins Stations Road; thence southwardly with the westerly right-of-way line of Mullins Station Road to its intersection with the northerly right-of-way line of the L. & N. Railroad to its intersection with the northeasterly right-of-way line of Raleigh-Lagrange Road; thence in a southeasterly direction with the northeasterly right-of-way line of Raleigh-Lagrange Road to its intersection with the easterly right-of-way line of Germantown Road; thence southwardly with the easterly right-of-way line of Germantown Road to its intersection with the midstream of the Wolf River Drainage Canal; thence in a generally westerly and northwesterly direction following the midstream of the Wolf River Drainage Canal and its meanderings to a point south of the L. & N. Railroad, said point being where the westerly bank of the Wolf River (Old Wolf River Channel) intersects the easterly right-of-way line of Interstate Highway I-240; thence in a generally southerly direction with the easterly right-of-way line of Interstate Highway I-240 to its intersection with the southerly right-of-way line of Shady Grove Road; thence in a westerly direction with the southerly right-of-way line of Shady Grove Road extended direction with the westerly right-of-way line of U.S. Interstate I-240 to a point where such right-of-way line is intersected by an eastwardly projection of the southerly line of Section B of the Forest Subdivision; thence in a westwardly direction with such projection and with the southerly line of such subdivision to the southwest corner of Lot 6, Section B, of the Forest Subdivision; thence in a northerly direction with the westerly line of Lots 6 and 5 to the southerly line of Lot 4; thence in a westerly direction with the southerly line of Lots 4 and 3 of Section B of the Forest Subdivision and a westward projection of said line to the center line of Yates Road; thence in a southerly direction with the center line of Yates Road to the center line of Brantford Road; thence in an easterly direction with the center line of Brantford Road to its intersection with the center line of White Station Road; thence in a southerly direction with the center line of White Station Road to the center line of Sanderlin Avenue; thence in a generally northwesterly direction with the center line of Sanderlin Avenue to the center line of Winton Street; thence in a northerly direction with the center line of Winton Street to the center line of Cole

Road; thence eastwardly with the center line of Cole Road to the center line of White Station Road; thence northwardly with the center line of White Station Road to its intersection with the center line of Summer Avenue (U.S. Highway 64, 70 and 79), such point of intersection being the point of beginning.

Ward 69

Ward 69 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of the Illinois Central Railroad right-of-way with the westerly right-of-way line of Thomas Street; thence in a southwesterly direction with the center line of the Illinois Central Railroad right-of-way to a point, such point being where an eastward projection of the southerly property line of a strip of land owned by the International Harvester Company intersects the center line of the Illinois Central Railroad right-of-way; thence in an easterly direction along such projection to a point 125 feet west of the center line of Thomas Street; thence in a southerly direction with the center line of Thomas Street to a point where such line is intersected by an eastward projection to the center line of the Wolf River flood control wall, such flood control wall being surveyed and monumented by the United States Army Engineers, being the wall that runs on a straight line westwardly and 705 feet from the west right-of-way line of the Illinois Central Railroad; thence in a westward direction with its projections and with the center line of such wall of the midstream of the old Wolf River channel; thence in a westerly and southerly direction with the midstream of the old Wolf River channel to its intersection with a westward projection of the center line of Waterworks Avenue; thence in a westerly direction with such projection to the midstream of the Mississippi River; thence in a northerly direction with the midstream of the Mississippi River to its intersection with a westward projection of the midstream of the Loosahatchie River; thence in a northeasterly direction with such projection and with the midstream of the Loosahatchie River, following its meanderings to its intersection with a westward projection of the northerly line of a 33-foot roadway strip, such strip being north and adjoining the property being leased by the park commission and known as Klink Park; thence in an easterly direction with such projection and with the northerly line of such 33-foot roadway strip to the westerly right-of-way line of Merigold Street; thence in northerly direction with the westerly right-of-way line of Merigold Street to the southerly property line of a tract of land being 160.82 acres in size; thence in an easterly direction along the southerly property line of said tract to its intersection with the westerly right-of-way line of Benjestown Road; thence in a northerly direction with the westerly right-of-way line of Benjestown Road to a point 220 feet north of the north line of Carrolton Road; thence eastwardly parallel to the north line of Carrolton Road and along the northerly line of Patricia Heights Subdivision and such line extended to the east line of Millington Road; thence southwardly along the east line of Millington Road to the north line of the Carrolton Subdivision; thence eastwardly along the north line of the Carrolton Subdivision to the westerly right-of-way of (U.S. Highway No. 51) Thomas Street; thence northwardly with the westerly right-of-way line of Thomas Street (U.S. Highway No. 51) to its intersection with a westward projection of the center line of Corning Avenue Extended; thence eastwardly with such projection and the center line of Corning Avenue Extended to the center line of the Illinois Central Railroad right-of-way; thence southwestwardly with the center line of the Illinois Central Railroad to its intersection with the westerly right-of-way line of Thomas Street, such point of intersection being the point of beginning.

Ward 70

Ward 70 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Illinois Central Railroad right-of-way with the center line of Corning Avenue Extended; thence in a southeastwardly direction with the center line of Corning Avenue to a point where such center line becomes Corning Avenue; thence continuing eastwardly with the center line of Corning Avenue to the center line of North Watkins Street; thence southwardly with the center line of North Watkins Street to the center line of Whitney Avenue; thence eastwardly with the center line of Whitney Avenue to the center line of Birchdale Drive; thence southeastwardly with the center line of Birchdale Drive to the center line of Overton Crossing; thence southwestwardly with the center line of Overton Crossing to the center line of North Watkins Street; thence southwardly with the center line of North Watkins Street to the center line of Missouri Avenue; thence westwardly with the center line of Missouri

Avenue as projected westwardly to its intersection with the center line of the Wolf River Flood Control Levee, and surveyed and monumented by the U.S. Engineers; thence westwardly with the center line of the Wolf River Flood Control Levee to its intersection with the westerly right-of-way line of Thomas Street (U.S. Highway No. 51); thence northwardly with the westerly right-of-way line of Thomas Street to its intersection with an eastward projection of the southerly property line of a strip of land owned by the International Harvester Company, thence westwardly with such projection to a point in the center line of the Illinois Central Railroad right-of-way; thence in a northeastwardly direction following the center line of the Illinois Central Railroad right-of-way to its intersection with the center line of Corning Avenue Extended, such point of intersection being the point of beginning.

Ward 71

Ward 71 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Corning Avenue Extended with the westerly right-of-way line of Thomas Street (U.S. Highway No. 51); thence northeastwardly with the westerly right-of-way line of Thomas Street (U.S. Highway No. 51) to the northeasterly right-of-way line of Great River Road; thence northwestwardly with the northeasterly right-of-way line of Great River Road to the northwesterly right-of-way line of Millington Road; thence northeastwardly with the northwesterly right-of-way line of Millington Road to the westerly boundary line of the Firestone Park property; thence in a generally northerly and westerly direction following the boundary line of the Firestone Park property to a point in the center line of the Loosahatchie River; thence in a northeasterly direction following the center line of the Loosahatchie River, such center line also being the northerly property line of Firestone Park, to its intersection with the westerly right-of-way line of OK Robertson Road; thence in a generally southerly direction with the westerly right-of-way line of OK Robertson Road to its intersection with the northwesterly right-of-way line of Millington Road; thence in a easterly direction with the northwesterly right-of-way line of Millington Road crossing OK Robertson Road to the northeasterly right-of-way line of OK Robertson Road; thence in a southeasterly direction with the northeasterly right-of-way line of OK Robertson Road to the northwesterly right-of-way line of Thomas Street (U.S. Highway No. 51); thence northeastwardly with the northwesterly right-of-way line of Thomas Street (U.S. Highway No. 51) to its intersection with the center line of the Loosahatchie River; thence in a generally easterly direction with the center line of the Loosahatchie River and its meanderings to the northwest corner of the Memphis Park Commission Property (Davy Crockett Park); thence eastwardly with the northerly property line of the Memphis Park Commission Property (Davy Crockett Park) to the westerly right-of-way line of the Illinois Central Railroad right-of-way; thence in a generally southerly direction with the westerly right-of-way line of the Illinois Central Railroad right-of-way to its intersection with Point Church Road; thence south 69° west a distance of 339 feet to a point; thence due west a distance of 2,646 feet to the easterly right-of-way line of Range Line Street, such point also being the southwest corner of the Memphis Park Commission Property (Davy Crockett Park); thence southwardly with the easterly right-of-way line of Range Line Street to its intersection with the center line of St. Elmo Avenue; thence southwestwardly with the center line of St. Elmo Avenue to the center line of Mountain Terrace Street; thence southwardly with the center line of Mountain Terrace Street to the center line of Point Church Avenue; thence westwardly with the center line of Point Church Avenue to the center line of Overton Crossing Street; thence southwestwardly with the center line of Overton Crossing Street to the center line of Burnham Avenue; thence westwardly with the center line of Burnham Avenue to the center line of Belleau Drive; thence southwardly with the center line of Belleau Drive to the center line of Corning Avenue; thence westwardly with the center line of Corning Avenue to a point where such Corning Avenue becomes Corning Avenue Extended; thence continuing in a generally westerly direction with the center line of Corning Avenue Extended and a westerly projection of such center line to its intersection with the northwesterly right-of-way line of Thomas Street (U.S. Highway No. 51), such point of intersection being the point of beginning.

Ward 72

Ward 72 shall be and is bounded as follows: Beginning at a point at the intersection of the easterly right-of-way line of Range Line Road and the northerly right-of-way line of St. Elmo Avenue; thence in a northerly direction with the easterly right-of-way line

of Range Line Road to its intersection with the southerly property line of the Memphis Park Commission 290.44 acre tract (Davy Crockett Park); thence in an easterly direction with the southerly property line of the Memphis Park Commission's 290.44 acre tract and with the southerly right-of-way line of Point Church Road to the westerly right-of-way line of the I. C. Railroad; thence southwardly with the westerly right-of-way line of the Illinois Central Railroad to the present city limits; thence westwardly with the south line of the Fischer Lime and Cement Company's 40.39 acre tract to the west line of said Fischer Lime and Cement Company's 40.39 acre tract; thence northwardly with said west line of the Fischer Lime and Cement Company's 40.39 acre tract to the north line of a tract belonging to the Hollywood Sand and Gravel Company; thence westwardly along the north line of the tract belonging to the Hollywood Sand and Gravel Company and along the north line of the tract of land belonging to E. J. Curry and Wife, Trustees, to the east line of Belmont Circle; thence northwardly, westwardly and southwestwardly following the line of Belmont Circle to an intersection with the north line of the J. W. Garrison Estate 18 acre tract; thence westwardly with the north line of the J. W. Garrison Estate 18 acre tract to the west line of said J. W. Garrison Estate 18 acre tract; thence southwardly along the west line of the J. W. Garrison Estate 18 acre tract to the north line of the J. W. Garrison Estate 79 acre tract; thence westwardly with the north line of the J. W. Garrison Estate 79 acre tract to the west line of said J. W. Garrison Estate 79 acre tract; thence southwardly with the west line of the J. W. Garrison Estate 79 acre tract to an intersection of the north line of the Homeland Subdivision; thence westwardly with projection of the center line of Missouri Avenue and with the center line of Missouri Avenue to the center line of North Watkins Street; thence in a northerly direction with the center line of North Watkins Street to its intersection with the center line of Overton Crossing Street; thence in a northeasterly direction with the center line of Overton Crossing Street to the center line of Birchdale Drive; thence northwestwardly with the center line of Birchdale Drive to the center line of North Watkins Street; thence in a northerly direction with the center line of North Watkins Street to the center line of Corning Avenue; thence in an easterly direction with the center line of Corning Avenue to the center line of Belleau Drive; thence in a northerly direction with the center line of Belleau Drive to the center line of Burnham Avenue; thence in an easterly direction with the center line of Burnham Avenue to the center line of Overton Crossing Street; thence in a northerly direction with the center line of Overton Crossing Street to the center line of Point Church Avenue; thence in an easterly direction with the center line of Point Church Avenue to the center line of Mountain Terrace Street; thence in a northerly direction with the center line of Mountain Terrace Street to the northerly right-of-way line of St. Elmo Avenue; thence in an easterly direction with the northerly right-of-way line of St. Elmo Avenue to the easterly right-of-way line of Range Line Street, such point being the point of beginning.

Ward 73

Ward 73 shall be and is bounded as follows: Beginning at a point where a southerly boundary line of the Metropolitan Airport intersects the center line of Tchulahoma Road, such point being 660 feet more or less north of the northerly right-of-way line of Winchester Road; thence in a southerly direction with the center line of Tchulahoma Road to its intersection with the south right-of-way line of Winchester Road; thence in a westerly direction with the south right-of-way line of Winchester to its intersection with the easterly right-of-way of Tchulahoma Road; thence in a southerly direction with the easterly right-of-way line of Tchulahoma Road to the northerly property line of the T. B. Perkins 100.57 AC tract; thence in an easterly direction with such projection and the northerly property line of the T. B. Perkins 100.57 AC tract to a point in the property line, such point also being a southwesterly corner of the A. W. Davenport 206.15 AC tract; thence in a northerly direction with a westerly property line of the A. W. Davenport 206.15 AC tract to a point in the southerly property line of the Athey Harper ten AC tract; thence in an easterly direction with the southerly property line of the Athey Harper ten AC tract, the southerly property line of the Fannie E. Maxwell tract, the southerly property line of the Roscoe Murdock tract and the southerly property line of Julie C. Love tract to a point in the westerly right-of-way line of Getwell Road; thence in a southerly direction with the westerly right-of-way line of Getwell to its intersection with the northerly line of the Texas Gas Corporation transmission line easement; thence in a northeasterly direction with said northerly line of the Texas Gas Corporation transmission line easement, crossing Whitehaven Capleville

Road (Shelby Drive), Nialone Road, Pigeon Roost Road, U.S. Highway No. 78 and the Frisco Railroad right-of-way, to a point in the southwesterly right-of-way line of Hungerford Road; thence in a northwesterly direction along the southwesterly right-of-way line of Hungerford Road to a point in the easterly right-of-way line of U.S. Highway No. 78; thence in a northwesterly direction with the easterly right-of-way line of U.S. Highway No. 78 to a point in the center line of Perkins Road; thence in a northerly direction with the center line of Perkins Road to its intersection with the northerly right-of-way line of the United States Highway I-240 as surveyed and monumented by the Highway Department of the State of Tennessee; thence in a generally westerly direction along the northerly right-of-way line of the Interstate Highway right-of-way to a point 643.5 feet east of the east right-of-way line of Goodlett Street; thence in a northward direction to a point, such point being 1,150 feet south of an eastward projection of the south line of Mallory Road, as projected eastwardly from west of Goodlett Road; thence westwardly with a line parallel to and 1,150 feet south of the south right-of-way line of Mallory Road to a joint 605 feet more or less west of the west line of Robinhood Lane; thence northwardly with a line parallel to and 605 feet more or less west of the west line of Robinhood Lane, to the center line of a westward projection of Mallory Road; thence westwardly with the center line of Mallory Road and a westward projection of the center line of Mallory Road to the center line of Prescott Road; thence southwardly and southwestwardly with the center line of Prescott Road and its projection to a point of intersection with an eastward projection of the center line of Ketchum Road as projected eastwardly; thence in a westward direction with the projection of Ketchum Road to its intersection with the west right-of-way line of the Frisco Railroad; thence in a southward direction with the west right-of-way line of the Frisco Railroad crossing Nonconnah Creek to the southerly right-of-way line of Democrat Road; thence continuing in a southerly direction with the southwestwardly right-of-way line of the Frisco Railroad to the easterly boundary of the Metropolitan Airport Property; thence in a southerly direction with such airport boundary and westerly right-of-way line of Tchulahoma Road to a point in a southern boundary of the airport property, such point being the point of beginning.

Ward 74

Ward 74 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Perkins Road with the northerly right-of-way line of the U.S. Interstate Highway I-240, as surveyed and monumented by the Highway Department of the State of Tennessee; thence in a southerly direction with the center line of Perkins Road to its intersection with the easterly right-of-way line of U.S. Highway No. 78; thence in a southerly direction with the easterly right-of-way line of U.S. Highway No. 78 to the southerly right-of-way line of Hungerford Road; thence in a southeasterly direction with the southerly right-of-way line of Hungerford Road to its intersection with a westerly projection of the northerly right-of-way line of Raines Road; thence in an easterly direction with the westerly projection of the northerly right-of-way of Raines Road and the northerly right-of-way line of Raines Road to its intersection with the center line of the John's Creek Drainage Channel; thence in a generally northerly direction following the center line of the John's Creek Drainage Channel to its intersection with the southerly property line of the Boyle Investment Company's original 115.54 acre tract; thence in an easterly direction with the southerly property line of the said Boyle Investment Company's 115.54 acre tract to the westerly property line of Cora Mae Pearson's 80.46 acre tract; thence in a northerly direction with the westerly property line of the Cora Mae Pearson's 80.46 acre tract to the southerly right-of-way line of Winchester Road; thence in an easterly direction with the southerly right-of-way line of Winchester Road to a point where such Winchester Road is intersected by the southerly projection of the proposed easterly line of the Heritage Colony Subdivision, such line also being the westerly property line of a tract of land now or formerly owned by John D. Quenchet; thence in a northerly direction along such property line to a point in the existing city limits, such point also being the southwest corner of an 18.58 acre tract of land now owned or formerly owned by Carey M. Trimble; thence in an easterly direction with the southerly property line of the Carey M. Trimble's 18.58 acre tract and an eastward extension of said line to the southeast corner of the Stanley Parsons tract, said line being the southwest corner of the Huston Beloate 1 acre act; thence in a northerly direction with the easterly property line of the Stanley Parsons tract to the southerly right-of-way line of Knight Arnold

Road; thence in a westerly direction with the southerly right-of-way line of Knight Arnold Road to a point where said line is intersected by a southerly projection of the easterly line of the Green Fairways Subdivision; thence in a northerly direction with such southerly projection and with the easterly line of said Green Fairways Subdivision to the northeast corner of Green Fairways Subdivision, such corner being in a southerly property line of the CO Club, Inc., property (Fox Meadows Country Club); thence in an easterly direction with an eastward projection of the northerly line of the Green Fairways Subdivision and a southerly property line of the CO Club, Inc., property a southeasterly corner of such property; thence in a northerly direction with the easterly property line of the CO Club, Inc., property and an extension of such property line to the center line of Nonconnah Creek drainage canal; thence in a northwesterly direction with the center line of said drainage canal to its intersection with a southward projection of the easterly line of the 6th addition, Section E-5 of Glen Park Subdivision; thence in a northward direction with said projection to the northerly right-of-way line of the U.S. Interstate Highway I-240, as surveyed and monumented by the Highway Department of the State of Tennessee; thence in a generally westerly direction along the northerly right-of-way line of the Interstate Highway right-of-way to intersection with the center line of Perkins Road, said intersection being the point of beginning.

Ward 75

Ward 75 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the westerly right-of-way line of Weaver Road with the boundary line (State Line) between the Sovereign State of Tennessee and the Sovereign State of Mississippi; thence northwardly with the westerly right-of-way line of Weaver Road to the southerly right-of-way line of Fields Road; thence westwardly with the southerly right-of-way line of Fields Road to the easterly right-of-way line of Illinois Central (Y. & M. V.) Railroad right-of-way; thence northwardly with the easterly right-of-way line of the Illinois Central (Y. & M. V.) Railroad to the southerly right-of-way line of Mitchell Road; thence eastwardly with the southerly right-of-way line of Mitchell Road to the westerly right-of-way line of Weaver Road; thence northwardly with the westerly right-of-way line of Weaver Road and a northward projection of such westerly right-of-way line to its intersection with the northerly right-of-way line of the Illinois Central (Y. & M. V.) Railroad right-of-way; thence in a northeasterly direction with the westerly right-of-way line of the Illinois Central (Y. & M. V.) Railroad right-of-way to the center line of the Nonconnah Flood Control Levee, as surveyed and monumented by the U.S. Engineers; thence in a generally easterly direction with the center line of the Nonconnah Flood Control Levee to the westerly right-of-way line of the U.S. Highway No. 61 (S); thence southwardly with the westerly right-of-way line of U.S. Highway No. 61 (S) to a point, such point being located a distance of 527 feet ± south of the south right-of-way line of the Illinois Central Railroad property as measured along the westerly right-of-way line of U.S. Highway No. 61 (S); thence westerly with the north property line of the Philsar Development Company a distance of 200 feet ± to the northwest corner of such property; thence southwardly along the westerly property line of the Philsar Development Company tract to the most southwesterly corner of such tract; thence continuing in a southerly direction with the westerly property lines of the Henry C. Appling Tract, the Dixie Contractors, Inc., Tract, the H. C. Jenkins Tract and the A. Makowsky Tract to the most southwesterly corner of said A. Makowsky Tract; thence in a easterly direction with a southerly property line of the A. Makowsky Tract to a westerly property line of such A. Makowsky Tract, such point also being the northeast corner of the W. W. Foley Tract; thence southwardly with the easterly property line of the W. W. Foley Tract to the northerly right-of-way line of Peebles Avenue; thence in a southeasterly direction crossing Peebles Avenue to the northwest corner of Thomas A. Flowers Tract, thence in a generally southerly direction with the westerly property lines of the Thomas A. Flowers Tract and the Belco Development Company Tract to the northerly right-of-way line of Eastman Road; thence in a southwesterly direction crossing Eastman Road to the northeast corner of the J. L. Smith Tract; thence southwardly with the easterly property line of the J. L. Smith Tract to point, such point being the southeast corner of such J. L. Smith Tract and the northerly property line of the R. Murray Tract; thence westwardly with the northerly property line of the R. Murray Tract to the northwest corner of such tract; thence southwardly with the westerly property lines of the R. Murray Tract and the Acee Company Tract to the northerly

right-of-way line of Brooks Road; thence eastwardly with the northerly right-of-way line of Brooks Road to the westerly right-of-way line of U.S. Highway No. 61 (S); thence southwardly with the westerly right-of-way line of U.S. Highway No. 61 (S) to the northerly right-of-way line of Mitchell Road; thence eastwardly with the northerly right-of-way line of Mitchell Road to its intersection with the center line of U.S. Highway No. 61 (S); thence southwesterly with the center line of U.S. Highway No. 61 (S) to the center line of Horn Lake Road; thence southwardly with the center line of Horn Lake Road and a southward projection of such center line from its intersection with the center line of Windsor Road to a point, such point being located in the boundary line (State Line) between the Sovereign State of Tennessee and the Sovereign State of Mississippi; thence westwardly with such boundary line its intersection with the westerly right-of-way line of Weaver Road, such point of intersection being the point of beginning.

Ward 76

Ward 76 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the westerly right-of-way line of U.S. Highway No. 61 (S) with the center line of Nonconnah Creek; thence in a generally easterly direction following the center line of Nonconnah Creek and its meanderings to the center line of the Illinois Central Railroad right-of-way; thence in a southerly direction with the center line of the Illinois Central Railroad right-of-way to the center line of Raines Road; thence easterly with the center line of Raines Road to the center line of Auburn Road; thence southwardly with the center line of Auburn Road to the center line of Hale Road; thence westwardly with the center line of Hale Road and a westerly extension of such center line to its intersection with the center line of the Illinois Central Railroad right-of-way; thence southwardly with the center line of the Illinois Central Railroad right-of-way to its intersection with an eastward projection of the center line of Whitesboro Avenue; thence westwardly with such projection and the center line of Whitesboro Avenue to the center line of Tulane Road; thence southwardly with the center line of Tulane Road to its intersection with the Tennessee and Mississippi State Line; thence westwardly with the Tennessee and Mississippi State Line to its intersection with a southward projection of the center line of Horn Lake Road at its intersection with the center line of Windsor Road; thence northwardly with such projection and the center line of Horn Lake Road to the center line of U.S. Highway No. 61 (S); thence in a generally northerly direction with the center line of U.S. Highway No. 61 (S) to its intersection with an easterly projection of the northerly right-of-way line of Brooks Road; thence westwardly with such projection and the northerly right-of-way line of Brooks Road to a point, such point being the southwest corner of a tract of land known as the Acee Company Tract, such point being the southeast corner of the Barton Heights Baptist Church property; thence in a northerly direction following the westerly property lines of the Acee Company Tract and the R. Murray Tract to the northwest corner of such R. Murray Tract; thence in an easterly direction along the northerly property line of the R. Murray Tract to the southwest corner of the W. F. McLemore Tract; thence in a northerly direction with the westerly property line of the W. F. McLemore Tract to the southwest corner of the Kerr McGee Oil Company property; thence in a northerly direction with the westerly property line of the Kerr McGee Oil Company property to a point in the southerly right-of-way of Eastman Avenue; thence northwardly to a point in the northerly right-of-way line of Eastman Avenue, such point being the southeast corner of the William Whitemire Tract and the southwest corner of the Belco Development Company Tract; thence in a northerly direction with the westerly property line of the Belco Development Company Tract to the southwest corner of the Thomas A. Flowers Tract; thence in a generally northerly direction following the westerly property line of the Thomas A. Flowers Tract to the northwesterly corner of such tract; thence in a northwesterly direction crossing Peebles Avenue to a point in the northerly right-of-way line of Peebles Avenue, such point being the southwesterly corner of the W. D. Whitmore Tract, and also the southeasterly corner of the W. W. Foley Tract; thence in a northerly direction with the westerly property lines of the W. D. Whitmore Tract, the Tony A. Cella Tract and a westerly property line of the A. Makowsky Tract to a point, such point being the northeasterly corner of the W. W. Foley Tract, such corner being a point in a southerly property line for the A. Makowsky Tract; thence in a westerly direction along a southerly property line of the Makowsky Tract to the most southwesterly corner of such tract; thence in a northerly direction along the westerly property lines of the A. Makowsky Tract; the H. C. Jenkins Tract, the Dixie Contractors, Inc., Tract

and the Henry C. Appling Tract to the northwesterly corner of such Henry C. Appling Tract, such point also being the most southwesterly corner of the Philsar Development Company Tract; thence in a generally northerly direction along the westerly property line of the Philsar Development Company property to the northwesterly corner of such Philsar property, such point being 200 feet ± west of the westerly right-of-way line of U.S. Highway No. 61 South and 527 feet ± south of the south right-of-way line of the Illinois Central Railroad property, as measured along the westerly right-of-way line of U.S. Highway No. 61 South; thence in a northerly direction with the westerly right-of-way line of U.S. Highway No. 61 South to its intersection with the center line of the Nonconnah Creek, such point of intersection being the point of beginning.

Ward 77

Ward 77 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of the Illinois Central Railroad with the northerly right-of-way line of Brooks Road; thence eastwardly with the northerly right-of-way line of Brooks Road to the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)); thence southwardly with the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)) to the boundary line (State Line) between the Sovereign State of Tennessee and the Sovereign State of Mississippi; thence westwardly with such boundary line (State Line) to the center line of Tulane Road; thence northwardly with the center line of Tulane Road to the center line of Whitesboro Avenue; thence eastwardly with the center line of Whitesboro Avenue and an eastward projection of such center line to its intersection with the center line of the Illinois Central Railroad right-of-way; thence northwardly with the center line of the Illinois Central Railroad right-of-way to the center line of Hale Road; thence eastwardly with the center line of Hale Road to the center line of Auburn Road; thence northwardly with the center line of Auburn Road to the center line of Raines Road; thence westwardly with the center line of Raines Road to the center line of the Illinois Central Railroad right-of-way; thence northwardly with the center line of the Illinois Central Railroad right-of-way to its intersection with the northerly right-of-way line of Brooks Road, such point of intersection being the point of beginning.

Ward 78

Ward 78 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Elvis Presley Boulevard with the northerly right-of-way line of Brooks Road; thence eastwardly with the northerly right-of-way line of Brooks Road to the center line of Airways Boulevard; thence southwardly with the center line of Airways Boulevard to the center line of Raines Road; thence westwardly with the center line of Raines Road to a northward projection of the easterly property line of Hillcrest High School (Memphis Board of Education); thence southwardly with such projection and the easterly property line of Hillcrest High School (Memphis Board of Education) to the southerly property line of such school property; thence westwardly with the southerly property line of Hillcrest High School (Memphis Board of Education) to the westerly property line of such school property; thence northwardly with the westerly property line of Hillcrest High School (Memphis Board of Education) and a northward projection of such westerly property line to the center line of Raines Road; thence westwardly with the center line of Raines Road to the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)); thence northwardly with the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)) to its intersection with the northerly right-of-way line of Brooks Road, such point of intersection being the point of beginning.

Ward 79

Ward 79 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Raines Road with the center line of Airways Boulevard; thence southwardly with the center line of Airways Boulevard to the boundary line (State Line) between the Sovereign State of Tennessee and the Sovereign State of Mississippi; thence westerly with such boundary line (State Line) to the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)); thence northwardly with the center line of Elvis Presley Boulevard (U.S. Highway No. 51 (S)) to the center line of Raines Road; thence eastwardly with the center line of Raines Road to its intersection with a northward projection of the westerly property line of Hillcrest High School (Memphis Board of Education Tract); thence southwardly with such projection and the westerly property line of Hillcrest High School

(Memphis Board of Education Tract) to the southerly property line of such tract; thence eastwardly with the southerly property line of Hillcrest High School (Memphis Board of Education Tract) to the easterly property line of such tract; thence northwardly with the easterly property line of Hillcrest High School (Memphis Board of Education Tract) and a northward projection of such tract to the center line of Raines Road; thence eastwardly with the center line of Raines Road to its intersection with the center line of Airways Boulevard, such point of intersection being the point of beginning.

Ward 80

Ward 80 shall be and is bounded as follows: Beginning at a point, such point being in the southerly right-of-way line of the L. & N. Railroad, where such right-of-way line is intersected by the center line of the Wolf River drainage canal; thence in a southeasterly direction with the center line of the Wolf River drainage canal to a point in such center line where it is intersected by a northward projection of the Germantown City Limits; thence in a southerly direction with such projection and with the Germantown City Limits to a point where such City Limits turns westward; thence in a westerly direction along the Germantown City limits and the northerly line of Kirby Hill Subdivision to the northwesterly corner of such subdivision; thence in a southerly direction with the westerly line of Kirby Hills Subdivision to the northerly right-of-way line of U.S. Highway 72 (Poplar Avenue); thence in a westerly direction with the northerly right-of-way line of U.S. Highway 72 (Poplar Avenue) to a point in such right-of-way line where it is intersected by the westerly line of the J. Kirby Tract and the easterly property line of the E. M. Smith Tract; thence in a southerly direction with a southward projection of the property lines of J. Kirby Tract and the E. M. Smith Tract to the center line of U.S. Highway 72 (Poplar Avenue); thence in a westerly direction with the center line of U.S. Highway 72 (Poplar Avenue) to the westerly right-of-way of Interstate Highway 240; thence in a northerly direction with the westerly right-of-way line of Interstate Highway 240 to the southerly right-of-way line of Shady Grove Road; thence in an easterly direction with the southerly right-of-way line of Shady Grove Road to the easterly right-of-way line of Interstate Highway 240; thence in a northerly direction, with the easterly right-of-way line of Interstate Highway 240 to a point of intersection with the southwesterly bank of the Wolf River, as it existed prior to relocation by the U.S. Army Engineers; thence in a northerly and easterly direction with the southwesterly bank of such Wolf River, prior to its relocation, to the southerly right-of-way line of the L. & N. Railroad; thence in an easterly direction with the southerly right-of-way line of the L. & N. Railroad to its intersection with the center line of the Wolf River drainage canal, such point also being the point of beginning.

Ward 81

Ward 81 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the westerly right-of-way line of U.S. Interstate Highway I-240 with the center line of Poplar Avenue (U.S. Highway Number 72); thence eastwardly with the center line of Poplar Avenue (U.S. Highway Number 72) to its intersection with a northward projection of the easterly property line of the Winsor Estates Subdivision, such point of intersection also being located on the existing Memphis-Germantown city limits; thence southwardly along such northward projection, such easterly property line and a southward projection of such property line and the existing Memphis-Germantown city limits to a point on the southerly right-of-way line of Poplar Pike; thence eastwardly with the southerly right-of-way line of Poplar Pike and the existing Memphis-Germantown city limits to a point where such city limits turn south; thence southwardly with the existing Memphis-Germantown city limits to the northerly right-of-way line of Messick Road; thence easterly with the existing city limits and the northerly right-of-way line of Messick Road to a point where such city limits turn south; thence southwardly with the existing Memphis-Germantown city limits to the southerly right-of-way line of Stout Road; thence eastwardly with such existing city limits and the southerly right-of-way line of Stout Road to the westerly property line of the W. L. Taylor 100 acre tract; thence southwardly with such existing Memphis-Germantown city limits and such westerly property line to the southwest corner of such Taylor's 100 acre tract; thence in a generally eastwardly direction following the existing Memphis-Germantown city limits to a point on the easterly right-of-way line of Germantown Road; thence southwardly with the existing Memphis-Germantown city limits to a point on the easterly right-of-way line of Germantown Road; thence southwardly with the existing Memphis-

Germantown city limits and the easterly right-of-way line of Germantown Road to the southerly property line of J. Everett Norfleet's 13.2 acre tract; thence in a generally eastwardly direction following the existing Memphis-Germantown city limits to a point 300 feet east of the center line of Hacks Cross Road; thence southwardly 300 feet east of and parallel to the center line of Hacks Cross Road and following the existing Memphis city limits to a point 300 feet southwardly from the center line of Winchester Road; thence westwardly 300 feet south of and parallel to the center line of Winchester Road and following the existing Memphis city limits to a point on the midstream of the Nonconnah Creek Drainage Canal; thence northwestwardly following the meandering of such Nonconnah Creek Drainage Canal and the existing Memphis city limits to its intersection with a southward projection of the center line of Lynnfield Road; thence northwardly with such projection and the center line of Lynnfield Road to the center line of Baird Drive; thence eastwardly with the center line of Baird Drive to the center line of Ridgeland Street; thence northwardly with the center line of Ridgeland Street to the center line of Vassar Road; thence westwardly with the center line of Vassar Road and a westwardly projection of such center line to its intersection with the westerly right-of-way line of U.S. Interstate Highway I-240; thence northwardly with the westerly right-of-way line of U.S. Interstate Highway I-240 to its intersection with the center line of Poplar Avenue (U.S. Highway Number 72), said point of intersection being the point of beginning.

Ward 82

Ward 82 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the southerly right-of-way line of Fields Road with the westerly right-of-way line of Weaver Road; thence in a southerly direction with the westerly right-of-way line of Weaver Road to its intersection with the Tennessee and Mississippi State Line; thence westwardly with the Tennessee and Mississippi State Line to the midstream of the Mississippi River; thence in a northerly direction with the midstream of the Mississippi River to a point where such midstream is intersected by a westward projection of the northerly right-of-way line of Holmes Road; thence in an easterly direction with such westward projection of Holmes Road to its intersection with the westerly right-of-way line of the I. C. Railroad; thence in a northerly and easterly direction with the westerly and northerly right-of-way line of the I. C. Railroad right-of-way to its intersection with a northward projection of the westerly right-of-way line of Old Weaver Road; thence in a southerly direction with such westerly right-of-way line of Old Weaver Road, to the westerly right-of-way line of Weaver Road; thence in a southerly direction with the westerly right-of-way line of Weaver Road to the southerly right-of-way line of Mitchell Road; thence in a westerly direction with the southerly right-of-way line of Mitchell Road to the easterly right-of-way line of I. C. Railroad; thence in a southerly direction with the easterly right-of-way line of the I. C. Railroad to the southerly right-of-way line of Fields Road; thence in an easterly direction with the southerly right-of-way of-way line of Fields Road to the westerly right-of-way line of Weaver Road, such point being the point of beginning.

Ward 83

Ward 83 shall be and is bounded as follows: Beginning at a point in the westerly line of the Illinois Central Railroad right-of-way, such point being a westward projection of the northerly line of the Warford Avenue Subdivision; thence in an easterly direction along such projection to a point in the westerly line of Warford Street, such point being 746.3 feet more or less northwardly of the northerly right-of-way line of Peres Avenue; thence continuing along such projection and with the northerly line of the Warford Avenue Subdivision and the northerly line of the Douglas Place Subdivision, and such northerly line of the Douglas Place Subdivision projected eastwardly to the westerly right-of-way line of Highland Road; thence northwardly with the westerly right-of-way line of Highland Road to a point in such right-of-way line, such point also being the northwesterly corner of the Union Villa Subdivision; thence in an easterly direction with the most northerly line of the Union Villa Subdivision and such line projected eastwardly and the most northerly line of Stockley Terrace Subdivision and such line projected eastwardly to its intersection with the center line of the Old Raleigh Springs Railroad right-of-way; thence in a northeasterly direction with the center line of the Old Raleigh Springs Railroad right-of-way to the westerly line of the McMath and Johnson Subdivision of the Kallaher 22⅓ AC tract; thence northwardly with the west line of such McMath and Johnson Subdivision;

and a northward projection of such line to its intersection with a westward projection of the center line of Burrow Road; thence in an eastward direction with such projection of Burrow Road to a point 200 feet west of the west right-of-way line of Jackson Avenue; thence northeastwardly parallel to and 200 feet westwardly of the westerly right-of-way line of Jackson Avenue to a westward projection of the center line of Wendt Road; thence eastward along such projection to the westerly right-of-way line of Jackson Avenue; thence in a northeasterly direction with the westerly right-of-way line of Jackson Avenue to a westward projection of the northerly right-of-way line of Watteker Road; thence eastwardly with said projection to its intersection with the center line of the Austin Peay Highway; thence in a northerly direction with the center line of Austin Peay Highway to its intersection with the center line of James Road; thence in a westerly direction with the center line of James Road and the center line of Scenic Highway to its intersection with the center line of New Allen Road; thence in a northerly direction with the center line of New Allen Road to its intersection with the center line of Whitney Road; thence in a westerly direction with the center line of Whitney Road and a projection of said center line to the westerly right-of-way line of Illinois Central Railroad; thence in a southerly direction following the westerly right-of-way line of the Illinois Central Railroad to a point in such right-of-way where such right-of-way line is intersected by a westward projection of the northerly line of Warford Avenue Subdivision, such point being the point of beginning.

Ward 84

Ward 84 shall be and is bounded as follows: Beginning at a point in the westerly right-of-way line of Illinois Central Railroad at its intersection with the northerly right-of-way line of Frayser-Raleigh Road; thence in an easterly direction with the northerly right-of-way line of Frayser-Raleigh Road crossing New Allen Road to the center line of Hawkins Mill Road; thence in a southeasterly direction with the center line of Hawkins Mill Road to its intersection with the center line of Raleigh-Millington Road; thence in a southeasterly direction with the center line of Raleigh-Millington Road to its intersection with the center line of Austin Peay Highway; thence in a southerly direction with the center line of Austin Peay Highway to its intersection with the center line of James Road; thence in a westerly direction with the center line of James Road and the center line of Scenic Highway to an intersection with the center line of New Allen Road; thence in a northerly direction with the center line of New Allen Road to its intersection with the center line of Whitney Road; thence in a westerly direction with the center line of Whitney Road and a westward projection of such center line to its intersection with the westerly line of the Illinois Central Railroad; thence in a northerly direction with the westerly right-of-way line of the Illinois Central Railroad road to its intersection with the northerly right-of-way line of Frayser-Raleigh Road, such point of intersection being the point of beginning.

Ward 85

Ward 85 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Yale Road with the center line of Raleigh-Millington Road; thence in an easterly direction with the center line of Yale Road crossing Austin Peay Highway to its intersection with the center line of Scheibler Road; thence in a southwesterly direction following the center line of Scheibler Road to its intersection with the center line of Raleigh-Bartlett Road; thence in a westerly direction following the center line of Raleigh-Bartlett Road to its intersection with the center line of Austin Peay Highway; thence in a northerly direction with the center line of Austin Peay Highway to its intersection with the center line of Raleigh-Millington Road; thence in a northerly direction with the center line of Raleigh-Millington Road to its intersection with the center line of Yale Road, such point of intersection being the point of beginning.

Ward 86

Ward 86 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Yale Road with the center line of Raleigh-Millington Road; thence eastwardly with the center line of Yale Road to its intersection with the center line of Austin Peay Highway (State Highway Number 14); thence northeastwardly with the center line of Austin Peay Highway (State Highway Number 14) to its intersection with a southeasterly projection of the northeasterly right-of-way line of Lakehurst Drive; thence northwestwardly along said southeasterly projection and the northeasterly right-of-way line

of Lakehurst Drive to the southwest corner of the Bernice K. Gordon 24.904 acre tract; thence in a northerly direction along the easterly property line of the Lakemont Gardens Section "A" and the westerly property line of the Bernice K. Gordon 24.904 acre tract to the southeast corner of the Bernice K. Gordon and Clifton J. Marshalk 20 acre tract; thence in a northwesterly direction along the southerly property line of the Bernice K. Gordon and Clifton J. Marshalk 20 acre tract and the W. D. and Frank Z. and Russell and Calvin Lyle Jemison 14.219 acre tract and the northeasterly property line of the Lakemont Gardens Subdivision Section "A" to a point in the southwest corner of the said W. D. and Frank Z. and Russell and Calvin Lyle Jemison 14.219 acre tract; thence in a generally northerly direction along the easterly property line of the Lakemont Gardens Subdivision Section "A," the W. D. and Frank Z. and Russell and Calvin Lyle Jemison 4.4 acre tract and the westerly property line of the W. D. and Frank Z. and Russell and Calvin Lyle Jemison 14.219 acre tract to a point of intersection with the southerly property line of the W. D. Jr. and Frank Z. Jemison 70.29 acre tract; thence in a westerly direction along the southerly property lines of the W. D. Jr. and Frank Z. Jemison 70.29 acre tract, the L. H. and Bertha Miller Agee 44.517 acre tract and the northerly property lines of the W. D. and Frank Z. and Russell and Calvin Lyle Jemison 4.4 acre tract, the Meadowbrook Development Company 6.45 acre tract, the Lakemont Gardens Subdivision Section "A" and the William R., Jr. and Violet G. Otte 13.89 acre tract to a point of intersection with the easterly property line of the Robert R., Jr. and Ramelle S. Johnson 12.17 acre tract; thence in a northerly direction along the easterly property line of such Robert R., Jr. and Ramelle S. Johnson 12.17 acre tract and the westerly property line of the such L. H. and Bertha Miller Agee 44.517 acre tract to a point in the southerly property line of the Ernest J. and Peggy J. Reeves six acre tract; thence in an easterly direction along such southerly property line of the Ernest J. and Peggy J. Reeves six acre tract to the westerly property line of the said L. H. and Bertha Miller Agee 44.517 acre tract; thence in a northerly direction along the easterly property lines of such Ernest J. and Peggy J. Reeves six acre tract, the William O. and Altha M. McCrary 15.629 acre tract and the westerly property line of such L. H. and Bertha Miller Agee 44.517 acre tract to the most easterly northeast corner of such William O. and Altha M. McCrary 15.629 acre tract; thence in a westerly direction along the southerly property line of such William O. and Altha M. McCrary 1.748 acre tract and a northerly line of such William O. and Altha M. McCrary 15.629 acre tract to the southwest corner of such William O. and Altha M. McCrary 1.748 acre tract; thence in a northerly direction along the easterly property line of such William O. and Altha M. McCrary 15.629 acre tract and the westerly property line of such William O. and Altha M. McCrary 1.748 acre tract and a northward projection of such line to a point in the northerly right-of-way line of Egypt-Central Road; thence in a westerly direction along the northerly right-of-way line of Egypt-Central Road to its intersection with the easterly property line of the William J., Sr. and Thelma Babb 10.293 acre tract; thence southwardly with a southerly projection of the easterly property line of such William J., Sr. and Thelma Babb 10.293 acre tract to the center line of Egypt-Central Road; thence westwardly with the center line of Egypt-Central Road to its intersection with the center line of Raleigh-Millington Road; thence southwardly with the center line of Raleigh-Millington Road to its intersection with the center line of Yale Road, such point of intersection being the point of beginning.

Ward 87

Ward 87 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Raleigh-Bartlett Road with the center line of Scheibler Road; thence northeastwardly with the center line of Scheibler Road to its intersection with the center line of Yale Road; thence westwardly with the center line of Yale Road to its intersection with the center line of Austin Peay Highway (State Highway Number 14); thence northeastwardly with the center line of Austin Peay Highway (State Highway Number 14) to its intersection with a southeasterly projection of the northeasterly right-of-way line of Lakehurst Drive; thence northwestwardly along such southeasterly projection of the northeasterly right-of-way line of Lakehurst Drive to the northwesterly right-of-way line of Austin Peay Highway (State Highway Number 14); thence northeastwardly with the northwesterly right-of-way line of Austin Peay Highway (State Highway Number 14) to its intersection with a northwesterly projection of the northeasterly property line of the Ben and Lillie Scarbrough 3.98 acre tract; thence southeastwardly along such

northwesterly projection and the northeasterly property line of such Ben and Lillie Scarbrough 3.98 acre tract, the William A., III and Martha E. Fleming 10.08 acre tract, the Clifton E. and William R. Holden 2.36 acre tract and a southeasterly projection of such line to the southeasterly right-of-way line of Covington Road; thence northeastwardly with the southeasterly right-of-way line of Covington Road to its intersection with the northerly property line of the Estelle B. Sandidge 12.94 acre tract; thence eastwardly with the northerly property line of such Estelle B. Sandidge 12.94 acre tract to the northwest corner of the Weston G. Lawson, SE. 46.75 acre tract; thence southwestwardly along the westerly property line of such Weston G. Lawson 46.75 acre tract to the most northerly southeast corner of the James S. and Lillian L. Wilson five acre tract; thence westwardly along the most northerly southerly property line of such James S. and Lillian L. Wilson five acre tract to the northwest corner of the Weston G. Lawson, Sr. 46.084 acre tract; thence southwardly along the easterly property lines of the James S. and Lillian L. Wilson five acre tract and the Robert C. and Katherine Repult 13.35 acre tract to the northwest corner of the Board of Education 16.35 acre tract; thence eastwardly along the northerly property line of such Board of Education 16.35 acre tract to the northeast corner of such tract; thence southwardly along the easterly property line of such Board of Education 16.35 acre tract to its intersection with the northerly right-of-way line of Banbury Avenue; thence eastwardly along the northerly right-of-way line of Banbury Avenue and an eastward projection of such line to a point on the easterly right-of-way line of Old Brownsville Road; thence southwardly along the easterly right-of-way line of Old Brownsville Road to its intersection with the existing Bartlett City Limits; thence continuing southwardly with the easterly right-of-way line of Old Brownsville Road and the existing Bartlett City Limits to the northerly property line of Bartlett Subdivision, Section "A"; thence westwardly with the northerly property line of such subdivision and the existing Bartlett City Limits to the westerly line of such Bartlett Subdivision, Section "A"; thence southwardly along the westerly line of such subdivision and the existing Bartlett City Limits to the northerly property line of Bartlett Park Subdivision, Section "B"; thence westwardly with such northerly line and the existing Bartlett City Limits to the easterly property line of the Williamsburg Park Subdivision, Section "A"; thence southwardly along the easterly property lines of such Williamsburg Park Subdivision, Section "A," the Williamsburg Park Subdivision, 3rd Addition, the R. H. and Muriel Odabashina two acre tract and a southward projection of said line to its intersection with the center line of Raleigh-Bartlett Road; thence westwardly with the center line of Raleigh-Bartlett Road to its intersection with the center line of Scheibler Road, such point of intersection being the point of beginning.

Ward 88

Ward 88 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the center line of Austin Peay Highway with the center line of Raleigh-Bartlett Road; thence southwardly with the center line of Austin Peay Highway to its intersection with a westward projection of the northerly right-of-way line of Watteker Road; thence eastwardly with such extension and the northerly right-of-way line of Watteker Road to the easterly right-of-way line of Tant Road; thence southwardly with the east line of Tant Road to a point in such line 450 feet south of the south line of Burrow Avenue; thence eastwardly to a point 140 feet east of the east line of Tant Road; thence southwardly parallel to Tant Road to the north line of Mamie Avenue; thence eastwardly along the north line of Mamie Avenue to the end of Mamie Avenue 200 feet east of Tant Road; thence southwardly across the end of Mamie Avenue and along the east line of Lot Number 59 of the Kupferschmidt Subdivision to the north line of Lot Number 55 of Kupferschmidt Subdivision; thence eastwardly along the north line of Lots Numbered 55, 56, 57 and 58 of the Kupferschmidt Subdivision to a point; thence southwardly along the east line of Lot Number 58 of the Kupferschmidt Subdivision to a point 137 feet north of the north line of Wales Avenue; thence eastwardly parallel to Wales Avenue to an intersection with a northward extension of the west line of the Third Addition to Thrifthaven Subdivision; thence southwardly with such extension to the north line of the Paul S. Dougher property; thence eastwardly with such north line of the Paul S. Dougher property to the northeast corner of such Paul S. Dougher lot; thence southwardly with the east property line of the Paul S. Dougher lot to a point in the north property line of Lot Number 36 of the Third Addition to Thrifthaven Subdivision; thence eastwardly with the north property line of Lot Number 36 of Thrifthaven Subdivision to the northeast corner of Lot Number 36

of Thrifthaven Subdivision; thence southwardly with the east line of Lots 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50 and 51 of Thrifthaven Subdivision to a point in the east property line of Lot Number 51 of Thrifthaven Subdivision, such point being the northwest corner of the John G. Gray lot; thence northeastwardly with the north lines of the John G. Gray lot and the C. L. James lot to a point, such point being the northeast corner of the C. L. James lot; thence southwardly with the east line of the C. L. James lot to the northwest corner of the Larence Hallis lot; thence northeastwardly with the north property lines of the Larence Hallis lot, the Oliver L. Myers lot and the Alvin V. Mattes lot to the northeast corner of the Alvin V. Mattes lot; thence southeastwardly with the east property line of the Alvin V. Mattes lot and an extension of said lot line crossing Berkshire Avenue to the north right-of-way line of the Louisville and Nashville Railroad Company right-of-way; thence in a southward direction from such point and with the center line of Wells Station Road a distance of 830 feet more or less to a point south of the south right-of-way line of the Louisville and Nashville Railroad; thence eastwardly to the north line of Lot Number 127 of the Thrifthaven Subdivision; thence eastwardly and southwardly along the north and east line of the Thrifthaven Subdivision to the north line of the Old Jiedel ten acre tract (now known as M. C. Williams Subdivision) thence southwardly to the northeast corner of Lot Number 247 of the Second Addition to Lynwood Park and continuing southwardly along the east line of the Second Addition to Lynwood Park Subdivision and the east line of the First Addition to Lynwood Park Subdivision and the east line of Lynwood Park Subdivision to the north line of the First Addition to Rendale Subdivision; thence eastwardly along the north line of the First Addition to the Rendale Subdivision to the east line of the First Addition to Rendale Subdivision, such point being the northeast corner of Lot Number 92; thence southwardly along the east line of such subdivision to the north line of the Dattel Subdivision, such point being located in the north line of Lot Number 22; thence eastwardly with the north line of the Dattel Subdivision to the northeast corner of Lot Number 23 of such subdivision; thence southwardly and eastwardly with an east line of the Dattel Subdivision to a point in a north line of Lot Number 30 of Dattel Subdivision; thence eastwardly along the north Lots Numbered 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43 and 44 of Dattel Subdivision to the west lot line of Lot Number 48 of such subdivision; thence northwardly to the northwest corner of Lot Number 50 of Dattel Subdivision; thence eastwardly with the north line of Lots Number 50 and 51 to the northeast corner of Lot Number 51; thence southwardly along the east line of Lots 51, 52 and 53 of Dattel Subdivision, a distance of 175 feet more or less to a point, such point being in a line, said line being in eastward extension of the north line of Gailwood Avenue; thence eastward with such extension to its intersection with a northward projection of the east line of Stratford Road; thence southwardly with such projection to the center line of Macon Road; thence in an eastward direction to the northwest corner of Lot Number 1 of the First Addition Section "A" of the Danita Terrace Subdivision; thence continuing eastward with the north line of such subdivision to the northwest corner of the Second Addition to Danita Terrace Subdivision; thence southeastwardly with the north lines of the Second Addition to Danita Terrace Subdivision; Avon Meadows Subdivision Section "B" and Avon Meadows Subdivision Section "C" to the southwest corner of Lot Number 18 of Avon Meadows Subdivision Section "C"; thence northwardly with the west property line of Lots Number 18 and 19 to the north line of Avon Meadows Subdivision Section "C"; thence eastwardly with the north line of such subdivision to the northeast corner of Lot Number 21; thence southwardly and southeastwardly with the east lines of Lots 22, 23, 24, 25, 26, 27, 28, 29, 30, 31 and 32 to the northwest corner of Lot Number 33 of Section "C" Avon Meadows Subdivision; thence eastwardly with the north lines of Lots 33, 34, 35, 36, 37, 38, 39 and 40 of such subdivision to a point, such point being the northeast corner of Lot 40; thence southwardly to the north right-of-way line of Macon Road; thence eastwardly and northeastwardly with such right-of-way line to its intersection with the west bank of the Wolf River; thence in a southeastward direction with the meanderings of such southerly or westerly bank of the Wolf River to its intersection with the northwesterly right-of-way line of U.S. Highway Number 70; thence northeastwardly with the northwesterly right-of-way line of U.S. Highway Number 70 to its intersection with the northerly right-of-way line of T.V.A. Power Line Easement; thence westwardly along the northerly right-of-way line of said easement to a point 175 feet east of the easterly right-of-way line of the proposed Bartlett-Old Brownsville Road;

thence northwardly 175 feet east of and parallel to the easterly right-of-way line of the proposed Bartlett-Old Brownsville Road to the northwesterly right-of-way line of the L. & N. Railroad; thence in a northeasterly direction along the northwesterly right-of-way line of the L. & N. Railroad to its intersection with a southward projection of the westerly property line of the Bartlett Manor Subdivision, Section "A"; thence northwardly along a southward projection and the westerly property lines of the Bartlett Manor Subdivision, Section "A", the M. G. McCulley's Subdivision and a northward projection of such McCulley's Subdivision westerly property line to a point, such point being located in the northerly right-of-way line of Raleigh-Bartlett Road and also in the existing Bartlett City Limits; thence westwardly with the existing Bartlett City Limits and the northerly right-of-way line of Raleigh-Bartlett Road to its intersection with the easterly property line of the R. H. and Muriel Odabashina two acre tract; thence southwardly along a southerly projection of the easterly property line of such R. H. and Muriel Odabashina two acre tract to a point in the center line of Raleigh-Bartlett Road; thence westwardly along the center line of Raleigh-Bartlett Road to its intersection with the center line of Austin Peay Highway, such point of intersection being the point of beginning.

Ward 89

Ward 89 shall be and is bounded as follows: Beginning at a point, such point being the intersection of a westerly projection of the northerly property line of the Shelby County Penal Farm with the northwesterly right-of-way line of U.S. Highway Number 70; thence northeastwardly with the northwesterly right-of-way line of U.S. Highway Number 70 to a point 100 feet northeastwardly from the center line of Alturia Road as measured along such northwesterly right-of-way line of U.S. Highway Number 70; thence south 50 degrees east of a point 188 feet from the center line of U.S. Highway Number 70; thence southwestwardly 188 feet southeasterly from and parallel to the center line of U.S. Highway Number 70 to a point on the southwesterly property line of the Jimmie L. McIntyre tract; thence southeastwardly with the southwesterly property line of such Jimmie L. McIntyre tract to the southeast corner of such tract; thence northeastwardly with the southeasterly property lines of such Jimmie L. McIntyre and the A. V. and Bessie B. McIntyre tracts to the westerly right-of-way line of Charles Bryan Road; thence due east crossing Charles Bryan Road to a point on the easterly right-of-way line; thence southwardly with the easterly right-of-way line of Charles Bryan Road to the northerly right-of-way line of Elmore Road; thence eastwardly with the northerly right-of-way line of Elmore Road to the easterly right-of-way line of Whitten (W.M.C.) Road; thence southwardly with the easterly right-of-way line of Whitten (W.M.C.) Road to the northerly right-of-way line of the L. & N. Railroad; thence westwardly with the northerly right-of-way line of the L. & N. Railroad to the westerly right-of-way line of Mullins Station Road; thence northwardly with the westerly right-of-way line of Mullins Station Road to its intersection with the northerly property line of the Shelby County Penal Farm; thence westwardly, northwardly and westwardly following the northerly property line of the Shelby County Penal Farm and a westward projection of said north property line to its intersection with the northwesterly right-of-way line of U.S. Highway Number 70, such point of intersection being the point of beginning.

Ward 90

Ward 90 shall be and is bounded as follows: Beginning at a point, such point being the intersection of the northerly right-of-way line of Frayser Boulevard with the westerly right-of-way line of the Illinois Central Railroad; thence eastwardly along the northerly right-of-way line of Frayser Boulevard to its intersection with the center line of Hawkins-Mill Road; thence south-eastwardly with the center line of Hawkins-Mill Road to its intersection with the center line of Raleigh-Millington Road; thence northwardly with the center line of Raleigh-Millington Road to its intersection with the center line of Egypt-Central Road; thence eastwardly with the center line of Egypt-Central Road to its intersection with a southward projection of the easterly property line of the William J., Sr. and Thelma Babb 10.293 acre tract; thence northwardly along such southward projection and the easterly property line of such William J., Sr. and Thelma Babb 10.293 acre tract to the northeast corner of such William J., Sr. and Thelma Babb 10.293 acre tract; thence westwardly along the northerly property lines of such William J., Sr. and Thelma Babb 10.293 acre tract and the Sophia Coats 0.75 acre tract to a point on the easterly right-of-way line of Egypt Road; thence northwardly along the easterly

right-of-way line of Egypt Road and a northward projection of such line to a point on the northerly right-of-way line of Bolen Huse Road; thence in a westerly direction along the northerly right-of-way line of Bolen Huse Road to a point in the easterly property line of the Lawrence B. and Ruby M. Lee 23.48 acre tract and the westerly property line of the Dr. E. D. and Ruth Connell tract; thence in a northerly direction along the easterly property lines of the Lawrence B. and Ruby M. Lee 23.48 acre tract, the Joe E. and Rose G. Lee 23.702 acre tract, the Joe and Louise R. Guasco and Amelio and Marion C. Guasco 35.5 acre tract, the Wallace E. Johnson, Inc., 152.74 acre tract and the westerly property line of the Dr. E. D. and Ruth Connell tract to its intersection with the midstream of the Loosahatchie River; thence in a westerly and southwesterly direction following the midstream of the Loosahatchie River to its intersection with the northerly property line of the Davy Crockett Park; thence in an easterly direction along such north line of Davy Crockett Park to a point in the westerly right-of-way line of the Illinois Central Railroad; thence in a southerly direction along the westerly right-of-way line of the Illinois Central Railroad to a point in the northerly right-of-way line of Frayser Boulevard, said point being the point of beginning.

(Code 1967, § 15-1; Code 1985, § 13-1; Ord. No. 1955, § 1, 2-7-1967; Ord. No. 466, § 1, 5-6-1969; Ord. No. 650, §§ 1, 2, 2-10-1970; Ord. No. 970, § 1, 6-1-1971; Ord. No. 1234, § 1, 4-11-1972; Ord. No. 1235, § 1, 4-11-1972; Ord. No. 1725, § 1, 5-15-1973; Ord. No. 1887, § 1, 10-30-1973; Ord. No. 1987, § 1, 3-19-1974; Ord. No. 2118, § 1, 9-3-1974; Ord. No. 2247, § 1, 4-29-1975; Ord. No. 2257, § 1, 5-27-1975; Ord. No. 2294, § 1, 8-26-1975; Ord. No. 2657, § 1, 10-18-1977)

CHAPTER 1-16. ELECTIONS*

Sections:

Sec. 1-16-1. Official voting machine.
Sec. 1-16-2. Interfering with elections.

Sec. 1-16-1. Official voting machine.

The Shoup Voting Machine is adopted as the official voting machine of the city and the same may be used at any and all elections held in the city or any part thereof, for voting, registering and counting votes cast at such elections.

(Code 1967, § 15-2; Code 1985, § 13-2)

***State law references—**Election code, T.C.A. § 2-1-101 et seq.; city elections, T.C.A. § 6-53-101 et seq.

Sec. 1-16-2. Interfering with elections.

It is unlawful for any person to interrupt any election pending under any law of this state or of the United States; or to make any disturbance for the purpose of interrupting such election; or to attempt to invalidate or prevent such an election by breaking up or removing or seizing upon the ballot box; or to prevent or deter any voters, by any means, from voting; or to change or destroy any ballot put in the ballot box.

(Code 1967, § 15-3; Code 1985, § 13-3)

CHAPTER 1-20. CITY BLOCK MAP

Sections:

Sec. 1-20-1. City block map.

Sec. 1-20-1. City block map.

A. A comprehensive block map of the city prepared by H. G. Feree and Herbert T. Knapp, civil engineers, and identified by the signatures of Rowlett Paine, Mayor, Thos. H. Allen, Harry N. Howe, Horace Johnson and Charles R. Shannon, commissioners, is accepted as a map of the territory within the corporate limits of the city, as of January 1, 1926.

B. The office of planning and development is constituted and appointed the official custodian of the city block map, and a copy thereof shall at all times be kept open to the inspection of the public without charge. It shall be the duty of the office of planning and development to invite criticisms and suggestions of errors on the map as prepared from title examiners, abstract companies, real estate agents, owners of property, and others interested in having prepared a complete and accurate map of all territories within the corporate limits, and to correct errors when and if found, noting such corrections upon such map. All departments of the city shall furnish on request to the office of planning and development all available data which might aid the office of planning and development in the preparation of a comprehensive block map.

Sec. 1-16-2. Interfering with elections.

Sec. 1-16-1. Official voting machine.

The Shoup Voting Machine is adopted as the official voting machine of the city and the same may be used at any and all elections held in the city or any part thereof, for voting, registering and counting votes cast at such elections.
(Code 1967, § 15-2; Code 1985, § 13-2)

Sec. 1-16-2. Interfering with elections.

It is unlawful for any person to interrupt any election pending under any law of this state or of the United States; or to make any disturbance for the purpose of interrupting such election; or to attempt to invalidate or prevent such an election by breaking up or removing or seizing upon the ballot box; or to prevent or deter any voters, by any means, from voting; or to change or destroy any ballot put in the ballot box.
(Code 1967, § 15-3; Code 1985, § 13-3)

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B. The office of planning and development is constituted and appointed the official custodian of the city block map, and a copy thereof shall at all times be kept open to the inspection of the public without charge. It shall be the duty of the office of planning and development to invite criticisms and suggestions of errors on the map as prepared from title examiners, abstract companies, real estate agents, owners of property, and others interested in having prepared a complete and accurate map of all territories within the corporate limits, and to correct errors when and if found, noting such corrections upon such map. All departments of the city shall furnish on request to the office of planning and development all available data which might aid the office of planning and development in the preparation of a comprehensive block map.

C. It is made the duty of the office of planning and development to study the city block map, to compare the same with all other available data recorded in the office of the county register, on file with any department of the city, or available from other sources, with the purpose of finding, noting and correcting any errors on such map. It shall likewise be the duty of the office of planning and development to bring such map up to date by noting thereon all subdivisions or resubdivisions of land within the corporate limits of the city, and by causing a block and lot number to be assigned to any lands not shown on such map, and all lands coming into the corporate limits after January 1, 1926.

D. The office of planning and development is authorized to make all rules and regulations and formulate all plans for the completion of the city blocks map not inconsistent with the provisions of this section, and shall supervise the expenditure of and expend such sums in the collection of data and the preparation of such map as may be allocated to such purpose, from year to year, by the city council.
(Code 1967, § 28-1; Code 1985, § 26-1)

CHAPTER 1-24. GENERAL PENALTY

Sections:

Sec. 1-24-1. General penalty—Continuing violations.
Sec. 1-24-2. Workhouse generally.

Sec. 1-24-1. General penalty—Continuing violations.

A. Whenever in this Code or in any ordinance of the city any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or wherever in such code or ordinance the doing of any act is required or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefor, the violation of any such provision of this Code or any such ordinance shall be punished by a fine of not more than $50.00 for each separate violation; provided, however, that the infliction of a fine under the provisions of this Code or of any ordinance of the city shall not prevent the revocation of any permit or license for violation of any provisions hereof where called for or permitted under the provisions of this Code or of any ordinance. The city

judges shall fix the amount of any fine to be levied under the provisions hereof as his or her discretion may dictate. Each day that any violation of this Code or of any ordinance continues shall constitute a separate offense.

B. Where any act of the General Assembly of the state provides for a greater minimum penalty than $1.00, the minimum fine or penalty prescribed by the state law shall prevail and be assessed by the city judges.

C. 1. In addition to the provisions of subsections A and B of this section, and any court costs established by any city ordinance or state statute, the city is authorized to create and collect penalties, pursuant to T.C.A. § 6-54-306, and in conformance therewith, to set a schedule specifying code section violation and penalty amount, and instituting a general penalty fund from which moneys may be disbursed.

2. The city comptroller shall be authorized to disburse allocations from the general penalty fund budget annually as approved by the council for implementing and maintaining programs as may be instituted for correction of ordinance violation. Each day constituting a separate offense and fine as set out in subsection A of this section, shall also be constituted as a corresponding separate penalty.

3. Penalties may be waived at the discretion of the judge; however, unless waived, penalties shall be assessed in the amount set out below:

4. Court fees for violation of the face coverings/mask ordinance by individuals shall not exceed $20.00 per violation, which may be waived upon completion of the community service requirement.

Each code section violation for which a fine has been imposed shall automatically carry a penalty of up to $200.00, except the following designated sections shall carry a minimum penalty of $200.00:

Ch. 7-4	Alcoholic Beverages
Ch. 9-28	Day Care Centers
Chs. 2-24, 9-36, 9-40, 9-44 and 9-84	Fire Prevention and Protection
Ch. 9-56	Garbage, Trash and Refuse
Chs. 2-46, 2-86, 6-16, 9-4—9-12, 9-20, 9-52, 9-60, 9-64, 9-72—9-80, 9-92—9-100	Health and Sanitation
Ch. 6-48	Massage Parlors, Bathhouses and Similar Business Establishments
Chs. 6-4, 6-20 and 6-52	Public Amusements
T. 13	Sewers and Sewage Disposal

(Code 1967, § 1-8; Code 1985, § 1-8; Ord. No. 4116, § 1, 7-7-1992; Ord. No. 5751, § 6.07, 6-16-2020)

Editor's note—Ord. No. 5751, § 6.07 adopted June 16, 2020, has been codified as herein set out in section 1-24-1(C)(4), at the discretion of the editor. Said provisions have been included in this Code with the addition of Ch. 9-104, face covering/mask requirements, as referenced in section 9-104-6(G).

Charter reference—Authority to impose fines not exceeding $50.00 for violations of ordinances, § 355.

State law reference—Authorized penalties for ordinance violations, T.C.A. § 6-54-306.

Sec. 1-24-2. Workhouse generally.

There may be a workhouse established at some point within the limits of the city, whose inmates shall be under the control of a keeper, who shall be responsible for the safe keeping of all convicts, or the city may contract with the county for the care, keep, working and guarding of city prisoners, in which event the county workhouse is designated the city workhouse to which prisoners may be committed by the city court.

(Code 1967, § 1-9; Code 1985, § 1-9)

Charter references—Authority to establish workhouses, § 381; contract with county relative to prisoners, § 382 et seq.

Title 2

ADMINISTRATION

Chapters:

2-2. City Council
2-4. City Officers Generally
2-6. Mayor
2-8. City Attorney
2-10. Code of Ethics for City Officials
2-11. Charter Commission
2-12. City Court
2-14. Library System
2-16. City Real Property Management
2-18. City Personal Property Management
2-20. Memphis Light, Gas and Water Division
2-22. Division of Engineering
2-24. Division of Fire Services
2-26. Division of Park Services
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2-30. Special Police Officers
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2-66. Memphis Convention Center Commission
2-68. Arts and Science Commission
2-70. City Beautiful Commission
2-72. Memphis Youth Guidance Commission
2-74. Aging Commission of the Mid-South
2-76. Memphis Casino Gambling Commission
2-78. Port Commission
2-80. Miscellaneous Administrative Provisions
2-82. Alcohol Commission
2-84. Center City Commission
2-86. Alcohol and Drug Abuse Commission

2-88. Traffic Advisory Commission
2-89. Advisory Council for Citizens with Disabilities
2-90. Minority Business Development and Oversight Commission
2-91. Use of Fiscal Agent for Early Childhood and Pre-Kindergarten Education Funding
2-95. Community Initiated Public Arts Program

CHAPTER 2-2. CITY COUNCIL*

Sections:

Sec. 2-2-1. Place for meetings of city council.
Sec. 2-2-2. Council meeting dates; time.
Sec. 2-2-3. Council staff positions.

Sec. 2-2-1. Place for meetings of city council.

All regular and special-called sessions of the city council shall be held in the council chamber of the city hall, unless such room is unavailable, in which event another meeting place shall be designated by resolution of the city council.

(Code 1967, § 2-2; Code 1985, § 2-16)

Charter reference—Meetings of city council, § 43.

Sec. 2-2-2. Council meeting dates; time.

The Memphis City Council will conduct its regular meetings on the following Tuesdays of each month at 4:00 pm in the Memphis City Council Chamber:

2026 Meeting Dates

January 13	January 27
February 3	February 24
March 3	March 24
April 14	April 28
May 12	May 26
June 9	June 23
July 7	July 21
August 4	August 18
September 1	September 15
October 6	October 20
November 10	November 24
December 8	December 22

(Code 1985, § 2-17; Ord. No. 4301, 1-17-1995; Ord. No. 5288, 1-14-2009; Ord. No. 5489, 1-8-2013; Ord. No. 5636, 1-3-2017; Ord. No. 5672, 12-19-2017; Ord. No. 5719, 12-18-2018; Ord. No. 5812, 12-21-2021; Ord. No. 5820, 4-5-2022; Ord. No. 5859, 4-11-2023; Ord. No. 5891, 12-19-2023; Ord. No. 5896, 2-20-2024; Ord. No. 5921, 12-17-2024; Ord. No. 5932, 2-18-2025; Ord. No. 5965, 12-16-2025)

***State law reference—**Public meetings, T.C.A. § 8-44-101 et seq.

Sec. 2-2-3. Council staff positions.

The Memphis City Council does hereby ordain that the council alone shall create, appoint and regulate its own staff as herein after set forth and as it determines from time to time:

A. The classifications of the council's staff shall be as follows: council attorney, council administrator, assistant council administrator, chief security officer, legislative analysts and executive assistants and other positions and classifications as determined necessary by the council chairman.

B. The chairman shall be in charge of employment, with notification to council members of temporary or permanent job openings.

C. The chairman of the council shall have the authority to appoint a person to any vacant staff position. However, should any council member object to the person appointed by the chair, said appointment shall require a majority vote by the council.

D. The chairman of the council shall have the authority to determine the compensation of the council's staff from time to time, which shall be included in the council's annual budget approved by the council.

E. For the sake of efficient administration the council's payroll shall be administered by the division of human resources as the chairman shall direct and all city council employees shall receive same benefits afforded city employees under the mayor's jurisdiction, including but not limited to health insurance, life insurance, holiday pay, vacation, pension or related retirement package.

(Ord. No. 5219, § 1, 10-16-2007; Ord. No. 5670, § 1, 12-5-2017)

CHAPTER 2-4. CITY OFFICERS GENERALLY

Sections:

Sec. 2-4-1. Bonds—Required; conditions and amount.
Sec. 2-4-2. Bonds—Approval and filing.
Sec. 2-4-3. Oath of office.
Sec. 2-4-4. Duty to attend council meetings.
Sec. 2-4-5. Leaves of absence.
Sec. 2-4-6. Money to be paid to treasurer daily.
Sec. 2-4-7. Suspension or removal generally.
Sec. 2-4-8. Contracting unauthorized accounts.
Sec. 2-4-9. Delivery of city property to successors.
Sec. 2-4-10. Inspection of books and papers.
Sec. 2-4-11. Unauthorized use of city property.
Sec. 2-4-12. Conflict of interest of officers and employees.

Sec. 2-4-1. Bonds—Required; conditions and amount.

The officers of the city shall, unless otherwise specifically provided in the Charter, execute bonds with a surety company qualified under the laws of the state to execute bonds, as surety, for the faithful performance of their respective duties. If any officer handles any money belonging to the city, his or her bond shall, in addition to the foregoing condition, be conditioned that he or she will faithfully and punctually pay over and account for all money coming into his or her hands as such officer. The penalties of the official bonds shall be in such amounts as fixed by the city council.
(Code 1967, § 2-20; Code 1985, § 2-31)

Charter references—Bonds of officers and employees generally, § 178; authority of city council to fix bonds of officers and employees, § 834.

Sec. 2-4-2. Bonds—Approval and filing.

All bonds of city officers shall, before being accepted, be approved by the mayor, comptroller and city attorney. They shall be duly executed and approved before such officers enter upon the discharge of their duties. Each such bond shall be filed with the comptroller and preserved by him or her.
(Code 1967, § 2-21; Code 1985, § 2-32)

Charter reference—Approval of bonds by city attorney and comptroller, § 328.

Sec. 2-4-3. Oath of office.

Before entering upon the performance of his or her duties, every officer of the city shall subscribe the following oath, which shall be filed with the comptroller and preserved by him or her:

"I do solemnly swear that I will support the Constitution of the United States, the Constitution of the State of Tennessee, the laws and ordinances of this city, and that I will faithfully demean myself while in office. So help me God."

(Code 1967, § 2-22; Code 1985, § 2-33)

Charter reference—Oath of mayor and commissioners, §§ 38, 41.

Sec. 2-4-4. Duty to attend council meetings.

All officers of the city shall attend such meetings of the city council as they are directed to attend by the mayor or director in charge of their office.
(Code 1967, § 2-23; Code 1985, § 2-34)

Sec. 2-4-5. Leaves of absence.

Any officer of the city desiring to be temporarily absent shall apply to the mayor for leave of absence, which may, in the discretion of the mayor, be granted, in writing, for any time not exceeding 30 days. Any officer being absent without written permission of the mayor shall thereby vacate his or her office, which shall be filled as in case of any other vacancy.
(Code 1967, § 2-24; Code 1985, § 2-35)

Sec. 2-4-6. Money to be paid to treasurer daily.

Every officer or agent of the city, who receives any money of the city, shall, at the close of each business day, unless otherwise ordered, pay over to the city treasurer all such money so received by him or her.
(Code 1967, § 2-25; Code 1985, § 2-36)

State law reference—Handling of public funds, T.C.A. § 6-56-111.

Sec. 2-4-7. Suspension or removal generally.

A. Any officer of the city violating any of his or her official obligations or being charged with culpable negligence or dereliction of duty, or with conduct inconsistent with his or her official character and duty, or with official incompetency, shall be suspended from office by the mayor, who shall appoint a person to fill the office for the time being, and report the charges at the next regular meeting, with his or her action, to the city council.

B. Every officer who shall refuse or willfully fail to perform the duties imposed upon him or her by law or ordinance, or who shall, in his or her official acts, be guilty of any fraud, extortion, oppression, favoritism, or

willful injustice, or for any satisfactory cause, shall be removed from office. The method of removal shall be by a majority vote of the city council.
(Code 1967, § 2-26; Code 1985, § 2-37)

Charter reference—Suspension or removal of officers, §§ 181, 182, 185.

Sec. 2-4-8. Contracting unauthorized accounts.

Any officer or agent of the city who shall contract any account against the city otherwise than in pursuance of law shall be subject to removal from office, and the amount shall be charged up to his or her account and deducted from his or her salary or wages.
(Code 1967, § 2-27; Code 1985, § 2-38)

Sec. 2-4-9. Delivery of city property to successors.

Every officer or agent of the city, on going out of office, shall deliver over to his or her successor or to the mayor, all books, papers, accounts, tools, instruments and everything pertaining to his or her office, and be entitled to a receipt therefor, if required.
(Code 1967, § 2-29; Code 1985, § 2-39)

Sec. 2-4-10. Inspection of books and papers.

Every officer or agent of the city shall, at all times, when requested, submit his or her books and official papers to the inspection of the mayor or any member of the city council, or to any person or committee appointed or authorized by the council to examine the same.
(Code 1967, § 2-30; Code 1985, § 2-40)

Sec. 2-4-11. Unauthorized use of city property.

No officer shall loan out or use on his or her own account, on any pretext, any money of the city in his or her hands, or, on any pretext, pledge or loan any of the property, notes, bonds or other securities of the city, except as ordered by the mayor and council, and the doing of any of these things is declared sufficient cause of removal.
(Code 1967, § 2-28; Code 1985, § 2-41)

Sec. 2-4-12. Conflict of interest of officers and employees.

A. No elected or appointed official of the city, nor any person appointed to any board or commission, nor employee of the city, shall make, participate in making, or use his or her official position, to influence a city government decision in which he or she knows or has reason to know he or she has any financial interest. No member of the city council shall for a fee or other valuable consideration represent or make application for any person other than himself or herself before the city council, or any other fact-finding or quasi-judicial tribunal, board or commission, whose members are appointed

or approved in whole or in part by the council, or any elected or appointed official over whose budget the council has approval authority on any matter, nor shall any member participate in any vote or discussion on a matter in which such member has a financial interest; nor shall any such councilmember engage in discussion with any member of the particular board or commission or its staff relative to such proposed matter prior to final disposition thereof; provided, however, that, if a councilmember is the sole owner of property involved in any such matter, he or she shall not be precluded from communicating to the appropriate staff such information as is usually and reasonably required of a property owner in such a matter; provided, further, that, the prohibition or prohibitions herein as to representation or application shall apply only to the prohibited person and not to any partner or associate of any partnership, association or corporation of which the prohibited person is a member, officer, director or shareholder so long as the prohibited person does not receive a part of the fee or valuable consideration, and so long as the prohibited person recuses himself or herself from discussion and vote.

B. No member of the city council, elected or appointed official, or employee of the city shall present or allow to be presented any matter involving property in which such person has an ownership interest before the city council or any fact-finding or quasi-judicial tribunal or board or commission, whose members are appointed or approved in whole or in part by this council without first publicly declaring that he or she has an ownership interest on the face of the written application or petition concerning such property or by a separate written statement if no written application or petition is required, and such person shall abstain from voting on or discussion of any subject matter in which he or she has such an ownership interest.

C. No member of the Memphis and Shelby County Land Use Control Board or the Memphis and Shelby County Board of Adjustment shall directly make application for rezoning or for exceptions to or variations from zoning requirements for any person other than himself or herself before such board. Nor shall any member participate in any vote or discussion on a matter in which such member has a financial interest; nor shall any member engage in discussion with any member of the staff of the commission or board of which he or she is a member relative to such proposed matter prior to final disposition thereof; provided, however, that, if such board or commission member is the sole owner of property involved in any such matter, he or she shall not be precluded from communicating to the appropriate staff such information as is usually and reasonably required of a property owner in such a matter.

D. Willful and knowing violation by an elected official shall constitute official misconduct and violation by an appointed official or employee shall be grounds for removal or discharge; provided, however, that, no action shall be taken for removal or discharge or as official misconduct, except in accordance with provisions of the ordinances relating to civil service or with provisions of the Charter of the city providing for suspension and appeal and trial of such suspension before the city council; the accused being entitled to be furnished written charges and specifications as to the offenses charged, and with the right to be defended by counsel, cross-examining the accuser, and his or her witnesses, and to present evidence on his or her own behalf. Violation of any of the provisions of this section by any elected or appointed city official, any person appointed to any board or commission, or employee of the city, shall constitute official misconduct and shall be further punishable as a misdemeanor, and, upon conviction thereof, such person shall be subject to punishment as provided in section 1-24-1 for each day which passes from the date a violation occurs until disclosure thereof is made by the offending party. Each day shall be considered a separate offense; provided that, the fines for any one offense shall not exceed $1,000.00.

E. The city attorney and/or the comptroller shall annually bring to the attention of all elected or appointed officials of the city and members of all boards and commissions the contents of this section and shall emphasize the highlights thereof. The city attorney shall draw up a list of hypothetical conflicts, which list shall serve as examples only and in no way be inclusive of all possible conflict situations.

(Code 1967, § 2-31; Code 1985, § 2-42; Ord. No. 2168, §§ 2—4, 11-12-1974; Ord. No. 2866, §§ 1—3, 5-8-1979)

State law reference—Disclosure statements of conflicts of interests, T.C.A. § 8-50-501 et seq.

CHAPTER 2-6. MAYOR*

Sections:

Sec. 2-6-1. General powers and duties.

***Charter reference—**Mayor generally, §§ 16—40.

Sec. 2-6-2. Authority to sign petition for improvements where city owns abutting property.
Sec. 2-6-3. Inspections of books and records.
Sec. 2-6-4. Inspection of public works.
Sec. 2-6-5. Reports and recommendations as to public institutions.
Sec. 2-6-6. Notice to city attorney of legal proceedings.
Sec. 2-6-7. Authority to offer rewards; manner of determining validity of claims.

Sec. 2-6-1. General powers and duties.

The mayor shall make all contracts authorized by the city council, unless otherwise ordered, and shall supervise their execution. He or she shall make known to the city council the wants and necessities of the city, from time to time, recommending such action and the adoption of such measures as the welfare of the city may demand. He or she shall supervise all the officers of the city, and shall see that all laws and ordinances are enforced.
(Code 1967, § 2-41; Code 1985, § 2-56)

Sec. 2-6-2. Authority to sign petition for improvements where city owns abutting property.

The mayor is authorized, when in his or her judgment it may appear proper, to sign on behalf of the city any petition for the improvement of any street, where title to abutting property is in the city and where the improvement is to be made at the expense, total or partial, of the abutting property.
(Code 1967, § 2-44; Code 1985, § 2-57)

Sec. 2-6-3. Inspections of books and records.

The mayor shall have power to inspect such of the books, papers and records of the offices of the city as may, in his or her opinion, be necessary to enable him or her to discharge the duties imposed upon him or her, and may call upon all officers of the city to furnish him or her, in writing, with any information connected with their respective offices.
(Code 1967, § 2-45; Code 1985, § 2-58)

Sec. 2-6-4. Inspection of public works.

The mayor shall have full power, and it is made his or her duty, to inspect all the works going on, from time to time, at the expense of the city, whether of building, paving, sinking or cleaning drains, opening or widening streets, or of any nature whatever.
(Code 1967, § 2-46; Code 1985, § 2-59)

Sec. 2-6-5. Reports and recommendations as to public institutions.

It shall be the duty of the mayor, from time to time, to make reports to the city council touching the condition of the public institutions of the city, and to recommend measures for their improvement.
(Code 1967, § 2-47; Code 1985, § 2-60)

Sec. 2-6-6. Notice to city attorney of legal proceedings.

When any process or notice is served on the mayor in any legal proceeding against the city, or in which the city is a party, he or she shall immediately deliver the same, or a sufficient notice thereof, to the city attorney.
(Code 1967, § 2-48; Code 1985, § 2-61)

Sec. 2-6-7. Authority to offer rewards; manner of determining validity of claims.

Whenever the mayor is of the opinion that the public good requires it, he or she is authorized to offer, by proclamation or in such other manner as he or she may, in his or her discretion, deem advisable upon recommendation of the director of police and approval of the city council, such reward as he or she may think the nature of the case requires, not exceeding $5,000.00 for information resulting in the apprehension, arrest and final conviction of any person, or persons, known or unknown, who has committed, within the municipality, any high and atrocious offense against the criminal laws of the state. No person shall be entitled to such reward unless the offender, or offenders, is apprehended within five years from the date of the proclamation, and before the prosecution of the offense is barred by lapse of time. In the event there is a disputed claim or there are two more persons who claim any interest in such reward, the mayor may, in his or her discretion, determine the respective proportionate interest, if any, of such claimant, or claimants, or the mayor may pay into the chancery court of Shelby County, Tennessee, such reward, which court shall then determine such claims and, upon payment by the mayor into the chancery court, the city shall have discharged its entire obligation to all claimants whomsoever, whether they be known or unknown. The comptroller of the city is authorized to make such payments as the mayor may direct in accordance with the terms hereof.
(Code 1967, § 2-49; Code 1985, § 2-62; Ord. No. 2040, 5-16-1967)

CHAPTER 2-8. CITY ATTORNEY*

Sections:

Sec. 2-8-1. Qualifications.
Sec. 2-8-2. Duty to advise officers; written opinions.
Sec. 2-8-3. Duty to prosecute or defend suits.
Sec. 2-8-4. Drafting of deeds and contracts.
Sec. 2-8-5. Drafting of ordinances.
Sec. 2-8-6. Attendance at council or committee meetings.
Sec. 2-8-7. Claim agent in attorney's office.
Sec. 2-8-8. Extraordinary litigation.

Sec. 2-8-1. Qualifications.

The city attorney shall be a licensed lawyer, and shall have resided in the city for at least two years next preceding his or her appointment.
(Code 1967, § 2-59; Code 1985, § 2-71)

Sec. 2-8-2. Duty to advise officers; written opinions.

The city attorney shall advise the officers of the city with reference to all official acts, on request. He or she shall give written opinions, when required so to do by the mayor or city council, or by either of them.
(Code 1967, § 2-60; Code 1985, § 2-72)

Sec. 2-8-3. Duty to prosecute or defend suits.

The city attorney shall prosecute or defend, as the case may require, all suits to which the city may be a party or in which the city may be interested.
(Code 1967, § 2-61; Code 1985, § 2-73)

Sec. 2-8-4. Drafting of deeds and contracts.

The city attorney shall draft deeds, contracts and other instruments of writing wherein the city may be interested, when required to do so by the mayor.
(Code 1967, § 2-62; Code 1985, § 2-74)

Sec. 2-8-5. Drafting of ordinances.

The city attorney shall draw up any ordinance that he or she may be called upon to draw by the mayor.
(Code 1967, § 2-63; Code 1985, § 2-75)

***Charter reference—**City attorney, §§ 191—195.

Sec. 2-8-6. Attendance at council or committee meetings.

The city attorney shall personally attend any meeting of the city council, or committees appointed by the same, when so required.
(Code 1967, § 2-64; Code 1985, § 2-76)

Sec. 2-8-7. Claim agent in attorney's office.

The city claim agent shall be appointed by the city attorney. He or she shall be attached to the city attorney's office and shall hold office at the will and pleasure of the city attorney. He or she shall investigate all claims for damages against the city; shall attend to the settlement of such claims under the direction of the city attorney; shall keep a docket of all lawsuits pending in which the city is a party; and assist in the preparation of such cases for trial; and shall perform such other duties as the city attorney may from time to time direct.
(Code 1967, § 2-67; Code 1985, § 2-77)

Charter reference—Similar provisions, § 239.

Sec. 2-8-8. Extraordinary litigation.

A. Council approval shall be required before any special attorney is employed by the city to file suit regarding any extraordinary litigation as hereinafter defined.

B. The term "extraordinary litigation" means, for the purposes of this section, any litigation other than litigation pursued by the city in the ordinary course of its usual and customary business affairs and said definition shall exclude any suit filed by the city:

1. To enforce its contractual rights;
2. To enforce any ordinance or resolution of the city;
3. To enforce any state law;
4. To collect any debt or taxes dues and owing to the city or any of its enterprise funds;
5. To appeal any civil service decision;
6. To assert any counter-claim, cross-claim or third party claim permitted by the Tennessee Rules of Civil Procedure;
7. To enforce any franchise agreement or contract to which the city is a party; or
8. Similar to any of the foregoing.

(Ord. No. 5294, § 1, 2-17-2009)

CHAPTER 2-10. CODE OF ETHICS FOR CITY OFFICIALS*

Sections:

Sec. 2-10-1. Applicability.
Sec. 2-10-2. Definition of "personal interest."
Sec. 2-10-3. Disclosure of personal interest by officer with vote.
Sec. 2-10-4. Disclosure of personal interest in nonvoting matters.
Sec. 2-10-5. Acceptance of gratuities, etc.
Sec. 2-10-6. Use of information.
Sec. 2-10-7. Use of city time, facilities, etc.
Sec. 2-10-8. Use of position or authority.
Sec. 2-10-9. Outside employment.
Sec. 2-10-10. Board of ethics.
Sec. 2-10-11. Chief ethics officer.
Sec. 2-10-12. Recusal of members of the board of ethics and chief ethics officer.
Sec. 2-10-13. Penalties for violation of code of ethics.
Sec. 2-10-14. Transition and effective date.

Sec. 2-10-1. Applicability.†

This chapter is the code of ethics for personnel of the city. It applies to all full-time and part-time elected or appointed officers and employees, whether compensated or not, including those of any separate board, commission, committee, authority, corporation, or other instrumentality appointed or created by the city. The term "city" includes these separate entities.
(Ord. No. 5206, § 1, 7-1-2007)

***State law reference—**Ethical standards for public officers and employees, T.C.A. § 8-17-101 et seq.

†**Note—**State statutes dictate many of the ethics provisions that apply to municipal officials and employees. For provisions relative to the following, see the Tennessee Code Annotated (T.C.A.) sections indicated:

Campaign finance—T.C.A. title 2, chapter 10.

Conflict of interests—T.C.A. §§ 6-54-107, 6-54-108; 12-4-101, 12-4-102.

Conflict of interests disclosure statements—T.C.A. § 8-50-501 et seq.

Consulting fee prohibition for elected municipal officials—T.C.A. §§ 2-10-122, 2-10-124.

Crimes involving public officials (bribery, soliciting unlawful compensation, buying and selling in regard to office)—T.C.A. § 39-16-101 et seq.

Crimes of official misconduct, official oppression, misuse of official information—T.C.A. § 39-16-401 et seq.

Ouster law—T.C.A. § 8-47-101 et seq.

Sec. 2-10-2. Definition of "personal interest."

A. For purposes of sections 2-10-3 and 2-10-4, "personal interest" means:

1. Any financial, ownership, or employment interest in the subject of a vote by a board or commission of the city not otherwise regulated by state statutes on conflicts of interests; or

2. Any financial, ownership, or employment interest in a matter to be regulated or supervised; or

3. Any such financial, ownership, or employment interest of the officer's or employee's spouse, parent(s), stepparent(s), grandparent(s), sibling(s), child(ren), or stepchild(ren).

B. The words "employment interest" include a situation in which an officer or employee or a designated family member is negotiating possible employment with a person or organization that is the subject of the vote or that is to be regulated or supervised.

C. In any situation in which a personal interest is also a conflict of interest under state law, the provisions of the state law take precedence over the provisions of this chapter.
(Ord. No. 5206, § 2, 7-1-2007)

Sec. 2-10-3. Disclosure of personal interest by officer with vote.

An officer with the responsibility to vote on a measure shall disclose during the meeting at which the vote takes place, before the vote and so it appears in the minutes, any personal interest that affects or that would lead a reasonable person to infer that it affects the officer's vote on the measure. In addition, the officer may recuse himself from voting on the measure.
(Ord. No. 5206, § 3, 7-1-2007)

Sec. 2-10-4. Disclosure of personal interest in nonvoting matters.

An officer or employee who must exercise discretion relative to any matter, other than casting a vote, and who has a personal interest in the matter that affects or that would lead a reasonable person to infer that it affects the exercise of the discretion shall disclose, before the exercise of the discretion when possible, the interest on a form provided by and filed with the recorder. In addition,

the officer or employee may, to the extent allowed by law, charter, ordinance, or policy, recuse himself from the exercise of discretion in the matter.
(Ord. No. 5206, § 4, 7-1-2007)

Sec. 2-10-5. Acceptance of gratuities, etc.

A. An employee may not accept, directly or indirectly, any money, gift, gratuity, or other consideration or favor of any kind from anyone other than the city:

1. For the performance of an act, or refraining from performance of an act, that he would be expected to perform, or refrain from performing, in the regular course of his duties; or
2. That might reasonably be interpreted as an attempt to influence his action, or reward him for past action, in executing business of the city.

B. No council member shall solicit or accept, directly or indirectly, on behalf of himself or any member of the employee's household, any gift, including but not limited to any gratuity, service, favor, food, entertainment, lodging, transportation, loan, loan guarantee or any other thing of monetary value from any person or entity that:

1. Has or is seeking to obtain contractual or other business or financial relations with the city;
2. Conducts operations or activities that are regulated by the city; or
3. Has interests that may be substantially affected by the performance or nonperformance of the city council member's official duties.

C. Exceptions. The prohibition of accepting gifts does not apply to:

1. A gift given by a member of the employee's immediate family, or by an individual if the gift is given for a non-business purpose and is motivated by a close personal friendship.
2. Informational materials, such as books, periodicals, audio or video, or sample merchandise helpful as a part of the council member's duties in determining the appropriateness of the product for use as a part of city business.
3. Unsolicited tokens or awards of appreciation, honorary degrees or bona fide awards in recognition of public service, provided that any such item can not be readily converted to cash.
4. Food, refreshments, foodstuffs, entertainment or beverages provided as a part of a meal or other event in which the council member is attending or is a speaker or part of a panel discussion at a scheduled meeting of an established or recognized membership organization.
5. Loans from established financial institutions made in the ordinary course of business on usual and customary terms.
6. Voluntary, legally disclosed political campaign contributions given in accordance with applicable federal and state statutes to an individual covered by the provisions of this section who has announced his intention to seek elected office.

(Ord. No. 5206, § 5, 7-1-2007; Ord. No. 5344, 2-23-2010)

Sec. 2-10-6. Use of information.

A. An officer or employee may not disclose any information obtained in his officer capacity or position of employment that is made confidential under state or federal law except as authorized by law.

B. An officer or employee may not use or disclose information obtained in his officer capacity or position of employment with the intent to result in financial gain for himself or any other person or entity.
(Ord. No. 5206, § 6, 7-1-2007)

Sec. 2-10-7. Use of city time, facilities, etc.

A. An officer or employee may not use or authorize the use of the time, facilities, equipment, or supplies of the city for private gain or advantage to himself.

B. An officer or employee may not use or authorize the use of the time, facilities, equipment, or supplies of the city for private gain or advantage to any private person or entity, except as authorized by legitimate contract or lease that is determined by the governing body to be in the best interests of the city.
(Ord. No. 5206, § 7, 7-1-2007)

Sec. 2-10-8. Use of position or authority.

A. An officer or employee may not make or attempt to make private purchases, for cash or otherwise, in the name of the city.

B. An officer or employee may not use or attempt to use his position to secure any privilege or exemption for himself or others that is not authorized by the charter, general law, or ordinance or policy of the city.
(Ord. No. 4709, § 1, 10-12-1999; Ord. No. 5206, § 8, 7-1-2007)

Sec. 2-10-9. Outside employment.

An officer or employee may not accept or continue any outside employment if the work unreasonably inhibits the performance of any affirmative duty of the city position or conflicts with any provision of the city's charter or any ordinance or policy.
(Ord. No. 5206, § 9, 7-1-2007)

Sec. 2-10-10. Board of ethics.

A. *Creation, organization, and membership.*

1. There is created the board of ethics of the city. The ethics board shall consist of eight members, seven of whom shall be selected as now provided with one member from each council district; these members shall each have a vote. The eighth member shall be a retired judge, who shall not have a vote, but who shall be the chairman and presiding officer. The members of the board of ethics shall have resided in the City of Memphis for five years and be selected from each of the seven city council districts of Memphis, with one member being selected from each district. Each member shall be a resident of the district he or she represents.

2. The members of the board of ethics shall be appointed by the mayor of the city, from a slate of candidates proposed by the city council member who represents the district from which the board member is to be selected, and approved by the city council, provided that a city council member may decline to provide a slate of candidates, in which case the mayor may appoint a member of the board of ethics in his or her discretion, with approval of the city council.

3. Any vacancy due to any cause shall be filled for the unexpired term in the same manner as the original appointment. A vacancy shall be deemed to exist upon the occurrence of any one or more of the following conditions:

   a. Upon the expiration of a term;

   b. Upon the death or disability or incapacity for more than 90 days of a member;

   c. Upon the written resignation of a member, when accepted by the nominating committee. A resignation tendered but unaccepted for more than 30 days shall be deemed accepted;

   d. Upon a member's candidacy for, election to, or appointment to public office.

4. Members shall serve without compensation.

5. Members shall not:

   a. Engage or participate in city election political activities;

   b. Make campaign contributions to candidates in city elections during their terms as board members;

   c. Hold elective office of the state or the city;

   d. Be an employee of the city;

   e. Be an officer of any political party;

   f. Lobby or employ a lobbyist; or

   g. Be employed by any elected officer in the state.

6. Members shall serve terms of six years; provided, however, that the initial terms of the members shall be staggered as follows:

   a. The initial term of members of the board of ethics representing Districts 1, 4, and 7 shall be two years.

   b. The initial term of members of the board of ethics representing Districts 2 and 5 shall be four years.

   c. The initial term of members of the board of ethics representing Districts 3 and 6 shall be six years.

7. Chairperson.

   a. The retired judge shall be nominated by the chairperson of the city council and approved by a majority vote of the membership of the council. The retired judge shall be elected to a term of six years and shall serve until his successor has been nominated and approved. The retired judge may reside in any council district.

b. The retired judge may be compensated for service as chairperson and presiding officer of the ethics board at an amount to be determined by the city council.

8. The board of ethics may, in its sole discretion, but subject to the limitations of its budget, hire legal counsel.

9. The board of ethics shall hold a regularly scheduled meeting once per month, and may hold special meetings when the board determines the need for such meetings.

B. *Duties of the board of ethics.* The board of ethics shall have the following duties and responsibilities:

1. To establish and publish the procedures and rules governing its internal organization and the conduct of its affairs;

2. To conduct or oversee investigations and to make recommendations about conduct as provided herein;

3. To maintain records of its investigations, inquiries, and proceedings, and to make such records available for public access on the board of ethics website;

4. To issue formal ethics opinions as provided in subsection C of this section;

5. To supervise training of all officers and employees concerning their duties and obligations under this chapter;

6. From time to time, to produce such reports as it may deem appropriate from the disclosures made under sections 2-10-3 and 2-10-4;

7. On an annual basis, provide a report of its expenditures to the audit committee of the city council; and

8. To perform such other duties as herein provided.

C. *Ethics opinions.*

1. Upon request by a city officer or employee, the board of ethics may issue formal ethics opinions that shall bind the board of ethics and the person requesting the opinion, and shall constitute a body of principles upon which officers, employees, and others may rely for guidance in specific situations.

2. Requests for formal ethics opinions shall be addressed to the board of ethics in writing, stating the factual situation in appropriate detail, and may be accompanied by a short brief or memorandum citing the provisions of this chapter involved and any other pertinent authorities.

3. The chief ethics officer may issue advisory ethics opinions when there is readily available precedent. Any such opinions shall not bind the board of ethics.

4. Any officer or employee subject to this chapter may request a formal ethics opinion or an advisory ethics opinion; provided, however, that the board of ethics and the chief ethics officer, respectively, shall retain sole discretion concerning whether such an opinion should be issued.

5. The chief ethics officer shall place and publish formal ethics opinions and advisory ethics opinions, as well as any requests for them, on the board of ethics' website for public access. The chief ethics officer may annotate or otherwise organize the opinions and requests for opinions, so that they are easily searchable.

D. *Procedures for evaluations and hearing of complaints regarding conduct.*

1. Complaint procedures.

a. Any citizen of the city, including but not limited to the chief ethics officer or any member of the board of ethics, may submit a complaint in writing and under oath, alleging that one or more officers or employees have violated or may have violated any provision of this chapter within one month of the alleged violation.

b. The complaint must be signed by the complainant and notarized, and must contain the following:

(i) The complainant's legal name and current mailing address;

(ii) The name or names of any officers or employees who committed or may have committed the alleged violation;

(iii) A summary of the facts giving rise to the complaint; and

(iv) Some explanation of why those facts constitute or may constitute a violation of this chapter.

c. Anyone filing a false complaint will be subject to the penalty(s) for perjury.

d. The chief ethics officer, or his or her designee, may assist complainants in completing the form of a complaint.

e. The complaint must be filed with the chief ethics officer. Upon receipt, the chief ethics officer shall promptly provide a copy of the complaint to the officer or employee named therein and to the board of ethics. As used in this section, unless otherwise noted, the term "provide" means to send by U.S. mail or to hand deliver.

f. During years in which the city holds municipal elections, the chief ethics officer shall not accept any complaints during a period from the last day on which a person may qualify as a candidate until after 11:59 p.m. of the following election day. If a special election is called, the chief ethics officer shall not accept any complaints relating to the office subject to the special election during a period from the last day on which a person may qualify as a candidate for the special election until after 11:59 p.m. of the date of the special election.

g. The chief ethics officer will evaluate the complaint, applying the law of the standards of conduct to the facts alleged in the complaint.

h. Within 14 days from receipt of the complaint, the chief ethics officer shall:

(i) Issue a report including a copy of the complaint, concluding whether the facts alleged in the complaint, if true, would give rise to a violation of the code of ethics, and recommending that a hearing be held on the complaint; or

(ii) Dismiss the complaint, subject to the approval of the board of ethics.

i. The city ethics officer shall promptly provide a report or a dismissal of complaint to the chair of the board of ethics.

j. If the chief ethics officer dismisses a complaint, the board of ethics shall at its next meeting vote on whether to approve the dismissal. If the board of ethics, by a majority vote, approves the chief ethics officer's dismissal of the complaint, then the complaining party may, within 30 calendar days, request in writing that the board reconsider its decision. If the board of ethics fails to approve the chief ethics officer's dismissal, or if the board of ethics, by a majority vote, agrees to reconsider a complaint, then the chief ethics officer shall issue a report on the facts and circumstances of the complaint.

k. After receiving the chief ethics officer's report, the chair of the board of ethics shall call a public meeting of the board, including appropriate notice to the public. The chief ethics officer shall also provide notice of the meeting to the complainant and to the officer or employee named in the complaint.

l. At the board of ethics meeting, the board shall evaluate the chief ethics officer's report, and may accept or reject the chief ethics officer's recommendation. The board may decide to dismiss the complaint or call for a hearing on the complaint.

m. Whether or not the board of ethics holds a hearing on the complaint or dismisses the complaint, it shall issue a decision in writing. Any decision shall require the affirmative concurring vote of at least four members of the board. If a hearing is to be held, no final decision shall be made or issued until after the hearing is held. The decision shall be filed with the chief ethics officer, who shall promptly place all such decisions on the board of ethics' website for public access, and provided to the complainant and to the officer or employee named in the complaint.

n. From the time a complaint has been received by the members of the board of

ethics, until a written decision has been issued by the board, no member of the board shall participate in any communication regarding the allegations or merits of the complaint, outside of the board's public meetings or hearings, except as contemplated by these procedures.

o. If a complaint is filed against a member of the board of ethics, the city council will sit in designation as the board of ethics for any hearing contemplated by this chapter pursuant to the process outlined in article 27, section 185 of the Memphis City Charter.

2. Hearing procedures.

a. If the board of ethics calls for a hearing on a complaint, the hearing shall be conducted as follows:

(i) The hearing shall be noticed to and open to the public, in accordance with state law and these procedures.

(ii) Notice of hearing shall be provided to the complainant and to the person or persons named as respondents in the complaint. The hearing shall be held no less than 30 days after notice of hearing is provided to the respondent.

(iii) A hearing panel consisting of the chairperson and two members of the board of ethics selected at random shall hear the complaint.

(iv) The complaint shall be prosecuted in a hearing before the hearing panel by the chief ethics officer or, with the approval of the board of ethics, by counsel designated and hired for that purpose by the chief ethics officer.

(v) The complainant shall not be considered a party to any proceeding before the board of ethics, but to the extent possible, the complainant shall be kept apprised of the progress of the proceeding by the chief ethics officer.

(vi) The hearing need not be conducted in accordance with technical rules relating to evidence and witnesses, but the hearing shall be conducted in a manner most conducive to determination of the truth. Any relevant evidence may be admitted if it is the sort of evidence which responsible persons are accustomed to rely on in the conduct of serious affairs, regardless of the existence of common law or statutory rules which might make improper the admission of such evidence in civil actions. Either party may impeach any witness regardless of which party called the witness. No still or moving photography shall be allowed in the hearing room during the hearing. The hearing shall be recorded by court reporter or some other form of stenographic transcription or recording.

(vii) The respondent and the chief ethics officer may, but are not required to, submit material to the hearing panel. If either does wish to submit such material to the board, the party must file the material with the board of ethics, and provide a copy of the same to the other party and the board of ethics, at least seven calendar days prior to the hearing.

(viii) The parties shall have a full and fair opportunity to present their positions and facts to the hearing panel at the hearing. Each party has the right to the assistance of legal counsel at its own expense. Each party shall be allotted a reasonable amount of time to make its presentation to the hearing panel.

(ix) The parties may each call witnesses to give testimony at the hearing, which testimony shall be given under oath, with the witnesses stating their legal names. All witnesses will be subject to cross-examination. Each party must file with the hearing

panel a list of the witnesses that the party intends to call at the hearing, and provide a copy of the same to the other parties, at least seven calendar days prior to the hearing. At the hearing, no party shall be permitted to call upon any person to give testimony if that person's name was not included on such list; however, the hearing panel may permit such an unnamed witness to be called by a party if, in the panel's judgment, there was good cause for not timely naming the witness, and the other parties would not be unduly prejudiced.

(x) Should the hearing panel determine that justice requires that further witnesses be called, it may call witnesses to give testimony at the hearing, which testimony shall be given under oath, with the witnesses stating their legal names.

(xi) If any witness refuses to appear before the hearing panel, the board of ethics may request that the city council subpoena the witness to appear before the hearing panel. Any party may request that the board do so.

(xii) The members of the hearing panel may ask questions of any party, counsel, or witness at any time during the hearing.

(xiii) The hearing panel may, in the exercise of its discretion, permit interested persons present at the hearing to offer testimony under oath, even if those persons were not called as witnesses by any party.

(xiv) The hearing panel may continue a hearing to a later date.

(xv) All findings of fact by the hearing panel shall be rendered upon a showing of the preponderance of the evidence.

(xvi) Upon the conclusion of the hearing, the hearing panel shall deliberate toward a decision on the matter in public session, shall render written findings and conclusions of law in the matter, and shall arrive at a decision on such findings and conclusions by majority vote.

(xvii) All decisions of the board of ethics shall be placed and published within 30 days on the board of ethics' website for public access. The chief ethics officer may annotate or otherwise organize the decisions so that they are easily searchable.

3. If, after a hearing, a hearing panel of the board of ethics decides that an officer or employee violated any provision of the code of ethics, then the board may take one or more of the actions listed in section 2-10-13, as decided by affirmative concurring vote of at least two members of the hearing panel.

E. *Reporting; whistleblower protection; abuse of process; complicity.*

1. Officers and employees are encouraged to report suspected ethical violations to the board of ethics.

2. No officer or employee shall use or threaten to use any officer authority or influence to discourage, restrain or interfere with any other person for the purpose of preventing such person from acting in good faith to report or otherwise bring to the attention of the board of ethics information relating to an ethics violation or investigation.

3. No officer or employee shall use or threaten to use any officer authority or influence to effect any action to retaliate against any person who reports, initiates a complaint, or otherwise brings to the attention of the board of ethics information relating to a board investigation or an ethics violation.

4. No officer or employee shall file a complaint with the board of ethics absent a good-faith basis for their allegations.

5. An officer or employee shall not falsely accuse another officer or employee of failing to comply with this chapter.

6. No officer or employee may knowingly induce, encourage, or aid anyone to violate any provision of this chapter.

7. Any violation of this subsection shall be subject to investigation and action by the board of ethics.

F. *Accessibility.* Because the purpose of the board of ethics can only be fulfilled if it furthers the goal of accountability, responsibility, and transparency in the ethical conduct of municipal government, the board of ethics shall operate, to the greatest extent possible, in a manner that is open and accessible to the public. Thus, the board of ethics shall establish and maintain policies and procedures, including an internet website that is searchable to the greatest extent possible, that will promote the widest possible dissemination of information about its activities and operations, including any hearings, decisions, and opinions of the board of ethics and the chief ethics officer. Further, the city acknowledges and affirms that the board of ethics is, in all respects, subject to the access requirements of the Tennessee Public Records Act, T.C.A. § 10-7-503, and the Tennessee Open Meetings Act, T.C.A. § 8-44-101 et seq.

G. *Hearings may be closed.* The hearing shall be closed upon the request of the officer who is prosecuting an indictment or in the discretion of the board when to do otherwise would jeopardize the proceedings on an indictment in a court of law.
(Ord. No. 5206, § 10, 7-1-2007; Ord. No. 5327, §§ 1, 2, 9-15-2009; Ord. No. 5343, 1-26-2010)

Sec. 2-10-11. Chief ethics officer.

A. There is created the office of the chief ethics officer.

B. The board of ethics shall appoint, in its sole discretion, a chief ethics officer, who serves a term of six years or until such time as:

1. He or she resigns;

2. He or she dies; or

3. The board of ethics, in its discretion, by a majority vote, determines to remove him or her.

C. The chief ethics officer shall be a member of the Tennessee bar, in good standing, who has practiced law not fewer than ten years.

D. The chief ethics officer shall not be a member of the board of ethics.

E. The duties of the chief ethics officer. The chief ethics officer shall:

1. Maintain the board of ethics' records and minutes;

2. Act as secretary to the board of ethics;

3. Manage the administrative functions of the board of ethics, maintaining, including the supervision of any other staff;

4. Maintain the board of ethics website;

5. Receive and provide copies to the board of ethics of all filings required by this code of ethics;

6. Provide advisory ethics opinions to the board of ethics, as well to others who may request them;

7. Provide, or otherwise arrange for, and supervise training of all officers and employees concerning their duties and obligations under this code of ethics;

8. Provide periodic reports to the city council of the actions of the board of ethics; and

9. Perform other duties delineated in this code of ethics.

10. The chief ethics officer shall process and forward a complaint concerning a violation by a City of Memphis employee to the mayor for disposition under the civil services provisions outlined in Article 34 of the City of Memphis Charter and in this Code of Ordinances.

F. The chief ethics officer shall serve with compensation.

G. The chief ethics officer may employ an administrative staff to aid in the commission of its duties.

H. In addition to the aforementioned duties, the chief ethics officer shall create, subject to the approval of the board of ethics, a program to train officers and employees

regarding compliance with this code of ethics on an annual basis and within 60 days of the entry of an officer or employee into office.
(Ord. No. 5206, § 11, 7-1-2007)

Sec. 2-10-12. Recusal of members of the board of ethics and chief ethics officer.

A. Members of the board of ethics and the chief ethics officer shall not take part in any matter in which a judge, similarly situated, would have to recuse himself or herself.

B. If the chief ethics officer recuses himself or herself in a particular matter, the board of ethics may, in its discretion, appoint a member of the Tennessee bar, in good standing, who has practiced not fewer than ten years, to serve in place of the chief ethics officer in that particular matter.
(Ord. No. 5206, § 12, 7-1-2007)

Sec. 2-10-13. Penalties for violation of code of ethics.

A. Upon a finding of a violation of any provision of this code of ethics, the board of ethics is empowered to take any one or more of the following actions:

1. Recommend to the city court that it assess any penalty provided herein, the city court shall hold a de novo proceeding during which the chief ethics officer shall act as the prosecution;
2. Recommend to the city council that it censure any officer;
3. Recommend to the city council suspension of any appointed officer who is charged or indicted for any felony pending the outcome of such indictment pursuant to the process as outlined in the City of Memphis Charter article 27, section 185;
4. Recommend to the city council removal of any appointed officer pursuant to the process as outlined in the City of Memphis Charter article 27, section 185;
5. Refer the matter to the district attorney general or the United States Attorney for appropriate action; or
6. Refer the matter to the city attorney or district attorney general with a request that an appropriate civil action for restitution, ouster, or other relief be instituted.

B. Upon a finding of a violation of the applicable provision of this code of ethics, the city court is empowered to assess the following penalties:

1. Any person who violates a provision of this code of ethics may be subject to a fine of up to $50.00 for each violation.
2. Any person who fails to make any disclosure required by section 2-10-5 may be fined $50.00 per day, up to a maximum of $2,500.00, from the first day the disclosure is due until the disclosure is filed.
3. Any person who violates the provisions of section 2-10-5 concerning gratuities may be subject to forfeiture up to the fair market value of any gratuity concerned.

C. The various sanctions provided under this section are cumulative to other remedies provided under Tennessee law or under the charter and ordinances of the city.
(Ord. No. 5206, § 13, 7-1-2007)

Sec. 2-10-14. Transition and effective date.

A. This chapter shall be effective July 1, 2007.

B. Prior to the appointment of the members of the board of ethics and the chief ethics officer, the functions of the chief ethics officer shall, to the extent practicable, be performed by the city attorney.
(Ord. No. 5206, § 14, 7-1-2007)

CHAPTER 2-11. CHARTER COMMISSION

Sections:

Sec. 2-11-1. Election procedure.
Sec. 2-11-2. Qualifications of candidates.

Sec. 2-11-1. Election procedure.

A. All charter commissioners shall be elected at large by position by popular vote. A person may only qualify as a candidate for one position and the candidate shall designate on his or her nominating petition the position by number 1 through 7, both inclusive, for which he or she is a candidate.

B. Each candidate shall be required to file a nominating petition with the Shelby County election commission before the deadline prescribed by the commission using the same forms, processes and requirements imposed on city council candidates.
(Code 1985, § 2-407; Ord. No. 5079, § 1(part), 2004)

Sec. 2-11-2. Qualifications of candidates.

The qualifications for each candidate for each position shall be as follows:

A. Position 1. Each candidate for Position 1 shall have been a resident, voter and taxpayer of the city for not less than one year preceding his or her election. Each candidate for Position 1 shall also have resided in Council District 1 for not less than six months preceding his or her election.

B. Position 2. Each candidate for Position 2 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 2 shall have resided in Council District 2 for not less than six months preceding his or her election.

C. Position 3. Each candidate for Position 3 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 3 shall have resided in Council District 3 for not less than six months preceding his or her election.

D. Position 4. Each candidate for Position 4 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 4 shall have resided in Council District 4 for not less than six months preceding his or her election.

E. Position 5. Each candidate for Position 5 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 5 shall have resided in Council District 5 for not less than six months preceding his or her election.

F. Position 6. Each candidate for Position 6 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 6 shall have resided in Council District 6 for not less than six months preceding his or her election.

G. Position 7. Each candidate for Position 7 shall have and possess the same qualifications as a candidate for Position 1, except that each candidate for Position 7 shall have resided in Council District 7 for not less than six months preceding his or her election.
(Code 1985, § 2-408; Ord. No. 5079, § 1(part), 2004)

CHAPTER 2-12. CITY COURT*

Sections:

Sec. 2-12-1. Daily docket; inventory control.
Sec. 2-12-2. Assignment and disposition of cases involving summonses and citations barred by statute of limitations.
Sec. 2-12-3. Transfer of cases.
Sec. 2-12-4. Time of sessions.
Sec. 2-12-5. Place of sessions.
Sec. 2-12-6. Holidays designated.
Sec. 2-12-7. Authority to suspend sentence, place defendant on probation and specify time when sentence is to be served.
Sec. 2-12-8. Traffic violations bureau ratified; supervision thereof.
Sec. 2-12-9. Court fees.
Sec. 2-12-10. Method of payment of fines.
Sec. 2-12-11. Failure to appear in court; warrant.
Sec. 2-12-12. Warrant issued for court appearance for nonpayment.
Sec. 2-12-13. Garnishment, execution, fees and costs.
Sec. 2-12-14. Contempt powers; environmental matters.

Sec. 2-12-1. Daily docket; inventory control.

A. A docket shall be prepared daily for the respective division of the court, and each division shall try and dispose of all cases assigned to it. The docket shall be prepared under the direction of the city court clerk. Nothing shall prohibit the preparation of the docket by data processing or other mechanical means, including the preparation under the supervision and rules provided by the city court clerk of a data processing docket from court dates fixed or requested on summonses or citations filed in the traffic violations bureau which shall then be delivered to the clerk's office for disposition of the docket. Each traffic citation or traffic summons, when first filed in the traffic violations bureau or in the city court clerk's office, as provided for in this code, shall be assigned an identifiable number which shall continue

***Charter reference—**City court, §§ 251—294.

with such citation or summons as the docket number for court hearing or execution as necessary so as to provide an appropriate uniform system for record keeping.

B. The clerk shall establish and maintain inventory control of every summons or citation book printed so that a true and accurate record of the status of such summons or citations books shall be made from the date of receipt until final disposition either by payment or court action.
(Code 1967, § 13-11; Code 1985, § 11-16; Ord. No. 2233, § 1, 5-13-1975)

Charter reference—Assignment of work among divisions of court, § 253.3.

Sec. 2-12-2. Assignment and disposition of cases involving summonses and citations barred by statute of limitations.

There shall be prepared monthly by the chief of the violations bureau a compilation of all citations which are then over one year old and upon which no summons has been served or judgment taken so as to toll such statute of limitations, and which are, therefore, barred and uncollectible. Such compilation shall be prepared in the form of a docket and assigned as provided by the administrative judge for disposition in open court so as to remove all summonses and citations barred by the statute of limitations.
(Code 1967, § 13-12; Code 1985, § 11-17; Ord. No. 2233, § 2, 5-13-1975)

Sec. 2-12-3. Transfer of cases.

Nothing in this chapter shall be construed as limiting the right of the respective judges to transfer cases among the various divisions of the city court.
(Code 1967, § 13-13; Code 1985, § 11-18)

Sec. 2-12-4. Time of sessions.

The administrative judge shall determine the time of sessions for all divisions of the city court and may make provisions for Saturday, holiday and night sessions of the various divisions as he or she shall from time to time establish by rule of court.
(Code 1967, § 13-17; Code 1985, § 11-19; Ord. No. 1277, § 1, 5-9-1972)

Charter references—Daily sessions required, § 266; authority of council to require more than one session per day, § 267.

Sec. 2-12-5. Place of sessions.

Sessions of the city court shall be held in the criminal justice center located at 201 Poplar Avenue in the city, in the courtrooms provided for therein.
(Code 1967, § 13-17; Code 1985, § 11-20)

Sec. 2-12-6. Holidays designated.

A. The days observed by city employees shall also be observed as holidays by the city court and no cases will be scheduled for trial on such days.

B. No afternoon or night court sessions shall be held on the day which immediately precedes New Year's Day or Thanksgiving Day.
(Code 1967, § 13-18; Code 1985, § 11-21; Ord. No. 328, § 1, 11-26-1968)

Sec. 2-12-7. Authority to suspend sentence, place defendant on probation and specify time when sentence is to be served.

The city courts shall have the authority to suspend all or any part of a sentence imposed; to place defendant on probation, or require the defendant to serve any sentence imposed on weekends, or in any other manner in the discretion of the court.
(Code 1967, § 13-19; Code 1985, § 11-22; Ord. No. 944, § 1, 4-27-1971)

Sec. 2-12-8. Traffic violations bureau ratified; supervision thereof.

A. The traffic violations bureau is hereby ratified by the council.

B. The traffic violations bureau shall be removed from the budget and finance department and thereafter be under the supervision of and operated as a division of the city court clerk's office.
(Code 1967, § 13-20; Code 1985, § 11-23; Ord. No. 926, §§ 1, 2, 4-27-1971)

Sec. 2-12-9. Court fees.

A. Every person posting a forfeiture in lieu of court appearance with the clerk of the court, and every person where a fine is assessed by the city court judge or such person is otherwise ordered by the court to pay costs shall, in addition to any fine assessed by the court or any forfeiture taken, be required to pay the clerk of the city court a fee in the amount of $61.00 to cover the issuance

of the warrant or any other process, and all other costs that may be necessary in the prosecution of such cause, and the fees so collected shall be paid by the clerk of the city court to the office of the city treasurer.

B. Added to the $61.00 fee set out above, whenever city police make a physical arrest on any city charge, or any time a defendant is jailed by the court on a warrant returnable to city court, an additional fee of $20.00, per day, may be assessed against such defendant, to cover the cost charged by Shelby County for retention of city prisoners in county jail facilities.

C. A city judge, within his or her or her discretion, is also authorized to assess a $20.00 fee for the recall of bench warrants, and a $20.00 fee for the costs accrued in judgment set asides, and the fees so collected shall be paid by the clerk of the city court to the office of the city treasurer.
(Code 1967, § 13-22; Code 1985, § 11-24; Ord. No. 1408, § 1, 8-15-1972; Ord. No. 2223, § 1, 3-11-1975; Ord. No. 2531, § 1, 11-9-1976; Ord. No. 3405, § 1, 9-4-1984; Ord. No. 3972, § 1, 6-26-1990; Ord. No. 4267, § 1, 7-26-1994; Ord. No. 4314, § 1, 4-18-1995)

Sec. 2-12-10. Method of payment of fines.

A. When the court imposes a fine upon an individual, the court may direct as follows:

1. That the defendant pay the entire amount at the time sentence is pronounced;

2. That the defendant pay the entire amount at some later date; or

3. That the defendant pay the fine in specified portions or installments at designated periodic intervals and that such portion be remitted to the city court clerk, who shall report to the court any failure to comply with such order.

B. Upon failure of a defendant to comply with an order of the court to pay by installment payments a fine imposed as a result of a traffic violation, the court shall revoke the defendant's privilege to operate a motor vehicle in the state, pursuant to T.C.A. § 40-24-104(b). If the defendant's privilege to operate a motor vehicle has been revoked for the failure to comply with such court order, the privilege shall remain so revoked until the total amount of the fine is paid.
(Code 1985, § 11-25; Ord. No. 3476, § 1, 7-9-1985)

Sec. 2-12-11. Failure to appear in court; warrant.

A. It is unlawful for a defendant to fail to appear in court at the time and place designated by a citation or summons issued in lieu of arrest.

B. Pursuant to T.C.A. § 7-63-105, such failure to appear shall result in the municipal court immediately issuing a warrant against the defendant for the offense as set forth in the original process and for the additional charge of failure to appear.
(Code 1985, § 11-26; Ord. No. 3460, § 1, 5-14-1985)

Sec. 2-12-12. Warrant issued for court appearance for nonpayment.

It is unlawful for a defendant to fail to pay a fine imposed by the city court. The failure to pay shall result in the issuance by the court of a summons or arrest warrant to require the defendant's appearance in court for a hearing to show cause for nonpayment.
(Code 1985, § 11-27; Ord. No. 3476, § 1, 7-9-1985)

Sec. 2-12-13. Garnishment, execution, fees and costs.

A. Upon failure of a defendant to comply with an order of the court where the judge has entered a judgment for fines and costs and same remains unpaid for 30 days thereafter, the court is authorized through its court clerk to issue execution thereon from the court in the same manner and method as prescribed in Tennessee Code Annotated, title 26, chapters 1, 2, and 3, and court clerk shall assess the same fees and costs as allowable to clerks of general sessions court.

B. For the purposes of service of a levy of execution or execution by garnishment the police officers of the city are empowered to serve same anywhere in the county.

C. Authority for this section is granted pursuant to T.C.A. § 6-54-303.
(Code 1985, § 11-28; Ord. No. 3573, § 1, 7-1-1986)

Sec. 2-12-14. Contempt powers; environmental matters.

The judge of city court exercising municipal jurisdiction over environmental violations relating to health, housing, fire, building and zoning codes of the municipal code shall punish any person for contempt who, having been cited for failure to appear in such court for the

violation of a municipal government law or ordinance involving any violation relating to health, housing, fire, building and zoning codes or the municipal law:

A. Willfully fails to appear without just cause on the designated day at the designated time; or

B. Willfully fails to obey the court's order to correct a violation of the municipal code relating to health, housing, fire, building and zoning codes, within the designated day and at the designated time as given by court order.

C. Punishment for contempt in each such case is limited to a fine of $10.00 and imprisonment not exceeding five days for each violation.

D. The power to punish for contempt conferred by this section may not be used to punish persons who fail to appear for traffic violations or parking violations.

(Code 1985, § 11-29; Ord. No. 4018, § 1, 2-12-1991)

CHAPTER 2-14. LIBRARY SYSTEM*

Sections:

Sec. 2-14-1. Library system established.
Sec. 2-14-2. Title.
Sec. 2-14-3. City funding of system; budget approval required; expenditures in excess of approved budget.
Sec. 2-14-4. Appointment of board of trustees; qualifications, terms and compensation of members; ex officio members designated; library board subcommittee.
Sec. 2-14-5. Organization of library board; general powers and duties of board.
Sec. 2-14-6. Capital expenditures for branches located within and outside the city.
Sec. 2-14-7. Disposition of funds raised by bonds or taxation; rate of disbursement of operating funds; conformance with city's financial practices required; annual audit of library accounts.
Sec. 2-14-8. Use of libraries by residents and nonresidents of county.
Sec. 2-14-9. Library board authorized to make and enforce rules relative to loss or injury to library property; board authorized to establish social services fees.

***State law reference—**Libraries in counties, cities and towns, T.C.A. § 10-3-101 et seq.

Sec. 2-14-1. Library system established.

A library system is hereby established to operate a main facility and all city branches located within the City of Memphis, and to operate and provide library services to any municipality or entity located within the county that has contracted with the system for the provision of such library services in accordance with T.C.A. § 10-3-101 and section 2-14-8 of this Code.

(Code 1967, § 21-51; Code 1985, § 18-16; Ord. No. 1891, § 1, 11-6-1973; Ord. No. 5093, § 1, 2005)

Sec. 2-14-2. Title.

The library system referenced in this article shall be known as the "Memphis Public Library and Information Center."

(Code 1967, § 21-52; Code 1985, § 18-17; Ord. No. 1891, § 2, 11-6-1973; Ord. No. 5093, § 2, 2005)

Sec. 2-14-3. City funding of system; budget approval required; expenditures in excess of approved budget.

The operation of all library branches located within the City of Memphis shall be funded by the city. The operation of any branch located within a municipality or entity outside the city shall be borne by the municipality or entity in which the branch is located. The total budget of the library system shall be approved by the city council each fiscal year upon submission of the financial needs of the system. The budget will be presented as a part of the budget of the public services and neighborhoods division as a department under its general control and direction. No funds shall be expended that exceed the approved budget.

(Code 1967, § 21-53; Code 1985, § 18-18; Ord. No. 1891, § 3, 11-6-1973; Ord. No. 5093, § 3, 2005)

Sec. 2-14-4. Appointment of board of trustees; qualifications, terms and compensation of members; ex officio members designated; library board subcommittee.

A seven member board of trustees shall be appointed to provide general direction and guidance regarding the affairs of the library system as outlined in section 2-14-3. All members shall be appointed by the mayor, with approval of the city council. The director of public services and neighborhoods or a designee shall serve as a member of the board. Each board member must reside within the city limits in accordance with the city's

residency policy. Such members shall serve without salary, three for one year, two for two years, and two for three years. In the event of a vacancy, whether by reason of resignation, death or other cause, the mayor, with the approval of council, may elect a successor only for such unexpired term except for members serving for three years, whose successors shall serve for a term of three years. No more than five of the members shall be of the same sex.
(Code 1967, § 21-54; Code 1985, § 18-19; Ord. No. 1891, § 4, 11-6-1973; Ord. No. 5093, § 4, 2005; Ord. No. 5333, § 1, 11-3-2009)

State law reference—Term of office, T.C.A. § 10-3-103.

Sec. 2-14-5. Organization of library board; general powers and duties of board.

A. The members of the library board shall organize by electing officers and adopting rules of procedure.

B. The library system will be under the general control of the public services division and shall be lead by an executive director, chosen by the mayor of the city with recommendation from the library board.

C. The library system shall have the authority to operate its own pension plan separate from the city plan for those employees hired on or before July 1, 2005. The board may make and endorse rules and regulations and establish branches of travel service at its discretion subject to appropriate funding. It may receive donations, devises and bequests to be used by it directly for library purposes. It shall recommend to the mayor of the city contracts for services and leases with title to the property in the name of the city or the municipality providing the capital funds. The library board shall furnish to the state library agency such statistics and information as may be required, and shall make annual reports to the city council.
(Code 1967, § 21-55; Code 1985, § 18-20; Ord. No. 1891, § 5, 11-6-1973; Ord. No. 5093, § 5, 2005)

State law reference—Powers of library board, T.C.A. § 10-3-104.

Sec. 2-14-6. Capital expenditures for branches located within and outside the city.

Any capital expenditure necessary for the branches located within the city limits shall be provided within the capital budget of the city. Any capital expenditure for the branches located within municipalities outside the city shall be borne by the municipality in which the branch is located.
(Code 1967, § 21-56; Code 1985, § 18-21; Ord. No. 1891, § 6, 11-6-1973)

Sec. 2-14-7. Disposition of funds raised by bonds or taxation; rate of disbursement of operating funds; conformance with city's financial practices required; annual audit of library accounts.

All funds for library purposes, raised by bonds or taxation, shall be held by the city comptroller separate from other funds. Operating funds shall be disbursed at the rate of 1/12 the annual allocation per month. All library accounts of every character shall be maintained in conformity with city financial practice for the purpose of reports, budget submission and any other financial forms so required by city departments. All library accounts shall be audited annually by or under the city.
(Code 1967, § 21-57; Code 1985, § 18-22; Ord. No. 1891, § 7, 11-6-1973)

Sec. 2-14-8. Use of libraries by residents and nonresidents of county.

A. The mayor shall be authorized to contract with the county government and with each municipality or entity within the county for the furnishing of library services and capital expenditures by the Memphis Public Library and Information Center during any calendar year. The library system and information center shall maintain records of such service, and forward invoices for such services quarterly, beginning with July 1, 1983. A municipality or entity so rendered invoices for library services shall reimburse the city within 30 days after such quarterly billing by the city. Failure to reimburse the city for such quarterly services will be grounds for discontinuation of services until such time as reimbursement has been made.

B. The library system and information center, upon recommendation of its board with approval by the city, may extend the privileges of the library to persons residing outside, the city and the county, and to municipalities and entities within the county that have

chosen not to contract with the system for the provision of library services, upon such terms and conditions as it may deem proper.
(Code 1967, § 21-58; Code 1985, § 18-23; Ord. No. 1891, § 8, 11-6-1973; Ord. No. 3293, § 1, 5-3-1983; Ord. No. 5093, § 6, 2005)

State law reference—Use of library by residents and nonresidents, T.C.A. § 10-3-107.

Sec. 2-14-9. Library board authorized to make and enforce rules relative to loss or injury to library property; board authorized to establish social services fees.

The library board shall have the power to make and enforce rules providing penalties for loss of or injury to library property and shall at their discretion establish fees for special services.
(Code 1967, § 21-59; Code 1985, § 18-24; Ord. No. 1891, § 9, 11-6-1973)

CHAPTER 2-16. CITY REAL PROPERTY MANAGEMENT

Sections:

Sec. 2-16-1. Sale generally.
Sec. 2-16-2. Mow to own program.

Sec. 2-16-1. Sale generally.

The manager of the city real estate department shall be authorized to sell, exchange or transfer property no longer deemed necessary for city use and approve the sale of property deemed surplus under the following conditions:

A. Sale of property for market value.

1. The city real estate manager shall place a value on all properties being considered for sale. However, on all properties having a probable value of $10,000.00 or more or on properties having a value of less than $10,000.00 where the real estate manager determines that an independent valuation is needed, the services of a qualified independent real estate appraiser may be obtained. After a valuation has been placed on the property by the city real estate manager, he or she shall be authorized to make and approve the sale of such properties subject to the other provisions of this section.
2. The sale of properties receiving an initial bid offer of $20,000.00 or less shall be submitted for approval to the city council for first reading, which shall be final.
3. Properties receiving an initial bid offer exceeding $20,000.00 shall be submitted to the city council for first and second reading. The second reading shall be final. However, at the second reading, subsequent bidders will be permitted to bid in open council session, but the first increased bid must be a minimum of $500.00. Thereafter, additional increases must be in minimum increments of $50.00.
4. Subsequent bidders must adhere to the terms and stipulations of the initial agreement and may not introduce new contingencies in their bid.
5. On bids exceeding $20,000.00, failure of the highest bidder to follow through with the purchase of the property will result in the next highest bidder being accepted as purchaser. Any funds paid as earnest money by any prospective purchaser may be forfeited for failure to follow through with the purchase of the property.

B. Exchange of property.

1. The governing authorities of the city shall have full authority to exchange any real property acquired by them or held by the city, but no longer needed or utilized for municipal purposes. Any proposed exchange shall be first approved by the city attorney and shall be advertised in a local newspaper at least two weeks prior to its initial presentation to the city council of the City of Memphis.
2. Prior to such exchange the properties to be exchanged shall be appraised as to market value by a professional independent appraiser and reviewed by the manager of the real estate department.
3. Subsequent to the fixing of the values on property to be exchanged, the same shall

be approved by the city council, and, such values having been so approved, a resolution authorizing the execution of deeds of conveyance shall be submitted and passed by the city council. The resolution shall provide for a first and second reading. The second reading will not subject the city property to increased bids and shall be final.

C. Sale or transfer to another governmental entity. In the event a sale or transfer of real property, is to be made to any other governmental entity, its departments or agencies, the real estate manager shall be authorized to make and approve such sale or transfer subject to a resolution authorizing the execution of deeds of conveyance submitted to the city council for first reading, which shall be final, and it shall not be necessary to receive bids or require a monetary consideration for such property to be sold to a governmental entity, its departments or agencies.

D. Sale of excess realty in connection with street projects.

1. When the city real estate department acquires right-of-way for a new street or public thoroughfare or for the improvement, realignment, or relocation of all or a portion of an existing thoroughfare or right-of-way and such project results in any of the following conditions, the department may, at its discretion, acquire title to and dispose of such properties in the immediate vicinity of the new or former thoroughfare or right-of-way:

a. The severance of a property owner's land resulting in an uneconomical remnant;

b. The realignment of a thoroughfare or right-of-way or abandonment of an existing thoroughfare or right-of-way which has the effect of eliminating or substantially reducing the access a property owner may have to the new thoroughfare or right-of-way;

c. The payment to a property owner for incidental damages arising out of land severance, denial of access or probable reduction in the value of the remnant would equal or exceed the cost of the real property to be conveyed to the affected property owner in lieu of cash compensation for damages. It shall not be a requirement to obtain a monetary consideration for such property.

2. Such agreements to acquire or dispose of excess realty from or to specific property owners in connection with a street project may be made a part of the regular right-of-way agreement, a supplement, or a separate agreement subject to approval by the city engineer and execution of all necessary documents by the appropriate city officials.

E. Disposition of property to an adjoining equitable purchaser. The city real estate manager shall be authorized to convey property to a selected adjacent property owner, without necessity of competitive bidding, for approval by the city council with one reading under the following circumstances:

1. The city property to be conveyed would have no reasonable utility, for building or other purposes, unless it was used in conjunction with the property of the selected adjoining property owner.

2. Conveyance of the property to any prospective purchaser other than selected adjoining property owner would materially diminish the value and/or utility of the property of the selected adjacent property owner.

3. Conveyance of the property to any prospective purchaser other than the selected property owner would cause undue hardship to the selected adjacent property owner.

4. The selected adjacent property owner is willing and capable of paying the value of the adjacent property to be acquired based on valuation determined by the city real estate department.

F. Disposition of property acquired for redevelopment purposes. Property acquired by the city for redevelopment purposes may be conveyed upon such terms and conditions as it deems proper and without regard to the conveyance procedure outlined in subsection A of this section, upon passage of a resolution authorizing such sale or conveyance by the city council upon first reading, which reading shall be final. Such reading shall take effect only after the following has been accomplished:

1. A finding by the city office of housing and community development or its successor agency that such a sale or conveyance under the terms of this subsection would be in furtherance of the redevelopment goals of the Housing and Redevelopment Act of 1974, 2 USC 5301 et seq.; or
2. A finding by any other city office, agency or department, whose purpose is the redevelopment of the city, that a sale under the terms of this subsection would be in furtherance of municipal redevelopment purposes.

G. Disposition/conveyance of property for public benefit.

1. The city real estate manager is authorized to convey or dispose of any city property at reduced or no cost to the following entities in the following order of priority:
   a. Adjoining property owners;
   b. A neighborhood organization in an area targeted by the city for redevelopment;
   c. Nonprofit organizations whose use of the property will be for the benefit of the community, notwithstanding section 2-26-1(D) of the Code to the contrary;
   d. A program implemented or assisted by a private entity or government agency which has as its goal the development of vacant or underdeveloped land or the renovation of existing improvements on city-owned land for the purpose of providing occupant-owned housing to persons who qualify for housing programs designed for moderate and low income households and who would not otherwise be eligible for such housing;
   e. Other entities or organization (profit or nonprofit) which, in the opinion of the mayor or chief administrative officer of the city, are proper recipients of such property.

Any disposition under this section 2-16-1(G) shall be approved by the city council by ordinance or by resolution, adopted at two separate meetings of the city council.

2. Conveyance of the property to the above described entities shall be subject to the following conditions:
   a. Submission of an application to the city real estate department by the entity seeking ownership of the property utilizing forms created and approved by the city real estate department;
   b. Completion by the city real estate department of a form providing basic information about the property, and valuation of the property;
   c. Completion of a form by the city division which initiated the request for the property;
   d. Requests for conveyance of property under the terms of subdivision (1)(d) of this subsection must be made by either the mayor or the chief administrative officer only. All of the other provision of this subsection (G)(2) shall apply except for subsections (G)(2)(c) and (e);
   e. Approval from both the director having jurisdiction over the property and from the chief administrative officer;
   f. Approval by the Memphis City Council. Approval shall become final on second reading after all interested parties shall have had an opportunity to voice either their approval of or opposition to the transfer.

H. Auction of distressed property. Any city property which has not been disposed of in conformity with the above methods after the expiration of two years from the date efforts were first made to dispose of such property may, at the discretion of the real estate manager, be presented before the city council for a public auction which sale shall be final. Any property proposed for auction shall be first approved by the city attorney and shall be advertised in a local newspaper at least two weeks prior to its presentation to the council of the City of Memphis.

I. Disposition of funds. All proceeds from the sale of city-owned real estate not specifically under the management of some board or commission entitled to receive the same, and not set aside for some specific purpose, shall be paid into the general fund, to be disbursed for any lawful municipal purpose.

J. Lease agreements involving real property. For the purposes of this section, any lease or license agreement two years or more shall be considered a conveyance and shall be submitted to city council for approval, except for right of entry agreements, encroachment agreements, and easement agreements. Any extensions or renewals bringing the total term to two years or more shall be included as a conveyance.

(Code 1985, § 2-291; Ord. No. 4381, § 1, 12-19-1995; Ord. No. 5346, § 1, 3-23-2010; Ord. No. 5658, § 1, 9-19-2017)

Sec. 2-16-2. Mow to own program.

The manager of the city real estate department shall be authorized to sell vacant property that adjoining property owners have maintained and are able to purchase through either credits or cash payments and credit, pursuant to the terms of a memorandum of understanding (MOU) between the property owners and the city. Any MOU shall contain the following provisions:

1. *Program eligibility.*

   a. Eligible participants include adjoining property owners or non-profit organizations with 501(c)(3) status that are chartered or authorized to serve the same neighborhood in which the city property is located and that own adjoining property. Adjoining property owners are those who share a common property line with the city property; and shall include those property owners who own the property across the street, directly in front of the city property or directly across an alley.

   b. The applicant must not:

      i. Be delinquent in the payment of any real estate or personal property taxes in Shelby County;

      ii. Have been found guilty by environmental court of violating the city housing code.

   c. If the applicant is a nonprofit neighborhood organization, in addition to the above requirements, their 501(c)(3) status must be current and active at the time of application submittal and maintained in that status throughout the term of the MOU.

   d. Only properties listed for sale with a price of at least $500.00 and less than $10,000.00 are eligible for the mow to own program. Applications for properties not listed for sale will be returned.

   e. No property larger than one-half acre will be considered for inclusion in the program. However, when there is a request from an adjacent property owner who would like an exception from this provision to exceed the one-half acre limitation but less than one acre, the program administrator is hereby authorized to review, consider and approve said request if deemed appropriate.

   f. Non-residential properties and properties along some commercial corridors may not be eligible for the program.

   g. The City of Memphis, and the Shelby County if the property is owned by the county, have the absolute right to exclude properties from the program at their sole discretion.

   h. It is the goal of this program to sell the city property for not less than fair market

value. The purchase price will be based on an internal fair market value determination.

2. *Application requirements.*

   a. An administrative fee of $175.00 is required to participate in the program and shall be paid to the city by purchaser at the time the application is submitted.

   b. Purchaser must submit a completed application. Along with the application, purchasers shall submit a proposal outlining the amount they are seeking to earn by maintenance activities on the city property, which may be all or any portion of the final purchase price.

   c. The application and submitted proposal will be reviewed by the city. As required, the city may request additional information from the purchaser and negotiate the terms of the purchase, including the maintenance cost and duration of MOU term.

   d. Purchasers will receive a notification letter with their approval or disapproval status.

3. *Memorandum of understanding.* Eligible participants shall sign a memorandum of understanding (MOU) and agree to perform required maintenance on said adjoining property. Terms of the MOU shall include the following:

   a. Grass cutting and trimming will be required once every two weeks beginning on March 15 and continuing until October 15.

   b. Other required maintenance shall include, raking leaves, picking up trash and debris and properly disposing of the same. Participants can earn up to 100 percent of the purchase price of the city property through credits earned for the maintenance described above.

   c. The schedule of credit amounts as follows:

      i. Lawn mowing: $25.00 per cut reimbursement of $375.00 per year.

      ii. Leaf removal: $25.00 per removal, maximum of $75.00 per year.

      iii. The allowed time a property may be in the program is a maximum of three years.

   d. At any time during the MOU, purchasers will have the option to pay the outstanding portion of the purchase price not covered by their maintenance credit, in cash, and receive the property.

   e. The MOU will become null and void if the purchaser fails to adequately perform the proposed maintenance to the city property and the administrative fee will be forfeited.

   f. The maximum amount that can be credited at the time of conveyance is $1,350.00.

   g. For the work to be conducted under the MOU, purchaser is an independent contractor and waives and releases the City of Memphis, all of its departments and divisions and all of its employees, agents or other representatives from any loss, claim, cause of action, damage, or liability whatsoever, whether without limitation strict or absolute liability in tort or by statue imposed, charge, cost or expense, including without limitation, attorneys' fees to the extent any damage or loss to property or injury or death resulting in any manner from the MOU, application, or exercising the rights and obligations therein.

   h. Purchaser agrees to indemnify the City of Memphis, all of its departments and divisions and all of its employees, agents or other representatives against any monetary award, both compensatory and punitive, or equitable relief by a judge or jury that may result from damages or loss to persons or property sustained as a result of the MOU application, or exercising the rights and obligations therein.

   i. Purchaser shall not assign, lease or otherwise transfer any rights under the MOU, without the written consent of the City of Memphis, Department of General Services and City Council.

4. *Approval and implementation.*

   a. After the application has been approved, the mow to own program shall prepare the required communication and legislation for city council approval.

   b. Once a city property is enrolled in the program purchaser may begin to earn credits towards its purchase.

   c. Purchaser agrees that in order to earn this credit purchaser must provide evidence of its maintenance activities to the city. This shall include electronic submission of time dated photographs showing the city property before and after each maintenance event for which credit is sought. This evidence shall be submitted on a monthly basis.

   d. Purchaser may also be required to provide additional proof of any other activity or status element necessary to maintain the registration of the city property in the mow to own program including evidence of continued ownership of the adjoining property or other program requirements requested by the mow to own staff.

5. If purchaser is unable to conduct the required maintenance activities for any reason, purchaser will provide notice of this inability to the mow to own staff and provide an estimate of its duration. Mow to own staff may provide a short term waiver of the requirement or notify purchaser of its inability to continue to keep the city property in the program.

6. If purchaser is found by the city to be in violation of the terms of the MOU, mow to own staff will provide notice of this determination and purchaser will be given ten days to cure the deficiency. If corrective action is not taken within the allotted time, the MOU may be terminated by the program staff.

7. Until conveyance of the property to the purchaser, purchaser may only be granted a non-exclusive right of access and use of the property consistent with the terms of the MOU and the application. Purchaser shall not permit any waste or damage to property and shall not occupy or use the property for any purposes that are unlawful, hazardous, unsanitary, noxious, or offensive.

8. Purchaser shall not permit any interest or lien to be placed on the property, while the property is still owned by the seller.

9. In the event the purchaser:

   a. Fails to perform the terms of this MOU;

   b. No longer owns a lot adjacent to the property;

   c. Violates the terms of the application, including the timely payment of the purchase price; or

   d. If the Memphis City Council fails to pass the necessary resolution, the MOU shall automatically terminate and become null and void and neither party shall have further liability to the other arising out of this MOU.

10. After the purchase price of the vacant lot has been earned and/or paid in accordance with an executed MOU between purchaser and the City of Memphis, the mow to own program will prepare the necessary documents and schedule the closing to effect the transfer of the city property.

11. A quit claim deed will be prepared and issued for transfer of the property. purchaser will be responsible for the recording fee. Purchaser shall pay the seller the recording fee to the Shelby County Register.

12. The city will not provide title insurance to purchaser. Purchaser may independently purchase title insurance through a title company.

13. All city property is sold by "as is" without any warranties or guarantees.

14. The city will issue the appropriate tax form (1099) showing the amount earned by the purchaser during the period maintenance was conducted as income to the purchaser.

(Ord. No. 5606, § 1, 11-17-2015; Ord. No. 5656, § 1, 8-22-2017)

CHAPTER 2-18. CITY PERSONAL PROPERTY MANAGEMENT

Sections:

Sec. 2-18-1. Condemnation.
Sec. 2-18-2. Duty of purchasing agent to sell.
Sec. 2-18-3. Prospectus of property to be sold; advertising sale.
Sec. 2-18-4. Sale to be for cash; exceptions.
Sec. 2-18-5. Report of sale.
Sec. 2-18-6. Trading property in on new purchase.
Sec. 2-18-7. Unlawful disposition of property; violations of chapter.

Sec. 2-18-1. Condemnation.

A. Whenever any tangible personal property belonging to the city becomes unfit for service or use by the city, in any of its departments, such fact shall be promptly reported by the person having custody thereof to the director of his or her department and such director, after receiving such report, shall promptly examine into the condition of the property, and if, in his or her judgment, the same is unfit for service or use to the city in any of its departments, he or she shall condemn the property and shall at once notify the purchasing agent, giving him or her a complete report on such property, its condition, quantity, location and description.

B. Notwithstanding the above provisions, no tangible personal property of the city, possessing a value of $500.00 or more, shall be condemned except by resolution of the city council.
(Code 1967, § 2-131; Code 1985, § 2-301)

Sec. 2-18-2. Duty of purchasing agent to sell.

It shall be the duty of the purchasing agent to sell, publicly or privately, in his or her discretion, on the best terms he or she can obtain, all tangible personal property of the city where such property has come unfit for service or use to the city and has been condemned as provided for in section 2-18-1; provided, however, that, property with a value of $500.00 or more shall be sold only by resolution of the city council.
(Code 1967, § 2-132; Code 1985, § 2-302)

Sec. 2-18-3. Prospectus of property to be sold; advertising sale.

The purchasing agent shall prepare a prospectus of property to sold under this chapter, wherein shall be fixed the time, place and conditions of the sale, which information shall be, by him or her, placed in the hands of prospective buyers by the most effective method. Whenever the property to be sold is, in his or her judgment, of sufficient value to justify the expense, he or she shall advertise the property for sale in one or more of the daily newspapers, but not in excess of three insertions in any one paper and, in such cases, shall state whether sealed bids will be received or an auction sale held.
(Code 1967, § 2-133; Code 1985, § 2-303)

Sec. 2-18-4. Sale to be for cash; exceptions.

All sales under this chapter shall be made for cash, which shall be paid immediately by the purchaser or purchasers to the city purchasing agent, who shall deposit such proceeds with the city treasurer as a general revenue of the city, provided, however, that such sales may be made other than for cash by resolution of the city council wherein provision is made requiring proper chattel mortgage securing the obligation of the purchaser, to be furnished the city and filed with the comptroller for collection in due course.
(Code 1967, § 2-134; Code 1985, § 2-304)

Sec. 2-18-5. Report of sale.

It shall be the duty of the purchasing agent to report every sale made under this chapter to the comptroller. Such report shall identify the property sold and give the name of the purchaser and the purchase price.
(Code 1967, § 2-135; Code 1985, § 2-305)

Sec. 2-18-6. Trading property in on new purchase.

Nothing in this chapter shall prevent the purchasing agent from bargaining with vendors for the trading in of condemned property as an offset or allowance on the purchase price of other property, provided all vendors are given an equal opportunity to view and appraise the condemned property for such purpose. The purchasing agent shall report the disposal of property in this manner, as provided for in section 2-18-5.
(Code 1967, § 2-136; Code 1985, § 2-306)

Sec. 2-18-7. Unlawful disposition of property; violations of chapter.

Any officer or employee of the city who shall sell, attempt to sell, or otherwise dispose of any condemned personal property of the city, otherwise than is provided

for by this chapter, or who shall fail or refuse to perform any duty imposed upon him or her by the provisions of this chapter, shall be guilty of a misdemeanor.
(Code 1967, § 2-137; Code 1985, § 2-307)

CHAPTER 2-20. MEMPHIS LIGHT, GAS AND WATER DIVISION*

Sections:

Sec. 2-20-1. Advertising necessary as prerequisite to contract award.
Sec. 2-20-2. Total impasse dispute procedure.
Sec. 2-20-3. Authority and duties of board of commissioners.
Sec. 2-20-4. Provision of natural or artificial gas and electric services within city.
Sec. 2-20-5. Contracts in excess of $25,000.00; council approval required.

Sec. 2-20-1. Advertising necessary as prerequisite to contract award.

No contract for equipment, apparatus, materials or supplies for the light, gas and water division involving more than $50,000.00 shall be made except after such contract shall have been advertised in the manner now or hereafter provided by law, for the advertisement of contracts of the city. On any contract for equipment, apparatus, materials, or supplies involving more than $15,000.00 but less than $50,000.00 the bid procedure of the purchasing department of the light, gas and water division shall be used.
(Code 1967, § 2-325; Code 1985, § 2-256; Ord. No. 3104, § 1, 3-17-1981; Ord. No. 4380, 12-19-1995)

Sec. 2-20-2. Total impasse dispute procedure.

A. *Generally.*

1. Definitions. As used in this section the following terms shall have the indicated meanings:

Business day means a day other than a Saturday, Sunday or legal holiday under the laws of Tennessee.

Economic items shall be defined as items such as wages, insurance, shift differential and other items which require the expenditure of Memphis light, gas and water division (the "division") funds to an identifiable portion of any recognized unit which economic items provide to those employees direct benefits except that economic items such as pension benefits and any item excluded by the Charter of the city, or other state laws shall not be considered economic items.

Negotiations deadline means that point in time which is 60 days prior to the expiration date of a current memorandum of understanding, or, in the event of an economic reopener, 60 days prior to the ensuing contractual period.

Total impasse means that point at which each party declares its last position in economic matters to be final and each party declares such position to be unacceptable, or the parties do not reach agreement by midnight of the negotiations deadline.

2. The final position of the division on economic items as defined in this section, shall be in writing and shall be designated as the "final offer." If the division presents its final offer more than three business days prior to the negotiations deadline, then after the division presents its final offer, the officially recognized employee organization (organization(s), herein) shall indicate in writing its acceptance of that final offer or its final position on economic

***State law reference—**Municipal Purchasing Law of 1983, T.C.A. § 6-56-301 et seq.

items as defined in this section. This response of the organization(s) shall be made before the negotiation deadline.

3. If the division makes its final offer to the organization(s) less than three business days before the negotiations deadline, the chief spokesperson of the organization(s) shall tentatively accept or reject the offer in writing at the same negotiation session that the final offer of the division was received. If the organization(s) rejects the final offer of the division, the organization(s) through its chief spokesperson, shall set forth in writing the final position on economic items as defined in this section of the organization(s) at the time of the rejection of the final offer of the division and during the same negotiation session that the final offer was received. If after the tentative acceptance by the organization(s) of the final offer of the division, should the employees of the organization(s) fail to ratify the final offer of the division, then the final position of the organization(s) shall be its last position at the bargaining table, before the final offer of the division had been given.

4. Items, economic or noneconomic, mutually agreed to prior to the declaration of impasse as defined in subsection B of this section, shall be made part of any future agreement or memorandum of understanding. Non-economic items not mutually agreed to prior to the declaration of impasse as defined in subsection B of this section, will remain as stated in the previously agreed upon memorandum or agreement between the parties.

5. At any time before the point of impasse either party (with written notice to the other party), may call for the appointment of a mediator to assist the parties in negotiating an agreement. It shall be the function of the mediator to bring the parties together to attempt to effectuate a settlement of outstanding issues. The mediator shall have no power to compel either of the parties concerning any aspect of negotiations or the agreement to be negotiated. The mediator may be selected by agreement of the parties (with each party agreeing to share equally in the costs) or by a request by either party to the Federal Mediation and Conciliation Service for the appointment of a federal mediator.

B. *Procedure after seven consecutive days.* In the event a total impasse is reached and the impasse continues for seven consecutive days ("seven-day period"), the following procedures shall be followed:

1. Each party, or any one of the parties, shall, before 5:00 p.m. on the next business day following the expiration of the seven-day period give written notice to the chairperson of the Memphis City Council, and to the other party, that a total impasse in discussions has been reached (the "impasse notice"). At the executive session or regular council meeting in the week next following the receipt of the impasse notice the chairperson of the Memphis City Council will conduct a drawing by lot to establish from the members of the Memphis City Council a three-member impasse resolution committee, (the "committee"). The first two selections will be for committee members and the third will be for the committee chairperson. At the meeting in which the chairperson of the committee is selected, each party shall deliver to the committee chairperson a notice that identifies the specific economic items which are at impasse. It is the duty of councilmembers to serve on impasse committees, if selected.

2. The committee shall develop a combined list of impasse items which must be in accordance with the final position of the parties in subsection (A)(2) of this section on or before 5:00 p.m. on the second business day next following the committee's selection.

3. Each party shall submit in writing to the committee the last best offer with respect to such items which each party proposed at the time of total impasse on or before the fourth business day next following receipt of the combined list of impasse items required by subsection (B)(2) of this section. The final position of each party as defined in subsection (A)(2) of this section shall be considered its last best offer for the purpose of this section. Any supporting information must also be presented at this time and all economic items must be addressed.

4. The committee is to determine which total package constituting the last best offer on "economic items" as defined in this section of either the division or the organization(s) shall be made

part of the new memorandum of understanding between the division and the organization(s). The committee may not alter the last best offer of either party.

5. The committee shall establish its own rules and procedures and conduct such investigations and hearings as it deems appropriate but with adequate opportunity for the division and the organization(s) to present their respective positions. The committee shall adopt for recommendation to the Memphis City Council the last best offer on "economic items" as defined in this section of either the division or of the organization(s).

6. In an expeditious manner, but in no case later than 30 days from submission of the dispute to the committee, a written report on the last best offers submitted by both parties, and a recommendation of one of the offers as the final resolution of the dispute shall be immediately provided to both parties and all members of the Memphis City Council. If, after receiving the committee's report, the council does not, at one of the next two regularly scheduled city council meetings, veto the recommendation by a majority vote of its membership, then the committee's recommendation shall be final. However, if the city council decides to take up the committee report as an agenda item, the parties shall be given at least 48 hours' notice. At the city council meeting when the committee report is to be discussed, each of the parties is to be given one hour to present a summary of the issues and their position. The council may then either accept the report of the committee or determine that the total package constituting the last best offer on "economic" items as defined in this section of the other party (the last best offer of the party not selected and recommended by the committee) shall be made part of the new memorandum of understanding between the division and the organization(s). The decision made by the city council shall become effective and the city council shall take whatever action is appropriate to implement.

7. Once this impasse resolution procedure has been implemented by notification of the chairperson as provided for in subsection (B)(1) of this section, neither party may alter their final position as defined in subsection (A)(2) of this section. However, either party may, at any time, accept the final position total package of the other party as originally submitted to the city council. Such acceptance shall be the final understanding. Further, the parties may mutually agree upon some or all items at impasse any time before final council action. Such mutually agreed upon items will be removed from the impasse list of both parties by notification to the chairperson of the council and shall be made a part of any future agreement or memorandum of understanding.

(Code 1967, § 2-370; Code 1985, § 2-257; Ord. No. 3288, § 1, 4-5-1983; Ord. No. 4245, § 1, 3-22-1994)

Sec. 2-20-3. Authority and duties of board of commissioners.

A. *Salaries.* "Employees," for the purpose of this section, means all regular full-time or part-time employees of the Memphis light, gas and water division but does not include members of the board of commissioners of the Memphis light, gas and water division. Any increase in the salaries or compensation of the president of the Memphis light, gas and water division shall be submitted to the city council for approval. All other increases in the amounts of salaries or compensation for other employees may be approved by the board of commissioners of the Memphis light, gas and water division, provided that no such increase shall result in annual compensation to such employee in excess of that of the president.

B. *Contracts.* The board of light, gas and water commissioners shall have authority to make contracts entailing any obligations or involving any expenditure for any amount without the consent and approval of the city council of the City of Memphis, so long as the amount is within the budget established by the board of commissioners of the Memphis light, gas and water division and approved by the city council.

C. *Budget submittal.* The board of commissioners of the Memphis light, gas and water division shall, on or before December 1 of each year, provide and forward to the city council for distribution to councilmembers a copy of the preliminary budget adopted by the board of commissioners for the coming calendar year, and the council shall schedule such review as it deems necessary by the energy committee on or before January 15 of the calendar year. The board of commissioners shall thereafter forward to the city council, on or before February

15 of the calendar year. The board of commissioners shall thereafter forward to the city council, on or before February 15 of the calendar year, the final budget adopted by the board of light, gas and water commissioners. The city council shall, by separate resolution, adopt and/or amend and approve the budget of the Memphis light, gas and water division; provided, however, the council shall approve in any such budget all amounts as are necessary to meet the requirements contained in the bond resolutions applicable to the electric, gas and water divisions, which bond resolutions have been approved by the council.

D. *Form of budget.* The budget of the Memphis light, gas and water division shall be submitted by the Memphis light, gas and water division in such form as to comply with the requirements of the Federal Energy Regulatory Commission, the accounting principles applicable to utilities, the regulations or any other applicable regulatory body, and in accordance with the provisions of the bond resolutions approved by the city council for the electric, gas and water divisions.
(Code 1985, § 2-258; Ord. No. 3509, §§ 1—4, 11-5-1985)

Sec. 2-20-4. Provision of natural or artificial gas and electric services within city.

A. Without a franchise granted by the council of the city, no person, firm or corporation ("person") shall have the right or privilege:

1. To erect, construct, operate or maintain or use any natural or artificial gas pipeline, plant or system or gasworks, or electric light and power system or works within the city in order to sell or distribute or provide nonmunicipal natural or artificial gas or electrical power and energy to itself or any other user or consumer within the city; or

2. To use the streets or alleys of the city for such purpose; or

3. To interconnect any building, structure or facility of any kind to any natural or artificial gas pipeline or system, or electrical line or system other than to the natural gas or electrical system of the Memphis light, gas and water division.

4. Subsection A of this section shall not apply to the on-site generation or production and self-consumption of electricity, natural or artificial gas.

B. No ordinance for the grant of a franchise for an electric distribution system or a natural or artificial gas distribution system as set forth in subsection A of this section shall be granted except under such terms and conditions as shall preserve the financial integrity of the Memphis light, gas and water division and the amount of in lieu of tax payments received by the city from the Memphis light, gas and water division. Such franchise ordinance shall require that any franchise holder shall pay to the city a maximum franchise fee of five percent of gross receipts of the electric or gas distribution system. Gross receipts shall include the costs of operation and the costs of purchased electric power and natural gas. If the franchise holder is distributing to itself, the gross receipts shall include not only the cost of operation of the distribution system, but the cost of the electricity or gas to be distributed. The franchise holder shall be required to make all of its records available to the city for the purpose of determining the franchise fee. If the franchise holder is also the owner of any natural gas facilities or the producer of electricity, the cost of the natural gas or the cost of the electricity shall not be less than the average annual cost for the preceding calendar year of electricity (demand and commodity charges) or such natural gas (commodity charge only) to the Memphis light, gas and water division for the purpose of computing the franchise fee. If franchises are granted by Shelby County and the City of Memphis, the franchise fee of the city shall be computed by applying the city percentage the total gross receipts within both Shelby County and the City of Memphis. One-half of that amount shall be allocated to facilities and one-half to consumption. The amount payable to the city from the portion allocated to facilities shall be its proportion of the value of facilities within the city to the total value of facilities. The amount payable to the city from the portion allocated to consumption shall be its proportion of the amount of consumption within the city to the total consumption. The allocation between the city and the county shall be adjusted as of the effective date of any annexation by the city and prorated for the franchise year.

C. Unless a franchise has been given or granted it is unlawful for any person:

1. To erect, construct, operate or maintain or use any natural or artificial gas pipeline, plant or

system or gasworks, or electric light and power system or works within the city in order to sell or distribute or provide nonmunicipal natural or artificial gas or electrical power and energy to itself or other consumer within the city; or

2. To use the streets or alleys of the city for such purpose; or

3. To interconnect any building, structure or facility of any kind to any natural or artificial gas pipeline or system, or electrical line or system other than to the natural gas or electrical system of the Memphis light, gas and water division.

D. The above provision shall not apply to a cogeneration facility permitted by law whereby any excess is to be distributed by the Memphis light, gas and water division.

E. If any person constructs, operates or maintains any natural or artificial gas pipeline, plant or system or gasworks, or electric light and power system or works or sells or distributes any natural or artificial gas or electricity within the city, or makes any connections with gas or electrical lines or systems contrary to the provisions of the foregoing; then, in addition to any other remedies and measures provided by law, the city attorney or the general counsel of the Memphis light, gas and water division may commence an action in the name of and on behalf of the city for suitable and appropriate legal and equitable relief.
(Code 1985, § 2-259; Ord. No. 3838, § 1, 1-31-1989)

Sec. 2-20-5. Contracts in excess of $25,000.00; council approval required.

A. 1. Notwithstanding section 2-20-3 to the contrary, all contracts (other than emergency purchases and purchases of natural gas and other derivative instruments) entailing an obligation or expenditure, including fees or other compensation of any engineers, auditors, attorneys, consultants and others employed to render extraordinary services to MLG&W, in excess of $50,000.00 shall require council approval in advance of execution. Furthermore, all interlocal agreements or contracts between MLG&W and any municipality or division of government (other than the City of Memphis and its divisions) that involve the collection of any municipal, county, or other government fee, tax, or other charge not directly related to utility service (such as electricity, gas, or water utility service) shall require council approval in advance of execution. In emergencies MLG&W may enter into emergency purchases, as defined herein, which emergency purchases shall be later ratified by the council. MLG&W may also purchase natural gas and other derivative instruments as long as the aggregate annual amount of these purchases are approved by the council in the annual budget of MLG&W.

2. For the purposes of this section the term "emergency purchases" shall include, but shall not necessarily be limited to, any purchase orders and contracts in excess of $25,000.00 needed to: (i) remedy any hazardous, unsafe or environmentally harmful event or condition that has created or may create a harmful situation for the public or MLG&W employees, whether or not ordered, directed or requested by a federal or state agency; (ii) ensure continuous and reliable utility service to MLG&W customers; or (iii) take whatever steps are reasonably necessary to address problems caused by a catastrophic event.

B. Notwithstanding section 2-20-3 to the contrary, any salaries or other compensation of any officers, executive management employees or other employees for MLG&W in excess of $90,000.00 shall require council approval in advance of employment.
(Ord. No. 5046, §§ 1, 2, 4-27-2004; Ord. No. 5256, § 1, 4-24-2008; Ord. No. 5574, 1-6-2015)

CHAPTER 2-22. DIVISION OF ENGINEERING*

Sections:

Sec. 2-22-1. Created; control; city engineer.
Sec. 2-22-2. Preparation of plans, specifications and estimates of construction projects.
Sec. 2-22-3. City construction contracts.
Sec. 2-22-4. Surveying and engineering services; review of plans for compliance; establishment of official grades.
Sec. 2-22-5. Reports to director of public works.
Sec. 2-22-6. Miscellaneous duties.
Sec. 2-22-7. Engineering Administration and Permit Fees.

***Charter reference—**City engineer, §§ 196—198.

Sec. 2-22-8. Asphaltic binder paving of streets constructed as part of standard improvement contracts; costs.

Sec. 2-22-1. Created; control; city engineer.

A. There is created and established the division of engineering.

B. The chief officer of the division shall be the city engineer, who will report directly to the chief administrative officer regarding the operation of the department.
(Code 1985, § 2-221; Ord. No. 3421, § 1, 11-13-1984; Ord. No. 4397, § 3, 3-5-1996; Ord. No. 4740, § II, 2-15-2000)

Sec. 2-22-2. Preparation of plans, specifications and estimates of construction projects.

The city engineer shall be responsible for the preparation and oversight of plans, specifications, and estimates on all construction projects where the city and agencies under its control are a contracting party.
(Code 1985, § 2-222; Ord. No. 3421, § 1, 11-13-1984)

Sec. 2-22-3. City construction contracts.

Upon acceptance of bids, city construction contracts, subject to approval of the city attorney as to form and legality, shall refer to and adopt the plans and specifications relating thereto, and include the exact cost of the work to be performed, if practicable. Such contracts shall include a clause stating that the contract is subject to the right of the mayor or appropriate division director to suspend such work for any failure on the part of the contractor to comply with the provisions of the contract, and that such suspension shall not affect the right of the city to damages or penalties incident to such failure.
(Code 1985, § 2-223; Ord. No. 3421, § 1, 11-13-1984)

Sec. 2-22-4. Surveying and engineering services; review of plans for compliance; establishment of official grades.

The city engineer shall be responsible for the performances of all surveying and engineering services as directed by the chief administrative officer. The city engineer shall establish the official grades for streets or public thoroughfares in the city. The city engineer shall review for compliance the plans submitted by builders or real estate developers.
(Code 1985, § 2-224; Ord. No. 3421, § 1, 11-13-1984)

Sec. 2-22-5. Reports to director of public works.

The city engineer shall make monthly reports to the director of public works on all public works projects under his or her supervision and control.
(Code 1985, § 2-225; Ord. No. 3421, § 1, 11-13-1984; Ord. No. 4397, § 3, 3-5-1996; Ord. No. 4740, § II, 2-15-2000)

Sec. 2-22-6. Miscellaneous duties.

In addition to all other duties specified in this code and the Charter, the city engineer shall:

A. Analyze all proposed construction projects for feasibility;

B. Ensure compliance on construction and traffic projects with plans as specified;

C. Ensure compliance with all local, state, and federal regulations and codes for projects under control of the bureau of engineering; additionally, the city engineer is to maintain compliance with professional regulatory agencies recognized as uniform standards;

D. Provide planning, engineering design, and construction management of public facilities for the city, excluding those duties otherwise assigned by the chief administrative officer;

E. Provide administration and review of change orders;

F. Provide survey data to determine final quantities for construction projects to be utilized in determining final contract costs;

G. Review and approve modifications to plans as specified;

H. Maintain programs to determine the condition of public facilities and report such conditions to the chief administrative officer.

(Code 1985, § 2-226; Ord. No. 3421, § 1, 11-13-1984)

Sec. 2-22-7. Engineering Administration and Permit Fees.

A. For the processing of engineering permits and the performance of engineering administration in the processing of final plans for land development projects including subdivisions, planned developments, planned commercial developments and street dedications and the preparation of public improvement contracts. The city

engineer shall charge and receive from the applicant nonrefundable fees in accordance with the following fee schedule for all such projects and permit requests submitted to the city engineer for processing:

1. Development review fees:
   - a. Single Family Residential (5 lots or less), schools, churches:
     - 1. Base Fee . . . . . $ 525.00
     - 2. Incremental Fee per lot (added to base fee). 25.00
   - b. Single Family Residential (more than 5 lots)
     - 1. Base Fee 1,000.00
     - 2. Incremental Fee per lot (added to base fee) 50.00
   - c. Multi-Family Residential
     - 1. Base Fee 1,250.00
     - 2. Incremental Fee per unit (added to base fee) 25.00
   - d. Non-residential uses (1 acre or less)
     - 1. Base Fee 1,250.00
   - e. Non-residential uses (more than 1 acre)
     - 1. Base Fee 1,250.00
     - 2. Incremental fee per acre or portion thereof (added to base) 50.00
2. Developments Requiring Public Improvement Contracts:
   - a. Base Fee . . . . . $ 1,725.00
   - b. Incremental Fee (added to base fee) Greater of:
     - 1. Per lot (applies to single family residential only) . . . 50.00
     - 2. Per unit (applies to multi-family only) . 25.00
     - 3. Per acre (all uses) . 100.00
     - c. Maximum fee 7,000.00
3. Street Cut Permits:
   - a. Minimum Fee . . . . . $ 300.00
   - b. Per linear foot of pipe or other cut 10.00
   - c. Connection to existing structure 100.00
   - d. Construction of new structure 200.00
   - e. Street Improvements (per linear foot) 11.00
   - f. Sidewalk Improvements (per sq foot) 0.48
   - g. Curb Cut (per sq foot) . . 0.48
   - h. Curb, Gutter & Sidewalk (per sq foot) 0.83
4. Administrative Site Plan Review:
   - a. Base Fee . . . . . $ 750.00
   - b. Incremental Fee per acre or portion thereof (added to base fee) 25.00
5. Fiber Optic Cable Installation Permit (aerial or buried):
   - a. Base Fee . . . . . $ 750.00
   - b. Incremental Fee per linear foot of cable 1.00
6. Miscellaneous Charges:
   - a. Contract Time Extensions 250.00
   - b. Contract Bond Conversion 250.00
   - c. Contract Bond Reduction 250.00
   - d. Assignment/Assumption Agreement 250.00
   - e. Supplemental/Amended Agreement 750.00
   - f. Redraft Fee 250.00
   - g. Re-review fee for projects requiring more than 3 reviews (per additional review) 250.00
   - h. Plans Review Fee (due at time plans are first submitted) 525.00

i. Traffic Engineering Plan Review (direct submittal) 250.00

j. Plat Record/Re-record . . . 525.00

k. Street Closures, Easements, Encroachments 250.00

l. Monitoring Well Permits . 300.00

7. Engineering Permit Fees:

a. Bagged/Displaced Parking Meter Fee . . . . . $50.00 (plus current daily meter rate)

b. Construction Dumpster Permit Fee. . . . . $50.00 (plus $10 per day the dumpster is in the City ROW)

c. Special Permission Parking $50.00

d. Lane Closure Permit Fee . $50.00 (plus $10 per lane closed, per day)

e. Temporary Road/Alley Closure Permit Fee. . . . . $50.00 (plus $50.00 per day the Road/Alley is closed)

f. Sidewalk Closure Permit Fee. . . . . $50.00 (plus $10.00 per day the sidewalk is closed)

g. Over-Dimensional Transport Permit Fee . . . . $100.00 (plus any associated escort fees)

B. With the exception of the plans review fee, which is paid in advance, all fees for engineering administration shall be paid to the city engineer at the time the contract or permit is ready to be executed with the city through the city engineer.

C. Engineering permit fees:

1. The division of engineering shall establish all rules, regulations, and permit requirements associated with the above referenced engineering permit fees. Applicants will be required to give the division of engineering at least ten calendar days of advance notice on all permit requests unless the request is associated with a natural disaster or public emergency.

2. Permit fee waivers: Engineering permit fees associated with Lane, Road, or Sidewalk closures may be waived for the following:

a. City of Memphis crews performing roadway/sidewalk maintenance, repair, or construction.

b. City of Memphis contractors performing roadway/sidewalk maintenance, repair, or construction.

c. Activities associated with Federal, State, or County managed infrastructure projects.

d. Closures implemented by the Memphis Police Department for investigations or other public safety related issues.

e. Closures approved by the Memphis Police Department or City of Memphis Permits office for special events.

f. When the city engineer finds that it is necessary to close a portion of the public right-of-way for the immediate protection of public safety.

3. Penalty of violation: It shall be a violation of this chapter for any individual to block a portion of the public right-of-way or commence activity that requires a permit without first obtaining the required permit from the division of engineering. Anyone found in violation of this chapter commits a Class C misdemeanor and shall be subject to a $50.00 fine for each day that the violation remains in effect. Violators will also be required to retroactively pay all associated permit fees.

(Code 1985, § 2-227; Ord. No. 3421, § 1, 11-13-1984; Ord. No. 3585, § 1, 9-2-1986; Ord. No. 3746, § 1, 5-3-1988; Ord. No. 3877, § 1, 6-27-1989; Ord. No. 4536, § 1, 10-21-1997; Ord. No. 5109, § 1, 2005; Ord. No. 5766, § 1, 1-5-2021)

Sec. 2-22-8. Asphaltic binder paving of streets constructed as part of standard improvement contracts; costs.

A. The developer entering into a standard improvement contract with the City of Memphis shall be responsible for bearing the full expense of the asphaltic binder, surface course paving and striping on all streets located within the city limits of Memphis which are required to be constructed, widened, improved, modified or adjusted by the developer as a part of the standard improvement contract as prescribed below.

1. All paving materials, pavement markings and construction methods shall meet the requirements of the standard construction specifications of the City of Memphis and the plans approved by the city engineer.

2. The thickness, width and type of base material shall meet the requirements of the Memphis and Shelby County Unified Development Code and the Standard Construction Specifications of the City of Memphis Division of Engineering for each type and classification of street unless an alternative base material is approved by the city engineer.

3. a. Upon satisfactory completion of all other work required in the standard improvement contract, and after supplying the city engineer with standard density test data provided by an independent soils testing laboratory, the developer shall pave each street specified in the contract with an asphaltic binder, one and one-half inches thick.

   b. Upon satisfactory inspection of the asphaltic binder course by the City of Memphis, the developer shall pave each street specified in the contract with the surface course, one and one-half inches thick; unless otherwise specified by the approved engineering plans.

   c. If a pavement marking plan is required by the city engineer, the developer shall install all pavement markings on each street in accordance with the approved engineering plans.

4. No contract for subdivision development improvements shall be accepted by the Memphis City Council until such time as the developer has posted a performance bond for ten percent of the value of the public infrastructure improvements required herein. Said performance bond shall remain in force through the warranty period, as described in subsection (A)(5).

5. All standard improvement contracts and other contracts providing for the construction of roads to be maintained by the City of Memphis shall require the developer to provide a one-year bonded warranty for ten percent of the value of all labor and materials installed within the dedicated right-of-way for roadway pavement, drainage structures, sanitary sewer house connections and other improvements provided by the developer. The warranty is to be provided for the purpose of repairing failures to listed improvements that occur during the warranty period due to construction damage, defects in materials and workmanship, including, but not limited to, backfill and sub-grade compaction. All such repairs shall be at the developer's sole expense. The warranty to be provided pursuant to this section shall not extend to deficiencies arising from earthquake, flood and other natural catastrophes, acts of God or any other occurrences for which the developer cannot reasonably be held responsible. The one-year period (the warranty period) will begin upon acceptance by the Memphis City Council of all improvements completed by the developer. The value of the bond supplied during the warranty period shall be equal to ten percent of the value [of] all labor and materials installed within the dedicated right-of-way for roadway pavement, drainage structures, sanitary sewer house connections and other improvements provided by the developer (the warranty bond). The warranty shall require the developer to rectify all deficiencies that subsequently occur in the pavement, sub-grade compaction or utilities construction within the right-of-way within seven working days of having been notified by the City of Memphis Division of Public Works that deficiencies exist. Developer shall immediately repair and otherwise rectify any and all deficiencies to the satisfaction of the city engineer. Upon expiration of the warranty period, the developer shall request a final inspection from the city engineer. A written report of such

inspection, outlining items to be repaired, shall be delivered to the developer within seven working days after the developer's request. Developer will promptly make any and all corrections required to the work and notify the city engineer when such work is ready for reinspection. When the city engineer determines by such inspection that the roadway system and all appurtenances are in good condition, the paving bond shall be released.

6. The following timetable shall apply to the implementation of the paving requirements set forth herein:
   a. For all unexpired standard improvement contracts entered into between the City of Memphis and the developer before the effective date of this section, pavement standards stated in such contract shall remain in force.
   b. For all standard improvement contracts entered into between the City of Memphis and developer before the effective date of this section, but which contracts have expired, a contract extension will not be approved without an accompanying amendment that complies with the requirements outlined herein.
   c. For all subdivision improvement contracts entered into between the City of Memphis and developer after the effective date of this section, the requirements herein apply in full.

B. Affordable housing fee reimbursement. The city engineer shall be authorized to administer the reimbursement of certain fees collected by him or her elsewhere in this chapter and certain sewer development fees collected by him or her under title 13. Only new residential subdivisions (lots and the residential structures thereon) located within the city limits of Memphis which have been certified by the division of housing and community development as meeting the affordable housing guidelines of the city shall be eligible for fee reimbursement. In order to receive certification by the division of housing and community development, affordable housing developments must comply with the following procedures:

1. The developer shall make application to the director of housing and community development for entry into the affordable housing program. Upon receipt of an application, the director of housing and community development shall certify the maximum number of residential lots and houses in a new development which shall be eligible for participation in the program. The director of housing and community development shall then notify the city engineer of the certification in writing, specifying both the number of lots and houses so certified and the name of the subdivision in which they are located.
2. Upon receipt of all other necessary preliminary approvals, the developer shall enter in to a standard improvement contract through the city engineer's office, and shall pay to the city all standard fees chargeable at the time of contract execution. The contract shall include a provision under which the city will reimburse the developer for the following fees:
   a. Engineering administration fees;
   b. Sewer development fees;
   c. Asphaltic binder paving.

   The fees shall be reimbursed on a per lot, pro-rata basis as determined by the ratio of initially certified affordable housing lots to the total number of lots in the development. Reimbursement shall be made only after the sale of a house and lot to an owner/occupant and receipt by the city engineer of final written certification of such sale from the director of housing and community development.
3. The standard improvement contract shall stipulate a nonextendable four-year time limit (from the date of contract approval by the city council) during which the developer may receive reimbursement. The city engineer shall close the affordable housing reimbursement provisions of a contract upon the earlier of: (1) reimbursement of fees for the maximum number of lots and houses receiving initial certification; or (2) the expiration of the four-year time limit.
4. If no standard improvement contract is required by the development, the city engineer may collect the required fees and establish the affordable housing requirement schedule by resolution of the city council.

(Code 1985, § 2-228; Ord. No. 3974, § 1, 7-31-1990; Ord. No. 4241, § 1, 2-22-1994; Ord. No. 5271, § 1, 9-23-2008; Ord. No. 5506, § 1, 5-21-2013)

CHAPTER 2-24. DIVISION OF FIRE SERVICES

Sections:

Sec. 2-24-1. Established; director; transfer of bureaus, departments, funds.
Sec. 2-24-2. Members to obey orders and preserve equipment.
Sec. 2-24-3. Right of entry.
Sec. 2-24-4. Duty of members to report fire hazards.
Sec. 2-24-5. Detailing firefighters to places of public amusement.
Sec. 2-24-6. Members not to race to or from fires; apparatus to proceed in single file.
Sec. 2-24-7. Riding on division apparatus.
Sec. 2-24-8. Responsibility of drivers for damage to equipment.
Sec. 2-24-9. Interfering or tampering with alarm boxes and telephones.
Sec. 2-24-10. False fire alarms generally.
Sec. 2-24-11. Destroying or damaging property generally.
Sec. 2-24-12. Destroying buildings to arrest fires.
Sec. 2-24-13. Rules and regulations.
Sec. 2-24-14. Copies of fire marshal's reports of fires; fees.
Sec. 2-24-15. Review of fire marshal's reports; fee.
Sec. 2-24-16. Payment of fee.
Sec. 2-24-17. Copies of emergency unit incident reports of ambulance trips; fees.
Sec. 2-24-18. Review of emergency unit incident reports; fees.
Sec. 2-24-19. Payment of fee.
Sec. 2-24-20. Fees for use of fire services division equipment.
Sec. 2-24-21. Background checks for fire protection personnel.

Sec. 2-24-1. Established; director; transfer of bureaus, departments, funds.

There is established a division of fire services with a director for such division to be appointed thereto in the same manner as other directors, and there are transferred from the division of fire and police to the division of fire services the bureaus and departments known as the fire department.
(Code 1985, § 14-16; Ord. No. 1495, 10-10-1972)

Sec. 2-24-2. Members to obey orders and preserve equipment.

Every member of the fire services division shall obey the commands of his or her superior officers whether at fire stations or at fires, and shall perform such work and duties as he or she may be directed to do. All members of the services division shall preserve and care for all hose, engines, firefighting equipment and other city property as may come into their custody.
(Code 1967, § 17-37; Code 1985, § 14-17)

Sec. 2-24-3. Right of entry.

A. The members of the fire services division shall have the right to enter all buildings, structures and premises while fighting fires necessary to combat or bring such fires under control; and, further, the members of the fire services division, or any person designated by the director of fire services division or his or her designee, subject to the conditions hereinafter provided, shall have the right at reasonable hours to enter any building or premise for the purpose of making inspections.

B. Persons, other than the members of the fire services division who are designated by the director of fire services division or his or her designee to make inspection of properties, shall successfully complete special training and certification prior to making such inspections. Inspection sites and properties shall be specifically limited to those listed by the director or his or her designee. Reports shall be directed to the fire marshal's office for disposition as they deem proper.
(Code 1967, § 17-38; Code 1985, § 14-18; Ord. No. 3940, § 1, 2-20-1990)

Sec. 2-24-4. Duty of members to report fire hazards.

Whenever any inspection authorized in section 2-24-3 is made, and it shall come to the attention of any member of the fire services division that any of the fire hazards mentioned in sections 1.07 and 1.08 of the Standard Fire Protection Code exist on or about the premises, or that any ordinance of the city, or act of the general assembly, designed to prevent the ignition or spread of fires is being violated, it shall be the duty of such member forthwith to report the facts to the fire marshal who shall proceed to take all steps necessary to cause the fault to be remedied.
(Code 1967, § 17-39; Code 1985, § 14-19)

Sec. 2-24-5. Detailing firefighters to places of public amusement.

The fire marshal shall have the right, whenever he or she shall see fit so do to, to detail one or more uniformed firefighters to places of public amusement for the protection of life or property.
(Code 1967, § 17-40; Code 1985, § 14-20)

Sec. 2-24-6. Members not to race to or from fires; apparatus to proceed in single file.

Racing to and from fires or reckless driving by any member of the fire services division is prohibited, under penalty of dismissal. If the apparatus of the several companies proceed on the same street to or from a fire, they shall do so in single file.
(Code 1967, § 17-41; Code 1985, § 14-21)

Sec. 2-24-7. Riding on division apparatus.

The company commander of each company of the fire services division shall, in no instance, allow any person except members of the fire services division to ride on the apparatus, either in going to or from a fire.
(Code 1967, § 17-45; Code 1985, § 14-22)

Sec. 2-24-8. Responsibility of drivers for damage to equipment.

Any driver of any apparatus belonging to the fire services division who carelessly or willfully comes into collision with a vehicle of any kind, while going to or from a fire or fire alarm, shall be held responsible for all such damages that may occur, which shall be deducted from his or her wages.
(Code 1967, § 17-46; Code 1985, § 14-23)

Sec. 2-24-9. Interfering or tampering with alarm boxes and telephones.

It is unlawful for any person to interfere or tamper with the alarm boxes or with the telephones, telephone or telegraph wires, or signal system or apparatus of the fire services division.
(Code 1967, § 17-48; Code 1985, § 14-24)

Sec. 2-24-10. False fire alarms generally.

It shall be a misdemeanor for any person to willfully give or make a false alarm of fire, through the signal system of the fire services division, by telephone or otherwise.
(Code 1967, § 17-49; Code 1985, § 14-25)

State law reference—False alarms, T.C.A. § 39-16-502.

Sec. 2-24-11. Destroying or damaging property generally.

It is unlawful for any fire company, or member thereof, to destroy or damage any pavement or other public or private property, unless it shall be positively necessary to preserve or protect property that is in immediate danger of being destroyed or damaged by fire, and then only in obedience to the orders of the director of the fire services division or commander of the company.
(Code 1967, § 17-52; Code 1985, § 14-26)

State law reference—Vandalism, T.C.A. § 39-14-408.

Sec. 2-24-12. Destroying buildings to arrest fires.

Whenever a fire occurs in this city, if the director of the fire services division deems it necessary to pull down, blow up or destroy any building to arrest the fire, such building shall be removed or destroyed, as directed by the director.
(Code 1967, § 17-53; Code 1985, § 14-27)

Sec. 2-24-13. Rules and regulations.

The members of the fire services division shall be furnished with copies of the rules and regulations of the division, and it shall be the duty of the officers and men strictly to observe and conform to these rules and regulations.
(Code 1967, § 17-54; Code 1985, § 14-28)

Sec. 2-24-14. Copies of fire marshal's reports of fires; fees.

A. A complete copy or photostat of a report made in connection with any fire by the fire marshal's office of the fire services division shall be furnished as soon as practicable to the equitable or legal owner of the property involved upon acceptable identification, or anyone authorized in writing by such parties to receive same, upon surrender of such authorization. Such report shall contain the following information:

1. Address of fire;

2. Date and time of fire;
3. Type of building and number of floors;
4. How occupied;
5. Occupant and manager;
6. Owner and/or tenant, with address and phone number;
7. Fire discovered by whom, with address and phone number;
8. Area where fire started;
9. Name, address and phone number of person who turned in alarm;
10. Cause of fire;
11. Estimate of damage or loss to building and contents;
12. Investigators;
13. A statement of the condition of the nearest fire hydrant.

B. Upon request, copies shall be mailed to the applicant. In the event any person authorized to receive a copy of the fire marshal's fire report is incapacitated by disability from executing an authorization or otherwise unavailable to furnish such authorization, then the director of fire services shall be authorized to furnish copies as provided herein, upon written request of any person demonstrating his or her representation of an otherwise authorized party, as attorney, insurance representative, or any other bona fide interest. The director of fire services is authorized to fix a standard charge for copies of such reports not to exceed $10.00 for the first copy and $1.00 per page for each additional copy, and shall designate a period of not less than two hours daily, except Saturday and Sunday, during business hours, when such report shall be available, as above provided.
(Code 1967, § 17-55; Code 1985, § 14-29; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 3113, § 1(1), 4-14-1981; Ord. No. 5030, 2004)

Sec. 2-24-15. Review of fire marshal's reports; fee.

The fire services division shall permit the review of the reports of the fire marshal made in connection with any fire by persons authorized herein to secure copies of such reports. The fire services division may charge a fee of $10.00 for making such reports available for review by such persons.
(Code 1967, § 17-56; Code 1985, § 14-30; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 3113, § 1(2), 4-14-1981)

Sec. 2-24-16. Payment of fee.

The $10.00 fee required by sections 2-24-14 and 2-24-15 shall be paid to the fire marshal, who shall thereafter register the payment of each report in a receipt book, and forward the proceeds to the city treasurer at such intervals as directed with appropriate records.
(Code 1967, § 17-57; Code 1985, § 14-31; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 3113, § 1(3), 4-14-1981)

Sec. 2-24-17. Copies of emergency unit incident reports of ambulance trips; fees.

A. A complete copy or photostat of a report made in connection with any ambulance trip by the ambulance service bureau of the fire services division shall be furnished as soon as practicable to the persons authorized to secure copies of such reports upon acceptable identification, or anyone authorized in writing by such parties to receive same, upon surrender of such authorization. Such report shall contain the following information:

1. Name and address of patient;
2. Name and address of responsible party;
3. Patient age, sex and telephone number;
4. Responsible party telephone number;
5. Time and date of response;
6. Unit number and shift responding to call;
7. Signature of ambulance attendant;
8. Transported to hospital or not transported;
9. Condition of patient;
10. Apparent degree of injury or sickness;
11. Hospital destination;
12. Type of incident;
13. Services rendered;
14. Treatment refused or not required;
15. Procedures and equipment used;
16. Rescues made;

17. Any other comments or remarks written on report.

B. Upon request, copies shall be mailed to the applicant. In the event any person authorized to receive a copy of the emergency unit incident report is incapacitated by disability from executing an authorization or otherwise unavailable to furnish such authorization, then the director of fire services shall be authorized to furnish copies as provided herein, upon written request of any person demonstrating his or her representation of an otherwise authorized party, as attorney, insurance representative or any other bona fide interest. The director of fire services is authorized to fix a standard charge for copies of such reports not to exceed $10.00 for the first copy and $1.00 per page for each additional copy, and shall designate a period of not less than two hours daily, except Saturday and Sunday, during business hours, when such report shall be available, as above provided.
(Code 1967, § 17-58; Code 1985, § 14-32; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 2217, § 1, 3-4-1975; Ord. No. 3113, § 1(4), 4-14-1981)

Sec. 2-24-18. Review of emergency unit incident reports; fees.

The fire services division shall permit the review of the reports of the ambulance service bureau made in connection with any ambulance trip by persons authorized herein to secure copies of such reports. The fire services division may charge a fee of $10.00 for making such reports available for review by such persons.
(Code 1967, § 17-59; Code 1985, § 14-33; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 2217, § 1, 3-4-1975; Ord. No. 3113, § 1(5), 4-14-1981)

Sec. 2-24-19. Payment of fee.

The $10.00 shall be paid to the ambulance service bureau, who shall thereafter register the payment of each report in a receipt book, and forward the proceeds to the city treasurer at such intervals as directed with appropriate records.
(Code 1967, § 17-60; Code 1985, § 14-34; Ord. No. 1724, § 1, 5-15-1973; Ord. No. 2217, § 1, 3-4-1975; Ord. No. 3113, § 1(6), 4-14-1981)

Sec. 2-24-20. Fees for use of fire services division equipment.

A. *Authorized.* The fire services division may permit the use of certain of its equipment by persons or individuals, as authorized hereunder, and charge the users of such equipment a fee to defray the cost of providing for the maintenance of such equipment.

B. *Fee schedule.* Fees are established at the following schedule:

1.	Service fee for salvage covers (not caused by fire):	
	Tarpaulin or cover for storefront or roof	$20.00
	Plus per-day charge of	5.00
2.	Service fee for salvage covers (caused by fire):	
	First ten days	20.00
	Plus per-day additional charge of	5.00
3.	Service fee for pumping water (not caused by fire):	
	Initial charge	10.00
	Plus charge per 1,000 gallons of water	5.00

For the purpose of fixing charges, a day shall begin at 12:01 a.m.

C. *Collection of charges.* Users shall be billed by the city by the tenth of the month following use of such equipment, but the lack of receipt of such bill shall not relieve payment or forfeit the city's rights and remedies to collect for services rendered.

D. *Disposition of funds.* All fees collected under this section shall be paid into the general fund of the city for the purpose of administering this section.
(Code 1967, § 17-117; Code 1985, § 14-35; Ord. No. 1840, § 1, 9-4-1973)

Sec. 2-24-21. Background checks for fire protection personnel.

A. Definitions.

Employment means paid employment by the City of Memphis Fire Department.

Fire protection personnel means any paid or volunteer member or applicant of the City of Memphis Fire Department, such as firefighters, fire department officers, fire inspectors, fire investigators, and administrative assistance personnel.

B. As a condition of employment of any fire protection personnel, the human resources director or his designee shall conduct a criminal background check before making an offer of employment.

C. Criminal background check reports shall be maintained for the duration of employment plus one year. Access to the contents of a criminal background check shall be limited to the department head, human resource officers, and the employee's supervisor. The criminal background check shall not become part of the employee's personnel file.

D. Fire protection personnel shall:

1. Provide past work history and personal references to be checked by human resources.
2. Agree to the release of information and investigative records to the City of Memphis, or to any agency that contracts with the state, as may be necessary for the purpose of verifying whether the individual has been convicted of a felony or any theft or arson related conviction;
3. Supply a fingerprint sample and submit to a criminal history records check to be conducted by the Tennessee Bureau of Investigation, the federal bureau of investigation, other law enforcement agency or any legally authorized entity; and
4. Agree to the release of any information required for a criminal background investigation by a professional background screening organization or criminal background check service or registry.

(Ord. No. 5213, § 1, 9-5-2007)

CHAPTER 2-26. DIVISION OF PARK SERVICES

Sections:

Sec. 2-26-1. Created and established.
Sec. 2-26-2. Improvement of parks and other facilities.
Sec. 2-26-3. Acquisition of park lands.
Sec. 2-26-4. Establishment of control of parkways and boulevards.

Sec. 2-26-1. Created and established.

A. There is created and established a division of park services, which shall henceforth have complete and full control and management over all parks, playgrounds, recreational areas or centers, park or recreational facilities, parkways, boulevards, devices, concessions or any properties, projects, budgets or operations now or at any time devoted to or designated for use or used for park purposes or as part of the park system within the city.

B. The Memphis Park Commission's jurisdiction and control over all parks, playgrounds, recreational areas or centers, park or recreational facilities, parkways, boulevards, devices, concessions or any properties, projects, budgets or operations now devoted to or designated for use or used for park purposes or as part of the park system is rescinded and such jurisdiction, control and authority shall be transferred to and shall be vested in the division of park services. All existing properties, budgets, personnel and operations are transferred from the former Memphis Park Commission to the division of park services as of the effective date of Ordinance No. 4763.

C. The management and operations of the division of park services shall be under the supervision of a director of such division, who shall be appointed and removed in the same manner as other division directors of the city. The director of the division of park services shall report to, take direction from, and be responsible to the mayor for the efficient, economical and professional administration of the division of park services.

D. Notwithstanding anything in this chapter to the contrary; however, no land, building, or facility under the jurisdiction of the mayor and/or division of park services shall be demolished, sold, given to, dropped from funding, closed to services or leased to any non-municipal entity (excluding routine short-term rentals of two years or less) without prior authorization of the city council, nor shall the mayor enter into a use of facility agreement, partnership agreement or operating agreement regarding any such land, building or facility under the jurisdiction of the mayor without prior authorization of the city council.

(Code 1985, § 23-1; Ord. No. 4763, 4-25-2000)

Sec. 2-26-2. Improvement of parks and other facilities.

It shall be the duty of the division of parks to improve, maintain, operate and beautify all parks, properties and facilities.

(Code 1985, § 23-2; Ord. No. 4763, 4-25-2000)

Charter reference—Board approval required for contracts exceeding $5,000.00, § 579.1.

Sec. 2-26-3. Acquisition of park lands.

A. It shall be the duty of the mayor of Memphis to acquire, in the name of the city, such suitable tracts of land within the city as are best adapted for public parks

or recreational areas where the people may go for recreation and pleasure. Such land may be acquired by negotiation or condemnation.

B. The city council shall take all necessary actions required for the issuance of bonds to acquire such suitable tracts of land pursuant to subsection A of this section. The city council shall also annually adopt all resolutions and ordinances required to fund the interest on such bonds and to provide sufficient and reasonable funding to improve, maintain and operate all such parks, properties and facilities.

C. In the event any parks, properties or facilities under the control and jurisdiction of the division of park services are sold, taken through proceedings in eminent domain or otherwise diverted from the use as park land, the city shall be paid a fair market value for the properties or facilities, together with such incidental damages as are allowed by law, and such funds shall be used for the purchase of additional park lands and for no other purpose.
(Code 1985, § 23-3; Ord. No. 4763, 4-25-2000)

Charter reference—Acquisition of park lands, §§ 576, 577.

Sec. 2-26-4. Establishment of control of parkways and boulevards.

A. The division of parks is authorized to obtain, establish and construct a system of parkways or boulevards within the city and to have full and complete control over such parkways and boulevards.

B. The mayor of Memphis shall have the power to purchase, by private negotiation or acquire by condemnation, the necessary lands and property for the establishment and construction of such parkways and boulevards.
(Code 1985, § 23-4; Ord. No. 4763, 4-25-2000)

Charter reference—Acquisition of parkways between city and parks or between parks, § 578.

CHAPTER 2-28. DIVISION OF POLICE SERVICES*

Sections:

Sec. 2-28-1. Established; director; transfer of bureaus, departments, funds.
Sec. 2-28-2. Composition of division.
Sec. 2-28-3. Appointment, general powers and duties of director.
Sec. 2-28-4. Appointment of other officers and employees of division.
Sec. 2-28-5. Salaries.
Sec. 2-28-6. Uniforms and equipment furnished by city.
Sec. 2-28-7. Rules and regulations for conduct of department.
Sec. 2-28-8. Duty to enforce Code of Ordinances.
Sec. 2-28-9. Complaints against officers and patrol officers.
Sec. 2-28-10. Arrests generally.
Sec. 2-28-11. Disposition of property of persons arrested.
Sec. 2-28-12. Treatment of prisoners.
Sec. 2-28-13. Impersonating police officer.
Sec. 2-28-14. Offenses against police officers.
Sec. 2-28-15. Interference with police alarm boxes or signal system.
Sec. 2-28-16. Knife and gunshot wounds to be reported to police.
Sec. 2-28-17. Memphis Police Central Records charges and fees.

***Charter references—**Department of fire and police generally, §§ 63—67; duty of board to establish and maintain police department, § 68; police department, §§ 58—83; private detectives, §§ 83.1—83.11.

Sec. 2-28-1. Established; director; transfer of bureaus, departments, funds.

There is established a division of police services with a director for such division to be appointed thereto in the same manner as other directors, and there are transferred from the division of fire and police to the division of police services the bureaus and departments known as the police department.
(Code 1967, §§ 2-256, 30-1; Code 1985, § 28-1; Ord. No. 1495, 10-10-1972)

Sec. 2-28-2. Composition of division.

The city police services division shall consist of a director of police services, one deputy director, four deputy chiefs, and such chief inspectors, inspectors, captains, lieutenants, sergeants, detectives and patrol officers as may be necessary to efficiently conduct such division.
(Code 1967, § 30-1; Code 1985, § 28-2)

Sec. 2-28-3. Appointment, general powers and duties of director.

The director of police services shall be appointed by the mayor. The director of police services shall have general care of the peace of the city, and shall see that all subordinates do their duty in preserving the same. He or she shall have control over the entire police force and

see to the execution of every ordinance. He or she shall have general supervision over the subject of nuisances, and the abatement of same, and shall exercise and discharge all such powers and functions as pertain to his or her office and perform such other duties as may be required of him or her by this Code or other ordinance.
(Code 1967, § 30-2; Code 1985, § 28-3)

Sec. 2-28-4. Appointment of other officers and employees of division.

The director of police services is authorized and empowered to appoint one deputy director, four deputy chiefs and as many chief inspectors, inspectors, captains, lieutenants, sergeants, detectives and patrol officers, together with such emergency police, secretaries, clerks, stenographers, operators, janitors, turnkeys, desk lieutenants, desk sergeants, mechanics, matrons, women police officers and such other help as may be needed to efficiently police the city and to efficiently conduct the police division of the city.
(Code 1967, § 30-4; Code 1985, § 28-4)

Sec. 2-28-5. Salaries.

Where not fixed by statute, ordinance or resolution of the city council, the salaries or wages of all members of the police division are to be fixed in a manner consistent with city personnel policies and procedures.
(Code 1967, § 30-5; Code 1985, § 28-5)

Sec. 2-28-6. Uniforms and equipment furnished by city.

A. The police division shall furnish to all officers, upon entry on duty and receiving commissions, such equipment and uniform clothing which the director designates as necessary, but not to exceed a cost value per officer in the amount specified by the city council from time to time. The police division shall furnish to all officers replacement uniform clothing and equipment as needed, but not to exceed in cost to the police division the sum per year, per officer, specified by the city council from time to time.

B. All plainclothes officers shall be furnished by the police division a clothing allowance in an amount not to exceed per year, per officer, the amount specified by the city council from time to time.

C. The police division shall furnish all safety patrol personnel employed as school crossing guards, upon entry on duty, uniforms and equipment designated necessary by the director, but not to exceed in cost to the police division, per person, the amount specified by the city council from time to time. Thereafter, the police division shall furnish to such school crossing guards replacement uniforms and equipment as needed, but not to exceed per year, per person, the cost to the police division in the amount specified by the city council from time to time.

D. Items of uniforms and equipment issued to police division personnel under the provisions of this section shall remain the property of the city police division and shall be returned to the city police division by the person to whom issued upon termination of service, or upon the instructions of the director.

E. All items of uniforms and equipment issued under the provisions of this section may be declared expended, unuseable or beyond repair, when in the discretion of the director such appears warranted and may thereafter be disposed of in the manner determined most practicable by the director.
(Code 1967, § 30-7; Code 1985, § 28-6; Ord. No. 241, § 1, 8-6-1968; Ord. No. 411, §§ 1—6, 3-18-1969)

Sec. 2-28-7. Rules and regulations for conduct of department.

The director of police may, from time to time, promulgate and shall enforce such rules and regulations for the conduct of the police division, not inconsistent with the Charter and ordinances of the city, as may be necessary for the efficient conduct of the division and policing of the city.
(Code 1967, § 30-8; Code 1985, § 28-7)

Sec. 2-28-8. Duty to enforce Code of Ordinances.

It shall be the duty of the director of police and all his or her subordinates to enforce all of the provisions of this Code and all subsequent ordinances, and to arrest offenders for violations thereof, to be dealt with according to law, notwithstanding the creation of special police, inspectors, boards and commissions to enforce or supervise the enforcement of specific provisions of this Code and subsequent ordinances.
(Code 1967, § 30-9; Code 1985, § 28-8)

Sec. 2-28-9. Complaints against officers and patrol officers.

Complaints against officers or patrol officers of the division of police services shall be made through the director of police to the appropriate internal investigative unit of the division of police services.
(Code 1967, § 30-10; Code 1985, § 28-9)

Sec. 2-28-10. Arrests generally.

The police shall arrest all persons found violating any provisions of this Code or any city ordinance or law of the state, within the city limits. Such persons shall be immediately committed to the county jail. However such persons may be issued citations in lieu of arrest for such violations, in keeping with applicable city ordinances and state statutes which provide for such citations. Persons arrested for violation of a provision of any city ordinance may be released upon posting the established bond.
(Code 1967, § 30-11; Code 1985, § 28-10)

Sec. 2-28-11. Disposition of property of persons arrested.

No police officer shall, under any circumstances, receive or take any money, other valuable property, effects of any kind or description, from any person under arrest, or threatened with arrest, except evidence, contraband, weapons or other items seizeable under applicable state law. An officer taking any of the aforementioned property shall account for such property by receipt from the county jail property office and/or the police division property and evidence section. Any police officer or other officer violating the provisions of this section shall be deemed guilty of a misdemeanor, and shall be dismissed from office.
(Code 1967, § 30-12; Code 1985, § 28-11)

Sec. 2-28-12. Treatment of prisoners.

No officer having a prisoner in custody shall needlessly or illegally cause or allow any peril or detriment to the life or health of any such person, by reason of too little or too much heat, or of a want of food, drink, or ventilation, or from the want or neglect of any other reasonable care, protection or precaution.
(Code 1967, § 30-13; Code 1985, § 28-12)

Sec. 2-28-13. Impersonating police officer.

It is unlawful for any person, other than an official police officer of the city, to wear the uniform, apparel or any other insignia of office like or similar to, or a colorable imitation of, that adopted and worn by official police officers, or to represent himself or herself to be a police officer of the city.
(Code 1967, § 30-14; Code 1985, § 28-13)

Sec. 2-28-14. Offenses against police officers.

It is unlawful for any person to assault or commit a battery upon any member of the police force, to resist the lawful arrest by any member of the police force, to escape from any lawful arrest by a member of the police force, to aid and abet in the escape from lawful arrest, or to obstruct or interfere in any manner with any police officer while in the performance of his or her lawful duties.
(Code 1967, § 22-34.1; Code 1985, § 28-14; Ord. No. 953, § 1, 5-11-1971)

State law reference—Obstruction of law enforcement, T.C.A. § 39-16-602.

Sec. 2-28-15. Interference with police alarm boxes or signal system.

It shall be a misdemeanor for any person to interfere or tamper with the alarm boxes or with the telephones, telephone or telegraph wires, radio frequencies, radio equipment, or signal system or apparatus of the division of police services.
(Code 1967, § 30-16; Code 1985, § 28-15)

Sec. 2-28-16. Knife and gunshot wounds to be reported to police.

All physicians, surgeons, and hospitals, whether public or private, shall report to the police division all cases of knife and gunshot wounds treated by such physicians and surgeons, or contained in such hospital. Such report shall be made immediately by telephone or in writing and shall set forth the name, age, gender and color of the person so injured and his or her present location, and shall be delivered to the police division either in person or by letter immediately after the case comes to the knowledge of such physician, surgeon or hospital.
(Code 1967, § 30-17; Code 1985, § 28-16)

State law reference—Similar provisions, T.C.A. § 38-1-101.

Sec. 2-28-17. Memphis Police Central Records charges and fees.

A. *Fees and charges established.* There is hereby established central records fees and charges to defray part of the costs associated with the review, production and redaction of documents, which fees and charges shall be payable by the requestor prior to receipt. Said fees and charges shall be billed by the Memphis Police Department on behalf of the City of Memphis and the proceeds used exclusively by the Memphis Police Department.

B. *Fees deposited in MPD administrative fund.* One third of the total of all proceeds collected by police central records pursuant to the above shall be deposited into the revenue account of central records in the division of police services, with the remaining proceeds to be deposited into the Memphis Police Department's Information and Technology Service Center revenue account to support maintenance, equipment, training and new initiatives within the real time crime center.

C. *Fees schedules—Payable to central records.* Fees and charges are set out as follows, and shall apply to any record maintained by central records. An additional processing fee will be charged for requests that require more than one hour of labor to produce. The rate of the processing fee shall be equivalent to the processing employee's hourly salary, and the fee shall accumulate for every minute beyond one hour that it takes to fully process the request. Shipping or other production fees may also apply. When available, an electronic version of the record may be produced at no charge; labor processing fees may still apply.

1. *Accident/incident reports.*

TN residents auto crash reports	$0.15 per page
Out of state residents auto crash reports	$15.00 per report
TN residents offense reports	$0.15 per page
Out of state residents offense reports	$15.00 per report
Auto crash scene/ crime scene photos	$1.50 each
Auto crash scene/ crime scene photos (CD's)	$10.00 each
Mug shots/booking photos	$5.00 each
Crime analysis	$0.15 per page

2. *Academy training files.*

Basic training CD's	$10.00 each
In service training CD's	$10.00 each
Specialized training CD's	$10.00 each
Driving training CD's	$10.00 each
Firearms training CD's	$10.00 each
MPD policies & procedure CD's	$10.00 each
MPD policies & procedure printed manual	$75.00 each

3. *Human resource records.*

Personnel files	$0.15 per page
Employment files	$0.15 per page

4. *Communications records.*

Dispatched audio with print-out (CD)	$10.00 per event
Dispatach—Print-out only	$0.15 per page
Body camera footage (DVD)	$5.00 per event
Dash camera footage (DVD)	$5.00 per event

5. *Miscellaneous police records.*

Officer log sheets	$0.15 per page
IAB files	$0.15 per page
MPD union contract agreement book	$25.00 each
Wrecker ordinance/ guideline books	$25.00 each

(Ord. No. 5612, § 1, 4-5-2016)

CHAPTER 2-30. SPECIAL POLICE OFFICERS

Sections:

Sec. 2-30-1. Definitions.

Sec. 2-30-2. Appointment required.
Sec. 2-30-3. Application for appointment.
Sec. 2-30-4. Investigation of applicant for commission.
Sec. 2-30-5. Standards for issuance of commission.
Sec. 2-30-6. Standards applicable to employees.
Sec. 2-30-7. Conditions of commission.
Sec. 2-30-8. Bond of special officers.
Sec. 2-30-9. Oath.
Sec. 2-30-10. Powers.
Sec. 2-30-11. Promulgation of regulations by director of police services.
Sec. 2-30-12. Exemptions from provisions.

Sec. 2-30-1. Definitions.

As used in this chapter:

Limited special police officer is any person qualified hereunder except who is not authorized to carry firearms on duty.

Special police officer is any person who accepts employment for hire, fee or reward for the purpose of policing, watching and guarding the property or premises of individuals, firms, partnerships, associations, corporations, company or organization of any kind within the limits of the city.
(Code 1967, § 30-28; Code 1985, § 28-31; Ord. No. 498, § 2, 7-8-1969; Ord. No. 985, § 1, 7-13-1971)

Sec. 2-30-2. Appointment required.

A. The director of police services may permit persons to engage in the business of policing, watching and guarding the premises or property of persons in some particular area of the city. No person shall operate or be permitted to operate as a special police officer or as a limited special police officer in the city without first being appointed as such by the director of police services.

B. Applicants for appointment and commission under provisions of this chapter may be employed as limited special police officers prior to receiving appointment and commission, only with the approval of the director of police services, after an investigation has been conducted as to whether such applicant has any criminal record.
(Code 1967, § 30-29; Code 1985, § 28-32; Ord. No. 498, § 3, 7-8-1969; Ord. No. 985, § 2, 7-13-1971)

Sec. 2-30-3. Application for appointment.

A. Appointments made hereunder shall be made upon blank forms prepared and made available by the director of police services and shall state:

1. The full name, age, residence, present and previous occupations of the applicant;

2. Whether the person signing the application is a citizen of the United States;

3. A specific description of the location of the principal place of business of the applicant;

4. The number of years experience the applicant has had as a special police officer or in related fields;

5. The length of time applicant has been a bona fide resident of the state immediately preceding the filing of the application;

6. The application required hereunder shall be accompanied by a full set of fingerprints and a recent photograph of the applicant;

7. Such other information as the director of police services shall find reasonably necessary to effectuate the general purpose of this chapter and to make a fair determination of whether the terms of this chapter have been complied with.

B. A fee of $30.00 shall be charged for processing each application for such a commission. Such persons may use temporary employees for special events, at the discretion of the director of police services, without securing such a permit or paying such $30.00 fee where the temporary employment does not exceed ten days and such employee does not wear firearms in connection with such employment; however, the names, addresses and birth date of such temporary employees, and the identity and date of the special event for which they are to be employed, shall be furnished to and approved by the director of police services, or his or her designated representative, at least ten days prior to the commencement of such special event.
(Code 1967, § 30-30; Code 1985, § 28-33; Ord. No. 498, § 4, 7-8-1969; Ord. No. 1714, § 1, 5-8-1973)

Sec. 2-30-4. Investigation of applicant for commission.

After receipt of an application as provided for herein, the director of police services shall cause an investigation to be made of the applicant and his or her proposed operation.
(Code 1967, § 30-31; Code 1985, § 28-34; Ord. No. 498, § 5, 7-8-1969)

Sec. 2-30-5. Standards for issuance of commission.

A. The director of police services shall appoint special police officers and limited special police officers hereunder when he or she finds:

1. That the applicant is of good moral character;
2. That the applicant has never been convicted of a felony or any crime involving moral turpitude;
3. That the applicant is a natural born or a fully naturalized citizen of the United States;
4. That the applicant, prior to use of or carrying any firearms, has satisfactorily demonstrated to a designated representative of the director of police services that he or she possesses satisfactory proficiency and qualifications for the use and/or carrying of firearms.

B. The provisions of subsection (A)(4) of this section shall not apply to any person who is given a limited special police officer permit.

C. The director of police services is authorized to impose a fee not to exceed $15.00 for the testing of such applicants as to firearms qualification.

D. Failure to comply with the requirements of this section shall be the basis for revocation, in the discretion of the director of police services, of commissions previously issued.

E. Any person applying for a special police officer commission whose application has been processed satisfactorily, except that he or she has not completed the provisions of subsection (A)(4) of this section, may be issued a limited special police officer commission pending his or her completion of provisions of subsection (A)(4) of this section.
(Code 1967, § 30-32; Code 1985, § 28-35; Ord. No. 498, § 6, 7-8-1969; Ord. No. 536, § 1, 8-26-1969; Ord. No. 985, § 3, 7-13-1971; Ord. No. 1714, § 2, 5-8-1973)

Sec. 2-30-6. Standards applicable to employees.

All persons who are to be employed as special police officers by any person having or applying for a permit under this chapter shall meet the standards set forth in this chapter, and violation of such standards shall be an additional ground for revocation of the commission and permit of the employer.
(Code 1967, § 30-33; Code 1985, § 28-36; Ord. No. 498, § 7, 7-8-1969; Ord. No. 985, § 4, 7-13-1971)

Sec. 2-30-7. Conditions of commission.

The following conditions shall apply to all commissions:

A. No special police officer or limited special police officer appointed under this chapter shall perform duty for any person other than the one for whom or which he or she is appointed.

B. Commissions issued under this chapter shall be subject to revocation or suspension by the director of police services for violation of any of the provisions or of the rules and regulations issued under this chapter or misconduct by the permit holder or his or her employees, after reasonable notice and an opportunity to be heard has been given the permit holder.

C. Commissions or permits issued hereunder shall not be transferable.

D. No special police officer or limited special police officer shall perform duties for any person in connection with any election on election day, except upon employment by the county election commission.

E. In carrying out the duties of special police officer or limited special police officer which is for the purpose of guarding property, no such officer shall go upon the premises or grounds of a polling place on election day.

F. No special police officer or limited special police officer when exercising his or her privilege of voting may wear his or her uniform or carry his or her firearms, if authorized, while exercising the privilege of voting.

G. Violation of the subsections of this section shall be a misdemeanor punishable as provided in section 1-24-1.

(Code 1967, § 30-34; Code 1985, § 28-37; Ord. No. 498, § 8, 7-8-1969; Ord. No. 985, § 5, 7-13-1971; Ord. No. 2131, § 1, 10-1-1974)

Sec. 2-30-8. Bond of special officers.

A. All special police officers and limited special police officers appointed shall be required to give the following bond in the penal sum of $500.00:

STATE OF TENNESSEE,
SHELBY COUNTY,
CITY OF MEMPHIS

KNOW ALL MEN BY THESE PRESENTS:

That we, _____, as principal, and _____ as his surety, are held and firmly bound unto the Mayor of the City of Memphis, Shelby County, Tennessee, in the penal sum of five hundred and no/100 dollars, for the payment whereof well and truly to be made, we bind ourselves respectively and our respective heirs.

Signed this _____ day of _____, 20____.

The condition of the above bond is such that, whereas the above bounden _____ has been duly appointed by the director of fire and police of the City of Memphis to be special police officer or limited special police officer upon the premises or property of _____ (or within the area appointed by) _____ during the pleasure of the said director of fire and police.

Now if the said _____ shall well and truly and faithfully perform and fulfill, according to law, all and singular the duties of the said office for the said term, then the said bond is null and void; otherwise, it is to remain in full force and virtue.

_____ (Seal)

_____ (Seal)

_____ (Seal)

B. Employees of the city, including, but not limited to, employees of the Memphis Park Commission, Memphis Brooks Museum of Art, fire services division, sanitation division, transportation department, city and county health department, and board of education, Memphis city schools, shall not be required to provide or give the above described bond.
(Code 1967, § 30-35; Code 1985, § 28-38; Ord. No. 498, § 9, 7-8-1969; Ord. No. 985, § 6, 7-13-1971; Ord. No. 1507, § 1, 10-31-1972)

Sec. 2-30-9. Oath.

All special police officers and limited special police officers shall be required to take the following oath:

STATE OF TENNESSEE
CITY OF MEMPHIS
SHELBY COUNTY

I, _____, do solemnly swear that I will support the Constitution of the United States and the Constitution of the State of Tennessee, the laws and ordinances of the City of Memphis, Shelby County, Tennessee, and that I will faithfully demean myself while in office of special police officer or limited special police officer. So help me God.

Subscribed and sworn to before me this _____ day of_____, 20____.

_____
(Code 1967, § 30-35.1; Code 1985, § 28-39; Ord. No. 498, § 10, 7-8-1969; Ord. No. 985, § 7, 7-13-1971)

Sec. 2-30-10. Powers.

Special police officers and limited special police officers appointed under the provisions of this chapter for the purpose of policing, watching and guarding the premises and property of persons shall have the same power and authority upon the property or premises which they are appointed to police as the regular police officers of the city, but not otherwise; provided that, limited special police officers shall not be authorized to carry firearms on duty.
(Code 1967, § 30-35.2; Code 1985, § 28-40; Ord. No. 498, § 11, 7-8-1969; Ord. No. 985, § 8, 7-13-1971)

Sec. 2-30-11. Promulgation of regulations by director of police services.

The director of police services, subject to the approval of the city council, has the authority to establish and enforce reasonable rules and regulations for the operation of special police officers and limited special police officers in the interest of public safety, morals and welfare and to effectuate the general purpose of this chapter.
(Code 1967, § 30-35.3; Code 1985, § 28-41; Ord. No. 498, § 12, 7-8-1969; Ord. No. 985, § 9, 7-13-1971)

Sec. 2-30-12. Exemptions from provisions.

The provisions of this chapter shall not apply to unarmed employees of the owner or lessee of the premises or property being leased, watched or guarded. (Code 1967, § 35.5; Code 1985, § 28-42; Ord. No. 2910, § 1, 8-21-1979)

CHAPTER 2-32. POLICE RESERVE FORCE

Sections:

Sec. 2-32-1. Designation, membership and employee status.
Sec. 2-32-2. Diminishing or increasing the force.
Sec. 2-32-3. Director of police to have control.
Sec. 2-32-4. Method of appointment and qualifications of members.
Sec. 2-32-5. Removal from membership; resignation.
Sec. 2-32-6. Summary dismissal of members; publication.
Sec. 2-32-7. Uniform, badges and insignia designated by director; illegal wearing or use thereof.
Sec. 2-32-8. Identification cards.
Sec. 2-32-9. Duties.
Sec. 2-32-10. Power and authority of members.
Sec. 2-32-11. False personation.
Sec. 2-32-12. Compensation.

Sec. 2-32-1. Designation, membership and employee status.

This auxiliary police force shall be designated as the "Memphis Police Reserve" and shall be composed of voluntary membership not to exceed 300 members; such members shall be headed by the director of police of the city, hereinafter designated as the "director." They shall be part-time employees of the city police services division and shall be included in any life or health insurance or other such fringe benefits provided for employees of the city, if they so desire, but shall not be included under the civil service or retirement system of the city.
(Code 1967, § 30-36; Code 1985, § 28-56; Ord. No. 270, § I, 9-3-1968; Ord. No. 486, § 1, 6-17-1969)

Sec. 2-32-2. Diminishing or increasing the force.

The director may by order diminish or expand the membership of the police reserve, as may in his or her judgment be required, within the limit established in section 2-32-1.
(Code 1967, § 30-37; Code 1985, § 28-57; Ord. No. 270, § VII, 9-3-1968)

Sec. 2-32-3. Director of police to have control.

The director shall have complete authority, control and command over the police reserve, subject to the provisions of this chapter. He or she may appoint as members thereof any person he or she may consider qualified and may reject any application for membership. He or she shall provide for the training of candidates for membership and for the further training of members.
(Code 1967, § 30-38; Code 1985, § 28-58; Ord. No. 270, § II, 9-3-1968)

Sec. 2-32-4. Method of appointment and qualifications of members.

A. No person shall be considered a member of the police reserve until he or she has been duly appointed by the director, registered on a roster kept by the director, and until he or she has taken the oath provided for officers of the police services division and provided by the city with the bond provided for by law.

B. Persons eligible for membership shall be not less than 21 years nor more than 45 years of age and shall be citizens of the United States, residents of Shelby County, Tennessee, and of excellent character and reputation. They shall be in excellent physical condition, mentally stable, and suffer from no ailment or disability which would limit or prevent engaging in strenuous exercise or the use of firearms. Restrictions and regulations as to age and physical condition may be waived only in the discretion of the director in those cases involving special qualification, abilities and aptitude in the best interest of the police services division. Persons eligible for this program shall be reviewed by internal audit annually and persons eligible shall require documentation of the number of duty hours worked annually.
(Code 1967, § 30-39; Code 1985, § 28-59; Ord. No. 270, § III, 9-3-1968; Ord. No. 486, § 2, 6-17-1969; Ord. No. 5760, § 1, 9-1-2020)

Sec. 2-32-5. Removal from membership; resignation.

Membership of any person may be terminated at the will and pleasure of the director. Any member may resign from the police reserve at any time, but it shall be his or her duty to notify the director of his or her resignation.
(Code 1967, § 30-40; Code 1985, § 28-60; Ord. No. 270, § VI, 9-3-1968)

Sec. 2-32-6. Summary dismissal of members; publication.

In addition to the penalties provided by law, any violation of law under color of the performance of his or her duties as a member of the police reserve, and any breach of the rules and regulations established by the director shall subject any member to summary dismissal, and the fact thereof may be published at the order of the director.
(Code 1967, § 30-41; Code 1985, § 28-61; Ord. No. 270, § IX, 9-3-1968)

Sec. 2-32-7. Uniform, badges and insignia designated by director; illegal wearing or use thereof.

The director shall prescribe the uniforms, badges and insignia for members of the police reserve and the manner in which the same shall be worn. Members shall themselves furnish at no expense to the city, uniforms and equipment. It shall be a misdemeanor, punishable as provided in section 1-24-1, for anyone not a member in good standing of such force to wear or use the uniforms, badge or insignia so prescribed.
(Code 1967, § 30-42; Code 1985, § 28-62; Ord. No. 270, § XI, 9-3-1968)

Sec. 2-32-8. Identification cards.

An identification card and such other insignia or evidence of identity as the director may prescribe shall be issued to each member who must carry such identification at all times while on duty, and he or she must surrender them upon the termination of his or her membership.
(Code 1967, § 30-43; Code 1985, § 28-63; Ord. No. 270, § V, 9-3-1968)

Sec. 2-32-9. Duties.

The duties of the police reserve, subject at all times to the direction, supervision and control of the director, shall be to assist the regular members of the police services division in enforcement of the law and maintenance of peace and order at such times provided for and designated by the director. The director shall establish rules and regulations to govern the police reserve, to fix the specific duties of its members and provide for the maintenance of discipline. The director may change such orders from time to time, provided no member shall in any manner perform any act as a member of the police reserve unless he or she is specifically designated for duty as such member at the time. The director may prescribe other duties than those mentioned herein to be performed by the police reserve, not inconsistent with the provisions hereof.
(Code 1967, § 30-44; Code 1985, § 28-64; Ord. No. 270, § IV, 9-3-1968)

Sec. 2-32-10. Power and authority of members.

A. *Carrying firearms.* Members of the police reserve shall be authorized, while on official duty as members of such reserve, to carry firearms in accordance with the provisions of T.C.A. § 39-6-1702, and as prescribed by the rules and regulations as set forth by the director of the police services division.

B. *Powers of arrest.* Members of the police reserve, while on or off duty as members thereof, shall have the same arrest powers enjoyed by regular officers, while on or off duty, of the police services division.
(Code 1967, § 30-45; Code 1985, § 28-65; Ord. No. 270, § VIII, 9-3-1968; Ord. No. 486, § 3, 6-17-1969; Ord. No. 1617, § 1, 1-30-1973)

Sec. 2-32-11. False personation.

It shall be a misdemeanor, punishable in section 1-24-1, for any person to wear, carry or display a police reserve identification card, or otherwise deceitfully represent himself or herself to be a member of or connected with the police reserve, unless he or she is in fact a member thereof in good standing.
(Code 1967, § 30-46; Code 1985, § 28-66; Ord. No. 270, § X, 9-3-1968)

Sec. 2-32-12. Compensation.

Where not fixed by statute, ordinance or resolution of the city council, the compensation, salary or wages of members of the police reserve are to be fixed at the rate of $1.00 per year.
(Code 1967, § 30-47; Code 1985, § 28-67; Ord. No. 486, § 4, 6-17-1969)

CHAPTER 2-34. COMMUNITY SERVICE OFFICERS

Sections:

Sec. 2-34-1. Definitions.
Sec. 2-34-2. Designation; membership; employee status.
Sec. 2-34-3. Purpose.

Sec. 2-34-4. Commander of security services.
Sec. 2-34-5. Salaries.
Sec. 2-34-6. Uniforms and equipment furnished by city.
Sec. 2-34-7. Rules and regulations for conduct of the unit.
Sec. 2-34-8. Duty to enforce Code of Ordinances.
Sec. 2-34-9. Complaints against officers and aides or unit.
Sec. 2-34-10. Arrests generally.
Sec. 2-34-11. Disposition of property of persons arrested.
Sec. 2-34-12. Unauthorized citizens impersonating officer.

Sec. 2-34-1. Definitions.

As used in this chapter:

Commander of security service is the person charged with supervision of the public housing security services unit.

Community service officer is any person who accepts employment by the city for the purpose of policing, watching and guarding the property or premises and surrounding areas. He or she shall be authorized to carry firearms only while on duty.

Rules and regulations shall be the procedure established by the director of police services, and will embody the responsibilities and duties of all personnel assigned to this unit.

Service areas shall be the area which includes the housing project named by the director of police services and any adjacent territories which are designated to be patrolled by members of be public housing security services unit. Each area shall be specified by boundaries and/or streets, alleys or public way.
(Code 1967, § 30-59; Code 1985, § 28-81; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-2. Designation; membership; employee status.

The police force shall be designated as the public housing security services unit and will be composed of a commander of the public housing security service, designated from the police division by the director of police services to serve in this assignment at the will and pleasure of such director, and such other supervisors, aides, community service officers and clerical assistants as shall be designated by the director of police services. Members shall be full-time employees of the police services division, under the exclusive control and jurisdiction of the police services division, and shall be included in any life or health insurance or other such fringe benefits provided for all similar employees of the city, including coverage under the civil service system of the city.
(Code 1967, § 30-58; Code 1985, § 28-82; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-3. Purpose.

The purpose of the unit designated pursuant to this chapter is to preserve the peace and to protect both property and each individual residing in the housing development and all others who enter into the areas for any lawful purpose.
(Code 1967, § 30-60; Code 1985, § 28-83; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-4. Commander of security services.

The commander of the public housing security services unit shall be selected by the director of police services and shall have overall supervision of the public housing security services unit personnel assigned, and shall ensure each member carries out his or her duties in accordance with rules and regulations so established. He or she shall also have authority to recommend discharge of any personnel to the director of police services.
(Code 1967, § 30-61; Code 1985, § 28-84; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-5. Salaries.

Where not fixed by statute, ordinance or resolution of the city council, the salaries or wages of all members of the public housing security services unit are to be fixed in a manner consistent with city personnel policy and procedures.
(Code 1967, § 30-62; Code 1985, § 28-85; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-6. Uniforms and equipment furnished by city.

A. The police services division shall furnish to all officers of the unit designated pursuant to this chapter, upon entry on duty and receiving commissions, such equipment and uniform clothing which the director designates as necessary in accordance with established uniform allowance policy, and shall furnish such officers replacement uniform clothing and equipment as needed, in accordance with established uniform allowance policy.

B. Items of uniforms and equipment issued to officers of this unit under the provisions of this section shall remain the property of the police services division and shall be returned to the police services division by the person to whom issued upon termination of service, or upon the instructions of the director.

C. All items of uniforms and equipment issued under the provisions of this section may be declared expended, unuseable or beyond repair, when in the discretion of the director such appears warranted, and may thereafter be disposed of in the manner determined most practicable by the director.
(Code 1967, § 30-63; Code 1985, § 28-86; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-7. Rules and regulations for conduct of the unit.

The director of police services shall establish rules and regulations covering the conduct and duties of the public housing security services unit, and from time to time revise same, not inconsistent with the Charter and ordinances of the city, as may be necessary for the efficient conduct of the unit and policing of the city. Such rules and regulations shall be adopted by the police services division, subject to approval by the mayor.
(Code 1967, § 30-64; Code 1985, § 28-87; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-8. Duty to enforce Code of Ordinances.

It shall be the duty of the commander of the public housing security services unit and all his or her subordinates to enforce all statutes and ordinances, and to arrest offenders for violations thereof to be dealt with according to law. Persons appointed as community service officers shall have the same power and authority as regular police officers to enforce all statutes and ordinances at the service area but not elsewhere, except in pursuit. When not assigned to duty, community services officers shall enjoy only those powers possessed by private persons.
(Code 1967, § 30-65; Code 1985, § 28-88; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-9. Complaints against officers and aides or unit.

Complaints against officers or aides of the public housing security services unit shall be made through the commander of the public housing security service, who shall make a determination, or if he or she deems it necessary, will refer the matter to the internal affairs bureau of the police services division for further investigation, in which case a disposition shall be rendered by the officer of the director of police services.
(Code 1967, § 30-66; Code 1985, § 28-89; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-10. Arrests generally.

Officers of this unit shall arrest all persons found violating any provision of this Code or any city ordinance or law of the state, within the city limits. Such persons shall be immediately committed to the county jail. Persons arrested may be released as provided in section 2-28-10.
(Code 1967, § 30-67; Code 1985, § 28-90; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-11. Disposition of property of persons arrested.

The property of persons arrested under this chapter shall be disposed of as provided in section 2-28-11.
(Code 1967, § 30-68; Code 1985, § 28-91; Ord. No. 2107, § 1, 10-8-1974)

Sec. 2-34-12. Unauthorized citizens impersonating officer.

It is unlawful for any citizen other than an officially appointed community service officer of the city to wear the uniform apparel or other insignia of office like or similar to, or a colorable imitation of, that adopted and worn by community service officers, or to represent himself or herself to be a community service officer of the city.
(Code 1967, § 30-69; Code 1985, § 28-92; Ord. No. 2107, § 1, 10-8-1974)

CHAPTER 2-36. CONSTRUCTION CODE ENFORCEMENT AND FIRE PREVENTION SPECIAL OFFICERS

Sections:

Sec. 2-36-1. Definitions.
Sec. 2-36-2. Designation of building and fire services division employees as special police officers.
Sec. 2-36-3. Scope of authority.
Sec. 2-36-4. Unlawful not to appear as promised.

Sec. 2-36-5. Failure to comply with citation tickets.
Sec. 2-36-6. Authority of special police officers retained.

Sec. 2-36-1. Definitions.

For the purposes of this chapter the following definitions are applicable:

Administrator is the executive officer in charge of the bureau of construction code enforcement.

Citation is any ticket issued to a person showing the offense charged and signed by the person agreeing to appear at the time and place indicated.

Director of fire services is the executive officer in charge of the fire services division.

Employee is any employee under the administrator in the bureau of construction code enforcement, and any employee under the director of the division of fire services.

Summons is process issued by the city courts and signed by the judge or the clerk, as provided for in section 280 of the Charter of the city.
(Code 1967, § 30-80; Code 1985, § 28-106; Ord. No. 2437, § 1, 6-1-1976)

Sec. 2-36-2. Designation of building and fire services division employees as special police officers.

The administrator and the director of fire services may designate certain of their employees to be special police officers of the municipality for the purpose of issuance of citations or complaints in lieu of arrest of offenders in such cases as they have jurisdiction.
(Code 1967, § 30-81; Code 1985, § 28-107; Ord. No. 2437, § 1, 6-1-1976)

Sec. 2-36-3. Scope of authority.

When employees are so designated, they are, in lieu of arrest, authorized to issue citation tickets, summons, and legal process. In the event the form of such citation ticket includes information and is sworn to, as required by general laws of the state, with respect to a complaint charging the commission of the offense alleged in such citation ticket, when filed with a court or a branch of a court having jurisdiction, it shall be deemed to be a lawful complaint for the purpose of prosecution under the section specified.
(Code 1967, § 30-82; Code 1985, § 28-108; Ord. No. 2437, § 1, 6-1-1976)

Sec. 2-36-4. Unlawful not to appear as promised.

It is unlawful for any person to violate his or her written promise, given to an officer upon the issuance of a citation ticket, to appear regardless of the disposition of the charge for which such citation ticket was originally issued.
(Code 1967, § 30-83; Code 1985, § 28-109; Ord. No. 2437, § 1, 6-1-1976)

Sec. 2-36-5. Failure to comply with citation tickets.

In the event any person fails to comply with a citation ticket given to such person, or fails to make appearance pursuant to a summons directing an appearance in court, or if any person fails or refuses to deposit bail, as required, the clerk of the city court shall secure and issue a warrant for his or her arrest.
(Code 1967, § 30-84; Code 1985, § 28-110; Ord. No. 2437, § 1, 6-1-1976)

Sec. 2-36-6. Authority of special police officers retained.

Nothing herein contained shall be construed as removal of the designated special police officers' authority to make arrest for violations under their jurisdiction, and it shall be the duty of all police officers to render any assistance necessary.
(Code 1967, § 30-85; Code 1985, § 28-111; Ord. No. 2437, § 1, 6-1-1976)

CHAPTER 2-38. MEMPHIS BROOKS MUSEUM OF ART BOARD OF TRUSTEES

Sections:

Sec. 2-38-1. Reorganization, composition and qualifications of trustees.
Sec. 2-38-2. Appointment and term of trustees.
Sec. 2-38-3. Control; general powers and duties.

Sec. 2-38-1. Reorganization, composition and qualifications of trustees.

The board of trustees of the Memphis Brooks Museum of Art is reorganized as a semiautonomous board of 24

members who shall be over the age of 21 years and residents of the county, who shall have demonstrated experience, responsibility and ability in business management and an interest in civic and cultural development of the city.
(Code 1967, § 2-206; Code 1985, § 2-116; Ord. No. 660, § 2, 3-17-1970; Ord. No. 3057, § 1, 9-9-1980; Ord. No. 3272, § 1, 3-1-1982)

Sec. 2-38-2. Appointment and term of trustees.

The trustees of the Memphis Brooks Museum of Art, who shall constitute the board of trustees, shall be appointed by the mayor with the approval of a majority of the council for terms of three years. Any trustee appointed to fill a vacancy on the board of trustees shall serve only for the balance of the term of office of the vacancy so filled. Trustees whose terms shall expire may be reappointed to the office of trustee at the pleasure of the mayor with the approval of a majority of the council. All trustees of the Memphis Brooks Museum of Art shall serve without pay.
(Code 1967, § 2-207; Code 1985, § 2-117; Ord. No. 660, § 2, 3-17-1970; Ord. No. 3272, § 1, 3-1-1982)

Sec. 2-38-3. Control; general powers and duties.

A. *Control.* The board of trustees of the Memphis Brooks Museum of Art shall be supervised as to the use and administration of properties of the city, capital fund appropriations therefor and appropriations for operation and maintenance of the properties and programs of the Memphis Brooks Museum of Art provided from public funds by ordinances of the council, by the arts and science commission acting under the general control of the mayor.

B. *General powers and duties of trustees.*

1. All actions by the trustees and their appointed officers and agents regarding the application and expenditure of all moneys appropriated or contributed to the Memphis Brooks Museum of Art by the city shall be authorized by formal resolution of the board of trustees, adopted by the affirmative and recorded vote of a majority of the trustees, present as a quorum and voting, at a regular or specially-called meeting. Minutes of all such actions shall be open and subject to inspection by the arts and science commission, and the mayor and council.

2. The trustees shall manage, and administer the public properties and improvements of the Memphis Brooks Museum of Art and shall promote and develop the purposes, functions and services thereof for the cultural and educational use of the public and the collection, study and display of accessions of fine and decorative arts. They shall perform each and every obligation of the park commissioners and the city undertaken in agreements dated May 27, 1913, and May 23, 1916, between the park commission and Mrs. Bessie Brooks and approved by the city. The trustees shall be authorized to deaccession, sell or exchange of any fine and decorative art objects, artifacts, art reference books, documents and "gifts, devises and bequests of property in kind," in their custody as trustees of Memphis Brooks Museum of Art and, when and as they see fit, to apply the proceeds from any such sale to the purchase of other art objects, artifacts, or art reference documents as they may deem proper in accomplishing the purposes, functions and services of the Memphis Brooks Museum of Art, provided such transactions shall be approved by formal resolution adopted by the affirmative and recorded vote of a majority of the trustees.

3. The trustees shall prepare and submit complete and timely budget requests to the mayor and council through the arts and science commission at least annually, and at such times as shall be required by the mayor, and shall direct the application and expenditure of moneys appropriated by ordinances of the council for such budget requests, accounting to the arts and science commission under the general control of the mayor, and to the council, upon all expenditure of such public funds at least annually, and at such times and in such forms as the mayor shall require.

4. The members of the board of trustees may assume during their terms of office hereunder such additional purposes, powers and duties as shall be vested by lawful means upon such persons when serving jointly and concurrently as trustees and directors of a nonprofit general welfare corporation chartered by the state to promote, administer and develop through the use of private gifts, funds and endowments the

purposes, functions and services of the Memphis Brooks Museum of Art and the collection, study and display of accessions of fine and decorative arts, provided that such additional purposes, powers, and responsibilities shall be performed in practical harmony with the continuing public duties of the trustees of the Memphis Brooks Museum of Art defined by this chapter. Moneys and property of any character, including accessions of fine and decorative arts, from private sources and any governmental agency other than the city which are now held or may be acquired after the effective date of Ordinance No. 660 by the board of directors and trustees in the name of such nonprofit general welfare corporation for the purposes of such corporation shall not be held, received, expended or administered by the trustees pursuant to, or be subject to, the public duties defined by this chapter, and shall be subject only to the provisions, powers and authority granted to the board of directors and trustees of such general welfare corporation by the charter of incorporation and bylaws thereof.

5. The term "accessions of fine and decorative arts" means the acquisition and advancement by purchase and sale or exchange, and by gift, bequest, or loan of objects of fine art, including original paintings, drawings, sculpture and photographs created by individual artists or groups of artists and not produced in lots, and outstanding objects of decorative arts produced by industry from designs of artists, including ceramics, textiles, glass, metal, plastics, furniture, and others, when aesthetic consideration shall prevail, all in furtherance of the aims and objects of Mrs. Bessie Brooks, the founding and first benefactor of the museum.

6. The powers, duties and responsibilities of the Memphis Park Commission over the Memphis Brooks Museum of Art are declared dissolved and abolished.

(Code 1967, § 2-208; Code 1985, § 2-118; Ord. No. 660, § 2, 3-17-1970; Ord. No. 2023, § 1, 4-16-1974; Ord. No. 3272, § 1, 3-1-1982)

CHAPTER 2-40. MEMPHIS HUMAN SERVICES BOARD

Sections:

Sec. 2-40-1. Establishment.
Sec. 2-40-2. Compensation.
Sec. 2-40-3. Oath of office.
Sec. 2-40-4. Purpose; annual report.
Sec. 2-40-5. Rules and regulations.
Sec. 2-40-6. Meetings.
Sec. 2-40-7. Administration.

Sec. 2-40-1. Establishment.

A. *Designation.* There is established a board to be known as "Memphis Human Services Board" whose members shall be of lawful age and residents of the county.

B. *Members; appointment.* The board shall consist of nine members, who shall be appointed as follows: two council representatives appointed by the chairperson of the city council; two administration members appointed by the mayor of the city; one representative from the professional or business sector of the community and one citizen-at-large from the community who shall be appointed jointly by the mayor of the city and the chairperson of the city council; one representative from the state department of human services, and two members who shall be elected by the Memphis Advisory Council on Human Services, hereinafter described under section 2-60-1, one of whom shall be the chairperson of that advisory council. The chairperson of the city council, the mayor of the city, the chief administrative officer, and the director of finance and administration shall serve as ex officio members of the board without votes.

C. *Term of office.* The four city government representatives shall serve for a term of two years; the state department of human services, the two private sector members, and the two advisory council members shall serve for a term of two years. Upon the expiration of the original terms of such members, their successors shall be appointed for a term of two years each. All members of the board shall hold office until their successors have been appointed and approved, and such members may succeed themselves in office. Any vacancy in office shall be filled for the remainder of the term then in existence, on appointment, in the same manner as hereinbefore set forth.

(Code 1967, § 2-350; Code 1985, § 2-201; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-40-2. Compensation.

All members of the board established by this chapter shall serve without compensation.
(Code 1967, § 2-351; Code 1985, § 2-202; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-40-3. Oath of office.

Members of the board established by this chapter shall qualify and take an oath to uphold the Constitution of the United States and of the state, laws and ordinances of the city and to faithfully discharge the duties of such office.
(Code 1967, § 2-352; Code 1985, § 2-203; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-40-4. Purpose; annual report.

A. The purpose of the board established by this chapter shall be to serve as the focal point and assume responsibility within the city to provide information and recommendations regarding human service needs. It shall develop, from information, data, recommendations and/or advice provided by the hereinbefore named and the hereinafter named Memphis Advisory Council on Human Services, goals and objectives and a strategy for developing resources to respond to human service needs. It shall transmit such information at least quarterly to the city council and city administration.

B. The aforementioned strategy may include, but is not limited to, the following:

1. Involvement with the private sector in efforts to meet such needs through assistance in the application for funds from federal, state, local or private foundation sources;
2. Application for funds from federal, state, local or private foundation sources, on behalf of the city, to provide services under contractual agreements with private human services providers in the community; and
3. Communicate and cooperate with providers within the community as well as other interested organizations, agencies, individuals or governmental entities regarding services needed or already available within the city.

C. An annual report shall be transmitted to the city council and to city administration, by December 1 of each year, setting forth its activities, progress, and evaluation as to the delivery of human services, both as to program and accountability and its recommendation for goals, objectives and strategy for responding to human service needs.
(Code 1967, § 2-353; Code 1985, § 2-204; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-40-5. Rules and regulations.

A. The board established by this chapter shall designate one of its members as chairperson, upon a vote of a majority of the members of the entire board, for a one-year period. The chairperson may succeed himself or herself in office for no more than one term.

B. The board may adopt such rules and procedures consistent with existing laws as are necessary for the conduct of its affairs and performance of its functions and responsibilities. All rules and regulations must carry approval by the majority of the entire board.
(Code 1967, § 2-354; Code 1985, § 2-205; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-40-6. Meetings.

The board established by this chapter shall meet at least once per quarter at such time and place as such board shall decide. Such meetings will be open to the public with proper public notifications. Special meetings, open to the public, may be called from time to time on concurrence by three members of the board and/or the chairperson. A majority of the members of the entire board, excluding the ex officio members, shall constitute a quorum for the transaction of business. The board shall cause a proper record to be kept of its proceedings. Written notice of any meeting of the board shall be given to members and the public at least 24 hours prior to the date set for meeting.
(Code 1967, § 2-355; Code 1985, § 2-206; Ord. No. 3276, § 1, 3-15-1983)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-40-7. Administration.

Liaison with and assistance relating to the activities of the board established by this chapter shall be the responsibility of the executive division of the city and it shall be the responsibility of that division to provide for and assure regular meetings between the Memphis Advisory Council on Human Services and the city divisions, bureaus, agencies, boards, commissions,

authorities and/or quasi-city agencies representatives and to prepare and submit to the human services board, and any other funding sources which may be deemed appropriate, information and recommendations regarding human service needs for each ensuing fiscal year, as hereinafter set out.
(Code 1967, § 2-356; Code 1985, § 2-207; Ord. No. 3276, § 1, 3-15-1983)

CHAPTER 2-42. COMMUNITY REDEVELOPMENT AGENCY BOARD*

Sections:

Sec. 2-42-1. Created.
Sec. 2-42-2. Composition, terms, vacancies and compensation.
Sec. 2-42-3. Purpose.
Sec. 2-42-4. Meetings; secretary; chairperson.
Sec. 2-42-5. Powers and duties.
Sec. 2-42-6. Rules and regulations.
Sec. 2-42-7. Report to office of planning and development.

Sec. 2-42-1. Created.

There is created and established a board for the community redevelopment agency. The board as established shall exercise all of the powers of the community redevelopment agency as provided in the Community Redevelopment Act of 1998.
(Code 1985, § 2-240; Ord. No. 4762, § 1, 6-6-2000)

Sec. 2-42-2. Composition, terms, vacancies and compensation.

A. The board shall consist of seven members. Three of those members shall be nominated by the city mayor, subject to the approval of the city council, three members shall be nominated by the county mayor, subject to the approval of the board of county commissioners, and one member shall be nominated jointly by the city mayor and the county mayor subject to the approval of the city council and the board of county commissioners.

B. Original members shall be selected to serve as follows:

1. Four members for four years - two city, one county, one jointly selected.
2. One member for three years - county selected.
3. One member for two years - county selected.
4. One member for one year - city selected.

Thereafter, each city member shall be nominated by the city mayor for a four-year term, subject to approval by the appropriate legislative body or bodies, or until their successor is appointed and qualified. In the event of a vacancy, whether by reason of resignation, death, or other cause, the respective mayor, with the approval of the appropriate legislative body or bodies, may appoint a successor for such member only for the vacating member's unexpired term. The members shall serve without compensation.
(Code 1985, § 2-240.1; Ord. No. 4762, § 1, 6-6-2000)

Sec. 2-42-3. Purpose.

The purpose of the board shall be:

A. To determine and prioritize needs, and make recommendations based thereon, for the support of services needed;

B. To report yearly to the mayor and director of office of planning and development setting forth progress which has been made on existing programs and plans of services and making recommendations on which programs and plans of services should continue to be rendered;

C. To make recommendations on matters relating to grant applications and contractual arrangements for civic projects coming under their supervision;

D. To develop guidelines for area-wide citizen participation and to insure broad and effective development of programs and activities;

E. To sponsor and conduct hearings, conferences and other such meetings designed to obtain information related to the problems of communities.

It is the intention of the board to encourage planning, offer incentives, to find funding sources and to obtain funds therefrom for the purpose of implementing approved programs and activities, and to aid communities and entities of the city and the county to assist in upgrading and beautifying properties in all areas of the city and the county.
(Code 1985, § 2-240.2; Ord. No. 4762, § 1, 6-6-2000)

***State law reference—**Community redevelopment Act, T.C.A. § 13-21-201 et seq.

Sec. 2-42-4. Meetings; secretary; chairperson.

The board shall meet, at least, quarterly at such time and place as the board may fix by board resolution. Such meetings shall be open to the public. Notices of such meetings shall be placed on the bulletin board outside the city council chambers at least 48 hours prior to such meetings. Special meetings upon notice may be called from time to time by the chairperson, or at the request of the majority of the members of the board. A majority of the members of the board shall constitute a quorum for the transaction of business. The board shall cause a proper record to be kept of the proceedings. For this purpose the board shall appoint a secretary who shall be a member of the board. The chairperson of the board shall be elected by the board from its own membership to serve for a term of one year or to the end of the term of the chairperson if less than one year is remaining, with the right of succession for one additional term only at the option of the board.
(Code 1985, § 2-240.3; Ord. No. 4762, § 1, 6-6-2000)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-42-5. Powers and duties.

The board shall have all powers necessary and requisite to effectuate the purpose of the board as set out in section 2-42-3.
(Code 1985, § 2-240.4; Ord. No. 4762, § 1, 6-6-2000)

Sec. 2-42-6. Rules and regulations.

The board, by majority vote of the total membership of the board, is empowered to establish written rules and regulations as they may deem advisable.
(Code 1985, § 2-240.5; Ord. No. 4762, § 1, 6-6-2000)

Sec. 2-42-7. Report to office of planning and development.

It shall be the duty of the board to file written reports, both periodically and final, on all individual projects with the director of office of planning and development in a timely manner.
(Code 1985, § 2-240.6; Ord. No. 4762, § 1, 6-6-2000)

CHAPTER 2-44. BROADBAND TELECOMMUNICATIONS REGULATORY BOARD

Sections:

Sec. 2-44-1. Established; composition; appointment and terms of office of members.
Sec. 2-44-2. Duties; appeal of board findings.
Sec. 2-44-3. Notice of hearings.
Sec. 2-44-4. Persons ineligible to serve on board.
Sec. 2-44-5. Time of meetings; quorum; secretary.

Sec. 2-44-1. Established; composition; appointment and terms of office of members.

There is established a broadband telecommunications regulatory board, composed of five persons, appointed by the mayor and approved by the city council for terms of three years; provided that, one of the members shall be the director of public service of the city or his or her designee and four members shall be citizen members, of which two must be subscribers to a broadband telecommunications system. Each member shall be appointed for a term of three years.
(Code 1967, § 12½-50; Code 1985, § 10-16; Ord. No. 1710, § 1, 5-1-1973; Ord. No. 2599, § 1, 5-31-1977)

Sec. 2-44-2. Duties; appeal of board findings.

A. The duties of the regulatory board shall be the following:

1. Resolving disputes or disagreements between subscribers and the grantee after investigation should the subscriber and the grantee not first be able to resolve their dispute or disagreement;

2. Reviewing and auditing reports submitted to the city as required by Ordinance No. 496, as amended, and such other correspondence as submitted to the city concerning the operation of the broadband telecommunications network so as to ensure that the necessary reports are completed and fulfilled pursuant to the terms of the ordinance;

3. Coordinate and publicize the implementing and usage of the governmental, educational and public access channels provided hereunder;

4. Work with the public and the media to assure that all records pertinent to the broadband telecommunications network in the city are made available for inspection at reasonable hours;

5. Confer and coordinate with the grantee on the interconnection of the city's cable system with other cable and communication systems;

6. Such other duties as the city council may assign to the broadband telecommunications regulatory board.

B. The findings of the board shall be final subject to appeal as now provided by law for decisions of boards and commissions.
(Code 1967, § 12½-51; Code 1985, § 10-17; Ord. No. 1710, § 2, 5-1-1973)

Sec. 2-44-3. Notice of hearings.

The board shall adopt such rules and regulations as are necessary to insure that due notice is given to all parties concerning any hearing on any complaints to the board and the hearings are held promptly in accordance with reasonable notice to all parties.
(Code 1967, § 12½-53; Code 1985, § 10-18; Ord. No. 1710, § 3, 5-1-1973)

Sec. 2-44-4. Persons ineligible to serve on board.

No officer, director or employee of a franchisee may serve on the board created in section 2-44-1.
(Code 1967, § 12½-53; Code 1985, § 10-19; Ord. No. 1710, § 4, 5-1-1973)

Sec. 2-44-5. Time of meetings; quorum; secretary.

The regulatory board shall meet regularly on the first Wednesday of each quarter, at a time specified by the board, in the office of the public service director; provided that, if and when additional franchise agreements may be granted, then, and in that event, meetings shall be held regularly on the first Wednesday of each month in the office of the public service director, at a time specified. Special meetings may be held at such other times as may be called by the chairperson or a majority of the members thereof. Three members of the board shall constitute a quorum to transact any business, and it will require not less than three affirmative votes to carry out any matter before the board. The board shall appoint a secretary who may, but need not necessarily, be a member of the board.
(Code 1967, § 12½-54; Code 1985, § 10-20; Ord. No. 2599, § 2, 5-31-1977; Ord. No. 3078, § 1, 10-28-1980)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

CHAPTER 2-46. GROUNDWATER QUALITY CONTROL BOARD OF ADJUSTMENT

Sections:

Sec. 2-46-1. Created; purposes.
Sec. 2-46-2. Composition; appointment; terms of office; compensation; meetings; vacancies; quorum required.
Sec. 2-46-3. Definitions.
Sec. 2-46-4. Duties, authorities and appeals.
Sec. 2-46-5. Memphis-Shelby County Health Department duties.
Sec. 2-46-6. State board to supersede.
Sec. 2-46-7. Municipal properties.

Sec. 2-46-1. Created; purposes.

There is created a groundwater quality control board for Shelby County, (hereinafter referred to as "board") for the purpose of securing, protecting, and preserving the quality and quantity of the groundwater within the boundaries of Shelby County; to abate existing pollution of the groundwater; and to plan for the future use of the groundwater so that the resources of Shelby County shall be used and enjoyed to the best interests of all its citizens.
(Code 1985, § 16-415; Ord. No. 3736, § 1, 3-8-1988)

Sec. 2-46-2. Composition; appointment; terms of office; compensation; meetings; vacancies; quorum required.

A. 1. The board shall be composed of 11 members; one of which shall be the president of Memphis light, gas and water division, or his or her representatives; one of which shall be a professional engineer with training, education, or experience in hydrology and geology; one of which shall be a licensed well driller; five of which shall represent municipalities other than Memphis which are located in Shelby County and have public water systems; one of which shall be the director of the Memphis and Shelby County Health Department; and two of which shall represent the public at large.

2. The mayor of the city shall appoint the professional engineer and one member at large, subject to approval of the Memphis City Council.

3. The mayor of Shelby County shall appoint the licensed well driller and one member at large, subject to approval of the Shelby County Board of Commissioners.

4. The five representatives of the municipalities other than Memphis which are located in Shelby County, shall be appointed by the mayors of those municipalities, subject to approval of their respective boards of aldermen.

B. All members shall be residents of and domiciled in Shelby County, and shall serve without compensation.

C. The terms of the appointments of the initial members of the board shall be as follows: three members shall serve four years, three members shall serve three years, three members shall serve two years, and two members shall serve one year to be determined by random drawing. All subsequent full terms shall be four years. The anniversary date of each term shall be the expiration date of the vacated term being filled except that an appointee filling an unexpired term shall have the anniversary date coinciding with the date the unexpired term was regularly due to expire.

D. Whenever a vacancy occurs, the vacancy shall be filled in the same manner as the original appointment.

E. The board shall select at its first meeting of each calendar year a chairperson from among its members to serve the remainder of that calendar year.

F. The board shall meet bi-annually in March and September and at such other times as necessary to conduct the business of the board, as determined by the chairperson or as requested by three members of the board.

G. All hearings and meeting conducted by the board shall be open to the public.

H. Not less than ten days' notice of all meetings shall be given to all members of the board. Notice by mail postmarked 12 days in advance of the meeting date to the last known address of the member shall be sufficient to fulfill the meeting notice requirement.

I. All meetings to conduct official business of the board and all hearings before the board shall require the attendance of a majority of the board duly appointed at the time of the meeting or hearing to constitute a quorum. A majority of those present and constituting a quorum may act for the board by a simple one person one vote procedure.
(Code 1985, § 16-416; Ord. No. 3736, § 1, 3-8-1988)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-46-3. Definitions.

For the purpose of this chapter, all terms and words used herein shall have common usage meaning except that the following special definitions shall apply:

Board means the Shelby County Groundwater Quality Control Board.

Department means the Memphis and Shelby County Health Department.

Groundwaters of Shelby County means those groundwaters located within the geographic boundaries of Shelby County.
(Code 1985, § 16-417)

Sec. 2-46-4. Duties, authorities and appeals.

A. Until such time as any state law in the future supersedes local regulations and ordinances, the duties and authorities of the board shall be as follows:

1. *Rules and regulations for administration.* The board shall have and exercise the power, duty, and responsibility to adopt, modify, repeal, promulgate after due notice and enforce rules and regulations which the board deems necessary for the proper administration of this chapter, and the preservation and protection of the quality and quantity of the groundwaters of Shelby County.

2. *Adoption of groundwater protection plan.* The board shall have and exercise the power, duty, and responsibility to proceed without delay to formulate, adopt and implement a groundwater protection plan for Shelby County. Such plan shall include but not be limited to:

   a. A well head protection program;

   b. A requirement for observation wells for facilities handling hazardous chemicals or other potential contaminants;

   c. A systematic analysis program for existing and new wells;

d. A support program for toxic spill prevention, control and counter measure programs.

3. *Regulations for controlling operation of wells.* The board shall have and exercise the power, duty, and responsibility to adopt, modify, repeal, and promulgate after due notice, all necessary rules and regulations for the purpose of controlling the construction, operation, maintenance and closure of all wells in Shelby County other than those owned and operated by the municipalities therein for public water supply.

4. *Hearing of appeals on modification of permit requirements.* The board shall have and exercise the power, duty and responsibility to:

   a. Hear appeals for permit issuance, denial, revocation or modification made by the department;

   b. Issue notices of such appeals requiring attendance of witnesses and the production of evidence;

   c. Administer oaths;

   d. Take such testimony as the board deems necessary.

   Any of these powers may be exercised on behalf of the board by any members thereof as appointed by the chairperson, or by a hearing officer designated by him or her, subject to review by the board.

5. *Research and investigation.* The board shall have and exercise the power, duty, and responsibility to require the department to carry out surveys, research, and investigations into all aspects of groundwater use and groundwater quality.

6. *Coordinator for issues.* The board shall have and exercise the power, duty, and responsibility to serve as coordinator for all groundwater issues in Shelby County including but not limited to:

   a. Coordinating groundwater activities with federal, state, and local agencies;

   b. Holding public meetings on groundwater policies and issues;

   c. Developing a public awareness and education program relative to groundwater.

7. *Hearings prior to adoption of rules.* Prior to promulgating, adopting, modifying, or repealing rules and regulations the board shall conduct, or cause to be conducted, public hearings in connection therewith. Notice of public hearing shall be given not less than 30 days before the date of such hearing and shall state the date, time, and place of the hearing, and the subject of the hearing. Any such notice shall be published at least once in one newspaper of general public circulation circulated throughout Shelby County. Any person who desires may be heard at the public hearing relative to the board on or before the first date set for the hearing. The board is authorized to set reasonable time limits for the oral presentation of views by any person at any such public hearing.

8. *Board decision on variances and right of appeal.* The board shall have and exercise the power, duty, and responsibility to hear and decide all matters concerning a variance to, or an exception taken, to any decision, ruling requirement, rule, regulation, or order of the board or the department. Such appeal shall be made within 15 days after receiving notice of such decision, ruling, requirement, rule, regulations, or order by filing a written notice of appeal directly to the board specifying the grounds thereof and the relief requested. Such an appeal shall act as a stay of the decision, ruling, requirement, rule, regulation, or order in question until the board has taken final action on the appeal, except when the department has determined that a health hazard exists. The board shall, not less than 30 days after the date of the receipt of the notice of appeal, set a date for the hearing and shall give notice thereof by certified mail to the interested parties.

9. *Hearing of appeals.* Hearings before the board shall be conducted in the following manner:

   a. The technical secretary of the board or his or her representative shall act as the hearing officer to conduct such hearings.

   b. Any person making an appeal may appear in person or by agent or attorney and present evidence, both written and/or oral, pertinent to the issues involved and may examine and cross-examine witnesses.

c. All testimony shall be presented under oath and recorded. The board is authorized to have all such testimony transcribed and a transcript of such testimony, if transcribed, shall be made available to the appellant or any party to the hearing upon payment of the normal fee established by the department.

d. After due consideration of the written and oral statements, and the testimony and arguments submitted at the hearing upon such appeal or, upon default in appearance of the appealing party on the date specified in the formal notice of the hearing, the board shall issue and enter such final order to make such final determination as it shall deem appropriate, within 30 days of the hearing date and shall immediately notify all interested parties thereof in writing by certified mail.

e. An appeal from the board shall be to a court of competent jurisdiction in Shelby County, Tennessee.

10. *Additional guidelines to carry out purposes.* The board shall set out other principles and guidelines deemed essential by the board to carry out the purpose of this chapter.

B. A copy of all rules and regulations promulgated, adopted, modified or repealed by the board shall be kept on file in the minutes section of the Shelby County legislative department and such other places as the board may determine.
(Code 1985, § 16-418; Ord. No. 3736, § 1, 3-8-1988; Editorially amended during 2004 codification)

Sec. 2-46-5. Memphis-Shelby County Health Department duties.

The duties and authorities of the Memphis-Shelby County Health Department as they pertain to this chapter shall be as follows:

A. Technical and administrative support for the board shall be provided by the Memphis and Shelby County Health Department herein referred to as the "health department." Such support shall include but is not limited to, permit issuance, projects, programs, investigations, and enforcement procedures as assigned and within the jurisdiction of the board.

B. The director of the health department or his or her representative shall serve as technical secretary to the board.

C. Nothing contained in this chapter shall supersede the authority of the health department to enforce any rules and/or regulations under the express jurisdiction of the health department unless otherwise stated in this chapter or agreed to by the health department.
(Code 1985, § 16-419; Ord. No. 3736, § 1, 3-8-1988)

Sec. 2-46-6. State board to supersede.

When or if a state board shall be established, superseding this chapter, and provided for delegation of authority, a contractual agreement may be entered into with Shelby County to administer locally the regulations of the state.
(Code 1985, § 16-420; Ord. No. 3736, § 1, 3-8-1988)

Sec. 2-46-7. Municipal properties.

The city and other municipalities within the county, who own, control and operate public wells, are exempt and not subject to conditions of this chapter.
(Code 1985, § 16-422; Ord. No. 3736, § 1, 3-8-1988)

CHAPTER 2-48. MEMPHIS AND SHELBY COUNTY BOARD OF ADJUSTMENT

Sections:

Sec. 2-48-1. Created.
Sec. 2-48-2. Membership of board; term; qualification.
Sec. 2-48-3. Vacancies.
Sec. 2-48-4. Chairperson; vice-chairperson; term; duties and vacancies.
Sec. 2-48-5. Qualifying by members of the board; oaths.
Sec. 2-48-6. Powers and duties.
Sec. 2-48-7. Meetings.
Sec. 2-48-8. Quorum.
Sec. 2-48-9. Budget; appropriation.
Sec. 2-48-10. Secretary; term; salary.
Sec. 2-48-11. Duties of secretary.
Sec. 2-48-12. Assistants.
Sec. 2-48-13. Rules.
Sec. 2-48-14. Fees; distribution.

Sec. 2-48-1. Created.

There is created the Memphis and Shelby County Board of Adjustment. For budgetary purposes of the city, the same is assigned to the executive office. For budgetary purposes of the county, the same is assigned to the division of administration and finance.
(Code 1967, § 28-28.1; Code 1985, § 26-16; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-2. Membership of board; term; qualification.

The board of adjustment shall be composed of a total of eight members, as follows:

A. The mayor of the city shall appoint, with the approval of a majority of the city council, four members, none of whom may be an elected official, whose terms shall be for three years, expiring with the calendar year.

B. The mayor of the county shall appoint, with the approval of a majority of the board of commissioners, four members, none of whom may be an elected official, whose terms shall be for three years, expiring with the calendar year.

C. All members shall have been residents of the county (either within or without the city) for a period of at least one year prior to their appointment.

D. All members shall serve without pay but shall be entitled to reimbursement for any actual expense incurred in connection with such membership provided same was authorized or ratified by the board and is within its budget.

E. Appointees of the city shall be subject to removal by the mayor with the concurrence of a majority of the council. Appointees of the county shall be subject to removal by the mayor with the concurrence of a majority of the board of commissioners.

F. The term of all members shall extend until their successors are qualified.

(Code 1967, § 28-28.2; Code 1985, § 26-17; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-3. Vacancies.

A. Permanent vacancies created by any cause shall be filled for the unexpired term in the same manner and by the same authority as made the original appointment.

B. Anticipated or temporary vacancies may be filled on behalf of an appointee of the board of commissioners by the county mayor and, as to an appointee of the city council, by the city mayor from lists of members named as above and approved by the respective legislative bodies. Such appointment shall be in writing specifying the duration thereof which shall not be longer than 30 days and shall be filed with the secretary of the board of adjustment. Any such appointee so designated shall have all the powers, rights, authority and duty imposed upon a regular appointee.
(Code 1967, § 28-28.3; Code 1985, § 26-18; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-4. Chairperson; vice-chairperson; term; duties and vacancies.

A. In even-numbered years the mayor of the city, with the concurrence of a majority of the city council, shall designate the chairperson from among its appointees, who shall serve for one year, expiring with the calendar year, and until his or her successor is appointed and qualified; and the mayor of the county, with the concurrence of a majority of the board of commissioners, shall designate the vice-chairperson from among its appointees, who shall serve for one year, expiring with the calendar year, and until his or her successor is elected and qualified. In odd-numbered years the chairperson shall be selected by the county mayor and board of commissioners, as above, and the vice-chairperson by the city mayor and city council, as above.

B. Permanent or temporary vacancies in the offices of chairperson or vice-chairperson created by any cause shall be filled in the same manner and by the same authority as hereinabove provided with respect for vacancies for other members.

C. The chairperson shall be the chief executive officer of such board, preside at all meetings and exercise all the usual rights, duties and prerogatives of the head of any similar organization, except as may be restricted herein. The vice-chairperson shall perform the duties of the chairperson in the latter's absence or disability.
(Code 1967, § 28-28.4; Code 1985, § 26-19; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-5. Qualifying by members of the board; oaths.

Members of the board shall qualify and take an oath to uphold the Constitution of the United States and of the state and faithfully discharge the duties of their office.
(Code 1967, § 28-28.5; Code 1985, § 26-20; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-6. Powers and duties.

The board shall exercise such powers and duties as may be delegated by law to it; as to matters lying within the city limits under the laws applicable to the board of adjustment authorized to act in the city, and as to matters outside the city limits of an incorporated city in the county, then under the laws applicable to the board of adjustment having authority within the county and outside the city limits.
(Code 1967, § 28-28.6; Code 1985, § 26-21; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-7. Meetings.

The board shall provide in its rules for its meetings; provided, however, that, special meetings shall be called only by the joint action of the chairperson and vice-chairperson, or in the absence or disability of either, at the instance of the active officer and a member appointed by the legislative agency other than that which appointed the active officer.
(Code 1967, § 28-28.7; Code 1985, § 26-22; Ord. No. 722, § 1, 6-2-1970)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-48-8. Quorum.

Five members shall constitute a quorum. The votes of five members shall be required for the passage of any affirmative action by the board.
(Code 1967, § 28-28.8; Code 1985, § 26-23; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-9. Budget; appropriation.

The board shall annually submit a budget of its contemplated operation for each year to the city and county mayors who, if they approve, shall forward same to the legislative bodies concerned for approval and appropriation, each of the agencies to appropriate one-half of the approved amount.
(Code 1967, § 28-28.9; Code 1985, § 26-24; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-10. Secretary; term; salary.

Within the limitations of its approved budget, the board at its first meeting in January of each year, shall elect a suitable person to be secretary of the board of adjustment and fix his or her salary, which shall be subject to approval of the legislative bodies and within the approved budget.
(Code 1967, § 28-28.10; Code 1985, § 26-25; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-11. Duties of secretary.

The secretary of the board shall devote his or her full time to his or her position and shall carry out all duties assigned to him or her by the board. He or she shall take and subscribe to the same oath as board members and provide bond in the penal sum of $5,000.00, payable to the city and county, conditioned on the faithful performance of his or her assigned duties. The cost of such bond shall be paid out of the funds of the board.
(Code 1967, § 28-28.11; Code 1985, § 26-26; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-12. Assistants.

The secretary shall employ such assistants as he or she may deem advisable within his or her budgetary limitations, with the approval of the board; provided, nothing herein shall waive any provision of applicable civil service or retirement laws.
(Code 1967, § 28-28.12; Code 1985, § 26-27; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-13. Rules.

The board is authorized to promulgate rules for the orderly administration of its affairs, not in conflict herewith.
(Code 1967, § 28-28.14; Code 1985, § 26-28; Ord. No. 722, § 1, 6-2-1970)

Sec. 2-48-14. Fees; distribution.

The board of adjustment is authorized to set a uniform schedule of fees subject to the approval of the

respective legislative bodies of the city and county by resolution. All fees accruing hereunder shall be promptly deposited with the treasurer of the county, who shall cause the same to be credited to the account of the office of planning and development and one-half shall be further credited to the general fund revenues of the city, and one-half credited to the account of the county, and remittance made quarterly.
(Code 1967, § 28-28.15; Code 1985, § 26-29; Ord. No. 722, § 1, 6-2-1970; Ord. No. 2932, § 1(1), 10-23-1979; Ord. No. 3105, § 1, 3-17-1981; Ord. No. 3472, § 1, 7-2-1985; Ord. No. 3754, § 1, 5-10-1988; Ord. No. 4345, § 1, 7-25-1995; Ord. No. 4691 § 1, 11-16-1999; Ord. No. 5459, § 1, 7-17-2012)

CHAPTER 2-50. MEMPHIS AND SHELBY COUNTY LAND USE CONTROL BOARD*

Sections:

Sec. 2-50-1. Joint office of planning and development created; assignment to division.
Sec. 2-50-2. Land use control board; membership; terms; qualifications.
Sec. 2-50-3. Vacancies.
Sec. 2-50-4. Chairperson; vice-chairperson; secretary; term; vacancies.
Sec. 2-50-5. Qualifying of land use control board members; oath.
Sec. 2-50-6. Powers and duties.
Sec. 2-50-7. Meetings.
Sec. 2-50-8. Quorum.
Sec. 2-50-9. Land use control board staff services.
Sec. 2-50-10. Rules.
Sec. 2-50-11. Fees; distribution.

Sec. 2-50-1. Joint office of planning and development created; assignment to division.

There is created the Memphis and Shelby County Office of Planning and Development consisting of: (1) a comprehensive planning section; and (2) a land use control section, which shall be, for budgetary purposes of the city and county, assigned to the respective executive offices; and, further, shall hereafter be operated by contract attached to the ordinance codified in this chapter and expressly incorporated herein by reference.
(Code 1967, § 28-12; Code 1985, § 26-41; Ord. No. 2524, § 1, 12-21-1976)

Editor's note—Copies of the document entitled "Contract between the County of Shelby and the City of Memphis for the Consolidation of the Memphis and Shelby County Office of Planning and Development" are on file in the office of the comptroller.

Sec. 2-50-2. Land use control board; membership; terms; qualifications.

The land use control board is created and shall be composed of a total of ten citizens and two ex officio members as follows:

A. The city council, upon recommendation of the mayor, shall appoint five citizen members whose terms shall be for three years, expiring with the calendar year. In addition, the city council, on the recommendation of the mayor, shall designate one ex officio member who shall be the chief administrative officer, or his or her designated representative, and who shall serve during the term of office in an advisory capacity and without the right to vote.

B. The board of commissioners of the county, upon the recommendation of the mayor of the county, shall appoint five citizen members whose terms shall be for three years, expiring with the calendar year. In addition, the board of commissioners, on recommendation of the mayor of the county, shall designate on ex officio member who shall be the chief administrative officer, or his or her designated representative, and who shall serve during the term of his or her office in an advisory capacity and without the right to vote.

C. All citizen members shall have been residents of the county (either within or without the city) for a period of at least one year prior to their appointment.

D. All citizen members shall serve without pay and no ex officio member shall be entitled to additional pay by reason of membership on such land use control board. All members shall be entitled to reimbursement for any actual expense incurred in connection with such

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***Charter references—**City planning commission, § 96-108; joint city-county planning commission, §§ 108.1—108.5.

State law reference—Municipal zoning, T.C.A. § 13-7-201 et seq.

membership, provided the same was authorized in advance by the city and county chief administrative officers.

E. The term of all citizen members shall extend until their successors are qualified; provided, however, three such successive unexcused or unexplained absences from any regular or special meeting shall be grounds for termination at the will and pleasure of the appointing authority without the necessity of a hearing or notice and their action shall be final.

(Code 1967, § 28-13; Code 1985, § 26-42; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-3. Vacancies.

Vacancies created by any cause shall be filled for the unexpired term in the same manner and by the same authority as made the original appointment. When the deputy director of land use control has reason to believe that a regular member will be absent, he or she may notify the respective mayor as to that city or county appointee; the respective mayor may then designate in writing a temporary replacement for the ensuing meeting. Such temporary appointee shall have all the rights and responsibilities of the regular member for the meeting to which appointed.

(Code 1967, § 28-14; Code 1985, § 26-43; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-4. Chairperson; vice-chairperson; secretary; term; vacancies.

A. In even-numbered years, the mayor of the county shall appoint from among the citizen appointees the chairperson of land use control board, and in odd years shall appoint the vice-chairperson in the same manner. In odd years, the mayor of the city shall appoint, from its citizen appointees, the chairperson of the land use control board and in even years shall appoint the vice-chairperson in the same manner. Vacancies created by any cause shall be filled for the unexpired term in the same manner and by the same authority as made the original selection. The chairperson shall preside at all meetings and exercise all the usual rights, duties and prerogatives of the head of any similar organization, except as hereinafter restricted.

B. The vice-chairperson shall perform the duties of the chairperson in the latter's absence or disability. The deputy director of land use control shall be the secretary of the land use control board. The secretary shall cause proper minutes and records to be kept of all proceedings of the land use control board, shall be the official custodian of its records, and shall be responsible for reporting the actions of the land use control board to the appropriate legislative and administrative bodies.

C. The director of planning and development shall be responsible for communicating staff recommendations, which may or may not agree with the land use control board, to the appropriate legislative bodies.

(Code 1967, § 28-15; Code 1985, § 26-44; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-5. Qualifying of land use control board members; oath.

The members of the board created by this chapter shall qualify and take an oath to uphold the Constitutions of the United States and the state, and faithfully discharge the duties of his or her office.

(Code 1967, § 28-16; Code 1985, § 26-45; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-6. Powers and duties.

A. All former powers and duties of the Memphis and Shelby County Planning Commission shall be delegated to the city and county office of planning and development created herein, except as otherwise provided hereafter, and shall include but not be limited to the powers and duties as set forth in the contract between the city and county which is attached hereto and expressly incorporated herein by reference.

B. The recommendation to the respective legislative bodies of zoning studies and regulations, the mapping and revision of zoning districts, special permits, planned unit developments, and regulations for the subdivision of land, recommendation as to subdivisions proposed thereunder, street and alley closings shall be vested in the Memphis and Shelby County Land Use Control Board as created by this chapter; street name change powers shall be vested in the Memphis City Council with regard to City of Memphis streets and other thoroughfares, including streets and other thoroughfares within residential developments. Any conflicts with the Memphis and Shelby County Unified Development Code shall be made in favor of this section.

C. For the purpose of this chapter, all subdivision and zoning powers given to the former planning commission by public or private acts shall be vested in the Memphis and Shelby County Land Use Control Board, except as modified herein.
(Code 1967, § 28-17; Code 1985, § 26-46; Ord. No. 2524, § 1, 12-21-1976; ; Ord. No. 5759, § 1, 9-1-2020)

Sec. 2-50-7. Meetings.

The land use control board shall provide in its rules for its meetings; provided, however, that, special meetings shall be called only by the joint action of the chairperson and vice-chairperson, or in the absence or disability of either, the respective mayor may appoint a substitute for the chairperson or vice-chairperson.
(Code 1967, § 28-18; Code 1985, § 26-47; Ord. No. 2524, § 1, 12-21-1976)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-50-8. Quorum.

Seven citizen members shall constitute a quorum. A majority vote of the members present shall be required for a passage of any matter before the land use control board.
(Code 1967, § 28-19; Code 1985, § 26-48; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-9. Land use control board staff services.

All staff services provided for the land use control board shall be as that specified in the aforementioned contract, which is attached to the ordinance codified in this chapter and expressly incorporated herein by reference.
(Code 1967, § 28-20; Code 1985, § 26-49; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-10. Rules.

The land use control board, upon joint approval by the respective legislative bodies of the county and the city, is authorized to promulgate rules for the orderly administration of its affairs.
(Code 1967, § 28-22; Code 1985, § 26-50; Ord. No. 2524, § 1, 12-21-1976)

Sec. 2-50-11. Fees; distribution.

The land use control board is authorized to set a uniform schedule of fees subject to the approval of the respective legislative bodies of the city and county by resolution. All fees accruing hereunder shall be promptly deposited with the treasurer of the county, who shall cause the same to be credited to the account of the office of planning and development and one-half shall be further credited to the general fund revenues of the city, and one-half credited to the account of the county, and remittance made quarterly.
(Code 1967, § 28-23; Code 1985, § 26-51; Ord. No. 2524, § 1, 12-21-1976)

CHAPTER 2-52. POLICE ADVISORY AND REVIEW COMMITTEE*

Sections:

Sec. 2-52-1. Establishment.
Sec. 2-52-2. Members; appointment.
Sec. 2-52-3. Removal; absent; forfeit of membership.
Sec. 2-52-4. Compensation.
Sec. 2-52-5. Police academy course offered.
Sec. 2-52-6. Duties and conduct.
Sec. 2-52-7. Allegations of misconduct.
Sec. 2-52-8. Qualifications of the executive.
Sec. 2-52-9. Investigation and disposition of complains.
Sec. 2-52-10. Legal services and advice.
Sec. 2-52-11. Duties and powers.
Sec. 2-52-12. Committee reviews.
Sec. 2-52-13. Rules and procedures; quorum.
Sec. 2-52-14. Limitations; reviewsing investigations.
Sec. 2-52-15. Police advisory board hearing procedurs.
Sec. 2-52-16. Joint responsabilities.

Sec. 2-52-1. Establishment.

Purpose. The city council hereby creates a police advisory and review committee for the City of Memphis. The purpose of the committee is to strengthen the relationship between citizens and the Memphis Police Department; to ensure the timely, fair, and objective review of citizen complaints while protecting the individual rights of police officers; and to make recommendations concerning citizen complaints to the chief of police.
(Ord. No. 5885, § 1, 11-7-2023)

***Editor's note—**Ord. No. 5885, § 1, adopted November 7, 2023, repealed the former ch. 2-52, §§ 2-52-1—2-52-11, and enacted a new ch. 2-52 as set out herein. The former ch. 2-52 pertained to similar subject matter and derived from the Code of 1985, §§ 28-151—28-158; Code of 1985, §§ 28-160, 28-161; and Ord. No. 4285, § 1, 10-25-1994.

Sec. 2-52-2. Members; appointment.

A. The committee will consist of seven members, each of whom must:

1. Possess a reputation for fairness, integrity, and responsibility, and have demonstrated an active interest in public affairs and public service;
2. Be a registered voter, as defined by T.C.A. § 2-1-104(a)(24), of the City of Memphis; and
3. Not be a current employee of the city council.

B. The membership on the committee shall not be restricted or otherwise limited based upon demographics, economic status, or employment history. Committee members shall be appointed by the mayor and confirmed by a majority vote of the city council, with initial appointments to be made for the following terms:

1. Two members of the committee are appointed for one-year terms;
2. Two members of the committee are appointed for two-year terms; and
3. Three members of the committee are appointed for three-year terms.

C. No more than two persons may be appointed from one city council district. Following the initial appointments, all subsequent appointments, except to fill vacancies, are for three-year terms. Vacancies occurring other than through the expiration of terms are filled for the remainder of the term of the member being replaced. A committee member appointed pursuant to this section shall not serve more than two consecutive terms. Upon making the initial appointments to the committee, the Mayor shall designate one member of the committee to convene the first regular meeting of the committee. At its first regular meeting, the committee shall elect one of its members to serve as chair, who serves a term of one year or until a successor is elected. The chair may appoint other officers as the chair deems appropriate.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-3. Removal; absent; forfeit of membership.

A. Upon the recommendation of a majority of the committee members or by a finding of the Mayor, the Mayor, with a majority approval of the city council, may remove a member of the committee for official misconduct or neglect of duty including neglect of any duty in section 2-52-6.

B. Members who are absent from three consecutive regular committee meetings are considered to have vacated their positions on the committee and may be replaced.

C. Members who cease to possess the qualifications for membership on the committee under section 2-52-2 are deemed to have forfeited their position on the committee.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-4. Compensation.

A person shall not receive compensation for services performed as an appointed member of the committee.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-5. Police academy course offered.

Each person appointed to the committee shall complete the citizen's police academy course offered by the chief of police to educate citizens on law enforcement operations, practice, and training. The course must be completed within six months of the date of a person's appointment to the committee. Members who fail to complete required courses are considered to have vacated their positions on the committee and may be replaced. Each member of the committee must also participate in an official ride along and become familiar with police policies and procedures within six months of the date of the person's appointment.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-6. Duties and conduct.

Members of the committee shall:

1 Respect an individual's, including a police officer's, right to privacy, and maintain confidentiality of records;
2. Maintain the confidentiality of internal affairs unit files; personnel files; and other files, records, or recordings received pertaining to their membership on the committee;
3. Excuse themselves from participating in the review of a complaint in which they have a personal, professional, or financial conflict of interest,

4. Conduct themselves in a manner that ensures public confidence in the fairness, impartiality, and integrity of the committee, and refrain from making inappropriate or prejudicial comments regarding a matter being reviewed by the committee or which may be reasonably expected to be reviewed by the committee; and

5. Qualify and take an oath to uphold the Constitution of the United States, the laws of the State of Tennessee, and the ordinances of the City of Memphis and to faithfully discharge the duties of such office.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-7. Allegations of misconduct.

The city attorney shall investigate any allegation of misconduct by a committee member or their staff and submit a written report of investigative findings to the Mayor and city council.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-8. Qualifications of the executive.

A. The Mayor may select an executive director of the committee whose appointment is subject to the approval of a majority of the members of the committee.

B. The executive director must:

1. Possess a reputation for fairness, integrity, and responsibility and have demonstrated an active interest in public affairs and service;

2. Be a registered voter of the City of Memphis;

3. Not be a former employee of a law enforcement agency for the preceding 12 months;

4. Possess prior investigative experience, such as would be possessed by an attorney or a local law enforcement officer;

5. Respect an individual's, including police officer's, right to privacy, and maintain confidentiality of records;

6. Maintain the confidentiality of all law enforcement records and files that the executive director or committee receives as a result of the committee's performance of its official duties;

7. Not participate in the review of a complaint in which the executive director has a personal, professional, or financial conflict of interest;

8. Conduct the duties of the office in a manner that maintains public confidence in the fairness, impartiality, and integrity of the committee, and refrain from making inappropriate or prejudicial comments regarding a matter being reviewed by the committee or which may be reasonably expected to be reviewed by the committee; and

9. Comply with all rules applicable to other employees of the City of Memphis.

C. 1. A person shall not be approved as executive director under subdivision (1) of this section until the person has:

a. Supplied a fingerprint sample for the purpose of a state criminal history background check to be conducted by the Tennessee Bureau of Investigation, as well as a national criminal history background check to be conducted by the Federal Bureau of Investigation; and

b. Submitted to a lawfully administered test designed to detect the presence of a controlled substance or a controlled substance analogue.

2. The City shall pay the costs incurred to conduct the criminal history background check and to administer the test under subdivision (C)(A).

3. The Tennessee Bureau of Investigation and the entity conducting the test shall report the results of the criminal history background check and test to the Mayor or the Mayor's designee within five business days of the bureau's receipt of such results.

4. The results of the criminal history background check and test are deemed to be confidential under Title 10, Chapter 7, Part 5 and are not required to be disclosed or made available under T.C.A. § 55-23-104.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-9. Investigation and disposition of complains.

A. The executive director shall accept written, sworn complaints from members of the public regarding misconduct of City of Memphis police officers and shall

forward the complaints to the head of the internal affairs unit of the Memphis Police Department within three business days of their receipt. Upon receipt of a complaint, the unit shall immediately cause an investigation to be conducted of the allegations pursuant to the standard operating procedures of the Memphis Police Department. The executive director may also accept unsworn or anonymous complaints and, if accepted, refer the complaints to the internal affairs unit for investigation.

B. Upon notification by the head of the internal affairs unit that an investigation of an allegation of misconduct by a police officer is closed, whether the investigation was prompted by a complaint received by the executive director or otherwise, the executive director may review the unit file or the referral action form and determine if the investigation is complete.

C. 1. If the executive director determines that the investigation is complete in accordance with section 2-52-9(B), then the executive director shall file a report with the committee at its next regularly scheduled meeting that contains a copy of the internal affairs unit case, summary, or referral action form, and any documentation of disciplinary action pertaining to the case.

2. If the executive director determines that the investigation is not complete, then the executive director shall notify the committee, at its next regularly scheduled meeting, that, in the executive director's opinion, additional investigation or additional time may be required for the investigation to be complete.

D. At each of the regularly scheduled committee meetings, the executive director shall file a report with the committee that details the resolution of unsworn or anonymous complaints the executive director has been able to resolve without an investigation by the internal affairs unit.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-10. Legal services and advice.

The executive director may request legal services and advice from the city attorney. If the city attorney determines that the provision of legal services and advice would constitute a conflict of interest, then the city attorney shall advise the executive director of the conflict and the executive director may request the city attorney to provide other outside counsel for such legal services and advice.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-11. Duties and powers.

The executive director shall:

1. Ensure the proper recording of the minutes of the committee;

2. Maintain proper records and files pertaining to committee business;

3. Receive and record all exhibits, petitions, documents, or other materials presented to the committee in support of or in opposition to a question before the committee;

4. Comply with state law and local ordinances regarding notice of meetings;

5. Provide complainants with information about the complaint process;

6. Be a notary public;

7. Compile statistical information regarding complaints of misconduct by law enforcement officers as reported to the executive director from a member of the public, reported to the internal affairs unit where the investigation was reviewed by the executive director, or which were initiated by the executive director; and

8. Include the information compiled under section 2-52-11(7) above in an annual report to the chief of police, the Mayor, and the city council of the committee's activities.

9. Complaints will be placed into one of the following categories for administrative purposes:

a. Force: The use or threatened use of improper, unnecessary or excessive force by a member of the Memphis Police Department.

b. Arrest: The restraint of a person's liberty was improper or unjustified.

c.	Entry:	Entry into a building or onto property was improper, including the use of excessive force against the property to gain entry.
d.	Search:	The search of a person or their property was improper, in violation of established police procedures or unjustified.
e.	Harassment:	The taking of police action which was predicated upon factors which are irrelevant, under the circumstances, to good law enforcement decision-making.
f.	Demeanor:	Improper actions regarding an officer's bearing, gestures, language or other action which allegedly is offensive or of doubtful social propriety.
g.	Other procedures:	Allegation of other actions which are in violation of departmental rules, procedures, or policies.
h.	Service:	The inadequacy or lack of police service.
i.	Property:	Property lost or damaged while in police custody or confiscated through police action.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-12. Committee reviews.

A. The committee shall review all reports submitted by the executive director under section 2-52-9(C)(1).

B. If the executive director finds that an investigation is not complete under section 2-52-9(C)(2), then the committee may, by a majority vote of its members:

1. Request the chief of police to conduct a further investigation of the incident, specifying that additional information is needed; or

2. Direct the executive director to return the investigation to the internal affairs unit for additional investigation.

C. The executive director shall report any additional investigative findings made to the committee, and upon completion of its inquiry, the committee shall report its written findings and conclusions to the chief of police and the Mayor.

D. 1. The committee shall have access to all public records it deems necessary to conduct its affairs in furtherance of its duties under this section, including law enforcement agency records. Such records include:

a. Complaints and supporting documents provided by complainants;

b. Offense, incident, and arrest reports; and

c. Incident-related documents such as schedules, dispatch notes, dispatch tapes and transcriptions, citations, videos, photographs, and records of interviews with complainants, employees, and witnesses.

2. The committee shall not access nonpublic records, including employee medical records, or records that are otherwise exempt from disclosure under any state or federal law.

E. 1. Upon completion of the review of an internal affairs investigation, the committee may, subject to its own specific findings and conclusions, make recommendations to the chief of police for the improvement of law enforcement policies and activities and to benefit the community.

2. All meetings must be open to the public and the chief of police, or his/her designee, may attend and provide information and advice to, or accept the recommendations, if any, of the committee.

F. 1. The committee shall compile a comprehensive report of its activities at least once a year, containing statistics and summaries of citizen complaints, including a comparison of the committee's findings and conclusions with those of the internal affairs unit, along with the actions taken by the chief of police.

2. The report compiled in section 2-25-12(F)(1) must be submitted to:

a. The executive director for inclusion in the executive director's annual report to the chief of police;

b. The Mayor;

c. The city council;

d. The chairs of the civil justice and criminal justice committees of the Tennessee House of Representatives; And

e. The chair of the judiciary committee of the Tennessee Senate.

G. 1. The committee may request legal services and advice from the city attorney. If the city attorney determines that the provision of legal services and advice would constitute a conflict of interest, then the city attorney shall advise the committee of the conflict and the committee may request the city attorney to provide other outside counsel for such legal services and advice.

2. If the executive director is prohibited from participating in the review of a complaint pursuant to section 2-52-8(B)(7), then the committee may petition the Mayor to appoint a temporary assistant to perform the duties of the executive director.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-13. Rules and procedures; quorum.

A. The committee shall adopt rules of procedure for the transaction of committee business not inconsistent with this section.

B. Four members of the committee constitute a quorum. A meeting of the committee must not commence or continue in the absence of a quorum, and a majority vote of those forming a quorum is required for action to be taken by the committee except where otherwise specified in this section.

C. Regular meetings of the committee must be held no less than quarterly, on the first Wednesday of January, April, July, and October, or as the committee may otherwise elect. A scheduled meeting may be rescheduled at the preceding regular meeting. The chairman and three members of the committee may call a special meeting of the committee upon at least five days' notice.

D. Committee meetings and records must be open to the public in accordance with Tennessee law, including Title 8, Chapter 44, Part 1, and Title 10, Chapter 7. The committee shall provide an opportunity for public comment about an investigation being reviewed by the committee pursuant to rules established by the committee.

E. 1. The police advisory and review committee does not have the power to issue subpoenas for documents or to compel witness testimony.

2. This section 2-52-13(E) does not prohibit the issuance of a subpoena by the city council as otherwise provided by law.

3. A subpoena issued by the city council, on behalf of the police advisory and review committee, must:

a. Be issued pursuant to majority vote of the city council;

b. Not be issued in the form of a blanket authorization, but must specify each document to be produced; and

c. Not be issued for documents that are confidential under state or federal law.

4. Notwithstanding section 2-52-13(D), any document provided to a committee that is confidential under state or federal law must be treated as confidential and must not be released to the public.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-14. Limitations; reviewsing investigations.

A. The committee or its staff shall not review an investigation:

1. Concerning an incident that occurred prior to January 1, 2023;

2. Prior to the closure of an investigation by the internal affairs unit or of a criminal investigation;

3. While the complainant, the officer complained about, or a witness is actively engaged in pursuing a remedy provided by the rules and regulations of the civil service commission or grievance process, including arbitration, as set forth in the memorandum of understanding between law enforcement officers and the city; or

4. If the complainant has initiated, threatened, or given notice of the intent to initiate litigation against the city or its employees.

B. The committee shall not direct the chief of police to alter or impose disciplinary action against an employee of the Memphis Police Department.
(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-15. Police advisory board hearing procedurs.

Public meetings will follow a routine agenda which includes the following components:

1. Call to order, roll call;
2. Acceptance of agenda;
3. Approval of previous meeting minutes;
4. Approval of administrative matters;
5. Opportunity for public comment on pending individual cases; and
6. Deliberation of individual cases.

(Ord. No. 5885, § 1, 11-7-2023)

Sec. 2-52-16. Joint responsabilities.

The committee and the executive director shall be jointly responsible for the creation and maintenance of a mobile-friendly website. The website shall be independent from the main web portal of the City of Memphis. The executive director shall have a budget for the establishment of the website and an annual budget to maintain the website. The website shall be updated at least monthly and shall include the following:

1. An "About us" page describing the committee's mission. This page shall also contain a link to this chapter and any other applicable law.
2. A "Process" page describing, in detail, the options for filing a complaint with the committee, the process by which complaints are reviewed, all relevant timing requirements and deadlines, and a description of all possible outcomes.
3. A "Committee members and staff" page listing office location, hours, and phone number as well as the names, photos, and contact information for all committee members and staff.
4. A "File a complaint" page containing an online form which can be used to file a formal complaint.
5. A "Complaints reviewed" page that lists all complaints received, and posts the following information for each complaint:
   a. The current stage in proceedings of each complaint and the time and place of any meetings concerning the investigation;
   b. No more than 45 days after the complaint is filed, the completed investigation, finding, and recommendation of the committee; and
   c. No more than 30 days after receiving a response from the Memphis Police Department as to the committee's recommendation, the finding and explanation of action taken by the chief of police.
   d. A "Committee meetings" page that posts all approved minutes from meetings of the committee and lists the time and location of future committee meetings.
   e. Any other pages or information the committee deems necessary in carrying out its mission.

(Ord. No. 5885, § 1, 11-7-2023)

CHAPTER 2-54. PUBLIC SOLICITATIONS BOARD OF SUPERVISORS

Sections:

Sec. 2-54-1. Created.
Sec. 2-54-2. Composition; appointment and terms of members.
Sec. 2-54-3. Qualifications of members.
Sec. 2-54-4. Appointment of chairperson.
Sec. 2-54-5. Designation of secretary.
Sec. 2-54-6. Meetings.
Sec. 2-54-7. Issuance of placards or notices.
Sec. 2-54-8. Rules and regulations.
Sec. 2-54-9. Removal of members.

Sec. 2-54-1. Created.

For the purpose of authorizing, regulating, restricting and controlling the public begging or soliciting of money, subscriptions or contributions for any charitable,

religious, educational or benevolent purpose, there is created a board of supervisors of public solicitation of funds.
(Code 1967, § 30-16; Code 1985, § 30-16)

Sec. 2-54-2. Composition; appointment and terms of members.

The board of supervisors shall consist of seven members, who shall be appointed by the mayor, subject to approval of the city council, and who shall hold office for a term of one calendar year, or until their successors are appointed and qualified.
(Code 1967, § 33-14; Code 1985, § 30-17)

Sec. 2-54-3. Qualifications of members.

Each member of the board of supervisors shall be over the age of 21 years and shall be a resident of this county.
(Code 1967, § 33-15; Code 1985, § 30-18)

Sec. 2-54-4. Appointment of chairperson.

The chairperson of the board of supervisors shall be appointed by the mayor.
(Code 1967, § 33-16; Code 1985, § 30-19)

Sec. 2-54-5. Designation of secretary.

The director of public service shall designate a person of lawful age to be secretary of the board of supervisors.
(Code 1967, § 33-17; Code 1985, § 30-20)

Sec. 2-54-6. Meetings.

The board of supervisors shall meet in regular session at least once a month, at a time to be fixed by such board, and shall meet more often if necessary to perform the duties imposed on such board by this chapter.
(Code 1967, § 33-18; Code 1985, § 30-21)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-54-7. Issuance of placards or notices.

The board of supervisors shall have authority to issue placards or notices for the use of all persons in giving the public notice that no contributions are made for the purposes set forth in this chapter except to solicitors authorized by such board of supervisors.
(Code 1967, § 33-19; Code 1985, § 30-22)

Sec. 2-54-8. Rules and regulations.

The board of supervisors shall have power to prescribe rules and regulations for the purpose of carrying out the provisions of this chapter.
(Code 1967, § 33-20; Code 1985, § 30-23)

Sec. 2-54-9. Removal of members.

Any member of the board of supervisors may be removed at any time by the mayor.
(Code 1967, § 33-21; Code 1985, § 30-24)

CHAPTER 2-56. MEMPHIS AREA TRANSIT AUTHORITY*

Sections:

Sec. 2-56-1. Election and terms of members; filling of vacancies; composition; qualifications.
Sec. 2-56-2. Selection and terms of chairperson and vice-chairperson.
Sec. 2-56-3. Special meetings; quorum.
Sec. 2-56-4. General powers; members.
Sec. 2-56-5. Management company authorization.
Sec. 2-56-6. Employment of other subordinate officers and employees.
Sec. 2-56-7. Rules and regulations.
Sec. 2-56-8. Authority board to acquire, maintain and operate transportation system.
Sec. 2-56-9. Rates, fares and tolls.
Sec. 2-56-10. Purchasing of supplies and materials.
Sec. 2-56-11. Powers generally; authority.
Sec. 2-56-12. Retirement system.

Sec. 2-56-1. Election and terms of members; filling of vacancies; composition; qualifications.

The initial members of the Memphis Area Transit Authority shall be the members of the newly dissolved Memphis Transit Authority whose terms of office have not expired and who shall serve for a term designated by the mayor and approved by the council. The transit authority board shall consist of nine members, who shall be nominated by the mayor and approved by the council for terms of three years. In the event a vacancy occurs by death, resignation or removal among such transit authority board members, a successor shall be appointed in like manner only to fill the unexpired term of such member. All members shall serve until their successors are nominated and qualified.
(Code 1967, § 2-279; Code 1985, § 2-336; Ord. No. 2252, § 2, 5-13-1975; Ord. No. 4786, § 1, 8-1-2000)

Sec. 2-56-2. Selection and terms of chairperson and vice-chairperson.

The mayor shall designate one of the members of such authority board as chairperson. The term of the chairperson shall be two years and he or she may succeed himself or herself upon proper designation by the mayor. The members of the transit authority board shall elect one of their number as vice-chairperson, who shall hold office

***State law reference—**Transit authorities, T.C.A. § 7-56-101 et seq.

for a period of one year. The vice-chairperson shall act as chairperson in the event of the death, removal, resignation, absence or other inability of the chairperson to serve as such. Terms shall commence on July 1; provided that, the chairperson and vice-chairperson shall continue to serve until his or her successor is designated or elected, respectively.
(Code 1967, § 2-280; Code 1985, § 2-337; Ord. No. 2252, § 3, 5-13-1975)

Sec. 2-56-3. Special meetings; quorum.

The transit authority board shall hold not less than ten regular meetings each calendar year, no more than 60 calendar days intervening between any two such meetings, Saturdays, Sundays and legal holidays excepted, the time and place of such meetings to be fixed by the transit authority board or the chairperson and made public as required by applicable law. The transit authority board shall hold such regular meetings as may be necessary for the transaction of the business of the transit authority. Special meetings may be called by the chairperson, by a majority of the authority board or by the mayor. A majority of the authority board shall constitute a quorum for the transaction of business at any regular or special meeting. Notice of any special meeting may be waived, either before or after the holding thereof; and personal attendance at any special meeting shall constitute a waiver of notice by the members present; and absence of any member from the city shall dispense with the necessity of giving such member any notice of any special meeting.
(Code 1967, § 2-281; Code 1985, § 2-338; Ord. No. 2252, § 4, 5-13-1975)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-56-4. General powers; members.

The members of the transit authority board shall have authority to supervise the operation of the transit system. The board shall have authority to contract with a private management firm to manage and operate such transit system as set forth in section 2-56-5, or to employ its own personnel to manage and operate such transit system, and further to employ such personnel as it from time to time deems necessary or appropriate to carry out its purposes.
(Code 1967, § 2-282; Code 1985, § 2-339; Ord. No. 2252, § 5, 5-13-1975)

Sec. 2-56-5. Management company authorization.

The transit authority board shall have the authority to hire or contract with a management company or a general manager to operate such transportation system.
(Code 1967, § 2-283; Code 1985, § 2-340; Ord. No. 2252, § 6, 5-13-1975)

Sec. 2-56-6. Employment of other subordinate officers and employees.

The transit authority board shall be authorized to employ such other superintendents, engineers, assistants, consultants and other subordinate officers and employees as may be necessary for efficient operation of the transit authority, who shall hold office at the will and pleasure of the transit authority board.
(Code 1967, § 2-284; Code 1985, § 2-341; Ord. No. 2252, § 7, 5-13-1975)

Sec. 2-56-7. Rules and regulations.

The transit authority board shall have the power and authority to promulgate and enforce such rules and regulations governing the system as they may deem proper in the operation of the transit authority.
(Code 1967, § 2-285; Code 1985, § 2-342; Ord. No. 2252, § 8, 5-13-1975)

Sec. 2-56-8. Authority board to acquire, maintain and operate transportation system.

The transit authority board shall have all the power and authority provided in T.C.A. §§ 7-56-101 through 7-56-109 not inconsistent with this chapter and such provisions are incorporated herein by reference which provides authority to establish, acquire, purchase, maintain and operate the public transportation system.
(Code 1967, § 2-286; Code 1985, § 2-343; Ord. No. 2252, § 8, 5-13-1975)

Sec. 2-56-9. Rates, fares and tolls.

The MATA board shall have authority to make changes in rates, fares and tolls for MATA transportation services.
(Code 1967, § 2-287; Code 1985, § 2-344; Ord. No. 2252, § 10, 5-13-1975; Ord. No. 4230, § 1, 11-9-1993; Ord. No. 4326, § 1, 5-16-1995)

Sec. 2-56-10. Purchasing of supplies and materials.

The transit authority board shall make all purchases for supplies, equipment and materials in accordance with

city procedures taking such bids as are required by such procedures for purchases under the amount specified in the Charter for like purchases by the city and advertising for bids on all purchases of at or in excess of the amount specified in the Charter for like purchases by the city as required by law.
(Code 1967, § 2-288; Code 1985, § 2-345; Ord. No. 2252, § 11, 5-13-1975)

Sec. 2-56-11. Powers generally; authority.

A. The transit authority board shall have the right to make any and all contracts necessary, appropriate, or convenient for the full exercise of the powers herein granted, including, but not limited to, contracts with any person, firm, federal agency, municipality, or public or private corporation relating to the acquisition, construction, maintenance, and operation of all or any part of any transportation system, and contracts for grants or other financial assistance from any state or federal agency.

B. The transit authority board shall have the authority to purchase liability and property damage insurance in such amounts as they determine is necessary and develop transit programs and plans and be responsible for encouraging and establishing public transit as a viable transportation alternative.

C. The transit authority board shall have no power to incur indebtedness, issue any notes or other obligations constituting a lien upon the properties, real or personal, used in the system for the purpose of transporting passengers, sell, purchase or lease real estate or enter into any service and operation agreements with any other governmental jurisdiction for transportation services, except with the approval of the mayor and city council.

D. The transit authority board shall prepare an annual operating and capital budget in accordance with procedures established by the mayor and shall submit the same in the time designated by the mayor to be submitted with the general budget request of the city for consideration by the council, such budget submitted by the transit authority board to the director of finance and administration, to thereafter be submitted to the mayor for submission to the council in the annual budget request book using the same format and accounting methods used in budget presentations by the divisions of city government.

E. The MATA board shall have authority to select and determine all routes and scheduling of the transportation system.
(Code 1967, § 2-289; Code 1985, § 2-346; Ord. No. 2252, § 12, 5-13-1975; Ord. No. 4230, §§ 2, 3, 11-9-1993; Ord. No. 4326, § 2, 5-16-1995)

State law reference—General powers of transit authorities, T.C.A. § 7-56-101 et seq.

Sec. 2-56-12. Retirement system.

The transit authority board is authorized by resolution to take action as to retirement and disability allowance of its employees, former employees of the transit authority and employees of the former Memphis Transit Authority, as deemed necessary or appropriate by the transit board, including, but not limited to, the transfer to and assumption by a management company, employed pursuant to section 2-56-5, of the assets and administration of the retirement and disability retirement plan.
(Code 1967, § 2-290; Code 1985, § 2-347; Ord. No. 2252, § 13, 5-13-1975)

CHAPTER 2-58. EMERGENCY MANAGEMENT AGENCY*

Sections:

Sec. 2-58-1.	Assigned to division of public service; emergency management expenses.
Sec. 2-58-2.	Office of director created; appointment and term.
Sec. 2-58-3.	General powers and duties of director.
Sec. 2-58-4.	Operational organization.
Sec. 2-58-5.	Joint city-county operations.
Sec. 2-58-6.	Declaration of existence of emergency.
Sec. 2-58-7.	Emergency orders, rules and regulations supersede other orders.
Sec. 2-58-8.	Interfering with enforcement of or violating emergency rules and regulations.
Sec. 2-58-9.	Impersonating emergency management personnel.
Sec. 2-58-10.	Unauthorized siren sounding.
Sec. 2-58-11.	City not liable for damages resulting from activities under chapter.
Sec. 2-58-12.	Chapter not to conflict with state or federal statute or military orders.

***Charter reference—**Use of city vehicle parking facilities as air raid shelters, § 751.3.

State law reference—Emergency management, T.C.A. § 58-2-101 et seq.

Sec. 2-58-1. Assigned to division of public service; emergency management expenses.

The civilian defense office shall be known as the emergency management agency and shall be considered as a bureau within the city government and is assigned to the division of public service, which division shall provide for operating funds for the emergency management agency within its budget and all funds expended for the office shall be expended as provided for expenditures by any other bureau of the city government.
(Code 1967, § 11-2; Code 1985, § 8-1; Ord. No. 3512, § 1(2), 12-31-1985)

Sec. 2-58-2. Office of director created; appointment and term.

The office of director of emergency management is created. The director shall be appointed by the mayor and shall serve for a term of one year or until his or her successor is appointed.
(Code 1967, § 11-3; Code 1985, § 8-2; Ord. No. 3512, § 1(3), 12-31-1985)

State law reference—Qualifications of directors of local emergency management agencies, T.C.A. § 8-44-101 et seq.

Sec. 2-58-3. General powers and duties of director.

A. The director of emergency management shall be charged with the preparation of the emergency management plan for the city together with other duties listed hereafter.

B. The duties and responsibilities of the director of emergency management shall include the following:

1. The control and direction of the actual or training efforts of the emergency management organization of the city;
2. The determination of all questions of authority and responsibility that may arise within the emergency management organization;
3. The maintenance of necessary liaison with other municipal, area, state, regional, federal, or other civil defense organizations;
4. The marshalling, after the declaration of an emergency as provided for in section 2-58-6, of all necessary personnel, equipment or supplies from any department of the city to aid in the carrying out of the emergency management plans;
5. The issuance of all necessary proclamations as to the existence of an emergency and the immediate operational effectiveness of the emergency management plan;
6. The issuance of plans which are necessary for the protection of life and property in the city during large scale emergencies;
7. The supervision of the drafting and execution of mutual aid agreements entered into by the city;
8. The supervision of and final authorization for the procurements of all necessary supplies and equipment including acceptance of private contributions;
9. The authorizing of agreements, after approval of the city attorney, for the use of private property for fallout shelters and other purposes.

(Code 1967, § 11-8; Code 1985, § 8-3; Ord. No. 3512, § 1(4), (5), 12-31-1985)

Sec. 2-58-4. Operational organization.

The operational emergency management organization of the city shall consist of the officers and employees of the city designated by the mayor, on the recommendation of the director of emergency management, as well as all volunteer municipal defense workers. The functions and duties of this organization shall be distributed among such divisions, services and special staff as the mayor shall prescribe by emergency management plans. Any such plan shall set forth the form of organization, establish and designate divisions and services, assign functions, duties and powers, and designate officers and employees to carry out the provisions of this chapter. Insofar as possible, the form of organization, titles and terminology shall conform to the recommendations of the federal government and the recommendations of the emergency management agency of the state.
(Code 1967, § 11-9; Code 1985, § 8-4; Ord. No. 3512, § 1(4), (5), 12-31-1985)

Sec. 2-58-5. Joint city-county operations.

The emergency management agency is specifically authorized to perform identical functions for and on behalf of the county, adopt the joint name of Memphis and Shelby County Emergency Management Agency and

receive such contributions from the county towards its budget as the respective legislative bodies of the city and county, may agree upon, by resolution.
(Code 1967, § 11-10; Code 1985, § 8-5; Ord. No. 3512, § 1(6), 12-31-1985)

Sec. 2-58-6. Declaration of existence of emergency.

The director of emergency management shall have the authority to request the declaration of the existence of an emergency by the mayor or by higher authority. In the event that it is deemed necessary to declare the existence of an emergency without delay, the director may, if the mayor is not available, do so. Such action shall be subject to the confirmation by the mayor upon his or her return.
(Code 1967, § 11-11; Code 1985, § 8-6; Ord. No. 3512, § 1(4), 12-31-1985)

Sec. 2-58-7. Emergency orders, rules and regulations supersede other orders.

At all times when the orders, rules and regulations made and promulgated pursuant to this chapter shall be in effect, they shall supersede all existing ordinances, orders, rules and regulations insofar as the latter may be inconsistent therewith.
(Code 1967, § 11-13; Code 1985, § 8-7)

Sec. 2-58-8. Interfering with enforcement of or violating emergency rules and regulations.

It is unlawful for any person willfully to obstruct, hinder or delay any member of the emergency management organization in the enforcement of any rule or regulation issued pursuant this chapter or to do any act forbidden by any rule or regulation issued pursuant to the authority contained in this chapter.
(Code 1967, § 11-14; Code 1985, § 8-8; Ord. No. 3512, § 1(4), 12-31-1985)

Sec. 2-58-9. Impersonating emergency management personnel.

It is unlawful for any person to wear, carry or display an emblem, insignia or any other means of identification as a member of the emergency management organization of the city unless the authority to do so has been granted to such person by the proper officials.
(Code 1967, § 11-15; Code 1985, § 8-9; Ord. No. 3512, § 1(4), 12-31-1985)

Sec. 2-58-10. Unauthorized siren sounding.

Any unauthorized person who shall operate a siren or other device so as to simulate an emergency management warning or termination of such a warning shall be deemed guilty of a misdemeanor.
(Code 1967, § 11-16; Code 1985, § 8-10; Ord. No. 3512, § 1(4), 12-31-1985)

Sec. 2-58-11. City not liable for damages resulting from activities under chapter.

This chapter is an exercise by the city of its governmental functions for the protection of the public peace, health and safety, and the city shall not be liable for any damage sustained to person or property while in good faith carrying out, complying with or attempting to comply with, any order, rule or regulation pursuant to the provisions of this chapter.
(Code 1967, § 11-17; Code 1985, § 8-11)

Sec. 2-58-12. Chapter not to conflict with state or federal statute or military orders.

This chapter shall not be construed so as to conflict with any state or federal statute or with any military or naval order, rule or regulation.
(Code 1967, § 11-18; Code 1985, § 8-12)

CHAPTER 2-60. MEMPHIS ADVISORY COUNCIL ON HUMAN SERVICES

Sections:

Sec. 2-60-1. Designation; membership.
Sec. 2-60-2. Term and removal of members.
Sec. 2-60-3. Chairperson and secretary; meetings.
Sec. 2-60-4. Duties and purposes.
Sec. 2-60-5. Annual report.

Sec. 2-60-1. Designation; membership.

A. There shall hereafter be established an advisory council to be known as the Memphis Advisory Council on Human Services, whose members shall be of lawful age and residents of the county.

B. The advisory council shall consist of members nominated by the Memphis Human Services Board and appointed by the mayor subject to concurrence by the

city council. The advisory council shall be composed of at least one representative from each of the following service categories:

1. Education;
2. Employment;
3. Environment;
4. Health;
5. Housing;
6. Income maintenance;
7. Protection/safety/justice;
8. Social adjustment and development.

C. In addition, there shall be at least one representative from each of those organizations within the city whose purpose is to coordinate or provide for human services in the community, including, but not limited to, aging, labor, community chest, religious, community or emergency services.
(Code 1967, § 2-360; Code 1985, § 2-216; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-60-2. Term and removal of members.

All members of the advisory council established by this chapter shall serve for a term of two years, and hold office until their successors have been appointed and approved. Such member may succeed himself or herself in office for no more than two consecutive terms. Vacancies in office shall be filled for the remainder of the term then in existence. Membership shall be of not less than ten, nor more than 21. A majority of the members appointed to the advisory council shall constitute a quorum for the transaction of any business. Members shall serve without compensation. Any or all members may be removed at any time for just cause, upon recommendation of the mayor, subject to approval of the city council.
(Code 1967, § 2-361; Code 1985, § 2-217; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-60-3. Chairperson and secretary; meetings.

Members of the council established by this division shall designate one of its members as chairperson for a one-year period. A member may serve for no more than two terms as chairperson, in succession. Members of the advisory council shall also designate one of its members as secretary, to serve at the will and pleasure of the advisory council, and who shall cause a proper record to be kept of the council proceedings. The advisory council shall meet at least once per month at such time and place as such council may fix by resolution. Special meetings may be called from time to time by concurrence of three members and/or the chairperson. The council may adopt rules and procedures consistent with existing laws as are necessary for the conduct of its affairs and performance of its functions and responsibilities. All rules and regulations must carry approval by the majority of the entire council members. All meetings must have at least 24 hours' written notice given to all members prior to any session. All meetings shall be open to the public.
(Code 1967, § 2-362; Code 1985, § 2-218; Ord. No. 3276, § 1, 3-15-1983)

Sec. 2-60-4. Duties and purposes.

The duties and purposes of the council shall be to:

A. Meet on a monthly basis with representatives of city divisions, bureaus, agencies, boards, commissions, authorities and/or quasi-city agencies for the purpose of communicating needs and bringing written reports and/or recommendations, and receiving information as to city and community services, requirements and/or regulations for discussion and consideration;

B. Study general and specific problems relating to human service needs;

C. Conduct seminars, conferences or public hearings relating to community human needs;

D. Coordinate information among various organizations, collect data, assist and encourage needs assessments;

E. Provide reports and recommendations concerning human services.

(Code 1967, § 2-363; Code 1985, § 2-219; Ord. No. 3276, § 1, 3-15-1983)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-60-5. Annual report.

The advisory council shall report to the Memphis Human Services Board by October 1 of each year regarding its activities during the preceding year and provide recommendations as to future human services programs and projects, based on data and needs assess-

ments, for assistance, support and/or funding based on an orderly and productive plan to address community human service needs.
(Code 1967, § 2-364; Code 1985, § 2-220; Ord. No. 3276, § 1, 3-15-1983)

CHAPTER 2-62. CABLE TELEVISION PROGRAM ADVISORY COUNCIL

Sections:

Sec. 2-62-1. Established; composition; appointment and terms of office of members.
Sec. 2-62-2. Duty to make recommendations on the programming for, and the coordination of, educational, governmental and local originated channels.
Sec. 2-62-3. Objectives of council when making recommendations.
Sec. 2-62-4. Who may submit proposals to council for recommendations; independent submission of findings and recommendations by council.
Sec. 2-62-5. Authority to submit proposed rules and regulations for conduct of business to mayor and council, hold hearings and make recommendations on programming for education and local origination; actions deemed advisory.

Sec. 2-62-1. Established; composition; appointment and terms of office of members.

A. There is established a cable television program advisory council consisting of nine members nominated by the mayor and approved by the council. Such members shall serve a term of three years.

B. The council shall have at least two representatives from local educational broadcasting outlet; two representatives from the educational community; two representatives from business, professional or banking communities; and three citizen representatives.
(Code 1967, § 12½-65; Code 1985, § 10-36; Ord. No. 1711, § 1, 5-1-1973)

Sec. 2-62-2. Duty to make recommendations on the programming for, and the coordination of, educational, governmental and local originated channels.

The cable television advisory council shall make recommendations to the grantee of the broadband telecommunications network and to the city on the programming for, and the coordination of, the educational, governmental, and locally originated channels.
(Code 1967, § 12½-66; Code 1985, § 10-37; Ord. No. 1711, § 2, 5-1-1973)

Sec. 2-62-3. Objectives of council when making recommendations.

The cable television advisory council, in making its recommendations for programming and in coordination of the educational, governmental, and locally originated channels, shall promote the interest, welfare and entertainment of the community with emphasis on enhancement of civic development and shall make recommendations to ensure that programming is impartial and nondiscriminatory.
(Code 1967, § 12½-67; Code 1985, § 10-38; Ord. No. 1711, § 3, 5-1-1973)

Sec. 2-62-4. Who may submit proposals to council for recommendations; independent submission of findings and recommendations by council.

The city may submit proposals for programming on the government channel or channels to the advisory council for recommendations and the educational institutions may submit proposals or planned programming for the educational channel or channels to the advisory council for recommendations. The broadband telecommunications network may submit planned programming for locally originated channel or channels to the advisory council for recommendation, but nothing shall prohibit the council from submitting its own findings and recommendations to such bodies whether such proposals have been submitted to them for comment or not.
(Code 1967, § 12½-68; Code 1985, § 10-39; Ord. No. 1711, § 4, 5-1-1973)

Sec. 2-62-5. Authority to submit proposed rules and regulations for conduct of business to mayor and council, hold hearings and make recommendations on programming for education and local origination; actions deemed advisory.

The advisory council shall have the authority to submit proposed rules and regulations for the conduct of its business to the mayor and council for approval, and upon approval, shall have the right to hold hearings and

make recommendations to the broadband telecommunications network and to the educational community on programming for education and local origination; all such actions shall be advisory only.
(Code 1967, § 12½-69; Code 1985, § 10-40; Ord. No. 1711, § 5, 5-1-1973)

CHAPTER 2-64. MEMPHIS PARK COMMISSION

Sections:

Sec. 2-64-1. Memphis Park Commission.
Sec. 2-64-2. Created; composition; appointment and terms of members.
Sec. 2-64-3. Responsibilities.

Sec. 2-64-1. Memphis Park Commission.

The present Memphis Park Commission is abolished.
(Code 1985, § 23-41; Ord. No. 4763, 4-25-2000)

Sec. 2-64-2. Created; composition; appointment and terms of members.

The mayor may establish a park committee, which parks committee shall consist of 15 members, all of whom shall be duly qualified voters of the city. If established by the mayor:

A. The members shall serve as such without compensation.

B. No member (except ex officio non-voting members) shall be an elected official or employee of the city.

C. The members shall be appointed by the mayor of the city, subject to approval of the city council, for a term of three years. No member shall serve more than two consecutive three-year terms. In the event that a member is removed or otherwise becomes unwilling or unable to serve, an interim successor will be appointed hereunder in the same manner as original appointments and will serve until the expiration of the original term. Such interim service shall not be included in determining whether or not a member has served the maximum time of two consecutive three-year terms. The mayor will strive to achieve a goal of racial and gender balance on the board and to the extent reasonably practical shall attempt to appoint not less than one member from each city council district.

D. A member of the parks committee may be removed from the committee, with cause, by the mayor, subject to approval by the city council.

E. In addition to the voting members of the parks committee, there shall be a non-voting liaison to the parks committee appointed by the chairperson of the city council. The term of the liaison shall run concurrently with the term of the chairperson making the appointment.

F. The members shall meet and organize as a committee and shall elect one of its members as chair, one as vice-chair, and one as secretary and such offices shall annually be filled in like manner.

G. In the event of the resignation or death of the chair, vice-chair or secretary, another member may be elected to fill the vacancy for the remaining term thereof.

H. A majority of the committee shall constitute a quorum for the transaction of business. The concurring vote of a majority of the members voting at a meeting at which a quorum is present shall be necessary for any recommendation of the committee.

I. The committee shall meet quarterly to solicit and convey recommendations for improvements, initiatives, programs, solutions and participation regarding parks within the city to the director of parks who shall in turn convey those recommendations to the mayor and the city council for review.

(Code 1985, § 23-42; Ord. No. 4763, 4-25-2000)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-64-3. Responsibilities.

The city council may at any time amend, modify or eliminate, by appropriate ordinances duly adopted, the authority, composition or existence of the parks committee. The parks committee shall provide recommendations and advice when requested by the mayor or the city

council on the matters pertaining to parks, park facilities, playgrounds, recreational centers, recreational facilities, parkways and boulevards, including but not limited to:

A. Improvement of parks and other facilities;

B. Input for a long range plan for parks;

C. Acquisition of park lands;

D. Operation of parks and park facilities; and

E. Development of citizen's volunteer efforts to enhance park services and beautify parks.

(Code 1985, § 23-43; Ord. No. 4763, 4-25-2000)

CHAPTER 2-66. MEMPHIS CONVENTION CENTER COMMISSION*

Sections:

Sec. 2-66-1. Memphis Convention Center Commission membership.

Sec. 2-66-1. Memphis Convention Center Commission membership.

A. There is hereby established a Memphis Convention Center Commission which shall consist of seven regular members and two ex-officio members appointed by the Mayor of the City of Memphis. Successors to the regular members shall also be appointed from time to time as vacancies may occur by the Mayor of the City of Memphis.

The ex-officio members shall be:

1. The Mayor of the City of Memphis, or his or her designee; and

2. The Chairman of the Council of the City of Memphis, or his or her designee, to serve in the interest of the economic development and tourism committee (or the successor committee).

B. The terms of office of said members shall be for a period of two years, beginning July 1 annually. The members shall operate, manage, control, regulate and care for the convention center, but without compensation.

C. Any contract to be entered into by the commission in connection with its authority to operate and maintain the convention center which attempts in any manner to allow a separate entity or individual to manage or operate the facility or any ancillary activities related thereto shall first be subject to the approval of the Mayor of the City of Memphis.

D. All governance of the convention center operations and management by Shelby County government is hereby repealed.

(Code 1985, § 2-110; Ord. No. 4764, §§ 2, 3, 4-25-2000; Ord. No. 5463, § 2, 8-7-2012)

CHAPTER 2-68. ARTS AND SCIENCE COMMISSION

Sections:

Sec. 2-68-1. Reorganization; composition; qualification of members.
Sec. 2-68-2. Appointment and term of members.
Sec. 2-68-3. Members to serve without pay.
Sec. 2-68-4. Designation of chairperson and secretary.
Sec. 2-68-5. Control.
Sec. 2-68-6. General powers and duties.
Sec. 2-68-7. Reports.

Sec. 2-68-1. Reorganization; composition; qualification of members.

The art commission is reorganized as the arts and science commission to consist of seven members who shall be of lawful age and residents of the city and who shall have an interest in the development of the arts, cultural and scientific activities of the citizens of Memphis and the proper application of the municipal support of institutions and organizations which foster such activities.

(Code 1967, § 2-189; Code 1985, § 2-126; Ord. No. 659, § 2, 3-17-1970)

Sec. 2-68-2. Appointment and term of members.

The members of the arts and science commission shall be appointed by the mayor with the approval of a majority of the council for terms of three years after the initial terms. Each term shall expire on June 30 of the appropriate year. A member shall hold office until his or her successor has been appointed, with eligibility for reappointment. Vacancies shall be filled for any unexpired term. It is further provided that there shall be

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***Editor's note—**Ord. No. 5463, § 1, adopted Aug. 7, 2012, changed the title of Ch. 2-66 from "Memphis-Shelby County Convention Center Commission" to read as set out herein.

serving as commissioners at all times not less than two members who have been recommended for nomination by the Memphis Academy of Arts and by Memphis Brooks Museum of Art, respectively.
(Code 1967, § 2-190; Code 1985, § 2-127; Ord. No. 659, § 2, 3-17-1970; Ord. No. 3272, § 1, 3-1-1982)

Sec. 2-68-3. Members to serve without pay.

All of the members of the arts and science commission shall serve without pay.
(Code 1967, § 2-191; Code 1985, § 2-128; Ord. No. 659, § 2, 3-17-1970)

Sec. 2-68-4. Designation of chairperson and secretary.

The mayor shall designate one of the members of the arts and science commission as chairperson thereof and the commission itself shall elect one of its members as secretary.
(Code 1967, § 2-192; Code 1985, § 2-129; Ord. No. 659, § 2, 3-17-1970)

Sec. 2-68-5. Control.

The arts and science commission shall be under the general control of the mayor.
(Code 1967, § 2-193; Code 1985, § 2-130; Ord. No. 659, § 2, 3-17-1970)

Sec. 2-68-6. General powers and duties.

The duties and powers of the arts and science commission shall be:

A. To act as the central municipal agency to promote and develop in and for the community the interest, study, understanding and appreciation of the arts and sciences generally;

B. On its own initiative, or at the direction of the mayor or council, to conduct studies, to prepare reports and to recommend action upon community needs and programs relating to public participation or education in artistic, cultural or scientific activities in the city;

C. To cooperate with all appropriate governmental agencies, and with community agencies, in order to assist in fixing objectives and meeting community needs in the fields of the arts, culture and the related sciences;

D. To advise the mayor and council, upon request, concerning artistic and cultural matters, which shall include the design and permanent placement of works of art in, on, or about public places, other than in established museums;

E. To have supervision over the application of municipal funds for maintenance and operation of the Memphis Academy of Arts ("academy"), and, in furtherance thereof to represent the city when required in the management of the academy; to receive and review the budget requests of the academy made to the city and to make recommendations to the mayor and council concerning such budget requests; to supervise the expenditure of all moneys appropriated or contributed by the city for the academy; to perform such other duties as advisor to the academy as shall be required to advance the aims and objects of the academy for the profitable training and education of its students and for the welfare and advantage of the people of the city;

F. To have supervision over the application of municipal funds for maintenance and operation of Memphis Brooks Museum of Art ("museum") and in furtherance thereof to represent the city, when required, in the management of the museum; to receive and review the budget requests of the museum made to the city and to

make recommendations to the mayor and council concerning such budget requests; to supervise the expenditure of all moneys appropriated or contributed by the city for the museum; to perform such other duties as advisor to the museum as shall be required by the city and/or requested by the museum to advance the aims and objectives of the museum for the education, enjoyment and the welfare of the people of the city;

G. To supervise, promote and develop the public purposes, functions, services and properties of the academy, the museum and, when ordered by the mayor or otherwise required by law, such other art, cultural or scientific institutions and organizations within the city as are nonprofit in nature and supported by local public revenues in whole or in part and are subject to municipal administration of the applications of such revenues in any respect, whether operated within municipally owned properties or otherwise.

(Code 1967, § 2-194; Code 1985, § 2-131; Ord. No. 659, § 2, 3-17-1970)

Sec. 2-68-7. Reports.

It shall be the duty of the arts and science commission on January 1 and July 1 of each year to file with the mayor and council a written report of all activities supervised by it, to which shall be appended written reports of the work performed and results accomplished by the academy and the museum and the receipt and disbursement of all moneys allotted to, and received by, each.

(Code 1967, § 2-195; Code 1985, § 2-132; Ord. No. 659, § 2, 3-17-1970)

CHAPTER 2-70. CITY BEAUTIFUL COMMISSION

Sections:

Sec. 2-70-1.	Created; composition; qualifications of members.
Sec. 2-70-2.	Appointment and terms of members.
Sec. 2-70-3.	Members to serve without pay.
Sec. 2-70-4.	Designation of chairperson.
Sec. 2-70-5.	Appointment of executive coordinator.
Sec. 2-70-6.	Control.
Sec. 2-70-7.	General powers and duties.
Sec. 2-70-8.	Reports.

Sec. 2-70-1. Created; composition; qualifications of members.

There is created and established a city beautiful commission, consisting of no more than 35 members, who shall be of lawful age and residents of the city.

(Code 1967, § 2-219; Code 1985, § 2-141)

Sec. 2-70-2. Appointment and terms of members.

The members of the city beautiful commission shall be appointed by the mayor with the approval of the city council. Of the 35 membership, beginning with July 1, 1998, at least 17 members shall be appointed for an initial term of one year, and a maximum of 18 members may be appointed for an initial term of two years. Thereafter all terms of office for all members shall be for a period of two years expiring on June 30 of their two-year tenure.

(Code 1967, § 2-220; Code 1985, § 2-142; Ord. No. 4609, § 1, 9-1-1998)

Sec. 2-70-3. Members to serve without pay.

All of the members of the city beautiful commission shall serve without pay.

(Code 1967, § 2-221; Code 1985, § 2-143)

Sec. 2-70-4. Designation of chairperson.

The mayor, upon the nomination of the director of sanitation, shall designate one of the members of the city beautiful commission as chairperson of such commission.

(Code 1967, § 2-222; Code 1985, § 2-144)

Sec. 2-70-5. Appointment of executive coordinator.

The director of sanitation, with the approval of the mayor, shall appoint an executive coordinator of the city beautiful commission.

(Code 1967, § 2-223; Code 1985, § 2-145)

Sec. 2-70-6. Control.

The city beautiful commission shall be under the general control of the director of sanitation.

(Code 1967, § 2-224; Code 1985, § 2-146)

Sec. 2-70-7. General powers and duties.

The duties and powers of the city beautiful commission shall be to study, investigate, develop and carry out

plans for improving the health, sanitation, safety and cleanliness of the city by beautifying the streets, highways, alleys, bayous, lots, yards and other similar places in the city; to aid in the prevention of fires, diseases and other casualties by the removal and elimination of trash and other debris from the streets, highways, alleys, lots, yards, plots and other similar places; to encourage the placing, planting and preservation of trees, flowers, plants, shrubbery and other objects of ornamentation in the city; protect song birds and other wild fowl; advise with and recommend plans to other agencies of the city for the beautification of the city, and otherwise promote public interest in the general improvement of the appearance of the city. Nothing herein shall be construed to abridge or change the powers and duties of the other commissions, departments, boards and like agencies of the city.
(Code 1967, § 2-225; Code 1985, § 2-147)

Sec. 2-70-8. Reports.

It shall be the duty of the city beautiful commission, on the first day of July of each year, to file with the mayor and city council a written annual report of the work performed and results accomplished, and the receipt and disbursements of all moneys allotted to and received by such commission.
(Code 1967, § 2-226; Code 1985, § 2-148)

CHAPTER 2-72. MEMPHIS YOUTH GUIDANCE COMMISSION*

Sections:

Sec. 2-72-1.	Established.
Sec. 2-72-2.	Composition; appointment of members.
Sec. 2-72-3.	Terms of members.
Sec. 2-72-4.	Election and terms of officers.
Sec. 2-72-5.	Subcommittees.
Sec. 2-72-6.	Members not to be paid.
Sec. 2-72-7.	Purpose and duties.
Sec. 2-72-8.	Nature of work.
Sec. 2-72-9.	Research to be confidential.
Sec. 2-72-10.	Annual report; periodic recommendations.

Sec. 2-72-1. Established.

There is established a Memphis youth guidance commission.
(Code 1967, § 2-169; Code 1985, § 2-151; Ord. No. 3525, § 1(1), 3-4-1986)

***Charter reference—**Consolidation of city-county governmental functions, §§ 847—850.

Sec. 2-72-2. Composition; appointment of members.

A. The Memphis youth guidance commission shall consist of 21 members appointed by the mayor, subject to confirmation by the council. There shall be at least one representative from each of the following categories: business, cultural, education, employment, health, justice, recreation, safety and volunteer community.

B. At least seven organizations which either fund or coordinate services for children and youth shall be represented.
(Code 1967, § 2-170; Code 1985, § 2-152; Ord. No. 1550, § 1, 7-20-1965; Ord. No. 3525, § 1(2), 3-4-1986)

Sec. 2-72-3. Terms of members.

The terms of office of the members of the youth guidance commission shall be three years commencing on January 1st of the appointive year.
(Code 1967, § 2-171; Code 1985, § 2-153)

Sec. 2-72-4. Election and terms of officers.

It shall be the duty of the youth guidance commission to elect a chairperson and such other officers as are deemed necessary, who shall serve for a period of two years.
(Code 1967, § 2-172; Code 1985, § 2-154)

Sec. 2-72-5. Subcommittees.

The youth guidance commission shall have the power to create subcommittees to undertake such special studies as it shall authorize, and to appoint to such subcommittees persons qualified in any field of activity relating to the welfare of children.
(Code 1967, § 2-173; Code 1985, § 2-155)

Sec. 2-72-6. Members not to be paid.

Neither the members of the youth guidance commission nor the members of the subcommittees duly appointed shall receive compensation for their services.
(Code 1967, § 2-174; Code 1985, § 2-156)

Sec. 2-72-7. Purpose and duties.

It shall be the purpose of the Memphis youth guidance commission to enhance opportunities and the quality of life for youth in the city by studying related issues and

functioning as an educational, informational and advocacy body through research, reporting and making recommendations to the mayor and city council.
(Code 1967, § 2-175; Code 1985, § 2-157; Ord. No. 3525, § 1(3), 3-4-1986)

Sec. 2-72-8. Nature of work.

The work of the youth guidance commission shall be advisory, research-related and consultative and shall not be administrative.
(Code 1967, § 2-176; Code 1985, § 2-158)

Sec. 2-72-9. Research to be confidential.

The research of the youth guidance commission, as it concerns files of courts and the files of public and private agencies, shall be confidential as to details.
(Code 1967, § 2-177; Code 1985, § 2-159)

Sec. 2-72-10. Annual report; periodic recommendations.

The Memphis Youth Guidance Commission shall provide the mayor and the city council with an annual report in April of each year of its activities and findings regarding the needs of children and youth and the extent to which those needs are being met within the city. It shall also include recommendations as to strategies for meeting any unmet needs. Recommendations regarding pending legislation or needed legislation shall be brought to the attention of the mayor and city council at appropriate times during the year and shall be included in the annual report.
(Code 1967, § 2-178; Code 1985, § 2-160; Ord. No. 3525, § 1(4), 3-4-1986)

CHAPTER 2-74. AGING COMMISSION OF THE MID-SOUTH

Sections:

Sec. 2-74-1.	Establishment.
Sec. 2-74-2.	Purposes; legislative intent.
Sec. 2-74-3.	Authority to make application for receipt of funds.
Sec. 2-74-4.	Authority to establish committees, subcommittees and advisory council.
Sec. 2-74-5.	Administration; funding.
Sec. 2-74-6.	Conflicts of interest.

Sec. 2-74-1. Establishment.

A. *Designation; membership.* There is established a permanent commission designated and known as the "Aging Commission of the Mid-South," such commission to consist of seven members. The commission shall consist of two elected officials of the city, or their designees, two elected officials of the county, and their designees, and one elected official each, or their designee, from Fayette, Lauderdale and Tipton Counties.

B. *Members' terms of office.* Members shall serve during their terms of elected office or, if a designee, at the will and pleasure of elected officials.

C. *Compensation of members; organization; election of officers; rules and procedure*. All members of such commission shall serve without pay and shall organize, elect officers, and adopt such rules and procedures consistent with existing laws as are necessary for the conduct of its affairs and performance of its functions and responsibilities. The aforesaid commission on aging shall, following concurrence and ratification by all members, adopt the necessary bylaws governing its operation.
(Code 1967, § 2-311; Code 1985, § 2-171; Ord. No. 2891, § 1(a), (b), (d), 7-3-1979; Ord. No. 3085, § 1, 11-25-1980; Ord. No. 3100, § 1, 2-24-1981; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 1, 2006)

Sec. 2-74-2. Purposes; legislative intent.

A. The purposes of the commission shall be:

1. To serve as the area agency on aging for the City of Memphis and Shelby, Fayette Lauderdale and Tipton Counties in accordance with the provisions of the Older Americans Act and as designated by the Tennessee Commission on Aging and Disability;

2. To determine and prioritize needs, and make recommendations based thereon, for the support of services addressing the needs of seniors;

3. To present yearly recommendations to the mayor and legislative bodies of the city and the county, the chief executive officers of Lauderdale, Fayette, and Tipton Counties, the president of the United Way; the State Commissioner of Human Services, and the State Commission on Aging and Disability for a comprehensive plan of services to address the need for seniors in the community;

4. To serve as the coordinating body for the delivery of services among all programs offering services to seniors and to administer certain programs;

5. To make recommendations on all matters related to grant applications and contractual arrangements for the implementation of area-wide planning for senior citizens;

6. To develop guidelines for an area-wide citizen participation system under the comprehensive area plan on aging in order to ensure broad and effective participation of local consumers in the process of planning, developing and administering programs in the various areas or neighborhoods of Lauderdale, Fayette, Tipton, and Shelby Counties;

7. To sponsor and conduct public hearings, conferences and other such meetings designed to obtain and publicize information related to the problems, accomplishments, and interests of older persons;

8. To advocate, through its funding sources in the legislative process, actions and programs to address the provision of services to seniors;

9. To assure that all requirements included in the rules and regulations as set out by the administration on aging, in the United States Department of Health and Human Services be complied with in all respects.

B. It is the intention of this chapter to encourage the commitment of all funding sources herein mentioned to recognize the Aging Commission of the Mid-South as the official source for federal, state and local planning, and as the official planning and review and comment body for program proposals for serving seniors in the area.

(Code 1967, § 2-312; Code 1985, § 2-172; Ord. No. 2891, § 1(e), 7-3-1979; Ord. No. 3100, § 1, 2-24-1982; Ord. No. 3601, § 1, 9-2-1986; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 2, 2006)

Sec. 2-74-3. Authority to make application for receipt of funds.

It is the intent of this resolution to establish a commission to serve as a planning, coordinating, reviewing and recommending body to all funding sources and insofar as its functions and duties may require, the commission is authorized, subject to approval by the Memphis mayor and city council and Shelby County mayor and board of commissioners, to apply for and accept funds and thereafter to provide services for seniors through direct service or through a subcontract process.

(Code 1967, § 2-313; Code 1985, § 2-173; Ord. No. 2891, § 1(g), 7-3-1979; Ord. No. 3601, § 2, 9-2-1986; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 3, 2006)

Sec. 2-74-4. Authority to establish committees, subcommittees and advisory council.

The commission is authorized to establish such committees and subcommittees as it may consider necessary to its operation in conducting inquiries, studies and research into all areas related to the delivery of services to the elderly. Such committees or subcommittees may include persons who are not members of such commission. The commission is further authorized to establish an advisory council appointed by the aforesaid Aging Commission of the Mid-South in accordance with bylaws established by the commission, provided that 51 percent of such appointees are over the age of 60 and include representatives of consumers and others knowledgeable and concerned in the needs of and the delivery of services for seniors and as set out in the guidelines regarding area agencies on aging.

(Code 1967, § 2-314; Code 1985, § 2-174; Ord. No. 2891, § 1(f), 7-3-1979; Ord. No. 3085, § 2, 11-25-1980; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 4, 2006)

Sec. 2-74-5. Administration; funding.

A. *Joint Administration; budget.* The activities of the Aging Commission of the Mid-South shall be administered under a contractual agreement approved on an annual basis by the city and the county. The commission will be assigned to the Shelby County Division of Community Services for administrative purposes. With respect to any appropriation of funds or any gift, grant, or donation of any property or money, the aging commission shall accept and administer the same in compliance with federal, state and local policies. All contracts shall be approved by the commission and the signature of the chairperson of the commission affixed thereto. It shall be the duty of the commission to prepare and submit to the mayor of the city and the mayor of the county and any other funding sources that may be deemed appropriate, for their approval, a proposed budget for such commission for each ensuing fiscal year. The commission will be

jointly funded by the city and the county and any other agencies, including the state commission on aging, who are interested in serving seniors as provided under the terms of this chapter.

B. *Area agency; funding formula.* It is the intent of this chapter and, on its concurrence by Fayette, Lauderdale and Tipton Counties, that the Aging Commission of the Mid-South continue to be designated by the Tennessee Commission on Aging as the area agency on aging. To that end, all parties to the creation of the Aging Commission of the Mid-South agree that the current distribution of funds be continued according to the formula established by the State Commission on Aging and Disability.
(Code 1967, § 2-315; Code 1985, § 2-175; Ord. No. 2891, § 1(h), 7-3-1979; Ord. No. 3085, § 3, 11-25-1980; Ord. No. 3100, § 2, 2-24-1981; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 5, 2006)

Sec. 2-74-6. Conflicts of interest.

In no case shall voting citizen members have an interest directly or indirectly in any program receiving funds from those agencies participating in the administration of this chapter.
(Code 1967, § 2-316; Code 1985, § 2-176; Ord. No. 2891, § 1(c), 7-3-1979; Ord. No. 4330, 6-6-1995; Ord. No. 5150, § 6, 2006)

CHAPTER 2-76. MEMPHIS CASINO GAMBLING COMMISSION

Sections:

Sec. 2-76-1.	Created.
Sec. 2-76-2.	Composition; terms; vacancies; compensation.
Sec. 2-76-3.	Authority.
Sec. 2-76-4.	Meetings; secretary; chairperson.
Sec. 2-76-5.	Powers and duties.
Sec. 2-76-6.	Casino location requirements.
Sec. 2-76-7.	Written rules and regulations.
Sec. 2-76-8.	Report to mayor and city council.

Sec. 2-76-1. Created.

There is created and established the Memphis Casino Gambling Commission ("commission"). The commission is established for the purpose of the adoption by the Legislature of the State of Tennessee of laws and Constitutional amendments, if necessary, to permit casino gambling in the city. The commission shall also be vested with the regulation of the location of casino gambling establishments in the city and to establish standards for the operation of casino gambling establishments.
(Code 1985, § 2-229; Ord. No. 4151, § 1, 12-29-1992)

Sec. 2-76-2. Composition; terms; vacancies; compensation.

The commission shall consist of 11 members who shall be appointed by the mayor, subject to the approval of the city council. Four initial members shall be appointed for a term ending on the next September 30. Three initial members shall be appointed for a term ending November 30. Thereafter, members shall be appointed subject to council approval for one-year terms, or until their successors are appointed and qualified. Members may not be appointed for more than three years. In the event of a vacancy, whether by reasons or resignation, death, or other cause, the mayor, with the approval of the council may appoint a successor only for such unexpired terms. The members shall serve without compensation.
(Code 1985, § 2-230; Ord. No. 4151, § 2, 12-29-1992)

Sec. 2-76-3. Authority.

The commission is designated as the body to promote and lobby for the adoption of laws permitting casino gambling in the city. It is authorized to coordinate a comprehensive and coordinated plan to promote the adoption of laws permitting casino gambling in the city. It is authorized to cooperate with the private business community in formulating and implementing plans. The commission shall consult with other public agencies and all plans shall integrate the economic, physical and environmental needs of the city and of businesses which may establish casino gambling within the city when legal.
(Code 1985, § 2-231; Ord. No. 4151, § 3, 12-29-1992)

Sec. 2-76-4. Meetings; secretary; chairperson.

The commission shall meet at least quarterly, at such time and place as the commission may fix by resolution. Such meetings shall be open to the public. Notices of such meetings shall be placed on the bulletin board outside the city council chambers at least 48 hours before such meetings. Special meetings upon notice may be called from time to time by the chairperson or at the request of the majority of the members of the commis-

sion or at the request of the mayor or the chairperson of the city council. A majority of the members of the commission shall constitute a quorum for the transaction of business. The commission shall cause a proper record to be kept of the proceedings. For this purpose the commission shall appoint a secretary who shall be a member of the commission. The chairperson of the commission shall be elected by the commission from its own membership to serve for a term of one year or to the end of the term of the chairperson if less than one year is remaining with the right of succession for one additional term only at the option of the commission.
(Code 1985, § 2-232; Ord. No. 4151, § 4, 12-29-1992)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-76-5. Powers and duties.

The commission shall have all powers necessary and requisite to effectuate the purposes of the commission as established by the Charter of the city authorizing the commission. These powers include, but are not limited to, the following:

A. To adopt a plan to promote and lobby for the adoption of state laws or constitutional amendments, if necessary, to permit casino gambling in the city;

B. To accept any gift, grant or donation of any money by private business interests subject to city council approval. Such moneys shall be deposited in the city's normal operating account and identified as assets of the commission. The city shall maintain its books and records in such a fashion as to clearly identify and report such assets of the commission;

C. To authorize the expenditure of commission funds subsequent to budget approval by the city council. Such checks shall require the signature of the comptroller of the city;

D. To recommend to the council the execution of agreements which may be necessary or convenient to the exercise of the powers and functions of the commission, including contracts with private interests, as well as any governmental agency or other entity;

E. To advise the city council and the mayor as to all steps which are necessary and proper for the promotion and development of casino gambling in the city and to see that the plans for the creation of casino gambling are properly coordinated;

F. To maintain necessary liaison with city and county officials and agencies;

G. To coordinate planning studies for any casino gambling, including the location(s) thereof;

H. The commission shall, before any such expenditures are made, submit a budget to the city council for approval. No expenditures shall be made without the usual concurrence by the comptroller that funds are available in the account established for the commission;

I. To study and recommend, in concert with public agencies or private agencies, innovations in financing or appropriate financial commitments for the establishment of casino gambling;

J. To study, recommend and prepare necessary legislation to implement casino gambling in Memphis;

K. To develop proposals for the location(s) of casino gambling;

L. To develop standards for the operation of casino gambling establishments;

M. To develop a system to measure the economic, social and environmental impact of casino establishments on the city.

(Code 1985, § 2-233; Ord. No. 4151, § 5, 12-29-1992)

Sec. 2-76-6. Casino location requirements.

Before or at the time that casino gambling may be legalized in the city, the commission shall establish requirements for the location of casino gambling establishments. Regardless of any zoning requirements for commercial establishments, no casino gambling establishment shall be opened unless the location meets the requirements established by the commission and approved by the city council. A petition requesting approval of a location shall be submitted on an application to the commission, which shall hold a public hearing after due notice and file its recommendations with the city council. The city council may grant a special permit for the location of such establishment upon such conditions are finally approved by the city council.
(Code 1985, § 2-234; Ord. No. 4151, § 6, 12-29-1992)

Sec. 2-76-7. Written rules and regulations.

The commission is empowered to establish written rules and regulations, subject to the approval of the city council, governing operation of all gambling casinos. The commission shall have all powers granted to any local casino gambling commission authorized by legislation of the State of Tennessee.
(Code 1985, § 2-235; Ord. No. 4151, § 7, 12-29-1992)

Sec. 2-76-8. Report to mayor and city council.

It shall be the duty of the casino gambling commission on July 1 of each year to file with the mayor and city council a written annual report of the work performed and results accomplished, and the receipt and disbursement of all moneys, if any, received by such commission.
(Code 1985, § 2-235.1; Ord. No. 4151, § 8, 12-29-1992)

CHAPTER 2-78. PORT COMMISSION

Sections:

Sec. 2-78-1. Created; individual designated as representative.
Sec. 2-78-2. Qualifications.
Sec. 2-78-3. Term.

Sec. 2-78-1. Created; individual designated as representative.

The Memphis City Council does create this chapter, authorizing the port commission, with the consent and approval of the mayor, to designate one of its positions as a regional position to be represented by an individual residing in the tri-state area of Tennessee, Arkansas and Mississippi.
(Code 1985, § 2-236; Ord. No. 4405, 5-7-1996)

Sec. 2-78-2. Qualifications.

The mayor may consider in selecting an individual as a regional representative of the port commission such qualifications as having a residence, business, or property in the tri-state area and as having considerable experience in the following areas: land acquisition, management, easements, rights-of-way, condemnation, riparian rights, and the promotion of trade, industry; and commerce.
(Code 1985, § 2-237; Ord. No. 4405, 5-7-1996)

Sec. 2-78-3. Term.

The term of office of the regional representative commissioner shall be two years and successors shall be appointed from time to time as vacancies occur, as provided by the mayor and the city council.
(Code 1985, § 2-238; Ord. No. 4405, 5-7-1996)

CHAPTER 2-80. MISCELLANEOUS ADMINISTRATIVE PROVISIONS

Sections:

Sec. 2-80-1. Division of finance and administration.
Sec. 2-80-2. Division of general services.

Sec. 2-80-1. Division of finance and administration.

A. There shall be a division of finance and administration with a director to be appointed thereto in the same manner as other directors.

B. The following departments, agencies and employees are assigned to the division of finance and administration:

1. Administration;
2. Comptroller;
3. Financial management;
4. Budgeting;
5. Purchasing;
6. Data systems;
7. Treasurer;
8. Debt and cash management.

(Code 1967, § 2-244; Code 1985, § 2-246; Ord. No. 278, 6-9-1970; Ord. No. 2156, § 1, 10-22-1974)

Sec. 2-80-2. Division of general services.

There shall be a division of general services with a director to be appointed thereto in the same manner as other directors.
(Code 1985, § 2-251)

CHAPTER 2-82. ALCOHOL COMMISSION*

Sections:

Sec. 2-82-1. Created; composition.

***State law reference—**Alcoholic beverages, T.C.A. § 57-1-101 et seq.

Sec. 2-82-2. Appointment, terms and compensation of members.
Sec. 2-82-3. Members to be residents of city.
Sec. 2-82-4. Members' oath.
Sec. 2-82-5. Chairperson.
Sec. 2-82-6. Quorum.
Sec. 2-82-7. Employment of secretary and clerical help.
Sec. 2-82-8. Rules and regulations.
Sec. 2-82-9. Police power of members and secretary; assistance from police and health departments.
Sec. 2-82-10. Purchases.
Sec. 2-82-11. Payment of expenses; annual financial statement.

Sec. 2-82-1. Created; composition.

There is created an alcohol commission consisting of five members.
(Code 1967, § 5-28; Code 1985, § 4-26; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-2. Appointment, terms and compensation of members.

A. The mayor shall appoint nine members to the alcohol commission, which appointments shall be subject to the approval of the city council. After the initial members, the nine members shall be appointed for terms beginning January 1, for a three-year period, or until their successors are appointed and qualified.

B. In the event of a vacancy, whether by reason of resignation, death or other cause, the mayor, with the approval of the council, may elect a successor only for such unexpired term. The members shall serve without compensation.

C. In the event of an absence of a quorum at the scheduled meeting of the alcohol commission, the secretary may notify the mayor or chief administrative officer who then may designate in writing a temporary appointee for that meeting. The appointee shall be administered the oath, and shall have all the rights and responsibilities of a member at the meeting for which the temporary appointed has been designated to serve.
(Code 1967, § 5-29; Code 1985, § 4-27; Ord. No. 117, § 1, 2-20-1968; Ord. No. 190, § 1, 6-18-1968; Ord. No. 3180, § 1, 12-29-1981; Ord. No. 4539, § 1, 11-4-1997; Ord. No. 5459, § 2, 7-17-2012)

Sec. 2-82-3. Members to be residents of city.

The members of the alcohol commission shall be residents of the city and shall have been for at least five years preceding their appointment.
(Code 1967, § 5-30; Code 1985, § 4-28; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-4. Members' oath.

Each member of the alcohol commission shall take an oath to faithfully perform the duties imposed upon him or her without fear or favor, and in full accordance with the constitution and laws of the state and the ordinances of the city.
(Code 1967, § 5-31; Code 1985, § 4-29; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-5. Chairperson.

The mayor shall designate one member of the commission to serve as chairperson of the commission.
(Code 1967, § 5-32; Code 1985, § 4-30; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-6. Quorum.

A majority of the nine members of the alcohol commission shall constitute a quorum.
(Code 1967, § 5-33; Code 1985, § 4-31; Ord. No. 117, § 1, 2-20-1968; Ord. No. 5459, § 3, 7-17-2012)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-82-7. Employment of secretary and clerical help.

The alcohol commission shall employ a secretary and it may employ other necessary clerical help, with the approval of the director of public service.
(Code 1967, § 5-34; Code 1985, § 4-32; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-8. Rules and regulations.

The alcohol commission is empowered to make such rules and regulations, not inconsistent with the state law and the provisions of this chapter, as may be necessary or proper in the performance of its duties.
(Code 1967, § 5-35; Code 1985, § 4-33; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-9. Police power of members and secretary; assistance from police and health departments.

The members of the alcohol commission and the secretary employed by the commission shall have full police power and authority to enter, inspect, and investigate any business operated pursuant to any license issued under this chapter, and shall have full authority to call upon any member of the police force or the depart-

ment of health for assistance in the enforcement of the provisions of this chapter or any other ordinance of the city.
(Code 1967, § 5-36; Code 1985, § 4-34; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-10. Purchases.

The alcohol commission is authorized to purchase all necessary stationery, printing and supplies through the purchasing agent of the city.
(Code 1967, § 5-37; Code 1985, § 4-35; Ord. No. 117, § 1, 2-20-1968)

Sec. 2-82-11. Payment of expenses; annual financial statement.

All expenses of the alcohol commission shall be paid out of the general funds of the city, pursuant to an annual appropriation by ordinance, and it shall be the duty of the commission to prepare and submit to the director of finance and administration a statement of its expenditures for the previous year and an estimate of its current year's operating cost.
(Code 1967, § 5-38; Code 1985, § 4-36; Ord. No. 117, § 1, 2-20-1968)

CHAPTER 2-84. CENTER CITY COMMISSION*

Sections:

Sec. 2-84-1.	Definitions.
Sec. 2-84-2.	Created; established.
Sec. 2-84-3.	Purpose.
Sec. 2-84-4.	Appointment of commission as mall management agency and district management corporation.
Sec. 2-84-5.	Membership; terms and compensation.
Sec. 2-84-6.	Meetings; quorum; records.
Sec. 2-84-7.	Powers and functions.
Sec. 2-84-8.	Slum clearance and redevelopment.
Sec. 2-84-9.	Acquisition of vacant properties within center city area.
Sec. 2-84-10.	Expenses; annual budget.
Sec. 2-84-11.	Annual reports.
Sec. 2-84-12.	Assistance and cooperation from city and county departments, commissions or authorities.
Sec. 2-84-13.	Enforcement; injunction or other relief.
Sec. 2-84-14.	Transition provisions.

***State law reference—**Centrol Business Improvement District Act of 1971, T.C.A. § 7-84-101 et seq.

Sec. 2-84-1. Definitions.

As used in this chapter, the following terms shall have the following meanings:

Center city area means that area bounded generally by the Tennessee state line on the west to the Interstate 55 bridge on the south, thence east along the Interstate 55 bridge, thence south along the shore line of the Mississippi River to a line extended from the ICC Railroad tracks to the Mississippi River, thence following the railroad tracks to I-55, thence north along the center of I-55 to Crump Avenue, thence following Crump Avenue to Danny Thomas, thence along Danny Thomas to Linden Avenue, thence east along Linden Avenue to Watkins Street, thence north generally along Watkins Street to Poplar Avenue, thence generally west along Poplar Avenue to Danny Thomas, thence north along Danny Thomas to the Wolf River, thence along the Wolf River to the point there it turns south, thence along the centerline of the Wolf River Riverfront Channel and following such line to the Tennessee state line.

Commission means the center city commission as established.

Council means the city council of the City of Memphis.

County commission means the Shelby County Board of Commissioners.

District No. I means the central business improvement district created by chapter 12-32.

District No. II means central business improvement district No. II created by chapter 12-44.

Mall or *common mall* means the Main Street Mall.

President means the person acting from time to time as the president and chief executive officer of the commission.
(Code 1985, § 7-11; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-2. Created; established.

There is created and established a center city commission in and for the city to be known as the Memphis Center City Commission.
(Code 1985, § 7-12; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-3. Purpose.

The commission shall represent an official partnership between city and county government and the private business community. The commission shall manage and coordinate the comprehensive and coordinated redevelopment of the center city area as the economic, cultural and governmental heart of the city and county. In formulating and implementing plans the commission will consult with public agencies and private interests within the center city area, and will integrate the economic, physical and environmental needs of business and residential districts within the center city area. The commission shall act as the district management corporation for District No. II and as mall management agency for District No. I so long as such district shall exist. The commission shall act as a vacant property review commission for the center city area pursuant to T.C.A. § 13-21-201 et seq. The commission shall perform such other duties and functions as shall be delegated to it from time to time.
(Code 1985, § 7-13; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-4. Appointment of commission as mall management agency and district management corporation.

The commission, as now created within this chapter, is appointed as the regulatory body for District No. I for the purpose of regulating businesses and shops, food establishments, arts and crafts, vehicular traffic, and any and all other services as may be offered on the Main Street Mall for so long as such district shall exist. The commission is appointed as the district management corporation for District No. II pursuant to T.C.A. § 7-84-519, as the same may be amended, or any successor statute thereto.
(Code 1985, § 7-14; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-5. Membership; terms and compensation.

A. The center city commission shall be composed of 16 voting members.

B. Ten members shall be appointed on recommendation of the mayor of the city and the mayor of the county, with approval by the city council and the county commission, who shall hold office for a term of three calendar years and thereafter until their successors are appointed and qualified. A term shall commence on the date of approval of such appointee by both the city council and county commission. The date of approval shall be the day on which the last of the clerks of the city council and the county commission certify that their respective legislative body has approved the appointment. No members shall serve more than two consecutive three-year terms. Such members shall serve without salary. In the event of a vacancy in such appointed members, whether by reason of resignation, death or other cause, the center city commission shall recommend a successor who shall be appointed by the mayors of both the city and county, with approval of the city council and county commission, to fill such unexpired term or terms.

C. The mayor of the city or his or her designee, the mayor of the county or his or her designee, one member of the city council appointed by the chairperson thereof and one member of the county commission appointed by the chairperson thereof shall serve as ex officio members of the commission with benefit of vote. The chairperson of the city council and the chairperson of the county commission shall serve as ex officio members of the commission without vote.

D. The speakers of the Senate and the House of Representatives of Tennessee shall each appoint one member of the general assembly from their respective houses in accordance with the provision of T.C.A. § 7-84-519, as amended from time to time, to serve as ex officio members of the commission with the benefit of vote.

E. All ex officio members shall serve for the terms of their office.

F. The members of the commission shall be the board of directors of the commission in its capacity as "district management corporation" within the meaning of and for purposes of T.C.A. § 7-84-519, as same may be amended, or any successor statute thereto. The members of the commission shall be the members of the vacant property review commission created by section 2-84-9. The members of the general assembly appointed pursuant to subsection D of this section shall serve on any executive committee or management committee of the commission.

G. The chairperson of the commission shall be elected by the commission from its own membership to serve for a term of one year with the right of succession at the option of the commission. The commission shall likewise appoint a secretary who shall be a member of the

commission. The commission shall have the power to appoint such other officers as determined by the commission from time to time.
(Code 1985, § 7-15; Ord. No. 4468, § 1, 1-7-1997; Ord. No. 4782, 7-25-2000; Ord. No. 4825, 11-07-2000; Ord. No. 5322, § 1, 8-4-2009)

Sec. 2-84-6. Meetings; quorum; records.

A. The commission shall conduct regular meetings at such time and place as the commission may fix by resolution. Such meetings will be open to the public with proper public notification.

B. Special meetings may be called from time to time by the chairperson. Eight of the voting members of the commission, including the ex officio members of the commission with benefit of vote, shall constitute a quorum for the transaction of business. The commission shall cause a proper record to be kept of the proceedings. Written notice of any meeting of the commission shall be given to the members at least 24 hours prior to the date set for the meeting. In the event that all 20 voting members of the commission are present and voting on an item, the president of the commission shall cast a tie-breaking vote, if necessary.
(Code 1985, § 7-16; Ord. No. 4468, § 1, 1-7-1997; Ord. No. 4782, 7-25-2000)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-84-7. Powers and functions.

A. *Powers.* The commission shall have all powers necessary and requisite to effectuate the purposes of the commission, including, but not limited to, the following:

1. To adopt bylaws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations, and policies in connection with the performance of its functions and duties;
2. To employ such persons as may be required and to fix and pay their compensation from funds available to the commission;
3. To accept, administer and comply with the conditions and requirements respecting any appropriation of funds or any gift, grant, or donation of any property or money;
4. To make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the commission, including contracts with any person firm, corporation, governmental agency or other entity;
5. To administer and manage its own funds and accounts and to pay its own obligations;
6. To serve as district management corporation for any central business improvement district to the extent so appointed pursuant to T.C.A. § 7-84-501 et seq., as same may be amended, or any statute successor thereto or similar thereto, and to exercise any and all powers and authority delegated to the commission in such capacity or otherwise inherent in such capacity;
7. To assist and act as the agent of the president in exercising the powers and functions delegated to the president pursuant to T.C.A. § 13-2-107 and this chapter;
8. To serve as the vacant property review commission for the center city area pursuant to T.C.A. § 13-21-201 et seq., as same may be amended, and to exercise any and all powers and authority delegated to the commission in such capacity or otherwise inherent in such capacity;
9. To review on behalf of the city and the County of Shelby any net earnings of Memphis Center City Revenue Finance Corporation and to contribute such net earnings to Memphis Center City Development Corporation without any further authorization of or approval by the city or County of Shelby or the council or county commission;
10. To exercise any other power delegated to the commission or to exercise any other powers necessary to carry out or incidental to the powers delegated to and the purposes of the commission specified above. Such specific powers shall not be considered as a limitation upon any power necessary or appropriate to carry out the purposes and intent of this chapter.

B. *Functions.* The functions of the commission will include advising the city council and the county commission, together with the mayors of both the city and county and all other interested public officials, as to all steps which are necessary and proper in the administration, promotion and redevelopment of the center city area, including District No. I and District No. II, and to see that all public activities in connection with the

implementation of the plans for the creation of the districts are properly coordinated. In addition, the commission shall:

1. Develop and present an annual operating budget for the consideration and approval of the city and county;
2. Employ a salaried staff, including without limitation a president and chief executive officer;
3. Maintain a close liaison with all city and county divisions, including, but not limited to, public works public service, general services, police services, fire services, budget finance and administration, executive office, community development department, and the city and county office of planning and development;
4. Conduct the business necessary for the management and operation of the Main Street Mall, including, but not limited to, promotions, maintenance, security transportation and parking coordination, special events, and any other functions in connection with the operation of the mall;
5. Coordinate planning studies in the center city area;
6. Determine priorities for improvement projects within the center city area;
7. Serve as district management corporation for District No. II, including full authority to:
    a. Carry out the functions and activities delegated to the commission pursuant to chapter 12-44; and
    b. Make recommendation for use of special assessment revenues, administer activities, make improvements, provide services and projects in and for the district and carry out all functions and activities to the fullest extent contemplated pursuant to T.C.A. § 7-84-501 et seq., as same may be amended;
8. Develop implementation strategies for specific projects, such as, but not limited to:
    a. Promenade Gateway;
    b. New public/private transportation modes for the center city area;
    c. New housing districts, services and amenities for the center city area;
    d. New hotel/motel facilities, parking facilities and office buildings in the center city area;
    e. New pedestrian systems in the center city area;
9. Prepare the feasibility and marketing data necessary for development of first priority projects;
10. Study and recommend, in concert with the financial agencies of the city and county administration, innovations in public/private financing for center city renewal and secure appropriate financial commitments from public/private sectors to implement first-priority projects;
11. Study and recommend necessary legislative authority to implement first-priority projects, such as, but not limited to:
    a. Tax incentives; and
    b. Revision of building and zoning codes;
12. Develop an implementation tracking system for improvements monitoring;
13. Determine the specific development plan's critical path system for first-priority projects;
14. Coordinate with private developers to expedite first-priority projects;
15. Develop an evaluation system to measure economic, social and environmental impacts and the effectiveness of completed projects;
16. Provide for an audit and annual report to the official agencies and private interests contributing to the commission.

(Code 1985, § 7-17; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-8. Slum clearance and redevelopment.

A. It is found that there exists within the center city area structures which are unfit for human occupation or use due to dilapidation, defects increasing the hazards of fire, accidents or calamities, lack of ventilation, light or sanitary facilities, or due to other conditions rendering such structures unsafe or unsanitary, are dangerous or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents of the center city area.

B. The president is designated and appointed to exercise the powers prescribed by the provisions of this section pursuant to T.C.A. § 13-21-101 et seq.

C. Whenever a petition is filed with the president by a public authority or by at least five residents of the city charging that any structure within the center city area is unfit for human occupation or use, or whenever it appears to the president (on the president's own motion) that any structure within the center city area is unfit for occupation or use, the president shall, if the president's preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner and any parties in interest of such structure a complaint stating the charges in that respect and containing a notice that a hearing will be held before the president (or the president's designated agent) at a place therein fixed, not less than ten nor more than 30 days after the serving of the complaint that:

1. The owner and parties in interest shall be given the right to file an answer to the complaint and appear in person, or otherwise, and give testimony at the place and time fixed in the complaint; and

2. The rules of evidence prevailing in courts of law or equity shall not be controlling in the hearings before the president (or his or her designee).

D. If, after such notice and hearing, the president determines that the structure under consideration is unfit for human occupation or use, the president shall state in writing the president's findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order:

1. If the repair, alteration or improvement of the structures can be made at reasonable cost in relation to the value of the structure (50 percent of the value of such structure being found reasonable for such purpose); provided, however, if such structure is located within a local historic district designated pursuant to chapter 14-24 (100 percent of the value of such structure being found reasonable for such purpose), requiring the owner, within the time specified in the order, to repair, alter or improve such structure to render it fit for human occupation or use or to vacate and close the structure as a place of human occupation or use; or

2. If the repair, alteration or improvement of the structure cannot be made at a reasonable cost in relation to the value of the structure (50 percent of the value of the structure being considered reasonable for such purposes); provided, however, if such structure is located within a local historic district designated pursuant to chapter 14-24 (100 percent of the value of such structure being found reasonable for such purpose), requiring the owner, within the time specified in the order, to remove or demolish such structure.

E. If the owner fails to comply with an order to repair, alter or improve or to vacate and close the structure, the president may use such structure to be repaired, altered or improved, or to be vacated and closed; the president may cause to be posted on the main entrance of any structure so closed, a placard with the following words: "This building is unfit for human occupation or use. The use or occupation for human occupation or use is prohibited and unlawful."

F. If the owner fails to comply with an order to remove or demolish the structure, the president may cause such structure to be removed or demolished.

G. The amount of the cost of such repairs, alterations or improvements, or vacation and closing, or removal or demolition by the president shall be assessed against the owner of the property, and shall, upon the filing of the notice with the office of the register of deeds of Shelby County be a lien on the property in favor of the city and the commission, as agent thereof second only to liens of the state, Shelby County and city for taxes, any lien on the city for special assessments, and any valid lien, right or interest in such property duly recorded or duly perfected by filing, prior to the filing of such notice. These costs shall be collected by the tax collector of the city at the same time and in the same manner as property taxes are collected. If the owner shall fail to pay the costs, such costs may be collected at the same time and in the same manner as delinquent property taxes are collected and shall be subject to the same penalty and interest as delinquent property taxes. In addition, the city or the commission on its behalf may collect the cost assessed against the owner through an action for debt filed in any court of competent jurisdiction. The city or the commission on its behalf may bring one action for debt against more than one or all of the owners of property against whom such costs have been assessed, and the fact that multiple owners have been joined in one

action shall not be considered by the court as a misjoinder parties. If the structure is removed or demolished by the president, the president shall sell the materials of such structure and shall credit the proceeds of such sale against the cost of the removal or demolition, and any balance remaining shall be deposited in the Chancery Court by the president, shall be secured in such manner as may be directed by such court and shall be distributed by such court to the persons found to be entitled thereto by a final order or decree of such court. Nothing in this section shall be construed to impair or limit in any way the power of the city or the commission define and declare nuisances and to cause the removal or abatement by summary proceedings or otherwise.

H. 1. Terms used in this section which are defined in T.C.A. § 13-21-101 are intended to have the meanings set forth in said T.C.A. § 13-21-101, as same may be amended.

2. Complaints and orders may be served in the manner set forth in T.C.A. § 13-21-104, as same may be amended.

3. In addition to other powers set forth in this section, the president is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purposes and provisions of this section, including without limitation those powers set forth in T.C.A. § 13-21-107, as same may be amended.

(Code 1985, § 7-18; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-9. Acquisition of vacant properties within center city area.

A. It is found that there exists within the center city area blighted or deteriorated properties and that there is need within the center city area for the exercise of powers functions and duties conferred by T.C.A. § 13-21-201 et seq.

B. The commission is appointed as vacant property review commission with respect to the property within the center city area, which shall certify blighted properties as blighted or deteriorated to the council or the county commission, acting singularly or jointly.

C. The commission is established and appointed as the vacant property review commission of the center city area pursuant to T.C.A. § 13-21-201 et seq., as the same may be amended and the commission shall have powers provided to make written determination of blighting and deterioration within the center city area, to certify such property o the council or the county commission, acting singularly or jointly, as blighted or deteriorated and to exercise any and all powers and authorities delegating a vacant property review commission pursuant to T.C.A. § 13-21-201 et seq.

(Code 1985, § 7-19; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-10. Expenses; annual budget.

A. As the regulating body for District No. I, the commission shall receive any annual service fee which may be assessed against the property owners within such district to pay administrative operating, upkeep, and maintenance expenses of the district. As district management corporation for District No. II, the commission shall receive all funds from assessments for such district. Contributions from the general operating funds of the city and county and from other governmental and private sources shall be added to the general operating budget of the center city commission to maintain additional planning and administrative activities of the entire center city area.

B. The commission shall furnish to the city and county an annual budget, showing in detail the manner in which all of the funds received or to be received are to be expended during the ensuing year, within the time and manner as now provided by law; such budget shall contain a listing of all proposed expenditures. Funding shall be accomplished by contributions from the private business community and appropriations from both the city and county governments, as may hereinafter be mutually agreed to by the respective entities.

(Code 1985, § 7-20; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-11. Annual reports.

The commission shall make to the city and county, during the month of January of each year or at such time as may be set by the commission, an annual report giving a resume of its work and duties during the preceding year; and in such report it shall make such recommendations as to future projects to be undertaking for public improvement, with reference to overall area improvements which, in its judgment, should be undertaken for the betterment of the city relating thereto.

(Code 1985, § 7-21; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-12. Assistance and cooperation from city and county departments, commissions or authorities.

It shall be the duty of all city and county departments, commission and authorities to render assistance to the commission in the way of information advice and cooperation and to otherwise cooperate with the commission so that the commission may engage in the performance of its duties and functions.
(Code 1985, § 7-22; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-13. Enforcement; injunction or other relief.

Enforcement of any power or authority granted the commission under this chapter or as mall management agency of District I or district management corporation of District II or any rules or regulations issued by the commission pursuant to such authority shall be delegated by the commission to any employee of the commission staff, who may obtain a summons through the city municipal court, and also to any city police officer, who may issue a summons or misdemeanor citation or effect a physical arrest for violations. In addition to the remedies provided herein, the commission may issue an order requiring any violator to cease or suspend the facility causing such violation and/or initiate court proceedings to enjoin such violation.
(Code 1985, § 7-23; Ord. No. 4468, § 1, 1-7-1997)

Sec. 2-84-14. Transition provisions.

After the establishment of District No. II, no assessment shall be made as to District No. I except assessments to pay for improvements as provided in section 12-32-5. Upon the adoption by the commission of rules and regulations pursuant to section 12-44-7(E), chapter 12-36 is repealed. Upon the adoption by the commission of rules and regulations pursuant to section 12-44-7(G), chapter 12-48 is repealed. The references to the central business improvement district in sections 12-40-1 through 12-40-6 shall refer to District No. I.
(Code 1985, § 7-24; Ord. No. 4468, § 1, 1-7-1997)

CHAPTER 2-86. ALCOHOL AND DRUG ABUSE COMMISSION

Sections:

Sec. 2-86-1. Establishment, designation and membership.
Sec. 2-86-2. Members' terms of office.
Sec. 2-86-3. Compensation of members; organization, election of officers, and adoption of rules and procedures.
Sec. 2-86-4. Purpose; legislative intent.
Sec. 2-86-5. Authority to make application for receipt of funds.
Sec. 2-86-6. Authority to appoint committees, subcommittees and advisory board.
Sec. 2-86-7. Assistance by other agencies.
Sec. 2-86-8. Administration; funding.
Sec. 2-86-9. Conflicts of interest.

Sec. 2-86-1. Establishment, designation and membership.

There is established a commission designated and known as the commission on alcohol and drug abuse, such commission to consist of 11 members. The members of the commission shall be appointed: two members by the mayor of the city and two members by the mayor of the county; four jointly by the city and county mayors as representatives of and on recommendation by the president of the United Way, the state commission of human services, the commission of education and the state commissioner of mental health; and three citizen members jointly by the mayors of the city and county, all subject to approval of the city council and the county board of commissioners.
(Code 1967, § 32-24.1; Code 1985, § 16-22(a); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-2. Members' terms of office.

The members, after the initial members, shall serve for a period of three years. All members shall be eligible for reappointment. Members shall hold office until their successors are appointed. Vacancies shall be filled for any unexpired term.
(Code 1967, § 32-24.1; Code 1985, § 16-22(b); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-3. Compensation of members; organization, election of officers, and adoption of rules and procedures.

All members of the commission shall serve without pay and shall organize, elect officers, and adopt such rules and procedures, consistent with the laws of the city

and county, and the provisions of this chapter, as are necessary for the conduct of its affairs and performance of its functions and responsibility.
(Code 1967, § 32-24.1; Code 1985, § 16-22(c); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-86-4. Purpose; legislative intent.

The purposes of the commission shall be:

A. To determine and prioritize needs and make recommendations based thereon for the support of such services addressing the problem of alcohol and drug abuse within the city and county;

B. To present, yearly, recommendations to the mayors of the city and the county, the president of the United Way, the state department of human services, the state department of mental health and mental retardation, the state commissioner of education, and the health systems agency for a comprehensive plan of services to address the problem of alcohol and drug abuse;

C. To serve as the coordinating body for the delivery of services among all programs offering alcohol and drug abuse remedial and preventative services and to encourage formal evaluation of all such programs;

D. To increase the awareness of schools, government, industry, and union organizations regarding the effects of alcohol and drug abuse on job performance and work with aforesaid groups to develop policies to promote early detection, understanding, and recognition in order to deal effectively with alcohol and drug abuse problems;

E. To advocate, through its funding sources in the legislative process, action and programs to address the problems associated with alcohol and drug abuse.

It is the intention of this chapter to encourage the commitment of all local funding sources within the community to recognize the commission as an official source for federal, state and local planning and as an official planning, review and comment body for alcohol and drug abuse service program proposals and the funding for each of them.
(Code 1967, § 32-24.1; Code 1985, § 16-22(d); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-5. Authority to make application for receipt of funds.

It is not the intent of this chapter to establish a commission to operate an alcohol and drug abuse program but rather to serve as a planning, coordinating, review and recommending body to funding sources. However, insofar as such functions and duties may require funds for administration, it shall be authorized, subject to approval by the city council and the county board commissioners, to apply for and accept from federal, state, other governmental units or other sources, funds which may be offered or tendered to the commission for use in carrying out its various functions and programs.
(Code 1967, § 32-24.1; Code 1985, § 16-22(e); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-6. Authority to appoint committees, subcommittees and advisory board.

The commission is authorized to establish such committees and subcommittees as it may consider necessary to its operation in conducting inquiries, studies and research into all areas relating to the problem of alcohol and drug abuse. Such committees may include persons who are not members of such commission. The commission is further authorized in its discretion to establish an advisory board of not more than 21 members, to include representatives of the health systems agency, educational and training agencies and institutions, community-based organizations, participant community, business, organized labor and others who have an interest in and concern regarding the use of alcohol and drugs.
(Code 1967, § 32-24.1; Code 1985, § 16-22(f); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-7. Assistance by other agencies.

The commission shall have access to the services of other agencies in the city and county for any reasonable assistance in the operation and function of the commission.
(Code 1967, § 32-24.1; Code 1985, § 16-22(g); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-8. Administration; funding.

The activities of the commission shall be administered by the county, and it shall be the duty of the commission to prepare and submit to the mayor of the city and the mayor of the county, for their approval, a proposed budget for the commission for the ensuing fiscal year. The commission will be jointly funded by the city and the county.
(Code 1967, § 32-24.1; Code 1985, § 16-22(h); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

Sec. 2-86-9. Conflicts of interest.

In no case shall voting citizen members have an interest, directly or indirectly, in any program receiving funds from those agencies who are participating in the administration of this chapter.
(Code 1967, § 32-24.1; Code 1985, § 16-22(i); Ord. No. 670, § 1, 4-14-1970; Ord. No. 2591, § 1, 5-10-1977; Ord. No. 2890, § 1, 7-3-1979)

CHAPTER 2-88. TRAFFIC ADVISORY COMMISSION

Sections:

Sec. 2-88-1. Created.
Sec. 2-88-2. Composition; appointment of members.
Sec. 2-88-3. Terms and removal of members.
Sec. 2-88-4. Chairperson.
Sec. 2-88-5. Secretary.
Sec. 2-88-6. Meetings; quorum; records.
Sec. 2-88-7. Duties.
Sec. 2-88-8. Annual report.
Sec. 2-88-9. Assistance from city departments.
Sec. 2-88-10. Expense allowances.

Sec. 2-88-1. Created.

There is created a traffic advisory commission in and for the city.
(Code 1967, § 23-39; Code 1985, § 21-66)

Sec. 2-88-2. Composition; appointment of members.

The traffic advisory commission shall consist of not less than 12 nor more than 18 citizen members to be appointed by the mayor upon the recommendation of the city engineer, subject to the approval of the city council, and three members ex officio. The director of fire, the director of police and the city engineer shall be ex officio members of the traffic advisory commission.
(Code 1967, § 23-40; Code 1985, § 21-67; Ord. No. 3586, § 3, 9-2-1986)

Sec. 2-88-3. Terms and removal of members.

The citizen members of the traffic advisory commission shall be appointed for terms of one year each. Vacancies shall be filled by appointment for the unexpired term only. Any or all members may be removed at any time by majority vote of the city council.
(Code 1967, § 23-41; Code 1985, § 21-68)

Sec. 2-88-4. Chairperson.

There shall be a chairperson of the traffic advisory commission who shall be elected by such commission, and who shall hold office during his or her term of office as a member of the commission, or until his or her successor is duly elected and qualified.
(Code 1967, § 23-42; Code 1985, § 21-69)

Sec. 2-88-5. Secretary.

In addition to the members of the traffic advisory commission, there shall be a secretary who shall be appointed by the city engineer. Such secretary shall have the custody of the books and records of the commission but shall have no vote.
(Code 1967, § 23-43; Code 1985, § 21-70; Ord. No. 3586, § 4, 9-2-1986)

Sec. 2-88-6. Meetings; quorum; records.

The traffic advisory commission shall meet at least once a month at such time and places as such commission may fix by resolution. Special meetings may be called from time to time by the chairperson. A majority of the members of the commission, including the ex officio members of the commission, shall constitute a quorum for the transaction of business. The commission shall cause a proper record to be kept of its proceedings.
(Code 1967, § 23-44; Code 1985, § 21-71)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 2-88-7. Duties.

A. It shall be the duty of the traffic advisory commission to study both general and specific problems of the city relating to the flow of traffic, traffic safety, the parking of vehicles, both on- and off-street, problems relating to specific intersections in the city, and to make recommendations with reference thereto to the city engineer. It shall be the further duty of the traffic advisory commission to hear complaints and suggestions at regular or special meetings of the commission, and if necessary to hold hearings with reference to specific problems relating to traffic, traffic safety, traffic control and parking, and to make recommendations to the city engineer based on its findings with reference thereto. It shall be the further duty of the traffic advisory commission to study general and specific problems with reference to public transportation systems existing in the city and to make recommendations based on its findings with reference thereto.

B. Including, but without being limited to the foregoing, the traffic advisory commission shall concern itself with all problems relating to traffic and with a view of making recommendations to the city engineer so as to acquaint the city engineer with its findings, ideas and recommendations concerning such problems.
(Code 1967, § 23-45; Code 1985, § 21-72; Ord. No. 3586, § 5, 9-2-1986)

Sec. 2-88-8. Annual report.

The traffic advisory commission shall make to the city engineer, during the month of January of each year, an annual report, giving a resume of its work and duties during the preceding year; and in such report, it shall make such recommendations as to future projects to be undertaken for public improvement with reference to traffic problems which, in its judgment, should be undertaken for the betterment of traffic conditions and conditions relating thereto in the city.
(Code 1967, § 23-48; Code 1985, § 21-73; Ord. No. 3586, § 6, 9-2-1986)

Sec. 2-88-9. Assistance from city departments.

It shall be the duty of all city departments to render assistance to the traffic advisory commission in the way of information, advice and cooperation so that the commission may more properly and efficiently perform its duties.
(Code 1967, § 23-47; Code 1985, § 21-74)

Sec. 2-88-10. Expense allowances.

Allowances for expenses incurred in connection with the duties of the traffic advisory commission shall be made, provided such expenses shall have been approved by the city engineer before incurred.
(Code 1967, § 23-46; Code 1985, § 21-75; Ord. No. 3586, § 5, 9-2-1986)

CHAPTER 2-89. ADVISORY COUNCIL FOR CITIZENS WITH DISABILITIES

Sections:

Sec. 2-89-1. Establishment, designation and membership.
Sec. 2-89-2. Compensation of members; organization; election of officers and adoption of rules and procedures.
Sec. 2-89-3. Purpose; legislative intent.

Sec. 2-89-1. Establishment, designation and membership.

The Memphis Advisory Council for Citizens with Disabilities is established and shall consist of up to 21 members who live or work in the county. All members shall be appointed by the mayor. Membership will be based on demonstrated interest in and assistance to the advancement of individuals with disabilities and will represent groups with mental, sensory and motor disabilities.

A. At least 51 percent of the members shall be persons with a disability.

B. Membership shall be composed of individuals who are drawn from the following groups:

1. Citizens with disabilities;
2. Family members or guardians of persons with profound physical or mental disabilities;
3. Persons who are active in agencies that provides services to the disability community;
4. The community at large.

C. A member of the mayor's staff shall serve as an ex officio, nonvoting member of the advisory council for information, reporting and recording purposes.

(Ord. No. 5407, § 1(2-89-1), 7-19-2011)

Sec. 2-89-2. Compensation of members; organization; election of officers and adoption of rules and procedures.

Members of the advisory council shall serve without pay and shall organize, elect officers and adopt such rules and procedures, consistent with the laws of the city and county and the provisions of this chapter, as are necessary for the conduct of its affairs and to perform its functions and responsibility.
(Ord. No. 5407, § 1(2-89-3), 7-19-2011)

Sec. 2-89-3. Purpose; legislative intent.

The purpose of the Memphis Advisory Council for Citizens with Disabilities shall be:

A. To determine the needs of persons with disabilities in the Memphis area, which, if met, would result in their equal participation in major life areas such as employment and vocational training, education, housing transportation, recreation and other essentials.

B. To determine the extent to which needs in the Memphis area are being addressed by both governmental and non-governmental resources.

C. To gather input from persons with disabilities and their representatives, disability related advocacy and consumer groups, service agencies and organizations, the business community, government, and others in developing recommendations to meet identified unmet needs.

D. To submit those recommendations directly to the mayor and city council and to provide assistance in the implementation of accepted recommendations.

E. To coordinate information on identified unmet needs, recommendations and methods of implementation among groups, individuals, and the general public.

F. To promote an awareness of the strengths, abilities, needs and resources of people with disabilities and a positive perception of the disability community to the mayor, city council and the general population.

(Ord. No. 5407, § 1(2-89-4), 7-19-2011)

CHAPTER 2-90. MINORITY BUSINESS DEVELOPMENT AND OVERSIGHT COMMISSION

Sections:

Sec. 2-90-1. Established.
Sec. 2-90-2. Composition; appointment of members; selection of members.
Sec. 2-90-3. Terms of members.
Sec. 2-90-4. Election and terms of officers.
Sec. 2-90-5. Members not to be paid.
Sec. 2-90-6. Role.
Sec. 2-90-7. Meetings.
Sec. 2-90-8. Report to city council.

Sec. 2-90-1. Established.

There is hereby established a City of Memphis Minority Business Development and Oversight Commission.
(Ord. No. 5357, § 1(2-106), 6-8-2010)

Sec. 2-90-2. Composition; appointment of members; selection of members.

A. The minority business development and oversight commission shall consist of nine members appointed by the mayor, subject to confirmation by the city council.

B. The commission shall likewise consist of two ex officio members:

1. The mayor, or his designee.

2. A member of the city council.

C. The makeup of the minority business development and oversight commission shall be reflective of the population of the city and shall include members of the groups determined in the study to have been historically discriminated against.
(Ord. No. 5357, § 1(2-106.1), 6-8-2010)

Sec. 2-90-3. Terms of members.

The terms of office of the members of the minority business development and oversight commission shall be three years commencing on July 1 of the appointive year.
(Ord. No. 5357, § 1(2-106.2), 6-8-2010)

Sec. 2-90-4. Election and terms of officers.

It shall be the duty of the minority business development and oversight commission to elect a chairperson and such other officers as are deemed necessary, who shall serve for one year.
(Ord. No. 5357, § 1(2-106.3), 6-8-2010)

Sec. 2-90-5. Members not to be paid.

The members of the minority business development and oversight commission shall not receive compensation for their services.
(Ord. No. 5357, § 1(2-106.4), 6-8-2010)

Sec. 2-90-6. Role.

A. The members of the minority business development and oversight commission shall review the progress of minority and women-owned business enterprise program for the city and any other similar or related program no less than monthly. Said review shall include a report from any contractor or subcontractor awarded city contracts.

B. The commission shall also work with the Greater Memphis Chamber and the Office of Planning and Development on the utilization and creation of minority and women-owned business within the private sector.

C. The commission shall ensure an external objective process be developed and implemented for affirming the validity of the reports, information, and certification by external agencies for those participating in the city's minority and women-owned business enterprise program.
(Ord. No. 5357, § 1(2-106.5), 6-8-2010)

Sec. 2-90-7. Meetings.

The minority business development and oversight commission shall meet no less than once a month with public notice given at least seven days prior to the meeting. The commission shall be responsible for establishing an agenda and procedure for meetings.
(Ord. No. 5357, § 1(2-106.6), 6-8-2010)

Sec. 2-90-8. Report to city council.

The minority business development and oversight commission shall submit a written report to the city council no less than quarterly on the status of participation in the minority and women-owned business enterprise program. The commission shall also submit to the city council an action plan for increasing the utilization and creation of minority and women-owned businesses within the private sector no later than three months after all inaugural members have been appointed. Thereafter, the commission shall make a report no less than quarterly on the progress of the action plan to the city council economic development committee.
(Ord. No. 5357, § 1(2-106.7), 6-8-2010)

CHAPTER 2-91. USE OF FISCAL AGENT FOR EARLY CHILDHOOD AND PRE-KINDERGARTEN EDUCATION FUNDING

Sections:

Sec. 2-91-1. Purpose.
Sec. 2-91-2. Definitions and rules of construction.
Sec. 2-91-3. Delegation of authority.
Sec. 2-91-4. Selection of fiscal agent.
Sec. 2-91-5. Term.
Sec. 2-91-6. Fiscal agent board.
Sec. 2-91-7. Responsibilities of the fiscal agent.

Sec. 2-91-1. Purpose.

The purpose of this chapter is to establish an integrated strategy and the mechanism and oversight for joint the City of Memphis and Shelby County funding of comprehensive and universal needs based pre-kindergarten ("Pre-K") education for Memphis and Shelby County children through the use of a fiscal agent. The purpose of the fiscal agent is to oversee and distribute the Pre-K funding in order to maximize the goals of Pre-K funding.
(Ord. No. 5722, § 1, 3-5-2019)

Sec. 2-91-2. Definitions and rules of construction.

In the construction of this chapter, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the city council and county commission or the context clearly requires otherwise.

Board. The terms "the board" or "board" shall refer to the board of the fiscal agent as described herein.

City. The terms "the city" or "this city" means the City of Memphis, in the County of Shelby and State of Tennessee.

City council. The term "city council" means the legislative branch of the city government of Memphis, Tennessee.

County. The terms "the county" or "this county" mean Shelby County, Tennessee.

County commission. The term "county commission" means the legislative branch of the county government of Shelby County, Tennessee.

Eligible Pre-K student. The term "eligible Pre-K student" or "eligible student" means at-risk four-year olds that qualify for Pre-K under the Tennessee Voluntary Pre-K Act and that come from families (or guardians) with incomes that would qualify them for reduced or free lunch consistent with 42 U.S.C. § 1771 (Federal School Lunch Program).

Fiscal agent. The term "fiscal agent" shall refer to the entity which is selected by the city and the county to oversee and administer the funds designated for Pre-K education.

Mayoral appointee. The term "mayoral appointee" shall mean an appointee of the city or county mayor, and shall refer to a resident of Shelby County, consistent with section 2-91-6, who is representative of parents of students along the Pre-K to third-grade education continuum.

Mayoral liaison. The term "mayoral liaison" shall refer to a representative of the city or county mayor who represents the city or county administration.

Two-generational approach. This term refers to creating opportunities for and addressing the needs of both children and adults in their lives together, including non-academic factors that impact classroom performance.
(Ord. No. 5722, § 2, 3-5-2019)

Sec. 2-91-3. Delegation of authority.

Any funds designated by city council for Pre-K education shall be distributed and overseen by a designated fiscal agent to be jointly selected by the city and county mayors. The authority to distribute funds and oversight of the overall program for universal needs based Pre-K education is hereby granted to a fiscal agent as described hereinbelow and such authority shall be renewed every school year by the city and county mayors with such renewal occurring not later than prior to the start of the school year for which city and/or county funds will be utilized
(Ord. No. 5722, § 3, 3-5-2019)

Sec. 2-91-4. Selection of fiscal agent.

The Mayor of the City of Memphis and the Mayor of Shelby County shall jointly select the authorized fiscal agent.
(Ord. No. 5722, § 4, 3-5-2019)

Sec. 2-91-5. Term.

The fiscal agent shall serve for a period of three years. The city and the county shall have the contractual right to terminate the fiscal agent.
(Ord. No. 5722, § 5, 3-5-2019)

Sec. 2-91-6. Fiscal agent board.

The selected fiscal agent shall create or maintain a fiscal agent board to act as its governing body. The board will include city and county mayoral appointees and appointees made by the city and county legislative bodies as set forth below, and further, these appointees shall comprise 25% of the overall board.

A. *Membership.* The board shall include an equal share of mayoral appointees appointed by the city mayor and county mayor.

B. The Memphis City Council and the Shelby County Commission shall each appoint one member of the board.

C. *Qualifications.* All mayoral appointed board members shall have been residents of the city or the county for a period of one year prior to the start of his/her term.

D. *Term.* The mayoral appointed board members shall serve a term of three years, expiring with the calendar year.

E. *Compensation and expenses.* All mayoral appointed board members shall serve without pay. All said members shall be entitled to reimbursement for any actual expense incurred in connection with such membership, provided the same was authorized in advance by the city and county chief administrative officers. Such

administrative expenses shall not exceed seven percent of overall grant funding secured by the fiscal agent.

F. *Vacancy.* Vacancy created by any cause shall be filled for the unexpired term in the same manner and by the same authority as made the original appointment.

G. *Duties and responsibilities.* The board shall provide oversight and guidance to the fiscal agent. The board shall review and approve the annual report of the fiscal agent prior to its submission to the mayors, city council and county commission.

(Ord. No. 5722, § 6, 3-5-2019)

Sec. 2-91-7. Responsibilities of the fiscal agent.

A. *General duties.* With the guidance of its board, the fiscal agent shall provide and maintain such health, development, early enrichment, parenting and advocacy services as are needed for improving "kindergarten readiness" for the children of Memphis and Shelby County. The fiscal agent shall provide a written description of the activities, services and opportunities to be provided to the children along with the anticipated schedule for providing same. The description should include the following: agreements made with community organizations, and all public and private agencies; details of all outreach efforts to provide services for at-risk children; the strategy for interagency coordination to maximize existing resources; procedures for early identification of at-risk children; strategy for ensuring equitable distribution of classrooms throughout Shelby County to maximize opportunities for all eligible Pre-K students to receive Pre-K instruction; and the manner in which the fiscal agent will seek funding for unmet needs.

B. *Finances.* The fiscal agent shall manage and allocate the moneys dedicated to this project by the city and the county. The fiscal agent is empowered to seek loans, grants from state, federal and local agencies and to accept loans, grants or donations from public and private sources provided that a clear accounting of each revenue stream is maintained and provided that the city and county are in no way obligated to contribute money beyond that approved by their respective legislative bodies. A detailed budget shall be provided as part of the annual report which shall be presented to the council and commission not later than April preceding the fiscal year.

C. *Data and research.* The fiscal agent shall collect information and statistical data and conduct research to assist the city and the county to meet the needs of the children of the county. The fiscal agent shall provide technical expertise in education data management. The fiscal agent shall use data for continuous improvement of programs and fiscal management of public funds. All student data shall be collected and maintained in compliance with the Family Educational Rights and Family Act of 1974.

D. *Consultation and coordination.* The fiscal agent shall consult and coordinate with other agencies dedicated to child welfare and shall provide programmatic expertise for key indicators of success in early childhood education. The fiscal agent shall serve as the accountability agent for community partners in the delivery of Pre-K services.

E. *Quality and standards.* The fiscal agent shall be charged with establishing and enforcing quality standards for all Pre-K classrooms funded under this chapter. The minimum standard shall be as follows:

1. A curriculum consistent with Tennessee Voluntary Pre-K and Tennessee Department of Education early education standards including, but not limited to, the requirements for programs set forth in T.C.A. § 49-6-104 which is incorporated herein by reference;
2. A focus on classrooms with teachers holding credentials in early childhood education; and
3. A focus on classrooms that offer two-generational support programs.

F. *Quarterly reports.* The fiscal agent shall provide quarterly reports to the board, the city, and the county which shall include, but are not limited to, the following:

1. The number of at-risk four year old children in city and county provided classrooms;
2. Pre-K testing outcomes including the number and percentage of children considered "kindergarten ready" as that term is defined by the State of Tennessee. The data shall include specific information relating to the children participating in Pre-K services.

3. Financial report detailing the use of public funds.

4. A report detailing parent and community engagement on placement of classrooms, delivery of services and alignment for the type (i.e., STEM, Montessori, traditional college track, etc.) of K-12 instruction.

G. *Annual report.* The fiscal agent shall provide the mayors, city council and county commission with an annual report in April after it is approved by the board of each year of its activities and findings regarding the needs of children the extent to which those needs are being met. It shall also include recommendations as to strategies for meeting any unmet needs. Recommendations regarding pending legislation or needed legislation shall be brought to the attention of the mayors, city council and county commission at appropriate times during the year and shall be included in the annual report.
(Ord. No. 5722, § 7, 3-5-2019)

CHAPTER 2-95. COMMUNITY INITIATED PUBLIC ARTS PROGRAM

Sections:

Sec. 2-95-1. Purpose.
Sec. 2-95-2. Definitions.
Sec. 2-95-3. Public art approval.
Sec. 2-95-4. Approval review.
Sec. 2-95-5. Approval issuance.

Sec. 2-95-1. Purpose.

The purpose of the community initiated art program is to

A. Promote collaborative projects between the City of Memphis and residents to highlight positive images of our city;

B. Encourage and nurture with presence and development of local artists and community leaders;

C. Create an administrative process for the review and approval of artwork initiated by private citizens and organizations to be temporarily installed on city property.
(Ord. No. 5727, 11-5-2019)

Sec. 2-95-2. Definitions.

Adjacent property owner indicates the individual or company that has owners' rights to the property, such as a block of land or building, separated by a natural barrier, but not separated by another property from the site of proposed art project.

Adjoining property owner indicates the individual or company that has owners' rights to the property such as a block of land or building that touches or abuts the site of the proposed art project.

Artist means a person that creates artwork.

Artwork means of forms of tangible works of visual art executed in one or more media or materials including but not limited to paintings, sculpture, stained glass, lightworks, fiber works, reliefs, monuments, fountains, frescoes, murals, collages, statues, photographs, drawings, mobiles, craftworks, kinetic, electronic or functional furnishings, lighting, and artist-designed landscaping.

City is the City of Memphis, Tennessee and any department, division, bureau, board, or agency thereof, and any corporation, institute, commission or other entity organized by or acting on behalf of the city or any office, department, division, bureau board or agency thereof.

City property includes any property owned by the City of Memphis including but not limited to parks, community centers, libraries, buildings, and streets.

Community initiated art means any art project placed on public property initiated by a community group or individual without funding from the City of Memphis.

Installation means the physical process of placing artwork on public property.

Pedestrian right-of-way is any area or way set aside or open to the general public for purposes of pedestrian or non-motorized vehicle traffic, whether or not it is paved, and including but not limited to such pedestrian and bicycle infrastructure as greenlines, greenways, and river walks.

Permits office is the office or department responsible for the issuance of any and all approvals as required under this chapter.

Person in this ordinance should be read to include any person or collections of persons, such as firms, partnerships, associations, corporations, companies, or organizations of any kind.

Public place means areas upon, above, or below municipal buildings, parks, plazas, squares, parkways, rights-of-way, and any space, indoors or outdoors on city property and any space not on private property which is visible to the public from a sidewalk or street.

Review committee is a group of appointed persons to review and approve the public art applications in consultation with permits office. The review committee will contain at least one representative from legal, public works, engineering, and parks as well as a designated legislative representative.

Sidewalk is any area or way set aside or open to the general public for purposes of pedestrian traffic or non-motorized vehicle traffic, whether or not it is paved, and including but not limited to such pedestrian and bicycle infrastructure as green lines, greenways, and river walks.

Street is any place or way set aside or open to the general public for purposes of vehicular traffic, including any berm or shoulder parkway, right-of-way, or median strip thereof.

Structure is any means, permanent or temporary, by which normal vehicular or other traffic is diverted or impeded in the context of parades, races or public assemblies as defined in this section, including but not limited to barricades, signs, cones, ropes, and vehicles.

Temporary artwork means artwork that is temporary in nature and installation of artwork will not be permanent. (Ord. No. 5727, 11-5-2019)

Sec. 2-95-3. Public art approval.

All community initiated artwork installed on public property shall require approval by the permits office.

A. *Approval requirements.*

1. A person seeking approval shall file an application with the permits office on forms provided by such officer and the application shall be signed by the applicant under oath.
2. The application deadline for public art applications are as follows:
   a. An application for a community initiated art project shall be filed with the permits office at least 90 calendar days and not more than 180 days before the installation is to commence.
   b. The permits office, in consultation with the review committee, may waive the minimum filing period and accept an application filed within a shorter period if, after due consideration of the date, time, place and nature of the artwork and installation will not interfere with public safety.
3. The application for a community initiated art shall include the following information and incomplete applications will not be considered by the review committee:
   a. Temporary public art application form;
   b. The name, address, email, and telephone number of the artists seeking to install temporary artwork;
   c. Resume and/or biography of artists with slides and examples of artist's past work;
   d. The names, addresses, emails, and telephone numbers of the agency or organization for which the temporary artwork will be installed, if any, and the names of the authorized and responsible heads of the community agency or organization;
   e. The requested date of the installation;
   f. The proposed site of artwork installation;
   g. Detailed site plan of the artwork including orientation of public art and distance in measurement between public art and public streets;

h. Photograph of proposed site location, including site plan, which must include:

i. Placement of the proposed artwork;

ii. Orientation of the proposed artwork;

iii. Distance between proposed artwork and public street(s);

i. Sample, model, color photograph, and/or drawing of proposed artwork;

j. Landscape plan (if applicable);

k. Installation plan and timeline;

l. Maintenance plan;

m. Itemized project budget;

n. Executed waiver of rights under the Visual Artists Rights Act and shall include one executed waiver for each artist contributing to the proposed artwork;

o. Any additional information that either the permits office or review committee finds reasonably necessary to make a fair determination as to whether an application should be approved.

B. *Fees.* A nonrefundable fee of $50.00 to cover administrative costs of processing the approval shall be paid to the city by the applicant when the application completed and accepted in its entirety.

C. *Nondiscrimination.* The permits office, after consultation with the review committee, shall uniformly consider each application upon its merits and shall not discriminate in granting or denying approvals under this chapter based upon political, religious, ethnic, race, disability, sexual orientation or gender-related grounds.

(Ord. No. 5727, 11-5-2019)

Sec. 2-95-4. Approval review.

A. *Review committee.*

1. Completed applications will be submitted to the review committee for further consideration.

a. Applications shall be submitted to permits office for preliminary review. Permits office shall forward completed applications with eligible proposed sites to the review committee;

b. The review committee shall have five members. The review committee will contain at least one representative from legal, public works, engineering, and parks as well as a designated legislative representative. Legislative representative shall have the ability to request a discussion during the public works, solid waste, transportation and general service committee. If requested, the item will be placed on the first subsequent committee meeting following the request with the permission of the chairman of the public works, solid waste, transportation and general service committee;

c. The review committee will route application materials to their respective divisions/departments for comments and conditions re: design/installation approval;

d. Notification of application will be provided to council members for the district where proposed artwork is to be located;

e. Once an application is set for a public meeting, applicant must submit proof of public notice regarding the meeting. Must provide all required notices:

i. Posting notice on proposed location outlining date, time, and location of public meeting;

ii. Written notice to adjacent or adjoining property owners outlining date, time, and location of public meeting;

iii. Written notice to any church and/or school located within 500 feet from the proposed location when measured along a center line of streets from point to point or within a 250-foot radius in any other direction from the proposed location outlining date, time, and location of public meeting.

2. The review committee shall conduct public meetings.
    a. Public meetings will be held by the review committee where applicants will present proposed artwork.
    b. Community members may attend and comment in support or opposition of the proposed artwork and/or placement.
    c. Decision made by review committee by majority vote to approve application, deny application, or request additional information.
    d. The review committee will review the public art procedures and guidelines annually.

B. *Modification or denial.*

1. The permits office and review committee shall act promptly upon a timely filed application for community initiated public art.
2. The review committee may modify the request to be different from that requested by the applicant in a manner that protects the lives, safety, health, welfare and property of the general public.
3. Upon receipt of written notice, and applicant desiring to accept the modifications must file a written notice of acceptance with the permits office within three business days.
4. The review committee shall issue in writing a denial and reasons thereof to the applicant.

C. *Appeals procedure.*

1. Any applicant shall have the right to appeal the permits office's denial of a public art approval to the city council. The denied applicant shall make the appeal within five calendar days after receipt of the denial by filing a written notice with the permits office and a copy of the notice to the review committee.

(Ord. No. 5727, 11-5-2019)

Sec. 2-95-5. Approval issuance.

A. *Notice to city and other officials*. Immediately upon the receipt or approval, as appropriate, the permits office shall send a copy thereof to the following additional persons:

1. City attorney;
2. The city engineer;
3. The director of public works;
4. The director of parks and neighborhoods;
5. The city council chair.

B. *Contents of approval.* Each approval shall state the following information:

1. The location of artwork;
2. Description of artwork;
3. Name and contact information of approved applicant;
4. Name and contact information of all artists participating in installation or project;
5. Such other information as either the permits office or review committee shall find necessary to the enforcement of this chapter.

C. *Duties of applicant after approval.*

1. Applicant hereunder shall comply with all directions and conditions and with all applicable laws and ordinances of the federal, state and local governments.
2. Applicant approved for artwork to be installed in a crosswalk shall be subject to the City of Memphis Artistic Crosswalk Guidelines in addition to the community-initiated public art policy and procedure.
3. The applicant may be required to obtain permits or licenses from various city departments and divisions and submit proof of insurance prior to installation.

D. *Prohibitions.* The following prohibitions shall apply to all approved art as defined by this chapter:

1. It is unlawful for any person to deviated or amend installation in a manner different from approved artwork.
2. It is unlawful for any person to install artwork on city property for which the person knows a public art approval has not been granted;

3. It is unlawful for any person in charge of the art installation, or responsible for the art installation to knowingly fail to comply with any condition of the public art approval:

4. It is unlawful for any person participating in a public art installation to violate municipal ordinances and any applicable laws of the state of Tennessee;

E. *Revocation of approval*. The permits office in consultation with the review committee shall have the right to revoke approval upon violation of the conditions or standards for issuance as set forth in this chapter.

F. *Violations—Fines and penalties*. Any person violating the provisions of any section of this chapter shall, upon conviction, be punished by a fine not to exceed $50.00 and any other penalties which may be applicable. (Ord. No. 5727, 11-5-2019)

Title 3

PERSONNEL

Chapters:

3-4. Personnel Regulations Generally
3-8. Civil Service
3-12. Civil Service Commission
3-16. City Employee Occupational Safety and Health Program

CHAPTER 3-4. PERSONNEL REGULATIONS GENERALLY

Sections:

Sec. 3-4-1. Paid vacation for full-time city employees.
Sec. 3-4-2. Legal holidays.
Sec. 3-4-3. Employees' suggestion awards program.
Sec. 3-4-4. Discrimination in hiring persons previously convicted.

Sec. 3-4-1. Paid vacation for full-time city employees.

A. All of the full-time employees of the city including the various boards, commissions and authorities created by the city, and including elected, appointed and civil service personnel, shall be permitted to take paid vacation time each calendar year according to the following schedule:

Service Requirement	*Vacation Period*
6 months but less than 1 year	1 week (40 hours)
1 year but less than 6 years	2 weeks (80 hours)
6 years but less than 7 years	2 weeks, 1 day (88 hours)
7 years but less than 8 years	2 weeks, 2 days (96 hours)
8 years but less than 9 years	2 weeks, 3 days (104 hours)
9 years but less than 10 years	2 weeks, 4 days (112 hours)
10 years but less than 11 years	3 weeks (120 hours)
11 years but less than 12 years	3 weeks, 1 day (128 hours)
12 years but less than 13 years	3 weeks, 2 days (136 hours)
13 years but less than 14 years	3 weeks, 3 days (144 hours)
14 years but less than 15 years	3 weeks, 4 days (152 hours)
15 years but less than 17 years	4 weeks (160 hours)
17 years but less than 19 years	4 weeks, 1 day (168 hours)
19 years but less than 21 years	4 weeks, 2 days (176 hours)
21 years but less than 23 years	4 weeks, 3 days (184 hours)
23 years but less than 25 years	4 weeks, 4 days (192 hours)
25 years and over	5 weeks (200 hours)

Provided, however, that all full-time members of the city fire services division who are engaged in an extended scheduled workweek of 56 hours or more shall be permitted to take paid vacation time for each calendar year according to the following schedule:

Service Requirement	*Vacation Period*
6 months but less than 1 year	2 weeks
1 year but less than 6 years	4 weeks
6 years but less than 7 years	4 weeks, 1 day
7 years but less than 8 years	4 weeks, 2 days
8 years but less than 9 years	4 weeks, 2 days
9 years but less than 10 years	4 weeks, 2 days
10 years but less than 11 years	5 weeks
11 years but less than 12 years	5 weeks, 1 day
12 years but less than 13 years	5 weeks, 2 days
13 years but less than 14 years	5 weeks, 2 days
14 years but less than 15 years	5 weeks, 2 days
Over 15 years	6 weeks

B. The first schedule of this section shall take effect from and after January 1, 1976, and shall apply to any regular full-time employee of the fire services division who is employed and who regularly serves on a routine 40-hour work week.

(Code 1967, § 2-9.1; Code 1985, § 2-1; Ord. No. 63, § 1, 11-21-1967; Res. of 12-12-1967 §§ 1—5; Ord. No. 217, § 1, 7-23-1968; Ord. No. 1352, §§ 1, 2, 7-5-1972; Ord. No. 2358, §§ 1, 2, 12-30-1975)

Sec. 3-4-2. Legal holidays.

A. City departments will be closed and employees excused, excepting emergency and necessary operations, on the following legal holidays:

New Year's Day	January 1
Good Friday	
Memorial Day	Last Monday in May
Juneteenth Independence Day	June 19
Independence Day	July 4
Labor Day	First Monday in September
Thanksgiving Day	Fourth Thursday in November
Day following Thanksgiving	Fourth Friday in November
Christmas Eve	December 24
Christmas Day	December 25

B. Suspension of work at other times will be only with the approval of the mayor and council. Permanent and probationary employees will be excused from work on official holidays without a reduction in pay.

(Code 1967, § 2-12; Code 1985, § 2-2; Ord. No. 1268, § 1, 5-2-1972; Ord. No. 1345, § 1, 6-27-1972; Ord. No. 5857, § 1, 3-21-2023)

Sec. 3-4-3. Employees' suggestion awards program.

A. *Committee and membership.* Each division director of the city shall appoint a minimum of three and a maximum of five employees from his or her division to serve on a total quality management suggestion awards committee for that division. Employees of the city shall serve without additional compensation over and above their regular employment compensation. Terms shall be for no more than two years; however, members may serve consecutive terms upon the request of their division director.

B. *Alternate members.* The division director shall have the right to appoint up to two alternate members who may serve the committee whenever an original appointee can not attend a meeting or can no longer serve as a member of the committee. Such alternate, while acting as a member of the committee, shall have the right to vote and otherwise exercise all other rights which his or her principal would have as a member if he or she were attending a committee meeting. While not acting as a member of the committee, the alternate shall attend committee meetings but may not vote or exercise the rights a principal would have as a member.

C. *Quality coordinator.* The division director shall choose a quality coordinator from among the employees he or she selects to serve on the suggestion award committee. The quality coordinator shall have the discretion to call the meetings of the committee whenever a meeting is warranted.

D. *Recorder.* The appointed members shall choose, from among themselves, a member not the quality coordinator, to serve as recorder for the committee. The recorder shall keep a record of all suggestions and shall record the minutes of each committee meeting.

E. *Powers, functions, and duties of the committee.* Each division committee shall have the powers, functions and duties as are herein authorized and given in this section. Each committee is authorized to act upon such forms, procedures, rules and regulations, as it may deem reasonably necessary to facilitate and exercise its powers, functions and duties.

F. *Submission of suggestions.* Each and every city employee is invited to offer suggestions through the total quality management improvement process. An employee desiring to offer a suggestion pursuant to the provisions of this section shall address the same to the committee by filing the suggestion on the designated form with the recorder of the division's committee. The recorder shall submit each and every suggestion to the committee using the appropriate quality process. Suggestions are to be made to the particular department or division which would benefit most from the implementation of the suggestion.

G. *Investigations of suggestions by committee and division director.* Upon receipt of suggestions, each committee shall evaluate. In evaluating suggestions, the committee shall consider any improvement of operations of the city government that might result from implementation of such suggestions.

H. *Implementation of suggestions.* If, after investigation, the committee determines that a suggestion is worthy of implementation, it shall submit to the division director and the quality council (the administrative body that is responsible for monitoring, recognizing and authorizing the implementing of TQM projects) its recommendation that such suggestion be implemented. No money shall be paid to any person as an award of any suggestion, unless and until such suggestion has been implemented and put into effect and operation. The division director shall give the committee and quality council notice of all suggestions which have been implemented and then put into effect.

I. *Rejection of suggestion.* If a suggestion is rejected, the committee must give notice and reason for the rejection in writing.

J. *Power of division director to overrule decisions of the committee.* Before concluding its investigation of any suggestions, the committee shall cause a copy of each suggestion, along with the committee's findings regarding feasibility of implementation of the suggestion, to be given by the committee recorder to the division director. The division director shall have reasonable opportunity to independently investigate the suggestion and to make recommendations with respect to the committee for further consideration of the suggestion, whether the suggestion had been previously approved or rejected by the committee. Should the division director reject the suggestion, this decision should be communicated to the committee and quality council.

K. *Awards without implementation.* Notwithstanding the above, however, the committee, subject to the appropriation and the availability of money therefor, and

acting pursuant to the authority herein and given to it in this section, may make an award (up to and including cash), per guidelines.

L. *Monetary award.* Subject to such conditions, restrictions or limitations as are contained elsewhere in this section, the committee, after a suggestion has been implemented and put into effect, should suggest to the division director and quality council that it be submitted for monetary consideration. Such award shall be in such amount as the committee shall deem reasonable under established guidelines. In addition, the amount of the award must be approved by the division director. In determining the amount of any such award, the committee shall consider the net savings, the net increases in revenue, if any, which will accrue to the division or to the city because of the implementation of such suggestion. In no event shall the amount of any such award exceed the sum of $500.00 or ten percent of the first year's net savings or net increases in revenue to the city, as estimated to the division, or to the city, as estimated by the committee, whichever is the lesser sum.

M. *Cash awards in excess of $500.00; quality council to authorize payment.* If and when the committee finds and determines that a suggestion is worthy of cash award in excess of $500.00, and the division director concurs, the division director may recommend to the quality council that they authorize payment of such higher award. The following percentages will then apply: savings of $5,000.00 to $25,000.00, an award of $500.00, plus five percent of any amount from $5,000.00 to $25,000.00; savings of $25,000.00 to $100,000.00, an award of $1,500.00, plus one percent of any amount over $25,000.00.

N. *Persons ineligible for cash awards.* No suggestions shall be made pursuant to the provisions of this section to any of the following persons:

1. Elected officials;
2. Division directors;
3. Deputy directors;
4. Chief administrative officer;
5. Members of the auditing staff;
6. Any person who is not an employee of the city at the time the suggestion was received by the committee;
7. Supervisory personnel for suggestions related to their own area of responsibility.

O. *Awards with no definite monetary value and/or noncash award.* Each committee may make an award not to exceed a value of $50.00, but not less than $10.00 for suggestions concerning safety and other matters that do not save the city directly but improve operations. The amount of such an award shall be determined on the basis of criteria established by the quality council. Alternatively, each committee may, at any time, award non-cash certificates of commendation and other forms of recognition not involving the payment of money for any suggestion whenever it deems such to be appropriate.

P. *Patents and copyrights.* The city shall be entitled to implement use and put into operations, in effect, any suggestions submitted by any persons pursuant to the provisions of this section without paying any royalties or other moneys, whatever, for the privilege of doing so, and any person so submitting any suggestions to the city shall be deemed, by submitting a suggestion, to have agreed to the above. Subject to the above rights of the city, any employee of the city who submits any suggestion pursuant to this section may copyright or patent such suggestion and shall be entitled to any rights, privileges or emoluments resulting therefrom.

Q. *Appropriations.* No cash award shall be made and no money shall be expended pursuant to the provision of this section, unless money has been appropriated by the city council, and there exists an unencumbered balance of such appropriations sufficient for such purpose. The division director shall make recommendations to the council respecting the amounts of money that should be appropriated for such purposes.

R. *Annual report.* As soon as possible, following the close of each fiscal year, the committee shall make and file with the quality council an annual report of this activity in the immediately proceeding fiscal year; a copy should be provided to the division director.
(Code 1967, § 2-9; Code 1985, § 2-3; Ord. No. 7-29, § 1, 6-9-1970; Ord. No. 1049, §§ 1—3, 9-7-1971; Ord. No. 1151, § 1, 1-11-1972; Ord. No. 4339, § 1, 7-18-1995)

Sec. 3-4-4. Discrimination in hiring persons previously convicted.

A. Definitions. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Applicant means any person considered for, or who requests to be considered for, employment by the city.

City means the City of Memphis or any division, department, agency or office thereof, unless specifically excluded by this section.

Conviction means any sentence arising from a plea or verdict of guilty, including a sentence of incarceration, a suspended sentence, a sentence of probation or a sentence of unconditional discharge.

Employment means any occupation, vocation, job, or work for pay, including temporary or seasonal work, contracted work, contingent work and work through the services of a temporary or other employment agency; or any form of vocational or educational training with or without pay. The term "employment" shall not, for the purposes of this section, include any sworn position.

Otherwise qualified means any applicant who meets all other criteria for a position or consideration for a position.

Relationship to the job means the nature of criminal conduct for which the person was convicted has a direct and/or specific negative bearing on a person's fitness or ability to perform one or more of the duties or responsibilities necessarily related to the employment sought.

B. Except as otherwise dictated by state and federal law, the city shall not inquire about an applicant's conviction history until after it has been determined that the applicant is otherwise qualified for the position. City job applications shall not contain a "box" or inquiry regarding a job applicant's prior convictions. This subsection does not apply to police, fire and emergency medical services positions.

C. After an applicant has been identified as otherwise qualified for the position, the city will offer a conditional offer of employment to the applicant, pending a conviction history check by the human resources division. Prior to conducting any conviction history check on an applicant, the applicant will be required to complete a form listing any criminal history. Once the form has been received the city must provide a standard written notification to the applicant advising:

1. That a conviction history check is going to take place;
2. That he or she will have the opportunity to rebut a decision by the city should it decide to retract the conditional offer of employment; and
3. What kinds of specific evidence the applicant can present during this rebuttal.

D. 1. If, as a result of a conviction history check, the city finds a valid reason to refuse, rescind, or revoke the offer of a position to an applicant, then the city must immediately notify the applicant of the potential adverse employment action, and provide the applicant with a photocopy of the conviction history report with a highlight of the particular conviction that relates to the job's responsibilities, thus warranting a denial of employment.

2. The applicant or current employee shall have ten business days, after receipt of notice and the photocopy of the conviction history report from the city, to respond to the city regarding the conviction history report. The city shall provide the applicant with an opportunity to present information rebutting the accuracy and/or relevance of the conviction history report, including information pertaining to any of the factors listed in this subsection D. The city must review all information and documentation received from the applicant prior to taking any final action as to whether to hire said applicant.

E. In making a determination concerning a previous criminal conviction, the city shall consider the following factors:

1. The nature of the crime and its relationship to the job for which the person has applied;
2. The information pertaining to the degree of rehabilitation of the convicted person;
3. The time elapsed since the conviction or release;
4. Any information produced by the person, or produced on his behalf, in regard to his or her rehabilitation and good conduct;
5. The age of the person at the time of occurrence of the criminal offense or offenses;
6. The gravity of the offense; and
7. The public policy of the city, as expressed in this section, to encourage the employment of persons previously convicted of one or more criminal offenses.

F. In no case may records of conviction which have been erased be used, distributed or disseminated by the city or any of its agencies in connection with employment, except as dictated by law.

G. In order to prevent discrimination against municipal employees in accordance with federal guidelines, any information pertaining to an applicant or employee's record of conviction obtained by the human resources division in conjunction with the hiring process shall remain confidential within that division, and shall not be used, distributed or disseminated by the city or any of its agencies, to any other division, entity, or individual, except as dictated by law.
(Ord. No. 5363, §§ 1, 2, 6-22-2010)

CHAPTER 3-8. CIVIL SERVICE*

Sections:

Sec. 3-8-1.	Division of personnel established—Director.
Sec. 3-8-2.	Classification of officers and positions.
Sec. 3-8-3.	Personnel records.
Sec. 3-8-4.	Examinations for applicants for employment.
Sec. 3-8-5.	Miscellaneous offenses in connection with civil service.
Sec. 3-8-6.	No discrimination in city employment.
Sec. 3-8-7.	Disciplinary actions.
Sec. 3-8-8.	Rights generally.
Sec. 3-8-9.	Hearings—Generally.
Sec. 3-8-10.	Hearings—Conduct.

Sec. 3-8-1. Division of personnel established—Director.

There shall be a division of personnel with a director to be appointed thereto in the same manner as other directors.
(Code 1985, § 9-16)

Sec. 3-8-2. Classification of officers and positions.

The director of personnel shall classify all offices and positions in the city service according to the duties and responsibilities of each position, provided, however, that the following officers and employees shall be exempted from the provisions of sections 3-8-2 through 3-8-6.

A. Officers and judges who are elected by popular vote and their successors;

B. Members of and employees of the board of education;

C. Members of the board and employees of the Memphis light, gas and water division;

D. Division directors who are either now or may be hereafter appointed by the mayor and council;

E. All employees of the legal department;

F. Members of the various boards and commissions now existing or hereafter created;

G. All staff employees of the offices of the mayor and chief administrative officer;

H. One executive secretary for each board, commission, division director, and for the administrative judge of the city court;

I. All officers and employees of the city and county public library;

J. All employees of the city council office;

K. All temporary employees;

L. Such other officers of employees whose positions, in the judgment of the mayor, with the concurrence of the city council, cannot be subject to the rules herein provided, and who shall not be affected by such rules and regulations. The provisions of this subsection shall not allow removal of civil service protection from any employee whose position at that time is covered by sections 3-8-2 through 3-8-6; however, an employee may lose civil service protection by accepting a different position which has been exempted from civil service.

(Code 1985, § 9-1; Ord. No. 3881, § 1, 7-18-1989)

Sec. 3-8-3. Personnel records.

The director of personnel shall provide and maintain a complete official roster of employees showing, for each employee, his or her name, address, class title, rate of pay, and such other information he or she may deem advisable. Each division shall report, on forms prescribed by the director of personnel, each appointment in the city service and each promotion, reduction, suspension, transfer, separation, reinstatement or other change in employment of each employee. No salary or wage of any person in the city service shall be approved for payment, or paid, unless the same is included in a payroll schedule containing the name of such person to be paid, the amount to be paid such person, and a statement of

*__Charter references—__Civil service, §§ 240—250.4; authority to pass civil service ordinances, § 246.

services on account of which payment is to be made, duly certified by the director of personnel or some person properly acting for him or her.
(Code 1985, § 9-2)

Sec. 3-8-4. Examinations for applicants for employment.

A. All applicants for employment in positions protected by sections 3-8-2 through 3-8-6 shall be subjected to competitive job-related examinations under such rules and regulations as may be adopted by the director of personnel.

B. The examinations to be provided for shall be of a practical nature and relate to such matters as will fairly test the relative competency of the applicant to discharge the duties of the particular position. No question in any examination shall relate to political or religious opinions or affiliations. The examination shall be conducted and controlled by the director of personnel.
(Code 1985, § 9-3)

Sec. 3-8-5. Miscellaneous offenses in connection with civil service.

No person shall willfully or corruptly, by himself or herself or in cooperation with any other person:

A. Defeat, deceive or obstruct any person in respect to his or her rights in relation to any examination or appointment in the classified service;

B. Willfully and falsely mark, grade, estimate or report upon the examination or proper standing of any person examined or certified pursuant to the civil service law, ordinances, or rules pertaining to the classified service, or the service ratings of any employee, or aid in so doing, or willfully make any false representation concerning the same, or concerning any person examined;

C. Furnish any person any special or secret information for the purpose of either improving or injuring the prospects or chances of such person in connection with any examination or appointment;

D. Impersonate any other person or permit or aid in any manner any other person to impersonate him or her in connection with any examination, appointment, or application or request for examination.

(Code 1985, § 9-4)

Sec. 3-8-6. No discrimination in city employment.

There shall be no discrimination in city employment of personnel because of religion, race, sex, creed, political affiliation, national origin, ethnicity, age, disability, sexual orientation, gender identity or other non-merit factors, nor shall there be any discrimination in the promotion or demotion of city employees because of religion, race, sex, creed, political affiliation, national origin, ethnicity, age, disability, sexual orientation, gender identity or other non-merit factors. Gender identity means the actual or perceived gender-related identity, appearance, or mannerisms, or other gender-related characteristics of an individual, with or without regard to the individual's designated sex at birth.
(Code 1985, § 9-5; Ord. No. 5470, § 1, 9-18-2012)

Sec. 3-8-7. Disciplinary actions.

The city shall have the right to discipline any employee for misconduct, incompetency, inefficiency, insubordination, failure to perform duties, falsifying an oath, failure to observe the personnel rules or the rules of the individual department, or a related serious offense. The city may terminate, suspend or demote an employee for just cause, and the employee shall be given a written notice of the reasons for the action. Terminations, suspensions and demotions shall be appealable to the civil service commission as provided for in this chapter. Just cause shall exist when the employer had a reasonable basis for the action taken. Enumeration of the above-stated disciplinary actions, which are reviewable by the commission, shall not be construed as a limitation on powers of the city to impose other less stringent disciplinary measures which shall not be appealable to the commission. Services of any employee may be terminated when the necessity for his or her job or position no longer exists or when funding is no longer available, and such action shall not be reviewable by the commission.
(Code 1985, § 9-41)

Sec. 3-8-8. Rights generally.

Any employee holding a position not exempted from the provisions of sections 3-8-7 through 3-8-10 and not in his or her initial probationary period, who has been

suspended in excess of ten days, terminated, or demoted, may appeal to the commission within ten calendar days after notification in writing of such action. Such appeal to the commission shall be in writing. In the event of

multiple suspensions, only that suspension which causes the total number of days suspended to exceed five days within a six-month period and any subsequent suspension within such period shall be appealable to the commission. If an employee has previously elected a remedy other than as provided by federal law, he or she shall be barred from appealing to the civil service commission, except that informal appeals within the particular division or within the administration shall not bar an appeal to the commission. In no event shall the ten day time period for appealing to the commission be waived.
(Code 1985, § 9-42)

Sec. 3-8-9. Hearings—Generally.

Upon an employee's appeal from his or her termination, demotion or suspension, a hearing shall be held before the hearing board of the commission within a reasonable time thereafter, not to exceed 60 days from filing of the appeal unless the time shall be extended by consent of all parties. Notice of the time and place of the hearing shall be sent to the city and the appealing employee. Any employee who has been indicted by a federal or state grand jury or against whom a presentment or information has been filed shall be granted, upon his or her request and at his or her election, a postponement of hearing before the civil service commission until such indictment, presentment or information has been finally disposed of by a court of competent jurisdiction. The hearing board shall consist of the chairperson and two commissioners, and a majority vote shall be required to reverse or sustain the disciplinary action of the city. At such hearing both the appealing employee and the official whose actions are being reviewed shall have the right to be heard and to present evidence and to be represented by themselves or by legal counsel of their choosing. The burden of proof required to sustain the action of the city shall by a preponderance of the evidence. If, after a presentation of the proof, the commission finds that there exists a reasonable basis for the disciplinary action taken, the action of the city shall be sustained. The decision of the commission shall be stated in writing and shall include the commission's findings of fact and inclusions therefrom. In the event the decision is not unanimous, the commission shall indicate how each member voted. The written decision and the commission's findings of fact and inclusions shall be sent by the commission to the division director involved, the director of personnel, the employee, and attorneys for each side. The decision of the commission shall be appealable by either the city or the employee by common law writ of certiorari, as provided by state law.
(Code 1985, § 9-43)

Sec. 3-8-10. Hearings—Conduct.

A. During the hearing any witness to be called by either the employee or the city shall be excluded from the hearing room unless actually testifying, except that the appealing employee and a designated representative of the city may be present in the hearing room even if they are expected to testify.

B. The hearing need not be conducted in accordance with technical rules relating to evidence and witnesses, but the hearing shall be conducted in a manner most conducive to determination of the truth. Any relevant evidence may be admitted if it is the sort of evidence which responsible persons are accustomed to rely on in the conduct of serious affairs, regardless of the existence of common law or statutory rules which might make improper the admission of such evidence in civil actions. Either party may impeach any witness regardless of which party called the witness. No still or moving photography shall be allowed in the hearing room during the hearing. The hearing shall be recorded by court reporter or some other form of stenographic transcription or recording.

C. Prior to or during the hearing the commission may grant a continuance to either party for any reason it believes to be important to its reaching a fair and proper decision. Continuances shall be requested at the earliest time that the necessity therefor appears to either party or to their counsel.
(Code 1985, § 9-44)

CHAPTER 3-12. CIVIL SERVICE COMMISSION*

Sections:

Sec. 3-12-1.	Composition.
Sec. 3-12-2.	Appointment of members.
Sec. 3-12-3.	Oath of commissioners.
Sec. 3-12-4.	Compensation.
Sec. 3-12-5.	Removal of commissioners.
Sec. 3-12-6.	Powers and duties of commissioners.
Sec. 3-12-7.	Secretary.

***State law reference—**Municipal civil service boards, T.C.A. § 6-54-114.

Sec. 3-12-1. Composition.

There shall be a commission to be known as the civil service commission of the city. Such commission shall be composed of seven members who shall be appointed by the mayor, with the approval of a majority of the council. Members of the commission shall be resident citizens of the city.
(Code 1985, § 9-21)

Sec. 3-12-2. Appointment of members.

The mayor shall appoint members to the commission, with the approval of a majority of the council, for the following terms: two members for a term of one year, two members for a term of two years, and three members for a term of three years. One of such commissioners shall be designated by the mayor to serve as chairperson of the commission. In the event that the chairperson is unable to attend a commission hearing, the mayor shall have the power to designate someone from the commission membership to serve as substitute chairperson. Subsequent to the initial terms of the commissioners, as provided for in this section, each commissioner appointed thereafter shall serve for a term of three years. If during any term a vacancy shall occur, such vacancy shall be filled by appointment by the mayor, with the concurrence of a majority of the council, to fill the unexpired term.
(Code 1985, § 9-22)

Sec. 3-12-3. Oath of commissioners.

Each civil service commissioner shall take the following oath:

> "I, _____, having been appointed to the Civil Service Commission for the City of Memphis, Tennessee, do solemnly swear that I will support the Constitution of the United States, the Constitution of the State of Tennessee, the laws and ordinances of the City of Memphis, Shelby County, Tennessee, that I will faithfully conduct myself while I serve, and that I will not become connected with, or interested in, directly or indirectly, any contract with the City of Memphis and I will be neutral and unbiased in my decisions, so help me God."

(Code 1985, § 9-23; Ord. No. 5511, § 1, 8-20-2013)

Sec. 3-12-4. Compensation.

The city council may establish by resolution, compensation for members of the civil service commission. Beginning on October 1, 2013, all commissioners shall be entitled to compensation for participation in any civil service hearing at the rate of $400.00 per full day and $200.00 per one-half day. Additionally, the commissioner charged with drafting the findings of fact and conclusions shall be entitled to an additional $100.00 in compensation.
(Code 1985, § 9-24; Ord. No. 5511, § 1, 8-20-2013)

Sec. 3-12-5. Removal of commissioners.

Any commissioner may be removed for just cause, during his or her term of office by a majority vote of the city council on recommendation by the mayor, but only after such commissioner shall have been served with a statement in writing of the reasons alleged to justify his or her removal, and only after such commissioner is allowed an opportunity to be represented and publicly heard in his or her defense before the city council. Such action of the city council shall be final.
(Code 1985, § 9-25)

Sec. 3-12-6. Powers and duties of commissioners.

The civil service commission shall have the power and it shall be its duty to conduct hearings to review disciplinary actions, limited to suspensions, dismissals or demotion of any employees not exempted from the provisions of this chapter and chapter 3-8. In the course of any hearing conducted under the provisions of this chapter, the civil service commission shall have power to administer oaths, to subpoena and require the attendance of witnesses within the city and the production by them of books and papers pertinent to any matter of inquiry, and to examine such witnesses under oath in relation to any matter properly involved in such proceeding. For such purposes, the commission may invoke the power of any court of record in the city, or judge thereof, to compel the attendance and testimony of witnesses and the production of books and papers in compliance with such subpoena.
(Code 1985, § 9-26)

Sec. 3-12-7. Secretary.

A. The director of personnel shall designate someone to serve as the secretary to the civil service commission. Among the duties of the secretary shall be the following:

1. Convening the hearing board of the commission;

2. Maintaining the personnel files on employees who have appealed to the commission;
3. Maintaining the minute book of hearings, which shall reflect the date of hearing, the members and interested persons attending, the decision of the commission, including the commission's written findings and conclusions, and any other pertinent information;

4. Notifying both the city and the appealing employee of the time and place of the hearing; and
5. Any other duties as assigned by the director of personnel.

B. The secretary shall convene the hearing board by notifying the chairperson of the hearing date and then contacting each member on a rotating basis, until a panel of three has been selected.
(Code 1985, § 9-27)

CHAPTER 3-16. CITY EMPLOYEE OCCUPATIONAL SAFETY AND HEALTH PROGRAM*

Sections:

Sec. 3-16-1. Title.
Sec. 3-16-2 Purpose.
Sec. 3-16-3. Coverage.
Sec. 3-16-4. Standards authorized.
Sec. 3-16-5. Variances from standards authorized.
Sec. 3-16-6. Administration.

Sec. 3-16-1. Title.

This section shall be known as "The Occupational Safety and Health Program Plan" for the employees of City of Memphis.
(Ord. No. 5765, § 1, 1-5-21)

Sec. 3-16-2 Purpose.

The City of Memphis, in electing to update the established occupational safety and health program plan, will maintain an effective and comprehensive occupational safety and health program plan for its employees and shall:

A. Provide a safe and healthful place and condition of employment that includes:
   1. Top Management commitment and employee involvement;
   2. Continually analyze the worksite to identify all hazards and potential hazards;
   3. Develop and maintain methods for preventing or controlling the existing or potential hazards; and
   4. Train managers, supervisors, and employees to understand and deal with worksite hazards.

B. Acquire, maintain and require the use of safety equipment, personal protective equipment and devices reasonably necessary to protect employees.

C. Record, keep, preserve, and make available to the commissioner of labor and workforce development, or persons within the department of labor and workforce development to whom such responsibilities have been delegated, adequate records of all occupational accidents and illnesses and personal injuries for proper evaluation and necessary corrective action as required.

D. Consult with the commissioner of labor and workforce development with regard to the adequacy of the form and content of records.

E. Consult with the commissioner of labor and workforce development, as appropriate, regarding safety and health problems which are considered to be unusual or peculiar and are such that they cannot be achieved under a standard promulgated by the State.

F. Provide reasonable opportunity for the participation of employees in the effectuation of the objectives of this program plan, including the opportunity to make anonymous complaints concerning conditions or practices injurious to employee safety and health.

G. Provide for education and training of personnel for the fair and efficient administration of occupational safety and health standards and provide for education and notification of all employees of the existence of this program plan.

(Ord. No. 5765, § 1, 1-5-21)

Sec. 3-16-3. Coverage.

The provisions of the occupational safety and health program plan for the employees of City of Memphis

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***Editor's note—**Ord. No. 5765, § 1, adopted January 5, 2021, repealed the former ch. 3-16, §§ 3-16-1—3-16-18, and enacted a new ch. 3-16 as set out herein. The former ch. 3-16 pertained to similar subject matter and derived from Code 1967, §§ 24½-1—24½-3, 24½-5—24½-10, 24½-12—24½-15; Code 1985, §§ 2-376—2-393; Ord. No. 1780, ? 1, 7-3-1973; Ord. No. 1957, ? 1, 2-2-1974; Ord. No. 5081, § 1(part), 2004.

State law reference—Occupational Safety and Health Act of 1972, T.C.A. § 50-3-101 et seq.

shall apply to all employees of each administrative department, commission, board, division, or other agency whether part-time or full-time, seasonal or permanent.
(Ord. No. 5765, § 1, 1-5-21)

Sec. 3-16-4. Standards authorized.

The occupational safety and health standards adopted by the City of Memphis are the same as, but not limited to, the State of Tennessee Occupational Safety and Health Standards promulgated, or which may be promulgated, in accordance with Section 6 of the Tennessee Occupational Safety and Health Act of 1972 (T.C.A. Title 50, Chapter 3).
(Ord. No. 5765, § 1, 1-5-21)

Sec. 3-16-5. Variances from standards authorized.

Upon written application to the Commissioner of Labor and Workforce Development of the State of Tennessee, the city may request an order granting a temporary variance from any approved standards. Applications for variances shall be in accordance with Rules of Tennessee Department of Labor and Workforce Development Occupational Safety and Health, Variances from Occupational Safety and Health Standards, Chapter 0800-01-02, as authorized by T.C.A., Title 50. Prior to requesting such temporary variance, the city will notify or serve notice to its employees, their designated representatives, or interested parties and present them with an opportunity for a hearing. The posting of notice on bulletin boards accessible to employees shall be deemed sufficient notice to employees.
(Ord. No. 5765, § 1, 1-5-21)

Sec. 3-16-6. Administration.

For the purposes of this ordinance, the division of human resources shall designate a safety manager of occupational safety and health to perform duties and to exercise powers assigned to plan, develop, and administer this program plan. The safety manager shall develop a plan of operation for the program plan in accordance with Rules of Tennessee Department of Labor and Workforce Development Occupational Safety and Health, Safety and Health Provisions for the Public Sector, Chapter 0800-01-05, as authorized by T.C.A., Title 50.
(Ord. No. 5765, § 1, 1-5-21)

Title 4

PENSION AND RETIREMENT SYSTEM*

Chapters:

4-4.	Definitions and General Provisions
4-8.	Board of Administration
4-12.	Trust Fund
4-16.	Payment of Benefits
4-20.	Limitation on Benefits
4-24.	1948 Benefit Plan
4-28.	1978 Benefit Plan
4-32.	Retirement System for Library Employees
4-34.	2016 Cash Balance Plan/Defined Contribution Plan

***Charter reference—**Authority to establish retirement or pension system, §§ 53—53.4. See also §§ 73—80, 87—94.

CHAPTER 4-4. DEFINITIONS AND GENERAL PROVISIONS

Sections:

Sec. 4-4-1. References, construction and definitions.
Sec. 4-4-2. Estimated data.
Sec. 4-4-3. Deduction of insurance and other premiums.
Sec. 4-4-4. Diversion.
Sec. 4-4-5. No employment contract.
Sec. 4-4-6. Amendments.

Sec. 4-4-1. References, construction and definitions.

A. Unless otherwise indicated, all references made in this title are to chapters, sections and subsections of this title. The provisions of this title shall be construed in accordance with the city Charter, and laws of the State of Tennessee to the extent that such laws are not preempted by federal laws. In the construction of this title, the headings and subheadings are to be ignored, the masculine shall include the feminine, the feminine the masculine, the singular the plural and the plural the singular wherever appropriate. The following terms (in alphabetical order), unless a different meaning is plainly required by context, shall have the meanings set forth opposite such terms for purposes of this title:

1. *Accrued benefit* means:

   a. i. As of any date, for each participant hired prior to July 1, 2012, a monthly benefit amount payable semi-monthly in the form of a single life annuity, equal to two and one-fourth percent of his or her average monthly compensation multiplied by the number of years of service completed before January 1, 1990, plus two and one-half percent of his or her average monthly compensation multiplied by the number of years of service completed after January 1, 1990; provided, however, that when a participant's years of service equals 25 years, such participant shall accrue an additional one percent of his or her average monthly compensation for each year of service in excess of 25 years for a maximum of ten years; provided, however, if after 35 years of service the total percentage of his or her average monthly compensation is less than 72.5 percent, such participant shall accrue an additional one percent of his or her average monthly compensation for each year of service in excess of 35 years earned after January 1, 1990, until such total percentage shall equal 72.5 percent; or

   ii. As of any date, for each participant that is hired on or after July 1, 2012, a monthly benefit amount payable semi-monthly in the form of a single life annuity, equal to two and one-fourth percent of his or her average monthly compensation multiplied by the number of years of service completed after July 1, 2012; provided, however, that when such participant's years of service equals 25 years, such participant shall accrue an additional one percent of his or her average monthly compensation for each year of service in excess of 25 years for a maximum of ten years; provided, however, if after 35 years of service the total percentage of his or her average monthly compensation is less than 72.5 percent, such participant shall accrue an additional one percent of his or her average monthly compensation for each year of service in excess of 35 years earned;

   b. For each participant, not a police officer or firefighter (for whom the multiplier is one percent regardless of service), who retires or terminates his or her employment on or after January 1, 1990, and who elects in writing to receive a lump sum payment, an amount equal to the total amount of his or her contributions as of the date of his or her retirement or termination multiplied by the return multiple determined under the following table:

Years of Service	*Return Multiple*
Less than 5	1.0
5	1.5
6	1.7
7	1.9
8	2.1
9	2.3
10	2.5
11	2.6
12	2.7
13	2.8
14	2.9
15	3.0
16	*
17	*
18	*
19	*
20 or more	*

*The multiple for years 16 through 20 will be set prior to third reading after a review of actuarial information from the administration.

Provided, however, that if the participant is eligible for a monthly benefit under chapters 4-24 and 4-28 of this title, such election shall be obtained with the written consent of the participant's spouse and approved by the board; and

c. Provided, further, that the accrued benefit of any participant shall not be less than his or her minimum accrued benefit, and for any participant who is an involuntary transfer county employee, shall be determined in accordance with section 4-24-3.C.2 or 4-28-3.C.2, as applicable.

As of any date, the accrued benefit payable semi-monthly in the form of a single life annuity shall be calculated without regard to any decrease in average monthly compensation resulting from a general salary reduction implemented by the administration or approved by the council within any budget ordinance effective after June 30, 2010. If the product of the average monthly compensation and the percent multiplier based on years of service is as of any date less than an amount calculated as of an earlier date (based on average monthly compensation, the percent multiplier and years of service as of that earlier date), the accrued benefit will be no less than the amount calculated as of that earlier date.

2. *Actuarial equivalent* means equality in value of the aggregate amounts expected to be received under different forms of payment based upon interest at six percent per annum compounded annually and the 1971 Group Annuity Mortality Table.

3. *Annuity commencement date* means the first day of the first period with respect to which an amount is received as a benefit pursuant to this title.

4. *Average monthly compensation* means:

a. *1948 plan:*

i. For each participant, the average monthly compensation, (excluding and disregarding any hiatus in the participant's employment by the city) for his or her five consecutive years of service for which such compensation was the highest. If his or her average monthly compensation for the 12 months next preceding the date of his or her retirement exceeds the average of his or her highest five consecutive years' compensation, then his or her average monthly compensation shall be based upon the 12-month period next preceding the date of his or her retirement, and in the case of death or disability incurred by a participant in the performance of duties before he or she has five consecutive years of service, his or her average monthly compensation shall be the average monthly rate of compensation during all his or her years of service.

ii. While in the armed services and receiving years of service credit as provided under subsection (44)(g) of this section, a participant's compensation for purposes of this subsection shall be deemed to be his or her rate of base compensation as a

city employee in effect at the time he or she entered the armed services.

iii. For any police officer or firefighter credited with 30 or more years of service, and eligible for automatic promotion to captain or comparable rank in the police or fire divisions of the city under Charter section 67, his or her average monthly compensation shall be the current monthly base compensation of a captain or comparable rank in the police or fire divisions of the city as of the date of his or her retirement, plus any shift premium pay, hazardous premium pay, holiday pay, longevity pay and incentive pay, excluding overtime pay, earned during the immediately preceding 12 months.

b. *1978 plan:*

i. For each participant hired prior to July 1, 2012, the average monthly compensation, (excluding and disregarding any hiatus in the participant's employment by the city) for his or her five consecutive years of service for which such compensation was the highest. If his or her average monthly compensation for the 12 months next preceding the date of his or her retirement exceeds the average of his or her highest five consecutive years' compensation, then his or her average monthly compensation shall be based upon the 12-month period next preceding the date of his or her retirement, and in the case of death or disability incurred by a participant in the performance of duties before he or she has five consecutive years of service, his or her average monthly compensation shall be the average monthly rate of compensation during all his or her years of service.

ii. For each participant that is hired on or after July 1, 2012, the average monthly compensation, (excluding and disregarding any hiatus in the participant's employment by the city) for his or her three consecutive years of service for which such compensation was the highest. In addition, in the case of death or disability incurred by a participant in the performance of duties before he or she has five consecutive years of service, his or her average monthly compensation shall be the average monthly rate of compensation during all his or her years of service.

iii. For any police officer or firefighter hired before February 1, 1978, credited with 30 or more years of service, and eligible for automatic promotion to captain or comparable rank in the police or fire divisions of the city under Charter section 67, his or her average monthly compensation shall be the average monthly base compensation of a captain or comparable rank in the police or fire divisions of the city for the immediately preceding three years to be calculated as follows: the current monthly compensation of a captain or comparable rank as of the date of his or her retirement, plus the monthly compensation of a captain or comparable rank as of the date one year prior to the date of his or her retirement, plus the monthly compensation of a captain or comparable rank as of the date two years prior to the date of his or her retirement, plus any shift premium pay, hazardous pay, longevity pay, and incentive pay, excluding overtime pay or any double time compensation for holidays, earned during the immediately preceding three years, the sum of which is divided by three.

5. *Board* means the board of administration appointed by the council, upon recommendation of the mayor, in accordance with section 4-8-1 to administer the provisions of this title.

6. *Child.*

a. The term "child," as of any date, means the legitimate, legally adopted, or legally recognized son or daughter of a participant who:

i. Has not reached age 18 and has a legal guardian;

ii. Is disabled as defined in subsection b of this definition; or

iii. For purposes of insurance coverage and annuity, satisfies each of the following conditions:

(A) Has reached age 18, but not age 25.

(B) Is unmarried.

(C) Is not employed on a full-time basis.

(D) Is in full-time attendance as a student at an educational institution.

A student is considered full time if enrolled in a non-correspondence course and carrying a subject load that is considered full time for day students under the institution's standards and practices. In case of high schools and vocational schools, including technical, trade, business and similar schools, a student is considered to be in full-time attendance if the school considers him or her a full-time student under its standards and practices.

Certification by the educational institution of full-time attendance is required to satisfy the definition under this subsection 6.a.iii. For purposes of this definition, the term "educational institution" means all public schools, colleges and universities, all accredited private schools, colleges and universities, and any non-accredited school, college or university if its credits are acceptable in an institution that is state approved and/or accredited by one of the six regional accrediting organizations recognized by the U.S. Department of Education.

b. The term "disabled child" means any child who has reached age 18, is unmarried and is severely disabled, but who is not in the custodial care of a governmental institution. A child shall be considered severely disabled if he or she is unable to engage in any substantial, gainful activity by reason of any medically determinable physical or mental impairment where such impairment results from anatomical, physiological or psychological abnormalities which are demonstrable by medically acceptable clinical and laboratory diagnostic techniques presented in an acceptable and satisfactory manner to the board, both for initial determination and ongoing confirmation of status as a disabled child.

7. *City* means the City of Memphis, Tennessee.

8. *City contributions* means the contributions to the plan made by the city pursuant to section 4-24-7 or 4-28-7.

9. *City transfer service,* for each involuntary transfer city employee, means creditable years of service to the date of transfer from the city, determined in accordance with the terms of this title, immediately prior to the date of transfer; provided, however, that, in computing such service, no credit shall be given for period of time for which the participant has received a refund of employee contributions under section 4-24-14 or 4-28-14, or for other periods of time not counted as years of service under the terms of this title.

10. *Code* means the Internal Revenue Code of 1986, as amended.

11. *Compensation.*

a. *1948 Plan.* For each participant, for each plan year, "compensation" means the amount of pay, not in excess of $200,000.00

(as such amount may be adjusted for inflation from time to time by the Secretary of the Treasury under code sections 401(a)(17) and 415(d) received by him or her for services rendered to the city, including shift premium pay, hazardous premium pay, holiday pay, longevity pay and incentive pay, but shall not include overtime pay.

b. *1978 Plan.* For each participant, for each plan year, "compensation" means the amount of pay, not in excess of $200,000.00 (as such amount may be adjusted for inflation from time to time by the Secretary of the Treasury under code sections 401(a)(17) and 415(d)), received by him or her for services rendered to the city, including shift premium pay, hazardous pay, longevity pay and incentive pay, but excluding overtime pay or any double-time compensation for holidays.

c. *2016 Plan:* For each participant, for each plan year, the amount of pay, not in excess of $200,000.00.00 (as such amount may be adjusted for inflation from time to time by the Secretary of the Treasury under code sections 401(a)(17) and 415(d)), received by such participant for services rendered to the city, including shift premium pay, hazardous pay, longevity pay and incentive pay, but excluding overtime pay or any double-time compensation for holidays.

d. For years beginning after December 31, 2008, (i) an individual receiving a differential wage payment, as defined by code section 3401(h)(2), from the city shall be treated as an employee of the city, (ii) the differential wage payment shall be treated as compensation, and (iii) the pension system shall not be treated as failing to meet the requirements of any provision described in code section 414(u)(1)(C) by reason of any contribution or benefit which is based on the differential wage payment.

(e) *Back pay.* For purposes of determining average monthly compensation under section 4-4-1(1), and section 4-4-1(4) pay awarded by an administrative agency or court or pursuant to a bona fide agreement by the city to compensate a participant for lost wages shall be credited as pay to each individual year to which the award or agreement for back pay pertains, rather than to the year in which the award, agreement or payment is made.

(f). *Overtime pay.* For purposes of determining average monthly compensation under section 4-4-1(1) and section 4-4-1(4) "overtime pay" constitutes pay in excess of 40 hours a week regardless of the rate for which such hours are paid.

12. *Comptroller* means the comptroller of the city.

13. *Council* means the duly elected city council of the city.

14. *County* means Shelby County, Tennessee.

15. *County transfer service,* for any involuntary transfer county employee, means credited service to the date of transfer from the county, determined in accordance with the terms of this title as applicable to such participant and as such plan was constituted immediately prior to the date of transfer; provided, however, that, in computing such service, no credit shall be given for periods of time for which the participant has received a refund of contributions, or for other periods of time not counted as credited service in accordance with the terms of this title.

16. *Early retirement eligibility date* means the date upon which a 1978 plan participant has:

    a. Completed 25 or more years of service; and

    b. Attained either age 55 or, if he or she is a police officer or firefighter hired on or after July 1, 1978, age 50.

17. *Employee* means, except for any such employee who is eligible to make and has duly made the election provided in sections 4-28-1(E) and 4-28-1(F) hereof, any person hired on or before June 30, 2016, but who as of June 30, 2016 has seven and one-half or more years of service with the city and who was on June 30, 2016 a

participant in the city of Memphis Retirement System for General Employees, including police officers and firefighters, under City Ordinance Chapter 25, Articles I through VII, in the regular, full-time employ of the city to the extent that the city contributes to the salary of such employee in a job classification or title that the city administration shall designate as eligible for participation in the plan, including any person who is elected to his/her office by the people, but not including the light, gas and water division of the city, temporary employees as classified by the city, part-time employees, or any employee mandated by law to contribute to the federal Social Security system and not eligible to be a participant by his/her job classification.

The term "employee" shall also not include any person who is a leased employee within the meaning of Code Section 414(n). Leased employee means any person (other than an employee of the recipient) who pursuant to an agreement between the recipient and any other person ("leasing organization") has performed services for the recipient (or for the recipient and related persons determined in accordance with Code Section 414(n)(6)) on a substantially full-time basis for a period of at least one year, and such services are performed under primary direction or control by the recipient. Contributions or benefits provided to a leased employee by the leasing organization which are attributable to services performed for the recipient employer shall be treated as provided by the recipient employer. A leased employee shall not be considered an employee (unless otherwise specifically covered by the pension system) of the recipient if: (i) such employee is covered by a money purchase pension plan providing: (1) a nonintegrated employer contribution rate of at least ten percent of compensation, as defined in Code Section 415(c)(3), but including amounts contributed pursuant to a salary reduction agreement which are excludible from the employee's gross income under Code Section 125, Code Section 1320, Code Section 401(k), Code Section 402(h) or Code Section 403(b), (2) immediate participation, and (3) full and immediate vesting; and (ii) leased employees do not constitute more than 20 percent of the recipient's non-highly compensated workforce.

18. *Employee contributions* means the mandatory contributions, which shall be designated pursuant to code section 414(h) as contributions made by the city, made to the trust fund by each participant through payroll deduction pursuant to section 4-24-6 or 4-28-6, standing to the credit of his or her individual account.

19. *Employment creditable service date* means the date on which an employee is deemed to have first performed an hour of service as an employee, subject to adjustment to properly reflect the aggregate of all prior periods of service in accordance with subsection 44 of this section.

20. *ERISA* means the Employee Retirement Income Security Act of 1974, as amended.

21. *Firefighter* means an employee of the fire services division of the city, who has been commissioned by the director of such division.

22. *Handicapped child.* See *Child.*

23. *Hour of service* means each hour for which an employee is paid, or entitled to payment, for the performance of duties for the city. Hours of service credit shall be awarded subject to all the rules set forth in paragraphs (b) and (c) of the United States Department of Labor Regulations section 2530-20b-2, which are incorporated herein by this reference.

24. *Involuntary transfer city employee* means an individual who was last a participant in this plan prior to becoming an employee of the county and who became an employee of the county as a direct result of one or any combination of the following events:

    a. The legal consolidation of any agency, board, commission or other entity, regardless of its name, which was being administered by the city in whole or in part prior to such administration being assumed by the county;

    b. The cessation of operation or function by any agency, board, commission or other entity, regardless of its name, which was being administered by the city in whole or in part prior to such cessation;

c. The election or legal appointment of an employee to a position with the county including an employee who had previously terminated employment with the city but who is entitled to a benefit under the terms of this title; or

d. The employment of an employee by the county for the convenience of the county government.

25. *Involuntary transfer county employee* means an individual who was last a participant in Plan A of the county retirement system prior to becoming an employee of the city, and who has become an employee as a direct result of one, or any combination, of the following events:

a. The legal consolidation of any agency, board, commission or other entity, regardless of its name, which was being administered by the county in whole or in part prior to such administration being assumed by the city;

b. The cessation of operation or function by any agency, board, commission or other entity, regardless of its name, which was being administered by the county in whole or in part prior to such cessation;

c. The election or legal appointment of an employee to a position with the city, including an employee who has previously terminated employment with the county but who is entitled to a vested benefit from the county retirement system; or

d. The employment of a county employee by the city for the convenience of the city government.

26. *Leave of absence* means any layoff imposed or approved leave of absence granted to an employee by the city in accordance with the city's personnel policy, whether for illness, military service, or any other reason.

27. *Line-of-duty disability* means a physical or mental condition arising as the direct and proximate result of an accident sustained by a participant, after he or she became a participant and while in the actual performance of duties for the city at some definite time and place without willful negligence on his or her part which totally and permanently prevents him or her from engaging in the duties for which he or she was employed by the city. The determination of the line-of-duty disability of a participant shall be made on medical evidence by at least two qualified physicians, one of whom may be the physician who makes disability determinations as to such participant for purposes of worker's compensation claims.

28. *Minimum accrued benefit,* as of any date, except for benefits paid under section 4-24-12(B), 4-24-13, 4-24-17, 4-28-12(B), 4-28-13 or 4-28-17, for each participant, means a monthly benefit amount, payable semi-monthly in the form of a single life annuity, equal to:

a. For benefits paid to any participant under sections 4-24-12(A), 4-24-16, 4-28-12(A) and 4-28-16, or otherwise to a participant retiring with 25 or more years of service, the sum of $525.00 plus the product of $21.00 multiplied by the lesser of ten and the number of his or her years of service in excess of 25;

b. For benefits paid to a participant retiring on or after reaching age 65 with 15 or more years of service, the sum of $500.00 plus the product of $1.00 multiplied by the lesser of 25 and the number of his or her years of service; and

c. For benefits paid to participants retiring with less than 25 years of service and before reaching age 65, the greater of $262.50 and the product of $21.00 multiplied by the number of his or her years of service.

29. *Normal retirement age* means the later of the date the 1978 plan participant attains age 65, or the date he or she completes five years as a participant. A participant shall be 100 percent vested in his or her accrued benefit upon attaining his or her normal retirement age while an active employee. This section does not apply to police officers or firefighters.

30. *Normal retirement date.*

a. *1948 Plan.* "Normal retirement date" means:

i. General employees: the first day of the month coincident with or next

following the earlier date on which a 1948 plan participant, other than a police officer or firefighter:

(A) Completes 25 years of service; or

(B) Attains age 60 and completes ten years of service.

ii. Police officers and firefighters: the first day of the month coincident with or next following the date on which a 1948 plan participant who is either a police officer or firefighter:

(A) Completes 25 years of service; or

(B) Attains age 55 and completes ten years of service.

b. *1978 Plan.* "Normal retirement date" for each participant hired prior to July 1, 2012 means:

i. General employees: the first day of the month coincident with or next following the earliest date on which a 1978 plan participant, other than a police officer or firefighter:

(A) Attains age 60 and completes ten years of service; or

(B) Attains age 65 and completes five years of service; or

(C) Attains 25 years of service.

ii. Police officers and firefighters: the first day of the month coincident with or next following the earlier date on which a 1978 plan participant who is either a police officer or firefighter:

(A) Completes 25 years of service; or

(B) Attains age 55 and completes ten years of service.

iii. Notwithstanding the foregoing, this subsection (b) shall not apply to elected or appointed employees governed by section 4-28-11.

c. *1978 Plan.* "Normal retirement date" for participants hired on or after July 1, 2012, means:

i. General employees: the first day of the month coincident with or next following earliest date on which the participant, other than a commissioned police officer or firefighter:

Attains:

(A) Age 65 and completes five years of service; or

(B) Twenty-five years of service and submits a written election designating the date he or she will retire not less than 30 days before such designated date. Said participant shall be entitled to receive a retirement benefit equal to his or her accrued benefit reduced by five percent per year for each year that his or her early retirement date precedes the date the participant will attain age 62.

ii. Police officers and firefighters: the first day of the month coincident with or next following earliest date on which the participant:

Attains:

(A) Age 55 and ten years of service; or

(B) Twenty-five years of service and submits a written election designating the date he or she will retire not less than 30 days before such designated date. Said participant shall be entitled to receive a retirement benefit equal to his or her accrued benefit reduced by five percent per year for each year that his or her early retirement date precedes the date the participant will attain age 52.

iii. Notwithstanding the foregoing, this provision shall not apply to elected or appointed employees governed by section 4-28-11.

d. *2016 Plan.* "Normal retirement date" for participants of the 2016 Cash Balance Plan/Defined Contribution Plan means:

i. General employees: the first day of the month coincident with or next following earliest date on which the participant, other than a police officer or firefighter:

Attains:

(A) Age 65 and completes five years of service; or

(B) Twenty-five (25) years of service and submits a written election designating the date he or she will retire not less than 30 days before such designated date.

ii. Police officers and firefighters: the first day of the month coincident with or next following earliest date on which the participant:

Attains:

(A) Age 55 and ten years of service; or

(B) Twenty-five (25) years of service and submits a written election designating the date he or she will retire not less than 30 days before such designated date.

31. *Ordinary disability* means a physical or mental condition, other than a line-of-duty disability, arising after the participant commences employment with the city and is credited with five or more years of service which totally prevents him or her from engaging in the duties from which he or she was employed by the city; provided, however, no such disability shall be a result of the participant's chronic alcoholism, self-addiction to narcotics, participation in a felonious or otherwise criminal act or enterprise, or, except for anyone hired before September 15, 1976, service in the armed forces of the United States which entitles the participant to a federal veteran's disability pension. The determination of the ordinary disability of a participant shall be made on medical evidence by at least two qualified physicians, one of whom may be the physician who makes disability determinations as to such participant for purposes of worker's compensation claims.

32. *Participant* means an employee who has met the eligibility requirements for participation in the 1948 or 1978 plan as set forth in chapters 4-24 and 4-28.

33. *Part-time employee* means any individual employed by the city in a position requiring less than a 40-hour average workweek, and consuming less than 50 percent of the available work hours in a 12-month period; provided, however, such a position also includes any employment requiring more than 40 hours per week, if the result of one-week, two-week, three-week or four-week durations of a seasonal nature.

34. *Plan* means the City of Memphis Retirement System for General Employees, including police officers and firefighters, under this title, as amended from time to time, incorporating the following:

a. 1948 plan: that part of the plan benefiting employees participating under the provisions of sections 4-24-1 through 4-24-20; and

b. 1978 plan: that part of the plan benefiting employees participating under the provisions of sections 4-28-1 through 4-28-21.

35. *Plan year* means any 12 consecutive month period beginning each July 1, and ending on the following June 30.

36. *Police officer* means an employee of the police services division of the City of Memphis/Shelby County Airport Authority commissioned by the State of Tennessee as a law enforcement officer, whose primary responsibility is the prevention and detection of crime.

37. *Qualified physician,* for purposes of administering this title, means a physician: (i) who is duly licensed to practice medicine by the State of Tennessee, the State of Mississippi, or the State of Arkansas, (ii) who conducts an active practice

of medicine within any of the following areas: the State of Tennessee; the Memphis-Forrest City, TN-MS-AR CSA (2012 Combined Statistical Area); the Jackson-Vicksburg-Brookhaven, Mississippi CSA (2012 Combined Statistical Area); or the Little Rock-North Little Rock, Arkansas CSA (2012 Combined Statistical Area), and (iii) who is designated and reasonably compensated in the sole discretion of the board to make a medical determination of line-of-duty or ordinary disability or other physical or mental condition; provided, such physician shall not be an interested party to the outcome of such determination, shall not be a participant, and shall not have served the city or county in any elected, appointed or salaried position within five years of the date he or she is asked to make any such medical determination.

38. *Reemployment commencement date* means the date on which any participant first performs an hour of service for the city after a severance date.

39. *Severance date* means, for each participant, the earlier to occur of:

    a. The date he or she terminates his or her employment as an employee because of quitting, being fired, death or retirement; or

    b. The earlier of the date two years from the beginning of a leave of absence period or the date at the end of such period, as of which he or she fails to return to active employment as an employee.

40. *Single life annuity* means an annual income payable semi-monthly beginning with his or her annuity commencement date and ending with the date of the last semi-monthly payment immediately preceding the participant's date of death.

41. *Spouse* means a lawful spouse of a participant, active or retired, as determined by a legally recognized certificate of marriage. Common-law marriage shall not be recognized as valid regardless of the fact that such marriage may be considered lawful in a state or jurisdiction where the couple lives or formerly lived.

42. *Total contributions* means the sum total of all city contributions and employee contributions made to the trust fund under the terms of this title by or on behalf of a participant.

43. *Transferred participant* means each participant who is actively employed as of June 30, 2016 but who as of June 30, 2016 has less than seven and one-half years of service with the city and who was on June 30, 2016 a participant in the City of Memphis Retirement System for General Employees, including police officers and firefighters, under title 4 of this Code.

44. *Trust fund* means the fund established under chapter 4-12, to hold and invest contributions made under this plan and from which plan benefits will be distributed.

45. *Year of service* means each year for which a participant is given credit in calculating benefits payable from the plan pursuant to chapters 4-24 and 4-28.

    a. *General rule.* A participant shall be credited with one year of service for each 12-month period during the aggregate of all time periods beginning on his or her employment creditable service date or reemployment commencement date and ending on his or her next following severance date; except that no credit shall be given for any period while an employee is on a leave of absence, in excess of 30 days and no credit shall be given to any part-time employee for any period after he or she has received two years of benefits under this title or while he or she is receiving benefits under the Federal Social Security System or any other retirement benefit source. Fractional periods of a year shall be expressed in terms of months and days.

    b. *Past service upon reemployment.* Subject to subsection (44)(c) of this section, if a participant terminates employment with the city and is reemployed by the city, but has not received any withdrawal, refund or other distribution of benefits under the terms of this title before his or her reemployment commencement date, he or she shall re-enter this plan immediately

as of such date and receive full credit for all years of service to his or her credit before his or her immediately preceding severance date.

c. *Service attributable to lump sum.* If a participant who is a transferred participant terminated employment at any time prior to July 1, 2016 and received a lump sum withdrawal or refund of employee contributions pursuant to section 4-24-15 or 4-28-15, such transferred participant's years of service prior to such termination shall be disregarded; provided if such transferred participant is subsequently reemployed by the city on or prior to June 30, 2016, he may repay into the trust fund within no later than the ninetieth day following the effective date of his reemployment a single lump sum amount equal to the withdrawal or refunded amount with compounded interest from the date of withdrawal or refund to the date of repayment, at the rate established by the board, whereupon such disregarded years of service shall be restored and notwithstanding anything in section 4-4-1(43) or 4-28-1(A) to the contrary such participant shall no longer be a transferred participant but shall be restored as a participant in the City of Memphis Retirement System for General Employees, including police officers and firefighters, under title 4.

d. *Service attributable to lump sum under 1948 Plan.* If a participant terminates employment and receives a distribution of his or her contributions under the 1948 plan, is subsequently reemployed by the city and is not excluded from participation in the 1978 plan under section 4-28-1, such participant's years of service under the 1948 plan prior to such termination shall be credited to such participant as years of service under the 1978 plan, if such terminated participant pays into the trust fund a single lump sum amount equal to the distributed amount received under the 1948 plan, with compounded interest, from the date of distribution to the date of repayment, at the rate established by the board.

e. *Annexation service.* Any person in the employ of a utility district or municipal corporation in the county which includes within its territorial boundaries any area annexed to the city on or after July 1, 1978, and who becomes an employee as a result of such annexation, shall be credited with years of service for his or her period of employment with such other utility district or municipal corporation beginning on or after July 1, 1978, and ending with the date of annexation; provided, that within two years of his or her employment creditable service date, the participant pays an amount equal to his or her total contributions payable for such participant for such service period, with compounded interest at the rate established by the board, into the trust fund. Otherwise, his or her years of service shall be credited from his or her employment creditable service date under subsection (44)(a) of this section.

f. *Past service for transferred participants.* Participants transferred into this plan in accordance with the provisions of section 4-24-3 or 4-28-3 shall be credited with years of service as provided in this subdivision.

i. *Memphis light, gas and water division.*

(A) *Immediate transfer of assets.* A participant who was transferred from the Memphis light, gas and water division retirement system under section 4-24-3 or 4-28-3, shall be credited with years of service for his or her creditable service under such other system upon the transfer by and from the Memphis light, gas and water division retirement system to the trust fund an amount equal to the total employee contributions made

by or on behalf of such transferred participant then in the hands of the transferror retirement system; provided, however, if the transferred participant was eligible for a normal retirement under the Memphis light, gas and water division retirement system on the date of his or her transfer, there shall be no transfer of his or her total contributions and no transfer of creditable service, and upon his or her actual retirement, he or she shall receive the normal retirement benefit to which he or she would have been entitled under the transferror retirement system had he or she retired on his or her date of transfer, and this plan shall pay the balance of any retirement benefits to which the participant is entitled under the terms of this title, on his or her actual retirement date without any credit for past service.

(B) *Deferred transfer of assets.* Any participant with two or more years of service from his or her employment creditable service date, who was a former member of the Memphis light, gas and water division retirement system, but failed to have his or her total contributions under such system transferred to this plan under subsection (44)(f)(i)(A) of this section, when he or she first became a participant, shall receive full years of service credit for all creditable service he or she had as a member of the Memphis light, gas and water division retirement system at the time of termination of his or her membership, if, after the board's approval of his or her written application for such credit, he or she pays into the trust fund a single lump sum amount equal to the sum of the total employee contributions made by him or her or on his or her behalf under the Memphis light, gas and water division retirement system, with compounded interest, from his or her employment creditable service date to the date of payment, at the interest rate established by the board. Payment of such lump sum shall constitute full compliance with the provisions of this title.

(C) *Tennessee Valley Authority transfers.* For purposes of the 1948 plan, a participant who was transferred to the city from the Tennessee Valley Authority and who was formerly a participant of the Memphis light, gas and water division retirement system shall be credited with his or her service under the Memphis light, gas and water division retirement system as provided in subsection (44)(f)(i)(a) and (b) of this section, if upon application to the board and within one year of the approval of such application, he or she transferred to the trust fund as provided in subsection (44)(f)(i)(a) and (b) of this section, the amount of his or her employee contributions transferred from the Memphis light, gas and water division retirement system to the Tennessee Valley Authority.

ii. *Public library and information center.* Any participant transferring from the Memphis and Shelby

County Public Library and Information Center Retirement System under section 4-24-3 or 4-28-3, shall receive years of service credit for all service under such library system on and after April 1, 1975. If a participant pays a single lump sum amount equal to seven percent of all compensation received by him or her from the Memphis and Shelby County Public Library and Information Center before August 1, 1975, he or she also shall receive years of service credit for all service under such library system before April 1, 1975. If there is a lapse of time between his or her termination from the Memphis and Shelby County Public Library and Information Center and his or her employment creditable service date or if he or she should become an employee and participant at a later date and is credited with two years of service after his or her employment creditable service date, such participant shall receive full years of service credit for all creditable service he or she had as a member of such library retirement system at the time of termination of his or her membership, if, after the board's approval of his or her written application for such credit, he or she pays into the trust fund a single lump sum amount equal to the sum of the amounts due to the plan under section 4-24-3 or 4-28-3, and under this section for service before April 1, 1975, with compounded interest, from his or her employment creditable service date to the date of payment, at the interest rate established by the board. Otherwise, his or her years of service shall be credited from his or her employment creditable service date under subsection (44)(a) of this section. Payment of such lump sum shall constitute full compliance with the provisions of this plan. If such participant was eligible for normal retirement upon his or her termination from the Memphis and Shelby County Public Library and Information Center Retirement System, he or she shall not be eligible for and shall not receive any years of service credit under this subdivision (f)(ii).

iii. *Involuntary transfer from the county.* Each involuntary transfer county employee shall present to the board a certificate stating the amount of his or her county transfer service. The board shall have the authority to review and accept such county transfer service certificate and shall approve crediting of such county transfer service as years of service, provided such service has been calculated in accordance with plan A or plan B of the county retirement system, all conditions regarding the transfer of the participant as specified in this plan are fulfilled, and the person transferred reports for employment with the city on the date required by an authorized designee of the city. County transfer service shall be added to the participant's years of service for purposes of determining the participant's eligibility for a retirement allowance, and the amount of such retirement allowance, if any, in accordance with sections 4-24-10 through 4-24-13, 4-24-16, 4-24-17, 4-28-10 through 4-28-13, 4-28-16, 4-28-17, except for sections 4-24-12(A) and 4-28-12(A).

g. *Military service.* For purposes of the 1948 plan, any participant shall be given years of service credit for his or her military service or naval service in the Korean War, provided he or she was a full-time, permanent employee of the city at the time he or she left the employ of the city for the purpose of entering the armed forces of the United States and, further provided, that he or she resumed

service as an employee within six months of his or her discharge from military service. Any participant of the 1948 plan who is inducted into the armed services of the United States shall receive credit for the time spent in such service for the purpose of computing his or her retirement so long as:

i. He or she left the employ of the city for the purpose of entering the armed forces of the United States;

ii. He or she satisfactorily completes his or her military service or naval service;

iii. The period of his or her military service or naval service does not exceed four years from the date of the induction or five years when the time in excess of four years is for the convenience of the armed forces; and

iv. He or she applies for reemployment with the city within 90 days of his or her discharge from the armed forces.

h. *Uniformed service*. To the extent required under the Uniformed Services Employment and reemployment Rights Act of 1994, as amended from time to time, and subject to the mandates and conditions under such Act for the granting of service, including without limitation the payment of employee contributions as required under this pension and retirement system, a participant who leaves the employment of the city to enter the uniformed services and returns to employment with the city shall be credited with years of service in respect of such uniformed services.

(Code 1985, § 25-1; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4068, § 1, 8-20-1991; Ord. No. 4244, § 1, 3-22-1994; Ord. No. 4363, §§ 2, 3, 10-1-1995; Ord. No. 4837, § 1, 1-22-2001; Ord. No. 5076, § 1(part), 2004; Ord. No. 5303, § 1, 5-19-2009; Ord. No. 5420, § 1, 10-18-2011; Ord. No. 5416, § 1, 12-6-2011; Ord. No. 5573, § I(1)—(4), 12-16-2014; Ord. No. 5611, § 1, 4-5-2016; Ord. No. 5763, §§ 1(25-1(11), (17), (27)), (31), (37), 12-15-2020; Ord. No. 5873, § 1—3, 7-11-2023)

Editor's note—Ord. No. 5763, adopted Dec. 15, 2020, shall be effective on January 28, 2021.

Sec. 4-4-2. Estimated data.

If it is impracticable for the board to determine from the records of the city the years of service, compensation, or age of any participant, the board may estimate, for purposes of this plan, that participant's years of service, compensation or age.
(Code 1985, § 25-55; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-4-3. Deduction of insurance and other premiums.

Any participant in the city service who retires may, on request, continue his or her group life and hospitalization insurance by paying to the city the current premium on a monthly or biweekly basis which shall be adjusted periodically upon notice to the participant.
(Code 1985, § 25-56; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4021, § 1, 3-19-1991; Ord. No. 4047, § 1, 6-25-1991; Ord. No. 4069, § 1, 8-20-1991; Ord. No. 4265, § 1, 7-19-1994; Ord. No. 5303, § 2, 5-19-2009)

Sec. 4-4-4. Diversion.

The city shall not be entitled to any part of the corpus or income of the trust fund and no part of the trust fund shall be used for or diverted to purposes other than the exclusive benefit of participants, spouses and children, except as provided in section 4-24-9 or 4-28-9.
(Code 1985, § 25-57; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-4-5. No employment contract.

This title shall not be deemed to constitute a contract between the city and any employee or participant or to be a consideration for an inducement for the employment of any employee or participant. Nothing contained in this title shall be deemed to give any employee or participant the right to be retained in the service of the city or to interfere with the right of the city to discharge any employee or participant at any time regardless of the effect which such discharge shall have upon him or her as a participant of this plan. The provisions of this title shall not be deemed to give the city the right to require

any employee or participant to remain in the employ of the city or to restrict any such person's right to terminate his or her employment at any time.
(Code 1985, § 25-58; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-4-6. Amendments.

The city reserves the right, at any time and from time to time, to modify or amend, in whole or in part, any or all of the provisions of this title, without the consent of any participant, spouse, child, or any other person or persons claiming through them, by action of the council, including specifically the right to modify the title into a supplementary retirement plan, if the Federal Social Security System is amended to require Social Security coverage of participants, and to make any such modifications or amendments effective retroactively, if necessary; provided, that no such notification or amendment shall reduce the nonforfeitable interest of any participant or make it possible for any part of the assets of this retirement system to be used for or diverted to purposes other than the exclusive benefit of participants and their spouses and children under this title, prior to the satisfaction of all liabilities with respect to such participants, spouses and children, except as indicated in section 4-24-9 or 4-28-9.
(Code 1985, § 25-59; Ord. No. 3907, § 1, 12-5-1989)

CHAPTER 4-8. BOARD OF ADMINISTRATION

Sections:

Sec. 4-8-1. Created; composition; election and terms of members.
Sec. 4-8-2. Member's bond.
Sec. 4-8-3. Compensation of members.
Sec. 4-8-4. Chairperson and treasurer.
Sec. 4-8-5. Meetings.
Sec. 4-8-6. Quorum.
Sec. 4-8-7. Administration, management and control of system.
Sec. 4-8-8. Rules and regulations.
Sec. 4-8-9. Appointment of secretary.
Sec. 4-8-10. Employment of actuary and other employees.
Sec. 4-8-11. Medical service and advice.
Sec. 4-8-12. Actuarial investigations and valuations.
Sec. 4-8-13. Records and accounts.
Sec. 4-8-14. Annual report and audit.
Sec. 4-8-15. Periodic evaluation of pension rolls.
Sec. 4-8-16. Nondiscrimination.
Sec. 4-8-17. Liquidity and investments.
Sec. 4-8-18. City to supply information.

Sec. 4-8-1. Created; composition; election and terms of members.

There is created and established a board of administration which, under the provisions of this title and the direction of the mayor, shall administer the plan and the trust fund created by this title. The board shall consist of the mayor or the mayor's designee, the officer in charge of the division of personnel or that officer's designee, the comptroller, four employees of the city with at least ten years of service, one employee of the city who is a participant in the 2016 plan with at least four years of service, a citizen member of the city, a retiree of the plan, and a member of the city council. The member of city council shall be an ex officio member without a vote. The officer in charge of the division of personnel or that officer's designee shall be an ex officio member without a vote. The employee, citizen and retiree members of the board shall be appointed on the first Tuesday in December in odd-numbered years by the council on the recommendation of the mayor, for two year appointments which shall begin on the January 1 next following the appointments. The council member of the board shall be the chair of the city council or the chair's designee, who will be appointed each December, to serve for one year beginning on January 1 next following the appointments. Each of the employee, citizen, retiree member, and city council member of the board shall serve until his or her successor is duly appointed. Vacancies during the term of any employee, citizen, retiree and/or city council member shall be filled by appointment in the same manner as provided for the original appointment except that such appointment shall be made as soon as reasonably feasible after such vacancy occurs (regardless of the year or when in the year such vacancy occurs). The term of such member shall begin effective immediately upon such appointment, and such member so appointed shall serve for the unexpired term of the original member or until a successor to such member is duly appointed. Until a vacancy is filled as provided herein the action of a quorum of the members as provided in section 4-25-7 shall be and constitute a valid and binding action of the board notwithstanding that a position is vacant.
(Ord. No. 5873, § 4, 7-11-2023)

Editor's note—Ord. No. 5873, § 4, adopted July 11, 2023, repealed the former § 4-8-1, and enacted a new § 4-8-1 as set out herein. The former § 4-8-1 pertained to similar subject matter and derived from the Code of 1985, § 25-2; Ord. No. 3907, § 1, adopted December 5, 1989; Ord. No. 5168, § 1, adopted June 20, 2006; and Ord. No. 5763, § 1(25-2), adopted December 15, 2020.

Sec. 4-8-2. Member's bond.

Each member of the board shall execute a bond in favor of the city, for such amounts as shall be determined by the council.
(Code 1985, § 25-3; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-3. Compensation of members.

The members of the board shall serve without compensation, but they shall be reimbursed for necessary expenses incurred by them as members of the board.
(Code 1985, § 25-4; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-4. Chairperson and treasurer.

The mayor or the mayor's designee shall be ex officio chairperson and the comptroller ex officio treasurer of the board.
(Code 1985, § 25-5; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-5), 12-15-2020)

Sec. 4-8-5. Meetings.

The board shall meet not less than once a month and may meet at any time that the business of the plan shall require it, and the chairperson shall have the power to call a meeting at any time that it is necessary in order to carry out the business of the board.
(Code 1985, § 25-6; Ord. No. 3907, § 1, 12-5-1989)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 4-8-6. Quorum.

Four members of the board shall constitute a quorum to transact any business, but it shall require not less than four affirmative votes to carry out any matter before the board.
(Code 1985, § 25-7; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-7. Administration, management and control of system.

The board shall supervise the administration and enforcement of this title according to the terms and provisions of this title and shall have all powers necessary to accomplish these purposes, including, without limitation and in addition to any other powers described in this chapter the right, power, authority and duty:

A. To construe all terms, provisions, conditions and limitations of the plan (in all cases, the construction necessary for the plan to qualify under the applicable provisions of the Code shall control);

B. To determine all questions relating to eligibility;

C. To determine the amount, manner and time of payment of any plan benefits and to prescribe procedures to be followed by distributees in obtaining benefits;

D. To prepare, file and distribute, in such manner as the board determines to be appropriate, such information and material as may be required by law;

E. To make a determination as to the right of any person to a benefit under this title;

F. To keep all records relating to participants (including former participants) and such other records as are necessary for proper operation of the plan, making such records available to the city or any participant, spouse or child for examination during the business hours except that a participant, spouse or child shall examine only such records as pertain exclusively to the examining participant, spouse or child and the plan as currently in effect or hereafter amended;

G. To receive and review reports from the comptroller as to the financial condition of the trust fund, including its receipts and disbursements; and

H. To create subcommittees, task forces or study groups to make recommendations to the board concerning the administration and enforcement of this title.

(Code 1985, § 25-8; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-8. Rules and regulations.

The board may, subject to the approval of the council, establish such rules and regulations as it deems proper for the administration of the plan and the trust fund.
(Code 1985, § 25-9; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-9. Appointment of secretary.

The board shall appoint a secretary who may, but need not necessarily, be a member of the board.
(Code 1985, § 25-10; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-10. Employment of actuary and other employees.

The board may employ such counsel (who may be counsel for the city), actuaries, consultants, accountants, and other agents as it shall deem advisable and necessary to administer the plan. All costs and expenses of the board and the fees of legal counsel, actuaries, consultants, accountants, and other agents shall be paid by the city, or the city shall cause such costs and expenses to be paid by the comptroller out of the trust fund as provided in section 4-12-5.
(Code 1985, § 25-11; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-11. Medical service and advice.

The board shall secure such medical service and advice as may be necessary to carry out the purposes of sections 4-24-12 and 4-28-12, and shall pay for such medical services and advice such compensation as the board shall deem reasonable. In no case, however, shall there be employed or appointed a physician who is not a qualified physician.
(Code 1985, § 25-12; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-12. Actuarial investigations and valuations.

A. The board shall keep in convenient form such data as shall be necessary for the actuarial investigations and valuations of the trust fund created by this title. The board shall cause to be made actuarial valuations of the plan, the next of which shall be made as of July 1, 1989, and subsequent valuations not less frequently than once every two years thereafter. The board shall also cause to be made actuarial investigations into the mortality, service compensation, and other experience of the participants and their beneficiaries as defined in this title, not less frequently than once every six years, the next of which shall be made as of June 30, 1990. Upon the basis of such investigations and valuations, and subject to the approval of the council, the board shall adopt for the plan such mortality, service and other bases as shall be necessary.

B. The board shall promptly transmit to the council a report covering each actuarial investigation and actuarial valuation as completed pursuant to this section.
(Code 1985, § 25-13; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-13. Records and accounts.

The board shall keep at all times correct detailed records and accounts of the trust fund and of all transactions and matters relating to the administration of the plan.
(Code 1985, § 25-14; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-14. Annual report and audit.

A. As soon as practicable after the close of each plan year, the board shall transmit to the council a full written report setting forth the financial condition of the trust fund and the operation of the plan for such year.

B. The board shall have made an annual audit of the trust fund for each plan year by a competent auditor selected by the board.
(Code 1985, § 25-15; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-15. Periodic evaluation of pension rolls.

The board shall direct the comptroller or shall cause the comptroller to be directed in writing to make benefit payments from the trust fund to participants, spouses or children who qualify for such payments under the plan. Such written order to the comptroller shall specify the name of each such recipient, his or her address, his or her Social Security number, and the amount and frequency of such payments.
(Code 1985, § 25-17; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-16. Nondiscrimination.

The board shall act and shall direct the comptroller to act or cause such action with respect to any plan benefits or any other matter under the powers of the board under this plan in a uniform and nondiscriminatory manner toward all participants and employees under substantially similar sets of facts and shall not permit discrimination in favor of any officers or highly compensated employees of the city.
(Code 1985, § 25-18; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-17. Liquidity and investments.

The board shall be responsible for establishing a policy to carry out the objectives of the trust fund and a method to determine the liquidity and investments needed under that policy, as provided in section 4-12-2.
(Code 1985, § 25-19; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-8-18. City to supply information.

The city shall supply full and timely information to the board relating to the compensation of all participants, their ages, their retirement, death or other cause for termination of employment, and such other pertinent facts as the board may require. The city also shall supply such information to the comptroller as necessary for the comptroller to carry out its duties. When making a determination in connection with the plan, the board shall be entitled to rely upon information furnished by the city, provided, the board shall resolve any factual dispute under this plan by giving weight to all information available to it.
(Code 1985, § 25-20; Ord. No. 3907, § 1, 12-5-1989)

CHAPTER 4-12. TRUST FUND

Sections:

Sec. 4-12-1. Trust fund established.
Sec. 4-12-2. Pension investment committee.
Sec. 4-12-3. Deposit of trust fund.
Sec. 4-12-4. Benefit payments from trust fund.
Sec. 4-12-5. Expenses.
Sec. 4-12-6. Trustee appointment and removal.

Sec. 4-12-1. Trust fund established.

A trust fund is established, effective October 1, 1948, to be known as the retirement fund of the city, which shall consist of all of the moneys paid into it in accordance with the provisions of this title, whether such moneys shall take the form of cash, securities or other assets. The trust fund is accepted by the comptroller, as trustee, in Shelby County, Tennessee, and shall be held, administered, controlled and disbursed by the comptroller. The comptroller shall have no responsibility whatsoever either for the control, management, administration or amendment of this trust fund or for the amount or payment of contributions to the trust fund, except to receive, hold and distribute the same, together with earnings thereon, in accordance with the provisions of this title.
(Code 1985, § 25-30; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-12-2. Pension investment committee.

There is hereby created and established a pension investment committee which, under the provisions of this chapter, shall implement approved policies and guidelines, review and recommend amendments to the statement of investment objectives, created by the pension board, in light of changing circumstances or conditions, and other responsibilities and functions as may be reasonably necessary or advisable to the fulfillment of its duties.

A. The committee shall consist of the finance director, the two deputy finance directors, the treasurer, the comptroller, the investment manager, the senior investment analyst, one citizen member, three business members of the community and a member of the city council. The citizen and business members of the committee shall be appointed on the first Tuesday in December in odd-numbered years by the pension board on the recommendation of pension board members, for a two-year appoint-

ment which shall begin on the January 1 next following the appointment. The council member of the committee shall be the chairman of the city council or the chairman's designee who shall be appointed each December, to serve for one year beginning on the January 1 next following the appointment and shall be an ex officio member without a vote.

B. The committee shall be authorized and empowered to report and make recommendations to the pension board to invest and reinvest the principal and income of the trust fund in any and all stocks (common or preferred), bonds, mutual funds, notes, debentures, mortgages, equipment, trust certificates and in other evidences of indebtedness or ownership and such other property, real or personal, investments and securities of any kind, class, character or location, as well as in units of any commingled, collective, common pooled or mutual trust fund, savings accounts, certificates of deposit and time deposits of a bank described pursuant to section 4-12-3; provided that the total sum invested in common stocks, convertible bonds or debentures shall not exceed 65 percent of the total trust fund; and further, provided, that all investments shall be of a quality grade, all commercial class "A" or comparable; and provided, further, that the total real estate investments shall not exceed five percent of the total trust fund portfolio; and shall be limited to commingled pools in corporate institutions showing an annual corporate real estate inventory of at least $5,000,000.00, with all such holdings of real estate or property to be of declared legal status in the United States; and

1. To keep in its discretion, such portion of the trust fund in cash or cash balances as the comptroller may from time to time deem to be in the best interest of the trust fund.

C. Specific functions of the investment committee include, but are not limited to, the following:

1. Periodic review of the statement of investment objectives to evaluate whether it adequately accommodates changes related to the pension fund, the pension plan, and the investment markets, all in a manner consistent with the requirements outlined in subsection (B) of this section and the long term investment objectives, financial needs, and circumstances of the pension plan;

2. Monitor and evaluate the performance of the pension fund assets as a whole and report to the pension board on such performance quarterly;

3. Select, monitor, evaluate and terminate investment advisers and investment products;

4. Selection or termination of consultants, counsel with oversight from the city attorney's office, custodians, and other professional advisers or agents whose services are necessary or advisable to assist in the investment of pension fund assets or the ability of the committee to carry out its duties;

5. Such other activities as may be reasonably related to the foregoing.

D. Regular meetings of the investment committee shall be held quarterly for the purpose of reviewing the performance measurement and other reports provided by the investment consultant in respect to each adviser and the pension fund as a whole, generally reviewing the statement of investment objectives, asset allocation strategy, and investment adviser strategies, meeting with investment advisers to the pension fund, and other relevant matters as may come to the attention of the committee or its advisers. The date, time, and place of such meetings shall be determined by the chairperson. At the option of the chairperson, one of the four quarterly meetings may be designated an annual meeting. The chairperson may also call additional meetings as needed.

E. Representatives of the investment committee and the investment consultant shall meet with the pension board periodically, as requested by the pension board, but not less than annually, to report on the status of the pension fund's investment activities, the committee's activities, and to make recommendations, as necessary and advisable to the pension board.

F. Representatives of the investment committee and the investment consultant shall make semi-annual reports to the personnel, intergovernmental and annexation committee along with recommendations on the city's investment policy.

G. Five members of the pension investment committee shall constitute a quorum to transact any business, but it shall not require less than five affirmative votes to carry out any matter presented to it.

(Ord. No. 5169, § 1, 7-21-2006; Ord. No. 5763, § 1(25-31), 12-15-2020)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 4-12-3. Deposit of trust fund.

Subject to such provisions as may be prescribed by law for the deposit of municipal funds in banks, cash and investments of the trust fund may be deposited with a bank or trust company under a custodial agreement. Such bank or trust company shall be organized under the laws of the United States or any state thereof and any such bank or trust company not located in Tennessee shall have a combined capital surplus and undivided profits of at least $100,000,000.00. Investments may be purchased and held in the name of, or transferred to nominees of, sub-custodians of any such bank or trust company.

(Code 1985, § 25-32; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-12-4. Benefit payments from trust fund.

No benefit payments from the trust fund shall be made by the comptroller except on written direction of the board and approval of its chairperson, and the comptroller shall have no duty or obligation whatsoever to inquire as to the accuracy of such direction its propriety in light of the provisions of this title, or the code. In accordance with income tax withholding requirements and upon written direction (which may be a continuing direction) from the board as to the name, address and Social Security number of any person to whom money is to be paid from the trust fund and amount thereof, the comptroller shall draw checks in the name of the person designated by the board and deliver such checks in such manner and in such amounts and at such time as the board shall timely direct. If the comptroller shall deem it necessary to withhold any distribution pending compliance with any legal requirements, including the probate of a will, the appointment of a personal representative, the payment of, or provision for, income, estate or inheritance taxes, or for death duties or otherwise, the comptroller shall notify the board and shall thereafter take no action until such legal requirements have been met.

(Code 1985, § 25-33; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-12-5. Expenses.

The city shall appropriate funds for the trust fund as necessary to pay all costs and expenses of the board, including the fees of legal counsel, actuaries, consultants, accountants, investment advisers, brokers, trustees, and other agents employed by the board. Such costs and expenses shall be paid by the comptroller out of the trust fund.

(Code 1985, § 25-34; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-12-6. Trustee appointment and removal.

The appointment and removal of the comptroller as trustee for the trust fund created by this title shall be accomplished automatically pursuant to the city ordinances governing his or her appointment and removal as comptroller.

(Code 1985, § 25-35; Ord. No. 3907, § 1, 12-5-1989)

CHAPTER 4-16. PAYMENT OF BENEFITS

Sections:

Sec. 4-16-1. Pensions for surviving spouses not covered by chapters 4-24 and 4-28.
Sec. 4-16-2. Mentally or legally incompetent recipients.
Sec. 4-16-3. Required distributions.
Sec. 4-16-4. Erroneous statements in claim for benefits.
Sec. 4-16-5. Claims for benefit.
Sec. 4-16-6. Spendthrift clause.
Sec. 4-16-7. Benefits supported only by trust fund.
Sec. 4-16-8. Pensions previously granted.
Sec. 4-16-9. Disqualified participants.

Sec. 4-16-1. Pensions for surviving spouses not covered by chapters 4-24 and 4-28.

A. *General rule.* The surviving spouse of either:

1. Anyone employed by the city for 30 or more years, but not eligible for any benefits under chapter 4-24 or 4-28; or

2. Anyone not eligible for any benefits under chapter 4-24 or 4-28, but who is or was at the

time of his or her death receiving pension payments under authority of the board established pursuant to section 73 et seq., or section 87 et seq., of the Charter of the city or is or was at the time of his or her death receiving a gratuity payment, shall be paid a pension as provided in this section.

B. *Eligibility.* To qualify for the pension under this section, an individual must have been the lawful spouse of an employee or former employee of the city as described in subsection A of this section for an unbroken period of at least eight years ending with the date of such employee's death and must survive such employee.

C. *Pension amount.* Each surviving spouse qualifying for a pension under this section shall be paid monthly either:

1. An amount equal to 50 percent of the last regular monthly salary of the deceased employee described in subsection (A)(1) of this section; or
2. The same monthly pension or gratuity payments the deceased employee described in subsection (A)(2) of this section received during his or her lifetime, until the earlier of the surviving spouse's death or remarriage.

(Code 1985, § 25-40; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-2. Mentally or legally incompetent recipients.

The board, in its sole, absolute and uncontrolled discretion, may direct the comptroller, and the comptroller shall follow such direction, to make benefit payments directly to the legal guardian of a legally incompetent or otherwise disabled person (whether because of minority or mental or physical disability), or to a court-appointed committee acting on behalf of such person. The receipt of such guardian, committee, relative or other custodian shall be a complete discharge to the comptroller, the city, and the board, without any responsibility on the part of the comptroller, the city, or the board, to see to the application of such distribution.
(Code 1985, § 25-41; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-3. Required distributions.

A. *Distribution rule.* Notwithstanding any provision to the contrary elsewhere in this title, either:

1. Distribution of the entire interest of each participant shall begin not later than April 1 of the calendar year following the later of the calendar year in which he or she attains age 70½, or the calendar year in which he or she retires; or
2. If such participant and his or her surviving spouse die before distribution of his or her interest under this plan commences, his or her entire interest shall be distributed not later than five years after such later death; provided:
   a. If any portion of such interest is to be distributed to his or her spouse or his or her surviving children, such distribution will commence within one year of the participant's death and will be made in level payments over a period not greater than such spouse's or children life or life expectancy; and
   b. If such benefit recipient is the participant's spouse, distribution shall take place as provided in subsection (A)(2)(a) of this section, but is not required to begin before the date such participant would have attained age 70½.

B. *Distributions to children.* For purposes of this section, any amounts paid to a child of the participant will be treated as paid to the participant's surviving spouse, if such amounts become payable to such spouse when such child reaches majority (or upon any other designated event permitted by the Secretary of the Treasury in regulations).

C. *Distribution after death.* If a participant dies after his or her annuity commencement date, but before his or her entire benefit has been paid, the remainder of his or her benefit shall be paid to his or her spouse or surviving children or any named beneficiary, if any, at least as rapidly as the method of payment used as of the participant's death.
(Code 1985, § 25-42; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-4. Erroneous statements in claim for benefits.

If a participant in any benefit claim or response to the board makes any statement which is erroneous or omits any material facts or fails, before receiving his or her first payment, to correct any information that he or she previously furnished to the board for its records, the amount of his or her benefit shall be adjusted on the

basis of the facts, and the amount of any overpayment previously made to such participant shall be deducted from his or her next succeeding payments as the board shall direct.
(Code 1985, § 25-43; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-5. Claims for benefit.

Notwithstanding any other provision within this title, no benefit shall be required to be paid until a properly completed claims form is filed with the board for such benefit. All claims shall be processed in accordance with the rules and regulations established by the board pursuant to section 4-8-8. Any payment to a participant or his or her spouse or child, or to the legal representative or heirs-at-law of any of them, made in accordance with the provisions of this title shall be to the extent of such payment n full satisfaction of all claims under this title against the comptroller, the board, or the city, any of whom may require such person, his or her legal representative, or his or her heirs-at-law, as a condition precedent to such payment, to execute a receipt and release for such payment in such form as shall be determined by the comptroller, the board, or the city, as the case may be.
(Code 1985, § 25-44; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-6. Spendthrift clause.

Except as otherwise provided by law, no benefit, payment or distribution under this title shall be subject either to the claim of any creditor of a participant, spouse or child, or to attachment, garnishment, levy (other than a federal tax levy under code section 6331), execution or other legal or equitable process, by any creditor of such person, and no such person shall have any right to alienate, commute, anticipate, or assign (either at law or equity) all or any portion of any benefit payment or distribution under this title.
(Code 1985, § 25-45; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-7. Benefits supported only by trust fund.

Any person who claims any benefit under this title shall look solely to the assets of the trust fund established under section 4-12-1 for satisfaction. In no event will the comptroller, the board, the city, the council, or any employee of the city be liable in their individual capacities to any person for the payment of benefits under this title.
(Code 1985, § 25-46; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-8. Pensions previously granted.

Any pension being paid by the city as of January 1, 1990, to a former employee of the city, other than under the 1948 plan or the 1978 plan, whether under another city ordinance or otherwise, shall be administered under this title without change in amount or conditions of payment so long as the adoption of this title does not in any way change or modify the law, ordinances, terms or conditions under which the pension was granted.
(Code 1985, § 25-47; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-16-9. Disqualified participants.

Any participant who is convicted in any state or federal court of a felony arising out of the participant's employment or official capacity with the city constituting malfeasance in office shall forfeit the participant's retirement pension benefits hereunder. Such participant's rights shall be governed by T.C.A. § 8-36-918, as amended, and any successor statute thereto.
(Ord. No. 5873, § 5, 7-11-2023)

CHAPTER 4-20. LIMITATION ON BENEFITS

Sections:

Sec. 4-20-1. Code §415 Limitations on Benefit Attributable to Employer Contributions.
Sec. 4-20-2. Limitations on 25 highest paid employees.

Sec. 4-20-1. Code §415 Limitations on Benefit Attributable to Employer Contributions.

A. *Compliance with Code §415.* The limitations in this Section are intended to comply with the provisions of §415 of the Internal Revenue Code (the "Code") as applicable to governmental plans, the provisions of which are incorporated by reference. The plan shall be administered in compliance with the provisions of Code §415 and regulations under that section that are applicable to governmental plans and applicable provisions of the final regulations issued by the Internal Revenue Service on April 5, 2007. Employer-financed benefits provided by the retirement system shall not exceed the applicable limitations set forth in Code §415, as adjusted under section 415(d) to reflect cost of living increases, and the retirement system shall adjust the benefits payable to participants and beneficiaries subject to the limitation each calendar year to conform with the adjusted limitation. For purposes of section 415(b) of the Code, the

applicable limitation shall apply to aggregated benefits received from all qualified pension plans of the employer. If there is any discrepancy between the provisions of this Section and the provisions of Code §415 and the applicable regulations promulgated thereunder, such discrepancy shall be resolved in such a way as to give full effect to the provisions of the Code.

B. *Basic limitation on benefit.* Notwithstanding any provision in the plan to the contrary and except as provided in subsection (b) hereof, the annual benefit payable to a participant under the plan to the extent attributable to employer contributions, shall not exceed the defined benefit dollar limitation.

C. *Exceptions.* The limitations under subsection (a) shall not apply if the participant's annual benefit attributable to employer contributions under the plan or any other defined benefit plans maintained by an affiliate does not in the aggregate exceed $10,000. For Limitation Years ending after December 31, 2001, the defined benefit dollar limitation is $160,000, as adjusted, effective January 1 of each year, under Code §415(d) in such manner as the Secretary of the Treasury shall prescribe, and payable in the form of a straight life annuity. A limitation as adjusted under Code §415(d) will apply to limitation years ending with or within the calendar year for which the adjustment applies.

D. *Adjustments to basic limitation.*

1. *Adjustment for early retirement.* If a participant's benefit under the Plan commences before age 62, the defined benefit dollar limitation shall be adjusted (in the manner prescribed by the Secretary of the Treasury) so that it is the actuarial equivalent of an annual benefit equal to the defined benefit dollar limitation commencing at age 62. The reduction under this subparagraph shall not reduce the defined benefit dollar limitation below (i) $75,000 if the benefit begins at age 55, or (ii) if the benefit begins before age 55, the equivalent of the $75,000 limitation for age 55.

2. *Adjustment for deferred retirement.* If a participant's benefit under the plan commences after age 65, the defined benefit dollar limitation shall be adjusted (in the manner prescribed by the Secretary of the Treasury) so that it is the actuarial equivalent of a benefit equal to the defined benefit dollar limitation commencing at age 65.

3. *Adjustment for less than ten years of participation.* If a participant has completed less than ten years of participation in the plan, the defined benefit dollar limitation shall be adjusted by multiplying it by a fraction, the numerator of which is the participant's number of years (or part thereof) of participation in the plan and the denominator of which is ten; provided, such adjustment shall in no event reduce the defined benefit dollar limitation to an amount which is less than one-tenth ($1/10^{th}$) of the defined benefit dollar limitation [as determined without regard to this subsection (d)(3)].

4. *Adjustment for less than ten years of vesting service.* If a participant has completed less than ten years of service, the limitation referred to in (b) and the exception described in (c) shall be adjusted by multiplying the amounts described in such limitation and exception by a fraction, the numerator of which is the participant's number of years of service (or part thereof) and the denominator of which is ten; provided, such adjustments shall in no event reduce the limitation or exception amount to a figure which is less than one-tenth ($1/10^{th}$) of such limitation or exception amount as determined without regard to this subsection (d)(4).

5. *Actuarial equivalence.* Actuarial equivalence under subsections (d)(1) and (d)(2) shall be determined using a five percent interest assumption and the applicable mortality table prescribed under code section 417(e)(3)(A)(II).

E. *Special rule for survivor and disability benefits.* Regardless of the above, the early retirement reduction and the ten year phase-in do not apply to survivor and disability benefits.

F. *Treatment of multiple defined benefit plans.* The limitations of this section with respect to any participant who at any time has participated in any other defined benefit plan maintained by the employer shall apply as if the total benefits payable under all defined benefit plans in which the participant has participated were payable from one plan.

G. *Special definitions applicable to Code §415 limitations.*

1. *Current accrued benefit.* The term ""Current Accrued Benefit" shall mean a participant's

accrued benefit, when expressed as an annual benefit within the meaning of Code §415(b)(2), determined as of the last day of the last limitation year beginning before January 1, 1987, without regard to any change in the terms of the Plan or any cost of living adjustments, if any, occurring after May 5, 1986.

2. *Defined benefit dollar limitation.* The term ""Defined Benefit Dollar Limitation" shall mean, for Limitation Years ending after December 31,

2001, $160,000, as adjusted, effective January 1 of each year, under Code §415(d) in such manner as the Secretary of the Treasury shall prescribe, and payable in the form of a straight life annuity. A limitation as adjusted under Code §415(d) will apply to limitation years ending with or within the calendar year for which the adjustment applies.

3. *Defined benefit plan.* The term "Defined Benefit Plan" shall mean any qualified retirement plan maintained by the employer which is not a defined contribution plan.

4. *Compensation.* The term "Compensation" as used in this section shall mean compensation as defined in the Regs. 1.415(c)-2(a) and shall be adjusted for types of compensation paid after a participant's severance from employment as provided in the final regulations under Section 415 of the Internal Revenue Code effective April 5, 2007 (IRB 2007-18, T.D. 9319).

For purposes of this section "Limitation Year" shall mean the plan year.
(Code 1985, § 25-50; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-50), 12-15-2020)

Sec. 4-20-2. Limitations on 25 highest paid employees.

A. *Definitions.* For purposes of this section:

1. *Annual compensation* means, for each participant, either:
   a. His or her average annual compensation;
   b. Such average annual compensation over the last five years; or
   c. His or her last annual compensation if such compensation is reasonably similar to his or her average regular annual compensation for the five preceding years.

2. *Benefit* means, for each participant, an amount which includes:
   a. Any periodic income;
   b. Any withdrawal values payable to a living participant; and
   c. The cost of any death benefits which may be payable after retirement on behalf of a participant, but shall not include the cost of any death benefits with respect to a participant before retirement nor the amount of any death benefit actually payable after the death of a participant whether such death occurs before or after retirement.

3. *Full current costs* means the normal cost of the plan for all years since the establishment of the plan, plus interest on any unfunded liability during such period. The "normal cost" of the plan for any year refers to the amount actuarially determined which would be required as a contribution by the city for such year to maintain the plan if the plan had been in effect from the beginning of employment of each then included participant and if such costs for prior years had been paid and all actuarial assumptions had been fulfilled.

4. *Restricted date* means the original effective date of the plan or the effective date of any subsequent amendment which substantially increases benefits.

5. *Unrestricted date* means the tenth anniversary of any restricted date.

B. *Application.* The limits in subsection C of this section shall apply to a participant only if both:

1. His or her anticipated annual benefit exceeds $1,500.00; and

2. Such participant was among the 25 highest paid employees as of a restricted date; and either

3. The plan is terminated before an unrestricted date; or

4. The benefit of such participant becomes payable before an unrestricted date; or

5. The benefit of such participant becomes payable after an unrestricted date but before the full current costs of the plan for the first ten years of the plan have been met.

If subsection (B)(4) of this section is applicable, the limitations shall remain in effect until the later of the expiration of the ten-year period commencing with the applicable restricted date or the date on which the full current costs have been met. If subsection (B)(5) of this

section is applicable, the limitations shall continue to apply until the full current costs have been met for the first time.

C. *Benefit limitations.* A participant's benefits shall not exceed the amount which can be provided from whichever of the following is greater:

1. A dollar amount equal to the present value of the benefit guaranteed for such participant under ERISA section 4022, determined in accordance with regulations of the pension benefit guaranty corporation ("PBGC") on the date this plan terminates or, if earlier, on the date the participant's benefit commences, as if this plan had terminated on such date, provided the participant is a substantial owner within the meaning of ERISA section 4022(b)(5);

2. A dollar amount equal to the present value of the maximum benefit described in ERISA section 4022(b)(3)(B), determined in accordance with regulations of the PBGC on the date this plan terminates or, if earlier, on the date the participant's benefit commences, as if this plan had terminated on such date, without regard to any other limitations in ERISA section 4022, provided the participant is not a substantial owner within the meaning of ERISA section 4022(b)(5);

3. The city contributions, or funds attributable thereto, which would have been applied to provide benefits for the participant, if this plan had not been amended so as substantially to increase benefits;

4. $20,000.00; or

5. The sum of:

    a. The city contributions, or funds attributable thereto, which would have been applied to provide benefits for the participant if this plan had been terminated on the date before such amendment (if applicable); and

    b. The amount computed by multiplying the number of years for which the full current costs of this plan were met after the restricted date by 20 percent of the first $50,000.00 of the participant's annual compensation.

D. *Exceeding the limitations.* The limitations in subsection C of this section may be exceeded for the purpose of making current benefit payments to retired participants who would otherwise be subject to such restrictions, provided that:

1. The city contributions which may be used for any such retired participant in accordance with the restrictions in subsection C of this section, are applied to provide either a level amount of benefits in the normal form provided for under this plan, or a level amount of benefits in an optional form of benefit not greater in amount than the level amount under the normal form of benefit payment; and

2. The benefit thus provided is supplemented by monthly payments to the extent necessary to provide the full pension in the normal form called for by this plan; and

3. Such supplemental payments are made only if the full current costs of this plan have been met or if the aggregate of such supplemental payments for all such retired participants does not exceed the aggregate city contributions already made under this plan for the current plan year.

E. *After meeting full current costs.* If city contributions are sufficient to meet the full current costs of the plan at the unrestricted date, or if the full current costs are met for the first time after the unrestricted date, the excess of the benefit payable under the plan over the amounts actually paid under the limits of subsection C of this section shall be paid in a lump sum to the retired or terminated participant, if living, or if deceased, to his or her spouse or, if no spouse, his or her child.

F. *Plan termination.* If the plan is terminated while the limitations of this section are in effect, that portion of the assets of the trust fund arising from city contributions in excess of the foregoing limitations shall be allocated to satisfy the liabilities for the benefit of participants, including retired participants, whose benefits are not limited by this section; provided, if assets remain after the satisfaction of all liabilities for the benefits of such participants, such remaining assets shall be allocated in a nondiscriminatory manner, for the benefit of all participants, including participants whose benefits are otherwise limited by this section.

G. *Change in law, regulation or ruling.* The limitations provided in this section automatically shall become inoperative and of no further force and effect if Congress provides by law or the United States Department of the Treasury provides by regulations or the Internal Revenue Service provides by ruling that the limitations imposed by this section are not required.
(Code 1985, § 25-51; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-20-3. Rollover distributions.

A. *Application.* Notwithstanding any provision in the pension system to the contrary that would otherwise limit a distributee's election under this section, a distributee may elect at the time and in the manner prescribed by the board of administration to have any portion of an eligible rollover distribution from the pension system paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

B. *Definitions.*

1. "*Eligible rollover distribution*." An "eligible rollover distribution" is any distribution of all or any portion of the balance to the credit of the "distributee," except that an "eligible rollover distribution" does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the "distributee" or the joint lives (or joint life expectancies) of the "distributee" and the "distributee's" designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Code Section 401(a)(9); the portion of any other distribution that is not includible in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities); and any other distribution that is reasonably expected to total less than $200.00 during a year.

2. "*Eligible retirement plan*." An "eligible retirement plan" is an individual retirement account described in Code Section 408(a), an individual retirement annuity described in Code Section 408(b) (other than an endowment contract), a qualified trust (an employees' trust) described in Code Section 401(a) which is exempt from tax under Code Section 501(a), an annuity plan described in Code Section 403(a), an eligible deferred compensation plan described in Code Section 457(b) which is maintained by an eligible employer described in Code Section 457(e)(1)(A), and an annuity contract described in Code Section 403(b), that accepts the "distributee's" "eligible rollover distribution." However, in the case of an "eligible rollover distribution" to the surviving spouse or a non-spouse beneficiary as provided herein, an "eligible retirement plan" is an individual retirement account or individual retirement annuity.

3. "*Distributee*." A distributee includes an employee or former employee. In addition, the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Code § 414(p), are distributees with regard to the interest of the spouse or former spouse. In addition, a rollover shall be permitted in accordance with Code Section 402(c)(11). In general, this includes a direct trust to trust transfer by a designated beneficiary to an inherited individual retirement account or annuity or other trust of a type specified by the Secretary of the Treasury.

4. "*Direct rollover*." A direct rollover is a payment by the pension system to the eligible retirement plan specified by the distributee.

C. *Non-spouse beneficiary rollover right.* For distributions after December 31, 2009, a non-spouse beneficiary who is a "designated beneficiary" under code section 401(a)(9)(E) and the regulations thereunder, by a direct trustee-to-trustee transfer ("direct rollover"), may roll over all or any portion of his or her distribution from the Pension System to an individual retirement account the beneficiary establishes for purposes of receiving the distribution. In order to be able to roll over the distribution, the distribution otherwise must satisfy the definition of an eligible rollover distribution.

a. *Certain requirements not applicable*. Although a non-spouse beneficiary may roll over directly a distribution as provided above, any distribution made prior to January 1, 2010 is not subject to the direct rollover requirements of code section 401(a)(31) (including code section 401(a)(31)(B), the notice requirements of

code section 402(f) or the mandatory withholding requirements of code section 3405(c)). If a non-spouse beneficiary receives a distribution from the Plan, the distribution is not eligible for a "60-day" rollover.

b. *Trust beneficiary*. If the participant's named beneficiary is a trust, the Plan may make a direct rollover to an individual retirement account on behalf of the trust, provided the trust satisfies the requirements to be a designated beneficiary within the meaning of code section 401(a)(9)(E).

c. *Required minimum distributions not eligible for rollover*. A non-spouse beneficiary may not roll over an amount which is a required minimum distribution, as determined under applicable Treasury regulations and other Revenue Service guidance. If the participant dies before his or her required beginning date and the non-spouse beneficiary rolls over to an IRA the maximum amount eligible for rollover, the beneficiary may elect to use either the five-year rule or the life expectancy rule, pursuant to Treas. Reg. §1.401(a)(9)-3, A-4(c), in determining the required minimum distributions from the IRA that receives the non-spouse beneficiary's distribution.

D. Roth IRA rollover. For distributions made after December 31, 2007, a participant may elect to roll over directly an eligible rollover distribution to a Roth IRA described in code section 408A(b).
(Ord. No. 5763, § 1(25-52), 12-15-2020)

CHAPTER 4-24. 1948 BENEFIT PLAN

Sections:

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Sec. 4-24-21. Deferred retirement option plan (DROP).

ARTICLE 1. PARTICIPATION

Sec. 4-24-1. Participation.

A. *General rule.* Each employee hired on or after October 1, 1948 and before July 1, 1978, who, as of December 31, 1989, was a participant in the 1948 plan, as constituted in chapter 4-8 as in effect on that date, and who continues as an employee after December 31, 1989, shall continue to be a participant in this 1948 plan as of his or her employment creditable service date without any further action on his or her part. He or she shall remain a participant in this 1948 plan until the earlier of his or her termination of employment as an employee or operation of the provisions of this title which make him or her a participant in the 1978 plan or otherwise remove him or her from this 1948 plan.

B. *Elected employees.* Any employee elected to his or her position, including the mayor or any member of the council, after April 1, 1951, and before July 1, 1978, who, as of December 31, 1989, was a participant in the 1948 plan, as constituted in chapter 4-8 as in effect on that date, and who continues as an employee after December 31, 1989, shall continue to be a participant in this 1948 plan as of his or her employment creditable service date without any further action on his or her part. He or she shall remain a participant in this 1948 plan

until the earlier of his or her termination of employment as an employee or operation of the provisions of this title which make him or her a participant in the 1978 plan or otherwise remove him or her from his or her 1948 plan.

C. *Part-time employees.* Each part-time employee hired on or after April 1, 1960, and before July 1, 1978, who, as of December 31, 1989, was a participant in the 1948 plan, as constituted in chapter 4-8 as in effect on that date, and who continues as a part-time employee after December 31, 1989, shall continue to be a participant in this 1948 plan as of his or her employment creditable service date without any further action on his or her part. He or she shall remain a participant in this 1948 plan until the earlier of his or her termination of all employment with the city (part-time and full-time) or his or her removal from this 1948 plan by operation of the provisions of this title.
(Code 1985, § 25-60; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-2. Reemployed participants.

Any former participant in this 1948 plan who was reemployed as an employee prior to July 1, 1978, shall reenter this 1948 plan a participant as of his or her reemployment commencement date. Any former participant in this 1948 plan who was reemployed as an employee on or after July 1, 1978, shall either reenter this 1948 plan or enter the 1978 plan as a participant as provided in section 4-28-1. His or her years of service shall be determined as provided under section 4-4-1(44).
(Code 1985, § 25-61; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-3. Transferring participants to the plan.

A. *Memphis light, gas and water division.* If the Memphis light, gas and water division has a self-insured retirement system, a member of the Memphis light, gas and water division retirement system may be transferred to this 1948 plan as a participant as of his or her employment creditable service date, if he or she became an employee before July 1, 1978. His or her years of service shall be determined in accordance with section 4-4-1(44)(f)(i).

B. *Public Library and Information Center.* Any employee who is a former member of the Memphis and Shelby County Public Library and Information Center Retirement System may be transferred by and from such library system as a participant in this 1948 plan, provided, he or she became an employee before July 1, 1978, and an amount equal to the total employee contributions made by or on behalf of such transferred participant under such library system shall be transferred to the trust fund. His or her years of service shall be determined in accordance with section 4-4-1(44)(f)(ii).

C. *Involuntary transfer from the county.*

1. An involuntary transfer county employee shall become a participant of this 1948 plan as of his or her employment creditable service date, provided, he or she became an employee before July 1, 1978. Such participation shall be mandatory as a condition of his or her employment.
2. Except for purposes of sections 4-24-12(A) and 4-24-16, the accrued benefit of an involuntary transfer county employee shall be determined as the excess, if any, of a. minus b., where:
    a. His or her accrued benefit is based on his or her total years of service, including county transfer service, and his or her average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be; and
    b. His or her accrued benefit is based on his or her county transfer service and average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.

For purposes of sections 4-24-12 and 4-24-16, the accrued benefit of an involuntary transfer county employee shall be his or her accrued benefit based on his or her total years of service, including county transfer service, and his or her average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.
(Code 1985, § 25-62; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-4. Transferring participants from the plan.

A. *Memphis Light, Gas and Water Division.* If the Memphis light, gas and water division shall have in effect a self-insured retirement system, a participant transferred to the Memphis light, gas and water division retirement system shall receive full creditable service under such system for his or her years of service upon the transfer by and from the trust fund of an amount

equal to his or her employee contributions then in the trust fund; provided, however, if the transferred participant was eligible for a normal retirement benefit under section 4-24-10, there shall be no transfer of his or her employee contributions and no transfer of his or her years of service, and upon his or her actual retirement, he or she shall receive the normal retirement benefit to which he or she would have been entitled under section 4-24-10 had he or she retired on his or her date of transfer from this 1948 plan and the transferee retirement system shall pay the balance of the total retirement benefits to which the participant is entitled on his or her actual retirement date under such other system without any credit for past service.

B. *Involuntary transfer from the city.*

1. Any involuntary transfer city employee to the county shall become a member of plan B of the county retirement system subject to the provisions of such plan, as of his or her date of employment with the county. Upon proper notification by city or county government, the board shall issue a certificate stating the amount of the transferred participant's city transfer service. The board shall present to the county such city transfer service certificate for review and acceptance and shall approve such city transfer service; provided such service has been calculated in accordance with this 1948 plan, the conditions regarding transfer by the participant as specified within this 1948 plan are fulfilled and the person transferred reports for employment with the county on the date required by an authorized designee of the county.

2. An involuntary transfer city employee shall receive a benefit under this 1948 plan, if he or she would be entitled to one (other than under section 4-24-12(A) or 4-24-16), based on the sum of his or her years of service and years of creditable service with plan B of the county retirement system. The amount of such benefit shall be determined under this 1948 plan based on his or her average monthly compensation (defined to take into account any compensation received by him or her from the county prior to his or her retirement, death or disability not incurred in line-of-duty, or other termination of employment) and his or her years of service as of the date of his or her transfer from the city.

3. No benefit under section 4-24-12(A) or 4-24-16 shall be paid to any involuntary transfer city employee. Instead, upon payment to the employee of any benefits due to death or disability attributable to hazardous duty in accordance with the terms of plan B of the county retirement system, the participant's employee contributions then in the trust fund shall be transferred to the county retirement plan B. Such transfer shall be a full and unconditional release of any and all obligations of the city under this plan. Under no other circumstances shall any assets of the trust fund be transferred to the county retirement system on behalf of an involuntary transfer city employee and the actuarial funding and payment of any other benefit, as described in subsection (B)(2) of this section, shall be the responsibility of the city.

(Code 1985, § 25-63; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-5. Participant information.

The head of each city department shall give immediate notice in writing to the board of any new employee, and of the change in status of any employee in his or her department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal or death. The head of each department shall furnish such other information, concerning any participant, as the board may require.

(Code 1985, § 25-64; Ord. No. 3907, § 1, 12-5-1989)

ARTICLE 2. CONTRIBUTIONS

Sec. 4-24-6. Employee contributions.

A. Effective June 19, 1999 (being the first day of the first pay period of fiscal year 2000), each 1948 plan participant shall contribute five percent of his or her compensation to the trust fund. Such contribution shall be paid by the participant while an employee until his or her retirement as an employee.

B. Effective June 19, 1999 (being the first day of the first pay period of fiscal year 2000), each 1948 plan participant who is a police officer or firefighter shall contribute to the trust fund a percentage of his or her compensation determined under the following table:

Years of Service as of January 1, 1990	*Contribution Percentage*
Less than 15	5.50
15 but less than 20	5.25
20 or more	5.00

C. Effective January 1, 1983, the contributions made by each participant to the trust fund shall be designated as city contributions pursuant to code section 414(h). Such designation is contingent upon the contributions being excluded from the participant's gross income for federal income tax purposes.

D. Subject to the provisions of this plan, the board shall adopt rules and regulations governing the making of employee contributions by payroll deduction. The head of each city department shall apply the rate of contribution to the compensation of each participant, and shall certify to the comptroller on each payroll the amount to be contributed, and shall promptly furnish to the board a copy of each payroll; and such amount shall be deducted by the comptroller and shall be paid into the trust fund and credited by the board as employee contributions of the participants for whom the contributions were made. Every participant shall be deemed to have consented and agreed to the employee contributions provided and made hereunder. Payment of salary, less such contributions, shall be a full and complete discharge of all claims and demands whatsoever for the service rendered by such person to the city during the period covered by such payment, except his or her claim to the benefits to which he or she may be entitled under the provisions of this 1948 plan.

E. At the end of each pay period, the comptroller shall determine the aggregate amount of the employee contributions of the participants who are employees of the general city government for such period, and shall be supplied with the aggregate amount of the employee contributions of the participants of the various other city agencies, in the proper amount, and shall then transfer to the trust fund an amount equal to the aggregate employee contributions for all participants for such pay period.

F. No such contributions shall be required or made while the participant is in the armed services and receiving years of service credit under section 4-4-1(44)(g).
(Code 1985, § 25-70; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4673, §§ 1, 3, 6-1-1999)

Sec. 4-24-7. City contributions.

A. Effective July 1, 2010, at the end of each month, the comptroller shall determine the aggregate amount of the compensation of all participants on which the employee contributions for such month are calculated. The city shall pay into the trust fund as its contribution the sum of subsection A.1 and 2 of this section, where:

1. Is a certain percentage of the aggregate amount of compensation each month to be known as the "current service contribution," to provide the city's part of the disability retirement allowances, the death benefits, and those portions of the retirement benefits to be granted on account of current service; and

2. Is a certain percentage of the aggregate amount of compensation each month to be known as the "accrued liability contribution."

The percentages under subsections A.1 and 2 of this section shall be no less than 6.0 percent of the compensation of all participants of this 1948 plan, as set forth in this section.

B. The payments of the city into the trust fund under this section are made obligations of the city. The council shall appropriate annually such amounts as are necessary to make such payments.

C. All such contributions made to the trust fund shall be used to fund benefits under the 1948 plan or to pay expenses of the 1948 plan and shall be irrevocable, except as otherwise provided in section 4-24-9.

D. No such contributions shall be required or made while the participant is in the armed services and receiving years of service credit under section 4-4-1.44.g.
(Code 1985, § 25-71; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4047, § 2, 6-25-1991; Ord. No. 4265, § 2, 7-19-1994; Ord. No. 4673, § 5, 6-1-1999; Ord. No. 5358, § 1, 6-8-2010)

Sec. 4-24-8. Forfeitures.

All forfeitures arising under the 1948 plan will be applied to reduce the contributions of the city to the 1948 plan and shall not be used to increase the 1948 plan benefits of any participant at any time prior to termination of the 1948 plan.
(Code 1985, § 25-72; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-9. Prohibition against interest.

The city shall not have any right, claim or interest in the trust fund or in any contributions made to the trust fund, and this 1948 plan may not be amended to use the trust fund for any purpose other than the exclusive benefit of the participants and, where applicable, their spouses or children; provided the comptroller shall return any portion of a contribution which was made under a mistake of fact, provided such return is made within one year after such contribution is made.
(Code 1985, § 25-73; Ord. No. 3907, § 1, 12-5-1989)

ARTICLE 3. RETIREMENT BENEFITS

Sec. 4-24-10. Normal retirement.

A. A 1948 plan participant who elects to retire on or after his or her normal retirement date, by a written election designating the date he or she will retire and delivered to the board not less than 30 days before such designated date, shall be entitled to receive a retirement benefit equal to his or her accrued benefit.

B. The board may compel the retirement of a participant on or after his or her normal retirement date, upon the recommendation of a qualified physician and the director of the city division in which the participant is employed that such retirement is in the best interest and efficiency of the division and department. Any such participant shall be entitled to receive a retirement benefit equal to his or her accrued benefit.

C. The annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section shall be the retirement date specified in his or her written election. The annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection B of this section shall be the retirement date specified by the board.
(Code 1985, § 25-78; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-11. Involuntary retirement.

A. If the employment of a 1948 plan participant is discontinued without fault or delinquency on the part of the participant, or in the case of a participant who is an elected or appointed employee, is discontinued by reason of his or her failure to seek or achieve re-election or re-appointment, by elimination of the elected or appointed official's position through consolidation or by the elected official's election or appointment to an office not covered by this 1948 plan, and if such participant has 15 years of service as of the date his or her employment terminates, then such participant shall receive a retirement benefit equal to his or her accrued benefit.

B. The annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section shall be the date of his or her retirement under that subsection.
(Code 1985, § 25-81; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-12. Disability retirement.

A. *Line-of-duty disability.* Upon application by or on behalf of the participant or by the director of the city division for which he or she works, any participant determined to have incurred a line-of-duty disability shall receive during the period he or she suffers from such disability a retirement benefit equal to the greater of 60 percent of his or her average monthly compensation or his or her accrued benefit as of the date of such disability. The provisions of this subsection shall be effective as of January 1, 1989.

B. *Ordinary disability.* Upon application by or on behalf of the participant or by the director of the city division for which he or she works, any participant determined to have incurred an ordinary disability shall receive during the period he or she suffers from such disability a retirement benefit equal to the greater of 25 percent of his or her average monthly compensation or his or her accrued benefit as of the date of such disability; provided, however, the board shall deny any such benefit payments and, instead, refund the participant's employee contributions in accordance with section 4-24-14, if the board has proof that such disability is a result of the participant's gross and willful misconduct.

C. *Re-examination of disability.* At the discretion of the board, a participant receiving benefits under this section, may be required to undergo a medical examination by a qualified physician to determine whether the participant continues to suffer from the disability.

D. *Cancellation of disability retirement.*

1. If a participant refuses to undergo medical examination under this section, his or her benefits shall be discontinued until he or she withdraws his or her refusal.

2. If a participant is determined under this section to have recovered from his or her line-of-duty or ordinary disability his or her disability benefits shall be cancelled and he or she shall be reinstated to city employment. Upon returning to city employment, he or she shall have full credit for all employee contributions and years of service credited to him or her as of the original date of his or her disability.

3. If a participant's disability benefits under this section are cancelled for any reason other than returning to city employment, he or she shall receive a refund of his or her employee contributions, in accordance with section 4-24-14, reduced by the amount of any benefit payments previously made to him or her.

4. If a participant suffering from an ordinary disability and receiving benefits under this section, nevertheless engages in a gainful occupation not with the city or returns to employment with the city and reenters the 1948 plan as a participant, his or her disability benefits shall be reduced so that the sum of his or her disability benefit payments and his or her compensation from such occupation or city employment shall not exceed his or her average monthly compensation as of the original date of his or her disability.

E. *Military disability.* No disability benefits shall be paid under this 1948 plan for a disability incurred as the result of an injury to the participant while he or she was in the armed services and receiving years of service credit under section 4-4-1(44)(g).
(Code 1985, § 25-82; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-13. Deferred retirement.

A. Any participant meeting the requirements of subsection C of this section may elect to receive a deferred retirement benefit under this 1948 plan equal to his or her accrued benefit and payable in the form of a single life annuity.

B. The annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section shall be the date he or she reaches age 65, or 60 if he or she is a police officer or firefighter.

C. To be eligible for electing a deferred retirement benefit under this section, a participant:

1. Must be credited with ten or more years of service as of his or her severance date;

2. Must not be entitled to any benefits under section 4-24-10, 4-24-11 or 4-24-12; and

3. Must not have engaged in an act determined harmful to the city by the board and resulting in the participant's conviction of a felony, illegal manipulation of the books and records of the city, larceny, theft or embezzlement of assets.

(Code 1985, § 25-83; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-14. Refund of employee contributions.

A. Any participant whose employment with the city terminates, for any reason other than death, who is not entitled to any benefits under section section 4-24-10, section 4-24-11, or section 4-24-12, and who has not elected benefits under section 4-24-13, shall receive an amount equal to the product of his or her total employee contributions times the applicable return multiple as determined under the table in section 4-4-1(1) paid as soon as administratively feasible following the date the termination of his or her employment occurs or is deemed to have occurred under subsection C of this section unless he or she earlier withdraws the employee contributions, becomes entitled to receive benefits under section 4-24-10, section 4-24-11, or section 4-24-12, or elects benefits under section 4-24-13.

B. Any participant whose employment with the city terminates for any reason other than death but who is entitled to a benefit payable under section 4-24-10, section 4-24-11, or section 4-24-12, and who has not elected benefits under section 4-24-13, may elect to receive in lieu of any other benefit payable under any other section of this plan an amount equal to the product of his or her total employee contributions times the applicable return multiple as determined under the table in section 4-4-1(1) paid as soon as administratively feasible following the date the termination of his or her employment occurs (or which is deemed to have occurred under subsection C of this section) unless he or she earlier withdraws the employee contributions, becomes entitled to receive benefits under section 4-24-10, section 4-24-11, or section 4-24-12, or elects benefits under section 4-24-13. In the event that any participant elects to withdraw his or her participant contributions as provided in this section 4-24-13(B), such participant

shall be deemed to have waived his or her rights to any other benefit payments under any provision of this retirement system, including the right to payment of any survivor benefits otherwise payable in the event of the participant's death in accordance with section 4-24-20 or 4-24-21 or otherwise under the pension system.

C. A participant during a leave of absence period shall be deemed to have terminated employment with the city if during such period he or she:

1. Retires under this 1948 plan;
2. Withdraws his or her employee contributions; or
3. Actually terminates employment with the city, or he or she does not return to active employment with the city as of the earlier of the date two years from the beginning of such leave of absence period or the end of such period.

(Code 1985, § 25-84; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-84), 12-15-2020)

Sec. 4-24-15. Benefits upon reemployment.

If a participant receiving benefits pursuant to this 1948 plan is reemployed after his or her annuity commencement date, and becomes a participant in the plan as provided in section 4-24-2 or any other section of the plan, no further benefit payments shall be made to that participant during his or her period of reemployment. Subsequent benefits and an appropriate annuity compensation date for that participant shall be determined based on his or her years of service determined under section 4-4-1(45), and in accordance with this 1948 plan or the 1978 and 2016 plan, as applicable; provided, however, subsequent benefits shall be reduced by the actuarial equivalent of any amounts distributed between his or her first annuity commencement date and his or her most recent reemployment commencement date, but not to an amount less than the annual plan benefit he or she was receiving immediately before his or her most recent reemployment commencement date.

(Code 1985, § 25-85; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-85), 12-15-2020)

ARTICLE 4. DEATH BENEFITS

Sec. 4-24-16. Line-of-duty death benefit.

A. The beneficiaries described in subsection B of this section of a participant who dies as the direct and proximate result of an accident sustained by him or her as a participant, while in the actual performance of duties for the city without willful negligence on his or her part, before or after he or she receives a line-of-duty disability benefit under section 4-24-12(A), shall receive a death benefit in accordance with section 4-24-18 equal to the greater of 60 percent of his or her average monthly compensation or his or her accrued benefit as of his or her date of death.

B. The only beneficiaries of the benefit under subsection A of this section shall be the participant's spouse, if married to the participant at the time of his or her death, or, if no such spouse, his or her surviving children and handicapped children.

(Code 1985, § 25-90; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-17. Other death benefit.

A. The beneficiaries described in subsection B of this section of a participant who dies other than as described in section 4-24-16(A), and who has not elected deferred retirement under section 4-24-13, shall receive a death benefit in accordance with section 4-24-18 equal to:

1. The retirement benefit, if any, the participant was receiving as of his or her date of death; or
2. If the participant died before his or her annuity commencement date, but after he or she was credited with five or more years of service or suffered an ordinary disability, the retirement benefit to which he or she was entitled under sections 4-24-10, 4-24-11 or 4-24-12.

B. The only beneficiaries of the benefit under subsection A of this section shall be the participant's spouse, if married to the participant at the time of his or her death, or, if no such spouse, his or her surviving children and handicapped children.

C. No death benefit shall be paid under this 1948 plan for the death of a participant while he or she is in the armed services and receiving years of service credit under section 4-4-1(44)(g).

(Code 1985, § 25-91; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-24-18. Distribution.

A. *Beneficiary priority.* The death benefit of section 4-24-16 or section 4-24-17 shall be paid to the surviving spouse (as such term is defined in section 4-4-1) until the spouse's death. If there is no spouse, or upon the spouse's death, the death benefit shall be made or shall

continue to be paid to or on the behalf of the participant's surviving child and handicapped child (as the terms "child" and "handicapped child" are defined in section 4-4-1), for as long as the individual is a child or handicapped child; provided, however, any handicapped child shall be entitled to receive only 50 percent of the benefit payment any other child of the participant shall be entitled to receive. If payments are made to more than one child, the death benefit shall be payable in equal shares; provided, if any child becomes ineligible to receive benefits because of death or attainment of age, the death benefit shall be divided equally among the remaining eligible children. No surviving spouse of a participant's spouse shall be entitled to any benefits from this 1948 plan as a result of the participant's spouse's interest in a benefit payable under section 4-24-16 or 4-24-17.

B. *Payment after refund.* If a participant's employee contributions have been refunded under section 4-24-14 before his or her date of death, credits against such refund shall be made in lieu of cash death benefit payments under section 4-24-16 or 4-24-17 until such credits have fully offset such refund amount.
(Code 1985, § 25-93; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-93), 12-15-2020)

Sec. 4-24-19. Residual benefits and refund of employee contributions.

A. Notwithstanding any other sections of this 1948 plan, a participant's beneficiaries, in the order of priority as set forth in section 4-24-19(B) hereof, shall be paid any excess of the participant's total accumulated employee contributions, minus the aggregate total retirement and death benefit payments under this 1948 plan made to the participant, the participant's spouse, children, or any other designated beneficiary, following the death of all such individuals.

B. For a participant whose employment terminates due to death, whose beneficiaries are not entitled to any benefit under any other section of this Plan, such participant's beneficiaries, in the order specified below, shall be entitled to receive a refund of the participant's contributions, less the aggregate of any amount of such contributions paid to the participant, the participant's spouse, children or any other designated beneficiary, prior to the participant's death. The beneficiaries of the benefit under this section (or in the case of residual benefits the beneficiaries of any residual benefits under section 4-24-19(A) hereof) shall be:

1. The beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the board). Notwithstanding the foregoing to the contrary, if the participant is married at the time of such designation, if the beneficiary or beneficiaries designated by the participant is not the participant's spouse, the participant's spouse's written consent to such specific beneficiary or beneficiaries shall be required for such designation to become effective, and such consent shall be witnessed by a notary public or by the benefits manager of the city, the total rewards officer of the city, or such other person representing the board as duly designated by the board. A participant's spouse may give a general consent acknowledging the spouse's right to consent to any beneficiary or beneficiaries and relinquishing such right, in which event any future revocation and/or redesignation of beneficiary(ies) by the participant shall not require further spousal consent. The consent of the spouse must acknowledge the effect of such election and, once given, cannot be revoked by such spouse. Any spousal consent shall only be applicable to the spouse granting such consent, or

2. The participant's spouse, if married to the participant at the time of his/her death, or

3. If no such spouse, the participant's surviving child and handicapped child, as those terms are defined in section 4-4-1(6), or

4. If no such surviving child and/or handicapped child, to the participant's surviving child as the term "child' is defined in section 4-4-1(6) but without regard to the child's age or status in an educational institution, or

5. If no such surviving child to the alternative beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the board) or

6. If the participant failed to designate an alternate beneficiary or beneficiaries as provided above, to the participant's estate.

If there is more than one eligible beneficiary the benefit shall be divided equally among the eligible beneficiaries unless the beneficiaries are designated beneficiaries by the participant as provided above whereupon the benefit will be divided in accordance with the designation by the participant, or if no such designation then equally. For purposes of this section, the terms "spouse" and "child" shall mean any person who the board determines in good faith under the plan is the legally recognized spouse or child of the participant. Each beneficiary, or his/her duly appointed representative, shall be responsible for making application, in accordance with uniform procedures established by the board, for any benefit due him/her under this section. A beneficiary shall have no claim against the board, or the pension system, or the city by reason of the failure of such beneficiary to apply properly or timely for benefits under the pension system.
(Code 1985, § 25-94; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-94), 12-15-2020)

Sec. 4-24-20. Increase in monthly retirement allowance authorized.

A. The board of administration of the retirement system is authorized to provide for increases in the monthly retirement allowance paid to pension members of the retirement system.

B. Effective July 1, 1990, the following additional increases shall take effect:

1. Members whose retirement dates were prior to 1971 shall receive an increase in the amount of eight percent of their present allowance, or $50.00 per month, whichever is greater.
2. Members who retired during the years 1971 through 1973 shall receive an increase in the amount of seven percent of their present allowance, or $35.00 per month, whichever is greater.
3. Members who retired during the years 1974 through 1976 shall receive an increase in the amount of six percent of their present allowance, or $25.00 per month, whichever is greater.
4. Members who retired during the years 1977 through 1979 shall receive an increase in the amount of five percent of their present allowance, or $15.00 per month, whichever is greater.
5. Members who retired during the years 1980 through 1982 shall receive an increase in the amount of two percent of their present allowance, or $10.00 per month, whichever is greater.
6. Members who retired during the years 1983 through 1985 shall receive an increase in the amount of one percent of their present allowance, or $5.00 per month, whichever is greater.
7. Members who retired during the year 1986 and thereafter shall receive no increase.

One-half of the above amounts shall apply to any joint city-county retiree who became retired in the periods set out above.

C. Effective July 1, 1991, the following additional increases shall take effect:

1. Members whose retirement dates were prior to 1972 shall receive an increase in the amount of six percent of their present allowance, or $50.00 per month, whichever is greater.
2. Members who retired during the years 1972 through 1974 shall receive an increase in the amount of five percent of their present allowance, or $35.00 per month, whichever is greater.
3. Members who retired during the years 1975 through 1977 shall receive an increase in the amount of four percent of their present allowance, or $25.00 per month, whichever is greater.
4. Members who retired during the years 1978 through 1980 shall receive an increase in the amount of three percent of their present allowance, or $15.00 per month, whichever is greater.
5. Members who retired during the years 1981 through 1983 shall receive an increase in the amount of two percent of their present allowance, or $10.00 per month, whichever is greater.
6. Members who retired during the years 1984 through 1986 shall receive an increase in the amount of one percent of their present allowance, or $5.00 per month, whichever is greater.
7. Members who retired during the year 1987 and thereafter shall receive no increase.

One-half of the above amounts shall apply to any joint city-county retiree who became retired in the periods set out above.

D. Effective July 1, 1992, the following additional increases shall take effect:

1. Members whose retirement dates were prior to 1976 shall receive an increase in the amount of three percent of their present allowance.
2. Members who retired during the years 1976 through 1981 shall receive an increase in the amount of two percent of their present allowance.
3. Members who retired during the years 1982 through 1987 shall receive an increase in the amount of one percent of their present allowance.
4. Members who retired during the year 1988 and thereafter shall receive no increase.

One-half of the above amounts shall apply to any joint city-county retiree who became retired in the periods set out above.

E. Effective July 1, 1993, the following additional increases shall take effect:

1. Members whose retirement dates were prior to 1977 shall receive an increase in the amount of three percent of their present allowance.
2. Members who retired during the years 1977 through 1982 shall receive an increase in the amount of two percent of their present allowance.
3. Members who retired during the years 1983 through 1988 shall receive an increase in the amount of one percent of their present allowance.
4. Members who retired during the year 1989 and thereafter shall receive no increase.

F. Effective July 1, 1994, the following additional increases shall take effect:

1. Members who retired prior to July 1, 1994, and continued hospitalization insurance coverage after retirement will receive a monthly increase above any step plan increase that may be given sufficient for them to pay their monthly premium in effect as of the above date. For members with dependent (family) coverage this increase shall equal $133.36 per month. For members with employee (individual) coverage, this increase shall equal $58.98 per month.
2. The above increases are also in effect for members retiring after July 1, 1994, and before January 1, 1995, who select to continue existing hospitalization insurance coverage and for those employees eligible to retire as of December 31, 1994, who choose to retire after December 31, 1994. This increase will be based on insurance coverage in effect at July 1, 1994.
3. Any subsequent change in health insurance coverage would have no impact on this increase in benefit payment.

G. Effective January 1, 1995, the following additional increases shall take effect:

1. Members who retired prior to 1978 shall receive an increase in the amount of four percent of their present allowance.
2. Members who retired during the years 1978 through 1983 shall receive an increase in the amount of three percent of their present allowance.
3. Members who retired during the years 1984 through 1989 shall receive an increase in the amount of two percent of their present allowance.
4. Members who retired during the years 1990 through 1993 shall receive an increase in the amount of one percent of their present allowance.

H. Effective July 1, 1995, the following additional increases shall take effect:

1. Members who retired prior to 1979 shall receive an increase in the amount of four percent of their present allowance.
2. Members who retired during the years 1979 through 1984 shall receive an increase in the amount of three percent of their present allowance.
3. Members who retired during the years 1985 through 1990 shall receive an increase in the amount of two percent of their present allowance.
4. Members who retired during the years of 1991 through 1994 shall receive an increase in the amount of one percent of their present allowance.

I. Effective July 1, 1996, the following additional increases shall take effect:

1. Members who retired prior to 1980 shall receive an increase in the amount of four percent of their present allowance.
2. Members who retired during the years 1980 through 1985 shall receive an increase in the amount of three percent of their present allowance.
3. Members who retired during the years 1986 through 1991 shall receive an increase in the amount of two percent of their present allowance.
4. Members who retired during the years of 1992 through 1995 shall receive an increase in the amount of one percent of their present allowance.

J. Effective July 1, 1997, the following additional increases shall take effect:

1. Members who retired prior to 1981 shall receive an increase in the amount of four percent of their present allowance.
2. Members who retired during the years 1981 through 1986 shall receive an increase in the amount of three percent of their present allowance.
3. Members who retired during the years 1987 through 1992 shall receive an increase in the amount of two percent of their present allowance.
4. Members who retired during the years 1993 through 1996 shall receive an increase in the amount of one percent of their present allowance.

K. Effective September 16, 1998, the following additional increases shall take effect:

1. Members who retired with at least 25 years of city service and retired with a normal retirement, involuntary retirement, or deferred retirement prior to September 16, 1998, shall receive a minimum allowance of $1,000.00 per month.
2. Members who died or became disabled in the line of duty prior to September 16, 1998, shall receive a minimum allowance of $1,000.00 per month.

L. Effective July 1, 1999, the following additional increases shall take effect:

1. Members who retired prior to 1983 shall receive an increase in the amount of six percent of their present allowance.
2. Members who retired during the years 1983 and 1984 shall receive an increase in the amount of four percent of their present allowance.
3. Members who retired during the years 1985 through 1990 shall receive an increase in the amount of three percent of their present allowance.
4. Members who retired during the years 1991 through 1995 shall receive an increase in the amount of two percent of their present allowance.
5. Members who retired during the years 1996 through 1998 shall receive an increase in the amount of one percent of their present allowance.

M. Effective July 1, 2000, the following additional increases shall take effect:

1. Members who retired prior to 1986 shall receive an increase in the amount of four percent of their present allowance.
2. Members who retired during the years 1986 through 1991 shall receive an increase in the amount of three percent of their present allowance.
3. Members who retired during the years 1992 through 1996 shall receive an increase in the amount of two percent of their present allowance.
4. Members who retired during the years 1997 through 1999 shall receive an increase in the amount of one percent of their present allowance.

N. Effective July 1, 2001, the following additional increases shall take effect:

1. Members who retired prior to 1987 shall receive an increase in the amount of four percent of their present allowance.

2. Members who retired during the years 1987 through 1992 shall receive an increase in the amount of three percent of their present allowance.

3. Members who retired during the years 1993 through 1997 shall receive an increase in the amount of two percent of their present allowance.

4. Members who retired during the years 1998 through 2000 shall receive an increase in the amount of one percent of their present allowance.

O. Effective July 1, 2002, the following additional increases shall take effect:

1. Members who retired prior to 1988 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1988 through 1993 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1994 through 2001 shall receive an increase in the amount of one percent of their present allowance.

P. Effective July 1, 2003, the following additional increases shall take effect:

1. Members who retired prior to 1989 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1989 through 1994 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1995 through 2002 shall receive an increase in the amount of one percent of their present allowance.

Q. Effective July 1, 2004, the following additional increases shall take effect:

1. Members who retired prior to 1990 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1990 through 1995 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1996 through 2003 shall receive an increase in the amount of one percent of their present allowance.

R. Effective July 1, 2005, the following additional increases shall take effect:

1. Members who retired prior to 1991 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1991 through 1996 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1997 through 2004 shall receive an increase in the amount of one percent of their present allowance.

S. Effective July 1, 2006, the following additional increases shall take effect:

1. Members who retired prior to 1992 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1992 through 1997 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1998 through 2005 shall receive an increase in the amount of one percent of their present allowance.

T. Effective July 1, 2007, the following additional increases shall take effect:

1. Members who retired prior to 1993 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1993 through 1998 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1999 through 2006 shall receive an increase in the amount of one percent of their present allowance.

U. Effective July 1, 2009, the following additional increases shall take effect:

1. Members who retired prior to 1995 shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1995 through 2000 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 2001 through 2008 shall receive an increase in the amount of one percent of their present allowance.

V. Effective July 1, 2010, the following additional increases shall take effect:

1. Members who retired prior to 1996 shall receive an increase in the amount of 1½ percent of their present allowance.

2. Members who retired during the years 1996 through 2001 shall receive an increase in the amount of one percent of their present allowance.

3. Members who retired during the years 2001 through 2008 shall receive an increase in the amount of one-half percent of their present allowance.

W. Effective July 1, 2011, the following additional increases shall take effect:

1. Members who retired prior to 1997 shall receive an increase in the amount of one percent of their present allowance.

2. Members who retired during the years 1997 through 2002 shall receive an increase in the amount of one-half percent of their present allowance.

3. Members who retired during the years 2003 through 2010 shall receive an increase in the amount of one-half percent of their present allowance.

X. Effective July 1, 2012, the following additional increases shall take effect:

1. Members who are over the age of 65 and retired with at least 25 years of service and currently receive an annual allowance of less than $20,000.00 per year, shall receive an increase of such allowance in the amount $600.00 per year or $50.00 per month.

(Code 1985, § 25-95; Ord. No. 3971, § 1, 6-5-1990; Ord. No. 4066, § 1, 8-13-1991; Ord. No. 4119, § 1, 7-14-1992; Ord. No. 4197, § 1, 6-29-1993; Ord. No. 4265, § 3, 7-19-1994; Ord. No. 4300, § 1, 12-20-1994; Ord. No. 4344, § 1, 7-25-1995; Ord. No. 4422, § 1, 6-18-1996; Ord. No. 4505, § 1, 7-1-1997; Ord. No. 4611, § 1, 9-15-1998; Ord. No. 4688, § 1, 7-6-1999; Ord. No. 4775, § 1, 6-20-2000; Ord. No. 4874, § 1, 6-19-2001; Ord. No. 4946, § 1, 6-18-2002; Ord. No. 5003, § 1, 6-3-2003; Ord. No. 5060, § 1(part), 2004; Ord. No. 5107, § 1, 2005; Ord. No. 5165, § 1, 2006; Ord. No. 5210, § 1, 2007; Ord. No. 5321, § 1, 8-4-2009; Ord. No. 5359, § 1, 6-8-2010; Ord. No. 5399, § 1, 6-7-2011; Ord. No. 5468, § 1, 9-4-2012)

Editor's note—Ord. No. 5468, adopted Sept. 4, 2012, set out provisions intended to add subsection 4-24-20(z). To preserve the style of this Code, and at the editor's discretion, these provisions have been included as subsection 4-24-20(X).

ARTICLE 5. DROP PROGRAM

Sec. 4-24-21. Deferred retirement option plan (DROP).

A. *DROP overview.* Except as provided in subsection F of this section, means an eligible employee (as defined in subsection B of this section), who has made the election described in subsection C of this section, will participate in the program and receive the benefit described in subsection D of this section, and receives distributions in the form described in subsection E of this section.

B. *Definition.*

Eligible employee means any employee who is a participant who has attained his or her normal retirement date and has at least 25 years of service.

C. *Election.* An eligible employee can make an irrevocable election to participate in the DROP program (as described in subsection D of this section), during December, March, June, or September, by completing

an election form to participate in the DROP program for a maximum one-year, two-year, or three-year period beginning on the effective date of the election, and agreeing to retire no later than the end of his or her one-, two-, or three-year period of participation in the DROP program. The December election is effective on the next January 15; the March election is effective on the next April 15; the June election is effective on the next July 15; and the September election is effective on the next October 15.

D. *Participation and benefits.* During the one-year, two-year, or three-year period elected by the employee:

1. The employee's contributions and the city's contributions to the plan shall cease as of the effective date;

2. No additional years of service or compensation shall be considered (with the exception no possible ad hoc benefit increases granted by the city), so the employee's benefit under the plan is frozen (or fixed) as of the date his or her election is effective;

3. The employee's frozen benefit shall be calculated as though the employee retired on the effective date of his or her election, and a DROP account shall be established for such eligible employee; and

4. A DROP account shall be established for each electing employee. The DROP account shall be a recordkeeping account for the benefit of electing participants, which beginning on the effective date of the electing participant's election, shall be credited with an amount equal to the monthly pension benefit the electing participant would receive had he or she retired and begun receiving payments on the effective date.

Interest shall be credited each calendar quarter on the average monthly balance in the DROP account during such quarter based on 25 percent of the 90-day treasury bill yield published in the last Wall Street Journal of such quarter.

E. *Distribution from DROP program.* As soon as is administratively feasible after the employee has ceased to participate in the DROP program, the city will begin to pay the employee his or her monthly benefit, and also, pay the employee in a lump-sum, the balance in his or her DROP account as of the end of the last quarter. The lump-sum payment of the DROP account may be rolled-over at the participant's direction.

F. *Exceptions and limitations.* In the event an employee who has elected to participate in the DROP program becomes disabled or dies in the line of duty as defined in section 4-4-1(27), 4-24-12(A) or 4-24-16, the participant's election shall be retroactively revoked and such participant or beneficiary shall be eligible for line of duty disability retirement or death benefits as defined in section 4-24-12(A) or 4-24-16 as if the DROP program had never been elected.

(Code 1985, § 25-100; Ord. No. 4548, § 2, 11-18-1997)

CHAPTER 4-28. 1978 BENEFIT PLAN

Sections:

Article 1. Participation

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Sec. 4-28-2. Reemployed participants.
Sec. 4-28-3. Transferring participants to the plan.
Sec. 4-28-4. Transferring participants from the plan.
Sec. 4-28-5. Participant information.

Article 2. Contributions

Sec. 4-28-6. Employee contributions.
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Sec. 4-28-8. Forfeitures.
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Article 3. Retirement Benefits

Sec. 4-28-10. Normal retirement.
Sec. 4-28-11. Involuntary retirement.
Sec. 4-28-12. Disability retirement.
Sec. 4-28-13. Deferred retirement.
Sec. 4-28-14. Refund of employee contributions.
Sec. 4-28-15. Benefits upon reemployment.

Article 4. Death Benefits

Sec. 4-28-16. Line-of-duty death benefit.
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Sec. 4-28-18. Refund upon death.
Sec. 4-28-19. Distribution.
Sec. 4-28-20. Residual benefits and refund of employee contributions.
Sec. 4-28-21. Increase in monthly retirement allowance authorized.

Article 5. DROP Program

Sec. 4-28-22. Deferred retirement option plan (DROP).

Article 6. Benefit for Transferred Participants

Sec. 4-28-23. Cessation of accruals for transferred participants.

ARTICLE 1. PARTICIPATION

Sec. 4-28-1. Participation.

A. *General rule.* Subject to subsections (B) and (C) of this section, and section 4-28-4(B), each person who shall become an employee on or after July 1, 1978 and prior to July 1, 2016, shall be or become a participant in this 1978 plan as of his/her employment creditable service date without any further action on his/her part and shall remain a participant until s/he terminates employment with the city, provided, however, if such person on June 30, 2016 has less than seven and one-half years of service with the city, such person shall be a transferred participant.

B. *Grandfather rule.* Any employee whose reemployment commencement date occurs on or after July 1, 1978, and who terminated employment as a member in the city retirement system under the 1948 plan of this title and properly elected a deferred pension under section 4-24-13 or who retired as a participant in such 1948 plan under section 4-24-10, 4-24-11 or 4-24-12, shall be a member in such 1948 plan upon his or her reemployment commencement date and shall not participate in this 1978 plan.

C. *Elected employee rule.* Any eligible employee who is elected to his/her position prior to July 1, 2016, including the mayor or any member of the city council, may elect to participate in this plan as of the date he/she begins his/her elected duties, provided:

1. Such elected employee makes a written election to the board within 90 days of such date; and
2. If such elected eligible employee elects to begin participation after the date he/she begins his elected duties, he/she:
    a. Enters this plan before the expiration of his/her then current term of office; and
    b. Upon such entry, pays into the trust fund the employee contributions payable for the period since such date he/she began his/her elected duties, with compounded interest at the rate established by the board.

D. *Part-time employee rule.* Part-time assistant city attorneys and other part-time employees who may hereafter be specifically included by amendment to this plan, shall be participants in this 1978 plan, unless within 90 days of employment they request in writing to be excluded and the request is approved by the mayor.

E. Each transferred participant (as such term is defined in section 4-4-1(43)) who meets each and all of the following criteria:

1. As of the original effective date of this 2016 plan was, has continuously since such date been, and continues to be as of the effective date of this Ordinance employed by the city in full-time employment as a commissioned fire or police officer, a police dispatcher, a fire alarm operator, or a paramedic,
2. Has continuously since adoption of this 2016 plan participated in this 2016 plan as a transferred participant and has not experienced a severance date as such term is defined in section 4-4-1(39), and
3. Has not withdrawn any amount of his or her cash balance account or separate defined contribution plan account from the 2016 plan,

May make a one-time irrevocable election in a form and manner prescribed by the city, but not later than February 15, 2021, to authorize the city to transfer his or her entire 2016 plan cash balance account plus his or her entire 2016 defined contribution plan account to the 1978 plan, whereupon his or her participation in the 2016 plan and any and all rights and benefits thereunder shall cease and such transferred participant shall participate in the 1978 plan, the same as if he or she had not transferred participation from the 1978 plan to the 2016 plan, subject to the following:

As required by T.C.A. § 9-3-506(a)(3) and the Comptroller of the State of Tennessee, the pension benefits of this class of transferred participants making the irrevocable election provided herein (the "electing transferred participants") shall be funded by and only to the extent of the city contribution to the cost of the pension benefits that would otherwise have been accrued in the 2016 plan for this class of

electing transferred participants plus the available funds allocated for the cost of the pension benefits of the electing transferred participants in the special revenue fund created pursuant to the referendum passed October 3, 2019 increasing the sales and use tax in the City of Memphis by 0.5% from 2.25% to 2.75% to establish the funding for the 1978 pension benefits for such electing transferred participants. In the event the cost of the pension benefits for this class of electing transferred participants in the 1978 plan in any plan year (based on the city's funding policy in effect for such plan year adopted pursuant to T.C.A. § 9-3-504, as amended) exceeds: (i) the cost of the pension benefits for this class of electing transferred participants had they remained in the 2016 plan ((based on the city's funding policy in effect for such plan year adopted pursuant to T.C.A. § 9-3-504, as amended) plus (ii) the city's required 1.5% of compensation defined contribution plan contribution to the 2016 plan defined contribution accounts of these transferred participants (as provided in Ch. 25-231) had they remained in the 2016 plan, plus (iii) the amount allocated in the Special Revenue Fund for the cost of the pension benefits for this class of electing transferred participants in the 1978 plan, then the following steps shall automatically apply in determining the pension benefit of such electing transferred participants for such plan year:

1. The retirement allowance formula for the pension benefit of this class of electing transferred participants for such plan year will be reduced from 2.25% or 2.50%, as applicable, in ten basis point increments, to such lesser amount but not below zero as is necessary so that the costs of benefits for this class of electing transferred participants does not exceed the sum of (i), (ii), and (iii) immediately above;

The adjustment provided above shall be effective as of July 1 next following the determination of the cost of benefits, and shall not reduce the accrued pension benefit of any electing transferred participant earned immediately prior to the effective date of the adjustment.

The election provided hereunder to such electing transferred participants, once made by a transferred participant, shall be irrevocable and may not be subsequently modified or rescinded by the electing transferred participant. If a transferred participant makes such an election as provided herein, all rights and benefits upon subsequent retirement or other termination of employment of such electing transferred participant shall be governed solely and exclusively by the terms and provisions of the 1978 plan and as set forth in this section.

F. Commissioned police officer, firefighter, police dispatcher, fire dispatcher, fire alarm operators, and paramedics.

1. Hire dates on or after July 1, 2023. Each employee who is hired on or after July 1, 2023 as a commissioned police officer, firefighter, police dispatcher, fire dispatcher, fire alarm operator, or paramedic (for purposes of this subsection and Section 4-25-242 referred to as an "eligible public safety employee") may make a one-time irrevocable election upon the eligible public safety employee's date of hire in the form and manner and within the time prescribed by the board to opt out of participation in the 2016 plan and elect in lieu thereof to participate in the 1978 plan provided that the rate of employee contributions required of the eligible public safety employee is identical in each Plan regardless of participation in the 1978 plan or 2016 plan.

2. Hire dates on or after July 1, 2016 and on or before June 30, 2023. Provided that the rate of employee contributions required of the eligible public safety employee is identical in each plan regardless of participation in the 1978 plan or 2016 plan, each employee who is hired as a commissioned police officer, firefighter, police dispatcher, fire dispatcher, fire alarm operator, or paramedic on or after July 1, 2016 and on or before June 30, 2023 who meets each and all of the following listed criteria may make a one-time irrevocable election in the form and manner and within the time prescribed by the Board to have his or her entire 2016 plan cash balance account plus his or her entire 2016 defined contribution plan account balance transferred to the 1978 plan, whereupon his or her participation in the 2016 plan and any and all rights and benefits thereunder shall cease and such participant shall participate in the 1978 plan, the same as if he or she had never participated

in the 2016 plan. To make such election, such participant must meet each and all of the following criteria:

a. Since such employee's date of hire such employee has continuously been employed by the city in full-time employment as a commissioned police officer, firefighter, police dispatcher, fire dispatcher, fire alarm operator, or paramedic;

b. Such employee has not experienced a severance date as such term is defined in section 4-25-1(39);

c. Such employee has not withdrawn any amount of his or her cash balance account or separate defined contribution plan account from the 2016 plan; and

d. Has not otherwise made an election under Section 4-25-160(E)

3. As required by T.C.A. §9-3-506(a)(3) and the comptroller of the State of Tennessee, the pension benefits of the eligible public safety employees making the irrevocable election provided in this subsection (F) shall be funded by and only to the extent of the city contribution to the cost of the pension benefits that would otherwise have accrued for such employees in the 2016 plan plus the available funds allocated for the cost of pension benefits of these employees in the special revenue fund created pursuant to the referendum passed October 3, 2019 increasing the sales and use tax in the city of Memphis by 0.5% from 2.25% to 2.75% to restore pension benefits of public safety employees from and after the date of such referendum. In the event the cost of the pension benefits for the eligible employees making the irrevocable election provided in this subsection (F) in the 1978 plan in any plan Year (based on the city's funding policy in effect for such plan year adopted pursuant to T.C.A. § 9-3-504, as amended) exceeds: (i) the cost of the pension benefits for these employees had they participated in the 2016 plan (based on the city's funding policy in effect for such plan year adopted pursuant to T.C.A. § 9-3-504, as amended) rather than the 1978 plan, plus (ii) the city's required 1.5% of compensation defined contribution plan contribution otherwise allocable to 2016 plan defined contribution accounts of these employees (as provided in section 4-25-231) had they participated in the 2016 plan rather than the 1978 plan, plus (iii) the amount allocated in the special revenue fund for the cost of the pension benefits for public safety employees in the 1978 plan, then the following steps shall automatically apply in determining the pension benefit of such eligible public safety employees for such plan year:

a. The retirement allowance formula for the pension benefit of these employees for such plan Year will be reduced from 2.25% or 2.50%, as applicable, in ten basis point increments, to such lesser amount (but not below zero) as is necessary so that the costs of benefits for these employees does not exceed does not exceed the sum of (i), (ii), and (iii) immediately above;

b. The adjustment provided above shall be effective as of July 1 next following the determination of the cost of benefits, and shall not reduce the accrued pension benefit of any such eligible public safety employee earned immediately prior to the effective date of the adjustment.

4. The elections provided in this subsection (F) once made shall be irrevocable and may not be subsequently modified or rescinded by the employee. If an employee eligible to make an election hereunder makes such an election as provided herein, all rights and benefits upon subsequent retirement or other termination of employment of such employee shall be governed solely and exclusively by the terms and provisions of the plan to which the employee elected and such employee shall have no rights under any other plan of the pension system.

(Code 1985, § 25-160; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5573, § I(5), 12-16-2014; Ord. No. 5763, § 1(25-160), 12-15-2020; Ord. No. 5873, § 6, 7-11-2023)

Sec. 4-28-2. Reemployed participants.

Except as provided in section 4-28-1(B), any former participant under this 1978 plan or the 1948 plan of this

title who is reemployed as an employee shall enter this 1978 plan as a participant as of his or her reemployment commencement date. His or her years of service shall be determined as provided under section 4-4-1(44).
(Code 1985, § 25-161; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-3. Transferring participants to the plan.

A. *Memphis light, gas and water division.* If the Memphis light, gas and water division shall have in effect a self-insured retirement system, a member of the Memphis light, gas and water division retirement system may be transferred to this 1978 plan as a participant as of his or her employment creditable service date. His or her years of service shall be determined in accordance with section 4-4-1(f)(i).

B. *Public library and information center.* Any employee who is a former member of the Memphis and Shelby County Public Library and Information Center Retirement System may be transferred by and from such library system as a participant in this 1978 plan; provided an amount equal to the total employee contributions made by or on behalf of such transferred participant under such library system then in the hands of such library system shall be transferred to the trust fund. His or her years of service shall be determined in accordance with section 4-4-1(f)(ii).

C. *Involuntary transfer from the county.*

1. An involuntary transfer county employee shall become a participant as of his or her employment creditable service date. Such participation shall be mandatory as a condition of employment.

2. Except for purposes of sections 4-28-12(A) and 4-28-16, the accrued benefit of an involuntary transfer county employee shall be determined as the excess, if any, of a. minus b., where:

    a. Is his or her accrued benefit based on his or her total years of service, including county transfer service, and his or her average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be; and

    b. Is his or her accrued benefit based on his or her county transfer service and average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.

For purposes of sections 4-28-12(A) and 4-28-16, the accrued benefit of an involuntary transfer county employee shall be his or her accrued benefit based on his or her total years of service, including county transfer service, and his or her average monthly compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.
(Code 1985, § 25-162; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-4. Transferring participants from the plan.

A. *Memphis light, gas and water division.* If the Memphis light, gas and water division shall have in effect a self-insured retirement system, a participant transferred to the Memphis light, gas and water division retirement system shall receive full creditable service under such system for his or her years of service upon the transfer by and from the trust fund of an amount equal to his or her employee contributions then in the trust fund; provided, however, if the transferred participant was eligible for a normal retirement benefit under section 4-28-10, there shall be no transfer of his or her employee contributions and no transfer of his or her years of service, and upon his or her actual retirement, he or she shall receive the normal retirement benefit to which he or she would have been entitled under section 4-28-10 had he or she retired on his or her date of transfer from this 1978 plan and the transferee retirement system shall pay the balance of the total retirement benefits to which the participant is entitled on his or her actual retirement date under such other system without any credit for past service.

B. *Involuntary transfer from the city.*

1. An involuntary transfer city employee to the county shall become a member of the county retirement plan A subject to the provisions of such plan, as of his or her date of employment with the county. Upon proper notification by city or county government, the board shall issue a certificate stating the amount of the transferred participant's city transfer service. The board shall present to the county such city transfer service certificate for review and acceptance and shall approve such city transfer service; provided such service has been calculated in accordance with this 1978 plan,

the conditions regarding transfer by the participant as specified within this 1978 plan are fulfilled and the person transferred reports for employment with the county on the date required by an authorized designee of the county.

2. An involuntary transfer city employee shall receive a benefit under this 1978 plan, if he or she would be entitled to one (other than under section 4-28-12(A) or 4-28-16(A)) based on the sum of his or her years of service and years of creditable service with plan A of the county retirement system. The amount of such benefit shall be determined under this 1978 plan based on his or her average monthly compensation (defined to take into account any compensation received by him or her from the county prior to his or her retirement, death or disability not incurred in line-of-duty, or other termination of employment) and his or her years of service as of the date of his or her transfer from the city.

3. No benefit under section 4-28-12(A) or 4-28-16(A) shall be paid to any involuntary transfer city employee. Instead, upon payment to the employee of any benefits due to death or disability attributable to hazardous duty in accordance with the terms of article V of plan A of the county retirement system, the participant's employee contributions then in the trust fund shall be transferred to the county retirement plan A. Such transfer shall be a full and unconditional release of any and all obligations of the city under this 1978 plan. Under no other circumstances shall any assets of the trust fund be transferred to the county retirement system on behalf of an involuntary transfer city employee and the actuarial funding and payment of any other benefit, as described in subsection (B)(2) of this section, shall be the responsibility of the city.

(Code 1985, § 25-163; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-5. Participant information.

The head of each city department shall give immediate notice in writing to the board of any new employee, and of the change in status of any employee in his or her department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal or death. The head of each department shall furnish such other information, concerning any participant, as the board may require.

(Code 1985, § 25-164; Ord. No. 3907, § 1, 12-5-1989)

ARTICLE 2. CONTRIBUTIONS

Sec. 4-28-6. Employee contributions.

A. Effective June 30, 2001 (being the first day of the first pay period of fiscal year 2002), each 1978 plan participant, who is not a police officer or a firefighter, shall contribute eight percent of his or her compensation to the trust fund. Such contribution shall be paid by the participant while an employee until his or her retirement as an employee.

B. Effective June 19, 1999 (being the first day of the first pay period of fiscal year 2000), each 1978 plan participant who is a police officer or firefighter shall contribute to the trust fund a percentage of his or her compensation determined under the following table:

Date of Hire	*Contribution Percentage*
On or after July 1, 1983	6.50
Before July 1, 1983	6.25

C. Effective January 1, 1983, the contributions made by each participant to the trust fund shall be designated as city contributions pursuant to code section 414(h). Such designation is contingent upon the contributions being excluded from the participant's gross income for federal income tax purposes.

D. Subject to the provisions of this 1978 plan, the board shall adopt rules and regulations governing the making of employee contributions by payroll deduction. The head of each city department shall apply the rate of contribution to the compensation of each participant, and shall certify to the comptroller on each payroll the amount to be contributed, and shall promptly furnish to the board a copy of each payroll; and such amounts shall be deducted by the comptroller and shall be paid into the trust fund and credited by the board as employee contributions of the participants for whom the contributions were made. Every participant shall be deemed to have consented and agreed to the employee contributions provided and made hereunder. Payment of salary, less such contributions, shall be a full and complete discharge of all claims and demands whatsoever for the service rendered by such person to the city during the

period covered by such payment, except his or her claim to the benefits to which he or she may be entitled under the provisions of this 1978 plan.

E. At the end of each pay period, the comptroller shall determine the aggregate amount of the employee contributions of the participants who are employees of the general city government for such period, and shall be supplied with the aggregate amount of the employee contributions of the participants of the various other city agencies, in the proper amount, and shall then transfer to the trust fund an amount equal to the aggregate employee contributions for all participants for such pay period; provided, however, the first determination and transfer of funds as provided for above after the original effective date of this 1978 plan shall be made at the end of the July 14, 1978, pay period.

F. Police and fire employees hired on or after July 1, 2012, shall contribute eight percent of his compensation to the trust fund.

G. Police and fire employees with less than ten years of service as of June 30, 2012, shall contribute to the trust fund a percentage of his compensation as follows:

Contribution Period	*Percentage*
On or after July 1, 2012	7
On or after July 1, 2013	7.5
On or after July 1, 2014	8

Upon attaining ten or more years of service, such employee's contribution rate in effect at such time shall remain in effect.
(Code 1985, § 25-170; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4363, § 4, 10-1-1995; Ord. No. 4547, § 1, 11-18-1997; Ord. No. 4673, §§ 2, 4, 6-1-1999; Ord. No. 4837, § 1, 1-22-2001; Ord. No. 5416, § 4, 12-6-2011)

Editor's note—Ord. No. 5416, adopted Dec. 6, 2011, shall be effective on July 1, 2012.

Sec. 4-28-7. City contributions.

A. Effective July 1, 2010, at the end of each month, the comptroller shall determine the aggregate amount of the compensation of all participants on which the employee contributions for such month are calculated. The city shall pay into the trust fund as its contribution the sum of subsections A.1 and 2 of this section, where:

1. Is a certain percentage of the aggregate amount of compensation each month to be known as the "current service contribution," to provide the city's part of the disability retirement allowances, the death benefits, and those portions of the retirement benefits to be granted on account of current service; and

2. Is a certain percentage of the aggregate amount of compensation each month to be known as the "accrued liability contribution."

The percentages under subsections A.1 and 2 of this section shall be no less than 6.0 percent of the compensation of all participants of the 1978 plan, as set forth in this section.

B. The payments of the city into the trust fund under this section are made obligations of the city. The council shall appropriate annually such amounts as are necessary to make such payments.

C. All such contributions made to the trust fund shall be used to fund benefits under the 1978 plan or to pay expenses of the 1978 plan and shall be irrevocable, except as otherwise provided in section 4-28-9.
(Code 1985, § 25-171; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4047, § 3, 6-25-1991; Ord. No. 4265, § 2, 7-19-1994; Ord. No. 4673, § 6, 6-1-1999; Ord. No. 5358, § 2, 6-8-2010)

Sec. 4-28-8. Forfeitures.

All forfeitures arising under the 1978 plan will be applied to reduce the contributions of the city to the 1978 plan and shall not be used to increase the 1978 plan benefits of any participant at any time prior to termination of the 1978 plan.
(Code 1985, § 25-172; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-9. Prohibition against interest.

The city shall not have any right, claim or interest in the trust fund or in any contributions made to the trust fund, and this 1978 plan may not be amended to use the trust fund for any purpose other than the exclusive benefit of the participants and, where applicable, their spouses or children; provided the comptroller shall return any portion of a contribution which was made under a mistake of fact, provided such return is made within one year after such contribution is made.
(Code 1985, § 25-173; Ord. No. 3907, § 1, 12-5-1989)

ARTICLE 3. RETIREMENT BENEFITS

Sec. 4-28-10. Normal retirement.

A. A 1978 plan participant who elects to retire on or after his or her normal retirement date, by a written election designating the date he or she will retire and delivered to the board not less than 30 days before such designated date, shall be entitled to receive a retirement benefit equal to his or her accrued benefit.

B. The board may compel the retirement of a participant on or after his or her normal retirement date, upon the recommendation of a qualified physician and the director of the city division in which the participant is employed that such retirement is in the best interest and efficiency of the division and department. Any such participant shall be entitled to receive a retirement benefit equal to his or her accrued benefit.

C. Any city full-time employee who has attained service benefits in accordance with subsection A of this section by December 15, 2000, shall be eligible to receive his or her benefits pursuant to subsection A of this section upon adoption of Ordinance No. 4837 (January 22, 2001) but no such benefits shall accrue prior to adoption of the ordinance and the annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section in accordance with this provision shall be the date of the adoption of the ordinance. A 1978 plan participant attains normal retirement when he or she meets one of the three conditions set forth in section 4-4-1(30)(b)(i).
(Code 1985, § 25-178; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4837, § 1, 1-22-2001)

Sec. 4-28-11. Involuntary retirement.

A. If the employment of a participant is discontinued without fault or delinquency on the part of the participant, or in the case of a participant who is an elected or appointed employee, is discontinued by reason of his or her failure to seek or achieve re-election or re-appointment, by elimination of the elected or appointed official's position through consolidation or by the elected official's election or appointment to an office not covered by this 1978 plan, and if such participant has 12 years of service as of the date his or her employment is so terminated, then such participant shall receive a retirement benefit under this 1978 plan equal to his or her accrued benefit.

B. The annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section shall be the last day of his or her employment. Any city full-time employee who has attained service benefits in accordance with subsection A of this section by December 15, 2000, shall be eligible to receive his or her benefits pursuant to subsection A of this section upon adoption of Ordinance No. 4837 (January 22, 2001) but no such benefits shall accrue prior to adoption of the ordinance, and the annuity commencement date of any participant who is to receive his or her benefit pursuant to subsection A of this section in accordance with this provision shall be the date of the adoption of the ordinance.

C. The provisions of subsections A and B of this section do not apply to persons hired after November 1, 2004. Further, the provisions of subsections A and B of this section do not apply to persons appointed, for the first time, after February 16, 2010.
(Code 1985, § 25-181; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4837, § 1, 1-22-2001; Ord. No. 5076, § 1(part), 2004; Ord. No. 5341, § 1, 1-12-2010)

Sec. 4-28-12. Disability retirement.

A. *Line-of-duty disability.* Upon application by or on behalf of the participant or by the director of the city division for which he or she works, any participant determined to have incurred a line-of-duty disability shall receive, during the period he or she suffers from such disability, a retirement benefit equal to the greater of 60 percent of his or her average monthly compensation or his or her accrued benefit as of the date of such disability. The provisions of this subsection shall be effective as of January 1, 1989.

B. *Ordinary disability.* Upon application by or on behalf of the participant or by the director of the city division for which he or she works, any participant determined to have incurred an ordinary disability shall receive, during the period he or she suffers from such disability, a retirement benefit equal to his or her accrued benefit as of the date of such disability; provided, however, the board shall deny any such benefit payments and, instead, refund the participant's employee contributions in accordance with section 4-28-14, if the board has proof that such disability is a result of the participant's gross and willful misconduct.

C. *Re-examination of disability.* At the discretion of the board, a participant receiving benefits under this section may be required to undergo a medical examination by a qualified physician to determine whether the participant continues to suffer from the disability.

D. *Cancellation of disability retirement.*

1. If a participant refuses to undergo medical examination under subsection C of this section, his or her benefits shall be discontinued until he or she withdraws his or her refusal.

2. If a participant is determined under subsection C of this section to have recovered from his or her line-of-duty or ordinary disability his or her disability benefits shall be cancelled and he or she shall be reinstated to city employment. Upon returning to city employment, he or she shall have full credit for all employee contributions and years of service credits to him or her as of the original date of his or her disability.

3. If a participant's disability benefits under this section are cancelled for any reason other than returning to city employment, he or she shall receive a refund of his or her employee contributions, in accordance with section 4-28-14, reduced by the amount of any benefit payments previously made to him or her.

4. If a participant suffering from an ordinary disability and receiving benefits under this section, nevertheless engages in a gainful occupation not with the city or returns to employment with the city and re-enters the 1978 plan as a participant, his or her disability benefits shall be reduced so that the sum of his or her disability benefit payments and his or her compensation from such occupation or city employment shall not exceed his or her average monthly compensation as of the original date of his or her disability.

(Code 1985, § 25-182; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 3959, § 1, 4-24-1990)

Sec. 4-28-13. Deferred retirement.

A. Any participant meeting the requirements of subsection D of this section may elect to receive a deferred retirement benefit under this 1978 plan equal to his or her accrued benefit and payable in the form of a single life annuity.

B. The annuity commencement date of any participant hired on or after July 1, 2012, who is to receive his benefit pursuant to subsection 4-28-13(A) shall be the date he reaches age 62.

C. A participant may revoke his or her election under subsection A of this section at any time before his or her annuity commencement date. Any participant timely revoking his or her subsection A of this section election shall receive a refund in accordance with section 4-28-14 of all employee contributions made by him or her or on his or her behalf under this 1978 plan.

D. To be eligible for electing a deferred retirement benefit under this section,:

1. General employees.

   a. Must be credited with five or more years of service as of his/her severance date;

   b. Must not be entitled to any benefits under any other section of this chapter; and

   c. Must not have engaged in an act determined harmful to the city by the board and resulting in the participant's conviction of a felony, illegal manipulation of the books and records of the city, theft, or embezzlement of assets.

   d. 2. Police officers and firefighters: Must be credited with ten or more years of service as of his/her severance date;

   e. Must not be entitled to any benefits under any other section of this chapter; and

   f. Must not have engaged in an act determined harmful to the city by the board and resulting in the participant's conviction of a felony, illegal manipulation of the books and records of the city, theft, or embezzlement of assets.

(Code 1985, § 25-183; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 4837, § 1, 1-22-2001; Ord. No. 5416, § 2, 12-6-2011; Ord. No. 5873, § 10, 7-11-2023)

Editor's note—Ord. No. 5416, adopted Dec. 6, 2011, shall be effective on July 1, 2012.

Sec. 4-28-14. Refund of employee contributions.

A. Any participant whose employment with the city terminates, for any reason other than death, who is not entitled to any benefits under section 4-28-10, section 4-28-11, or section 4-28-12, and who has not elected

benefits under section, shall receive an amount equal to the product of his or her total employee contributions times the applicable return multiple as determined under the table in section 4-4-1 paid as soon as administratively feasible following the date the termination of his or her employment occurs (or which is deemed to have occurred under subsection C of this section) unless he or she earlier withdraws the employee contributions, becomes entitled to receive benefits under section 4-28-10, section 4-28-11, or section 4-28-12, or elects benefits under section 4-28-13.

B. Any participant whose employment with the city terminates for any reason other than death but who is entitled to a benefit payable under section 4-28-10, section 4-28-11, or section 4-28-12, and who has not elected benefits under section 4-28-13, may elect to receive in lieu of any other benefit payable under any other section of this plan an amount equal to the product of his or her total employee contributions times the applicable return multiple as determined under the table in section 4-4-1 paid as soon as administratively feasible following the date the termination of his or her employment occurs or is deemed to have occurred under subsection C of this section unless he or she earlier withdraws the employee contributions, becomes entitled to receive benefits under section 4-28-10, section 4-28-11, or section 4-28-12, or elects benefits under section 4-28-13. In the event that any participant elects to withdraw his or her participant contributions as provided in this section 4-28-14(B), such participant shall be deemed to have waived his or her rights to any other benefit payments under any provision of this retirement system, including the right to payment of any survivor benefits otherwise payable in the event of the participant's death in accordance with section 4-28-16 or 4-28-17 or otherwise under the pension system.

C. A participant during a leave of absence period shall be deemed to have terminated employment with the city if during such period he or she:

1. Retires under this 1978 plan;
2. Withdraws his or her employee contributions; or
3. Actually terminates employment with the city, or does not return to active employment with the city as of the earlier of the date two years from the beginning of such leave of absence period or the end of such period.

(Code 1985, § 25-184; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-184), 12-15-2020)

Sec. 4-28-15. Benefits upon reemployment.

If a participant receiving benefits pursuant to this 1978 plan is reemployed after his annuity commencement date, and becomes a participant in this plan as provided in section 4-28-2 or any other section of the plan, no further benefit payments shall be made to that participant during his period of reemployment. Subsequent benefits and an appropriate annuity commencement date for that participant shall be determined based on his years of service determined under section 4-4-1(45) and in accordance with this 1978 plan or the 1948 and 2016 plans, as applicable; provided, however, subsequent benefits shall be reduced by the actuarial equivalent of any amounts distributed between his or her first annuity commencement date and his or her most recent reemployment commencement date, but not to an amount less than the annual plan benefit he or she was receiving immediately before his or her most recent reemployment commencement date.

Any employee hired after October 1, 2013, that leaves employment at the City of Memphis and is eligible for a pension benefit under this 1978 plan or any other plan division of the Memphis Pension System and is then employed at the MLGW, Shelby County, or any other taxpayer supported Primary Government and Discretely Presented Component Units of Memphis or Shelby County shall have his/her pension payment under the City of Memphis Pension System reduced by the amount of the salary received from such employment up to the amount of the pension payment under the City of Memphis Pension System during the period of such employment. If the pension payment under the City of Memphis Pension System exceeds the salary received in such employment, then the pension payment shall be reduced by the amount of the gross amount of the salary during the period of employment.

(Code 1985, § 25-185; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5508, 8-20-2013; Ord. No. 5763, § 1(25-185), 12-15-2020)

ARTICLE 4. DEATH BENEFITS

Sec. 4-28-16. Line-of-duty death benefit.

A. The beneficiaries described in subsection B of this section of a participant who dies as the direct and proximate result of an accident sustained by him or her as a participant, while in the actual performance of duties for the city without willful negligence on his or

her part, before or after he or she received a line-of-duty disability benefit under section 4-28-12(A), shall receive a death benefit in accordance with section 4-28-19 equal to the greater of 60 percent of his or her average monthly compensation or his or her accrued benefit as of his or her date of death.

B. The only beneficiaries of the benefit under subsection A of this section shall be the participant's spouse, if married to the participant at the time of his or her death, or, if no such spouse, his or her surviving children and handicapped children.
(Code 1985, § 25-190; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-17. Other death benefit.

A. The beneficiaries described in subsection B of this section of a participant who does other than as described in section 4-28-16(A), and who has not elected deferred retirement under section 4-28-13, shall receive a death benefit in accordance with section 4-28-19 equal to 75 percent of:

1. The retirement benefit, if any, the participant was receiving as of his or her date of death; or
2. If the participant died before his or her annuity commencement date, but after he or she was credited with five or more years of service or suffered an ordinary disability, the retirement benefit to which he or she was entitled under section 4-28-10, 4-28-11 or 4-28-12.

B. The only beneficiaries of the benefit under subsection A of this section shall be the participant's spouse, if married to the participant at the time of his or her death, or, if no such spouse, his or her surviving children and handicapped children.
(Code 1985, § 25-191; Ord. No. 3907, § 1, 12-5-1989)

Sec. 4-28-18. Refund upon death.

A. If any participant elects a deferred retirement benefit under section 4-28-13 but dies before his or her annuity commencement date, his or her employee contributions shall be refunded in accordance with section 4-28-13(C) as if he or she had revoked his or her section 4-28-13(A) election on the day before his or her date of death.

B. The beneficiaries of the refund under subsection A of this section shall be the person so designated by the participant in writing, or, if no such designation, his or her estate. Notwithstanding the foregoing, however, a final divorce decree shall terminate an ex-spouse's status as beneficiary, unless the participant has on file in the retirement office a beneficiary designation that redesignates the ex-spouse as beneficiary dated subsequent to the issuance of the divorce decree.
(Code 1985, § 25-192; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5873, § 7, 7-11-2023)

Sec. 4-28-19. Distribution.

A. Beneficiary priority. The death benefit of section 4-24-16 or section 4-24-17 shall be paid to the surviving spouse (as such term is defined in section 4-4-1) until the spouse's death. If there is no spouse, or upon the spouse's death, the death benefit shall be made or shall continue to be paid to or on the behalf of the participant's surviving child and handicapped child (as the terms "child" and "handicapped child" are defined in section 4-4-1), for as long as the individual is a child or handicapped child; provided, however, any handicapped child shall be entitled to receive only 50 percent of the benefit payment any other child of the participant shall be entitled to receive. If payments are made to more than one child, the death benefit shall be payable in equal shares; provided, if any child becomes ineligible to receive benefits because of death or attainment of age, the death benefit shall be divided equally among the remaining eligible children. No surviving spouse of a participant's spouse shall be entitled to any benefits from this 1978 plan as a result of the participant's spouse's interest in a benefit payable under section 4-24-16 or section 4-24-17.

For each participant hired on or after July 1, 2012, the death benefit of 4-24-16 or 4-24-17 shall be paid to the surviving spouse until the spouse's death. If there is no spouse, or upon the spouse's death, the death benefit shall be made, or shall continue to be paid to or on the behalf of the participant's child and handicapped child (as the terms "child" and "handicapped child" are defined in section 4-4-1), for as long as the individual is a child or handicapped child; provided, however, any handicapped child shall be entitled to receive only 50 percent of the benefit payment any other child of the participant shall be entitled to receive. If payments are made to more than one child, the death benefit shall be payable in equal shares; provided, if any child becomes ineligible to receive benefits because of death or attainment of age, the death benefit shall be divided equally among the remaining eligible children. No surviving spouse of a participant's spouse shall be entitled to any

benefits from this 1978 plan as a result of the participant's spouse's interest in a benefit payable under section 4-24-16 or section 4-24-17.

B. *Payment after refund.* If a participant's employee contributions have been refunded under section 4-28-14 before his or her date of death, credits against such refund shall be made in lieu of cash death benefit payments under section 4-28-16 or 4-28-17 until such credits have fully offset such refund amount.
(Code 1985, § 25-193; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5416, § 3, 12-6-2011; Ord. No. 5763, § 1(25-193), 12-15-2020)

Editor's note—Ord. No. 5763, adopted Dec. 15, 2020, shall be effective on January 28, 2021.

Sec. 4-28-20. Residual benefits and refund of employee contributions.

A. Notwithstanding any other sections of this 1978 plan, a participant's beneficiaries, in the order of priority as set forth in section 4-28-20(B) hereof, shall be paid any excess of the participant's total accumulated employee contributions, minus the aggregate total retirement and death benefit payments under this 1978 plan made to the participant, the participant's spouse, children, or any other designated beneficiary, following the death of all such individuals.

B. For a participant whose employment terminates due to death, whose beneficiaries are not entitled to any benefit under any other section of this plan, such participant's beneficiaries, in the order specified below, shall be entitled to receive a refund of the participant's contributions, less the aggregate of any amount of such contributions paid to the participant, the participant's spouse, children or any other designated beneficiary, prior to the participant's death. The beneficiaries of the benefit under this section (or in the case of residual benefits the beneficiaries of any residual benefits under section 4-25-194(a) hereof) shall be:

1. the beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the board). Notwithstanding the foregoing to the contrary, if the participant is married at the time of such designation, if the beneficiary or beneficiaries designated by the participant is not the participant's spouse, the participant's spouse's written consent to such specific beneficiary or beneficiaries shall be required for such designation to be effective, and such consent shall be witnessed by a notary public or by the benefits manager of the city, the total rewards officer of the city, or such other person representing the board as duly designated by the board. A participant's spouse may give a general consent acknowledging the spouse's right to consent to any beneficiary or beneficiaries and relinquishing such right, in which event any future revocation and/or redesignation of beneficiary(ies) by the participant shall not require further spousal consent. The consent of the spouse must acknowledge the effect of such election and once given, cannot be revoked by such spouse. Any spousal consent shall only be applicable to the spouse granting such consent, or

2. the participant's spouse, if married to the participant at the time of his/her death, or

3. if no such spouse, the participant's surviving child and handicapped child, as those terms are defined in section 4-25-1(6), or

4. if no such surviving child and/or handicapped child, to the participant's surviving child as the term "child' is defined in section 4-25-1(6) but without regard to the child's age or status in an educational institution, or

5. if no such surviving child to the alternative beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the Board) or

6. if the participant failed to designate an alternate beneficiary or beneficiaries as provided above, to the participant's estate.

If there is more than one eligible beneficiary the benefit shall be divided equally among the eligible beneficiaries unless the beneficiaries are designated beneficiaries by the participant as provided above whereupon the benefit will be divided in accordance with the designation by the participant, or if no such designation then equally. For purposes of this section, the terms "spouse" and "child" shall mean any person who the board determines in good faith under the plan is the legally recognized spouse or child of the participant. Notwithstanding the foregoing, a final divorce decree shall terminate an ex-spouse's status as beneficiary, unless the participant has on file in the retirement office a beneficiary designation that redesignates the ex-

spouse as beneficiary dated subsequent to the issuance of the divorce decree. Each beneficiary, or his/her duly appointed representative, shall be responsible for making application, in accordance with uniform procedures established by the board, for any benefit due to him/her under this section. A beneficiary shall have no claim against the board, or the pension system, or the city by reason of the failure of such beneficiary to apply properly or timely for benefits under the pension system. (Code 1985, § 25-194; Ord. No. 3907, § 1, 12-5-1989; Ord. No. 5763, § 1(25-194), 12-15-2020; Ord. No. 5873, § 8, 7-11-2023)

Sec. 4-28-21. Increase in monthly retirement allowance authorized.

A. The board of administration of the retirement system is authorized to provide for increases in the monthly retirement allowance paid to pension members of the retirement system.

B. Effective July 1, 1990, the following additional increases shall take effect:

1. Members who retired between the period July 1, 1978, through December 31, 1982, shall receive an increase in the amount of two percent of their present allowance, or $10.00 per month, whichever is greater.
2. Members who retired during the years 1983 through 1985 shall receive an increase in the amount of one percent of their present allowance, or $5.00 per month, whichever is greater.
3. Members who retired during the year 1986 and thereafter shall receive no increase.

One-half of the above amount shall apply to any joint city-county retiree who became retired in the periods set out above.

C. Effective July 1, 1991, the following additional increases shall take effect:

1. Members who retired between the period July 1, 1978, through December 31, 1980, shall receive an increase in the amount of three percent of their present allowance, or $15.00 per month, whichever is greater.
2. Members who retired during the years 1981 through 1983 shall receive an increase in the amount of two percent of their present allowance, or $10.00 per month, whichever is greater.
3. Members who retired during the years 1984 through 1986 shall receive an increase in the

amount of one percent of their present allowance, or $5.00 per month, whichever is greater.

4. Members who retired during the year 1987 and thereafter shall receive no increase.

One-half of the above amount shall apply to any joint city-county retiree who became retired in the periods set out above.

D. Effective July 1, 1992, the following additional increases shall take effect:

1. Members who retired between the period July 1, 1978, through December 31, 1981, shall receive an increase in the amount of two percent of their present allowance.

2. Members who retired during the years 1982 through 1987 shall receive an increase in the amount of one percent of their present allowance.

3. Members who retired during the year 1987 and thereafter shall receive no increase.

One-half of the above amount shall apply to any joint city-county retiree who became retired in the periods set out above.

E. Effective July 1, 1993, the following additional increases shall take effect:

1. Members whose retirement between the period July 1, 1978, through December 31, 1982, shall receive an increase in the amount of two percent of their present allowance.

2. Members who retired during the years 1983 through 1988 shall receive an increase in the amount of one percent of their present allowance.

3. Members who retired during the year 1989 and thereafter shall receive no increase.

F. Effective July 1, 1994, the following additional increases shall take effect:

1. Members who retired prior to July 1, 1994, and continued hospitalization insurance coverage after retirement will receive a monthly increase above any step plan increase that may be given sufficient for them to pay their monthly premium in effect as of the above date. For members with dependent (family) coverage this increase shall equal $133.36 per month. For members with employee (individual) coverage, this increase shall equal $58.98 per month.

2. The above increases are also in effect for members retiring after July 1, 1994, and before January 1, 1995, who select to continue existing hospitalization insurance coverage and for those employees eligible to retire as of December 31, 1994 who choose to retire after December 31, 1994. This increase will be based on insurance coverage in effect at July 1, 1994.

3. Any subsequent change in health insurance coverage would have no impact on this increase in benefit payment.

G. Effective January 1, 1995, the following additional increases shall take effect:

1. Members who retired between the period July 1, 1978, through December 31, 1983, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1984 through 1989 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1990 through 1993 shall receive an increase in the amount of one percent of their present allowance.

H. Effective July 1, 1995, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1984, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1985 through 1990 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1991 through 1994 shall receive an increase in the amount of one percent of their present allowance.

I. Effective July 1, 1996, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1979, shall receive an increase in the amount of four percent of their present allowance.

2. Members who retired during the years 1980 through 1985 shall receive an increase in the amount of three percent of their present allowance.

3. Members who retired during the years 1986 through 1991 shall receive an increase in the amount of two percent of their present allowance.

4. Members who retired during the years 1992 through 1995 shall receive an increase in the amount of one percent of their present allowance.

J. Effective July 1, 1997, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1980, shall receive an increase in the amount of four percent of their present allowance.

2. Members who retired during the years 1981 through 1986 shall receive an increase in the amount of three percent of their present allowance.

3. Members who retired during the years 1987 through 1992 shall receive an increase in the amount of two percent of their present allowance.

4. Members who retired during the years 1993 through 1996 shall receive an increase in the amount of one percent of their present allowance.

K. Effective September 16, 1998, the following additional increases shall take effect:

1. Members who died or became disabled in the line of duty prior to September 16, 1998, shall receive a minimum allowance of $1,000.00 per month.

L. Effective July 1, 1999, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1982, shall receive an increase in the amount of six percent of their present allowance.

2. Members who retired during the years 1983 and 1984 shall receive an increase in the amount of four percent of their present allowance.

3. Members who retired during the years 1985 through 1990 shall receive an increase in the amount of three percent of their present allowance.

4. Members who retired during the years 1991 through 1995 shall receive an increase in the amount of two percent of their present allowance.

5. Members who retired during the years 1996 through 1998 shall receive an increase in the amount of one percent of their present allowance.

M. Effective July 1, 2000, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1985, shall receive an increase in the amount of four percent of their present allowance.

2. Members who retired during the years 1986 through 1991 shall receive an increase in the amount of three percent of their present allowance.

3. Members who retired during the years 1992 through 1996 shall receive an increase in the amount of two percent of their present allowance.

4. Members who retired during the years 1997 through 1999 shall receive an increase in the amount of one percent of their present allowance.

N. Effective July 1, 2001, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1986, shall receive an increase in the amount of four percent of their present allowance.

2. Members who retired during the years 1987 through 1992 shall receive an increase in the amount of three percent of their present allowance.

3. Members who retired during the years 1993 through 1997 shall receive an increase in the amount of two percent of their present allowance.

4. Members who retired during the years 1998 through 2000 shall receive an increase in the amount of one percent of their present allowance.

O. Effective July 1, 2002, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1987, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1988 through 1993 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1994 through 2001 shall receive an increase in the amount of one percent of their present allowance.

P. Effective July 1, 2003, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1988, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1989 through 1994 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1995 through 2002 shall receive an increase in the amount of one percent of their present allowance.

Q. Effective July 1, 2004, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1989, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1990 through 1995 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1996 through 2003 shall receive an increase in the amount of one percent of their present allowance.

R. Effective July 1, 2005, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1990, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1991 through 1996 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1997 through 2004 shall receive an increase in the amount of one percent of their present allowance.

S. Effective July 1, 2006, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1979, through December 31, 1991, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1992 through 1997 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1998 through 2005 shall receive an increase in the amount of one percent of their present allowance.

T. Effective July 1, 2007, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1980, through December 31, 1992, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1993 through 1998 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 1999 through 2006 shall receive an increase in the amount of one percent of their present allowance.

U. Effective July 1, 2009, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1979, through December 31, 1994, shall receive an increase in the amount of three percent of their present allowance.

2. Members who retired during the years 1995 through 2000 shall receive an increase in the amount of two percent of their present allowance.

3. Members who retired during the years 2001 through 2008 shall receive an increase in the amount of one percent of their present allowance.

V. Effective July 1, 2010, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1980, through December 31, 1995, shall receive an increase in the amount of 1½ percent of their present allowance.

2. Members who retired during the years 1996 through 2001 shall receive an increase in the amount of one percent of their present allowance.

3. Members who retired during the years 2001 through 2008 shall receive an increase in the amount of one-half percent of their present allowance.

W. Effective July 1, 2011, the following additional increases shall take effect:

1. Members who retired between the period of July 1, 1978, through December 31, 1996, shall receive an increase in the amount of one percent of their present allowance.

2. Members who retired during the years 1997 through 2002 shall receive an increase in the amount of one-half percent of their present allowance.

3. Members who retired during the years 2003 through 2010 shall receive an increase in the amount of one-half percent of their present allowance.

X. Effective July 1, 2012, the following additional increases shall take effect:

1. Members who are over the age of 65 and retired with at least 25 years of service and currently receive an annual allowance of less than $20,000.00 per year, shall receive an increase of such allowance in the amount $600.00 per year or $50.00 per month.

(Code 1985, § 25-195; Ord. No. 3971, § 2, 6-5-1990; Ord. No. 4066, § 2, 8-13-1991; Ord. No. 4119, § 2, 7-14-1992; Ord. No. 4197, § 2, 6-29-1993; Ord. No. 4265, § 3, 7-19-1994; Ord. No. 4300, § 1, 12-20-1994; Ord. No. 4344, § 2, 7-25-1995; Ord. No. 4422, § 2, 6-18-1996; Ord. No. 4505, § 2, 7-1-1997; Ord. No. 4611, § 2, 9-15-1998; Ord. No. 4688, § 2, 7-6-1999; Ord. No. 4775, § 2, 6-20-2000; Ord. No. 4874, § 2, 6-19-2001; Ord. No. 4946, § 2, 6-18-2002; Ord. No. 5003, § 2, 6-3-2003; Ord. No. 5060, § 1(part), 2004; Ord. No. 5107, § 2, 2005; Ord. No. 5165, § 2, 2006; Ord. No. 5210, § 2, 2007; Ord. No. 5321, § 2, 8-4-2009; Ord. No. 5359, § 2, 6-8-2010; Ord. No. 5399, § 2, 6-7-2011; Ord. No. 5468, § 1, 9-4-2012)

Editor's note—Ord. No. 5468, adopted Sept. 4, 2012, set out provisions intended to add subsection 4-28-21(z). To preserve the style of this Code, and at the editor's discretion, these provisions have been included as subsection 4-28-21(X).

ARTICLE 5. DROP PROGRAM

Sec. 4-28-22. Deferred retirement option plan (DROP).

A. *DROP overview.* Except as provided in subsection (F) of this section, an eligible employee (as defined in subsection (B) of this section), who has made the election described in subsection (C) of this section, will participate in the program and receive the benefit described in subsection (D) of this section, and receives distributions in the form described in subsection (E) of this section.

B. *Definition. Eligible employee* means any employee who is a participant who has attained his or her normal retirement date and has at least 25 years of service.

C. *Election.* An eligible employee can make an irrevocable election to participate in the DROP program (as described in subsection (D) of this section), during December, March, June, or September, by completing an election form to participate in the DROP program for a maximum one-year, two-year, or three-year period beginning on the effective date of the election, and agreeing to retire no later than the end of his or her one-, two-, or three-year period of participation in the DROP program. The December election is effective on the next January 15, the March election is effective on the next April 15, the June election is effective on the next July 15, and the September election is effective on the next October 15.

D. *Participation and benefits.* During the one-year, two-year, or three-year period elected by the employee:

1. The employee's contributions and the city's contributions to the plan shall cease as of the effective date;

2. No additional years of service or compensation shall be considered (with the exception of possible ad hoc benefit increases granted by the city), so the employee's benefit under the plan is frozen (or fixed) as of the date his or her election is effective;

3. The employee's frozen benefit shall be calculated as though the employee retired on the effective date of his or her election, and a DROP account shall be established for such eligible employee; and

4. A DROP account shall be established for each electing employee. The DROP account shall be a recordkeeping account for the benefit of electing participants, which beginning on the effective date of the electing participant's election, shall be credited with an amount equal to the monthly pension benefit the electing participant would receive had he or she retired and begun receiving payments on the effective date.

Interest shall be credited each calendar quarter on the average monthly balance in the DROP account during such quarter based on 25 percent of the 90-day treasury bill yield published in the last Wall Street Journal of such quarter.

E. *Distribution from DROP program.* As soon as is administratively feasible after the employee has ceased to participate in the DROP program, the city will begin to pay the employee his or her monthly benefit, and also, pay the employee in a lump-sum the balance in his or her DROP account as of the end of the last quarter. The lump-sum payment of the DROP account may be rolled-over at the participant's direction.

F. *Exceptions and limitations.* In the event an employee who has elected to participate in the DROP program becomes disabled or dies in the line of duty as defined in section 4-4-1(27), 4-28-12(A) or 4-28-16, the participant's election shall be retroactively revoked and such participant or beneficiary shall be eligible for line of duty disability retirement or death benefits as defined in section 4-28-12(A) or 4-28-16 as if the DROP program had never been elected.

G. Notwithstanding any other limitations, for any employee who elected to participate in the DROP program between 9/1/2012 and 6/30/2015 and whose effective date of retirement is between 10/1/2015 and 9/1/2018, such employee may elect to temporarily "freeze" in place and suspend participation in the DROP program ("drop suspension"). Requests for a drop suspension must be submitted in writing on a DROP suspension form to the human resources director's office on or before October 30, 2015. The drop suspension period shall commence on the first business day after human resources director's office receives the drop suspension form and shall continue until the earlier of (i) the date the participating employee elects to "unfreeze" and resume participation in the DROP program by submitting a written notice to the human resources director's office, which may be made at anytime after the drop suspension period commences, or (ii) two years from the commencement of the drop suspension period.

By electing to "freeze" and suspend participation in the DROP program, the participating employee agrees that during the drop suspension period he or she will be deemed to be an "employee" under the city's pension plan and for all other city purposes and shall thereby receive creditable service for pension purposes as an regular employee during the drop suspension period.

The city and the electing employee will be required to make all city and employee contributions to the city's pension plan during the drop suspension period.

During the drop suspension period the city's payments to the employees drop account will immediately cease. However, any amount accrued in the employees DROP account as of the commencement of the drop suspension period will be held for the benefit of the electing employee and will accrue normal interest during the drop suspension period.

Upon termination of the drop suspension period, the employee's participation in the DROP program shall recommence at that time and the employee shall be entitled to complete any time remaining in the original election period (1, 2 or 3 years) at the time the employee suspended participation in the DROP program, except that the city's payments into the employee's drop account from that point forward shall be based on recalculated pension Benefits using the additional credible service earned during the drop suspension period. The employee shall not receive pension credible service time for the period of time the employee previously participated in the DROP program. Upon re-entry of the DROP program the provisions of subsection (D) will apply.

H. Notwithstanding any other limitations, an employee who holds the position and title of chief operating officer, chief legal officer/city attorney, chief financial officer, chief of human resources, chief communications officer, chief/director of police, chief/director of fire, city council administrator or chief of staff ("eligible employee"), who elected to participate in the DROP program between January 1, 2012 and June 30, 2016 and whose effective date of retirement is between January 1, 2017 and December 31, 2018 may elect to "freeze" temporarily in place or extend such eligible employee's "freeze" under subsection G and suspend participation in the DROP program ("DROP suspension"). Requests for a drop suspension must be submitted by an eligible employee in writing to the City of Memphis, Tennessee Human Resources Office on or before December 31, 2016 on a DROP suspension form provided for such purpose by the human resources office. The DROP suspension period ("DROP suspension period") shall commence on the first business day following receipt by the human resources office of the duly executed and complete DROP suspension form (the "DROP suspension commencement date") and shall continue until the earlier of (i) the date the participating employee elects to "unfreeze" and resume participation in the DROP program by submitting a written notice to the human resources office on a form provided for such purpose by the human resources office (the "DROP suspension termination date"), which DROP suspension termination date may be at any time after the DROP suspension commencement date, or (ii) three years following the DROP suspension commencement date.

By electing to "freeze" and suspend participation in the DROP program, the participating employee agrees that during the DROP suspension period he or she will be deemed to be an "employee" under the city's pension system, subject to the terms and conditions of the city's pension system, and for all other city purposes and shall thereby receive creditable service for pension purposes as a regular employee during the DROP suspension period. The city and the electing employee will be required to make all city and employee contributions to the city's pension plan during the DROP suspension period in accordance with the terms and provisions of the city's pension system.

Commencing immediately upon the suspension commencement date and continuing throughout the DROP suspension period the city's payments to the employee's drop account will cease. However, any amount accrued in the employee's DROP account immediately preceding the suspension commencement date will continue in such account for the benefit of the electing employee and will continue to accrue interest as provided in and be subject to subsection (D) hereof during the DROP suspension period.

Effective on the first business day following the DROP suspension termination date, the employee's participation in the DROP program shall recommence and the employee shall be entitled to complete any time remaining in the original DROP election period under subsection C (one, two, or three years) as of the DROP suspension commencement date except that the city's payments into the employee's DROP account from the recommencement date until termination of the original DROP election period shall be based on recalculated pension benefits using the additional pension credible service earned during the DROP suspension period. The employee shall not receive pension credible service for the period of time the employee previously participated in the DROP program. Upon the employee's recommencement in the DROP program the provisions of subsection D shall apply.

I. Notwithstanding any other limitations, for any employee who elected or elects to participate in the DROP program between January 1, 2015 and May 1, 2017 and whose effective date of retirement is between February 1, 2018 and June 1, 2020 ("eligible employee") may elect to "freeze" temporarily in place or extend such Eligible Employee's "freeze" under subparagraph (G) and suspend participation in the DROP program ("drop suspension"). Requests for a drop suspension must be submitted by an eligible employee in writing to the City of Memphis Human Resources Office on or before the 30th day following the effective date of adoption of this subparagraph (I) on a DROP suspension form provided for such purpose by the human resources office. The DROP suspension period ("DROP suspension period") shall commence on the first business day following receipt by the human resources office of the duly executed and complete DROP suspension form (the "DROP suspension commencement date") and shall continue until the earlier of (i) the date the participating employee elects to "unfreeze" and resume participation in the DROP program by submitting a written notice to the human resources office on a form provided for such purpose by the human resources office. (the "DROP suspension termination date"), which DROP suspension termination date may be at any time after the DROP suspension commencement date, or (ii) three years following the DROP suspension commencement date.

By electing to "freeze" and suspend participation in the DROP program, the eligible employee agrees that during the DROP suspension period he or she will be deemed to be an "employee" under the city's pension system, subject to the terms and conditions of the city's pension system, and for all other city purposes and shall thereby receive creditable service for pension purposes as a regular employee during the DROP suspension period. The city and the electing employee will be required to make all city and employee contributions to the city's pension plan during the DROP suspension period in accordance with the terms and provisions of the city's pension system.

Commencing immediately upon the DROP suspension commencement date and continuing throughout the DROP suspension period the city's payments to the employee's DROP account will cease. However, any amount accrued in the employee's DROP account immediately preceding the suspension commencement date will continue in such account for the benefit of the electing employee and will continue to accrue interest as provided in and be subject to subparagraph (D) hereof during the DROP suspension period.

Effective on the first business day following the DROP suspension termination date, the eligible employee's participation in the DROP program shall recommence and the eligible employee shall be entitled to complete any time remaining in the original DROP election period under subparagraph (C) (1, 2, or 3 years) as of the DROP suspension commencement date except that the city's payments into the eligible employee's DROP account from the recommencement date until termination of the original DROP election period shall be based on recalculated pension benefits using the additional pension credible service earned during the DROP suspension period. The eligible employee shall not receive pension credible service for the period of time the eligible employee previously participated in the DROP program. Upon the eligible employee's recommencement in the DROP program the provisions of subsection (D) shall apply.

J. Notwithstanding any other limitations, any employee who elected to freeze in place and suspend participation in the DROP program under subparagraph (G) or subparagraph (H), as applicable, may elect to extend such "freeze" in place and extend the DROP suspension period for an additional DROP suspension period until the earlier of (i) the date the electing employee elects to "unfreeze" and resume participation in the DROP program by submitting a written notice to the human resources director's office, which may be made at any time after the additional drop suspension period commences, or (ii) three years from the last day of the original drop suspension period. By electing to extend the "freeze" as provided in this subparagraph (J) the electing employee shall be and remain subject to the same terms and conditions as provided in subparagraph (G) or subparagraph (H), is applicable, during the original DROP suspension period.

(Code 1985, § 25-200; Ord. No. 4548, § 3, 11-18-1997; Ord. No. 5599, 9-15-2015; Ord. No. 5630, 11-1-2016; Ord. No. 5652, §(25-200), 6-20-2017)

ARTICLE 6. BENEFIT FOR TRANSFERRED PARTICIPANTS

Sec. 4-28-23. Cessation of accruals for transferred participants.

Except as expressly provided below and solely for transferred participants who have duly made the elec-

tion provided in section 4-28-1(E), notwithstanding any other contrary provision of this pension system, in calculating the accrued benefit (including the right to any optional benefit provided under the pension system) of any transferred participant, such transferred participant shall accrue no additional benefit under the pension system, division 1 or division 2, on or after June 30, 2016. Transferred participants who have duly made the election in section 4-28-1(E) shall accrued no benefit under division 3 (the 2016 plan) but shall accrue benefits solely pursuant to the terms and provisions of this 1978 plan.
(Ord. No. 5573, § II, 12-16-2014; Ord. No. 5763, § 1(25-201), 12-15-2020)

CHAPTER 4-32. RETIREMENT SYSTEM FOR LIBRARY EMPLOYEES

Sections:

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Sec. 4-32-2. Definition of words.

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Sec. 4-32-3. Participation.
Sec. 4-32-4. Transfers.

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Sec. 4-32-37. Records and account.
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Sec. 4-32-39. Conflict of interest of members or employees.
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Article 8. Amendment or Termination

Sec. 4-32-42. Amendment of retirement system.
Sec. 4-32-43. Termination of plan.
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Article 9. Miscellaneous

Sec. 4-32-45. Liability of employer.
Sec. 4-32-46. Spendthrift clause.
Sec. 4-32-47. Successors to trustee.
Sec. 4-32-48. Conflict of provisions.

ARTICLE 1. DEFINITIONS

Sec. 4-32-1. Definitions.

As used herein, the following words and phrases shall have the meaning indicated unless otherwise defined or required by the context:

Accrued benefit means, for a participant who has not reached his or her normal retirement date, a monthly amount payable thereafter pursuant to the normal form of settlement, calculated in accordance with section 4-32-5 as of the date of his or her termination of employment based on his or her average compensation and credited service as of such date.

Actuarial equivalent or *actuarial equivalence* means equivalent value of a benefit computed on the basis of the 1984 Unisex Pension Mortality Table set back three years for participants and a rate of interest of 6½ percent.

Actuary means a qualified actuary who is enrolled by the joint board for the enrollment of actuaries and who performs the annual actuarial valuations and other computations required under the retirement system.

Annuity starting date means the first day of the first period for which an amount is payable as an annuity or, in the case of a benefit not payable in the form of an annuity, the first day as of which all events have occurred which entitle the participant to such benefit.

Average compensation means:

1. As to any participant who is under the '75 plan provisions, the average monthly compensation of a participant for the three consecutive years of library service (excluding and disregarding any hiatus in the participant's employment by the library) during which his or her compensation was the highest. If his or her average monthly compensation for the 12 months next preceding the date of his or her retirement shall exceed the average of his or her highest three years compensation, then his or her average compensation shall be based upon the 12-month period next preceding the date of his or her retirement, and in the case of death or disability incurred in the performance of duties before any participant has been employed in city service for five years, his or her average compensation shall be the average monthly rate of compensation during his or her period of service. Beginning on and after July 1, 1975, the average compensation of all new employees shall be based on the highest three years average. The purpose of this language is to exclude that provision wherein employees could at their option use for their average compensation the 12 months next preceding the date of retirement.

2. As to any participant who is under the '79 plan provisions, the average monthly compensation of a participant for the three consecutive years of library service (excluding and disregarding any hiatus in the participant's employment by the library) during which his or her compensation was the highest. In the case of death or disability incurred in performance of duties before any participant has been employed in the library for three consecutive years, his or her average compensation shall be the average monthly rate of compensation during this period of service; provided, further, that average compensation shall not exceed 6,240 hours of compensation earned.

Beneficiary means the recipient or recipients, last designated by a participant in writing on forms provided by the employer, who shall receive any benefits payable under the retirement system upon the death of the participant. If no such designation of beneficiary has been received by the employer prior to the date of death of the participant or if there is no surviving beneficiary and a benefit is due and payable that is a lump sum or may, under the terms of the retirement system, be commuted and payable as a lump sum, such benefit shall be payable to the state of the participant.

Board or *board of administration* means the board to which the administrative duties and responsibilities under the plan are delegated pursuant to section 4-32-29.

Child means a legitimate son or daughter, under 18 years of age, of a participant or beneficiary who has been a participant of the retirement system, or a child by adoption who has the status of a legally adopted child and who is under 18 years of age, unless such child qualifies under the definition of full-time student or handicapped child as set out in this section.

City means the City of Memphis, Tennessee.

Code means the Internal Revenue Code of 1986, as amended from time to time.

Compensation means the remuneration received by a participant or his or her salary including shift premium pay, hazardous premium pay, holiday pay, longevity pay and incentive pay, but excluding overtime pay. Compensation shall also include the participant's contributions to the retirement system as provided under section 4-32-26. For plan years beginning on or after January 1, 1993, the restrictions of section 401(a)(17) of the code shall apply to the compensation of any participant taken into account for purposes of the plan.

Contributions means the contributions of participants as provided in section 4-32-26.

County service means regular, full-time service rendered as an employee of Shelby County for compensation.

County transfer service means for any involuntary transfer county employee, credited service to the date of transfer from the county, determined in accordance with the terms of chapters 4-4 through 4-32, as applicable to such participant and as such plan as constituted immediately prior to the date of transfer; provided, however, that, in computing such service, no credit shall be given for periods of time for which the participant has received a refund of contributions, or for other periods of time not counted as credited service in accordance with the terms of chapters 4-4 through 4-32.

Credited service means:

1. As to any participant who is under the '75 plan provisions, the total of the number of years of "current service" plus the number of years of "prior service" where:

    a. "Current service" means library service rendered after October 21, 1926, as well as the board of education service rendered after May 15, 1937, of a transferred employee whose accumulated contributions to the board of education retirement fund are transferred to this retirement fund and who becomes an employee on or before December 31, 1992; and

    b. "Prior service" means prior service credit which is granted pursuant to section 4-32-4 or which is restored pursuant to section 4-32-21; provided that no duplication of service credits shall occur by operation of the various provisions of this section.

2. As to any participant who is under the '79 plan provisions the total number of years, with allowance for completed months of service, as a member of the retirement system, including prior service credit which is granted pursuant to section 4-32-4 or which is restored pursuant to section 4-32-21.

Notwithstanding the preceding subsections (1) and (2) credited service for permanent part-time employees will be computed from the beginning of the 12-month period in which at least 1,000 hours of service were performed for compensation. No credited service will accrue for any month in which less than 80 hours of service are performed for compensation.

Defined benefit plan means a plan established and qualified under section 401 or 403 of the code, except to the extent it is, or is treated as, a defined contribution plan.

Defined contribution plan means a plan established and qualified under section 401 or 403 of the code, which provides for an individual account for each participant therein and for benefits based solely on the amount contributed to each participant's account and any income, expenses, gains or losses (both realized and unrealized) which may be allocated to such account.

Early retirement date means the first day of any month coinciding with or next following the date after he or she becomes eligible for early retirement under section 4-32-6 on which he or she actually retires, and which is prior to his or her normal retirement date.

Educational institution means all public schools, colleges and universities. A nonaccredited school, college or university shall be included if its credits are acceptable to an institution that is accredited. Certification of full-time attendance by a school officer provides the basis for payment of benefits to eligible students. The retirement benefit for a full-time student shall be the same as that for a child under age 18.

Effective date means the effective date of the retirement system, as restated in this document, which shall generally be January 1, 1992, except as may otherwise be provided to the contrary.

Employee means persons employed by the employer on a full-time basis, and permanent part-time employees hired prior to July 1, 1992, but shall exclude any person considered a leased employee within the definition of section 414(n) of the code and any permanent part-time employee hired or rehired after June 30, 1992.

Employer means the Memphis and Shelby County Public Library and Information Center.

Full-time student means a child as defined in this section, except an unmarried child 18 years of age or over, but less than 22 years of age, provided such child is not employed on a full-time basis and is in full-time attendance as a student at an educational institution. A student is considered full-time if enrolled in a noncorrespondence course and is carrying a subject load that is

considered full-time for day students under the institution's standards and practices. In case of high schools and vocational schools (including technical, trade, business and similar schools), a student is considered to be in full-time attendance if:

1. He or she is enrolled for at least 20 hours' work per week;
2. He or she is in a course of study which requires at least 13 school weeks; and
3. The school considers him or her a full-time student under its standards and practices.

Handicapped child means a child as defined herein except that if such child is unmarried and is severely disabled upon attaining age 18 and continues to be so disabled, such child shall be eligible for one-half the pension payable to a child under age 18, if not in the custodial care of a governmental institution. A child is severely disabled if unable to engage in any substantial, gainful activity by reason of any medically determinable physical or mental impairment resulting from anatomical, physiological or psychological abnormalities which are demonstrable by medically acceptable clinical and laboratory diagnostic techniques. Satisfactory proof of disability shall be provided to the board of administration not less frequently than once each year after qualifying under this definition, or more frequently if deemed necessary by the board of administration. Failure to provide adequate proof of disability shall result in the immediate cancellation of any benefit hereunder.

Involuntary transfer city employee means an individual who became an employee of the library as a direct result of one or any combination of the following events:

1. The legal consolidation of any agency, board, commission or other entity, regardless of its name, which was being administered by the city in whole or in part prior to such administration being assumed by the library;
2. The cessation of operation or function by any agency, board, commission, or other entity, regardless of its name, which was being administered by the city in whole or in part prior to such cessation;
3. The election or legal appointment of an employee to a position with the library including an employee who had previously terminated employment with the city but who is entitled to a benefit under the terms of chapters 4-4 through 4-28;
4. The employment of an employee by the library for the convenience of the library.

Involuntary transfer county employee means an individual who was last a participant in the county retirement system prior to becoming an employee of the library and has become an employee as a direct result of one, or any combination of, the following events:

1. The legal consolidation of any agency, board, commission or other entity, regardless of its name, which was being administered by the county in whole or in part prior to such administration being assumed by the library;
2. The cessation of operation or function by any agency, board, commission, or other entity, regardless of its name, which was being administered by the county in whole or in part prior to such cessation;
3. The election or legal appointment of an employee to a position with the library, including an employee who has previously terminated employment with the county but who is entitled to a vested benefit from the county retirement system; or
4. The employment of a county employee by the library for the convenience of the library.

Involuntary transfer employee means an involuntary transfer city employee or an involuntary transfer county employee, as applicable.

Library service means regular, full-time or permanent part-time services, rendered as an employee of the library for compensation.

Library transfer employee means an individual who was a participant in the plan prior to becoming an employee of the city or county as a direct result of one, or any combination of, the following events:

1. The legal consolidation of any agency or entity being administered by the library in whole or part prior to such administration being assumed by the city or county;
2. The cessation of operation or function by any agency or entity being administered by the library in whole or part prior to such cessation;

3. The legal election or appointment of an employee to a position with the city or county, including an employee who has previously terminated employment with the library but who is entitled to a benefit from this plan; or

4. The employment of a library employee by the city or county for the convenience of same.

Limitation year means each 12-month period commencing on January 1 and ending on December 31.

Normal retirement date means:

1. As to any participant who is under the '75 plan provisions, the date he or she shall have completed ten years of credited service and attained the age of 60 years; or shall have completed 25 years of credited service and attained the age of 55 years; or shall have completed 30 years of credited service irrespective of age.

2. As to any participant who is under the '79 plan provisions, the date he or she shall have completed five consecutive years of credited service immediately before retirement and attained the age of 65 years, or shall have completed 25 years of credited service and attained the age of 62 years, or shall have completed 30 years of credited service and attained the age of 60 years.

Participant means any employee who becomes a participant in the plan as provided in article 2 of this chapter.

Permanent part-time employee means an employee of the rank and pay scale of library clerk II or higher who is employed on a part-time but regular and continuous basis for no fewer than 1,000 hours per year and with respect to whom employer contributions are not made under federal Social Security contribution laws. No other part-time employee shall be included within this definition and therefore no such other part-time employee shall be eligible to participate in the plan.

Plan year means each 12-month period commencing on January 1 and ending on December 31.

Qualified joint and survivor annuity means a monthly benefit payable for the life of the participant with a monthly benefit continuing for the life of his or her spouse equal to: (a) in the case of the '75 plan, (1) in the case of a participant whose annuity starting date occurs after 1992, 75 percent of the amount of the monthly benefit payable during the joint lives of the participant and the spouse, or (2) in the case of a participant whose annuity starting date occurs before 1993, 100 percent of the amount of the monthly benefit payable during the joint lives of the participant and the spouse; and (b) in the case of the '79 plan, 75 percent of the amount of the monthly benefit payable during the joint lives of the participant and the spouse, and in either case which is the normal form of payment under the plan for participants who are married as of their annuity starting date.

Regular interest means the interest paid on the participant's contributions as set by the board of administration.

Retirement fund or *fund* means the assets consisting of cash and such other property as shall be paid or delivered to the trustee, including earnings thereon, pursuant to article 6 of this chapter.

Retirement system means the Memphis and Shelby County Public Library and Information Center Retirement System as described herein and as amended from time to time.

Seventy-five plan or *'75 plan* means the retirement system created and established effective April 1, 1975.

Seventy-nine plan or *'79 plan* means the retirement system created and established effective April 1, 1979.

Spouse means a lawful spouse of a participant or former participant who has had the status of lawful spouse for an unbroken period of at least two years immediately preceding the death of such participant or former participant.

TEFRA means Public Law 97-248, more commonly known as the Tax Equity and Fiscal Responsibility Act of 1982.

Transfer service means the credited service for benefit accrual purposes, as determined in accordance with the retirement system of the city or county, or in accordance with the terms of this plan, as applicable and as required by the context.

Trustee means the board, which is designated as such in article 6 of this chapter.

Vesting service means credited service.

Vested terminated means a participant of the retirement system who has terminated his or her employment with the library, who is not employed by the city or

county, and who has elected to leave his or her accumulated contributions in the library retirement fund for vested credit.
(Code 1985, § 18-41; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-2. Definition of words.

Feminine or neuter pronouns shall be substituted for those of the masculine form, and the plural shall be substituted for the singular, in any place or places herein where the context may require such substitution or substitutions.
(Code 1985, § 18-88; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 2. PARTICIPATION

Sec. 4-32-3. Participation.

A. All full-time and permanent part-time employees of the employer as of April 1, 1975, shall be participants under the '75 plan of the retirement system, and their entry date shall be:

1. For full-time employees, the date they began their service with the Memphis and Shelby County Public Library and Information Center, Memphis Public Library and Information Center, Memphis Public Library, or Cossitt Library; and

2. For permanent part-time employees, the date which is the first day of the 12-month period in which they were compensated for 1,000 or more hours as described in section 4-32-1, definition of "permanent part-time employee."

B. All salaried full-time and permanent part-time employees who enter library service after April 1, 1975, and before April 1, 1979, shall, as a condition of such employment, be participants, pursuant to the '75 plan provisions, from the effective date of entering such service.

C. All employees who enter library service on or after April 1, 1979, as a result of being hired or rehired, shall be participants under the '79 plan; provided, however, that an employee who was a participant under the '75 plan and who:

1. Terminated employment while under such provisions after having satisfied the requirements for a vested benefit under such provisions and who elected a monthly retirement benefit in lieu of a return of his or her contributions; or

2. Retired under such plan under regular retirement or disability retirement provisions, shall, following any subsequent rehire, be a participant of the '75 plan, rather than the '79 plan.

D. Except as specifically provided above, all employees who enter library service on or after April 1, 1979, shall become participants of the '79 plan of the retirement system and not participants of the '75 plan. In the case where an employee who was a former participant under the '75 plan becomes a member under the '79 plan because of being rehired and not being covered by subsection (C)(1) and (2) of this section, credited service, if any, shall be granted in this system for such prior participation in the retirement system pursuant to section 4-32-21.

E. Notwithstanding the foregoing, permanent part-time employees hired on or after January 1, 1992, shall not be eligible for participation in the retirement system.
(Code 1985, § 18-42)

Sec. 4-32-4. Transfers.

Under the circumstances described in this section a participant may be credited with additional service and/or have service under this plan credited as additional service under certain other retirement plans.

A. *Involuntary transfer from the city or county.* Each involuntary transfer employee shall present to the board a certificate stating the amount of his or her city or county transfer service. The board shall have the authority to review and accept such transfer service certificate and shall approve crediting of such transfer service as credited service, provided such service has been calculated in accordance with the city or county retirement system, as applicable, all conditions regarding the transfer of the participant as specified in this fulfilled, and the person transferred reports for employment with the city or county on the date required by authorized designee of the city or county. Transfer service shall be added to the participant's credited service for purposes of determining the participant's eligibility for a retirement allowance;

B. *Accrued benefits of involuntary transfer employee.* Except for purposes of section 4-32-8, the accrued benefit of an involuntary transfer employee shall be determined as the excess, if any, of a. minus b., where:

1. Is his or her accrued benefit based on his or her total years of service, including city or county transfer service, and his or her average compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be; and

2. Is his or her accrued benefit based on his or her city or county transfer service and average compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.

For purposes of section 4-32-8, the accrued benefit of an involuntary transfer employee shall be his or her accrued benefit based on his or her total years of service, including transfer service, and his or her average compensation as of his or her date of retirement or earlier termination of employment as an employee, as the case may be.

C. *Involuntary transfer from the library.*

1. A library transfer employee to the city or county shall become a member of the city or county retirement system, as applicable, subject to the provisions of such plan, as of his or her date of employment with the city or county. Upon proper notification by city or county government, the board shall issue a certificate stating the amount of the transferred participant's transfer service. The board shall present to the city or county such transfer service certificate for review and acceptance and shall approve such transfer service, provided such person transferred reports for employment with the city or county on the date required by an authorized designee of the city or county.

2. A library transfer employee shall receive a benefit under this plan, if he or she would be entitled to one other than under sections 4-32-8 or 4-32-19(A), based on the sum of his or her years of creditable service with the library retirement system. The amount of such benefit shall be determined under this plan based on his or her average compensation (defined to take into account any compensation received by him or her from the city or county prior to his or her retirement, death or disability not incurred in line-of-duty, or other termination of employment) and his or her credited service as of the date of his or her transfer from the library.

3. No benefit under section 4-32-8 or section 4-32-19(A) shall be paid any library transfer employee. Instead, upon payment to the employee of any benefits due to death or disability attributable to hazardous duty in accordance with the terms of the city or county retirement system, the participant's employee contributions then in the trust fund shall be transferred to the city or county retirement plan. Such transfer shall be a full and unconditional release of any and all obligations of the library under this plan. Under no other circumstances shall any assets of the trust fund be transferred to the city or county retirement system on behalf of a library transfer employee, and the actuarial funding and payment of any other benefit shall be the responsibility of the city or county.

(Code 1985, § 18-43; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 3. RETIREMENT BENEFITS

Sec. 4-32-5. Normal retirement.

A. *Condition.* A participant whose employment with the employer is terminated on or after his or her normal retirement date shall be entitled to receive a monthly retirement benefit paid in accordance with article 4 of this chapter.

B. *Normal retirement benefit.* The monthly retirement benefit, based on the normal form of payment, described in section 4-32-14(A), which shall commence on the participant's retirement date, shall be determined as of such date as (1) plus (2) where:

1. Equals two and one-half percent of average compensation multiplied by his or her years of credited service (not to exceed 25 years); and

2. Equals one percent of average compensation multiplied by his or her years of credited service (not to exceed ten years) in excess of 25 years.

Notwithstanding the foregoing or any other provision of the plan, for benefits determined as of any date prior to July 1, 1992, and all cases for determining the benefit of any individual who is not an employee on or after July 1, 1992, subsection (B)(1) of this section shall be applied by substituting "2¼ percent" for "2½ percent."

C. *Conversion of unused sick leave into creditable service.*

1. Employees may elect to convert unused sick leave into creditable service time to become initially qualified for retirement benefits, or provide for benefit enhancement of a full and normal retirement. If an employee requests to use unused sick leave to become eligible for a full and normal retirement, credit time will be given for all unused leave.

2. Upon full and normal retirement eligibility, full-time employees with 35 years or less of creditable service who are members of the library retirement system will have the following options: employees may be paid up to 65 days (520 hours) of accumulated sick leave; or employees may elect to add accumulated sick leave days to their creditable service for pension benefit calculations. Percentage will not exceed 72.50 of average annual compensation.

3. For the purpose of converting accumulated sick leave hours to service time, 173.33 hours of accumulated sick leave will equal one month of creditable service.

4. Employees with more than 35 years of creditable service will have the following options: employees may elect to be paid up to 65 days (520 hours) of unused sick leave; or employees may elect to convert the unused sick leave to an annual percentage (one percent for each years accumulation of sick leave hours). The employee will receive a one-time-only payment which represents the annual percentage calculated based on the life expectancy of the employee.

5. In calculating regular retirement benefit payments, at no time will the maximum percentage amount exceed 72.50 percent of average annual compensation.

(Code 1985, § 18-44; Ord. No. 4173, § 1, 4-16-1993; Ord. No. 4833, 12-19-2000)

Sec. 4-32-6. Early retirement.

A. *Condition.* If a participant who is under the '79 plan terminates employment with the employer prior to his or her normal retirement date, but at or after such time that he or she has attained age 55 and completed 25 years of credited service, he or she shall be entitled to a monthly retirement benefit paid in accordance with article 4 of this chapter.

B. *Early retirement benefit.* The monthly retirement benefit determined as of a participant's early retirement date, based on the normal form of payment described in section 4-32-14(A), shall be a percentage of his or her accrued benefit reduced as follows:

PERCENTAGE OF ACCRUED BENEFIT

Retirement Age	*Between 25 and 30 Years of Credited Service at Retirement (percent)*	*More than 30 Years of Credited Service at Retirement (percent)*
55	55	65
56	60	70
57	65	77
58	70	84
59	77	92
60	84	100
61	92	100
62	100	100
63	100	100
64	100	100
65	100	100

Any participant may elect to retire pursuant to this section and defer receiving his or her retirement benefit to the first age at which unreduced benefits would be payable as follows: age 60 with 30 years of credited service, at age 62 with 25 years of credited service but less than 30 years of credited service, in which case the participants full accrued benefit will be payable without reduction upon written application from date of such age.

(Code 1985, § 18-45; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-7. Minimum retirement benefit.

Notwithstanding anything in this article to the contrary, in no event shall the monthly retirement benefit payable for any participant who retires pursuant to either section 4-32-5 or 4-32-6 be less than $100.00 per month. (Code 1985, § 18-46; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-8. Disability.

A. *Ordinary disability retirement; conditions.*

1. Any participant who has had five or more years of credited service may be retired for ordinary disability if such employee shall be found by the board of administration, upon examination, to be mentally or physically incapacitated so as to be wholly unable to properly perform his or her duties as a member of his or her department in library service and is not eligible for line-of-duty disability as defined in subsection C of this section. A participant may be so retired only if the examinations of two disinterested physicians appointed by the board of administration shall certify and show to the satisfaction of the board of administration that the participant is incapacitated as above described and ought to be retired and that the participant has been continuously so incapacitated since his or her discontinuance from library service application for such retirement shall be made by the library director or by the person acting in his or her behalf.

2. The board of administration shall secure such medical service and advice as may be necessary to carry out the purpose of this section and shall pay for such medical service and advice and such compensation as the board of administration deems reasonable. In no case, however, shall there be employed or appointed a physician who is eligible for participation in the retirement system or who has filled an elective, appointed, or salaried office in the city or county government within a period of five years next preceding his or her employment or appointment.

B. *Ordinary disability retirement benefit.*

1. Upon retirement for ordinary disability as provided in subsection A of this section, a participant who is also then eligible for normal retirement as provided in section 4-32-5(A) shall receive a normal retirement benefit as provided by section 4-32-5(B). If a participant eligible for ordinary disability retirement is not also then eligible for normal retirement, he or she shall receive a disability retirement benefit of an amount equal to 2$^{5}/_{10}$ percent of his or her average compensation multiplied by the number of years of credited service; provided, however, that in such latter case the disability retirement benefit shall not be greater than 62.5 percent of his or her average compensation. For participants disabled before July 1, 1992, the prior sentence shall be applied by substituting "2$^{1}/_{4}$ percent" for "2$^{5}/_{10}$ percent" and by substituting "56.25 percent" for "62.5 percent."

2. The board of administration may withhold the payment of any retirement benefit in cases where the board of administration can show proof that the disability of the participant was due to gross and willful misconduct by the participant, and in such case the board of administration shall pay such participant in one lump sum, and in lieu of a retirement benefit, his or her accumulated contributions with interest.

3. Notwithstanding any other provision, no participant shall qualify for a disability retirement benefit if the board determines that his or her disability results from:

   a. Substance abuse, if disability occurs prior to July 1, 1992;

   b. Any injury suffered while engaged in a felonious or criminal act or enterprise; or

   c. Service in the armed forces of the United States which entitles the participant to a veteran's disability pension.

This provision shall prevent the participant from qualifying for a benefit under another provision of the system.

C. *Line-of-duty disability benefits.* Upon the application of a participant or the library director, any participant whom the board of administration finds has been totally and permanently incapacitated for duty as the direct and proximate result of an accident sustained in service of the employer while a participant and occurring while in the actual performance of duty at some definite time and place without willful negligence on his or her part, may be retired by the board of administration;

provided that, two disinterested physicians appointed by the board have certified that the participant is mentally or physically totally incapacitated for the further performance of duty, that such incapacity is likely to be permanent, and that the participant should be retired upon retirement for line-of-duty disability. The participant shall receive a retirement benefit of an amount equal to 60 percent minimum or 72.5 percent maximum allowance of his or her average compensation, based on the percentage of 2⅕ percent times years of credited service. For participants disabled before July 1, 1992, the prior-sentence shall be applied by substituting "2¼ percent" for "2⅕ percent" and by substituting "56.25 percent" for "62.5 percent." The payments under such retirement allowance shall be made during the period of total disability, and, in the event of death of such participant resulting proximately from such accident and injury, payment shall then be made as provided in section 4-32-14.

D. *Re-examination of disability beneficiaries and cancellation of disability benefits.*

1. The board, at its pleasure, but not less frequently than once a year for the first two years nor more frequently than once a year after the first two years, may require a participant receiving an ordinary or line-of-duty disability benefit to undergo a medical examination, such examination to be made by a physician appointed by the board of administration. Upon the basis of such examination, the board shall determine whether such disabled participant is still incapacitated or disabled as provided in subsection A or subsection B of this section, as the case may be, for service in the department of the library where he or she was employed. If the board shall determine that the participant is not so incapacitated or disabled, his or her retirement benefit shall be canceled forthwith and he or she shall be reinstated to library service.

2. Should a disabled participant reenter the library service and be eligible for participation in the retirement system, his or her retirement benefit shall be canceled forthwith and he or she shall immediately become a participant of the retirement system. The participant's individual account shall be credited with his or her accumulated contributions at the time of his or her disability retirement, and he or she shall retain credit for his or her prior service in the same manner as if he or she had never been retired for disability.

3. Should any disabled participant refuse to submit to a medical examination as provided herein, his or her retirement benefit shall be discontinued until his or her withdrawal of such refusal.

4. Should the retirement benefit of any disabled participant canceled for any cause other than reentrance into the library service, he or she shall be paid his or her accumulated contribution with interest less the retirement benefit payments made to him or her.

(Code 1985, § 18-47; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-9. Suspension of benefits.

If a participant continues employment after his or her normal retirement date or is reemployed by the employer after he or she has begun to receive retirement benefits under the plan, payment of retirement benefits shall be suspended during his or her continued employment, except as may be provided in section 4-32-8(D).
(Code 1985, § 18-48; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-10. No duplication of benefits.

Notwithstanding any provision of the plan which may be construed to the contrary, a participant or beneficiary shall not be entitled to two separate benefits under the plan which are attributable to the same period of employment. Accordingly, if benefit payments are made to or in respect of the same participant, the determination of which is based upon the same period of employment as the benefits previously paid, the benefit currently payable shall be reduced to reflect the actuarial equivalent value of the benefits previously paid.
(Code 1985, § 18-49; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-11. Benefits not modified by Social Security payments.

No modification of the benefits provided in this article shall be made because of any amount or amounts payable to a participant under the provisions of the federal Social Security Acts, except for former employees of Goodwyn Institute, where the terms of the Goodwyn Cossitt agreement dated September 12, 1961, shall prevail.
(Code 1985, § 18-50; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-12. Limitation on benefits.

A. *General limitation.* Effective for plan years commencing on or after January 1, 1987, the projected annual benefit of a participant expressed as a single life annuity shall not, for any limitation year, exceed the lesser of $90,000.00 or 100 percent of his or her average aggregate compensation (as defined in code section 415(c)(3)) from the employer for his or her high three consecutive calendar years.

B. *Adjustments to dollar limitation.* The dollar limitation under subsection A of this section shall be automatically adjusted annually to reflect any cost-of-living adjustments made by the secretary of the treasury or his or her delegate, and shall be effective as of January 1 of each calendar year and shall apply to the limitation year ending with or within that calendar year. Anticipated future increases in such dollar limitation beyond the current limitation year shall not be taken into account by the actuary for purposes of determining the funding requirements of the plan under article 6 of this chapter.

C. *Participation fewer than ten years.*

1. If a participant has completed fewer than ten years of participation, the participant's accrued benefit shall not exceed the defined benefit dollar limitation as adjusted by multiplying such amount by a fraction, the numerator of which is the participant's number of years (or part thereof) of participation in the plan, and the denominator of which is ten.

2. If a participant has completed fewer than ten years of service with the employer or an affiliate, the limitations described in sections 415(b)(1)(B) and 415(b)(4) of the code shall be adjusted by multiplying such amounts by a fraction, the numerator of which is the participant's number of years of service (or part thereof), and the denominator of which is ten.

3. In no event shall this section reduce the limitations provided under sections 415(b)(1) and (4) of the code to an amount less than one-tenth of the applicable limitation (as determined without regard to this section).

D. *Changes in benefit structure.* To the extent provided by the Secretary of the Treasury, subsection C of this section shall be applied separately with respect to each change in the benefit structure of the plan.

E. *Preservation of accrued benefit.* If the current accrued benefit of an individual who is a participant as of the first day of the limitation year beginning on or after January 1, 1987, exceeds the benefit limitations under section 415(b) of the code (as modified by this section), then, for purposes of code section 415(b) and (e), the defined benefit dollar limitation with respect to such individual shall be equal to such current accrued benefit. "Current accrued benefit" means a participant's accrued benefit under the plan, determined as if the participant had separated from service as of the close of the last limitation year beginning before January 1, 1987, when expressed as an annual benefit within the meaning of section 415(b) (2) of the code. In determining the amount of a participant's current accrued benefit, the following shall be disregarded:

1. Any change in the terms and conditions of the plan after May 5, 1986; and

2. Any cost of living adjustment occurring after May 5, 1986.

F. *Protected annual benefit.* For purposes of this section, a participant's projected annual benefit shall be equal to the annual benefit to which he or she would be entitled based on the assumptions that his or her employment continues until his or her normal retirement date, that his or her compensation remains constant from the limitation year under consideration until his or her normal retirement date, and that all other relevant factors used to determine benefits remain constant as of the current limitation year for all future limitation years.

G. *Benefits not in excess of $10,000.00.* Notwithstanding subsection A of this section, benefits payable shall not be deemed to exceed the limitation of such subsection if such benefits do not exceed $10,000.00 for the limitation year or for any prior limitation year, and the employer has not at any time maintained a defined contribution plan in which the participant participated.

H. *1.0 limitation.* If the employer maintains a defined contribution plan in addition to this plan, for a participant covered by such plan the sum of the "defined benefit plan fraction" and the "defined contribution plan fraction" for any plan year shall not exceed 1.0.

1. The defined benefit plan fraction for any limitation year is a fraction, the numerator of which is the participant's projected annual benefit under all defined benefit plans (determined as of the close of the limitation year), and the denom-

inator of which is the lesser of: (i) the product of the maximum dollar limit for such year multiplied by 1.25; or (ii) the product of the percentage of compensation limit for such year multiplied by 1.4, if such plan provided the maximum benefit allowable under section 415(b) of the code as amended by TEFRA.

2. The defined contribution plan fraction for any limitation year is a fraction, the numerator of which is the sum of all of the annual additions (as defined in code section 415(c)(2)) to the participant's individual account under the plan as of the close of the limitation year, and the denominator of which is the sum of the lesser of the following amounts determined for such limitation year and for each prior limitation year of employment with the employer: (i) the product of the maximum dollar limit in effect pursuant to code section 415(c)(1)(a) without regard to code section 415(c)(6) for such year multiplied by 1.25; or (ii) the product of the amount determined under the percentage of compensation limit for such year pursuant to code section 415(c)(1)(b) multiplied by 1.4.

3. If the sum of the defined benefit plan fraction and the defined contribution plan fraction shall exceed 1.0 in any limitation year for any participant in this plan, the administrator shall adjust or freeze the rate of benefit accrual for purposes of a defined benefit plan or the amount of annual additions to a defined contribution plan on behalf of any participant so that the sum of both fractions shall not exceed 1.0 in any limitation year for such participant. The limitation on aggregate benefits from a defined benefit plan and a defined contribution plan shall be complied with by a reduction (if necessary) in the participants benefits under the defined contribution plan before a reduction to this defined benefit plan.

I. *Other defined benefit plans.* For purposes of applying the limitations set forth in subsection A of this section, all defined benefit plans of the employer, whether or not terminated, shall be treated as one defined benefit plan.

J. *Benefits payable before age 62.* In applying the dollar limitation set forth in subsection A of this section, with respect to benefits commencing prior to age 62, such dollar limitation shall be adjusted to the actuarial equivalent of a single life annuity beginning at age 62; such dollar limitation shall not be reduced, however, below: (i) if the benefit begins at or after age 55, $75,000.00; or (ii) if the benefit begins before age 55, the amount which is the equivalent of the $75,000.00 limitation for age 55. In determining the actuarial equivalent of such benefit, the interest rate assumption shall not be less than the greater of five percent or the applicable rate set forth in the plan for determining actuarial equivalence.

K. *Benefits payable after age 65.* In applying the dollar limitation set forth in subsection A of this section, with respect to benefits commencing after age 65, such dollar limit shall be adjusted to the actuarial equivalent of the dollar limit beginning at age 65. Such limitation on the benefit shall not exceed 100 percent of the participant's highest three years of compensation in determining the actuarial equivalent of such benefit, the interest rate assumption shall not exceed the lesser of five percent or the applicable rate set forth in the plan for determining actuarial equivalence.

(Code 1985, § 18-51; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 4. PAYMENT OF BENEFITS

Sec. 4-32-13. General conditions.

As a condition precedent to the distribution of any benefit under the plan to a participant or beneficiary, as the case may be, such participant or beneficiary may be required to submit a written application to receive such benefit in such form and manner as shall be prescribed by the board of administration. Any payment of benefits to a participant or beneficiary, or to their legal representative, in accordance with the provisions of the plan, shall, to the extent of the method of computation as well as the amount thereof, constitute full satisfaction of all claims hereunder against the trustee, the board of administration and the employer, who may require such participant or beneficiary or legal representative, as a condition precedent to such payment, to execute a receipt and release therefor.

(Code 1985, § 18-52; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-14. Form of benefit payment.

A. *Normal form of payment.*

1. Except as provided in subsection B of this section with respect to married participants, the

normal form of payment of any benefit provided under the plan shall be in the form described as a single life annuity, payable monthly to the participant during his or her lifetime.

2. Any optional forms under section 4-32-15 shall be the actuarial equivalent of such normal form of benefit payment.

B. *Qualified joint and survivor annuity.*

1. Unless a participant is one to whom subsection D of this section applies, benefits payable under the plan to a participant who is married on his or her annuity starting date shall be paid in the form of a qualified joint and survivor annuity.

2. The survivor's benefit payable to a spouse pursuant to this subsection shall be payable until the surviving spouse's death or remarriage. Any spouse who reverts to single status because of death, divorce or annulment may make application to the board that the survivor's benefit be reinstated effective upon approval of the application; provided, however, that the benefit herein shall begin on the first day of the month following approval of the application.

3. In the event the participant is survived by a child or children (but no spouse), or the spouse, if such be the case, is survived by a child or children of such participant, or in the event the spouse remarries, then the same survivor's benefit theretofore paid to the spouse, or the amount to which such spouse would have been entitled, shall be paid to, or divided among, the child or children, or their legal guardian, for so long as such payee(s) remains a child.

4. Notwithstanding the foregoing, the qualified joint and survivor annuity shall not be required with respect to a small benefit as determined under subsection E of this section which is paid in a lump sum.

C. *Election to receive an optional form of benefit.*

1. Each participant shall be given a written notice to the effect that benefits hereafter payable will be in the form specified in this section unless the participant elects to the contrary prior to the commencement of payments.

2. A participant who desires to have his or her retirement benefit paid under one of the optional forms provided in section 4-32-15 shall make an election by written request to the board of administration on forms provided by the board of administration. After retirement benefit payments have commenced, no future elections or revocations of an optional form will be permitted under any circumstances.

D. *Unmarried participants.* If a participant entitled to a benefit under this article is unmarried, the benefit payable to him or her shall be in the form described in subsection A of this section unless an optional form of benefit is elected by the participant under section 4-32-15.

E. *Small benefit may be paid in lump sum.* If an employee terminates service and if the present value of a benefit payable to the participant or his or her beneficiary is equal to or less than $3,500.00, the administrator shall direct that such benefit be paid in a lump sum as soon as is practicable. No lump-sum distribution shall be made after the date be hereunder annuity starting date.
(Code 1985, § 18-53; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-15. Optional form of benefit payment.

A. *Determination of optional benefit.* The amount of any benefit payable in accordance with options provided in this article shall be determined as of the date payment thereof is made or commenced as the actuarial equivalent of the normal form of payment. Under any option elected which provides for payments to a beneficiary after the death of a participant, except under option 1 if the participant's spouse is the beneficiary, the actuarial present value of all payments to the participant must be more than 50 percent of the actuarial present value of payments to the participant and his or her beneficiary.

B. *Description of options.*

1. *Option 1—Optional joint and survivor annuity.* This form of benefit is payable monthly to the participant for life and a percentage (50 percent, 75 percent or 100 percent) of such amount, as elected by the participant, shall continue after his or her death to his or her surviving beneficiary for life.

2. *Option 2—Single life annuity.* This form of benefit is payable monthly to the participant for life.

3. *Option 3—Life annuity with payments guaranteed.* This form of benefit is payable monthly to

the participant for life with the first 60, 120 or 180 monthly payments guaranteed, as elected by the participant. Any guaranteed payments due after the death of the participant shall be payable to his or her designated beneficiary, if any, who survives the participant, or if there is no surviving designated beneficiary, the commuted value of any remaining guaranteed payments shall be payable in a lump sum to the participant's estate. If the surviving designated beneficiary should die before all guaranteed payments have been paid, the commuted value of any remaining guaranteed payments shall be payable in a lump sum to the estate of the beneficiary.

C. *Cancellation of election.* The election by a participant of any option under this article involving survivor payments shall be null and void if the participant's designated beneficiary shall die before benefit payments commence, and benefits shall be payable pursuant to the normal form of settlement.
(Code 1985, § 18-54; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-16. Time of payment.

A. Unless otherwise consented to by the participant, in no event may any benefit pursuant to the plan commence later than the 60th day after the close of the plan year in which occurs the later of:

1. The date on which the participant attains his or her normal retirement age;
2. The tenth anniversary of the date the employee becomes a participant; and
3. The date on which the participant terminates his or her service with the employer.

B. Notwithstanding any other provision of this plan, but subject to the joint and survivor annuity provisions of the plan and except as may otherwise be permitted under regulations issued by the Secretary of the Treasury, effective on and after January 1, 1987, benefits pursuant to the plan shall begin to be paid to a participant no later than the later of: (i) April 1 of the calendar year following the calendar year in which he or she attains age 70½, or (ii) April 1 of the calendar year following the calendar year in which the participant retires. Any such participant must be made over the lives of the participant and the participant's designated beneficiary or the life expectancy of the participant (or the life expectancies of the participant and his or her designated beneficiary). All distributions under the plan shall be made in accordance with section 401(a)(9) of the code and regulations issued by the Secretary of the Treasury thereunder including, but not limited to, regulation 1.401(a)(9)-2, taking into account any special rules or options applicable to governmental plans.
(Code 1985, § 18-55; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-17. Minimum distributions.

If the participant's entire interest is to be distributed in other than a lump sum, then the amount to be distributed each year must be at least an amount equal to the quotient obtained by dividing the participant's entire interest by the life expectancy of the participant or the joint and last survivor expectancy of the participant and his or her designated beneficiary. Life expectancy and joint and last survivor expectant are computed by the use of the return multiples contained in section 1.72-9 of the regulations to the code. For purposes of plus computation, the life expectancy of a participant or his or her spouse may be recalculated no more frequently than annually at the section of the participant, but in the absence of such an express section by a participant an individual's life expectancy shall not be recalculated annually; however, the life expectancy of a nonspouse beneficiary may not be recalculated.
(Code 1985, § 18-56; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-18. Direct relievers to other qualified plans.

The amount payable to a participant may be paid directly to the trustee or any other qualified retirement plan or arrangement, if and to extent provided by section 401(a)(31) of the code and regulations or other guidance issued by the Secretary thereunder. Any option available to an employer under such code section, regulation or other guidance shall be available hereunder. The plan's administrator shall establish reasonable procedures to accommodate any such direct rollover.
(Code 1985, § 18-57; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 5. BENEFITS ON DEATH OR TERMINATION OF EMPLOYMENT

Sec. 4-32-19. Death benefit.

A. *Death in the line of duty.* If a participant while in library service shall be injured by an accident arising out of and in the course of his or her employment, and death

results proximately from such accident and injury, either before or after he or she has been retired on account of disability in the line of duty, a retirement benefit in the amount equal to 50 percent minimum or 62.5 percent maximum allowance of his or her average compensation, based on the percentage of 2⅕ percent times years of credited service, shall be made payable only to the following person or persons: spouse of such participant provided a marital status existed at the time of his or her injury and death; if no spouse, the child(ren) for so long as such payee(s) remains a child(ren). For participants who die before July 1, 1992, the prior sentence shall be applied by substituting "2¼ percent" for "2⅕ percent" and by substituting "56.25 percent" for "62.5 percent." The benefit shall be paid to the spouse or children under the same eligibility provisions for survivors set forth in subsection C of this section. In the case of a benefit under the '75 plan, if the participant is not survived by a spouse or minor children under the age of 18, such death benefit shall be payable to the father or mother, if any, who was supported by the deceased participant at the time of his or her death.

B. *Death not in line of duty.* It is further provided that if a participant while in library service shall die, but not in the line of duty, a death benefit, based upon the deceased participant's accrued benefit, shall be payable in accordance with this subsection.

1. In the case of the '75 plan, if no pension or retirement allowance is provided for his or her beneficiary(ies) or dependents under this article, an amount equal to his or her accumulated contributions with interest shall be paid to his or her beneficiary(ies), if living, or if not living then to the estate of the participant. If the participant was credited with at least five years of credited service rate the time of his or her death, his or her spouse or minor children shall receive the survivor portion of the normal form of payment described in section 4-32-14(A) or, if the participant is credited with not fewer than 15 years of credited service as of the date of his or her death, no less than $100.00 per month; provided that such $100.00 minimum shall not apply to permanent part-time employees.
2. In the case of the '79 plan, the surviving spouse if any, or if none the surviving children of a participant who has contributed to the plan and who is credited with not fewer than five years of credited service at his or her death or was previously retired for disability prior to death shall be entitled to a benefit equal to the survivor portion of the normal form of payment described in section 4-32-14(A). If such a participant had fewer than five years of credited service at death and had not previously retired for disability, his or her accumulated contributions plus interest shall be paid to his or her beneficiary if alive, or if not alive, then to the estate of the participant.

C. *Discontinuation of benefit; reapplication for benefits.* The death benefit payable to a spouse pursuant to this section shall be payable until death or remarriage. Any spouse who reverts to single status because of death, divorce or annulment may make application to the board that the death benefit be reinstated effective upon approval of the application; provided, however, that, the benefit herein shall begin on the first day of the month following approval of the application.

In the event the participant is survived by a child or children (but no spouse), or the spouse, if such be the case, is survived by a child or children of such participant, or in the event the spouse remarries, then the same death benefit theretofore paid to the spouse, or the amount to which such spouse would have been entitled, shall be paid to, or divided among, the child or children, or their legal guardian.
(Code 1985, § 18-58; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-20. Termination of employment.

A. In the event a participant's employment with the library is terminated by the library, without fault or delinquency on the part of the participant, and such participant has a minimum of 15 years of credited service, then the participant shall be entitled to a deferred retirement benefit following such termination, commencing at the time when the sum of the participant's then-current age plus his or her credited service at the time of termination equals 75.

Notwithstanding the foregoing, employees who are participants in the '75 plan as of January 1, 1987, who terminate employment and qualify for a retirement benefit pursuant to this subsection, shall upon termination of employment be eligible to elect immediate commencement of such benefit.

B. In the event a participant who is under the '75 plan provisions terminates employment he or she may elect to leave his or her accumulated contributions in the retirement system, provided that he or she has completed at least five years of vesting service, and at age 65 receive a retirement benefit in the applicable form provided under section 4-32-14 equal to the percentage of accrued benefits up to the date of his or her termination of employment, according to the following schedule:

1. After five years of vesting service, 25 percent of accrued benefits, with the vested percentage increasing by five percent for each of the next five years of vesting service to 50 percent after ten years of vesting service; and

2. Beginning with the 11th year of vesting service, the vested percentage increasing by ten percent for each of the next five years to 100 percent vesting of accrued benefits at the end of 15 years of vesting service.

A participant who elects to leave his or her accumulated contributions in the retirement system under provision shall be responsible for notifying the director of libraries 90 days before his or her 65th birthday that he or she wishes to receive his or her retirement benefit payments and shall furnish proof of age. The library shall have no responsibility for locating such vested retirees or for keeping up with the dates when their 65th birthdays occur.

C. 1. In the event a participant who is under the '79 plan provisions terminates employment with ten or more years of credited service for any reason other than death and if he or she does not become eligible for benefits under any section of article 3 of this chapter, shall have the option of electing in lieu of the return of his or her contributions a deferred benefit commencing at age 65. No survivor's benefits would be payable under such deferred benefit. This option shall not be available, nor shall any deferred benefit be payable, to a participant that the board determines has engaged in an act harmful to the library. Such acts shall be comprised only of conviction of a felony, illegal manipulation of books and records of the library, larceny, theft or embezzlement of assets.

2. The deferred retirement benefit shall be computed as a normal retirement benefit on the basis of number of years of credited service rendered and average compensation received prior to the date of separation from the retirement system.

3. Notwithstanding the foregoing, the participant may at any time prior to the commencement of his or her deferred retirement benefit revoke such election and receive in lieu of all benefits the amount of his or her accumulated contributions. In the event of the death, prior to the commencement of the deferred retirement benefit, of a participant who has made the election provided for herein, the amount of his or her accumulated contributions shall be paid under the provisions of section 4-32-21 in lieu of any other benefit.

(Code 1985, § 18-59; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-21. Refund or transfer of participant contributions; reentry into the system.

A. Should the library service of a participant be discontinued for any cause except death or retirement and if no retirement benefit is provided for him or her under this article the participant, two months after the date of discontinuance, shall be paid all of his or her accumulated contributions with simple interest, unless he or she chooses, in lieu of the return of his or her contributions, a deferred benefit commencing at age 65 pursuant to section 4-32-20; provided that, if the city, county, or the light, gas and water division has a retirement system and the participant is transferred to the city, county, or light, gas and water division service, his or her accumulated contributions shall be transferred to such city, county or light, gas and water division retirement system.

B. No interest will be paid on accumulated contributions previously transferred from one of the retirement funds named in subsection A of this section.

C. Any former participant who has received a refund of his or her contributions and who reenters such library service and again becomes a participant of the retirement system and has completed a two-year period of service as a participant may, in one lump sum, redeposit in the retirement system an amount equal to the sum of his or her contributions plus simple interest from the first of the month following the date of refund at the rate of interest established by the board of administration until date of redeposit, and in such case he or she shall be given full

credit for all credited service for plan years beginning on or after April 1, 1975, that he or she had at the time of such termination of participation.

D. Any former participant who has chosen a deferred benefit in lieu of a refund of contributions and who reenters such service and again becomes a participant of the retirement system shall be given full credit for all credited service he or she had at the time of such termination of such participation.

E. If the participant, upon reentering the retirement system after a termination of his or her participation, shall not make such a deposit, he or she shall reenter the retirement system as a new participant without credit for any previous service.
(Code 1985, § 18-60; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 6. FUNDING OF PLAN

Sec. 4-32-22. Establishment and composition of fund.

A fund is created and established to be known as the "retirement fund of the Memphis and Shelby County Public Library and Information Center" which shall consist of all the moneys paid into it in accordance with the provisions of this article, whether such moneys shall take the form of cash, securities or other assets.
(Code 1985, § 18-61; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-23. Custodian of and payments from fund.

The board shall be the trustee of the retirement fund. All payments from such fund shall be made by the board.
(Code 1985, § 18-62; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-24. Investment of fund.

The board shall provide for the proper investment of moneys of the retirement fund, and except to the extent provided by the board, invest and reinvest the principal and income of the retirement fund in any and all stocks (common or preferred), bonds, mutual funds, notes, debentures, equipment trust certificates and in other evidences of indebtedness or ownership and such other investments and securities of any kind, class, character or location, as well as in units of any commingled, collective, common pooled or mutual trust fund; provided that the total sum invested in common or preferred stocks, convertible bonds or debentures shall not exceed 65 percent of the total retirement fund; and further, provided, that all investments shall be of a quality grade, all commercial class "A" or comparable. Any fees arising from employment of investment counsel shall be paid from the income from the retirement fund itself.
(Code 1985, § 18-63; Ord. No. 4173, § 1, 4-16-1993; Ord. No. 4487, § 1, 5-6-1997)

Sec. 4-32-25. Deposit of fund.

Subject to such provisions as may be prescribed by law for the deposit of municipal funds in banks, cash belonging to the retirement fund may be deposited in any licensed national bank or national banks in this city, or in any bank, banks or corporations authorized or licensed to do banking business and organized under the laws of the state and approved by the city council.
(Code 1985, § 18-64; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-26. Contributions generally.

A. 1. The rate of contribution for participants shall be five percent of compensation or for plan years beginning July 1, 1999, three percent of compensation. Such contribution shall be paid by all participants while employees in library service and until their respective dates of retirement. Such contributions which are paid on or after July 1, 1999, shall be designated as employee contributions, and no participant may receive current compensation in lieu of such contributions; and provided further, that all such contributions shall be paid by the director of libraries to the retirement fund, and shall be deemed "picked-up" (within the meaning of section 414(h)(2) of the Internal Revenue Code) by the employer.

2. The employer's rate of contribution shall be determined in accordance with actuarial funding principles. Except to the extent prohibited by law, however, in no event will the employer's rate of contribution be less than the participants' rate of contribution with respect to any period.

B. Subject to the provisions of this article, the board shall adopt rules and regulations governing the making of deductions from the compensation of employees. The personnel officer shall apply the rate of contribution to the compensation of each participant, and shall certify to the director of libraries on each payroll the amount to be controlled; such amounts shall be deducted by the director of libraries and shall be paid into the retirement fund and credited to the individual accounts of the

respective participants for whom the contributions were made. Every participant shall be deemed to have consented and agreed to the contributions provided and made hereunder. Payment, less such contribution, shall be a full and complete discharge of all claims and demands whatsoever for the service rendered by such person during the period covered by such payment, except his or her claims to the benefits to which he or she may be entitled under the provisions of this article.

C. At the end of each pay period, the director of libraries shall determine the aggregate amount of the contribution of the participants for such period in the proper amount, and he or she shall then transfer to the retirement fund an amount equal to the aggregate contributions of all participants for such pay period.

D. When preparing the library's annual budget request, the director of libraries shall estimate, with the advice of the board, the percentage of the salary budget for employees which will be required to provide the library's share of:

1. The disability retirement benefits, the death benefits and those portions of the service retirement benefits to be granted on account of current service;
2. The accrued liability contribution, which shall be an amortization of the unfunded accrued liability as determined by the actuary.

(Code 1985, § 18-65; Ord. No. 4173, § 1, 4-16-1993; Ord. No. 4674, 6-1-1999)

Sec. 4-32-27. Library's contributions constitute obligations; appropriations for payment of same.

The payments of the library into the retirement fund, as provided in section 4-32-6, are made obligations of the library, and thus obligations of the city; and the city council, after examining the need for the percentage contribution requested by the director of libraries as provided in section 4-32-26, shall appropriate annually in the library's budget such amounts for the pension line item as are deemed necessary to make such payments.
(Code 1985, § 18-66; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-28. Prohibition of reversion.

Except as provided in section 4-32-44, contributions made by the city to the retirement system shall be made irrevocably and it shall be impossible for the assets of the plan to inure to the benefit of the city or to be used in any manner other than for the exclusive purpose of providing benefits to participants and beneficiaries, and for defraying reasonable expenses of administering the plan; provided however, that nothing herein shall be construed to prohibit the return to the city of all or part of a contribution which is made by the city by a mistake of fact, provided the return is made within one year after the payment thereof.
(Code 1985, § 18-67; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 7. ADMINISTRATION OF THE SYSTEM

Sec. 4-32-29. Board of administration.

A. *Creation; composition.* There is created and established a board of administration which, under the provisions of this article and under the direction of the library board of trustees and city council, shall administer the retirement system and the retirement fund created by this article. The board of administration shall have the sole and absolute right, power and authority to construe and interpret the provisions of the plan.

B. *Balance among participants.* A reasonable balance between male and female members and between married and unmarried members shall be maintained wherever possible when selecting members for the board of administration.

C. *Compensation; terms of office.* There shall be five members of the board of administration. The library director shall be a permanent member of the board of administration. There shall be an additional member of the board of administration appointed by, and serving at the pleasure of, the board of trustees. The remaining three members of the board of administration shall be elected by the participants in the retirement system, with each such elected member serving a three-year term.

D. *Election of members.* The library board of trustees shall determine the method of selection of its representative. The three persons shall be elected by the participants in the retirement system. The board of administration shall appoint one retiree and the library personnel director as nonvoting advisors to the board. The library director shall conduct an election among the staff who are participants of the retirement system. Succeeding elections by participants of a member of the board about to complete a term of office shall be held no later than

three months preceding the completion of the term of office of the member. The office of chair shall be determined by members of the board of administration. (Code 1985, § 18-68; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-30. Member's bond.

Each member of the board of administration shall execute a bond in favor of the library for such amounts as shall be determined by the library board of trustees. (Code 1985, § 18-69; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-31. Compensation of members.

The members of the board shall serve without compensation, but they shall be reimbursed for necessary expenses incurred by them as members of the board. (Code 1985, § 18-70; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-32. Duties of the board.

A. The board will meet at least once each year to consider granting increases in retirement pay to retirees in accordance with the increases in the cost-of-living. This is not to be construed to mean automatic retirement pay increases. A one-time adjustment, effective December 1, 1977, shall be granted as follows:

1. Retired employees with 17½ years or more of credited service and receiving a benefit of less than $275.00 per month, shall each receive $40.00 added to the monthly retirement benefit.

2. Retired employees with less than 17½ years of service and receiving a benefit of less than $275.00 per month shall each receive $30.00 added to the monthly retirement benefit.

3. All other employees who retired before January 1, 1977, shall receive whatever percentage increase the board of administration determines, provided that the total increase of all retired employees shall not exceed an amount equal to ten percent or $13,204.70, the total of all the February 1978 library monthly benefits; provided, further, that no annual increase hereafter to any individual retired employee shall exceed ten percent of that retired employee's benefit.

B. The board will meet whenever a participant becomes eligible for retirement, or when it is deemed necessary:

1. To consider changes in the retirement system should the social security system change from a direct payroll tax to include the use of general revenue funds or make other desirable changes;

2. To consider legislation and legislative action, state, local or federal, that might affect the provisions, operation or administration of the retirement system;

3. To consider increased benefits or changes the city may make in the city's pension plan;

4. To consider grievances, appeals or challenges to an individual's retirement;

5. To make determinations as to line-of-duty disablements;

6. To investigate insuring the fund;

7. To supervise preparation by the personnel officer of a retirement plan brochure, annual reports, etc.;

8. To study the performance of the investment counsel for the retirement fund;

9. To make determinations in cases of broken service;

10. To determine the amount of interest to be applied to withdrawal of mandatory contributions, based on the prevailing rate of interest and with actuarial advice;

11. To determine time limits on selection of retirement options by participants;

12. To determine provisions of retirement benefit options;

13. To hear a member's request for changes;

14. To determine eligibility for disability benefits.

C. The chairperson shall have the power to call a meeting at any time that it is necessary in order to carry out the business of the board.
(Code 1985, § 18-71; Ord. No. 4173, § 1, 4-16-1993)

State law reference—Open meetings act, T.C.A. § 8-44-101 et seq.

Sec. 4-32-33. Quorum.

Three members shall constitute a quorum to transact any business.
(Code 1985, § 18-72; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-34. Technical advisers.

The board, with the approval of the library board of trustees, shall employ an actuary, who shall be the technical adviser of the board of matters relating to the operations of the fund, and shall engage such other technical service or employ such persons as may be necessary to transact the business of the retirement system.
(Code 1985, § 18-73; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-35. Medical service and advice.

The board shall secure such medical service and advice as may be necessary to determine participant disability status pursuant to section 4-32-8, and shall pay such compensation for such medical services and advice as the board shall deem reasonable except as may be provided in section 4-32-8(D). In no case, however, shall there be employed or appointed a physician who is eligible for participation in the retirement system or who has filled an elective, appointive or salaried office in the city or county government within a period of five years next preceding his or her employment or appointment.
(Code 1985, § 18-74; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-36. Actuarial investigations and valuations.

A. The board shall keep in convenient form such data as shall be necessary for the actuarial investigations and valuations of the retirement fund. The board shall cause to be made actuarial valuations of the retirement system and shall also cause to be made actuarial investigations into the mortality, service compensation and other experience of the participants. Upon the basis of such investigations and valuations, and subject to the approval of the library board of trustees and the city council, the board shall adopt for the retirement system such mortality, service and other bases as shall be necessary.

B. The board shall promptly transmit to the library board of trustees and the city council a report covering the actuarial investigations and actuarial valuations provided for in this section.
(Code 1985, § 18-75; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-37. Records and account.

The board shall keep at all times correct, detailed records and accounts of the retirement fund and of all transactions and matters relating to the administration of the retirement system.
(Code 1985, § 18-76; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-38. Annual report and audit.

A. As soon as practicable after the close of each fiscal year, the board shall transmit to the library board of trustees a full written report setting forth the financial condition of the retirement fund and the operation of the retirement system for such fiscal year.

B. The board shall have made an annual audit of the retirement fund by the city external auditor; provided, however, that, such audit shall not be made by the same auditor or firm of auditors for more than four successive years.
(Code 1985, § 18-77; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-39. Conflict of interest of members or employees.

Except as herein provided, no member and no employee of the board shall have any personal interest, direct or indirect, in the making of any investment from the retirement fund, or in the gains or profits accruing therefrom. No member or employee of the board, directly or indirectly, for himself or herself or as an agent or partner of others, shall borrow any of its funds or deposits, or in any manner use the same except to make such current and necessary payments as are authorized by the board; nor shall any member or employee of the board become an endorser or surety or become in any manner an obliger for moneys invested by the board.
(Code 1985, § 18-78; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-40. Deduction of group life and hospitalization insurance premium from allowance.

Any participant entitled to a retirement benefit may, on request, continue his or her group life and hospitalization insurance by authorizing the board of administration to deduct from his or her monthly retirement benefit the average premium in effect at the time of deduction.
(Code 1985, § 18-79; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-41. Benefits not modified by Social Security payments.

No modification of the benefits provided in this article shall made because of any amount or amounts payable a participant under the provisions of the Federal Social Security Acts.
(Code 1985, § 18-80; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 8. AMENDMENT OR TERMINATION

Sec. 4-32-42. Amendment of retirement system.

The employer shall have the right at any time to modify, alter or amend the retirement system in whole or in part and delivered to and acknowledged by the employee; provided, however, that no amendment shall have the effect of causing or permitting any part of the fund to be used for or converted to, purposes other than for the exclusive benefit of participants and beneficiaries and no amendment shall have the effect of reverting in the employer any portion of the fund. No amendment to the vesting schedule shall deprive a participant of his or her nonforfeitable rights to benefits accrued to the date of the amendment. In the event the Federal Social Security System is amended to require that employees who are participants of the system be in the Federal Social Security System, the employer may modify the plan to make the retirement system a supplementary plan.
(Code 1985, § 18-81; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-43. Termination of plan.

Although the employer expects retirement system to be continued indefinitely, it reserves the right to at any time terminate the retirement system and to discontinue all contributions hereunder. In the event of termination of the retirement system, the board shall notify the trustee in writing of such termination.
(Code 1985, § 18-82; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-44. Allocation of assets.

A. *Priority classes.* Upon termination of the plan or upon complete discontinuance of contributions, the assets of the plan held to provide benefits shall be allocated and distributed among participants and beneficiaries in the following order:

1. To that portion of each participant's accrued benefit which is derived from his or her employee contributions, if any;
2. To benefits being paid in the form of annuity payments from the plan to participants and beneficiaries who began receiving benefits as of the date 36 months prior to the termination date of the plan, including benefits which would have been received on such date had the participant retired on or before such date, based on plan provisions in effect during the five-year period ending on the termination date of the plan under which such benefit would be the least;
3. To all other nonforfeitable benefits;
4. To all other benefits payable under the plan.

Notwithstanding the foregoing, in the event of failure of the employer upon termination of its participation in this plan to pay or to reimburse the trustee, the actuary, accountant or attorney for the outstanding charges or expenses incurred hereunder, the trustee is empowered to satisfy such claims by lien upon that portion of the fund attributable to the employer, prior to making any allocation to participants, vested terminated participants, retired participants, disabled participants, spouses and beneficiaries of the plan in accordance with this article.

B. *Insufficiency of assets.*

1. If the assets available for allocation under subsections (A)(1) and (2) of this section are insufficient to satisfy in full the benefits of all individuals to whom such subsections are applicable, the assets shall be allocated prorata among such individuals on the basis of the present value, as of the termination date, of their respective benefits.
2. If the assets available for allocation under subsection (A)(3) of this section are insufficient to satisfy in full the benefits of all individuals to whom such subsection is applicable, the assets shall be allocated to the benefits of such individuals on the basis of such benefits as in effect at the beginning of the five-year period ending on the plan termination date, or if then sufficient, on the basis of the most recent amendment effective during such five-year period under which the assets are sufficient to satisfy such benefits, and any assets remaining shall be allocated on the basis of the amendment, if any, next succeeding.

C. *Residual assets.* Any residual assets may be distributed to the employer if:

1. All liabilities with respect to participants and beneficiaries have been satisfied in full; and

2. Such distribution does not contravene any provision of law.

(Code 1985, § 18-83; Ord. No. 4173, § 1, 4-16-1993)

ARTICLE 9. MISCELLANEOUS

Sec. 4-32-45. Liability of employer.

No employee, participant or beneficiary shall have any right or claim to any benefit under the retirement system except in accordance with its provisions. The adoption of the plan shall not be construed as creating any contract of employment between the employer and any employee or otherwise conferring upon any employee or other person any legal right to continuation of employment, nor as limiting or qualifying the right of an employer to discharge any employee without regard to the effect that such discharge might have upon his or her rights under the retirement system.
(Code 1985, § 18-84; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-46. Spendthrift clause.

No interest, right or claim in or to any part of the trust fund or payment therefrom shall be assignable, alienable, transferable or subject to sale, mortgage, pledge, hypothecation, garnishment, attachment, execution, or levy of any kind whatsoever, and the trustee shall not issue any certificate or other documentation representing any interest, right or claim in or to any part of the retirement fund. However, to the extent provided under a federal tax lien or a qualified domestic relations order to which this plan is subject under section 414(p) of the code, the vested benefit of a participant or beneficiary shall be applied to satisfy such order or lien.
(Code 1985, § 18-85; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-47. Successors to trustee.

The provisions of this title shall bind and inure to the benefit of the successors to the trustee.
(Code 1985, § 18-87; Ord. No. 4173, § 1, 4-16-1993)

Sec. 4-32-48. Conflict of provisions.

If any provision or term of this title is deemed to be at variance with, or contrary to, many law of the United States or applicable state law, the provision of the law shall be deemed to govern.
(Code 1985, § 18-86; Ord. No. 4173, § 1, 4-16-1993)

CHAPTER 4-34. 2016 CASH BALANCE PLAN/DEFINED CONTRIBUTION PLAN

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ARTICLE 1. GENERAL PROVISIONS

Sec. 4-34-1. Definitions.

Accrued benefit means a monthly benefit accrued as of the annuity commencement date for a participant, payable semimonthly, equal to the actuarial equivalence of the sum of (i) the participant's cash balance account, (ii) the participant's defined contribution plan account, and (iii) any rollover account of the participant under section 4-34-52 hereof.

Actuarial equivalence means equality in value of the aggregate amounts expected to be received under different forms of annuity payment based upon interest at five percent per annum compounded annually and the applicable mortality table as prescribed by the Secretary of Treasury pursuant to section 417(e)(3)(B) of the Internal Revenue Code of the plan year including the annuity commencement date of the participant.

Cash balance account means a hypothetical participant account which shall be credited with the participant's employee cash balance plan contributions under section 4-34-11, the city cash balance plan allocations under section 4-34-12, and the interest credits under section 4-34-14.

Defined contribution plan account means a participant account as set forth in section 4-34-25.

Normal form of benefit means the normal form of benefit for a non-married participant is a level single life annuity. The normal form of benefit of a married participant is a level 75 percent joint and survivor benefit.

2016 plan means the cash balance plan and defined contribution plan established hereunder.
(Ord. No. 5573, § III, 12-16-2014)

ARTICLE 2. PARTICIPATION

Sec. 4-34-2. Participation in 2016 cash balance plan/ defined contribution plan.

A. *General rule*. Each person (1) who is hired on or after July 1, 2016, or (2) who is a transferred participant as defined in section 4-4-1(43)(except for those transferred participants who are eligible to make and have duly made the irrevocable election provided in section 4-28-1), in each case who is in the regular, full-time employment of the city to the extent that the city contributes to the salary of such employee in a job classification or title that the city administration shall designate as eligible for participation in the plan, including any person who is elected to his/her office by the people, but not including the light, gas and water division of the city, temporary employees as classified by the city, part-time employees, or any employee mandated by law to contribute to the federal Social Security system and not eligible to be a participant by his/her job classification, shall become a participant in this 2016 plan as of his or her employment creditable service date without any further action on his or her part.

B. *Grandfather rule for 1948 and 1978 plans.* Any employee whose reemployment commencement date occurs on or after July 1, 2016, and who terminated employment as a member in the city retirement system under the 1948 plan or 1978 plan and properly elected a deferred pension under section 4-24-13 or 4-28-13 or who retired as a participant in such 1948 plan under section 4-24-10, 4-24-11 or 4-24-12, or who retired as a participant in such 1978 plan under section 4-28-10, 4-28-11 or 4-28-12, shall be a member in such 1948 plan or 1978 plan upon his/her reemployment commencement date and shall not participate in this 2016 plan.

C. *Elected employee rule.* Any employee who is elected to his or her position from and after July 1, 2016, including the mayor or any member of the council, may elect to participate in this 2016 plan as of the date s/he begins his/her elected duties, provided:

1. S/he makes such written election to the board within 90 days of such date;
2. If in her/his timely election s/he elects to begin participation in the 2016 plan after the date s/he begins her/his elected duties;
3. S/he enters the 2016 plan before the expiration (other than because of ordinary disability) of her/his then current term of office; and
4. Upon such entry, s/he pays into the trust fund the employee contributions payable for the period since such date s/he began her/his elected duties, with compounded interest at the rate established by the board.

D. *Part-time employee rule.* Part-time assistant city attorneys and other part-time employees who may hereafter be specifically included by amendment to this 2016 plan shall be participants in this 2016 plan unless within 90 days of employment they request in writing to be excluded and the request is approved by the mayor.

E. *Leased employee*. The term "employee" shall also not include any person who is a leased employee within the meaning of code section 414(n).
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-211), 12-15-2020)

Sec. 4-34-3. Reemployed participants.

Except as provided in section 4-25-211(B), any former participant under this 2016 plan or the 1978 plan, as amended in 2012, or the 1948 plan of this chapter who is reemployed as an employee shall enter this 2016 plan as a participant upon his/her reemployment commencement date. His/her years of service shall be determined as provided under section 4-25-1(45).

Notwithstanding the foregoing, an eligible public safety employee who was a participant in the 1978 Plan who terminated employment prior to July 1, 2016 and received a lump sum withdrawal or refund of employee contributions pursuant section 4-25-185 of the 1978 Plan, who is reemployed as an eligible public safety employee on or after July 1, 2016 but elected in accordance with Section 4-25-160 to participate in the 1978 Plan shall have the right to be a participant in the 1978 Plan upon such reemployment provided such eligible public safety employee (i) elects in writing in the manner, method, within the time limit, and on such forms as prescribed by the board to repay the trust as provided below; and (ii) such participant repays in full to the trust pursuant to such election in a single lump sum an amount equal to the withdrawal or refunded amount with compounded interest, from the date of withdrawal or refund to the date of repayment, at the rate established by the board. Upon fulfillment of all conditions above (i) such participant shall be an employee for purposes of Section 1-25-1(17), (ii) such participant shall be a participant in the city of Memphis retirement system for general employees, including police officers and firefighters, under City Ordinance Chapter 25, Articles I through VII, Division 2, as applicable, and shall not participate in the 2016 plan, and (iii) the years of service of such participant in the 1978 Plan prior to the participant's termination of employment that would otherwise be disregarded because of his/her prior termination of employment shall be restored. Absent fulfillment of the conditions above such police officer or firefighter upon his/her reemployment shall enter this 2016 Plan.
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5641, § 1(25-212), 4-11-2017; Ord. No. 5873, § 9, 7-11-2023)

Sec. 4-34-4. Transferring participants to the plan.

Reserved.

Sec. 4-34-5. Transferring participants from the plan.

Reserved.

Sec. 4-34-6. Participant information.

The head of each city department shall give immediate notice in writing to the board of any new employee, and of the change in status of any employee in his/her department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal or death. The head of each department shall furnish such other information, concerning any participant, as the board may require.
(Ord. No. 5573, § III, 12-16-2014)

Secs. 4-34-7—4-34-10. Reserved.

ARTICLE 3. CASH BALANCE PLAN CONTRIBUTIONS

Sec. 4-34-11. Participant employee cash balance plan contributions.

A. Effective July 1, 2016, each 2016 plan participant who is not a police officer or a firefighter shall make a mandatory cash balance plan contribution to the trust fund in an amount equal to two percent of his/her compensation. Such contribution shall be paid by the participant while an employee until his/her retirement or termination as an employee. Such contribution shall be in addition to any defined contribution plan contribution of the employee.

B. Effective July 1, 2016, each 2016 plan participant who is a police officer or a firefighter shall make a mandatory cash balance plan contribution to the trust fund in an amount equal to two percent of his/her compensation. Such contribution shall be paid by the participant while an employee until his/her retirement or termination as an employee. Such contribution shall be in addition to any defined contribution plan contribution of the employee.

C. The contributions made by each participant to the trust fund shall be designated as city contributions pursuant to IRC section 414(h). Such designation is contingent upon the contributions being excluded from the participant's gross income for federal income tax purposes.

D. Subject to the provisions of this 2016 plan, the board shall adopt rules and regulations governing the making of employee contributions by payroll deduction. The head of each city department shall apply the rate of contribution to the compensation of each participant, and shall certify to the comptroller on each payroll the amount to be contributed, and shall promptly furnish to the board a copy of each payroll; and such amounts shall be deducted by the comptroller and shall be paid into the trust fund and credited by the board as employee cash balance plan contributions of the participants for whom the contributions were made. Every participant shall be deemed to have consented and agreed to the employee cash balance contributions provided and made hereunder. Payment of salary, less such cash balance plan contributions and any defined contribution plan contributions provided herein, shall be a full and complete discharge of all claims and demands whatsoever for the service rendered by such person to the city during the period covered by such payment, except his or her claim to the benefits to which he or she may be entitled under the provisions of this 2016 plan.

E. At the end of each pay period, the comptroller shall determine the aggregate amount of the participant employee cash balance plan contributions of the participants who are employees of the general city government for such period, including police officers and firefighters, and shall be supplied with the aggregate amount of the participant employee cash balance plan contributions of the participants of the various other city agencies, in the proper amount, and shall then contribute to the trust fund an amount equal to the aggregate employee cash balance contributions for all participants for such pay period; provided, however, the first determination and transfer of funds as provided for above after the original effective date of this 2016 plan shall be made at the end of the July 15, 2016 pay period. (Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-12. City cash balance plan allocations.

A. As of the end of each plan year, the comptroller shall determine the aggregate amount of the compensation of each 2016 plan participant who is not a police officer or a firefighter on which the employee cash balance plan contributions for such period are calculated. The city shall allocate to the cash balance accounts of such participants the following:

1. For those participants with less than five years of service at the date of such contribution three percent of such compensation.
2. For those participants with five or more years of service but less than ten years of service at the date of such contribution five percent of such compensation.
3. For those participants with ten or more years of service but less than 15 years of service at the date of such contribution seven percent of such compensation.
4. For those participants with 15 or more years of service but less than 20 years of service at the date of such contribution ten percent of such compensation.
5. For those participants with 20 or more years of service at the date of such contribution 13 percent of such compensation.

B. As of the end of each plan year, the comptroller shall determine the aggregate amount of the compensation of each 2016 plan participant who is a police officer or a firefighter on which the employee cash balance plan contributions for such period are calculated. The city shall allocate to the participant cash balance accounts of such participants the following:

1. For those participants with less than five years of service at the date of such contribution six percent of such compensation.
2. For those participants with five or more years of service but less than ten years of service at the date of such contribution eight percent of such compensation.
3. For those participants with ten or more years of service but less than 15 years of service at the date of such contribution ten percent of such compensation.
4. For those participants with 15 or more years of service but less than 20 years of service at the date of such contribution 13 percent of such compensation.
5. For those participants with 20 or more years of service at the date of such contribution 16 percent of such compensation.

(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-13. Reserved.

Sec. 4-34-14. Interest credits on participant cash balance accounts.

For each 2016 plan participant, the "interest crediting rate" applied to the participant's cash balance account shall be based on the plan's return on assets for the applicable plan year less one percent. For periods of less than 12 months the interest crediting rate applied to the participant's cash balance account shall be based on the year to date (YTD) return on assets for the applicable plan year through the second month preceding the month in which the annuity commencement date occurs less one percent. Such interest credit shall be allocated in the following manner:

1. Effective as of the last of each plan year, the dollar amount credited to each participant's cash balance account is calculated as the sum (a) and (b) below:
   a. The interest crediting rate multiplied by the cash balance account on the last day of the prior plan year.
   b. The interest crediting rate multiplied by the sum of participant cash balance plan contributions and city cash balance plan allocations for the current plan year times one-half.

For any plan participant who ends employment in accordance with section 4-34-31, 4-34-32, 4-34-33, 4-34-42, or 4-34-43, the cash balance account at the annuity commencement date shall not be less than the accumulated participant cash balance contributions and city cash balance plan allocations. For any plan participant who ends employment in accordance with section 4-34-34, the cash balance account shall at no point be less than the accumulated participant cash balance contributions. This provision may be referred to as the "preservation of principal."

(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-15. Forfeitures.

All forfeitures arising under this 2016 plan will be applied to reduce the contributions of the city to the plan and shall not be used to increase the 2016 plan benefits of any participant at any time prior to the termination of the 2016 plan.

(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-16. Prohibition against interest.

The city shall not have any right, claim or interest in the trust fund or in any contributions made to the trust fund, and this 2016 plan may not be amended to use the trust fund for any purpose other than the exclusive benefit of the participants and, where applicable, their spouses or children; provided the comptroller shall return any portion of a contribution which was made under a mistake of fact, provided such return is made within one year after such contribution is made.

(Ord. No. 5573, § III, 12-16-2014)

Secs. 4-34-17—4-34-20. Reserved.

ARTICLE 4. DEFINED CONTRIBUTION CONTRIBUTIONS

Sec. 4-34-21. Participant defined contribution plan contributions.

A. Effective July 1, 2016, each 2016 plan participant who is not a police officer or a firefighter shall make a mandatory defined contribution plan contribution to the

trust fund in an amount equal to six percent of his/her compensation. Such contribution shall be paid by the participant while an employee until his/her retirement or termination as an employee. Such contribution shall be in addition to any cash balance plan contribution of the employee.

B. Effective July 1, 2016, each 2016 plan participant who is a police officer or a firefighter shall make a mandatory defined contribution plan contribution to the trust fund in an amount equal to six percent of his/her compensation. Such contribution shall be paid by the participant while an employee until his/her retirement or termination as an employee. Such contribution shall be in addition to any cash balance plan contribution of the employee.

C. The defined contribution plan contributions made by each participant to the trust fund shall be designated as city contributions pursuant to IRS Section 414(h). Such designation is contingent upon the contributions being excluded from the participant's gross income for federal income tax purposes.

D. Subject to the provisions of this 2016 plan, the board shall adopt rules and regulations governing the making of employee contributions by payroll deduction. The head of each city department shall apply the rate of contribution to the compensation of each participant, and shall certify to the comptroller on each payroll the amount to be contributed, and shall promptly furnish to the board a copy of each payroll; and such amounts shall be deducted by the comptroller and shall be paid into the trust fund and credited by the board as employee defined contribution plan contributions of the participants for whom the contributions were made. Every participant shall be deemed to have consented and agreed to the employee defined contribution plan contributions provided and made hereunder. Payment of salary, less such defined contribution plan contributions and any cash balance plan contributions provided herein, shall be a full and complete discharge of all claims and demands whatsoever for the service rendered by such person to the city during the period covered by such payment, except his or her claim to the benefits to which he or she may be entitled under the provisions of this 2016 plan.

E. At the end of each pay period, the comptroller shall determine the aggregate amount of the participant employee defined contribution plan contributions of the participants who are employees of the general city government for such period, including police officers and firefighters, and shall be supplied with the aggregate amount of the participant employee defined contribution plan contributions of the participants of the various other city agencies, in the proper amount, and shall then allocate to the trust fund an amount equal to the aggregate employee defined contribution plan contributions for all participants for such pay period; provided, however, the first determination and transfer of funds as provided for above after the original effective date of this 2016 plan shall be made at the end of the July 15, 2016 pay period.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-22. City defined contribution plan contribution.

A. No later than the end of each month, the comptroller shall determine the aggregate amount of the compensation of each 2016 plan participant employed as of the end of such plan year who is not a police officer or a firefighter on which the employee defined contribution plan contributions for such month are calculated. The city shall pay into the trust fund as its defined contribution plan contribution one and one-half percent of such compensation.

B. No later than the end of each month, the comptroller shall determine the aggregate amount of the compensation of each 2016 plan participant who is a police officer or a firefighter on which the employee defined contribution plan contributions for such month are calculated. The city shall pay into the trust fund as its defined contribution plan contribution one and one-half percent of such compensation.

C. The payments of the city into the trust fund under this section are made obligations of the city. The council shall appropriate annually such amounts as are necessary to make such payments.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-23. Forfeitures.

All forfeitures arising under this 2016 plan will be applied to reduce the contributions of the city to the plan and shall not be used to increase the 2016 plan benefits of any participant at any time prior to the termination of the 2016 plan.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-24. Prohibition against interest.

The city shall not have any right, claim or interest in the trust fund or in any contributions made to the trust fund, and this 2016 plan may not be amended to use the trust fund for any purpose other than the exclusive benefit of the participants and, where applicable, their spouses or children; provided the comptroller shall return any portion of a contribution which was made under a mistake of fact, provided such return is made within one year after such contribution is made.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-25. Allocation of defined contribution plan contributions.

A. *Separate accounting.* The board shall establish and maintain an account in the name of each participant to which the board shall credit all defined contribution amounts allocated to each such participant as set forth herein.

B. *Allocation of contributions.* The city shall provide the board with all information required by the board to make a proper allocation of the city's defined contribution plan contribution for each plan year. Within a reasonable period of time after the date of receipt by the board of such information, the board shall allocate any city defined contribution plan contributions proportionately among the participants of the plan as provided herein.

C. *Participant accounts and participant directed investments.*

1. *Participant accounts*. The board shall create and maintain adequate records to disclose the interest of each participant, former participant, and beneficiary in such participant's separate defined contribution plan account. Such records shall be in the form of individual accounts to which shall be credited the participant's employee defined contribution plan contributions, the city defined contribution plan contributions allocable to the participant as provided herein, and the aggregate of all earnings and losses on such account.

2. *Participant directed investments.* Each participant may designate, in accordance with the procedures established from time to time by the board, the manner in which the amounts allocated to each of his or her account shall be invested from among the investment funds made available from time to time by the board. That portion of the interest of any participant so directing will thereupon be considered a participant's directed account. If a participant fails to make a designation, then his or her account shall be invested in the investment fund or funds designated by the board from time to time in a uniform manner. A participant may change his or her investment designation for future contributions to be allocated to his or her account. Any such change shall be made in accordance with procedures established by the board and the frequency of such change may be limited by such procedures. A participant may elect to convert his or her investment designation with respect to the amounts already allocated to his or her account. Any such conversion shall be made in accordance with the procedures established by the board, and the frequency of such conversions may be limited by such procedures.

All participant directed accounts shall be charged or credited with the net earnings, gains, losses and expenses as well as any appreciation or depreciation in the market value using publicly listed fair market values in accordance with procedures established from time to time by the board and the board deems necessary or appropriate to ensure proper administration of the defined contribution plan, and may interpret the same accordingly.
(Ord. No. 5573, § III, 12-16-2014)

Secs. 4-34-26—4-34-30. Reserved.

ARTICLE 5. RETIREMENT BENEFITS

Sec. 4-34-31. Normal retirement.

A. A 2016 plan participant who elects to retire on or after his/her normal retirement date, by a written election designating the date s/he will retire and delivered to the board not less than 30 days before such designated date, shall be entitled to receive a monthly retirement benefit equal to his/her accrued benefit.

B. Any participant eligible for a normal retirement benefit pursuant to subparagraph (A) above may irrevocably elect to receive between five percent and 25 percent in increments of five percent of his/her accrued benefit in the form of an actuarial equivalent single

lump-sum distribution. Such election shall be made prior to the participant's annuity commencement date in accordance with uniform procedures established by the board.

If a participant elects to receive any part of his/her accrued benefit in the form of a lump-sum distribution as provided in this subparagraph (B), the monthly retirement benefit payable to such participant shall be reduced by an equal percentage. Such election shall likewise reduce the amount of any death benefit payable to a surviving spouse or any other beneficiary or beneficiaries, which shall be calculated taking into account such election.

Any cost of living adjustments to the participant's monthly retirement benefit shall be calculated based on the reduced monthly benefit resulting from the lump-sum distribution election.

In determining any minimum monthly benefit provided under the plan, the amount of the applicable minimum shall be reduced by the percentage lump sum elected by the participant.

C. The board may compel the retirement of a participant on or after his normal retirement date, upon the recommendation of a qualified physician and the director of the city division in which the participant is employed that such retirement is in the best interest and efficiency of the division and department. Any such participant shall be entitled to receive a monthly retirement benefit equal to his/her accrued benefit.
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-240), 12-15-2020)

Sec. 4-34-32. Disability retirement.

A. *Line-of-duty disability.*

1. Upon application by or on behalf of the participant or by the director of the city division for which the participant works, any participant who is not a police officer or firefighter determined to have incurred an in-line-of-duty disability shall receive during the period such participant suffers from such disability a retirement benefit equal to the greater of 60 percent of of his/her average monthly compensation or his/her accrued benefit as of the date of such disability based on the disability mortality table.

2. Upon application by or on behalf of the participant or by the director of the city division for which the participant works, any participant who is a police officer or firefighter determined to have incurred an in-line-of-duty disability shall receive during the period such participant suffers from such disability a retirement benefit equal to the greater of 60 percent of his/her average monthly compensation or his/her accrued benefit as of the date of such disability based on the disability mortality table.

B. *Ordinary disability*.

1. Upon application by or on behalf of the participant or by the director of the city division for which the participant works, any participant who is not a police officer or firefighter determined to have incurred an ordinary disability shall receive during the period such participant suffers from such disability a retirement benefit equal to his/her accrued benefit as of the date of such disability based on the disability mortality table; provided, however, that the board shall deny any such benefit payments and, instead, refund the participant's employee contributions in accordance with section 4-34-34, if the board has proof that such disability is a result of the participant's gross and willful misconduct.

2. Upon application by or on behalf of the participant or by the director of the city division for which the participant works, any participant who is a police officer or firefighter determined to have incurred an ordinary disability shall receive during the period such participant suffers from such disability a retirement benefit equal to his/her accrued benefit as of the date of such disability based on the disability mortality table; provided, however, that the board shall deny any such benefit payments and, instead, refund the participant's employee contributions in accordance with section 4-34-34, if the board has proof that such disability is a result of the participant's gross and willful misconduct.

C. *Re-examination of disability.* At the discretion of the board, a participant receiving benefits under this section 4-34-32 may be required to undergo a medical

examination by a qualified physician to determine whether the participant continues to suffer from the disability.

D. *Cancellation of disability retirement*.

1. If a participant refuses to undergo medical examination under subsection (C) of this section, his/her benefits shall be discontinued until s/he withdraws his/her refusal.
2. If a participant is determined under subsection (C) of this section to have recovered from his/her disability, his/her disability benefits shall be cancelled and s/he shall be reinstated to city employment. Upon returning to city employment, s/he shall have full credit for all employee contributions and years of service credits to him/her as of the original date of his/her disability.
3. If a participant's disability benefits under this section are cancelled for any reason other than returning to city employment, s/he shall receive a refund of her/his employee cash balance plan contributions and employee defined contribution plan contributions, in accordance with section 4-34-34, reduced by the amount of any benefit payments previously made to the participant.
4. If a participant suffering from a disability and receiving benefits under this section nevertheless engages in a gainful occupation not with the city or returns to employment with the city and re-enters the 2016 plan as a participant, his/her disability benefit payments and his/her compensation from such occupation or city employment shall not exceed his/her average monthly compensation as of the original date of his/her disability.

(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-33. Deferred retirement.

A. Any participant meeting the requirements of section 4-34-33(D) may elect to receive a deferred retirement benefit under this 2016 Plan equal to his/her accrued benefit and payable in the form of a single life annuity.

B. The annuity commencement date of any participant who is to receive his or her benefit pursuant to section 4-34-33(A) shall be the date s/he reaches age 60.

C. A participant may revoke his/her election under section 4-34-33 at any time before his/her annuity commencement date. Any participant timely revoking his section 4-34-33 election shall receive a refund in accordance with section 4-34-34 of all employee contributions made by him/her or on her/his behalf under this 2016 plan.

D. To be eligible for electing a deferred retirement benefit under this section, a participant:

1. Must be credited with ten or more years of service as of his/her severance date;
2. Must not be entitled to any benefits under any other section of this chapter; and
3. Must not have engaged in an act determined harmful to the city by the board and resulting in the participant's conviction of a felony, illegal manipulation of the books and records of the city, theft, or embezzlement of assets.

(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-242), 12-15-2020)

Sec. 4-34-34. Refund of employee contributions.

A. Any participant whose employment with the city terminates, for any reason other than death, who is not entitled to any benefits under section 4-34-31, or 4-34-32, and who has not elected benefits under section 4-34-33, shall receive an amount equal to his/her total participant employee cash balance plan contributions plus the interest crediting rate on such contributions as provided herein and defined contribution account balance attributable to the participant's contributions. Such refund of employee contributions shall be paid as soon as administratively feasible following the date the termination of his/her employment occurs (or which is deemed to have occurred under section 4-34-33(C)) unless s/he earlier withdraws the participant employee contributions or becomes entitled to receive benefits under any other section of this plan.

B. Any participant whose employment with the city terminates for any reason other than death but who is entitled to a benefit payable under section 4-34-31, or 4-34-32, and who has not elected benefits under section 4-34-33, may elect to receive in lieu of any other benefit payable under any other section of this plan an amount equal to his or her total participant employee cash balance plan contributions plus the interest crediting rate on such contributions as provided herein together

with his or her defined contribution account balance attributable to such participant's contributions. Such refund of employee contributions shall be paid as soon as administratively feasible following the date the termination of his/her employment occurs (or which is deemed to have occurred under section 4-34-34(C)) unless s/he earlier withdraws the participant employee contributions or becomes entitled to receive benefits under any other section of this plan. In the event that any participant elects to withdraw his or her participant contributions as provided in this section 4-34-33(B), such participant shall be deemed to have waived his or her rights to any other benefit payments under any provision of this retirement system, including the right to payment of any survivor benefits otherwise payable in the event of the participant's death in accordance with section 4-34-43 or otherwise under the pension system.

C. A participant during a leave of absence period shall be deemed to have terminated employment with the city if during such period s/he:

1. Retires under this 2016 plan;

2. Withdraws his/her employee contributions; or

3. Actually terminates employment with the city, or does not return to active employment with the city as of the earlier of the date two years from the beginning of such leave of absence period or the end of such period.

(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-243), 12-15-2020)

Sec. 4-34-35. Benefits upon reemployment.

If a participant receiving benefits pursuant to this 2016 plan is reemployed after his/her annuity commencement date, no further benefit payments shall be made to that participant during his/her period of reemployment. Subsequent benefits and an appropriate annuity commencement date for that participant shall be determined based upon the participant's accrued benefit at that time; provided, however, subsequent benefits shall be reduced by the actuarial equivalent of any amounts distributed between his/her first annuity commencement date and his/her most recent reemployment commencement date, but not to an amount less than the annual plan benefit he/she was receiving immediately before his most recent reemployment commencement date.

(Ord. No. 5573, § III, 12-16-2014)

Secs. 4-34-36—4-34-41. Reserved.

ARTICLE 6. DEATH

Sec. 4-34-42. Line-of-duty death.

A. The beneficiaries described in section 4-34-43(B) of a participant who is not a police officer or firefighter who dies as the direct and proximate result of an accident sustained by him as a participant, while in the actual performance of duties for the city without willful negligence on his/her part, before or after s/he received a line-of-duty disability benefit under section 4-34-43, shall receive a death benefit equal to the greater of 60 percent of his/her average monthly compensation or his/her accrued benefit as of the date of such death. Such death benefit shall be paid in accordance with section 4-34-44.

B. The beneficiaries described in section 4-34-43(B) of a participant who is a police officer or firefighter who dies as the direct and proximate result of an accident sustained by him as a participant, while in the actual performance of duties for the city without willful negligence on his/her part, before or after s/he received a line-of-duty disability benefit under section 4-34-32, shall receive a death equal to the greater of 60 percent of his/her average monthly compensation or his/her accrued benefit as of the date of such death. Such death benefit shall be paid in accordance with section 4-34-44.

(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-250), 12-15-2020)

Sec. 4-34-43. Other death benefit.

A. The beneficiaries described in section section 4-34-43(B) of a participant who dies other than as described in section 4-34-42(A) or section 4-34-42(B) and who has not elected deferred retirement under section 4-34-33, shall receive a death benefit in accordance with section 4-34-44 equal to 75 percent of:

1. The retirement benefit, if any, the participant was receiving as of his/her date of death; or

2. If the participant died before his/her annuity commencement date, but after the participant was credited with five or more years of service, or suffered an ordinary disability, the retirement benefit to which the participant was entitled under section 4-34-31, 4-34-32, or 4-34-33.

B. The only beneficiaries of the benefit under section 4-34-43(A) shall be the participant's spouse, if married to the participant at the time of his/her death, or, if no such spouse, the participant's surviving child and handicapped child, as those terms are defined in section 4-4-1(A)(6).

C. Death benefits with respect to qualified military service. In the case of a participant who dies on or after January 1, 2007 while performing qualified military service (as defined in Code section 414(u)) with respect to the city, his/her beneficiary shall have a nonforfeitable interest in all city contributions to the participant to the extent that he/she would have had to such city contributions in the event that the participant resumed, and then terminated, employment on account of death.
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-251), 12-15-2020)

Sec. 4-34-44. Distribution.

A. *Beneficiary priority.* The death benefit section 4-34-42 or 4-34-43 shall be paid to the surviving spouse until the spouse's death. If there is no spouse, or upon the spouse's death, the death benefit shall be made or shall continue to be paid to or on the behalf of the participant's surviving children and handicapped children, for as long as they are children or handicapped children; provided, however, any handicapped child shall be entitled to receive only 50 percent of the benefit payment any other child of the participant shall be entitled to receive. If payments are made to more than one child, the death benefit shall be payable in equal shares; provided, if any child becomes ineligible to receive benefits because of death or attainment of age, the death benefit shall be divided equally among the remaining eligible children. No surviving spouse of a participant's spouse shall be entitled to any benefits from this 2016 plan as a result of the participant's spouse's interest in a benefit payable under section 4-28-42 or section 4-28-43.

B. *Payment after refund.* If a participant's employee contributions have been refunded under section 25-243 before the participant's date of death, credits against such refund shall be made in lieu of death benefit payments under section 4-28-42 or 4-28-43 until such credits have fully offset such refund amount.
(Ord. No. 5763, § 1(25-252), 12-15-2020)

Sec. 4-34-45. Residual benefits.

Notwithstanding any other sections of this 2016 plan, a participant's beneficiaries, in the order of priority as set forth in section 4-25-254 hereof, shall be paid any excess of the participant's total accumulated employee contributions, minus the aggregate total retirement and death benefit payments under this 2016 plan made to the participant, the participant's spouse, children, or any other designated beneficiary, following the death of all such individuals. Notwithstanding the foregoing, however, a final divorce decree shall terminate an ex-spouse's status as beneficiary, unless the participant has on file in the retirement office a beneficiary designation that redesignates the ex-spouse as beneficiary dated subsequent to the issuance of the divorce decree.
(Ord. No. 5763, § 1(25-253), 12-15-2020; Ord. No. 5873, § 11, 7-11-2023)

Sec. 4-34-46. Employee contribution refunds upon death.

For a participant whose employment terminates due to death, whose beneficiaries are not entitled to any benefit under any other section of this plan, such participant's beneficiaries, in the order specified below, shall be entitled to receive a refund of the participant's contributions, less the aggregate of any amount of such contributions paid to the participant, the participant's spouse, children or any other designated beneficiary, prior to the participant's death. The beneficiaries of the benefit under this section (or in the case of residual benefits the beneficiaries of any residual benefits under section 4-28-20(A) hereof) shall be:

1. the beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the board). Notwithstanding the foregoing to the contrary, if the participant is married at the time of such designation, if the beneficiary or beneficiaries designated by the participant is not the participant's spouse, the participant's spouse's written consent to such specific beneficiary or beneficiaries shall be required for such designation to be effective, and such consent shall be witnessed by a notary public or by the benefits manager of the city, the total rewards officer of the city, or such other person representing the board as duly designated by the board. A participant's spouse may give a general consent acknowledging the spouse's right to consent to any beneficiary or

beneficiaries and relinquishing such right, in which event any future revocation and/or redesignation of beneficiary(ies) by the participant shall not require further spousal consent. The consent of the spouse must acknowledge the effect of such election and once given, cannot be revoked by such spouse. Any spousal consent shall only be applicable to the spouse granting such consent, or

2. the participant's spouse, if married to the participant at the time of his/her death, or

3. if no such spouse, the participant's surviving child and handicapped child, as those terms are defined in section 4-25-1(6), or

4. if no such surviving child and/or handicapped child, to the participant's surviving child as the term "child' is defined in section 4-25-1(6) but without regard to the child's age or status in an educational institution, or

5. if no such surviving child to the alternative beneficiary or beneficiaries designated by the participant (in accordance with procedures established by the Board), or

6. if the participant failed to designate an alternate beneficiary or beneficiaries as provided above, to the participant's estate.

If there is more than one eligible beneficiary the benefit shall be divided equally among the eligible beneficiaries unless the beneficiaries are designated beneficiaries by the participant as provided above whereupon the benefit will be divided in accordance with the designation by the participant, or if no such designation then equally. For purposes of this section, the terms "spouse" and "child" shall mean any person who the board determines in good faith under the plan is the legally recognized spouse or child of the participant. Notwithstanding the foregoing, a final divorce decree shall terminate an ex-spouse's status as beneficiary, unless the participant has on file in the retirement office a beneficiary designation that redesignates the ex-spouse as beneficiary dated subsequent to the issuance of the divorce decree. Each beneficiary, or his/her duly appointed representative, shall be responsible for making application, in accordance with uniform procedures established by the board, for any benefit due to him/her under this section. A beneficiary shall have no claim against the board, or the pension system, or the city by reason of the failure of such beneficiary to apply properly or timely for benefits under the pension system. (Ord. No. 5763, § 1(25-254), 12-15-2020; Ord. No. 5873, § 12, 7-11-2023)

Secs. 4-34-47—4-34-51. Reserved.

ARTICLE 7. ROLLOVERS

Sec. 4-34-52. City's 457(b) plan.

A. Rollover of participant accounts attributable to participant's compensation from the city's 457(b) plan. To the extent permitted by the Internal Revenue Code, a participant of the 2016 Plan entitled to a benefit under section 4-34-31, section 4-34-32, or section 4-34-33 who also participates in the city's 457(b) plan may, upon such participant's termination of employment with the city but prior to the participant's annuity commencement date, transfer from the participant's 457(b) account by direct rollover to this 2016 Plan any portion or all of the amounts in the participant's 457(b) account attributable to the contributions made by the participant and/or the city with respect to the compensation of the participant from the city, provided such transfer will not jeopardize the tax exempt status of this plan. Any amounts in a participant's account rolled over by the participant from a 457(b) or other employee benefit plan of an employer other than the city (except as provided below with respect to the Memphis and Shelby County Airport Authority) may not be rolled over to this 2016 Plan. The transferred amount shall be set up in a separate account to be known as a "rollover account." Such rollover account shall be fully vested at all times and shall not be subject to forfeiture. Such rollover account shall be held pursuant to the provisions of this 2016 plan and shall not be withdrawn by or distributed to the participant except as provided in this 2016 Plan.

To the extent an employee of the Memphis and Shelby County Airport Authority who participates in the city's 457(b) plan also participates in this 2016 Plan and is entitled to a benefit under section 4-34-31, section 4-34-32, or section 4-34-33 of this 2016 Plan, such participant may from the participant's 457(b) account in the city's 457(b) plan by direct rollover transfer to this 2016 Plan any portion or all of the amounts in the participant's 457(b) account attributable to the contributions made by the participant and/or the Memphis and Shelby County Airport Authority with respect to the

compensation of the participant from the Memphis and Shelby County Airport Authority, to the extent the Memphis and Shelby County Airport Authority makes contributions to this 2016 Plan with respect to such participant and provided such transfer will not jeopardize the tax exempt status of this plan. The transferred amount shall be set up in a separate account to be known as a "rollover account." Such rollover account shall be fully vested at all times and shall not be subject to forfeiture. Such rollover account shall be held pursuant to the provisions of this 2016 plan and shall not be withdrawn by or distributed to the participant except as provided in this 2016 Plan.

B. Distribution of rollover account as part of accrued benefit. At the participant's normal retirement date, or such other date when the participant shall be entitled to receive benefits under section 4-34-31, section 4-34-32, or section 4-34-33, the value of the rollover account shall be combined with the participant's cash balance account and defined contribution account to provide additional monthly benefits to the participant as provided herein.
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-260), 12-15-2020)

Secs. 4-34-53—4-34-61. Reserved.

ARTICLE 8. GENERAL PROVISIONS

Sec. 4-34-62. Amendments.

Pursuant to T.C.A. § 9-3-506, as amended from time to time, the city reserves the right to freeze, suspend or modify benefits, employee contributions, plan terms and design on a prospective basis provided that any accrued benefits earned prior to any adjustment shall remain an enforceable right unless the participant is subject to forfeiture of benefits upon termination of service as provided in this plan.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-63. No duplication of benefits.

Notwithstanding any provision of this plan which may be construed to the contrary, a participant shall not be entitled to two separate benefits under the plan which are attributable to the same period of employment. Accordingly, if a separate benefit under the plan is payable to or in respect of the same participant based upon the same period of employment as the benefits previous paid, the benefit currently payable shall be reduced to reflect the actuarial equivalence of the benefits previously paid.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-64. Payments solely from plan assets.

Payments of benefits as provided in this 2016 plan shall be made solely from plan assets held under the trust agreement and in no event will the comptroller, the board, the city, the council, or any employee of the city be liable in their individual capacities to any person for the payment of benefits hereunder.
(Ord. No. 5573, § III, 12-16-2014)

Sec. 4-34-65. Prohibition on assignment.

Except as otherwise provided by law, no benefit payable under this plan shall be subject to anticipation, alienation, sale, transfer, assignment, pledge, encumbrance, charge, attachment, garnishment, execution, or levy of any kind or any other process of law, voluntary or involuntary. Any attempt to so dispose of any rights to benefits payable hereunder shall be void, unless otherwise authorized by applicable law. Neither the plan nor trust shall be liable for or subject to the debts, contracts, liabilities, engagements or torts of any person entitled to benefits hereunder.

Unless otherwise provided by applicable law, effective July 1, 2015, the restrictions on transfers of benefits as described in this section shall not apply to the creation, assignment, or recognition of a right to any benefit payable with respect to a participant pursuant to a "qualified domestic relations order" defined in Internal Revenue Code Section 414(p) and as provided in T.C.A. § 26-2-105, as amended. The board shall establish a written procedure to determine the qualified status of domestic relations orders and to administer distributions under such qualified orders. For the purposes of this section "qualified domestic relations order" shall have the meaning set forth under Code Section 414(p).
(Ord. No. 5573, § III, 12-16-2014; Ord. No. 5763, § 1(25-273), 12-15-2020)

Sec. 4-34-66. Severability.

If any provisions of this plan are for any reason declared invalid or not enforceable under either federal or Tennessee law, such provisions will not affect the remaining terms and conditions, but the plan will be construed and enforced thereafter as if such provision had not been inserted.
(Ord. No. 5573, § III, 12-16-2014)

Title 5

REVENUE AND FINANCE*

Chapters:

5-4.	Fiscal Provisions Generally
5-8.	Property Taxes
5-12.	License and Privilege Taxes
5-16.	Cigarette Tax
5-20.	Hotel/Motel Occupancy Tax
5-24.	Delinquent Tax Collection
5-28.	Tax-Foreclosed Property
5-32.	Registration of Municipal Bonds
5-36.	Uptown Area Redevelopment Trust Fund
5-40.	Tourism Improvement District
5-44.	Short Term Rental Ordinance

***State law references—**Municipal fiscal affairs, T.C.A. § 6-56-101 et seq.; municipal licensing and taxation powers, T.C.A. § 6-55-101 et seq.

CHAPTER 5-4. FISCAL PROVISIONS GENERALLY

Sections:

Article 1. General Provisions

Sec. 5-4-1. Fiscal year.
Sec. 5-4-2. Payments into general fund—City rents.
Sec. 5-4-3. Payments into general fund—City publication costs.
Sec. 5-4-4. Contents of general accounts.
Sec. 5-4-5. Budget process and deadlines for certain requests.
Sec. 5-4-6. Certification of appropriations.
Sec. 5-4-7. Claims to be filed with comptroller.
Sec. 5-4-8. Purchase of goods and supplies.
Sec. 5-4-9. Records and requisitions for supplies and equipment; duty of purchasing agent upon receipt.
Sec. 5-4-10. Liquidated damages in contracts for public works improvements.
Sec. 5-4-11. Unlawful use of public funds for political advertising.
Sec. 5-4-12. Prevailing wage.
Sec. 5-4-13. Labor relations; total impasse procedure.

Article 2. Living Wage

Sec. 5-4-14. Definitions.
Sec. 5-4-15. Payment of minimum compensation to employees.
Sec. 5-4-16. Monitoring and enforcement.
Sec. 5-4-17. Required records; payroll reports.
Sec. 5-4-18. Article applicable to new service contracts.
Sec. 5-4-19. Retaliation and discrimination barred.
Sec. 5-4-20. Penalty; debarment for two years.
Sec. 5-4-21. Collective bargaining.
Sec. 5-4-22. Exemptions.
Sec. 5-4-23. Annual adjustment of living wage.

ARTICLE 1. GENERAL PROVISIONS

Sec. 5-4-1. Fiscal year.

Commencing with July 1, 1966, the fiscal year of the city, the park commission and the public libraries shall be from July 1 through June 30, inclusive.
(Code 1967, § 2-1; Code 1985, § 2-271)

Charter reference—Authority to prescribe fiscal year, § 813.1.

Sec. 5-4-2. Payments into general fund—City rents.

All moneys received and receivable for rents of any and all property belonging to the city not specifically under the management of some board or commission entitled to receive the same, and not set aside for some specific purpose shall be paid into the general fund, to be disbursed for any lawful municipal purpose.
(Code 1967, § 2-4; Code 1985, § 2-272)

Sec. 5-4-3. Payments into general fund—City publication costs.

A. A fee or rate may be charged to cover city publication cost on items such as, but not limited to, notices, ordinances, resolutions and/or notice to bidders, which require official action by either the administrative or legislative branch of government; provided, the official action is being made at the request of any individual, and the benefits therefrom inures to the particular interest or benefit of such individual. All such fees or rates shall paid into the general fund of the city to be disbursed to the specific division or account it will affect. A determination of the amount of fee or rates to be paid shall be within the discretion of the city comptroller, calculated upon an estimated cost of such publication based on the then current consumer prices. This section does not apply to other sections of this Code wherein such a fee or rate has been established.

B. Such fee or rate so collected shall not be refunded upon the failure of either the administrative or the legislative branch of government to approve the individual's requested action.
(Code 1967, § 2-4.1; Code 1985, § 2-272.1; Ord. No. 3305, § 1, 5-4-1983)

Sec. 5-4-4. Contents of general accounts.

It shall be the duty of the comptroller to assure that the accounting policies of the city conform to generally accepted accounting principles applicable to governmental units.
(Code 1967, § 2-5; Code 1985, § 2-273; Ord. No. 2206, § 1, 1-28-1975)

Sec. 5-4-5. Budget process and deadlines for certain requests.

The director of finance and administration is required to submit to the city council the mayor's requested capital

improvement program no later than the third Tuesday in April of each year and the operating budget request no later than the fourth Tuesday in April of each year.
(Code 1967, § 2-5.1; Code 1985, § 2-274; Ord. No. 2452, § 1, 6-29-1976; Ord. No. 2588, § 1, 4-26-1977; Ord. No. 3363, § 1, 2-21-1984; Ord. No. 3602, § 1, 9-9-1986)

Sec. 5-4-6. Certification of appropriations.

No contract shall be made nor anything done which imposes upon the city any liability to pay money without a certificate from the comptroller that a definite appropriation has been made for the liquidation of all pecuniary liabilities of the city under such contract or order. It shall be the duty of the comptroller, upon certifying to the existence of sufficient unencumbered appropriations to defray such liability, to immediately charge such appropriation with the amount of such liability and to set up a proper reserve to liquidate the authorized expenditure; provided, however, that, during the period preceding the enactment of the budget ordinance, the proportional part of the amount appropriated for similar purposes in the preceding year may be assumed as available; provided, further, that the foregoing restrictions shall not apply to nor limit the authority conferred in relation to the city's bonded debt, nor to transactions arising from local assessments for improvements.
(Code 1967, § 2-6; Code 1985, § 2-275)

Charter reference—Money deemed to be in treasury for purposes of comptroller's certification, § 336.

Sec. 5-4-7. Claims to be filed with comptroller.

No claim against the city, except through litigation, shall be paid until same shall have first been filed for record in the office of the comptroller. For the purposes of this section, estimates or certificates of work done or amounts earned under contracts shall be considered as claims presented.
(Code 1967, § 2-7; Code 1985, § 2-276)

Charter reference—Investigation and payment of claims, §§ 335 and 336.

Sec. 5-4-8. Purchase of goods and supplies.

A. It shall be the duty of the comptroller to verify all bills for goods bought for the city through the purchasing agent for the various departments, to see that the prices charged therefor are no more than the bid price of the same, and to see that such goods delivered to the department of the city entitled to use the same, except that when the invoiced unit price exceeds the unit price as stated on the purchase order or contract the comptroller shall submit the bill to the purchasing agent for his or her approval.

B. All bills for supplies bought by the various departments of the city shall be examined and approved by the city purchasing agent and transmitted to the accounting department of the city. After they have been audited and found correct, checks shall then drawn and signed for each account in the manner provided in the Charter. It shall then be the duty of the comptroller to pay such bills.

C. 1. Notwithstanding any other provision of the Charter or this Code, no contract for equipment, apparatus, material, supplies, goods or services for the city involving more than $50,000.00, shall be made except after the contract shall have been advertised in a newspaper of daily circulation for two consecutive days in the week preceding the day on which bids are to be received.

2. On any contract for equipment, apparatus, materials or supplies involving more than $25,000.00, but less than $50,000.00, the bid procedure of the purchasing division of the City of Memphis shall be used.

3. Under the bid procedure, when the items sought are less than $25,000.00, the purchase may be consummated by purchase order and approval of the purchasing agent.

4. Notwithstanding any other provision of the Charter or this Code, the discretionary amount allowable and necessary for division purchases shall be $5,000.00 with approval of the division director.

5. If the items sought are in excess of $50,000.00, then the purchase must be consummated by written contract signed by the mayor.

(Code 1967, § 2-8; Code 1985, § 2-277; Ord. No. 4473, § 1, 1-21-1997; Ord. No. 5462, § 1, 8-7-2012)

Charter references—Purchasing agent, § 221 et seq.; drawing and signing of checks, § 329.

Sec. 5-4-9. Records and requisitions for supplies and equipment; duty of purchasing agent upon receipt.

Whenever requisitions, records and supporting documents associated therewith are filed with the city purchasing agent by the various departments and bureaus for

processing, the city purchasing agent is authorized to maintain all such requisitions, records and supporting documents on a medium to be read and used by means of a computer and/or word processor. If such a computer medium is used, a security copy of the medium shall be maintained.
(Code 1985, § 2-277.1; Ord. No. 3615, § 1, 12-9-1986)

State law reference—Municipal Purchasing Law of 1983, T.C.A. § 6-56-101 et seq.

Sec. 5-4-10. Liquidated damages in contracts for public works improvements.

All contracts with the city for any public works improvement shall contain a provision that the damages for each day's neglect to finish the work according to contract beyond the time fixed therein shall be such amount as may be prescribed at the time in the contract. This sum shall be deducted as fixed and settled damages from the contract price of the work before the contractor is paid, and in settlement with such contractor, this amount shall be charged to him or her as so much paid on his or her contract.
(Code 1967, § 2-10; Code 1985, § 2-278)

Sec. 5-4-11. Unlawful use of public funds for political advertising.

A. It is unlawful for any elected official of the city, or for an employee of the city, to use funds from the public treasury for the purchasing of space in any newspaper or other publication, or time from any radio or television station, or to pay the costs of any other type of public advertising for the purpose of influencing public opinion in connection with any issue which shall be submitted to the people for a vote, unless such expenditure shall have been approved in advance by the governing body of the city.

B. This section shall apply to advertising on behalf of or in opposition to any candidates or referendum questions, or any other questions which shall be placed on the ballot.

C. This section shall not apply to the use of public funds for the preparation of and direct mailing of material or information requested by any member of the public or by organizations in connection with a public issue upon which the public shall vote, but shall prohibit the use of public funds for mass mailings to members of the general public, or to organizations, which are not made in response to a specific request for information.

D. Any public official expending public funds for purposes prohibited by this section shall be required to repay to the city treasurer the amount of public funds expended for purposes prohibited by this section, upon a determination by the governing body of the city that the expenditure of funds was for prohibited purposes.
(Code 1967, § 2-11; Code 1985, § 2-279)

Sec. 5-4-12. Prevailing wage.

A. Any firm, individual, partnership, corporation, contractor, or subcontractor that is awarded a contract in excess of $50,000.00 by the city for the construction of, improvement, enlargement, alteration or replacement of a public work or any project involving city funds in excess of $50,000.00 (hereinafter referred to as "recipient"), shall be required to pay local prevailing wages for laborers, workmen, mechanics or other listed classifications for Memphis, Tennessee.

B. Contracts for the construction of, demolition, improvement, enlargement, alteration or replacement of a public work or project shall not be deliberately divided into multiple contracts for the sole purpose of circumventing the prevailing wage ordinance.

C. The term "wage(s)" and "prevailing wage(s)" shall be defined as the rate of pay as determined according to the provisions of this section and shall not be in excess of the applicable prevailing wage rates or occupational rates established by the state and said rate shall be adopted where applicable.

D. There shall be a prevailing wage commission composed of nine members, including the city finance director or his or her designee, who shall serve as chairperson of the committee, and the city public works director or his or her designee. The chairperson of the city council or another councilmember designated by the city council chairperson shall also serve on the commission. Six members shall be appointed by the mayor and approved by the city council and shall serve terms of two years (two shall be representatives of the Memphis Building and Construction Trades Council, two shall be representatives of the West Tennessee Chapter of the Associated Builders and Contractors, Inc. or their designees, and two shall be representatives of a local minority contractor association). The commission shall meet as required and shall have oversight responsibility for the prevailing wage ordinance to ensure it is

properly and fairly enforced. The commission shall have no authority in the establishment of wages or job descriptions.

E. *Determination of local prevailing wage*. For purposes of this section, the prevailing wage rate shall be determined as follows:

1. The prevailing wage rate for the city shall be the most current State of Tennessee prevailing wage rates for highway construction established by the prevailing wage commission for state highway construction projects in accordance with T.C.A. title 12, chapter 4, part 4 and the applicable Tennessee occupational wages for building construction projects prepared annually by the department of labor and workforce development.

F. *Filing scheduled wages; employment of apprentices*.

1. It shall be required that any recipient performing under the terms of this section file with the city a schedule of the wages to be paid to such laborers, workmen, mechanics or employees working other classifications.

2. The schedule shall not be less than the state prevailing wages for the class of work being performed by each laborer, workman or mechanic. Such schedule of prevailing wages shall be clearly posted on the job site during construction. (Any construction, improvement, enlargement, alteration or replacement of a public work project, as provided hereof, shall require that a contractor employs apprentices who are properly indentured into a joint labor management apprenticeship training program or an equivalent program that is registered and certified with the U.S. Department of Labor, Bureau of Apprenticeship Training.)

3. Pre-apprentices/helpers may be utilized if indentured apprentices are not available.

G. *Proof of compliance*. The city and/or its authorized representative shall have the power and authority to request and receive information which would substantiate proper compliance under this section. The recipient of the contract shall supply the requested documents or information to the city or its designee within 30 working days of receipt of this request. Failure to comply with the request shall result in a fine equal to the maximum amount allowable under the law after the 30 working days response period has elapsed. If determination is made by the city that the recipient is not in compliance with the prevailing wage ordinance, the recipient will be provided seven working days to begin and to diligently pursue rectifying the compliance violation. If recipient fails to comply with this request within 21 working days, then documentation will be forwarded to the prevailing wage commission for final disposition. A majority vote of members present will be final, with a minimum of five members in attendance.

H. *Violations, penalties and sanctions*. Any recipient that knowingly or willfully fails to comply with the provisions of this section as determined by the prevailing wage commission shall be fined not less than the maximum amount allowable under the law for each violation. Any recipient which is found to have committed two violations of this section in any 24-month period shall be prohibited from being awarded a contract by the city for any public work or project for a period of 24 months of adjudication of the second violation.

(Code 1985, § 2-333; Ord. No. 4665, § 1, 4-6-1999; Ord. No. 4998, § 2, 5-6-2003; Ord. No. 5014, § 1, 2003; Ord. No. 5543, § 1, 4-1-2014)

State law reference—Authorized penalties for ordinance violations, T.C.A. § 6-54-306.

Sec. 5-4-13. Labor relations; total impasse procedure.

A. *General provisions.*

1. *Definitions.* As used in this section the following terms shall have the indicated meanings:

Business day means a day other than a Saturday, Sunday or legal holiday under the laws of Tennessee.

Economic items shall be defined as any items which relate to an identifiable portion of any recognized unit which items provide to those employees direct benefits, except for economic items such as pension benefits, health insurance, and any other items excluded by the Charter of the city, or other state laws.

Impasse on economic items means that point at which any employee organization declares its last best offer, and that offer is either not captured or insufficiently captured in the total economic package proposed by the mayor to the city council, which package represents the last best offer of the city.

Impasse on non-economic items means that point at which any employee organization or city administration do not have agreement on non-economic items by the negotiation deadline.

Negotiations deadline is the date upon which discussions between the city administration and employee organizations regarding economic and non-economic items must be completed, or when a party has declared its last best offer, which shall be no later than March 31.

Non-economic items shall not include economic items as described above.

Total economic package shall be defined as the last best offers of the parties regarding the aggregate economic items as defined herein.

2. *Pre-impasse procedure.*

   a. Referendum Ordinance No. 2766 expressly directed the council to set up, by ordinance, procedures for the arbitration of economic issues of municipal labor disputes between the city and its employees by the council or a committee of the council.

   b. The final position of the city on economic items as defined in this section shall be in writing. If the city presents its final offer more than three business days prior to the negotiations deadline, then, after the city presents its final offer, the organization(s) shall indicate in writing its acceptance of that final offer or its final position on economic items as defined in this section. This response of the organization(s) shall be made before the negotiation deadline.

      If the city makes its final offer to the organization(s) less than three business days before the negotiations deadline, the chief spokesperson of the organization(s) shall tentatively accept or reject the offer in writing at the same negotiation session that the final offer of the city was received. If the organization(s) rejects the final offer of the city, the organization(s), through its chief spokesperson, shall set forth in writing the final position on economic items, as defined in this section of the organization(s), at the time of the rejection of the final offer of the city and during the same negotiation session that the final offer was received. If after the tentative acceptance by the organization(s) of the final offer of the city, should the employees of the organization(s) fail to ratify the final offer of the city, then the final position of the organization(s) shall be its last position at the bargaining table, before the final offer of the city had been given.

   c. Following the negotiation deadline, and at least seven days before the mayor presents his proposed budget to the council, the mayor or his designee shall advise the employee organization(s) of the city's proposed total economic package to be included in the mayor's proposed budget, and shall also advise the employee organizations of any changes to its final positions therein. If changes in the mayor's proposed budget are unacceptable, the employee organizations shall notify the city in writing within 48 hours. At that time, the city will engage in discussions with those organizations in an attempt to reach an agreement prior to the deadline to declare impasse.

   d. At any time before the point of impasse, either party (with written notice to the other party) may call for the appointment of a mediator to assist the parties in negotiating an agreement. It shall be the function of the mediator to bring the parties together to attempt to effectuate a settlement of outstanding issues. The mediator shall have no power to compel either of the parties concerning any aspect of negotiations or the agreement to be negotiated. The mediator may be selected by agreement of the parties (with each party agreeing to share equally in the costs) or by a request by either party to the Federal Mediation and Conciliation Service for the appointment of a federal mediator.

3. *Arbitration procedures for resolving impasses over a total economic package.*

   a. If any employee organization shall determine that the total economic pack-

age for city employees included in the proposed budget(s) presented by the mayor to the city council is not acceptable to such organization(s), such organization(s) may indicate in writing to the chairman of the city council that such organization(s) elect to invoke arbitration procedures, hereunder, for resolving impasse over the city's total economic package submitted to the mayor by the electing employee organization(s) ("impasse notice").

b. The impasse notice(s) must be delivered to the chairman at the city council's offices not later than seven business days after the presentation of the budget(s) by the mayor to the council; a copy of the total economic package of the electing employee organization(s) shall be attached to the impasse notice. Any employee organization(s) that do not elect to invoke impasse hereunder or that fail to make a timely election in accordance with this section shall be deemed to have waived any right to have the total economic package of such employee organization(s) considered by the council.

c. Once this impasse resolution procedure has been implemented by notification of the chairperson as provided for in subsection A.3.b. of this section, neither party may alter their final position as defined in subsection A.2. of this section. However, either party may, at any time, accept the final position total package of the other party as originally submitted to the city council. Such acceptance shall be the final understanding. Further, the parties may mutually agree upon some or all items at impasse any time before final council action at positions the same or different than their final position. Such mutually agreed upon items will be removed from the impasse list of both parties by notification to the chairperson of the council and shall be made a part of any future agreement or memorandum of understanding.

d. Within ten business days after the mayor has presented the budget(s) to the council and provided any employee organization has timely submitted an impasse notice in accordance with this ordinance, the chairman of the city council will convene a meeting between the electing employee organization(s), the city administration and the chairman to allow the electing employee organization(s) and the city administration to each select one member of the council to serve on an impasse committee. There will be one impasse committee per employee organization, but not more than seven. When the employee organization represents more than one bargaining unit, the impasse committee will decide the impasse for each unit separately, unless otherwise agreed by the city and the employee organization. The two council members, so selected, shall select a third member within 48 hours of their selection and in the absence of agreement by the two council members, the chairman shall select the third member. Within four business days after the chair of the impasse committee is selected, the parties shall provide a summary of the issues and any written materials in support of their position, if any, to the impasse committee.

e. The impasse committee shall be authorized to determine the procedure for the electing employee organization(s) and the city administration to present their respective positions on the impasse issues, and the amount of time allocated to the electing employee organization(s) and the city administration to present to the council their respective positions on the proposed budget amendment(s), except that each party shall have at least 30 minutes per unit to present a summary of the issues and their positions. No member of the impasse committee shall be authorized to negotiate with either the city or the organization(s) to change their total economic package(s).

f. The impasse committee must make and submit for consideration their recom-

mendation to the council no later than the close of business on the Tuesday preceding the second reading of the budget ordinance(s) that includes the total economic package of the electing employee organization(s) with the committee's recommendation, as an agenda item for the next council meeting. No member of the impasse committee shall be authorized to negotiate with either the city or the organization(s) to change their total economic package(s), but must choose only the last best offer of one of the parties. The recommendation submitted to council shall delineate the total economic package requested by each unit compared to the total economic package proposed by the mayor.

g. The council shall act only as the final arbiter of the impasse between the city and the employee organization(s) and may not negotiate with either the city of the organization(s) alter the total economic package of any party. All impasse votes by the full council must occur before the final vote on third reading of the proposed fiscal year operating budget. Each party shall be permitted up to 15 minutes, or longer at the discretion of the council, per unit to present their position to full council before the final vote. An affirmative vote of a majority of the members of the full council shall determine if the total economic package submitted by the electing employee organization(s) shall be made part of the budget ordinance by or at the full council meeting during which the proposed fiscal year operating budget is submitted on second reading or after second reading at a special meeting called by the council chairman before the third reading.

h. The impasse decision made by the city council shall become effective and shall be subject to funding by the city council in an approved budget. The city administration shall take whatever action is appropriate to implement the approved impasse decision, as funded, into the mayor's operating budget.

4. *Procedure for resolving impasses over non-economic items.*

a. This section does not empower the city council to discuss or reach an agreement on non-economic items or issues. Non-economic items not mutually agreed prior to the declaration of impasse will remain as stated in the previously agreed upon memorandum of understanding, unless either party, gives written notice to the other party of the intent to mediate the impasse of non-economic items, by following the notice deadline procedures under subsection A.3., except that the notice to the city shall be provided to the city's chief human resources officer.

b. Upon proper notice of the intent to mediate, the mediator may be selected by agreement of the parties (with each party sharing equally in the associated costs) or by a request by either party to the Federal Mediation and Conciliation Service for the appointment of a federal mediator. The parties shall mediate within 60 days of said notice, or as otherwise agreed upon. Until the conclusion of the mediation, the current language of any memorandum of understanding shall control.

c. If the parties have not successfully resolved the impasse through mediation, either party may, within seven days after the conclusion of the mediation period, give written notice to the other party of the intent to send the impasse to an employee relations panel ("written notice of intent") on up to four non-economic articles. Within seven days after the written notice, each party must select a representative to serve on the panel. A panel member shall not be an employee of the city, or a member or affiliate of the involved employee organization/union, and must be a resident of Shelby County, Tennessee.

d. The two representatives must mutually agree on a third member of the panel from the panel of arbitrators from the Federal Mediation and Conciliation

Service ("FMCS"). The cost of the arbitrator shall be borne by the invoking party or equally shared by the parties if both parties submit written notice of intent. The three panel members shall schedule a hearing on the impasse within 45 days of the issuance of the notice of intent to arbitrate. Upon the panel's finding of which proposed non-economic language shall be utilized, that language shall become part of the new memorandum of understanding. In the event that either party seeks to implement a change in an article effecting more than one bargaining unit, that matter may be consolidated by agreement of the parties and heard by one panel, selected in the manner described herein, and costs associated with the arbitrator shall be borne by the party seeking the change.

e. No member of the panel shall be authorized to negotiate with either the city or the organization(s) and must choose, without modification, only the language proposed for an entire article by one of the parties.

(Code 1985, § 2-370; Ord. No. 4243, § 1, 3-22-1994; Ord. No. 5639, § 1, 3-21-2017)

ARTICLE 2. LIVING WAGE

Sec. 5-4-14. Definitions.

For purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

City means the City of Memphis, including those city departments which exercise independent control over their expenditure of funds.

Contractor means any person that enters into a service contract with the city.

Employee means any person who is employed full-time, part-time or on a temporary basis as a service employee of a contractor or subcontractor on a city service contract.

Employer means any person, company or corporation that employs two or more employees at any one time within a calendar year and who is a contractor or subcontractor; provided, however, that corporations organized under section 501(C)(3) of the Internal Revenue Code of 1954, 226 USC 501(C)(3) shall be exempted as to all employees other than child care workers.

Person means any individual, business entity, corporation, partnership or joint venture.

Service contract means a contract awarded to a contractor by the city primarily for the furnishing of services to or for the city (as opposed to the purchase of goods or other property or the leasing of property). "Service contract" includes subcontracts but does not include any contract, whether or not a subcontract, which: (1) involves only the purchase of goods; (2) involves services provided by student interns; (3) is a contract in existence prior to the effective date of this article; or (4) is a contract with a school district, municipality or other unit of government.

Subcontractor means any person not an employee that enters into a contract (and that employs employees for such purpose) with a contractor to assist the contractor in performing service contracts.
(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-15. Payment of minimum compensation to employees.

All employees employed and work performed as part of a service contract with the city shall receive an hourly wage no less than that set under the authority of this article. The minimum hourly wage shall be as defined by the University of Memphis Fogleman College of Business for the Memphis area, which today is at least $10.00 per hour with health benefits for employees and their dependents or $12.00 per hour without health benefits.
(Ord. No. 5185, § 1(part), 12-11-2006)

State law reference—Freedom in Contracting Act, T.C.A. § 12-4-901 et seq.

Sec. 5-4-16. Monitoring and enforcement.

A. The comptroller shall monitor compliance with this law and may contract with nongovernmental agencies to investigate possible violations.

B. The mayor or his or her designee may promulgate rules to implement the provisions of this law and may delegate such authority to the comptroller.

C. The comptroller shall submit an annual report to the mayor and the city council summarizing and assessing the implementation of and compliance with this new law during the preceding year.
(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-17. Required records; payroll reports.

A. *Contractor to submit.* The service contractor shall submit two complete copies of the payroll reports and the payrolls of each subcontractor, consecutively numbered, not later than 14 days from the end of their respective payroll periods, one copy to be sent to the contracting agency, the other to the comptroller where the same will be available for public inspection during regular business hours.

B. *Contents.* The payrolls shall contain:

1. The name of the prime service contractor and any subcontractor, if any;
2. A designation of the project and location;
3. The name, Social Security number, and occupation of each employee;
4. The classification in accordance with the classification fixed in the contract;
5. The number of hours worked daily by the service worker at straight time and overtime and the hourly wage rate for each;
6. The gross wages paid to the service worker per pay period; and
7. Such other data as may be required by the comptroller from time to time.

C. *Prime contractor responsible for subcontractors.* The prime service contractor shall be responsible for the submission of all subcontractors' payrolls covering work performed.

D. *Signed statement of compliance.* Each copy of the payroll shall be accompanied by a statement signed by the contractor or the subcontractor, as the case may be, indicating:

1. That the payroll is correct;

2. That the wage rates contained therein are not less than those established by this article as set forth in the contract;

3. That the classification set forth for each service worker conforms with the work that the service worker performed; and

4. That the service contractor has complied with the provisions of this article.

E. Locally owned small businesses with ten full-time employees or less company-wide shall not be required to submit payroll reports but must have same available for public inspection during regular business hours.

1. Contractors and subcontractors that fall under this designation shall provide an affidavit indicating that the employees working on any project meet the city's living wage requirements. Said letter shall be signed by the owner and employees working on the project.

2. Contractors and subcontractors shall provide an annual update affidavit no later than July 10 of each year until completion of the contract.

3. Violations reported for companies under this subsection will be investigated and upon validation of the complaint will be subject to the penalties as defined in section 5-4-20.

(Ord. No. 5185, § 1(part), 12-11-2006; Ord. No. 5293, § 1, 2-3-2009)

Sec. 5-4-18. Article applicable to new service contracts.

The provisions of this article shall apply to:

1. A service contract consummated after the effective date of this article.

2. A service contract amendment consummated after the effective date of this article.

(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-19. Retaliation and discrimination barred.

It shall be unlawful for any employer to retaliate, discharge, demote, suspend, take adverse employment action in the terms and conditions of employment or otherwise discriminate against any employee for reporting or asserting a violation of this law, for seeking or communicating information regarding rights conferred by this law, for exercising any other rights protected under this law, or for participating in any investigatory or court proceeding relating to this law. This protection shall also apply to any employee or his or her representative who in good faith alleges a violation of this law, or who seeks or communicates information regarding rights conferred by this law in circumstances where he or she in good faith believes this law applies. Taking adverse employment action against a covered employee(s) or his or her representative within 60 days of the covered employee engaging in any of the aforementioned activities shall raise a rebuttable presumption of having done so in retaliation for those activities. Any covered employee subjected to any action that violates this section may pursue administrative remedies or bring a civil action in a court or competent jurisdiction.

(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-20. Penalty; debarment for two years.

In the event the comptroller determines, with approval from the full council, that any service contractor has failed to pay the living wage rate or has otherwise violated the provisions of this article and that such failure was intentional, no contract shall be awarded to such service contractor, or to any person in which such service contractor has an interest until two years have elapsed from the date of such determination.

(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-21. Collective bargaining.

Parties subject to this article may, by collective bargaining agreement, provide that such agreements shall supersede the requirements of this article.

(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-22. Exemptions.

The following are not covered employees for purposes of this article:

1. A person who provides solely volunteer services that are uncompensated except for reimbursement of expenses such as meals, parking or transportation; and

2. A person employed in construction work that is subject to the provisions pursuant to the prevailing wage ordinance; and

3. Any and all employees in the hospitality industry, including, but not limited to, any and all employees working for restaurants and limited

and full-service hotels and lodging establishments within the city limits of Memphis and Shelby County.

(Ord. No. 5185, § 1(part), 12-11-2006)

Sec. 5-4-23. Annual adjustment of living wage.

A. The living wage rate shall be modified July 1, 2008, to incorporate the update, if any, made to the federal poverty level income for a household size of four by the Secretary of the Department of Health and Human Services.

B. The living wage rate for employees of service contractors shall be modified in accordance with the date the RFP is issued, and such RFP will contain the actual rate (in dollars per hour, with and without benefits) which applies for that RFP.

C. In the case of contract renewals, the living wage rate applicable as of the date of the renewal shall be the effective living wage rate.

D. The director of the division of finance shall report to the Memphis City Council no later than the first meeting in April 2009 the impact, if any, to the city's FY 2009 O&M budget.

(Ord. No. 5257, § 1, 5-14-2008)

CHAPTER 5-8. PROPERTY TAXES*

Sections:

Sec. 5-8-1. Assessment of property generally.
Sec. 5-8-2. Tax lien and assessment return date.
Sec. 5-8-3. When and where taxes payable; delinquency date.
Sec. 5-8-4. When tax books open.
Sec. 5-8-5. Installment payment of taxes; when due and payable; interest and penalties; election and failure to elect.
Sec. 5-8-6. Installment payment of taxes; attainment of age 65; special provisions; when due and payable.
Sec. 5-8-7. Penalty and interest on delinquent taxes.
Sec. 5-8-8. Disposition of picked-up and unappropriated taxes.
Sec. 5-8-9. Adjustments and refunds.
Sec. 5-8-10. Tax relief to persons upon attainment of age 65.

***Charter references—**Tax assessor, §§ 198—208; taxation generally, §§ 752—776; privilege and license taxes, §§ 777—796-12; assessment of property for taxation generally, §§ 797—801; board of equalization, §§ 802—813.

State law reference—Property taxes, T.C.A. § 67-5-101 et seq.

Sec. 5-8-1. Assessment of property generally.

The assessment of all property taxable ad valorem under the laws of the state shall be in accordance with the provisions of the Charter of the city and the Constitution and laws of the state. Unless therein otherwise provided, the assessment shall be made in accordance with the provisions of T.C.A. § 67-601 et seq., and other pertinent laws of the state.

(Code 1967, § 38-1; Code 1985, § 36-1)

State law reference—Tax assessments, T.C.A. §§ 6-55-603 et seq., 67-5-501 et seq.

Sec. 5-8-2. Tax lien and assessment return date.

The date of lien for city taxes shall be January 1 of each year, and the assessment of the tax assessor shall be returnable as of January 1 of each year.

(Code 1967, § 38-2; Code 1985, § 36-2; Ord. No. 2067, § 1, 6-4-1974)

State law reference—Tax liens, T.C.A. § 67-5-1101 et seq.

Sec. 5-8-3. When and where taxes payable; delinquency date.

All ad valorem taxes shall be due and payable to the city treasurer in his or her office in the city hall or by United States mail to such addresses as designated by the city treasurer June 1 and shall become delinquent on September 1 of each calendar year, unless otherwise provided in the ordinance adopted annually fixing the tax rate.

(Code 1967, § 38-3; Code 1985, § 36-3; Ord. No. 1996, § 1, 3-14-1967; Ord. No. 2444, § 1, 6-15-1976; Ord. No. 3211, § 1, 6-15-1982)

State law reference—Due date of taxes, T.C.A. § 67-1-701.

Sec. 5-8-4. When tax books open.

The city realty, personalty and ad valorem tax books shall be open for the payment of such taxes on or before the first day of August of each year, except when such date falls on Saturday, Sunday or a legal holiday, and then such tax books shall be open on the following business day.

(Code 1967, § 38-4; Code 1985, § 36-4)

State law reference—Date and place of payment of taxes, T.C.A. § 67-1-702.

Sec. 5-8-5. Installment payment of taxes; when due and payable; interest and penalties; election and failure to elect.

Ad valorem taxes assessed by the city, including real estate, personal property and utilities and carriers under the state public service commission, for the current calendar year may be paid in two installments, if payments rendered are not paid under protest: one-half payable on June 1, but not later than June 30; one-half on or before August 31, in each and every year. Any taxpayer or property owner, or holder, shall have the right and option, as hereinafter provided, to elect or fail to elect to pay such taxes in installments as hereinabove specified, but should any installment of such taxes not be paid on or before the respective dates as hereinabove fixed for installment payments, interest and penalties as now provided by law for delinquent taxes shall be added. (Code 1967, § 38-6; Code 1985, § 36-5; Ord. No. 1995, § 1, 3-14-1967; Ord. No. 337, § 1, 12-17-1968; Ord. No. 2445, § 1, 6-15-1976; Ord. No. 3380, § 1, 5-29-1984)

State law reference—Partial payment of taxes, T.C.A. §§ 67-5-1801, 67-5-1808.

Sec. 5-8-6. Installment payment of taxes; attainment of age 65; special provisions; when due and payable.

A. *Definitions.* As used in this section:

Application means the form or forms prescribed by the city treasurer to be filed showing eligibility for participation as a senior citizen.

City treasurer means the treasurer of the city.

Residence means the place of residence by a taxpayer for the 12-month period next preceding the date of assessment of real property.

Rules and regulations means those requirements set by the city treasurer as to qualification and proof of eligibility for participation as a senior citizen.

Senior citizen means any person, any joint property owner, any husband and spouse, any holder of real estate within the city limits, who has attained the age of 65 before property taxes are assessed as of January 1 in the year in which application is to be made.

Taxes means city property taxes.

Taxpayer means any homeowner, any person, any joint owner, any husband and spouse, any holder, owning real estate within the city limits upon which a property tax shall become due and payable.

B. *Installments.* Real estate taxes assessed by the city for the current calendar year may be paid by persons over 65 years of age in four installments, if payments rendered are not paid under protest: one-fourth payable on July 1, but not later than August 31; one-fourth payable on September 1, but not later than November 30; one-fourth payable on December 1, but not later than February 28; and one-fourth payable on March 1, but not later than May 31, in each and every year. Election to pay in installment payments shall be by payment of each installment on or before the respective date as hereinabove specified. Upon the failure of payment of any respective quarter within the time specified, it shall be conclusively presumed that such taxpayer or property owner, or holder, has elected not to continue use of the installment payment plan herein provided for, and payment of any unpaid balance of such taxes shall be treated as if the taxpayer or property owner, or holder, had failed to elect to use the installment payment plan herein provided for, and payment of such balance of taxes due shall be as otherwise provided for and be subject to interest and penalties as now provided by law for delinquent taxes. Reinstatement into the installment payment plan must be by reapplication for the next tax year.

C. *Eligibility.* Persons to be eligible for participation as a senior citizen must have become 65 years of age in the year before the tax is assessed as of January 1, and shall have resided in the dwelling, home or residence for the 12-month period immediately preceding the date of assessment. All persons becoming eligible for participation under this section shall be exempt from the provisions of section 5-8-5, but on election not to participate under this section, payment of taxes shall automatically revert back to the status of section 5-8-5.

D. *Application.* Applications for inclusion under this section must be upon forms as provided by the city treasurer and filed during the first quarter of any year, or prior to August 31 of any year in which the taxpayer becomes eligible. The first date on which participation can commence for any applicant and taxpayer shall be June 1, 1979.

E. *Rules and Regulations.* The city treasurer shall promulgate rules and regulations as to qualifications for participating and proof of eligibility as to age, which

rules and regulations shall be applied uniformly. Such rules and regulations shall be set out in writing and made available to all persons making application. Exceptions, if any, to such rules and regulations will be subject to review by the director of finance and administration.
(Code 1967, § 38-7; Code 1985, § 36-6; Ord. No. 2737, § 1, 7-5-1978)

State law reference—Quarterly installment payments of taxes by aged persons, T.C.A. § 67-5-1807.

Sec. 5-8-7. Penalty and interest on delinquent taxes.

All taxes shall bear interest at the rate of 12 percent per annum from and after the date of delinquency. In addition, there is levied and there shall be collected on all delinquent taxes a penalty of one-half of one percent per month for each month of delinquency, or part thereof, and which shall accrue on the first day of each month that such taxes shall be delinquent.
(Code 1967, § 38-8; Code 1985, § 36-7; Ord. No. 3257, § 1, 12-14-1982)

Charter reference—Authority to fix penalties, interest and costs on delinquent taxes, § 764.

State law references—Penalty and interest on delinquent taxes, T.C.A. § 67-5-2010; nonpayment of real estate tax, T.C.A. § 6-55-201 et seq.

Sec. 5-8-8. Disposition of picked-up and unappropriated taxes.

All picked-up and unappropriated taxes, except those specially levied for schools, parks, library or sinking funds, which shall be paid over and disbursed in accordance with the ordinances levying the same, shall be paid over to the general fund account of the city and may be appropriated as the city council may direct for any lawful municipal purpose, or may be applied to any overdraft in any appropriation as the city council may direct.
(Code 1967, § 38-9; Code 1985, § 36-8)

Sec. 5-8-9. Adjustments and refunds.

Any city ordinance to the contrary notwithstanding, the city treasurer is empowered with all rights, powers, duties and responsibilities to the same extent and in the same fashion as the same are granted to county clerks by T.C.A. § 67-2301, as presently enacted or hereafter amended.
(Code 1967, § 38-10; Code 1985, § 36-9; Ord. No. 2067, § 1, 6-4-1974)

Sec. 5-8-10. Tax relief to persons upon attainment of age 65.

A. *Definitions.* For purposes of this section:

Application means the form or forms prescribed by the county assessor to be filed showing eligibility for participation as a senior citizen.

Assessor means the county assessor.

Residence or *residential property* means the place of residence by the taxpayer for the 12-month period next preceding the date of assessment of real property.

Rules and regulations means those requirements set by the county assessor as to qualification and proof of eligibility for participation as a senior citizen.

Senior citizen means any person, any joint property owner, any husband and spouse, any holder of real estate within the city limits, who has attained the age of 65 years before real property taxes are assessed as of January 1 in the year in which application is to be made.

Taxes means city real estate taxes.

Taxpayer means any homeowner, any person, any joint owner, any husband and spouse, any holder, owning real estate within the city limits upon which a property tax shall become due and payable.

Treasurer means the treasurer of the city.

Trustee means the county trustee.

B. *Tax relief established.* Tax relief for senior citizens shall be provided as follows:

1. Any taxpayer who is 65 years of age or older and who owns residential property as his or her principal place of residence shall pay taxes on such property in an amount not to exceed the maximum amount of tax on such property imposed in the tax year on the effective date of this section (tax amount not to exceed 1980 tax levied, except for improvements).

2. Any taxpayer who reaches the age of 65 years after the effective date of this section who owns residential property as his or her principal place of residence shall thereafter pay taxes on such property in an amount not to exceed the maximum amount of tax on such property imposed in the tax year in which such taxpayer reaches

the age of 65 years (tax amount not to exceed tax levied for year in which taxpayer attained 65 years of age, except for improvements).

3. Any taxpayer who is 65 years of age or older who purchases residential property as his or her principal place of residence after his or her 65th birthday shall pay taxes in an amount not to exceed the maximum amount of tax imposed on such property in the tax year in which such property is purchased (tax amount not to exceed tax levied for year in which taxpayer purchased property, except for improvements).

Provided, however, that whenever the full market value of such property is increased as a result of improvements to such property after effective date of this section, then the assessed value of such property shall be adjusted to include such increased value and the taxes shall also be increased proportionally with the value.

C. *Limitation on eligibility.* Any taxpayer or taxpayers who own residential property as their principal place of residence whose total or combined annual income is in excess of $12,000.00 shall not be eligible to receive the tax relief provided in this section. Total or combined income means that of husband and spouse, any person, any joint owners or holders of record.

D. *Rules and regulations.* The county assessor shall promulgate rules and regulations as to qualifications for participating and proof of eligibility as to age, income and place of residence, and regulations shall be established with the assistance of the county trustee and the city treasurer. Such rules and regulations shall be set out in writing and made available to all persons desiring to make application. Exceptions, if any, to such rules and regulations will be subject to review by the city director of finance and administration.
(Code 1967, § 38-11; Code 1985, § 36-10; Ord. No. 2971, § 1, 12-18-1979)

CHAPTER 5-12. LICENSE AND PRIVILEGE TAXES*

Sections:

Sec. 5-12-1. Collector of licenses and privileges generally.
Sec. 5-12-2. Funds to be part of general fund.
Sec. 5-12-3. Business Tax Act—Taxes levied thereunder.
Sec. 5-12-4. Business Tax Act—Rate for public road contractor—Other contractors.

***Charter reference—**Privilege and license taxes, § 777 et seq.

State law reference—Business Tax Act, T.C.A. § 67-4-701 et seq.

Sec. 5-12-1. Collector of licenses and privileges generally.

The city treasurer shall be the collector of licenses and privileges. He or she shall sign all licenses issued by him or her and shall keep a record of each license so signed, together with the amount paid therefor.
(Code 1967, § 38-44; Code 1985, § 36-26)

Charter reference—Election and term of collector, § 230.

Sec. 5-12-2. Funds to be part of general fund.

The funds derived from the collection of taxes under this chapter shall be part of the general fund of the city, and shall be appropriated by ordinances for the use of the city in the same manner that the proceeds of ad valorem taxes are appropriated.
(Code 1967, § 38-53; Code 1985, § 36-27)

Charter reference—Similar provisions, § 782.

Sec. 5-12-3. Business Tax Act—Taxes levied thereunder.

The privilege taxes provided for in T.C.A. § 67-5801 et seq., known as the Business Tax Act, are levied on the businesses, business activities, vocations or occupations carried on in the city at the rates and in the manner prescribed by such act, effective as of June 1, 1971.
(Code 1967, § 38-55; Code 1985, § 36-28; Ord. No. 981, § 1, 6-22-1971)

Sec. 5-12-4. Business Tax Act—Rate for public road contractor—Other contractors.

The taxes provided for in the Business Tax Act are amended by changing the rate for public road contractors from the minimum tax of $400.00 per annum to $15.00 per annum, and a minimum tax on all other contractors from $100.00 per annum to $15.00 per annum.
(Code 1967, § 38-56; Code 1985, § 36-29; Ord. No. 1072, § 1, 10-5-1971)

State law reference—Business Tax Act, T.C.A. § 67-4-701 et seq.

CHAPTER 5-16. CIGARETTE TAX*

Sections:

Sec. 5-16-1. Definitions.
Sec. 5-16-2. Levied; amount.
Sec. 5-16-3. Collection by wholesalers from retailers; amount to be added to retail price.
Sec. 5-16-4. Failure of retailer to collect.
Sec. 5-16-5. Payment by purchase of stamps; collection agent.
Sec. 5-16-6. Stamp to be affixed to packages.
Sec. 5-16-7. Refund on stamps.
Sec. 5-16-8. Possession of unstamped package.
Sec. 5-16-9. Access to wholesalers' records.
Sec. 5-16-10. Rules and regulations of director of finance and administration.
Sec. 5-16-11. Exemption of purchases at military establishments.
Sec. 5-16-12. Wholesaler's discount.

Sec. 5-16-1. Definitions.

For the purposes of this chapter:

Retailer means a person who sells cigarettes for consumption and not for resale.

Wholesaler means the person who sells cigarettes at wholesale only and shall include distributors, manufacturers and any other person who sells at wholesale only.
(Code 1967, § 38-64; Code 1985, § 36-41)

Charter reference—Similar provisions, § 796.4.

Sec. 5-16-2. Levied; amount.

Pursuant to the authority vested in the city council by chapter 295 of the Private Acts of the General Assembly of Tennessee for 1955, there is levied upon the retail purchase of cigarettes from retailers whose places of business are located within the city limits a privilege tax of $0.01 per package containing 20 or less cigarettes and upon packages containing more than 20 cigarettes at the rate of $0.01 for each 20 cigarettes or fraction thereof, such tax so levied being a privilege tax upon the consumer of such cigarettes.
(Code 1967, § 38-65; Code 1985, § 36-42)

Sec. 5-16-3. Collection by wholesalers from retailers; amount to be added to retail price.

The tax levied by this chapter shall be added by every wholesaler who sells cigarettes to retailers within the city to each invoice for cigarettes sold to a retailer within the city and shall be collected by such wholesaler from such retailer and remitted to the collector of licenses and privileges or the designated agent of the city as hereinafter provided. Each such retailer shall include the amount of such tax paid by him or her to the wholesaler in the retail price charged by him or her to the consumer on each and every package of cigarettes sold.
(Code 1967, § 38-66; Code 1985, § 36-43)

Charter reference—Similar provisions, § 796.7.

Sec. 5-16-4. Failure of retailer to collect.

It is unlawful for any retailer within the city to sell any cigarettes without collecting the tax levied by this chapter, and each separate sale without the collection of such tax is made a separate offense.
(Code 1967, § 38-67; Code 1985, § 36-44)

Charter reference—Similar provisions, § 796.8.

Sec. 5-16-5. Payment by purchase of stamps; collection agent.

The tax levied by this chapter shall be paid by the purchase from the collector of licenses and privileges, or from such agent for the collection thereof as may be appointed by the director of finance and administration, of stamps of such design as may be prescribed by the director of finance and administration. Such commissioner is empowered to employ agents to sell such stamps and to contract with the state and the county or their agent or agents pertaining to the collection of such tax and may employ a representative of the state in the county charged with the collection of the state tobacco tax to collect the tax herein levied for the city. Any agent so employed to collect such tax shall execute a bond with a solvent surety company qualified to do business in the state as surety thereon payable to the city and conditioned to faithfully perform the duties imposed upon him or her and to faithfully account for and promptly pay to the city all sums due the city by virtue of his or her employment.
(Code 1967, § 38-68; Code 1985, § 36-45)

Charter reference—Authority to provide for stamps, § 796.9.

Sec. 5-16-6. Stamp to be affixed to packages.

It shall be the duty of each wholesaler to affix to each package of cigarettes sold to a retailer in the city a stamp of the property denomination showing the payment of

***State law reference—**State tobacco tax, T.C.A. § 67-4-1001 et seq.

the tax, such stamp to be affixed prior to delivery of the cigarettes to the retailer in the manner prescribed by the director of finance and administration.
(Code 1967, § 38-69; Code 1985, § 36-46)

Sec. 5-16-7. Refund on stamps.

Wholesalers having unsalable stamps or stamps on unsalable products may apply to the collector of licenses and privileges for refunds. Unsalable stamps must be voided by a representative of the comptroller's office. Claims for refund for stamps on unsalable products must be accompanied by an affidavit of the wholesaler of such information as is required by the director of finance and administration and proof of refund by the state department of finance and taxation. Claims for refund under $100.00 shall be approved by the director of finance and administration, the comptroller and the city attorney. Claims of $100.00 or over shall be approved by the city council.
(Code 1967, § 38-70; Code 1985, § 36-47)

Sec. 5-16-8. Possession of unstamped package.

It is unlawful for a retailer or a consumer within the city to possess within the city any package of cigarettes which is not stamped so as to evidence the payment of the tax levied by this chapter, and the possession of each and every package of unstamped cigarettes by a retailer or by a consumer shall constitute a separate offense.
(Code 1967, § 38-71; Code 1985, § 36-48)

Charter reference—Similar provisions, § 796.10.

Sec. 5-16-9. Access to wholesalers' records.

The duly appointed representatives of the director of finance and administration or of the collector of licenses and privileges shall have access at all reasonable times to all records of wholesalers which are pertinent to the determination and collection of the tax levied by this chapter.
(Code 1967, § 38-72; Code 1985, § 36-49)

Charter reference—Authority to require access to wholesalers' records, § 796.9.

Sec. 5-16-10. Rules and regulations of director of finance and administration.

The director of finance and administration is authorized and empowered to make and promulgate reasonable rules and regulations for the collection of the tax levied by this chapter. The director of finance and administration may require wholesalers to file reports monthly or at such other intervals as he or she may determine, upon such forms as he or she may prescribe and with such number of copies thereof as he or she may require, such reports to include such facts and information as may be deemed reasonable by the director.
(Code 1967, § 38-73; Code 1985, § 36-50)

Sec. 5-16-11. Exemption of purchases at military establishments.

All purchases of cigarettes made by bona fide military personnel on any military base, post, hospital or other military establishment of the United States of America shall be exempt from the tax levied by this chapter.
(Code 1967, § 38-74; Code 1985, § 36-51)

Charter reference—Authority to grant above exemptions, § 796.9.

Sec. 5-16-12. Wholesaler's discount.

The director of finance and administration is authorized to allow to all wholesalers a discount of not to exceed five percent of the tax collected by such wholesaler as compensation for the affixing or printing of the stamps required by this chapter, making reports, and such other services as may be required of the wholesaler in the administration of the provisions of this chapter.
(Code 1967, § 38-75; Code 1985, § 36-52)

Charter reference—Authority to allow discount, § 796-12.

CHAPTER 5-20. HOTEL/MOTEL OCCUPANCY TAX*

Sections:

Sec. 5-20-1. Definitions.
Sec. 5-20-2. Levy of occupancy tax.
Sec. 5-20-3. Collection by operator; inclusion in rate.
Sec. 5-20-4. Remittance of tax by operator.
Sec. 5-20-5. Collection of tax by city.
Sec. 5-20-6. Disclosure of tax.
Sec. 5-20-7. Failure of operator to collect tax.
Sec. 5-20-8. Rules and regulations; reports; records.
Sec. 5-20-9. Allocation of funds.

***State law reference—**Hotel occupancy tax, T.C.A. § 67-4-1401 et seq.

Sec. 5-20-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City treasurer means the person serving in the office of city treasurer.

Consideration means the consideration charged, whether or not received, for occupancy in a hotel, valued in money, whether to be received in money, goods, labor or otherwise, including all receipts, cash, credits, property and services of any kind or nature, without any deduction therefrom whatsoever. Nothing in this definition shall be construed to imply that consideration is charged when the space provided to the person is complimentary from the operator and no consideration is charged to or received from any person.

Hotel means any structure or space, or any portion thereof, which is occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes, and includes any hotel, inn, tourist camp, tourist court, tourist cabin, motel, or any place in which rooms, lodgings or accommodations are furnished to transients for a consideration. Hotel does not include those hotels that are within a tourism surcharge district described in Ordinance No. 5583 existing on July 1, 2015. Further, hotel does not include those hotels that meet, at all times, both (i) 45 and fewer rooms and (ii) a maximum charge of $35.00 or less per paid occupied room night.

Occupancy means the use or possession, or the right to the use or possession, of any room, lodgings or accommodations in any hotel.

Operator means the person operating the hotel whether as owner, lessee or otherwise.

Person means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate or any other group or combination acting as a unit.

Transient means any natural person who exercises occupancy or is entitled to occupancy for any rooms, lodgings or accommodation in a hotel for a period of less than 90 continuous days.

(Code 1985, § 36-121; Ord. No. 4824, § 1, 11-7-2000; Ord. No. 5614, § 1, 5-3-2016)

Sec. 5-20-2. Levy of occupancy tax.

The city levies a privilege tax upon the privilege of occupancy in a hotel of each transient. Except as provided below, such tax shall be in the amount of four percent of the consideration charged by the operator for such occupancy. Such tax is a privilege tax upon the transient occupying such room and is to be collected as provided in this chapter.

Notwithstanding the foregoing, the city levies a privilege tax upon the privilege of occupancy in a hotel of each transient in a hotel which is in:

1. A tourism development zone and subject to the maximum privilege tax; and
2. A tourism surcharge district as described in Ordinance No. 5583 existing on July 1, 2015. Such tax shall be in the amount of one and seven-tenths percent of the consideration charged by the operator for such occupancy. Such tax is a privilege tax upon the transient occupying such room and is to be collected as provided in this chapter.

(Code 1985, § 36-122; Ord. No. 4824, § 1, 11-7-2000; Ord. No. 5596, § 1, 9-1-2015; Ord. No. 5619, § 1, 6-21-2016; Ord. No. 5937, § 1, 4-8-2025)

State law reference—Authority to levy hotel occupancy tax, T.C.A. § 67-4-1402.

Sec. 5-20-3. Collection by operator; inclusion in rate.

A. The tax levied shall be added by all operators to each invoice prepared by each such operator and given directly or transmitted to the transient for the occupancy of such operator's hotel. Such tax shall be collected by each such operator from the transient and remitted to the city.

B. When a person has maintained occupancy for 30 continuous days, that person shall receive from the operator a refund or credit for the tax previously collected from or charged to him or her, and the operator shall receive credit for the amount of such tax if previously paid or reported to the city.

(Code 1985, § 36-123; Ord. No. 4824, § 1, 11-7-2000)

State law reference—Similar provisions, T.C.A. § 67-4-1404.

Sec. 5-20-4. Remittance of tax by operator.

A. The tax levied shall be remitted to the city treasurer by all operators who lease, rent or charge for rooms or spaces in hotels within the city, and the city

treasurer is charged with the duty of collection thereof. Such tax shall be remitted to the city treasurer not later than the twentieth day of each month for the preceding month. Each operator is required to collect the tax from each transient at the time of the presentation of the invoice for occupancy whether prior to occupancy or after occupancy as may be the custom of the operator, and if credit is granted by the operator to the transient, then the obligation to the city for such tax shall be that of the operator.

B. For the purpose of compensating the operator in accounting for and remitting the tax authorized and levied hereunder, the operator shall be allowed two percent of the amount of the tax due and accounted for and remitted to the city in the form of a deduction in submitting his or her report and paying the amount due by such operator, provided the amount due was not delinquent at the time of payment in which case no such deduction will be allowed.

(Code 1985, § 36-124; Ord. No. 4824, § 1, 11-7-2000)

State law reference—Similar provisions, T.C.A. § 67-4-1405.

Sec. 5-20-5. Collection of tax by city.

A. The city treasurer shall be responsible for the collection of such tax and shall place the proceeds of such tax in the general bank account of the city. The city shall account for the collection and disbursement of all revenue generated from this tax in a separate accounting fund. A monthly tax return shall be filed under oath with the city treasurer by each operator, with such number of copies thereof as the city treasurer may reasonably require for the collection of such tax. The report of the operator shall include such facts and information as may be deemed reasonable for the verification of the tax due. The form of such report shall be developed by the city treasurer and approved by the mayor prior to use.

B. The mayor is authorized to adopt reasonable rules and regulations for the implementation of the provisions of this chapter.

(Code 1985, § 36-125; Ord. No. 4824, § 5, 11-7-2000)

Sec. 5-20-6. Disclosure of tax.

No operator of a hotel shall advertise or state in any manner, whether directly or indirectly, that the tax or any part thereof will be assumed or absorbed by the operator or that it will not be added to the consideration, or that if added, any part will be refunded.

(Code 1985, § 36-126; Ord. No. 4824, § 1, 11-7-2000)

Sec. 5-20-7. Failure of operator to collect tax.

Taxes collected by an operator which are not remitted to the city treasurer on or before the due dates shall be delinquent. An operator shall be liable for interest on such delinquent taxes from the due date at the rate of ten percent per annum, and, in addition, a penalty of one percent for each month or fraction thereof such taxes are delinquent. Such interest and penalty shall become a part of the tax herein required to be remitted. Each occurrence of willful failure or refusal of an operator to collect or remit the tax or the willful refusal of a transient to pay the tax imposed is declared to be unlawful and shall be punishable by a fine of $50.00. In addition, it is unlawful for any operator to knowingly file a false tax return, and a violation shall be punishable by a fine of not more than $50.00.

(Code 1985, § 36-127; Ord. No. 4824, § 7, 11-7-2000)

State law reference—Similar provisions, T.C.A. § 67-4-1408.

Sec. 5-20-8. Rules and regulations; reports; records.

A. It is the duty of every operator liable for the collection and payment to the city of the tax levied hereunder to keep and preserve, for a period of three years, all records as may be necessary to determine the amount of such tax for which he or she may have been liable for the collection of and payment to the city, which records the city treasurer, his or her designee or any accounting firm or accountant employed by the city, shall have the right to inspect at all reasonable times.

B. The city treasurer, in administering and enforcing the provisions of this chapter, shall have and be authorized to use those powers and duties as are provided for with respect to collecting taxes in T.C.A. § 67-1-101 et seq., or otherwise provided by law for county clerks and/or municipal officers.

C. Upon any claim of illegal assessment and collection, the taxpayer shall have the remedies provided in T.C.A. § 67-9-101 et seq., it being the intent of this chapter that the provisions of law which apply to the recovery of state taxes illegally assessed and collected also apply to taxes illegally assessed and collected under the authority of this chapter. The city treasurer shall also

possess those powers and duties as provided in T.C.A. § 67-1-707 for county clerks with respect to the adjustments and refunds of such tax.

D. With respect to the adjustment and settlement with taxpayers, all errors of taxes collected by the city treasurer under the authority of this chapter shall be refunded by the city.

E. Notice of any tax paid under protest shall be given to the city treasurer, and suit may be brought for recovery of such tax against the mayor of the city in his or her official capacity.

(Code 1985, § 36-128; Ord. No. 4824, § 8, 11-7-2000)

State law reference—Similar provisions, T.C.A. §§ 67-4-1409, 67-4-1410.

Sec. 5-20-9. Allocation of funds.

The proceeds of the four percent tax levied under this section shall be collected by the city and distributed as follows:

1. From July 1, 2016, and thereafter, the first one and seven-tenths percent tax of the total four percent tax levied hereunder shall be collected by the city and applied to payment of bonded indebtedness, principal and interest, of the bond sale or sales by The Memphis and Shelby County Sports Authority, Inc. (the "sports authority bonds") for the purpose of development and construction costs of a New Memphis Sports Arena, built by the New Memphis Arena Public Building Authority, to fund the construction of the national basketball association arena, until paid in full, and thereafter to such other projects and purposes as the city council shall determine.

2. From July l, 2016, and thereafter, the second one and eight-tenths percent tax of the total four percent tax levied hereunder shall be used for the purpose of funding the following:

    a. To make up any deficiencies in the payment of administrative expenses of The Memphis and Shelby County Sports Authority, Inc.'s payments to the bond fund, rebate fund, or debt service reserve fund for the sports authority bonds;

    b. To reimburse, on a pro rata basis, monies paid by the city or by Shelby County, Tennessee, to replenish the debt service reserve fund for the sports authority bonds; and

    c. For deposit to the capital improvement reserve fund to make capital improvements, to pay administrative costs, and/or to purchase or redeem the sports authority bonds, as directed by The Memphis and Shelby County Sports Authority, Inc.

3. Notwithstanding any of the provisions contained herein to the contrary, any revenues produced from the taxes levied under this chapter over and above the sum of:

    a. That amount which satisfies subsections 2.a., 2.b., and 2.c. of this section; and

    b. The greater of: (x) the amount of such tax revenue projected for the current fiscal year at the time of the original issuance of the sports authority bonds and (y) the amount the one and seven-tenths percent tax rate would have provided for such fiscal year, shall be applied to the payment of principal of and interest on additional bonded indebtedness, and non-capitalized expenses of the bond sale or sales and bond-related continuing costs, to fund additional construction or renovation of convention or meeting facilities.

4. Upon the effective date of this ordinance, the remaining one-half of one percent tax of the total four percent tax levied hereunder shall be used by the city for the use and purpose of funding the following:

    a. To fund ongoing obligations pertaining to the National Basketball Association Arena including, but not limited to, the payment of bonded indebtedness, capital repairs, improvements, replacements, and ongoing maintenance, including the professional services rendered for the design, architectural, engineering, management and oversight associated therewith; and

b. To fund such other projects and purposes, as the city shall determine, for the purposes of promoting tourism and tourism development, as permitted by state law.

(Code 1985, § 36-129; Ord. No. 4824, § 9, 11-7-2000; Ord. No. 4939, § II, 5-7-2002; Ord. No. 5596, § 2, 9-1-2015; Ord. No. 5619, § 2, 6-21-2016; Ord. No. 5937, § 2, 4-8-2025)

State law reference—Allocation of proceeds, T.C.A. § 67-4-1411.

CHAPTER 5-24. DELINQUENT TAX COLLECTION*

Sections:

Sec. 5-24-1. Generally.
Sec. 5-24-2. Treasurer to function as collector.
Sec. 5-24-3. Adoption of state law.
Sec. 5-24-4. Powers and duties of collector.
Sec. 5-24-5. Powers and duties of city treasurer.
Sec. 5-24-6. Powers and duties of city attorney; tax suits generally.
Sec. 5-24-7. Joinder of defendants and different property and procedures in tax suits.
Sec. 5-24-8. Sale of land for delinquent taxes.
Sec. 5-24-9. Consolidation of tax suits.
Sec. 5-24-10. Authority of city treasurer or city attorney to bid at tax sales.
Sec. 5-24-11. Collection of delinquent merchants' ad valorem taxes, personalty taxes, and privilege taxes.
Sec. 5-24-12. Interpretation; remedies available to attorneys.

Sec. 5-24-1. Generally.

Upon the nonpayment of any realty, personalty or ad valorem tax due the city on or before the respective dates fixed for installment or annual payment, the same shall be collected in the manner now provided by law for the collection of delinquent state and county taxes, and shall be subject to all penalties, interest and charges fixed by law.

(Code 1967, § 38-86; Code 1985, § 36-66)

***Charter reference—**Authority to provide for collection of taxes, §§ 760, 770.

State law references—Delinquent taxes, T.C.A. § 67-5-2001 et seq.; nonpayment of real estate tax, T.C.A. § 6-55-201 et seq.

Sec. 5-24-2. Treasurer to function as collector.

The city treasurer shall function as the collector of delinquent taxes for the city.

(Code 1967, § 38-87(b); Code 1985, § 36-67)

Sec. 5-24-3. Adoption of state law.

A. Except as herein otherwise specifically provided, the system for the collection of delinquent taxes and for the sale of property to satisfy the lien of delinquent taxes provided in the Tennessee Code Annotated is adopted.

B. The provisions contained in T.C.A. §§ 67-2010 and 67-2011 shall in no manner or mode be applicable to the city. The city is exempted from the provisions of such sections in their entirety.

(Code 1967, § 38-88; Code 1985, § 36-68)

State law references—Delinquent taxes, T.C.A. § 67-5-2001 et seq; nonpayment of real estate tax, T.C.A. § 6-55-201 et seq.

Sec. 5-24-4. Powers and duties of collector.

A. The city treasurer shall, on January 1 of the year following the year in which such taxes become delinquent, furnish to the collector of delinquent taxes a list of all delinquent ad valorem taxes for the preceding year. The collector of delinquent taxes shall thereafter make diligent efforts and take all legal steps available to him or her to enforce their collection until February 1 of the year following, at which time a list of all such taxes which remain unpaid shall be turned over to the city attorney as provided in this chapter.

B. The collector of delinquent taxes is vested with and shall have all the powers and authority vested by law in the treasurer of the city and in the county trustee for the collection of such delinquent ad valorem taxes.

(Code 1967, § 38-89; Code 1985, § 36-69)

Sec. 5-24-5. Powers and duties of city treasurer.

The city treasurer shall have all of the powers and duties placed upon the county trustee by state law pertaining to the collection of delinquent taxes.

(Code 1967, § 38-90; Code 1985, § 36-70)

Sec. 5-24-6. Powers and duties of city attorney; tax suits generally.

A. The city attorney and his or her staff, in addition to their other duties, shall perform the duties of delinquent tax attorney. The city attorney shall prepare and file

suits in the chancery or circuit court or shall take such other steps as he or she is authorized to take by law to collect all delinquent city ad valorem taxes, such suits to be filed separately from those filed for the collection of state and county taxes. Such fees and commissions as are allowed by the state law to delinquent tax attorneys, and as are collected in the suits so filed, shall be paid into the office of the city treasurer and shall become a part of the general fund of the city.

B. The collector of delinquent taxes and the city treasurer shall furnish to the city attorney, at the time and in the manner provided by T.C.A. § 67-2002, a list of all delinquent ad valorem taxes. Unless suits have otherwise been filed thereon, the city attorney shall file suits upon the taxes in the manner provided in those sections of the Tennessee Code Annotated relating to the collection of delinquent ad valorem taxes. All of the powers and duties conferred upon the attorney for the county trustee by state law are conferred upon the city attorney, who may perform such duties without further authorization by the city council.

C. At any time after the ad valorem taxes of the city become delinquent, such taxes or any of them may be placed in the hands of the city attorney, who may pursue any remedy available under the law to enforce their collection.

D. The city attorney shall have full power and authority at any time to file bills in the chancery court relating to any particular piece of property or several properties within the city, setting up the taxes due thereon and owing to the city, whether suits have been filed on the same or not theretofore, and praying for a sale of such property to satisfy the lien of city taxes on terms and conditions authorized under any statute applicable thereto, and subject to the lien of state and county taxes. In case such bills are filed, the rights of the parties thereunder shall not be limited to those authorized by the provisions of the state code, but shall be governed by the general law of the state, including the decisions of the courts relating to the sale of property to satisfy the lien of taxes thereon.

(Code 1967, § 38-91; Code 1985, § 36-71)

State law reference—Collection by suits, T.C.A. § 6-55-202 et seq.

Sec. 5-24-7. Joinder of defendants and different property and procedures in tax suits.

Any number of defendants and pieces of property may be joined in one suit and such suits shall be conducted in accordance with the procedure of the chancery courts of this state and may pray for a sale or sales of the property on credit of six months and in bar of the equity of

redemption or for sale of the property for cash, subject to the equity of redemption and for such other relief as may be proper.
(Code 1967, § 38-92; Code 1985, § 36-72)

Sec. 5-24-8. Sale of land for delinquent taxes.

Sales of property may be prayed for in suits to be filed to satisfy the lien of all city taxes due thereon, subject to the lien of any state and county taxes which may be a lien upon the property; or sales of the property may be prayed for and made with the approval of the court to satisfy the lien of any one or more years city taxes against the property, subject not only to the lien of any state and county taxes due thereon, but to the lien of any previous or subsequent city taxes due thereon.
(Code 1967, § 38-93; Code 1985, § 36-73)

Sec. 5-24-9. Consolidation of tax suits.

T.C.A. § 67-2007, providing for the consolidation of tax suits, is specifically excepted from the procedure adopted by this chapter. Tax suits brought under the provisions of this chapter may be consolidated with other tax suits upon motion of the city attorney, when the rules of the chancery court will permit.
(Code 1967, § 38-94; Code 1985, § 36-74)

Sec. 5-24-10. Authority of city treasurer or city attorney to bid at tax sales.

The city treasurer or city attorney shall have full power and authority at any tax sale held to satisfy the lien of city taxes, to bid for the property on behalf of the city as purchaser, as much as the amount of the city taxes, together with interest, penalties, attorney fees and costs thereon, subject to the lien of any state and county taxes due thereon.
(Code 1967, § 38-95; Code 1985, § 36-75)

Charter reference—Authority of city to fully protect the rights and interests of the city in any property sold at public or court sales for delinquent taxes by bidding and paying for such property so sold such amount as will insure the recovery of any and all delinquent taxes thereon, § 835.

Sec. 5-24-11. Collection of delinquent merchants' ad valorem taxes, personalty taxes, and privilege taxes.

A. The city treasurer is empowered to take all steps and to do all things which the county trustee is authorized to do by law, and particularly by T.C.A. § 67-1302 et seq., with respect to the collection of city personalty taxes.

B. Distress warrants issued by the city treasurer or by the collector of licenses and privileges of the city shall have the same force and effect as those issued by the county trustee or the county clerk, pursuant to authority vested in them by law.

C. In addition to all other remedies now provided by law for the collection of personalty and privilege taxes which are delinquent, the director of the division of finance and administration shall have the power and he or she is authorized to institute suits at law or in equity on behalf of the city for the collection of such delinquent taxes.
(Code 1967, § 38-96; Code 1985, § 36-76)

Sec. 5-24-12. Interpretation; remedies available to attorneys.

It is the declared intent of this chapter to make available to the officials, attorneys and other persons charged with the duties of collecting and filing suits for delinquent taxes, any and all remedies and legal procedures provided therefor under the law, and to leave the selection of remedies and procedure to the discretion of the attorneys charged with the duties of bringing suits for delinquent taxes, so far as may be done under the law, and subject to the provisions of this chapter.
(Code 1967, § 38-97; Code 1985, § 36-77)

CHAPTER 5-28. TAX-FORECLOSED PROPERTY*

Sections:

Sec. 5-28-1. Agent defined.
Sec. 5-28-2. Properties to be referred to agent.
Sec. 5-28-3. General duties of agent upon notice of acquisition of property.
Sec. 5-28-4. Certification of delinquent taxes on property.
Sec. 5-28-5. Collection and disposition of rentals.
Sec. 5-28-6. Repairs.
Sec. 5-28-7. Sale generally.
Sec. 5-28-8. Disposition of proceeds of sale.

***Charter reference—**Authority of city to purchase property at public or court sale for delinquent taxes, take immediate possession thereof and lease, rent and sell and convey title to any property so purchased, § 835.

Sec. 5-28-1. Agent defined.

Whenever the words "the agent" appear in this chapter, they shall be construed to mean the city real estate agent.
(Code 1967, § 38-109; Code 1985, § 36-91)

Sec. 5-28-2. Properties to be referred to agent.

All properties acquired by the city through foreclosure, or by quit claim deed in lieu thereof, due to tax delinquency, shall be referred to the agent and the agent shall be charged with the management, rental, repair and sale thereof.
(Code 1967, § 38-110; Code 1985, § 36-92)

Sec. 5-28-3. General duties of agent upon notice of acquisition of property.

The agent, upon notice by the office of the city attorney of the acquisition of such property, shall:

A. Inspect same;

B. Cause same to be appraised. In the event the agent determines that the property value is in excess of $5,000.00, he or she shall have the property appraised by an independent real estate appraiser at the time the property is to be sold;

C. Determine the best and proper use of the property whether it be to rent, sell or appropriate for public use;

D. Maintain a permanent record of same, showing the above-mentioned facts, location, description and other matters incidental thereto.

(Code 1967, § 38-111; Code 1985, § 36-93; Ord. No. 3540, § 1(1), 4-1-1986; Ord. No. 3739, § 1(1), 4-5-1988)

Sec. 5-28-4. Certification of delinquent taxes on property.

Upon notice of the acquisition of the property, the agent shall certify to the city treasurer and the city comptroller the delinquent taxes, in default of payment of which the property was acquired, and the city comptroller shall cause such taxes to be marked off and charged to the capital assets of the city.
(Code 1967, § 38-112; Code 1985, § 36-94)

Sec. 5-28-5. Collection and disposition of rentals.

The agent shall collect all rentals from property referred to him or her pursuant to this chapter, issue receipts therefor to tenants, and maintain individual property accounts of such collections. The comptroller shall maintain all proceeds thereof in a separate escrow account and disburse funds only in compliance with the provisions of this chapter. When it is determined by the agent that the rental account of any parcel contains funds in excess of an appropriate amount to be retained for the purpose of repairs, maintenance, management or security of same, then he or she shall request that the comptroller pay from such excess rental proceeds city and county taxes and costs in compliance with the priorities established in section 5-28-8(B), and any remaining excess into the general fund of the city.
(Code 1967, § 38-113; Code 1985, § 36-95; Ord. No. 3540, § 1(2), 4-1-1986)

Sec. 5-28-6. Repairs.

A. 1. The agent shall cause improved properties referred to him or her under this chapter to be repaired where necessary, provided that any expenditures for such repairs shall be made in compliance with the city purchasing procedures as contained in the Charter.

2. The word "repairs," as here used, shall be construed as meaning any work necessary to be done to preserve the property, make it tenantable or enhance the value of the property.

B. The agent shall be authorized to use any and all moneys in the hands of the comptroller for the purpose of defraying the cost of repairs, maintenance, management or security of the properties, which moneys may have accrued through the collection of rentals.
(Code 1967, § 38-114; Code 1985, § 36-96; Ord. No. 3540, § 1(3, 4), 4-1-1986)

Sec. 5-28-7. Sale generally.

Upon expiration of the statutory redemption period, and after making a diligent effort to sell the property at its reasonable market value, the city real estate agent/manager shall be authorized to sell or dispose of tax sale property in conformity with the provisions of section 2-16-1.
(Code 1967, § 38-115; Code 1985, § 36-97; Ord. No. 726, § 1, 6-9-1970; Ord. No. 3540, § 1(5), 4-1-1986; Ord. No. 4381, § 2, 12-19-1995)

Sec. 5-28-8. Disposition of proceeds of sale.

A. The comptroller shall establish a special account into which all proceeds from the sale of land under section 5-28-7 shall be paid and, after disbursement of funds as set out below, any balance remaining in the account from such sale shall be maintained for the purpose of paying any expenses accruing in the sale or attempted sale of property under this chapter, or for repairs, maintenance, management or security of property where no revenues have been derived from its rental; provided, however, that the agent, when it is deemed by him or her that the assets in the account are in excess of the anticipated continued expenses, may request that such excess funds be transferred into the general fund of the city.

B. Upon the sale of a parcel of land under section 5-28-7, the agent shall turn over to the comptroller the proceeds of such sale and shall certify to the comptroller the sales price, together with a statement of all expenses incidental to such sale, any costs for repairs, maintenance, management, or security, any attorneys fees, city and county taxes, interest, penalties, court costs and any other costs. The comptroller shall disburse the proceeds of such sale to the extent that they will cover the listed items, first to the expenses of the sale, including appraisal fees, advertising and closing costs and real estate commissions where sales are effected through the efforts of authorized and licensed real estate brokers, and any costs for repairs, maintenance or management of the property; second, to the general fund of the city, city attorney fees, city taxes, interest and penalties, cost of title search, publication and any other city costs; third, to the chancery court clerk and master, any city court costs, including chancery court costs and commissions and sheriffs fees; and last, to the chancery court clerk and master, any Shelby County taxes and costs in the following priority: attorneys' fees, taxes, interest and penalties, court costs and any other costs.
(Code 1967, § 38-116; Code 1985, § 36-98; Ord. No. 3540, § 1(6), 4-1-1986)

CHAPTER 5-32. REGISTRATION OF MUNICIPAL BONDS*

Sections:

Sec. 5-32-1. Generally.
Sec. 5-32-2. Registration book; contents of record.
Sec. 5-32-3. Application for registration; successive registration.
Sec. 5-32-4. Effect of registration; reconversion and transfer.
Sec. 5-32-5. How registry noted on bond.
Sec. 5-32-6. No charge to be made for registration or transfer.

***Charter reference—**Registration of bonds, § 819.

Sec. 5-32-1. Generally.

Conformable to the provisions of chapter 904 of the Private Acts of Tennessee for the year 1921, constituting an amendment to the Charter of the city, there is provided a method whereby the bonds of the city authorized by ordinances duly passed and adopted subsequent to April 9, 1921, and signed by the mayor and by the comptroller and in all respects constituting subsisting obligations of the city, may be admitted to registration as to principal only; the method of transferring such bonds from one owner to another; and the method of payment of principal and interest to the owner of record.
(Code 1967, § 2-115; Code 1985, § 2-316)

Sec. 5-32-2. Registration book; contents of record.

It shall be the duty of the comptroller to provide a book suitably ruled for the purpose of keeping an accurate record of the owners of all bonds of the city which shall have been registered under the provisions of this chapter. Such record shall identify the bonds by date of issue, rate of interest, authority for issuance, dates of interest payments, the place where principal and interest may be paid and the names of the officers who signed the bonds.
(Code 1967, § 2-116; Code 1985, § 2-317)

Sec. 5-32-3. Application for registration; successive registration.

The holder of any bond of the city which may have been issued pursuant to an ordinance passed on third reading subsequent to April 9, 1921, and signed by the mayor and comptroller, shall have the right and privilege to present such bonds to the comptroller with a written request that such bonds be registered in the name of any person, giving the name and permanent post office address of such owner. Thereupon it shall be the duty of the comptroller to so register such bonds as requested. A bond once registered may be registered successively for

different owners or it may be discharged from registration by being registered as payable to bearer and thereafter transferred merely by delivery.
(Code 1967, § 2-117; Code 1985, § 2-318)

Sec. 5-32-4. Effect of registration; reconversion and transfer.

A. When registered as to principal only, the coupons of bonds shall be negotiable by delivery from one owner to another, and they shall be payable to the bearer.

B. Where the bond is registered in the name of a trustee, guardian or any person acting for another, all proper authority for acting shall be shown.

C. When bonds shall once have been fully registered they may not be reconverted and they shall be transferred only through the records of the office of the comptroller.
(Code 1967, § 2-118; Code 1985, § 2-319)

Sec. 5-32-5. How registry noted on bond.

Where it is desired by the holder that the bonds shall be registered as to principal, the comptroller shall clearly note such registration on the reverse side of the original bond by reciting the name of the owner, the owner's address, the date of registration and the signature of the comptroller.
(Code 1967, § 2-119; Code 1985, § 2-320)

Sec. 5-32-6. No charge to be made for registration or transfer.

No charge shall be made for registering or transferring from one owner to another any bond under the provisions of this article.
(Code 1967, § 2-120; Code 1985, § 2-321)

CHAPTER 5-36. UPTOWN AREA REDEVELOPMENT TRUST FUND*

Sections:

Sec. 5-36-1. Short title.
Sec. 5-36-2. Definitions.
Sec. 5-36-3. Purpose.
Sec. 5-36-4. Creation of Memphis and Shelby County Community Redevelopment Agency Redevelopment Trust Fund.
Sec. 5-36-5. Funding of the redevelopment trust fund.
Sec. 5-36-6. Discretion to grant exemptions.
Sec. 5-36-7. Term of the redevelopment trust fund.
Sec. 5-36-8. Expenditure of moneys in the redevelopment trust fund.

***State law reference—**Community Redevelopment Act, T.C.A. § 13-21-201 et seq.

Sec. 5-36-1. Short title.

This chapter shall be known as the "Redevelopment Trust Fund Ordinance for the Uptown Area."
(Code 1985, § 2-240.10; Ord. No. 4869, § 1, 6-5-2001)

Sec. 5-36-2. Definitions.

For the purposes of this chapter, the following terms shall have the special meanings respectively ascribed to them below:

Act means the Community Redevelopment Act of 1998, being chapter 987 of the Public Acts of 1998.

City means the City of Memphis, Tennessee.

Community redevelopment area means the community redevelopment area described in Exhibits A and B attached to Ordinance No. 4869, which are incorporated by reference and made a part of this chapter.

County means Shelby County, Tennessee.

CRA means the Memphis and Shelby County redevelopment agency created by the county and city pursuant to the provisions of the Act.

Ordinance means this redevelopment trust fund ordinance.

Plan means the community redevelopment plan for the uptown area adopted by the city council of the city and board of county commissioners of Shelby County, Tennessee and pursuant to the Act as the same may be amended from time to time.

Redevelopment trust fund means the redevelopment trust fund for the Memphis and Shelby County Community Redevelopment Agency created by this subdivision pursuant to section 21 of the Act.
(Code 1985, § 2-240.11; Ord. No. 4869, § 2, 6-5-2001)

Sec. 5-36-3. Purpose.

The purpose of this chapter is to establish a redevelopment trust fund for the uptown area pursuant to section 21 of the Act to finance improvements contemplated by the plan.
(Code 1985, § 2-240.12; Ord. No. 4869, § 3, 6-5-2001)

Sec. 5-36-4. Creation of Memphis and Shelby County Community Redevelopment Agency Redevelopment Trust Fund.

Pursuant to the provisions of section 21 of the Community Redevelopment Act of 1998 there is established a redevelopment trust fund for the Memphis and Shelby County Community Redevelopment Agency.
(Code 1985, § 2-240.13; Ord. No. 4869, § 4, 6-5-2001)

Sec. 5-36-5. Funding of the redevelopment trust fund.

The annual funding of the redevelopment trust fund shall be in an amount not less than that increment in the income, proceeds, revenues and funds of each taxing authority derived from or held in connection with the undertaking and carrying out of community redevelopment under the Act. Such increment shall be determined annually and shall be that amount equal to 95 percent of the difference between:

A. The amount of ad valorem tax levied in each year by each taxing authority, exclusive of any amount from any debt service millage, on taxable real property contained in the geographic boundaries of the community redevelopment area; and

B. The amount of ad valorem taxes which would have been produced by the rate upon which the tax is levied each year by or for each taxing authority exclusive of any debt service millage, upon the total of the assessed value of the taxable real property in the community redevelopment area as shown upon the most recent assessment role used in connection with the taxation of such property by each taxing authority prior to the effective date of the ordinance from which this chapter is derived.

Pursuant to the requirements of the Act, each taxing authority located within the community redevelopment area shall by January 1 of each year commencing January 1, 2002, appropriate to the redevelopment trust fund for so long as any indebtedness pledging increment revenue to the payment thereof is outstanding (but not to exceed 30 years) a sum that is no less than the increment as defined and described in this section accruing to such taxing authority. If the plan is amended or modified pursuant to the Act, each such taxing authority shall make the annual appropriation for a period not to exceed 30 years after the date the city and the county amend the plan.
(Code 1985, § 2-240.14; Ord. No. 4869, § 5, 6-5-2001)

Sec. 5-36-6. Discretion to grant exemptions.

Subject to further proceedings of the council and the board pursuant to the requirements of section 21(b)(4) of the Act, the city and the county reserve the discretion to grant an exemption to any special district that levies taxes within the community redevelopment area from the funding requirements of section 5-36-5; provided such grant of an exemption shall not violate article 1, section 20 of the Tennessee Constitution or article 1, section 10 of the United States Constitution, relating to impairment of contracts.
(Code 1985, § 2-240.15; Ord. No. 4869, § 6, 6-5-2001)

Sec. 5-36-7. Term of the redevelopment trust fund.

The redevelopment trust fund shall remain in existence for 30 years after the date of adoption of the plan; provided, however, in the event the city and the county shall amend or modify the plan in accordance with the provisions of the Act, the redevelopment trust fund shall remain in existence at least 30 years after the date the plan is so amended. Notwithstanding anything in this chapter to the contrary, the obligation to fund the redevelopment trust fund annually shall continue until all loans, advances and indebtedness, if any, and interest thereon, of the CRA incurred as a result of redevelopment in a community redevelopment area have been paid. Upon termination of the redevelopment trust fund, subject to payment of all amounts required to be paid from such redevelopment trust fund, any remaining moneys in the redevelopment trust fund shall be returned to each taxing authority, which paid the increment in the proportion that the amount of the payment of such taxing authority bears to the total amount paid into the redevelopment trust fund by all taxing authorities within the community redevelopment area during that year of the last appropriation.
(Code 1985, § 2-240-16; Ord. No. 4869, § 7, 6-5-2001)

Sec. 5-36-8. Expenditure of moneys in the redevelopment trust fund.

A. Moneys in the redevelopment trust fund may be expended from time to time for the following purposes, when directly related to financing or refinancing of redevelopment in a community redevelopment area pursuant to the plan:

1. Administrative and overhead expenses necessary or incidental to the implementation of plan;
2. Expenses of redevelopment planning, surveys and financial analysis, including the reimbursement of the city or the county or the CRA for such expenses incurred before the plan was approved and adopted;
3. The acquisition of real property in the community redevelopment area;
4. The clearance and preparation of any portion of the community redevelopment area for redevelopment and relocation of site occupants as provided in section 17 of the Act;
5. The repayment of principal and interest or any redemption premium for loans, advances, bonds, bond anticipation notes and any other form of indebtedness;
6. All expenses incidental to or connected with the issuance, sale, redemption, retirement or purchase of CRA bonds, bond anticipation notes or other form of indebtedness, including fund or any reserve, redemption or other fund or account provided for in the ordinance or resolution authorizing such bonds, notes or other form of indebtedness;
7. The development of affordable housing within the community redevelopment area.

B. On the last day of each fiscal year of the CRA, any money which remains in the redevelopment trust fund after the payment of expenses pursuant to subsection A of this section for such year shall be:

1. Returned to each taxing authority, which paid the increment in the proportion that the amount of the payment of such taxing authority bears to the total amount paid into the trust fund by all taxing authorities within the community redevelopment area for that year;
2. Used to reduce the amount of any indebtedness to which increment revenues are pledged;
3. Deposited into an escrow account for the purpose of later reducing any indebtedness to which increment revenues are pledged; or
4. Appropriated to a specific redevelopment project pursuant to the plan which project will be completed within three years from the date of such appropriation.

C. In accordance with the provisions of the Act the city and the county shall cause the CRA to provide for an independent financial audit of the trust fund each fiscal year and a report of such audit. Such report shall describe the amount and source of deposits into, and the amount and purpose of withdrawals from, the redevelopment trust fund during such fiscal year and the amount of principal and interest paid during such year on any indebtedness to which is pledged increment revenues and the remaining amount of such indebtedness. The CRA shall provide a copy of the report to each taxing authority.

(Code 1985, § 2-240.17; Ord. No. 4869, § 8, 6-5-2001)

CHAPTER 5-40. TOURISM IMPROVEMENT DISTRICT

Sections:

Sec. 5-40-1. Short title.
Sec. 5-40-2. Definitions.
Sec. 5-40-3. Purpose.
Sec. 5-40-4. Creation.
Sec. 5-40-5. Funding.
Sec. 5-40-6. Programs.
Sec. 5-40-7. Collection.
Sec. 5-40-8. Penalties and interest.
Sec. 5-40-9. Management.
Sec. 5-40-10. Severability.
Sec. 5-40-11. Term.
Sec. 5-40-12. Termination.

Sec. 5-40-1. Short title.

This chapter shall be known as the ″Memphis Tourism Improvement District.″

(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-2. Definitions.

For the purposes of this chapter, the following terms shall have the special meanings respectively ascribed to them below.

Assessment means a special assessment levied on hotels in the district.

Bureau means the Memphis Convention and Visitors Bureau, a nonprofit corporation.

District means the Memphis Tourism Improvement District created pursuant to this chapter. The boundaries of the district shall be the boundaries of the City of Memphis.

Hotel means any structure or space, or any portion thereof, which is occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes, and includes any hotel, inn, tourist camp, tourist court, tourist cabin, motel or any place in which rooms, lodgings or accommodations are furnished to transients for a consideration. Hotel does not include those hotels that are within a tourism surcharge district described in Ordinance No. 5583 existing on July 1, 2015.

Room night means the use or possession, or the right to the use or possession, of any room, lodgings or accommodations in any hotel for a period of 24 hours or less.

Transient means any person who exercises occupancy or is entitled to occupancy for any rooms, lodgings or accommodation in a hotel for a period of less than 30 continuous days.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-3. Purpose.

The purpose of this chapter is to establish a tourism improvement district for the city that will generate funds dedicated to destination marketing. The district is intended to provide supplemental funding for marketing programs above and beyond that currently provided. District funds shall supplement existing hotel/motel occupancy tax funds dedicated to the bureau for marketing, advertising and promotion of the hospitality industry.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-4. Creation.

There is hereby established the Memphis Tourism Improvement District, effective January 1, 2016.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-5. Funding.

The district shall impose an assessment of $2.00 per paid occupied room night on hotels in the city. The following room nights shall not be subject to the assessment:

A. Those wherein any natural person has maintained occupancy for 90 continuous days. When a natural person has maintained occupancy for 90 continuous days, that natural person shall receive from the operator a refund or credit for the assessment previously collected from or charged to him or her, and the operator shall receive credit for the amount of such assessment as previously paid or reported to the city; and

B. Those for which the person is not charged, commonly known as complimentary or comp rooms.

(Ord. No. 5595, § 1, 9-1-2015; Ord. No. 5614, § 1, 5-3-2016)

Sec. 5-40-6. Programs.

The district funds shall be used to generate awareness of and increase visitation to the city. The programs will be designed to increase hotel room sales for the benefit of the assessed hotels. Non-assessed hotels will not be included in any district-funded programs. Programs may include:

A. Marketing and advertising, including Internet, television, radio, and print;

B. Promotions, such as package deals and contests;

C. Sales efforts, including industry conferences, fam tours, and group sales efforts;

D. Research on the tourism market and industry;

E. Branding efforts;

F. Support of special events which attract out of town visitors;

G. Related administrative expenses; and

H. Other programs designed to increase overnight stays at hotels.

(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-7. Collection.

A. The assessment shall be remitted to the city treasurer, and the city treasurer is charged with the duty of collection thereof. Such assessment shall be remitted to the city treasurer not later than the 20th day of each month for the preceding month. The assessment is the responsibility of each hotel; however, hotel may choose to pass the assessment on to the transient. If a hotel chooses to pass the assessment on to the transient, it must be disclosed in advance as the "Memphis TID assessment."

B. For the purpose of compensating the city in accounting for and remitting the assessment to the bureau, the city shall be allowed to retain one percent of the amount collected.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-8. Penalties and interest.

Assessments not remitted to the city treasurer on or before the due dates shall be delinquent. A hotel shall be liable for interest on such delinquent assessments from the due date at the rate of ten percent per annum, and, in addition, a penalty of one percent for each month or fraction thereof such assessments are delinquent. Such interest and penalty shall become a part of the assessment herein required to be remitted. Each occurrence of willful failure or refusal of a hotel to remit the assessment is declared to be unlawful and shall be punishable by a fine of $200.00. In addition, it is unlawful for any hotel to knowingly file a false assessment return, and a violation shall be punishable by a fine of not more than $200.00.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-9. Management.

A. Funds collected by the city, minus the one percent administration allowance, shall be remitted to the bureau within 30 days of receipt.

B. The bureau shall be responsible for managing district funds and programs in accordance with this chapter. The bureau shall not be considered a public entity for any purpose, nor shall its board members be considered public officials for any purpose. The bureau shall enter into a contract with the city regarding the management and use of funds.

C. The bureau shall provide an annual report to the city. The annual report shall be submitted each year no later than 90 days after the anniversary of the assessment start date. The annual report shall include:

1. A summary of the activities provided in the previous year;
2. A summary of the expenditures from the previous year;
3. The amount of any revenue to be carried over from any prior year(s);
4. A list of the directors and officers of the bureau; and
5. A list of accomplishments attributable to the district.

(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-10. Severability.

If any portion, clause, or phrase of this chapter is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, and if such portion, clause, or phrase is not so substantial that the city council would not have adopted this chapter without it, then the remaining portions, clauses, and phrases shall not be affected but shall remain in full force and effect.
(Ord. No. 5595, § 1, 9-1-2015)

Sec. 5-40-11. Term.

The district created pursuant to this chapter shall expire on December 31, 2035, provided that prior to the expiration of the term, the city council may adopt an ordinance to extend the term of the district beyond December 31, 2035 with the support of the Metropolitan Memphis Hotel and Lodging Association.
(Ord. No. 5595, § 1, 9-1-2015; Ord. No. 5961, § 2, 12-2-2025)

Sec. 5-40-12. Termination.

Objection petitions may be submitted once per year in the month of December. If an objection petition is received from businesses which pay more than 50 percent of the assessment, the city council shall hold a hearing on district termination. Objection petitions must be signed by the business owner or their authorized representative, and dated within 30 days of their submis-

sion to the city. A public hearing will be held on the objection petitions within 30 days of the city's receipt of the objection petitions.
(Ord. No. 5595, § 1, 9-1-2015)

CHAPTER 5-44. SHORT TERM RENTAL ORDINANCE

Sections:

Sec. 5-44-1. Definitions and general provisions.
Sec. 5-44-2. Zoning short term rental property.
Sec. 5-44-3. Applicability.
Sec. 5-44-4. Assessments and privilege tax on short term rental properties.
Sec. 5-44-5. Permit required.
Sec. 5-44-6. Regulation of short term rental property.
Sec. 5-44-7. Compliance.

Sec. 5-44-1. Definitions and general provisions.

The following words and phrases when used in this chapter shall have the meanings as set out herein:

1. *Short term rental property* means a residential dwelling unit containing not more than three sleeping rooms that is used and/or advertised for rent, in whole or in part, for transient occupancy by guests and complies with Ordinance No. 4232 governing the minimum conditions of property. Any structure or detached accessory unit rented to the same occupant for more than 30 continuous days, bed and breakfast establishments, boarding houses, hotels, and motels shall not be considered short term rental property.

2. *Short term rental property owner* means the holder of the title in fee simple. Any person, group of persons, company, association, or corporation in whose name tax bills on the property are submitted. It shall also mean any person who, alone or jointly or severally with others:

    a. Shall have legal title to any dwelling unit with or without accompanying actual possession thereof; or

    b. Shall have charge, care, or control of any dwelling unit as owner, executor, executrix, administrator, trustee, guardian of the estate of the owner, assignee of rents, lessee or other person, firm, or corporation in control of a building or their duly authorized agents.

3. *Hosting platform* means a person or entity that participates in short term rental business by providing a means through which a short term rental property owner may offer a short term rental property for transient use. This business service is usually, though not necessarily, provided through an online platform that allows a short term rental property owner to advertise through a website or mobile application and provides a means for potential tourist or transient users to arrange transient use and payment, whether the transient pays directly to the short term rental property owner or to the hosting platform.

4. *Transient* means any natural person, who exercises occupancy or is entitled to occupancy of any short term rental property, lodging, or accommodation.

5. *Occupancy* means the use or possession, or the right to the use or possession, of any short term rental property, lodging, or accommodation.

6. *Dwelling* means any building or structure or part thereof, including single, two-family, and multi-family dwellings, used, and occupied for human habitation or intended to be so used including any accessory building and appurtenances (right-of-way, i.e., driveway) belonging there or usually enjoyed therewith.

(Ord. No. 5856, § 2, 3-21-2023)

Sec. 5-44-2. Zoning short term rental property.

It is the intent of the council of the city of Memphis that short term rental property be regulated by this short term rental ordinance. As of the effective date of this ordinance, all short term rental properties shall be subject to the regulations of this chapter and not those outlined for rooming houses in section 2.5.2 of the Memphis and Shelby County Unified Development Code.
(Ord. No. 5856, § 3, 3-21-2023)

Sec. 5-44-3. Applicability.

As required by T.C.A. § 13-7-603, this article, including but not limited to the requirement for a permit, or other standards herein established, shall not apply to any short term rental property if the property was used as a short term rental property by the owner prior to the effective date of this article until the property is sold, transferred, ceases to be used as a short term rental property for a period of 30 continuous months or has been in violation of generally applicable local law three or more separate times as provided in T.C.A § 13-7-604.
(Ord. No. 5856, § 4, 3-21-2023)

Sec. 5-44-4. Assessments and privilege tax on short term rental properties.

A. A hosting platform, under a voluntary collection agreement with the city, which facilitates a transaction between a short term rental property owner and a transient for lodging accommodations, shall be solely responsible and liable for collecting and remitting all occupancy and sale taxes to the city; and a short term rental property owner who is not the hosting platform shall not be responsible for collecting and remitting occupancy and sales tax to the city on any transaction for which it has received confirmation that the hosting platform has collected the aforementioned taxes and remitted them to the city, pursuant to a voluntary collection agreement; otherwise, short term rental property owners shall be liable for the collection and remittance of occupancy and sales taxes, if no such voluntary collection agreement between a hosting platform and the city has been executed.

B. The city shall impose an assessment of $2.00 per paid occupied room night on short term rental properties in the city. This assessment shall be dedicated to destination marketing and to providing supplemental funding for marketing programs above and beyond that currently provided, pursuant to Ordinance 5595.

C. The city levies a privilege tax upon the privilege of occupancy in a short term rental property of each transient. Such tax shall be in the amount of three and one-half percent of the consideration charged by the short term rental property owners. Such tax is a privilege tax upon the transient occupying such short term rental property and is to be collected and enforced by the city as provided, pursuant to Ordinance 5619.
(Ord. No. 5856, § 5, 3-21-2023)

Sec. 5-44-5. Permit required.

A. No person or entity shall operate a short term rental property or advertise residential property for use as a short term rental property without the owner of the property first having obtained a short term rental property permit issued by the City of Memphis Division of public works. Any owner of more than one short term rental property shall be required to obtain a permit for each short term rental property. If more than one short term rental property exists within a dwelling, each short term rental property, as defined herein, shall be treated as one unit, and permit shall be required for each unit.

B. Any advertising or description of a short term rental property on an internet website, mobile application, or other hosting platform must display a permit number for the short term rental property.

C. Short term rental property permits required by this article shall be applied for and renewed electronically or in writing, on such forms as the division of public works may prescribe which forms shall include:

1. The maximum number of transient capacity per night for each short term rental unit including a site plan, drawn to scale, showing each unit and other structures and site features as determined by the division of public works;
2. The owner's agreement to use best efforts to assure that use of the short term rental property will not interfere with the rights or rules of neighboring property owners to the quiet enjoyment of their properties;
3. Proof of owner's current ownership of the short term rental property;
4. Verification of insurance evidencing fire, hazard, and liability coverages of not less than $1,000,000.00 per occurrence;
5. A "compliance verification form" certifying that every short term rental unit currently complies with applicable building, health, and life safety code provisions of applicable ordinances of the City of Memphis;
6. The applicant's acknowledgement of receipt of the short term rental ordinance stating the applicant has reviewed and understands its requirements;
7. Particular instances in which conditions or conduct on the applicant's property resulted in

issuance of any citation by a local state or local law enforcement or regulatory agency within the last 12-months;

8. The identification of one or more adult persons, entities or businesses ("responsible party") residing or located within 50 miles of the subject short term rental property who shall be engaged to appear on the premises of the short term rental property to respond to alleged violations of the City of Memphis Code of Ordinances or other applicable state law, including those pertaining to alleged noise, disorderly conduct, overcrowding, traffic or nuisances existing on the property.

C. Prior to the issuance of any permit, the representatives from the division of public works shall be permitted, but not required, to conduct an on-site inspection of the property for which a permit or permits are sought to confirm the units comply with the requirements of this article. An inspection is also authorized, but not required, before any renewal of a permit is given.

D. Each applicant for a short term rental permit under the provisions of this article shall pay to the division of public works, a non-refundable application fee of $300.00 at the time of the filing of the application to cover new applicant screening and on-site property inspection; and

E. Failure of the responsible party to make a timely appearance on the premises of short term rental property to respond to alleged violations of the City of Memphis Code of Ordinances or other applicable state law including those pertaining to alleged noise, disorderly conduct, overcrowding, traffic, or nuisance existing on the property shall be grounds for permit suspension against the owner. The owner of the short term rental property shall be sent a notice of proposed suspension and given an opportunity to show cause as to why a short term rental permit should not be suspended. Failure to appear as requested or to satisfy the requirements of the notice to show cause shall result in suspension of the short term rental permit for a period of not to exceed 30 days.

F. An owner may replace the responsible party, temporarily or permanently, at any given time with written or electronic notice to the division of public works. To replace a responsible party, the owner shall notify the division of public works of the new responsible party's identity, together with all information required by this chapter prior to making short term rental units available for transients.

G. The division of public works shall issue a permit under this article under the following conditions:

1. That the applicant's application for a permit has been fully completed, signed and the application fee included in the application; and

2. That the operation as proposed by the applicant, if permitted, will contemporaneously comply with the ordinance, as well as the city's current property maintenance code and required insurance coverages; and

3. That the applicant has not knowingly made any false, misleading, or fraudulent statement of fact in the permit application or in any document required by the city in conjunction therewith; and

4. That the applicant has not had a similar permit denied, suspended, or revoked for any cause by any city or state agency within 365 days preceding the filing of this application, and

5. That the applicant has no unpaid assessed court fines or court costs related to violations of the short term rental property ordinance.

6. That the applicant is current on any local property taxes owed on the short term rental property and all other property in the city owned by the applicant.

H. A short term rental permit shall expire 365 days after it is issued. Short term rental permits many be renewed upon the payment of a $150.00 fee to cover the applicant renewal screening and on-site inspection by the division of public works. All renewal requests shall be received at least 30 days prior to the expiration date for their existing permit.

I. Any short term rental property found to be operating without the required permit being obtained shall be subject to double fees when the necessary permits are obtained.

J. A short term rental property permit shall not be transferred or assigned to another individual, person, entity, or address, nor shall the permit authorize any person, other than the person named therein, to operate a short term rental property on that property.

K. Any false, misleading, or fraudulent statement of fact submitted to the city in furtherance of obtaining a short term rental permit shall be taken as grounds for permit denial or revocation by the division of public works. Upon a finding that such statement of fact has been submitted, the division of public works shall deliver notice giving an owner an opportunity to show cause as to why a short term rental permit should not be revoked. Failure to appear as requested or to satisfy the requirement of the notice of show cause shall result in revocation of the short term rental permit for a period of 12 months.

L. The division of public works shall have the authority to enforce this article, including the authority to grant, deny, suspend, or revoke short term rental permits.
(Ord. No. 5856, § 6, 3-21-2023)

Sec. 5-44-6. Regulation of short term rental property.

A. All short term rental property owners and their transient guests shall abide by all applicable noise control restrictions of Memphis City Code Section 22-1 and garbage collection and disposal provisions of Ordinance No. 4840 of the city of Memphis Ordinances.

B. The short term rental property owner shall meet all applicable requirements of the state and local building and fire safety codes, including, but not limited to, having approved smoke alarms meeting underwriter's laboratory (UL) 217 standards meeting applicable state law standards installed as follows:

1. In all sleeping areas.
2. In every room in the path of the means of egress from the sleeping area to the door leading from the sleeping unit.

C. The short term rental property owner shall meet all applicable requirements of the state and local building and fire safety codes, including, but not limited to, having approved carbon monoxide detectors meeting applicable state law standards installed on every habitable floor.

D. The principal renter of a short term rental property unit shall be at least 18 years of age.

E. The short term rental property owner shall not receive any compensation or remuneration to permit occupancy of a short term rental property for a period of less than 24-hours.

F. The name and telephone number of each short term rental property owner or their designee shall be conspicuously posted within the short term rental property unit. A short term rental property owner or their designee shall answer calls 24-hours a day, seven days a week for the duration of each short term rental period to address problems or complaints associated with the short term rental property.

G. It is the intent of the Council of the city of Memphis that all short term rental property owners, Hosting Platforms, and their designees refrain from discrimination against any person in the terms, conditions, or privileges of the rental of short term rental property because some or all of the Transients are members of classes protected by the Tennessee Human Rights Act.

H. The short term rental property owner shall ensure the property is in compliance with all local housing code ordinances.
(Ord. No. 5856, § 7, 3-21-2023)

Sec. 5-44-7. Compliance.

It is the intent of the council of the city of Memphis that complaints regarding short term rental property be resolved according to existing state law and City of Memphis Ordinances pertaining to public nuisances, vehicles and traffic, health and safety, and public peace, morals, and welfare. The continued use of property as a short term rental unit will be prohibited, and the permit revoked, if, as a direct result of the operation of the short term rental unit, the unit has been found to be in violation of a generally applicable local law three or more separate times by a court of competent jurisdiction, and the provider has no appeal rights remaining for any of the three violations. The burden of proof that a violation of a generally applicable local law was a direct result of the operation of the short term rental unit is on the city.
(Ord. No. 5856, § 8, 3-21-2023)

Title 6

BUSINESS LICENSES AND REGULATIONS

Chapters:

6-1.	Horse-Drawn Carriages
6-4.	Amusement Businesses Generally
6-8.	Barbers and Barbershops
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6-16.	Coin-Operated Launderettes
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CHAPTER 6-1. HORSE-DRAWN CARRIAGES

Sections:

Sec. 6-1-1. Definitions.
Sec. 6-1-2. Rules and regulations of the director of police services relative to horse-drawn carriages.
Sec. 6-1-3. City treasurer—Powers; appeal of decisions.
Sec. 6-1-4. Duty of City directors to enforce chapter.
Sec. 6-1-5. Certificate required; exceptions.
Sec. 6-1-6. Application for certificate.
Sec. 6-1-7. Standards for issuance of certificate.
Sec. 6-1-8. Certificate issued to owner only.
Sec. 6-1-9. Fee.
Sec. 6-1-10. Business license.
Sec. 6-1-11. Insurance.
Sec. 6-1-12. Business to be conducted by certificate holder; agreement with drivers.
Sec. 6-1-13. Increase in number of carriages after issuance; enlargement of authority.
Sec. 6-1-14. Replacement of vehicles.
Sec. 6-1-15. Accident reports.
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Sec. 6-1-36. Drivers not to work more than 12 hours out of 24.
Sec. 6-1-37. Solicitation of passengers by drivers; drivers to remain in or near carriage.
Sec. 6-1-38. Drivers of horse-drawn carriages.
Sec. 6-1-39. Carriage safety equipment.
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Sec. 6-1-41. Horse-drawn carriage maintenance.
Sec. 6-1-42. Licensing of equines—Powers of director of animal services.
Sec. 6-1-43 Proper care of licensed equines.
Sec. 6-1-44. Conditions of use of licensed equines.
Sec. 6-1-45. Equipment.
Sec. 6-1-46. Stalls and stables.

Sec. 6-1-1. Definitions.

The following words and phrases when used in this chapter shall have the meaning as set out herein:

Certificate means a certificate of public convenience and necessity issued by the director of police services authorizing the holder hereof to conduct a horse-drawn carriage for hire business in the city.

Carriage means a horse-drawn carriage regularly used in the business of carrying passengers for a fare whether or not on a fixed route.

Director of animal services means the director of animal services of the city, or his or her authorized designee.

Director of police services means the director of police services of the city, or his or her authorized designee.

Driver shall be held to include every person in actual charge of the operation of a horse-drawn carriage.

Driver's permit means the permission granted by the director of police services to a person to drive a horse-drawn carriage for hire upon the streets of the city.

For hire means agreement to transport a person or persons for a fare.

Holder means a person to whom a certificate of public convenience and necessity has been issued.

Horse means any animal of the genus equus.

Owner means the person who has proved to the director of police services that he or she is the legal owner of the horse-drawn carriage.

Inspector means a Memphis police officer and/or any person designated by the director of animal services, who has been authorized and instructed to watch and observe the conduct of holders of certificate of public convenience and necessity, drivers and licensed equines

operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector(s) will order or take appropriate action.

Person means an individual, a corporation or other legal entity, a partnership, or any unincorporated association. Person must be a resident of the State of Tennessee or member of corporation recognized in Tennessee.

Stable means any place, establishment, or facility where one or more horses are housed or maintained.

Stand means a horse-drawn carriage for hire stand is a place where the city engineer in concert with director of police services has authorized a holder of a certification of public convenience and necessity to park horse-drawn carriage for hire out of service awaiting a passenger.

Sticker means identifying sticker issued by the Memphis police department on authority of director of police services, to be displayed on rear of horse-drawn carriage next to identification plate. Sticker to be issued annually with certificate of convenience and necessity.

Veterinarian means a person licensed to practice veterinary medicine.

Work means a horse is considered working when it is out of the stable and at its carriage stand or place where it regularly picks up passengers. Work ends when the horse leaves its stand to go to the stable.
(Code 1985, § 39-71; Ord. No. 4227, § 1, 11-2-1993)

POWERS OF DIRECTOR—REGULATIONS

Sec. 6-1-2. Rules and regulations of the director of police services relative to horse-drawn carriages.

The director of police services is authorized and directed to make and enforce such additional rules and regulations, not in conflict with the provisions of this chapter, as the director may deem proper to regulate the operation of horse-drawn carriages for hire under a certificate issued pursuant to this chapter, provided that no regulation shall be made or enforced in conflict with this chapter or any other city ordinance.
(Code 1985, § 39-102; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-3. City treasurer—Powers; appeal of decisions.

A. The city treasurer is vested with full and complete authority to issue, alter, deny, suspend, or revoke certificates of public convenience and necessity and permits for drivers, as herein provided, and is further vested with the full and complete authority, duty, and responsibility to carry into effect the provisions of this chapter. The city treasurer may designate an officer to render rulings or take all other actions herein granted to the city treasurer, as indicated by the city treasurer.

B. The city treasurer or the city treasurer's designee shall conduct hearings on those matters requiring same. Decisions of the designee may be appealed by the applicant, the certificate holder, or driver within ten days after the decision affecting the person, by filing a written appeal with the city treasurer. The city treasurer may rule after a review of the record or may set a hearing as soon as practicable. Ten days' notice of a public hearing stating the time and place of the public hearing and the express terms or an informative summary of the subject matter of the public hearing provided for herein shall be given by publication in some newspaper published in the city, the cost thereof to be paid by the applicant or certificate holder.

C. An applicant, driver or certificate holder aggrieved by any final order or determination of the city treasurer in regard to the issuance, denial, suspension or revocation of that person's certificate or permit under this chapter may, within ten days after such denial, file with the comptroller a petition for review of the action of the city treasurer in denying the application, and it shall then be the duty of the city council to hold a public hearing and either grant or deny the application. In all such cases any interested party or holder of a certificate of necessity and convenience shall have a right to be heard; provided, further, that, in any such appeal to the city council, the decision of the city treasurer shall be prima facie correct.
(Code 1985, § 39-103; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-4. Duty of City directors to enforce chapter.

The director of police services and/or the director of animal services or their respective designees ("inspectors") are authorized and are instructed to monitor the conduct of holders of certificates of a public convenience and necessity, drivers and licensed equines operating

under this chapter. Upon discovering a violation of the provisions of this chapter, an inspector shall take appropriate action. Any vehicle for hire may be inspected at the discretion of an inspector at any time or location. Vehicles may be inspected for cosmetics, safety requirements, and are to include permits and license required to be held by the driver or any other inspection deemed necessary by an inspector.
(Code 1985, § 39-104; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-5. Certificate required; exceptions.

A. No person shall operate or permit a horse-drawn carriage owned or controlled by him or her to be operated as a passenger vehicle for hire upon the streets of the city without first having obtained a certificate of public convenience and necessity from the director of police services.

B. This section shall not apply to passenger vehicles for hire operated under the jurisdiction of the public service commission of the state, or otherwise exempted.

C. No more than 50 carriages may be permitted to operate upon the streets of Memphis and the permit office shall accept no applications for additional carriages once this maximum has been permitted. Other pending applications shall be dismissed upon the issuance of the 50th permit. Should the number of permitted carriages drop below the maximum allowed, applications will be considered in the order in which they are filed at the permit office.
(Code 1985, § 39-105; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

CERTIFICATION REQUIREMENTS

Sec. 6-1-6. Application for certificate.

A. Any person, partnership or corporation desiring to secure a certificate of public convenience and necessity shall make application and pay a $100.00 application fee to the city treasurer. The notarized application shall be filed with and dated by the city treasurer or his or her designee.

B. The application for a certificate shall be upon a form provided by the city treasurer, or his or her designee. An applicant for a certificate, including any partner or limited partner of the partnership applicant, and any officer or director of the corporate applicant and any stockholder holding more than five percent of the stock of a corporate applicant, or any other person who is interested directly in the ownership or operation of the business, shall furnish the following information:

1. Name and address including all aliases;
2. Written proof that the individual is at least 18 years of age;
3. All residential addresses of the applicant for the past five years;
4. The trade name under which the applicant proposes to do business;
5. The business, occupation or employment of the applicant for five years immediately preceding the date of application;
6. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or, if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business;
7. All criminal statute, whether federal or state, or City ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, except minor traffic violations;
8. Fingerprints and two color portrait photographs at least two inches by two inches of the applicant. The city permits office will provide fingerprints and photographs of applicant;
9. The address of the premises from which the vehicle for hire business is to be conducted and the address wherein the vehicles are to be stored and/or serviced;
10. If the applicant is a corporation, the name of the corporation and the date and state of incorporation, the name and address of the registered agent, and the names and addresses of all shareholders, as required above, officers and directors of the corporation;
11. The experience and/or the qualifications of the applicant to operate a horse-drawn carriage for hire service;
12. A showing that the public convenience and necessity requires the granting of the certificate;

13. The number of horse-drawn carriages to be put into service at the time of application, the location of private property stands, and the size and seating capacity of each carriage;

14. Whether applicant operates any other vehicles under this chapter;

15. A statement by the applicant that he or she is familiar with the provisions of this chapter and is in compliance with them.

C. Within ten days, or a reasonable time thereafter of receiving the results of the investigation conducted by the division of police services, the director of police services shall fix a time and a place for a public hearing on the application and notice shall be given as provided in section 6-1-3(B). All documents relating to the public hearing shall be available for inspection prior to the hearing. Any interested person may file a statement in support of or in opposition to the issuance of a certificate, and/or may offer testimony at the hearing.

D. Failure or refusal of the applicant to give any information relevant to the investigation of the applicant or the applicant's refusal or failure to appear at any reasonable time and place for examination under oath regarding the application or the applicant's refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that the applicant is ineligible for such certificate and shall be grounds for denial thereof by the director. (Code 1985, § 39-106; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 12, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-7. Standards for issuance of certificate.

The city treasurer may issue a certificate of public convenience and necessity if an applicant meets the following standards:

A. The applicant's financial status shall be such that the applicant shall be capable of operating the horse-drawn carriage for hire service during the time the certificate shall remain in effect.

B. The public convenience and necessity requires the granting of a certificate in that the applicant has shown:

1. The support of potential customers of the service;

2. The uniqueness of the services offered, if possible;

3. That the service would not disrupt local traffic conditions.

C. If the applicant is an individual:

1. The applicant shall be at least 18 years of age.

2. The applicant shall not have an outstanding unpaid final judgment.

3. The applicant shall not have been convicted of, forfeited bond, or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. The applicant shall not have been found to have violated this chapter within five years immediately preceding the date of application.

D. If the applicant is a corporation:

1. All officers and directors shall be at least 18 years of age.

2. No officer, director or stockholder required to be named under section 6-1-6 above shall have outstanding unpaid final judgments.

3. No officer, director or stockholder required to be named under section 6-1-6 above shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, assignation, prostitution, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. No officer, director or stockholder required to be named under section 6-1-6 above shall have been found to have violated this chapter within five years immediately preceding the date of application.

E. If the applicant is a partnership, joint venture, or any other type of organization where two or more persons have a financial interest:

1. All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least 18 years of age.

2. Management experience in the operation of a horse-drawn carriage business or in related endeavors.

3. No person having a financial interest in the partnership, joint venture or other type of organization shall have outstanding unpaid final judgments.

4. No person having a financial interest in the partnership, joint venture or other type of organization shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime of moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of the application.

5. No person having a financial interest in the partnership, joint venture or other type of partner or manager shall have organization shall have been found to have violated this chapter within five years immediately preceding the date of the application.

(Code 1985, § 39-107; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-8. Certificate issued to owner only.

No certificate shall be granted under this chapter to any person unless the person is the owner of the horse-drawn carriage(s). The owner of a horse-drawn carriage must prove ownership to the city treasurer or his or her designee. The owner shall have a permanent number engraved or embossed on the chassis of the horse-drawn carriage. The owner will furnish photographs of the carriage(s) and notarized statements listing the self imposed serial number(s) to the city treasurer.
(Code 1985, § 39-108; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-9. Fee.

Certificates of convenience and necessity of horse-drawn carriages shall expire at midnight every March 31st, unless a timely and complete renewal is filed prior to that date. Such a timely and complete renewal shall serve to extend the permit until final action on the renewal request is taken by the department. When a certificate is issued, and at each renewal thereof, a fee for each carriage in use shall be paid to the city treasurer to defray the cost of administration of this chapter. The fee shall be as follows:

A. For permits good for the period of April 1, 2003 until March 31, 2004: $55.00.

B. For permits good for the period of April 1, 2004 until March 31, 2005: $65.00.

C. For permits good for the period of April 2, 2005 until March 31, 2006, and every year thereafter: $75.00.

D. For any certificate or permit issued or amended after October 1 of any year, the fee shall be half the annual fee charged that year for each vehicle in use.

(Code 1985, § 39-109; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-10. Business license.

A. Each carriage company must have a current business license.

B. Each carriage company must maintain an emergency telephone number where the owner or manager may be contacted in case of emergency.
(Code 1985, § 39-110; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-11. Insurance.

No certificate of public convenience and necessity shall be issued unless the applicant provides to the city treasurer proof of financial responsibility by a written policy of liability insurance coverage as follows:

A. Not less than $100,000.00 in limited liability per occurrence;

B. Not less than $300,000.00 in public liability per occurrence;

C. Not less than $50,000.00 in property damages per occurrence.

(Code 1985, § 39-111; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-12. Business to be conducted by certificate holder; agreement with drivers.

The business of every horse-drawn carriage for hire shall be carried on by the person to whom the certificate is issued under this chapter. The holder of the certificate may enter into agreements with drivers fixing percentages of receipts to be turned over to the holder of the certificate for the daily use of such carriage paying salaries to drivers, or drivers may rent the horse-drawn carriage for hire for a specific sum of money. A driver may be the conditional vendor or lessor of a carriage as long as the certificate holder is the owner as defined in section 6-1-1. Any arrangement contracted between the holder of a certificate and the driver shall not relieve the holder of the certificate from any liability and damages to third parties. A sample copy of all such agreements shall be kept on file with the city treasurer.

(Code 1985, § 39-112; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-13. Increase in number of carriages after issuance; enlargement of authority.

A certificate holder shall not increase the number of horse-drawn carriages for hire operated pursuant to the certificate without receiving the approval of the city treasurer or the city treasurer's designee. The city treasurer or the city treasurer's designee shall approve or disapprove such request on the basis of economic need of the certificate holder, need of public for additional service, and other factors listed in section 6-1-7(B). If the request is denied, the city treasurer or the city treasurer's designee shall advise the certificate holder in writing of the reasons for such action. In no event shall the number of permitted horse-drawn carriages be more than 50. At no time shall the level exceed two-thirds ownership of one certificate holder. If the certificate holder requests a hearing within ten days of receipt of notification of denial, a public hearing shall be held as provided in section 6-1-3(B).

(Code 1985, § 39-113; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-14. Replacement of vehicles.

A. In case any carriage covered by a certificate is retired by the owner because it is worn out or so damaged as not to be worth of repair, or is burned or otherwise destroyed, the certificate holder shall advise the designee of the city treasurer in writing of the circumstances of the retirement. The certificate holder shall deposit with the designee of the city treasurer proof of ownership of the replacement carriage.

B. The certificate holder must, if vehicles are discarded, sold, returned or otherwise disposed of, give notice to the city treasurer of such action whether or not the vehicle is replaced and return identification sticker to city treasurer.

(Code 1985, § 39-114; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-15. Accident reports.

Reports of accidents in which any horse-drawn carriage for hire may be involved shall be promptly made to the police services division in accordance with the provisions of chapters 2-28 through 2-36. The certificate holder and the driver shall each have responsibility for filing a copy of the report with the city treasurer. Upon the happening of any accident or collision, the certificate holder shall forthwith have the passenger vehicle for hire involved therein removed from service until properly repaired.

(Code 1985, § 39-115; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-16. Assignment or transfer of certificates.

No certificate of public convenience and necessity may be sold, assigned, mortgaged, transferred, or alienated.

(Code 1985, § 39-116; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-17. Expiration and renewal of the certificate.

A certificate issued under this chapter shall expire March 31 of each year at midnight and shall be renewed at the existing level of vehicles as long as the standards for the initial issuance are met. Applications for renewals shall be made by March 10 of each year, by which time all fees for the succeeding year shall have been paid. If the request for renewal is denied, the city treasurer or the city treasurer's designee shall advise the applicant in writing of the reasons for such denial. If the

applicant requests a hearing within ten days of notification of denial, a public hearing shall be held as provided in section 6-1-3(B).
(Code 1985, § 39-117; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-18. Fines, suspension, and revocation of certificates.

A. A certificate issued under the provisions of this chapter may be suspended or revoked by the city treasurer or the city treasurer's designee after a public hearing, except as provided in section 6-1-3(C). Notice, public access to documents, and conduct of hearing shall conform with the provisions of section 6-1-3(B) except that written notice shall be sent by registered U.S. mail to the subject certificate holder by the date of publication.

B. A certificate issued under the provisions of this chapter may be subject to a penalty fine of no more than $50.00, suspension or revocation by the director of police services or the director's designee, upon findings at the public hearing that the holder of the certificate has:

1. Violated any provisions of this chapter;
2. Discontinued operation for more than 30 days;
3. Would no longer be eligible for issuance of the certificate.

C. A certificate holder shall have the right to appeal to the ruling of the city treasurer or the city treasurer's designee revoking or suspending the certificate in the same manner as provided for appeals of the decision under section 6-1-3(C).
(Code 1985, § 39-118; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-19. Horse-drawn carriage stands—Use by other vehicles prohibited.

A. Private or other vehicles for hire shall not at any time occupy the space upon the streets that have been established as horse-drawn carriage stands. Horse-drawn carriage stands shall at all times be restricted to a minimum distance of 100 feet from the threshold of any establishment or enterprise whose main business is the serving of restaurant clientele or food serving processes, unless the restaurant owner gives his or her consent that a horse-drawn carriage may be located within the 100 feet minimum distance from its threshold, and all the written consents to go to the city's department of engineering.

B. Horse-drawn carriage for hire stands shall be designated by the city engineer in concert with the city treasurer. If in the judgment of the city engineer the establishment of a horse-drawn carriage for hire stand will not interfere with nor present a hazard to the traffic on the street where such stand is sought to be established, the city engineer shall erect or cause to be erected the necessary official signs and markings to designate the stand. The city engineer shall forward a copy of his or her approval of the stands to the city treasurer.

C. A holder of a certificate of convenience and necessity may request additional stands through the permit office of the Memphis Police Department or the city engineer. It is unlawful for any person to remove, alter or deface any sign or other marking so installed. Additional markings on the standards shall be approved by the city engineer.

D. All horse-drawn carriage for hire stands are to be available for the use of all horse-drawn carriages for hire operating within the city on the basis of the driver of the first carriage for hire arriving at a vacant stand having the right to occupy such stand; however, the city treasurer may designate certain stands for a particular class of vehicles for hire only, such as: taxicab, horse-drawn carriage, etc. It is expressly provided that passengers may select any horse-drawn carriage for hire at such stands regardless of the horse-drawn carriage's position in the line at such stand and that no certificate holder may monopolize any stand.

E. While in service, the operator of a horse-drawn carriage for hire may park the carriage at any legal parking space. When a carriage is parked upon a metered space, the operator shall pay the appropriate fee. If the carriage is so large that more than one metered space is occupied, the driver shall pay the meter(s) for all spaces fully or partially occupied. This provision shall not prevent the operator of a horse-drawn carriage for hire from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers. While parking for this designated purpose upon a metered space, the driver shall pay the appropriate fee. While parked at any parking space, subsections G and H of this section and section 6-1-45 shall apply.

F. No person other than the holder of a horse-drawn carriage for hire certificate of convenience and necessity, his or her agent, or employees, shall occupy a designated horse-drawn carriage for hire stand, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any passenger vehicle for hire entering or about to enter the stand or stop.

G. Carriage companies shall keep horse-drawn carriage stands clean, free of manure and urine at all times. Urine shall be diluted with water or water with disinfectant as it occurs.

H. Water for the horses shall be available at all times.
(Code 1985, § 39-119; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

DRIVERS AND CONDUCTORS

Sec. 6-1-20. Vehicle drivers.

No person shall operate a horse-drawn carriage for hire upon the streets of the city, and no certificate holder who owns or controls a horse-drawn carriage for hire shall permit it to be so driven, and no passenger vehicle licensed by the city shall be so driven at any time for hire, unless the driver of the vehicle for hire shall have first obtained and shall have a current and properly updated passenger vehicle for hire driver's permit which has been approved by the city treasurer and issued by the city treasurer, or his or her designee.
(Code 1985, § 39-120; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-21. Application for a driver's permit.

A. Permits required by this article shall be applied for, in person and in writing, on such forms as the city treasurer may prescribe, which forms shall show that:

1. The applicant has obtained a valid driver's license pursuant to the provisions of T.C.A. chapter 7, title 59;
2. The experience of the applicant in working with horses;
3. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations;
4. Such other information as the city treasurer may require.

B. Such application shall be accompanied by two photographs as provided by the city permits office, one of which shall be attached to the permit, if issued, and one to be retained in the files of the city treasurer with the application for the permit.

C. Such application shall be accompanied by:

1. A statement form, provided by a physician licensed to practice in the State of Tennessee, dated within 30 days of the application, indicating the length of time which the physician has treated the applicant, showing the applicant is not disabled by reason of defect of sight, hearing, body or limb, from safely operating a horse-drawn carriage and indicating any and all physical and mental conditions for which treatment has been rendered within the last year and for which treatment continues to be rendered;
2. Statements of at least three reputable residents of the city who are personally acquainted with the applicant who will state their knowledge of the good reputation, honesty, and general good character of the applicant, and include their name, address and home or work telephone number;
3. A statement from a holder of a certificate of public convenience and necessity indicating that the applicant shall be affiliated with the certificate holder upon issuance of the permit.

D. Permits shall remain the property of the city treasurer and may be canceled, revoked, or suspended at any time and will be surrendered on demand.
(Code 1985, § 39-121; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-22. Application for a carriage driver's training permit.

A training permit will be issued for new and potential carriage drivers good for 14 days. During this period, the driver is required at all times to drive or ride with a designated trainer and permitted carriage driver. The fee

for the trainer's permit shall be half that of regular carriage drivers and will go towards the cost of a full carriage driver's permit. If the trainee does not make full application after 14 days, the permit shall be null and void and the applicant must begin the process again.
(Code 1985, § 39-121.1; Ord. No. 4941, 5-7-2002)

Sec. 6-1-23. Applicant to fill out identification questionnaire and be fingerprinted.

Each applicant applying for a permit shall appear before the city treasurer or his or her designee to complete an identification questionnaire on a form to be provided, and be fingerprinted.
(Code 1985, § 39-122; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-24. Investigation; issuance; not to issue to certain persons.

A. Before issuing a permit under this article, the city treasurer or the city treasurer's designee shall investigate the facts set out in the application and shall not grant such permit to any person who, in the opinion of the city treasurer, after investigation, is not physically or morally fit to drive or operate a horse-drawn carriage for hire in the city.

B. No driver's permit shall be issued to any applicant who has been convicted of, forfeited bail or pleaded nolo contendere to a felony or any crime, involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, or been an inmate of reform school or penitentiary as a result of a conviction for a felony, within five years prior to his or her application for such permit.

C. The city treasurer may refuse to issue a permit to any applicant whose police record shows numerous convictions for public drunkenness, driving under the influence of intoxicants/drugs, repeated moving traffic violations, or any other good and just cause which, in the opinion of the city treasurer, would be inimical to the public health or safety.

D. No permit shall be issued unless the applicant is at least 18 years of age.

E. It shall be the duty of the city treasurer to issue a permit to any person applying therefor, showing compliance with the provisions of this chapter.
(Code 1985, § 39-123; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-25. Notification of arrest or indictment.

The holder of a driver's permit shall advise the city treasurer immediately of all charges, arrests, and indictments, including those for public drunkenness and driving under the influence of intoxicants. The city treasurer may suspend a driver's permit for five days prior to a hearing pursuant to section 6-1-31, if the driver is arrested, charged, or indicted for any violation of city, state, or federal laws. It shall also be the responsibility of the certificate holder with which the driver is affiliated to notify the city treasurer of the charges, arrests, or indictments. Failure to do so may result in suspension or revocation of the permit and/or of the certificate.
(Code 1985, § 39-124; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-26. Notification of company change of driver.

At the time a permit is issued, the driver must register with the division of police services the name of the horse-drawn carriage for hire certificate holder with which the driver intends to be affiliated and the division of police services will have stamped on the permit the name of the horse-drawn carriage for hire certificate holder specified by the driver. If at any time a driver wishes to change affiliations, the driver must register the change with the division of police services, and a fee of $10.00 will be charged to defray administrative cost. Failure to advise the director of any such changes may result in suspension or revocation of the permit. It shall be the responsibility of the holder of the certificate of public convenience and necessity to notify the city treasurer when affiliation with a driver is discontinued and any holder which allows a driver to operate a vehicle for hire without a proper and complete permit may have its certificate suspended or revoked. The holder of the certificate of public convenience and necessity must supply in writing to the permit's office the correct address of each driver currently affiliated with the certificate holder.
(Code 1985, § 39-125; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-27. Permit fee.

Each applicant for a permit under the provisions of this article shall pay to the city treasurer a fee of $30.00 at the time of the filing of the application to cover the cost of drug screening, physical and driver's safety classes. For the renewal of such permit, the applicant shall pay a fee of $25.00. To replace a lost, destroyed, or stolen permit that is current, the fee shall be $20.00.
(Code 1985, § 39-126; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-28. Form, size, design, and contents.

A permit issued under this chapter shall be in card form, of such size and design as may be prescribed by the city treasurer which shall bear on its face a photograph of the driver, the number of the permit, the expiration date thereof the company with which the driver is affiliated, and such other information as the city treasurer may require.
(Code 1985, § 39-127; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-29. Possession of permit.

The original permit issued under this chapter, containing a photograph and other data on the driver shall at all times be in the possession of the driver of the horse-drawn carriage for hire operated by such driver, to be shown to the passenger or a police officer on demand, while such horse-drawn carriage for hire is under the direction or control of such driver.
(Code 1985, § 39-128; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-30. Expiration and renewal.

A. A permit issued under this chapter shall expire at midnight on the anniversary of the birth date of the permit holder each calendar year.

B. If the driver wishes that his or her permit be renewed, he or she shall furnish the city treasurer, or his or her designee, in person, the following information at least one month prior to his or her permit expiration:

1. An affidavit signed by the driver indicating no medical or physical disabilities were suffered during the previous year;
2. A statement from a holder of a certificate of public convenience and necessity indicating that the driver is a current driver for the certificate holder.

C. Every three years, a driver shall submit, at the time of renewal, a certificate completed by a physician licensed in the State of Tennessee and including that physician's license number, indicating the length of time which the physician has treated the driver, showing the driver is not disabled by reason of defect of sight, hearing, body or limb from safely operating a horse-drawn carriage and indicating any and all physical and mental conditions for which treatment has been rendered within the previous three years and those for which the driver continues to receive treatment.
(Code 1985, § 39-129; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-31. Fines, suspension, and revocation of permit.

A. The city treasurer is given the authority to fine a penalty fee of no more than $50.00 to suspend or revoke any driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by the city treasurer.

B. The city treasurer shall notify a driver of the violations with which he or she is charged and his or her right to a hearing before the city treasurer or the city treasurer's designee, at which time the driver shall have an opportunity to present evidence; provided, however, that the city treasurer or the city treasurer's designee may suspend a permit for five working days prior to a hearing, with a hearing to be held within that period of time, if, in the judgment of the city treasurer or the city treasurer's designee, the public health and safety requires. At such hearing, the city treasurer or the city treasurer's designee is authorized to further suspend or revoke a driver's permit.
(Code 1985, § 39-130; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-1. Unauthorized use of permit; defacing or removing permit.

A. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver for allowing any other person to use the permit granted to the driver, for the purpose of operating a passenger vehicle for hire or for any other reason.

B. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver who defaces, removes, or obliterates any official entry made upon the permit.
(Code 1985, § 34-131; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-33. Standards of appearance and conduct of drivers.

A. No driver shall engage in selling alcoholic beverages, any controlled substance, or solicit business from any house of ill repute or any person known to be of ill repute use his or her vehicle for any purpose other than the transporting of passengers except as provided for driver trainees. Passengers may possess alcoholic beverages.

B. Drivers shall not engage in abusive language, including, but not limited to, cursing, verbal insults, or derogatory comments in the presence of passengers, potential or engaged, or staff members of regulating authorities.

C. While on duty, drivers shall not be under the influence nor engage in the consumption of intoxicants, including, but not limited to, beer and other alcoholic beverages or controlled substances. Any driver charged with driving while intoxicated may have his or her permit immediately suspended as provided in section 6-1-31.

D. Drivers must present an acceptable appearance, including clean, neat wearing apparel not in need of repair. Hats may be worn. No shirt may be worn displaying an offensive logo. No halter-tops or tank shirts may be worn. Shorts may be worn but must be knee length or no more than three inches above the knee. Shoes, excluding sandal type shoes, must be worn at all times while serving the public. General appearance must be one of neatness and cleanliness.
(Code 1985, § 39-11; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-1-34. Total passengers in vehicle; carrying passengers on driver's seat prohibited.

No driver shall permit more persons to be carried in a horse-drawn carriage for hire as passengers than the seating capacity. A child in arms shall not be counted as a passenger.
(Code 1985, § 39-133; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-35. Consent required for horse-drawn carriage driver to pick up additional passengers.

No driver of a horse-drawn carriage shall carry any person other than the original passenger(s) by whom he or she has been engaged, without the consent of the original passenger(s), unless it is a driver trainee or other company employee.
(Code 1985, § 39-134; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-36. Drivers not to work more than 12 hours out of 24.

A. No driver shall work more than a maximum of 12 hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he or she has had at least eight consecutive hours of rest.

B. It is the duty of the certificate holder in conjunction with the driver to meet these requirements.
(Code 1985, § 39-135; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-37. Solicitation of passengers by drivers; drivers to remain in or near carriage.

A. No horse-drawn carriage for hire driver shall solicit passengers for a horse-drawn carriage for hire, except when sitting in the driver's seat of such carriage for hire or while standing immediately adjacent to the carriage. The driver of any horse-drawn carriage for hire shall remain in the driver's seat or immediately adjacent to the carriage at all times when such carriage is upon public streets, provided further, that nothing herein contained shall be held to prohibit any driver from alighting to the street or sidewalk for the purpose of assisting passengers into or out of the carriage.

B. No horse-drawn carriage for hire driver shall solicit patronage in a loud or annoying tone of voice, or by sign, or in any manner annoying any person, or to obstruct the movement of any person or follow any person for the purpose of soliciting patronage.
(Code 1985, § 39-136; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-38. Drivers of horse-drawn carriages.

A. A driver of a horse-drawn carriage must properly guide the animal and carriage and must properly control the animal and carriage at all times, and:

B. Must have valid driver's license.

C. Must obey all traffic laws/rules.

D. Drivers must be permitted.
(Code 1985, § 39-137; Ord. No. 4227, § 1, 11-2-1993)

VEHICLES

Sec. 6-1-39. Carriage safety equipment.

A. Prior to the use and operation of any horse-drawn carriage for hire under the provisions of this chapter, the carriage shall be thoroughly examined and inspected by an Inspector and found to comply with this section's requirements. If, at any time, the horse-drawn carriage for hire is found by an inspector not to comply with the following requirements, the horse-drawn carriage for hire shall not be allowed to be operated on the streets, alleys, and public ways of the city until and unless the inspector finds the carriage meets these requirements.

B. Every carriage operating on the streets, alleys and public ways of the city shall at all times be equipped with all safety equipment and any other requirements in respect to safety as is required by the laws of the state or this Code and all such regulations as may be issued by the city treasurer.

C. Every horse-drawn carriage for hire operating on the streets, alleys and public ways of the city shall at all times be in a safe and suitable condition for such use and shall have the following:

1. Every horse-drawn carriage shall be equipped with lights clearly visible from the front and rear. One light housing shall be attached to the left side of the carriage and one light housing shall be attached to the right side of the carriage. The light housings may be of the type that illuminate from the front and rear simultaneously. Viewed from the rear, the lens must be red. Viewed from the front, the lens may be clear or amber. The light(s) must be capable of displaying a light visible 500 feet to the rear and 500 feet to the rear of such vehicle under ordinary atmospheric conditions and such light shall be displayed during the period from one-half hour after sunset to one-half hour before sunrise and at all other times when there is not sufficient light to render clearly discernible any person on the road or highway at a distance of 200 feet ahead of such vehicle.
2. Each carriage shall be equipped with electric turn signals.
3. No company shall use a carriage not equipped with brakes.
4. Each carriage shall be equipped with a slow-moving vehicle emblem to be attached to the rear of the vehicle.
5. Each company is encouraged to use reflective material wherever appropriate on carriages, harness, and horse forelimbs.
6. Carriages must be properly lubricated and wheels must spin freely.
7. Each carriage should be equipped with a device to catch horse manure and prevent it from falling on the pavement; all missed droppings should be cleaned up at the end of each trip.
8. Each carriage shall be maintained in a safe and sanitary condition.
9. No horse-drawn carriage may carry more passengers than it was originally intended.
10. Each company shall conduct regular safety inspections of their vehicles. No vehicle shall be allowed into service that has lights, brakes or other safety features that are inoperable. Radio equipped or cellular phone equipped carriages are encouraged.
11. Four-wheel carriages should be equipped with fifth wheel or cut under turning mechanisms on the front axle.
12. Any other requirements in respect to safety as is required by the laws of the state or this Code and all regulations as may be issued by the city treasurer.
13. Obey all traffic laws of city and state.
14. Identifying stickers.
15. Name of company.

(Code 1985, § 39-138; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-1-40. Television equipment.

No television set shall be installed or portable model television operated in any horse-drawn carriage.
(Code 1985, § 39-139; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-41. Horse-drawn carriage maintenance.

A. Every horse-drawn carriage for hire operated in the city shall be kept in a clean and sanitary condition and in such condition of repair as may be reasonably necessary to provide for the safety of the public and for continuation in satisfactory operation.

B. It is the joint responsibility of the certificate holder and of the driver to maintain the appearance and safety of the horse-drawn carriage for hire and equipment and failure to comply may result in the suspension or revocation of the certificate for public convenience and necessity and/or of the driver's permit.

C. All carriages are subject to an annual inspection by the permits/license inspector for safe mechanical conditions, with all safety equipment remaining intact and operative.

D. Any carriage involved in an accident is required to be inspected by the permits/license inspector before going back into service.
(Code 1985, § 39-140; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002).

Driver shall be held to include every person in actual charge of the operation of a horse-drawn carriage.

LICENSING AND CARE OF ANIMALS

Sec. 6-1-42. Licensing of equines-powers of director of animal services.

A. General.

1. As set forth in this chapter every person or business operating a horse-drawn carriage for hire business in the city is required to obtain and maintain a valid certificate of public convenience and necessity ("certificate") and every driver of a horse-drawn carriage for hire is required to obtain and maintain a valid driver's permit.
2. Every certificate holder is also required to obtain and maintain a valid license for every equine to be used in the horse-drawn carriage for hire business as provided in this section ("equine license").
3. The director of animal services shall have authority over the licensing of equines and the enforcement of the provisions of this chapter regarding the care of animals used in the horse-drawn carriage for hire business to promote the health, safety, and well-being of the licensed equines. Compliance with all provisions of this chapter is a continuing condition of every certificate, driver's permit, and equine license.
4. A driver shall allow the inspection of their horse and/or carriage by an Inspector at any time while they are on public streets. This includes a trip in which they have been hired if a safety issue is suspected.
5. Holders and drivers shall be responsible for any violation under this article where it is shown such person had knowledge of the violation, or should have had knowledge of the violation, and made no attempt to prevent it from occurring.
6. Nothing in the chapter shall preclude the director of animal services or their designees from enforcing all local, state, and/or federal animal cruelty laws.

B. Before any animal is brought into service by the certificate holder, the certificate holder shall obtain an equine license from the director of animal services, which may be issued only after the equine has been examined by a Tennessee licensed veterinarian who provides service in Shelby County, Tennessee, and a listed telephone number. The veterinarian shall certify to the director of animal services in writing that the animal meets all qualification criteria set forth herein after in this section, and that certification shall be presented to the director of animal services for approval prior to issuance of an equine license for the equine by the City of Memphis. The veterinarian shall provide the following as proof of certification:

1. A veterinary record of a microchip placed in the neck along the nuchal ligament just under the mane.
2. A copy of the animal's veterinary records with the most recent exam being dated no more than 30 days prior to the animal being brought into service.
3. A copy of a negative Coggin's Test.

C. No licensed equine shall be permitted to pull any carriage unless the animal is in good health and meets at least the following requirements:

1. Must be a gelding or mare.

2. Must be at least three years old and no greater than 20 years old.

3. Must weigh at least 1,200 pounds to pull up to eight people, including the driver, as a single puller, and must weigh at least 1,500 pounds to pull a carriage capable of holding up to 30 people and shall only pull such a carriage in a team of two such animals.

4. Must be of such stamina and in such physical condition, as determined by a veterinarian, to perform the required equine-drawn carriage tasks without any undue stress and effort.

D. The following shall deem a licensed equine unfit for use:

1. Lameness of any kind;

2. Open sores or wounds caused or likely to be irritated by the bearing surfaces of harness, bridle, or girths;

3. Signs of emaciation, dehydration, or exhaustion;

4. Loose shoes or no shoes; or

5. Uncontrollable behavior.

E. An equine required to be licensed pursuant to this section which fails to meet any of the above criteria may be declared unfit for service and may be ordered removed from work by the director of animal services or his or her designee if the director of animal services or his or her designee determines that removal of the equine is necessary for health and safety reasons or as an immediate protection to the equine or the public. An equine for which such an order has been issued shall not be returned to work until such time as the equine is re-examined and a veterinarian licensed by the State of Tennessee certifies in writing that the equine is fit to return to work using the criteria set forth in this chapter.

F. Should a carriage horse be permanently removed from service, it shall be sold or disposed of in a humane manner.

(Code 1985, § 39-141; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-1-43 Proper care of licensed equines.

A. An equine required to be licensed pursuant to this article must receive the following routine veterinary care to remain compliant with this chapter:

1. A full soundness exam every six months by a veterinarian licensed by the State of Tennessee.

2. Treatment for internal parasites or fecal floatation egg counts every four months under the direction of a veterinarian licensed by the State of Tennessee, and treatment for external parasites whenever they are found to be present.

3. Hoof trimming and shoes reset every six to eight weeks using caulks or borium to prevent slippage and rubber shoes or pads to prevent concussion injuries; shoes shall be shod in a manner approved by the director of animal services and shall have non-skid base surfaces.

B. A preventative vaccination/ veterinary record affirming these standards are met shall be maintained by certificate holder and must be available for inspection on demand by the director of animal services or their designee, to include:

1. Current license of the equine being used;

2. Current picture of the equine;

3. Current health certificate of the equine;

4. The equine's body condition score, certified every six months by a veterinarian licensed by the State of Tennessee; and

5. Description and location of any other identifying characteristics, marks, and brands of the equine.

C. The animal must be kept clean, especially those areas in contact with the harness or other tack, as well as groomed daily when in service and must not have fungus, dandruff or a poor or dirty coat.

D. Each animal must be fed at least twice daily and shall have access to forage and feed in the amount to keep appropriate body condition score. The forage and feed shall be kept clean, fresh and must be of good quality.

E. Each animal must have accessible potable drinking water provided in the stable at all times.

F. An animal shall be properly exercised when not working.

G. Holders and drivers shall ensure that each equine is offered potable drinking water in an appropriate container after every fare.

Sec. 6-1-44. Conditions of use of licensed equines.

A. A licensed equine shall not be worked under any of the following conditions:

1. Pulling a carriage at a speed faster than a slow trot;
2. Pulling a carriage at top speed for more than 30 minutes;
3. With equipment causing an impairment of vision other than normal blinders;
4. Any condition which will impair the good health and physical condition of the animal or that subjects the animal to cruel or harassing treatment.
5. Pulling a carriage that has music or other amplified sound played above 85 dB, or at any level below that which causes the animal distress.
6. Pulling a carriage on a public highway, path or street during conditions which are determined by the director of animal services or their designee to pose a threat to the health, safety or well-being of the equine, passengers, or general public.
7. If conditions develop while an equine is being worked, said equine shall be returned without delay to the stable by the most direct route and, if the threat posed is an immediate one, then the return of the equine to the stable shall be by equine trailer.

B. Shifts.

1. Holders and drivers shall ensure that any licensed equine does not work more than eight hours in a 24-hour period as reflected by pulling fares in the logbook. Carriages may be in service for up to ten hours so long as no more than eight of the ten hours are active pulling fares. An equine must have at least a 14 continuous hour rest period within each 24 hour period. Equines shall be considered as working if the equine is pulling a carriage that is being presented to the public as a carriage for hire.
2. Certificate holders and drivers shall provide equines a minimum ten minute rest period between fares in excess of one hour. Certificate holders and drivers shall provide equines a reasonable rest period between fares less than one hour.
3. Certificate holders shall keep a current log in each stable showing each equine's use. A certificate holder shall keep on the premises of the stable where the licensed equines are kept a consecutive daily record of the movements of each licensed equine, including driver's name and identification number, equine's identification number, vehicle identification tag number, and a daily manifest on each equine. Such records shall be made available, at any reasonable time, for inspection by the director of animal services or his or her designee.
4. If a licensed equine must return to the stables due to inclement weather or equipment replacement, it may return to operation to complete the same shift but may not extend that shift beyond ten hours from the start of the shift.

C. Weather.

1. Certificate holders shall check the temperature for the City of Memphis every 30 minutes while they have carriages in service and document in the daily record for horses in service that day. This verification shall be done by using a reputable weather website. If the temperature is at or above 95° Fahrenheit or at or below 32° Fahrenheit, animals may not be put into service and shall not be outside of the barns or stables.
2. All certificate holders and drivers shall work their horses only when safe weather conditions exist. Special attention and discretion should be used during periods of snow, ice, heavy rain, high humidity, or extreme wind chill. Proper shoes should be used during icy conditions.
3. Should the director of animal services determine that special circumstances exist which would jeopardize the safety of a licensed equine, such as a significant weather event or other environmental problems, the director may order the temporary suspension of the operation of

all horse-drawn carriages for hire until such time as the special circumstances no longer exist.

(Code 1985, § 39-142; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-1-45. Equipment.

A. Certificate holders and drivers shall ensure that pads and other pieces of tack are kept clean and in a safe and serviceable condition. No licensed equine will be worked with a harness or bit that is not approved by a qualified and approved veterinarian.

1. The harness must be oiled and cleaned to be soft at all times.
2. The harness shall be properly fitted and maintained. Wire, sisal, rope, rusty chains, or other substandard additions to the harness are prohibited.
3. The harness shall be examined every six months by a veterinarian licensed by the State of Tennessee.

B. The use of whips is prohibited except in situations presenting imminent danger to human or equine safety. Certificate holders and drivers are restricted to the use of a "buggy" style whip at times of imminent danger. All other whip styles are prohibited in all situations.

C. Equines licensed under this chapter will be fitted with a diaper or proper collection bag for animal droppings.

1. A driver shall empty the horse's diaper prior to the beginning of each trip for hire.
2. A driver shall not allow excrement to drop from the equine's diaper and will ensure that the diaper bag is properly fastened to the equine as outlined by the manufacturer's instructions.
3. It shall be the responsibility of the certificate holder to take the necessary steps to keep all streets, alleys, sidewalks, and other public ways of the city cleared of animal droppings.

D. Each driver shall dilute horse urine with a deodorizing, non-toxic liquid right away. The driver shall not impede traffic while doing so and if necessary, shall clean up any missed urine at the end of each trip.

(Code 1985, § 39-143; Ord. No. 4227, § 1, 11-2-1993); (Code 1985, § 39-144; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-1-46. Stalls and stables.

A. Stables for housing of equines and carriages shall comply with all zoning laws and ordinances of the City of Memphis and Shelby County and shall be no less than 100 feet from any dwelling.

B. Such facilities shall conform to all health and sanitation regulations and shall be open for inspection by the director of animal services and their designees at all reasonable times, with or without prior notice.

C. All stables used for housing horses shall be well lighted and ventilated.

D. Foot hazards and sharp surfaces will not be permitted in any area or building where the licensed equines may be injured by such hazards and surfaces.

E. All stables shall have standing stalls of sufficient dimensions to allow each equine to enter, stand, turn around, and lie down in a natural manner, and protect from adverse weather. The stalls shall be enclosed on all four sides and shall have a solid exterior wall and a solid roof free of leaks.

F. Tie stalls shall be a minimum of 46 feet by ten feet. Horses that are not turned out daily should not be kept in tie stalls.

G. Stables and stalls shall be clean and dry. Sufficient bedding of straw, shavings, or other suitable material shall be furnished and changed as often as necessary to maintain the stables and stalls in a clean and dry condition. Bedding for concrete floors shall consist of at least six inches of materials. Bedding for clay, dirt or rubber base floor shall consist of at least three inches of materials.

H. A pest control program shall be used to control flies and other insects.

I. All interior and exterior areas of the stable shall be kept clean, properly drained, and free of nuisances including, but not limited to, odors and accumulation of refuse and excrement.

J. There shall be no smoking at any time in stables.

(Code 1985, § 39-146; Code 1985, § 39-147; Ord. No. 4227, § 1, November 2, 1993; and Ord. No. 5421, § 1, adopted November 1, 2011; Ord. No. 5843, § 1, 7-11-2023)

CHAPTER 6-4. AMUSEMENT BUSINESSES GENERALLY

Sections:

Sec. 6-4-1. Advertisements and notices to give price of admission.
Sec. 6-4-2. Permit required for circus or circus parade.
Sec. 6-4-3. Permit required for street fair or carnival.
Sec. 6-4-4. Minors in poolrooms.
Sec. 6-4-5. Organization operating bingo establishment to file duplicate of annual report of receipts and disbursements with comptroller.
Sec. 6-4-6. Shooting galleries—Permit.
Sec. 6-4-7. Shooting galleries—Subject to rules and regulations of police department.

Sec. 6-4-1. Advertisements and notices to give price of admission.

Persons in charge of places of amusement or entertainment, such as theaters, moving picture shows, baseball parks, circuses, fairs, public dance halls and all other places of entertainment and amusement, where admission is charged to witness the same, and for seats, shall show conspicuously in all advertisements or notices to the public of such entertainment or amusement, whether by newspaper advertisement, handbills, posters, wall signs, books or periodicals, movie slides, programs or by any other means of notice to the public, the price of admission, both gate and door, and of reserved seats and for boxes, and any other charge to be made for witnessing such entertainment or amusement.
(Code 1967, § 31-1; Code 1985, § 29-1)

Charter reference—Authority to regulate theatrical performances and motion picture shows, § 439.

Sec. 6-4-2. Permit required for circus or circus parade.

A. It is unlawful for any person connected with any circus, or part of a circus, to hold or conduct the same within the corporate limits of the city at any time without a permit issued by the director of police services. It shall likewise be unlawful for any person connected with any circus to make, cause or have a public parade on any of the streets of the city at any time without a permit issued by the director of police services.

B. The term "circus," as used in this section, shall be construed to mean and embrace any show or exhibition commonly known as a circus and any menagerie or combination of circus and menagerie.
(Code 1967, § 2-115; Code 1985, § 29-2; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-4-3. Permit required for street fair or carnival.

It is unlawful for any person connected with any street fair or carnival to give any exhibition within the corporate limits of the city at any time without a permit issued by the director of police services.
(Code 1967, § 31-3; Code 1985, § 29-3; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-4-4. Minors in poolrooms.

It is unlawful for any person in charge of any billiard or pool room to allow any person under 18 years of age to lounge about the same, or to play at billiards or any other game in the same, without the written consent of such person's parents or guardians.
(Code 1967, § 31-6; Code 1985, § 29-5; Ord. No. 2726, § 3, 7-5-1978)

Sec. 6-4-5. Organization operating bingo establishment to file duplicate of annual report of receipts and disbursements with comptroller.

A. All organizations authorized by the state to operate bingo establishments are required to file a duplicate of the annual reports of receipts and disbursements filed with the Secretary of State. These reports shall be filed with the city comptroller at the same time the annual reports are filed with the Secretary of State.

B. Failure to file these reports shall be a misdemeanor and punishable as otherwise provided by law.
(Code 1967, § 31-6.1; Code 1985, § 29-6; Ord. No. 1926, §§ 1, 2, 1-2-1974; Ord. No. 3433, § 1, 2-5-1985)

Sec. 6-4-6. Shooting galleries—Permit.

A. It is unlawful for any person to operate any shooting gallery within the city, without first obtaining a permit from the director of police services.

B. The director of police services is vested with the power of issuing permits for the operation of shooting galleries within the city, but before issuing such permit, it shall be his or her duty to investigate the proposed location of the shooting gallery and the criminal background of the person proposing to operate the same. No permit shall be issued to an individual who has ever been convicted of a felony involving a firearm or has been twice convicted of the same misdemeanor

involving firearms. No permit shall be issued to an individual for a location which does not conform to National Rifle Association safety standards.

C. In the event any shooting gallery is operated in violation of any rules and regulations of the police department, or the operator is convicted of a felony involving a firearm or has been twice convicted of the same misdemeanor involving firearms, the director of police services is vested with the power to revoke the permit of the operator, and it is unlawful for the shooting gallery to operate after such permit is revoked.

D. The fee to cover the cost of the investigation of the operation of the owner and the location shall be $100.00, and such fee shall be paid prior to commencing business and prior to the decision of the director of police services. The fee shall be paid to the director of police services.
(Code 1967, § 31-7; Code 1985, § 29-7; Ord. No. 2726, §§ 1, 4, 7-5-1978)

Sec. 6-4-7. Shooting galleries—Subject to rules and regulations of police department.

Any shooting gallery operated in the city shall be subject to the rules and regulations as shall be imposed by the police services division.
(Code 1967, § 31-8; Code 1985, § 29-8)

CHAPTER 6-8. BARBERS AND BARBERSHOPS*

Sections:

Sec. 6-8-1. Definitions.
Sec. 6-8-2. Permits.
Sec. 6-8-3. Water and/or water closets and equipment requirements for barbershops.
Sec. 6-8-4. Health department inspections.
Sec. 6-8-5. Barbershops to be kept clean and sanitary.
Sec. 6-8-6. Cleaning and disinfecting equipment used on barbershop patrons.
Sec. 6-8-7. Barber's health.
Sec. 6-8-8. Barber to cleanse hands before serving customers.
Sec. 6-8-9. Rules and regulations of health department.
Sec. 6-8-10. Approval of plans and specifications by health department.
Sec. 6-8-11. Administration of chapter.
Sec. 6-8-12. Exemptions from chapter.
Sec. 6-8-13. Penalty for violation of chapter; continuing violations.

***State law reference—**Barbers, T.C.A. § 62-3-101 et seq.

Sec. 6-8-1. Definitions.

For the purpose of this chapter:

Barber means any person who practices barbering as defined in this section.

Barbering shall consist of any one or any combination of the following practices, when done for payment, directly or indirectly, or without payment for the public generally:

1. Shaving or trimming the beard;
2. Cutting or styling the hair;
3. Giving facials and scalp massages or treatments with oils, creams, lotions or other preparations, either by hand or mechanical appliances;
4. Singeing, curling, shampooing, coloring, bleaching, or straightening the hair or applying hair tonics;
5. Cutting, fitting, measuring and forming head caps for wigs or hair pieces; or
6. Hair weaving, excluding medical or surgical procedures.

Barbershop means any building or portion of a building within the city in which any person is engaged in the practice of barbering and includes all portions of the premises under the control of the owner or manager thereof, which portions are used in part or in whole for the conduct of the business, and, for the purpose of this chapter, shall include any barber school or barber college in which barbers are trained.

Manager and/or *owner* means any person having, for the time being, control of the premises and of persons working or employed in a barbershop.
(Code 1967, § 9-1; Code 1985, § 6-1; Ord. No. 608, § 1, 12-23-1969)

Sec. 6-8-2. Permits.

A. It is unlawful for a manager or owner of a barbershop to operate a place of business who does not have a permit from the city and county health department. Only those barbershops that meet the requirements of this chapter shall be eligible to receive and retain such a permit.

B. Every barbershop shall pay to the city and county health department an annual permit fee of $15.00. This fee shall be due on January 1 of each year and must be

paid by January 31. All new barbershops shall secure a permit before they open for business, and all barbershops that change ownership or change managers shall secure a permit. Permits will not be transferable from one manager or owner to another.
(Code 1967, § 9-2; Code 1985, § 6-2; Ord. No. 608, § 2, 12-23-1969; Ord. No. 2952, § 1, 12-11-1979)

Sec. 6-8-3. Water and/or water closets and equipment requirements for barbershops.

A. Barbershops shall be equipped with adequate hot and cold running water, and be provided with one lavatory for each chair. Toilet facilities shall be required and shall be conveniently located. All appliances, tools, furnishings and material as may be necessary shall be furnished to enable persons employed in and about the barbershops to comply with the requirements of this chapter and of the health department.

B. The water supply shall be adequate, of a safe, sanitary quality and from an approved source.

C. All sewage shall be disposed of in a public sewerage system, or in the absence thereof, in a manner approved by the health officer.
(Code 1967, § 9-3; Code 1985, § 6-3; Ord. No. 608, § 3, 12-23-1969; Ord. No. 2426, § 1, 6-1-1976)

Sec. 6-8-4. Health department inspections.

The health department is authorized and directed to make inspections of barbershops and to enter at reasonable times upon the property covered by the permit herein issued to investigate compliance with health rules and regulations and the provisions of this chapter.
(Code 1985, § 6-3.1)

Sec. 6-8-5. Barbershops to be kept clean and sanitary.

The manager of every barbershop shall keep such shops and all furniture, tools, plumbing fixtures, appliances and other equipment used therein at all times in a clean and sanitary condition.
(Code 1967, § 9-4; Code 1985, § 6-4; Ord. No. 608, § 4, 12-23-1969)

Sec. 6-8-6. Cleaning and disinfecting equipment used on barbershop patrons.

All items of equipment used on patrons at a barbershop shall be thoroughly cleaned and disinfected by a method approved by the health department immediately after use on each patron. No barber shall use for the service of a customer any towel or washcloth that has not been boiled and laundered since last used.
(Code 1967, § 9-5; Code 1985, § 6-5; Ord. No. 608, § 5, 12-23-1969)

Sec. 6-8-7. Barber's health.

No owner or manager of a barbershop shall knowingly permit any person suffering from a communicable disease to act as a barber in such shop. No person who, to his or her own knowledge, is suffering from a communicable disease shall act as a barber. Such tests of proof may be required by the health officer.
(Code 1967, § 9-6; Code 1985, § 6-6; Ord. No. 608, § 6, 12-23-1969)

Sec. 6-8-8. Barber to cleanse hands before serving customers.

Every barber shall cleanse his or her hands thoroughly immediately before serving a customer.
(Code 1967, § 9-7; Code 1985, § 6-7; Ord. No. 608, § 7, 12-23-1969)

Sec. 6-8-9. Rules and regulations of health department.

The health department shall make such rules and regulations as may be necessary in its judgment to meet the requirements of adequate barbershop sanitation and to preserve the safety and health of barbershop patrons.
(Code 1967, § 9-8; Code 1985, § 6-8; Ord. No. 608, § 8, 12-23-1969)

Sec. 6-8-10. Approval of plans and specifications by health department.

Scaled, detailed plans as may be required by the health department shall be submitted for review and approval before construction and operation of a barbershop. Such plans shall show provisions and arrangement of facilities to comply with this chapter and with other codes and regulations involved.
(Code 1985, § 6-8.1)

Sec. 6-8-11. Administration of chapter.

The administration of this chapter shall be under the city and county health department. All matters and details concerning the inspection of barbershops as to

their operation regarding cleanliness and all sanitary conditions shall be under the direction and control of the health officer and inspections and prosecutions concerning the same shall be handled by the health department.
(Code 1967, § 9-9; Code 1985, § 6-9 Ord. No. 608, § 9, 12-23-1969)

Sec. 6-8-12. Exemptions from chapter.

The following persons are exempt from the provisions of this chapter while in the proper discharge of their professional duties:

A. Persons authorized by the laws of this state to practice medicine and surgery;

B. Commissioned medical or surgical officers of the United States army, navy, air force or marine hospital services;

C. Registered nurses;

D. Persons engaged in the practice of beauty culture; operating in beauty shops or beauty salons only, and licensed pursuant to T.C.A. title 62, chapter 4, "Cosmetologists."

(Code 1967, § 9-10; Code 1985, § 6-10; Ord. No. 608, § 10, 12-23-1969; Ord. No. 2882, § 1, 5-22-1979)

Sec. 6-8-13. Penalty for violation of chapter; continuing violations.

Any person violating any terms of the provisions of this chapter shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than $25.00 nor more than $50.00. When such violation is continuous, each day of each violation shall be deemed a separate offense.
(Code 1967, § 9-11; Code 1985, § 6-11; Ord. No. 608, § 11, 12-23-1969)

CHAPTER 6-12. CABLE TELEVISION RATE REGULATION*

Sections:

Sec. 6-12-1. Authority to regulate.
Sec. 6-12-2. Franchising authority.

Sec. 6-12-1. Authority to regulate.

Pursuant to authority granted by the Cable Television and Consumer Protection Act of 1992, at 47 USC 543, and Federal Communications Commission action under the authority of said Act certifying the city to regulate basic cable television service within the boundaries of the city; and for the purposes of regulating the rates charged to customers of any cable television operator franchised by the city, the regulations contained in Title 47 of the Code of Federal Regulations, part 76, subpart N, sections 76.900 through 76.985, are adopted and incorporated by reference as a part of this Code.
(Code 1985, § 10-50; Ord. No. 4260, § 1, 6-7-1994)

Sec. 6-12-2. Franchising authority.

Whenever the regulations cited in section 6-12-1 refer to "franchising authority," it shall be deemed to be a reference to the council of the city.
(Code 1985, § 10-51; Ord. No. 4260, § 1, 6-7-1994)

CHAPTER 6-16. COIN-OPERATED LAUNDERETTES†

Sections:

Sec. 6-16-1. Definitions.
Sec. 6-16-2. Violation; penalty.
Sec. 6-16-3. Permit required; prerequisite to business license; permit fee.
Sec. 6-16-4. Authority of health department to adopt rules and regulations; interpretation of provisions.
Sec. 6-16-5. Approval of plans and specifications by health department.
Sec. 6-16-6. Health department inspections.
Sec. 6-16-7. Water supply and sewage disposal.
Sec. 6-16-8. Garbage, rubbish and trash disposal.
Sec. 6-16-9. Floors, walls and ceilings.
Sec. 6-16-10. Ventilation.
Sec. 6-16-11. Fixtures installation and maintenance.
Sec. 6-16-12. Lighting.
Sec. 6-16-13. Toilet facilities.
Sec. 6-16-14. Cleanliness of premises.
Sec. 6-16-15. Dispensing of food products.

Sec. 6-16-1. Definitions.

For the purpose of this chapter, any person owning or managing an establishment engaged in the business of providing public, mechanically coin-operated machines for the purpose of washing, drying or dry-cleaning under

*State law reference—Cable Television Act of 1977, T.C.A. § 6-55-101 et seq.

†State law reference—Laundries, T.C.A. § 62-10-101 et seq.

the term, "coin-operated launderette," "coin-op," "launderette," or otherwise, shall be deemed an operator functioning as a coin-operated launderette.
(Code 1967, § 32-130; Code 1985, § 16-146; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-2. Violation; penalty.

Any person who violates the provisions of this chapter or the rules and regulations adopted pursuant thereto, or fails to perform the reasonable requirements of the health department or health officer after receipt of 30 days' written notice of such requirements, shall be subject to punishment as provided in section 1-24-1 and each day of continued violation after conviction shall constitute a separate offense.
(Code 1967, § 32-131; Code 1985, § 16-147; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-3. Permit required; prerequisite to business license; permit fee.

No person shall engage in the operation of a coin-operated launderette without a permit from the city and county health department. No business license shall be issued to any person to engage in the business of a coin-operated launderette until a copy of a permit to engage in such business has been issued by the health department, which permit shall be valid for one calendar year. Every coin-operated launderette shall pay to the city and county health department an annual fee of $15.00. This fee shall be due on January 1 of each year and must be paid by January 31.
(Code 1967, § 32-132; Code 1985, § 16-148; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-4. Authority of health department to adopt rules and regulations; interpretation of provisions.

The health department shall have the right to adopt such rules and regulations as may be necessary in its judgment to meet the requirements of adequate coin-operated launderette sanitation and to preserve the safety and health of the patrons thereof. The interpretation of the provisions of this chapter shall be made by the health officer.
(Code 1967, § 32-133; Code 1985, § 16-149; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-5. Approval of plans and specifications by health department.

Scaled, detailed plans as may be required by the health department shall be submitted for review and approval before construction and operation of a coin-operated launderette. Such plans shall show provisions and arrangement of facilities to comply with this chapter and with other codes and regulations involved.
(Code 1967, § 32-134; Code 1985, § 16-150; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-6. Health department inspections.

The health department is authorized and directed to make inspections of coin-operated launderettes, and to enter at reasonable times upon the property covered by the permit herein issued to investigate compliance with health rules and regulations and the provisions of this chapter.
(Code 1967, § 32-135; Code 1985, § 16-151; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-7. Water supply and sewage disposal.

The water supply shall be adequate, of a safe, sanitary quality, and from an approved source. Hot and cold running water under pressure shall be provided to all washers, sinks, lavatories or hand-wash basins. All sewage shall be disposed of in a sewerage system that has been approved by the city and county health department. All plumbing shall be sized, installed and maintained in accordance with applicable plumbing and sanitary laws so as to carry adequate quantities of water to required locations throughout the establishment; to prevent contamination of the water supply; to properly convey sewage and liquid wastes from the establishment to the sewerage system; and so that it does not constitute a safety or health hazard or create an unsanitary condition or nuisance.
(Code 1967, § 32-136; Code 1985, § 16-152; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-8. Garbage, rubbish and trash disposal.

It shall be the responsibility of every person in possession, charge or control of any establishment operating as a coin-operated launderette, where garbage, rubbish, trash or hazardous refuse is created or accumulated, to keep or cause to be kept a sufficient number of approved containers for the deposit of such waste generated on the premises. Any hazardous refuse, such as

dry-cleaning chemicals, shall be disposed of by the person in possession, charge or control of the coin-operated launderette under such methods and conditions as shall be approved by the health department.
(Code 1967, § 32-137; Code 1985, § 16-153; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-9. Floors, walls and ceilings.

Floors, walls and ceilings installed in all coin-operated launderette establishments shall be of a smooth, nonabsorbent material, and so constructed as to be easily cleanable and kept in good repair. Light fixtures, decorative material and similar equipment and material attached to walls, floors and ceilings shall be kept clean and in good repair. Floors in the area where washing machines are installed shall be of hard tile, brick, terrazzo, or similar materials.
(Code 1967, § 32-138; Code 1985, § 16-154; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-10. Ventilation.

The entire building shall be well ventilated. Ventilation or filter devices on the dry-cleaning equipment and dryers shall be so designed as to prevent a nuisance or hazard. Filters on the structural ventilation system, where used, shall be readily removable for cleaning or replacement. Ventilation systems shall comply with applicable fire prevention requirements and shall be, when vented to the outside air, designed to discharge in such a manner as not to create a nuisance.
(Code 1967, § 32-139; Code 1985, § 16-155; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-11. Fixtures installation and maintenance.

All fixtures such as washing machines, dryers, dry-cleaning machines, ironers, hair dryers, vending machines or other similar devices shall be so installed and maintained that they will not constitute a source of contamination or create an unsanitary condition, nuisance or hazard.
(Code 1967, § 32-140; Code 1985, § 16-156; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-12. Lighting.

All areas of the establishment shall be well-lighted at all times during the hours of operation.
(Code 1967, § 32-141; Code 1985, § 16-157; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-13. Toilet facilities.

Toilet facilities shall be provided as required by the city's plumbing code.
(Code 1967, § 32-142; Code 1985, § 16-158; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-14. Cleanliness of premises.

A. *Management responsibility.* The active manager or owner if a coin-operated launderette shall be capable and responsible for the proper sanitation of the premises or shall provide employees competent to maintain and operate the establishment in a satisfactory condition at all times.

B. *Pest and vermin control.* The building under permit by this chapter shall be so constructed as to control the ingression and habitation of rats, mice, insects, or any other pests or vermin.
(Code 1967, § 32-143; Code 1985, § 16-159; Ord. No. 2949, § 1, 12-11-1979)

Sec. 6-16-15. Dispensing of food products.

All food products must be dispensed by means of mechanical vending machines, and shall not be stored, displayed or dispensed in the same machine with bleach, detergent or any other similar chemical.
(Code 1967, § 32-144; Code 1985, § 16-160; Ord. No. 2949, § 1, 12-11-1979)

CHAPTER 6-20. DANCES AND DANCE HALLS

Sections:

Article 1. General Provisions

Sec. 6-20-1. Definitions.
Sec. 6-20-2. Prohibitions.
Sec. 6-20-3. Hours of operation.

Article 2. Dance Hall Permit

Sec. 6-20-4. Required.
Sec. 6-20-5. Application.
Sec. 6-20-6. Qualifications of applicants.
Sec. 6-20-7. Inspection before issuance.
Sec. 6-20-8. Posting; nontransferable.
Sec. 6-20-9. Refusal to issue.
Sec. 6-20-10. Revocation; appeals; notice required.
Sec. 6-20-11. Fee; expiration.
Sec. 6-20-12. Renewal.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-20-1. Definitions.

As used in this chapter, the following terms shall have the indicated meaning:

Club means any bona fide nonprofit society, association of persons or corporation, organized for civic, fraternal, social or charitable purposes, or for any purpose not a business or commercial purpose, which owns, rents or operates a place or building for the accommodation of its members and their invited guests, when such place or premises, or any part thereof, is used for dancing by members of the club or their invited guests.

Dance hall operator means the person who conducts, manages, maintains or controls, either directly or indirectly, any public dance hall as defined in this section.

Person means any person, copartnership, corporation, firm, or other association or organization which conducts or holds a public dance in a public dance hall as defined in this section.

Public dance means any dance to which the public generally gains admission, either with the payment of a fee directly or indirectly, or without payment of a fee, but the term "public dance" shall not include the following:

1. *Private dance* means any dance given at a private home or residence, admission to which is restricted to invited guests, and from which the general public is excluded; any dance given or conducted by a club whose purposes or primary activities do not include the arrangement or holding of dances and where the attendance is restricted to the members of such club and their invited guests, and from which the general public is excluded; any dance given or conducted by a corporation, or other organization or person whose purpose or primary activities do not include the arrangement or holding of dances and where the attendance is restricted to the members of such corporation or other organization and their invited guests, and from which the general public is excluded; and any dance given or conducted by public or private schools or churches for the students or members thereof, or their invited guests, and from which the general public is excluded.
2. *Public agency dance* means any dance which is given or conducted by the state, the county, the city or any political subdivision or public agency or instrumentality thereof.
3. *Dancing school classes* means any dance held or conducted by any dancing school or academy which gives instruction in dancing for hire.
4. *Commercial premises* means a commercial establishment whose principal business is other than public dancing and upon which premises no alcoholic beverages are sold or permitted.

Public dance hall means any room, place, space or building, enclosed or unenclosed, where a public dance is held or conducted.
(Code 1967, § 31-21; Code 1985, § 29-21; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2575, § 1, 3-15-1977; Ord. No. 3213, §§ 1, 2, 7-20-1982)

Sec. 6-20-2. Prohibitions.

It is unlawful for any person or dance hall operator, by itself or himself or herself, directly or indirectly, or by any servant, agent or employee, on the premises at which a public dance is being held or conducted to:

A. Permit any disorderly conduct as defined in section 10-8-2, or any lewd or indecent conduct as defined in section 10-8-2;

B. Permit any known prostitute, male or female, procurer or vagrant to come and remain upon the premises at which a public dance is being held or conducted;

C. Permit intoxicated persons to dance or loiter on the premises at which a public dance is being held or conducted;

D. Permit the public dance hall employees to dance with the patrons;

E. Permit any person who has not attained the age of 18 years to attend or remain at any public dance where alcohol is being consumed unless such person is accompanied by the parent or legal guardian of such person, and it is unlawful for any person to represent himself or herself to have reached the age of 18 years in order to attend or remain at any public dance where alcohol is being consumed when such person in fact is under 18 years of age; it is also unlawful for any person to falsely represent himself or

herself to be the parent or guardian of any person in order that such person may attend or remain in any public dance hall;

F. Permit any person under the age of 18 years of age to be employed in any capacity in a public dance hall; provided that, the provisions of this section relative to employment shall not apply to minors under the age of 18 years of age who are under contract to provide entertainment in the field of music or vocal entertainment; and shall not apply to minors under age of 18 years of age who are under contract to provide entertainment in the field of choreography. Such minors must have the written consent of their parents or guardians sworn to before a notary public. The owner or operator shall keep the written consent on file at all times during the employment of such minor, and the same shall be available for inspection by officers of the police services division. A duplicate of such written consent shall be forwarded to the director of police services of the city. The provisions herein shall not apply to disorderly or disreputable persons. Provisions of this subsection shall be in effect only during the actual hours of business;

G. Fail to furnish proper ventilation and separate and sufficient toilet facilities for each sex;

H. Fail to provide and maintain throughout the part of the dance hall premises used for dancing a minimum of two candlepower light measured at a level five feet above the floor;

I. Deny free access and entrance into the dance hall at all times to police and fire officers when on official duty;

J. Violate any other laws, ordinances, health and fire regulations, or building code requirements which may be applicable to the operation or regulation of the public dance hall.

(Code 1967, § 31-22; Code 1985, § 29-22; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, §§ 1, 5, 7-5-1978)

Sec. 6-20-3. Hours of operation.

All public dances shall be discontinued and all public dance halls closed on or before the hour of 3:00 a.m. except on New Year's Day.

(Code 1967, § 31-23; Code 1985, § 29-23; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2481, § 1, 8-3-1976)

ARTICLE 2. DANCE HALL PERMIT

Sec. 6-20-4. Required.

It is unlawful for any person or dance hall operator to hold or conduct any public dance, or to operate any public dance hall within the city, until such dance hall, or other place in which such public dance may be held, shall first have been duly registered as a public dance hall with, and approved by, the city treasurer, and a permit shall have been issued by the city treasurer, or his or her designee, for the operation of such public dance hall or the holding of such public dance.

(Code 1967, § 31-24; Code 1985, § 29-36; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, § 1, 7-5-1978; Ord. No. 4352, § 6, 8-15-1995)

Sec. 6-20-5. Application.

Any person or dance hall operator, as defined in this chapter, desiring to obtain a public dance hall permit as required by this chapter shall file a sworn written application with the director of police services at least 72 hours prior to the date on which such permit is desired. Such application shall be made on forms approved by the director of police services and shall include the following information:

A. Name, age, address and telephone number of each person or operator, copartnership, firm, corporation, or other association or organization desiring to conduct such public dance or public dance hall;

B. Name to be used by applicant;

C. Location by street and number of the place, space or building and room or floor, and the size of such room or space which is proposed to be used for such purpose;

D. If the applicant is an individual, a statement that he or she has not been convicted of a felony, or of a misdemeanor involving moral turpitude, within five years prior to the date of making the application;

E. If the applicant is a firm, association or partnership, all of the information described in subsection D of this section as to each individual composing the firm, association, or partnership;

F. If the applicant is a corporation, a statement that the applicant is organized and chartered under

the corporation laws of the state applicable to such corporation, or, if a foreign corporation, if such a corporation has complied with the laws of the state applicable to such corporation, and the same information with reference to the operator or person in charge of the operation of the public dance hall desired to be conducted as is prescribed in subsection D of this section, and, in addition thereto, a statement as to the names of stockholders in the corporation, and the percentage of the corporation's outstanding stock owned by each;

G. Previous occupation or employment of the applicant for a period of two years next preceding the filing of his or her application;

H. Any other information reasonably deemed necessary by the director of police services to determine whether the applicant qualifies for the issuance of the permit;

I. Proof that the applicant has paid the required fee.

(Code 1967, § 31-25; Code 1985, § 29-37; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, §§ 1, 6, 7-5-1978; Ord. No. 2828, § 1, 1-30-1979; Ord. No. 3213, § 3, 7-20-1982)

Sec. 6-20-6. Qualifications of applicants.

All applicants for dance hall permits must be at least 21 years of age and shall not have been convicted of a felony or of a crime involving moral turpitude within five years next preceding the filing of the application.
(Code 1967, § 31-26; Code 1985, § 29-38; Ord. No. 925, § 1, 4-27-1971)

Sec. 6-20-7. Inspection before issuance.

Before any public dance hall permit shall be issued by the director of police services, such director of police services shall cause an investigation of the premises at which the proposed public dance is to be held by the city and county department of health, the fire services division, and the chief building inspector, to determine whether or not such premises comply with the laws of the state, of the city, and this chapter, the fire regulations, the unified development code and building code. Such officers shall, in their respective capacities, note their approval or disapproval upon the application, and if their disapproval, their reasons therefor.
(Code 1967, § 31-27; Code 1985, § 29-39; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-20-8. Posting; nontransferable.

The dance hall permit herein required shall at all times be displayed and posted in a conspicuous place on the premises at which the public dance is being held. Permits issued under the provisions of this chapter shall not be transferable.
(Code 1967, § 31-28; Code 1985, § 29-40; Ord. No. 925, § 1, 4-27-1971)

Sec. 6-20-9. Refusal to issue.

In the event the director of police services shall refuse to issue a public dance hall permit to any applicant therefor, he or she shall note his or her reason or reasons for such action on the application form, and shall notify the applicant of such action and such reason or reasons within ten days after the filing of the application. Within five days after the receipt of such notification, the applicant shall have the right to request a hearing with the director of police services, or his or her designated representative, on the refusal of the director to issue the requested permit, and within 30 days after the request for such a hearing shall have been received by the director of police services or his or her designated representative, shall hold such a hearing, and his or her action and judgment, after hearing all the evidence and facts, shall be final and subject to court reviews as provided by law.
(Code 1967, § 31-29; Code 1985, § 29-41; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-20-10. Revocation; appeals; notice required.

If a public dance hall permit has been issued under the provisions of this chapter, and such public dance hall is being conducted in violation of the laws of this state or of this chapter, or of any other law or ordinance relating to the operation of public dance halls, the director of police services may at any time give notice in writing to the holder of the permit or other person in control of the operation and maintenance of such public dance hall that the permit has been revoked and cancelled. Such written notice shall state the reason for such revocation and cancellation and shall become a final

revocation and cancellation after the expiration of ten days from the date of service of such notice, unless on or before the expiration of such ten days the permit holder or other person in control of the operation and maintenance of the public dance hall shall file with the director of police services a written request for a hearing before him or her upon the question whether or not the permit should have been revoked and cancelled. Such hearing shall be held by the director or his or her designated representative within 30 days after the date of the filing of such request therefor, and the action and judgment of the director of police services, after hearing all the evidence and facts, shall be final and subject to court reviews as provided by law.
(Code 1967, § 31-30; Code 1985, § 29-42; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-20-11. Fee; expiration.

A fee shall be charged for each dance permit issued. Such fee shall be:

A. $10.00 for a limited dance permit which covers a seven consecutive calendar day period, during which a public dance hall may be used for public dances;

B. $100.00 for a public dance hall except as set forth in subsection C of this section;

C. $500.00 for a public dance hall where the dance hall operator schedules or permits any person to accept compensation directly or indirectly for dancing, if alcoholic beverages, beer or wine are served in the same room where the dancing occurs.

(Code 1967, § 31-31; Code 1985, § 29-43; Ord. No. 925, § 1, 4-27-1971; Ord. No. 2726, § 1, 7-5-1978; Ord. No. 2828, § 2, 1-30-1979; Ord. No. 3213, § 4, 7-20-1982)

Sec. 6-20-12. Renewal.

With the exception of the limited dance permit described in section 6-20-11(A), permits issued under this article shall be renewed annually and the application for renewal shall be accompanied by the payment of the fee required for the type permit prescribed. The renewal fee shall be paid each year by July 1 and will remain in effect through June 30 the following year. Permits issued after July 1 shall be prorated to reflect the months remaining in the fiscal year.
(Code 1967, § 31-32; Code 1985, § 29-44; Ord. No. 3213, § 1, 7-20-1982)

CHAPTER 6-24. FIBER OPTIC AND TELECOMMUNICATIONS FRANCHISES*

Sections:

Sec. 6-24-1. Declaration of authority.
Sec. 6-24-2. Statement of policy.
Sec. 6-24-3. Governing law.
Sec. 6-24-4. Definitions.
Sec. 6-24-5. Administration.
Sec. 6-24-6. Conditions for access to the city's rights-of-way.
Sec. 6-24-7. Right-of-way agreement requirements.
Sec. 6-24-8. Compensation.
Sec. 6-24-9. Policy and methodology for monetary rate setting.
Sec. 6-24-10. General installation policies and procedures.
Sec. 6-24-11. Installation and maintenance requirements.
Sec. 6-24-12. Minimum installation and maintenance controls.
Sec. 6-24-13. Compliance and revocation.
Sec. 6-24-14. Right-of-way fund.
Sec. 6-24-15. Smart city fiber access system.

Sec. 6-24-1. Declaration of authority.

The City of Memphis has been delegated, as proprietor, the entire control over the streets, alleys, thoroughfares and rights-of-way located within its corporate limits by the General Assembly pursuant to Chapter 11 of the Acts of 1879 and subsequent Acts, all of which were preserved by section 17 of the City's Home Rule Charter. In addition the city possesses police powers to regulate the use of its streets, alleys, thoroughfares, rights-of-way and public places for the protection of the health, safety and welfare of its citizens. The city acts in its proprietary capacity by enacting this charter and by

***Editor's note—**Ord. No. 5551, adopted Nov. 18, 2014, amended chapter 6-24 in its entirety to read as herein set out. The former chapter 6-24, §§ 6-24-1—6-24-33, pertained to similar subject matter, and derived from Code 1985, §§ 10-76—10-108; Ord. No. 4980, 12-3-2002.

State law reference—Cable Television Act of 1977, T.C.A. § 6-55-101 et seq.

authorizing the mayor to issue any authorization, license, permit or easement issued or made pursuant to this chapter or to enter into any contracts pursuant thereto

and as such intends to be bound by the provisions of this chapter and any authorization, license, contract, permit or easement issued or made pursuant to this authorization chapter as a natural person, except when its duty and obligation to protect the health, safety and welfare of its citizens requires that it act contrary to the express provisions of this chapter or any resulting authorization, license, contract, permit or easement issued or made pursuant to this chapter, since the abrogation or waiver of its police powers by contract or otherwise is contrary to the laws and public policy of this state. Upon adoption of this chapter, the mayor and those acting at his direction are hereby authorized, empowered and directed to implement the provisions of this chapter and to take any and all other steps they deem necessary or appropriate to implement this chapter and any authorization, license, contract, permit or easement issued or made pursuant to this chapter.

The council reserves it authority to grant franchises in its legislative discretion pursuant to section 17 of the City's Home Rule Charter and this chapter is not intended to supplant or govern the exercise of that authority by the council.

This chapter is not intended to govern the approval or authorization for access to the city's rights-of-way by any entity, person or joint venture providing or seeking to provide cable or video service over a cable system or video service network facility in the city, which shall be governed by Title VI of the Communications Act of 1934, compiled in 47 U.S.C. § 521 et seq., T.C.A. § 7-59-304 et seq. and/or by section 17 of the City's Home Rule Charter ("cable provider"), which presently includes Comcast Cable. The council exercise of its lawful with respect to any cable provider shall be set forth is a separate ordinance or franchise agreement.

The city's public utility, MLGW, shall not be required to obtain a franchise or other general grant of authority hereunder to occupy the city's streets and rights-of-way; its construction activities in the city's streets and rights-of-way shall be governed by a separate ordinance to be adopted by the city council, which ordinance shall be non-discriminatory as to telephone and telegraph companies to the extent required by applicable law.
(Ord. No. 5551, Art. I, 11-18-2014)

Sec. 6-24-2. Statement of policy.

A. Any person or corporation organized by virtue of the laws of this state, or of any other state of the United States, or by virtue of the laws of the United States, for the purpose of transmitting intelligence by magnetic telegraph or telephone, or other system of transmitting intelligence or the equivalent thereof, which may be hereafter invented or discovered, is authorized, under Tennessee and federal statutes, to construct, operate and maintain a telegraph, telephone, or other lines necessary for the speedy transmission of intelligence, along and over the public highways and streets of the cities and towns of this state, subject to all reasonable police powers of the city to regulate the construction, maintenance, or operation of such line within its limits, including the right to exact reasonable rentals and compensation for the use of its streets on a non-discriminatory and competitively neutral basis.

B. It is the policy of the City of Memphis to maintain the integrity, operational safety and functions of the city's streets and rights-of-way, including accommodating access to the city's streets and rights-of-way by telecommunications companies for the installation of their telecommunications systems. It is also the policy of the city to grant non-exclusive franchises, licenses, authorizations and permits, on a competitively neutral and non-discriminatory basis, allowing the installation of underground telecommunications systems and related facilities within the rights-of-way of the city; provided, however, that any such access, use and/or occupation of the city's streets and rights-of-way by telecommunications companies with their telecommunications systems shall be subject to this chapter and conditioned on the payment of compensation by such telecommunication companies using and occupying the city's rights-of-way with their telecommunications systems in such amounts determined by the city council from time to time in accordance with applicable law. The city may, at its option, accept monetary compensation or in-kind compensation, or both. Valuation of in-kind compensation shall be calculated in accordance with the method of valuation adopted by the council.
(Ord. No. 5551, Art. II, 11-18-2014)

Sec. 6-24-3. Governing law.

It is the intent of the council that this chapter and any agreement made under the authority of this chapter be governed by and interpreted in accordance with Tennessee law, including but not limited to T.C.A. §§ 65-21-101, 65-21-103 and 65-21-201 and the applicable provisions of the Federal Telecommunications Act of

1996, 47 U.S.C. § 253, as construed by the United States Court of Appeals for the Sixth Circuit and by Tennessee appellate courts.
(Ord. No. 5551, Art. III, 11-18-2014)

Sec. 6-24-4. Definitions.

For the purpose of this chapter the following definitions shall apply:

Anniversary date means each anniversary of the date on which any contract under this chapter is fully executed.

Authorization means the non-exclusive contractual privilege, authorization license or easement granted as provided in this chapter to occupy or use the streets and/or public rights-of-way within the city for the construction, operation and maintenance of any public works or any fiber optic and/or other telecommunications systems within all or a portion of the city.

Cable or video services provider means any entity, person or joint venture authorized to provide cable or video service over a cable system or video service network facility in the city, pursuant to Title VI of the Communications Act of 1934, compiled in 47 U.S.C. § 521 et seq., and possessing a franchise issued under T.C.A. § 7-59-30 et seq. and/or under section 17 of the City's Home Rule Charter.

Charter means collectively:

1. Ordinance No. 1852, Home Rule Charter adopted by referendum vote on November 8, 1966 (the "Home Rule Charter"), and
2. The Charter of the City of Memphis as enacted in Acts 1879 as amended, to the extent not repealed by the Home Rule Charter.

City means the City of Memphis.

City engineer means the position of city engineer created by the Charter or a successor position, or an acting city engineer or the designee of the city engineer.

Conduit means a hollow tube, duct or tabular runaway (of varying sizes) used to enclose and protect innerducts, fiber optic wires, cable or other wires for underground installation of such innerducts, fiber optic wires, cable or other wires.

Confidential information means any trade secrets (as defined below) or other information relating to a grantee that derives economic value from not being generally known to or readily accessible to other persons and is the subject of reasonable efforts to maintain its secrecy. Confidential information shall include, but not be limited to:

1. A grantee's manner of operation, forms of agreements, plans, processes and programs;
2. Information about its finances and financial condition and about the finances and financial condition of clients or other entities affiliated with a grantee;
3. Research, marketing plans, designs, procedures, formulas, discoveries, inventions, concepts, ideas, specifications, flowcharts, listings of customers, supplies, or analyses; and
4. Information supplied to grantee by other parties which a grantee is obligated to keep confidential.

As used herein, "trade secrets": shall include any technical or non-technical data or information, design, procedure or improvement that derives economic value, actual or potential, from not being generally known to or readily ascertainable by proper means by the competitors of a grantee. Confidential information shall not include any information which has entered the public domain.

Contract year means with respect to any payments due the city under this authorization chapter, each 12 month period during the term of any authorization, license, contract, permit or easement issued or made pursuant to this authorization chapter.

Council means the council of The City of Memphis.

Cover means depth of lop of pipe, conduit, casing or gallery below grade of roadway, ditch or other utility facilities.

Day or *days* means a calendar day or days.

Direct burial means installing fiber optic facilities underground without encasement.

Director of finance means the position of director of finance and administration created pursuant to and under the Charter or a successor position, or an acting director of finance, or the designee of the director of finance.

Encasement means structural element surrounding a pipe.

Encroachment means unauthorized use of the city's streets and rights-of-way or easements for signs, fences, utilities, parking, storage, etc.

FCC means the Federal Communications Commission, or any successor agency.

Fiber optic facilities means underground fiber optic conduit, ducts, cable lines, wires or related facilities.

Gallery means an underpass for two or more utility lines.

Grantee means any public or private utility or any company operating public works, utility systems or telecommunications systems using facilities either constructed, owned or leased within the public right-of-way for any purpose.

Innerduct means a hollow, flexible tube (of varying sizes) used to enclose fiber optic wires, cables or other wires for underground installation, and which may be enclosed within conduit.

Manhole means an opening in an underground system which workmen or others may enter for the purposes of making installations, inspections, repairs, connections and tests.

Median means the portion of a divided highway or street separating the traveled ways for traffic in opposite directions.

New utility installation means an initial installation on the city's streets and rights-of-way and the replacement of existing facilities with those of a different type, capacity or design of replacement at a new location on the right-of-way.

Normal means crossing at a right angle.

Oblique means crossing at an acute angle.

Pavement structure means the combination of subbase, base course, and surface course placed on a subgrade to support the traffic load and distribute it to the roadbed.

Pipe means a tabular product made as a production item for sale as such. Cylinders formed from plate in the course of the fabrication of auxiliary equipment are not pipe as defined here.

Plowing means direct burial of utility lines by means of a plow type mechanism which breaks the ground, places the utility line and closes the break in the ground in a single operation.

Private lines means privately owned facilities which convey or transmit intelligence or information but are devoted exclusively to private use.

Public right-of-way means real property surface, subsurface and air rights (appurtenant to surface rights) acquired by the city by any lawful means and devoted to transportation of people, goods or information and to the provision of governmental services and includes the surface and that area below the surface which is necessary to support the public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground, utility easement or other public right-of-way. Public right-of-way also includes the surface of any public street, alley, public ground or other public right-of-way acquired by the city. No reference herein or in any authorization for use of any public right-of-way shall be deemed to be a representation or guarantee by the city that its title to any public right-of-way or any improvement or object located therein is sufficient to permit or authorize its use by the grantee. Public right-of-way shall not include any real or personal property, buildings, infrastructure, such as sewers, conduits, poles and bridges, owned by the city that is not a utility, easement or right-of-way.

Public right-of-way administrator means a person designated by the mayor within the office of the city's chief administrative officer, whose responsibility shall be to coordinate with all divisions of city government having any responsibility for managing, supervising or inspecting any construction or use of the city's public rights-of-way by private or public entities.

Public utility means any utility that is municipally owned and operated and which operates any water, gas or electric heat, light or power works, plants and systems as defined in T.C.A. § 7-34-102.

Public works means any water, gas or electric heat, light or power works, plants and systems as defined in T.C.A. § 7-34-102 and any such systems owned and operated by privately owned utility companies.

Right-of-way agreement means a fully executed and notarized authorization, license, contract, permit or easement issued or made pursuant to this authorization chapter by and between the city and grantee in form and

substance agreeable to the city, wherein the city grants certain non-exclusive revocable rights to use and occupy its streets and rights-of-way and wherein grantee accepts and agrees to be bound by the terms and provisions of this chapter.

Roadside means a general term denoting the area adjoining the outer edge of the travelled roadway. Extensive areas between the roadways of a divided highway may also be considered roadside.

Roadway means the portion of a highway, including shoulders, for vehicular use. A divided street or highway has two or more roadways.

Small cell facility means a wireless service facility that either meets both of the following qualifications or is within a stealth design that is consistent with the design guidelines:

1. Each antenna is located inside an enclosure of no more than five cubic feet in volume or, in the case of an antenna that has exposed elements, the antenna and all of its exposed elements could fit within an enclosure of no more than five cubic feet, however, the maximum dimensions of the antenna shall not exceed 36 inches in height and 16 inches in diameter; and
2. Primary equipment enclosures are no larger than 17 cubic feet in volume. The following associated equipment may be located outside of the primary equipment enclosure and, if so located, is not included in the calculation of equipment volume: electric meter, concealment, telecommunications demarcation box, underground enclosures, back-up power systems, grounding equipment, power transfer switch, and cut-off switch.

Small cell network means a collection of interrelated small cell facilities designed to deliver wireless service.

Specifications means standard specifications for road and bridge construction approved by the city engineer.

Surety means the corporation, partnership or individual other than the utility owner, executing a bond furnished the city by the utility owner.

System or *telecommunications system* means grantee's fiber optic facilities and any network of cables, wires, lines, conduits, innerducts, wave guides, optic fiber, microwave, laser beams, and any associated converters, equipment, or facilities that are placed in, on, across or over the public rights-of-way that are designed and constructed for the purpose of producing, receiving, amplifying or distributing by audio, video or other forms of electronic signals to or from subscribers or locations within the city.

Telecommunications Act of 1996 or *TCA 1996* means and refers to 47 U.S.C. §§ 251, 252 and 253.

Telecommunications company means any cooperative, corporation, partnership or individual named in the right-of-way agreement that may: locate, install or maintain fiber optic cable facilities within the city's rights-of-way, or use licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at a fixed location or mobile, provided to the public using a network node.

Term means the duration of the right-of-way agreement under which a telecommunications company locates, installs and maintains telecommunications system within the rights-of-way of state freeways.

TRA means the Tennessee Regulatory Authority or any successor agency.

Traveled way means the portion of the roadway for the movement of vehicles, exclusive of shoulders, auxiliary lanes and rights-of-way designed for placement of utilities.

Trenched means installed in a narrow open excavation.

Untrenched means installed without breaking ground or pavement surface, such as by jacking or boring.

Utility owner means any private cooperative, corporation, company or individual named in the right-of-way agreement and responsible for the construction, operation and maintenance of the telecommunications and utility facilities or private lines.

Wireless service means any service, using licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at a fixed location or mobile, provided to the public using a network node.

Wireless service provider means a person that provides wireless service to the public.

(Ord. No. 5551, Art. IV, 11-18-2014; Ord. No. 5678, §§ 1, 2, 2-6-2018)

Sec. 6-24-5. Administration.

The administration of the access, use and occupation of the city's public right-of-way by private and public entities shall be under the supervision of the chief administrative officer of the city. The mayor shall designate a person within the office of the city's chief administrative officer, whose responsibilities shall be:

A. To coordinate with all divisions of city government who perform services, functions or activities in all or a portion of the city's public rights-of-way;

B. To coordinate with all divisions of city government having any responsibility for managing, supervising or inspecting any construction, use, operation or maintenance of a fiber optic and/or other telecommunications systems within all or a portion of the city's public rights-of-way by private or public entities;

C. To manage the application process;

D. To ensure that all requirements, limitations and conditions imposed by this chapter and other laws, ordinances, rules and regulations are satisfied before any authorization to access the city's public rights-of-way is granted;

E. To ensure that all statutes, laws, ordinances, rules and regulations pertaining to the city's public rights-of-way are observed by grantees;

F. To develop a system for preserving, recording and maintaining all contracts, licenses, permits or easements granted under this chapter to occupy or use the streets and/or public rights-of-way for the construction, operation and maintenance of a fiber optic and/or other telecommunications systems within all or a portion of the city.

(Ord. No. 5551, Art. V, 11-18-2014)

Sec. 6-24-6. Conditions for access to the city's rights-of-way.

A. No telecommunications company or utility owner shall be permitted to install underground or above ground any telecommunication system or related facilities within the city's rights-of-way without first obtaining permission from the city by executing a right-of-way agreement or a permit. No telecommunications company or utility owner shall cause or allow any telecommunication systems or related facilities to continue to occupy the city's rights-of-way after the effective date hereof without obtaining a right-of-way agreement or other authorization from the city, except that any such telecommunications company or utility owner shall be permitted to continue to occupy the city's streets and rights-of-way pursuant to any unexpired specific route or encroachment agreement as long as any such company is not in default thereunder. This chapter shall supersede and replace any unexpired franchise agreement governing access and construction activities within the city's public rights-of-way (non-resellers' ordinances).

B. Upon making application to the chief administrative officer for a right-of-way agreement under this chapter, the telecommunications company shall pay a permit application fee to the city for processing the permit application, reviewing plans, and other administrative services. The total amount of the required application fee shall include a base fee of $750.00 plus $200.00 for each mile of the proposed installation within all or a portion of the city's public rights-of-way over the initial two miles of installation. The city engineer shall determine whether permits shall be required for non-material modifications or repairs to existing systems.

C. All utility installations within the city's streets and rights-of-way and all work performed within the city's streets and rights-of-way or otherwise, including without limitation any work performed for the city, shall be subject to review and inspection by the city engineer to ensure conformity with all city engineering and construction standards, which standards shall be deemed a part of the right-of-way agreement by reference. The inspection fee shall equal $1.00 per linear foot of the proposed installation within all or a portion of the city's public rights-of-way. The city engineer shall have the discretion to assign one or more inspectors, either city employees or specially employed engineering contractors, to inspect the installation periodically and if necessary place one or more inspectors on the site for the duration of construction activities depending on availability of staff engineers, the magnitude and the complexity of the utility installations within the city's streets and rights-of-way. Should outside engineering contractors be used for inspection services, the cost of such services shall be paid from the inspection fee with any excess costs to be billed to the grantee. The necessity and extent of such inspectional services will be determined by the city engineer on a case by case basis. If the city engineer and grantee disagree on the

need for inspection services, the cost of an inspection or the results of a city inspection, the city engineer and grantee shall meet within ten days to review the issues. The decision of the city engineer on the necessity for such inspectional services may be appealed to the city's chief administrative officer, whose decision shall be conclusive and final.

D. The city engineer shall have the authority to reject substandard work or materials and/or to suspend or stop work, in whole or part, where the telecommunications company fails to comply with any material requirement of this chapter or the terms of the right-of-way agreement related to the work being suspended or stopped or where any unsafe or hazardous condition exists unless and until corrective measures have been made to the satisfaction of the city engineer. Any such suspension shall relate only to the permitted project and shall not affect any other separate installations.

E. Any inspection or control exercised by the city over the construction activities of the utility owner shall in no way relieve the utility owner of any duty or responsibility to the general public nor shall such services and/or control by the city relieve the utility owner from any liability for loss, damage or injury to persons or adjacent properties.

F. All application, review and inspection services performed by city personnel shall be taken into consideration in determining periodic right-of-way compensation under section 6-24-11 of this chapter to ensure that the costs of performing application, review and inspection services are not duplicated. The decision of the city's chief administrative officer shall be final and conclusive with respect to conditions, terms, stipulations and provisions to be included in any right-of-way agreement.

G. *Small cell master development plan and permit application.*

1. The city shall develop a master development plan which will support the development of a master license agreement, a pole attachment agreement for private access to right-of-way (ROW), and a city facilities lease agreement.

2. The master development plan will define and develop standards for small cell equipment and a process for the installation of private equipment on public infrastructure and facilities, taking into consideration the input of carriers and adherence to any state and federal regulations. The master development plan which shall define minimum design criteria and fee structure for use of the ROW and for city owned facilities (including buildings/structures not in the ROW). The design criteria shall contemplate:

   a. Minimal impact to the city's ROW;

   b. Enhancement of the city's ROW with new infrastructure in non-compliance locations;

   c. Standardized aesthetic appearance on sidewalks and poles in order to maintain the integrity of the existing streetscape in residential, historic, or recreational uses in certain areas of town;

   d. Ensure safe pedestrian, ADA, and auto thoroughfares.

3. The master development plan shall adopt a design manual for the installation and construction of network nodes and new node support poles in the public right-of-way that includes additional installation and construction details.

4. The master development plan shall evaluate factors to define a fee structure and publish a fee structure plan.

5. Permit application review process.

   a. The city shall process each permit application on a nondiscriminatory, first-come-first-served basis.

   b. A network provider shall provide a design plan in compliance with the city's master development plan, on the date the permit application is filed, in addition to any other information reasonably required by the division of public works and/or engineering.

   c. Not later than the 30th day after the date the city receives an application for a permit for a network node or node support pole, or the 21st day after the date the city receives an application for a permit for a transport facility, the city shall determine whether the application is complete and notify the applicant of that determination. If the city determines

that the application is not complete, the municipality shall specifically identify the missing information.

d. The city shall approve an application that does not require zoning or land use approval under this chapter unless the application or the corresponding work to be performed under the permit does not comply with the municipality's applicable codes and/or does not meet the requirements under the master development plan.

e. The city must approve or deny an application for a node support pole no later than the 90th day after the date the city receives the complete application. The city must approve or deny an application for a network node not later than the 60th day after the date the city receives the complete application. The city must approve or deny an application for a transport facility not later than the 30th day after the date the city receives a complete application. An application for a permit for a node support pole, network node, or transport facility shall be deemed approved if the application is not approved or denied on or before the applicable date for approval or denial prescribed by this subsection.

f. The municipality that denies a complete application must provide in writing a basis for the denial, including the specific applicable code provisions on which the denial was based.

g. Not later than the 30th day after the date the city denies the application, the applicant may cure the deficiencies identified in the denial documentation and resubmit its application without paying an additional application fee. Notwithstanding the city shall approve or deny the revised completed application after a denial not later than the 60th day after the date the municipality receives the completed revised application. The city's review of the revised application may be limited to the deficiencies cited in the denial documentation.

h. The city may extend any of the deadlines provided under this section as warranted by extenuating circumstances on a case by case basis by issuing notice to the public and to any applicant whose application may be affected.

(Ord. No. 5551, Art. VI, 11-18-2014; Ord. No. 5678, § 3, 2-6-2018)

Sec. 6-24-7. Right-of-way agreement requirements.

Each right-of-way agreement for the installation of telecommunications systems within city's rights-of-way shall be subject to this chapter and specifically, but without limitation, to the following terms and conditions:

A. *Assignment.* The telecommunications company and/ or utility owner may not assign or transfer its rights or obligations under the right-of-way agreement to another telecommunications company or other entity or person that is not under common control of the grantee without first giving written notice to, and obtaining the consent of, the city, which consent shall not be unreasonably withheld. The word "control" as used herein means actual working control in whatever manner exercised. A rebuttable presumption that a transfer of control has occurred shall arise upon the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of ownership interest in grantee to an unaffiliated party or person which results in a material change of the composition of its board of directors and executive level management. Except that no consent shall be required for any sale, transfer, or assignment of ownership, control or obligations to an entity that grantee controls, is controlled by, or is under common control with or to any entity which acquires or succeeds to all or substantially all of the business or assets of grantee whether by consolidation, merger, sale or otherwise, or in connection with a financing transaction, provided that at least 30 days prior to such transfer or change of control, grantee provides written notice to the city of such transfer.

B. *Indemnification and hold harmless.*

1. The telecommunications company and/or utility owner shall indemnify the City of

Memphis and their officers, employees and agents, and hold them harmless to the maximum extent allowed under Tennessee law for any and all claims arising from the telecommunications company's use of the city's right-of-way to install, operate and/or maintain telecommunications systems, including claims by third parties, and including attorneys' fees and all other costs of preparing for and defending against such claims, regardless of any negligence or fault of the city in the design, construction and maintenance of the rights-of-way.

2. Without limiting the foregoing, the telecommunications company shall hold the City of Memphis, and their officers, employees and agents, harmless, to the maximum extent allowed under Tennessee law, for any personal injury or property damage, including interruption of service or loss of business, incurred by the telecommunications company, or its officers, employees or agents, arising from the city's construction, reconstruction, operation or maintenance of the city's right-of-way, regardless of any negligence or fault of the city in the design, construction and maintenance of the rights-of-way.

3. The city agrees to give grantee prompt and reasonable notice of any claims or lawsuits; and grantee shall have the right to investigate, compromise, intervene and defend same to the extent of its own interest. Notwithstanding any provision of this section to the contrary, the above indemnification shall not apply to any judgment or liability resulting from the gross negligence or willful misconduct of the city. The terms and provisions contained in this section are intended to be for the benefit of the city and grantee, and are not intended to be for the benefit of any third party. The city shall have the right to participate or conduct the defense of its interests in any proceeding, and thereby assume risks and liabilities for its own acts or omissions.

C. *Insurance.* The telecommunications company shall at all times have and maintain, and upon the request of the city shall provide written proof of liability insurance policies containing, at a minimum, the following insurance coverage:

1. All such liability insurance policies shall provide liability coverage sufficient, at a minimum, to match the city limits of liability under city ordinances. These limits are currently set at $1,000,000.00 combined single limit, bodily injury and for real property damage in any one occurrence and $5,000,000.00 aggregate.

2. Grantee shall also file with the city a certificate of insurance for a comprehensive automobile liability insurance policy written by a company authorized to do business in the State of Tennessee, for all owned, non-owned, hired and leased vehicles operated by grantee, with limits no less than $1,000,000.00 each accident, single limit, bodily injury and property damage combined, or evidence of self-insurance.

3. Grantee shall also maintain and specifically agrees that it will maintain throughout the term of the authorization, workers compensation and employers liability, valid in the state, in the minimum amount of the statutory limit for workers compensation.

4. All liability insurance required pursuant to this section shall be kept in full force and effect by grantee during the term of any right-of-way agreement or other authorization and until after the removal of all poles, wires, cables, underground conduits, manholes and any other conductors and fixtures installed by grantee in the public rights-of-way incident to the maintenance and operation of the telecommunications system as defined in this chapter.

5. All policy limits set forth herein are subject to change by order of the city's chief administrative officer without amendment of this chapter.

6. All such liability certificated of insurance shall name the City of Memphis as an additional insured for the purposes of fulfilling the telecommunications company's obligations under the use and occupancy agreement. Grantee shall provide the city a minimum of 30 days written notice of the intent to amend or cancel by either grantee or the insuring company.

D. *Surety bond.* The telecommunications company or utility owner shall furnish a surety bond, issued by a company licensed to do business in the State of Tennessee, and in such form and amount acceptable to the city, guaranteeing full and faithful performance of the terms and conditions of the use and occupancy agreement, including without limitation the repair and restoration of the right-of-way premises, the payment of any monetary compensation remaining due to the city for use of the city's streets and rights-of way, and the completion of any installation or relocation of telecommunications systems. The city engineer shall reasonably determine the appropriate amount of the bond to safeguard the interests of the city with regard to damage to public property by considering the size of the project, the amount of future compensation due the city and the estimated cost of removing grantee's property in the event of a default or failure to relocate grantee's telecommunications systems. The bond may be reduced by the city engineer during the term of a right-of-way agreement upon request of grantee. Any decision of the city engineer as to the size of the bond may be appealed to the city's chief administrative officer, whose decisions shall be final.

E. *Relocation or removal.*

1. If, at any time, the city reasonably determines that any telecommunications systems need to be relocated within, or removed from, the city's streets and rights-of-way for any reason related to the use, operation, maintenance, construction, reconstruction, modification or redesign of any such streets and rights-of-way, the telecommunications company or utility owner shall relocate or remove the facilities within 180 days as directed by written notice from the city engineer. City engineer shall work with grantee to identify and designate an alternate location for any impacted facilities and shall work with grantee to limit any related service disruptions. Such decision to ask grantee to remove or relocate grantee's facilities in order to accommodate the activities of the city shall be thoughtfully considered and the city shall use reasonable efforts to avoid repeated impact on grantee's facilities.

2. All such costs of relocation or removal shall be borne solely by the telecommunications company or utility owner and not by the city, except as the city may otherwise agree in accordance with a special condition of the right-of-way agreement executed prior to the installation, or as the city may subsequently agree in writing under a utility relocation contract, but only if the state reimburses the city for such relocation expenses or if city requires grantee to relocate the same facilities on a non-emergency basis more than once in a 24 month period.

3. The telecommunications company or utility owner shall complete the relocation or removal within 180 days after written notice, or within such additional time as the city engineer may authorize in writing. Upon the failure of the telecommunications company or utility owner to relocate or remove its telecommunications systems within the specified time, or such additional time as the city engineer may authorize in writing or grantee is not working diligently to complete the relocation or removal, upon 30 days written notice the telecommunications systems shall be deemed to be abandoned by the telecommunications company or utility owner, and the city may hold the telecommunications company or utility company liable for the costs of removing such facilities from the city's streets and rights-of-way.

4. To the extent that the telecommunications company or utility owner is required to remove telecommunications systems from the city's streets and rights-of-way, the telecommunications company shall to that extent be relieved of any further obligation under the right-of-way agreement to compensate the city for the use of the city's streets and rights-of-way. To the extent that the telecommunications company is allowed to relocate telecommunications systems to another location within the city's streets and rights-of-way, the telecommunications company or utility owner may elect either to remain under the terms of compensation specified in the right-of-way agreement, or the telecommunications company or utility owner may choose to enter into a new right-of-way agreement for the new location.

F. *Duration and renewal of right-of-way agreements.*

1. *Initial term.* The right-of-way agreement for the installation of telecommunications systems within the city's streets and rights-of-way shall have an initial term of up to five years at the option of the telecommunications company or utility owner, without any necessity of approval from the city council. For any telecommunications system that occupies more than 20 lane miles of the city's streets and rights-of-way term may qualify for term of up to 20 years; city council approval by resolution shall be required for any such systems. Other installations may at their option seek council approval for terms longer than five years, which approval shall be within the legislative discretion of the council.

2. *Renewal options.* Upon the expiration of the initial term of the right-of-way agreement, the telecommunications company shall have an option to renew the right-of-way agreement for one additional term of five years, or longer term approved by the city council, but shall be subject to the applicable rate of compensation in effect as of the date of renewal. In no event shall any initial term or any successive renewal term exceed a combined total of 20 years. If, on the expiration date, grantee shall not be in default under any authorization, license, contract or permit, such authorization, license, contract or permit shall be deemed extended on an interim basis until terminated, renewed or renegotiated. Said interim extension period shall not extend beyond a date 60 days after the expiration date.

(Ord. No. 5551, Art. VII, 11-18-2014)

Sec. 6-24-8. Compensation.

A. *Compensation requirement.*

1. No telecommunications company or utility owner shall be permitted to install or maintain any telecommunications system within city's streets and rights-of-way except upon the payment of compensation for the use and occupation of such rights-of-way, as adopted by the city council from time to time.

2. The city may, at its option, receive the compensation for use of city's streets and rights-of-way in the form of money or as in-kind compensation in the form of telecommunications facilities or services, or both; provided however the city may only use such facilities or services in the performance of its governmental and public services.

B. *Rate and method of compensation.*

1. The rate of monetary compensation shall be as established by the city council from time to time by ordinance for such time periods determined by the council by affixing an addendum to this chapter. In establishing the monetary rate of fair and reasonable compensation for use and occupation of city's streets and rights-of-way, the city council shall consider the following factors:

a. The city's costs in regulating the right-of-way activities of telecommunications companies and utility owners,

b. The extent the city's streets and rights-of-way are used and occupied by such companies and owners,

c. The proportionate share of the city's cost of making and keeping in repair and policing the city's streets and rights-of-way to be assigned to such companies and owners in order to defray the total amount of the city's right-of-way costs to provide right-of-way services to such companies and owners,

d. The cost of providing the benefit to such companies and owners of the use and occupation of the city's streets and rights-of-way for installation of their telecommunications facilities, including, but not limited to, savings on construction costs due to ease of installation in established rights-of-way conveniently located in close proximity to their customers and businesses, comparable rates charged for the use and access, the amount of right-of-way available in certain locations and demand for certain locations. Information pertaining to these factors shall be presented to the council by the city administration and additional information or comments may also be presented to the council by any other interested parties.

e. Any other factors the council deems relevant.

2. *Small cell site fees.* The rate of monetary compensation for fees related to small cell sites shall be established by the city council, and shall be based on fair and reasonable compensation for application review and use and occupation of the city's rights-of-way. The initial fee structure plan, Appendix A, may be modified or revised by resolution. The fee structure shall be reviewed from time to time, but no less than annually, by the city.

C. The method of valuation for in-kind compensation and the valuation for the purposes of a right-of-way agreement shall be as established by the city council with input from the city's chief information officer.

D. *Total amount of compensation.* The total amount of compensation due for use of the right-of-way for a shall be fixed as of the date of execution of the use and occupancy agreement, in accordance with the rate and method of valuation of in-kind compensation established by the city council and in effect at that time.

E. *Unit measure of compensation.*

1. Compensation shall be stated and computed on a measured unit of right-of-way used by a telecommunications company and may be based:

   a. On the cubic feet of right-of-way such provider occupies in the public right-of-way, including clearance zones required by this chapter or by applicable industry and safety standards, or

   b. On a unit charge for each linear foot conduit of four inches or less or the equivalent thereof if innerducts containing fiber optic cable are installed without conduit or if fiber optic cable is buried in the right-of-way without a conduit or an innerduct, except that there shall be no charge for any innerduct or fiber optic cable provided to the city as in-kind compensation.

2. The linear foot charge for conduit, innerduct or cable shall be calculated on a pro rata basis. For example, the charge for a five-inch conduit or five inches of combined innerducts or cables shall be one and one-quarter times the charge for a four-inch conduit or four inches of combined innerducts or cables.

3. *In-kind compensation.* If the city's chief administrative officer chooses to receive in-kind compensation under a right-of-way agreement, it shall provide the telecommunications company with a list of the specific telecommunications facilities and/or services that it wishes to obtain. If the telecommunications company agrees to provide such in-kind services, the value of such in-kind compensation, as determined in accordance with the method of valuation established by the city council, shall be subtracted from the total amount of monetary

compensation due for use of the right-of-way and the remaining balance, if any, shall be remitted as monetary compensation.

(Ord. No. 5551, Art. VIII, 11-18-2014; Ord. No. 5678, § 4, 2-6-2018)

Editor's note—Appendix A is not set out herein, but is on file with the city.

Sec. 6-24-9. Policy and methodology for monetary rate setting.

The council shall establish monetary compensation that is fair and reasonable considering the city's annual costs that are reasonably related to making the city's streets and rights-of-way available to telecommunications companies and utility owners for the installation of their telecommunications facilities. The rate of monetary compensation established should be within a zone of reasonableness rather than a rate determined with mathematical precision. To this end the city council adopts the fully allocated cost and incremental cost methodologies to define the upper and lower ranges of aggregate costs to be considered in setting a rate or rates for right-of-way compensation. The council finds the discussion and analysis of these economic concepts by the Federal Communications Commission in its rate order governing the FCC's rate making activities in the closely analogous area of just and reasonable cost based pole attachment rates under the Pole Attachment Act, 47 U.S.C. § 224(d) to be instructive even its provisions are not binding on the city. In the matter of implementation of Section 224 of the Act A Nat'l Broadband Plan for Our Future, 26 F.C.C. Rcd. 5240 (Apr. 7, 2011) ("2011 Rate Order"). While the Pole Attachment Act does not apply to municipal governments and municipal utilities, it is instructive of accepted economic methods for determining just and reasonable cost based rates for the use by non-owning telecommunications companies of telephone poles, fiber optic conduit, rights-of-way and other telecommunication infrastructure owned by investor owned utilities and telephone companies.

Under the FCC's 2011 Rate Order the FCC approved an approach which established a zone of reasonableness for an access fee as that compensation that was based on a facilities owner's costs falling between an "upper bound rate" and a "lower bound rate", the commission reasoned that such an approach balanced the goals of increased competition with the historical role of proportionate cost recovery to facilities owners and their ratepayers. *Id.* ¶¶ 138-146.

Under the FCC's 2011 Rate Order, it defined the "upper bound rate" as that rate derived from its telecom rate formula applied to a facilities owners' fully allocated costs using a fully allocated cost methodology, which recovers a full range of costs of the facilities owner, such as (i) operational costs related to the pole, conduit or right-of-way, (ii) capital cost of acquiring the pole, conduit or right-of-way, and (iii) borrowing costs and depreciation, which is the method presently used by MLGW and other municipal utilities in Tennessee and in other states. *Id.* at ¶ 142. The FCC defined the "lower bound rate" as "a rate that covers the facilities owners' incremental cost associated with an attachment," which partly incorporates the economic cost causation principles advocated by the telecommunications industry. Under a strict application of cost causation principles, if a customer is causally responsible for the incurrence of a cost, then that customer (the cost causer) pays a rate that covers this cost. Under this theory that is usually espoused by telecommunication providers seeking access to another's facilities, sometimes called the "free rider" theory, there is very little incremental cost caused by the "free rider" since most costs would be incurred by the owner if the "free rider" was not present.

Even though the FCC found some support in economic theory for the application of strict cost causation principles in the lower bound rate the FCC did not follow the incremental cost causation method exactly as advocated by the non-incumbent telecommunication provider industry; rather, it included maintenance and administrative expenses in its calculation of allowable costs under its "lower bound rate", even though the attacher might not be the cost causer with respect to all the operating costs that might be incurred by a facilities owner, to avoid shifting the full operating cost burden to the owning utility's ratepayers. *Id.* at ¶ 146.

Cost based rate formulas used by Tennessee municipal electric power providers, such as MLGW, for access to their poles and telecommunications facilities is one of the most relevant illustrations of a "full cost" allocation model, which more evenly spreads the cost of ownership of the poles or telecommunications facilities among all users, as a 2007 study by the Tennessee Advisory Commission on Intergovernmental Relations found. Under this formula the cost of a facilities owner's telecommunications infrastructure is the initial capital outlay for a telephone pole, fiber optic conduit, rights-of-way or other telecommunication infrastructure, minus accumulated depreciation. The carrying charge rate is a

composite rate that reflects separate carrying charge rates for the costs of owning and maintaining such facilities. See, e.g., 1987 Rate Order, 2 FCC Rcd. at 4391, ¶ 25; 2001 Order on Reconsideration, 16 FCC Rcd. at 12121, ¶ 28. The carrying charges include a facilities owner's administrative, maintenance, interest and depreciation expenses, a return on investment (a factor not applicable here), and taxes.

The council finds that the reasoning and rationale set forth in the FCC's 2011 Rate Order for defining the range of costs to be considered in setting rates is sound and addresses many of the policy considerations applicable to the city. The council therefore adopts a rate setting methodology that bases right-of-way compensation for all relevant time periods on the fully allocated cost of the city on the upper end of a range of reasonableness and the incremental cost of the city on the lower end of such range.
(Ord. No. 5551, Art. IX, 11-18-2014)

Sec. 6-24-10. General installation policies and procedures.

A. *Timing of installations.* To minimize interference with the safe use, operation and maintenance of the freeway, and as reasonably necessary to manage the right-of-way, the city engineer may limit the timing of access so that, to the extent possible, there is no more than one telecommunications system installation or repair project underway at any given time on any particular segment of a city right-of-way.

B. *Location and alignment criteria.*

1. *General location policy.* To minimize interference with the safe use, operation and maintenance of the city's streets, longitudinal installations of telecommunications systems and facilities shall be located outside the traveled way and as near to the outer edge of the right-of-way line as is reasonably practical; provided, however, that alternative locations within the right-of-way, including the traveled way, may be permitted where the city engineer determines that it is not reasonably practical to locate the telecommunications systems and facilities along the outer edge of the right-of-way and that the use of the alternative location is consistent with the city's goal to minimize interference with the safe use, operation and maintenance of the streets and highways.

2. *Horizontal and vertical clearance zones.* As a general rule, subsequent installations of underground telecommunications systems and facilities outside the traveled way shall be located not less than two feet from any previously installed telecommunications system or other utility installation, if any, within the city's right-of-way or such greater clearance zones required by utility codes as they relate to electrical, water, gas or sewer systems. Exceptions may be considered on a case-by-case basis and as may be reasonably necessary to manage the city's right-of-way and where the city engineer determines that it is not reasonably practical to locate the telecommunications systems as herein provided.

3. *Depth.* All underground telecommunications systems and facilities shall be located and installed in accordance with a minimum depth of 36 inches for fiber optic facilities and 24 inches for all other facilities (such as copper facilities), or at such greater depths as the city engineer may require as a special condition of a right-of-way agreement or as shall be necessary to comply with the horizontal and vertical clearance zone requirement. Exceptions may be considered on a case-by-case basis and as may be reasonably necessary to manage the city's right-of-way and where the city engineer determines that it is not reasonably practical to locate the telecommunications systems as herein provided.

4. *Access points.* In all future installations, devices for accessing underground telecommunications systems and facilities for routine service or site visits shall not be allowed within the traveled way, except where the city engineer determines that it is not reasonably practical to locate such systems outside the traveled way. Existing access points within the traveled way shall be permitted to exist as long as such access points do not create a hazard for the traveling public.

5. *Support facilities.* All above-ground support facilities for underground telecommunications systems and facilities shall be located outside the traveled way and as near to the outer edge of the right-of-way line as is reasonably practi-

cal. No above-ground facility may be located on the traveled way without the express written approval of the city engineer.

6. *Attachment to roadway and roadside structures.* The attachment of telecommunications systems and facilities to roadway and roadside structures (including without limitation bridges, overpasses, underpasses, culverts and tunnels) shall be permitted only with the prior written approval of the city engineer.

(Ord. No. 5551, Art. X, 11-18-2014)

Sec. 6-24-11. Installation and maintenance requirements.

A. *General standards of care.*

1. The telecommunications company shall take care not to install any telecommunications system in such a manner as to create a potential hazard to life, health or property or in such a manner as to impair the use, operation and maintenance of the city's rights-of-way.

2. The telecommunications company shall cooperate with the city engineer to identify locations for its telecommunications system or facilities within the city's right-of-way that will, to the extent it is reasonably practical, minimize any potential conflict with the future expansion or reconstruction of the right-of-way. The telecommunications company shall also take care to install all telecommunications systems or facilities in such manner as to require only minimal maintenance within the city's right-of-way after installation.

B. *Tennessee one-call service.* Telecommunications companies, utilities and private entities accessing the city's rights-of-way shall comply with the Tennessee one-call service as provided in T.C.A. § 65-31-101 et seq., or as it may be amended.

C. *Permits and approvals.* The telecommunications company shall be responsible for obtaining all approvals and/or permits that may be required for activities authorized under this rule, including without limitation all environmental permits and federal regulatory approvals or permits, if applicable.

(Ord. No. 5551, Art. XI, 11-18-2014)

Sec. 6-24-12. Minimum installation and maintenance controls.

The following minimum controls shall apply to the installation, servicing and maintenance of all telecommunications system within city's rights-of-way, in addition to such other requirements as the city engineer may provide as a general or special condition of the right-of-way agreement:

A. *Installation and maintenance plan.* Before commencing any installation, servicing or maintenance of a telecommunications system, the telecommunications company shall submit an installation and maintenance plan to the city engineer for review and approval within 14 days, and upon approval such plan shall be made a part of the right-of-way agreement. At a minimum, the installation and maintenance plan shall specify:

1. The location and method of installing each part of the telecommunications systems and facilities within the right-of-way;

2. The means by which access to and within the right-of-way shall be accomplished for the purpose of installing, servicing and maintaining each part of the telecommunications systems and facilities, including provisions for ingress and egress, parking of vehicles and equipment, and storage of materials;

3. The means by which the telecommunications company will provide for the control of traffic on the traveled way, if needed, in the course of installing, servicing or maintaining any part of the telecommunications systems and facilities;

4. The schedule for completing the installation of the telecommunications systems and facilities, or parts thereof, within the right-of-way.

B. *Preservation of pavement structure.* Open cutting or trenching of the pavement structure of a street, highway or roadway, including without limitation the traveled way and shoulders, if any, shall not be permitted. Wherever the city engineer permits a crossing of the pavement structure of a street, highway or roadway in

accordance with this chapter, the crossing shall be accomplished by boring or other untrenched method as approved by the city engineer. Open cutting or trenching of the pavement structure of a street, highway or roadway may be permitted in special circumstances where there is no reasonably practical alternative means of access and the telecommunications company has made adequate provisions for controlling access to the work zone, directing traffic, and protecting the safety of workers and the traveling public, as specified in the installation and maintenance plan approved by the city engineer.

C. *Access to right-of-way for installation and maintenance.* As far as it is reasonably practical, all telecommunications systems should be designed and located in such a manner that they can be installed, serviced and maintained without direct access thereto from the traveled way. Such direct access may be permitted in special circumstances where there is no reasonably practical alternative means of access and the telecommunications company has made adequate provisions for controlling access to the work zone, directing traffic, and protecting the safety of workers and the traveling public, as specified in the installation and maintenance plan approved by the city engineer.

D. *Parking of vehicles.* The telecommunications company shall not be permitted to park vehicles and equipment or to store materials on the city's right-of-way without express prior approval by the city engineer, except as may be required during actual installation and repair operations and while all required traffic controls are present and in place.

E. *Traffic control.*

1. All traffic control signs or other traffic control devices that the telecommunications company may use in the course of any installation, servicing or maintenance of a telecommunications systems shall comply with the provisions of the Manual on Uniform Traffic Control Devices, T.C.A. § 55-8-153 and City Code sections 36-41 and 36-42.

2. If any installation, servicing or maintenance project is anticipated to significantly impede the flow of traffic on a divided street or roadway or on a major thoroughfare, the telecommunications company shall arrange for law enforcement officers having appropriate enforcement authority to be present to ensure the safe flow of traffic or as may be reasonably required in the installation and maintenance plan approved by the city engineer where access to the work zone has been permitted from the traveled way or areas appurtenant to the traveled way, except as the city engineer may otherwise expressly permit or require where the city engineer determines that it is not reasonably practical for grantee to comply with this requirement. In any event, except in emergency situations the telecommunications company may not conduct any such work within the traveled way without giving specific advance notice thereof to the city engineer, in the manner and at the times required by this chapter.

3. *Advance notice of installation or maintenance work.* Before performing any non-emergency servicing or maintenance of a telecommunications system at any location within traveled way or areas appurtenant to the traveled way the telecommunications company shall give at least two work days advance written or facsimile notice thereof to the city engineer, if timing of such work deviates from the plan in the approved permit. Advanced notice shall not be required for work associated with routine customer trouble reports of two hours or less. City engineer may waive the advance notice requirement,

F. *Emergency maintenance or repair.* Compliance with the advance notice requirements of subsection E. of this section is not required of any person responsible for emergency excavation or demolition, for repair or restoration of service or to ameliorate an imminent danger to life, health, or property; provided, that such person gives the city engineer as soon as practicable, and written or facsimile notice thereof not less than 48 hours after the occurrence of an event

requiring emergency maintenance or repair of a telecommunications system within the city's right-of-way if such facilities have not been restored in its original location. City shall provide prior notice, if possible, to grantee if it must move its telecommunications systems due to an emergency and allow grantee the opportunity to move such telecommunications systems. If this is not possible, city will contact grantee as soon as is practicable and inform grantee of any actions taken by city to the telecommunications system.

G. *Cessation of work for public safety.* If the telecommunications company fails to comply with the traffic control plan or any other provision of the installation and maintenance plan, or if any activity of the telecommunications company within the city's right-of-way interferes with the safe and efficient use of the travelled way as determined by the city engineer, the telecommunications company shall immediately cease such activity upon notice being given by the city engineer, and the telecommunications company shall thereafter work with the city engineer to bring its activities into compliance with the installation and maintenance plan and/or implement such additional safety requirements as may be specified by the city engineer.

H. *Trees.* With regard to new installations only, cutting or removal of trees along the city's rights-of-way shall not be permitted without the express approval of the city engineer.

I. *Hazardous substances.* The telecommunications company shall not place, install or deposit any hazardous substance or hazardous waste within or on any part of the state freeway or state freeway right-of-way. If at any time the telecommunications company causes or allows a spill of a hazardous waste or substance within the freeway right-of-way, the telecommunications company shall remain solely liable for the clean-up and removal of such hazardous waste or substance. The telecommunications company shall indemnify the city and the city engineer, and their officers, employees and agents, and shall hold them harmless against any and all claims or expenses of any kind related to the deposit, spillage and/or clean-up of any such hazardous wastes or substances.

J. *Repair and restoration of premises.*

1. The telecommunications company shall, as directed by and in a manner satisfactory to the city engineer, promptly replace or repair any portion of the pavement, shoulders, structures, ramps, guardrail, drainage, or any other part of the freeway that may have been damaged in the course of any work within the city's right-of-way.

2. Upon the completion of any installation, replacement, repair or relocation of telecommunications system within the city's rights-of-way, the telecommunications company shall promptly restore the premises to a condition similar to that which existed prior to such work, in a manner satisfactory to the city engineer.

3. The telecommunications company shall remain responsible for maintaining any excavation or trench on or along any city right-of-way, as directed by and in a manner satisfactory to the city engineer.

K. *As-built drawings.* "As-built" drawings that adequately demonstrate the location, size length and nature of all underground and aboveground telecommunications systems located on, over or under the city's right-of-way shall be submitted by a telecommunications company to the city engineer within 120 days after completion of construction of such systems, if drawings are not submitted pursuant to section 6-24-12(A). Such drawing shall be in .pdf or other accepted industry format as reasonable to the size and scale of the project. Where the system is installed in duct, conduit or on poles owned by another entity, the owner shall be identified and the overall length, size, and shape of system installed in the shared facilities shall be indicated. A telecommunications company shall update such drawings within 60 days whenever material changes are made to such company's system which impact the public right-of-way. If so marked, all drawings and plans shall be treated as confidential and proprietary as applicable to the extent allowed by applicable law, but even if such drawings and maps are not protected

from public disclosure by applicable law, the city shall not post such documents or maps on city websites.

L. *Completion of any installation or relocation.* It shall be the responsibility of the telecommunications company to seasonably submit "as built" drawings of its facilities in the city's right-of-way and to provide other information upon request.

M. *Above ground markers.* Telecommunications companies may install above ground markers to indicate the location of their facilities as long as such markers do create a hazard for the traveling public and are ADA passable.

(Ord. No. 5551, Art. XII, 11-18-2014)

Sec. 6-24-13. Compliance and revocation.

A. In the event that the city engineer determines that the telecommunications company is in violation of any material provision of this chapter or any right-of-way agreement, the city engineer may order the telecommunications company to comply.

B. In any case not presenting any imminent threat to public safety, as determined by the city engineer, the telecommunications company shall be given 30 days, or such other reasonable time as the city engineer may provide, within which to correct the noncompliance.

C. In any case presenting an imminent threat to public safety, as determined by the city engineer, the telecommunications company shall correct the noncompliance promptly as reasonably directed by the city engineer.

D. If a telecommunications company fails to comply with any order or directive given by the city engineer or otherwise violates any provision of this chapter, after the above-stated notice and opportunity to cure, then the city may take any action authorized by law, withholding of all other licenses and permits until the violation is cured, or repeal of any permit or authorization previously granted or filing a suit in court to compel compliance. If, in any such proceeding, default is finally established, the telecommunications company shall be required to pay to the city the reasonable expenses incurred in the prosecution of such suit and all the city's damages and costs (including attorneys' fees). A telecommunications company that in good faith disputes a finding that it is in default, and that promptly files a court proceeding challenging the determination may continue to provide service pursuant to the terms of any permit or authorization unless otherwise ordered by the court.

E. A violation of the provisions of this article after the above-stated notice and opportunity to cure shall subject the offending telecommunications company to an initial fine of $50.00. Each day of continued violation of this chapter constitutes a separate offense and will subject the offending telecommunications company to continuing fines, above the initial fine, of $50.00 per day for each day that the a telecommunications company fails to comply with any order or directive given by the city engineer to comply with any provision of this chapter.

F. The telecommunications company shall not be entitled to any compensation, lost profits, consequential damages or reimbursement of suit expenses or attorney's fees in the event of a revocation of a right-of-way agreement or enforcement action taken by the city to enforce this chapter.

(Ord. No. 5551, Art. XIII, 11-18-2014)

Sec. 6-24-14. Right-of-way fund.

A. There is hereby created a right-of-way fund, which shall be used exclusively to help defray the costs associated with the acquisition, management, maintenance and policing of the city's rights-of-way, including but not limited to the costs of preparing studies of the right-of-way and costs of any special committee and the costs of staff and other reasonable expenses necessary to administer the provisions of this chapter.

B. All payments for the use of the right-of-way made pursuant to this chapter shall be deposited into the fund, less reasonable administrative costs incurred by the city in connection with the collection of fees owed.

C. Operating transfers shall be made from this fund to other funds of the city incurring costs associated with right-of-way management. Such operating transfers will be established in accordance with the city's annual appropriation ordinances, adopted from time to time.

(Ord. No. 5551, Art. XIV, 11-18-2014)

Sec. 6-24-15. Smart city fiber access system.

A. *Definitions.*

Annual right-of-way access fees means the monetary fees established under City Ordinances Nos. 5551 and 5734 or any subsequently adopted ordinance amending such monetary fees.

Commencement Date means the date specified in the development commitment by which the telecommunications company will begin construction of the fiber optics system.

Cable or video services provider shall mean any entity, person or joint venture authorized to provide cable or video services over a cable system or video service network facility in the city, pursuant to Title VI of the Communications Act of 1934, compiled in 47 U.S.C. § 521 et seq., and/or under T.C.A. § 7-59-303, et seq. and/or under Section 17 of the City's Home Rule Charter.

Development commitment means a binding written agreement between the city and a telecommunications company approved by the chief administrative officer pursuant to authority granted by this article, the material terms of which have been adopted by the city council. In addition to other requirements, the *Development Commitment* will contain a commencement date, a date for completion, and requirements to submit periodic status reports to the city.

Development commitment effective date means the date on which a *Development Commitment* is approved by the chief administrative officer and made binding between the city and a telecommunications company.

Designation application means an application submitted by a telecommunications company to the city for purposes of obtaining a designation of its fiber optics system as a smart city fiber access system, which application includes a development commitment.

Initial qualification notice means a written notice from the chief administrative officer to a telecommunications company that has submitted a designation application and a development commitment, informing the telecommunications company that its fiber optic system meets the qualifications for being designated as a smart city fiber access system.

Physical connection point means a physical connection point that is located on the telecommunications company network reserved and made available by the telecommunications company to the city without cost to the city to enable the city or a related agency or entity to implement at the city's cost a private network which exclusively supports the delivery of city-related uses by connecting a city-provided optical network terminal (ONT) to the telecommunications company's network. The telecommunications company will be responsible for managing the ONT.

Low-income premises means to all premises located in the Census Tracts of the City of Memphis listed below where the median household income is lower than the median household income of the City of Memphis as of the date of enactment of this section. Specifically, low-income premises, as of the date of this section, includes all premises within the following Census Tracts, as identified in the Federal Census of 2020: 200, 300, 400, 600, 700, 800, 900, 1100, 1200, 1300, 1400, 3400, 1500, 1900, 2000, 2100, 2400, 2700, 2800, 3600, 3000, 3700, 3200, 6400, 3800, 3900, 4500, 4600, 5000, 5300, 6000, 5500, 5600, 6200, 5700, 5800, 5900, 6500, 6600, 7000, 6700, 6800, 6900, 7300, 7400, 7500, 7810, 7821, 7822, 7900, 8000, 8110, 8120, 8200, 9700, 8700, 8800, 8900, 9100, 9800, 9901, 10000, 9902, 10110, 10210, 10120, 10220, 10300, 10500, 10720, 10610, 10620, 10630, 10810, 11010, 11020, 11100, 11200, 11300, 11400, 11500, 11600, 20101, 11700, 11800, 20521, 20511, 20512, 20532, 20523, 20524, 20542, 20610, 21111, 21731, 21312, 21724, 21725, 21726, 21710, 21721, 21732, 21746, 21900, 22022, 22023, 22111, 22112, 22130, 22210, 22321, 22220, 22310, 22322, 22330, 22600, and 22700. Following the date of enactment of this section, the city will adjust such Census Tracts in accordance with the results of each decennial census.

Minimum service means one (1) gigabit per second (Gbps) symmetrical broadband service through June 30, 2028.

Permitting and engineering fees means permitting and engineering fees determined by the city engineer in accordance with Ordinance Nos. 5551 and 5766.

Premises means any parcel of land with one or more permanent structures used for residential or business purposes that is accessible from the city's public right-of-way.

Re-qualification notice means a written notice from the chief administrative officer to a telecommunications company intending to obtain a re-designation for its fiber optic system as a smart city fiber access system in accordance with Section (D)(5) of the present Ordinance, which notice will inform

the telecommunications company that its fiber optic system meets the qualifications for being re-designated as a smart city fiber access system.

Revised minimum service means the revised broadband speed that is established by resolution of the council on or after July 1, 2028, applicable to smart city fiber access systems. The revised minimum service shall not exceed the greater of (i) 150 percent of the then-effective minimum service or, if available, (ii) the average of the highest tier of broadband download speeds offered by fixed broadband providers as reported in the most recently published report of the Federal Communications Commission. The revised minimum service shall become applicable to smart city access systems following one year's written notice. Thereafter, the city may establish a new revised minimum service standard for smart city fiber access systems every five years after July 1, 2028, to be effective for smart city fiber access systems in each case upon one year's written notice to the smart city fiber access systems.

Telecommunications company means any cooperative, corporation, partnership, limited liability company, or individual that owns and operates fiber optic or cable facilities and desires to make application to install and/or operate a smart city fiber access system in the city.

B. *Minimum requirements for smart city fiber access system.*

1. Application for designation as a smart city fiber access system.

   A telecommunications company that desires that its fiber optics system be designated as a smart city fiber access system shall complete a designation application provided by the city that will include at least the following information:

   a. High-level design showing:
      i. Overall network footprint;
      ii. Number and locations of all premises passed by the fiber optics system;
      iii. Number and locations of all low-income premises passed by the fiber optics system;
   b. Construction schedule showing, at a minimum, commencement date and date for completion;
   c. Commitment to meet each of the requirements for qualification as a smart city fiber access system as set forth in section (D)(2);
   d. Signed development commitment in form and substance approved by the chief administrative officer, the material terms of which have been adopted by the city council..

2. Initial qualification as smart city fiber access system.

   In order to initially qualify for the designation as a smart city fiber access system, a telecommunications company must include in the development commitment a commitment to construct and complete, within a specified period of time approved by the chief administrative officer and specified in the development commitment, a fiber optics system in the city with the following characteristics and service opportunities:

   a. During the period until June 30, 2028, the fiber optics system must initially support the minimum service to all residences served and must support any revised minimum service standard adopted thereafter; and
   b. The fiber optics system must be available to provide the minimum service to the following percentages of the total business and residential premises within the city:
      i. The fiber optics system must be available to at least 60 percent of the residential and business premises within the city; and
      ii. The fiber optics system must be available to at least 60 percent of the low-income premises existing within the city prior to the development commitment effective date; and

c. The development commitment must include a commitment approved by the chief administrative officer to improve the opportunities for broadband access by low-income residents and a commitment for minority participation at all major levels of the project.

d. The fiber optics system must construct at no cost to the city at least 6,000 physical connection points at locations throughout the city, of which at least one-third shall be located within the Census Tracts encompassing the low income premises existing prior to the development commitment effective date; and

e. The fiber optics system must provide to the city internet access at least 100 locations at no cost to the city as approved by the chief administrative officer and specified in the development commitment.

f. Upon finding that the telecommunications company has demonstrated that its fiber optics system will satisfactorily meet the requirements for qualification as a smart city fiber access system, the chief administrative officer will provide the telecommunications company an initial qualification notice. Upon the issuance of an initial qualification notice, the telecommunications company shall become eligible to enter into a smart city fiber access right-of-way agreement with the city. The effective date of such agreement will be the date of the initial qualification notice or such later date agreed to by the city and the telecommunications company.

g. Notwithstanding any other provision of this article to the contrary, any cable or video system of a cable or video services provider, as defined herein, or of any other telecommunications provider that is covered by Title VI of the Communications Act of 1934, compiled in 47 U.S.C. § 521 et seq., and/or by T.C.A. § 7-59-303, et seq. shall not qualify as a smart city fiber access system unless such cable or video services provider or other entity or person provides services over its cable system or video service system that are associated with or classified as non-cable or non-video services under federal law including but not limited to telecommunications services and internet access services for which it is subject to pay annual right-of-way access fees under City Ordinance Nos. 5551 and 5734. A designation of any cable or video services provider as a smart city fiber access system shall exempt such providers from payment of annual right-of-Way access fees under city Ordinance Nos. 5551 and 5734, if any, but shall not supplant, displace alter or reduce, in whole or part, the authority of the city to collect or the obligation of a cable or video services provider to pay franchise fees on a percentage of such provider's gross revenues derived from the operation of its cable or video service system pursuant federal or state law or pursuant to a separate franchise or right-of-way agreement.

3. Continued qualification as smart city fiber access system.

A fiber optics system that has initially qualified as a smart city fiber access system pursuant to section (D)(2). must meet the following requirements by the dates specified to continue its designation as a smart city fiber access system:

a. By the date two years after the commencement date, the fiber optics system must be available to at least 20 percent of the residential and business premises within the city

and at least ten percent of the low-income premises existing within the city prior to the development commitment effective date; and

b. By the date three years after the commencement date, the fiber optics system must be available to at least 40 percent of the residential and business premises within the city and at least 30 percent of the low-income premises existing within the city prior to the development commitment effective date; and

c. By the date four years after the commencement date, the fiber optics system must be available to at least 60 percent of the residential and business premises within the city and at least 60 percent of the low-income premises existing within the city prior to the development commitment effective date; and

d. By the date four years after the commencement date, the fiber optics system must provide to the city internet access at least 100 locations at no cost to the city as designated by the city; and

e. By the date four years after the commencement date, the fiber optics system must have delivered to the city, at no cost to the city, at least 6,000 physical connection points for access by the city at its cost, of which at least one-third shall be located within the Census Tracts encompassing the low-income premises existing prior to the development commitment effective date.

f. The fiber optics system must meet revised minimum service standards one year after receipt of written notice of the city's adoption of each revised minimum service standard.

4. Effect of failure to continue to qualify as a smart city fiber access system.

a. If a fiber optics system that has previously qualified as a smart city fiber access system does not meet one or more of the requirements to continue its designation as a smart city fiber access system, the city may, by written notice to the telecommunications company withdraw the designation as a smart city fiber access system. The city's notice will specify the basis for the city's action and the date, no earlier than 30 days after the notice, when the designation will be withdrawn. The city's notice will notify the telecommunications company of its right to a hearing if the telecommunications company disputes the city's conclusion and action and will specify the procedure to be used to request a hearing, including the deadline for requesting a hearing. The hearing will be held before an official designated by the chief administrative officer. If dissatisfied with the results of the hearing, the telecommunications company may appeal the decision to the chief administrative officer, whose decision will be final.

b. As of the date specified in the city's notice, or at such later date upon which the hearing procedure has been completed, if requested, the fiber optic system's smart fiber access right-of-way agreement will terminate and the fiber optics system will be subject to all requirements of Ordinance 5551, including, without limitation, the fees and charges specified in Ordinance 5734 or any later-enacted ordinance establishing fees and charges applicable to fiber optic systems utilizing the city's public rights-of-way.

5. Re-application after withdrawal of designation as smart city fiber access system.

a. Should the designation of a fiber optics system as a smart city fiber access system be lost as specified in subsection (D)(4), the telecommunications company may re-apply one time for re-designation of its fiber optic system as a smart city fiber access system. The telecommunications company submitting such a re-application will have the burden of demonstrating that its fiber optics system meets all

of the requirements for designation as a smart city fiber access system in effect on the date that the re-application is submitted.

c. Upon finding that the telecommunications company has carried its burden of demonstrating that its fiber optics system has satisfactorily met the requirements for re-qualification as a smart city fiber access system, the chief administrative officer will provide the telecommunications company a re-qualification notice. Provided, however, that the chief administrative office may condition the re-designation of the fiber optics system as a smart city fiber access system upon inclusion in the smart city fiber access right-of-way agreement of reasonable reporting requirements and other reasonable conditions that the chief administrative officer deems appropriate to ensure continued compliance with the requirements for a smart city fiber access system. The effective date of the smart city fiber access right-of-way agreement will be the date of the re-qualification notice or such later date agreed to by the city and the telecommunications company. If the chief administrative officer finds that the telecommunication company has not met its burden, the fiber optic system will be denied re-designation as a smart city fiber access system.

C. *Fee and other requirements applicable to smart city fiber access system.*

1. Smart city fiber access right-of-way agreements. The smart fiber access right-of-way agreements shall include such standard and other terms as the chief administrative officer deems appropriate, including the following provisions applicable only to smart city fiber access systems:

    a. Exemption from paying annual right-of-way access fees for the smart fiber access system approved hereunder during the initial and any renewal term of the smart fiber access right-of-way agreement, except as otherwise provided in subsection (D)(2)(g) of this section.

    b. Payment of permitting and engineering fees normally charged pursuant to applicable ordinances that may be structured and narrowly tailored to the construction schedule and requirements of a telecommunications provider and that are reasonably related to the city's cost to provide engineering services for an applicant's network, the amount of which shall be determined by the director of engineering and subject to a written agreement.

    c. A term of up to 20 years, subject to earlier termination for reasons described in the smart city fiber access right-of-way agreement, including the failure of the fiber optics system to continue to qualify as a smart city fiber access system.

    d. The opportunity to renew the smart city fiber access right-of-way agreement for an additional term of up to 20 years, upon a determination by the chief administrative officer that the fiber optics system continues to qualify as a smart city fiber access system, and subject to approval by resolution adopted by council.

    e. Reporting requirements to enable the city to monitor the smart city fiber access system's compliance with the requirements of subsection (D) hereof.

2. Application of standard non-fee provisions of Ordinance No. 5551 and other right-of-way ordinances. Except as otherwise provided in this section or in a development commitment approved under the authority of this section, the standard non-fee provisions of Ordinance No. 5551 and any other right-of-way ordinances of the city shall continue to apply to any smart city fiber access right-of-way agreement, including but not limited to the power and authority of the city's legislative council, the city's administration of the city's right-of-way,

engineering and technical requirements, administrative and insurance requirements, any requirements governing traffic control, safety requirements, removal and relocation of facilities.

3. Application of standard right-of-way agreement terms following termination or expiration of smart city fiber access agreement. If a telecommunication company's fiber optics system continues to occupy any of the rights-of-way of the city following the termination or expiration of a smart city fiber access agreement, the telecommunications company will be required to enter into a standard city right-of-way agreement and will be subject to the fees and other requirements applicable to those using the city right-of-way, including those contained in Ordinance 5551 and Ordinance 5734, as those ordinances may be amended in the future.

D. *Low-income access fund.*

1. Purpose of fund:

   a. There is hereby created a low-income access fund to help defray or subsidize the costs of a telecommunications provider to provide drops for direct connections to a smart city fiber access system for qualifying low-income premises ("Drop Subsidy") to be disbursed to telecommunications providers operating an approved smart city fiber access system on a first-come first served basis up to one-half of the documented cost per drop.

   b. The low-income access fund shall also defray the internal costs of the city to provide outreach and educational programs, either directly and/or through third-party contractors, to help eligible low-income and disadvantaged Memphians access private, city and federal broadband subsidy programs that would aid them in obtaining and maintaining a home broadband connection to a smart city fiber access system. ("Outreach and Educational Subsidy").

2. Initial funding: The council hereby approves a one-time allocation of $7,000,000.00 from available funds of the city to be identified by the city administration and appropriated by resolution of the council as follows:

   a. $3.5 million for the drop subsidy;

   b. $3.5 million for the outreach and educational subsidy.

   If additional funds are contributed voluntarily by individuals, businesses, other governmental entities or non-profit organizations to subsidized drops or outreach/education programs, such funds shall be appropriated by the council equally to augment the drop subsidy and the outreach and educational subsidy or as directed by the donating entity.

3. Administration and accounting. The low income subsidy fund shall be maintained and accounted for by the city as a separate discrete fund to be used until all monies therein are exhausted and only for the purposes specified in this section, unless otherwise provided by the council by resolution, in accordance with procedures and rules promulgated by the city administration.

(Ord. No. 5887, § 3—6, 11-21-2023)

CHAPTER 6-25. CONTROLS, LIMITATIONS AND RESTRICTIONS—OPERATION OF PUBLIC AND PRIVATE UTILITIES OTHER THAN TELECOMMUNICATIONS PROVIDERS

Sections:

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Sec. 6-25-3. Governing law.
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Sec. 6-25-13. Right-of-way fund.

Sec. 6-25-1. Declaration of authority.

The City of Memphis has been delegated, as proprietor, the entire control over the streets, alleys, thoroughfares and rights-of-way located within its corporate limits by

the General Assembly pursuant to Chapter 11 of the Acts of 1879 and subsequent Acts, all of which were preserved by Section 17 of the City's Home Rule Charter. In addition, the city possesses police powers to regulate the use of its streets, alleys, thoroughfares, rights-of-way and public places for the protection of the health, safety and welfare of its citizens. The city acts in its proprietary capacity by enacting this chapter and by authorizing the Mayor to issue authorizations, licenses, permits or easements issued or made pursuant to this ordinance or to enter into any contracts pursuant thereto and as such intends to be bound by the provisions of this chapter and any authorization, license, contract, permit or easement issued or made pursuant to this authorization ordinance as a natural person, except when its duty and obligation to protect the health, safety and welfare of its citizens requires that it act contrary to the express provisions of this chapter or any resulting authorization, license, contract, permit or easement issued or made pursuant to this chapter, since the abrogation or waiver of its police powers by contract or otherwise is contrary to the laws and public policy of this State. Upon adoption of this chapter and subsequent Franchise Licensing Ordinances, the Mayor and those acting at his direction are hereby authorized, empowered and directed to implement the provisions of this chapter and any subsequent Franchise Licensing Ordinances adopted by the council from time to time and to take any and all other steps they deem necessary or appropriate to implement this chapter and any subsequent Franchise Licensing Ordinances adopted by the council from time to time.
(Ord. No. 5807, 11-16-2021)

Sec. 6-25-2. Statement of policy.

A. It is the policy of the City of Memphis to maintain the integrity, operational safety and functions of the city's streets and rights-of-way. It is also the policy of the City of Memphis to regulate and/or license the installation of underground utility systems and related facilities within the rights-of-way of the city; provided, however, that any such access, use and/or occupation of the city's streets and rights-of-way by a utility owner or utility company shall be only allowed if approved by the Memphis City Council and if allowed shall be subject to:

1. The provisions of this chapter and any subsequent Franchise Licensing Ordinances adopted by the council; and
2. Shall be conditioned on the payment of compensation by any utility owner or utility company using and occupying the city's rights-of-way with their utility systems in such amounts determined by the city council from time to time in accordance with applicable law. The city may, at its option, accept monetary compensation or in-kind compensation, or both. Valuation of in-kind compensation shall be calculated in accordance with the method of valuation adopted by the council.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-3. Governing law.

It is the intent of the council that this chapter and any agreement made under the authority of this chapter be governed by and interpreted in accordance with Tennessee law, including but not limited to the City's Charter, T.C.A. §§ 6-54-109—110, 65-4-105 and 107 and by opinions of the Tennessee appellate courts.
(Ord. No. 5807, 11-16-2021)

Sec. 6-25-4. Definitions.

For the purpose of this chapter only the following definitions shall apply:

Anniversary date shall mean each anniversary of the date on which any contract under this chapter is fully executed.

Authorization shall mean the non-exclusive contractual privilege, authorization license or easement granted as provided in this chapter to occupy or use the streets and/or public rights-of-way within the city for the construction, operation and maintenance of any public works or utility system within all or a portion of the city.

Charter shall mean collectively (i) Ordinance No. 1852, Home Rule Charter adopted by Referendum vote on November 8, 1966 (the "Home Rule Charter") and (ii) the Charter of the City of Memphis as enacted in Acts 1879 as amended, to the extent not repealed by the Home Rule Charter.

City shall mean the City of Memphis.

City engineer shall mean the position of city engineer created by the charter or a successor position, or an acting city engineer or the designee of the city engineer.

Confidential information shall mean any trade secrets (as defined below) or other information relating to a grantee that derives economic value from not being generally known to or readily accessible to other persons and is the subject of reasonable efforts to maintain its secrecy. Confidential information shall include, but not be limited to, (i) a grantee's manner of operation, forms of agreements, plans, processes and programs; (ii) information about its finances and financial condition and about the finances and financial condition of clients or other entities affiliated with a Grantee; (iii) research, marketing plans, designs, procedures, formulas, discoveries, inventions, concepts, ideas, specifications, flowcharts, listings of customers, supplies, or analyses; and (iv) information supplied to grantee by other parties which a grantee is obligated to keep confidential. As used herein, "Trade Secrets: shall include any technical or non-technical data or information, design, procedure or improvement that derives economic value, actual or potential, from not being generally known to or readily ascertainable by proper means by the competitors of a grantee. "Confidential Information" shall not include any information which has entered the public domain.

Contract year means with respect to any payments due the city under this authorization ordinance, each 12-month period during the term of any authorization, license, contract, permit or easement issued or made pursuant to this authorization ordinance.

Council shall mean the council of the City of Memphis.

Cover means depth of lop of pipe, conduit, casing or gallery below grade of roadway, ditch or other utility facilities.

Day or *days* shall mean a calendar day or days.

Director of finance shall mean the position of director of finance and administration created pursuant to and under the Charter or a successor position, or an acting director of finance, or the designee of the director of finance.

Encasement. Structural element surrounding a pipe.

Encroachment. Unauthorized use of the city's streets and rights-of-way or easements for signs, fences, utilities, parking, storage, etc.

Gallery. An underpass for two or more utility lines.

Grantee shall mean any utility owner or utility company, other than a telecommunications provider or other exempt provider, operating public works or utility systems using facilities either constructed, owned or leased within the public right-of-way for any purpose.

Manhole. An opening in an underground system which workmen or others may enter for the purposes of making installations, inspections, repairs, connections and tests.

Median. The portion of a divided highway or street separating the traveled ways for traffic in opposite directions.

New utility installation. An initial installation on the city's streets and rights-of-way and the replacement of existing facilities with those of a different type, capacity or design of replacement at a new location on the right-of-way.

Normal. Crossing at a right angle.

Oblique. Crossing at an acute angle.

Pavement structure. The combination of subbase, base course, and surface course placed on a subgrade to support the traffic load and distribute it to the roadbed.

Pipe. A tabular product made as a production item for sale as such. Cylinders formed from plate in the course of the fabrication of auxiliary equipment are not pipe as defined here.

Plowing. Direct burial of utility lines by means of a "plow" type mechanism which breaks the ground, places the utility line and closes the break in the ground in a single operation.

Public right-of-way shall mean real property surface, subsurface and air rights (appurtenant to surface rights) acquired by the city by any lawful means and devoted to transportation of people, goods or information and to the provision of governmental services and includes the surface and that area below the surface which is necessary to support the public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground, utility easement or other public right-of-way. Public right-of-way also includes the surface of any public street, alley, public ground or other public right-of-way acquired by the city. No reference herein or in any authorization for use of any public right-of-way shall be deemed to be a representation or guarantee by the city that its title to any public right-of-way or any improvement or object located therein is sufficient to permit or authorize its use by the grantee. Public right-of-way shall not include any real or personal property, buildings, infrastructure, such as sewers, conduits, poles and bridges, owned by the city that is not a utility, easement or right-of-way.

Public right-of-way administrator shall mean who shall be a person designated by the mayor within the office of the city's chief administrative officer, whose responsibility shall be to coordinate with all divisions of city government having any responsibility for managing, supervising or inspecting any construction or use of the city's public rights-of-way by a utility owner or utility company.

Public works shall mean any water, gas or electric heat, light or power works, plants and systems owned by the city as defined in T.C.A. § 7-34-102.

Right-of-way agreement shall mean a fully executed and notarized authorization, license, contract, permit or easement issued or made pursuant to the provisions of this chapter and any subsequent franchise licensing ordinances adopted by the council by and between the city and grantee in form and substance agreeable to the city, wherein the city grants certain non-exclusive revocable rights to use and occupy its streets and rights-of-way and wherein grantee accepts and agrees to be bound by the terms and provisions of this chapter.

Roadway. The portion of a street or highway, including shoulders, for vehicular use. A divided street or highway has two or more roadways.

Specifications. Standard specifications for road and bridge construction approved by the city engineer.

Surety. The corporation, partnership or individual other than the utility owner, executing a bond furnished the city by the utility owner.

System or *utility system* shall mean grantee's network of pipes, lines, and any associated converters, equipment, or facilities that are placed in, on, across or over the public rights-of-way that are designed and constructed for the purpose of producing, receiving, or distributing gas, electricity, light, heat, power, water, wind energy, gasoline, fuel, crude oil or similar substances. Utility systems include, but are not limited to, any one or any combination of the following: culverts; curbs; dispensaries; drainage systems, including storm water sewers and drains; gas and natural gas systems and storage facilities; highways; highway and street equipment; levees; port facilities; docks and dock facilities, including any terminal storage and transportation facilities incident thereto; sewers; sewage and waste water systems, including, but not limited to, collection, drainage, treatment, and disposal systems; streets; electric, light, heat, water, wind energy, gas, gasoline, fuel or crude oil distribution, transmission and/or storage systems; tunnels; viaducts; water treatment distribution and storage systems; wind energy systems and or any other like system, plant or equipment.

TRA shall mean the Tennessee Regulatory Authority or any successor agency.

Telecommunications company means any telephone or telegraph company as defined and contemplated by T.C.A. tit. 65, ch. 21, Pts. 1 and 2 and governed by City Ordinance No. 5551, as amended.

Term means the duration of the right-of-way agreement under which a utility owner or utility company locates, installs and maintains utility facilities within the city's rights-of-way.

Traveled way. The portion of the roadway for the movement of vehicles, exclusive of shoulders, auxiliary lanes and rights-of-way designed for placement of utilities.

Trenched means installed in a narrow open excavation.

Untrenched. Installed without breaking ground or pavement surface, such as by jacking or boring.

Utility owner or *utility company* means for the purposes of this chapter only every individual, copartnership, association, corporation, joint stock company or limited liability company, its lessees, trustees, or receivers, appointed by any court whatsoever named in the right-of-way agreement, that own, operate, manage, maintain or control, within the city, any utility system, as herein defined, affected by and dedicated to the public use or dedicated solely for private use, profit or gain within the city or State, under privileges, franchises, licenses, or agreements, granted by the state or by any political subdivision thereof.

The definitions used in this chapter are for the sole purpose of determining the applicability and scope hereof and are not intended abrogate, confer, expand or limit any rights, privileges, authorities or immunities granted to the city or any utility owner by federal or state laws presently in existence or as may be subsequently amended or enacted from time to time.
(Ord. No. 5807, 11-16-2021)

Sec. 6-25-5. Administration.

The administration of the access, use and occupation of the city's public right-of-way by a utility owner or utility company shall be under the supervision of the chief administrative officer of the city. The mayor shall designate a person within the office of the city's chief administrative officer, whose responsibilities shall be:

1. To coordinate with all divisions of city government who perform services, functions or activities in all or a portion of the city's public rights-of-way;
2. To coordinate with all divisions of city government having any responsibility for managing, supervising or inspecting any construction, use, operation or maintenance of utility systems within all or a portion of the city's public rights-of-way by private or public entities;
3. To manage the application process;
4. To ensure that all requirements, limitations and conditions imposed by this chapter and other laws, ordinances, rules and regulations are satisfied before any authorization to access the city's public rights-of-way is granted;
5. To ensure that all statutes, laws, ordinances, rules and regulations pertaining to the city's public rights-of-way are observed by grantees;
6. To develop a system for preserving, recording and maintaining all contracts, licenses, permits or easements granted under this chapter to occupy or use the streets and/or public rights-of-way for the construction, operation and maintenance of any utility systems within all or a portion of the city.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-6. Conditions for access to the city's rights-of-way.

A. No utility owner or utility company shall be permitted to install underground any utility system or related facilities within the city's rights-of-way without first obtaining approval from the Memphis City Council and if approved without executing a right-of-way agreement or a permit. Any such utility company or utility owner shall be permitted to continue to occupy the city's streets and rights-of-way pursuant to any extended or unexpired specific route or encroachment agreement as long as any such company is not in default thereunder.

B. Upon making application to the chief administrative officer for a right-of-way agreement under this chapter, the utility owner or utility company shall pay an application fee to the city for processing the application, reviewing plans, and other administrative services, but not including inspection services, which shall be separately charged as herein provided. The total amount of the required application fee shall include a base fee of $350.00 plus $10.00 for each mile of the proposed installation within all or a portion of the city's public rights-of-way. The application shall be reviewed by the city engineer, the director of the division of public works and by MLGW, who shall each make a recommendation to the council regarding the proposal in a report to be provided to the city council by the chief administrative officer.

C. Upon receipt of said report the council shall refer the application to the public works committee for consideration by the council. After the matter has been considered by the council in the public works committee, the application shall be considered by the full council at a regular council meeting within a reasonable time as and when the council deems appropriate. The council may approve, deny or approve the application with such conditions as the council deems appropriate.

D. If the application is approved, the mayor or his designee shall prepare and present a franchising licensing ordinance for approval by the council, which shall contain a proposed right-of-way agreement with the terms, conditions and provisions to apply to the use and occupancy of the city's rights-of-way by said utility owner or utility company.

E. All utility installations within the city's streets and rights-of-way and all work performed within the city's streets and rights-of-way or otherwise, including without limitation any work performed for the city, shall be subject to inspection by the city engineer to ensure conformity with all city engineering and construction standards which standards shall be deemed a part of the right-of-way agreement by reference. When new utility installations within the city's streets and rights-of-way are of such magnitude and complexity as to require extensive inspectional services by the city engineer to ascertain that all provisions of the city's requirements are carried out, the city engineer shall assign one or more inspectors, either city employees or specially employed engineering contractors, to the inspect the installation periodically and if necessary place one or more inspectors on the site for the duration of construction activities. By accepting the right-of-way agreement, a utility owner or utility company shall agree to reimburse the city for said inspector's salary, inclusive of benefits, or compensation, equipment used and miscellaneous expenses incurred applicable to the installation of the utility facilities. The necessity for such inspectional services will be determined by the city engineer on a case by case basis and his decision shall be conclusive and final.

F. The city engineer shall have the authority to reject substandard work or materials and/or to suspend or stop work, in whole or part, where the utility company fails to comply with any requirement of this chapter or the terms of the right-of-way agreement or where any unsafe or hazardous condition exists unless and until corrective measures have been made to the satisfaction of the city engineer.

G. Notwithstanding any provision of this chapter or any other ordinance applicable to the city to the contrary, the requirements of this chapter shall not apply to existing crude or refined products oil pipelines already occupying the public rights-of-way within the city, including any activities related to the maintenance, repair, or replacement thereof, or the construction of any new or existing crude or refined products oil pipeline or structure or any activity that is located within the property boundaries of an oil refinery, oil terminal, associated docks or processing facilities, or a retail service station and providing service to or associated with that oil refinery, oil terminal, associated docks, processing facilities or retail service station. Any expansion that would enable the increase in the size, pressure or capacity of existing crude or refined products oil pipelines in the public rights-of-way shall require any utility owner or utility company who is subject to the provisions of this chapter to obtain a new or amended right-of-way agreement or permit using the procedures outlined in this chapter for new applications.

H. This chapter shall not apply to any telecommunications provider governed by Ordinance No. 5551 or to cable television services as defined under the Cable Communications Act of 1984, as amended by the Cable Television Consumer Protection and Competition Act of 1992, and/or any authorization granted by the city pursuant to said Act or to any broadband internet provider or video service provider as defined in the Tennessee Competitive Cable and Video Services Act.

I. This chapter shall not apply to any publicly owned utility owner or utility system or to:

1. Any corporation owned by or any agency or instrumentality of the United States;

2. Any county, municipal corporation or other subdivision of the state of Tennessee;

3. Any corporation owned by or any agency or instrumentality of the state; or

4. Any corporation or joint stock company more than 50 percent of the voting stock or shares of which is owned by the United States, the state of Tennessee or by any municipal corporation.

J. Any inspection or control exercised by the city over the construction activities of a utility owner or utility company shall in no way relieve the utility owner of any duty or responsibility to the general public nor shall such services and/or control by the city relieve the utility owner or utility company from any liability for loss, damage or injury to persons or adjacent properties. (Ord. No. 5807, 11-16-2021)

Sec. 6-25-7. Right-of-way agreement requirements.

Each right-of-way agreement for the installation of utility facilities within city's rights-of-way shall be subject to this chapter and specifically, but without limitation, to the following terms and conditions:

A. Assignment. The utility company and/or utility owner may not assign or transfer its rights or obligations under the right-of-way agreement to another utility company or other entity or person without first giving written notice to, and obtaining the consent of, the city, which consent shall not be unreasonably withheld.

B. Indemnification and hold harmless.

1. Each utility owner or utility company shall indemnify the City of Memphis and their officers, employees and agents, and hold them harmless to the maximum extent allowed under Tennessee law for any and all claims arising from the utility company's use of the city's right-of-way to install, operate and/or maintain utility facilities, including claims by third parties for any personal injury or property damage, including interruption of service or loss of business, incurred by such third parties, and including attorneys' fees and all other costs of preparing for and defending against such claims, regardless of any negligence or fault of the City of Memphis. The city may require that the utility company maintain liability insurance in such amounts that the city deems sufficient to satisfy claims made against the city and/or the utility company arising from the negligence or fault of the utility company.

2. Without limiting the foregoing, the utility company shall hold the City of Memphis, and their officers, employees and agents, harmless, to the maximum extent allowed under Tennessee law, for any personal injury or property damage, including interruption of service or loss of business, incurred by the utility company, or its officers, employees or agents, arising from the City of Memphis' construction, reconstruction, operation or maintenance of the city's right-of-way, regardless of any negligence or fault of the City of Memphis.

3. The city agrees to give grantee prompt and reasonable notice of any claims or lawsuits; and grantee shall have the right to investigate, compromise, intervene and defend same to the extent of its own interest. The above indemnification shall not apply to any judgment of liability resulting from the gross negligence or willful misconduct of the city. The terms and provisions contained in this subsection are intended to be for the benefit of the city and grantee, and are not intended to be for the benefit of any third party. The city shall have the right to participate or conduct the defense of its interests in any proceeding, and thereby assume risks and liabilities for its own acts or omissions.

C. Insurance. Each utility owner or utility company shall at all times have and maintain, and upon the request of the city shall provide written proof of liability insurance policies containing, at a minimum, the following insurance coverage:

1. All such liability insurance policies shall provide liability coverage sufficient, at a minimum, to match the city limits of liability under city ordinances. These minimum limits are currently set at $1,000,000.00 combined single limit, bodily injury and for real property damage in any one occurrence and $5,000,000.00 aggregate.

2. Grantee shall also file with the city a certificate of insurance for a comprehensive automobile liability insurance policy written by a company authorized to do business in the State of

Tennessee, for all owned, non-owned, hired and leased vehicles operated by grantee, with limits no less than $1,000,000.00 each accident, single limit, bodily injury and property damage combined, or evidence of self-insurance.

3. Grantee shall also maintain and specifically agrees that it will maintain throughout the term of the authorization, workers compensation and employers liability, valid in the State, in the minimum amount of the statutory limit for workers compensation.

4. All liability insurance required pursuant to this section shall be kept in full force and effect by grantee during the term of any right-of-way agreement or other authorization and until after the removal of utility systems installed by grantee in the public rights-of-way incident to the maintenance and operation of the utility system as defined in this chapter.

5. All policy limits set forth herein are subject to change by order of the city's chief administrative officer without amendment of this chapter.

6. All such liability insurance policies shall name the City of Memphis as an additional insured for the purposes of fulfilling the utility company's obligations under the use and occupancy agreement, including without limitation any and all obligations to indemnify and hold harmless the City of Memphis, and their officers, employees and agents. All policies shall be endorsed to give the city 30 days' written notice of the intent to amend or cancel by either grantee or the insuring company.

D. Surety bond. Each utility owner or utility company shall furnish a surety bond, issued by a company licensed to do business in the State of Tennessee, and in such form and amount acceptable to the city, guaranteeing full and faithful performance of the terms and conditions of the right-of-way agreement, including without limitation the repair and restoration of the right-of-way premises, the payment of any monetary compensation remaining due to the city for use of the city's streets and rights-of way, the completion of any installation or relocation of utility facilities and the removal of any facilities upon abandonment or termination of use thereof by such utility owner or utility company.

E. Relocation or removal.

1. If, at any time, the city determines that any utility facilities need to be relocated within, or removed from, the city's streets and rights-of-way for any reason related to the use, operation, maintenance, construction, reconstruction, modification or redesign of any such streets and rights-of-way, the utility company or utility owner shall relocate or remove the facilities as directed by written notice from the city engineer.

2. All such costs of relocation or removal shall be borne solely by the utility company or utility owner and not by the city, except as the city may otherwise agree in accordance with a special condition of the right-of-way agreement executed prior to the installation, or as the city may subsequently agree in writing under a utility relocation contract.

3. Each utility owner or utility company shall complete the relocation or removal within such time as the city shall specify by written notice, or within such additional time as the city engineer may authorize in writing. Upon the failure of a utility owner or utility company to relocate or remove the utility facilities within the specified time, or such additional time as the city engineer may authorize in writing, the utility facilities shall be deemed to be abandoned by the utility company or utility owner, and the city shall be deemed the owner thereof; provided, however, that the city, in its sole discretion, may refuse ownership of the abandoned utility facilities at any time within one year after the abandonment and thereupon hold the utility owner or utility company liable for the costs of removing such facilities from the city's streets and rights-of-way.

4. To the extent that a utility owner or utility company is required to remove utility cable facilities from the city's streets and rights-of-way, the utility owner or utility company shall to that extent be relieved of any further obligation under the right-of-way agreement to compensate the city for the use of the city's streets and rights-of-way. To the extent that a utility owner or utility company is allowed to relocate utility facilities to another location within the city's streets and rights-of-way, the utility owner or utility company may elect either to remain under the terms of compensation specified in the right-of-way agreement, or the utility owner or utility company may choose to enter into a new right-of-way agreement for the new location.

F. Duration and renewal of right-of-way agreements.

1. Initial term. The right-of-way agreement for the installation of utility facilities within city's streets and rights-of-way shall have an initial term of up to 20 years as the council may approve.

2. Renewal options. Upon the expiration of the initial term of the use and occupancy agreement, the utility owner or utility company shall have an option to renew the right-of-way agreement for one additional term of five years, or longer term approved by the city council, but shall be subject to the applicable rate of compensation in effect as of the date of renewal. In no event shall any initial term or any successive renewal term exceed a combined total of 30 years.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-8. Compensation.

A. *Compensation requirement.*

1. No utility company or utility owner shall be permitted to install underground utility facilities within city's streets and rights-of-way except upon the payment of compensation for the use and occupation of such rights-of-way, as adopted by the Memphis City Council from time to time.

2. The city may, at its option, may receive the compensation for use of city's streets and rights-of-way in the form of money or as in-kind compensation in the form of Utility facilities or services, or both.

B. *Rate and method of compensation.*

1. The rate of monetary compensation shall be as established by the Memphis City Council from time to time by ordinance for such time periods determined by the council by affixing an addendum to this chapter. In establishing the monetary rate of fair and reasonable compensation for use and occupation of city's streets and rights-of-way, the city council shall consider the following factors:

a. The city's costs in regulating the right-of-way activities of utility companies and utility owners,

b. The extent the city's streets and rights-of-way are used and occupied by such companies and owners,

c. The proportionate share of the city's cost of making and keeping in repair and policing the city's streets and rights-of-way to be assigned to such companies and owners in order to defray the total amount of the city's right-of-way costs to provide right-of-way services to such companies and owners,

d. The cost of providing the benefit to such companies and owners of the use and occupation of the city's streets and rights-of-way for installation of their utility facilities, including, but not limited to, savings on construction costs due to ease of installation in established rights-of-way conveniently located in close proximity to their customers and businesses, comparable rates charged for the use and access, the amount of right-of-way available in certain locations and demand for certain locations. Information pertaining

to these factors shall be presented to the city administration and by any other interested parties.

e. Any other factors the council deems relevant.

C. *Total amount of compensation*. The total amount of compensation due for use of the right-of-way shall be fixed as of the date of execution of the right-of-way agreement, in accordance with the rate and method of valuation of in-kind compensation established by the city council and in effect at that time.

D. *Unit measure of compensation*.

1. Compensation shall be stated and computed on a measured unit of right-of-way used by a utility owner or utility company and may be based (i) on the cubic feet of right-of-way such provider occupies in the public right-of-way, including clearance zones required by this chapter or by applicable industry and safety standards or (ii) on a unit charge for each linear foot of pipe five inches or less in diameter that such provider occupies in the public right-of-way, including clearance zones required by this chapter or by applicable industry and safety standards as the city may elect.

2. The linear foot charge shall be calculated on a pro rata basis. For example, the charge for a ten inch pipe in diameter shall be two times the charge for one five inch pipe.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-9. General installation policies and procedures.

A. *Timing of installations*. To minimize interference with the safe use, operation and maintenance of the right-of-way, and as reasonably necessary to manage the right-of-way, the city engineer may limit the timing of access so that, to the extent possible, there is no more than one utility cable installation project underway at any given time on any particular segment of a state freeway.

B. *Location and alignment criteria.*

1. *General location policy*. To minimize interference with the safe use, operation and maintenance of the city's streets, longitudinal installations of utility systems and facilities shall be located outside the travelled way and as near to the outer edge of the right-of-way line as is reasonably practical; provided, however, that alternative locations within the right-of-way, including the travelled way, may be permitted where the city engineer determines that it is not reasonably practical to locate the utility systems and facilities along the outer edge of the right-of-way and that the use of the alternative location is consistent with the city's goal to minimize interference with the safe use, operation and maintenance of the streets and highways.

2. *Horizontal and vertical clearance zones*. As a general rule, subsequent installations of underground utility systems and facilities outside the travelled way shall be located not less than three feet from any previously installed utility system or other utility installation, if any, within the city's right-of-way or such greater clearance zones required by utility codes as they relate to electrical, water, gas or sewer systems. Exceptions may be considered on a case-by-case basis and as may be reasonably necessary to manage the city's right-of-way.

3. *Depth*. All underground utility systems and facilities shall be located and installed in accordance with a minimum depth of 36 inches, or at such greater depths as the city engineer may require as a special condition of a right-of-way agreement or as shall be necessary to comply with the horizontal and vertical clearance zone requirement.

4. *Access points*. Devices for accessing underground utility systems and facilities for routine service or site visits shall not be allowed within the travelled way, except as the city engineer may otherwise expressly permit or require.

5. *Support facilities*. All above-ground support facilities for underground utility systems and facilities shall be located outside the travelled way and as near to the outer edge of the right-of-way line as is reasonably practical. No above-ground facility may be located on the city's right-of-way without the express written approval of the city engineer.

6. *Attachment to roadway and roadside structures*. The attachment of utility systems and facilities

to roadway and roadside structures — including without limitation bridges, overpasses, underpasses, culverts and tunnels — shall be permitted only with the prior written approval of the city engineer.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-10. Installation and maintenance requirements.

A. *General standards of care*.

1. A utility owner or utility company shall take care not to install any utility system in such a manner as to create a potential hazard to life, health or property or in such a manner as to impair the use, operation and maintenance of the city's rights-of-way.

2. The utility company shall cooperate with the city engineer to identify locations for its utility system or facilities within the city's right-of-way that will, to the extent it is reasonably practical, minimize any potential conflict with the future expansion or reconstruction of the right-of-way.

B. *Tennessee One-Call Service.* Utility companies, utilities and private entities accessing the city's rights-of-way shall comply with the Tennessee One-Call Service as provided in T.C.A. § 65-31-107, or as it may be amended.

C. *Permits and approvals*. The utility company shall be responsible for obtaining all approvals and/or permits that may be required for activities authorized under this rule, including without limitation all environmental permits and federal regulatory approvals or permits, if applicable.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-11. Minimum installation and maintenance controls.

The following minimum controls shall apply to the installation, servicing and maintenance of all utility cable facilities within state freeway rights-of-way, in addition to such other requirements as the city engineer may provide as a general or special condition of the right-of-way agreement:

A. *Installation and maintenance plan.* Before commencing any installation, servicing or maintenance of a utility system, the utility owner or utility company shall submit an installation and maintenance plan to the city engineer for review and approval, and upon approval such plan shall be made a part of the right-of-way agreement. At a minimum, the installation and maintenance plan shall specify:

1. The location and method of installing each part of the Utility Systems and facilities within the right-of-way;

2. The means by which access to and within the right-of-way shall be accomplished for the purpose of installing, servicing and maintaining each part of the utility systems and facilities, including provisions for ingress and egress, parking of vehicles and equipment, and storage of materials;

3. The means by which the utility company will provide for the control of traffic on the travelled way, if needed, in the course of installing, servicing or maintaining any part of the utility systems and facilities;

4. The schedule for completing the installation of the utility systems and facilities, or parts thereof, within the right-of-way; and

5. The procedure by which the utility company will conduct emergency maintenance operations within the right-of-way.

B. *Preservation of pavement structure*. Open cutting or trenching of the pavement structure of a street, highway or roadway, including without limitation the traveled way and shoulders, if any, shall not be permitted. Wherever the city engineer permits a crossing of the pavement structure of a street, highway or roadway in accordance with this chapter, the crossing shall be accomplished by boring or other untrenched method as approved by the city engineer.

C. *Access to right-of-way for installation and maintenance*.

1. As far as it is reasonably practical, all utility facilities should be designed and located in such a manner that they can be installed, serviced and maintained without

direct access thereto from the traveled way. Such direct access may be permitted in special circumstances where there is no reasonably practical alternative means of access and the utility company has made adequate provisions for controlling access to the work zone, directing traffic, and protecting the safety of workers and the traveling public, as specified in the installation and maintenance plan approved by the city engineer.

D. *Parking of vehicles*. The utility company shall not be permitted to park vehicles and equipment or to store materials on the right-of-way without express prior approval by the city engineer. In no case shall the utility company be permitted to park vehicles and equipment or store materials within the clear zone of the right-of-way, except as may be required during actual installation operations within the clear zone and while all required traffic control is present and in place.

E. *Traffic control*.

1. All traffic control signs or other traffic control devices that the utility company may use in the course of any installation, servicing or maintenance of a utility facility shall comply with the procedures used by the city engineer regarding traffic control devices.

2. In addition, the utility company shall arrange for law enforcement officers having appropriate enforcement authority to be present to ensure the safe flow of traffic whenever any installation, servicing or maintenance of a utility facility occurs within the clear zone of the freeway or as may be required in the installation and maintenance plan approved by the city engineer where access to the work zone has been permitted from the traveled way, shoulders or access ramps of the freeway. The utility company may not conduct any such work within the right-of-way without giving specific advance notice thereof to the city engineer.

3. Advance notice of installation or maintenance work. Before performing any non-emergency servicing or maintenance of a utility facility at any location within the freeway right-of-way and before performing any installation of a utility facility within the clear zone or where access to the utility work zone has been permitted from the traveled way, shoulders or access ramps of the freeway, the utility company shall give at least five work days advance notice thereof to the city engineer.

F. *Emergency maintenance or repair*. The utility company shall notify the appropriate regional director of the city engineer as soon as possible, and in any event not more than 24 hours, after the occurrence of an event requiring emergency maintenance or repair of a utility facility within the city's right-of-way, or as otherwise specified in the installation and maintenance plan approved by the city engineer.

G. *Cessation of work for public safety*. If the utility company fails to comply with the traffic control plan or any other provision of the installation and maintenance plan, or if any activity of the utility company within the city's right-of-way interferes with the safe and efficient use of the travelled way as determined by the city engineer, the utility company shall immediately cease such activity upon notice being given by the city engineer, and the utility company shall thereafter work with the city engineer to bring its activities into compliance with the installation and maintenance plan and/or implement such additional safety requirements as may be specified by the city engineer.

H. *Trees*. The cutting or removal of trees along the freeway right-of-way shall not be permitted without the express approval of the city engineer.

I. *Hazardous substances*. No utility owner or utility company shall place, install or deposit any hazardous substance or hazardous waste within or on any part of the state freeway or state freeway right-of-way. If at any time a utility owner or utility company causes or allows a spill of a hazardous waste or substance within the freeway right-of-way, the utility owner or utility company shall remain solely liable for the clean-up and removal of such

hazardous waste or substance. The utility owner or utility company shall indemnify the City of Memphis and city engineer, and their officers, employees and agents, and shall hold them harmless against any and all claims or expenses of any kind related to the deposit, spillage and/or clean-up of any such hazardous wastes or substances.

J. *Above-ground markers*. The utility company shall install permanent above-ground markers indicating the location of its underground utility systems and facilities at such intervals as the city engineer may approve or require in the installation and maintenance plan. These markers shall not interfere with the safe use, operation and maintenance of the freeway, nor shall they constitute a hazard to the traveling public.

K. *Repair and restoration of premises*.

1. The utility owner or utility company shall, as directed by and in a manner satisfactory to the city engineer, promptly replace or repair any portion of the pavement, shoulders, structures, ramps, guardrail, drainage, or any other part of the right-of-way that may have been damaged in the course of any work within the right-of-way.
2. Upon the completion of any installation, replacement, repair or relocation of utility facilities within the rights-of-way, the utility company shall promptly restore the premises to a condition similar to that which existed prior to such work, in a manner satisfactory to the city engineer.
3. The utility owner or utility company shall remain responsible for maintaining any excavation or trench on or along the state freeway right-of-way, as directed by and in a manner satisfactory to the city engineer.

L. *As-built drawings*. "As-built" drawings that adequately demonstrate the location, size length and nature of all underground and aboveground utility systems located on, over or under the city's right-of-way shall be submitted by a utility owner or utility company to the city engineer in such format as he shall direct within 120 days after completion of construction of such systems. A utility owner or utility company shall update such drawings within 60 days whenever material changes are made to such company's system which impact the public right-of-way. Said drawings, set forth by utility quarter sections, shall at a minimum include cable routings and the location of amplifiers, power supplies and system monitor test points.

M. *Completion of any installation or relocation*. It shall be the responsibility of the utility owner or utility company to seasonably submit "as built" drawings of its facilities in the city's right-of-way and to provide other information upon request.

(Ord. No. 5807, 11-16-2021)

Sec. 6-25-12. Compliance and revocation.

A. In the event that the city engineer determines that the utility company is in violation of any provision of this chapter or any right-of-way agreement, the city engineer may order the utility owner or utility company to comply.

B. In any case not presenting any imminent threat to public safety, as determined by the city engineer, the utility owner or utility company shall be given 30 days, or such other reasonable time as the city engineer may provide, within which to correct the noncompliance.

C. In any case presenting an imminent threat to public safety, as determined by the city engineer, the utility owner or utility company shall correct the noncompliance promptly as directed by the city engineer.

D. If a utility owner or utility company fails to comply with any order or directive given by the city engineer or otherwise violates any provision of this chapter, after the above-stated notice and opportunity to cure, then the city may take any action authorized by law, including revocation, withholding of all other licenses and permits until the violation is cured, or repeal of any permit or authorization previously granted or filing a suit in court to compel compliance. If, in any such proceeding, default is finally established, the utility owner or utility company shall be required to pay to the city the reasonable expenses incurred in the prosecution of such suit and all the city's damages and costs (including attorneys' fees). A utility owner or utility company that in good faith disputes a finding that it is in default, and that promptly files a court proceed-

ing challenging the determination may continue to provide service pursuant to the terms of any permit or authorization unless otherwise ordered by the court.

E. A violation of the provisions of this article after the above-stated notice and opportunity to cure shall subject the offending utility owner or utility company to an initial fine of $50.00. Each day of continued violation of this chapter constitutes a separate offense and will subject the offending utility owner or utility company to continuing fines, above the initial fine, of $50.00 per day for each day that the a utility owner or utility company fails to comply with any order or directive given by the city engineer to comply with any provision of this chapter.

F. A utility owner or utility company shall not be entitled to any compensation, lost profits, consequential damages or reimbursement of suit expenses or attorney's fees in the event of a revocation of a right-of-way agreement or enforcement action taken by the city to enforce this chapter.

G. Upon the revocation of a right-of-way agreement, the utility owner or utility company shall promptly remove any utility systems located on, over or under the city's right-of-way, in such manner and within such time as the city engineer may direct. If the utility company fails to remove the utility systems within the time directed, the utility systems may be deemed to be abandoned by the utility company, and the city shall be deemed the owner thereof; provided, however, that the city engineer, in its sole discretion, may refuse ownership of the abandoned utility systems at any time within one year after the abandonment and thereupon hold the utility company liable for the costs of removing such facilities from the city's right-of-way.
(Ord. No. 5807, 11-16-2021)

Sec. 6-25-13. Right-of-way fund.

A. There is hereby created a right-of-way fund, which shall be used exclusively to help defray the costs associated with the management of the rights-of-way, including but not limited to the costs of preparing studies of the right-of-way and costs of any special committee and the costs of staff and other reasonable expenses necessary to administer the provisions of this chapter.

B. All payments for the use of the right-of-way made pursuant to this chapter shall be deposited into the fund, less reasonable administrative costs incurred by the city in connection with the collection of fees owed.

C. Operating transfers shall be made from this fund to other funds of the city incurring costs associated with right-of-way management. Such operating transfers will be established in accordance with the city's annual appropriation ordinance.
(Ord. No. 5807, 11-16-2021)

CHAPTER 6-28. FIBER OPTIC AND TELECOMMUNICATIONS RESELLER FRANCHISES*

Sections:

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Sec. 6-28-27. Revocation and termination.
Sec. 6-28-28. Service standards.
Sec. 6-28-29. Preferential or discriminatory practices prohibited.
Sec. 6-28-30. Conflict with other laws.

***State law reference—**Cable Television Act of 1977, T.C.A. § 6-55-101 et seq.

Sec. 6-28-31. Compliance with applicable laws and ordinances.
Sec. 6-28-32. Tennessee law governs.
Sec. 6-28-33. City taking part in litigation.
Sec. 6-28-34. Office location.
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Sec. 6-28-1. Declaration of need.

The city council finds and declares that, within the city, the public necessity requires the development of competing telecommunications service in the form of fiber optic and other telecommunications capability, and that a number of companies are currently able and willing to provide such service.
(Code 1985, § 10-136; Ord. No. 4398, § 1, 11-19-1996)

Sec. 6-28-2. Definitions.

As used in this chapter:

Anniversary date means the date on which a franchise agreement is fully executed.

Charter means collectively: (i) Ordinance No. 1852, Home Rule Charter adopted by referendum vote on November 8, 1966 (the "Home Rule Charter"); and (ii) the Charter of the City of Memphis as enacted in Acts 1879 as amended to the extent not repealed by the Home Rule Charter.

City means the City of Memphis.

City engineer means the position of city engineer created by the Charter or a successor position, or an acting city engineer or the designee of the city engineer.

Compensation year means each calendar year during the term of a franchise agreement in which compensation is paid to the city.

Confidential information means any trade secrets (as defined below) or other information relating to a grantee that derives economic value from not being generally known to or readily accessible to other persons and is the subject of reasonable efforts to maintain its secrecy. "Confidential information" shall include, but not be limited to: (i) a grantee's manner of operation, forms of agreements, plans, processes and programs; (ii) information about its finances and financial condition and about the finances and financial condition of clients or other entities affiliated with a grantee; (iii) research, marketing plans, designs, procedures, formulas, discoveries, inventions, concepts, ideas, specifications, flowcharts, listings of customers, supplies or analyses; and (iv) information supplied to grantee by other parties which a grantee is obligated to keep confidential. As used herein, "trade secrets" shall include any technical or nontechnical data or information, design, procedure or improvement that derives economic value, actual or potential, from not being generally known to or readily ascertainable by proper means by the competitors of a grantee. "Confidential information" shall not include any information which has entered the public domain.

Council means the council of the City of Memphis.

Day or *days* means a calendar day or days.

Director of finance means the position of director of finance and administration created pursuant to and under the Charter or a successor position, or an acting director of finance, or the designee of the director of finance.

FCC means the Federal Communications Commission, or any successor agency.

Franchise means the nonexclusive privilege and authorization granted as provided in this chapter to resell telecommunication services to a grantee's own customers, which is derived, purchased, leased or subleased from a franchisee of the city who has been granted the non-exclusive privilege to occupy or use the streets and/or public rights-of-way within the city for

construction, operation and maintenance of a fiber optic and/or other telecommunications systems within all or a portion of the city.

Franchise agreement means a fully executed and notarized contractual agreement by and between the city and grantee in form and substance agreeable to the city, wherein grantee accepts and agrees to be bound by the terms and provisions of this chapter.

Grantee or *reseller* means any nonfacilities based telecommunications services provider who purchases telecommunications services or leases telecommunications facilities from another telecommunications services provider for the purpose of providing voice, data or video telecommunication services to customers for profit. Provided, however, the term "reseller" shall not include any hospital or any hotel, inn, tourist cabin, bed and breakfast or any other establishment in which rooms, lodging or accommodations are furnished to guests for a consideration.

Gross revenue means all receipts collected by the grantee for all telecommunications and related operations and services within the corporate limits of the city, arising from operation or possession of a telecommunication franchise granted hereunder. By way of example, but without limitation, "gross revenue" means all receipts and revenues (exclusive of sales tax) collected by grantee from operation of grantee's telecommunications system installed pursuant to this chapter, and any related services provided by the grantee within the city, including, but not limited to:

1. All telecommunications service revenues charged on a flat rate basis;
2. All telecommunications services charged on a usage sensitive or mileage basis;
3. All revenues from installation service charges;
4. All revenues from connection or disconnection fees;
5. All revenues from penalties or charges to customers for checks returned from banks, net of bank costs paid;
6. All revenues and receipts from local service;
7. All revenues and receipts from authorized rental of conduit space;
8. All revenues and receipts from charges for access to local and of long distance networks;
9. All revenues and receipts from authorized rentals of any portion of grantee's system, including plant, facilities or capacity leased to others;
10. All other revenues and receipts collected from grantee's business pursued with the city, excluding third party billing arrangements not related to grantee's business;
11. Recoveries of bad debts previously written off and revenues from the sale or assignment of bad debts. Unrecovered bad debts charged off after diligent, unsuccessful efforts to collect are excludable from gross revenues;
12. All revenues and receipts from operations of any subsidiary or affiliated company, which provides any of grantee's telecommunication services within the city;
13. Tolls from business which both originates and terminates in the State of Tennessee;
14. Actually collected franchise fees and occupation taxes surcharged to customers except to the extent such surcharge fees and taxes are paid and includable in the franchise tax base of another telecommunication franchisee of the city;
15. All revenues and receipts from the lease or re-sale of lines or circuit paths to third parties, whether or not authorized by the city.

Unless authorized by law, "gross revenues" shall not include revenues from interstate toll operations, nor revenue uncollectible from customers. "Gross revenues" shall not include any revenues from equipment sold or rented to customers upon customer premises.

Public right-of-way means real property subsurface and air rights acquired by the city by any lawful means and includes the surface and that area below the surface which is necessary to support the public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground or other public right-of-way. "Public right-of-way" also includes the surface of any public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground or other public right-of-way acquired by the city. No reference herein or in any franchise for use of any public right-of-way shall be deemed to be a representation or guarantee by the city

that its title to any public right-of-way or any improvement or object located therein is sufficient to permit or authorize its use by the grantee.

System or *telecommunications system* means any network of cables, wires, lines, towers, wave guides, optic fiber, microwave, laser beams, and any associated converters, equipment or facilities designed and constructed for the purpose of producing, receiving, amplifying or distributing by audio, video or other forms of electronic signals to or from subscribers or locations within the city, but not including cable television services as defined under the Cable Communications Act of 1984, as amended by the Cable Television Consumer Protection and Competition Act of 1992, and/or any franchise granted by the city pursuant to said Act.

Telecommunications services provider means and includes any individual or entity that owns, operates, manages, maintains, controls or leases any plant, facilities and/or system necessary for the provision of two-way voice, data or video communications and offers or provides any two-way voice, data or video communications services for hire who has been granted a franchise by the city to install and operate a facilities based telecommunication system in the city.

TRA means the Tennessee Regulatory Authority or any successor agency.
(Code 1985, § 10-137; Ord. No. 4398, § 2, 11-19-1996)

Sec. 6-28-3. Grant of franchise.

A. 1. No person shall acquire, construct, expand, reconstruct, maintain, use and operate in, along, across, on, over, through, above and under the public streets, alleys and rights-of-way of the city, directly or indirectly, a telecommunications system without first obtaining a nonexclusive, revocable franchise from the city. Except to the extent that the federal or state government acquires or assumes exclusive jurisdiction over the regulation of fiber optic or other telecommunications franchises, grantee shall agree that shall it shall not now or at any time after a franchise agreement is granted challenge this city's right to regulate any grantee's use of the public rights-of-way or to be compensated, as hereinafter provided, for the use of public rights-of-way in any state or federal court. Accordingly, any franchise granted hereunder shall remain in full force and effect as a binding contract between the grantee and the city. Notwithstanding the foregoing, grantee is not prohibited from challenging the city's arbitrary and capricious exercise of its police powers in the regulation of any franchisee's use of the public rights-of-way hereunder.

2. Grantee acquires and accepts only such rights and privileges as the city has authority to grant. The city shall not be liable or responsible in any way or for any sum paid to it on account of, or in consequence of, a deficit or defect of any lawful power or authority to grant a telecommunications franchise, but grantee assumes all risks of lack of any lawful power in the city with respect to such payments.

B. Franchise grant conditions and terms.

1. A franchise granted hereunder, and all renewals, extensions and amendments hereof shall be granted only by ordinance. No such ordinance shall be adopted before an application therefor has been filed with the council through the city's chief administrative officer on forms promulgated by the city's chief administrative officer and approved by the council. Prior to adoption of any franchise ordinance the council may, from time to time, request such other information as it deems appropriate.

2. Grantee shall not provide cable services or operate a cable system as defined in the Cable Television Consumer Protection and Competition Act of 1992 (47 USCA 521 et seq., as amended) or as recognized by the FCC without first obtaining a separate cable franchise from the city and shall not allow the use of the system by a cable system that has not been granted a franchise by the city. Nor shall any provider of cable services or grantee of cable television service operate or provide a telecommunications franchise pursuant to this chapter, unless a separate telecommunication franchise is obtained from the city.

3. Grantee shall not provide services directly regulated by the TRA under the laws of Tennessee unless duly authorized by the TRA or by any successor entity.

4. Except as permitted by section 6-28-25, any franchise granted hereunder shall be granted to

grantee solely for the purpose of directly serving its end-user customers (including but not limited to hotels, motels, hospitals and buildings with shared tenant services) and interexchange carriers.

5. Any franchise granted hereunder shall be deemed a contract, which contract shall be enforceable in accordance with its terms even if this chapter or any subsection, sentence, clause, phrase, term, provision, condition, covenant or portion thereof is held invalid or unenforceable by a court of competent jurisdiction.

(Code 1985, § 10-138; Ord. No. 4398, § 3, 11-19-1996)

Sec. 6-28-4. Application of other laws.

A. *Construction.*

1. Grantee shall have no authority to locate or construct any part of its system in the public rights-of-way under this chapter; provided, however, grantee shall be permitted to connect its system to existing systems operated and maintained telecommunication franchisees of the city (other than resellers), who have been granted the nonexclusive privilege to occupy or use the streets and/or public rights-of-way for the construction, operation and maintenance of a fiber optic and/or other telecommunications systems. Grantee shall also be allowed to perform limited construction in the streets and/or public rights-of-way, which is incidental to its connection to existing telecommunication systems.

2. Issuance of a permit by any agency of the city as to the construction and installation of any portion of grantee's system does not waive other applicable requirements of federal or state law, and grantee shall comply with such other legal requirements.

B. *Subject to police power.*

1. The construction, expansion, reconstruction, excavation, use, maintenance and operation of any system shall be subject to all lawful police regulations of the city and performed in accordance with all ordinances, laws, resolutions and regulations of the city for utility location and excavation in public rights-of-way presently in effect or hereafter adopted.

2. Nothing in this chapter shall be construed as preventing the city, whenever it shall be empowered by applicable state and federal law to do so, from fixing or regulating the rates, rentals, charges, services, facilities and equipment of grantee or from exercising general supervision and regulation of, jurisdiction and control over a telecommunication franchise, the grantee, and its property, property rights, facilities and franchises located within the city. It being the intention of this chapter, that the city in no way surrenders such general powers it may now have, or may hereafter have or acquire.

C. *Other licenses and permits.* A reseller or prospective reseller all have the sole responsibility for diligently obtaining, at its own cost and expense, all permits, licenses or other forms of approval or authorization necessary to operate, maintain or repair the system and to provide resale telecommunications services.

(Code 1985, § 10-139; Ord. No. 4398, § 4, 11-19-1996)

Sec. 6-28-5. Construction standards.

A. If any incidental construction is required by a reseller, all work performed in connection with the construction, expansion, reconstruction, maintenance or repair of grantee's system shall be subject to and governed by the city's electrical code and by all laws, rules and regulations of the city in accordance with the applicable provisions of the city's building code.

B. Interference with persons, improvements, public and private property and utilities. Grantee's system and facilities, including poles, lines, equipment and all appurtenances, shall be located, erected and maintained so that such facilities shall not:

1. Endanger or interfere with the health, safety or lives of persons;

2. Interfere with any improvements the city or state may deem proper to make;

3. Interfere with the free and proper use of public streets, alleys, bridges, easements or other public ways, places or property, except to the minimum extent possible during actual construction or repair;

4. Interfere with the rights and reasonable convenience of private property owners, except to the minimum extent possible during actual construction or repair; or

5. Obstruct, hinder or interfere with any gas, electric, water or telephone facilities or other utilities within the city.

C. Protect structures. In connection with the construction, operation, maintenance, repair or removal of the system, the grantee shall, at its own cost and expense, protect any and all existing structures and improvements, including landscaping and trees belonging to the city, and all designated historical landmarks, as well as all other structures within any designated historical district. The grantee shall obtain the prior approval of the city before altering or crossing any water main, sewerage or drainage system, or any other municipal, state or federally owned structure in the streets required because of the presence of the system in the streets. Any such alteration shall be made by the grantee at its own cost and expense, and in a manner prescribed by the city. The grantee shall be liable, at its own cost and expense, to replace or repair and restore to serviceable condition a manner as may be specified by the city, any street or any municipal, state or federally owned structure involved in the construction of the system that may become disturbed or damaged as a result of any work thereon by or on behalf of the grantee pursuant to its franchise.

D. Erection, removal and use of poles. No poles shall be erected by grantee without prior approval of the city with regard to location, height, types and any other pertinent aspect. However, no location of any pole or wire-holding structure of grantee shall give rise to a vested interest, and such pole or structures shall be removed or modified by grantee at its own expense whenever the city determines that the public convenience would be enhanced thereby. Approval under this section shall require the prior written approval of the city engineer.

E. Upon request of the city or other authority of competent jurisdiction, grantee shall remove and abate any portion of the system or any facility that is dangerous to life or property, and in case grantee, after ten days' written notice from the city engineer, fails or refuses to act, the city may remove, relocate or abate the same, at the sole cost and expense of grantee, all without compensation or liability for damages to grantee; provided, however, grantee may recover damages sustained by it from any person other than the city who relocates, removes or abates any such grantee facility negligently or without the city engineer giving ten days' written notice to grantee authorizing such other person to relocate or remove grantee's facilities on behalf of the city.
(Code 1985, § 10-141; Ord. No. 4398, § 6, 11-19-1996)

Sec. 6-28-6. Suspension or revocation of construction permit.

The city engineer may suspend or revoke any permit issued by the city or take any action he or she deems necessary, including the stopping of work, should grantee violate the terms of the permit, until the violation has been corrected to the city engineer's satisfaction.
(Code 1985, § 10-142; Ord. No. 4398, § 7, 11-19-1996)

Sec. 6-28-7. Adjustment of utility facilities.

In the event that the location of grantee's system will require an adjustment of the location of existing public or private utility facilities, grantee must obtain written consent of the owner of such utility, including, where applicable, all relevant city departments to such adjustment and make such arrangements for the payment or reimbursement of the cost of such adjustment as are satisfactory to the owner of such utility, including, where applicable, all relevant city departments. No permit for construction will be issued until the city engineer is satisfied that the requirements of this section have been satisfied. In no case shall grantee be entitled to perform such adjustment or disturb such utility facilities without the written consent of the owner of such utility.
(Code 1985, § 10-143; Ord. No. 4398, § 8, 11-19-1996)

Sec. 6-28-8. Adjoining property owners.

All of grantee's system shall be so installed and located so as to cause minimum interference with the rights and appearance and reasonable convenience of adjoining property owners and all times shall be kept and maintained in a safe, adequate and substantial condition, and in good order and repair. Grantee shall at all times employ reasonable care, and shall install and maintain in use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damage, injuries or nuisances to the public.
(Code 1985, § 10-144; Ord. No. 4398, § 9, 11-19-1996)

Sec. 6-28-9. Emergency or disaster.

In case of emergency or disaster, grantee shall, upon request of the city, make available its facilities to the city, without cost, for emergency use.
(Code 1985, § 10-145; Ord. No. 4398, § 10, 11-19-1996)

Sec. 6-28-10. Moving wires.

The city may, at any time, in case of fire, disaster or other emergency, as determined by the city in its reasonable discretion, cut or move any other optical fibers, wires, cable, amplifiers, appliances, or other parts of the system in the streets or in city buildings, in which event the city shall not be liable therefor to the grantee.
(Code 1985, § 10-146; Ord. No. 4398, § 11, 11-19-1996)

Sec. 6-28-11. Temporary removal of facilities for demolition of buildings.

Upon the request of a person holding a permit issued by the city for the moving or demolition of a building, and at least ten days' notice, grantee shall temporarily raise, lower or remove its facilities to permit the removal or demolition of such building. The expense of such temporary removing, raising or lowering of facilities shall be paid by the person requesting the same and grantee shall have the authority to require such payment in advance; provided, however, that no payment (direct or indirect) shall be required of the city.
(Code 1985, § 10-147; Ord. No. 4398, § 12, 11-19-1996)

Sec. 6-28-12. Removal of city property.

No property of the city is to be removed from the right-of-way, including signage on utility poles, without prior written approval from the city.
(Code 1985, § 10-148; Ord. No. 4398, § 13, 11-19-1996)

Sec. 6-28-13. Reservation of rights.

The city reserves the right to exercise its police and/or proprietary powers to modify, vacate or transfer any right-of-way in use grantee for a public purpose. At grantee's own risk, the city has the predominant right to use its right-of-way in the placement, maintenance and repair of sewers, water mains and other public utility franchises or to relocate or remove grantee's system where the city determines that the public convenience and/or necessity would be enhanced or for any other public purpose, including, but not limited to the use of any public right-of-way used by grantee for public transportation purposes. Grantee shall make no claims for costs or damages against the city by reason of such removal or relocation. Upon 30 days' written notice to grantee, grantee shall remove, modify, replace or relocate its facilities as required at its own expense. In the event grantee does not remove, modify, replace or relocate its facilities as required by the notice within 30 days as aforesaid, the city engineer may cause the same to be done at grantee's expense and all expenses incurred or damages paid by the city on account of such action shall be paid by grantee on demand. Grantee shall remove, replace or modify, at its own expense, the installation of any of its facilities as may be deemed necessary by any other appropriate governmental authority to meet such authority's proper responsibilities. In the event the city exercises its predominant right to use any public right-of-way used by grantee for a public purpose, the city shall reasonably cooperate with grantee in finding an alternate site for any telecommunications facilities removed and in avoiding disruption to grantee's telecommunications system to the extent not reasonably required by the city. In an emergency, as determined by the city engineer, the city may order grantee to remove or relocate its facilities within 48 hours. If the city exercises any of its rights pursuant to this section, grantee shall have the option, upon notice to the city engineer, of abandoning the portion of its telecommunications system to be so removed or relocated and deleting such portion from the public right-of-way.
(Code 1985, § 10-149; Ord. No. 4398, § 14, 11-19-1996)

Sec. 6-28-14. Abandonment of right-of-way.

In the event that the city shall close or abandon any public street, alley or right-of-way, which contains any portion of grantee's system, any conveyance of land contained in such closed or abandoned public street, alley, highway or right-of-way shall be subject to the rights herein granted.
(Code 1985, § 10-150; Ord. No. 4398, § 15, 11-19-1996)

Sec. 6-28-15. Relocation of the system.

A. *New grade or lines.* If the grades or lines of any street on which any system is placed are changed at any time during the term of the franchise, then the grantee shall, at its own cost and expense and upon the request of the city, protect or promptly alter or relocate grantee's system, or any affected part thereof, so as to conform with such new grades or lines. In the event that the grantee refuses or neglects to so protect, alter or relocate

all or part of its system, the city shall have the right to break through, move, alter or relocate such part of grantee's system, without any liability to the city, and the grantee shall pay to the city the costs incurred in connection with such breaking through, removing, altering or relocating.

B. *Relocation of right-of-way.* Wherever a public right-of-way or other public property is being constructed, paved (whether or not such paving is part of a more extensive improvement project), resurfaced, relocated or otherwise altered or improved (including, but not limited to, the installation of sidewalk, curb, gutter, drainage facilities, water mains, or sewer mains, traffic signals or trees), grantee shall, within 90 days of written notice from the city engineer, and at no cost (direct or indirect) to the city, remove or relocate any grantee facility located within the public right-of-way or public property or perform such work as it deems necessary for the extension of new facilities, except that grantee may recover from any other person other than the city who relocates any such grantee facility without 90 days' written notice from the city engineer authorizing such other person to relocate or remove grantee's facilities. The relocation or extension of new facilities shall be to a location approved by the city. Failure to obtain the city's approval of the location of facilities relocated under this section will be considered a forfeiture under section 6-28-30. Grantee shall be responsible for any damage it causes to property, including image to trees and other landscaping, as a result of the relocation or removal of facilities.

C. *Time limit liquidated damages.*

1. Failure of grantee to remove or relocate the facility to a location approved by the city within 90 days of the city's written notice shall entitle the city to recover liquidated damages from grantee. The liquidated damages for failure to remove or relocate a facility shall not exceed $250.00 per diem.

2. If grantee believes it will be unable to complete the relocation within 90 days from receipt of notice from the city, grantee shall explain the reasons for its inability in detail and the city and grantee shall attempt to agree on an alternate schedule, subject, however, to the city's right to finally determine the schedule and liquidated damages, as long as grantee's explanation is not unreasonable, grantee shall be excused.

(Code 1985, § 10-151; Ord. No. 4398, § 16, 11-19-1996)

Sec. 6-28-16. Bonds.

A. Grantee shall obtain and maintain, at its sole cost and expense, and file with the division of finance and administration, a corporate surety bond with a surety company authorized to do business in the State of Tennessee and found acceptable by the city attorney, in the amount of $100,000.00, both to guarantee the timely construction and full capability of grantee's system, and to secure grantee's performance of its obligations and faithful adherence to all requirements of this chapter. On and after June 30, 2000, the city reserves the right to impose a reasonable bond requirement applicable to all telecommunication franchisees to secure grantee's performance of its obligations and faithful adherence to all of the requirements of this chapter. Grantee shall provide this corporate surety bond at the time of execution of a written acceptance of a franchise agreement as required by section 6-28-22.

B. The rights reserved to the city with respect to the bond are in addition to all other rights of the city, whether reserved by this chapter or authorized by law; and no action, proceeding or exercise or a right with respect to such bond shall affect any other right the city may have.

C. The bond shall contain the following endorsement:

> "It is hereby understood and agreed that this bond may not be cancelled by the surety nor any intention not to renew be exercised by the surety until 60 days after receipt by the city, by registered mail, of written notice of such intent."

(Code 1985, § 10-152; Ord. No. 4398, § 17, 11-19-1996)

Sec. 6-28-17. Insurance requirements.

A. On or before the effective date of a franchise granted hereunder, grantee shall file with the city a certificate of insurance and thereafter maintain in full force and effect at all times for the full term of the franchise, at the expense of grantee, a comprehensive general liability insurance policy, including underground property damage coverage, naming the city as additional insured, written by a company authorized to do business in the state, protecting the city against liability for loss or bodily injury and property damage occasioned by the

installation, removal, maintenance or operation of the communications system by grantee in the following minimum amounts:

1. $500,000.00 combined single limit, bodily injury and for real property damage in any one occurrence.
2. $2,000,000.00 aggregate.

B. Grantee shall also file with the city a certificate of insurance for a comprehensive automobile liability insurance policy written by a company authorized to do business in the state, for all owned, nonowned, hired and leased vehicles operated by grantee, with limits no less than $1,000,000.00 each accident, single limit, bodily injury and property damage combined, or evidence of self-insurance.

C. Grantee shall also maintain and specifically agrees that it will maintain throughout the term of the franchise, workers compensation and employers liability, valid in the state, in the minimum amount of the statutory limit for workers' compensation.

D. All liability insurance required pursuant to this section shall kept in full force and effect by grantee during the existence of the franchise and until after the removal of all poles, wires, cables, underground conduits, manholes and any other conductors and fixtures installed by grantee incident to the maintenance and operation of the communications system as defined in this chapter. All policies shall be endorsed to give the city 30 days' written notice of the intent to amend or cancel by either grantee or the insuring company.
(Code 1985, § 10-153; Ord. No. 4398, § 18, 11-19-1996)

Sec. 6-28-18. Indemnification.

Grantee shall indemnify, defend and save whole and harmless the city and all of its officers, agencies and employees against and from any and all claims, suits, final judgments, actions, losses, costs and expenses, including attorney's fees and costs or expenses incidental to the investigation and defense of claims and lawsuits brought for, on behalf of, or on account of any injuries or damages received or sustained by any person, firm or corporation or to any property, which may be occasioned by, or arising out of or from, the conduct of grantee in connection with this chapter, the construction, reconstruction, expansion, removal, maintenance, operation or repair of grantee's system, the conduct of grantee's business in the city pursuant to this chapter, any occurrence in connection with this chapter, any and all claims and lawsuits arising from any breach or default on the part of grantee in the performance of any term, condition, provision, covenant or agreement to be performed by grantee pursuant to this chapter or the franchise agreement, any act or omission of grantee or any of its agents, contractors, subcontractors, servants, employees or licensees, or any relationship between grantee and its end use customers and retailers whether caused by or attributable solely to grantee and others, or the city, and grantee shall pay all final judgments, with costs, attorneys fees and expenses, which may be obtained against the city related to any such claim. The city agrees to give grantee prompt and reasonable notice of any claims or lawsuits; and grantee shall have the right to investigate, compromise, intervene and defend same to the extent of its own interest. The above indemnification shall not apply to any judgment of liability resulting from the gross negligence or willful misconduct of the city. The terms and provisions contained in this section are intended to be for the benefit of the city and grantee and are not intended to be for the benefit of any third party. The city shall have the right to participate or conduct the defense of its interests in any proceeding, and thereby assume risks and liabilities for its own acts or omissions.
(Code 1985, § 10-154; Ord. No. 4398, § 19, 11-19-1996)

Sec. 6-28-19. Initial compensation to the city.

A. As an additional compensation for any franchise granted hereunder, grantee shall furnish and transfer, during the entire term of the franchise, to the city, without charge therefor, for the use by the city on official business only the functional equivalent in grantee's telecommunications system of up to 200 connecting locations in the aggregate selected by the city: (i) in four optical fibers in the main backbone loop of a telecommunications system having approximately 58 miles; and (ii) in any cable outside the backbone loop where 12 or more optical fibers are installed. If additional connection points are requested by the city, the city will reimburse grantee reasonable expense for those connections. All the previously described connections shall be restricted to splice points which are located at a maximum spacing of one-half mile. The type of fibers provided for the city shall be equal to the fibers used by grantee. Grantee shall be responsible for maintenance of the city's optical fibers up to the point where the city connects, and would assist with problem resolution in optical fibers.

B. As a further consideration for the franchise herein granted hereunder, grantee shall at its own expense provide, furnish and serve, and continue to provide, furnish, and reserve, in its overhead or underground system or systems, and in all replacements, additions and extensions thereof, space, crossarms, pins and supports on all poles, and one duct in all conduits, and necessary space in manholes, for the wires, fixtures and other equipment of the police and fire alarm telephone and telegraph stems of the city, as requested from time to time by the city. In order to ensure coordination of city facilities with grantee's network, grantee agrees:

1. To provide 24-hour-per-day continuous monitoring of the facilities that the city is using in conjunction with grantee's network; and

2. To coordinate design and installation of other network specific requirements the city may have, including maintenance, at grantee's cost, plus ten percent.

C. Alternatively, grantee shall make, at the sole option of the city, a cash payment equal to the cost the city would be required to pay in the open market to another provider for the lease, sublease, purchase or use of the portions of a telecommunications system described in subsections A and B of this section.
(Code 1985, § 10-155; Ord. No. 4398, § 20, 11-19-1996)

Sec. 6-28-20. General compensation to the city.

A. *General compensation.* The city finds that the public streets, alleys and public rights-of-way to be used by grantee for the purpose of reselling telecommunication services derived from telecommunication systems operated within the boundaries of the city are valuable public properties, acquired and maintained by the city at great expense to its taxpayers, and that the grant to grantee of the use of the public streets, alleys and rights-of-way is a valuable property right, without which the grantee would be required to invest substantial capital in public right-of-way costs and acquisitions; the grantee agrees to pay to the city as general compensation during each year of the franchise agreement, an amount equal to five percent of gross revenues for each quarter of a compensation year. Grantee shall forward by check or money order an amount equal to the quarterly payment by the 15th day of the second calendar month immediately following the close of the calendar quarter for which the payment is calculated. Any necessary prorations shall be made.

B. *Recalculation at end of compensation year.*

1. At the end of each compensation year, grantee shall recalculate the total general compensation actually due. If additional amounts are due the city by grantee, such amounts shall be paid by the 15th day of the second month of the compensation year following the compensation year during which such amounts were originally due. If amounts are found to be due the grantee by the city, such amounts shall be credited by the 15th day of the second month of the compensation year following the compensation year during which such amounts were originally due. Any necessary prorations shall be made. The compensation set forth in this section shall be exclusive of and in addition to all special assessments and taxes of whatever nature, including, but not limited to, ad valorem taxes. In the event any quarterly payment is made after noon on date due, grantee shall pay a late payment penalty of the greater of: (i) $100.00; or (ii) simple interest at the highest rate allowable from time to time by Tennessee law multiplied by the total amount past due for the actual number of days elapsed.

2. Payment of money under this section shall not in any way limit or inhibit any of the privileges or rights of the city, whether under this chapter or otherwise.

3. Grantee shall file annually with the director of finance and administration no later than 90 days after the end of the grantee's fiscal year, an audited statement of revenues (for that year) attributable to the operations of the grantee's system, within the city pursuant to this chapter. This statement shall present a detailed breakdown of gross revenues and uncollectible accounts for the year.

4. Any transaction which has the effect of circumventing payment of required franchise fees and/or evasion of payment of franchise fees by noncollecting or nonreporting of gross revenues, bartering or any other means, which evade the actual collection of revenues for business pursued by grantee, is prohibited.

(Code 1985, § 10-156; Ord. No. 4398, § 21, 11-19-1996)

Sec. 6-28-21. Accounts, records and reports.

A. Grantee shall keep the city fully informed as to all matters in connection with or affecting the construction, reconstruction, removal, maintenance, operation and repair of grantee's system, grantee's accounting methods and procedures in connection therewith, and the recording and reporting by grantee of all revenues and uncollectibles.

B. Grantee shall keep complete and accurate books of account and records of its business and operations pursuant to this chapter in accordance with generally accepted accounting principles, subject to approval by the city. If required by the city or the FCC, grantee shall use the system of accounts and the forms of books, accounts, records and memoranda prescribed by the FCC in 47 CFR part 32 or its successor and as may be further described herein. The city may require the keeping of additional records or accounts which are reasonably necessary for purposes of identifying, accounting for, and reporting gross revenues and uncollectibles for purposes of section 6-28-20. Grantee shall keep its books of account and records in such a way that breakdowns of revenues are available by type of service within the city.

In order to determine the gross revenues received by the grantee for those categories identified in section 6-28-2, grantee agrees that on the same date that payment is made, as provided in section 6-28-20, it will file with the director of finance and administration a sworn copy of a report in a form acceptable to the city, in sufficient detail to itemize revenues from each of the categories identified in section 6-28-2. It is agreed that the report will not require such detail that will divulge proprietary information. The city may, if it sees fit, have the books and records (including those books and records that may divulge proprietary information) of grantee examined by a representative of the city to ascertain the correctness of the reports agreed to be filed herein, including those financial records that may divulge proprietary information.

C. Grantee shall report to the city such other information relating to grantee as the city may consider useful and shall comply with the city's determination of forms for reports, the time for reports, the frequency with which any reports are to be made, and if reports are to be made under oath.

D. Grantee shall provide the city with access at reasonable times and for reasonable purposes, to examine, audit, review and/or obtain copies of the papers, books, accounts, documents, maps, plans and other records of grantee pertaining to the franchise agreement. Grantee shall fully cooperate in making available its records and otherwise assisting in these activities.

E. The city may, at any time, make inquiries pertaining to grantee's operation of its system within the city. Grantee shall respond to such inquiries on a timely basis.

F. 1. The city agrees that:

a. Any confidential information received by the city hereunder will be held in confidence and will not be disclosed to third parties, except as otherwise provided herein;

b. The disclosure and use of any confidential information will be limited to recipient's employees and affiliates having a need-to-know and use such confidential information; or

c. It will use the confidential information only for the purposes contemplated under this agreement.

2. Notwithstanding any provision of this chapter to the contrary, the city shall not be precluded from disclosing confidential information if such disclosure is:

a. In response to a valid order of a court, regulatory or other governmental body of the United States or any political subdivision thereof; provided, however, that the recipient shall first have given notice of such order to the grantee, and the recipient shall, to the extent possible, give grantee the opportunity to obtain a protective order requiring that the information and/or documents so disclosed be used only for the purpose for which the order was issued;

b. Otherwise required by law or government regulation;

c. Of confidential information already in the possession of the recipient;

d. Of confidential information independently developed by the recipient;

e. Of confidential information that becomes publicly available without breach of this agreement;

f. Of confidential information rightfully received by the recipient from a third party free of restriction and without breach of this agreement; or

g. Released for disclosure by the grantee with the grantee's prior written consent.

The city shall not be liable to any grantee hereunder for any disclosure of information, which it determines in good faith or on advice of counsel not to be confidential information or which it determines on advice of counsel that it is required to disclose based on applicable law.

G. Grantee shall provide the city with notices of all petitions, applications, communications and reports submitted by grantee to the FCC, Securities and Exchange Commission and the Tennessee Public Service Commission or their successor agencies, relating to any matters directly affecting the use of public streets, alleys and public rights-of-way and/or the telecommunications operations authorized pursuant to this chapter. Upon written request from the city, grantee shall provide the city with copies of all such documentation.
(Code 1985, § 10-157; Ord. No. 4398, § 22, 11-19-1996)

Sec. 6-28-22. Term of franchise.

A. *Term.* Within 30 days after adoption of an ordinance granting a telecommunications franchise pursuant hereto, grantee shall execute an agreement accepting this franchise substantially in the form set out in section 6-28-35. In the event any such franchise agreement is not executed by a grantee within the 30 days, the award of the telecommunications franchise shall be null and void. Upon execution of a franchise agreement between the city and grantee, a franchise shall be in full force and effect for a term and period of 20 years, ending on the anniversary date of the franchise.

B. *Adjustment of compensation.* Commencing July 1, 2000, and on every fifth anniversary date thereafter, the city reserves the right to establish in good faith, the amount, nature and terms of compensation (other than initial compensation) to be paid by grantee for use of the public rights-of-way during the remaining term of the franchise agreement. Any adjustment to compensation shall become effective on the first day of the next succeeding calendar quarter ("adjustment date"). The terms of any such compensation shall be reflected in a master amending ordinance affecting all then existing telecommunication franchises, including, but not limited to, those awarded pursuant to and under this chapter. Any adjustment to compensation shall be reasonable and nondiscriminatory as to other telecommunication franchises. No such amendment may take effect except by a duly enacted ordinance of the city.

C. *Dispute resolution.* If grantee shall in good faith maintain that the amount, terms or nature of any adjustment to compensation approved by the city council pursuant to subsection B of this section is excessive or unreasonable, given the value of the privileges granted under this chapter and grantee's franchise, grantee shall, within ten days of such determination, file with the chairperson of the city council a statement identifying the reasons why the adjusted compensation is excessive or unreasonable. In the event that the city council does not reconsider and change its adjustment to compensation within 30 days of the adjustment, grantee shall have the right to make a demand for arbitration in writing to the city attorney within 30 days after such adjustment date. In such event, the city and grantee shall each appoint an arbitrator and a third arbitrator all be appointed by the arbitrators so appointed. Each arbitrator shall have at least five years of experience in the field of rights-of-way procurement. Pursuant to the then-current rules of American Arbitration Association, or any successor organization, an arbitration shall be held as expeditiously as possible and the question to be answered by the arbitrators shall be:

> "Is the Compensation adjusted by the City excessive or unreasonable, taking into account the value of the privileges granted to Grantee, both present and future, and the charges required by municipalities in comparable urban areas for similar rights-of-way?"

Unless the majority of the arbitrators shall decide the foregoing question in the affirmative, grantee shall be bound to pay the adjusted compensation requested by the city, retroactive to the applicable adjustment date. If a majority of the arbitrators shall decide the foregoing question in the affirmative, then the city shall withdraw the proposed adjustment to compensation, and grantee shall continue paying the compensation previously in effect. The cost of arbitration shall be borne entirely by grantee, except that each party shall be responsible for their respective attorney's fees and expenses.
(Code 1985, § 10-158; Ord. No. 4398, § 23, 11-19-1996)

Sec. 6-28-23. Extension of term.

If, on the expiration date, grantee shall not be in default under the franchise agreement, and if neither

party has notified the other of its intent to terminate the franchise on or before the expiration date, then the terms of the franchise agreement shall be deemed extended on an interim basis until terminated, renewed or renegotiated. The interim extension period shall not extend beyond a date 60 days after the expiration date, after which date the franchise shall be considered terminated and all rights of the grantee to use the public rights-of-way to provide telecommunications services shall cease. (Code 1985, § 10-159; Ord. No. 4398, § 24, 11-19-1996)

Sec. 6-28-24. Renewal.

A. At any time during the last year of a franchise, grantee may request the city to enter into negotiations toward renewing or extending the franchise. The exercise by grantee of this option shall not bind the city as to acceptance of any particular terms or renewal of the rights granted by the franchise. Any proposed renewal, extension or modification of the franchise is subject to the council's approval, modifications or rejection in its sole discretion.

B. Upon expiration of the twentieth year of the franchise agreement, the city shall have the right, at its election, to:

1. Renew or extend the franchise for an additional period, as agreed by the city and grantee;
2. Invite additional franchise applications or proposals; or
3. Allow the franchise to terminate without further action.

C. It is a condition to the grant of a franchise hereunder that the city shall have the right to exercise these options.
(Code 1985, § 10-160; Ord. No. 4398, § 25, 11-19-1996)

Sec. 6-28-25. Assignment or lease of franchise.

A. Neither the franchise, the assets held by grantee under this chapter, nor any rights or privileges of grantee under this chapter or the franchise agreement, grantee's system capacity, or allowance of access to grantee's system, either separately or collectively, shall be sold, resold, assigned, transferred or conveyed by grantee to any other person, firm, corporation, affiliate or entity, without the prior written consent of the city by ordinance of the council. No such sale, assignment, transfer or conveyance by grantee shall be approved by the council for one year after the execution of a franchise agreement, unless such sale, assignment, transfer or conveyance is to another city franchisee or licensee, and the council determines such sale, assignment, transfer or conveyance is in the best interest of the city and its citizens. Should the grantee sell, assign, transfer, convey or otherwise dispose of any of its rights or its interests under this chapter, or attempt to do so, in violation of this requirement to obtain prior written consent, the city may revoke a franchise granted hereunder for default, in which event all rights and interest of the grantee shall cease and no purported sale, assignment, transfer or conveyance shall be effective.

B. Plant and facilities owned by grantee located within public property shall not be leased or subleased to another provider or reseller of similar services for the purpose of serving the reseller's own customers; provided, however, but not limited to, access services from interexchange or long distance carriers is not prohibited. (Code 1985, § 10-161; Ord. No. 4398, § 26, 11-19-1996)

Sec. 6-28-26. Violations and cure provisions.

A. If the city has reason to believe that grantee is in violation of this chapter, the city shall notify grantee in writing of the violation, setting forth the nature of such violation. Within ten days of receipt of such notice, grantee shall respond in writing to provide explanation or documentation to support that the violation did not occur. Grantee shall be allowed 30 days to cure violations after written notice is received from the city, unless prevented from doing so for reasons beyond control of grantee.

B. Upon evidence being received by the city that any violation of this chapter, any city Charter provisions or any ordinances willfully regulating grantee in the construction and operation of the system is occurring, or has occurred, the city shall cause an investigation to be made. If the city finds that such a violation exists or has occurred, the grantee shall take appropriate steps to comply with the terms of this chapter and any lawful regulation. Should grantee fail to comply, after the above-stated notice and opportunity to cure, then the city may take any action authorized by law, including revocation or repeal of the franchise or a suit in court to compel compliance. If, in any such proceeding, default is finally established, grantee shall be required to pay to the city the reasonable expenses incurred in the prosecution of such suit and all the city's damages and costs (including attorney fees); provided, however, the preceding

sentence shall be inapplicable unless its provisions may be lawfully enforced against other telecommunication franchisees of the city.
(Code 1985, § 10-162; Ord. No. 4398, § 27, 11-19-1996)

Sec. 6-28-27. Revocation and termination.

A. In addition to all other rights and powers retained by the city under this chapter or otherwise, the city reserves the right to revoke and terminate any franchise issued by authority of this chapter, and all rights and privileges of grantee hereunder shall cease in the event of substantial breach, subject to reasonable notice and opportunity to cure, of its terms and conditions. A substantial breach of grantee shall include, but shall not be limited to, the following:

1. Grantee's violation of any material provision of this chapter or any material rule, order or regulation of the city made pursuant to this chapter;
2. Grantee's failure to properly compensate the city as required in this chapter;
3. Grantee's attempt to evade any material provision of the franchise ordinance or to practice any fraud or deceit upon the city or upon grantee's end-user customers or interexchange carrier;
4. Grantee's failure to be capable of providing actual services to its initial end-user customers within 12 months from the date of the award of grantee's franchise, unless otherwise authorized or extended by the council;
5. Grantee's failure to complete its construction and provide service as described in section 6-28-5 of this chapter;
6. For failure to file and maintain the bond, security or insurance required under this chapter;
7. Grantee's attempt to sell, resell, transfer, convey or assign any of the rights and privileges granted pursuant to this chapter within one year after the passage of the ordinance from which this chapter derives;
8. Grantee's attempt to sell, transfer, convey or assign any of the rights and privileges granted pursuant to this chapter without council approval;
9. Grantee's failure to respond to or comply with reports, audits, statements and other information lawfully requested by the city;
10. Any material cessation in the operation of grantee's system for six months after it has been constructed; or
11. Grantee's material misrepresentation of fact in its application or negotiations during the franchise process; or the conviction of any director, officer, employee or agent of grantee for the offense of bribery or fraud connected with or resulting from the award of the franchise to grantee.

B. The foregoing shall not constitute a substantial breach if the violation occurs without the fault of grantee or occurs as a result of circumstances beyond its control. Grantee shall not be excused by mere economic hardship, nor misfeasance or malfeasance of its directors, officers or employees. Revocation or termination shall only take place for material cause.

C. Upon expiration of the term of the franchise agreement or upon any other termination therefor as provided herein, or by application for approval of transfer of the entire franchise or a majority interest thereof, the city at its election and upon the payment to the grantee of a price equal to the fair market value of the system shall have the right to purchase the system and all interests therein as the city's sole and absolute property. In the event of dispute between city and grantee of what is fair market value, the dispute shall be submitted to arbitration pursuant to provisions of T.C.A. § 29-5-101 et seq. In such event, the city and grantee shall each appoint an arbitrator and a third arbitrator all be appointed by the arbitrators so appointed. Each arbitrator shall have at least five years of experience in the field of rights-of-way procurement. Pursuant to the then-current rules of the American Arbitration Association, or any successor organization, an arbitration shall be held as expeditiously as possible. If the city has exercised its option to purchase at fair market value, it shall have the right to assume operation of the system even though the final award has not been made by the arbitrators or as approved by the court. This right of first refusal for purchase shall also include the right to purchase for the price offered to the grantee. In the event that there is a contemplated sale of the system or majority interest thereof, or upon the termination as provided herein, or by law, the city must exercise its option within 30 days. In

the event the grantee has petitioned the city for renewal and renegotiation of its franchise as provided herein, the city must exercise its option to purchase the system within 30 days of the requested renewal or renegotiation or at least six months prior to the end of the franchise, whichever is later. Nothing shall prohibit the grantee in the event of the election of the city to purchase the system from requesting the court to set a reasonable bond of the city to secure the purchase price. The grantee shall execute such warranty deeds and other instruments as may be necessary.
(Code 1985, § 10-163; Ord. No. 4398, § 28, 11-19-1996)

Sec. 6-28-28. Service standards.

A. Grantee shall maintain and operate its communications system and business in an efficient manner and shall provide adequate, efficient and reasonable service to its customers in the city. Once it commences operation, grantee's system shall provide continuous and uninterrupted service throughout the term of the franchise, unless prevented from doing so by circumstances beyond the control of grantee.

B. Grantee shall comply with all applicable federal, state and local laws, rules and regulations, including those adopted by the TRA or any successor agency or commission.

C. Grantee shall not practice unjust discrimination regarding rates and services between individual customers or classes of customers.
(Code 1985, § 10-164; Ord. No. 4398, § 29, 11-19-1996)

Sec. 6-28-29. Preferential or discriminatory practices prohibited.

Grantee shall not make or grant any unreasonable preference or advantage to any person, nor subject any person to any unreasonable prejudice or disadvantage in its exercise of the rights and privileges granted by its franchise; provided, however, that nothing in its franchise shall be deemed to prohibit the establishment of a graduated scale of charges and classified rate schedules, consistent with applicable law, to which any customer coming within such classification would be entitled.
(Code 1985, § 10-165; Ord. No. 4398, § 30, 11-19-1996)

Sec. 6-28-30. Conflict with other laws.

Where a provision of this chapter or grantee's franchise is in conflict with any state or federal statute or a rule of the TRA or FCC, so that grantee cannot reasonably comply with both the provisions of this chapter or franchise and the statute or rule of the TRA or FCC, then grantee may, after giving the city written notice of its intent to do so and a statement of the legal grounds for its position, comply with such rule instead of the conflicting provision of this chapter or the franchise until such time as the city obtains a contrary ruling or other relief from an appropriate regulatory agency or court of competent jurisdiction; but grantee shall comply with all remaining provisions of this chapter or franchise. Notice of intention not to comply given pursuant to this section shall not relieve grantee—upon determination that the noncompliance was unlawful or otherwise improper—from the obligation to pay more damages, redo work at grantee's expense, or otherwise take such steps as may be necessary to restore the city to the position it would have been in if grantee had remained in compliance with this chapter and its franchise.
(Code 1985, § 10-166; Ord. No. 4398, § 31, 11-19-1996)

Sec. 6-28-31. Compliance with applicable laws and ordinances.

Grantee shall, at all times during the term of its franchise, be subject to the provisions of the present Charter of the city, the present ordinances, resolutions, rules, regulations and laws of the city and the state and to the provisions of any further charter, ordinance, resolution, rule, regulation or law of the city or of the state, so far as they may be applicable.
(Code 1985, § 10-167; Ord. No. 4398, § 32, 11-19-1996)

Sec. 6-28-32. Tennessee law governs.

In any controversy or dispute under this chapter, the law of the state shall apply to the extent such law has not been superseded or preempted.
(Code 1985, § 10-168; Ord. No. 4398, § 33, 11-19-1996)

Sec. 6-28-33. City taking part in litigation.

The city shall have the right to take part, by intervention or otherwise at its option, in any suit, action or proceeding instituted by or against grantee in which any judgment, decree or order can be rendered affecting the rights, powers or duties of grantee to do or not to do anything which, by its franchise or this chapter, it is obligated or may be required to do or not to do or

affecting, such as by foreclosure or lien, grantee's title to any facility. Grantee shall not object to the city's exercise of such right.
(Code 1985, § 10-169; Ord. No. 4398, § 34, 11-19-1996)

Sec. 6-28-34. Office location.

The grantee shall maintain an office in the city. Grantee shall always keep and maintain city specific books, records, contracts, accounts, documents and papers for its operation within the city. All maps, plats, records and inventories and books of the grantee, insofar as they show values and location of existing property shall be preserved for use, if necessary, in connection with any future valuation of the property of the grantee.
(Code 1985, § 10-170; Ord. No. 4398, § 35, 11-19-1996)

Sec. 6-28-35. Telecommunications franchise contract.

Telecommunications Franchise Contract by and between the City of Memphis and [Grantee]

THIS FRANCHISE AGREEMENT is entered into this _____ day of _____, 20___ by and between THE CITY OF MEMPHIS and [GRANTEE], duly authorized to do business in the State of Tennessee (hereinafter "Grantee").

WITNESSETH:

WHEREAS, Grantee has duly filed its application for a telecommunications franchise pursuant to the terms of Ordinance No. 4398; and,

WHEREAS, the grant of a telecommunications franchise to grantee has been approved by ordinance of the council of the City of Memphis in accordance with section 15 of the Charter of the City.

NOW, THEREFORE, pursuant to the authority granted by the Charter of the City and by Ordinance No. 4398, and for good and valuable consideration, the City hereby grants a telecommunications franchise to Grantee subject to the following terms and conditions:

1. Grantee's application for a franchise to construct and operate a telecommunications system using fiber optic cable, in whole or in part, which application was filed with the Chief Administrative Officer of the City on [APPLICATION DATE], and is incorporated herein by reference is hereby accepted by the City.

2. Pursuant to the terms of said application and the provisions of Ordinance No. 4398, Grantee is hereby awarded a franchise to construct, maintain and operate a telecommunications system, as defined in said ordinance, within the City of Memphis.

3. Grantee hereby agrees to and accepts the terms and conditions contained in Ordinance No. 4398, which is incorporated into this Contract by reference.

4. Grantee shall, prior to execution of this Franchise Contract, file with the Director of Finance a bond and certificate of insurance meeting the requirements of Ordinance No. 4398. Grantee shall not commence construction, operation or activation of its telecommunications system until these bond and insurance requirements are satisfied.

5. Grantee warrants that it has the financial capability to construct, maintain, and operate a telecommunications system and to comply with the provisions of Ordinance No. 4398.

6. Grantee shall provide no service regulated by the Federal Communications Commission and/or the Tennessee Regulatory Authority until it has received all necessary approvals and permits from said commissions.

7. The City of Memphis agrees to use its best efforts to preserve the confidentiality of information designated by Grantee as proprietary, to the extent permitted by law.

8. The time within which Grantee shall be required to perform any act under the franchise ordinance shall be extended by a period of time equal to the number of days due to a force majeure. The term "force majeure" means delays due to acts of God, inability to obtain governmental approvals, governmental restrictions, war, civil disturbances, fire, unavoidable casualty, construction delays due to weather, or other similar causes beyond the control of Grantee. Grantee shall not be excused from performance of any of its obligations under Ordinance No. 4398, by misfeasance or malfeasance of its directors, officers or employees or by mere economic hardship.

9. Nothing herein shall be deemed to create a joint venture or principal-agent relationship between the parties, and neither party is authorized to, nor shall either party act toward third persons or the public in the manner which would indicate any such relationship with the other.

10. This Franchise Contract shall be subject to revocation or termination in accordance with the terms and conditions and procedures of sections 27 and 28 of Ordinance No. 4398.

11. The franchise granted by this Franchise Contract is subject to the provisions of T.C.A. § 65-4-107, which requires approval by the Tennessee Regulatory Authority of any municipal franchise granted to a public utility to the full extent that said statute is applicable under the laws of Tennessee.

12. Upon the execution of this Franchise Contract, the Franchise Contract shall be deemed to constitute a contract by and between Grantee and the City of Memphis and shall be enforceable in accordance with its terms even if Ordinance No. 4398 or any subsection, sentence, clause, phrase, term, provision, condition, covenant or portion thereof is held invalid or unenforceable by a court of competent jurisdiction.

13. This Franchise Contract and all attachments hereto represent the entire understanding and agreement between the parties hereto with respect to the subject matter hereof, and can be amended, supplemented, modified or changed only as provided in Ordinance No. 4398.

IN WITNESS WHEREOF, the Grantee and the City of Memphis have executed this Franchise Contract by signatures of their lawfully designated representatives, on the day, month and year first above written.

THE CITY OF MEMPHIS:

/s/_____

W. W. Herenton, Mayor

GRANTEE:

[GRANTEE]

By: _____

Title: _____

APPROVED AS TO LEGALITY OF FORM AND COMPOSITION:

/s/_____

City Attorney

(Code 1985, § 10-171; Ord. No. 4398, exh. A, 11-19-1996)

CHAPTER 6-32. HORSE-DRAWN CARRIAGES

Sections:

Article 1. Definitions

Sec. 6-32-1. Definitions.

Article 2. Powers of Director—Regulations

Sec. 6-32-2. Rules and regulations of the director of police services relative to horse-drawn carriages.
Sec. 6-32-3. City treasurer—Powers; appeal of decisions.
Sec. 6-32-4. Duty of vehicle for hire inspectors to enforce chapter.
Sec. 6-32-5. Certificate required; exceptions.

Article 3. Certification Requirements

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Article 4. Drivers and Conductors

Sec. 6-32-20. Vehicle drivers.
Sec. 6-32-21. Application for a driver's permit.
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Sec. 6-32-26. Notification of company change of driver.
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Sec. 6-32-29. Possession of permit.
Sec. 6-32-30. Expiration and renewal.

Sec. 6-32-31. Fines, suspension and revocation of permit.
Sec. 6-32-32. Unauthorized use of permit; defacing or removing permit.
Sec. 6-32-33. Standards of appearance and conduct of drivers.
Sec. 6-32-34. Total passengers in vehicle; carrying passengers on driver's seat prohibited.
Sec. 6-32-35. Consent required for horse-drawn carriage driver to pick up additional passengers.
Sec. 6-32-36. Drivers not to work more than 12 hours out of 24.
Sec. 6-32-37. Solicitation of passengers by drivers; drivers to remain in or near carriage.
Sec. 6-32-38. Drivers of horse-drawn carriages.

Article 5. Vehicles

Sec. 6-32-39. Carriage safety equipment.
Sec. 6-32-40. Television equipment.
Sec. 6-32-41. Horse-drawn carriage maintenance.

Article 6. Care of Animals

Sec. 6-32-42. Proper care of animals used for horse-drawn carriages for hire.
Sec. 6-32-43. Conditions for horse-drawn carriages for hire.
Sec. 6-32-44. Harnesses for horse-drawn carriages for hire.
Sec. 6-32-45. Whip.
Sec. 6-32-46. Food, water and exercise.
Sec. 6-32-47. Stalls and stables.
Sec. 6-32-48. Litter.
Sec. 6-32-49. Immediate cleanup of waste products.

ARTICLE 1. DEFINITIONS

Sec. 6-32-1. Definitions.

The following words and phrases when used in this chapter shall have the meaning as set out herein:

Certificate means a certificate of public convenience and necessity issued by the director of police services authorizing the holder hereof to conduct a horse-drawn carriage for hire business in the city.

Carriage means a horse-drawn carriage regularly used in the business of carrying passengers for a fare whether or not on a fixed route.

Director of police services means the director of police services of the city, or his or her authorized designee.

Driver shall be held to include every person in actual charge of the operation of a horse-drawn carriage.

Driver's permit means the permission granted by the director of police services to a person to drive a horse-drawn carriage for hire upon the streets of the city.

For hire means agreement to transport a person or persons for a fare.

Holder means a person to whom a certificate of public convenience and necessity has been issued.

Horse means any animal of the genus equus.

Owner means the person who has proved to the director of police services that he or she is the legal owner of the horse-drawn carriage.

Permit/license inspector shall be a Memphis police officer authorized and instructed to watch and observe the conduct of holders of certificate of public convenience and necessity and drivers operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector(s) will order or take appropriate action.

Person includes an individual, a corporation or other legal entity, a partnership, or any unincorporated association. Person must be a resident of the State of Tennessee or member of corporation recognized in Tennessee.

Stable means any place, establishment or facility where one or more horses are housed or maintained.

Stand. A horse-drawn carriage for hire stand is a place where the city engineer in concert with director of police services has authorized a holder of a certification of public convenience and necessity to park horse-drawn carriage for hire out of service awaiting a passenger.

Sticker means identifying sticker issued by the Memphis police department on authority of director of police services, to be displayed on rear of horse-drawn carriage next to identification plate. Sticker to be issued annually with certificate of convenience and necessity.

Veterinarian means a person licensed to practice veterinary medicine.

Work. A horse is considered working when it is out of the stable and at its carriage stand or place where it regularly picks up passengers. Work ends when the horse leaves its stand to go to the stable.
(Code 1985, § 39-71; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 2. POWERS OF DIRECTOR—REGULATIONS

Sec. 6-32-2. Rules and regulations of the director of police services relative to horse-drawn carriages.

The director of police services is authorized and directed to make and enforce such additional rules and regulations, not in conflict with the provisions of this chapter, as the director may deem proper to regulate the operation of horse-drawn carriages for hire under a certificate issued pursuant to this chapter, provided that no regulation shall be made or enforced in conflict with this chapter or any other city ordinance.
(Code 1985, § 39-102; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-3. City treasurer—Powers; appeal of decisions.

A. The city treasurer is vested with full and complete authority to issue, alter, deny, suspend or revoke certificates of public convenience and necessity and permits for drivers, as herein provided, and is further vested with the full and complete authority, duty and responsibility to carry into effect the provisions of this chapter. The city treasurer may designate an officer to render rulings or take all other actions herein granted to the city treasurer, as indicated by the city treasurer.

B. The city treasurer or the city treasurer's designee shall conduct hearings on those matters requiring same. Decisions of the designee may be appealed by the applicant, the certificate holder, or driver within ten days after the decision affecting the person, by filing a written appeal with the city treasurer. The city treasurer may rule after a review of the record or may set a hearing as soon as practicable. Ten days' notice of a public hearing stating the time and place of the public hearing and the express terms or an informative summary of the subject matter of the public hearing provided for herein shall be given by publication in some newspaper published in the city, the cost thereof to be paid by the applicant or certificate holder.

C. An applicant, driver or certificate holder aggrieved by any final order or determination of the city treasurer in regard to the issuance, denial, suspension or revocation of that person's certificate or permit under this chapter may, within ten days after such denial, file with the comptroller a petition for review of the action of the city treasurer in denying the application, and it shall then be the duty of the city council to hold a public hearing and either grant or deny the application. In all such cases any interested party or holder of a certificate of necessity and convenience shall have a right to be heard; provided, further, that, in any such appeal to the city council, the decision of the city treasurer shall be prima facie correct.
(Code 1985, § 39-103; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-4. Duty of vehicle for hire inspectors to enforce chapter.

The director of police services and/or his or her designees of the city are authorized and are instructed to monitor the conduct of holders of certificates of a public convenience and necessity and drivers operating under this chapter. Upon discovering a violation of the provisions of this chapter, the designees shall take appropriate action. Any vehicle for hire may be inspected at the discretion of the director of police services and/or his or her designee at any time or location. Vehicles may be inspected for cosmetics, safety requirements, and are to include permits and license required to be held by the driver or any other inspection deemed necessary by the director of police services and/or his or her designee.
(Code 1985, § 39-104; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-5. Certificate required; exceptions.

A. No person shall operate or permit a horse-drawn carriage owned or controlled by him or her to be operated as a passenger vehicle for hire upon the streets of the city without first having obtained a certificate of public convenience and necessity from the director of police services.

B. This section shall not apply to passenger vehicles for hire operated under the jurisdiction of the public service commission of the state, or otherwise exempted.

C. No more than 50 carriages may be permitted to operate upon the streets of Memphis and the permit office shall accept no applications for additional carriages once this maximum has been permitted. Other pending applications shall be dismissed upon the issuance of the 50th permit. Should the number of permitted carriages drop below the maximum allowed, applications will be considered in the order in which they are filed at the permit office.
(Code 1985, § 39-105; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

ARTICLE 3. CERTIFICATION REQUIREMENTS

Sec. 6-32-6. Application for certificate.

A. Any person, partnership or corporation desiring to secure a certificate of public convenience and necessity shall make application and pay a $100.00 application fee to the city treasurer. The notarized application shall be filed with and dated by the city treasurer or his or her designee.

B. The application for a certificate shall be upon a form provided by the city treasurer, or his or her designee. An applicant for a certificate, including any partner or limited partner of the partnership applicant, and any officer or director of the corporate applicant and any stockholder holding more than five percent of the stock of a corporate applicant, or any other person who is interested directly in the ownership or operation of the business, shall furnish the following information:

1. Name and address including all aliases;
2. Written proof that the individual is at least 18 years of age;
3. All residential addresses of the applicant for the past five years;
4. The trade name under which the applicant proposes to do business;
5. The business, occupation or employment of the applicant for five years immediately preceding the date of application;
6. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or, if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business;
7. All criminal statute, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, except minor traffic violations;
8. Fingerprints and two color portrait photographs at least two inches by two inches of the applicant. The city permits office will provide fingerprints and photographs of applicant;
9. The address of the premises from which the vehicle for hire business is to be conducted and the address wherein the vehicles are to be stored and/or serviced;
10. If the applicant is a corporation, the name of the corporation and the date and state of incorporation, the name and address of the registered agent, and the names and addresses of all shareholders, as required above, officers and directors of the corporation;
11. The experience and/or the qualifications of the applicant to operate a horse-drawn carriage for hire service;
12. A showing that the public convenience and necessity requires the granting of the certificate;
13. The number of horse-drawn carriages to be put into service at the time of application, the location of private property stands, and the size and seating capacity of each carriage;
14. Whether applicant operates any other vehicles under this chapter;
15. A statement by the applicant that he or she is familiar with the provisions of this chapter and is in compliance with them.

C. Within ten days, or a reasonable time thereafter of receiving the results of the investigation conducted by the division of police services, the director of police services shall fix a time and a place for a public hearing on the application and notice shall be given as provided in section 6-32-3(B). All documents relative to the public hearing shall be available for inspection prior to the hearing. Any interested person may file a statement in support of or in opposition to the issuance of a certificate, and/or may offer testimony at the hearing.

D. Failure or refusal of the applicant to give any information relevant to the investigation of the applicant or the applicant's refusal or failure to appear at any reasonable time and place for examination under oath regarding the application or the applicant's refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that the applicant is ineligible for such certificate and shall be grounds for denial thereof by the director. (Code 1985, § 39-106; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 12, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-7. Standards for issuance of certificate.

The city treasurer may issue a certificate of public convenience and necessity if an applicant meets the following standards:

A. The applicant's financial status shall be such that the applicant shall be capable of operating the horse-drawn carriage for hire service during the time the certificate shall remain in effect.

B. The public convenience and necessity requires the granting of a certificate in that the applicant has shown:

1. The support of potential customers of the service;

2. The uniqueness of the services offered, if possible;

3. That the service would not disrupt local traffic conditions.

C. If the applicant is an individual:

1. The applicant shall be at least 18 years of age.

2. The applicant shall not have an outstanding unpaid final judgment.

3. The applicant shall not have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. The applicant shall not have been found to have violated this chapter within five years immediately preceding the date of application.

D. If the applicant is a corporation:

1. All officers and directors shall be at least 18 years of age.

2. No officer, director or stockholder required to be named under section 6-32-6 shall have outstanding unpaid final judgments.

3. No officer, director or stockholder required to be named under section 6-32-6 shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, assignation, prostitution, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. No officer, director or stockholder required to be named under section 6-32-6 shall have been found to have violated this chapter within five years immediately preceding the date of application.

E. If the applicant is a partnership, joint venture or any other type of organization where two or more persons have a financial interest:

1. All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least 18 years of age.

2. The managing experience in the operation of a horse-drawn carriage business or in related endeavors.

3. No person having a financial interest in the partnership, joint venture or other type of organization shall have outstanding unpaid final judgments.

4. No person having a financial interest in the partnership, joint venture or other type of organization shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime of moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of the application.

5. No person having a financial interest in the partnership, joint venture or other type of partner or manager shall have organization shall have been found to have violated this chapter within five years immediately preceding the date of the application.

(Code 1985, § 39-107; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-8. Certificate issued to owner only.

No certificate shall be granted under this chapter to any person unless the person is the owner of the horse-drawn carriage(s). The owner of a horse-drawn carriage must prove ownership to the city treasurer or his or her designee. The owner shall have a permanent number engraved or embossed on the chassis of the horse-drawn carriage. The owner will furnish photographs of the carriage(s) and notarized statements listing the self imposed serial number(s) to the city treasurer.
(Code 1985, § 39-108; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-9. Fee.

Certificates of convenience and necessity of horse-drawn carriages shall expire at midnight every March 31st, unless a timely and complete renewal is filed prior to that date. Such a timely and complete renewal shall serve to extend the permit until final action on the renewal request is taken by the department. When a certificate is issued, and at each renewal thereof, a fee for each carriage in use shall be paid to the city treasurer to defray the cost of administration of this chapter. The fee shall be as follows:

A. For permits good for the period of April 1, 2003 until March 31, 2004: $55.00.

B. For permits good for the period of April 1, 2004 until March 31, 2005: $65.00.

C. For permits good for the period of April 2, 2005 until March 31, 2006, and every year thereafter: $75.00.

D. For any certificate or permit issued or amended after October 1 of any year, the fee shall be half the annual fee charged that year for each vehicle in use.

(Code 1985, § 39-109; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-10. Business license.

A. Each carriage company must have a current business license.

B. Each carriage company must maintain an emergency telephone number where the owner or manager may be contacted in case of emergency.
(Code 1985, § 39-110; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-11. Insurance.

No certificate of public convenience and necessity shall be issued unless the applicant provides to the city treasurer proof of financial responsibility by a written policy of liability insurance coverage as follows:

A. Not less than $100,000.00 in limited liability per occurrence;

B. Not less than $300,000.00 in public liability per occurrence;

C. Not less than $50,000.00 in property damages per occurrence.

(Code 1985, § 39-111; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-12. Business to be conducted by certificate holder; agreement with drivers.

The business of every horse-drawn carriage for hire shall be carried on by the person to whom the certificate is issued under this chapter. The holder of the certificate may enter into agreements with drivers fixing percentages of receipts to be turned over to the holder of the certificate for the daily use of such carriage paying salaries to drivers, or drivers may rent the horse-drawn carriage for hire for a specific sum of money. A driver may be the conditional vendor or lessor of a carriage as long as the certificate holder is the owner as defined in section 6-32-1. Any arrangement contracted between the holder of a certificate and the driver shall not relieve the holder of the certificate from any liability and damages to third parties. A sample copy of all such agreements shall be kept on file with the city treasurer.
(Code 1985, § 39-112; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-13. Increase in number of carriages after issuance; enlargement of authority.

A certificate holder shall not increase the number of horse-drawn carriages for hire operated pursuant to the certificate without receiving the approval of the city treasurer or the city treasurer's designee. The city treasurer or the city treasurer's designee shall approve or disapprove such request on the basis of economic need of the certificate holder, need of public for additional service, and other factors listed in section 6-32-7(B). If the request is denied, the city treasurer or the city treasurer's designee shall advise the certificate holder in writing of the reasons for such action. In no event shall

the number of permitted horse-drawn carriages be more than 50. At no time shall the level exceed two-thirds ownership of one certificate holder. If the certificate holder requests a hearing within ten days of receipt of notification of denial, a public hearing shall be held as provided in section 6-32-3(B).
(Code 1985, § 39-113; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-14. Replacement of vehicles.

A. In case any carriage covered by a certificate is retired by the owner because it is worn out or so damaged as not to be worth of repair, or is burned or otherwise destroyed, the certificate holder shall advise the designee of the city treasurer in writing of the circumstances of the retirement. The certificate holder shall deposit with the designee of the city treasurer proof of ownership of the replacement carriage.

B. The certificate holder must, if vehicles are discarded, sold, returned or otherwise disposed of, give notice to the city treasurer of such action whether or not the vehicle is replaced and return identification sticker to city treasurer.
(Code 1985, § 39-114; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-15. Accident reports.

Reports of accidents in which any horse-drawn carriage for hire may be involved shall be promptly made to the police services division in accordance with the provisions of chapters 2-28 through 2-36. The certificate holder and the driver shall each have responsibility for filing a copy of the report with the city treasurer. Upon the happening of any accident or collision, the certificate holder shall forthwith have the passenger vehicle for hire involved therein removed from service until properly repaired.
(Code 1985, § 39-115; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-16. Assignment or transfer of certificates.

No certificate of public convenience and necessity may be sold, assigned, mortgaged, transferred or alienated.
(Code 1985, § 39-116; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-17. Expiration and renewal of the certificate.

A certificate issued under this chapter shall expire March 31 of each year at midnight and shall be renewed at the existing level of vehicles as long as the standards for the initial issuance are met. Applications for renewals shall be made by March 10 of each year, by which time all fees for the succeeding year shall have been paid. If the request for renewal is denied, the city treasurer or the city treasurer's designee shall advise the applicant in writing of the reasons for such denial. If the applicant requests a hearing within ten days of notification of denial, a public hearing shall be held as provided in section 6-32-3(B).
(Code 1985, § 39-117; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-18. Fines, suspension and revocation of certificates.

A. A certificate issued under the provisions of this chapter may be suspended or revoked by the city treasurer or the city treasurer's designee after a public hearing, except as provided in section 6-32-3(C). Notice, public access to documents, and conduct of hearing shall conform with the provisions of section 6-32-3(B) except that written notice shall be sent by registered U.S. mail to the subject certificate holder by the date of publication.

B. A certificate issued under the provisions of this chapter may be subject to a penalty fine of no more than $50.00, suspension or revocation by the director of police services or the director's designee, upon findings at the public hearing that the holder of the certificate has:

1. Violated any provisions of this chapter;
2. Discontinued operation for more than 30 days;
3. Would no longer be eligible for issuance of the certificate.

C. A certificate holder shall have the right to appeal the ruling of the city treasurer or the city treasurer's designee revoking or suspending the certificate in the same manner as provided for appeals of the decision under section 6-32-3(C).
(Code 1985, § 39-118; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-19. Horse-drawn carriage stands—Use by other vehicles prohibited.

A. Private or other vehicles for hire shall not at any time occupy the space upon the streets that have been established as horse-drawn carriage stands. From and after July 21, 2002, the horse-drawn carriage stands shall at all times be restricted to a minimum distance of 100 feet from the threshold of any establishment or enterprise whose main business is the serving of restaurant clientele or food serving processes, unless the restaurant owner gives his or her consent that a horse-drawn carriage may be located within the 100 feet minimum distance from its threshold, and all the written consents to go to the city's department of engineering.

B. Horse-drawn carriage for hire stands shall be designated by the city engineer in concert with the city treasurer. If in the judgment of the city engineer the establishment of a horse-drawn carriage for hire stand will not interfere with nor present a hazard to the traffic on the street where such stand is sought to be established, the city engineer shall erect or cause to be erected the necessary official signs and markings to designate the stand. The city engineer shall forward a copy of his or her approval of the stands to the city treasurer.

C. A holder of a certificate of convenience and necessity may request additional stands through the permit office of the Memphis Police Department or the city engineer. It is unlawful for any person to remove, alter or deface any sign or other marking so installed. Additional markings on the standards shall be approved by the city engineer.

D. All horse-drawn carriage for hire stands are to be available for the use of all horse-drawn carriages for hire operating within the city on the basis of the driver of the first carriage for hire arriving at a vacant stand having the right to occupy such stand; however, the city treasurer may designate certain stands for a particular class of vehicles for hire only, such as: taxicab, horse-drawn carriage, etc. It is expressly provided that passengers may select any horse-drawn carriage for hire at such stands regardless of the horse-drawn carriage's position in the line at such stand and that no certificate holder may monopolize any stand.

E. While in service, the operator of a horse-drawn carriage for hire may park the carriage at any legal parking space. When a carriage is parked upon a metered space, the operator shall pay the appropriate fee. If the carriage is so large that more than one metered space is occupied, the driver shall pay the meter(s) for all spaces fully or partially occupied. This provision shall not prevent the operator of a horse-drawn carriage for hire from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers. While parking for this designated purpose upon a metered space, the driver shall pay the appropriate fee. While parked at any parking space, subsections G and H of this section and section 6-32-48 shall apply.

F. No person other than the holder of a horse-drawn carriage for hire certificate of convenience and necessity, his or her agent, or employees, shall occupy a designated horse-drawn carriage for hire stand, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any passenger vehicle for hire entering or about to enter the stand or stop.

G. Carriage companies shall keep horse-drawn carriage stands clean, free of manure and urine at all times. Urine shall be diluted with water or water with disinfectant as it occurs.

H. Water for the horses shall be available at all times.
(Code 1985, § 39-119; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

ARTICLE 4. DRIVERS AND CONDUCTORS

Sec. 6-32-20. Vehicle drivers.

No person shall operate a horse-drawn carriage for hire upon the streets of the city, and no certificate holder who owns or controls a horse-drawn carriage for hire shall permit it to be so driven, and no passenger vehicle licensed by the city shall be so driven at any time for hire, unless the driver of the vehicle for hire shall have first obtained and shall have a current and properly updated passenger vehicle for hire driver's permit which has been approved by the city treasurer and issued by the city treasurer, or his or her designee.
(Code 1985, § 39-120; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-21. Application for a driver's permit.

A. Permits required by this article shall be applied for, in person and in writing, on such forms as the city treasurer may prescribe, which forms shall show that:

1. The applicant has obtained a valid driver's license pursuant to the provisions of T.C.A. chapter 7, title 59;
2. The experience of the applicant in working with horses;
3. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations;
4. Such other information as the city treasurer may require.

B. Such application shall be accompanied by two photographs as provided by the city permits office, one of which shall be attached to the permit, if issued, and one to be retained in the files of the city treasurer with the application for the permit.

C. Such application shall be accompanied by:

1. A statement form, provided by a physician licensed to practice in the State of Tennessee, dated within 30 days of the application, indicating the length of time which the physician has treated the applicant, showing the applicant is not disabled by reason of defect of sight, hearing, body or limb, from safely operating a horse-drawn carriage and indicating any and all physical and mental conditions for which treatment has been rendered within the last year and for which treatment continues to be rendered;
2. Statements of at least three reputable residents of the city who are personally acquainted with the applicant who will state their knowledge of the good reputation, honesty and general good character of the applicant, and include their name, address and home or work telephone number;
3. A statement from a holder of a certificate of public convenience and necessity indicating that the applicant shall be affiliated with the certificate holder upon issuance of the permit.

D. Permits shall remain the property of the city treasurer and may be canceled, revoked or suspended at any time and will be surrendered on demand.
(Code 1985, § 39-121; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-22. Application for a carriage driver's training permit.

A training permit will be issued for new and potential carriage drivers good for 14 days. During this period, the driver is required at all times to drive or ride with a designated trainer and permitted carriage driver. The fee for the trainer's permit shall be half that of regular carriage drivers and will go towards the cost of a full carriage driver's permit. If the trainee does not make full application after 14 days, the permit shall be null and void and the applicant must begin the process again.
(Code 1985, § 39-121.1; Ord. No. 4941, 5-7-2002)

Sec. 6-32-23. Applicant to fill out identification questionnaire and be fingerprinted.

Each applicant applying for a permit shall appear before the city treasurer or his or her designee to complete an identification questionnaire on a form to be provided, and be fingerprinted.
(Code 1985, § 39-122; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-24. Investigation; issuance; not to issue to certain persons.

A. Before issuing a permit under this article, the city treasurer or the city treasurer's designee shall investigate the facts set out in the application and shall not grant such permit to any person who, in the opinion of the city treasurer, after investigation, is not physically or morally fit to drive or operate a horse-drawn carriage for hire in the city.

B. No driver's permit shall be issued to any applicant who has been convicted of, forfeited bail or pleaded nolo contendere to a felony or any crime, involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, or been an inmate of reform school or penitentiary as a result of a conviction for a felony, within five years prior to his or her application for such permit.

C. The city treasurer may refuse to issue a permit to any applicant whose police record shows numerous convictions for public drunkenness, driving under the influence of intoxicants/drugs, repeated moving traffic violations, or any other good and just cause which, in the opinion of the city treasurer, would be inimical to the public health or safety.

D. No permit shall be issued unless the applicant is at least 18 years of age.

E. It shall be the duty of the city treasurer to issue a permit to any person applying therefor, showing compliance with the provisions of this chapter.
(Code 1985, § 39-123; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-25. Notification of arrest or indictment.

The holder of a driver's permit shall advise the city treasurer immediately of all charges, arrests and indictments, including those for public drunkenness and driving under the influence of intoxicants. The city treasurer may suspend a driver's permit for five days prior to a hearing pursuant to section 6-32-31, if the driver is arrested, charged or indicted for any violation of city, state or federal laws. It shall also be the responsibility of the certificate holder with which the driver is affiliated to notify the city treasurer of the charges, arrests or indictments. Failure to do so may result in suspension or revocation of the permit and/or of the certificate.
(Code 1985, § 39-124; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-26. Notification of company change of driver.

At the time a permit is issued, the driver must register with the division of police services the name of the horse-drawn carriage for hire certificate holder with which the driver intends to be affiliated and the division of police services will have stamped on the permit the name of the horse-drawn carriage for hire certificate holder specified by the driver. If at any time a driver wishes to change affiliations, the driver must register the change with the division of police services, and a fee of $10.00 will be charged to defray administrative cost. Failure to advise the director of any such changes may result in suspension or revocation of the permit. It shall be the responsibility of the holder of the certificate of public convenience and necessity to notify the city treasurer when affiliation with a driver is discontinued and any holder which allows a driver to operate a vehicle for hire without a proper and complete permit may have its certificate suspended or revoked. The holder of the certificate of public convenience and necessity must supply in writing to the permits office, the correct address of each driver currently affiliated with the certificate holder.
(Code 1985, § 39-125; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-27. Permit fee.

Each applicant for a permit under the provisions of this article shall pay to the city treasurer a fee of $30.00 at the time of the filing of the application to cover the cost of drug screening, physical and driver's safety classes. For the renewal of such permit, the applicant shall pay a fee of $25.00. To replace a lost, destroyed or stolen permit that is current, the fee shall be $20.00.
(Code 1985, § 39-126; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-28. Form, size, design and contents.

A permit issued under this chapter shall be in card form, of such size and design as may be prescribed by the city treasurer which shall bear on its face a photograph of the driver, the number of the permit, the expiration date thereof the company with which the driver is affiliated, and such other information as the city treasurer may require.
(Code 1985, § 39-127; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-29. Possession of permit.

The original permit issued under this chapter, containing a photograph and other data on the driver shall at all times be in the possession of the driver of the horse-drawn carriage for hire operated by such driver, to be shown to the passenger or a police officer on demand, while such horse-drawn carriage for hire is under the direction or control of such driver.
(Code 1985, § 39-128; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-30. Expiration and renewal.

A. A permit issued under this chapter shall expire at midnight on the anniversary of the birth date of the permit holder each calendar year.

B. If the driver wishes that his or her permit be renewed, he or she shall furnish the city treasurer, or his or her designee, in person, the following information at least one month prior to his or her permit expiration:

1. An affidavit signed by the driver indicating no medical or physical disabilities were suffered during the previous year;
2. A statement from a holder of a certificate of public convenience and necessity indicating that the driver is a current driver for the certificate holder.

C. Every three years, a driver shall submit, at the time of renewal, a certificate completed by a physician licensed in the State of Tennessee and including that physician's license number, indicating the length of time which the physician has treated the driver, showing the driver is not disabled by reason of defect of sight, hearing, body or limb from safely operating a horse-drawn carriage and indicating any and all physical and mental conditions for which treatment has been rendered within the previous three years and those for which the driver continues to receive treatment.
(Code 1985, § 39-129; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-31. Fines, suspension and revocation of permit.

A. The city treasurer is given the authority to fine a penalty fee of no more than $50.00 to suspend or revoke any driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by the city treasurer.

B. The city treasurer shall notify a driver of the violations with which he or she is charged and his or her right to a hearing before the city treasurer or the city treasurer's designee, at which time the driver shall have an opportunity to present evidence; provided, however, that the city treasurer or the city treasurer's designee may suspend a permit for five working days prior to a hearing, with a hearing to be held within that period of time, if, in the judgment of the city treasurer or the city treasurer's designee, the public health and safety requires. At such hearing, the city treasurer or the city treasurer's designee is authorized to further suspend or revoke a driver's permit.
(Code 1985, § 39-130; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-32. Unauthorized use of permit; defacing or removing permit.

A. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver for allowing any other person to use the permit granted to the driver, for the purpose of operating a passenger vehicle for hire or for any other reason.

B. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver who defaces, removes, or obliterates any official entry made upon the permit.
(Code 1985, § 34-131; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-33. Standards of appearance and conduct of drivers.

A. No driver shall engage in selling alcoholic beverages, any controlled substance, or solicit business from any house of ill repute or any person known to be of ill repute use his or her vehicle for any purpose other than the transporting of passengers except as provided for driver trainees. Passengers may possess alcoholic beverages.

B. Drivers shall not engage in abusive language, including, but not limited to, cursing, verbal insults or derogatory comments in the presence of passengers, potential or engaged, or staff members of regulating authorities.

C. While on duty, drivers shall not be under the influence nor engage in the consumption of intoxicants, including, but not limited to, beer and other alcoholic beverages or controlled substances. Any driver charged with driving while intoxicated may have his or her permit immediately suspended as provided in section 6-32-31.

D. Drivers must present an acceptable appearance, including clean, neat wearing apparel not in need of repair. Hats may be worn. No shirt may be worn displaying an offensive logo. No halter-tops or tank shirts may be worn. Shorts may be worn but must be knee length or no more than three inches above the knee. Shoes, excluding sandal type shoes, must be worn at all times while serving the public. General appearance must be one of neatness and cleanliness.
(Code 1985, § 39-132; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-32-34. Total passengers in vehicle; carrying passengers on driver's seat prohibited.

No driver shall permit more persons to be carried in a horse-drawn carriage for hire as passengers than the seating capacity. A child in arms shall not be counted as a passenger.
(Code 1985, § 39-133; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-35. Consent required for horse-drawn carriage driver to pick up additional passengers.

No driver of a horse-drawn carriage shall carry any person other than the original passenger(s) by whom he or she has been engaged, without the consent of the original passenger(s), unless it is a driver trainee or other company employee.
(Code 1985, § 39-134; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-36. Drivers not to work more than 12 hours out of 24.

A. No driver shall work more than a maximum of 12 driving hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he or she has had at least eight consecutive hours of rest.

B. It is the duty of the certificate holder in conjunction with the driver to meet these requirements.
(Code 1985, § 39-135; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-37. Solicitation of passengers by drivers; drivers to remain in or near carriage.

A. No horse-drawn carriage for hire driver shall solicit passengers for a horse-drawn carriage for hire, except when sitting in the driver's seat of such carriage for hire or while standing immediately adjacent to the carriage. The driver of any horse-drawn carriage for hire shall remain in the driver's seat or immediately adjacent to the carriage at all times when such carriage is upon public streets, provided further, that nothing herein contained shall be held to prohibit any driver from alighting to the street or sidewalk for the purpose of assisting passengers into or out of the carriage.

B. No horse-drawn carriage for hire driver shall solicit patronage in a loud or annoying tone of voice, or by sign, or in any manner annoying any person, or to obstruct the movement of any person or follow any person for the purpose of soliciting patronage.
(Code 1985, § 39-136; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-38. Drivers of horse-drawn carriages.

A. A driver of a horse-drawn carriage must properly guide the animal and carriage and must properly control the animal and carriage at all times, and:

B. Must have valid driver's license.

C. Must obey all traffic laws/rules.

D. Drivers must be permitted.
(Code 1985, § 39-137; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 5. VEHICLES

Sec. 6-32-39. Carriage safety equipment.

A. Prior to the use and operation of any horse-drawn carriage for hire under the provisions of this chapter, the carriage shall be thoroughly examined and inspected by the passenger vehicle for hire inspectors and found to comply with this section's requirements. If, at any time, the horse-drawn carriage for hire is found by the inspectors not to comply with the following requirements, the horse-drawn carriage for hire shall not be allowed to be operated on the streets, alleys and public ways of the city until and unless the inspector finds the carriage meets these requirements.

B. Every carriage operating on the streets, alleys and public ways of the city shall at all times be equipped with all safety equipment and any other requirements in respect to safety as is required by the laws of the state or this Code and all such regulations as may be issued by the city treasurer.

C. Every horse-drawn carriage for hire operating on the streets, alleys and public ways of the city shall at all times be in a safe and suitable condition for such use and shall have the following:

1. Every horse-drawn carriage shall be equipped with lights clearly visible from the front and rear. One light housing shall be attached to the left side of the carriage and one light housing shall be attached to the right side of the carriage. The light housings may be of the type that illuminate from the front and rear simultaneously. Viewed from the rear, the lens must be red. Viewed from the front, the lens may be clear or amber. The light(s) must be capable of displaying a light visible 500 feet to the rear and 500 feet to the rear of such vehicle under ordinary atmospheric conditions and such light

shall be displayed during the period from one-half hour after sunset to one-half hour before sunrise and at all other times when there is not sufficient light to render clearly discernible any person on the road or highway at a distance of 200 feet ahead of such vehicle.

2. Each carriage shall be equipped with electric turn signals.

3. No company shall use a carriage not equipped with brakes after January 1, 1994.

4. Each carriage shall be equipped with a slow-moving vehicle emblem to be attached to the rear of the vehicle.

5. Each company is encouraged to use reflective material where ever appropriate on carriages, harness and horse forelimbs.

6. Carriages must be properly lubricated and wheels must spin freely.

7. Each carriage should be equipped with a device to catch horse manure and prevent it from falling on the pavement; all missed droppings should be cleaned up at the end of each trip.

8. Each carriage shall be maintained in a safe and sanitary condition.

9. No horse-drawn carriage may carry more passengers than it was originally intended.

10. Each company shall conduct regular safety inspections of their vehicles. No vehicle shall be allowed into service that has lights, brakes or other safety features that are inoperable. Radio equipped or cellular phone equipped carriages are encouraged.

11. Four-wheel carriages should be equipped with fifth wheel or cut under turning mechanisms on the front axle.

12. Any other requirements in respect to safety as is required by the laws of the state or this Code and all regulations as may be issued by the city treasurer.

13. Obey all traffic laws of city and state.

14. Identifying stickers.

15. Name of company.

(Code 1985, § 39-138; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-32-40. Television equipment.

No television set shall be installed or portable model television operated in any horse-drawn carriage.
(Code 1985, § 39-139; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-41. Horse-drawn carriage maintenance.

A. Every horse-drawn carriage for hire operated in the city shall be kept in a clean and sanitary condition and in such condition of repair as may be reasonably necessary to provide for the safety of the public and for continuation in satisfactory operation.

B. It is the joint responsibility of the certificate holder and of the driver to maintain the appearance and safety of the horse-drawn carriage for hire and equipment and failure to comply may result in the suspension or revocation of the certificate for public convenience and necessity and/or of the driver's permit.

C. All carriages are subject to an annual inspection by the permits/license inspector for safe mechanical conditions, with all safety equipment remaining intact and operative.

D. Any carriage involved in an accident is required to be inspected by the permits/license inspector before going back into service.
(Code 1985, § 39-140; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

ARTICLE 6. CARE OF ANIMALS

Sec. 6-32-42. Proper care of animals used for horse-drawn carriages for hire.

A. Before any animal is brought into service by the certificate holder, the certificate holder shall provide to the city treasurer a photograph of each such animal which the certificate holder intends to use.

B. Before any animal is brought into service by the certificate holder, it shall be examined by a licensed veterinarian who has a current local office address, a listed telephone number and office practice in Shelby County, Tennessee. The veterinarian shall certify in writing that the animal is suited for the use intended by the certificate holder. The veterinarian shall identify the animal by signing and dating the photograph provided for in subsection A of this section. Animal shall further be certified/identified by name and by physical description. A preventative vaccination record shall be main-

tained by certificate holder and must be available for inspection on demand by the city treasurer and/or his or her designee(s). Each animal used by the certificate holder shall be re-examined at least every 12 months by a licensed veterinarian and approved for service in accordance with the aforesaid standards established for that animal, or in accordance with new standards as may be found necessary upon examination to insure the animal's well being. A copy of a negative Coggin's Test shall be filed with the city treasurer by the certificate holder at time of their certificate renewal.

C. Before the certificate holder shall place any carriage into service, the certificate holder shall identify such carriage with the initials of the certificate holder's name followed by a dash and a number which shall not be used on any other horse-drawn carriage of such certificate holder, with such letters and numbers being similar in size to those used on motor vehicle license plates by the State of Tennessee. Such identification shall be placed on the rear of each such carriage and shall be of a color which contrasts with the background to ensure legibility from a distance.

D. The certificate holder shall maintain a daily log for each such carriage identifying the carriage and the horse(s) being driven and the load limit set by the certificate holder's veterinarian for such carriage with the horse being used. This log shall be presented, if requested in a timely manner, to the city treasurer or the passenger vehicle for hire inspectors. The driver shall log each fare required concurrent with the event. The certificate holder shall be responsible for driver compliance with the requirements of this subsection.

E. The city treasurer or the passenger vehicle for hire inspectors shall have the right to inspect the records and equipment and monitor the conduct of the certificate holder. They shall also have the right to require the certificate holder or any driver of an animal drawn vehicle to remove from service any animal which is ill, overtired, undernourished, overloaded, injured or of any such inspector, official or designated representative when, in the opinion of such individual, such as emergency exists that the animal's life or health is threatened.
(Code 1985, § 39-141; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-32-43. Conditions for horse-drawn carriages for hire.

No animal shall be permitted to pull any carriage unless the animal is in good health and meets at least the following requirements:

A. An animal pulling up to eight people, including the driver, shall weigh at least 900 pounds and an animal pulling a carriage capable of holding up to 30 people shall weigh at least 1,500 pounds and shall only pull such carriage in a team of two such animals.

B. An animal must have no open or infected sores or wounds, nor be lame nor have any other ailment provided, however, that such animal may be used in such condition, if approved by a licensed veterinarian.

C. The hoofs of the horse must be properly shod, utilizing rubber shoes or pads to prevent concussion injuries. Borium tip shoes can be utilized to help prevent slipping. Metal shoes can be used on the front or rear legs of the horse, if the horse's hooves will not accommodate the use of rubber or pads there.

D. The animal must be groomed daily when in service and must not have fungus, dandruff or a poor or dirty coat.

E. The animal must have adequate flesh and muscle tone.

F. An animal shall not be worked under any of the following conditions:

1. In harness more than 12 hours in any 24-hour period;
2. Pulling a carriage at a speed faster than a slow trot;
3. Pulling a carriage at top speed for more than 30 minutes followed by a rest period of less than ten minutes;
4. With equipment causing an impairment of vision other than normal blinders;
5. Any condition which will impair the good health and physical condition of the animal.

G. Weather. Should the director of police services determine that special circumstances exist which would jeopardize the safety of the animal, such

as bad weather or other environmental problems, he or she may order the temporary suspension of the operation of all horse-drawn carriages for hire until such time as the special circumstances no longer exist.

1. Owners and drivers shall use caution when working horses in adverse weather conditions such as snow, ice, heavy rain and other slippery conditions.
2. Horses shall not be worked in temperatures below 0° Fahrenheit, nor shall a horse be worked in temperatures above 100° Fahrenheit.
3. All carriage companies and drivers shall work their horses only when safe weather conditions exist. Special attention and discretion should be used during periods of high humidity, extreme cold and wind chill. Proper shoes should be used during icy conditions.
4. No animal shall be subject to any cruel or harassing treatment.
5. A carriage horse shall not be sold or disposed of except in a humane manner.

(Code 1985, § 39-142; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-44. Harnesses for horse-drawn carriages for hire.

A. No animal will be worked with a harness or bit that is not approved by a qualified and approved veterinarian.

B. The harness must be oiled and cleaned so as to be soft at all times.

C. The harness shall be properly fitted and maintained and kept free of makeshift-like wire, sisal, rope, and rusty chains.

D. The harness shall be examined every 12 months by the consulting veterinarian.
(Code 1985, § 39-143; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-45. Whip.

No driver may whip an animal with more than a light touch with a light whip approved by a qualified and approved veterinarian. The veterinarian must have a current office address, a listed telephone number and office practice in Shelby County, Tennessee.
(Code 1985, § 39-144; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-32-46. Food, water and exercise.

Each animal should be fed at least twice daily with clean and fresh water freely accessible when not working area and adequate water will be provided in the stable at all times. No animal should be worked more than three hours without access to water. An animal shall be properly exercised when not working.
(Code 1985, § 39-145; Ord. No. 4227, § 1, 11-2-1993)

State law reference—Cruelty to animals, T.C.A. § 39-14-202.

Sec. 6-32-47. Stalls and stables.

All stalls and stables must be located in the proper zone and must be in compliance with all zoning laws and ordinances of the city and Shelby County.

A. All stables used for housing horses shall be well lighted and ventilated and provide protection from the weather. All such stables shall be kept clean and in good repair at all times and manure shall be removed therefrom daily. Any enclosure where horses are kept shall be graded and raked so as to keep the surface reasonably dry.

B. Foot hazards and sharp surfaces will not be permitted in any area or building where they may come in contact with the animals.

C. Roofs must be kept free of leaks where animals are kept.

D. Box stalls shall be large enough for horses to lie down and turn around, the minimum size to be no less than eight by ten feet.

E. Tie stalls shall be a minimum of 46 feet by ten feet. Horses that are not worked at least every other day or not turned out daily should not be kept in tie stalls.

F. Bedding should be used liberally and changed daily.

G. A pest control program should be used to control flies and other insects.

H. Food must be kept free of contamination.

I. All interior and exterior areas of the stable shall be kept clean, properly drained and free of nuisances including, but not limited to, odors, and accumulation of refuse and excrement.

J. There shall be no smoking at any time in stables.

(Code 1985, § 39-146; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-48. Litter.

It shall be the responsibility of holder to provide the proper collection bags for animal droppings and to take the necessary steps to keep all streets, alleys, sidewalks and other public ways of the city cleared of animal droppings. See section 6-32-39(C)(7).
(Code 1985, § 39-147; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-32-49. Immediate cleanup of waste products.

Each driver shall dilute horse urine with a deodorizing, non-toxic liquid right away. The driver shall not impede traffic while doing so and if necessary shall clean up any missed urine at the end of each trip.
(Ord. No. 5421, § 1, 11-1-2011)

CHAPTER 6-36. ITINERANT VENDORS AND PEDDLERS*

Sections:

Sec. 6-36-1.	Definitions.
Sec. 6-36-2.	License issuance; exhibition.
Sec. 6-36-3.	Exemption of certain persons from license requirements.
Sec. 6-36-4.	Nonapplicability to constitutionally protected activities.
Sec. 6-36-5.	Prohibited areas for engaging in business.
Sec. 6-36-6.	Prohibited activities.

Sec. 6-36-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Goods, wares or *merchandise* means all variety of merchandise items, whether handmade or manufactured, or services, whether personal or professional categorized as, but not necessarily limited to, souvenirs, gifts, prizes, art/school supplies, cloth, clothing or wearing apparel, novelties, small appliances, works of art or crafts, directional information and/or charts, street photographers, tools or mechanical devices of any nature.

Itinerant vendor/peddler shall encompass the terms "peddler," "solicitor," "canvasser," "foot peddler" and "hawker," and means all persons who engage in the giving away, the selling or offering for sale of goods, wares or merchandise, or who solicit patronage for any person, business or service by word of mouth or gesture, or by distributing handbills or other printed matter, or by use of electrical, mechanical or sound-making devices, to entice or persuade anyone to buy, sell or accept goods, wares or merchandise upon the public streets, highways or rights-of-way within the corporate limits of the city, where such itinerant vendor/peddler engages in the above-mentioned activities from a temporary or transient location.

Open-air market or *farmers' markets* means public property open to the resort of the general public as purchasers, as well as for persons who offer wares for sale, and where stalls, stands or space is allotted on payment of fixed rents or fees.

Public designated square means an open space set aside for public passage, use, recreation or ornamentation, in the nature of a park.
(Code 1967, § 40-30; Code 1985, § 17-16; Ord. No. 2805, § 1, 12-5-1978)

Sec. 6-36-2. License issuance; exhibition.

Upon obtaining a license in accordance with the provisions of T.C.A. title 67, chapter 58, an individual may engage in the lawful activities of an itinerant vendor/peddler, subject to the provisions of this chapter.
(Code 1967, § 40-31; Code 1985, § 17-17; Ord. No. 2805, § 1, 12-5-1978)

Sec. 6-36-3. Exemption of certain persons from license requirements.

The licensing requirements of this chapter shall not apply to certain veterans or persons who are legally declared blind, as set out in T.C.A. title 67, chapter 58.
(Code 1967, § 40-32; Code 1985, § 17-18; Ord. No. 2805, § 1, 12-5-1978)

***State law reference—**Transient vendors, T.C.A. § 62-30-101 et seq.

Sec. 6-36-4. Nonapplicability to constitutionally protected activities.

This chapter shall not apply to the dispensing of religious pamphlets or other literature to which the constitutional protection of freedom of speech, religion or press extends.

(Code 1967, § 40-33; Code 1985, § 17-19; Ord. No. 2805, § 1, 12-5-1978)

Sec. 6-36-5. Prohibited areas for engaging in business.

In the interest and protection of the general public, to protect highly congested streets, highways and rights-of-way and to preserve law and order, it is unlawful for any itinerant vendor/peddler to buy, sell or offer to sell any goods, wares or merchandise, or to solicit patronage for any person, business or service by word of mouth or gesture, or by distributing handbills or other printed matter, or by use of electrical, mechanical or sound-making devices to entice or persuade anyone to buy, sell or accept goods, wares or merchandise within 200 feet of the following locations:

A. Mid-America Mall, except with the approval of the center city commission;

B. Mid-South Fairgrounds, except for those activities regulated and under the control of the Memphis Park Commission and the activities/events managed by the Mid-South Coliseum;

C. Downtown loop, bounded by Mississippi River on the west, Third Street on the east, Calhoun Avenue on the south, and Mill Avenue on the north;

D. Places of historical or public attraction, including the Pink Palace Museum; Overton Park Zoo; Elvis Presley Estate; Memphis Brooks Museum of Art; Mud Island Entertainment Complex; the Pyramid Complex; the Pinch District as defined by the landmarks commission; the Beale Street historic district, except as where the Beale Street Management Association does designate; or other such areas as may hereafter be designated by the city council from time to time by resolution.

E. Open-air markets, farmers' markets and public designated squares, or other such areas, except as may be regulated in other chapters of this code.

(Code 1967, § 40-34; Code 1985, § 17-20; Ord. No. 2805, § 1, 12-5-1978; Ord. No. 2888, § 1, 6-26-1979; Ord. No. 4046, § 1, 6-25-1991; Ord. No. 4070, § 1, 9-10-1991)

Sec. 6-36-6. Prohibited activities.

The following activities shall be declared unlawful:

A. Peddling, huckstering or hawking, by vehicle or movable receptacle on streets, highways, rights-of-way and public places, except as may be regulated in other chapters of this Code;

B. The erection of stands or similar contrivances on public streets, highways, rights-of-way and public places for the purpose of giving away, displaying and/or buying or selling of goods, wares or merchandise;

C. Sale of drinks or other prepared foods and/or edible items upon public streets, highways and rights-of-way, except as may be regulated in other chapters of this Code;

D. Use of parked vehicles on public streets, highways or rights-of-way as a business stand to sell goods, wares or merchandise to occupants in other vehicles, moving or standing on streets, highways or rights-of-way.

(Code 1967, § 40-35; Code 1985, § 17-21; Ord. No. 2805, § 1, 12-5-1978)

CHAPTER 6-40. JUNK AND SCRAP METAL DEALERS*

Sections:

Sec. 6-40-1.	Definitions.
Sec. 6-40-2.	Permits—Required.
Sec. 6-40-3.	Application; contents.
Sec. 6-40-4.	Investigation of applicant.
Sec. 6-40-5.	Standards of issuance.
Sec. 6-40-6.	Appeal of denial.
Sec. 6-40-7.	Fee.
Sec. 6-40-8.	Conditions.
Sec. 6-40-9.	Standards applicable to employees of permittee; employee list to be on file with division of police services.
Sec. 6-40-10.	Business to be conducted in enclosed building.
Sec. 6-40-11.	Business hours.
Sec. 6-40-12.	Record of purchases.
Sec. 6-40-13.	Daily report of purchases.
Sec. 6-40-14.	Retention period for articles purchased.
Sec. 6-40-15.	Dealing with minors.
Sec. 6-40-16.	Dealing with strangers prohibited; duty to give information relative to sellers.
Sec. 6-40-17.	Special regulations for air conditioner evaporator coils and condensers.

***Charter reference—**Authority to regulate junkyards, § 739.

State law references—Scrap metal dealers, T.C.A. § 62-9-101 et seq.; Junkyard Control Act of 1967, T.C.A. § 54-20-101 et seq.

Sec. 6-40-1. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Junk dealer means any person in any way buying, selling, exchanging, trading or dealing in scrap iron, brass, empty bottles or secondhand metals of any sort or kind, including automobile accessories and automobile parts, within the city.

Junk shop or *junkyard* means any place where odds and ends, old rags, ropes, cordage, old metals, secondhand machinery parts, worn-out motor vehicles and parts thereof, and the like, are bought, sold or stored.

Licensed HVAC contractor or *contractor* means any person who holds and maintains a valid license to obtain a permit from the Memphis and Shelby County Office of Construction Code Enforcement pursuant to the Memphis and Shelby County Mechanical Code Contractor Licensing Chapter sections 106 and 112, in order to perform mechanical work on HVAC equipment, including all manner of repair, installation and removal of such equipment.

Scrap metal means any ferrous or nonferrous metal or metal product that is no longer used for its original purpose and is capable of being processed for reuse by a metal recycling facility, including, but not limited to, iron, brass, wire, cable, copper, bronze, aluminum, platinum, lead, solder, steel, stainless steel, catalytic converters, air conditioner evaporator coils, radiators, and condensers (in whole or part), and other similar obsolete ferrous or nonferrous metal or metal products, but not including recyclable aluminum cans.

Scrap metal dealer means a person who obtains scrap metal through purchase, barter or exchange, or an employee or agent of such dealer who has the express or implied authority to so obtain scrap metal on behalf of the dealer.
(Code 1967, § 26-47; Code 1985, § 24-56; Ord. No. 5217, § 2, 2007; Ord. No. 5332, § 1, 12-1-2009)

Sec. 6-40-2. Permits—Required.

No person shall act as a junk or scrap metal dealer or conduct such activity or other similar business establishment in the city without first obtaining a permit as provided in this article from the city permits office.
(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-3. Application; contents.

An application for a permit issued under this article shall be made upon blank forms prepared and made available by the city permits office and shall state:

A. The full name, age, residence, and present and previous occupation of the applicant;

B. Name of the business entity and a specific description of the location of the principal place of business of the applicant;

C. The number of years experience the applicant has had as a junk or scrap metal dealer or other related fields;

D. A complete list of the names and residence addresses of all employees in the business and the name and residence address of the manager or other person principally in charge of the operation of the business;

E. Authorization for the city, its agents and employees to seek information and conduct an investigation into the truth of the statements set forth in the application and the qualifications of the applicant for the permit;

F. The names and addresses of three adults who will serve as character references. These references must be persons other than relatives and business associates; and

G. Written declaration by the applicant, under penalty of perjury, that the foregoing information contained in the application is true and correct, such declaration being duly dated and signed in the city.

(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-4. Investigation of applicant.

Within ten days after receipt of an application as provided for in this article, the city permits office shall cause an investigation to be made of the applicant and his or her proposed operation.
(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-5. Standards of issuance.

The city attorney or designee shall issue a permit under this article when he or she finds:

A. That the applicant's application for a permit has been properly submitted;

B. That the applicant has not been convicted of a felony or any offense relating to theft of goods within five years next preceding the filing of the application;

C. That the operation as proposed by the applicant, if permitted, would comply with all applicable laws, including, but not limited to the city's building, zoning and health regulations;

D. That the applicant has not knowingly made any false, misleading or fraudulent statement of fact in the permit application or in any document required by the city in conjunction therewith; and

E. That the applicant has not had a similar permit or license denied, revoked or suspended for any of the above causes by the city or any other state or local agency within five years preceding the next filing of an application.

F. Notwithstanding the foregoing, a permit shall not be denied under this article solely because the applicant failed to comply with the version of the ordinance from which this chapter is derived that was adopted on third reading in December 2007, and signed by the mayor in January 2008. A material and intentional violation of this amended ordinance occurring after the effective date of this amended ordinance may be a basis for denying a permit application or renewal application.

(Ord. No. 5217, § 5(part), 2007; Ord. No. 5332, § 2, 12-1-2009)

Sec. 6-40-6. Appeal of denial.

Any applicant denied a permit or permit renewal under this article may appeal to the city council within ten business days of the denial. Notice of appeals to the city council must be filed with the office of the chairperson of the city council within such ten days; otherwise the denial shall be deemed and considered to be final.
(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-7. Fee.

The annual permit for each junk or scrap metal operation shall be $100.00.
(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-8. Conditions.

The following conditions shall apply to all permits:

A. *Transferability.* Permits issued under this article shall not be transferable.

B. *Revocation and suspension.* Permits issued under this article shall be subject to revocation or suspension by the director of police services or designee for violation of any of the provisions of this chapter, or of the rules and regulations issued hereunder, or misconduct by the permittee or his or her employees, after reasonable notice and an opportunity to be heard has been given the permittee. The director of police services or designee shall immediately notify any permittee in writing of such suspension or revocation.

C. *Renewal.* Each permit shall expire on July 1 of each year, except that a first permit shall expire on the second next ensuing July 1. Permits may be renewed. In processing a renewal application, the city attorney or designee shall consider all the elements and standards contained herein in determining whether or not to renew a permit. An unrevoked permit may be renewed for one year on written application to the city permits office made at least one month before its expiration date and accompanied by the required fee, such renewal fee being the same amount as the original permit fee.

(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-9. Standards applicable to employees of permittee; employee list to be on file with division of police services.

All employees of any person and/or business entity having or applying for a permit under this article shall meet the requirements of not having been convicted of any felony or any offense relating to theft of goods within the last five years. It shall be further required that any person and/or business entity having a permit under this chapter shall keep on file with the division of police services a list of those persons currently employed by him or her in his junk or scrap metal operation.
(Ord. No. 5217, § 5(part), 2007)

Sec. 6-40-10. Business to be conducted in enclosed building.

It is unlawful for any person to locate, operate, maintain or carry on any business in connection with a

junk shop or junkyard in the city unless it is conducted in an enclosed building. It is unlawful to conduct or carry on the business of maintaining or operating a junk shop or junkyard within the city in any open or unenclosed space or lot.
(Code 1967, § 26-48; Code 1985, § 24-57)

Sec. 6-40-11. Business hours.

It is unlawful for any junk and scrap metal dealer to open his or her place of business for the transaction of business before 6:00 a.m., or to keep his or her place of business open for the transaction of business after 8:00 p.m., on any day, except Saturday, on which day it shall be lawful for any such junk and scrap metal dealer to keep his or her place of business open not later than 11:00 p.m.
(Code 1967, § 26-49; Code 1985, § 24-58; Ord. No. 5217, § 3, 2007)

Sec. 6-40-12. Record of purchases.

Every junk and scrap metal dealer shall keep a book in which he or she shall promptly enter the names of all persons from whom he or she buys or gets iron, brass or other metals of any sort, bottles or other articles of any nature whatsoever, followed by the date of purchase, the amount paid therefor, the kind of metals purchased or received, the number of pounds of each kind and a description of all other articles purchased. These entries shall be made in chronological order from day to day, as business is transacted. This book shall at all times be open to the inspection of the police or other officers, who may desire to see it, and shall be kept in good faith and preserved by such dealer for convenient inspection.
(Code 1967, § 26-50; Code 1985, § 24-59; Ord. No. 5217, § 3, 2007)

Sec. 6-40-13. Daily report of purchases.

A. Every junk and scrap metal dealer shall keep a book or other records of purchase containing a consecutively numbered record of each and every purchase which shall correspond in all essential particulars to the detachable transaction ticket attached thereto.

B. Any person selling, exchanging or trading scrap metal to or with a junk or scrap metal dealer shall present a valid driver's license and/or any other acceptable form of picture identification from a state or federal issuing agency (i.e., state-issued identification or passport) to the junk or scrap metal dealer.

C. The junk or scrap metal dealer shall, at the time of making the purchase, enter in the book or other records of purchase as well as on the transaction ticket, which shall be typed or written in ink and in the English language:

1. The name, race, sex, date of birth, and residential address of the seller.
2. The date of the scrap metal purchase.
3. The driver's license number or other acceptable identification card from a state or federal issuing agency (i.e., state-issued ID or passport) capable of identifying the seller.
4. The amount paid therefor.
5. The kind of metals purchased or received.
6. The number of pounds of each kind.

D. The seller shall sign the transaction ticket and shall receive a detached copy. The junk or scrap metal dealer shall also sign the transaction ticket. On the junk or scrap metal dealer's copy of the record of the transaction, the seller shall reproduce his or her right thumbprint. In the event the right thumb is amputated, then such other fingerprint as required by the junk or scrap metal dealer shall be taken and such fingerprint fully described on such record. This thumbprint shall be reproduced and taken in the usually approved manner and shall not be blurred or obliterated. The book or other records of purchase shall at all times be open to the inspection of any city, county, state or federal law enforcement officer and any person who has filed a police report of metal theft in the previous month, if such person is accompanied by such law enforcement officer during normal business hours without warrant or subpoena and shall be kept in good faith and preserved on site by such dealer for convenient inspection for a period of three years from the date of the scrap metal sale.

E. The junk or scrap metal dealer shall inquire as to where the scrap metal was obtained for the purpose of determining if purchasing scrap metal from that person is a lawful transaction. If the seller presents a bill of sale, receipt or other document indicating that the person is in lawful possession of the scrap metal, or was otherwise lawfully acquired, the dealer shall photocopy such document and maintain it with the transaction information otherwise required by this section.

F. Air conditioner evaporator coils.

1. It is an offense for a scrap metal dealer to knowingly accept any portion of an air conditioner evaporator coil or condenser unless it is accompanied by a statement and appropriate documentation from a licensed HVAC contractor evidencing that the coil or condenser has been decommissioned and removed from an appliance in compliance with the Federal Clean Air Act and its regulations. This provision shall not apply to an air conditioner evaporator coil or condenser still contained within a window unit air conditioner.

2. It is an offense for a scrap metal dealer to ever pay cash to a person who presents an air conditioner evaporator coil or condenser or any portion of an air conditioner coil or condenser for sale as scrap, nor may such dealer make payment at the time of the transaction. This provision shall not apply to an air conditioner evaporator coil or condenser still contained within a window unit air conditioner. An air conditioner evaporator coil or condenser still contained within a window unit air conditioner is subject to the tag-and-hold and voucher provisions of this section.

3. Payment for scrap metal described in subsection F.1 of this section shall be:

   a. Made by check or money order to a licensed HVAC contractor named by the seller;

   b. After a period of five business days from the date of the scrap transaction such check or money order shall be mailed to the business address of the licensed HVAC contractor; and

   c. The payee on the check shall be the name of such licensed HVAC contractor.

4. a. A violation of this section shall be punishable by a fine not to exceed $50.00 for each coil or portion of a coil offered or accepted.

   b. Nothing in this section shall be construed to preclude a person violating this section from also being prosecuted for any applicable criminal offense.

G. Sale of certain scrap metals prohibited.

1. Except as provided in subsection G.2 of this section, it is an offense to knowingly sell or attempt to sell to a scrap metal dealer or for a scrap metal dealer to knowingly purchase or attempt to purchase the following types of scrap metal:

   a. Scrap metal marked with the initials of an electrical, a telephone, a cable, or other public utility;

   b. Utility access covers;

   c. Street light poles and fixtures;

   d. Road and bridge guardrails;

   e. Highway or street signs;

   f. Water meter covers;

   g. Traffic directional and control signs;

   h. Traffic light signals;

   i. Any scrap metal visibly marked or painted with the name of a governmental entity, business, company or the name of the owner of such metal;

   j. Property owned by a telephone, a cable, an electric, a water, or other utility or by a railroad and marked or otherwise identified as such; and

   k. Unused and undamaged historical markers, or grave markers and vases.

2. It is an exception to application of this section that the person attempting to sell the scrap metal provides reasonable, written documentation that the seller is the owner of the scrap metal or is an employee, agent, or other person authorized to sell the scrap metal on behalf of the owner. The dealer shall make a photocopy of any documentation provided pursuant to this subsection and retain the copy as part of the transaction record, and maintain such photocopy for a period of three years following the transaction. All photocopies shall be made available for inspection upon request by law enforcement officials.

3. a. A violation of this subsection G shall be punishable by a fine not to exceed $50.00 for each transaction offered or accepted.

   b. Nothing in this section shall be construed to preclude a person violating this section from also being prosecuted for any applicable criminal offense.

H. The junk or scrap metal dealer shall keep on hand and in separate packages, and not allow to be mixed or confused with other purchases, in order that identification may be readily made, all scrap metal as defined herein, in any form, of:

1. Telephone wire or cable such as is used for telecommunications purposes, waveguide, copper bus bar, catalytic converters, back flow preventers, new copper tubing over 20 feet long still in roll form (as it comes from manufacturer), bare copper grounding wire still on spools;
2. Copper tubing or copper wire that bears sufficient ID or unique descriptive markings which may likely prove chain of custody that the copper is a victim's property;
3. Air conditioner evaporator coils, radiators, and condensers in whole or part, including air conditioner evaporator coils and condensers still contained within a window unit air conditioner; and
4. Any metal that accurately fits a description containing distinguishing characteristics provided either by voice or in writing to a scrap metal dealer by either a victim or by representatives/agents of the City of Memphis or Shelby County law enforcement that such metal so described has been stolen;

that is bought or obtained from any person, the same to be kept on site, separate and subject to easy and convenient inspection during normal business hours without warrant or subpoena by any city, county, state or federal law enforcement officer and any person who has filed a police report of metal theft in the previous month, if such person is accompanied by such law enforcement officer, for a period of not less than the longer of ten days after purchase or in any way acquired, or ten days after the scrap metal dealer delivers notice to either the victim or appropriate law enforcement official with respect to items that have been reported stolen.

I. If it appears from the inquiry required by subsection E of this section, from the nature of the scrap metal being offered, or from any other circumstances, that the seller may not be in lawful possession of the scrap metal, the scrap metal dealer shall immediately contact the city police department and report such circumstances. If it appears from the requirements of this section and all other circumstances that the seller is in lawful possession of the scrap metal and buying or otherwise receiving the scrap metal from the seller would not violate this chapter, the scrap metal dealer may buy or otherwise receive the scrap metal and pay the seller. If, however, the scrap metal in whole or in part consists of:

1. Copper;
2. An unattached catalytic converter or portion thereof;
3. Aluminum house gutters or house siding or portions thereof;
4. A beer keg or portion thereof;
5. A chain link fence or portion thereof;
6. Stainless steel sinks or portions thereof;
7. Railroad spikes;
8. Any item subject to the ten-day hold period pursuant to subsection H of this section; or
9. Any item subject to the purchase restrictions of subsection G of this section;

then the transaction, if otherwise permitted and in addition to other applicable restrictions of this chapter, must occur in accordance with this section.

If the person selling scrap metal specified in this subsection is selling as an agent or employee of a business, payment for the scrap metal shall be made only by check or money order, mailed to the business address of the business for whom the employee or agent is employed, and the payee on the check shall be the name of the business. Notwithstanding the preceding sentence, a business that sells the type of scrap metal specified in this subsection on a regular or frequent basis may annually preregister with a scrap metal dealer a list of employees who are authorized to sell on behalf of the business. A scrap metal dealer may pay an authorized, preregistered employee by any method, on site, and at the time of the transaction.

If the person selling scrap metal specified in this subsection is not selling as an employee or agent of a business,

payment for the scrap metal shall be by check, money order or voucher, at the option of the scrap metal dealer except to the extent state law gives such option to the seller. If the scrap metal dealer pays by check or money order, it shall be mailed to the physical address provided on the driver license the seller used for identification. If the scrap metal dealer pays by voucher, the scrap metal dealer shall give the seller a voucher for the amount of metal purchased. The voucher shall include the same information required under subsection C of this section and the date on which the voucher can be redeemed. The voucher may only be redeemed by the person whose name appears on the voucher as the seller, or by the person's heirs or legal representative. No voucher may be redeemed by the voucher holder, or the holder's heirs or legal representative, sooner than five days from the date of the scrap metal transaction. If a voucher is not redeemed by an authorized person within six months of the date of the transaction, the voucher expires and the scrap metal dealer shall remit the value of the expired voucher to the city.

Payment for air conditioner evaporator coils or condensers or any portion of an air conditioner evaporator coil or condenser shall be made as provided in subsection F of this section.

(Code 1967, § 26-51; Code 1985, § 24-60; Ord. No. 5217, §§ 3, 6, 2007; Ord. No. 5332, §§ 3—9, 12-1-2009)

Sec. 6-40-14. Retention period for articles purchased.

A. No property purchased by any junk and scrap metal dealer shall be sold, disposed of or removed from the place of business of such dealer until at least 48 hours after the required reports have been delivered to the director of police services pursuant to section 6-40-5.

B. Notwithstanding the provisions of subsection A of this section, junk and scrap metal dealers shall keep on hand and in separate packages, and not allow to be mixed or confused with the other purchases, in order that identification may be made of all scrap brass, copper, lead, and all other metals including automobile accessories, except scrap iron and castings, and bottles and merchandise bought or received from any person. This material shall be kept separate and subject to easy and convenient inspection of anyone desiring to investigate, for a period of not less than ten days after purchase or other acquisition. This subsection shall not apply to scrap iron or iron castings.

(Code 1967, § 26-52; Code 1985, § 24-61; Ord. No. 5217, § 3, 2007)

Sec. 6-40-15. Dealing with minors.

No junk or scrap metal dealer shall purchase or otherwise receive from a minor under the age of 18 any personal property of any kind with the exception of aluminum cans. No voucher shall be required for the sale and purchase of aluminum cans.

(Code 1967, § 26-53; Code 1985, § 24-62; Ord. No. 5217, §§ 3, 7, 2007)

Sec. 6-40-16. Dealing with strangers prohibited; duty to give information relative to sellers.

Junk and scrap metal dealers shall deal only with persons to them personally known, and of whose identification they are certain. Such dealers shall promptly give to any officer, upon request, information to enable the seller to be identified. Dealing with strangers or failing to give such information on demand shall render such dealer guilty of a violation of this chapter.

(Code 1967, § 26-54; Code 1985, § 24-63; Ord. No. 5217, § 3, 2007)

Sec. 6-40-17. Special regulations for air conditioner evaporator coils and condensers.

For the avoidance of any doubt, any air conditioner evaporator coils and condensers, in whole or part, shall be subject to the most restrictive provisions of this chapter, including the ten-day hold period of section 6-40-13(H) and the payment methodologies requiring delayed payment and issuance of checks to the licensed HVAC contractor. In addition, all air conditioner evaporator coils and condensers, in whole or part, except those as part of an entire window air conditioning unit, shall be subject to the restrictions related to those sellers from whom such material may be purchased. Also for the avoidance of any doubt, any telephone wire or cable shall be subject to the most restrictive provisions of this chapter, including all of the provisions applicable to air conditioner evaporator coils and condensers, except those provisions specifically limited to air conditioner evaporator coils and condensers.

(Ord. No. 5332, § 10, 12-1-2009)

CHAPTER 6-44. LIMOUSINES, SHUTTLES AND OTHER VEHICLES FOR HIRE

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ARTICLE 1. DEFINITIONS

Sec. 6-44-1. Definitions.

The following words and phrases when used when used in this chapter, shall have the meanings as set out herein:

Certificate means a certificate of public convenience and necessity issued by the public service commission in Nashville, Tennessee.

Director of police services means the director of police services of the city, or his or her authorized designee.

Driver shall be held to include every person in actual charge of the operation of a limousine.

Driver's permit means the permission granted by the director of police services to a person to drive a limousine for hire upon the streets of the city.

For hire means agreement to transport a person or persons for a fare.

Holder means a person to whom a certificate of public convenience and necessity has been issued by the public service commission.

Limousine means any motor vehicle, except a taxicab, or sedan designed or constructed to accommodate and transport passengers for hire, with an extended wheelbase and expanded seating capacity designed for the transport of persons. The vehicle will have additional rear seating capacity, area and comforts; and shall be designed to transport not more than 14 in number, exclusive of the

chauffeur/driver, and the principal operation of which is confined to the area within the corporate limits of cities and suburban territory adjacent thereto.

Owner means a person who holds the legal title of the limousine or, in the event the vehicle is the subject of an agreement for the conditional sale or lease thereof, then such conditional vendee shall be deemed the owner.

Paratransit (vehicle, for-hire) means every vehicle, other than public transit vehicles or vehicles involved in an organized car pool not available to the general public, which is operated for any fare or compensation and used

for the transportation of passengers over city public streets, irrespective of whether such operations extend beyond the boundary limits of the city.

Pedicab means a bicycle with three or more wheels operated by one person for the purpose of, or capable of, transporting passengers in seats or a platform made a part of the pedicab. This definition shall not include a bicycle built for two where the operators are seated one behind the other, nor shall it include a bicycle with a trainer or beginner wheels affixed thereto, nor a wheelchair or other vehicle for the purpose of transporting a handicapped person, nor shall it include a tricycle built for a child or an adult with a seat for only one operator and no passenger.

Permit/license inspector shall be a Memphis police officer authorized and instructed to observe the conduct of vehicle for hire driver's permit holders operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector(s) will order or take appropriate action.

Road bus means any motor vehicle with a seating capacity in excess of 16 passengers used for a fare for the purpose of transporting one or more persons for hire over a route or to a destination that is controlled by the passenger (use state definition).

Sedan means any motor vehicle except a limousine or taxicab designed or constructed to accommodate and transport passengers for hire, which does not have an extended wheel, base or an expanded seating capacity designed for the transport of persons. The vehicle will have no additional rear seating capacity, area or comforts and shall be designed to transport not more than five passengers, exclusive of the chauffeur/driver, and the principal operation of which is confined to the area within the corporate limits of cites and suburban territory adjacent thereto, and not operated on a fixed route or schedule.

Shuttle means any motor vehicle designed or constructed to accommodate and transport passengers for hire, not more than 15 in number, exclusive of the driver, and the principal operation of which is confined to the area within the corporate limits of cities and suburban territory adjacent thereto, and operated on a fixed route or schedule.

Van means any for hire motor vehicle built on a truck type frame or body with a seating capacity of at least six but not more than 15 passengers, such as transportation vans.

Vehicle, charter, means any for hire vehicle for which the passengers have control over the routes taken and/or the destination visited.

Vehicle, transportation or courtesy, means any motor vehicle designed or used for the transportation of passengers where no direct fee is charged to the passengers.

Vehicle, tour, means any for hire motor vehicle and/or taxicab used for the purpose of transporting one or more persons on a sightseeing trip to any of the city's points of interest and/or historic buildings, parks or sites and for which the route is controlled by the operator of the vehicle. A tour vehicle may be a bus, van, limousine, taxi or any other multi-passenger vehicle.
(Code 1985, § 39-201; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

ARTICLE 2. CERTIFICATE OF PUBLIC CONVENIENCE

Sec. 6-44-2. Required.

No person shall operate or permit a limousine service controlled by him or her to transport persons for compensation upon the streets of the city without first having obtained a certificate of public convenience and necessity from the Tennessee Regulatory Authority.
(Code 1985, § 39-202; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-44-3. Company requirements.

A. No person shall operate or permit a passenger vehicle owned or controlled by him or her to transport persons for compensation upon the streets of the city without first having obtained a certificate of public convenience and necessity from the director of police services.

B. This section shall not apply to passenger vehicles for hire operated under the jurisdiction of the public service commission of the state, or otherwise exempted.
(Code 1985, § 39-203A; Ord. No. 4941, 5-7-2002)

Sec. 6-44-4. Application for certificate.

A. Any person, partnership or corporation desiring to secure a certificate of public convenience and necessity shall make application to the permits office and pay the application fee of $200.00. The notarized application shall be filed with and dated by the city police department.

B. The application for a certificate shall be upon a form provided by the city police department. An applicant for a certificate, including any partner of the partnership applicant, and any officer or director of the corporate applicant and any stockholder holding more than five percent of the stock of a corporate applicant, or any other person who is interested directly in the ownership or operation of the business, shall furnish the following information:

1. Name and address, including all aliases;
2. Written proof that the individual is at least 21 years of age;
3. All residential addresses of the applicant for the past five years;
4. The trade name under which the applicant proposes to do business;
5. The business, occupation or employment of the applicant for five years immediately preceding the date of the application;
6. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business;
7. All criminal statutes, whether federal or state, or city ordinance violation for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, except minor traffic violations;
8. Fingerprints and two color portrait photographs at least two inches by two inches of the applicant;
9. The address of the premises from which the vehicle for hire business is to be conducted and the address wherein the vehicles are to be stored and/or serviced;
10. If the applicant is a corporation, the name of the corporation and the date and state of incorporation, the name and address of the registered agent, and the names and addresses of all shareholders, as required above, officers and directors of the corporation;
11. The experience and/or the qualifications of the applicant to operate a transportation of passenger service;
12. A showing that the public convenience and necessity requires the granting of the certificate;
13. The number of vehicles to be put into service at the time of application, the location of proposed stands and terminals, and the class and seating capacity of each vehicle;
14. The color scheme and insignia to be used to design the vehicle or vehicles of the applicant (black, gray, green, navy or white for limousines and sedans only);
15. Whether applicant operates any other vehicles under this chapter;
16. A statement by the applicant that he or she is familiar with the provisions of this chapter and is in compliance with them;
17. A statement by applicant that he or she will be obligated to serve all sections of Memphis;
18. A business plan.

C. Within ten days, or a reasonable time thereafter of receiving the results of the investigation conducted by the division of police services, the director of police services shall fix a time and a place for a public hearing on the application and notice shall be given as provided in section 6-44-24(B). All documents relative to the public hearing shall be available for inspection prior to the hearing. Any interested person may file a statement in support of or in opposition to the issuance of a certificate and/or may offer testimony at the hearing.

D. Failure or refusal of the applicant to give any information relevant to the investigation of the application or the applicant's refusal or failure to appear at any reasonable time and place for examination under oath regarding the application or the applicant's refusal to submit to or cooperate with any investigation required by

this chapter, shall constitute an admission by the applicant that the applicant is ineligible for such license and shall be grounds for denial thereof by the director.
(Code 1985, § 39-203B; Ord. No. 4941, 5-7-2002)

Sec. 6-44-5. Standards for issuance of certificate.

The director of police services may issue a certificate of public convenience and necessity if an applicant meets the following standards:

A. The applicant's financial status shall be such that the applicant shall be capable of operating the vehicle or passenger vehicle for hire service during the time the certificate shall remain in effect.

B. The applicant has demonstrated clear and convincing evidence that the public convenience and necessity requires the granting of a certificate. Among the factors to be considered are:

1. The support of potential customers of the service;
2. The uniqueness of the services offered, if possible;
3. The service would not disrupt local traffic conditions.

C. The applicant shall present a distinct color scheme (black, gray, green, navy or white for limousines and sedans only) and an insignia to designate the vehicle(s) of the applicant.

D. If the applicant is an individual:

1. The applicant shall be at least 21 years of age.
2. The applicant shall not have outstanding unpaid final judgment.
3. The applicant shall not have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.
4. The applicant shall not have been found to have violated this chapter within five years immediately proceeding the date of application.

E. If the applicant is a corporation:

1. All officers and directors shall be at least 21 years of age.
2. No officer, director or stockholder required to be named under section 6-44-4 shall have outstanding unpaid final judgments.
3. No officer, director or stockholder required to be named under section 6-44-4 shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, assignation, prostitution, obscenity, or any crime of sexual nature in any jurisdiction within five years immediately preceding the date of application.
4. No officer, director or stockholder required to be named under section 6-44-4 shall have been found to have violated this chapter within five years immediately preceding the date of application.

F. If the applicant is a partnership, joint venture or any other type of organization where two or more persons have a financial interest:

1. All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least 21 years of age.
2. The managing partner or manager shall have experience in the operation of a transportation business or in related endeavors.
3. No person having a financial interest in the partnership, joint venture or other type of organization shall have outstanding unpaid final judgments.
4. No person having a financial interest in the partnership, joint venture or other type of organization shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime of moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, within five years immediately preceding the date of the application.
5. No person having a financial interest in the partnership, joint venture or other type of orga-

nization shall have been found to have violated this chapter within five years immediately preceding the date of the application.

(Code 1985, § 39-203C; Ord. No. 4941, 5-7-2002)

Sec. 6-44-6. Insurance.

A. No certificate of public convenience and necessity shall be issued unless the applicant provides to the city treasurer proof of financial responsibility by either a written policy of liability insurance coverage as provided in subsections (A)(1) or (A)(3) of this section, or a self-insurance certificate as provided in subsection (A)(2) of this section. The liability insurance coverage limits as provided in subsections (A)(1) and (2) of this section are the same as that provided by the Tennessee Financial Responsibility Law of 1977, as amended T.C.A. § 55-12-101 et seq., generally and in particular sections 55-12-102 and 55-12-111, and shall be automatically increased as of January 1, 1990, as provided by said state statute, and thereafter as the statute is amended.

1. A written policy of liability insurance coverage issued by an insurance carrier duly authorized to do business in the state, covering separately, or in a schedule attached to such policy, each passenger vehicle for hire to be operated under the direction of such applicant, for vehicle for hire services shall be provided by a single-limit policy with a limit of not less than $50,000.00, applicable to one accident or split limit policy with a limit of not less than $20,000.00 for bodily injury to or death of one person, not less than $40,000.00 for bodily injury or death to two or more persons in any one accident, and not less than $10,000.00 for damage to property in any one accident.

2. A self-insurance certificate issued by the state commissioner of the department of safety, for which documentation from the commissioner should also be filed with the city treasurer.

3. A written policy of liability insurance coverage issued by an insurance carrier duly authorized to do business in the state, covering separately or in a schedule attached to each policy, each passenger vehicle having a capacity of more than five persons including the driver, shall be provided by a policy with limits of at least $5,000.00 more per each seat capacity beyond five than the minimum single-limit or split-limit requirement for taxicabs, as provided herein, for injuries or death of more than one person in any one accident.

4. a. A self-insured retention or deductible funding, whether or not in conjunction with automobile liability insurance for vehicle for hire services which achieves the substantial equivalent of the liability insurance set forth in subsection A of this section. The applicant or certificate holder shall file a statement of compliance providing that the certificate holder or applicant shall pay within 30 days any final judgment of a court for damages on account of bodily injury, death or property damages resulting from the ownership or negligent use or operation of a vehicle for hire service subject to the single-limit liability of subsection A of this section and shall deposit collateral for the faithful performance of such statement in a restricted account to insure the liability protection required in subsection A of this section as follows: $20,000.00 to be deposited immediately in a commercial bank or other such depository with a branch office located in the city, three deposits of $20,000.00 each, every 90 days thereafter, and then 12 deposits of $10,000.00 each, every 90 days thereafter until a total amount of $200,000.00 is deposited. Documentation of the deposits should be filed with the city treasurer. Within 30 days of any withdrawals, as provided for below, the fund shall be replenished to required funding level.

   b. The certificate holder or applicant shall file with the city treasurer and the depository, written authorization wherein the certificate holder or applicant shall expressly agree that, if any court, or the clerk thereof, shall certify to the city treasurer and to the depository that such certificate holder has failed to satisfy within 30 days any final judgment of the court upon which execution has been lawfully issued for damages in a single accident on account of bodily injury, death or property damage resulting from the

ownership or negligent use or operation of any vehicle for hire service of such certificate holder, such cash or government obligations so deposited shall, to the extent of no more than $50,000.00, be applied by the depository upon the written order of the city treasurer, to the satisfaction of the judgment; and agreeing that, for that purpose, any government obligations so deposited may be sold and converted into cash by the depository at its market price, and that any cash excess from the proceeds of such sale shall remain with the depository as collateral security aforesaid. Nothing herein shall affect the right of the general public to recover damages in excess of the limits stated herein from a source other than the restricted fund. The certificate holder shall reimburse the fund for such judgment so that the fund shall be brought to the required level within 30 days of the withdrawal by the city treasurer. The certificate holder shall not encumber the fund nor shall the fund be encumbered or moneys withdrawn from the fund except as provided herein.

c. The certificate holder shall report claims activities on a quarterly basis to the city treasurer, including the following information per claim: the name(s) and addresses of the claimant(s), the date and location of the accident(s), the name(s) of the vehicle for hire service driver(s) involved, and the amount and current status of the claim. Records of the claims maintained by the certificate holder shall be made available for inspection by the city treasurer or his or her representative during regular business hours in the office of the certificate holder for a period of one year of the final disposition of each claim.

d. It is unlawful for a permit holder, or anyone acting on his or her behalf to commit or perform any of the following in handling of claims:

   i. Misrepresent insurance policy provisions relating to coverage at issue;

   ii. Fail to acknowledge and act reasonably and promptly, considering all the circumstances, upon written or oral communications with respect to claims;

   iii. Fail to adopt and implement reasonable standards for the prompt investigation of claims.

e. So long as a depository has received no written notice of default by a certificate holder in the faithful performance of this statement of compliance referred to in subsection (A)(4)(a) of this section, such certificate holder shall be entitled to receive, and the depository shall pay to him or her, if, as and when collected by it, all interest from time to time accruing upon any cash or government obligations deposited as herein provided. All charges made by the depository for such account shall be paid by the certificate.

f. In case a certificate holder, after making a deposit of cash or government obligations as provided in subsection (A)(4)(a) of this section shall discontinue the operation of vehicle for hire services or in the event he or she shall, with the consent of the city treasurer, substitute in lieu of such agreement a policy of liability insurance in accordance with subsection A of this section, the certificate holder shall continue to maintain the deposit at the required level for such period of time as shall be made by the city treasurer and the certificate holder of all outstanding and unpaid claims pending against such person; and a sufficient amount of such cash or government obligations so deposited shall be retained by the depository as, in the reasonable discretion of the city treasurer, shall be reasonably sufficient to guarantee payment of such claims. The balance of such deposit shall thereupon be returned to the person making such deposit by the depository, upon the order of the city treasurer; and thereafter the balance of such fund shall, from time to time as claims are reduced, be returned by the depository to the person making such

deposit on the order of the city treasurer, in the proportion to the amount that it shall be shown to the city treasurer that such claims have been paid or satisfied, or have been reduced, dropped or abandoned. In case of dispute over such appraisal between the person making such deposit and the city treasurer, the dispute shall be settled by the chief administrative officer or his or her designee, and the decision of same shall be final and binding upon the parties.

g. Failure by the certificate holder to fully comply with all the provisions of subsection (A)(4) of this section shall result in the immediate suspension of the affected certificate of public convenience and necessity and notification of a revocation hearing.

B. Any insurance policy issued pursuant to this section shall further provide that the insolvency or bankruptcy of the insured shall not relieve the company from the payment of damages for injuries or death sustained, or loss occasioned within the provisions of the policy and that the prepayment of any judgment that may be recovered against the insured upon any claim covered by such policy shall not be a condition precedent to any right of action against the company upon the policy, but that the company shall be bound to the extent of its liability under the policy and shall pay and satisfy such judgment, and that action may be maintained upon such judgment by the injured person or his or her heirs, or personal representatives, as the case may be, to enforce the liability of the company as therein set forth.

C. Any insurance policy issued pursuant to this section shall further provide that the same may not be canceled or not renewed without at least 30 days written notice to be sent by registered or certified mail, return receipt requested, to the city treasurer, except that cancellation for nonpayment of premium shall require no more than ten days, properly mailed, written notice of cancellation.

D. If the certificate holder fails to fully and timely comply with all the provisions of subsection (A)(4) of this section, the certificate of public convenience and necessity affected by such fund shall fail within the period specified in such notice of cancellation or nonrenewal of a liability insurance policy or self-insurance certificate to provide a policy or self-insurance certificate meeting the requirements of this section on or before the date of cancellation or nonrenewal, then the certificate of public convenience and necessity affected by such cancellation or nonrenewal shall be immediately suspended. Any such suspended certificate of public convenience and necessity may be revoked after a public hearing to be held following ten days' written notice, sent registered or certified mail, return receipt requested, the date of post mark and the date of cancellation, nonrenewal, or the date the subsection (A)(4) of this section fund falls below the level provided for in subsection (A)(4)(a) of this section being day one, upon the finding that the policy or self-insurance certificate has not been provided or the subsection (A)(4) of this section fund has not been properly funded. The suspended certificate of public convenience and necessity may be reinstated by the city treasurer before the hearing or at the hearing, upon compliance in full with the provisions of this section, so long as no other cause for suspension or revocation exists. An application for a certificate of public convenience and necessity, after revocation, shall be treated as an initial application.

E. No passenger vehicles for hire shall be operated upon the suspension or revocation of a certificate of public convenience and necessity.
(Code 1985, § 39-203D; Ord. No. 4941, 5-7-2002)

Sec. 6-44-7. Certificate issued to owner only.

No certificate shall be granted under this chapter to any person unless the person is the owner of the vehicle(s) to be operated as a passenger vehicle(s) for hire. At the time of the issuance of the certificate, the certificate applicant shall deposit with the city treasurer a copy of a title issued by the State of Tennessee for each vehicle to operated as a passenger vehicle for hire. Copies of renewal forms of licensing through the State of Tennessee must be kept and maintained by the certificate holder and shall be available upon request to the city treasurer at any time without notice.
(Code 1985, § 39-203E; Ord. No. 4941, 5-7-2002)

Sec. 6-44-8. Fee.

When a certificate is issued and at each authorized renewal thereof, a fee of $125.00 for each vehicle in use shall be paid to the city treasurer to defray the cost of

administration of this chapter. For any certificate issued or amended after July 1 of any year, the fee shall be $62.50 for each vehicle in use.
(Code 1985, § 39-203F; Ord. No. 4941, 5-7-2002)

Sec. 6-44-9. Passenger vehicle for hire services.

All persons engaged in the vehicle for hire service business in the city operating under the provisions of this chapter shall render service to the public desiring to use passenger vehicles for hire. Holders of certificates of public convenience and necessity shall maintain a fixed place of business and a publicly known telephone number(s).
(Code 1985, § 39-203G; Ord. No. 4941, 5-7-2002)

Sec. 6-44-10. Book and accounting records of certificate holder.

Books, records and statistics shall be kept and maintained by the certificate holder for a period of seven years and a semi-annual comprehensive statement of profit and loss, a balance sheet and copies of same shall be available upon request to the director of police services at any time with notice.
(Code 1985, § 39-203H; Ord. No. 4941, 5-7-2002)

Sec. 6-44-11. Business to be conducted by certificate holder; agreements with drivers.

The business of every passenger vehicle for hire shall be carried on by the person to whom the certificate is issued under this chapter. The holder of the certificate may enter into agreements with drivers fixing percentages of receipts to be turned over to the holder of the certificate for the daily use of such vehicles, paying salaries to drivers, or drivers may rent the passenger vehicle for hire for a specific sum of money. A driver may be the conditional buyer or lessee of a vehicle as long as the certificate holder is the owner as defined in section 6-44-1. Any arrangement contracted between the holder of a certificate and the driver shall not relieve the holder of the certificate from any liability and damages to third parties. A sample copy of all such agreements shall be kept on file with the director of police services.
(Code 1985, § 39-203I; Ord. No. 4941, 5-7-2002)

Sec. 6-44-12. Increase in number of vehicles after issuance; enlargement of authority.

A certificate holder shall not increase the number of vehicles operated pursuant to the certificate without receiving the approval of the director of police services or the director's designee. The director of police services or the director's designee shall approve or disapprove such request on the basis of economic need of the certificate holder, need of public for additional service, and other factors listed in section 6-44-5. If the request is denied, the director or the director's designee shall advise the certificate holder in writing of the reasons for such action. If the certificate holder requests a hearing with ten days of receipt of notification of denial, a public hearing shall be held as provided in section 6-44-24(B).
(Code 1985, § 39-203J; Ord. No. 4941, 5-7-2002)

Sec. 6-44-13. Replacement of vehicles.

A. In case any vehicle covered by a certificate is retired by the owner because it is worn out or so damaged as not to be worthy of repair, burned or otherwise destroyed, the certificate holder shall deposit with the city treasurer a copy of the title of the substitute vehicle. Copies of renewal forms of licensing through the State of Tennessee must be kept and maintained by the certificate holder and shall be available upon request to the city treasurer at any time without notice.

B. The certificate holder must, if vehicles are discarded, sold, returned or otherwise disposed of, give notice to the city treasurer of such action whether or not the vehicle is replaced and return identification sticker to city treasurer.
(Code 1985, § 39-203K; Ord. No. 4941, 5-7-2002)

Sec. 6-44-14. Accident reports.

Reports of accidents in which a vehicle for hire service or any passenger vehicle for hire may be involved shall be promptly made to the police services division in accordance with the provisions of chapters 2-28 through 2-34. The certificate holder and the driver shall each have responsibility for filing a copy of the report with the director of police services. Upon the happening of any accident or collision, the certificate holder shall forthwith have the vehicle for hire service or passenger vehicle for hire involved therein taken to the garage or repair shop of the certificate holder or to some reputable repair shop.
(Code 1985, § 39-203L; Ord. No. 4941, 5-7-2002)

Sec. 6-44-15. Manifests.

It shall be the duty of every certificate holder operating vehicle for hire services to furnish regularly to the

driver thereof an adequate number of printed manifests which shall contain the name of the driver of the vehicle for hire service, the license number and the date the sheet shall be completed by the driver at the time of the event, showing the time and place at which any passenger or passengers engaged the vehicle for hire services, the number of such passengers, the time and place at which such passengers were delivered to their destination, and the amount of the fare received by the driver. Recording of odometer is required at beginning/end of each trip on manifest by the vehicle for hire service driver.
(Code 1985, § 39-203M; Ord. No. 4941, 5-7-2002)

Sec. 6-44-16. Assignment or transfer of certificate.

No certificate of public convenience and necessity may be sold, assigned, mortgaged, transferred or alienated.
(Code 1985, § 39-203N; Ord. No. 4941, 5-7-2002)

Sec. 6-44-17. Expiration and renewal of the certificate.

A certificate issued under this chapter shall expire March 31 of each year at 12:00 midnight and shall be renewed at the existing level of vehicles as long as the standards for the initial issuance are met. Applications for renewals shall be made by March 10 of each year, by which time all fees for the succeeding year shall have been paid. If the request for renewal is denied, the director or the director's designee shall advise the applicant in writing of the reasons for such denial. If the applicant requests a hearing with ten days of notification of denial, a public hearing shall be held as provided in section 6-44-24.
(Code 1985, § 39-203O; Ord. No. 4941, 5-7-2002)

Sec. 6-44-18. Fines, suspensions and revocation of certificate.

A. A certificate issued under the provisions of this chapter may be fined, suspended or revoked by the director of police services or the director's designee after a public hearing, except as provided in section 6-44-6. Notice, public access to documents, and conduct of hearing shall conform to the provisions of section 6-44-24(B), except that written notice shall be sent by registered U.S. mail to the subject certificate holder by the date of publication.

B. A certificate issued under the provisions of this chapter may be fined no more than $50.00, suspended or revoked by the director of police services or the director's designee upon findings at the public hearing that the holder of the certificate has:

1. Violated any provisions of this chapter;
2. Discontinued operation for more than 30 days;
3. Would no longer be eligible for issuance of the certificate.

C. A certificate holder shall have the right to appeal the ruling of the director or the director's designee revoking or suspending the certificate in the same manner as provided for appeals of the decision under section 6-44-24(B).
(Code 1985, § 39-203P; Ord. No. 4941, 5-7-2002)

Sec. 6-44-19. Vehicle drivers.

A. No person shall operate a vehicle for hire upon the streets of the city, and no holder of a State of Tennessee certificate of public convenience and necessity who owns or controls a vehicle for hire shall permit it to be so driven, unless the director of the vehicle for hire shall have first obtained and shall have a current and properly updated passenger vehicle for hire driver's permit which has been approved by the city treasurer and issued by the city treasurer, or his or her designee.

B. Those vehicles not presently licensed by the state or the city but otherwise make pickup or drop-off in city must acquire a permit.

C. Every driver permit in good standing, will be renewable on or three months before its expiration date, upon application and payment of the fee as required in the permits office. The renewal of the driver permit within five working days following the date of expiration of the permit will be considered timely renewal of the permit.

1. Failure to make timely application for renewal of the driver permit will result in the payment of a delinquent fee of $15.00 for each month up to three months.
2. Permit holders who have allowed their permits to expire for a period of three months will be considered a new applicant for a permit, and will pay any accumulated fees to the permits office and will conform to all the requirements

pertaining to such applicants in obtaining such permits, including physical and drug screening.
(Code 1985, § 39-204; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 15, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-44-20. Application for a driver's permit.

A. Permits required by this article shall be applied for, in person and in writing, on such forms as the city treasurer may prescribe, which forms shall show that:

1. The applicant has obtained a class D license with "For Hire" endorsement pursuant to the provisions of T.C.A. chapter 7, title 59;

2. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations;

3. Such other information as the city treasurer may require.

B. Such application shall be accompanied by two photographs as provided by the city permits office, one of which shall be attached to the permit, if issued, and one to be retained in the files of the city treasurer with the application for the permit.

C. Such application shall also be accompanied by a Department of Safety, State of Tennessee motor vehicle report; a criminal record check issued by the city treasurer; a statement (form provided) by a reputable physician who is a resident of the city, indicating the length of time which the physician has treated the applicant, showing that the applicant is not disabled by reason of defect of sight, hearing, body or limb from safely operating a limousine and indicating any and all physical and mental conditions for which treatment has been rendered within the last year and for which treatment continues to be rendered; references of at least three reputable persons personally acquainted with the applicant; containing their name, address, home and work telephone numbers, and a statement from a holder of a certificate of public convenience and necessity indicating that the applicant shall be affiliated with the certificate holder upon the issuance of the permit.

D. Driver's permits shall remain the property of the city treasurer and may be canceled, revoked or suspended at any time and will be surrendered on demand.
(Code 1985, § 39-205; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 16, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-44-21. Applicant to fill out identification questionnaire and be fingerprinted.

Each applicant for a driver's permit shall appear before the city treasurer, or his or her designee, to complete an identification questionnaire, or a form to be provided, and be fingerprinted.
(Code 1985, § 39-206; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 17, 8-15-1995)

Sec. 6-44-22. Investigation; issuance; not to issue to certain persons.

A. Before issuing a driver's permit under this article, the city treasurer or the city treasurer's designee shall investigate the facts set out in the application and shall not grant such permit to any person who, in the opinion of the city treasurer, after investigation, is not physically or morally fit to drive or operate a limousine for hire in the city.

B. No driver's permit shall be issued to any applicant who has been convicted of, forfeited bail or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, or been an inmate of reform school or penitentiary as a result of a conviction for a felony, within five years prior to his or her application for such permit.

C. The city treasurer may refuse to issue a driver's permit to any applicant whose police record shows conviction for public drunkenness, driving under the influence of intoxicants, repeated moving traffic violations, or any other good and just cause which, in the opinion of the city treasurer, would be inimical to the public health, safety or morals.

D. No driver's permit shall be issued unless the applicant is at least 21 years of age.

E. It shall be the duty of the city treasurer to issue a driver's permit to any applying therefor, showing compliance with the provisions of this chapter.
(Code 1985, § 39-207; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 11, 8-15-1995)

Sec. 6-44-22.1. Charitable nonprofit transportation providers.

A. *Qualifying organizations*.

1. *Name*. Charitable nonprofit transportation providers.

2. *Classification*. 501c3 nonprofit organizations chartered under the laws of the State of Tennessee, with the specific stated focus on individuals with special needs, such as elderly and visually impaired, accountable to federal and state government.

3. *Definitions*.

Charitable nonprofit transportation provider "CNPTP" means a 501c3 organization dedicated, at least in part, to helping meet the special transportation needs of individuals in the City of Memphis that adheres to every element of "classification."

Charitable nonprofit transportation vehicle means a vehicle for hire provided by a local nonprofit charitable organization affiliated with a state or national nonprofit charitable organization to transport persons who are elderly or visually impaired.

B. *Permits*.

1. *Type*. Qualifying organizations must obtain a CNPTP permit which would have to be renewed annually, with a copy of the affiliate agreement with the state or national organization.

2. *Application for license*. Applications for a CNPTP permit shall be made to the city manager or his designee upon forms provided by the city manager or his designee. At a minimum, these forms shall set forth the name and address of the applicant, the class of each vehicle for which a license is desired, the seating capacity, the design, color scheme, and lettering and marks, if any, to be used on the vehicle, and any other information required by the city manager. Upon the first application, the applicant shall pay to the city treasurer upon filing for each such public vehicle license the sum of $10.00, which fee shall not be refunded. If the application is approved, the applicant shall furnish the city treasurer prior to the issuance of the decal information covering the particular vehicle to be licensed the make, the state license number, where applicable, the length of time the vehicle has been in use, and the name and address of the person from whom the vehicle was purchased, and any other information required by the city manager, pertinent to the issuance of a license. When an unpaid, citizen volunteer drives his or her own personal vehicle to assist the CNPTP with rides for the special transportation needs of individuals, this license requirement shall not apply.

3. *Fees*. There shall be no annual fee for charitable, nonprofit organizations or for any vehicles used.

C. *Insurance*.

1. *Requirements*. Insurance certification is required, and the City of Memphis is exempted and indemnified against all claims.

2. *Type and amount.* Each CNPTP shall maintain the following insurance:

a. Director's and officer's insurance.

b. General liability/business owner's insurance. Minimum coverage of $1,000,000.00 for each injury, $1,000,000.00 for all injuries, and $1,000,000.00 property damage.

c. Auto insurance. This insurance protects the CNPTP and CNPTP employees. Vehicles owned by the CNPTP will be covered under an automobile liability policy with limits of $1,000,000.00 combined single limits auto liability-bodily injury and property damage and $1,000,000.00 uninsured motorist, property damage and bodily injury.

d. Auto insurance—Hired and non-owned. This insurance will be carried only if it is available in the geographic service area. This insurance protects the CNPTP, not the drivers. The driver's own insurance is primary in an accident. The hired cover-

age protects the CNPTP when there is use of a rental/leased vehicle by the CNPTP. The non-owned coverage protects the CNPTP in the event a volunteer driver has an accident in a vehicle not owned by the CNPTP and damages exceed coverage under his/her primary insurance policy. The limits for hired and non-owned will be $1,000,000.00 should this coverage be available.

e. Worker's compensation insurance. As required under Tennessee law.

3. *Qualifying organizations*. Each qualifying organization shall obtain and, at all times during the term of this agreement, maintain in force and pay the premiums for comprehensive general liability insurance, including complete operations coverage and, unless such coverage is not available in the geographic service area, non-owned automobile coverage, with an established and reputable insurer, with limits of liability for bodily injury of not less than $1,000,000.00 for each injury and $1,000,000.00 for property damage in each occurrence.

4. *Volunteer drivers*. Volunteer drivers must carry their own automobile coverage at or above the state level. The volunteer driver's insurance is primary.

D. *Regulation of drivers.* Regulation of drivers shall be the province of the nonprofit organization, and said organization must provide satisfactory certification and supervision of its drivers. State of Tennessee driver's license and approved safety record is acceptable. Every volunteer driver must have an acceptable background check.

E. *Established need*. There is insufficient specialized public transportation to meet the needs of the rapidly aging population, and without adequate mobility, older people cannot access healthcare, nutrition, or any kind of social or civic engagement. Older people have the highest fatal crash rate of any group except teenagers, and without adequate transportation options, they are more likely to drive when they should not, at risk to themselves, their families and the community.

F. *Miscellaneous*.

1. *Volunteer drivers.* Volunteer drivers shall receive no monetary compensation for their services, other than mileage reimbursement or credit as allowed by the IRS for their actual expenses.

2. *Certificate of public convenience and necessity exemption.* Qualifying organizations are not required to obtain a certificate of public convenience and necessity pursuant to the Memphis Code of Ordinances.

(Ord. No. 5561, §§ 1—5, 7, 9-2-2014)

ARTICLE 3. DIRECTOR POWERS AND REGULATIONS

Sec. 6-44-23. Rules and regulations of the director of police services relative to limousines.

The director of police services is authorized and directed to make and enforce such additional rules and regulations, not in conflict with the provisions of this chapter, as the director may deem proper to regulate the operation limousines and limousine drivers for hire, provided that no regulation shall be made or enforced in conflict with this chapter, any other city ordinance or state law.

(Code 1985, § 39-208; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-24. Director of police services—Powers—Appeal of decisions.

A. The director of police services is vested with full and complete authority to issue, alter, deny, suspend or revoke permits for drivers, as herein provided, and is further vested with the full and complete authority, duty and responsibility to carry into effect the provisions of this chapter. The director of police services may designate an officer to render rulings or take all other actions herein granted to the director, as indicated by the director.

B. The director or the director's designee shall conduct hearings on those matters requiring same. Decisions of the designee may be appealed by the driver permit applicant, or driver's permit holder within ten days after the decision affecting the person, by filing a written appeal with the director of police services. The director may rule after a review of the record or may set a hearing as soon as practicable.

C. A driver permit applicant or driver permit holder aggrieved by any final order or determination of the director in regard to the issuance, denial, suspension or

revocation of that person's driver's permit under this chapter may seek judicial review thereof by common law writ of certiorari. No judicial review shall be available until all administrative remedies have been exhausted.
(Code 1985, § 39-209; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-25. Notification of arrest or indictment.

The holder of a driver's permit shall advise the city treasurer, or his or her designee immediately of all charges, arrests and indictments, including those for public drunkenness and driving under the influence of intoxicants. The city treasurer or his or her designee may suspend a driver's permit for five days prior to a hearing pursuant to section 6-44-24, if driver is arrested, charged or indicted for any violation of city, state or federal laws. It shall also be the responsibility of the certificate holder with which the driver is affiliated to notify the city treasurer or his or her designee of the charges, arrests or indictments. Failure to do so may result in suspension or revocation of the driver's permit.
(Code 1985, § 39-210; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 18, 8-15-1995)

Sec. 6-44-26. Notification of company change of driver.

At the time a permit is issued, the driver must register with the division of police services the name of the limousine for hire certificate holder with which the driver intends to be affiliated, and the division of police services will have stamped on the permit the name of the limousine for hire certificate holder specified by the driver. If at any time a driver wishes to change affiliations, the driver must register the change with the division of police services, and a fee of $20.00 will be charged to defray administrative cost. Failure to advise the director of any such changes may result in suspension or revocation of the driver permit. It shall be the responsibility of the holder of the State of Tennessee certificate of public convenience and necessity to notify the city treasurer or his or her designee when affiliation with a driver is discontinued. To replace a current permit which is lost destroyed, or stolen, or to notify of a change of company, the fee shall be $10.00.
(Code 1985, § 39-211; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 18, 8-15-1995; Ord. No. 4941, 5-7-2002)

ARTICLE 4. FEES AND PERMITS

Sec. 6-44-27. Permit fee.

Each applicant for a permit under the provisions of this article shall pay to the city treasurer, or his or her designee, a fee of $35.00 at the time of filing the application to cover the cost of processing. For the renewal of such permit the applicant shall pay a fee of $17.50. To replace a lost, destroyed or stolen permit that is current, the fee shall be $5.00.
(Code 1985, § 39-212; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 18, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-44-28. Form, size, design and contents.

A permit issued under this chapter shall be in card form of such size and design as may be prescribed by the city treasurer, or his or her designee, which shall bear on its face a photograph of the driver, the number of the permit, the expiration date thereof the company with which the driver is affiliated, and such other information as the city treasurer, or his or her designee, may require.
(Code 1985, § 39-213; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 18, 8-15-1995)

Sec. 6-44-29. Display of permit.

The original permit issued under this chapter containing a photograph and other data on the driver, shall at all times be kept on display in the limousine for hire, operated by such driver to be read by the passenger, which such limousine for hire is under the direction or control of such driver.
(Code 1985, § 39-214; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-30. Expiration and renewal.

A. 1. A permit issued under this article shall expire at midnight on the date of birth of the applicant, at which time the permit shall become null and void. Every driver's permit in good standing will be renewable on or three months before its expiration date, upon application and payment of the fee to the permit office, as required in section 6-44-27. The renewal of the driver's permit within five working days following the date of expiration of the permit will be considered timely renewal of the permit.

2. Failure to make timely application for renewal of the driver's permit will result in the payment of a delinquent fee of $15.00 per month, up to three months.

3. Permit holders who have allowed their permits to expire for a period beyond three months will be considered to be a new applicant for a permit and will pay any accumulated fees to the permits office and will conform to all the requirements pertaining to such applicants in obtaining such permits, including physical and drug screening.

B. If the driver wishes that his or her permit be renewed, he or she shall furnish to the city treasurer, or his or her designee, the following information by May 1 of each calendar year:

1. Current Division of Safety, Department of Transportation motor vehicle report;

2. Current criminal record report issued by the city treasurer;

3. Two recent color pictures of the driver, two inches square;

4. An affidavit signed by the driver indicating no medical or physical disabilities were suffered during the previous year;

5. A statement from a holder of a State of Tennessee certificate of public convenience and necessity indicting that the driver is a current driver for the certificate holder.

C. Every three years, a driver shall submit at the time of renewal, a certificate by a reputable physician, resident in the city, indicating the length of time which the physician has treated the driver, showing that the driver is not disabled by reason of defective sight, hearing, body or limb from safely operating a motor vehicle and indicating any physical or mental condition for which the driver has received treatment in the previous three years and those for which he or she continues to receive treatment.
(Code 1985, § 39-215; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, §§ 18, 19, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-44-31. Fines, suspension and revocation of permit.

A. The city treasurer, or his or her designee, is given the authority to fine a penalty of no more than $50.00, to suspend or revoke any driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by the city treasurer, or his or her designee.

B. The city treasurer or his or her designee, shall notify a driver of the violations with which he or she is charged and his or her right to a hearing before the city treasurer, or his or her designee, at which time the driver shall have an opportunity to present evidence; provided, however, that the city treasurer, or his or her designee, may suspend a permit for five working days prior to a hearing, with a hearing to be held within that period of time, if, in the judgment of the city treasurer, or his or her designee, the public health and safety requires. At such hearing the city treasurer, or his or her designee, is authorized to further suspend or revoke a driver's permit.
(Code 1985, § 39-216; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 18, 8-15-1995; Ord. No. 4941, § 5-7-2002)

Sec. 6-44-32. Unauthorized use of permit; defacing or removing permit.

A. The city treasurer or his or her designee, may suspend or revoke the permit of any driver for allowing any other person to use the permit granted to the driver, for the purpose of operating a passenger vehicle for hire or for any other reason.

B. The city treasurer, or his or her designee, may suspend or revoke the permit of any driver who defaces, removes or obliterates any official entry made upon the permit.
(Code 1985, § 39-217; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 5. DRIVER'S CONDUCT

Sec. 6-44-33. Conduct of limousine drivers.

A. No driver shall engage in selling alcoholic beverages or any controlled substance.

B. Drivers shall not engage in abusive language, including, but not limited to, cursing, verbal insults or derogatory comments in the presence of passengers, potential or engaged, or staff members of regulating authorities.

C. While on duty, drivers shall not be under the influence nor engage in the consumption of intoxicants, including but not limited to beer and other alcoholic beverages or controlled substances. Any driver charged

with driving while intoxicated may have his or her permit immediately suspended as provided in section 6-44-24.

D. Drivers must present an acceptable appearance, including clean, neat wearing apparel not in need of repair. Hats may be worn. Shoes must be worn at all times while serving the public. General appearance must be one of neatness and cleanliness.
(Code 1985, § 39-218; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-34. Drivers not to work more than 12 hours out of 24.

No driver shall work more than a maximum of 12 driving hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he or she has had at least eight consecutive hours of rest.
(Code 1985, § 39-219; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-35. Television equipment.

No television set shall be installed or portable model television operated in the front seat area of any limousine.
(Code 1985, § 39-220; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-36. Duty of vehicle for hire inspectors to enforce chapter.

The director of police and/or his or her designees of the city are authorized and are instructed to monitor the conduct of holders of State of Tennessee certificates of public convenience and necessity and limousine drivers operating under this chapter. Upon discovering violation of the provisions of this chapter, the designees shall take appropriate action. Any limousine for hire may be stopped at any time, whether or not the vehicle is occupied by the client, for the purpose of checking the driver's permit for compliance of the provisions of this chapter.
(Code 1985, § 39-221; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-44-37. In-kind payments of fares.

No in-kind payments, including, but not limited to, items of value such as jewelry, drugs, coupons, credit slips or any object(s) of any material value shall be accepted in lieu of or as collateral for a fare.
(Code 1985, § 39-222; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 6. PEDAL CARRIAGES

DIVISION 1. DEFINITIONS

Sec. 6-44-38. Definitions.

The following words and phrases, when used when used in this chapter, shall have the meaning as set out herein:

Certificate means a certificate of public convenience and necessity issued by the Memphis Transportation Commission.

Director of police services means the director of police services of the City of Memphis, or his authorized designee.

Driver means any person in actual charge of the operation of a pedal carriage.

Driver's permit means the permission granted by the permits office to a person to drive a pedal carriage for hire upon the streets of the City of Memphis.

For hire means agreement to transport a person or persons for a fare.

Holder means a person to whom a certificate of public convenience and necessity has been issued by the Memphis Transportation Commission.

Memphis Transportation Commission is the commission created and established by the city council of the City of Memphis as the regulatory body for all taxicabs, vehicles for hire, limousines, shuttle services, horse carriages, tow trucks, wreckers and their drivers that operate upon the streets of the City of Memphis.

Open container means any container containing alcoholic beverages, the contents of which are immediately capable of being consumed or the seal of which has been broken.

Owner means a person who holds the legal title of the pedal carriage or, in the event said vehicle is the subject of an agreement for the conditional sale or lease thereof, owner or lessee.

Pedal carriage means a pedaled vehicle with three or more wheels steered by one person for the purpose of, transporting passengers in seats made a part of the pedal carriage and with pedals for each passenger to help propel the bicycle manually which may also have incidental motor assist. This definition shall not include a

bicycle built for two where the operators are seated one behind the other, nor shall it include a bicycle with a trainer or beginner wheels affixed thereto, nor a wheelchair or other vehicle for the purpose of transporting a handicapped person, nor shall it include a tricycle built for a child or an adult with a seat for only one operator and no passenger. The term pedal carriage is interchangeable with pedicab.

Permit/license inspector means a Memphis police officer and/or a permits office staff member trained and authorized to inspect a pedal carriage for public safety and observe the conduct of pedal carriage drivers operating pursuant to this chapter. Upon discovering a violation of the provisions of this chapter, the inspectors will order or take appropriate action.

Permits-license administrator means the administrator of the City of Memphis permits office.

Permits office means the City of Memphis permits office which administers and enforces certain ordinances.
(Ord. No. 5585, 5-19-2015)

DIVISION 2. CERTIFICATE OF PUBLIC CONVENIENCE

Sec. 6-44-39. Generally.

No person shall operate or permit to be operated a pedal carriage owned to transport persons for compensation upon the streets of the City of Memphis without first having obtained a certificate of public convenience and necessity issued by the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-40. Company requirements.

No person shall operate or permit to be in any areas other than the downtown; Overton Square; the Pinch District; Cooper Young; Broad Avenue District or other entertainment or business districts unless specifically approved by the permits office.

Pedal carriages are prohibited from transporting passengers except on routes approved by the permits office.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-41. Application for certificate.

A. Any person, partnership, or corporation desiring to secure a certificate of public convenience and necessity shall make application to the permits office and pay the application fee of $200.00. The notarized application shall be filed with and dated by the permits office.

B. The application for a certificate shall be upon a form provided by the permits office. An applicant for a certificate, including any partner, and any officer or director of a corporate applicant and any stockholder holding more than five percent of the stock of a corporate applicant, or any other person who is interested directly in the ownership or operation of the business, shall furnish the following information:

1. Name and address, including all aliases.
2. Written proof that the individual is at least 21 years of age.
3. All residential addresses of the applicant for the past five years.
4. The trade name under which the applicant proposes to do business.
5. The business, occupation or employment of the applicant for five years immediately preceding the date of the application.
6. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business.
7. All criminal statutes, whether federal or state, or city ordinance violation for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, except minor traffic violations.
8. Fingerprints (may be required).
9. The address of the premises from which the vehicle for hire business is to be conducted and the address wherein the vehicles are to be stored and/or serviced.
10. If the applicant is a corporation, the name of the corporation and the date and state of incorporation, the name and address of the registered

agent, and the names and addresses of all shareholders, as required above, officers and directors of the corporation.

11. The number of vehicles to be put into service at the time of application.

12. A statement by the applicant that he or she is familiar with the provisions of this chapter and is in compliance with them.

13. A business plan.

C. Within ten days, or a reasonable time thereafter, of receiving the results of the investigation conducted by the permits office, the permits-licenses administrator shall present the application at the next regularly scheduled meeting of the Memphis Transportation Commission and place all required public notices. All documents relative to the hearing shall be made be available for inspection prior to the hearing and any interested person may file a statement in support of or in opposition to the issuance of a certificate, and/or may offer testimony at the hearing.

D. Failure or refusal of the applicant to give any information relevant to the investigation of the application or the applicant's refusal or failure to appear at any reasonable time and place for examination under oath regarding said application or the applicant's refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that the applicant is ineligible for such license and shall be grounds for denial thereof by the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-42. Standards for issuance of certificate.

The certificate of public convenience and necessity may be issued if an applicant meets the following standards:

A. The applicant's financial status shall be such that the applicant shall be capable of operating said vehicle or passenger vehicle for hire service during the time the certificate shall remain in effect.

B. If the applicant is an individual:

1. The applicant shall be at least 21 years of age.

2. The applicant shall not have outstanding unpaid final judgment.

3. The applicant shall not have been convicted of, forfeited bond, or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. The applicant shall not have been found to have violated this chapter within five years immediately preceding the date of the application.

C. If the applicant is a corporation:

1. All officers and directors shall be at least 21 years of age.

2. No officer, director or stockholder required to be named under section 6-80-8 shall have outstanding unpaid final judgments.

3. No officer, director or stockholder required to be named under section 39-8 shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2). A controlled substance, assignation, prostitution, obscenity, or any crime of sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. No officer, director or stockholder required to be named under section 6-80-8 shall have been found to have violated this chapter within five years immediately preceding the date of application.

D. If the applicant is a partnership, joint venture or any other type of organization where two or more persons have a financial interest.

1. All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least 21 years of age.

2. The managing partner or manager shall have experience in the operation of a transportation business or in related endeavors.

3. No persons having a financial interest in the partnership, joint venture or other type of organization shall have been convicted or forfeited bond or pleased non contender to a felony or any crime of moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance,

prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of the application.

4. No person having a financial interest in the partnership, joint venture or other type of organization shall have been found to have violated this chapter within five years immediately preceding the date of the application.

(Ord. No. 5585, 5-19-2015)

Sec. 6-44-43. Insurance.

A. No certificate of public convenience and necessity shall be issued unless the applicant provides to the permits office proof of financial responsibility by either a written policy of liability insurance coverage per the requirements of the risk management department of the City of Memphis which may be amended from time to time to remain current with the current risk factors or section 6-44-6(A)(3), a self-insurance certificate issued by the commissioner of insurance and finance for the State of Tennessee.

B. A written policy of liability insurance coverage must be issued by an insurance carrier duly authorized to do business in the State of Tennessee. Any insurance policy issued pursuant to this section shall further provide that the insolvency or bankruptcy of the insured shall not relieve the company form the payment of damages for injuries or death sustained or loss occasioned within the provisions of the policy and that the prepayment of any judgment that may be recovered against the insured upon any claim covered by such policy shall not be a condition precedent to any right of action against the company upon the policy, but that the company shall be bound to the extent of its liability under the policy and shall pay and satisfy such judgment, and that action may be maintained upon such judgment by the injured person or his or her heirs, or personal representatives, as the case may be, to enforce the liability of the company as therein set forth.

C. Any insurance policy issued pursuant to this section shall further provide that the same may not be canceled or not renewed without at least 30 days' written notice to be sent by registered or certified mail, return receipt requested, to the city treasurer except that cancellation for non-payment of premium shall require no more than ten days, properly mailed, written notice of cancellation.

D. If the certificate holder fails to fully and timely comply with all the provisions of section 6-44-6(A)(4), the certificate of public convenience and necessity affected by such fund shall fail within the period specified in such notice of cancellation or non-renewal of a liability insurance policy or self-insurance certificate to provide a policy or self-insurance certificate meeting the requirements of this section on or before the date of cancellation or non-renewal, then the certificate of certificate of public convenience and affected by such cancellation or non-renewal shall be immediately suspended. Any such suspended certificate of public convenience and necessity may be revoked after a public hearing to be held following ten days' written notice, sent registered or certified mail, return receipt requested, the date of post mark and the date of cancellation, on-renewal, or the date the section 6-44-6(A)(4) fund falls below the level provided for in section 6-44-6(A)(4)(a) being day one, upon the finding that said policy or self-insurance certificate has not been provided or said section 6-44-6(A)(4) fund has not been properly funded. Said suspended certificate of public convenience and may be reinstated by the permits office before said hearing or at said hearing, upon compliance in full with the provisions of this section, so long as no other cause for suspension or revocation exists. An application for a certificate of public convenience and, after revocation, shall be treated as an initial application.

E. No passenger vehicles for hire shall be operated upon the suspension or revocation of a certificate of public convenience.

(Ord. No. 5585, 5-19-2015)

Sec. 6-44-44. Certificate issued to owner only.

No certificate shall be granted under this article to any person unless said person is the owner or has legal possession of such vehicle to be operated as a passenger vehicle(s) for hire.

(Ord. No. 5585, 5-19-2015)

Sec. 6-44-45. Fee.

When a certificate is issued and at each authorized renewal thereof, a fee of $125.00 for each vehicle in use shall be paid to the permits office to defray the cost of administration of this chapter. For any certificate issued or amended after July 1 of any year, the fee shall be $62.50 for each vehicle in use.

(Ord. No. 5585, 5-19-2015)

Sec. 6-44-46. Passenger vehicle for hire services.

All persons engaged in the vehicle for hire service business in the city operating under the provisions of this chapter shall render service to the public desiring to use passenger vehicles for hire. Holders of certificates of public convenience and necessity shall maintain a fixed place of business and a publicly known telephone number(s).
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-47. Book and accounting records of certificate holder.

Books, records and statistics shall be kept and maintained by the certificate holder for a period of seven years and a semi-annual comprehensive statement of profit and loss a balance sheet and copies of same shall be available upon request to the permits office at any time with notice.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-48. Business to be conducted by certificate holder; agreements with drivers.

The business of every passenger vehicle for hire shall be carried on by the person to whom the certificate is issued under this chapter.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-49. Increase in number of vehicles after issuance; enlargement of authority.

A certificate holder shall not increase the number of vehicles operated pursuant to said certificate without receiving the approval of the permits office. If the request is denied, the permits-licenses administrator shall advise the certificate holder in writing of the reasons for such action. If the certificate holder requests a hearing within ten days of receipt of notification of denial, a public hearing shall be scheduled at the next regularly scheduled meeting of the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-50. Accident reports.

Reports of accidents in which a vehicle for hire service or any passenger vehicle for hire may be involved shall be promptly made to the police services division in accordance with the provisions of chapter 21 of this Code. The certificate holder and the driver shall each have responsibility for filing a copy of said report with the permits office. Upon the happening of any accident or collision, the certificate holder shall forthwith have the vehicle for hire service or passenger vehicle for hire involved therein taken to the garage or repair shop of the certificate holder or to some reputable repair shop.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-51. Assignment or transfer of certificate.

No certificate of public convenience and necessity may be sold, assigned, mortgaged, transferred, or alienated.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-52. Expiration and renewal of the certificate.

A certificate issued under this article shall expire March 31 of each year at midnight and shall be renewed at the existing level of vehicles as long as the standards for the initial issuance are met. Applications for renewals shall be made by March 10 of each year, by which time all fees for the succeeding year shall have been paid. If the request for renewal is denied, the director or the director's designee shall advise the applicant in writing of the reasons for such denial. If the applicant requests a hearing with ten days of notification of denial, a public hearing shall be held at the next regularly scheduled meeting of the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-53. Fines, suspensions and revocation of certificate.

A. A certificate holder issued under the provisions of this chapter may be fined, suspended or revoked in accordance with the ordinances of the City of Memphis and/or the rules and regulations of the Memphis Transportation Commission.

B. A certificate holder shall have the right to appeal per the rules and regulations of the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-54. Vehicle drivers.

No person shall operate a vehicle for hire upon the streets of the City of Memphis, and no holder of a certificate of public convenience and necessity who owns or controls a vehicle for hire shall permit it to be so driven, unless the driver of said vehicle for hire shall

have first obtained and shall have a current and properly updated passenger vehicle for hire driver's permit which has been issued by the permits office.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-55. Application for a driver's permit.

A. Permits required by this division shall be applied for, in person and in writing, on such forms as the permits office may prescribe which forms shall show that:

1. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations.
2. Such other information as the permits office may require.

B. Such application shall also be accompanied by a department of safety, State of Tennessee motor vehicle report; a criminal record check; a statement (form provided) by a reputable physician who is a resident of the city, indicating the length of time which the physician has treated the applicant, showing that the applicant is not disabled by reason of defect of sight, hearing, body, or limb from limousine and indicating any and all conditions for which treatment has safely operating a physical and mental been rendered within the last year and for which treatment continues to be rendered; references of at least three reputable persons containing their name, address, home and work telephone numbers, personally acquainted with the applicant; and a statement from a holder of a certificate of public convenience and necessity indicating that said applicant shall be affiliated with said certificate holder upon the issuance of the permit.

C. Driver's permits shall remain the property of the City of Memphis, and may be canceled, revoked, or suspended at any time and will be surrendered on demand.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-56. Applicant to fill out identification questionnaire and be fingerprinted.

Each applicant for a driver's permit may appear before the permits office, to complete an identification questionnaire, or a form to be provided, and may be required to be fingerprinted.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-57. Investigation; issuance; not to issue to certain persons.

A. Before issuing a driver's permit under this division, the permits office shall investigate the facts set out in the application and shall not grant such permit to any person who, in the opinion of the permits office, after investigation, is not physically or morally fit to drive or operate a limousine for hire in the city.

B. No driver's permit shall be issued to any applicant who has been convicted of, forfeited bail or pleaded nolo contendere to a felony or any crime, involving moral turpitude as defined in T.C.A. § 57-4-203(H)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, or been an inmate of reform school or penitentiary as a result of a conviction for a felony, within five years prior to is application for such permit.

C. The permits office may refuse to issue a driver's permit to any applicant whose police record shows conviction for public drunkenness, driving under the influence of intoxicants, repeated moving traffic violations, or any other good and just cause which, in the opinion of the city treasurer, would be inimical to the public health, safety or morals.

D. No driver's permit shall be issued unless the applicant is at least 21 years of age.

E. It shall be the duty of the permits office to issue a driver's permit to any applying therefor, showing compliance with the provisions of the chapter.
(Ord. No. 5585, 5-19-2015)

DIVISION 3. PERMITS OFFICE, REGULATIONS

Sec. 6-44-58. Rules and regulations of the permits office relative to pedal carriages.

The permits office is authorized and directed to make and enforce such additional rules and regulations, not in conflict with the provisions of this chapter, as the permits office may deem proper to regulate the operation of pedal carriages and drivers for hire, provided that no regulation shall be made or enforced in conflict with this chapter, any other city ordinance, or state law.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-59. Permits office services; powers; appeal of decisions.

A. The Memphis Transportation Commission is vested with full and complete authority to issue, alter, deny, suspend or revoke permits for drivers, as herein provided, and is further vested with the full and complete authority, duty, and responsibility to carry into effect the provisions of this chapter. The director of police services may designate an officer to redder rulings or take all other actions herein granted to the director, as indicated by the director.

B. The permits-licenses administrator shall conduct administrative hearings on those matters requiring same based on the rules and regulations of the Memphis Transportation Commission. Decisions of the permits-licenses administrator may be appealed by the driver permit applicant or drivers permit holder within ten days after said decision affecting said person, by filing a written appeal with the director of police services. The director may rule after a review of the record or may set a hearing as soon as practicable.

C. A driver permit applicant or driver permit holder aggrieved by any final order or determination of the director in regard to the issuance, denial, suspension or revocation of that person's driver's permit under this chapter may seek judicial review thereof by common law writ of certiorari. No judicial review shall be available until all administrative remedies have been exhausted.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-60. Notification of arrest or indictment.

The holder of a driver's permit shall advise the permits office immediately of all charges, arrests and indictments, including those for public drunkenness and driving under the influence of intoxicants. The permits-licenses administrator will conduct an administrative hearing in accordance with the rules and regulations of the Memphis Transportation. Decisions of the permits-licenses administrator may be appealed to the Memphis Transportation Commission. It shall also be the responsibility of the certificate holder with which said driver is affiliated to notify the permits office of any charges, arrests or indictments. Failure to do so may result in suspension or revocation of said driver's permit.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-61. Notification of company change of driver.

At the time a permit is issued, the driver must register with the permits office the name of the petty carriage for hire certificate holder with which the driver intends to be affiliated. If, at any time a driver wishes to change affiliations the driver must register the change with the permits office, and a fee of $20.00 will be charged to defray administrative cost. Failure to advise the permits office of any such changes may result in suspension or revocation of said driver permit. It shall be the responsibility of the holder of the Memphis Transportation issued certificate of public convenience and necessity to notify the permits office, or his when affiliation with a driver is discontinued. To replace a current permit which is lost destroyed, stolen, or notification of change of company, the fee shall be $10.00.
(Ord. No. 5585, 5-19-2015)

DIVISION 4. FEES, PERMITS

Sec. 6-44-62. Permit fee.

Each applicant for a permit under the provisions of this division shall pay to the city treasurer, or his designee a fee of $35.00, at the time of filing the application to cover the cost of processing. For the renewal of such permit the applicant shall pay a fee of $17.50. To replace a lost, destroyed or stolen permit that is current, the fee shall be $5.00.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-63. Form, size, design and contents.

A permit issued under this chapter shall be in such size and design as may be prescribed by the permits office, or which shall bear on its face a photograph of the driver, the number of the permit, the expiration date thereof the company with which the driver is affiliated, and such other information as the city treasurer, or his designee may require.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-64. Display of permit.

The original permit issued under this chapter containing a photograph and other data on the driver, shall at all times be kept on display in the pedal carriage operated by such driver to be read by the passenger, when such pedal carriage for hire is under the direction or control of such driver.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-65. Expiration and renewal.

A. A permit issued under this division shall expire at midnight on the date of birth of the applicant, at which time the permit shall become null and void. Every driver's permit in good standing will be renewable on or three months before its expiration date, upon application and payment of the fee to the permit office, as required in section 6-80-31. The renewal of the driver's permit within five working days following the date of expiration of the permit will be considered timely renewal of the permit.

B. Failure to make timely application for renewal of the driver's permit will result in the payment of a delinquent fee of $15.00 per month, up to three months. Permit holders who have allowed their permits to expire for a period beyond three months will be considered to be a new applicant for a permit and will pay any accumulated fees to the permits office and will conform to all the requirements pertaining to such applicants in obtaining such permits, including physical and drug screen.

C. If the driver wishes that his permit be renewed, he shall furnish to the permits office the following information by the by the first of May of each calendar year:

1. Current division of safety, department of transportation motor vehicle report. Current criminal record report issued by the city treasurer.
2. Two recent color pictures of the driver two inches square.
3. An affidavit signed by the driver indicating no medical or physical disabilities were suffered during the previous year.
4. A statement from a holder of a State of Tennessee certificate of public convenience and necessity indicting that the driver is a current driver for said certificate holder.

D. Every three years a driver shall submit at the time of renewal a certificate by a reputable physician, resident in the city, indicating the length of time which the physician has treated the driver, showing that the driver is not disabled by reason of defective sight, hearing, body or limb from safely operating a motor vehicle and indicating any physical or mental condition for which the driver has received treatment in the previous three years and those for which he continues to receive treatment.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-66. Fines, suspension, and revocation of permit.

A. The rules and regulations of the Memphis Transportation Commission and the ordinances of the City of Memphis are to the guides to be used to suspend or revoke any driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by this chapter.

B. The permits office shall notify a driver of the violations with which he is charged and their right to an administrative hearing before the permits-licenses administrator the findings of which may be appealed to the Memphis Transportation Commission.
(Ord. No. 5585, 5-19-2015)

DIVISION 5. DRIVER'S CONDUCT

Sec. 6-44-67. Conduct of pedal carriage drivers.

A. No driver shall engage in selling alcoholic beverages or any controlled substance.

B. Drivers shall not engage in abusive language, including, but not limited to, cursing, verbal insults or derogatory comments in the presence of passengers, potential or engaged, or staff members of regulating authorities.

C. While on duty, drivers shall not be under the influence nor engage in the consumption of intoxicants, eluding [including] but not limited to, beer and other alcoholic beverages or controlled substances. Any driver charged with driving while intoxicated may have his permit immediately suspended as provided in section 6-44-24.

D. Drivers must present an acceptable appearance, including clean, neat wearing apparel not in need of repair, hats may be worn. Shoes must be worn at all times while serving the public, general appearance must be one of neatness and cleanliness.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-68. Drivers not to work more than 12 hours out of 24.

No driver shall work more than a maximum of 12 driving hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he has had at least eight consecutive hours of rest.
(Ord. No. 5585, 5-19-2015)

Sec. 6-44-69. Duty of vehicle for hire inspectors to enforce chapter.

The director of police and/or the permits office of the city are hereby authorized and are instructed to monitor the conduct of holders of Memphis Transportation Commission issued certificates of public convenience and necessity and pedal carriages operating under this chapter. Upon discovering violation of the provisions of this chapter, the designees shall take appropriate action. Any limousine for hire may be stopped at any time, whether or not the vehicle is occupied by the client, for the purpose of checking the driver's permit for compliance of the provisions of this chapter.
(Ord. No. 5585, 5-19-2015)

DIVISION 6. CONSUMPTION OF ALCOHOLIC BEVERAGES

Sec. 6-44-70. Consumption of alcoholic beverages.

The consumption of an alcoholic beverage by an individual who is strictly a passenger in the passenger area of a pedal carriage and only while that individual is within the defined premises of the section is permitted. Sales of alcohol by the operator, driver, or riders of this vehicle are prohibited.

1. No glassware of any kind shall be allowed on a pedal carriage (pedicab) including, but not limited to, bottles, receptacles or drinking glasses.
2. Alcoholic beverages as defined in this section may only be consumed from plastic or foam cups.
3. No music or amplified sound shall be played, nor yelling or conversation be conducted, in such a manner that the sound of which carries to points of habitation or adjacent properties and is audible above the level of conversational speech at a distance of 50 feet or more from the point of origin of the sound.
4. It is the responsibility of the pedal carriage or pedal carriage driver to properly dispose of all trash.
5. Alcoholic beverages as defined in this section may be consumed only when the pedal carriage passenger is seated on a pedal carriage.
6. The pedal carriage operator and driver may not allow consumption of alcoholic beverages by persons under the age of 21. If alcoholic beverages as defined in this subsection are present on a pedal carriage, the pedal carriage operator shall not transport persons under the age of 18 on the pedal carriage.
7. If alcoholic beverages as defined in this subsection are allowed to be consumed on a pedal carriage, the pedal carriage operator shall apply for a permit to allow such consumption from the permits office. The application fee for such permit is $25.00 and the operator of a pedal carriage company shall pay an additional $25.00 for each pedal carriage on which alcohol is being consumed. The driver or operator of a pedal carriage shall be in possession of the permit referenced in this subsection at all times alcohol is being consumed on the pedal carriage. Additionally, the registration number issued by the permits office shall be conspicuously displayed on the rear of the pedal carriage. If a pedal carriage operator fails to operate a permitted pedal carriage for more than 180 days, the permit shall expire.
8. Open containers are only allowed while the passenger is only aboard the pedal carriage except when it is the Beale Street Historic District. At the conclusion of an excursion, any open container must remain with the driver to be disposed of in a container provided by the driver.
9. If a permit is granted to the pedal carriage operator, the following notice shall be in full display on the pedal carriage:
    a. When alcohol is present on this pedal carriage, no persons under the age of 18 shall be allowed on the pedal carriage;
    b. Each passenger is asked to drink responsibly; and
    c. No passenger is permitted to take any opened alcoholic beverage container with them when they exit the pedal carriage.
10. A pedal carriage driver shall not operate a pedal carriage while under the influence of alcoholic beverages nor shall the driver consume alcoholic beverages while operating the pedal carriage.

11. Any violations of this section may be enforced as contemplated by section 6-44-31 of this Code and/or the rules and regulations of the Memphis Transportation Commission which may result in revocation or suspension of the operator's certificate of public convenience and necessity.

(Ord. No. 5585, 5-19-2015)

ARTICLE 7. ENTERTAINMENT TRANSPORTATION VEHICLES

DIVISION 1. DEFINITIONS

Sec. 6-44-71. Definitions.

For purposes of this aricle:

Certificate means a certificate of public convenience and necessity, a license granted, upon application and approval, by the Memphis Transportation Commission (MTC) for the sole purpose of authorizing the certificate holder to provide entertainment transportation through an entertainment transportation vehicle.

Certificate holder means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

Customer means any person on an entertainment transportation vehicle other than the driver or other employee of the entertainment transportation business, who has paid money for the services of the business or is attached to a party that has done so.

Driver means any individual who physically operates an entertainment transportation vehicle as a for-hire vehicle under this aricle. This person may share additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

Driver permit means a permit issued by the MTC to drive and operate an entertainment transportation vehicle.

Entertainment transportation vehicle means any motor vehicle that is designed or constructed to accommodate and transport more than one passenger for hire, the principal operation of which is confined to the area within the city limits, whether it is operated on a fixed route or schedule, and where the passengers hire the motor vehicle not only as a means of transportation but also for some entertainment or social purpose. "Entertainment transportation" includes, but is not limited to, trucks, buses, and wagons/trailers pulled by a motor vehicle. Entertainment transportation does not include a limousine, sedan, shuttle, taxicab, horse-drawn carriage, or electric-assist pedal carriage.

For hire means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of an entertainment transportation vehicle in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of any other services wherein the entertainment transportation is part of the services provided.

Good cause means (1) a material violation of a state law or municipal ordinance, rule, or regulation governing the permit, which may be demonstrated by a knowing failure or refusal to comply with such law, ordinance, rule, or regulation; and (2) includes the disuse or dormancy of a permit for a period of six months or longer prior to the Memphis Transportation Commission taking action to revoke the permit.

Inspector(s) means the inspector(s) for the commission.

Memphis transportation commission means, hereinafter referred to as "MTC" or "the commission," means the Memphis transportation commission as established by the City of Memphis Code of Ordinances, Chapter 39, Article V, the same being identified as Chapter 6-46 of the Code of Ordinances of the City of Memphis.

MTC Director means the executive secretary of the MTC, as employed by the City of Memphis on behalf of the MTC.

Owner means the person who holds the legal title of the entertainment transportation vehicle.

Passenger means any person on an entertainment transportation vehicle other than the driver.

Person means any individual, partnership, corporation, association or public or private organization of any character.

Permittee means a holder of any permit issued under this article.

Solicit means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

Vehicle permit means a permit issued by the MTC for an entertainment transportation vehicle to carry passengers.
(Ord. No. 5861, 4-9-2024)

DIVISION 2. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 6-44-72. Required certificate and effective term.

A. No entertainment transportation vehicle shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the Memphis City government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. Applications will be reviewed and considered as they come in to the MTC.

B. Certificates shall not be transferred, sold or given from one owner to another, including the sale of one entertainment transportation vehicle company in its entirety to another, without approval of the MTC upon the filing of an application for such transfer.

C. The MTC shall track all certificates, and after the renewal period, if the certificate has not been renewed it shall be determined to be void.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-73. Application; information and fees required.

A. An application shall be filed with the MTC for each certificate of public convenience and necessity sought. Forms will be provided by the MTC and payment of a nonrefundable fee of $200.00 will be charged.

B. The application shall require the following information:

1. Name and address of applicant;
    a. Sole-proprietor: Name and address of the owner.
    b. Partnership: Names and addresses of all partners.
    c. Corporation or association: Names and addresses of all the officers, directors, and members.
2. Business name (d/b/a), business address, and telephone number if different from above;
3. A background check of each person;
4. Proof of U.S. citizenship or legal residency;
5. Names and addresses of two references as to the applicant's financial responsibility;
6. Prior experience of applicant in transport of passengers;
7. Number of entertainment transportation vehicle permits requested, and copy of proof of ownership or other evidence of lawful control, as determined by the MTC, for each vehicle to be operated under the certificate;
8. Applicant's procedures for training drivers;
9. Applicant's rules and regulations governing driver appearance and conduct;
10. Disclosure of prior state law or City of Memphis Code of Ordinances violations pertaining to noise from motor vehicles, lewd conduct as part of a commercial business, or alcoholic beverage open container laws; any disclosures shall be verified by the MTC;
11. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business.
12. Any additional information the applicant desires to include to aid in the determination of whether the requested certificate should be issued; and
13. Such further information as the MTC may require.

C. An applicant will be ineligible for consideration if:

1. Any of the owners, partners, officers, directors, or members are under 21 years of age and/or

the entertainment transportation vehicle business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of 21 years of age;

2. Any of the owners, partners, officers, directors, or members has violated any portion of this article of the City of Memphis Code of Ordinances within five years immediately preceding the date of application;

3. Any of the owners, partners, officers, directors, or members have any outstanding unpaid final judgment; or

4. Any portion of the application is incomplete or contains incorrect or untruthful information.

D. An applicant will be ineligible for consideration for a one-year period if any owner, partner, officer, director, or member has been found guilty by a court of competent jurisdiction of violating state law or City of Memphis Code provisions three or more times within the past 365 days pertaining to noise from motor vehicles and/ or lewd conduct as part of a commercial business.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-74. Findings; issuance of additional certificates.

A. If the MTC finds that further or additional entertainment transportation vehicle service within the city limits is warranted for the public convenience and necessity and that the applicant is fit, willing, and able to provide such service and to conform to the provisions of this article and the rules promulgated by the MTC, the MTC may issue a certificate of public convenience and necessity. The certificate shall state the name, business address and telephone number of the applicant, the number of vehicles authorized upon such certificate, the date of issuance and the date of expiration.

B. In making the above findings, the MTC shall, at a minimum, take into consideration the number of entertainment transportation vehicles already in operation, whether existing service is adequate to meet the public need; the experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the MTC in its rules.

C. No more than 25 entertainment transportation vehicles may be permitted to operate upon the streets of Memphis, and the MTC shall accept no applications for additional vehicles once this maximum has been permitted. Applications shall be evaluated in the order in which they are received; and upon issuance of a 25 permit, any other pending applications shall be set aside. Should the number of permitted vehicles drop below the maximum allowed, those applications will be considered in the order in which they were filed with the MTC, beginning with those pending applications that were previously set aside.

D. The MTC may, by rule, establish any further criteria for determining the necessity for additional entertainment transportation vehicle certificates.

E. Any person whose application for a certificate is denied by the MTC may file a written appeal with the MTC within 30 days of denial and request an appearance before the MTC and appear in-person for consideration of the certificate application.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-75. Renewal of the certificate of public convenience and necessity.

A. All certificates issued under the provisions of this article shall expire one year from the date on which the certificate was issued. All certificates may be renewed by the MTC director up to 30 days before their expiration date. A renewal fee of $125.00 for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. All applicants for renewal must be current with all assessments and taxes due to the City of Memphis.

C. If a licensed entertainment transportation vehicle company or individual fails to renew their certificate within 30 days from the expiration date, such company shall be treated as a new applicant upon renewal application.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-76. Insurance required.

A. Before any certificate shall be issued by the commission director, or before the renewal of such certificate shall be granted, the applicant or association shall be required to file an insurance policy and/or certificate of insurance with the MTC director evidencing insurance coverage as required in this section.

B. Insurance coverage as provided in subsection (A) above means a policy of public liability insurance issued by an insurance company qualified to do business in the State of Tennessee and naming the City of Memphis as an additional insured. Any policy of public liability insurance issued in compliance with this article shall be for a term of not less than one year, and for any entertainment transportation vehicle insured thereunder shall afford protection to any third party sustaining injury or damage as a result of the negligent operation of any entertainment transportation vehicle, with the minimum amount of insurance to be determined by the city risk management department, known as combined single limit insurance coverage. Such policy shall expressly provide that it may not be canceled, except after 30 days' written notice to the commission director.

C. Such certificate will certify that the policy provides for a minimum coverage per the requirements of the risk management department of the City of Memphis, which may be amended from time to time to remain current with the current risk factors, per entertainment transportation vehicle for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or driver, in any one accident resulting from the ownership, maintenance or use of such entertainment transportation vehicle. The certificate of insurance shall also list the serial number or identification number of each entertainment transportation vehicle that is insured.

D. The operation of any entertainment transportation vehicle within the city limits without having in force the public liability insurance policy as outlined in this section is hereby declared to be a violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this Article and this Chapter.

E. Any changes in insurance must be reported to the commission immediately.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-77. Suspension and revocation.

A. A certificate issued under the provisions of this article may be revoked by the MTC only after the holder has been provided with proper notice and the opportunity to be heard at an administrative hearing and for good cause shown. A certificate issued may be suspended, placed on probation, otherwise restricted, or not renewed by the MTC if the holder thereof has:

1. Violated any of the provisions of this article or failed to comply with any rule or regulation established by the MTC;
2. Violated any other provision of the Code of Ordinances of the City of Memphis or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services, including but not limited to, violations for excessive noise;
3. Failed to pay assessments or taxes due to the City of Memphis;
4. Attempted to transfer a certificate or permit; or
5. Made a misrepresentation or false statement when obtaining a certificate or additional permits or transferring a certificate.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict, or not renew a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and shall have an opportunity to be heard by the MTC.

C. If the holder commits an act in violation of the criminal laws of the United States of America or State of Tennessee, and the MTC director determines that the holder poses a threat to public safety, the MTC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTC at the next available meeting, but in no circumstance later than 60 days from the date of the emergency suspension.
(Ord. No. 5861, 4-9-2024)

DIVISION 3. DRIVER PERMITS

Sec. 6-44-78. Driver permit required; violations and term.

A. No person shall drive or otherwise operate an entertainment transportation vehicle engaged in the transportation of passengers unless he or she has a driver permit from the MTC and a currently effective Tennessee commercial driver's license.

B. A person commits an offense if he or she operates an Entertainment Transportation Vehicle in the city limits without a driver permit issued by the MTC.

C. A business commits an offense if it employs or otherwise allows a person to operate an entertainment transportation vehicle owned, controlled, or operated by the permittee without a driver permit issued by the MTC.

D. Each driver permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this Article.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-79. Application; information and fees required.

A. An application for an entertainment transportation Vehicle driver permit shall be filed with the MTC on forms provided by the MTC.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under 21 years of age will be accepted.
2. The type(s) of vehicle(s) which the applicant will drive under the certificate.
3. The years of experience of the applicant in the transportation industry.
4. A concise history of the applicant's employment.

C. The applicant shall provide copies of the following documents in order to submit his or her application:

1. A valid driver's license issued by one of the 50 States within the United States of America for the issuance or renewal of an entertainment transportation vehicle driver permit corresponding with the type/classification of entertainment transportation vehicle to be operated (i.e., commercial driver license, for-hire endorsement, etc.).
2. If a resident alien, a current work permit or other valid United States immigration and customs enforcement document.
3. A copy of a currently effective Tennessee commercial driver's license.

D. Each application shall be accompanied by an official driver record obtained no longer than 30 days prior to the date of application. All applicants are required to meet the following standards:

1. No convictions or nolo contendere pleas in the last five years for any of the following offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:
   - Hit and run;
   - Driving under the influence of an alcoholic beverage or drug;
   - Reckless or careless driving;
   - Repeated offenses that directly relate to a person's privilege to operate a vehicle.
2. For an initial driver permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.
3. For a renewal driver permit, no more than four moving violations within the last three years and no more than two moving violations in the last year.

(Ord. No. 5861, 4-9-2024)

Sec. 6-44-80. Fingerprint-based criminal background investigation.

A. All applicants for an entertainment transportation vehicle driver permit must undergo a fingerprint-based identification and background check. The MTC shall provide instructions to applicants on obtaining such background checks. A background check report and a copy of the motor vehicle record (MVR), generated by the department of motor vehicles, of the applicant, if any, shall be attached to the application and forwarded for consideration by the MTC.

B. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined by laws of the State of Tennessee, a controlled substance, prostitution, assignation, or obscenity within five years immediately preceding the date of application; or has been convicted of, forfeited

bond or pleaded nolo contendere to any crime involving the abuse of a child or of a sexual nature in any jurisdiction at any time preceding the date of application.

2. If, at the time of application, the applicant is charged with any offenses in subsection (1) above, consideration of the application shall be deferred until the applicant's entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted of two or more felony offenses within the past seven years.

4. Has been convicted for a period of two years prior to the date of application for violation of two or more sections of this Code or other ordinances governing the operation of entertainment transportation vehicles.

If the applicant fails to disclose any criminal conviction, except traffic citations, on the application for a driver permit, the application may be referred to the MTC for consideration.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-81. Application; approval or disapproval.

The MTC or its staff shall, upon the consideration of the application and any reports and certificates required to be attached thereto, approve or reject the application. Any applicant rejected by the MTC staff may file an appeal within 30 days of denial and request an appearance before the MTC. The appeal shall be heard by the MTC at the next available MTC meeting with the appellant appearing in-person for consideration of the application.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-82. Issuance; driver permit contents and display.

A. Upon approval of an application for an entertainment transportation vehicle driver permit, the MTC director shall issue a permit to the applicant, which shall bear the applicant's name, driver permit number, height, date of birth, a photograph of the applicant, and other information deemed appropriate by the MTC.

B. Every driver shall at all times conspicuously display a driver permit within the entertainment transportation vehicle, where it is visible to passengers. A driver shall allow the MTC director, MTC inspector, or a police officer to examine the permit upon request.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-83. New application after denial.

Upon denial of an application for a driver permit, no new application shall be considered for a period of three months.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-84. Expiration; issuance and renewal fee.

A. A driver permit may be issued to qualified applicants upon the payment of a $35.00 fee plus the costs of investigation. If the permit for the preceding year has been revoked, no new permit shall be issued without prior MTC approval.

B. Each entertainment transportation vehicle driver permit shall be issued for a period of one year. The fee to renew a driver permit shall be $17.50. Such fees shall be in addition to the cost of any investigation.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-85. Unpermitted drivers.

A. If any person is found operating an entertainment transportation vehicle within the city limits without a valid entertainment transportation vehicle driver permit on behalf of any holder of a certificate of necessity and public convenience, the MTC director may immediately take action to suspend or revoke the certificate in accordance with section 6-44-77(B).

B. A person whose entertainment transportation vehicle driver permit is suspended shall not drive an entertainment transportation vehicle within the city limits during the period of suspension.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-86. Suspension, revocation, and appeal.

A. The MTC director is hereby given authority to suspend any entertainment transportation vehicle driver permit issued under this article for a driver's failure or refusal to comply with the provisions of this article. Such suspensions may not last for a period of more than 30 days. The MTC director is also given authority to

revoke any driver permit, provided that the revocation is decided in accordance with section 6-44-77(B), for failure to comply with the provisions of this article.

B. If a driver is charged in any court with a misdemeanor involving moral turpitude, or with any felony, or with driving while intoxicated or under the influence of drugs, or with violations of this article, the MTC director is hereby given authority to suspend the driver's permit pending final disposition of the charges against them, and to revoke such permit upon conviction thereof.

C. The MTC director may revoke an entertainment transportation vehicle driver permit for good cause in accordance with section 39-262(B), if the director determines that the permittee has engaged in conduct detrimental to the public safety.

D. The MTC director may not suspend or revoke any driver permit unless the driver has received notice of the charges against them and has had the opportunity to present evidence on their behalf at an administrative hearing before the MTC director, where good cause has been established.

E. Any permittee whose driver permit has been suspended or revoked by the MTC director may file a written appeal with the MTC within ten business days. If an appeal is not made to the MTC within ten business days of the MTC director's decision, the MTC director's decision shall be final. A letter addressed to the MTC and delivered to the MTC office stating that an appeal from the decision of the MTC director is desired shall perfect such appeal. The MTC, as soon as practicable after receiving such notice of appeal, shall notify the permittee of the date and time of the hearing which shall be not less than five business days after the mailing of such notice. After the hearing of the appeal, the MTC shall sustain, modify or reverse the findings of the MTC director, and shall notify the MTC director and the permittee of its findings. The findings of the MTC shall be final, subject to any applicable legal processes.

F. A driver whose permit is revoked may not reapply for 90 days from the date of revocation and will be treated as a new applicant.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-87. Revocation of a valid driver's license.

An entertainment transportation vehicle driver permit issued under this article shall be valid for one year so long as the permittee's valid driver's license, issued by one of the 50 States in the United States of America for the type/classification of entertainment transportation vehicle to be operated, remains valid for the duration of the permit. Any time that a permittee's driver's license is suspended, revoked, or cancelled, their entertainment transportation vehicle driver permit shall likewise be immediately suspended, revoked pursuant to section 6-44-77(B), or cancelled. The entertainment transportation vehicle driver permit shall immediately be surrendered to the MTC until such time as their driver's license is reinstated.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-88. Conduct of drivers.

A. A driver shall at all times:

1. Act in a reasonable, prudent, safe, and courteous manner;
2. Take the necessary measures to prevent and prohibit a person not possessing an entertainment transportation vehicle driver permit from operating the entertainment transportation vehicle;
3. Refrain from allowing more passengers to be carried in an entertainment transportation vehicle than for which there is proper seating, and at no time shall the driver allow any passenger to ride in any area of the entertainment transportation vehicle not specifically designed or designated as a seat;
4. Prohibit any passenger 18 years of age or younger from riding in an entertainment transportation vehicle unaccompanied by an adult;
5. Not operate an entertainment transportation vehicle while under the influence of intoxicating beverages or drugs;
6. Observe and obey all state and local noise and traffic laws and regulations;
7. Not permit a customer to stand or ride on any part of the entertainment transportation vehicle other than the designated seating area while the entertainment transportation vehicle is in motion and require that passengers must be seated except when loading or unloading.

(Ord. No. 5861, 4-9-2024)

Sec. 6-44-89. Drivers not to work more than 12 hours out of 24.

No driver shall work more than a maximum of 12 driving hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he has had at least eight consecutive hours of rest.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-90. Consumption of alcoholic beverages.

The consumption of an alcoholic beverage by an individual, over the age of 21, who is strictly a passenger in the passenger area of an entertainment transportation vehicle is permitted. Sales of alcohol by the operator, driver, or riders of the vehicle are prohibited.

A. If alcoholic beverages are allowed to be consumed on an entertainment transportation vehicle, the vehicle operator shall apply for a permit to allow such consumption from the permits office. The application fee for such permit is $25.00 and the operator of an entertainment transportation vehicle company shall pay an additional $25.00 for each entertainment transportation vehicle on which alcohol is being consumed. The driver or operator of an entertainment transportation vehicle shall be in possession of the permit referenced in this subsection at all times alcohol is being consumed on the entertainment transportation vehicle. Additionally, the registration number issued by the permits office shall be conspicuously displayed on the rear of the entertainment transportation vehicle.

B. If an alcohol consumption permit is granted to the entertainment transportation vehicle operator, the following notice shall be on full display on the entertainment transportation vehicle:

1. Each passenger is asked to drink responsibly; and

2. No passengers are permitted to take any opened alcoholic beverage container with them when they exit the entertainment transportation vehicle, except in the Beale Street Historic District.

C. An entertainment transportation vehicle driver shall not operate an entertainment transportation vehicle while under the influence of alcoholic beverages, nor shall the driver consume alcoholic beverages while operating the vehicle.

D. The entertainment transportation vehicle operator and driver may not allow consumption of alcoholic beverages by persons under the age of 21.

E. Any violations of this section may be enforced under the applicable laws of the City of Memphis and the State of Tennessee, as contemplated by sections 6-44-106 and 6-44-108, which may result in revocation or suspension of the operator's certificate of public convenience and necessity.

(Ord. No. 5861, 4-9-2024)

Sec. 6-44-91. Return of passengers' property.

A driver of an entertainment transportation vehicle shall immediately attempt to return to a passenger any property left by the passenger in the vehicle. If unable to locate the passenger, the driver shall turn the property in to the certificate holder's company office at the end of the driver's shift or at the first available opportunity. In such cases, the certificate holder shall make a good faith effort to locate the passenger, and, if not successful, hold the property in storage at its location for at least 30 days.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-92. Compliance with provisions.

Every driver granted a driver permit under this Article shall comply with all City of Memphis, state, and federal laws. Failure to do so may result in disciplinary actions including suspension and up to revocation of the entertainment transportation vehicle driver permit.
(Ord. No. 5861, 4-9-2024)

DIVISION 4. EQUIPMENT AND OPERATION

Sec. 6-44-93. Entertainment vehicle permit required.

A. Each entertainment transportation vehicle must have a vehicle permit issued by the MTC in the vehicle. The permit will identify each vehicle by a unique number in accordance with rules and procedures established by the MTC and will be associated with the certificate holder. Entertainment transportation vehicle permits are not transferable to other entertainment transportation vehicles or other certificate holders.

B. To qualify for a vehicle permit, an applicant must have obtained a certificate of public convenience and necessity pursuant to section 6-44-72 of this article and comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the MTC.

C. A $125.00 fee will be charged for the issuance of each approved entertainment transportation vehicle permit associated with the certificate.

D. It shall be unlawful for any person to transport or offer to transport passengers in any entertainment transportation vehicle which does not have affixed to the vehicle a valid permit issued through the MTC.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-94. Application for additional vehicle permits.

An application for additional entertainment transportation vehicle permits under the certificate of public convenience and necessity issued pursuant to this article must be filed with the MTC director. The requirements stipulated in this article shall apply and must be satisfied in order for the application to be considered. If approved, the established permit fee will be applied.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-95. Ownership and control of vehicles.

All entertainment transportation vehicles permitted under this article must be under the lawful control of a certificate holder demonstrated either by proof of ownership or a copy of a valid lease agreement and must be under the direct control of a permitted driver while in operation or use.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-96. Vehicle to display identification.

All entertainment transportation vehicles operated under the authority of this article shall be equipped with identification as prescribed by the MTC in rules and regulations.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-97. Vehicle requirements; safety standards.

A. To the fullest extent permitted by Tennessee and federal law, prior to the issuance of a permit, or the use and operation of any vehicle under the provisions of this article, the vehicle shall be thoroughly examined and inspected by the certificate holder or a designated third party in accordance with rules and regulations prescribed by the MTC. When a certificate holder finds that a vehicle has met all the terms established by the MTC, the holder shall certify this to the MTC director, who shall authorize an entertainment transportation vehicle permit to be issued.

B. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this Article is subject to random and periodic inspections to ensure the continued maintenance of safe operating conditions. A certificate holder shall make an entertainment transportation vehicle available for inspection in accordance with the rules and regulations adopted by the MTC. If, upon inspection, it is determined that an entertainment transportation vehicle for hire is not in compliance with this article or MTC rules, the MTC staff shall order the vehicle to be removed from service or brought into compliance within two weeks and require it to be reinspected prior to resuming operation.

C. Every vehicle operating under this article shall be kept in a clean and satisfactory condition, according to rules and regulations promulgated by the MTC.

D. Every vehicle operating under this article must be equipped with seats for each passenger.

E. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this article shall undergo an annual detailed mechanical inspection conducted by an approved mechanic pursuant to the requirements of rules and regulations adopted by the MTC. The records of these inspections must be maintained and made available to MTC staff as provided by the rules and regulations adopted by the MTC. The certificate holder shall certify its compliance with this subsection to the MTC director.

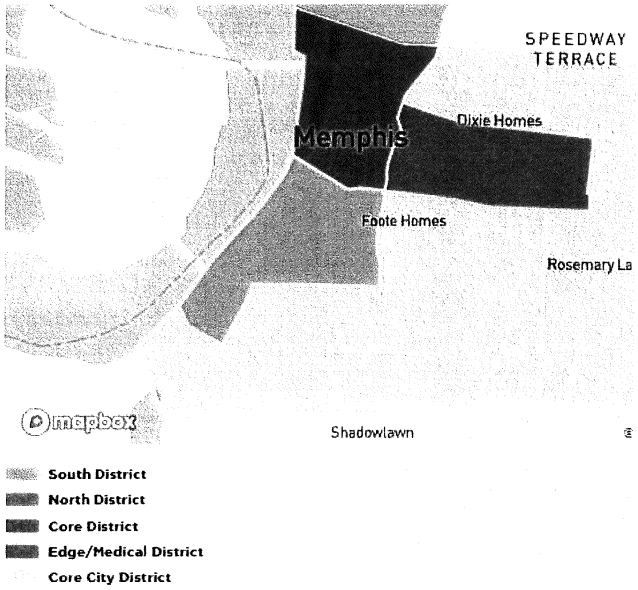
F. The MTC may, by rule, establish additional inspection requirements for entertainment transportation vehicles and other equipment used in the entertainment transportation vehicle service.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-98. Operating area.

Entertainment transportation vehicles shall operate upon the streets in the city limits on routes or zones delineated by the city transportation commission, within the selected portion of the Central Business Improvement District (CBID - Core District, Edge/Medical

District, and South District - see Exhibit A map blow). In addition, entertainment transportation vehicles may operate in the area commonly known as Overton Square, and along Union Avenue between the CBID and Overton Square. Any deviation or amendments to routes or zones must be reviewed by the MTC or its staff and receive approval from the city council by Resolution. Any approved deviation must be reported to the MTC or its staff prior to the beginning of operations.

Exhibit A. Districts



(Ord. No. 5861, 4-9-2024)

Sec. 6-44-99. Operating hours.

Entertainment transportation vehicles shall operate between the hours of 11:00 a.m. to 1:00 a.m. local time. Any deviation from these hours must be reviewed by the MTC or its staff and receive approval from the city council by Resolution. Any approved deviation must be reported to the MTC or the MTC director staff prior to the beginning of operations.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-100. Records and reports.

A. Each holder shall maintain at a single location business records of its entertainment transportation vehicle business. The records must be maintained in a manner approved by the MTC director and contain the following information:

1. An identification of the entertainment transportation vehicle(s) operating each day;
2. An identification of the drivers operating the entertainment transportation vehicles each day and a statement of the hours each driver operated the vehicle each day; and
3. Any other information the MTC director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the MTC director, inspector, law enforcement officer or designated officials.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-101. Accidents.

A. All accidents arising from or in connection with the operation of an entertainment transportation vehicle shall be reported within 72 hours from the time of occurrence to the MTC director if the accident results in:

1. Death or bodily injury to any person; or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of $400.00.

B. An entertainment transportation vehicle damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident, or removed from operation until repaired, and inspected prior to resuming operations.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-102. Passengers-receiving and discharging by drivers.

A. Drivers shall only receive and discharge passengers at designated staging areas/locations approved by the MTC.

B. Drivers shall not allow additional passengers to board the entertainment transportation vehicle after the vehicle has left its fixed starting point.
(Ord. No. 5861, 4-9-2024)

Sec. 39-288. Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-103. Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passangers.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-104. Soliciting business.

No certificate holder or driver of an entertainment transportation vehicle shall offer any compensation of whatever form to any person or entity in exchange for the direction or recommendation of passengers to that entertainment transportation vehicle. This section shall not be construed to prohibit certificate holders from advertising their entertainment transportation business by other reasonable means.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-105. Compliance with other laws.

It shall be a violation of this Article for a certificate holder or driver to violate any other applicable federal, state or local law or regulation in offering or providing entertainment transportation vehicle services.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-106. Enforcement of this article.

A. The MTC shall promulgate rules and regulations, consistent with applicable state and federal law, relative to the operation and use of entertainment transportation vehicles. These rules and regulations shall be promulgated to provide safe transportation and specify such safety equipment and regulatory devices as the MTC shall deem necessary.

B. Enforcement of any power or authority granted the MTC under this article or any rules or regulations issued by the MTC pursuant to such authority shall be delegated by the commission to any employee of the commission staff, who may issue a citation for violations of this article, pursuant to T.C.A. § 7-63-101.

C. The inspectors of the Memphis Transportation Commission are authorized and instructed to observe the conduct of holders of certificates and permits operating under this article. Upon discovering a violation of any of the provisions of this article, the inspector may either report the violation to the MTC, which will order or take appropriate action, or issue a citation as authorized under this section.

D. The inspectors of the Memphis Transportation Commission shall conduct random and periodic inspections of the operations of holders of certificates and permits operating under this article, to ensure compliance with the provisions of this article and the rules and regulations of the MTC.

E. In addition to the enforcement authority provided to MTC inspectors in this section, officers of the Memphis Police Department shall have the authority to enforce this article in performance of their duty to protect and serve and enforce the laws of the City of Memphis and the State of Tennessee; such enforcement includes, but is not limited to the authority of the police officer to issue a summons or misdemeanor citation or effect a physical arrest for violations. A police officer, upon observing a violation of this article or of any regulation or rule established by the MTC or the MTC director pursuant to this article, may take necessary enforcement action to ensure effective regulation of entertainment transportation vehicles.
(Ord. No. 5861, 4-9-2024)

Sec. 6-44-107. Limitation of service due to weather conditions.

Entertainment transportation vehicles shall not receive passengers when weather conditions are sufficiently

adverse or inclement so as to endanger passengers or the public. The MTC, by rule, may adopt specific guidelines for the operation of entertainment transportation vehicles in inclement weather conditions.
(Ord. No. 5861, 4-9-2024)

DIVISION 5. VIOLATIONS; CIVIL PENALTY SCHEDULES

Sec. 6-44-108. Violations-penalties-additional regulations.

A. All provisions of this article shall be governed by the penalties and procedures for general ordinance violations set forth in T.C.A. § 6-54-306, the Charter of the City of Memphis Article 40, Section 355, and the Code of Ordinances of Memphis, Tennessee, Section 1-24-1.

B. Notwithstanding any provision contained herein, the MTC shall have the authority to enforce the provisions of this article.

C. The MTC shall have the authority to promulgate, implement, and enforce additional rules and regulations pertaining to entertainment transportation vehicles, provided such rules and regulations are consistent with the provisions of this article and state and federal laws, and prior approval is obtained from the city council.
(Ord. No. 5861, 4-9-2024)

CHAPTER 6-46. MEMPHIS TRANSPORTATION COMMISSION

Sections:

Sec. 6-46-1. Established.

Sec. 6-46-2. Purpose.
Sec. 6-46-3. Membership.
Sec. 6-46-4. Meetings; quorum; records.
Sec. 6-46-5. Powers; functions.
Sec. 6-46-6. Purchases.
Sec. 6-46-7. Payment of expenses; annual financial statement.
Sec. 6-46-8. Oath.

Sec. 6-46-1. Established.

There is hereby created and established a transportation commission to be known as the Memphis Transportation Commission.
(Ord. No. 5415, § 1(39-240), 10-18-2011)

Sec. 6-46-2. Purpose.

The Memphis Transportation Commission shall serve as the regulatory body for all taxicabs, vehicles for hire, limousines, shuttle services, horse carriages, tow trucks, wreckers and their drivers operating on the streets of the city.
(Ord. No. 5415, § 1(39-241), 10-18-2011)

Sec. 6-46-3. Membership.

A. The Memphis Transportation Commission shall consist of seven voting members.

B. Each member shall be appointed upon recommendation of the mayor with approval by the city council. These members shall be residents of the city and shall hold office for a term of two calendar years and thereafter until their successors are appointed and qualified. A term shall commence on the date of approval of such appointee by the city council. Members shall serve without compensation. In the event of a vacancy in such appointed members, whether by reason of expiration of term, resignation, death or other cause, the transportation commission shall recommend a successor who shall be appointed by the mayor with approval of the city council to fill such unexpired term. The terms of office of said commissioners shall be for a period of two years from date of approval. If no successor has been appointed, then said commissioner shall hold office until a successor is appointed.

C. Three members of the commission shall represent the following organizations:

1. Memphis Convention and Visitors Bureau.
2. Memphis International Airport.
3. Memphis Area Hotel and Lodging Association.

D. The chairperson of the commission shall be elected by the commission from among its own membership to serve for a term of one year with the right of succession at the option of the commission. The city permits administrator shall serve as the commission's executive secretary. The commission shall have the power to appoint such other officers as determined by the members of the commission.
(Ord. No. 5415, § 1(39-242), 10-18-2011; Ord. No. 5928, 2-18-2025)

Sec. 6-46-4. Meetings; quorum; records.

A. The transportation commission shall conduct regular meetings at such time and place as the commission may fix by resolution. Such meetings will be open to the public with proper public notification.

B. The commission may hold special meetings when the chairperson determines the need for such meetings. Four members of the commission present for the meeting shall constitute a quorum for the transaction of business. The commission shall cause a proper record to be kept of the proceedings. Written notice of any special meeting of the commission shall be given to the members at least 24 hours prior to the date set for the meeting.
(Ord. No. 5415, § 1(39-243), 10-18-2011)

State law reference—Public meetings, T.C.A. § 8-44-101 et seq.

Sec. 6-46-5. Powers; functions.

A. *Powers.* The transportation commission shall have all powers necessary and requisite to effectuate the purposes of the commission, and is empowered to make such rules procedures and regulations, not inconsistent with federal and state law and city ordinances as may be necessary or proper in the performance of its duties. All rules and regulations promulgated and adopted by the commission shall be submitted to the city council for approval.

B. *Functions.* Functions shall include, but not be limited to:

1. Administer and enforce the commission's written rules, procedures and regulations.
2. Review, issue, alter, deny, suspend or revoke all applications for permits and/or certificates of public convenience and necessity under this chapter relative to taxicabs, vehicles for hire,

limousines, shuttle services, horse carriages, tow trucks, wreckers and their drivers operating on the streets of the city.

3. Conduct public hearings and make final decision on violations, complaints or issues relative to the operation of taxicabs, vehicles for hire, limousines, shuttle services, horse carriages, tow trucks, courtesy cars, wreckers and their drivers.

4. Maintain a close liaison with all city divisions and relevant transportation organizations including, but not limited to, law division, general services, police services, community enhancement, finance, Memphis Area Transit Authority, Memphis Convention and Visitors Bureau and Memphis-Shelby County Airport Authority on issues pertaining to the aforementioned transportation industries.

5. Assess penalties and fees for violations of vehicles for hire and related transportation ordinances.

(Ord. No. 5415, § 1(39-244), 10-18-2011)

Sec. 6-46-6. Purchases.

The transportation commission is authorized to purchase all necessary stationery, printing and supplies through the purchasing agent of the city.
(Ord. No. 5415, § 1(39-245), 10-18-2011)

Sec. 6-46-7. Payment of expenses; annual financial statement.

All expenses of the transportation commission shall be paid out of the general funds of the city, pursuant to an annual appropriation by ordinance, and it shall be the duty of the commission to prepare and submit to the director of finance and administration a statement of its expenditures for the previous year and an estimate of its current year's operating costs.
(Ord. No. 5415, § 1(39-246), 10-18-2011)

Sec. 6-46-8. Oath.

Each member of the transportation commission shall take an oath to faithfully perform the duties imposed upon him/her without fear or favor, and in full accordance with the constitution and laws of the state and the ordinances of the city.
(Ord. No. 5415, § 1(39-247), 10-18-2011)

CHAPTER 6-48. MASSAGE PARLORS, BATHHOUSES AND SIMILAR BUSINESSES*

Sections:

Article 1. General Provisions

Sec. 6-48-1. Definitions.
Sec. 6-48-2. Application to existing businesses.

Article 2. Permits

Sec. 6-48-3. Required.
Sec. 6-48-4. Application—Contents.
Sec. 6-48-5. Investigation of applicant.
Sec. 6-48-6. Standards for issuance.
Sec. 6-48-7. Appeal of denial.
Sec. 6-48-8. Fee.
Sec. 6-48-9. Conditions.
Sec. 6-48-10. Term.
Sec. 6-48-11. Standards applicable to employees of permittee—Employee list to be on file with division of police services.

Article 3. Regulatory Provisions

Sec. 6-48-12. Rules and regulations of director of police services.
Sec. 6-48-13. Inspections required.
Sec. 6-48-14. Keeping of records—Identification prior to rendering service.
Sec. 6-48-15. Supervision.
Sec. 6-48-16. Health regulations.
Sec. 6-48-17. Clothing regulations.
Sec. 6-48-18. Hours of operation.
Sec. 6-48-19. Method of operation.
Sec. 6-48-20. Advertising.
Sec. 6-48-21. Persons under age 18 prohibited on premises.
Sec. 6-48-22. Alcoholic beverages prohibited on premises.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-48-1. Definitions.

For purposes of this chapter:

Bath shall be defined as a washing, soaking or cleansing of all or part of the human body.

***State law reference—**Massage Licensure Act of 1995, T.C.A. § 63-18-101 et seq.

Bather shall be defined as one employed to administer a bath to the human body of another at a bathhouse, except that it shall not include a doctor, nurse or any other person who is otherwise regulated by law.

Bathhouse shall be defined as any place in which persons are employed to administer baths to others, but shall not include a hospital or sanitarium or any establishment which is otherwise regulated by law.

Massage institute shall be defined as any place in which massage operators are employed to give treatment but shall not include a hospital or sanitarium or any establishment which is otherwise regulated by law.

Massage operator shall be defined as a person who applies manual or mechanical massage or similar treatment to the human body, but shall not include a doctor or nurse or any type of person who is otherwise regulated by law.

(Code 1967, § 21½-1; Code 1985, § 19-1; Ord. No. 2027, § 1(art. I, § 1-1), 4-23-1974)

Sec. 6-48-2. Application to existing businesses.

The provisions of this chapter shall be applicable to all persons and businesses described herein whether the herein described activities were established before or after the effective date of this chapter.

(Code 1967, § 21½-2; Code 1985, § 19-2; Ord. No. 2027, § 1(art. III, § 13-3), 4-23-1974)

ARTICLE 2. PERMITS

Sec. 6-48-3. Required.

No person shall act as a massage operator or bather or conduct a massage institute or bathhouse or other similar business establishment in the city without first obtaining a permit as provided in this article from the city treasurer or his or her designee.

(Code 1967, § 21½-15; Code 1985, § 19-16; Ord. No. 2027, § 1(art. II, § 12-1), 4-23-1974; Ord. No. 4352, § 2, 8-15-1995)

Sec. 6-48-4. Application—Contents.

An application for a permit issued under this article shall be made upon blank forms prepared and made available by the director of police services and shall state:

A. The full name, age, residence, and present and previous occupations of the applicant;

B. A specific description of the location of the principal place of business of the applicant;

C. The number of years experience the applicant has had as a massage operator or bather or the operator of a massage institute or bathhouse or in related fields;

D. A complete list of the names and residence addresses of all employees in the business and the name and residence addresses of the manager or other person principally in charge of the operation of the business;

E. Authorization for the city, its agents and employees to seek information and conduct an investigation into the truth of the statements set forth in the application and the qualifications of the applicant for the permit;

F. The names and addresses of three adults who will serve as character references. These references must be persons other than relatives and business associates; and

G. Written declaration by the applicant, under penalty of perjury, that the foregoing information contained in the application is true and correct, such declaration being duly dated and signed in the city.

(Code 1967, § 21½-16; Code 1985, § 19-17; Ord. No. 2027, § 1(art. II, § 12-2), 4-23-1974)

Sec. 6-48-5. Investigation of applicant.

Within ten days after receipt of an application as provided for in this article, the director of police services shall cause an investigation to be made of the applicant and his or her proposed operation.

(Code 1967, § 21½-17; Code 1985, § 19-18; Ord. No. 2027, § 1(art. II, § 12-3), 4-23-1974)

Sec. 6-48-6. Standards for issuance.

The director of police services shall issue a permit under this article when he or she finds:

A. That the applicant's application for a permit has been properly submitted;

B. That the applicant has never been convicted of a felony or any crime involving sexual misbehavior;

C. That the operation, as proposed by the applicant, if permitted, would comply with all applicable laws, including, but not limited to the city's building, zoning and health regulations;

D. That the applicant has not knowingly made any false, misleading or fraudulent statement of fact in the permit application or in any document required by the city in conjunction therewith; and

E. That the applicant has not had a similar permit or license denied, revoked or suspended for any of the above causes by the city or any other state or local agency.

(Code 1967, § 21½-18; Code 1985, § 19-19; Ord. No. 2027, § 1(art. II § 2-4), 4-23-1974)

Sec. 6-48-7. Appeal of denial.

Any applicant who was denied a permit under this article may request a hearing with appropriate division of police services officials to discuss such denial, that hearing to be held within ten days of the denial. Within ten days after that hearing, an applicant may seek further relief by appealing such denial to the city council. Notice of appeals from such division of police services hearings to the council of the city must be filed within such ten days; otherwise the action of the division of police services shall be deemed and considered to be final.

(Code 1967, § 21½-21; Code 1985, § 19-20; Ord. No. 2027, § 1(art. II, § 2-7), 4-23-1974)

Sec. 6-48-8. Fee.

The annual permit for each massage institute or bathhouse shall be $5.00 and for each operator $2.00.

(Code 1967, § 21½-15; Code 1985, § 19-21; Ord. No. 2027, § 1(art. II, § 12-1), 4-23-1974)

Sec. 6-48-9. Conditions.

The following conditions shall apply to all permits:

A. *Transferability.* Permits issued under this article shall not be transferable.

B. *Revocation and suspension.* Permits issued under this article shall be subject to revocation or suspension by the director of police services for violation of any of the provisions of this chapter, or of the rules and regulations issued hereunder, or misconduct by the permittee or his or her employees, after reasonable notice and an opportunity to be heard has been given the permittee. The director of police services shall immediately notify any permittee in writing of such suspension or revocation.

C. *Renewal.* Each permit shall expire on July 1 of each year, except that a first permit shall expire on the second next ensuing July 1. Permits may be renewed. In processing a renewal application, the director of police services shall consider all the elements and standards contained herein in determining whether or not to renew a permit. An unrevoked permit may be renewed for one year on written application to the director of police services made at least one month before its expiration date and accompanied by the required fee, such renewal fee being the same amount as the original permit fee.

(Code 1967, § 21½-20; Code 1985, § 19-22; Ord. No. 2027, § 1(art. II, § 2-6), 4-23-1974)

Sec. 6-48-10. Term.

The permits issued pursuant to this article shall be good for a period of 12 months from the date of their issuance.

(Code 1967, § 21½-15; Code 1985, § 19-23; Ord. No. 2027, § 1(art. II, § 2-1), 4-23-1974)

Sec. 6-48-11. Standards applicable to employees of permittee—Employee list to be on file with division of police services.

All employees of any person having or applying for a permit under this article shall meet the requirements of never having been convicted of any felony or any crime involving sexual misbehavior. It shall be further required that any person having a permit under this chapter shall keep on file with the division of police services a list of those persons currently employed by him or her in his or her massage institute or bathhouse.

(Code 1967, § 21½-19; Code 1985, § 19-24; Ord. No. 2027, § 1(art. II, § 5), 4-23-1974)

ARTICLE 3. REGULATORY PROVISIONS

Sec. 6-48-12. Rules and regulations of director of police services.

The director of police services shall have the authority to enact and enforce reasonable rules and regulations for

the operation of massage institutes and bathhouses in the interest of public health, safety, morals and welfare and to effectuate the general purpose of this chapter.
(Code 1967, § 21½-32; Code 1985, § 19-41; Ord. No. 2027, § 1(art. III, § 3-11), 4-23-1974)

Sec. 6-48-13. Inspections required.

The police services or his or her authorized representatives shall from time to time make inspection of each business establishment regulated by this chapter for the purposes of determining that the provisions of this chapter are fully complied with.
(Code 1967, § 21½-33; Code 1985, § 19-42; Ord. No. 2027, § 1(art. III, § 3-10), 4-23-1974)

Sec. 6-48-14. Keeping of records—Identification prior to rendering service.

A. Every person who operates a massage institute, bathhouse or other similar business shall at all times keep an appointment book in which the name of each and every patron shall be entered, together with the time, date and place of service, and the service provided. Such appointment book shall be available at all times for inspection by the director of police services or his or her authorized representatives.

B. Every person who practices or provides any massage service, bath service or other similar service at any location other than the principal place of business of the business establishment, including, but not limited to, any motel or hotel, must first give notice of his or her presence on the premises at that location and fully identify himself or herself and the patron upon whom the person intends to practice or provide a massage bath or other similar service to the owner, manager or person in charge of that location before rendering any service. This provision shall be deemed complied with where the location is a motel or hotel by giving such notice and identification to the person in charge of registration desk of such motel or hotel.
(Code 1967, § 21½-34; Code 1985, § 19-43; Ord. No. 2027, § 1(art. III, § 3-5), 4-23-1974)

Sec. 6-48-15. Supervision.

A permittee shall have the premises supervised at all times when open for business. The permittee shall personally supervise the business and shall not violate or permit others to violate any applicable provision of this chapter. The violation of any such provision by any agent or employee of the permittee shall constitute a violation by the permittee.
(Code 1967, § 21½-35; Code 1985, § 19-44; Ord. No. 2027, § 1(art. III, § 3-7), 4-23-1974)

Sec. 6-48-16. Health regulations.

A. The city and county health department shall conduct sanitary surveys and inspections of all massage institutes and bathhouses frequently enough to maintain the health standards applied to other business establishments within the city, and in no instance shall these surveys and inspections be conducted less frequently than four times a year.

B. The fee charged by the city and county health department for such sanitary surveys and inspections shall be in accordance with the fee schedule set by the health department, and in no instance shall such fee exceed the current fee charged similar business establishments within the city.
(Code 1967, § 21½-36; Code 1985, § 19-45; Ord. No. 2027, § 1(art. III, § 3-1), 4-23-1974)

Sec. 6-48-17. Clothing regulations.

Employees of massage institutes and bathhouses and customers thereof shall, at all times while inside such massage institutes or bathhouses, wear sufficient opaque clothing to fully cover the genitalia and buttocks. If such person is a female, she shall, at all times while inside such massage institutes or bathhouses, wear sufficient opaque clothing to fully cover the breasts, and in no event shall the clothing of employees be any less than that amount necessary to be deemed to be in accordance with prevailing community standards for morals and decency in dress.
(Code 1967, § 21½-37; Code 1985, § 19-46; Ord. No. 2027, § 1(art. III, § 3-3), 4-23-1974)

Sec. 6-48-18. Hours of operation.

It is unlawful for massage institutes and bathhouses to be open between the hours of 10:00 p.m. and 6:00 a.m.
(Code 1967, § 21½-38; Code 1985, § 19-47; Ord. No. 2027, § 1(art. III, § 3-2), 4-23-1974)

Sec. 6-48-19. Method of operation.

A. It is unlawful for an employee of any massage institute or bathhouse to administer massages or baths in any room, cubicle or area in which more than three-fourths of the sides are enclosed by walls, partitions, curtains or any other opaque object.

B. It is unlawful for an employee of any massage institute or bathhouse to massage or bathe, while inside such massage institute or bathhouse, the genitalia of another.
(Code 1967, § 21½-39; Code 1985, § 19-48; Ord. No. 2027, § 1(art. III, § 3-4), 4-23-1974)

Sec. 6-48-20. Advertising.

No person shall publish, or distribute, or cause to be published or distributed, any advertising matter or business identification card that states or depicts any portion of the human body that would reasonably suggest to prospective patrons that any service is available other than a massage, bath or other similar service.
(Code 1967, § 21½-40; Code 1985, § 19-49; Ord. No. 2027, § 1(art. III, § 3-6), 4-23-1974)

Sec. 6-48-21. Persons under age 18 prohibited on premises.

No person shall permit any person under the age of 18 years to come or remain on the premises of any business establishment regulated by this chapter, as employee or patron, unless such person is on the premises on lawful business.
(Code 1967, § 21½-41; Code 1985, § 19-50; Ord. No. 2027, § 1(art. III, § 3-8), 4-23-1974)

Sec. 6-48-22. Alcoholic beverages prohibited on premises.

No person shall sell, give, dispense, provide or keep or cause to be sold, given, dispensed, provided or kept, any alcoholic beverage on the premises of any business establishment regulated by this chapter.
(Code 1967, § 21½-42; Code 1985, § 19-51; Ord. No. 2027, § 1(art. III, § 3-9), 4-23-1974)

CHAPTER 6-52. MECHANICAL AMUSEMENT DEVICES

Sections:

Article 1. General Provisions

Sec. 6-52-1. Definitions.
Sec. 6-52-2. Seal or tag to show ownership.
Sec. 6-52-3. Special requirements for electrical devices.
Sec. 6-52-4. Location near playgrounds or schools prohibited; exception.
Sec. 6-52-5. Noisy operation.
Sec. 6-52-6. Rules and regulations to enforce chapter.
Sec. 6-52-7. Machines exempt from chapter.

Article 2. Permit

Sec. 6-52-8. Required.
Sec. 6-52-9. Filing and contents of application.
Sec. 6-52-10. Approval of applications by director of police services; appeals from denials.
Sec. 6-52-11. Numbering—Required for each device and location.
Sec. 6-52-12. Posting.
Sec. 6-52-13. Transfer prohibited.
Sec. 6-52-14. List of businesses to be provided quarterly.
Sec. 6-52-15. Suspension or revocation.
Sec. 6-52-16. Renewal.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-52-1. Definitions.

As used in this chapter, the following words shall have the following respective meanings:

Mechanical amusement device means any machine or device which, upon the insertion of a coin, slug or token in any slot or receptacle attached to such machine or connected therewith, operates or which may be operated for use as a game, contest or amusement, or which may be operated for the playing of music or the exhibition of moving or still pictures, or may be used for any such game, contest or amusement and which does not contain a payoff device for the return of slugs, money, coins, checks, tokens or merchandise. Mechanical amusement devices shall be distinguished in the following two classes:

1. "Class A" which shall include all mechanical amusement devices which display moving, still or videotaped pictures; pool, bumper pool and billiard tables; shuffleboard; music machines; electronic video; nonbingo type pinball machines; and other similar coin- or token-operated devices;

2. "Class B" which shall refer to any mechanical amusement device which simulates poker, blackjack, bingo or any similar gambling activity, even though such devices make no promise or provision for payoff. Nothing in this classification is intended to make legal or permissible the owning or operating of any gambling device defined in T.C.A. § 39-6-601.

Owner or operator of a mechanical amusement device means the owner or lessor of mechanical amusement devices for recreational use by the public.
(Code 1967, § 31-39; Code 1985, § 29-56; Ord. No. 2726, § 8, 7-5-1978; Ord. No. 3215, § 1(1), (2), 8-17-1982)

Sec. 6-52-2. Seal or tag to show ownership.

Every mechanical amusement device shall have a seal or tag permanently attached thereto showing the owner's name and business address.
(Code 1967, § 31-40; Code 1985, § 29-57; Ord. No. 3215, § 1(3), 8-17-1982)

Sec. 6-52-3. Special requirements for electrical devices.

A. Every mechanical amusement device which is wired for electricity shall have attached thereto a label indicating the name and address of the manufacturer and the voltage and current necessary for the proper operation of such device.

B. Each portable mechanical amusement device wired for electricity shall be equipped with not more than six feet of electric cord of a type approved by the electrical inspector, and shall be connected to a convenient plug receptacle adjacent to such mechanical amusement device.

C. Where it is necessary to install electric wiring to a mechanical amusement device location, such wiring shall be installed by a master electrician in accordance with the provisions of the electrical code.
(Code 1967, § 31-41; Code 1985, § 29-58)

Sec. 6-52-4. Location near playgrounds or schools prohibited; exception.

A. It is unlawful for any owner or operator of a mechanical amusement device to cause, permit or allow the same to be located, operated or maintained to be operated within 600 feet of the nearest street entrance to or exit from any public playground or public or private school of elementary or high school grades, such 600 feet to be measured from the entrance or exit in the most direct line or route on, along or across such street adjacent to such public playground or public or private school.

B. This section shall apply to devices operated for the playing of music.
(Code 1967, § 31-43; Code 1985, § 29-59)

Sec. 6-52-5. Noisy operation.

It is unlawful for any person in charge of any mechanical amusement device playing or emitting music or sound to permit such device to be operated in such a manner that the sound created, emitted or transmitted by the mechanical amusement device shall be audible to persons on any public street or highway or upon any adjoining premises.
(Code 1967, § 31-46; Code 1985, § 29-60)

Sec. 6-52-6. Rules and regulations to enforce chapter.

The director of police services and the electrical inspector are authorized to adopt, promulgate and enforce such rules and regulations regarding mechanical amusement devices as will enable the police and the electrical inspector to enforce and carry out the provisions, meaning and intent of this chapter.
(Code 1967, § 31-47; Code 1985, § 29-61; Ord. No. 2726, § 1, 7-5-1978)

Sec. 6-52-7. Machines exempt from chapter.

The provisions of this chapter shall not apply to any machine which in return for the coin deposited in such device, will deliver the equivalent value of such coin in merchandise; provided that, no prize, reward, bonus or other thing of value is delivered with the merchandise.
(Code 1967, § 31-48; Code 1985, § 29-62)

ARTICLE 2. PERMIT

Sec. 6-52-8. Required.

It is unlawful for any person to install, operate or allow to be operated any mechanical amusement device in the city without having first obtained a permit to do so from the director of police services.
(Code 1967, § 31-54; Code 1985, § 29-71; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, § 1, 7-5-1978; Ord. No. 3215, § 1(4), 8-17-1982)

Sec. 6-52-9. Filing and contents of application.

Application for the permit required by this chapter shall be made to the director of police services on forms

provided by him or her, shall be signed by the applicant, and shall contain the following information and such additional information as is deemed necessary by the director of police services:

A. Class A:

1. Business name, address and telephone number;
2. Business owner, home address and telephone number;
3. Number of machines for which permits are being requested;
4. Serial number(s) of machines for which permits are being requested (optional with applicant).

B. Class B:

1. Business name, address and telephone number;
2. Business owner, home address and telephone number;
3. Name of owner or operator of the business establishment in which the machine is to be operated, address and telephone number;
4. Home address and telephone number of establishment owner;
5. Number of machines which will be operated at the location;
6. Liquor license number and date of issuance (if establishment is licensed to sell liquor);
7. Serial number(s) of machines for which permits are being requested (optional with applicant).

Once a location has been approved to operate Class B devices, the reissuance of permits shall be handled in the same manner as Class A permits.
(Code 1967, § 31-55; Code 1985, § 29-72; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, §§ 1, 10, 7-5-1978; Ord. No. 3215, § 1(5), 8-17-1982)

Sec. 6-52-10. Approval of applications by director of police services; appeals from denials.

A. The director of police services shall approve the application for a mechanical amusement device permit unless:

1. The owner of the mechanical amusement device or operator of the location for which the permit is being sought has been convicted of a criminal offense relating only to illegal gambling on mechanical amusement devices or illegally allowing minors to play mechanical amusement devices; or
2. The electrical inspector has reported that the location is not capable of safely handling the electricity required for the operation of the machine(s).

B. Any person aggrieved by the action of the director of police services in denying the permit shall have the right of appeal de novo to the city council; provided, such appeal is perfected within five days from such denial. The action of the council on such appeal shall be final.
(Code 1967, § 31-57; Code 1985, § 29-74; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, §§ 1, 12, 7-5-1978; Ord. No. 3215, § 1(7), 8-17-1982)

Sec. 6-52-11. Numbering—Required for each device and location.

Every permit issued under this article shall be serially numbered. A permit shall be required for each device at each location.
(Code 1967, § 31-62; Code 1985, § 29-75; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, § 13, 7-5-1978)

Sec. 6-52-12. Posting.

A permit issued under this article shall be permanently and conspicuously attached to the machine or device for which it is issued.
(Code 1967, § 31-63; Code 1985, § 29-76; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, §§ 1, 17, 7-5-1978; Ord. No. 3215, § 1(8), 8-17-1982)

Sec. 6-52-13. Transfer prohibited.

No permit issued under this article shall be transferable to any other device or machine.
(Code 1967, § 31-64; Code 1985, § 29-77; Ord. No. 420, § 1, 4-1-1969)

Sec. 6-52-14. List of businesses to be provided quarterly.

At the time of application for a permit required by this article, and at the beginning of each quarter thereafter, the machine owner shall be required to provide a list of all businesses, by location where he or she has machines placed.
(Code 1967, § 31-68; Code 1985, § 29-78; Ord. No. 3215, § 1(11), 8-17-1982)

Sec. 6-52-15. Suspension or revocation.

A. Whenever the director of police services has reason to believe that a permittee under this article or any of the permittee's servants, agents or employees in the use, operation or maintenance of any mechanical amusement device or poolroom has violated any law of the state or any provisions of this chapter or any ordinance of the city which is directly related to the public amusement device for which the permittee has been granted a permit, the director of police services shall give such permittee at least three days' notice of a hearing to determine whether the permit(s) should be suspended or revoked. At the revocation or suspension hearing, the director of police services, or his or her designee, shall hear testimony from both the police department and the permittee. The permittee shall have a right to representation by an attorney at such hearing. At the conclusion of the hearing, the director of police services, or his or her designee, shall give written notice of the decision to the permittee, such notice to include notice of permittee's right to appeal to the city council. The action of the director of police services, or his or her designee, shall be final unless his or her action is appealed to the city council.

B. Appeals shall be heard before the city council, provided the permittee notifies the city comptroller in writing, within ten days after notice of suspension or revocation is mailed to permittee at his or her business address given on his or her application form, of his or her intention to appeal. If such a hearing is requested, it shall be heard at such time as the city council so designates, and the comptroller shall notify the permittee of the time, date and place of the hearing.

C. Mechanical amusement devices or pool or billiard tables, as defined in section 6-52-1, shall be removed by the permittee from the establishment when a permit has been suspended or revoked and an appeal has not been requested to the city council as above set forth. If these items are not removed after the suspension or revocation is filed and there is no appeal taken to the city council, they shall be deemed public nuisances and on order of the director of police services shall be removed from the permit location with costs for such removal to be assessed against the permittee.
(Code 1967, § 31-67; Code 1985, § 29-79; Ord. No. 1113, § 2, 11-2-1967; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, §§ 1, 16, 7-5-1978)

Sec. 6-52-16. Renewal.

Permits issued under this article shall be renewed annually and the application for renewal shall be accompanied by the payment of the fee required for the type device prescribed. The renewal fee shall be paid each year by July 1 and will remain in effect through June 30 of the following year. Permits issued after July 1 shall be prorated to reflect the months remaining in the fiscal year.
(Code 1967, § 31-66; Code 1985, § 29-80; Ord. No. 420, § 1, 4-1-1969; Ord. No. 2726, § 15, 7-5-1978; Ord. No. 3215, § 1(10), 8-17-1982)

CHAPTER 6-56. PANHANDLING

Sections:

Sec. 6-56-1. Purpose; exclusion; scope.
Sec. 6-56-2. Definitions.
Sec. 6-56-3. Downtown Panhandling Prohibited Zone.
Sec. 6-56-4. Time of panhandling.
Sec. 6-56-5. Place of panhandling.
Sec. 6-56-6. Manner of panhandling.
Sec. 6-56-7. False or misleading solicitation.
Sec. 6-56-8. Accosting persons or obstructing traffic.
Sec. 6-56-9. Penalties for violation.

Sec. 6-56-1. Purpose; exclusion; scope.

A. Generally. The purpose of this section and legislation is to regulate and punish violations of the act of panhandling, rather than the status of the person and is not intended to restrict the exercise of protected free speech.

B. Exclusion. The activities of panhandling do not include a person who passively stands or sits with a sign or other indication that one is seeking donations, without addressing any solicitation to any specific person other than in response to an inquiry by that person.

C. Nothing in this section shall abrogate or abridge provisions of chapter 6-64, pertaining to public solicitation, or the laws of state and federal government, or those laws regulating nonprofit, religious, educational, civic or benevolent organizations.
(Code 1985, § 20-28(a); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(a), 4-13-2010)

Sec. 6-56-2. Definitions.

For the purposes of this chapter, certain terms shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise:

Assault means assaultive offenses as set out in T.C.A. §§ 39-13-101, 39-13-102 and 39-13-103, and classed as criminal offenses. For purposes of this chapter, the term "assault" does not apply to manner of panhandling as set out in section 6-56-6 and classified as a misdemeanor.

Abusive solicitation means to do one or more of the following while engaging in solicitation or immediately thereafter:

1. Coming closer than three feet to the person solicited unless and until the person solicited indicates that he or she wishes to make a donation;
2. Blocking or impeding the passage of the person solicited;
3. Following the person solicited by proceeding behind, ahead or alongside of him or her so as to continue soliciting after the person solicited declines to make a donation;
4. Threatening the person or accompanying person solicited with physical harm by word or gesture and the person would regard the threat as offensive or provocative;
5. Abusing the person solicited with words which are offensive and inherently likely to provoke an immediate violent reaction;
6. Touching the solicited person without the solicited person's consent and a reasonable person would regard the contact as offensive or provocative;
7. Engaging in solicitation activity in any of the prohibited places specified in restricted geographical areas.

Accost means to approach and speak in a challenging and aggressive manner.

Aggressively beg means to beg with the intent to intimidate another person into giving money or goods with actual or implied threats, or menacing actions.

ATM or *automated teller machine* means a device, linked to a financial institution's account records, which is able to carry out cash transactions.

Bank means any member bank of the Federal Reserve System, and any bank, banking association, trust company, savings bank, or other banking institution organized or operated under the laws of the United States, and any bank the deposits of which are insured by the Federal Deposit Insurance Corporation.

Beg means to ask for money or goods as a charity, whether by words, bodily gestures, signs, or other means.

Check cashing business means any person duly licensed to engage in the business of cashing checks, drafts or money orders for consideration.

Coerce means:

1. To approach or speak to a person in such a manner as would cause a reasonable person to believe that the person is being threatened with:
   (a) Imminent bodily injury; or
   (b) The commission of a criminal act upon the person or another person, or upon property in the person's immediate possession;
2. To persist in a solicitation after the person solicited has given a negative response;
3. To block, either individually or as part of a group of persons, the passage of a solicited person;
4. To engage in conduct that would reasonably be construed as intended to compel or force a solicited person to accede to demands.

Credit union means any federal credit union and any state-chartered credit union the accounts of which are insured by the administrator of the National Credit Union Administration.

Donation means any item of value, monetary or otherwise, accepted by a panhandler and shall also include the purchase of an item for an amount far

exceeding its value under circumstances where a reasonable person would understand that the purchase is in substance a gift.

Exempt organizations means any nonprofit, religious, civic or benevolent organization described in section 501(c) of the Internal Revenue Code of 1986.

Exempt zones means those portions of public property within, or on the boundary of, the downtown panhandling prohibited zone specifically excluded by the exempt zone committee from the prohibitions of this chapter. Solicitation and off-premises canvassing, as defined above, and otherwise meeting the requirements of this Code, may take place in exempt zones. The size, number and location of exempt zones shall be determined by the exempt zone committee. Maps showing the location of the CBID Panhandling Exclusion Zone and exempt zones shall be made available at the Center City Commission and the Memphis Police Department South Main Precinct. Exempt zones that are part of public property leased, permitted or otherwise contracted to third parties by the Center City Commission shall lose their exempt status during the term of the contract.

Exempt zone committee means a committee comprised of the president of the Center City Commission and/or his/her designee and the ranking Memphis Police Department commander and/or his/her designee of the South Main Precinct. Said committee shall determine the number and location of appropriate locations for exempt zones and shall meet on a semiannual basis to perform a review of existing exempt zones.

Financial institution means any banking corporation, credit union, or foreign exchange office.

Health care institution means any agency, institution, facility or place, whether publicly or privately owned or operated, that provides health services and that is one of the following: nursing home; recuperation center; hospital; ambulatory surgical treatment center; birthing center; mental health hospital; mental retardation institutional habilitation facility; home care organization or any category of service provided by a home care organization for which authorization is required under this chapter; outpatient diagnostic center; rehabilitation facility; residential hospice; or nonresidential methadone treatment facility as defined in the Tennessee Code.

Health service means clinically related services such as diagnostic, treatment or rehabilitative services.

Intimidate means to engage intentionally in conduct which would make a reasonable person fearful or feel compelled. Also, for purposes of this chapter, a person commits the offense of intimidating others from exercising civil rights who:

1. Injures or threatens to injure or coerces another person with the intent to unlawfully intimidate another from the free exercise or enjoyment of any right or privilege secured by the constitution or laws of the state; or

2. Injures or threatens to injure or coerces another person with the intent to unlawfully intimidate another because that other exercised any right or privilege secured by the Constitution or laws of the United States or the constitution or laws of the state.

Panhandler means any person, other than an exempt organization, acting on his/her own behalf or on behalf of another, requesting an immediate donation of money or exchange of any services; or any person, acting on his/her own behalf, attempting to sell an item for an amount far exceeding its value, or where said item is already offered free of charge to the general public, and a reasonable person would understand that the purchase is in substance a donation.

Panhandling is the solicitation of any item of value, monetary or otherwise, made by a person, other than an exempt organization, acting on his/her own behalf, requesting an immediate donation of money or exchange of series; or any person, acting on his/her own behalf, attempting to sell an item for an amount far exceeding its value, or an item which is already offered free of charge to the general public, and under circumstances a reasonable person would understand that the purchase is in substance a donation.

Pedestrian interference means the obstruction of pedestrian or vehicular traffic by aggressively begging which impedes the passageway or a pedestrian or vehicular traffic.

Public place means an area generally visible to public view and includes alleys, bridges, buildings, driveways, parking lots, parks, plazas, sidewalks and streets open to the general public including those that serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

Public transportation vehicle means any vehicle, including a trailer bus, designed, used or maintained for carrying ten or more persons, including the driver; or a passenger vehicle designed for carrying fewer than ten persons, including the driver, and used to carry passengers for hire.

Restricted geographical areas refers to a defined geographical area in which persons shall be restricted from panhandling.

Savings and loan association includes a building and loan association, a federal or state savings and loan association, a federal savings bank, and any other financial institution, the accounts of which are insured by the federal savings and loan insurance corporation (FSLIC) or any successor of such corporation (T.C.A. § 1-3-105).

Self-service car wash means a structure:

1. At which a vehicle may be manually washed by its owner or operator with equipment that is activated by the deposit of money in a coin-operated machine; and
2. That is accessible and available for use by members of the general public.

Self-service fuel pump means a fuel pump:

1. From which a vehicle may be manually filled with gasoline or other fuel directly by its owner or operator, without the aid of an employee or attendant of the premises at which the fuel pump is located; and
2. That is accessible and available for use by members of the general public.

Sidewalk means all portions of any public street where the same has no curb line and as to any public street having a curb line includes all portions situated between each curb line and the nearest property line regardless of whether the sidewalk is improved or unimproved.

Solicit and *Solicitation.*

1. The terms "solicit" and "solicitation" mean to make any request in person while in a public place, for an immediate grant of money, goods or any other form of gratuity from another person when the person making the request is not known to the persons who are the subject of the request, or to engage in such activity on private property.
2. However, the terms "solicit" and "solicitation" shall not mean the act of passively standing or sitting with a sign or other indicator that a donation of money, goods, or any other form of gratuity is being sought without any vocal request other than a response to an inquiry by another person.

(Code 1985, § 20-28(b); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(b), 4-13-2010)

Sec. 6-56-3. Downtown Panhandling Prohibited Zone.

The Downtown Panhandling Prohibited Zone shall be a restricted geographical area defined by the boundaries of the following-named streets, including both sides of each named street and each corner of intersecting named streets: Mill Avenue from the Mississippi River on the west to North Third Street on the east; North Third Street southbound from Mill Avenue to Exchange Avenue; Exchange Avenue eastbound to North Fourth Street; North Fourth Street south to Poplar Avenue; Poplar Avenue eastbound to North Lauderdale Street; North Lauderdale Street southbound to Washington Avenue; Washington Avenue westbound to North Fourth Street; North Fourth Street southbound to Union Avenue; Union Avenue westbound to South Fourth Street; South Fourth Street southbound to Vance Avenue; Vance Avenue westbound to Wagner Street; Wagner Street northbound to Beale Street; Beale Street westbound to Riverside Drive; Riverside Drive northbound to Interstate 40; Interstate 40 westbound to the Mississippi River; the Mississippi River northbound to Mill Avenue. Panhandling is not permitted in the Downtown Panhandling Prohibited Zone.

(Code 1985, § 20-28(c); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(h), 4-13-2010)

Sec. 6-56-4. Time of panhandling.

It is unlawful for any person to panhandle between the hours of 7:00 p.m. and 8:00 a.m.

(Code 1985, § 20-28(d); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(c), 4-13-2010)

Sec. 6-56-5. Place of panhandling.

Outside the boundaries of the panhandling prohibited zone, any person who panhandles when the person solicited is in any of the following places is guilty of a misdemeanor:

1. Within 50 feet of:
   a. Any entranceway into or exit from any health care institution or health facility;
   b. Any entranceway into or exit from any bank, savings and loan association, credit union, check cashing business or other financial institution buildings;
   c. An automatic teller machine (ATM), provided that when an automated teller machine is located within an automated teller machine facility; such distance shall be measured from the entrance or exit of the automated teller machine facility;
2. Within 25 feet of:
   a. The entrance to a religious assembly;
   b. Any parking lot pay box;
   c. Any pay telephone, provided that when a pay telephone is located within a telephone booth or other facility, such distance shall be measured from the entrance or exit of the telephone booth or facility;
   d. Any bus stop, trolley stop or taxi stand;
   e. Any entranceway into or exit from any building open to the public. Where any such entranceway or exit is recessed from the public sidewalk, the 25 feet shall be measured from the point at which the building abuts the sidewalk;
   f. Any marked crosswalk;
   g. Any outdoor dining area or outdoor merchandise area, if such areas are in active use at the time;
   h. A self-service fuel pump;
   i. A self-service car wash;
   j. A line of people waiting to gain admission to a place or vehicle or waiting to purchase an item or admission ticket;
3. At or within 20 feet of any vendor location;
4. While seated on or leaning against any public bench, planter, monument or other public property;
5. While seated on or leaning against any privately owned property without the property owner's or tenant's permission;
6. While conducting a solicitation to any person placing or preparing to place money in a parking meter;
7. In any vehicle on the street;
8. In any public transportation vehicle;
9. On private property, unless the panhandler has permission from the owner or occupant.

(Code 1985, § 20-28(e); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(d), 4-13-2010)

Sec. 6-56-6. Manner of panhandling.

Any person who in a public place panhandles in any of the following ways or manner is guilty of a misdemeanor:

1. By coming within three feet of the person solicited, unless that person has indicated that he/she does wish to make a donation;
2. By touching the person being solicited without that person's consent;
3. By using profane or abusive language, either during the solicitation or following a refusal;
4. By following or walking alongside a person who walks away from the panhandler and a reasonable person would regard this as offensive or provocative;
5. By blocking the path of a person who attempts to walk or drive away from the panhandler;
6. By panhandling in a group of two or more persons;
7. By any statement, gesture, or other communication which a reasonable person in the situation of the person solicited would perceive to be a threat;
8. By intimidating, obstructing pedestrian or vehicular traffic;
9. By assaulting or aggressively begging;

10. While under the influence of alcohol, illegal narcotic or a controlled substance.

(Code 1985, § 20-28(f); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(e), 4-13-2010)

Sec. 6-56-7. False or misleading solicitation.

A. Any person who knowingly makes any false, misuse, or misleading representation in the course of soliciting a donation is guilty of a misdemeanor. False or misleading representations include, but are not limited to, the following:

1. Stating that the donation is needed to meet a specific need, when the solicitor already has sufficient funds to meet the need and does not disclose that fact;
2. Stating that the donation is needed to meet a need which does not exist;
3. Stating that the solicitor is from out of town and stranded, when that is not true;
4. Wearing a military uniform or other indication of military service, when the solicitor is neither a present nor former member of the service indicated;
5. Wearing or displaying an indication of physical disability, when the solicitor does not suffer the disability indicated;
6. Use of any makeup or device to simulate any deformity;
7. Stating that the solicitor is homeless, when he is not;
8. Stating the donation is for food but in reality is used for "sidewalk" drugs, or illegal contraband;
9. Using and exposing minors/children and animals to hazardous conditions (i.e., cold, heat, animals, weather and/or strangers), to solicit funds; or
10. To offer to sell newspapers, magazines, periodicals, pamphlets for a price, which are offered free of charge to the general public.

B. Any person who solicits a donation stating that the funds are needed for a specific purpose and then spends the funds received for a different purpose is guilty of a misdemeanor.

C. This chapter and section establish a single offense. Evidence which establishes beyond a reasonable doubt that the defendant violated this chapter or section is sufficient for conviction and need not establish which section or subsection was violated.

(Code 1985, § 20-28(g); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(f), 4-13-2010)

Sec. 6-56-8. Accosting persons or obstructing traffic.

Every person who commits any of the following acts is guilty of a misdemeanor:

1. Who assaults, aggressively begs, intimidates, or accosts other persons in any public place or in any place open to the public, for the purpose of panhandling or soliciting a donation for immediate payment.
2. Who obstructs pedestrian or vehicular traffic, or interferes at a time when a person, or the vehicle, is not in a position to walk or drive away.
3. Who accosts other persons in any public place, or in any place open to the public, for donations if it is a general and known fact to all reasonable people that appropriate institutions, organizations, or charity groups exist who make available the same daily necessities and needs at no cost.

(Code 1985, § 20-28(h); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(g), 4-13-2010)

Sec. 6-56-9. Penalties for violation.

Any person found violating of any one or all of the sections of this chapter is deemed guilty of a misdemeanor and upon conviction thereof subject to penalties as set under section 1-24-1.

(Code 1985, § 20-28(i); Ord. No. 4211, § 1, 12-14-1993; Ord. No. 4352, § 4, 8-15-1995; Ord. No. 5348, § 1(i), 4-13-2010)

CHAPTER 6-60. PAWNBROKERS*

Sections:

Article 1. General Provisions

Sec. 6-60-1. Pawnbroker defined.
Sec. 6-60-2. License required by state law.
Sec. 6-60-3. Conducting other business in same building prohibited.
Sec. 6-60-4. Purchase of property prohibited.
Sec. 6-60-5. Business hours; Sunday business prohibited.
Sec. 6-60-6. Business sign.
Sec. 6-60-7. Dealing with certain persons prohibited.
Sec. 6-60-8. Certain pledges prohibited.
Sec. 6-60-9. Return of stolen property to owner.
Sec. 6-60-10. Record of pawn transaction.
Sec. 6-60-11. Memorandum to be given pledgor.
Sec. 6-60-12. Retention period for pawned articles.
Sec. 6-60-13. Interest and service charge.
Sec. 6-60-14. Forfeiture of pledged property.
Sec. 6-60-15. Damage to pledged property.

Article 2. Information Cards for Pawned Articles

Sec. 6-60-16. Generally.
Sec. 6-60-17. Types and colors.
Sec. 6-60-18. Forms and required information generally.
Sec. 6-60-19. Information to be on back of all cards.
Sec. 6-60-20. Pawnbroker to fill in proper types and deliver to police.
Sec. 6-60-21. Inspection by police.
Sec. 6-60-22. Transaction fee.
Sec. 6-60-23. Exclusion of certain pawnbrokers.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-60-1. Pawnbroker defined.

For the purposes of this chapter, unless the context otherwise appears, a "pawnbroker" shall be deemed to be any person whose business or occupation is to take or receive, by way of pledge, pawn or exchange, any goods, wares or merchandise, or any kind of personal property whatever.
(Code 1967, § 26-11; Code 1985, § 24-16)

***State law references—**Pawnbrokers, T.C.A. § 45-6-201 et seq.; local regulation of pawnbrokers, T.C.A. § 45-6-219.

Sec. 6-60-2. License required by state law.

It is unlawful for any person to engage in the business of a pawnbroker within the city, unless he or she first obtains the license required by T.C.A. § 45-6-102.
(Code 1967, § 26-12; Code 1985, § 24-17)

Sec. 6-60-3. Conducting other business in same building prohibited.

No pawnbroker shall carry on any other business or vocation, directly or indirectly, in the same building, or in any building adjoining the place or building in which he or she is licensed to carry on the business of pawnbroker, loanbroker or keeper of a loan office. No pawnbroker shall permit any other business of any character whatsoever to be conducted in the same building where the business of the pawnbroker is conducted; provided, that nothing in this section shall be taken to preclude a pawnbroker from selling or disposing of unredeemed and repossessed pledges from his or her place of business.
(Code 1967, § 26-13; Code 1985, § 24-18)

Sec. 6-60-4. Purchase of property prohibited.

No pawnbroker, loanbroker, or keeper of a loan office shall, in the conduct of such business, under any pretense whatever, purchase or buy any personal property whatsoever.
(Code 1967, § 26-14; Code 1985, § 24-19)

Sec. 6-60-5. Business hours; Sunday business prohibited.

No pawnbroker shall keep open his or her place of business before 8:00 a.m. or after 6:00 p.m. of any day during the months of June, July, August and September, and not after 7:00 p.m. of any day during the other months of the year; provided, that on Saturday of each week the last 15 days of December of each year, it shall be lawful for pawnbrokers to keep open until 9:00 p.m. Pawnbrokers shall keep their places of business closed all day Sunday through the entire year.
(Code 1967, § 26-15; Code 1985, § 24-20)

Sec. 6-60-6. Business sign.

Every person licensed under this chapter shall cause his or her name, with the words "Licensed Pawnbroker," and no other words or symbols, to be printed or painted in large, legible characters, and placed over the outside or

door, or entrance of his or her shop, office or place of business. No other sign or marker of any description shall be permitted upon the front of such building.
(Code 1967, § 26-16; Code 1985, § 24-21)

Sec. 6-60-7. Dealing with certain persons prohibited.

No pawnbroker shall take any article in pawn, pledge or as security from any person under legal age, nor from any person appearing to be intoxicated, nor from any person known to such pawnbroker to be a thief or to have been convicted of larceny, burglary, robbery or housebreaking, without first notifying a police officer.
(Code 1967, § 26-17; Code 1985, § 24-22)

Sec. 6-60-8. Certain pledges prohibited.

A. No pawnbroker shall take for pledge, pawn or security any device which may be used in the game of chance or gaming device, nor shall he or she have any device that is or may be used in the following: chuck-a-luck, crackloo, craps, dice, dice and chips used in the game of craps, equality, "French pool" or pari mutuel, "keeno," lottery, lotto, pack of cards, pisco, punchboard, rondo, shuffleboard, six-wheel, stock table, tables used for playing pool and billiards, poker chips and poker tables, ten pin alleys, roulette, wheel of chance, slot machines, faro, grand raffle, or any device used in or for any other game of chance.

B. No pawnbroker shall buy, sell or take for pledge, pawn or security any razor, except safety razor, or any dirk, bowie knife or other knife of like kind or size, or any other knife with any blade over two and one-half inches long, sword cane, slingshot, black jack, brass knucks, or Spanish stiletto.

C. It is unlawful for any pawnbroker to possess any of the articles enumerated in this section.
(Code 1967, § 26-18; Code 1985, § 24-23; Ord. No. 3376, § 1, 5-22-1984)

Sec. 6-60-9. Return of stolen property to owner.

When any person is found to be the owner of stolen property, which has been pawned, such property shall be returned to the owner thereof, without the payment of the amount advanced by the pawnbroker thereon, or any costs or charges of any kind, which the pawnbroker may have placed upon such property.
(Code 1967, § 26-19; Code 1985, § 24-24)

Sec. 6-60-10. Record of pawn transaction.

A. Every pawnbroker shall keep a consecutively numbered record of each and every pawn transaction which shall correspond in all essential particulars to the detachable pawn ticket attached thereto.

B. Any person who pledges goods as security for a pawn transaction shall present a valid driver's license and/or any other acceptable form of identification to the pawnbroker.

C. The pawnbroker shall, at the time of making the pawn transaction, enter upon the pawnshop copy of the records as well as on the pawn ticket the following information, which shall be typed or written in ink and in the English language:

1. A clear and accurate identification and description of the pledged goods, including model and serial numbers if reasonably available;
2. The date of the pawn transaction;
3. The amount of the pawn transaction;
4. The exact value of the pledged goods as stated by the pledgor;
5. The due date of the pawn transaction;
6. The name, race, sex, date of birth, and residence address of the pledgor;
7. The driver's license number or other acceptable identification number capable of identifying the pledgor; and
8. A statement from the pledgor that he or she is the lawful owner of the pledged goods and has the right to pledge them.

D. The pledgor shall sign the pawn ticket and shall receive a detached copy. The pawn broker shall also sign the pawn ticket. On the pawnshop copy of the record of the pawn transaction, the pledgor shall reproduce his or her right thumbprint. In the event the right thumb is amputated, then such other fingerprint as required by the pawnbroker shall be taken and such fingerprint fully described on such record. This thumbprint shall be reproduced and taken in the usually approved manner and shall not be blurred or obliterated.

E. The pawnbroker shall deliver daily, except Sunday, to the chief of police before the hour of 10:00 a.m., a correct copy of the required records for all of the pawn transactions from the preceding day.

F. These records shall be a correct copy of the entries made of the pawn transactions and shall be carefully preserved without alteration and shall be available during regular business hours for inspection by the chief of police or any police officer of the city.

G. In lieu of the required delivery of copies of records under subsection E of this section, a pawnbroker may transmit the required information electronically to the chief of police via modem or may deliver the required information to the chief of police on a computer diskette, provided the method of delivery is compatible with the equipment and systems utilized by the chief of police for the receipt of such information.
(Code 1967, § 26-20; Code 1985, § 24-25; Ord. No. 4212, § 1, 10-5-1993)

Sec. 6-60-11. Memorandum to be given pledgor.

Every pawnbroker shall, at the time of each loan, deliver to the person pawning or pledging any goods, articles or things, a memorandum or note signed by him or her, containing the substance of the entry required by section 6-60-10 to be made by him or her in his or her record book, and an estimated value of the goods, articles or things pledged. No charge shall be made or received by any pawnbroker for any such memorandum or note.
(Code 1967, § 26-21; Code 1985, § 24-26)

Sec. 6-60-12. Retention period for pawned articles.

It is unlawful for pawnbrokers to sell, exchange, barter or remove from their place of business, or permit to be redeemed, any of the goods pledged, pawned or deposited by, to or with them for a period of 48 hours after delivering a copy of the stub book entry covering such articles to the police as required by section 6-60-10.
(Code 1967, § 26-22; Code 1985, § 24-27)

Sec. 6-60-13. Interest and service charge.

No pawnbroker shall demand or receive any greater rate of interest or compensation than at the rate of $6.00 for the use of $100.00 for one year. No other charge of any description, or for any purpose whatsoever, shall be made by the pawnbroker, except that the pawnbroker may charge, contract for and receive, for investigating the security or title, storage of the security, closing the loan and for other expenses and losses of every nature whatsoever, and for all other services, a fee of not above one percent per month of the sum loaned on the article taken as security.
(Code 1967, § 26-23; Code 1985, § 24-28)

Sec. 6-60-14. Forfeiture of pledged property.

A. Every pawnbroker shall retain in his or her possession every unredeemed pledge or pawn for 50 days after maturity of the loan. If the pledgor shall fail or neglect, for 50 days after maturity of such loan, to redeem the pawned property, the pawnbroker may, at any time thereafter, mail a notice to the pledge owner, at the residence address designated by him or her on the stub of the book required to be kept by section 6-60-10, which notice shall give the number of the pawn ticket and a description of the property pledged, and in addition, shall notify the pledgor that the property must be redeemed within ten days of the notice, and specify the date, and that upon his or her failure to redeem within this time the pledged property will be forfeited to the pawnbroker and the right of the pledgor thereafter to redeem divested. This notice shall be in form substantially as follows:

_____, 20____

City_____

County_____

State_____

To:

Name_____

No. Street_____

City_____

State_____

You are hereby notified to redeem your pledged property on or before ten days from date, to wit _____ (give date) or the same will be forfeited to the pawnbroker under your agreement; and your right to redeem your pledged property will thereafter be divested. Your pawn ticket is No. _____. The property pledged by you as security is described as follows:

_____

(General description of property)

_____

Pawnbroker

_____

No. Street

B. Upon the date of mailing such notice, it shall also be the duty of the pawnbroker to publish a notice in a daily newspaper published in the city in substance, as follows:

(Date) _____

To Pledgors and Pawnors:

You and each of you are hereby notified that the owners of pawn ticket number _____ to _____, inclusive, must redeem the pledges represented by your pawn ticket on or before _____, 20____, or your right to redeem will be forfeited.

_____

Pawnbroker.

C. If, notwithstanding such notice, the person obtaining the loan shall fail to redeem the pawned or pledged property within the ten days designated in the notice, the pledgor shall thereby forfeit all right, title and interest of, in and to such pawned and pledged property, to the pawnbroker, who shall thereby acquire an absolute title to it, and the debt become satisfied. The pawnbroker shall have authority to sell or dispose of these unredeemed pledges as his or her own property.

D. This section shall be printed in full on the back of the pawn ticket required to be given to the pledgor.
(Code 1967, § 26-24; Code 1985, § 24-29)

Sec. 6-60-15. Damage to pledged property.

If any pledgor, upon redeeming his or her property, finds that it has been damaged and rendered less valuable, the amount of damage done to such property shall be deducted from the amount due the pawnbroker. If the damage done to the property is greater than that amount due the pawnbroker, the pawnbroker shall reimburse the owner for the damage done to such property.
(Code 1967, § 26-25; Code 1985, § 24-30)

ARTICLE 2. INFORMATION CARDS FOR PAWNED ARTICLES

Sec. 6-60-16. Generally.

A. In addition to the book provided for in section 6-60-10, every pawnbroker, at the time of receiving any article in the conduct of his or her business, shall place a description of the article or things pledged upon the front side of a blank form card, three inches by five inches in size, which card shall be provided by the pawnbroker. The description to be given of such article shall be such description as may be called for by the blank form on such card. The pawnbroker shall fill in such other blank spaces as may appear on the front side of such blank form card with the data as is requested by the blank spaces. A separate card shall be provided and used for each article pledged, received or taken.

B. On the back of each blank form card there shall be written by the pledgor, in his or her own handwriting, his or her name and address and such pledgor shall also reproduce thereon his or her right thumbprint at the place indicated therefor on the back of such card. In the event the right thumb is amputated, then such other fingerprint as required by the pawnbroker shall be taken and such fingerprint fully described and designated upon the card. This thumbprint shall be reproduced and taken in the usually approved manner and shall not be blurred or obliterated. The pawnbroker shall then fill in a description of the party so pledging or leaving any such article as the remaining spaces on the back side of such blank form card may call for.
(Code 1967, § 26-31; Code 1985, § 24-41)

Sec. 6-60-17. Types and colors.

The blank cards provided for in this article shall be four separate types; one type for watches, which card shall be blue in color; one type for jewelry and diamonds, which card shall be yellow in color; one type for clothing, which card shall be pink in color; one type for miscellaneous articles, such as adding machines, cash registers, check protectors, typewriters, dictaphones, and musical instruments, which card shall be white in color.
(Code 1967, § 26-32; Code 1985, § 24-42)

Sec. 6-60-18. Forms and required information generally.

The cards provided for by this article shall be on such forms as are prescribed by the director of police services and shall contain such information as required by him or her as to specific items or property pledged to or otherwise received by the pawnbroker.
(Code 1967, § 26-33; Code 1985, § 24-43)

Sec. 6-60-19. Information to be on back of all cards.

The back side of all types of cards required by this article shall be in the following form and contain the following printed matter thereon:

Signature _____

Address_____

Description of customer. To be filled out by dealer

Sex ____ Age ____

Height, Ft. ____ In. ____

Weight, Lbs. ____.

Race or Nationality _____

Clothing _____

Complexion _____

Date of Birth _____

Document establishing birth date:

_____

Right Thumb

Include serial number where available.
(Code 1967, § 26-34; Code 1985, § 24-44; Ord. No. 545, § 1, 9-9-1969)

Sec. 6-60-20. Pawnbroker to fill in proper types and deliver to police.

Every pawnbroker shall fill in the proper type of card for each article pledged to or otherwise received by him or her and he or she shall deliver to the director of police services, every day before the hour of 12:00 noon, all of such cards describing articles pledged, pawned, or received during the preceding day. Such cards may be mailed to the office of the director of police services, or his or her designee, in lieu of personal delivery, if the envelope in which the same are mailed bears the post date of the day on which such property was received.
(Code 1967, § 26-35; Code 1985, § 24-45)

Sec. 6-60-21. Inspection by police.

The card records provided for in this article shall be at all reasonable times open to the inspection of the director of police or any of his or her designees.
(Code 1967, § 26-36; Code 1985, § 24-46)

Sec. 6-60-22. Transaction fee.

Every pawnbroker shall pay to the chief of police a fee of $1.00 for each card delivered to the chief of police pursuant to section 6-60-20 of this chapter. The aggregate fee for all such cards delivered to the chief of police within a given week shall be remitted to the director of police services or deposited in a designated city depository weekly on or before 5:00 p.m. Friday of such week. The fee will be designated for the processing of such cards required to be delivered to the chief of police.
(Code 1985, § 24-47; Ord. No. 4212, § 1, 10-5-1993)

Sec. 6-60-23. Exclusion of certain pawnbrokers.

Notwithstanding anything in this chapter to the contrary, the requirements of sections 6-60-16 through 6-60-22 of this chapter shall not apply to the pawnbrokers who transmit the required information to the chief of police in the manner provided in section 6-60-10(G) of this chapter.
(Code 1985, § 24-48; Ord. No. 4212, § 1, 10-5-1993)

CHAPTER 6-64. PUBLIC SOLICITATION*

Sections:

Sec. 6-64-1. Definitions.
Sec. 6-64-2. Use of sound trucks restricted.
Sec. 6-64-3. Permit required.
Sec. 6-64-4. Permit application.
Sec. 6-64-5. Investigation of application—Issuance and contents.
Sec. 6-64-6. Permit—Denial.
Sec. 6-64-7. Permit—To be carried and exhibited by solicitors.
Sec. 6-64-8. Suspension or cancellation.

Sec. 6-64-1. Definitions.

As used in this chapter:

Board of supervisors means the board of supervisors of public solicitation of funds, as created by section 2-54-1.

Public solicitation means any begging or solicitation in the city of money, subscriptions or contributions for any charitable, religious, educational or benevolent pur-

***Charter reference—**Authority to regulate solicitors and public begging or soliciting, §§ 837 and 856. See also, § 739.

State law reference—Solicitation of charitable funds, T.C.A. § 48-501-101 et seq.

poses, upon the streets, in public places, buildings, and from house to house, or by the use of the telephone or otherwise, but nothing herein shall be construed to prevent or forbid any pastor, priest, rabbi, rector or minister of the gospel from soliciting funds exclusively from members of his or her own congregation or flock. The offering for sale of any merchandise or subscriptions to any magazine, periodical or publication, the profits from which sale or any part thereof, are to be used for the benefit of any charitable, religious, educational or benevolent purpose, shall be deemed a "public solicitation" within the meaning of this chapter. The offering for sale of tickets to any show or other performance represented as being for the benefit of a charitable, religious, educational or benevolent purpose shall be deemed to be a "public solicitation" within the meaning of this chapter.
(Code 1967, § 33-1; Code 1985, § 30-1)

Sec. 6-64-2. Use of sound trucks restricted.

It is unlawful to use any sound truck as a means of soliciting money, subscriptions or contributions for any charitable, religious, educational or benevolent purpose upon the streets of the city, unless express permission is granted therefor at the time the permit is issued pursuant to sections 6-64-3 through 6-64-7. The board of supervisors shall have the right to prescribe the terms and conditions under which sound trucks may be used for such purposes on the streets of the city.
(Code 1967, § 33-2; Code 1985, § 30-2)

Sec. 6-64-3. Permit required.

It is unlawful for any person to engage in or conduct any public solicitation without a permit duly issued by the board of supervisors.
(Code 1967, § 33-32; Code 1985, § 30-36)

Sec. 6-64-4. Permit application.

Any person desiring a permit required by section 6-64-3 shall file with the board of supervisors an application on a form approved by such board and shall answer, under oath, all of the questions contained in such form and furnish to such board all such information with reference to such public solicitation as may be of assistance to the board in determining whether the permit shall be given to such person. The failure or refusal to file such application and furnish such information shall constitute sufficient grounds for the board of supervisors, or the secretary of such board, to decline the application.
(Code 1967, § 33-33; Code 1985, § 30-37)

Sec. 6-64-5. Investigation of application—Issuance and contents.

A. It shall be the duty of the secretary of the board of supervisors to investigate all applications for a permit under this chapter. If the secretary, after such investigation, is satisfied that the purpose of such solicitation is a bona fide charitable, religious, educational or benevolent purpose, and that the applicant for a permit will solicit in good faith and in the manner authorized for such bona fide charitable, religious, educational or benevolent purposes and that a proper proportion of the money subscribed or contributed will be used for the purpose for which the subscription or contribution is made, it shall be the duty of the secretary to issue to such applicant a permit in the form of a card, giving the name of the person so authorized to solicit, the purpose for which the funds are being solicited, the time within which solicitations of money, contributions or subscriptions are permitted, the manner in which such solicitation is authorized, and whether the person soliciting such funds is being paid for his or her services as such solicitor. For purposes of this subsection, the use of less than 75 percent of the money subscribed or contributed for the purpose for which such money was given shall create a rebuttable presumption that a proper proportion of the money has not been or will not be used for the purpose for which such money was subscribed or contributed.

B. It shall not be necessary for each solicitor to apply to the board of supervisors where more than one person is soliciting for the same purpose, but a general application for such persons may be made by any one of them, and permit cards for all such solicitors may be issued upon one application therefor.
(Code 1967, § 33-34; Code 1985, § 30-38)

Sec. 6-64-6. Permit—Denial.

If the secretary of the board of supervisors, after investigation of any application for a permit under this chapter, decides that such permit should not be issued, he or she shall decline to issue such permit and the person whose application has been declined shall have the right of appeal to the board of supervisors, and such board shall hear the appeal and rule on the application and appeal at any open meeting, after notice thereof to the

applicant. The decision of a majority of the members of the board of supervisors, after such hearing, shall be final and binding on all of the parties thereto.
(Code 1967, § 33-35; Code 1985, § 30-39)

Sec. 6-64-7. Permit—To be carried and exhibited by solicitors.

Every person engaged in a public solicitation shall have in his or her possession at all times while so engaged a permit issued by the board of supervisors authorizing the solicitation at the time and in the manner the solicitation is being made. Such permit shall be exhibited upon demand by any person.
(Code 1967, § 33-36; Code 1985, § 30-40)

Sec. 6-64-8. Suspension or cancellation.

In the event of violation of any condition, limitation or restriction imposed in the granting of any permit under this chapter, or in the event of the misapplication of any funds collected thereunder, the board of supervisors may suspend the effectiveness of such permit pending a hearing before it as to whether or not any condition, limitation or restriction imposed by the board in the granting of such permit has been violated. Such suspension shall be in effect only until the hearing before the board of supervisors, upon reasonable notice to the holder of the permit, at which hearing the holder of such permit may appear before such board, in person or by counsel, and may produce evidence. The board of supervisors is authorized to hear testimony and swear witnesses, and it may require the production of papers and documents by subpoena to be served by any lawful police officer of the city. If, upon the hearing, the board shall determine that this chapter has been violated, or any condition, limitation or restriction imposed in any permit has been violated, the board may cancel the permit or may suspend the effectiveness thereof for such time as the board may deem advisable. The board shall make a written finding of facts, based upon the testimony heard by it, and its finding as to the facts shall be conclusive.
(Code 1967, § 33-37; Code 1985, § 30-41)

CHAPTER 6-68. SECONDHAND DEALERS*

Sections:

Article 1. General Provisions

Sec. 6-68-1. Business hours.
Sec. 6-68-2. Retention period for articles purchased.
Sec. 6-68-3. Daily report of purchases.
Sec. 6-68-4. Dealing with minors.
Sec. 6-68-5. Special provisions relative to secondhand book dealers.

Article 2. Purchase Information Cards

Sec. 6-68-6. Generally.
Sec. 6-68-7. Types and colors.
Sec. 6-68-8. Forms and required information generally.
Sec. 6-68-9. Information to be on back of cards.
Sec. 6-68-10. Dealer to fill in proper type and deliver to police.
Sec. 6-68-11. Alternate method of information delivery.
Sec. 6-68-12. Transaction fee.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-68-1. Business hours.

It is unlawful for any dealer in secondhand merchandise to open his or her place of business for the transaction of business before 6:00 a.m., or to keep his or her place of business open for the transaction of business after 8:00 p.m., on any day except Saturday, on which day it shall be lawful for any dealer in secondhand merchandise to keep his or her place of business open not later than 11:00 p.m.
(Code 1967, § 26-65; Code 1985, § 24-76)

Sec. 6-68-2. Retention period for articles purchased.

No property purchased by any dealer in secondhand merchandise shall be sold, disposed of or removed from the place of business of such dealer for at least 48 hours after the required reports have been delivered to the director of police.
(Code 1967, § 26-66; Code 1985, § 24-77)

***Charter reference—**Dealers in secondhand vehicles, bicycles and accessories, §§ 730—734.

State law references—Scrap metal dealers, T.C.A. § 62-9-101 et seq.; Junkyard Control Act of 1967, T.C.A. § 54-20-101 et seq.; flea market sales, T.C.A. § 47-25-1601 et seq.

Sec. 6-68-3. Daily report of purchases.

Every dealer in secondhand merchandise of every kind and description shall prepare and deliver daily to the director of police services, before 9:00 a.m., a report containing a legible and correct description of each and every article or piece of merchandise purchased during the preceding day, together with the name, color, sex and address of the person from whom such property was purchased, and the time at which the property was purchased.
(Code 1967, § 26-67; Code 1985, § 24-78)

Charter reference—Report to police of purchases by dealers in secondhand vehicles, bicycles and accessories, § 731.

Sec. 6-68-4. Dealing with minors.

No dealer in secondhand merchandise shall purchase or otherwise receive from any minor under the age of 16 years any property of any kind, nor shall he or she deal with any minor 16 years of age or over without the written consent of such minor's parent or guardian.
(Code 1967, § 26-68; Code 1985, § 24-79)

Charter reference—Dealers in secondhand vehicles, bicycles and accessories dealing with minors, § 730.

Sec. 6-68-5. Special provisions relative to secondhand book dealers.

Dealers in secondhand books shall deal only with persons to them known personally, and of whose identification they are certain. They shall promptly give to any officer inquiring about it information to enable the seller to be identified, and dealing with strangers or failing to give such information on demand shall render such dealer guilty of a misdemeanor.
(Code 1967, § 26-69; Code 1985, § 24-80)

ARTICLE 2. PURCHASE INFORMATION CARDS*

Sec. 6-68-6. Generally.

A. Every dealer in secondhand merchandise, at the time of buying or receiving any article in such business, shall write a description of the article on the front side of a blank form card, three inches by five inches in size, which card shall be provided by the dealer. The description to be given of the article shall be such description as may be called for by such blank form. The secondhand dealer shall fill in such other blank spaces as may appear on the front side of such blank form card, with certain information as required in this article. A separate card shall be provided and used for each such article bought or received.

B. On the back side of each blank card there shall be written by the person transferring any article to a secondhand dealer, in his or her own handwriting, his or her name and address, and such person shall also reproduce thereon his or her right thumbprint at the place indicated therefor on the back of such card. In the event the right thumb is amputated, then such other fingerprint as required by the secondhand dealer shall be taken and such fingerprint fully described and designated upon the card. Such thumbprint shall be reproduced and taken in the usual approved manner and shall not be blurred or obliterated. The secondhand dealer shall then fill in a description of the party so transferring any such article in accordance with the information requested on the back side of such blank form card.
(Code 1967, § 26-75; Code 1985, § 24-91)

Sec. 6-68-7. Types and colors.

The blank cards provided for in section 6-68-6 shall be four separate types: one type for watches only, which card shall be blue in color; one type for jewelry and diamonds only, which card shall be yellow in color; one type for clothing, which card shall be pink in color; one type for all other secondhand articles not herein enumerated and which shall be denominated miscellaneous articles, which card shall be white in color.
(Code 1967, § 26-76; Code 1985, § 24-92)

Sec. 6-68-8. Forms and required information generally.

The cards provided for by this article shall be on such forms as are prescribed by the director of police services and shall contain such information as required by him or her as to specific items or property purchased or otherwise received by the secondhand dealer.
(Code 1967, § 26-77; Code 1985, § 24-93)

Sec. 6-68-9. Information to be on back of cards.

The back side of all types of cards required by this article shall be in the following form and contain the following printed matter thereon:

Signature _____

***Charter reference—**Record of purchases of dealers in secondhand vehicles, bicycles and accessories, § 730.

Address _____

Description of customer.

To be filled out by dealer

Sex _____ Age_____

Height, Ft. _____ In. _____

Weight, Lbs. _____.

Race or Nationality _____

Clothing _____

Complexion _____

Right Thumb

(Code 1967, § 26-78; Code 1985, § 24-94)

Sec. 6-68-10. Dealer to fill in proper type and deliver to police.

Every secondhand dealer shall fill in the proper type of card for each article bought or transferred to him or her and he or she shall deliver to the director of police services, or his or her designee, every day, before the hour of 12:00 noon, all such cards describing the secondhand goods, articles or things, bought, received or transferred to such secondhand dealer during the preceding day. Such cards may be mailed to the office of the director of police services, or his or her designee, in lieu of personal delivery if the envelope in which the same are mailed bears the post date of the day in which such property was received.

(Code 1967, § 26-79; Code 1985, § 24-95)

Sec. 6-68-11. Alternate method of information delivery.

In lieu of the required delivery of cards under section 6-68-10, a secondhand dealer may transmit the required information from such cards electronically to the chief of police via modem or may deliver the required information to the chief of police on a computer diskette, provided the method of delivery is compatible with the equipment and systems utilized by the chief of police for the receipt of such information and provided further that the secondhand dealer retains the original information cards on his or her premises and carefully preserves the same without alteration and makes them available during regular business hours for inspection by the chief of police or any police officer of this city.

(Code 1985, § 24-96; Ord. No. 4212, § 1, 10-5-1993)

Sec. 6-68-12. Transaction fee.

Every secondhand dealer shall pay to the chief of police a fee of $1.00 for each information card delivered to the chief of police pursuant to section 6-68-10 of this chapter. The aggregate fee for all such cards delivered to the chief of police within a given week shall be remitted to the director of police services or deposited in a designated city depository weekly on or before 5:00 p.m. of such week. The fee will be designated for the processing of such cards required to be delivered to the chief of police. This requirement shall not apply to secondhand dealers who transmit the required information to the chief of police in the manner provided in section 6-68-11 of this chapter.

(Code 1985, § 24-97; Ord. No. 4212, § 1, 10-5-1993)

CHAPTER 6-72. SEXUALLY ORIENTED BUSINESSES

Sections:

Sec. 6-72-1. Purpose and intent.
Sec. 6-72-2. Definitions.
Sec. 6-72-3. Classification.
Sec. 6-72-4. Permit required.
Sec. 6-72-5. Permit—Suspension—Revocation.
Sec. 6-72-6. Hearings and appeals.
Sec. 6-72-7. Transfer of permit.
Sec. 6-72-8. Location of sexually oriented businesses.
Sec. 6-72-9. Exemption from location restrictions.
Sec. 6-72-10. Additional regulations for escort agencies.
Sec. 6-72-11. Additional regulations for nude model studios.
Sec. 6-72-12. Additional regulations for adult theaters and adult motion picture theaters.
Sec. 6-72-13. Additional regulations for adult motels.
Sec. 6-72-14. Regulations pertaining to exhibition of sexually explicit films or videos.
Sec. 6-72-15. Display of sexually explicit material to minors.
Sec. 6-72-16. Enforcement.
Sec. 6-72-17. Injunction.

Sec. 6-72-1. Purpose and intent.

It is the purpose of this chapter to regulate sexually oriented business to promote the health, safety, morals and general welfare of the citizens of the city and to establish reasonable and uniform regulations to prevent the continued concentrations of sexually oriented businesses within the city. The provisions of this chapter have neither the purpose nor effect of imposing a

limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is neither the intent nor effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment, or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market.
(Code 1985, § 20-121(a); Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-2. Definitions.

As used in this chapter:

Adult arcade means any place to which the public is permitted or invited where coin-operated or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by the depicting or describing of specified sexual activities or specified anatomical areas.

Adult bookstore or *adult video store* means a commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration any one or more of the following:

1. Books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, videocassettes or video reproductions, slides or other visual representations, which depict or describe specified sexual activities or specified anatomical areas; or
2. Instruments, devices or paraphernalia which are designed for use in connection with specified sexual activities.

Adult cabaret means a nightclub, bar, restaurant or similar commercial establishment which regularly features:

1. Persons who appear in a state of nudity;
2. Live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities; or
3. Films, motion pictures, videocassettes, slides or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.

Adult motel means a hotel, motel or similar commercial establishment which:

1. Offers accommodations to the public for any form of consideration; provides patrons with closed-circuit television transmissions, films, motion pictures, videocassettes, slides or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas; and may have a sign visible from the public right-of-way which advertises the availability of this adult type of photographic reproductions. This definition shall not include R-rated films so defined by the Motion Picture Association;
2. Offers a sleeping room for rent more than two times in a period of ten hours;
3. Allows a tenant or occupant of a sleeping room to sub-rent the room for a period of time that is less than ten hours; or
4. Offers or allows a discount or refund which is less than half the normal daily rate.

Adult motion picture theater means a commercial establishment where, for any form of consideration, films, motion pictures, videocassettes, slides or similar photographic reproductions are regularly shown which are characterized by the depiction or description of specified sexual activities or specified anatomical areas. This definition shall not include R-rated films so defined by the Motion Picture Association.

Adult telecommunications business means a commercial establishment where, by means of telephone, any communication characterized by the description of specified anatomical areas or specified sexual activities is made for commercial purposes to any person, regardless of whether the maker of such communication placed the call. Adult telecommunication businesses are exempt from the permit requirements of this chapter but shall comply with its locational requirements.

Adult theater means a theater, concert hall, auditorium or similar commercial establishment which regularly features persons who appear in a state of nudity or semi-nude, or live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities.

Director of police services means the director of police services of the city or his or her designated agent.

Escort means a person who, for consideration, agrees or offers to act as a companion, guide or date for another person, or who agrees or offers to privately model lingerie or to privately perform a striptease for another person.

Escort agency means a person or business association who furnishes, offers to furnish, or advertises to furnish escorts as one of its primary business purposes, for a fee, tip, or other consideration.

Establishment means and includes any of the following:

1. The opening or commencement of any sexually oriented business as a new business;
2. The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business;
3. The addition of any sexually oriented business to any other existing sexually oriented business; or
4. The relocation of any sexually oriented business.

Landmark district means a geographically definable area with a concentration of landmark buildings, objects or sites.

Nude model studio means any place where a person who appears in a state of nudity or displays specified anatomical areas is provided to be observed, sketched, drawn, painted, sculptured, photographed or similarly depicted by other persons who pay money or any form of consideration.

Nudity or a *state of nudity* means:

1. The appearance of a human bare buttock, anus, male genitals, female genitals or female breast; or
2. A state of dress which fails to cover opaquely a human buttock, anus, male genitals female genitals, or areola of the female breast.

Operates or *causes to be operated* means to cause to function or to put or keep in operation. A person may be found to be operating or causing to be operating a sexually oriented business whether or not that person is an owner, part-time owner, or permittee of the business.

Permittee means a person in whose name a permit to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application for a permit. "Permittee" shall include an operator of an adult telecommunications business only for purposes of section 6-72-4.

Person means an individual, proprietorship, partnership, corporation, association or other legal entity.

Residential district means a district whose designation begins with the letter "R" or "AG" according to the Memphis and Shelby County Unified Development Code.

Residential use means any building or portion of a building used as a dwelling unit.

Semi-nude means a state of dress in which clothing covers no more than the genitals, pubic region, and areola of the female breast, as well as portions of the body covered by supporting straps or devices.

Sexual encounter center means a business or commercial enterprise that, as one of its primary business purposes, offers for any form of consideration:

1. Physical contact in the form of wrestling or tumbling between persons of the opposite sex; or
2. Activities between male and female persons and/or persons of the same sex when one or more of the persons is in a state of nudity or semi-nude.

Sexually oriented business means an adult arcade, adult bookstore or adult video store, adult cabaret, adult motel, adult motion picture theater, adult theater, escort agency, nude model studio, or sexual encounter center or, for the purposes noted in section 6-72-3(F), adult telecommunications business.

Specified anatomical areas means:

1. Less than completely and opaquely covered:
   a. Human genitals, pubic regions;
   b. Buttock; and
   c. Female breast below a point immediately above the top of the areola; and
2. Human male genitals in a discernible turgid state, even if completely and opaquely covered;
3. Use of artificial devices or inanimate objects to depict any of the items described above.

Specified sexual activities means:

1. Human genitals in a state of sexual stimulation or arousal;
2. Acts of human masturbation, sexual intercourse or sodomy;
3. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast;
4. Acts of bestiality;
5. Use of artificial devices or inanimate objects to depict any of the activities described in this section.

Substantial enlargement of a sexually oriented business means the increase in floor area occupied by the business by more than 25 percent, as the floor area exists on July 9, 1990.

Transfer of ownership or control of a sexually oriented business means and includes any of the following:

1. The sale, lease or sublease of the business;
2. The transfer of securities which constitute a controlling interest in the business, whether by sale, exchange, or similar means; or
3. The establishment of a trust, gift, or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

(Code 1985, § 20-121(b); Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-3. Classification.

Sexually oriented businesses are classified as follows:

A. Adult arcades;

B. Adult bookstores or adult video stores;

C. Adult cabarets;

D. Adult motels;

E. Adult motion picture theaters;

F. Adult telecommunications businesses, but only for purposes of sections 6-72-4(D), 6-72-8, 6-72-9, 6-72-16 and 6-72-17;

G. Adult theaters;

H. Escort agencies;

I. Nude model studios; and

J. Sexual encounter centers.

(Code 1985, § 20-121; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-4. Permit required.

A. *Generally.*

1. A person commits an offense if he or she operates a sexually oriented business without a valid permit, issued by the city or county for the particular type of business.
2. For purposes of this chapter, the issuance, suspension and revocation of a permit for a sexually oriented business located within the city shall be handled by the director of police services.
3. An application for a permit must be made on a form provided by the director of police services. The application must be accompanied by a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches. Applicants who must comply with section 6-72-14 of this chapter shall submit a diagram meeting the requirements of section 6-72-14.
4. The applicant must be qualified according to the provisions of this chapter.
5. If a person who wishes to operate a sexually oriented business is an individual, he or she must sign the application for a permit as applicant. If a person who wishes to operate a sexually oriented business is other than an individual, each individual who has any interest in the business must sign the application for a permit as applicant. Each applicant must be qualified under subsection B of this section and each applicant shall be considered a permittee if a permit is granted.
6. The fact that a person possesses a valid theater permit, dance hall permit or public house of amusement permit does not exempt him or her from the requirement of obtaining a sexually oriented business permit. A person who operates

a sexually oriented business and possesses a theater permit, public house of amusement permit or dance hall permit shall comply with the requirements and provisions of this chapter, as well as the requirements and provisions of all other Memphis and Shelby County building, fire, health and other permit codes.

7. A permit may be issued only in the name of a natural person. The permit, when approved, shall be issued by the city treasurer, or his or her designee.

8. Every permittee shall, before employing any person or using the services of an independent contractor in the operation of or entertainment at a sexually oriented business, secure from the director of police services an employee's permit authorizing such person to serve as an employee or independent contractor in the place of business of the sexually oriented business permittee. It is made the duty of the sexually oriented business permittee to ensure that each person so employed in permittee's place of business has an employee's permit as above required, which permit must be upon the sexually oriented business premises at all times subject to inspection by the director of police services, or his or her duly authorized agents.

9. No employee's permit may be issued for any person who has been convicted of an offense listed in section 6-72-4(B)(1)(h)(i) for which the time period required in section 6-72-4(B)(1)(h)(ii) has not elapsed.

10. An employee's permit issued pursuant to the provisions of this section shall be valid for a three-year period and shall be subject to suspension or revocation for breaches described in sections 6-72-5(A) and (B) of this chapter. An employee's permit shall be revoked upon the employee's or independent contractor's conviction of an offense listed in section 6-72-4(B)(1)(h)(i).

11. Applications for renewal shall be made in the same manner as applications for original permits upon forms to be prescribed by the director of police services. Such permits shall not be transferable and must be surrendered to the director of police services within five days from the date the holder thereof ceases to work for or at a sexually oriented business, and it shall be the duty of the sexually oriented business permittee to notify the director of police services within five days of the termination of the employment for which such permit was issued.

B. *Issuance of permit.*

1. The director of police services shall approve the issuance of a permit to an applicant within 30 days after receipt of an application unless the director of police services finds one or more of the following to be true:

   a. An applicant is under 18 years of age;

   b. An applicant is overdue in payment to the city of taxes, fees, fines or penalties assessed against or imposed upon the applicant in relation to a sexually oriented business;

   c. An applicant has failed to provide information reasonably necessary for issuance of the permit or has falsely answered a question or request for information on the application form;

   d. An applicant has been convicted of a violation of a provision of this chapter, other than the offense of operating a sexually oriented business without a permit, within two years immediately preceding the application. The fact that a conviction is being appealed shall have no effect;

   e. The permit fee required by this chapter has not been paid;

   f. An applicant has been employed in a sexually oriented business in a managerial capacity within the preceding 12 months and has demonstrated an inability to operate or manage a sexually oriented business premises in a peaceful and law-abiding manner, thus necessitating action by law enforcement officers;

   g. An applicant or the proposed establishment is in violation of or is not in compliance with sections 6-72-4(D) or 6-72-6 through 6-72-15;

h. An applicant has been convicted of a crime:

i. Involving any of the following offenses as described in T.C.A. title 39 or juvenile laws of Tennessee, or corresponding offenses of other, including federal, jurisdictions:

(A) Prostitution;

(B) Promoting prostitution;

(C) The obscenity laws;

(D) Sale, loan, distribution or exhibition to one or more minors of material which is harmful to minors;

(E) Use of minors for obscene purposes;

(F) Promotion of performances including sexual conduct by minors;

(G) Indecent exposure;

(H) Statutory rape;

(I) Rape, aggravated rape, sexual battery or aggravated sexual battery;

(J) Incest;

(K) Criminal attempt, conspiracy or solicitation to commit any of the foregoing offenses;

ii. For which:

(A) Less than two years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;

(B) Less than five years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or

(C) Less than five years have elapsed since the date of the last conviction or the date of release from confinement for the last conviction, whichever is the later date, if the convictions are of two or more misdemeanor offenses or combination of misdemeanor offenses occurring within any 24-month period.

2. The fact that a conviction is being appealed shall have no effect on the disqualification of the applicant or applicant's spouse.

3. An applicant who has been convicted or whose spouse has been convicted of any offense listed in subsection (B)(1)(h)(i) of this section may qualify for a sexually oriented business permit only when the time period required by subsection (B)(1)(h)(ii) of this section has elapsed.

4. The permit, if granted, shall state on its face the name of the person or persons to whom it is granted, the expiration date, and the street address and any post office address of the sexually oriented business. The permit shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be easily read at any time.

C. *Fees.*

1. The annual fee for a sexually oriented business permit is $500.00.

2. The annual fee for a permit issued on a date other than the annual expiration date shall be prorated according to the number of days remaining until the expiration date.

3. The applicant for an employee's permit shall pay to the director of police services the sum of $15.00 therefor.

4. Fees shall be collected by the director of police services at the time of issuance of the permit.

D. *Inspection.*

1. An applicant or permittee shall permit representatives of the police services division, health department, fire services division, housing and community development division and construction code enforcement division to inspect the premises of a sexually oriented business for the purpose of insuring compliance with the law, at any time it is occupied or open for business.

2. A person who operates a sexually oriented business, or his or her agent, employee or independent contractor, commits an offense if he or she refuses to permit a lawful inspection of the premises by a representative of the police services division or health department at any time it is occupied or open for business.

E. *Expiration of permit.* Each permit shall expire December 31st of each year and may be renewed only by making application as provided in subsection A of this section. Application for renewal should be made at least 30 days before the expiration date, and when made less than 30 days before the expiration date, the expiration of the permit will not be affected.
(Code 1985, § 20-122; Ord. No. 4013, § 1, 1-15-1991; Ord. No. 4198, §§ 1, 2, 6-29-1993; Ord. No. 4352, § 3, 8-15-1995)

Sec. 6-72-5. Permit—Suspension—Revocation.

A. *Suspension.* The director of police services shall suspend a permit for a period not to exceed 30 days if he or she determines that a permittee or an employee or agent of a permittee or independent contractor employed at the licensed premises has:

1. Violated or is not in compliance with sections 6-72-4(D), 6-72-7, 6-72-8 or 6-72-10 through 6-72-15;

2. Engaged in excessive use of alcoholic beverages while on the sexually oriented business premises;

3. Refused to allow an unimpeded inspection of the sexually oriented business premises as authorized by this chapter;

4. Knowingly permitted gambling by any person on the sexually oriented business premises;

5. Demonstrated inability to operate or manage a sexually oriented business in a peaceful and law-abiding manner thus necessitating action by law enforcement officers.

B. *Revocation.*

1. The director of police services shall revoke a permit if a cause of suspension in subsection A of this section occurs and the permit has been suspended within the preceding 12 months.

2. The director of police services shall revoke a permit if he or she determines that:

a. A permittee gave false or misleading information in the material submitted to the director of police services during the application process;

b. A permittee or an employee, agent or independent contractor employed on the premises has allowed possession, use or sale of controlled substances on the premises;

c. A permittee or an employee, agent or independent contractor employed on the premises has allowed prostitution on the premises;

d. A permittee or an employee, agent or independent contractor employed on the premises operated the sexually oriented business during a period of time when the permittee's permit was suspended;

e. A permittee has been convicted of an offense listed in section 6-72-4(B)(h)(i) for which the time period required in section 6-72-4(B)(h)(ii) has not elapsed;

f. On two or more occasions within a 12-month period, a person or persons committed an offense occurring in or on the licensed premises of a crime listed in section 6-72-4(B)(h)(i) for which a conviction has been obtained, and the person or persons were employees, agents or independent contractors employed on the premises of the sexually oriented business at the time the offenses were committed;

g. A permittee or an employee, agent or independent contractor employed on the premises has allowed any act of sexual intercourse, sodomy, oral copulation, masturbation or sexual contact to occur in or on the licensed premises. The term "sexual contact" shall have the same meaning as it is defined in T.C.A. § 39-13-501(6); or

h. A permittee is delinquent in payment to the city for hotel occupancy taxes, ad valorem taxes, or sales taxes related to the sexually oriented business.

3. The fact that a conviction is being appealed shall have no effect on the revocation of the permit.

4. Subsection (B)(2)(g) of this section does not apply to adult motels as a ground for revoking the permit unless the permittee, employee, agent or independent contractor employed at the premises allowed the act of sexual intercourse, sodomy, oral copulation, masturbation or sexual contact to occur in a public place or within public view.

5. When the director of police services revokes a permit, the revocation shall continue five years and no sexually oriented business permit shall be issued to that permittee for five years from the date revocation became effective. If, subsequent to revocation, the director of police services finds that the basis for the revocation has been corrected or abated, a permit may be granted to the permittee if at least 90 days have elapsed since the date the revocation became effective. If the permit was revoked under subsection (B)(2)(e) of this section, an applicant may not be granted another permit until the appropriate number of years under section 6-72-4(B)(h)(ii) has elapsed.

(Code 1985, § 20-123; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-6. Hearings and appeals.

If the director of police services denies the issuance of a permit for a reason other than a violation of section 6-72-8 of this chapter, or a permittee, applicant or business desires to appeal his, her or its revocation or suspension, it shall be done in the following manner:

A. Written notice of the denial or proposed suspension or revocation shall be sent to the permittee by certified mail, return receipt requested, or have delivered by process server.

B. The appeal of the denial, revocation or suspension must be filed with the director of police services within ten calendar days of receipt of notice.

C. A hearing must be scheduled and held before the director of police services within 60 days, unless continued to a later date by consent of the parties.

D. When a permit is suspended or revoked, the suspension or revocation of the permit shall not occur within 60 days of receipt of notice described in subsection A of this section or prior to the date of the hearing, whichever is less, unless the health officer determines there to be a health hazard or risk of disease at the location. No issuance of a new permit for that permittee, business or location shall occur until after the date set for hearing has passed.

E. A decision of the director of police services must be made in writing to all parties within five days of the conclusion of the hearing.

F. Any appeal of the decision of the director of police services shall be made by Common Law Writ of Certiorari to a court of competent jurisdiction. The appeal must be filed within 30 calendar days after receipt of a written decision from the director of police services or offer of delivery of such decision is made.

G. No permit shall be extended during a court appeal without a court ordered Writ of Supersedeas.

(Code 1985, § 20-124; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-7. Transfer of permit.

A permittee shall not transfer his or her permit to another, nor shall a permittee operate a sexually oriented business under the authority of a permit at any place other than the street address designated in the application.

(Code 1985, § 20-125; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-8. Location of sexually oriented businesses.

A. A person commits an offense if he or she operates or causes to be operated a sexually oriented business within 1,500 feet of:

1. A duly organized and recognized church;

2. A public or private elementary or secondary school;

3. A boundary of a residential or landmark district as defined in this Code;

4. A public park; or

5. The property line of a lot devoted to a residential use as defined in this Code.

B. A person commits an offense if he or she causes or permits the operation, establishment, substantial enlargement, or transfer of ownership or control of a sexually oriented business within 1,500 feet of another sexually oriented business.

C. A person commits an offense if he or she causes or permits the operation, establishment or maintenance of more than one sexually oriented business in the same building, structure, or portion thereof, or the increase of floor area of any sexually oriented business in any building, structure, or portion thereof containing another sexually oriented business.

D. For the purpose of subsection A of this section, measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as a part of the premises where a sexually oriented business is conducted, to the nearest property line of the premises of a church or public or private elementary or secondary school, or to the nearest boundary of an affected public park, residential district or local historic district.

E. For purposes of subsection B of this section, the distance between any two sexually oriented businesses shall be measured in a straight line, without regard to intervening structures or objects, from the closest exterior wall of the structure in which each business is located.

F. Any sexually oriented business lawfully operating on July 1, 1990, that is in violation of subsections A, B or C of this section shall be deemed a nonconforming use. The nonconforming use will be permitted to continue for a period not to exceed one year, unless sooner terminated for any reason or voluntarily discontinued. In the event of termination of such a sexually oriented business, anyone applying for a reopening or for another sexually oriented business establishment at the premises will be considered a new applicant. Such nonconforming uses shall not be increased, enlarged, extended or altered except that the use may be changed to a conforming use. If two or more sexually oriented businesses are within 1,500 feet of one another and otherwise in a permissible location, the sexually oriented business which was first established and continually operating at a particular location is the conforming use and the later-established business(es) is nonconforming.

G. A sexually oriented business lawfully operating as a conforming use is not rendered a nonconforming use by the location, subsequent to the grant or renewal of the sexually oriented business permit, of a church, public or private elementary or secondary school, public park, residential district or residential lot within 1,500 feet of the sexually oriented business. This provision applies only to the renewal of a valid permit and does not apply when an application for a permit is submitted after a permit has expired or has been revoked.

H. Nothing in this section shall prohibit the city from seeking and obtaining injunctive relief, or the continuation of litigation for injunctive relief pending at the time this chapter becomes effective, against any sexually oriented business which has opened or may open, from March 31, 1987, to the time this chapter becomes effective, within 1,000 feet of a duly organized, recognized church, public or private elementary or secondary school, boundary of a residential district as defined by this Code, public park adjacent to a residential district as defined by this code, or any other sexually oriented business. For purposes of this subsection only, the term "sexually oriented business" shall be limited to and retain the definitions set forth in the predecessor ordinance of the city, Ordinance No. 3647, dated March 31, 1987, Code section 6-72-1 et seq., especially section 6-72-4. This chapter is an amended recreation of, and not an abandonment of, said predecessor ordinance.
(Code 1985, § 20-126; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-9. Exemption from location restrictions.

A. If the director of police services denies the issuance of a permit to an applicant because the location of the sexually oriented business establishment is in violation of section 6-72-8, then the applicant may, not later than ten calendar days after receiving notice of the denial, file with the comptroller a written request for an exemption from the locational restrictions of section 6-72-8.

B. If the written request is filed with the comptroller within the ten-day limit, the city council shall consider the request. The comptroller shall set a date for the hearing within 60 days from the date the written request is received, and shall give notice to the public of such hearing according to the provisions of T.C.A. § 8-44-103.

C. The city council shall hear and consider evidence offered by any interested person.

D. The city council may, in its discretion, grant an exemption from the locational restrictions of section 6-72-8 if it makes the following findings:

1. That the location of the proposed or existing sexually oriented business will not have a detrimental effect on nearby properties or be contrary to the public welfare;

2. That the granting of the exemption will not violate the spirit and intent of this chapter of the Code;

3. That the location of the proposed or existing sexually oriented business will not downgrade the property values or quality of life in the adjacent areas or encourage the development of urban blight;

4. That the location of an additional sexually oriented business or the continued location of an existing sexually oriented business in the area will not be contrary to any program of neighborhood conservation nor will it interfere with any efforts of urban renewal or restoration; and

5. That all other applicable provisions of this chapter and chapters 6-56, 9-24, 9-32, 9-88, 10-4 through 10-32, 12-64 and 12-68 will be observed.

E. The city council shall grant or deny the exemption by a majority vote. The vote shall be decided on the basis of a preponderance of the evidence. The decision of the city council is final. Appeal shall lie by common law writ of certiorari to a court of competent jurisdiction. Such an appeal must be made within 30 days of the city council vote.

F. If the city council grants the exemption, the exemption is valid for one year from the date of the city council's action. Upon the expiration of an exemption, the sexually oriented business is in violation of the locational restrictions of section 6-72-8 until the applicant applies for and receives another exemption.

G. If the city council denies the exemption, the applicant may not re-apply for an exemption until at least 12 months have elapsed since the date of the city council's action.

H. The grant of an exemption does not exempt the applicant from any other provisions of this chapter and chapters 6-56, 9-24, 9-32, 9-88, 10-4 through 10-32, 12-64 and 12-68 other than the locational restrictions of section 6-72-8.
(Code 1985, § 20-127; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-10. Additional regulations for escort agencies.

A. An escort agency permittee shall not employ, use or allow the services of any person under the age of 18 years in the operation of such establishment.

B. A person commits an offense if he or she acts as an escort or agrees to act as an escort for any person under the age of 18 years.
(Code 1985, § 20-128; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-11. Additional regulations for nude model studios.

A. A nude model studio shall not employ, use or allow the services of any person under the age of 18 years in the operation of such establishment.

B. A person under the age of 18 years commits an offense if he or she appears in a state of nudity in or on the premises of a nude model studio. It is a defense to prosecution under this subsection if the person under 18 years was in a restroom not open to public view or persons of the opposite sex.

C. A person commits an offense if he or she appears in a state of nudity or knowingly allows another to appear in a state of nudity in an area of a nude model studio premises which can be viewed from the public right-of-way.

D. There shall be no bed, sofa or mattress in any room on the premises of a nude model studio except that a sofa may be placed in a reception room open to the public.
(Code 1985, § 20-129; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-12. Additional regulations for adult theaters and adult motion picture theaters.

A. The requirement and provisions of other sections of this chapter remain applicable to adult theaters and adult motion picture theaters.

B. A person commits an offense if he or she knowingly allows a person under the age of 18 years to appear in a state of nudity in or on the premises of an adult theater or adult motion picture theater.

C. A person under the age of 18 years commits an offense if he or she knowingly appears in a state of nudity in or on the premises of an adult theater or adult motion picture theater.

D. It is a defense to prosecution under subsections B and C of this section if the person under 18 years was in a restroom not open to public view or persons of the opposite sex.
(Code 1985, § 20-130; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-13. Additional regulations for adult motels.

Evidence that a sleeping room in a hotel, motel or similar commercial establishment has been rented and vacated two or more times in a period of time that is less than ten hours creates a rebuttable presumption that the establishment is an adult motel as that term is defined in this chapter.
(Code 1985, § 20-131; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-14. Regulations pertaining to exhibition of sexually explicit films or videos.

A. A person who operates or causes to be operated a sexually oriented business, other than an adult motel, which exhibits on the premises in a viewing room of less than 150 square feet of floor space, a film, videocassette or other video reproduction which depicts specified sexual activities or specified anatomical areas, shall comply with the following requirements:

1. Upon application for a sexually oriented business permit, the application shall be accompanied by a diagram of the premises showing a plan thereof specifying the location of one or more manager's stations and the location of all overhead lighting fixtures and designating any portion of the premises in which patrons will not be permitted. A manager's station may not exceed 32 square feet of floor area. The diagram shall also designate the place at which the permit will be conspicuously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram should be oriented to the north or to some designated street or object and should be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The director of police services may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.
2. The application shall be sworn to be true and correct by the applicant.
3. No alteration in the configuration or location of a manager's station may be made without the prior approval of the director of police services or his or her designee.
4. It is the duty of the owners and operator of the premises to ensure that at least one employee is on duty and situated in each manager's station at all times that any patron is present inside the premises.
5. The interior of the premises shall be configured in such a manner that there is an unobstructed view from a manager's station of every area of the premises to which any patron is permitted access for any purpose excluding restrooms. Restrooms may not contain video reproduction equipment. If the premises has two or more manager's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one of the manager's stations. The view required in this subdivision must be by direct sight from the manager's station.
6. It shall be the duty of the owners and operators, and it shall also be the duty of any agents, employees and independent contractors employed at the premises present in the premises to ensure that the view area specified in subsection (A)(5) of this section remains unobstructed by any doors, walls, merchandise, display racks or other materials at all times that any patron is present in the premises and to ensure that no patron is permitted access to any area of the premises which has been designated as an area

in which patrons will not be permitted in the application filed pursuant to subsection A of this section.

7. The premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one footcandle as measured at the floor level.

8. It shall be the duty of the owners and operators and it shall also be the duty of any agents and employees present in the premises to ensure that the illumination described above is maintained at all times that any patron is present in the premises.

B. A person having a duty under subsections (A)(1) through (8) of this section commits an offense if he or she fails to fulfill that duty.
(Code 1985, § 20-132; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-15. Display of sexually explicit material to minors.

A. A person commits an offense if, in a business establishment open to persons under the age of 18 years, he or she displays a book, pamphlet, newspaper, magazine, film or videocassette, the cover of which depicts, in a manner calculated to arouse sexual lust or passion for commercial gain or to exploit sexual lust or perversion for commercial gain, any of the following:

1. Human sexual intercourse, masturbation or sodomy;

2. Fondling or other erotic touching of human genitals, pubic region, buttocks or female breasts;

3. Less than completely and opaquely covered human genitals, buttocks, or that portion of the female breast below the top of the areola; or

4. Human male genitals in a discernibly turgid state, whether covered or uncovered.

B. In this section "display" means to locate an item in such a manner that, without obtaining assistance from an employee of the business establishment:

1. It is available to the general public for handling and inspection; or

2. The cover or outside packaging on the item is visible to members of the general public.
(Code 1985, § 20-133; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-16. Enforcement.

A. Except as provided by subsection B of this section, any person violating section 6-72-8 of this chapter, upon conviction, is punishable by a fine not to exceed $50.00 per day per violation. It shall be the duty of the director of police services to enforce the provisions of this chapter. This chapter may also be enforced by injunctive relief through a court of competent jurisdiction.

B. If the sexually oriented business involved is a nude studio or sexual encounter center, then violation of section 6-72-8 of this chapter is punishable as a misdemeanor.

C. Except as provided by subsection B of this section, any person violating a provision of this chapter other than section 6-72-8, upon conviction, is punishable by a fine not to exceed $50.00 per day per violation, in accordance with section 1-24-1.

D. It is a defense to prosecution under section 6-72-4(A), 6-72-8 or 6-72-11(D) that a person appearing in a state of nudity did so in a modeling class operated:

1. By a school licensed by the State of Tennessee; a college, community college, or university supported entirely or partly by taxation;

2. By a private college or university which maintains and operates educational programs in which credits are transferable to a college, community college, or university supported entirely or partly by taxation; or

3. In a structure:

   a. Which has no sign visible from the exterior of the structure and no other advertising that indicates a nude person is available for viewing; and

   b. Where in order to participate in a class a student must enroll at least three days in advance of the class; and

   c. Where no more than one nude model is on the premises at any one time.

E. It is a defense to prosecution under section 6-72-4(A) or section 6-72-8 that each item of descriptive, printed, film or video material offered for sale or rental, taken as whole, contains serious literary, artistic, political or scientific value.

F. No alcohol permit may be issued for any sexually oriented business premises within the proscribed areas of section 6-72-8.
(Code 1985, § 20-134; Ord. No. 4013, § 1, 1-15-1991)

Sec. 6-72-17. Injunction.

A person who operates or causes to be operated a sexually oriented business without a valid permit or in violation of section 6-72-8 of this chapter is subject to a suit for injunction as well as prosecution for criminal violation.
(Code 1985, § 20-135; Ord. No. 4013, § 1, 1-15-1991)

CHAPTER 6-76. TATTOO ESTABLISHMENTS*

Sections:

Article 1. General Provisions

Sec. 6-76-1. Definitions.
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Sec. 6-76-4. Permit—Training in sterilization techniques and methods prerequisite to issuance.
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Sec. 6-76-6. Permit—Form and transfer.
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Sec. 6-76-20. Tattooing procedures.
Sec. 6-76-21. Instructions to patrons or customers as to care of skin after tattooing.
Sec. 6-76-22. Sterilizing device required.

***State law reference—**Tattoos and body piercing, T.C.A. § 62-38-201 et seq.

ARTICLE 1. GENERAL PROVISIONS

Sec. 6-76-1. Definitions.

Whenever in this chapter the following words appear, the following definitions shall apply:

Permit means a permit issued to the owner or the proprietor of a tattooing establishment under the provisions of this chapter.

Tattoo or *tattooing* means to mark or color the skin by pricking in color matter so as to form indelible marks or figures or by producing scar tissue.

Tattoo artist means any person who performs tattooing.

Tattoo establishment means any room or space where tattooing is performed or where the business of tattooing, or any part thereof, is conducted. The term is synonymous with "tattoo parlor."

Tattoo operator means any person who controls, operates, conducts or manages any tattoo establishment, whether actually tattooing or not.
(Code 1985, § 35-1)

Sec. 6-76-2. Permit—Required.

No person shall operate a tattoo establishment or engage in the practice or business of tattooing as a tattoo operator or as a tattoo artist unless such person shall first obtain a permit from the health officer or his or her duly authorized agent. Applications for such permit shall be made in writing on a form prescribed by the health officer, wherein the applicant shall agree to conform to all ordinances, rules and regulations governing such places now in effect or as subsequently enacted, and to authorize and permit such examination and inspection as may be necessary by the health officer.
(Code 1985, § 35-2)

Sec. 6-76-3. Permit—Inspection prerequisite to issuance.

Before a permit to operate a tattoo establishment is granted, it shall be the duty of the health officer to cause an inspection to be made of the premises in which the business is to be conducted and to refuse such permit if the condition of the premises or its equipment does not

conform to the requirements of this chapter, but if the same does conform to the requirements of this chapter, the health officer shall issue the permit requested.
(Code 1985, § 35-3)

Sec. 6-76-4. Permit—Training in sterilization techniques and methods prerequisite to issuance.

Each tattoo operator or tattoo artist shall, before receiving a health permit to operate a tattoo establishment, undergo a training program approved by the health officer in methods and techniques for the proper sterilization of instruments and materials used in tattooing, or present acceptable evidence of having satisfactorily completed a course of instruction in sterilization techniques and methods. The tattoo operator and/or tattoo artist shall be required to take and pass an examination in the manner prescribed by the health officer before a permit shall be issued, regarding the provisions of this chapter, including aseptic technique to ensure that infectious and contagious diseases shall not be spread by the tattooing practice.
(Code 1985, § 35-4)

Sec. 6-76-5. Permit—Term—Renewal—Fees.

All permits issued pursuant to this chapter shall, unless sooner revoked as hereinafter set forth, expire on December 31st, following the date of issue, and the requirements for the renewal thereof shall be the same as for new permits. The permit fee shall be $50.00 and shall be renewed by payment of the annual permit fee.
(Code 1985, § 35-5)

Sec. 6-76-6. Permit—Form and transfer.

All permits required by this chapter shall be issued in the name of the individual person applying therefor, shall give the location of the tattoo establishment where such applicant will operate, and shall not be transferable.
(Code 1985, § 35-6)

Sec. 6-76-7. Permit—Public display.

It shall be the duty of the operator or owner of a tattoo establishment to post the current permit in a conspicuous place where it may be readily observed by the public.
(Code 1985, § 35-7)

Sec. 6-76-8. Inspections.

It shall be the duty of the health officer to cause inspections to be made on a recurring basis, at least quarterly, of all tattoo establishments and the equipment thereof. If any such place of business is not maintained, conducted or operated in conformity with the requirements of this chapter, as now enacted or as subsequently amended, the health officer may suspend or revoke the permit of the operator or artist until such tattoo establishment and the operation thereof is made to conform to the requirements of this chapter.
(Code 1985, § 35-8)

Sec. 6-76-9. Minors.

No tattoo operator or tattoo artist shall tattoo any person who is under the age of 18.
(Code 1985, § 35-9)

Sec. 6-76-10. Records required.

Records of each patron or customer shall be kept and maintained by the operator of each tattoo establishment, which records shall contain the name, address and the signature of each patron or customer. All records shall be available for inspection upon request of the health officer, or his or her duly authorized representative. Records shall be maintained for a minimum of two years.
(Code 1985, § 35-10)

Sec. 6-76-11. Removal of tattoo.

No tattoo operator or tattoo artist shall remove or attempt to remove any tattoo.
(Code 1985, § 35-11)

Sec. 6-76-12. Penalties.

Any person who shall operate a tattoo establishment or engage in the business of a tattoo operator or artist without first securing a health department permit therefor, when such permit previously issued has been revoked or suspended, shall, upon conviction, be subject to punishment as provided in section 1-24-1. The health officer shall revoke the permit of any person who shall be convicted on two separate occasions within a 24-month period of violating any of the provisions of this chapter.
(Code 1985, § 35-12)

ARTICLE 2. SHOP REQUIREMENTS

Sec. 6-76-13. Operating room facilities.

Each tattoo establishment shall have an operating room which shall be separate and apart from a waiting room, a public room or rooms that may be used for other than tattooing purposes. Patrons or customers shall be tattooed only in the operating room. The operating room shall be equipped with hot and cold running, potable water, together with such sinks and basins as may be necessary. Furniture and furnishings used within the operating room shall be constructed of such materials as to permit proper cleansing with hot or cold disinfecting solutions.
(Code 1985, § 35-21)

Sec. 6-76-14. Personal cleanliness of tattoo artists—Required equipment.

There shall be available within the tattoo establishment adequate hot and cold, potable running water, soap, germicidal solution, individual hand scrub brushes and fingernail files for each tattoo artist. Each tattoo artist shall scrub his or her hands and forearms with soap and water, using an individual hand brush, clean his or her fingernails with an individual file and thoroughly rinse his or her hands in a germicidal solution before working on each patron or customer. An individual disposable towel or napkin shall be used for drying the tattoo artist's hands and arms after rinsing. Each tattoo artist engaged in tattooing shall wear sterile surgical gloves and a clean gown or coat.
(Code 1985, § 35-22)

Sec. 6-76-15. Storage of tattooing equipment and materials.

Tattoo instruments and accessories, dyes, stencils and other materials used in tattooing that come into contact with the patron or customer shall be stored in closed cabinets which shall be maintained in a sanitary condition. Instruments used in tattooing shall be sterilized following use on an individual patron and prior to use on another individual.
(Code 1985, § 35-23)

Sec. 6-76-16. Floors, walls and ceilings.

The floor of the operating room of the tattoo establishment shall be constructed of impervious materials and shall be, at all times, maintained in a clean condition. The walls and ceilings of the operating room shall be of light color, shall be maintained in good repair without flaking or chipping and shall be of such materials as to permit cleaning.
(Code 1985, § 35-24)

Sec. 6-76-17. Disposal of waste materials.

The tattoo establishment shall have proper facilities for the disposal of soiled waste materials. Sufficient toilet, urinal and handwashing facilities as provided by the plumbing ordinance shall be accessible to customers, operators and artists within the tattoo establishment.
(Code 1985, § 35-25)

Sec. 6-76-18. Preparation of area to be tattooed.

When it is necessary to shave the area to be tattooed, a new blade for each patron shall be used when a safety razor is employed, and the permanent part of the razor shall be treated as hereinafter set forth for the care of the straight razor. If a straight razor is used, it shall be cleaned with soap and water, rinsed in clean water and then sterilized for 15 minutes, at 15 pounds pressure at 121 degrees Celsius or 250 degrees Fahrenheit in an autoclave, sterilizer or other equipment providing equal viricidal conditions as approved by the health officer. After shaving the area to be tattooed, or if the area does not need to be shaved, the site of the tattoo shall be cleaned with soap and water, rinsed with clean water, and germicidal solution applied in a sanitary manner before the design is placed on the skin. Other sterile, individual towels or gauze shall be used in preparing the site to be tattooed, and properly disposed of after use on each patron.
(Code 1985, § 35-26)

Sec. 6-76-19. Stencil for transferring design.

The stencil for transferring the design to the skin shall be thoroughly cleaned and rinsed in a germicidal solution approved by the health officer following each use and shall be maintained in a clean, sanitary condition.
(Code 1985, § 35-27)

Sec. 6-76-20. Tattooing procedures.

A sterile set of needles shall be used for each patron or customer. Needles used in tattooing shall be sterilized by holding for 15 minutes, at 15 pounds pressure at 121 degrees Celsius or 250 degrees Fahrenheit in an autoclave, sterilizer or other equipment providing equal

viricidal conditions, as approved by the health officer, after each use and, if not immediately used, stored in sterile containers. The open end of the needle tube of the tattooing machine shall be cleaned and sterilized in a similar method after use. Excess dye applied to the skin shall be removed with individual sterile gauze pads or sterile cotton only. The area tattooed shall then be allowed to dry and the entire site covered with a piece of sterile gauze, covered with a piece of tissue, and fastened with adhesive.
(Code 1985, § 35-28)

Sec. 6-76-21. Instructions to patrons or customers as to care of skin after tattooing.

After each tattooing, written instructions, approved by the health officer, shall be given to each patron or customer on the care of the skin of the tattooed site to prevent infection. A copy of these instructions shall also be posed in a conspicuous place in the tattoo establishment, clearly visible to the person being tattooed.
(Code 1985, § 35-29)

Sec. 6-76-22. Sterilizing device required.

Each tattoo establishment shall be equipped with a sterilizing device approved by the health officer.
(Code 1985, § 35-30)

CHAPTER 6-80. TAXICABS

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Sec. 6-80-1. Definitions.

Article 2. Terminals and Routing

Sec. 6-80-2. Approval of terminals.
Sec. 6-80-3. Taxicab stands—Use by other vehicles prohibited.

Article 3. Powers of Director of Police Services and Inspections

Sec. 6-80-4. Rules and regulations of the director of police services relative to vehicles for hire.
Sec. 6-80-5. Director of police services—Powers—Appeal of decisions.
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Article 4. Certificate of Public Convenience and Necessity

Sec. 6-80-7. Required—Exceptions.
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Sec. 6-80-11. Certificate issued to owner only.
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Sec. 6-80-14. Book and accounting records of certificate holder.
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ARTICLE 1. DEFINITIONS

Sec. 6-80-1. Definitions.

The following words and phrases, when used in this chapter, shall have the meaning as set out herein:

Building official means building department official, code enforcement official or land use control official or the designee thereof.

Certificate means a certificate of public convenience and necessity issued by the director of police services authorizing the holder hereof to conduct a passenger vehicle for hire business in the city.

Director of police services means the director of police services of the city, or his or her authorized designee.

Driver shall be held to include every person in actual charge of the operation of a vehicle for hire.

Driver's permit means the permission granted by the director of police services to a person to drive a passenger vehicle for hire upon the streets of the city.

For hire means agreement to transport a person or persons for a fare.

Holder means a person to whom a certificate of public convenience and necessity has been issued.

Manifest means a daily record prepared by a driver of a passenger vehicle for hire of all trips made by the driver showing time and place of origin, destination, number of passengers and the amount of fare of each trip.

Meter means an instrument or device attached to a passenger vehicle for hire which measures mechanically the distance driven and the waiting time upon which the fare is based.

Owner means a person who holds the legal title of the taxicab or, in the event the vehicle is the subject of an agreement for the conditional sale or lease thereof with the right of purchase upon conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee, then such conditional vendee or lessee shall be deemed the owner.

Passenger vehicle for hire means a passenger vehicle used to provide transportation for passengers for a fare.

Passenger vehicle for hire stand is a place where the city engineer in concert with director of police services has authorized a holder of a certificate of public convenience and necessity to pare passenger vehicles for hire out of service awaiting a passenger.

Permit/license inspector is a Memphis police officer authorized and instructed to watch and observe the conduct of holders of certificates of public convenience and necessity and drivers operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector(s) shall take appropriate action.

Person includes an individual, a corporation or other legal entity, a partnership, or any unincorporated association. Such person must be a resident of the State of Tennessee or member of a corporation recognized in Tennessee.

Rate card means a card issued by the division of police services for display in each taxicab which contains the current rates of fare.

Sticker means the identifying sticker issued by the Memphis police department, on authority of director of police services, to be displayed in center top of back windshield of vehicles for hire with same issued annually with certificate of convenience and necessity.

Taxicab means any motor vehicle, except a limousine or sedan designed or constructed with a meter and to accommodate passengers, not more than nine in number, exclusive of the driver, and which transports passengers

for hire, the principal operation of which is confined to the area within the corporate limits of the city and suburban territory adjacent thereto, and not operated on a fixed route or schedule.

Terminal means any building or garage where passenger vehicle for hire trips begin or terminate or the building or land where passenger vehicles for hire are dispatched, parked, serviced or repaired.

Waiting time means the time consumed when a metered vehicle is not in motion or moving at a rate of less than ten miles per hour.
(Code 1985, § 39-1; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

ARTICLE 2. TERMINALS AND ROUTING

Sec. 6-80-2. Approval of terminals.

A. No terminal shall be located within the corporate limits of the city without making application for such location to and receiving the express approval of the building official. If the applicant for the terminal has applied for a certificate of public convenience and necessity under this chapter, the director of police services shall forward the application to the building official.

B. Before the granting of any permit of use and occupancy or any permits for building, remodeling or repairing any property as a terminal, plans showing the location of the terminal, the construction, remodeling or repairing of buildings, if any, the number of schedules to be operated, the location of the repair shop, and the routing of passenger vehicles for hire into and out of such terminal and the general plan of operation shall be submitted to the building official for investigation and approval. If a special zoning permit is required, the building official shall make the necessary referrals.

C. Before granting approval for the location and structure of any terminal, the building official shall refer to all data, together with any comment, suggestion or report made, to the city engineer and the directors of police services and fire services. Upon receipt of any such data or report from the building official, the city engineer and the directors of police services and fire services shall investigate the routing of the passenger vehicles for hire over the streets of the city and into and out of the terminal and make their report to the building official and director of police services.

D. Upon receipt of the report of the city engineer and the directors of police services and fire services, if such report approves the routing, as submitted or as modified, and if the plan, as submitted or as modified, meets with the approval of the building official and does not require a special zoning permit, such official shall approve the issuance of permit or permits authorizing the location, operation or construction of such terminal. A copy of such approval shall be forwarded to the director of police services. If a special permit is approved, such approval shall be forwarded to the director of police services. No provision in this section shall limit or override any present or future provisions of the zoning or building code ordinances, including the need for special permits.

E. If the terminal location and plan, as originally submitted or as modified by the reports of the city engineers and the directors of police services and fire services, does not meet the approval of the building official or if the plan as submitted is not approved by the city engineer, the directors of police and/or fire services and the city engineer or director so reports to the building official, the building official shall then refuse his or her approval of the location and plan of the terminal. A copy of the disapproval and the reasons therefor shall be forwarded to the director of police services. If a special permit is denied, a copy of this denial shall be forwarded to the director of police services.
(Code 1985, § 39-2; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-3. Taxicab stands—Use by other vehicles prohibited.

A. Private or other vehicles for hire shall not at any time occupy the spaces upon the streets that have been established as taxicab stands.

B. Taxicab stands shall be designated by the city engineer in concert with the director of police services, except for stands located at the Memphis International Airport. If, in the judgment of the city engineer the establishment of a taxicab stand will not interfere with nor present a hazard to the traffic on the street where such stand is sought to be established, the city engineer shall erect or cause to be erected the necessary standard official signs and markings to designate the stand. The city engineer shall forward a copy of his or her approval of the stand(s) to the director of police services.

C. A holder of a certificate of convenience and necessity may request additional stands through the permit office of the Memphis Police Department or the

city engineer. It is unlawful for any person to remove, alter or deface any sign or other marking so installed. Additional markings on said standards shall be approved by the city engineer.

D. Taxicab stands are to be available for the use of all licensed taxicabs operating within the city on the basis of the driver of the first taxicab arriving at a vacant stand having the right to occupy such stand; however, the director of police services may designate certain stands for a particular class of vehicles for hire only such as taxicab, horse-drawn carriage, etc. It is expressly provided that passengers may select any passenger vehicle for hire at such stands regardless of the passenger vehicle's position in the line at such stand and that no single permit holder may monopolize any stand consisting of space for more than one vehicle.

E. While in service, the operator of a taxicab shall not stand or park the vehicle upon any street other than at a designated taxicab stand. This provision shall not prevent the operator of a passenger vehicle for hire from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers or packages or the delivery of packages. While parking for this designated purpose upon a metered space, the driver shall pay the appropriate fee.
(Code 1985, § 39-3; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 3. POWERS OF DIRECTOR OF POLICE SERVICES AND INSPECTIONS

Sec. 6-80-4. Rules and regulations of the director of police services relative to vehicles for hire.

The director of police services is authorized and directed to make and enforce such additional rules and regulations, not in conflict with the provisions of this chapter, as the director may deem proper to regulate the operation of passenger vehicles for hire under a certificate issued pursuant to this chapter, provided that no regulation shall be made or enforced in conflict with this chapter or any other city ordinance.
(Code 1985, § 39-4; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-5. Director of police services—Powers—Appeal of decisions.

A. The director of police services is vested with full and complete authority to issue, alter, deny, suspend or revoke certificates of public convenience and necessity and permits for drivers, as herein provided and is further vested with the full and complete authority, duty and responsibility to carry into effect the provisions of this chapter. The director of police services may designate an officer to render rulings or take all other actions herein granted to the director, as indicated by the director.

B. The director or the director's designee shall conduct hearings on those matters requiring same. Decisions of the designee may be appealed by the applicant, the certificate holder, or driver within ten days after the decision affecting the person, by filing a written appeal with the director of police services. The director may rule after a review of the record or may set a hearing as soon as practicable. Ten days' notice of a public hearing stating the time and place of the public hearing and the express terms or an informative summary of the subject matter of the public hearing provided for herein shall be given by publication in some newspaper published in the city, the cost thereof to be paid by the applicant or certificate holder.

C. An applicant, driver or certificate holder aggrieved by any final order or determination of the director in regard to the issuance, denial, suspension or revocation of that person's certificate or permit under this chapter may within ten days after such denial, file with the comptroller a petition for review of the action of the director in denying the application, and shall then be the duty of the city council to hold a public hearing and either grant or deny the application. In all such cases any interested party or holder of a certificate of necessity and convenience shall have a right to be heard; provided, further, that, in any such appeal to the city council, the decision of the director of police services shall be prima facie correct.
(Code 1985, § 39-5; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-6. Duty of vehicle for hire inspectors to enforce chapter.

The director of police services and/or his or her designees of the city are authorized and are instructed to monitor conduct of holders of certificates of public convenience and necessity and drivers operating under this chapter. Upon discovering violation of the provisions

of this chapter, the designees shall take appropriate action. Any vehicle for hire may be inspected at the discretion of the director of police services and/or his or her designee at any time or location. Vehicles may be inspected for cosmetics, safety requirements, meter seals, and to include permits and licenses required to be held by the driver or any other inspection deemed necessary by the director of police services and/or his or her designee. (Code 1985, § 39-6; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 4. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 6-80-7. Required—Exceptions.

A. No person shall operate or permit a passenger vehicle owned or controlled by him or her to transport persons for compensation upon the streets of the city without first having obtained a certificate of public convenience and necessity from the director of police services.

B. This section shall not apply to passenger vehicles for hire operated under the jurisdiction of the public service commission of the state, or otherwise exempted. (Code 1985, § 39-7; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-8. Application for certificate.

A. Any person, partnership or corporation desiring to secure a certificate of public convenience and necessity shall make application to the permit office and pay a $200.00 application fee. The notarized application shall be filed with and dated by the Memphis Police Department.

B. The application for a certificate shall be upon a form provided by the Memphis Police Department. An applicant for a certificate, including any partner or limited partner of the partnership applicant, and any officer or director of the corporate applicant and any stockholder holding more than five percent of the stock of a corporate applicant, or any other person who is interested directly in the ownership or operation of the business, shall furnish the following information:

1. Name and address, including all aliases;
2. Written proof that the individual is at least 21 years of age;
3. All residential addresses of the applicant for the past five years;
4. The trade name under which the applicant proposes to do business;
5. The business, occupation or employment of the applicant for five years immediately preceding the date of the application;
6. The financial status of the applicant, including the amounts of all unpaid judgments against the applicant or if a corporation, against any officer, director or shareholder as listed above or, if a partnership, any partner or limited partner, or any other person who is interested directly in the ownership or operation of the business;
7. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, except minor traffic violations;
8. Fingerprints and two color portrait photographs at least two inches by two inches of the applicant;
9. The address of the premises from which the vehicle for hire business is to be conducted and the address wherein the vehicles are to be stored and/or serviced;
10. If the applicant is a corporation, the name of the corporation and the date and state of incorporation, the name and address of the registered agent, and the names and addresses of all shareholders, as required above, officers and directors of the corporation;
11. The experience and/or the qualifications of the applicant to operate a transportation of passenger service;
12. A showing that the public convenience and necessity requires the granting of the certificate;
13. The number of vehicles to be put into service at the time of application, the location of proposed stands and terminals, and the class and seating capacity of each vehicle;
14. The color scheme and insignia to be used to design the vehicle or vehicles of the applicant;
15. Whether applicant operates any other vehicles under this chapter;
16. A statement by the applicant that he or she is familiar with the provisions of this chapter and is in compliance with them;

17. A statement by applicant that he or she will be obligated to serve all sections of Memphis;

18. A business plan shall be included in the application package.

C. Within ten days, or a reasonable time thereafter of receiving the results of the investigation conducted by the division of police services, the director of police services shall fix a time and a place for a public hearing on the application and notice shall be given as provided in section 6-80-5(B). All documents relative to the public hearing shall be available for inspection prior to the hearing. Any interested person may file a statement in support of or in opposition to the issuance of a certificate, and/or may offer testimony at the hearing.

D. Failure or refusal of the applicant to give any information relevant to the investigation of the application or the applicant's refusal or failure to appear at any reasonable time and place for examination under oath regarding the application or the applicant's refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that the applicant is ineligible for such license and shall be grounds for denial thereof by the director.

E. In addition to other requirements provided in this chapter, a new applicant for a certificate also making application for a hire vehicle driver permit, to operate a for hire vehicle, must have a certificate that the applicant has satisfactorily completed a training course approved by the city police department relative to the operation of the for hire vehicle in the city. This certificate is to be submitted with application for a for hire vehicle driver's permit.
(Code 1985, § 39-8; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

Sec. 6-80-9. Standards for issuance of certificate.

The director of police services may issue a certificate of public convenience and necessity if an applicant meets the following standards:

A. The applicant's financial status shall be such that the applicant shall be capable of operating the taxicab or passenger vehicle for hire service during the time the certificate shall remain in effect.

B. The applicant has demonstrated clear and convincing evidence that the public convenience and necessity requires the granting of a certificate. Among the factors to be considered are:

1. The support of potential customers of the service;

2. The uniqueness of the services offered, if possible;

3. The service would not disrupt local traffic conditions.

C. The applicant shall present a distinct color scheme and an insignia to designate the vehicle(s) of the applicant.

D. If the applicant is an individual:

1. The applicant shall be at least 21 years of age.

2. The applicant shall not have outstanding unpaid final judgments.

3. The applicant shall not have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. The applicant shall not have been found to have violated this chapter within five years immediately preceding the date of application.

E. If the applicant is a corporation:

1. All officers and directors shall be at least 21 years of age.

2. No officer, director or stockholder required to be named under section 6-80-8 shall have outstanding unpaid final judgments.

3. No officer, director or stockholder required to be named under section 6-80-8 shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, assig-

nation, prostitution, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

4. No officer, director or stockholder required to be named under section 6-80-8 shall have been found to have violated this chapter within five years immediately preceding the date of application.

F. If the applicant is a partnership, joint venture or any other type of organization where two or more persons have a financial interest:

1. All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least 21 years of age.

2. The managing partner or manager shall have experience in the operation of a transportation business or in related endeavors.

3. No person having a financial interest in the partnership, joint venture or other type of organization shall have outstanding unpaid final judgments.

4. No persons having a financial interest in the partnership, joint venture or other type of organization shall have been convicted of, forfeited bond or pleaded nolo contendere to a felony or any crime of moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of the application.

5. No person having a financial interest in the partnership, joint venture or other type of organization shall have been found to have violated this chapter within five years immediately preceding the date of the application.

(Code 1985, § 39-9; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-10. Insurance.

A. No certificate of public convenience and necessity shall be issued unless the applicant provides to the city treasurer proof of financial responsibility by either a written policy of liability insurance coverage as provided in subsections (A)(1) or (3) of this section, or a self-insurance certificate as provided in subsection (A)(2) of this section. The liability insurance coverage limits as provided in subsections (A)(1) and (2) of this section are the same as that provided by the Tennessee Financial Responsibility Law of 1977, as amended, T.C.A. § 55-12-101 et seq., generally and in particular T.C.A. §§ 55-12-102 and 55-12-111, and shall be automatically increased as of January 1, 1990, as provided by the state statute, and thereafter as the statute is amended.

1. A written policy of liability insurance coverage issued by an insurance carrier duly authorized to do business in the state, covering separately, or in a schedule attached to such policy, each passenger vehicle for hire to be operated under the direction of such applicant, for taxicabs shall be provided by a single-limit policy with a limit of not less than $50,000.00 applicable to one accident or split-limit policy with a limit of not less than $20,000.00 for bodily injury to or death of one person, not less than $40,000.00 for bodily injury or death to two or more persons in any one accident, and not less than $10,000.00 for damage to property in any one accident.

2. A self-insurance certificate issued by the state commissioner of the department of safety, for which documentation from the commissioner shall also be filed with the city treasurer.

3. A written policy of liability insurance coverage issued by an insurance carrier duly authorized to do business in the state, covering separately or in a schedule attached to each policy, each passenger vehicle having a capacity of more than five persons including the driver, shall be provided by a policy with limits of at least $5,000.00 more per each seat capacity beyond five than the minimum single-limit or split-limit requirement for taxicabs, as provided herein, for injuries or death of more than one person in any one accident.

a. A self-insured retention or deductible funding, whether or not in conjunction with automobile liability insurance for taxicabs which achieves the substantial equivalent of the liability insurance set forth in subsection (A)(1) of this section. The

applicant or certificate holder shall file a statement of compliance providing that the certificate holder or applicant shall pay within 30 days any final judgment of a court for damages on account of bodily injury, death or property damages resulting from the ownership or negligent use or operation of a taxicab subject to the single-limit liability of subsection (A)(1) of this section and shall deposit collateral for the faithful performance of the statement in a restricted account to insure the liability protection required in subsection (A)(1) of this section as follows: $20,000.00 to be deposited immediately in a commercial bank or other such depository with a branch office located in the city, three deposits of $20,000.00 each every 90 days thereafter, and then 12 deposits of $10,000.00 each every 90 days thereafter until a total amount of $200,000.00 is deposited. Documentation of the deposits shall be filed with the city treasurer. Within 30 days of any withdrawals, as provided for below, the fund shall be replenished to required funding level.

b. The certificate holder or applicant shall file with the city treasurer and the depository, wherein the certificate holder or applicant shall expressly agree that, if any court or the clerk thereof, shall certify to the city treasurer and to the depository that such certificate holder has failed to satisfy within 30 days any final judgment of the court upon which execution has been lawfully issued for damages in a single accident on account of bodily injury, death or property damage resulting from the ownership or negligent use or operation of any taxicab of such certificate holder, such cash or government obligations so deposited shall, to the extent of no more than $50,000.00, be applied by the depository upon the written order of the city treasurer, to the satisfaction of the judgment; and agreeing that, for that purpose, any government obligations so deposited may be sold and converted into cash by the depository at its market price, and that any cash excess from the proceeds of such sale shall remain with the depository as collateral security aforesaid. Nothing herein shall affect the right of the general public to recover damages in excess of the limits stated herein from a source other than the restricted fund. The certificate holder shall reimburse the fund for such judgment so that the fund shall be brought to the required level within 30 days of the withdrawal by the city treasurer. The certificate holder shall not encumber the fund nor shall the fund be encumbered or moneys withdrawn from the fund except as provided herein.

c. The certificate holder shall report claims activities on a quarterly basis to the city treasurer, including the following information per claim: the name(s) and addresses of the claimant(s), the date and location of the accident(s), the name(s) of the taxicab driver(s) involved, and the amount and current status of the claim. Records of the claims maintained by the certificate holder shall be made available for inspection by the city treasurer or his or her representative during regular business hours in the office of the certificate holder for a period of one year of the final disposition of each claim.

d. It is unlawful for a permit holder, or anyone acting on his or her behalf, to commit or perform any of the following in handling of claims:

   i. Misrepresent insurance policy provisions relating to coverage at issue;

   ii. Fail to acknowledge and act reasonably promptly, considering all the circumstances, upon written or oral communications with respect to claims;

   iii. Fail to adopt and implement reasonable standards for the prompt investigation of claims.

e. So long as a depository has received no written notice of default by a certificate holder in the faithful performance of this statement of compliance referred to in

subsection (A)(3)(a) of this section, such certificate holder shall be entitled to receive, and the depository shall pay to him or her, if, as and when collected by it, all interest from time to time accruing upon any cash or government obligations deposited as herein provided. All charges made by the depository for such account shall be paid by the certificate holder.

f. In case a certificate holder, after making a deposit of cash or government obligations as provided in subsection (A)(3)(a) of this section shall discontinue the operation of taxicabs or in the event he or she shall, with the consent of the city treasurer, substitute in lieu of such agreement a policy of liability insurance in accordance with subsection A of this section, the certificate holder shall continue to maintain the deposit at the required level for such period of time as shall equal the then applicable statute of limitation for the filing of claims by adult claimants for damages covered by subsection A of this section at which time an appraisal shall be made by the city treasurer and the certificate holder of all outstanding and unpaid claims pending against such person; and a sufficient amount of such cash or government obligations so deposited shall be retained by the depository as, in the reasonable discretion of the city treasurer, shall be reasonably sufficient to guarantee payment of such claims. The balance of such deposit shall thereupon be returned to the person making such deposit by the depository, upon the order of the city treasurer; and thereafter the balance of such fund shall, from time to time as claims are reduced, be returned by the depository to the person making such deposit on the order of the city treasurer, in the proportion to the amount that it shall be shown to the city treasurer that such claims have been paid or satisfied, or have been reduced, dropped or abandoned. In case of dispute over such appraisal between the person making such deposit and the city treasurer, the dispute shall be settled by the chief administrative officer or his or her designee, and the decision of same shall be final and binding upon the parties.

g. Failure by the certificate holder to fully comply with all the provisions of subsection (A)(3) of this section shall result in the immediate suspension of the affected certificate of public convenience and necessity and notification of a revocation hearing.

B. Any insurance policy issued pursuant to this section shall further provide that the insolvency or bankruptcy of the insured shall not relieve the company from the payment of damages for injuries or death sustained or loss occasioned within the provisions of the policy and that the prepayment of any judgment that may be recovered against the insured upon any claim covered by such policy shall not be a condition precedent to any right of action against the company upon the policy, but that the company shall be bound to the extent of its liability under the policy and shall pay and satisfy such judgment, and that action may be maintained upon such judgment by the injured person or his or her heirs or personal representatives, as the case may be, to enforce the liability of the company as therein set forth.

C. Any insurance policy issued pursuant to this section shall further provide that the same may not be canceled or not renewed without at least 30 days' written notice to be sent by registered or certified mail, return receipt requested, to the city treasurer except that cancellation for nonpayment of premium shall require no more than ten days, properly mailed, written notice of cancellation.

D. If the certificate holder fails to fully and timely comply with all the provisions of subsection (A)(3) of this section, the certificate of public convenience and necessity affected by such fund shall fail within the period specified in such notice of cancellation or nonrenewal of a liability insurance policy or self-insurance certificate to provide a policy or self-insurance certificate meeting the requirements of this section on or before the date of cancellation or nonrenewal, then the certificate of public convenience and necessity affected by such cancellation or nonrenewal shall be immediately suspended. Any such suspended certificate of public convenience and necessity may be revoked after a public hearing to be held following ten days' written notice, sent registered or certified mail, return receipt requested, the

date of post and the date of cancellation, nonrenewal, or the date the subsection (A)(3) of this section fund falls below the level provided for in subsection (A)(3)(a) of this section being day one, upon the finding that the policy or self-insurance certificate has not been provided or the subsection (A)(3) of this section fund has not been properly funded. The suspended certificate of public convenience and necessity may be reinstated by the city treasurer before the hearing or at the hearing, upon compliance in full with the provisions of this section, so long as no other cause for suspension or revocation exists. An application for a certificate of public convenience and necessity, after revocation, shall be treated as an initial application.

E. No passenger vehicles for hire shall be operated upon the suspension or revocation of a certificate of public convenience and necessity.
(Code 1985, § 39-10; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-11. Certificate issued to owner only.

No certificate shall be granted under this chapter to any person unless the person is the owner of the vehicle(s) to be operated as a passenger vehicle(s) for hire. At the time of the issuance of the certificate, the certificate applicant shall deposit with the city treasurer a copy of a title issued by the State of Tennessee for each vehicle to be operated as a passenger vehicle for hire. Copies of renewal forms of licensing through the State of Tennessee must be kept and maintained by the certificate holder and shall be available upon request to the city treasurer at any time without notice.
(Code 1985, § 39-11; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-12. Fee.

When a certificate is issued, and at each authorized renewal thereof, a fee for each vehicle in use shall be paid to the city treasurer to defray the cost of administration of this chapter. The fee shall be as follows:

A. For 2003, $95.00;

B. For 2004, $110.00;

C. For 2005 and all years thereafter, $125.00.

For any certificate issued or amended after July 1 of any year, the fee shall be half the annual fee for each vehicle in use.
(Code 1985, § 39-12; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-80-13. Passenger vehicle for hire services.

A. All persons engaged in the taxicab business in the city operating under the provisions of this chapter shall render service to the public desiring to use passenger vehicles for hire. Holders of certificates of public convenience and necessity shall maintain a fixed place of business and a publicly known telephone number. Holders of certificates to operate taxicabs shall keep the same open 24 hours a day for the purpose of receiving calls and dispatching taxicabs. The holders of certificates to operate taxicabs shall answer all calls received by them for services inside the corporate limits of the city as soon as they can do so and if the services cannot be rendered within a reasonable amount of time, they shall then notify the prospective passengers how long it will be before the call can be answered and give the reason thereof. No holder of certificates to operate taxicabs shall refuse to accept a call anywhere in the corporate limits of the city at any time when such holder has available taxis. All other holders of certificates shall fully comply with scope of service described in their certificates.

B. Except when carrying passengers, answering calls, going to or from officially designated taxicab stands, or attending the lawful business of the certificate holder other than carrying of passengers for hire, taxicabs shall be kept off the streets of the city; provided that they may occupy officially designated taxicab stands approved under the provisions of section 6-80-3.
(Code 1985, § 39-13; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-14. Book and accounting records of certificate holder.

Books, records and statistics shall be kept and maintained by the certificate holder for a period of seven years and a semi-annual comprehensive statement of profit and loss and a balance sheet and copies of same shall be available upon request to the director of police services at any time without notice.
(Code 1985, § 39-14; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-15. Telephone records.

The director of police services shall require that each taxicab company keep a record of each telephone call received requesting such taxicab services. The record must be kept for a period of not less than 12 months and will be subject to open inspection by the director of police services, the passenger vehicle for hire inspectors, or the division of police services on demand.
(Code 1985, § 39-15; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-16. Business to be conducted by certificate holder—Agreements with drivers.

The business of every passenger vehicle for hire shall be carried on by the person to whom the certificate is issued under this chapter. The holder of the certificate may enter into agreements with drivers fixing percentages of receipts to be turned over to the holder of the certificate for the daily use of such vehicles, paying salaries to drivers, or drivers may rent the passenger vehicle for hire for a specific sum on money. A driver may be the conditional buyer or lessee of a vehicle as long as the certificate holder is the owner as defined in section 6-80-1. Any arrangement contracted between the holder of a certificate and the driver shall not relieve the holder of the certificate from any liability and damages to third parties. A sample copy of all such agreements shall be kept on file with the director of police services.
(Code 1985, § 39-16; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-17. Increase in number of vehicles after issuance—Enlargement of authority.

A certificate holder shall not increase the number of vehicles operated pursuant to the certificate without receiving the approval of the director of police services or the director's designee. The director of police services or the director's designee shall approve or disapprove such request on the basis of economic need of the certificate holder, need of public for additional service, and other factors listed in section 6-80-9(B). If the request is denied, the director or the director's designee shall advise the certificate holder in writing of the reasons for such action. If the certificate holder requests a hearing within ten days of receipt of notification of denial, a public hearing shall be held as provided in section 6-80-5.
(Code 1985, § 39-17; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-18. Replacement of vehicles.

A. In case any vehicle covered by a certificate is retired by the owner because it is worn out or so damaged as not to be worthy of repair, or is burned or otherwise destroyed, the certificate holder shall deposit with the city treasurer a copy of the title of the substitute vehicle. Copies of renewal forms of licensing through the State of Tennessee must be kept and maintained by the certificate holder and shall be available upon request to the city treasurer at any time without notice.

B. The certificate holder must, if vehicles are discarded, sold, returned or otherwise disposed of, give notice to the city treasurer of such action whether or not the vehicle is replaced and return identification sticker to city treasurer.
(Code 1985, § 39-18; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-19. Accident reports.

Reports of accidents in which a taxicab or any passenger vehicles for hire may be involved shall be promptly made to the police services division in accordance with the provisions of chapters 2-28 through 2-34. The certificate holder and the driver shall each have responsibility for filing a copy of the report with the director of police services. Upon the happening of any accident or collision, the certificate holder shall forthwith have the taxicab or passenger vehicle for hire involved therein taken to the garage or repair shop of the certificate holder or to some reputable repair shop.
(Code 1985, § 39-19; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-20. Manifests.

It shall be the duty of every certificate holder operating taxicabs to furnish regularly to the driver an adequate number of printed manifests which shall contain the name of the driver of the taxicab, the license number and the date the sheet shall be completed by the driver at the time of the event, showing the time and place at which any passenger or passengers engaged the taxicabs, the number of such passengers, the time and place at which such passengers were delivered to their destination, and the amount of the fare received by the driver. Recording of odometer is required at beginning/end of each trip on manifest by the taxicab driver.
(Code 1985, § 39-20; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-21. Assignment or transfer of certificate.

No certificate of public convenience and necessity may be sold, assigned, mortgaged, transferred or alienated.
(Code 1985, § 39-21; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-22. Expiration and renewal of the certificate.

A certificate issued under this chapter shall expire December 31 of each year at midnight and shall be renewed at the existing level of vehicles as long as the standards for the initial issuance are met. Applications for renewals shall be made by December 10 of each year, by which time all fees for the succeeding year shall have been paid. If the request for renewal is denied, the director or the director's designee shall advise the applicant in writing of the reasons for such denial. If the applicant requests a hearing within ten days of notification of denial, a public hearing shall be held as provided in section 6-80-5(B).
(Code 1985, § 39-22; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-23. Fines, suspension and revocation of certificate.

A. A certificate issued under the provisions of this chapter may be suspended or revoked by the director of police services or the director's designee after a public hearing, except as provided in section 6-80-10. Notice, public access to documents, and conduct of hearing shall conform with the provisions of section 6-80-5(B), except that written notice shall be sent by registered U.S. mail to the subject certificate holder by the date of publication.

B. A certificate issued under the provisions of this chapter may be subject to a penalty fine of no more than $50.00, suspension or revocation by the director of police services or the director's designee upon findings at the public hearing that the holder of the certificate:

1. Has violated any provisions of this chapter;

2. Has discontinued operation for more than 30 days;

3. Would no longer be eligible for issuance of the certificate.

C. A certificate holder shall have the right to appeal the ruling of the director or the director's designee revoking or suspending the certificate in the same manner as provided for appeals of the decision under section 6-80-5(B).
(Code 1985, § 39-23; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4941, 5-7-2002)

ARTICLE 5. DRIVERS AND CONDUCTORS

Sec. 6-80-24. Vehicle drivers.

No person shall operate a taxicab or vehicle for hire upon the streets of the city, and no certificate holder who owns or controls a taxicab or vehicle for hire shall permit it to be so driven, and no passenger vehicle licensed by the city shall be so driven at any time for hire, unless the driver of the vehicle for hire shall have first obtained and shall have a current and properly updated passenger vehicle for hire driver's permit which has been approved by the city treasurer and issued by the city treasurer, or his or her designee.
(Code 1985, § 39-24; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 9, 8-15-1995)

Sec. 6-80-25. Application for a driver's permit.

A. Permits required by this article shall be applied for, in person and in writing, on such forms as the city treasurer may prescribe, which forms shall show:

1. The applicant has obtained a class D license with "For Hire" endorsement pursuant to the provisions of T.C.A. chapter 7, title 59;

2. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations;

3. Such other information as the city treasurer may require.

B. Such application shall be accompanied by:

1. A statement form, provided by a physician licensed to practice in the State of Tennessee, dated within 30 days of the application, indicating the length of time which the physician has treated the applicant, showing the applicant is not disabled by reason of defect of sight, hearing, body or limb from safely operating a motor

vehicle and indicating any and all physical and mental conditions for which treatment has been rendered within the last year and for which treatment continues to be rendered;

2. Statements of at least three reputable persons, residents of the city, personally acquainted with the applicant who will state their knowledge of the good reputation, honesty and general good character of the applicant; and

3. A statement from a holder of a certificate of public convenience and necessity indicating that the applicant shall be affiliated with the certificate holder upon issuance of the permit.

C. Permits shall remain the property of the city treasurer, and may be canceled, revoked or suspended at any time and will be surrendered on demand.
(Code 1985, § 39-25; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-80-26. Applicant to fill out identification questionnaire and be fingerprinted.

Each applicant applying for a permit shall appear before the city treasurer, or his or her designee, to complete an identification questionnaire on a form to be provided, and be fingerprinted.
(Code 1985, § 39-26; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 10, 8-15-1995)

Sec. 6-80-27. Investigation—Issuance—Not to issue to certain persons.

A. Before issuing a permit under this article, the city treasurer or the city treasurer's designee shall investigate the facts set out in the application and shall not grant such permit to any person who, in the opinion of the city treasurer, after investigation, is not physically or morally fit to drive or operate a vehicle for hire in the city.

B. No driver's permit shall be issued to any applicant who has been convicted of, forfeited bail or pleaded nolo contendere to a felony or any crime involving moral turpitude as defined in T.C.A. § 57-4-203(h)(2), a controlled substance, prostitution, assignation, obscenity or any crime of a sexual nature in any jurisdiction, or been an inmate of reform school or penitentiary as a result of a conviction for a felony, within five years prior to his or her application for such permit.

C. The city treasurer may refuse to issue a permit to any applicant whose police record shows conviction for public drunkenness, driving under the influence of intoxicants, repeated moving traffic violations, or any other good and just cause which, in the opinion of the city treasurer, would be inimical to the public health, safety or morals.

D. No permit shall be issued unless the applicant is at least 21 years of age.

E. It shall be the duty of the city treasurer to issue a permit to any person applying therefor, showing compliance with the provisions of this chapter.
(Code 1985, § 39-27; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-28. Defensive driving school and taxi safety/courtesy course required.

A. Every driver of a taxicab shall be required to attend and demonstrate successful completion of a defensive driving/taxi safety/courtesy course on the following schedule:

1. Existing drivers must complete the course within two years of the date of their next license renewal;

2. First-time drivers, within 60 days of initial permit issuance;

3. Prior to renewal for drivers with the following driving records:

   a. Involved in three nonchargable accidents within the permit year,

   b. Involved in two chargeable accidents or moving violations in the permit year,

   c. Involved in two unchangeable accidents and one chargeable accident or moving violation in the permit year.

B. The course shall be conducted by the city police department, or a certified instructor approved by the police department. All courses not provided by the police department shall be substantially equivalent to the police department course and approved by the permits office.
(Code 1985, § 39-27.1; Ord. No. 4941, 5-7-2002)

Sec. 6-80-29. Notification of arrest or indictment.

The holder of a driver's permit shall advise the city treasurer immediately of all charges, arrests and indict-

ments, including those for public drunkenness and driving under the influence of intoxicants. The city treasurer may suspend a driver's permit for five days prior to a hearing, pursuant to section 6-80-35, if driver is arrested, charged or indicted for any violation of city, state or federal laws. It shall also be the responsibility of the certificate holder with which the driver is affiliated to notify the city treasurer of the charges, arrests or indictments. Failure to do so may result in suspension or revocation of the permit and/or of the certificate.
(Code 1985, § 39-28; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-30. Notification of company change of driver.

At the time a permit is issued, the driver must register with the division of police services the name of the taxicab company, certificate holder, with which the driver intends to be affiliated, and the division of police services will have stamped on the permit the name of the taxicab company, certificate holder, specified by the driver. If at any time a driver wishes to change affiliations the driver must register the change with the city treasurer, and a fee of $3.00 will be charged to defray administrative cost. Failure to advise the city treasurer of any such changes may result in suspension or revocation of the permit. It shall be the responsibility of the holder of the certificate of public convenience and necessity to notify the city treasurer when affiliation with a driver is discontinued and any holder which allows a driver to operate a vehicle for hire without a proper and complete permit may have its certificate suspended or revoked.
(Code 1985, § 39-29; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-31. Fee.

Each applicant for a permit under the provisions of this article shall pay to the city treasurer, or his or her designee, a fee of $30.00 at the time of filing the application to cover the cost of processing. At the annual renewal of such permit, the applicant shall pay the sum of $30.00. To replace a lost, destroyed or stolen permit that is current, the fee shall be $15.00.
(Code 1985, § 39-30; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-32. Form, size, design and contents.

A permit issued under this chapter shall be in card form, of such size and design as may be prescribed by the city treasurer, which shall bear on its face a photograph of the driver, the number of the permit, the expiration date, the company with which the driver is affiliated and such other information as the city treasurer may require. The driver shall also have an identification badge, which must be accessible to the driver and in view of passengers at all times.
(Code 1985, § 39-31; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-80-33. Display of permit.

The original permit issued under this chapter containing a photograph and other data on the driver shall at all times be kept on display in the taxicab operated by such driver, to be read by the passenger, while such passenger vehicle for hire is under the direction or control of such driver.
(Code 1985, § 39-32; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-34. Expiration and renewal.

A. A permit issued under this provision shall expire at 12:00 midnight on the anniversary of the date of birth of the applicant. Every driver's permit in good standing will be renewable during the renewal period. The renewal period shall be from three months before until five working days after its expiration date. Renewal shall be made by application, as set forth below, and payment of the fee to the permit office, as required in section 6-80-31. At the end of the renewal period, the license shall become null and void. Failure to make timely application for renewal of the driver's permit will result in the assessing of a reinstatement fee of $15.00 per month, for up to three months from the expiration date, in addition to the renewal fee. After three months, a completed application for a new driver permit is required, including a new physical and required driver training within 90 days of its issuance.

B. If the driver wishes that his or her permit be renewed, he or she shall furnish, in person, to the city treasurer or his or her designee the following information:

1. An affidavit signed by the driver indicating no medical or physical disabilities were suffered during the previous year;
2. A statement from a holder of a certificate of public convenience and necessity indicating that the driver is a current driver for the certificate holder;

3. Evidence of successful completion of defensive driving and taxi courtesy/safety course, if needed.

C. Every three years, a driver shall submit, at the time of renewal, a certificate completed by a physician licensed in the State of Tennessee and including that physician's license number, indicating the length of time which the physician has treated the driver, showing the driver is not disabled by reason of defect of sight, hearing, body or limb from safely operating a motor vehicle and indicating any and all physical and mental conditions for which treatment has been rendered within the previous three years and those for which the driver continues to receive treatment.
(Code 1985, § 39-33; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-80-35. Fines, suspension and revocation of permit.

A. The city treasurer is given the authority to fine a penalty fee of no more than $50.00, to suspend or revoke any driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by the city treasurer.

B. The city treasurer shall notify a driver of the violations with which he or she is charged and his or her right to a hearing before the city treasurer or the city treasurer's designee, at which time the driver shall have an opportunity to present evidence; provided, however, that the city treasurer or the city treasurer's designee may suspend a permit for five working days prior to a hearing, with a hearing to be held within that period of time, if, in the judgment of the city treasurer or the city treasurer's designee, the public health and safety requires. At such hearing the city treasurer or the city treasurer's designee is authorized to further suspend or revoke a driver's permit.
(Code 1985, § 39-34; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 4941, 5-7-2002)

Sec. 6-80-36. Unauthorized use of permit—Defacing or removing permit.

A. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver for allowing any other person to use the permit granted to the driver, for the purpose of operating a taxicab, another type of passenger vehicle for hire, or for any other reason.

B. The city treasurer or the city treasurer's designee may suspend or revoke the permit of any driver who defaces, removes or obliterates any official entry made upon the permit.
(Code 1985, § 39-35; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-37. Prohibited manner of solicitation.

No taxicab driver shall solicit patronage in a loud or annoying tone of voice, or by sign, or in any manner annoying any person, or obstruct the movement of any person or follow any person for the purpose of soliciting patronage.
(Code 1985, § 39-36; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-38. Standards of appearance and conduct of drivers.

A. No driver shall engage in selling alcoholic beverages or any controlled substance, or solicit business from any house of ill repute nor may any person known to be of ill repute use his or her vehicle for any purpose other than the transporting of passengers except as provided for driver trainees.

B. Drivers shall not engage in abusive language, including but not limited, to cursing, verbal insults or derogatory comments in the presence of passengers, potential or engaged, or staff members of regulating authorities.

C. While on duty, drivers shall not be under the influence nor engage in the consumption of intoxicants, including but not limited to beer and other alcoholic beverages or controlled substances. Any driver charged with driving while intoxicated may have his or her permit immediately suspended as provided in section 6-80-35.

D. No driver shall participate in or be present during gaming activities.

E. Drivers must present an acceptable appearance, including clean, neat wearing apparel not in need of repair, no hats or other head dress except a brimmed chauffeur's cap or baseball cap with a brim of no more than four inches. No shirt may be worn open at the chest; all shirts must have a closable collar and shall bear no advertisement, symbol, fixture or saying other than company logo; no halter tops or tank shirts may be worn;

no shorts may be worn; and shoes must be worn at all times while serving the public; general appearance must be one of neatness and cleanliness.

F. All drivers must wear some form of identification of the company they represent. Examples include above chauffeur's/baseball cap, a company patch over the left breast pocket or shoulder, or jacket with company logo. (Code 1985, § 39-37; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-39. Drug screening.

A. Every driver holding a valid permit shall be subject to random drug screening as established in this section. This program shall require testing monthly of at least three percent taxi drivers, and three percent for carriage, and limousine and other drivers. Drivers shall be selected for drug and alcohol testing on a random basis, by using a scientifically valid random number generation method approved by the city. Upon selection, the permits office shall notify the certificate holder for whom the driver works. The certificate holder shall be responsible for notifying the driver. Once advised of the required test, a driver must take the test within 24 hours. The permits office will use testing locations already approved by the city.

B. The cost of the testing shall be borne by the certificate holder if the results are negative. If the results are positive, the cost of the test shall be borne by the driver tested. The results of all tests shall be immediately provided to the permits office.

C. Drivers will be subject to urine drug and breath alcohol testing. Drug testing will be for any illegal drug or substance including but not limited to amphetamines, cocaine or its derivatives, marijuana, opiates and phencyclidine (PCP). Illegal use includes use of any illegal drug, misuse of legally prescribed drugs, and use of illegally obtained prescription drugs. Breath alcohol testing will be considered positive at a 0.04 alcohol level or higher.

D. The use of a controlled substance is not prohibited, which is prescribed by a treating medical physician, if this physician makes a good faith judgement that use of the substance by the driver at the prescribed dosage level is consistent with the safe performance of the driver's duties. Drivers using a controlled substance prescribed by a treating physician must immediately notify the certificate holder that they are taking such medication. The certificate holder may request a doctor's certificate verifying the treatment. Abuse of a prescribed controlled substance is prohibited.

E. Any driver who refuses to comply with a request for testing, who provided false information in connection with a test, or who attempts to falsify tests results through tampering, contamination, adulteration or substitution shall have his or her permit revoked immediately. Refusal can include an inability to provide a specimen or breath sample without a valid medical examination, and a verbal declaration, obstructive behavior, or physical absence resulting in the inability to conduct the test.

F. Any driver who tests positive under the random testing procedure will be subject to the following:

1. Suspension of permit for one week;

2. Referral to an assessment by a substance abuse professional (SAP);

3. Return to work drug and alcohol tests at the end of the week;

4. Completing a return to work agreement outlining terms of return to work, including ongoing treatment and additional random testing for up to five years with a minimum of six tests that first year.

G. Any driver who has a second positive test under any testing circumstance within three years is subject to revocation.

H. No driver who has had a permit revoked for failing drug screening shall be eligible for a permit for six months following revocation. At the end of that period, any re-application must include evidence that the driver has undergone treatment for substance abuse and proof of a negative drug screen within one week of the application reinstatement.

I. A driver who fails a drug/alcohol test within three years of a first suspension shall have his or her permit revoked for two years. A third violation shall result in a permanent revocation.

J. 1. Testing shall be done on all drivers subject to a fitness for work evaluation when there are reasons to believe that drug or alcohol use is

adversely affecting job performance. The certificate holder and the permits office will make reasonable suspicion determinations.

2. Testing shall be done on all drivers involved in an accident that results in a fatality or injuries requiring immediate transportation to a medical facility or the driver receives citation by local law enforcement officers, or if one or more vehicle incurs disabling damage that requires towing, pushing, etc., from the site and driver receives a citation for a moving violation arising from the accident.

3. Following an accident, the driver will be tested as soon as possible, but not to exceed eight hours for alcohol testing and 32 hours for drug testing. Any driver involved in an accident must refrain from alcohol use for eight hours following the accident or until he or she undergoes a post accident alcohol test. Any employee who leaves the scene of the accident prior to the submission to the drug/alcohol test will be considered to have refused the test and subject to permit revocation.

K. Confidentiality will be maintained throughout the drug/alcohol testing process. The permits office will maintain results in the strictest confidence in a medical file separate from the official personnel file. In cases where disciplinary action results from positive test, such information shall be shared only with those in a supervisory capacity involved in that action.
(Code 1985, § 39-37.1; Ord. No. 4941, 5-7-2002)

Sec. 6-80-40. Receipt and discharge of passengers on sidewalk.

Drivers of taxicabs shall not receive or discharge passengers in the roadway, but shall pull to the extreme right-hand side of the road or to the sidewalk and then receive or discharge passengers, except upon one-way streets, where passengers may be discharged at either side of the roadway in the absence of a sidewalk.
(Code 1985, § 39-38; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-41. Total passengers in vehicle—Carrying passengers in front seat of taxicab.

A. No driver shall permit more persons to be carried in a taxicab as passengers than the seating capacity, as stated in the vehicle for hire definitions section 6-80-1. A child in arms shall not be counted as a passenger.

B. Not more than two paying passengers may be seated in the front seat or forward seat opposite the driver of the taxicab. Only paying passengers or trainee drivers may be seated on the front seat of any taxicab. The back seat of the taxicab must first be occupied before passengers are allowed to ride in the front seat.
(Code 1985, § 39-39; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-42. Consent required for a taxicab to pick up additional passengers.

No driver of a taxicab shall carry any person, other than the passenger(s) by whom he or she has been engaged, without the consent of the passenger.
(Code 1985, § 39-40; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-43. Drivers not to work more than 12 hours out of 24.

A. No driver shall work more than a maximum of 12 driving hours in the aggregate of any 24-hour period, and such driver shall not begin to drive until he or she has had at least eight consecutive hours of rest.

B. It is the duty of the certificate holder in conjunction with the driver to meet these requirements.
(Code 1985, § 39-41; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-44. Solicitation of passengers by drivers—Drivers to remain in or near vehicle.

No taxicab driver shall solicit passengers for a taxicab, except when sitting in the driver's seat of such taxicab or while standing immediately adjacent to the vehicle. The driver of any taxicab shall remain in the driver's seat or immediately adjacent to the vehicle at all times when such vehicle is upon public streets, provided further, that nothing herein contained shall be held to prohibit any driver from alighting to the street or sidewalk for the purpose of assisting passengers into or out of the vehicle.
(Code 1985, § 39-42; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 6. VEHICLES

Sec. 6-80-45. Equipment and maintenance.

A. Taxicabs must be licensed.

B. Prior to the use and operation of any taxicab under the provisions of this chapter the vehicle shall be thoroughly examined and inspected by the passenger

vehicle for hire inspectors and found to comply with this section's requirements. If, at any time, the taxicab is found by the inspectors not to comply with the following requirements, the taxicab shall not be allowed to be operated on the streets, alleys and public ways of the city until and unless the inspector finds the vehicle meets these requirements:

1. Every taxicab operating on the streets, alleys and public ways of the city shall at all times be equipped with:
    a. A power plant adequate to propel the same in full compliance with the ordinances of the city;
    b. All appliances required by title 11 of this Code, such as mufflers, service and emergency brakes, warning devices, lights and a rear vision mirror suitably installed in accordance with the provisions of such title;
    c. Interior lights providing at least two rated candle power for each interior seat space;
    d. Four doors;
    e. A handle, latch, or opening device attached to each door of the passenger compartment, so that such door may be opened by the passenger.
2. Every coach operating on the streets, alleys and public ways of the city shall at all times be equipped with all safety equipment and any other requirements in respect to safety as is required by the laws of the state or this code and all such regulations as may be issued by the director of police services.

C. The permit/license inspector may approve minivans.

(Code 1985, § 39-43; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-46. Television requirement.

No television set shall be installed or portable model television operated in any taxicab.

(Code 1985, § 39-44; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-47. Maintenance.

A. Every taxicab operated in the city shall be kept in a clean and sanitary condition and in such condition of repair as may be reasonably necessary to provide for the safety of the public and for continuation in satisfactory operation.

B. It is the joint responsibility of the certificate holder and of the driver to maintain the appearance and safety of the taxicab and equipment and failure to comply may result in the suspension or revocation of the certificate for public convenience and necessity and/or of the driver's permit.

1. Each taxicab shall be washed thoroughly and cleaned every 24 hours.
2. The interior will be cleaned periodically during the day as needed. The cleaning of the interior is to include the following:
    a. Ash trays emptied;
    b. Windows washed;
    c. Floors cleaned;
    d. Seats wiped clean;
    e. Attention given to any other areas requiring cleaning or maintenance.
3. The cleaning of the exterior of the vehicle shall include the trunk area for all taxicabs. In such vehicles, jacks, spare tires, and any other loose equipment housed in the trunk must be secured and covered with carpet or other appropriate covering.
4. It shall be the responsibility of the certificate holder to make certain that the following standards are met in relation to vehicles:
    a. Safe tread on tires;
    b. Brakes in working and safe condition;
    c. No vehicle body damage;
    d. All lights in working order;
    e. Any condition which the inspector may deem unsafe, unsightly or in need of repair;
    f. Seat belts provided in motor vehicles;
    g. Attention given to any other areas requiring maintenance.

(Code 1985, § 39-45; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-48. Taximeters.

A. It is unlawful for any taxicab certificate holder or driver operating any taxicab to operate, or cause to be operated, on the streets, alleys or public ways of this city, such taxicab unless the same is equipped with a taximeter approved by the director of police services and which

complies with this section. A taximeter shall be operated from any part of the propelled wheels or propelling machinery of the taxicab on which it is placed.

B. It shall be the duty of every certificate holder using any taximeter to keep the same accurate at all times.

C. All taximeters shall be placed so that the reading dial showing the amount to be charged shall be well lighted and readily discernible by passengers riding in such taxicab.

D. All taximeters shall be subject at all reasonable times and places to the inspection of the director of police services, the chief of police, any police officer of the city, the inspector of weights and measures, vehicle for hire inspectors, or any other inspector designated by the city. Taximeters must be checked and sealed annually with scheduling set by the Memphis Police Department. It is unlawful for any taxicab to operate without a sealed meter.
(Code 1985, § 39-46; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-49. Scanners.

No taxicab shall be equipped with a scanner or a device not capable of transmission but that allows an operator to access frequencies, or any device that allows an operator to access frequencies other than that vehicle's authorized frequency. In addition, no scanner or device capable of accessing frequency other than that certificate holder's authorized frequency shall be operated at the place of business of the certificate holder, nor shall the certificate holder permit the use of such a device at any other location.
(Code 1985, § 39-47; Ord. No. 4227, § 1, 11-2-1993)

ARTICLE 7. FARES

Sec. 6-80-50. Rates.

A. The city treasurer may, either acting independently or at the request of any taxicab company certificate holder, hold a public hearing to fix, in the city treasurer's sound discretion, the maximum taxicab rates, subject to the approval of the city council. The city treasurer shall cause the current rates to be posted in all taxicab places of business and on all passenger vehicles for hire.

B. The city treasurer, in the manner prescribed above, may fix flat rates to specific locations or for special events, which rates shall supersede the rates in effect at the time, provided a schedule of such fixed rates to specific locations is posted in each passenger vehicle for hire as set out in section 6-80-51, and, for special events, is placed so as to be visible on the outside and inside of the rear windows of each passenger vehicle for hire.

C. In regard to taxicabs:

1. In the absence of expressed agreement made at the time the taxicab is hired, the employment and collection of fee shall be held to be based upon the distance traveled at a rate of speed of at least ten miles per hour plus waiting time. In case of an express agreement for a charge not based on the distance traveled at a rate of speed of at least ten miles per hour plus waiting time, the automatic recording device or taximeter shall not be engaged.

2. The official current rates for taxicabs, as fixed by the city treasurer as provided herein, shall be filed in his or her office and it shall be a misdemeanor to demand or receive a fee or charge in excess of the official rates, except in case of an express agreement.

3. After the original passenger agrees to allow other passengers to travel in the same taxicab, the taximeter will be reset as each passenger arrives at his or her destination and departs the taxicab. When the first passenger has been transported to his or her destination, the taximeter will be reset and the next passenger transported to his or her destination. At such time, the fare shall be the amount on the taximeter plus $1.00. At the point of departure of the second passenger, the meter will be reset and this procedure shall continue until the taxicab is vacant.

4. When any passenger is picked up in route with the consent of the original passenger, on the departure from the cab he or she shall pay a fare equivalent to the fare had he or she had exclusive use of the taxicab for the distance he or she was actually transported.

5. When two or more passengers originating from the same point enter into a contractual agree-

ment as one with the driver and expect to go to different destinations, the meter shall be reset as each passenger departs the cab.

6. Taxicabs are authorized to regulate their meters so that, at any time the vehicle is moving at a speed slower than ten miles per hour, the meter recording the amount to be charged for the fare will automatically register an additional fare of $0.10 for each 30 seconds of operation during waiting time.

7. A $2.00 fuel surcharge per trip is to be added to all taxicab rates and fares and shall remain at $2.00 unless one of the following two conditions exists, as currently reported at www.fuelgaugereport.com:

   a. The fuel surcharge shall increase to $3.00 when the average price of unleaded regular gasoline in the city reaches or exceeds $5.00 per gallon for a minimum period of 60 consecutive days; or

   b. The fuel surcharge shall decrease to $1.00 when the average price of unleaded regular gasoline in the city reaches or remains below $3.00 per gallon for a minimum period of 60 consecutive days.

(Code 1985, § 39-48; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995; Ord. No. 5275, § 1, 9-23-2008; Ord. No. 5406, § 1, 7-5-2011)

Sec. 6-80-51. Rates to be displayed.

The current official taxicab rates shall be prominently displayed in contrasting colors on the outside of each taxicab operated in the city in letters not less than two inches high. In addition, a synopsis of the current rates shall be furnished to all licensed taxicab operators by the city treasurer, who shall cause same to be prominently displayed within the vehicle for hire readily visible to the passengers.
(Code 1985, § 39-49; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-52. Demand of fare in advance—Refusal to convey passengers.

Every driver of a taxicab shall have the right to demand payment of the regular fare in advance and may refuse employment unless so paid, but no driver of a taxicab shall refuse or neglect to convey any orderly person or persons upon request anywhere in the city, unless previously engaged or unable to do so.
(Code 1985, § 39-50; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-53. Refusal to pay fare.

It is unlawful for a passenger or persons engaging a taxicab to refuse any fare registered on the taximeter of taxicabs in accordance with the rates or which is displayed or agreed upon prior to the hiring of the passenger vehicle for hire.
(Code 1985, § 39-51; Ord. No. 4227, § 1, 11-2-1993)

Sec. 6-80-54. Receipt for fare.

A. Each driver, if requested, shall give to every passenger paying for a taxicab a printed receipt, in form approved by the city treasurer, showing the cost of fare and such other information as the city treasurer may from time to time require; provided, however, that this requirement shall not apply to drivers of passenger vehicles for hire operating on a fixed route or with a seating capacity of more than seven passengers.

B. It is the duty of each certificate holder not excused by the above provision to cause to be printed and to provide each driver receipt forms of a standard format including the following information:

1. Drivers name;
2. Taxicab certificate holder's name;
3. Point of origin;
4. Point of destination;
5. Time passenger was picked up and time departed;
6. Vehicle license number;
7. Number of passengers on the trip;
8. Amount of total fare;
9. Number of bags;
10. Duplicate.

(Code 1985, § 39-52; Ord. No. 4227, § 1, 11-2-1993; Ord. No. 4352, § 8, 8-15-1995)

Sec. 6-80-55. In-kind payments of fares.

No in-kind payments including, but not limited to, items of value such as jewelry, drugs, coupons, credit slips or any objects(s) of any material value shall be accepted in lieu of or as collateral for a fare.
(Code 1985, § 39-53; Ord. No. 4227, § 1, 11-2-1993)

CHAPTER 6-84. UNDERTAKERS*

Sections:

Sec. 6-84-1. Undertaker defined.
Sec. 6-84-2. Permit—Required—Term—Contents.
Sec. 6-84-3. Permit—Revocation.
Sec. 6-84-4. Approval of plans and specifications for establishments.
Sec. 6-84-5. Establishments to conform to building and plumbing codes.
Sec. 6-84-6. Toilets, urinals and wash basins at establishments.
Sec. 6-84-7. Floors in workrooms.
Sec. 6-84-8. Report of homicides and suicides—Generally.
Sec. 6-84-9. Report of homicides and suicides—In absence of investigation by police.

Sec. 6-84-1. Undertaker defined.

For the purpose of this chapter, any person who makes a business of burying dead bodies, under the term "funeral director," "undertaker," or otherwise, such person having charge of the burial, cremation or other disposition of a dead body, shall be deemed an "undertaker."
(Code 1967, § 41-1; Code 1985, § 38-1)

Sec. 6-84-2. Permit—Required—Term—Contents.

No person shall operate or maintain an undertaking establishment within the city until a permit therefor shall have been issued by the health officer, which permit shall be valid for one calendar year. A new permit shall be secured at the first of each calendar year. Every funeral home shall pay to the city and county health department an annual permit fee of $50.00. This fee shall be due on January 1 of each year and must be paid by January 31. All permits shall be in writing and shall state the conditions under which the operation shall be maintained and the term for which the permit is allowed.
(Code 1967, § 41-2; Code 1985, § 38-2)

Sec. 6-84-3. Permit—Revocation.

A permit required by section 6-84-2 may be revoked by the health officer for failure to comply with any of the provisions of this chapter, or whenever the further operation of such permit becomes a menace to health and safety; provided, however, that, no permit shall be finally terminated until a reasonable written notice of the alleged violation shall be given the offender and he or she shall have been offered a reasonable period of time within which to correct the same.
(Code 1967, § 41-3; Code 1985, § 38-3)

Sec. 6-84-4. Approval of plans and specifications for establishments.

Before work is commenced on any new undertaking establishment or any alterations of any existing establishment, plans and specifications, accompanied by such pertinent data as may be required, shall be submitted to the health department for its approval; and no part of the work shall be undertaken until the health department has endorsed upon the plans and specifications its written approval thereof. No department of the city charged with the duty of issuing building permits, plumbing permits, lighting permits, sewer connection permits or any other like permits shall issue such permits in connection with the construction, repair or remodeling of undertaking establishments until after the approval of the health department of the plans and specifications therefor.
(Code 1967, § 41-4; Code 1985, § 38-4)

Sec. 6-84-5. Establishments to conform to building and plumbing codes.

All undertaking establishments shall comply in all respects with the applicable provisions of the building and plumbing codes.
(Code 1967, § 41-5; Code 1985, § 38-5)

Sec. 6-84-6. Toilets, urinals and wash basins at establishments.

An adequate number of toilets, urinals and wash basins shall be provided for the staff and general public

***State law reference—**Funeral directors and embalmers, T.C.A. § 62-5-101 et seq.

at every undertaking establishment. Wash basins shall be supplied with hot and cold running water and shall be conveniently located in the embalming rooms.
(Code 1967, § 41-6; Code 1985, § 38-6)

Sec. 6-84-7. Floors in workrooms.

All floors in the workrooms of an undertaking establishment shall be equipped with floor drains and be constructed of impervious materials.
(Code 1967, § 41-7; Code 1985, § 38-7)

Sec. 6-84-8. Report of homicides and suicides—Generally.

A. In every case of homicide or suicide, a report, which shall be in the form provided by subsection B of this section and signed by the undertaker handling the body of the deceased, at least two police officers and any medical doctor attending the deceased, or who may be summoned by any police officer, shall be filed with the division of police services within 24 hours after the body of the deceased is received by such undertaker. Such report shall contain front, rear and profile views of the human body, and the location of the wound inflicted thereon shall be plainly indicated. If the wound was inflicted by gunshot, the course of the bullet shall be indicated on the diagram by line from point of entrance to exit, or if the bullet remains in the body, by line on diagram determined by a probe of the wound.

B. The director of police services is directed to have prepared and to distribute, without cost, to every undertaker in the city, a sufficient quantity of printed blanks containing the diagrams aforesaid, which report shall be substantially in the following form:

Undertaker's Report of Homicide or Suicide

Memphis, Tennessee

Name of Undertaker

_____

Date _____, 20____

Name of Deceased

_____

Sex ____

Nationality _____

Apparent Age ____

Height ____ Weight ____

Physical Defects

_____

_____

Body of deceased removed from

_____

Time ____ Date _____

I have this day made a personal examination of the body of _____ and hereby certify the above report to be true to the best of my knowledge and belief.

_____

Undertaker

_____

Police Officer

_____

Police Officer

_____

M.D.

Address

_____

_____

NOTE: Location of wound, or wound inflicted to be indicated on diagram by cross (X). If wound inflicted by gunshot, course of bullet to be indicated on diagram by line from point of entrance to exit. Or if bullet remains in body, by line on diagram determined by course or probe of wound.

C. Any undertaker who fails, neglects or refuses to file with the director of police services a form properly filled out in accord with this section within 24 hours after reception of the body of any deceased, shall be guilty of a misdemeanor.
(Code 1967, § 41-8; Code 1985, § 38-8)

Sec. 6-84-9. Report of homicides and suicides—In absence of investigation by police.

If any undertaker receives any body in any homicide or suicide case in which there has been no investigation by the division of police services of the city, it shall be

his or her duty to forthwith notify the director of police services of the reception of such body and it shall be the duty of the director of police services to detail forthwith not less than two police officers or detectives to investigate the circumstances of the homicide or suicide, and it shall be the duty of such officers so detailed to cooperate with and assist the undertaker in making up the report required by section 6-84-8.
(Code 1967, § 41-9; Code 1985, § 38-9)

CHAPTER 6-88. WRECKERS AND TOWING OPERATORS

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Sec. 6-88-3. License requirements for wrecker services.
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Sec. 6-88-6. Wrecker fees prescribed.
Sec. 6-88-7. City impound lot storage fees, private lot fees, and administrative fees.
Sec. 6-88-8 Stolen vehicles/City impound or wrecker storage lot.
Sec. 6-88-9. Billheads and storage charges for emergency wrecker services and wrecker services.
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Article 4. Hearings, Violations and Appeal

Sec. 6-88-50. Violations.
Sec. 6-88-51. Penalties—Fines, suspensions, revocations.

Article 5. Methods of Payment

Sec. 6-88-55. Payment.

ARTICLE 1. IN GENERAL

Sec. 6-88-1. Purpose and intent of provisions.

It is declared to be the purpose and intent of this chapter that all wreckers, towing and wrecker services doing business within the corporate limits of the city are hereby permitted to engage in such business, provided that such wrecker and towing services obtain the requisite permit, license, and insurance coverage as set forth in the governing provisions of this chapter. This chapter is also intended to ensure consumers are charged reason-

able and customary fees for wrecker services as limited by this chapter and based upon the time, labor and skill required to properly perform wrecker service.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-1), 11-1-2011)

Sec. 6-88-2. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Cruising means the driving of a wrecker on the streets, alleys, roads, highways and thoroughfares within the corporate limits of the city in a fashion or manner calculated for the purpose of soliciting business.

Driver means any person driving a wrecker on the streets, alleys, roads, highways and thoroughfares within the city limits.

Driver helper means any person riding with a driver or assisting the driver in the operation of the wrecker on the streets, alleys, roads, highways and thoroughfares within the city limits.

Driver permit means a permit issued by the permits office authorizing a driver or driver helper to operate, drive or ride in a wrecker on the streets, alleys, roads, highways or thoroughfares within the city limits.

Emergency wrecker service means the removal of motor vehicles from the streets, alleys, roads, highways and thoroughfares within the city limits when there is an emergency situation as defined in section 6-88-10.

Extra winching means a tow that requires the use of more cable than prescribed for each Class of wrecker in section 41-5.

Fees means any charges assessed for transporting, towing, conveying or storing a vehicle by an emergency wrecker service.

Final destination means the vehicle entrance threshold of the place to which the owner or operator of the towed vehicle designates that the vehicle be taken, or if there exists no such entrance threshold, then the point in the street located in the front of the place to which the city police department otherwise designates as the vehicle entrance threshold, or the vehicle entrance threshold of the wrecker operator's place of business or lot, in the event that the vehicle is towed to such location; notwithstanding any remaining work that must be done after reaching the final destination in detaching the towed vehicle and/or completing reports. This definition is applicable to both police and private pulls.

Hazardous materials means any solid or liquid that is or may be deemed harmful to humans and or the environment. Such products shall include, but not be limited to, gasoline, diesel fuel, motor oil, transmission fluid, antifreeze coolant, battery acid, brake fluid or any mix of the above.

Holiday hours means any paid holiday recognized by the U.S. Federal or Tennessee State Governments.

License means a certificate issued by the city permits office authorizing the owner thereof to engage in the business of towing, transporting, conveying or removal of vehicles from one point to another within the city limits. A license can either authorize the holder thereof to engage in the business of providing wrecker services or emergency wrecker services.

Night hours means the hours between 6:00 p.m. and 7:00 a.m. daily.

Non-consent towing means towing without the prior consent or authorization of the owner or operator of the vehicle to be towed. Typically, it is categorized as police or trespass towing.

Permits office means the city office known as the "permits office" established for the purpose of issuing rate cards, permits for licensing of wrecker vehicles and other vehicular permits for use within the city limits.

Private property for the purposes of this article, includes, but is not limited to, a parking lot or garage for use by patrons of a particular business, or businesses or a lot or garage used for temporary storage of passenger cars or trucks for a fee and is staffed by an attendant.

Rate card means a card issued by the permits office for display in each emergency wrecker which contains the mandatory maximum fees or charges then in effect.

Towed vehicles means vehicles which can be driven but are towed to the lot at the request of the owner or police office.

Unauthorized vehicle means a vehicle parked on private property without the consent of the owner of the property or his agent or the lessee of the property.

Weekend hours means the hours between 6:00 p.m. Friday and 7:00 a.m. Monday.

Wrecked vehicles means vehicles which cannot be driven and must be towed to the lot and not related to recovery of vehicles submerged in water and, or off the road by 200 feet.

Wrecker means a motor vehicle constructed on a truck chassis with lifting devices operated by mechanical power and employed or used for the purpose of towing, transporting, conveying or removing any and all kinds of vehicles which are unable to be or actually are not operated under their own power.

Wrecker decal means a permit required and issued by the permits office for each wrecker operated by the licensee under the authority of a license.

Wrecker owner means any person or entity, or the designated agent for such person or entity, that holds legal title to or legal right of possession of a wrecker that is specifically designed by the manufacturer for the express purpose of towing vehicles.

Wrecker service means the towing, transporting, conveying, or removal of vehicles from one point to another within the area of the city limits.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-2), 11-1-2011; Ord. No. 5818, § 1, 3-22-2022; Ord. No. 5876, § 1, 11-7-2023)

Sec. 6-88-3. License requirements for wrecker services.

A. No person shall engage in the business of providing wrecker services within the corporate limits of the city without first obtaining and keeping in force a license from the permits office to engage in such services in accordance with section 6-88-26(A).

B. No driver shall operate a wrecker upon the streets of the city without first having obtained a wrecker driver's permit from the permits office.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-3), 11-1-2011)

Sec. 6-88-4. Wrecker classifications.

A. *Class A.* For towing passenger cars, pick-up trucks, small trailers, etc. This classification also includes "wheel lift" type vehicle transporters.

1. The towing vehicle chassis shall have a minimum manufacturer's capacity of 14,000 lbs. or greater GVWR;
2. The individual boom capacity shall be not less than four tons;
3. The individual power winch pulling capacity shall be not less than four tons;
4. There shall be a minimum of 100 feet of 3/8 inch, or larger cable or 7/16 inch, or larger synthetic rope on each drum;
5. The wheel lift shall be capable of picking up a passenger car or pick-up truck; and possessing equipment capable of lifting the vehicle by the wheels only, with nothing touching the vehicle body.
    a. Wheel lift towing vehicles shall meet all Class "A" requirements, excluding the belt-type cradle tow plate or tow sling.
    b. Safety restraint straps (nylon straps with ratchets or the equivalent) shall be provided to secure the towed vehicle's tires into the wheel lift forks.
6. The towing vehicle shall have a belt-type cradle tow plate or tow sling to pick up vehicles, and cradle or tow plate to be equipped with safety chain except for wheel lift towing vehicles as referenced above; and
7. Dollies are suggested, but not required.

B. *Class B.* For towing medium size trucks, trailers, etc.

1. The towing vehicle chassis shall have a minimum manufacturer's capacity of 26,000 lbs. or greater GVWR;
2. The towing vehicle shall have the following boom specifications:
    a. *Double boom:* So constructed as to permit splitting, each boom to operate independently or jointly, individual boom capacity of no less than eight tons and individual power winch pulling capacity of not less than eight tons, or
    b. *Single boom:* with no less than a 16 ton capacity and a power winch pulling capacity of no less than 16 tons.
3. The towing vehicle shall have a minimum of 200 feet of 7/16 inch, or larger, cable on each drum; and

4. The towing vehicle shall have a cradle tow plate or tow sling to pick up vehicle, cradle or tow plate to be equipped with safety chain.

C. *Class C.* For towing large trucks, road tractors, and trailers.

1. The towing vehicle chassis shall have a minimum manufacturer's capacity of 35,000 lbs. or greater GVWR;

2. The towing vehicle shall have the following boom specifications:

   a. Double boom as to permit splitting; each boom to operate independently or jointly; individual boom capacity of no less than 12½ tons, or

   b. Single boom with no less than a 25 ton capacity and a power winch pulling capacity of no less than 25 tons;

3. The towing vehicle shall have a minimum of 200 feet, or more, of 9/16 inch, or larger, cable on each drum;

4. The towing vehicle shall have airbrakes constructed so as to lock wheels automatically upon failure;

5. Only tandem axle trucks with two live drive axles will be accepted as class C; and

6. An under-reach capable of towing an 80,000 lbs. Tractor trailer combination shall be required on all class C towing vehicles that are added to the towing list after July 1, 2008.

(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5876, § 2, 11-7-2023)

Sec. 6-88-5. Identification of wreckers.

The owner of a wrecker shall have the company name, address and business phone number painted or otherwise permanently affixed on the outside of each front door of the wrecker thereof, in letters not less than four inches in height. Notwithstanding the foregoing, all such information must fit on the doors of each wrecker. This provision shall not apply to any wrecker or tow truck included on the city rotation list as of December 1, 2005.

(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-6. Wrecker fees prescribed.

The following fees shall apply for each class of wrecker services providing non-consensual tow services:

The following fees shall apply for each class of wrecker services providing non-consensual tow services:

A. *Class A wrecker service:* The maximum charge for class A wrecker services, except in those instances which require the use of heavy-duty equipment as provided for in paragraph (A)(1) of this section, shall be as follows within the corporate limits of the city:

	Recovery Base Rate	
Wrecker Class	Towed	Wrecked
A	$225.00	$275.00
Extra Winching	$100.00 one-time fee	$100.00 one time-fee

(1) The applicable fee shall include the point of final destination given to the wrecker driver in accordance with section 41-11(a). No additional fees may be charged for using dollies, trailers, lifts, slim jims or any other equipment, services, or licensed drive helpers.

B. *Class B and C wrecker service fees shall apply as follows:*

		Recovery Base Rate	
Wrecker Class		Towed	Wrecked
B	Straight Trucks, Vans, etc.:	$370.00	$475.00
B	Extra Winching	$300.00 one-time	$300.00 one time
Wrecker Class		Towed	Wrecked
C	Tandem-Axle, Not Loaded:	$430.00	$535.00
C	Tandem-Axle, Loaded:	$465.00	$575.00
	Recreational Vehicles:		
C	25 Feet & Under in Length	$370.00	$460.00

C	Over 25 Feet in Length:	$505.00	$610.00
C	Buses (Large):	$505.00	$610.00
C	Extra Winching	$450.00 one- time fee	$450.00 one-time fee

The fee for the use of a licensed driver helper for class B wreckers shall not exceed $60.00/hour and for class C wreckers shall not exceed $100.00/hour. In each case the licensed driver helper's time will commence at the time the wrecker arrives on the scene where the vehicle is located and will terminate at the time the wrecker and vehicle to be towed arrives at the final destination.

C. *Fee to drop vehicle before departing.* If the owner or operator of the vehicle is present and removes the vehicle to be towed from the premises before it is connected to the towing vehicle, the owner or operator shall not be charged any fee. If the owner or operator of the vehicle is present after the towing vehicle has been connected to the vehicle to be towed, the vehicle shall not be towed, but the owner or operator of the vehicle shall be liable for a reasonable fee not to exceed $75.00, in lieu of towing, provided the owner or operator of the vehicle forthwith removes the vehicle from the premises. A vehicle shall be deemed connected if every procedure required to secure the vehicle to the wrecker or wrecker equipment so that the vehicle may be safely towed has been completed at the time the owner or operator arrives, including the attachment of any safety chains. In the event that a tow is disregarded, the wrecker owner/operator responding to the call shall be rotated back to the top of the city's wrecker rotation list.

D. *Bi-Annual fee review* The fees prescribed in this article, including the foregoing and any prescribed in the chapter's subsequent articles or sections, shall be subject to review by the city council once every two years, to ensure parity with towing operator business costs.

E. *Recovery of vehicles submerged in water and off the road.* The owner or operator of any vehicles submerged in water or off the pavement more than 200 feet will be charged the applicable hourly rate of a class B wrecker. The wrecker driver will be allowed a maximum time of three hours to recover any submerged vehicle. The attending supervising officer from the Memphis Police Department will determine the need for diver personnel or specialty equipment.

(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5876, § 3, 11-7-2023)

Sec. 6-88-7. City impound lot storage fees, private lot fees, and administrative fees.

A. A one-time administrative fee of $75.00 will be assessed for each tow ticket processed at the Memphis Police Department (city impound lot facility or private tow lot), after the first 72-hours of impoundment. Such fee shall be charged to the consumer.

B. The storage of a vehicle (excepting tractor trailer trucks) by a wrecker operator on a private tow lot or any municipally operated vehicle storage or impound lot shall be $30.00 for each 24-hour period, or fraction thereof, after the first 24 hours of impoundment. All vehicles that have been damaged in an accident and cannot be safely driven shall be towed. Such vehicles shall be removed from the scene of the accident by a wrecker service owner or operator and towed to such wrecker owner or operator's private wrecker lot, if such wrecker owner or operator has not been notified by the Memphis Police Department that the vehicle is needed for evidentiary or investigative purposes.

C. The storage fee for tractor trailer trucks on a private tow lot or any municipally operated vehicle storage or impound lot shall be $60.00 for the rig and $60.00 for the trailer, for each 24-hour period, or fraction thereof after the first 24-hours of impoundment. All vehicles must be stored behind the fence of the vehicle storage lot.

D. The owner or lienholder of any stored motor vehicle shall not be charged a storage fee for a period exceeding 21 days without the consent of the owner or lienholder, except as provided in T.C.A. § 55-23-104.

E. The owner or lienholder of any stored motor vehicle shall not be charged a storage fee for any day on which the vehicle is not available for release to the

owner, lienholder, or insurer, unless such failure to release is based on a hold placed on the vehicle by law enforcement.

F. A gate fee of $50.00 shall be charged to release any car from a private tow lot or any municipally operated vehicle storage or impound lot during night, weekend, or holiday hours. A gate fee shall not be charged for any day during which daily storage is also being charged.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5868, § 1, 5-16-2023; Ord. No. 5876, § 4, 11-7-2023)

Sec. 6-88-8 Stolen vehicles/City impound or wrecker storage lot.

When stolen vehicles are impounded by the Memphis Police Department and stored by the city on a wrecker company's storage lot or a municipally owned storage lot, the owner will be liable for the tow fees but will not be liable for storage fees if he reclaims his vehicle within five days after notification of the recovery and whereabouts of the vehicle. If the owner does not pick up the vehicle from the municipally owned lot or the wrecker company's storage lot within five days after notification of the recovery and whereabouts of the vehicle, the owner will be liable for all storage costs from the time the vehicle was first placed on the storage lot.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5868, § 1, 5-16-2023)

Sec. 6-88-9. Billheads and storage charges for emergency wrecker services and wrecker services.

A. Each emergency wrecker company shall use billheads with the name, address, and place of business of the wrecker company printed thereon. The operator of a wrecker towing away a vehicle shall prepare a bill on this billhead form in triplicate; the original copy of which shall be given to the owner of the vehicle or his authorized representative; one copy shall be sent to the director of police services or his duly authorized designee on or before the 15th of the month; and the last copy must be retained by the owner of the wrecker company. This bill shall contain the following information:

1. Name and address of person engaging the wrecker.
2. The state license plate number or the VIN (Vehicle Identification Number) of the towed vehicle.
3 Class of wrecker and rates to be charged: All "A," "B," and "C" class wrecker bills will be specifically stated and will include the time of arrival on the scene of the tow and the time of arrival at the final destination of the tow, the number of work hours, the rate, and all incidental charges to be specifically described.
4. Storage rates per day, or part thereof in accordance to section 6-88-7.
5. Place to where vehicle is to be towed.

B. Upon towing any vehicle by a wrecker service, the wrecker service shall maintain records which shall include the following information:

1. The Memphis Police Department control notification number.
2. The date and time the call was received by the wrecker service.
3. The name of the caller.
4. The date and time of initial tow.
5. The place of initial tow.
6. The date and time of arrival at the impound lot.
7. The date and time of release to the owner.
8. The name of the wrecker driver and driver helper that towed the vehicle.
9. The total amount of the tow including storage.
10. The name, title, and telephone number of the person authorizing towing action.

In satisfaction of subsections (B)(3) and (B)(10) of this section, calls received by a wrecker service from the MPD dispatcher shall be so noted on the billhead as the name of the caller and the name of the person authorizing the towing action.

C. The duplicate copy of the bill shall be retained by the wrecker owner for a period of not less than 24 months, and shall be produced upon demand by the director of police services or his duly authorized designee, or any person who removes the towed vehicle from the original wrecker owner's place of business to another place.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-10. Emergency wrecker service and wrecker service requirements and records.

A. Emergency wrecker service. In order to regulate, facilitate and provide for the proper and orderly flow of traffic upon the streets, alleys, roads, highways, and thoroughfares within the city, including the regulation and control of parking and to promote public safety, the following acts and circumstances shall be deemed an emergency situation which shall require the immediate removal of a vehicle from the streets, alleys, roads, highways, and thoroughfares within the city limits:

1. When a vehicle is parked, stopped or standing in violation of any regulation or ordinance of the city government.

2. When a vehicle is parked, stopped or standing so as to obstruct the orderly flow of traffic.

3. When a vehicle is disabled by an accident and constitutes an obstruction of traffic, and its immediate removal or storage for safekeeping is necessary in the interest of public safety and protection of property.

B. 1. Except as otherwise provided in this chapter, for each vehicle towed by a wrecker service, the licensee shall retain at the wrecker owner's principal place of business all documents related to the towing of the vehicle along with any records required to be maintained pursuant to this chapter, including, but not limited to, towing agreements, written authorizations for removal, and wrecker slips or tickets.

2. The wrecker owner shall make all towing records available for inspection by the permits office upon request. If a wrecker owner fails to fulfill a permits office request to inspect towing records within three business days of the request, the owner's wrecker service license is automatically suspended until compliance by the wrecker owner.

C. Records location. The records required by this section shall be maintained and available at the permits office during business hours at the location where the vehicle is stored until the vehicle is recovered. Further, all wrecker services, public and private, which tow impounded vehicles, shall register with the permits office and city impound lot the current telephone number of the person responsible for releasing vehicles on their behalf.

D. A person desiring to engage in a wrecker service shall register with the permits office a trade name that clearly differentiates the person's company from all other companies engaging in vehicle tow services and shall use no other trade name in conducting vehicle tow services.

E. Private property tows. All private property tows must be reported to the city police department prior to the vehicle being towed. All private property tows must be in compliance with T.C.A. § 55-5-122.

F. Every wrecker company or towing operator doing business within the corporate city limits of the City of Memphis shall publish its rates in such a place as to be in full view of anyone wishing to inspect same and/or be communicated to the owner of the vehicle, or party seeking the service, prior to services being rendered.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-10), 11-1-2011; Ord. No. 5818, § 1, 3-22-2022)

Sec. 6-88-11. Destination requirements.

A. 1. A wrecker owner or operator shall tow the vehicle to any place designated by the owner or operator of such vehicle unless otherwise directed by the city police division.

2. The driver of the wrecker shall in all cases, before moving the vehicle to be towed, ask the owner or operator of such vehicle the place to which he/she desires the vehicle to be taken and shall transport such vehicle to such place upon the towing charges being paid or secured; otherwise, the vehicle shall be towed or transported to the wrecker operator's storage lot.

B. In the event that the place to which the owner or operator of the towed vehicle desires that the vehicle be taken is not open for business or available to receive the vehicle, the owner or operator of the towed vehicle and the wrecker operator shall agree between themselves as to the procedure to be followed in towing the vehicle to an alternate location.

C. Should the wrecker operator tow the vehicle to his own place of business for later delivery to the place designated by the owner or operator of the towed vehicle, towing and storage charges will be imposed in

accordance with sections 6-88-6 and 6-88-7. The wrecker driver must inform the owner or operator of the towed vehicle regarding the rates to be charged, prior to towing the vehicle to the alternate location.

D. In the event that the owner or operator of such vehicle is not available to designate the place to which such vehicle is to be taken, then the wrecker driver shall take such towed vehicle to his own place of business unless otherwise directed by the city police division. If the vehicle is taken to the wrecker driver's own place of business, the wrecker operator shall thereupon be responsible for the security of the vehicle and its contents. He shall also be responsible for contacting the owner of such vehicle within 48 hours to inform such owner that the vehicle is in his custody.

E. In those instances which require the wrecker driver to make a second tow in order to deliver the vehicle from his place of business to the place designated by the owner or operator of the towed vehicle, such second tow shall be made within 36 hours of the request or designation. Failure of the wrecker operator to comply with such request or designation shall be deemed a violation of this chapter and subject to the penalties as provided in section 6-88-50.

F. 1. No wrecker company shall tow a vehicle from public or private property under orders of one not the owner of the vehicle to a storage lot which is outside the geographic limits of the city.

2. All wrecker owners shall immediately upon connecting the vehicle to be towed take such vehicle directly to the licensed storage lot owned or operated by the wrecker owner located within the geographic lines of the city limits. Such towed vehicle shall not be dropped or left at any other lot or on any property without the consent of the owner for any period of time. No towed vehicle shall be stored on a public street.

G. If the vehicle to be towed is involved in an accident and the owner or operator of the vehicle thereof is unable to give any instructions on his own behalf, the driver of the wrecker shall tow the wrecked vehicle to the wrecker service's storage lot and it will be presumed and considered prima facie evidence that the owner or operator of such wrecked vehicle consents to and desires that his vehicle be towed to such location.

H. A towed vehicle shall not be stored more than a reasonable walking distance from the area where the towing and storage fee payments are received, however, this section shall not apply in instances where vehicle owners can pay online.

I. The operator shall exercise reasonable care to keep towed vehicles and their contents secure at all times.

J. Personal property in vehicles must be released in accordance with state law.

K. Whenever a wrecker company is involved in towing and its storage lot is closed or has the gate locked, a conspicuous sign, no smaller than 36 inches by 36 inches with four-inch lettering, must be posted at the entrance of its storage lot which provides instructions and a local telephone number for obtaining the release of a vehicle when its lot is not open. Its local telephone number must be posted and shall be answered 24 hours a day. The local telephone number posted and the name of a representative of the wrecker company shall be registered with the permits office. A wrecker company which fails to keep current phone and company representative information posted and registered with the permits office shall not be able to charge a storage fee if such failure interferes with the return of a vehicle to the vehicle owner or designee.

L. Any person operating a wrecker upon the streets of the city and maintaining a storage lot must maintain personnel with authority to accept payment and to release any impounded vehicle, on duty seven days a week. Such person must be available at 7:00 a.m. the morning after a vehicle is towed to release a vehicle upon the request of the owner. Vehicle access for the sole purposes of retrieving personal items shall be provided and personal items not needed for evidentiary reasons shall be released without charge to the vehicle owner or designee. Personal items are anything not

physically attached or mounted to the towed vehicle. Such items include, but shall not be limited to, clothing articles, tools, CDs, personal items contained in glove boxes, trunks or consoles.

M. The towing of any vehicle without the consent of the owner must be reported to the division of police services prior to the towing of the vehicle.

N. If the owner or operator of a vehicle is not available and a wrecker has been summoned by a police officer as a result of a parking violation, an abandoned vehicle or is subject to towing pursuant to code enforcement, then the vehicle shall be towed to the wrecker company's storage lot or transported to the city impound lot if so directed by the Memphis Police Department.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-11), 11-1-2011; Ord. No. 5868, § 1, 5-16-2023)

Sec. 6-88-12. Hazardous material clean-up.

Guideline for Wrecker Services Engaged in Clean-up of Motor Vehicle Accident Fluids

Memphis Division of Fire Services/Memphis Division of Police Services

A. Purpose: This document shall specify requirements and limits associated with the clean-up of hazardous materials where fire or police employees are responsible for the safety of the roadway and care for our local environment. It is intended for distribution to police, fire, and wrecker company operators.

B. Hazardous materials: Hazardous materials are defined for the purposes of this guideline as any solid or liquid that is or may be deemed harmful to humans and/or the environment. This definition is decidedly broader than other established guidelines for the purpose of encompassing all the safety concerns of the community and city government. Specific products that may not normally meet the definition of hazardous materials or hazardous waste but are specifically covered here are: gasoline, diesel fuel, motor oil, transmission fluid, antifreeze/coolant, battery acid, brake fluid or any mix of the above.

Wrecker services operating within the City of Memphis are regulated by the Memphis Police Department. Any needs of the fire division must be met through cooperation with the police division.

To expedite opening of the roadway, it has been acceptable past practice to require wrecker drivers to remove fluids associated with motor vehicle accidents along with removal of the vehicles. The purpose of this requirement is to prevent the safety hazard associated with slick roadways and to provide remediation for the thousands of small spills that have a direct impact on everything from our water supply to our quality of life.

All fire companies are equipped with absorbent material sufficient to stop these materials from entering the storm drain and other waterways. If possible, fire personnel should prevent these fluids from running off the pavement and therefore aiding in their removal from the scene.

The wrecker service must be equipped with sufficient absorbent material and tools to pick up all fluids associated with the vehicle they are towing. Multiple vehicles leaking fluids shall be addressed using the police officer's discretion to determine who is charged for the removal of these products. Wrecker services should be notified upon dispatch of the approximate amount of fluids spilled and denied the tow if they are not prepared to complete the clean-up of the roadway.

Wrecker services are permitted to charge to the tow, costs associated with removal and disposal of these hazardous wastes. Charge limits are described and regulated by the Memphis division of police services.

C. Cleanup of the above-mentioned products shall be limited in the following way:

1. All wrecker services are limited to clean-up of hazardous materials on the pavement only. Notwithstanding the foregoing, wrecker services are permitted to clean-up five gallons or less of hazardous materials off the roadway. Any such materials in excess of five gallons must be removed by a certified hazardous materials clean-up company. Small amounts of fluid that are easily shoveled in with oil dry may also be removed.

2. Class C wreckers are limited to removal of spills from the vehicle's fuel tanks, engines, and drive train. Quantities shall not exceed 300 gallons per wrecker. This is generally the capacity of two saddle tanks for over the road trucks.

3. Class A and B wreckers are also limited to removal of spills from the vehicle's fuel tanks, engine, and drive train. Quantities shall not exceed 30 gallons per wrecker.

4. All fuel removal operations shall be accomplished using non-sparking tools. Plastic scoops and shovels are readily available and must be used whenever the potential for fire exists. Smoking shall be prohibited during these operations.

5. Fuel products should be packaged in a DOT approved steel or plastic drum and labeled in compliance with 49 CFR. Small or large drums are acceptable, readily available, and not overly burdensome to the wrecker's operation.

6. The cleanup of hazardous materials in excess of 300 gallons shall be performed by a qualified hazardous materials clean-up company. The fire department and the Memphis/Shelby County Emergency Management Agency are familiar with procedures for contacting these companies.

7. Wrecker services who wish to participate on the Memphis police wrecker rotation list shall require its drivers and driver helpers to attend hazmat awareness for wrecker drivers and driver helpers training. This four hour course is intended to meet OSHA HAZWOPER requirements but shall be tailored to the hazards associated with wrecker operations. Proof of attendance shall be carried and may be requested by fire or police department personnel when roadway clean-up is required. The Memphis fire department training division shall offer this mandatory course at a cost of $80.00 per student.

City of Memphis
Guideline for Hazardous Materials Clean-Up Companies

A. Purpose: This document shall specify requirements associated with the clean-up of hazardous materials where City of Memphis employees are serving as incident commander. This guideline is intended to establish relationships and familiarity with personnel wishing to provide clean-up services to facilitate safe operations, timely remediation, and the return of city assets to service. Further, it is deemed basic due diligence for the city to ensure that any person performing work in and around a haz-mat site be properly trained and credentialed prior to the emergency event.

For this purpose, no person or company shall be permitted to do haz-mat clean-up work within the city limits of Memphis without compliance with this guideline. The incident commander may grant exceptions during extraordinary circumstances. State law in Tennessee calls for the highest ranking fire officer to work the role of incident commander.

B. Hazardous materials: Defined for the purposes of this guideline as any solid, liquid, or gas that is or may be deemed harmful to humans and/or the environment. This definition is decidedly broader than other established guidelines for the purpose of encompassing all the safety concerns of the community. Specific products not normally meeting the definition of hazardous materials or hazardous waste but are specifically covered here are gasoline, diesel fuel, motor oil, transmission fluid, battery acid, antifreeze/coolant, brake fluid or any mix of the above.

NOTE:

Let it be known by all parties that Memphis fire department response personnel shall never be authorized to contract for clean-up services. MFD provides contact information only for responsible parties in need of clean-up service. To prevent confusion and costly misunderstandings, any request for clean-up service must be made by the spiller, his company representative, or the Memphis/Shelby County Emergency Management Agency.

In the event that no responsible party is present, the Memphis/Shelby County Emergency Management Agency shall contract for clean-up services.

Fire department haz-mat units shall maintain current contact information for any hazardous materials clean-up company in compliance with this document. This information is maintained and presented in such a way as to show no preference toward any company or individual.

C. Hazardous materials clean-up companies: Defined as a private contractor whose business is among other things the remediation of hazardous materials. It is required by the City of Memphis that any person or

organization performing hazardous materials remediation work within the city limits meet the following requirements:

1. 40-hour OSHA compliant HAZWOPER training for all employees of the company who shall work in direct contact with hazardous materials or handle these products after they are packaged for removal. This shall include the company site supervisor.
2. Training records of all on-site personnel available for review by the incident commander at the time of the incident.
3. A copy of the company's current Shelby County business license on file with the Memphis fire department (MFD) special operations office and the Memphis/Shelby County Emergency Management Agency.
4. Proof of liability insurance current not less than $1,000,000.00 on file with the MFD special operations office and the Memphis/Shelby County Emergency Management Agency.
5. A copy of the company's Tennessee state permit to transport hazardous waste or a copy of a signed contract with a third party transporter and a copy of their permit to transport hazardous waste on file with the MFD special operations office and the Memphis/Shelby County Emergency Management Agency.
6. The company must have at least one member on the scene within one hour of receiving the phone request for service and begin remediation work within 90 minutes of the same call for service. Extenuating circumstances may be discussed and approved by the incident commander.
7. The company shall provide the MFD special operations office a list of services offered to include specialty equipment available. This list shall also include pertinent limitations. General areas of interest are:
    a. Any chemical products specialized in or excluded by the company;
    b. Any biological products specialized in or excluded by the company;
    c. Any radioactive products specialized in or excluded by the company;
    d. Any specialty services provided by the company;
    e. Availability of vacuum or steam cleaning services.
8. The written site safety plan must be presented to and approved by the incident commander. Any plan must include as a minimum:
    a. Personnel roles;
    b. PPE selection;
    c. Emergency procedures;
    d. Site sketch with extent of work planned;
    e. Plan for removal and packaging of waste material;
    f. Timeline for completion of removal process to include removal of packaged material;
    g. Location or facility determined for waste disposal;
    h. Method of environmental testing shall be listed to ensure complete removal of hazardous materials.

(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-13. Duty to remove accident debris.

Whenever any wrecker driver or driver helper removes a vehicle from the scene of an accident on the streets, alleys, roads, highways, or thoroughfares within the municipal boundaries of the City of Memphis, it shall be the duty of such driver and driver helper to simultaneously remove and carry away all glass, metal, oil dry, solvent provided by the Memphis fire department, and any debris which may have been cast upon such areas as a result of the accident or collision and to place such debris in containers.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-14. Soliciting business generally—Soliciting repair business at accident scene.

A. It shall be unlawful to drive along any street or bridge and solicit any towing work. Solicitation of towing work by the driver or driver helper of a licensed wrecker service while parked on any street, alley, road, highway, and thoroughfares within the city limits is expressly prohibited.

B. It shall be unlawful for any wrecker owner, driver or driver helper of a wrecker or an agent, employee or representative of the owner or driver of a wrecker at the scene of any accident, to pressure or otherwise coerce or insist that the owner or operator of a vehicle sign a work order or agreement at the scene of the place from which the vehicle is to be transported for any repairs to be made on such vehicle.

No repairs shall be made and no parts shall be removed from such vehicle until express written authorization has been obtained by the owner; provided, however, that if the wrecker company operator dismantles any such vehicle without the authority of the owner of the wrecked vehicle, the wrecker company shall restore such vehicle to its original condition at the time that it was picked up, and deliver the same to the owner or the owner's designee within 36 hours. There shall be no charge for the dismantling, restoring of the vehicle to its original condition, or for storage if the wrecker company driver has dismantled such vehicle without the authority of the owner.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-15. Private property tow authorization.

A. Wrecker service operators shall comply with all federal, state, and local laws concerning the towing of vehicles from private property, including, but not limited to, T.C.A. §§ 55-16-112 and 66-28-518.

B. The owner or person in lawful possession of private property, including an apartment complex or condominium association, may cause the removal of a vehicle parked on the property in compliance with applicable law; however, there must be displayed, in plain view at all entrances to the property, a sign not less than 18 inches by 12 inches in size, with lettering not less than one inch in height, prohibiting public parking and indicating that vehicles will be removed at the vehicle owner's expense, and containing the telephone number of the city police department report center and the name and telephone number of each towing company that is a party to a written general towing authorization agreement with the owner or person in lawful possession of the property. The sign must also indicate that a citation may also be issued for the violation. On a development with an integrated center sign or a complex sign as permitted under the Unified Development Code, a sign of the same size, information content, and lettering size may be placed and maintained on the integrated center sign or complex sign in lieu of at every driveway entrance to the property.

C. Prior to the removal of towing a vehicle (or personal property) from private property by a wrecker service without the owner's consent, the towing company must have express written authorization for the towing of that vehicle (or personal property) from the owner of the private property, property manager, or designated agent. When an individual is designated by a private property owner to act as an agent to authorize towing from the property, such designation must be in writing, signed by the private property owner, notarized, and filed with the permits office. Such designation shall name the wrecker company used by the property owner. A wrecker company may perform a periodic audit as part of a contractual agreement with a private property owner for the purpose of identifying vehicles on the property which may be inoperable or defective. The existence of such an arrangement shall be disclosed on the designation described above filed with the permits office which states the name of the private property owner's agent to authorize towing, wrecker company used, and list of violations that will cause a vehicle to be towed without consent from the owner's property. Contractors or written agreements between a towing company and private property owners for non-consensual towing must be retained by the towing company, and must include the property owner's signature and the signatures of any agents designated by the private property owner, a copy of which must be available for inspection by the city police department and/or permits office upon request.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-15), 11-1-2011)

Sec. 6-88-16. Reporting accidents and scene calls.

A. Every person operating wreckers within the city, upon receipt of a call to any accident location involving death, injuries or property damage, shall immediately notify the police services division of the location of the accident.

B. Scene calls. Any wrecker owner, driver, driver helper, employee or representative receiving a "scene call" must immediately notify the police dispatcher. No wrecker driver or driver helper shall respond to scene locations without permission from the police dispatcher. Such wrecker company owner, driver, driver helper, employee, or representative regardless of the class of

wrecker requested or location must first provide the police dispatcher with the following information: scene location, make, model and vehicle type. The police dispatcher will verify the time of the call, scene location and ascertain information if any other wrecker company has been dispatched prior to granting permission.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-17. City employees soliciting for wrecker companies.

No city employee shall recommend or solicit business on behalf of any wrecker service or tow company.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-18. Rules and regulations of the permits office.

The permits office shall promulgate a complete set of rules and regulations describing in detail the procedures to be observed by licensed wrecker owners and operators. After a period of advise and comment, such rules and regulations shall be submitted to the city council for approval. The permits office shall have authority to change such rules and regulations when the interest of the city requires such change or revision, and after a period of advise and comment, such changes or revisions shall be submitted to and approved by the city council before becoming effective. The violation of such rules and regulations may be grounds for fines, suspension or revocation of the wrecker or towing license or permit as provided in section 6-88-50.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-18), 11-1-2011)

Sec. 6-88-19. Reserved.

Sec. 6-88-20. Reserved.

Sec. 6-88-21. Reserved.

Sec. 6-88-22. Reserved.

Sec. 6-88-23. Reserved.

Sec. 6-88-24. Reserved.

Sec. 6-88-25. Reserved.

ARTICLE 2. PERMITS REQUIRED

Sec. 6-88-26. Permit requirements.

A. *License for wrecker service.*

1. No wrecker service shall engage in business within the city limits or offer such service to any motor vehicle upon the streets, alleys, roads, highways, and thoroughfares of the city unless a license is obtained from the permits office.

2. Each wrecker service owner must provide to the permits office a certificate of occupancy and use from the Memphis and Shelby County Office of Construction and Code Enforcement and a current business license from the county business office, or the equivalents issued by appropriate governing bodies in the jurisdiction in which a wrecker service outside Memphis and Shelby County is located.

B. *Emergency wrecker service.* No person shall engage in the business of providing emergency wrecker services within the corporate limits of the city without first obtaining and keeping in force a license to operate an emergency wrecker service from the permits office.

C. *Wrecker service owners with addresses outside the city.* Wrecker owners located in the county, but outside the city limits, who are licensed to operate in the county, pursuant to the provisions of chapter 189 of the Private Acts of 1961, may apply for a license to operate in the city and such license shall be issued without the necessity of obtaining a certificate of occupancy and use from the Memphis and Shelby County Office of Construction and Code Enforcement as set forth above, provided that such operator meets the remaining qualifications for a license including a current business license issued by the county business office and complies with all rules and regulations promulgated pursuant to this chapter. Wrecker owners located outside of the county must provide a current business license issued by the county in which the wrecker service is located and comply with all rules and regulations of this chapter.

D. *Police rotation list or emergency wrecker.* Only wrecker companies licensed to operate in the city who have been issued certificates of occupancy and use by the Memphis and Shelby County Office of Construction and Code Enforcement and satisfied each requirement set forth in this chapter for emergency wrecker service

shall be eligible to be included on the emergency wrecker rotation list maintained by the police services division for use in those instances in which wrecker operators are directed to the scene of a wreck by the police dispatcher.

E. *Storage.* A wrecker company that does not currently have the requisite permit to operate as wrecker operator shall hereafter be ineligible to obtain a permit as a wrecker operator unless such operator shall have facilities for storage at the place from which its wreckers are to be operated sufficient for the storing of not less than 100 disabled motor vehicles.

A wrecker company that is currently permitted to operate as a wrecker operator as of the effective date of this chapter shall be grandfathered in, and continue to operate at current capacity. Renewal of the requisite permit shall not alter the applicability of this provision.

F. *Permit for wrecker service drivers/operators.* No person shall operate a wrecker vehicle for hire upon the streets of the city and no licensed wrecker service for hire shall permit towing at any time for hire, unless the driver of said wrecker for hire shall have first obtained and shall have a current and properly updated wrecker driver/operator's permit issued by the permits office.

1. Permits required by this article shall be applied for in person and in writing, on such forms as the permits office may prescribe which shall show:
    a. The applicant has obtained the proper class endorsement pursuant to the provisions of T.C.A. chapter 50, title 55.
    b. All criminal statutes, whether federal or state, or city ordinance violations for which conviction, forfeiture of bond or pleading of nolo contendere has occurred, including motor vehicle and traffic violations. The permits office must immediately submit to the state bureau of investigation a request for a criminal background check of the applicant upon submission of his wrecker driver permit application.
    c. Such other information as the permits office may require.
2. Such application shall be accompanied by a statement from a holder of a wrecker service license indicating that the applicant shall be affiliated with the license holder upon issuance of the permit.
3. Permits shall remain the property of the permits office, and may be canceled, revoked, or suspended at any time and will be surrendered on demand.
4. Each applicant applying for a permit shall appear before the permits office to complete an identification questionnaire on a form to be provided.
5. A wrecker driver's permit may not be issued to any applicant who has been convicted of a felony or any crime involving moral turpitude within five years prior to their application for such permit.
6. The permits office may refuse to issue a permit to an applicant whose police record shows more than one conviction for driving under the influence of intoxicants, moving traffic violations, or any other good and just cause within five years prior to their application for such permit.
7. No permit shall be issued unless the applicant is at least 21 years of age.
8. It shall be the duty of the permits office to issue a permit to any person applying therefor, showing compliance with the provisions of this chapter.
9. The holder of a wrecker driver's permit shall advise the permits office within three days of all arrests and indictments, including those for driving under the influence of intoxicants. It shall also be the responsibility of the wrecker service license holder with which said driver is affiliated to notify the permits office of said charges, arrests or indictments so long as the wrecker service license holder has actual knowledge of said arrests or indictments. Failure to do so may result in fines, suspension or revocation of said permit and/or of said license after a hearing within three business days by the permits office.
10. If a permit is issued, the driver must register with the permits office the name of the wrecker service license holder with which the driver intends to be affiliated, and the permits office

will have stamped on the permit the name of the wrecker service license holder. If at any time a driver wishes to change wrecker service providers, the driver must register the change with the permits office, and a fee of $3.00 will be charged to defray administrative cost. Failure to advise the permits office of any such changes may result in suspension or revocation of said permit. It shall be the responsibility of the holder of the wrecker service license to notify the permits office when affiliation with a driver is discontinued and any wrecker service license holder which allows a driver to operate a wrecker service vehicle for hire without a proper and complete permit may have its license suspended or revoked.

11. Each applicant for a permit under the provisions of this section shall pay to the permits office a fee of $50.00 at the time of filing the application to cover the cost of a criminal background check, application processing and a permit card. At the biannual renewal of such permit, the applicant shall pay the sum of $50.00. To replace a lost, destroyed or stolen permit that is current the fee shall be $15.00.

12. A permit issued under this chapter shall be in card form of such size and design as may be prescribed by the permits office, which shall bear on its face a photograph of the driver, the number of the permit, the expiration date thereof, the company with which the driver is affiliated, and such other information as the permits office may require. The driver shall also have a current driver's license.

13. A permit issued under this provision shall expire at 12:00 midnight two years after of the date of issuance. Every wrecker driver's permit in good standing will be renewable during the renewal period. The renewal period shall be from three months before until five working days after the expiration date. Renewal shall be made by application, as set forth below, and payment of the fee to the permit office. At the end of the renewal period, the license shall become null and void. Failure to make timely application for renewal of the wrecker driver's permit will result in the assessing of a reinstatement fee of $15.00 per month for up to three months from the expiration date in addition to the renewal fee. After three months, a completed application for a new driver permit is required, including a new physical, within 90 days of its issuance.

14. If the driver wishes that his/her permit be renewed, he/she shall furnish, in person, to the permits officer a statement from a wrecker service license holder indicating that the driver is a current driver for said certificate holder.

15. The permits office and/or transportation commission is hereby given the authority to fine a penalty fee of no more than $50.00, to suspend or revoke any wrecker driver's permit issued under this chapter for a driver's failure to comply with the provisions of this chapter or the rules and regulations specified by the permits office and/or transportation commission.

16. The permits office shall notify a driver and the associated wrecker service license holder of the violations with which they are charged and their right to a hearing before the transportation commission for any suspensions/revocation recommended by the permits office in excess of five days. A hearing shall be held at such time as may be conveniently scheduled but within 30 days of the notification to the driver of the recommended suspension/revocation exceeding five working days.

17. The permits office and/or transportation commission may suspend or revoke any driver and/or license of associated wrecker service license holder for allowing any other person to use the permit granted to said driver for the purpose of operating a wrecker, another type of passenger vehicle for hire, or for any other reason.

18. The permits office may suspend or revoke the wrecker driver's permit of any driver who defaces, removes, or obliterates any official entry made upon the permit.

19. Every driver holding a valid wrecker driver's permit shall be subject to random drug screening as established in this section unless the wrecker service license holder for whom the driver works is included in the Tennessee Highway Patrol Rotating Schedule Towing List. Drivers may be selected for drug and alcohol

testing on a random basis by using a scientifically valid random number generation method approved by the permits office. Upon selection, the permits office shall notify the wrecker service license holder for whom the driver works. The wrecker service license holder shall be responsible for notifying the driver. Once advised of the required test, a driver must take the test within 24 hours. The permits office will use a testing location already approved by the city.

20. The cost of the testing shall be borne by the certificate holder if the results are negative. If the results are positive, the cost of the test shall be borne by the driver tested. The results of all tests shall be immediately provided to the permits office.

21. Drivers will be subject to urine drug and breath alcohol testing. Drug testing will be for any illegal drug or substance, including but not limited to amphetamines, cocaine or its derivatives, marijuana, opiates, and phencyclidme (PCP). Illegal use includes use of any illegal drug, misuse of legally prescribed drugs, and use of illegally obtained prescription drugs. Breath alcohol testing will be considered positive at a 0.04 alcohol level or higher.

22. The use of a controlled substance is not prohibited, which is prescribed by a treating medical physician, if this physician makes a good faith judgment that use of the substance by the driver at the prescribed dosage level is consistent with the safe performance of the driver's duties. Drivers using a controlled substance prescribed by a treating physician must immediately notify the wrecker service license holder that they are taking such medication. The wrecker service license holder may request a doctor's certificate verifying the treatment. Abuse of a prescribed controlled substance is prohibited.

23. Any driver who refuses to comply with a request for testing, who provided false information in connection with a test, or who attempts to falsify tests results through tampering, contamination, adulteration, or substitution shall have his/her permit revoked immediately. Refusal can include an inability to provide a specimen or breath sample without a valid medical examination, and a verbal declaration, obstructive behavior, or physical absence resulting in the inability to conduct the test.

24. Any driver who tests positive under the first random testing procedure may be subject to the following:

    a. Suspension of his/her permit for 30 to 120 days;

    b. Referral to an assessment by a substance abuse professional (SAP), with a return to work drug and alcohol test at the end of suspension; and/or

    c. Completion of a return to work agreement outlining terms of return to work, including ongoing treatment and additional random testing for up to five years with a minimum of six tests that first year.

25. Any driver who has a second positive test under the random testing procedure within three years from failing the first drug screening shall be subject to revocation of his/her permit.

26. No driver who has had a permit revoked for failing drug screening shall be eligible for a permit for six months following revocation. At the end of that period, any re-application must include evidence that the driver has undergone treatment for substance abuse and proof of a negative drug screen within one week of reinstatement.

27. A driver who fails a drug/alcohol test within three years of a first suspension shall have his/her permit revoked for two years. A third violation shall result in a permanent revocation.

28. Testing shall be done on all drivers subject to a fitness for work evaluation when there are reasons to believe that drug or alcohol use may by adversely affecting job performance. The wrecker service license holder and the permits office will make reasonable suspicion determinations.

29. Testing shall be done on all drivers involved in an accident that results in a fatality, or injuries requiring immediate transportation to a medical facility or the driver receives citation by local law enforcement officers, or if one or

more vehicle incurs disabling damage that requires towing, pushing etc., from the site and driver receives a citation for a moving violation arising from the accident. Acceptance of a wrecker driver's permit under this chapter signifies consent to testing if a driver is unconscious after being involved in such an accident.

30. Following an accident, the driver will be tested as soon as possible, but not to exceed eight hours for alcohol testing and 32 hours for drug testing. Any driver involved in an accident must refrain from alcohol use for eight hours following the accident or until he/she undergoes a post-accident test. Any employee who leaves the scene of the accident prior to the submission to the drug/alcohol test will be considered to have refused the test and be subject to permit revocation.

31. Confidentiality will be maintained throughout the drug/alcohol testing process. The risk manager of the city will maintain results in the strictest confidence in a medical file separate from the official personnel file. In cases where disciplinary action results from positive test, such information shall be shared only with those in a supervisory capacity involved in that action.

(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-26), 11-1-2011; Ord. No. 5868, § 1, 5-16-2023)

Sec. 6-88-27. Making false statement—Power not to grant application.

Any person making a false statement in any application required by the director of police services or his duly authorized designee shall forfeit his permit and shall not be eligible to receive or hold a permit from the director of police services or his duly authorized designee for a period of five years. The director of police services or his duly authorized designee shall have the power not to issue any permit when it finds that such issuance would interfere with the public health, safety, and welfare of the residents of the City of Memphis.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-28. Application.

Any person desiring to engage in the business of providing wrecker or emergency wrecker services within the corporate limits of the City of Memphis must be certified by the Department of Transportation ("DOT") and obtain a license as required by this article. Such person must also file with the director of police services an application setting forth, among other things, the following:

A. Name and address of the applicant.

B. The location, description and hourly availability of wreckers owned or operated by the applicant.

C. A statement setting forth and describing the available space for properly accommodating and protecting all disabled motor vehicles to be towed or otherwise removed from the place where they are disabled.

D. The number of wrecker vehicles owned or available for use by the applicant.

E. A statement that the applicant intends to comply with the fees and schedule of charges prescribed by this chapter and the rules and regulations promulgated by the director of public services.

F. If the applicant is applying for emergency wrecker service the applicant must agree to provide 24-hour service, including holidays, and state that he will have at all times a minimum of two wreckers and two men on duty during any 24-hour period, except that between the hours of 7:00 p.m. and 7:00 a.m., there shall be one man on duty and one wrecker in use.

G. A statement that all wreckers will be fully equipped at all times with a broom, crowbar, flags, flares, firefighter's axes, shovel or scoop; fire extinguishers must be a minimum of 20 pounds, and absorbent materials (i.e., oil-dry) minimum of ten pounds.

H. Except for the time period set out in subsection (F) of this section governing hours of operation for nights and on weekends, that such wrecker and emergency equipment shall be operated from one business location only, provided such location(s) are in the operator's zone.

I. A statement that such wreckers will be equipped with at least two vehicle jacks, a set of dollies, 100 feet of towing cable; and any equipment necessary for the towing of special automobiles in order to prevent further damage to such

vehicles. If such wrecker company wishes to be an emergency wrecker service and on the police list approved for towing such special vehicles, that wrecker company will also have available a trailer for towing motorcycles.

J. Prior to any wrecker service operating as an emergency wrecker service on the rotation list for the Memphis Police Department, the city shall be added as an additional insured on such wrecker service's insurance coverage. This shall be evidenced by such notation on the certificate of insurance on file with the police services division.

K. Any wrecker service desiring to do business with the city shall first execute a hold harmless agreement stating that it will indemnify, defend and hold the city harmless from any and all claims of any type, including attorney's fees, which may arise out of the performance of the towing of any vehicle under or by direction from the City of Memphis police services division.

L. Compliance with the above stated conditions shall at all times be a condition precedent to providing any service to or on behalf of the City of Memphis division of police services.

(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-29. Investigation of applicant—Creation of zones.

A. The director of police services or his designee shall investigate or cause to be investigated each applicant under this article to determine whether the applicant has met each of the requirements to operate a wrecker service in the City of Memphis. Such investigation will establish whether the wrecker owner has the necessary facilities and equipment as required under section 6-88-28 of this chapter, and whether the owner has been convicted of a felony within the last two years which shall require the pre-approval of the director of the division of police services or his designee.

B. The director of police services or his designee may decide the number of wrecker call zones and the number of wrecker operators that will be placed on the police services wrecker rotation call list in any zone in order to promote public safety and efficiency of service. Every wrecker owner shall be required to operate wreckers from an approved location in the zone where the business is designated to make tows; provided, however, no wrecker operator shall be denied the right to operate in any zone in which it was operating prior to July 1, 1989.

C. No person shall, regardless of number of wrecker companies in which he has an interest, acquire more than one listing per zone on the Memphis police services rotational list. This section shall apply to each wrecker company in which any single individual has any ownership interest. For purposes of this section, the term "interest" is defined as including, but not limited to, any participation in a wrecker company or tow-in business either directly or indirectly, near or remote, or any pecuniary interest.

(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-30. Liability insurance required.

A. A wrecker service shall not operate upon the streets of the city until it has obtained and kept in force all insurance required as established by the city risk manager which may be adjusted from time to time. The company shall require all subcontractors to carry insurance as outlined below, in case they are not protected by the policies carried by the company. The company is required to provide copies of the insurance policies upon request. The company shall furnish the risk manager a certificate of insurance and/or policies attested by a duly authorized representative of the insurance carrier evidencing that the insurance required hereunder is in effect. All insurance companies must be acceptable to the city and licensed.

B. The company shall indemnify, defend, save and hold harmless the city, its officers, employees, and agents, from and against any and all claims, demands, suits, actions, penalties, damages, settlements, costs, expenses, or other liabilities of any kind and character arising out of or in connection with the breach of the agreement by company, its employees, subcontractors, or agents, or any negligent act or omission of company, its employees, subcontractors, or agents, which occurs pursuant to the performance of this agreement, and this indemnification shall survive the expiration or earlier termination of this agreement. The provisions of this subsection shall not apply to any loss or damage caused solely by the acts, errors, or omissions of the city, its officers, employees and agents.

C. Each certificate or policy shall require and state in writing the following clauses:

Company shall provide notice to the City within three business days following receipt of any notice of cancellation or material change in company's insurance policy from company's insurer. Such notice shall be provided to city by registered mail, to the following addresses:

City of Memphis	*City of Memphis*	*Permits Office*
Attn: Risk Management 2714 Union Ext, # 200 Memphis, TN 38112	Attn: Purchasing Agent 125 N Main, Rm 354 Memphis, TN 38103	Attn. Administrator 2714 Union Ave. Ex., #100 Memphis, TN 38112

The certificate of insurance shall state the following:

"The City of Memphis, its officials, agents, employees and representatives shall be named as additional insured on all liability policies."

The additional insured endorsements shall be attached to the certificate of insurance and the certificate of insurance shall also state:

"The additional insured endorsement is attached to the certificate of insurance."

WORKERS COMPENSATION:

The Company shall maintain in force workers' compensation coverage in accordance with the statutory requirements and minimum limits of the State of Tennessee and shall require all subcontractors to do likewise.

Employer's Liability	$100,000.00	Each Accident
	$500,000.00	Disease-Policy Limit
	$100,000.00	Disease-Each Employee

AUTOMOBILE LIABILITY:

Covering owned, non-owned, and hired vehicles with minimum limits of:

$1,000,000.00	Each Occurrence - Combined Single Limits

COMMERCIAL GENERAL LIABILITY:

Comprehensive general liability insurance, including premises and operations, contractual liability, independent contractor's liability, and broad form property damage liability coverage with minimum limits of:

$1,000,000.00	General Aggregate
$1,000,000.00	Products-Completed Operations
$1,000,000.00	Personal and Advertising Injury
$1,000,000.00	Each Occurrence (Bodily Injury & Property Damage)
$50,000.00	Fire Damage any One Fire
$5,000.00	Medical Expense any One Person

PROPERTY INSURANCE:

The company shall be responsible for maintaining any and all property insurance on their own equipment and shall require all subcontractors to do likewise.
(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-30), 11-1-2011)

Sec. 6-88-31. Insurance required for emergency wrecker service and non-consent wrecker operators.

A. No license to operate an emergency wrecker service shall be issued, become effective or continue in force and effect unless there is in full force and effect a liability insurance policy covering the wrecker owner and his towing and wrecker operation as follows. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the commission and shall be filed with the secretary of the commission.

1. A garage keeper's legal liability policy covering fire, theft, explosion, and collision in the following amounts: fire, theft and explosion, all in the minimum amount of $100,000.00 collision;

2. A garage liability policy covering the operation of applicant's own business, equipment and/or vehicle in the amount of $750,000.00 combined single limits to cover bodily injury, including death and property damage.

B. The policy or policies must contain an endorsement providing for 30 days' notice to the city in the event of any material change or cancellation of the policy or policies.

C. The City of Memphis shall be named as an additional insured on each policy provided in this section as set forth in paragraph (A).

D. Those permitted to operate a wrecker service or emergency wrecker service shall comply with the insurance requirements contained in this section if they engage in non-consent tows.
(Ord. No. 5133, § 1(part), 4-18-2006)

Editor's note—Paragraph 1 of this subsection is set out exactly as it appeared in Ordinance 5133.

Sec. 6-88-32. Wrecker application.

Each person applying for a license to operate a wrecker service or an emergency wrecker in the City of Memphis shall pay a one-time fee of $500.00 to have the application investigated by the director of police services or his duly authorized designee which shall include the inspection of each wrecker, storage facility and all remaining requirements.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-33. Issuance of wrecker decals; transfer and display.

When an application for a license under this chapter has been approved by the director of police services and or his duly authorized designee, a wrecker decal shall be issued through the permits office.

1. No person shall operate a wrecker used for towing purposes to remove vehicles from any street, alley, road, highway, or thoroughfare or within the area of the city or for towing vehicles over the area of the city unless a wrecker decal approved by the director of police services or his/her duly authorized designee is obtained from the permits office for each such wrecker vehicle.

2. A wrecker decal issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred. Written notification must be submitted to the permits office immediately upon the licensee terminating the wrecker service or upon revocation.

3. A current wrecker decal, issued by the permits office, shall be prominently and conspicuously displayed on each wrecker at all times.

4. Types of decals.

   a. General purpose. A general purpose decal permits towing of vehicles where the owner has consented to the control of the vehicle to a third party such as a repair shop; repossessions but not for violations whether private property or otherwise.

   b. Non-consent. A non-consent decal permits the towing of vehicles for violations whether private property, city, state or federal violations.

   c. Emergency. The term "emergency wrecker service" means the removal of motor vehicles from the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government when there is an emergency situation. An emergency decal will signify that general purpose and non-consent towing are also authorized.

(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-33), 11-1-2011)

Sec. 6-88-34. License and decal responsibility.

Upon approval of a wrecker service license it shall be the responsibility of the applicant to purchase from the permits office a wrecker decal and any other such decals which shall at all times be prominently displayed on the windshield of each wrecker used for towing purposes.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-35. Expiration and renewal—Decal fees.

A. All wrecker decals issued under this article shall expire on April 15 of each year and shall be renewed between March 1 and April 15 of each year.

B. A decal fee of $50.00 for each wrecker vehicle in use shall be paid to the permits office to defray the cost of administration of this chapter. This fee will be required for all wrecker services, emergency and non-consent, unless the application is made after September 1, in which event such fee shall be $25.00 for any new truck placed in use or any newly licensed company.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-36. Reserved.

Sec. 6-88-37. Reserved.

Sec. 6-88-38. Reserved.

Sec. 6-88-39. Reserved.

Sec. 6-88-40. Reserved.

ARTICLE 3. DRIVERS, DRIVER HELPERS AND EMPLOYEES

Sec. 6-88-41. Wrecker owner's responsibilities—Compliance required.

A. No wrecker owner shall permit any of its drivers or driver helpers while operating a wrecker to engage in any activities or practices contrary to the public safety or welfare, or contrary to the proper discharge of their duties in the course of their employment.

B. Each wrecker owner shall be responsible for its employees complying with the laws of the City of Memphis, the State of Tennessee, the United States, and the rules and regulations of the City of Memphis which reflect on the fitness of such employees to be employed in the operation of a wrecker service. Any violations by the employees of a wrecker owner shall be cause for revocation, suspension, probation or failure to renew the license of the wrecker company and the permits of the drivers or driver helpers.
(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-42. Reserved.

Sec. 6-88-43. Reserved.

Sec. 6-88-44. Reserved.

Sec. 6-88-45. Reserved.

Sec. 6-88-46. Reserved.

Sec. 6-88-47. Reserved.

Sec. 6-88-48. Reserved.

Sec. 6-88-49. Reserved.

ARTICLE 4. HEARINGS, VIOLATIONS AND APPEAL

Sec. 6-88-50. Violations.

A. It is declared that the following acts are prohibited and unlawful and the license or permit of any person doing any such acts may be revoked, suspended, placed on probation or not renewed. The director of police services or his authorized designee may suspend or remove from the emergency wrecker call list, or revoke or suspend the permit of any wrecker operator for any of the following reasons:

1. If the permit was procured by fraudulent conduct or false statement of a material fact, or if a fact concerning the applicant was not disclosed at the time of his making application that would have constituted just cause for refusing to issue the permit.

2. If the permittee proceeds to the scene of an accident in violation of the provisions of this chapter.

3. If the permittee uses a short wave or police radio to obtain information as to location of the scene of an accident.

4. If the permittee pays any person not involved in the accident for information as to the location of the accident.

5. If the permittee has violated the fee schedule by overcharging or has violated any of the rules and regulations established pursuant to section 6-88-18 by the director of police services.

6. If the permittee fails to comply with all reasonable and lawful requests of the owner or operator of the vehicle to be towed to the requested destination.

7. If the permittee removes or transports any vehicle, the owner of which is in violation of any law of the City of Memphis or of the State of Tennessee, except by explicit instructions of a Memphis police officer.

8. If the permittee disregards the instruction of any person under the division of police services during the transportation of the vehicle to its destination.

9. If the permittee waits for employment by standing or parking upon any street, alley, road, highway, thoroughfare or upon public property.

10. If the permittee interferes with the orderly flow of traffic along the streets, alleys, roads, highways, or thoroughfares, except upon the direction of any person under the division of police services.

11. If the permittee invites or permits loitering within or near his wrecker.

12. If the permittee transports a vehicle other than by the most direct and safest route and without delay from the point of pick-up to the assigned destination.

13. If the permittee fails to comply with any of the ordinances of the City of Memphis, the State of Tennessee, the United States or the rules and regulations of the director of police services which reflect unfavorably on the fitness of the driver, the driver helper, or employee to be employed in the operation of a wrecker service.

(Ord. No. 5133, § 1(part), 4-18-2006)

Sec. 6-88-51. Penalties—Fines, suspensions, revocations.

A. *Hearing before permits administrator.* If it appears that a wrecker service or wrecker service license holder has violated any of the aforementioned requirements or rules and regulations the permits administrator shall have the authority to conduct a hearing with the wrecker service representatives and/or wrecker service license holder upon 48 hours' notice. If violations are found to have occurred, the permits administrator may suspend the wrecker service license and/or wrecker driver's permit up to a period not to exceed ten days. Upon expiration of the suspension, the wrecker service license holder license and/or permit will not be reinstated until such time that the requirement, rule or regulation violation is corrected and the wrecker operator meets all provisions of this chapter. Any decision by the permits administrator may be appealed within five days by the transportation commission.

B. *Hearing before transportation commission.* If any wrecker service or wrecker operator has been charged by the permits office with any of the aforementioned violations that if found guilty the penalty may require suspension or revocation of the wrecker service or wrecker operator upon the streets of the city for a period of more than ten days, the permits administrator shall notify the wrecker operator in writing of the nature of the offense and each shall appear before the transportation commission. At such hearing before the transportation commission the wrecker service or operator shall be allowed to answer such charges. Penalties levied against the wrecker service or wrecker operator include, but are not limited to fines, suspensions, and revocations. Penalties are not subject to appeal, the decision of the transportation commission being final.

C. *Revocation.* Unless good cause is shown, any wrecker operator whose wrecker service license and/or wrecker driver's permit has been revoked shall not be eligible to reapply for a license for a period of one year from the date of such revocation.

(Ord. No. 5133, § 1(part), 4-18-2006; Ord. No. 5414, § 1(41-51), 11-1-2011)

Charter reference—Authority to regulate tow-cars, § 745.

ARTICLE 5. METHODS OF PAYMENT

Sec. 6-88-55. Payment.

A. Every wrecker company or towing operator and/or storage facility doing business within the corporate limits of the City of Memphis shall accept payment by:

1. Cash; and

2. Major credit card (i.e., Visa, Mastercard, American Express); and

3. Any additional forms of payment accepted by the City of Memphis impound lot, which shall be accepted within 60 days of implementation by the city.

(b) There may be an additional fee of no more than four percent charged for use of a credit card.

(Ord. No. 5818, § 1, 3-22-2022)

CHAPTER 6-92. EQUAL BUSINESS OPPORTUNITY PROGRAM*

Sec. 6-92-1. Equal business opportunity program.

***Editor's note—**Ord. No. 5662, § 1, adopted Nov. 7, 2017, repealed the former Ch. 6-92, §§ 6-92-1—6-92-7, and enacted a new Ch. 6-92 as set out herein. The former Ch. 6-92 pertained to similar subject matter and derived from Ord. No. 5384, §§ 1(2-325—2-331), 10-26-2010; Ord. No. 5632, §§ 2—13, 10-18-2016.

Sec. 6-92-2. Equal business opportunity (EBO) subcontracting program.
Sec. 6-92-3. Equal business opportunity goals.
Sec. 6-92-4. Requirements for bidders, contractors, and joint ventures.
Sec. 6-92-5. Mediation of disputes between joint venture team members and/or prime and subcontractors.
Sec. 6-92-6. Penalties for noncompliance.
Sec. 6-92-7. Outreach and assistance to subcontractors by the office of business diversity and compliance (OBDC).

Sec. 6-92-1. Equal business opportunity program.

A. *Statement of policy.* Under all the circumstances and based on the factual predicate which has been established after careful study and review, the city has a compelling interest to fully remedy the ongoing effects of past and present discrimination against minority and women business owners in both the public and private sectors of its marketplace. The city has a compelling interest to assure that public dollars derived from tax collection and revenues are not utilized to further discriminatory practices. It is the policy of the city to promote full and equal business opportunity for all persons doing business with the city. The city must ensure that firms seeking to participate in contracting and procurement activities with the city are not prevented from doing so on the basis of the race or gender of their owners. The city is committed to ensuring that it is not a passive participant in any private scheme of discrimination. To ensure that businesses are not discriminated against with regard to prime contracting, subcontracting or other partnering opportunities with the city, the city has developed an equal business opportunity program.

B. *Title.* This chapter shall be known as the "City of Memphis, Equal Business Opportunity Program Ordinance."

C. *Adoption of the findings and conclusions of the Griffin and Strong, P.C. Report*. The city council adopts the findings and conclusions of the Griffin and Strong, P.C. Report dated August 2016 (referred to in this chapter as the "GSPC report").

D. *Definitions.* The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

African American shall mean persons having origins in any black racial group of Africa.

African American business enterprise (AABE) shall mean a business which is an independent and continuing enterprise for profit, performing a commercially useful function, and which is owned and controlled by one or more African Americans.

Annual participation goals shall mean the targeted levels established by city council of relevant markets for minority and women participation in city professional contracts, goods and nonprofessional services contracts, and construction contracts calculated in accordance with this chapter and applicable only to specific gender, ethnic or ethnic minority groups for which goals have been set.

Asian shall mean persons having origins in any of the original people of the Far East, Southeast Asia, the Indian subcontinent or the Pacific Islands.

Asian American business enterprise (ABE) shall mean a business which is an independent and continuing enterprise for profit, performing a commercially useful function, and which is owned and controlled by one or more Asian individuals.

Best bid shall be defined as the responsive quotation, proposal, solicitation or offer that meets specifications, including, if applicable, any project participation goal as set in the bid packet specifications.

Bid shall mean written quotations, proposals or offers by a bidder or contractor to perform or provide labor, materials, equipment, supplies or services to the city for a price submitted in response to competitive bidding solicitation issued by the city.

Bidder shall mean any business enterprise that submits a bid or proposal as defined herein.

Boards, commissions, and quasi-governmental agencies shall mean any entity that the mayor of the city holds appointment power to effect membership.

Business enterprise shall mean a corporation, partnership, sole proprietorship, joint venture, joint-stock company, professional association or any other legal entity, operated for profit that is properly licensed and/or otherwise authorized to do business in the State of Tennessee.

Certification or recertification shall mean the official recognition and approval by the office of business diversity and compliance (OBDC) that a business meets the qualification criteria of an AABE, HBE, ABE, NABE, or WBE, as set forth in this chapter. Certification or recertification relates to qualifications regarding ownership, control, and the applicant's economic disadvantage, not the quality of the service or product. The office of business diversity and compliance will serve as the central certification agency for all city funded projects with acceptance of certifications from third party certifying agencies as a consideration by OBDC.

Certified AABE, HBE, ABE, NABE, or *WBE* shall mean an AABE, HBE, ABE, NABE or WBE which has been certified by a city approved central certification agency and approved by the office of business diversity and compliance (OBDC).

Commercially useful function. For the purpose of determining whether a business enterprise is performing a commercially useful function, OBDC shall consider all of the facts in the record, viewed as a whole, including without limitation the following:

1. An MWBE performs a commercially useful function when it is responsible for execution of the work of the contract and is carrying out its responsibilities by actually performing, managing, and supervising the work involved.
2. To perform a commercially useful function, the MWBE must be responsible, with respect to material and supplies used on the contract, for negotiating price, determining quality and quantity, ordering the material, and installing (where applicable) and paying for the material itself.
3. To determine whether an MWBE is performing a commercially useful function, OBDC will evaluate the amount of work subcontracted by the MWBE, industry practices regarding subcontracting, whether the amount the MWBE is to be paid under the contract is commensurate with the work it is actually performing, the MWBE credit claimed for its performance of the work, and other relevant factors.
4. An MWBE does not perform a commercially useful function if its role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of MWBE participation. In determining whether an MWBE is such an extra participant, OBDC will examine similar transactions, particularly those in which MWBEs do not participate.

Construction contracts shall mean those written agreements between a contractor and the city for the construction, repair, rehabilitation, alteration, conversion or extension of buildings, parks, utilities, streets or other improvements or alteration to real property. Construction projects include the contracts for the labor portion of a project as well as equipment and other supplies to be incorporated in a project.

Contract shall mean and include any agreement between the city and a person or business enterprise to provide or procure labor, materials, equipment, supplies

and services to, for or on behalf of the city. A "contract" shall include an agreement between the city and a person or business enterprise to perform professional architectural and engineering services, construction related services or fund the performance of such services, nonprofessional services and/or goods. Except as otherwise specifically defined in this section, a "contract" does not include:

1. Awards made by the city to a nonprofit entity which the city offers assistance, guidance, or supervision on a project or program and the recipient of the grant award uses the grant monies to provide services to the community;
2. Sales transactions where the city sells its personal or real property;
3. A loan transaction where the city is acting as a debtor or a creditor;
4. Lease and franchise agreements;
5. Agreements to use city real property; or
6. Gifts of materials, equipment, supplies or services to the city.

Contract compliance officer (CCO) means the director of the office of business diversity and compliance, or the city official appointed by the mayor to specifically manage designated sections of the program authorized by this chapter.

Contractor shall mean any person or business enterprise that submits a bid or proposal to provide labor, goods or services to the city by contract for profit in the area of construction or construction-related activities; and, any person who supplies or provides labor, goods or services to the city by contract for profit; and any person who is a subcontractor under any such contract.

Control or *controlled:* For the purpose of determining whether the owner or owners of a potential MWBE (as used in this definition, "MWBE-owner", which shall denote one or more owners) controls the potential MWBE, OBDC shall consider all of the facts in the record, viewed as a whole, including without limitation the following:

1. For an MWBE-owner to be deemed to control the potential MWBE, the potential MWBE must be independent. An independent business enterprise is a business whose viability does not depend on its relationship with another firm or firms.
   a. In determining whether a potential MWBE is independent, OBDC will scrutinize relationships with other firms, in such areas as personnel, facilities, equipment, financial and/or bonding support, and other resources.
   b. OBDC will consider whether present or recent employer/employee relationships between the MWBE-owner and other firms or persons associated with other firms compromise the independence of the potential MWBE firm.
   c. OBDC will examine the potential MWBE's relationships with prime contractors to determine whether a pattern of exclusive or primary dealings with a prime contractor compromises the independence of the potential MWBE firm.
   d. In considering factors related to the independence of a potential MWBE firm, OBDC will consider the consistency of relationships between the potential MWBE and other firms with normal industry practice.
2. A potential MWBE firm must not be subject to any formal or informal restrictions which limit the customary discretion of the MWBE-owner. There can be no restrictions through corporate charter provisions, by-law provisions, contracts or any other formal or informal devices (e.g., cumulative voting rights, voting powers attached to different classes of stock, employment contracts, requirements for concurrence by persons other than the MWBE-owner, conditions precedent or subsequent, executory agreements, voting trusts, restrictions on or assignments of voting rights) that prevent the MWBE-owner, without the cooperation or vote of any other individual, from making any business decision of the business enterprise. This paragraph does not preclude a spousal co-signature on documents.
3. The MWBE-owner must possess the power to direct or cause the direction of the management and policies of the business enterprise and to

make day-to-day as well as long-term decisions on matters of management, policy and operations.

a. An MWBE-owner must hold the highest officer position in the company (e.g., chief executive officer or president).

b. In a corporation, the MWBE-owner must control the board of directors.

c. In a partnership, the MWBE-owner must serve as a general partner, with control over all partnership decisions.

4. Individuals who are not the MWBE-owner may be involved in an MWBE as owners, managers, employees, stockholders, officers, and/or directors. Such individuals must not, however, possess or exercise the power to control the business enterprise, or be disproportionately responsible for the operation of the business enterprise.

5. The MWBE-owners of the business enterprise may delegate various areas of the management, policymaking, or daily operations of the business enterprise to other participants in the firm, regardless of whether these participants are African American, Hispanic, Asian, Native American, or women. Such delegations of authority must be revocable, and the MWBE-owner must retain the power to hire and fire any person to whom such authority is delegated. The managerial role of the MWBE-owner in the business enterprise's overall affairs must be such that OBDC can reasonably conclude that the MWBE-owner actually exercises control over the business enterprise's operations, management, and policy.

6. The MWBE-owner must have an overall understanding of, and managerial and technical competence and experience directly related to, the type of business in which the business enterprise is engaged and the business enterprise's operations. The MWBE-owner is not required to have experience or expertise in every critical area of the business enterprise's operations, or to have greater experience or expertise in a given field than managers or key employees. The MWBE-owner must have the ability to intelligently and critically evaluate information presented by other participants in the business enterprise's activities and to use this information to make independent decisions concerning the business enterprise's daily operations, management, and policymaking. Generally, expertise limited to office management, administration, or bookkeeping functions unrelated to the principal business activities of the business enterprise is insufficient to demonstrate control.

7. If state or local law requires the owner of a particular type of firm to have a particular license or other credential, then the MWBE-owner of that type of firm must possess the required license or credential in order to be deemed in control. If state or local law does not require an owner to have such a license or credential, OBDC will not deny certification solely on the ground that the MWBE-owner lacks the license or credential. However, OBDC may take into account the absence of the license or credential as one factor in determining whether the MWBE-owner actually controls the firm.

8. OBDC may consider differences in remuneration between the MWBE-owner and other participants in the business enterprise in determining whether the MWBE-owner controls the business enterprise. Such consideration shall be in the context of the duties of the persons involved, normal industry practices, the business enterprise's policy and practice concerning reinvestment of income, and any other explanations for the differences proffered by the business enterprise. OBDC may determine that a business enterprise is controlled by its MWBE-owner although the MWBE-owner's remuneration is lower than that of some other participants in the business enterprise. In a case where someone other than the MWBE-owner formerly controlled the business enterprise, and the MWBE-owner now controls it, OBDC may consider a difference between the remuneration of the former and current owner of the business enterprise as a factor in determining who controls the business enterprise, particularly when the former owner remains involved with the business enterprise and continues to receive greater compensation than the current MWBE-owner.

9. In order to be viewed as controlling a business enterprise, an MWBE-owner cannot engage in outside employment or other business interests that conflict with the management of the business enterprise or prevent the MWBE-owner from devoting sufficient time and attention to the affairs of the business enterprise to control its activities. For example, absentee ownership of a business and part-time work in a full-time firm are not viewed as constituting control except for franchise ownership. However, an MWBE-owner could be viewed as controlling a part-time business that operates only on evenings and/or weekends, if the MWBE-owner controls the business enterprise when it is operating.

10. An MWBE-owner may control a business enterprise even though one or more of the MWBE-owner's immediate family members (who themselves are not African American, Hispanic, Asian, Native American, or women) participate in the business enterprise as a manager, employee, owner, or in another capacity. Except as otherwise provided in this paragraph, OBDC must make a judgment about the control the MWBE-owner exercises vis-a-vis other persons involved in the business enterprise as it does in other situations, without regard to whether or not the other persons are immediate family members. If OBDC cannot determine that the MWBE-owner, as distinct from the family as a whole, controls the business enterprise, then the MWBE-owner has failed to carry her/his burden of proof concerning control, even though s/he may participate significantly in the business enterprise's activities.

Eligible projects means those projects that have a participation MWBE goal set on it.

Expertise means demonstrable skills or knowledge of the field of endeavor in which certification is sought, including licensure where required.

Front shall mean a business which purports to be an MWBE but which is actually owned and/or controlled in a manner which is inconsistent with the requirements for certification set out in this chapter.

Fronting activity shall be defined as any occurrence of collusion between a MWBE and a majority business enterprise for the purpose of exploiting that MWBE's minority or female certification status to primarily benefit a majority firm without the performance of any commercially useful function by that MWBE.

Good faith efforts means the steps undertaken to obtain MWBE participation for subcontracting opportunities related to the bid proposal submitted. Minimum standards are set out in section 6-92-4(D).

Hispanic shall mean persons of Spanish or Portuguese culture with origins in Mexico, South or Central America or the Caribbean Islands, regardless of race.

Hispanic American business enterprise (HBE) shall mean a business which is an independent and continuing enterprise for profit, performing a commercially useful function, and which is owned and controlled by one or more Hispanic individuals. For purposes of this chapter alone, references to racial ownership of businesses shall include HBEs.

Joint venture shall mean an association of two or more persons, partnerships, corporations, or any combination of them, established to carry on a single business activity that is limited in scope and duration. The agreement establishing the joint venture, partnership or other multi-entity relationship shall be in writing. Further, participation in a joint venture shall be based on the sharing of real economic interest in the venture and shall include proportionate control over management, interest in capital acquired by the joint venture and interest in earnings.

Memphis Metropolitan Statistical Area (MSA) shall mean the geographical area consisting of Shelby, Tipton, Fayette, Crittenden, Desoto, Tunica, Tate, and Marshall counties.

Minority and diverse used interchangeably along with women business enterprise (MWBE) means a business which is an independent and continuing operation for profit, performing a commercially useful function, and which is owned and controlled by one or more African Americans, Hispanics, Asians, Native Americans, or women, or a combination thereof.

Minority-owned business enterprise (MBE) means a business (including, without being limited to, a sole proprietorship, partnership, corporation, joint venture or any other business or professional entity):

1. Which is at least 51 percent owned by one or more minority persons, or, in the case of

publicly-owned business, at least 51 percent of all classes of the stock of which is owned by one or more minority persons; and

2. Whose management, policies, major decisions and daily business operations are independently controlled by one or more of such minority persons; and

3. Which performs a commercially useful function; and

4. Minority person means those persons, citizens of the United States and lawfully admitted resident aliens, who are African American, Hispanic, Asian, or Native American.

MWBE advisory committee means the committee, composed of the contract compliance officer/director of OBDC, the director of finance or designee, the city engineer or designee, the city attorney or designee, the purchasing agent or designee, the director of information systems or designee, responsible for recommending to the city council the annual minority and women owned business enterprise procurement participation goals.

Native American shall mean persons having origins in any of the original people of North America, including American Indians, Eskimos and Aleuts.

Native American business enterprise (NABE) shall mean a business which is an independent and continuing enterprise for profit, performing a commercially useful function and which is owned and controlled by one or more Native Americans.

North American Industry Classification System (NAICS) Code shall mean the standard code that classifies industries by the type of activity in which such industries are primarily engaged.

Office of business diversity and compliance (OBDC) shall mean the office of business diversity and compliance (OBDC) in the city.

Owned, managed and independently controlled means the one or more minority persons or women who own(s) the requisite interest in or assets of a business applying for certification, shall possess equivalent incidents of such ownership, including an equivalent interest in profit and loss, and shall have contributed an equivalent percentage of capital or equipment and expertise to the business. Ownership shall be measured as though not subject to the community property interest of a spouse, if both spouses certify in writing that the nonparticipating spouse relinquished control over his or her community property interest in the subject business (but by doing so is not required to transfer ownership interest or to characterize the property as the separate property of the spouse). The one or more minority or women shall have recognized ultimate control over all day-to-day operations by employees of the business, and by those with whom it does business. The ownership and control of the firm shall be real, substantial, and continuing and shall go beyond the pro forma ownership of the firm as related in its ownership documents.

Owned or *ownership:* In determining whether a potential MWBE is owned by one or more African Americans, Hispanics, Asians, Native Americans, or women, OBDC will consider all of the facts in the record, viewed as a whole, including without limitation the following:

1. OBDC shall deem the owner of a business enterprise to be whoever possesses at least 51 percent of the business enterprise. There may be more than one owner.

   a. In the case of a corporation, such individuals must possess at least 51 percent of each class of voting stock outstanding and 51 percent of the aggregate of all stock outstanding.

   b. In the case of a partnership, such individual(s) must possess at least 51 percent of each class of partnership interest. Such ownership must be reflected in the business enterprise's partnership agreement.

   c. In the case of a limited liability company, such individual(s) must possess at least 51 percent of each class of member interest.

2. All securities which constitute ownership of an entity for purposes of establishing it as an AABE, HBE, ABE, NABE or WBE must be held directly by African American, Hispanic, Asian, Native American or women individuals or by AABEs, HBEs, ABEs, NABEs or WBEs. No securities held in trust or by any guardian for a minor shall be considered held by African Americans, Hispanics, Asians, Native Americans or women in determining the ownership or control of a corporation.

3. Ownership shall be measured as though not subject to the community property interest of a spouse if both spouses certify that only one spouse owns the business and if such assertion is supported by the totality of the evidence considered by the office of business diversity and compliance (OBDC).

4. OBDC must find that the individual's ownership is real, substantial, and continuing, going beyond pro forma ownership of the business enterprise as reflected in ownership documents. The individuals must enjoy the customary incidents of ownership, and share in the risks and profits commensurate with their ownership interests, as demonstrated by the substance, not merely the form, of arrangements.

Project participation goal shall mean a goal established for a particular project or contract and calculated as authorized in section 6-92-3(B).

Proposer shall mean a person or business enterprise which responds to a contract opportunity with the city, solicited as a request for proposal and that possesses the requisite expertise to perform the professional services sought.

Satisfactorily completed or *satisfactory completion* shall mean when all of the tasks called for in the subcontract have been accomplished and documented as required by the city. When the city has made an incremental acceptance of a portion of a prime contract, the work on a subcontractor covered by the acceptance is deemed to be satisfactorily completed.

Subcontractor shall mean any person or business enterprise providing goods, labor or services to a contractor if such goods, labor or services are procured in fulfillment of the contractor's obligations arising from a contract with the city. Subcontractor includes every level of subcontracting required to fulfill a contract with the city.

Supplier shall mean a warehouse or manufacturer of materials, supplies or equipment which contracts directly with a bidder to provide such materials, supplies or equipment on an eligible project which involves a trade or service. For purposes of measuring the total contract dollars awarded or paid to suppliers on eligible projects, only amounts paid to suppliers of goods customarily and ordinarily used based upon standard industry or trade practices shall be counted.

Women shall mean those persons, citizens of the United States and lawfully admitted resident aliens, who are of the female gender, and not otherwise included in one of the specific ethnic minority groups.

Women business enterprise (WBE) shall mean a business (including, without being limited to, a sole proprietorship, partnership, corporation, joint venture or any other business or professional entity):

1. Which is at least 51 percent owned by one or more women, or, in the case of publicly-owned business, at least 51 percent of all classes of the stock of which is owned by one or more women; and

2. Whose management, policies, major decisions and daily business operations are independently controlled by one or more of such women; and

3. Which performs a commercially useful function; and

4. Women means those persons, citizens of the United States and lawfully admitted resident aliens, who are of the female gender, and not otherwise included in one of the specific ethnic minority groups.

E. *Administrative authority; powers and duties.* It is the responsibility of every officer, director, administrator, manager, and supervisor of the city to manage the daily administration of the provisions of this chapter and to assure that the intent of this chapter is carried out in all procurement activities and opportunities.

1. The overall provisions of this chapter shall be administered and enforced by the contract compliance officer ("CCO") and, in pertinent parts, in conjunction with the division of finance.

2. The CCO's powers and duties under this chapter include the following:

   a. Establishment of written procedures, informal guidelines, and forms as may be necessary to effectuate this chapter.

   b. Monitoring compliance with the requirements of this chapter.

   c. Assist, where directed, the division of finance in establishing written procedures to implement this chapter.

d. Development of databases to be maintained as a public record of certified AABEs, HBEs, ABEs, NABEs and WBEs.

e. Maintenance of documents, forms, records or data regarding this program as provided in this chapter, including:

1. Documents, forms, records or data regarding the dollar amounts subcontracted to or expended for services performed by subcontractors and suppliers on eligible projects, including the race and gender ownership of each subcontractor and supplier, and

2. Documents, forms, records or data regarding certified AABEs, HBEs, ABEs, NABEs and WBEs.

f. Development and implementation of outreach and assistance programs to promote equal contracting opportunities for all businesses that wish to do business with the city, in accordance with section 6-92-7.

g. Provide information and assistance to MWBEs to increase their ability to compete effectively for the award of city contracts.

h. Provision of information to potential bidders/proposers which shall include names and contact information of certified MWBEs for each eligible project, to reinforce and support outreach efforts by potential bidders/proposers.

i. Keep MWBEs apprised of opportunities for technical assistance and training.

j. In conjunction with the division of finance, monitor contracts for compliance with MWBE participation goals throughout the contract term.

k. Ensuring compliance with requirements for joint venture arrangements under section 6-92-4(G) as applicable.

l. Determination of whether any of the penalties set forth in section 6-92-6 should be applied to a business.

m. Monitor the city's progress toward achievement of MWBE program goals.

n. Attendance at pre-bid, pre-proposal, pre-construction and pre-work conferences.

o. Assist, where directed, the division of finance in preparing compliance guidelines for contractors which will include monitoring and reporting procedures and recommendations for actions to be taken should noncompliance OBDC.

p. Investigation of alleged violations of this chapter, and the issuance of written statements following any determination of such investigation stating the reasons therefore and any penalty to be imposed.

q. Issue an exit interview for any contract which includes MWBE prime contractor participation as a joint venture, partner. The purpose of the exit interview is to ensure that MWBEs are actually performing services on joint ventures.

r. Collect data on diversity plans and outcomes from all boards, commissions and quasi-governmental agencies on a quarterly basis.

F. *Certification.*

1. For purposes of contracting with the city under this program, a minority or woman owned business enterprise must be located within the Memphis MSA (Crittenden County in Arkansas (AR), Desoto, Marshall, Tate, and Tunica Counties in Mississippi (MS), and Fayette, Shelby and Tipton Counties in Tennessee).

2. For purposes in contracting with the city under this program a minority or women owned business enterprise must be certified as such by a city-approved central certification agency or any other certification agency deemed appropriate by the office of business diversity and compliance, and/or the city. The city shall serve as the primary certifying agency for all the publicly funded city projects.

3. Reciprocal certification may be accepted by the office of business diversity and compliance as follows:

a. Submission of a current Shelby County LOSB certificate and sworn affidavit

testifying to annual revenues no greater than $250,000.00, for all industries except construction, engineering, architecture, or technology enterprises; and

b. Verification by OBDC staff of minority or woman owned status; and

c. Proof of registration with OBDC through B2GNow and city purchasing office.

4. Certifications by the city will include two tiers:

a. Tier 1 (program participants). MWBEs who meet the SBA size standards and criteria to be certified as a minority or woman owned business based on race or gender. These MWBEs may be included in subcontracting participation goals for contracts directly with the city during the contract evaluation process.

b. Tier 2 (directory participants). MWBEs who meet the criteria as a minority or woman owned business based on race or gender regardless of the SBA size standards. These MWBEs may be included in subcontracting participation goals that specify a tier 2 goal under the EBO Program for contracts directly with the city. However, they may also be considered an eligible MWBE for participation goals on other public projects, such as quasi-governmental agencies, and private sector projects during the contract evaluation process and be included in the reporting of performance of such projects.

c. Submission of a current certification certificate and sworn affidavit testifying to all criteria set forth in this chapter will be required to participate as a tier 1 or tier 2 MWBE.

5. False/misleading statements. A business found to have intentionally and willfully provided false or misleading information for the purpose of obtaining MWBE certification or re-certification, or otherwise acting as a front or engaged in fronting activity as defined herein, as determined by an investigation and review by the CCO/director of business diversity and compliance, at the discretion of the director, may be subject to any or all of the following penalties:

a. Denial of certification or immediate decertification;

b. Termination of any active contracts with the city and any obligation to make future payments otherwise due under said contracts;

c. Precluded from bidding on or participating in any contract with the city as a prime or subcontractor for a minimum of three years but not to exceed ten years;

d. Repayment of all payments made by the city during the period while operating fraudulently as a MWBE;

e. Reporting of the findings to the chair of the city council and any other agency or private business known to be doing business with the fraudulent MWBE.

G. *Graduation clause.* Certified AABEs, HBEs, ABEs, NABEs, or WBEs shall be deemed graduated from being certified as a tier 1 for the purposes of the EBO program as AABEs, HBEs, ABEs, NABEs, or WBEs when the MWBE has sales that exceed the average sales for the industry for eight consecutive years, as determined by the federal tax returns for that firm and the NAICS Codes designated by the small business administrations. Small business size standards are as outlined in Title 13 CFR Part 121. If an MWBE is engaged in more than one industry, then its graduation level shall be determined by a weighted average of sales for all industries in which the MWBE is engaged. The office of business diversity and compliance (OBDC) will continue to ensure that African Americans, Hispanics, Asians, Native Americans and women are not discriminated against in the procurement process, whether or not such companies are eligible for certification as MWBEs.

1. Graduation procedures. Any interested party may request an evaluation of an M/WBE firm. That evaluation will be performed at the time of the recertification for the MWBE. Upon recertification, a firm will be evaluated for graduation from the program. Once the office of business diversity and compliance (OBDC) has been notified by the certifying agency that

the firm has exceeded the size standards established by the NAICS, the following steps will be followed:

a. Notification. The OBDC shall issue a letter of notification to the firm detailing its intent to graduate the firm from the program. The letter of notification shall set forth findings, based on the facts and in accordance with law and regulations, for every material issue relating to the basis of the program graduation with specific reasons for each finding.

b. Appeal. The firm will be allowed 45 days from the date of the letter to appeal the decision. To appeal the decision, the firm must submit in writing to the OBDC information which would explain why the proposed basis of graduation is not warranted. Upon receipt of the appeal, the office of contract compliance will notify the firm in writing of the receipt of the appeal.

c. Review. If the firm appeals its graduation from the program within the requisite 45 days, the appeal will be reviewed by a committee composed of the director of finance, purchasing agent, and city attorney or designee. Within 15 days of receipt of the appeal, a written decision will be issued to the firm by the committee via the OBDC.

d. Post graduation. After the effective date of firm's graduation from the program as provided for herein, a firm is no longer eligible to participate in or receive assistance from the MWBE program. However, such firm is obligated to complete previously awarded contracts and/or subcontracts, including any priced bids that may be exercised.

e. Firms that graduate will be eligible for a one-time re-entry upon demonstration that the firm can meet the revenue requirements for three consecutive years following the date of its notification of graduation from OBDC. If the firm subsequently again meets the graduation criteria, no further re-entry will be permitted.

H. *Decertification.* The office of business diversity and compliance (OBDC) may decertify a business that it finds is not or is no longer a bona fide AABE, HBE, ABE, NABE or WBE. Businesses decertified for reasons other than by voluntary request may not apply for recertification for such time as may be specified, up to two years. A business that is decertified may file an appeal within 30 days to the director of OBDC.

1. Any of the following reasons, which are not intended to be all-inclusive, are sufficient grounds for decertification:

   a. The business has changed to the extent that it no longer satisfies the ownership, control, and/or other requirements set forth in section 6-92-1(D);

   b. The business fails to submit within a reasonable time period information requested by the office of business diversity and compliance (OBDC);

   c. The business ceases to be a viable enterprise for profit because of involuntary bankruptcy, dissolution or other cessation of commerce;

   d. Information or evidence that was not available to the office of business diversity and compliance (OBDC) at the time the firm was certified is now available and said information, if known at the time of certification review would have resulted in a denial of certification;

   e. Information was concealed or misrepresented by the firm in connection with the certification application or review conducted by the office of business diversity and compliance (OBDC);

   f. A change in the certification standard or requirements of the city has occurred since the certification of the firm;

I. *Continuing duty.* Certified AABEs, HBEs, ABEs, NABEs and WBEs shall be under a continuing duty to inform the office of business diversity and compliance (OBDC) in writing of any changes in the AABE's, HBE's, ABE's, NABE's or WBE's business if, as a result of such changes, the AABE, HBE, ABE, NABE or WBE no longer satisfies the requirements of section 6-92-1(D).

(Ord. No. 5662, § 1(2-325), 11-7-2017)

Sec. 6-92-2. Equal business opportunity (EBO) subcontracting program.

A. *Program requirements.*

1. All bidders/proposers are required to make efforts to ensure that businesses are not discriminated against on the basis of their race, ethnicity or gender, and to demonstrate compliance with these program requirements at or prior to the time of bid opening, or upon request by OBDC. Bidders/proposers are required to ensure that prospective subcontractors, vendors, suppliers and other potential participants are not denied opportunities to compete for work on a city contract on the basis of their race, ethnicity, or gender, and must afford all firms, including those owned by racial or ethnic minorities and women, opportunities to participate in the performance of the business of the city to the extent of their availability, capacity and willingness to compete.

2. OBDC will review information submitted by bidders/proposers pertaining to efforts to promote opportunities for diverse businesses, including MWBEs, to compete for business as subcontractors and/or suppliers. A bidder is eligible for award of a city contract upon a finding by OBDC that the bidder has engaged in, and provided with its bid submission documentation of, efforts to ensure that its process of soliciting, evaluating and awarding subcontracts, placing orders, and partnering with other companies has been nondiscriminatory. To assist prime contractors in this effort, the office of business diversity and compliance (OBDC) shall set forth in the solicitation documents for the eligible project the availability of businesses, including certified MWBEs within the relevant NAICS Codes for such eligible project.

B. *Incorporating EBO chapter in contracts.*

1. All proposals, bid specifications and contracts for projects which have participating goals, will incorporate by reference this chapter and all city procedures established pursuant thereto, and will contain the following clause:

   "The contractor further agrees that its breach of the EBO provisions in the city's EBO ordinance shall subject it to any or all of the following penalties:

   a. If the contractor is a MWBE, denial of recognition as an approved MWBE, for purposes of contracting with the city, for a period not to exceed two years;

   b. Withholding of ten percent of all future payments on the involved project until it is determined that the contractor is in compliance;

   c. Exclusion from submitting a bid or proposals for a period not to exceed five years;

   d. Termination by the city of the contract;

   e. Any other penalty under section 6-92-6."

2. All contracts for projects with participation goals will require the prime contractor to pay all MWBE subcontractors their pro-rata share of progress payments made by the city to the prime contractor. The pro-rata share will be based on all work completed and materials furnished by the subcontractors in the period for which the progress payment was made. Payments will be made within a reasonable period of time (as specified by the city's EBO procedures), unless the prime contractor has good cause for not making any such payments. The payments may be reduced by the pro-rata share of retainage withheld from the prime contractor up to a maximum of five percent. The contracts will also require the prime contractor, prior to receiving a progress payment from the city, to certify that it has paid all previous progress payments to MWBE contractors, unless the contractor demonstrates good cause for not making any such payments and furnishes written notification of any such cause to the user division, the office of business diversity and compliance and the affected MWBE subcontractor.

3. All contracts for projects with participation goals will require the prime contractor to report all payments to and utilization of MWBE

subcontractors and all other subcontractors for review and approval before final payment is made by the city under the contract.

C. *Subcontractor project plan.*

1. Subcontractor project plan. Each successful bidder shall submit with her/his executed contract a completed and signed subcontractor project plan, in a form approved and provided by the office of business diversity and compliance (OBDC), which lists the name, address, telephone number and contact person of each subcontractor or other business to be used in the contract, the NAICS Code and the type of work or service each business will perform, the dollar value of the work and the scope of work, the ownership of each business by race and gender, if applicable the AABE, HBE, ABE, NABE, or WBE certification number of each business, and any other information requested by the office of business diversity and compliance (OBDC). However, each bidder shall submit with her/his bid the names, address, percent of bid allotted, dollar value of bid allotted to each MWBE. In order for the office of business diversity and compliance (OBDC) to officially consider a firm to be an MWBE, the MWBE firm must be approved by the office of business diversity and compliance (OBDC) and certified by a city approved certification agency prior to the bidder's submission of the bid or proposal.

D. *OBDC review of bidder submissions.* The OBDC shall determine whether a bidder has satisfied all contracting requirements as requested by this chapter, the subcontractor project plan, good faith effort documentation and its review of other relevant facts and circumstances, including complaints received as part of the bid or proposal process and other bidders. In reviewing the documents submitted by a bidder to determine whether the bidder has satisfied the good faith efforts requirement of this section, the office of business diversity and compliance (OBDC) will consider, among other things, the total project dollars subcontracted to or expended for services performed by other businesses, including certified MWBEs, whether such businesses perform commercially useful functions in the work of the contract based upon standard industry trade practices, whether any amounts paid to supplier businesses are for goods customarily and ordinarily used based upon standard industry trade practices, and the availability of certified MWBEs within the relevant NAICS Codes for such eligible project.

1. *Receipt of complaint of discrimination in the bid process.* The office of business diversity and compliance (OBDC) shall accept complaints of alleged discrimination during the bid process regarding any participant in the bid process. Where the complaint of discrimination is specific to the procurement which is under consideration by the city, the office of business diversity and compliance (OBDC) will investigate said complaint, determine its validity, and determine whether the actions complained of impact the bidder's responsiveness on the specific procurement. The accused will have the opportunity to review the complaint and respond in writing to the allegations of discrimination. Allegations of discrimination based on events, incidents or occurrences which are unrelated to the specific procurement may be placed in the bidder's file maintained in the OBDC. Complaints of discrimination will be one component taken under consideration when good faith efforts documentation has been filed.

2. *Determination of violation of EBO process.* Where the office of business diversity and compliance (OBDC) investigates a complaint of discrimination that is related to the specific bid process, as described in section 6-92-2(D)(1). above, the details of that investigation shall be recorded and maintained in the OBDC pursuant to section 6-92-2(D)(1).

E. *Equal business opportunity subcontracting program bid process.* The covenant of nondiscrimination, the subcontractor project plan, good faith efforts documentation and any other information required by OBDC in the solicitation document must be completed in their entirety by each bidder and submitted with the other required bid documents in order for the bid to be considered as a responsive bid. Failure to timely submit these forms, fully completed, will result in the bid being considered as a nonresponsive bid, and therefore, excluded from consideration.

F. *Contract progress.* The office of business diversity and compliance (OBDC) shall require contractors on eligible projects to complete and submit to OBDC documentation regarding their utilization of MWBEs,

along with all other pertinent records required by OBDC. Said documentation shall be in a format that is established by the office of business diversity and compliance (OBDC). These records will be submitted to OBDC monthly. The subcontractor project plan shall not be changed or altered after approval of the plan and award of the contract without the written approval of the OBDC. A written letter to the CCO requesting approval to change the subcontractor project plan must be submitted prior to any change in the plan or termination of an MWBE's contract.

G. *Database.* The city will maintain a database identifying MWBEs that will include the types of services provided by the business enterprise and contact information for the business enterprise. A list from the database will be made available to bidders to assist them in their efforts to meet the requirements of the equal business opportunity subcontracting program. The list prepared from the database will specify which firms the city has determined to be certified minority and women owned business enterprises, in accordance with the city definitions for MWBEs. This list is not exhaustive.

H. *Minority and women business enterprise utilization.* To ensure that the equal business opportunity subcontracting program achieves its purpose, the OBDC will verify the MWBE certification status of each firm claiming such designation. Only certified MWBEs may be designated in reports as MWBEs for purposes of city projects. The percentage of MWBEs utilized by a bidder will be calculated by dividing the MWBE's price for providing direct labor or a bona fide service by the bidder's total dollars as identified in the bid.

I. *Equal business opportunity program compliance, monitoring and audit.* The city reserves the right to conduct an audit of a bidder's work on an eligible project to confirm the bidder's compliance with this equal business opportunity subcontracting program, including without limitation compliance with the covenant of nondiscrimination, the good faith efforts documentation, and the subcontractor project plan.

J. *Prohibition against discrimination and reporting allegations.* Bidders shall prohibit discrimination against any person or business on the basis of race, color, creed, religion, sex, domestic relationship status, parental status, familial status, sexual orientation, disability, age, national origin, political affiliation, gender identity, or racial profiling. Bidders shall develop a written policy statement that shall be approved by the office of business diversity and compliance (OBDC) and distributed to all employees. Bidders shall conduct their contracting and purchasing programs so as to prohibit any discrimination and to resolve all allegations of discrimination. Bidders shall include a clause in its subcontracts that require the subcontractor to adopt and distribute a written nondiscrimination policy that is the same as that of the contractor. The office of business diversity and compliance (OBDC) shall review and investigate all allegations of discrimination which claim that prohibited forms of discrimination have occurred. Allegations of discrimination that are determined to have merit may be subject to penalties decided upon by the OBDC in consultation with the initiating department.

K. *Penalties.* Breach of the equal business opportunity subcontracting program by a bidder shall be subject to any or all of the penalties set forth in section 6-92-6 below.
(Ord. No. 5662, § 1(2-326), 11-7-2017)

Sec. 6-92-3. Equal business opportunity goals.

A. *Overall goals.* In order to provide MWBEs equal opportunity and access to participate in all city procurement of construction-related services, goods and nonprofessional services and professional services, the city hereby incorporates the following six factors as part of its goal setting methodology in establishing annual MWBE goals:

1. The number of minority and women owned businesses in the relevant market area;

2. The availability of minority and female owned businesses in the relevant market area willing to do business with the city;

3. The general availability of minorities and females having the requisite skills to manage and/or form businesses in the relevant market area;

4. The percentage of minority and female businesses compared to the total number of businesses in the relevant market;

5. The availability of minority and female businesses in the relevant market area which an agency can reasonably add to its certification list; and

6. The degree of outreach and training the city is reasonably able to undertake as a means of making opportunity available to minority and female businesses.

The annual MWBE goals shall be:

a. Goals for subcontracting construction:

20%	Minority/Diverse
5%	Women
25%	Total Goal

b. Goals for prime construction:

15%	Minority/Diverse
3%	Women
18%	Total Goal

c. Goals for architecture and engineering services:

22%	Minority/Diverse
7%	Women
29%	Total Goal

d. Goals for subcontracting architecture and engineering services:

15%	Minority/Diverse
5%	Women
20%	Total Goal

e. Goals for goods and supplies:

12%	Minority/Diverse
1%	Women
13%	Total Goal

f. Goals for other nonprofessional services:

23%	Minority/Diverse
2%	Women
25%	Total Goal

g. Goals for other professional services:

13%	Minority/Diverse
2%	Women
15%	Total Goal

The annual goals provided above shall be reviewed annually by the EBO advisory committee. These overall MWBE participation goals are only intended to be benchmarks evaluating the overall performance of the EBO program on an annual basis. These participation goals are not, and shall not, be quotas. For purposes of determining or satisfying annual participation goals, only the participation of minority or woman owned business enterprises located within the Memphis MSA and certified by the city's contracted central certification agency will be considered.

B. *Project participation goals.* On individual contracts or projects, there is no requirement that the above annual EBO goals be met. The EBO advisory committee shall have the responsibility of determining whether a project participation goal is warranted on any given project. On any individual contract or project, these annual goals may not be met, or may be exceeded, depending upon several factors, such as the availability of qualified MWBE business enterprises, the nature of the project, adverse impact on non-MWBE business enterprise, good faith efforts of contractors or vendors, or other relevant factors. For purposes of determining or satisfying project participation goals, only the participation of minority or woman owned business enterprises located within the Memphis MSA and certified directly by the city or an approved contracted central certification agency will be considered.

C. *Construction.*

1. *Construction projects goals setting committee.*

a. There is hereby established a construction projects goals setting committee ("construction committee"). The membership of this committee will consist of the CCO, serving as chairperson; the city engineer or designee; and the city attorney or designee.

b. The construction committee shall establish specific participation goals for each construction project, the cost of which is estimated to be in excess of $100,000.00. Said goals will be individual minority and women business enterprise participation goals, the sum of the individual goals not to exceed 50 percent of the total contract amount for each project.

2. *Outreach for construction.* For any construction project, the CCO, and, in certain instances, in conjunction with the purchasing agent and

the city engineer, will make good faith efforts to promptly notify MWBEs, which are available to provide the needed construction services, of the contracting opportunities. The notification shall advise the MWBEs:

a. Of the specific work the city intends to contract;

b. That their interest in the project is being solicited; and

c. How to obtain request for proposals or invitations to bid or information or specifications on the proposed contract.

D. *Goods, supplies and nonprofessional services.*

1. *Goods, supplies and nonprofessional services goals setting committee.*

a. There is hereby established a construction projects goals setting committee ("goods, supplies and nonprofessional services goal setting committee" or otherwise referred to as "GSNP committee"). The membership of this committee will consist of the CCO, serving as chairperson; the city's purchasing agent or designee; and the city attorney or designee.

b. The GSNP committee shall establish specific participation goals for each goods, supplies and nonprofessional services project, the cost of which is estimated to be in excess of $50,000.00. Said goals will be individual minority and women business enterprise participation goals, the sum of the individual goals not to exceed 50 percent of the total contract amount for each project.

c. If participation goals are established for a project, the contractor shall provide to the CCO documentation of good faith efforts to achieve said goals in the same manner as provided in section 6-92-4(D) if the participation MWBE goal is not met for approval.

2. *Outreach for goods, supplies and nonprofessional services.* For all anticipated procurement of goods and nonprofessional services, the CCO, and, in certain instances, in conjunction with the purchasing agent or the soliciting division, will make good faith efforts to promptly identify and notify MWBEs, which are available to provide the needed goods or services, of contracting opportunities. The notification shall advise the MWBEs:

a. Of the specific work the city intends to contract;

b. That their interest in the project is being solicited; and

c. How to obtain request for proposals or invitations to bid or information or specifications on the proposed contract.

E. *Professional services.*

1. *Professional services projects goals setting committee.*

a. There is hereby established a professional services review committee ("professional services review committee"). The committee shall consist of the CCO serving as chairperson, the director of the user division, the director of finance, and the city attorney, or the respective designee of each.

b. The professional services committee shall review a professional service project costing $50,000.00 or more to determine which, from the following, is or are the best methods for ensuring MWBE participation.

c. If participation goals are established for a project, the contractor shall provide to the CCO documentation of good faith efforts to achieve said goals in the same manner as provided in section 6-92-4(D) if the participation MWBE goal is not met for approval.

2. *Outreach for professional services.* For all anticipated procurement of professional services, the CCO, and, in certain instances, in conjunction with the purchasing agent and director of the soliciting division, will make good faith efforts to identify and notify MWBEs, which are available to provide the needed services, of

the contracting opportunities on an annual basis. Said notification shall advise the MWBEs:

a. Of the specific work the city intends to contract;

b. That their interest in the project is being solicited; and

c. How to obtain request for proposals or invitations to bid or information.

(Ord. No. 5662, § 1(2-327), 11-7-2017)

Sec. 6-92-4. Requirements for bidders, contractors, and joint ventures.

A. *General requirements.*

1. All bidders on any construction project, or any professional services project in which the bidders subcontract with MWBEs or enter into joint ventures with MWBEs, are required to complete and submit, as a part of their bids, the following:

   a. Schedule of participating certified MWBE subcontractors or joint venturers.

   b. Affidavit declaring the bidder's intention to fully comply with the provisions of this chapter and all city procedures established pursuant hereto.

   c. Letters of intent from subcontractors within ten days after notification of contract award.

2. Proposed changes to the designated participation of women or minority business enterprises in a bidder's bid or proposal, on any project, after submission of bids, including during performance of a contract, must be submitted to the user division and the CCO. Bidders and contractors must make a good faith effort to replace a woman or minority business enterprise subcontractor or joint venturer with another certified woman or minority business enterprise, based on said enterprises' availability. All substitutes for women or minority business enterprise subcontractors or joint venturers require prior approval by the CCO, not to be unreasonably withheld; and said approval may be granted for reasons including, but not limited to, the following:

   a. Subcontractor or joint venturer requests that its subcontract or joint venture agreement with the prime contractor be voided;

   b. Subcontractor or joint venturer is unable to perform the work;

   c. Subcontractor or joint venturer has consistently performed unacceptable work.

3. The apparent low and best bidder on any project must submit copies of all executed subcontracts or joint venture agreements with MWBEs listed in the bid documents, within ten business days after the prime contractor receives an executed contract.

4. A bidder's failure to submit any information required by this chapter or the city's EBO program procedures may render the bid nonresponsive and ineligible for consideration.

B. *Regulations on brokering services.*

1. MWBEs are required to perform a commercially useful function on contracts let or made pursuant to this chapter.

2. Only expenditures to or contracts with MWBEs that perform a commercially useful function in the work of a contract may be counted towards the MWBE goal. A MWBE is considered to perform a commercially useful function when it is responsible for execution of a distinct element of the work of a contract and carrying out its responsibilities by actually performing, managing and supervising the work involved. To determine whether a MWBE is performing a commercially useful function, the city will evaluate all relevant factors such as, for example, the amount of work subcontracted and industry practices.

3. Consistent with normal industry practice, a MWBE may enter into subcontracts. If a MWBE subcontracts 50 percent or more of the work, the MWBE shall be presumed not to be performing a commercially useful function unless the MWBE holds a general contracting license and

holds the prime contract with the city. The MWBE may present evidence to rebut this presumption to the city.

C. *Construction projects.*

1. *Goal achievement.*

   a. Contractors are responsible for achieving participation goals, as established by the construction committee, on construction projects and maintaining said goals for the duration of the project.

   b. If the prime contractor or bidder on a construction project is a certified minority or woman business enterprise, then the participation goal for the MWBE classification of said prime contractor or bidder shall be deemed met.

D. *Good faith efforts.* Any bidder, submitting a bid on a construction project, which does not meet participation goals established by this chapter, must provide in its bid, documentation of good faith efforts to achieve said goals. Documentation of good faith efforts will include, but not be limited to, the following:

1. Attendance at pre-bid conference, if held.

2. Copies of written notification sent to all city certified MWBEs that perform the type of work to be subcontracted, in sufficient time to allow said MWBEs to participate effectively, soliciting said MWBEs' interest in working on the project and advising the MWBEs:

   a. Of the specific work the bidder intends to subcontract;

   b. That their interest in the project is being solicited; and

   c. How to obtain information for the review and inspection of the plans, specifications and requirements of the bid.

3. A written statement that economically feasible portions of work were selected to be performed by MWBEs, including, where appropriate, segmenting elements of work or combining elements of work into economically feasible units. The ability of the bidder to perform the work with its own work force will not in itself excuse the bidder from making good faith efforts to meet participation goals.

4. A statement of the efforts made to negotiate with MWBEs, including:

   a. The names, addresses and telephone numbers of MWBEs, who were contacted;

   b. The date negotiations took place;

   c. A description of the information provided to MWBEs regarding the plans, specifications and requirements for portions of the work to be performed.

5. A statement of the efforts made to assist MWBEs contacted who need assistance in obtaining bonding, insurance, financing, or in reviewing the plans, specifications and requirements of the bid.

6. A statement that the bidder submitted all quotations received from MWBEs and, for those quotations not accepted, a statement of the reasons why the MWBE will not be used to work on the project; provided, that submission of the actual quotations received from MWBEs within ten business days from bid opening shall be deemed a compliance of this subsection; provided, further, that during this ten-day period no bids shall be solicited from any MWBEs for the involved project. Receipt of a lower quotation from a non-MWBE will not in itself excuse a bidder's failure to meet participation goals.

7. Outreach efforts documentation. A statement describing the bidder's outreach efforts to identify, contact, contract with, or utilize businesses, including certified MWBEs, as subcontractors or suppliers on the eligible project. The OBDC shall set forth in the solicitation document the documents that a bidder may submit to demonstrate its outreach efforts, and such documentation may include, without limitation, evidence of the following:

   a. The bidder contacted the office of business diversity and compliance (OBDC) to identify available businesses to work on the eligible project, including certified MWBEs, regardless of race, gender or ethnicity. The office of business diversity and compliance (OBDC) will supply a

letter to be included in the bid of the efforts rendered by the bidder as it relates to the OBDC recommendations.

b. The bidder placed notices of opportunities for qualified businesses to perform subcontracting work on the eligible project in newspapers, trade journals, and other relevant publications, including publications specifically targeted to MWBEs, or communicated such notices of opportunities via the Internet or by other available media or means.

c. The bidder submitted invitations to bid for work on the eligible project to qualified businesses, including certified MWBEs, regardless of race, gender or ethnicity.

d. The bidder included in such notices and invitations a full disclosure of the criteria upon which bids, proposals or quotes would be evaluated, and also included contact information for inquiries, submissions, or requests to review any necessary bid documents.

e. The bidder promptly responded to inquiries, provided necessary physical access and time for interested businesses to fully review all necessary bid documents, and otherwise provided information, access and time necessary to allow all interested businesses to prepare bids and quotes, regardless of race, gender or ethnicity.

f. For each business which contacted or was contacted by the bidder regarding subcontracting or other services on the eligible project, but was not contracted with or otherwise utilized on the eligible project, the bidder shall provide a written statement setting forth the dates of such contacts, the nature of such contacts, and the reasons why an agreement was not reached regarding work to be performed on the project. The bidder shall maintain all written documents reflecting such contacts, including bids, quotes and proposals.

8. As to each MWBE contacted, which the bidder considered not to be qualified, a statement of the reasons for the bidder's conclusion based on an investigation of said MWBE's capabilities. The determination of whether a bidder has made good faith effort will be made by the CCO, the director of finance and the purchasing agent, prior to the award of the project.

E. *Post-award contact compliance.*

1. The contractor shall submit monthly reports in such form, manner and time as required by the CCO and, in certain instances, the director of finance and/or purchasing.

2. The contractor shall notify the user division and the contract compliance office of any situations in which regularly scheduled payments are not made to MWBE subcontractors.

3. At the completion of performance on the construction project, the contractor or awardee is required to submit a final schedule of participating certified MWBE subcontractors to the user division and the contract compliance office. This document will be an affidavit denoting final contract amount and payments made to MWBE subcontractors.

F. *Exceptions and waivers.*

1. The CCO will waive a construction project's participation goals for a bidder when reasonable good faith efforts are shown by such bidder.

2. The CCO will waive the MWBE good faith efforts requirements of this chapter under the following circumstances:

   a. Whenever the CCO finds, with the advice of the user division and purchasing agent, that any needed services or goods are available only from a single source and the prospective contractor or awardee is not currently disqualified from doing business with the city based on a failure to comply with the provisions of this chapter or city procedures established pursuant hereto; or

   b. If the user division certifies in writing to the CCO that an emergency exists, and

no MWBEs capable of performing the emergency work are immediately available.

G. *The promotion of joint ventures.*

1. The office of business diversity and compliance (OBDC) shall strongly encourage, where economically feasible, establishment of joint ventures to ensure prime contracting opportunities for all businesses, including certified MWBEs, on eligible projects.

2. Based upon the scope of work and market availability, the OBDC shall determine on a project-by-project basis on all eligible projects valued over $500,000.00 whether good faith efforts to enter into a joint venture shall be required for such project. On such projects in which good faith efforts to enter into a joint venture relationship is required, no bid shall be accepted unless submitted by a joint venture, unless the OBDC has determined that good faith efforts to enter into a joint venture have been demonstrated. The OBDC shall determine whether good faith efforts to enter into a joint venture have been adequately demonstrated based on a review of relevant facts, documents and circumstances.

3. As to each joint venture under this section, a written joint venture agreement must be completed by all parties to the joint venture and executed before a notary public, which clearly delineates the rights and responsibilities of each member or partner, complies with any requirements of the OBDC as set forth in bid documents or otherwise, and provides that the joint venture shall continue for, at a minimum, the duration of the project.

4. The OBDC shall review and approve all contractual agreements regarding the terms and provisions of each joint venture relationship prior to the award of a contract on an eligible project to the joint venture, including agreements pertaining to:

   a. The initial capital investment of each venture partner;

   b. The proportional allocation of profits and losses to each venture partner;

   c. The sharing of the right to control the ownership and management of the joint venture;

   d. Actual participation of the venture partners on the project;

   e. The method of and responsibility for accounting;

   f. The method by which disputes are resolved; and

   g. Any additional or further information required by the OBDC as set forth in bid documents or otherwise. Joint ventures may submit agreements for pre-approval no later than seven calendar days prior to the date set for receipt of bids on an eligible project. Otherwise, agreements must be submitted on or before the date set for receipt of bids on an eligible project. A bid submitted by a joint venture that does not include a satisfactory written joint venture agreement in accordance with the requirements of this section shall be deemed non-responsive and rejected.

5. The joint venture, and each member of the joint venture, shall provide the OBDC access to review all records pertaining to joint venture agreements before and after the award of a contract in order to reasonably assess compliance with this chapter.

6. Penalties for noncompliance. Any responsible bidder who fails to comply with this section shall be subject to any or all of the penalties contained in section 6-92-6.

(Ord. No. 5662, § 1(2-328), 11-7-2017)

Sec. 6-92-5. Mediation of disputes between joint venture team members and/or prime and subcontractors.

A. If, after the award of a contract to a joint venture team, any member of the joint venture team believes that the terms and conditions of the agreement as approved by the OBDC have not been complied with, then such member may seek review and mediation of such agreement before the CCO. The request for review must be made in writing.

B. If, after the award of a contract, a dispute arises between the prime contractor and a subcontractor regarding performance of work or provision of services or supplies on the eligible project, then such prime contractor or subcontractor may seek review and mediation of the issue before the CCO. The request for review must be made in writing. If the dispute involves an alleged violation of the city's prompt payment requirement, as set forth in Section 6-92-7 below, the contractor, subcontractor and the city shall proceed as is set forth in section 6-92-7.

C. Within 20 calendar days of receipt of a request for review, if the dispute has not already been resolved informally among the parties, the CCO shall set a mediation date, and the CCO shall provide written notice of the mediation date to each of the interested parties.

D. The CCO shall have authority to make recommendations in an attempt to resolve the dispute.

E. In the event that the mediation with the CCO does not resolve all disputes, the CCO shall have the option of referring mediation proceedings to a qualified outside mediator, contingent upon the consent of the interested parties.
(Ord. No. 5662, § 1(2-329), 11-7-2017)

Sec. 6-92-6. Penalties for noncompliance.

Notwithstanding the penalties under section 6-92-1(F)(5), a contractor or MWBE who fails to comply with any portion of this chapter, and whose failure to comply continues for a period of 30 calendar days after the contractor or MWBE receives written notice of such noncompliance from the OBDC, shall be subject to any or all of the following penalties:

A. Withholding of 25 percent of all future payments for the eligible project until the office of business diversity and compliance (OBDC) determines that the contractor is in compliance with this chapter.

B. Withholding of all future payments under the eligible project until it is determined that the contractor is in compliance with this chapter.

C. Cancellation of the eligible project.

D. A determination by the OBDC that a MWBE has failed to comply with section 6-92-4(B), regulations on brokering services, shall subject the offending party to revocation of the city certification as a MWBE for a period not to exceed two years.

E. If the contractor is a MWBE, denial or revocation of the city certification as a MWBE for a period not to exceed two years.

F. Refusal of all future contracts or subcontracts with the city for a minimum of two years and a maximum of seven years from the date upon which this penalty is imposed.

G. An appeal by a nonresponsive bidder, contractor, or MWBE under this chapter will be resolved pursuant to city appeals procedures as adopted.

H. The OBDC may require such reports, information and documentation from bidders, contractors, MWBEs, user division and the head of any division or office of the city as are reasonably necessary to determine compliance with the requirements of this chapter.

I. Criminal sanction for fraud. If the OBDC determines that substantial evidence is available indicating that fraud or other unlawful activity has been committed:

1. By a MWBE certification or re-certification applicant;

2. By a certified MWBE or majority prime contractor falsely reporting the utilization of MWBE subcontractors; or

3. By an individual or firm attempting to benefit from or participate in the EBO program, through fronting activity, false representation of a commercially useful function, or other fraudulent or unlawful activity, the matter shall be referred to the appropriate legal authorities and the city legal division for criminal prosecution; and, in the event a conviction or guilty plea is obtained stemming from such criminal prosecution, the business entity and principals shall be barred from participation in city contracts for a minimum of one year and a maximum of five years to be determined by the MWBE advisory committee.

J. Notification of noncompliance, denial or revocation of certification. Upon a determination of noncompliance with the provisions of this chapter or any city procedures established pursuant hereto, the OBDC shall notify the affected party in writing by certified mail, return receipt requested, setting forth the reasons for the determination of noncompliance. Any appeal on the basis of noncompliance shall be conducted in conformity with procedures established by the city as adopted.

(Ord. No. 5662, § 1(2-330), 11-7-2017)

Sec. 6-92-7. Outreach and assistance to subcontractors by the office of business diversity and compliance (OBDC).

To ensure that opportunities to participate on city contracts are available to the widest feasible universe of interested, available and qualified businesses, the office of business diversity and compliance (OBDC) shall develop and implement a written comprehensive outreach program aimed at increasing business participation in the city's contracting and procurement process. This program may include, without limitation, any or all of the following:

A. The office of business diversity and compliance (OBDC) may disseminate at community events, trade shows, and other appropriate business functions, and publish at regular intervals, in print and in electronic media (including publications or electronic media targeted to MWBEs and small businesses) information describing the equal business opportunity program, the small business opportunity program, and the functions of the office of business diversity and compliance (OBDC). In addition, the office of business diversity and compliance (OBDC) may disseminate information in print and/or electronic form, may provide individualized counseling, and/or may conduct seminars regarding the certification process.

B. The office of business diversity and compliance (OBDC) may establish a procedure to engage in continuous recruitment and outreach efforts directed at business assistance organizations to increase the pool of businesses available to do business with the city. The office of business diversity and compliance (OBDC) may identify suppliers through business development organizations and participation at various trade shows, supplier diversity groups and work with various national and local supplier development counsels and organizations.

C. The office of business diversity and compliance (OBDC) may disseminate at community events, trade shows, and other appropriate business functions, and publish at regular intervals, in print and in electronic media information identifying ongoing contracting opportunities with the city, and providing contact information by which businesses may obtain additional information from the office of business diversity and compliance (OBDC). OBDC will provide this information in languages other than English, where appropriate. To the extent feasible, the office of business diversity and compliance (OBDC) may enter into arrangements to share data regarding upcoming city projects, and subcontracting opportunities on the projects, with other businesses and agencies or jurisdictions in the Memphis MSA.

D. The office of business diversity and compliance (OBDC) may assist businesses in submitting bids for eligible projects by disseminating information in print or electronic form, by providing individualized counseling, and/or by conducting seminars regarding the process for submitting a bid on a city project. The office of business diversity and compliance (OBDC) may sponsor "How to Do Business with the City" seminars and invite a wide array of businesses.

E. The office of business diversity and compliance (OBDC) may actively encourage businesses to attend the pre-bid conferences, providing face-to-face and one-on-one meeting opportunities with employees of the city within the divisions and departments that are involved with the contracting and procurement process. OBDC may establish and implement training and awareness programs with the employees of the city's user departments to educate them with regard to increasing utilization of a wide array of businesses.

F. The office of business diversity and compliance (OBDC) may provide information and advice to the purchasing department regarding the

effectiveness of current bidding procedures in facilitating bidding on eligible projects by the widest feasible universe of interested businesses. This information may include suggestions regarding how to arrange solicitations, times for the presentation of bids, quantities, specifications, and delivery schedules in ways that facilitate the participation of all interested businesses. In this regard, the office of business diversity and compliance (OBDC) may provide and encourage feedback from contractors and subcontractors regarding every aspect of the city's procurement process and may establish a system to allow for anonymous comments to be sent through the mail.

G. The office of business diversity and compliance (OBDC) may create workshops for businesses located within the city on how to compete in the private sector, including advice on marketing, soliciting, and preparing a bid. OBDC may establish a program which will incorporate business and entrepreneurial training and assistance mentoring, matchmaking, individual consulting and regular training workshops and seminars. To accomplish the same, OBDC may reach out to and collaborate with MSA higher educational institutions.

H. The office of business diversity and compliance (OBDC) may develop communications and other written materials that are meant to encourage and provide information to contractors to increase their utilization of subcontractors. In addition, OBDC may sponsor networking events that allow businesses to meet each other and that create an opportunity for contractors to discuss with subcontractors upcoming needs.

I. The office of business diversity and compliance (OBDC) may develop a resource directory to be provided to interested businesses, with information regarding assistance in bonding and financing, financial management, accounting, construction management and technical assistance.

J. The office of business diversity and compliance (OBDC) may establish policies to prohibit discrimination in the provision of credit or bonding regarding city contracts.

K. The OBDC may:

1. Develop a technical assistance program to prepare small businesses to compete for specific contracts;
2. Implement and monitor a supportive services program to develop and improve immediate and long term business management, record keeping and financial and accounting capability for businesses;
3. Develop and provide services to help businesses improve their long term development, increase their opportunities to participate in a variety of kinds of work, handle increasingly significant projects, and achieve self-sufficiency;
4. Establish a program to assist new, start-up or emerging businesses; and
5. Assist businesses in developing their capability to utilize emerging technology and conduct business through electronic media.

L. The office of business diversity and compliance (OBDC) may create and maintain records on all subcontractor participation on city projects. The office may perform investigations regarding the actual utilization of subcontractors during the term of the contract as compared with the anticipated use of subcontractors at the time of bid submittal. Subcontractors shall report the amount of work they anticipate performing on the contract and will report the actual work performed and the amount billed. The office of business diversity and compliance (OBDC) will allow subcontractors to confirm the status of their subcontracts and the payments received thereunder.

M. The office of business diversity and compliance (OBDC) may continue to develop its website to provide general information on doing business with the city, on the bid process, on how to get certified, to provide a calendar of events, bid lists, bid status reports, to post solicitation notices, and to provide downloadable forms and other appropriate information. In addition, contractors that have been awarded city contracts may be posted on the website to allow businesses to target their marketing efforts to contractors that have worked or are working with the city.

N. The office of business diversity and compliance (OBDC) shall establish a mechanism by which a business can file an administrative complaint

with the city if it believes a prime contractor or the city is discriminating in the award of contracts or subcontracts.

O. The office of business diversity and compliance (OBDC) is authorized to develop and implement such other and further outreach activities, and programs as the officer may from time to time recommend. From time to time an overall evaluation of the effectiveness of the program with regard to nondiscrimination in contracting shall be conducted. Appropriate changes to the measures and programs based on the results of the evaluations will be implemented.

P. Prompt payment of subcontractors. Contractors awarded city contracts shall ensure the prompt and full payment of any subcontractors working on the contract within five business days of the subcontractor's satisfactory completion of the work assigned to the subcontractor.

1. Contractors shall not withhold payment from subcontractors who have satisfactorily completed work until such time as the contractor receives payment from the city.

2. A contractor who fails to ensure the prompt and full payment of subcontractors shall be subject to the penalties set forth under section 6-92-6.

3. In the event of a good faith dispute regarding the amount of payment due to a subcontractor, contractor and subcontractor shall attend a binding arbitration within seven days of notice by the office of business diversity and compliance (OBDC) in order to resolve any payment disputes. If the arbitrator determines that the subcontractor is entitled to payment under the subcontract, contractor shall be required to pay the subcontractor within 48 hours of the arbitrator's decision. In the alternative, the contractor and subcontractor may utilize the mediation mechanism set forth in section 6-92-5, but only if such alternative is agreed to by the contractor, subcontractor, and the contract compliance officer.

4. The CCO is authorized to make a determination that the interests of the city are best served by issuing joint checks to resolve a dispute between vendors and suppliers, prime and subcontractors or sub consultants, or joint venture partners. In such circumstances, the CCO will issue a written request to the director of finance to issue two checks, in amounts deemed by the CCO to be equitable upon agreement by all parties involved. The division of finance will issue these checks exclusively to the CCO.

Q. Reporting by the office of business diversity and compliance (OBDC).

1. The CCO shall cause to be issued periodically, but no later than 30 months after the effective date of this chapter, reports on the operation of this chapter. The CCO shall be authorized to contract with or retain outside consultants or experts in connection with preparing a report and to assist in assembly, review and analysis of data necessary to prepare such report.

2. The office of business diversity and compliance (OBDC) shall provide to such consultants or experts such records in its custody as may be necessary to evaluate the operation of this chapter and the extent to which the purposes of this chapter are accomplished. A report shall include any findings or recommendations regarding the economic opportunities available to AABEs, HBEs, ABEs, NABEs and WBEs in the Memphis MSA and any recommendations regarding changes to this chapter or the enactment of any additional programs, procedures or strategies to better effectuate the purposes of this chapter.

3. Reports issued under this section shall be delivered to the mayor and to the city council, a copy of any report(s) shall be maintained at the OBDC for review, and copies shall be made available to the general public upon written request.

4. City's divisions, boards, commissions and quasi-governmental agencies as well as joint city/county agencies shall submit to the OBDC their respective diversity plans,

reports, and accomplishments on a quarterly basis. Any agency or business concerns receiving any city or city/county PILOTs, TDZs, TIFFs, grants or benefits shall be required to submit to the OBDC through the relevant governing agency, board or commission their respective diversity plans, reports and accomplishments on a quarterly basis. Boards, commissions or quasi-governmental agencies in need of diversity plans will have the opportunity to work in conjunction with the OBDC to develop an appropriate and suitable diversity plan.

R. Miscellaneous.

1. *City's role in dispute resolution.* All actions taken by the office of business diversity and compliance (OBDC) to ensure the fair and equitable treatment of subcontractors or joint venture partners working on city projects or seeking work on city projects are done pursuant to the city's nondiscrimination policy and shall not be construed as the city taking a position as to the merits of the dispute nor creating any privity of contract between the city and any contractor or subcontractor. Further, no contractor working on a city project or seeking work from the city shall have any claim against the city for any actions taken to ensure the fair and equitable treatment of subcontractors working on city projects or seeking work on city projects.

2. *Severability.* If any provision of this chapter or any application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of this chapter which can be given effect without the invalid provisions or applications, and are to this end declared to be severable.

3. *Sunset clause.* This chapter shall sunset on June 30, 2025, unless prior to such date the city council, after conducting public hearings, finds that the purposes of this chapter have not yet been achieved, in which case it may extend the effective period of this chapter for an additional five years.

4. *Bid preferences.* If upon review of the results of the annual program goals, the city determines that it has not achieved the individual MWBE program goals based on contracts let or awards made during the preceding fiscal year for women or minority business enterprises, then the city may consider amending said chapter to include bid preferences as may be permitted by law.

(Ord. No. 5662, § 1(2-331), 11-7-2017; Ord. No. 5866, 5-2-2023; Ord. No. 5905, 6-25-2024; Ord. No. 5916, 9-24-2024)

CHAPTER 6-94. SMALL BUSINESS ENTERPRISE OPPORTUNITY PROGRAM

Sections:

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Sec. 6-94-7. Small business enterprise program goals and counting procedures.
Sec. 6-94-8. Certification as a small business enterprise.
Sec. 6-94-9. Recertification.
Sec. 6-94-10. Decertification of small business enterprise.
Sec. 6-94-11. Certification reviews.
Sec. 6-94-12. Appeals.
Sec. 6-94-13. Small business enterprise directory.
Sec. 6-94-14. Procedures to ensure that SBEs have an equitable opportunity to compete for contracts and subcontracts.
Sec. 6-94-15. Methods by which the city will require contractors and subcontractors to comply with applicable SBE requirements.
Sec. 6-94-16. Means to ensure that competitors make good faith efforts to meet SBE contract goals.
Sec. 6-94-17. Penalties for noncompliance.
Sec. 6-94-18. Outreach to SBEs.
Sec. 6-94-19. Procedures to require that participating SBEs are identified by name by competitors for contracts.
Sec. 6-94-20. Severability.

Sec. 6-94-1. Short title.

This chapter shall be known as the "City of Memphis Small Business Enterprise Program."
(Ord. No. 5366, § 1(A), 7-20-2010)

Sec. 6-94-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bid means a quotation, proposal, sealed bid or offer to perform or provide labor, materials, supplies or services to the city for a price on an eligible project, or for an eligible project that generates revenue for the city.

Bidder means any individual, sole proprietorship, partnership, joint venture, or corporation that submits a bid to the city.

Certification or recertification means official recognition and approval by the office of contract compliance that a business meets the qualification criteria of a small business enterprise, as set forth in this chapter. Certification or recertification relates to qualifications regarding ownership, control, and the applicant's economic disadvantage, not the quality of the service or product.

City means the City of Memphis.

Commercially useful function. For the purpose of determining whether a business enterprise is performing a commercially useful function, the office of contract compliance (OCC) shall consider all of the facts in the record, viewed as a whole, including without limitation the following:

1. A small business enterprise (SBE) performs a commercially useful function when it is responsible for execution of the work of the contract and is carrying out its responsibilities by actually performing, managing, and supervising the work involved.

2. To perform a commercially useful function, the SBE must be responsible, with respect to material and supplies used on the contract, for negotiating price, determining quality and quantity, ordering the material, and installing (where applicable) and paying for the material itself.

3. To determine whether a SBE is performing a commercially useful function, the OCC will evaluate the amount of work subcontracted by the SBE, industry practices regarding subcontracting, whether the amount the SBE is to be paid under the contract is commensurate with the work it is actually performing, the SBE credit claimed for its performance of the work, and other relevant factors.

4. A SBE does not perform a commercially useful function if its role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of SBE participation. In determining whether an SBE is such an extra participant, the OCC will examine similar transactions, particularly those in which SBEs do not participate.

Contract means and includes any agreement between the city and a person or business enterprise to provide or procure labor, materials, equipment, supplies and services to, for or on behalf of the city. The term "contract" shall include an agreement between the city and a person or business enterprise to perform professional architectural and engineering services, construction related services or fund the performance of such services, non-professional services and/or goods. Except as otherwise specifically defined in this section, the term "contract" does not include:

1. Awards made by the city to a nonprofit entity which the city offers assistance, guidance,

supervision on a project or program and the recipient of the grant award uses the grant moneys to provide services to the community;

2. Sales transactions where the city sells its personal or real property;

3. A loan transaction where the city is acting as a debtor or a creditor;

4. Lease and franchise agreements;

5. Agreements to use city real property; or

6. Gifts of materials, equipment, supplies or services to the city.

Contractor means a prime contractor or vendor on a city contract.

Control or *controlled.* For the purpose of determining whether the owner or owners of a potential SBE (as used in this definition, "SBE owner," which shall denote one or more owners) controls the potential SBE, the OCC shall consider all of the facts in the record, viewed as a whole, including without limitation the following:

1. For a SBE owner to be deemed to control, the potential SBE must be independent. An independent business enterprise is a business whose viability does not depend on its relationship with another firm.

   a. In determining whether a potential SBE is independent, the OCC will scrutinize the SBE's relationships with other firms, in such areas as personnel, facilities, equipment, financial and/or bonding support, and other resources.

   b. The OCC will consider whether present or recent employer/employee relationships between the SBE owner and other firms or persons associated with other firms compromise the independence of the potential SBE.

   c. The OCC will examine the potential SBE's relationships with prime contractors to determine whether a pattern of exclusive or primary dealings with a prime contractor compromises the independence of the potential SBE.

   d. In considering factors related to the independence of a potential SBE, the OCC will consider the consistency of relationships between the potential SBE and other firms with normal industry practice.

2. A potential SBE must not be subject to any formal or informal restrictions which limit the customary discretion of the SBE owner. There can be no restrictions through corporate charter provisions, bylaw provisions, contracts or any other formal or informal devices (e.g., cumulative voting rights, voting powers attached to different classes of stock, employment contracts, requirements for concurrence by persons other than the SBE owner, conditions precedent or subsequent, executory agreements, voting trusts, restrictions on or assignments of voting rights) that prevent the SBE owner, without the cooperation or vote of any other individual, from making any business decision of the business enterprise. This subsection does not preclude a spousal co-signature on documents.

3. The SBE owner must possess the power to direct or cause the direction of the management and policies of the business enterprise and to make day-to-day as well as long-term decisions on matters of management, policy and operations.

   a. A SBE owner must hold the highest officer position in the company (e.g., chief executive officer or president).

   b. In a corporation, the SBE owner must control the board of directors.

   c. In a partnership, the SBE owner must serve as a general partner, with control over all partnership decisions.

4. Individuals who are not the SBE owner may be involved in an SBE as owners, managers, employees, stockholders, officers, and/or directors. Such individuals must not, however, possess or exercise the power to control the business enterprise, or be disproportionately responsible for the operation of the business enterprise.

5. The SBE owner may delegate various areas of the management, policymaking, or daily operations of the business enterprise to other participants in the firm. Such delegations of authority must be revocable, and the SBE owner must retain the power to hire and fire any person to

whom such authority is delegated. The managerial role of the SBE owner in the business enterprise's overall affairs must be such that the OCC can reasonably conclude that the SBE owner actually exercises control over the business enterprise's operations, management, and policy.

6. The SBE owner must have an overall understanding of, and managerial and technical competence and experience directly related to the type of business in which the business enterprise is engaged and the business enterprise's operations. The SBE owner is not required to have experience or expertise in every critical area of the business enterprise's operations, or to have greater experience or expertise in a given field than managers or key employees. The SBE owner must have the ability to intelligently and critically evaluate information presented by other participants in the business enterprise's activities and to use this information to make independent decisions concerning the business enterprise's daily operations, management, and policymaking. Generally, expertise limited to office management, administration, or bookkeeping functions unrelated to the principal business activities of the business enterprise is insufficient to demonstrate control.

7. If state or local law requires the owner of a particular type of firm to have a particular license or other credential, then the SBE owner of that type of firm must possess the required license or credential in order to be deemed in control. If state or local law does not require an owner to have such a license or credential, the OCC will not deny certification solely on the ground that the SBE owner lacks the license or credential. However, the OCC may take into account the absence of the license or credential as one factor in determining whether the SBE owner actually controls the firm.

8. The OCC may consider differences in remuneration between the SBE owner and other participants in the business enterprise in determining whether the SBE owner controls the business enterprise. Such consideration shall be in the context of the duties of the persons involved, normal industry practices, the business enterprise's policy and practice concerning reinvestment of income, and any other explanations for the differences proffered by the business enterprise. The OCC may determine that a business enterprise is controlled by its SBE owner although the SBE owner's remuneration is lower than that of some other participants in the business enterprise. In a case where someone other than the SBE owner formerly controlled the business enterprise, and the SBE owner now controls it, the OCC may consider a difference between the remuneration of the former and current owner of the business enterprise as a factor in determining who controls the business enterprise, particularly when the former owner remains involved with the business enterprise and continues to receive greater compensation than the current SBE owner.

9. In order to be viewed as "controlling" a business enterprise, an SBE owner cannot engage in outside employment or other business interests that conflict with the management of the business enterprise or prevent the SBE owner from devoting sufficient time and attention to the affairs of the business enterprise to control its activities. For example, absentee ownership of a business and part-time work in a full-time firm are not viewed as constituting control. However, an SBE owner could be viewed as "controlling" a part-time business that operates only on evenings and/or weekends, if the SBE owner controls the business enterprise when it is operating.

10. An SBE owner may control a business enterprise even though one or more of the SBE owner's immediate family members participate in the business enterprise as a manager, employee, owner, or in another capacity. Except as otherwise provided in this subsection, the OCC must make a judgment about the control the SBE owner exercises vis-a-vis other persons involved in the business enterprise as it does in other situations, without regard to whether or not the other persons are immediate family members. If the OCC cannot determine that the SBE owner—as distinct from the family as a whole—controls the business enterprise, then the SBE owner has failed to carry her/his

burden of proof concerning control, even though he/she may participate significantly in the business enterprise's activities.

Day or days refers to calendar days.

Economically disadvantaged person means a person whose personal net worth does not exceed $750,000.00, excluding the individual's primary residence and the business enterprise owned by the individual for which the owner is seeking SBE certification from the city.

Eligible project means:

1. Any city contract with a participation goal attached as identified by the contract compliance officer, excluding sole source procurement, emergency procurement, and contracts governed by 49 CFR 23 and 26.
2. For purposes of this chapter, contract or project "value" shall mean either the expenditure of funds by the city, or the generation of revenue for the city by a contractor as a direct result of a city contract.

Joint venture means an association of two or more persons, partnerships, corporations, or any combination of them, established to carry on a single business activity that is limited in scope and duration. The agreement establishing the joint venture, partnership or other multi-entity relationship shall be in writing. Further, participation in a joint venture shall be based on the sharing of real economic interest in the venture and shall include proportionate control over management, interest in capital acquired by the joint venture and interest in earnings.

Memphis MSA means the geographical area consisting of the following counties: Shelby, Fayette, Tipton, Desoto, Marshall, Tate, Tunica, and Crittenden.

Office of contract compliance (OCC) means the office of contract compliance in the City of Memphis.

Owned or *ownership.* In determining whether a potential SBE is owned by one or more economically disadvantaged persons, the OCC will consider all of the facts in the record, viewed as a whole, including, without limitation, the following:

1. The OCC shall deem the owner of a business enterprise to be whoever possesses at least 51 percent of the business enterprise. There may be more than one owner.
    a. In the case of a corporation, such individual must possess at least 51 percent of the each class of voting stock outstanding and 51 percent of the aggregate of all stock outstanding.
    b. In the case of a partnership, such individual must possess at least 51 percent of each class of partnership interest. Such ownership must be reflected in the business enterprise's partnership agreement.
    c. In the case of a limited liability company, such individual must possess at least 51 percent of each class of member interest.
2. The OCC must find that the individual's ownership is real, substantial, and continuing, going beyond pro forma ownership of the business enterprise as reflected in ownership documents. The individual must enjoy the customary incidents of ownership, and share in the risks and profits commensurate with their ownership interests, as demonstrated by the substance, not merely the form, of arrangements.

SBE Status means whether a firm meets the qualification criteria of a small business enterprise, as set forth in this chapter.

Small business enterprise (SBE) means a firm with its headquarters and/or principal office located in the city which is an independent and continuing enterprise for profit, performing a commercially useful function, which is owned and controlled by one or more economically disadvantaged persons, and for which the gross revenues or number of employees averaged over the past three years, inclusive of any affiliates as defined by 13 CFR 121.103, does not exceed the size standards as defined pursuant to 13 CFR 121. In addition, the net worth of each owner of an SBE cannot exceed $750,000.00, excluding each owner's primary residence which may be located in the Memphis MSA and the business enterprise for which the owner is seeking SBE certification from the city.

Supplier means a warehouser or manufacturer of materials, supplies or equipment which contracts directly with a bidder to provide such materials, supplies or equipment on an eligible project which involves a trade or service. For purposes of measuring the total contract dollars awarded or paid to suppliers on eligible projects,

only amounts paid to suppliers of goods customarily and ordinarily used based upon standard industry or trade practices shall be counted.
(Ord. No. 5366, § 1(B), 7-20-2010)

Sec. 6-94-3. Statement of policy.

It is the purpose of this chapter to promote the economic welfare of the people of the city, to promote full and equal business opportunity for all persons doing business with the city, and to promote commerce by assisting SBEs to actively participate in the city's procurement process. SBEs represent 89 percent of the businesses in the United States and 30 percent of the business revenue nationwide, according to the United States Bureau of Census. Also, according to the United States Bureau of Census, in the Memphis metropolitan statistical area, 73 percent of establishments have less than ten employees and 94 percent of establishments have less than 50 employees. The city has set a goal of 25 percent for the small business enterprise program. This is consistent with the federal SBE goal of 25 percent and lower than the availability of SBEs in the marketplace. Although the goal is 25 percent, the city encourages participation greater than 25 percent.
(Ord. No. 5366, § 1(C), 7-20-2010)

Sec. 6-94-4. Duties of the office of contract compliance.

Under this chapter, the office of contract compliance shall have the following authority and duties for the implementation of the small business enterprise program under this chapter:

(1) Administration and enforcement of this chapter and of the disadvantaged business enterprise program.

(2) Establishment of written procedures, informal guidelines, and forms as may be necessary to effectuate this chapter.

(3) Monitoring compliance with the requirements of this chapter.

(4) Certification of businesses as SBEs in accordance with the standards set forth in this chapter.

(5) Development of databases to be maintained as a public record of certified SBEs.

(6) Investigation of alleged violations of this chapter, and the issuance of written statements following any determination of such investigation, stating the reasons therefor and any penalty to be imposed.

(7) Collaborating with the various city departments to ensure maximum outreach to SBEs.

(8) Determination of whether any of the penalties set forth in section 6-94-17 should be applied to a business.

(9) Attendance at pre-bid, pre-proposal, pre-construction and pre-work conferences.

(10) Provision to business entities of all forms, applications, documents and papers necessary to comply with this chapter.

(11) Provision of information to potential bidders, upon request by the potential bidder, which shall include names and contact information of certified SBEs, to reinforce and support outreach efforts by potential bidders.

(12) Notification by certified mail that a bidder who has bid on and who otherwise would have been awarded a contract has the right to appeal a determination of noncompliance with this chapter, said appeal to be determined by the OCC within seven calendar days of receipt of the notice of noncompliance.

(13) Notification by certified mail that an applicant who has been denied certification as an SBE has the right to appeal such determination, said appeal to be determined by the OCC within seven calendar days of receipt of the notice of such determination.

(14) Notification to the purchasing agent of any determination of noncompliance with this chapter, and of any appeal from any such determination.

(15) Monitoring, for data gathering and informational purposes, utilization of SBEs on eligible projects.

(16) Maintenance of documents, forms, records or data regarding this program as provided in this chapter including:

(a) Documents, forms, records or data regarding the dollar amounts subcontracted to or

expended for services performed by subcontractors and suppliers on eligible projects, including the SBE status of each subcontractor and supplier; and

(b) Documents, forms, records or data regarding certified SBEs.

(17) Development and implementation of outreach and assistance programs to promote equal contracting opportunities for all businesses that wish to do business with the city, regardless of SBE status.

(Ord. No. 5366, § 1(D), 7-20-2010)

Sec. 6-94-5. Small business assistance.

The office of contract compliance shall act as a resource for information on small business enterprises. The office of contract compliance shall also undertake to raise the consciousness of SBEs about city business opportunities and provide information on taking advantage of the program benefits. Further, the city shall provide the following assistance to small business enterprises:

(1) Access to training; technical assistance. The office of contract compliance in conjunction with the Renaissance Business Center shall act as a resource for technical assistance. The office shall collect, organize and disseminate information regarding available technical assistance providers in the Memphis market area.

(2) Capital; financing assistance. The office of contract compliance in conjunction with the Renaissance Business Center shall act as a resource for financial assistance. The office shall collect, organize and disseminate information regarding available capital or financing sources in the Memphis market area.

(3) Bonding assistance. The office of contract compliance in conjunction with the Renaissance Business Center shall provide SBEs with information regarding bonding including, providing a list of qualified service providers that supply bonding services.

(4) Access to markets. The office of contract compliance will work to facilitate access to markets for SBEs. The office of contract compliance will work with the office of planning and development (OPD) and other development entities to connect eligible businesses to city, state and federal programs that promote investment and encourage employment, including but not limited to the various hub zone, enterprise zone, and tax allocation districts. The office of contract compliance may monitor in conjunction with OPD SBE involvement in procurement opportunities generated by OPD.

(Ord. No. 5366, § 1(E), 7-20-2010)

Sec. 6-94-6. City-maintained records and reports.

The effectiveness of the small business enterprise program will be measured by a review of data indicating prime, subcontractor and supplier awards to SBEs. Program effectiveness measurements will also include efforts by city staff to provide prime contracting opportunities for SBEs. In order to ensure the effective tracking of these efforts, the following shall be done:

(1) Each contractor shall continuously maintain, compile, and provide to the office of contract compliance, monthly, information relating to its use of SBEs on the city project. This information shall include without limitation the following information for each of the SBE subcontractors and suppliers utilized by the contractor on the city project: a description of the categories of contracts awarded to SBEs; the dollar value of contracts awarded to SBEs; and contact information for the SBEs. Additionally, the contractor shall provide information regarding its progress toward attaining the SBE goal on the city project.

(2) Within 30 days after the end of a contract in which there was an SBE goal, each contractor shall provide the OCC with a report that summarizes the outcome of the project information, including without limitation: the identity of and contract information for each SBE to whom the contractor has awarded a subcontract or supplier agreement; the type of work performed or supplies provided by each subcontractor/supplier; the dollar value of each of the subcontracts/supplier agreements; and the total percentage of the value of the city contract subcontracted to SBE subcontractors and/or suppliers.

(3) The purchasing department shall provide the OCC with information regarding every city contract on which the prime contractor is an

SBE or on which an SBE is part of a joint venture or mentor protege team serving as the prime contractor. The information shall include the name and contact information of the SBE, the type of contract, and the dollar value of the contract.

(4) The OCC shall prepare a consolidated report based on a compilation and analysis of the reports submitted by each contractor and information from the purchasing department regarding the city's use of SBEs as prime contractors. The consolidated report will identify and assess the awards to SBEs of city contracts, prime contractors' use of SBE subcontractors and suppliers, prime contractors' progress in achieving SBE subcontract goals, and other SBE development and contracting efforts. Specifically, the OCC will maintain records and prepare reports showing:

(a) Awards to SBE subcontractors and suppliers, including names of contractors and subcontractors, nature of the work/services performed, and the percentage of SBE participation per contract. The city will obtain regular reports from prime contractors on their progress in meeting contractual SBE commitments;

(b) Specific efforts by contractors to identify and award contracts to SBEs;

(c) Copies of direct mailings by contractors to SBEs;

(d) City contracts awarded to SBEs or prime contractors in which an SBE was a joint venture partner or part of a mentor protege team. This information shall include without limitation the name and contact information of the SBEs, the type of contract, and the dollar value of the contract;

(e) Pre-bid conference information as it relates to the small business enterprise program;

(f) Requests for assistance from SBEs interested in bidding/proposing on city contracts and subcontracts;

(g) Workshops, seminars and training programs conducted for SBEs; and

(h) Efforts to assist SBEs in acquiring bonding and insurance.

(5) The OCC will submit annual SBE participation reports to the council. These reports shall include a summary of the information described in this section, plus an analysis of the total dollar value of city contracts/subcontracts awarded to SBEs during the preceding year, categorized by prime contracting dollars, subcontracting dollars, and supplier dollars. The percentage of the total dollar value of these contracts that was awarded to SBEs during the preceding year shall also be provided.

(Ord. No. 5366, § 1(F), 7-20-2010)

Sec. 6-94-7. Small business enterprise program goals and counting procedures.

A. The contract compliance officer in conjunction with the purchasing agent will set a 25 percent SBE subcontracting goal for each specific prime contract with subcontracting and/or supplier possibilities, but shall have the authority to reduce or eliminate such SBE goal on a contract-by-contract basis based upon the type of contract, the type of subcontracting work that will be required, and the availability of SBEs therefor. Every bidder on an eligible project shall be required to submit, with its bid submission, the names, address, certification numbers, if applicable, of certified SBEs or firms that have applied for SBE certification at the time of the bid submission, and any other information required by the OCC as set forth in the project's solicitation documents.

B. SBE participation is counted as follows:

1. Once a firm is certified as a SBE, the total dollar value of the subcontractor of supplier contract awarded to the SBE by the contractor is counted toward the applicable SBE goal. However, if a firm who is listed on the contract as having its SBE certification pending has its certification denied, or if an SBE fails to be recertified during the term of the contract, or if an SBE is decertified during the term of the contract, the dollar value of the contract awarded to that SBE cannot be counted toward the applicable SBE goal.

2. The city will count toward its SBE goal a portion of the total dollar value of a contract

with a joint venture equal to the percentage of the ownership and contractual commitment to the SBE partner in the joint venture.

3. The city will count toward the SBE goal a portion of the total dollar value of a contract with a mentor protege team equal to the percentage of the project self-performed by the SBE member of the team.

4. The city will count toward its SBE goal only expenditures to SBEs that perform a commercially useful function in the work of the contract.

5. The city will count toward its SBE goals the following expenditures to SBE firms that are not suppliers:

   a. The fees or commissions charged for providing a bona fide service, such as professional, technical, consultant or managerial services and assistance in the procurement of essential personnel, facilities, equipment, materials or supplies required for performance of the contract, provided that the fee or commission is determined by the city to be reasonable and not excessive as compared with fees customarily allowed for similar services.

   b. The fees charged for delivery of materials and supplies required on a job site (but not the cost of the materials and supplies themselves) when the hauler, trucker, or delivery service is not also the manufacturer of, or a regular dealer in, the materials and supplies, provided that the fee is determined by the city to be reasonable and not excessive as compared with fees customarily allowed for similar services. The fees or commissions charged for providing any bonds or insurance specifically required for the performance of the contract, provided that the fee or commission is determined by the city to be reasonable and not excessive as compared with fees customarily allowed for similar services.

C. Sheltered market.

1. The OCC in consultation with the purchasing department will designate certain procurements as sheltered market procurement opportunities, which will only be open for competition by and between SBEs.

   a. Contracts of $2,500.00 to $100,000.00. Under the sheltered market program, every acquisition of goods or services that has an anticipated dollar value between $2,500.00 and $100,000.00 is automatically reserved exclusively for small businesses, except for those contracts pertaining to street projects, as described in the CIP budget. The contract compliance officer and the purchasing agent may agree to exclude any procurement in this category from the sheltered market at their joint discretion. The sheltered market procurement requirement will only apply when there is a reasonable expectation that offers will be obtained from three or more SBEs that are competitive in terms of market prices, quality, and delivery. If only one acceptable offer is received from a responsible SBE, the sheltered market procurement will be withdrawn and the product or service, if still needed, will be solicited on an unrestricted basis.

   b. Contracts over $100,000.00. In addition, the contract compliance officer and purchasing agent may agree to designate any contract over $100,000.00 for SBEs, except for those contracts pertaining to street projects, pertaining to public works construction, or other projects for which a sheltered market would conflict with state law. The sheltered market designation shall be made only when there is a reasonable expectation that bids will be obtained from at least three responsible SBEs and that the award will be made at a fair market price.

2. Partial sheltered market procurements. A sheltered market procurement of a single acquisition or a class of acquisitions may be total or partial. The contract compliance officer and the purchasing agent may designate a portion of an acquisition as sheltered market procurement, except for construction.

3. To obtain sheltered market procurement, an SBE must perform at least a given percentage of the contract. This provision limits the amount of subcontracting an SBE may enter into with other firms when performing these types of contracts. The provisions are as follows:

    a. Construction. For general and heavy construction contractors, at least 15 percent of the cost of the contract, not including the cost of materials, must be performed by the SBE prime contractor with its own employees. For special trade construction, such as plumbing, electrical, or tile work, this requirement is 25 percent.

    b. Manufacturing. At least 50 percent of the cost of manufacturing, not including the cost of materials, must be performed by the SBE prime contractor.

    c. Services. At least 50 percent of the contract cost for personnel must be performed by the SBE prime contractor's own employees.

(Ord. No. 5366, § 1(G), 7-20-2010)

Sec. 6-94-8. Certification as a small business enterprise.

A. A business seeking certification as an SBE must submit a central certification agency as designated by the city on the prescribed form, affirming under penalty of perjury that the business qualifies as an SBE. In order to qualify as an SBE, the potential SBE owner must meet the following requirements:

1. Demonstrate that the firm's gross revenues or number of employees averaged over the past three years, inclusive of any affiliates as defined by 13 CFR 121.103, does not exceed the MWBE standards as defined pursuant to 13 CFR 121;

2. Submit a certification of the personal net worth of each owner of the firm;

3. Demonstrate that the net worth of each owner does not exceed $750,000.00, exclusive of principal residence and the value of the owner's interest in the certified SBE;

4. Demonstrate that the SBE owners listed on the certification application own and control the business;

5. Demonstrate that it is or will be performing a commercially useful function; and

6. Demonstrate that it is located in the city;

7. Demonstrate that the principal owner maintains a residence in the Memphis MSA.

B. The office of contract compliance or a central certification agency may also, if it deems it necessary, perform an on-site review of the potential SBE owner's business prior to approving an application for certification.

C. A firm that is denied certification may not reapply for certification for a period of 12 months from the date of the denial.

D. Firms certified by other government agencies will be required to be certified under this chapter regardless of previous certification.

E. When a firm which has previously been designated an SBE exceeds either the size standard or the owner's net worth provision, it will be deemed to have graduated from the SBE program with no right of reentry.

1. *Graduation procedures.* Any interested party may request an evaluation of an MWBE firm. That evaluation will be performed at the time of the recertification for the MWBE. Upon recertification, a firm will be evaluated for graduation from the program. Once the OCC has been notified by the certifying agency that the firm has exceeded the size standards established by the NAICS, the following steps will be followed:

    a. Notification. The OCC shall issue a letter of notification to the firm detailing its intent to graduate the firm from the program. The letter of notification shall set forth findings, based on the facts and in accordance with law and regulations, for every material issue relating to the basis of the program graduation with specific reasons for each finding.

    b. Appeal. The firm will be allowed 45 days from the date of the letter to appeal the decision. To appeal the decision, the firm must submit in writing to the OCC information which would explain why the proposed basis of graduation is not war-

ranted. Upon receipt of the appeal, the OCC will notify the firm in writing of the receipt of the appeal.

c. Review. If the firm appeals its graduation from the program within the requisite 45 days, the appeal will be reviewed by a committee composed of the director of finance, purchasing agent, and city engineer. Within 15 days of receipt of the appeal, a written decision will be issued to the firm by the committee via the OCC.

2. *Post graduation.* After the effective date of firm's graduation from the program as provided for herein, a firm is no longer eligible to participate in or receive assistance from the MWBE program. However, such firm is obligated to complete previously awarded contracts and/or subcontracts, including any priced bids that may be exercised. Upon graduation there will be no right of reentry.

(Ord. No. 5366, § 1(H), 7-20-2010)

Sec. 6-94-9. Recertification.

Once certified as an SBE by the office of contract compliance, the certification is valid for a period of two years from the date the city certified the applicant as an SBE. Prior to the expiration of the two-year period, a business that desires to be recertified by the city shall:

(1) File an application to renew with the central certification agency as designated by the city; and

(2) Meet the requirements specified in this chapter for certification as an SBE.

(Ord. No. 5366, § 1(I), 7-20-2010)

Sec. 6-94-10. Decertification of small business enterprise.

A. The city may decertify the SBE for any of the following reasons:

1. Changes in the firm's circumstances since the certification of the firm that render the firm unable to meet the eligibility standards;

2. Information or evidence that was not available to the city at the time the firm was certified that, if available, would have resulted in a denial of certification;

3. Information that was concealed or misrepresented by the firm in connection with the certification application or review conducted by the city;

4. A change in the certification standard or requirements of the city since the certification of the firm;

B. Prior to taking formal action, city staff shall provide the business with written notice of the proposed revocation. During the pendency of the proceeding, the SBE firm's certification shall remain valid. The office of contract compliance staff shall then prepare a recommendation regarding the proposed revocation for review and approval by the chief operating officer. If approved by the chief operating officer, the OCC shall issue an initial notice of decertification to the SBE owner by certified mail. The SBE may appeal the initial notice of decertification within seven days of the receipt of the initial notice of decertification. If the SBE owner fails to appeal the initial notice of decertification within the time period set forth in this section, the decertification shall be final and take effect immediately.

C. If the OCC decertifies an SBE proposed to work, or currently working, on a contract, the decertified SBE's participation on the contract may no longer be counted toward fulfillment of the city's SBE goals. If the contractor no longer meets the city's SBE goals after the decertification of the former SBE, the contractor shall be required, within 30 days after notification by the office of contract compliance, to demonstrate good faith efforts to substitute the decertified SBE. Failure to demonstrate good faith efforts to substitute a decertified SBE will result in the bidder being declared nonresponsive, if done prior to the award of the contract, or the contractor being held in default of the contact, if done after the award of the contract.

(Ord. No. 5366, § 1(J), 7-20-2010)

Sec. 6-94-11. Certification reviews.

In addition to reviewing firms for cause, the office of contract compliance will conduct random certification reviews of certified SBEs by auditing them to verify that the information submitted by a business is accurate, and that the business remains eligible after certification has been granted. Certification is subject to revocation if it is determined that a business no longer qualifies as an SBE under the terms of this chapter. Certification reviews may be conducted for any business for which the office of

contract compliance determines a certification review is warranted. Businesses subject to certification reviews must provide the office of contract compliance with any information requested to verify the certification eligibility of the business.
(Ord. No. 5366, § 1(K), 7-20-2010)

Sec. 6-94-12. Appeals.

A. *Determination of noncompliance.* A responsible bidder that is determined to be nonresponsive to the requirements of this chapter, and that otherwise would have been awarded a contract, as determined in consultation with the purchasing agent, shall receive a written determination by the contract compliance officer, via certified mail, setting forth the reasons for the determination of nonresponsiveness.

B. *Denial of certification as an SBE.* Upon a denial of certification as an SBE, the office of contract compliance officer shall notify the affected party in writing, via certified mail, setting forth the reasons for the denial of certification.

C. *Time for filing notice of appeal.* Any business that has been denied certification as an SBE, or against whom a final determination of nonresponsiveness to the requirements of this chapter has been made by the office of contract compliance officer, may appeal the final determination of nonresponsiveness or denial of SBE certification by filing a notice of appeal with the contract compliance officer in writing within seven calendar days of receipt of the notice of the final determination of noncompliance or denial of certification.

D. *Posting of appeal security.* Any bidder that files an appeal to a final determination of nonresponsiveness by the office of contract compliance must, at the time of filing, post security in the amount of one percent of the financial offer of the appellant. If the contract compliance hearing officer upholds the determination of the office of contract compliance, he or she shall assess against the appellant reasonable attorneys' fees and other administrative costs incurred by the city in reviewing and responding to the appeal. If the city is represented by its law department, such fees and costs will be calculated at the hourly rate of each attorney participating in the review and response to the appeal set forth in each attorney's most recent city paycheck times the number of hours worked by such participating attorneys on the appeal. If the city is represented by outside counsel, such fees and costs will be calculated at the billing rates of the firm's attorneys, plus all out-of-pocket costs of the firm concerning the appeal. Within 15 days of ruling against the appellant, the contract compliance hearing officer, in consultation with the city's law department and outside counsel, if any, will calculate the city's cost in reviewing and responding to the appeal and will apply the appellant's bond or certified check to the costs. Any remaining balance of the bond or certified check will be returned to the appellant.

E. *Notice of hearing date and hearing.* Within three calendar days of receipt of a notice of appeal from an aggrieved party, excluding official holidays, the contract compliance officer shall forward the notice to the contract compliance hearing officer.

F. *Exhaustion of administrative remedies.* A protestor shall be required to exhaust its administrative remedies before filing suit in any state or federal court based on a determination of nonresponsiveness or denial of certification by the OCC rendered pursuant to this chapter.

G. *Duties of contract compliance hearing officer.* The duties of the contract compliance hearing officer shall be as follows:

1. The contract compliance hearing officer shall have exclusive jurisdiction to determine all appeals arising under this chapter.
2. The contract compliance hearing officer shall set a hearing date not more than seven calendar days from the date of receipt of the notice of appeal from the contract compliance officer, excluding official holidays. The hearing officer shall cause notice of the hearing to be served upon all parties by certified U.S. mail. Such notice shall set forth with particularity the decision being appealed by the aggrieved business and shall include the hearing date, time and place.
3. At the hearing, all parties shall be provided a fair and impartial hearing and shall be allowed to produce any and all evidence in either party's possession concerning the final determination of nonresponsiveness with the requirements of this chapter, or the denial of certification as an SBE.

H. *Decision.* Within seven calendar days after conclusion of the hearing, excluding official holidays, the contract compliance hearing officer shall make a written decision on the appeal, which decision shall affirm, alter

or reverse the final determination of nonresponsiveness or the denial of certification by the office of contract compliance. The hearing officer shall decide whether the final determination of nonresponsiveness or the denial of certification being appealed was in accordance with the law in existence at the time that the bidder was found to be nonresponsive, at the time that certification was denied, or at the time the penalties were imposed.

I. *Notice of decision.* Within seven calendar days after conclusion of the hearing, excluding official holidays, the contract compliance hearing officer shall issue written notice of the decision on the appeal to all parties. The notice of the decision shall be sent to all parties by certified U.S. mail and shall set forth the reasons for the decision.

J. *Appeal.* The decision of the hearing officer shall be binding on all parties, subject to the right of appeal to the chief administrative officer or its designee.
(Ord. No. 5366, § 1(L), 7-20-2010)

Sec. 6-94-13. Small business enterprise directory.

The city will create an SBE directory that lists SBEs categorized by types of firms to facilitate identifying businesses with capabilities relevant to a particular specification. Each business listing will contain the business name, contact person, address, phone number, legal structure of the business, and details concerning the company's business specialties. North American Industrial Classification System (NAICS) codes will be identified for each company. The office of contract compliance will continuously update and maintain the directory on the computer and on hard copy. In compiling this directory, the office of contract compliance will identify and certify as many SBEs as possible that perform the types of work or provide the types of supplies needed by the city. The city will maintain and have available an updated SBE directory and source lists for each bid/proposal solicitation to facilitate identifying SBEs working in areas relevant to general contracting requirements and to particular solicitations.
(Ord. No. 5366, § 1(M), 7-20-2010)

Sec. 6-94-14. Procedures to ensure that SBEs have an equitable opportunity to compete for contracts and subcontracts.

A. *Procedures to ensure opportunities.* The city shall utilize the following measures to ensure maximum practicable opportunities for SBE participation on city contracts:

1. Assist SBE in obtaining insurance and surety bonds where necessary in the performance of contracts, including but not limited to:
   a. Packaging contracts so that dollar amounts do not require bonding;
   b. Encouraging prime contractors to waive bonding or assist SBE subcontractors in obtaining bonding;
   c. Encouraging staged bonding where feasible, when bonding is carried over from one project stage to the next; and
   d. Relaxing bonding requirements for projects less than $100,000.00;
2. Encourage the formation of joint ventures between SBEs. The OCC will also assist prime contractors in identifying interested SBEs for subcontracts;
3. Provide information on the city's organization and contractual needs and offer instructions on bid specifications, procurement policy, procedures, and general bidding requirements;
4. Provide specifications and requests for proposals to the SBE community in a timely manner to allow SBEs adequate time to develop responsible and responsive bids. In instances where the cost of obtaining specifications or requests for proposal is prohibitive, copies of the material will be made available at no charge to SBE development agencies;
5. Establish prorated payment and delivery schedules where feasible, to minimize cash flow problems faced by small firms. The city will provide guidance to SBE contractors regarding maintenance of positive flow in order that current obligations can be met;
6. Hold pre-bid conferences to explain SBE requirements as well as forms that must be submitted with a bid;

7. Permit bidders to review and evaluate successful bid documents of similar procurements and use debriefing sessions to explain why certain bids were unsuccessful;

8. Provide projected procurement information and contracting schedules through the office of contract compliance and other outreach efforts;

9. Conduct internal information workshops to inform and acquaint city staff with the goals and objectives of the city's small business enterprise program, and to sensitize them to the challenges faced by SBEs;

10. Maintain records showing specific efforts to identify and award contracts to SBEs and establish a monitoring system to ensure that all contractors, subcontractors, consultants, and vendors comply with contracts specifications related to SBE utilization; and

11. Inform SBEs of bid notices and specifications related to their capability by placing bid notices in major local newspapers and other periodicals. Bid notices will also be sent to local trade associations, technical assistance agencies, economic development groups, and SBEs with capabilities that may be relevant to the bid notice as identified by the city's SBE databank. Bid specifications will be made available to SBE contractor associations and technical assistance agencies. Lists of potential firms bidding as primes will also be made available to SBEs.

B. *Direct assistance to SBEs.* In addition to the procedures set forth in subsection A of this section, the office of contract compliance shall also undertake special measures to assist SBEs in overcoming barriers to participation on city contracts. This assistance will be offered directly by the city, as well as by city referral to other assistance agencies with established, comprehensive, and continuous SBE development programs. Businesses requiring management and technical assistance will be identified through a questionnaire, through personal experience with these businesses, and through requests for assistance. The office of contract compliance will offer the following direct assistance to SBEs:

1. Provide counseling and training sessions for SBEs. City staff will be available to interested business representatives to explain (in detail) instructions for preparation of bid specifications, the city's procurement policies, procedures and general bid requirements. The SBE program officer will coordinate and follow up all requests for assistance to ensure that all necessary information was provided.

2. Provide coordination and referral to existing business development organizations.

3. Sponsor intensive workshops and training sessions on identified SBE problem areas (i.e., pricing and estimating, joint venture formation, accounting principles, marketing, etc.).

(Ord. No. 5366, § 1(N), 7-20-2010)

Sec. 6-94-15. Methods by which the city will require contractors and subcontractors to comply with applicable SBE requirements.

The city's staff is available to assist contractors and subcontractors in implementing this program. As a standard procedure, such assistance includes:

1. Clearly setting forth the city's SBE goals in all city solicitations;

2. Attending pre-proposal/bid conferences to explain the city's SBE program;

3. Identifying certified SBEs in the city's database and providing a list of available, certified SBEs upon request;

4. Providing plan holder lists and pre-bid sign-in sheets made available to interested SBEs upon request;

5. Remaining available to assist bidders in developing their SBE programs;

6. Monitoring SBE participation levels on projects throughout the duration of a contract. Contractors violating contract provisions regarding SBE participation are subject to the sanctions set forth in section 6-94-17.

(Ord. No. 5366, § 1(O), 7-20-2010)

Sec. 6-94-16. Means to ensure that competitors make good faith efforts to meet SBE contract goals.

A. For all contracts for which SBE contract goals have been established, the bidder shall be required to submit SBE participation information to the city. The award of the contract will be conditioned upon satisfac-

tion of the requirements established by the city. The bidder shall submit, with its bid submission, the following information:

1. The name, address and certification number, if applicable, of the SBE firms that will participate in the contract;

2. The description of the work each named SBE will perform; and

3. The dollar amount of participation by each named SBE firm.

B. If the SBE participation submitted by the bidder does not meet the SBE contract goals, the bidder must submit with its bid submission evidence demonstrating that good faith efforts were made to meet the goals. The city will review documents submitted at the time of bid, and make its determination of good faith efforts based on those submitted documents. Additional submissions will not be permitted. To determine sufficient good faith efforts to meet the SBE contract goal, a bidder/proposer shall document the steps it has taken to obtain SBE participation, including but not limited to the following:

1. Attendance at a pre-bid meeting, if any, scheduled by the city to inform SBEs of subcontracting opportunities under a given solicitation;

2. Advertisement in general circulation media, trade association publications, and other media for at least 15 days before bids or proposals are due;

3. Written notification to SBEs that their interest in the contract is solicited;

4. Efforts made to select portions of the work proposed to be performed by SBEs in order to increase the likelihood of achieving the stated goal;

5. Good faith efforts to negotiate with SBEs for specific subcontracts, including at a minimum:

   a. The names, addresses, and telephone numbers of SBEs that were contacted;

   b. A description of the information provided to SBEs regarding the plans and specifications for portions of the work to be performed;

   c. A statement of why additional agreements with SBE were not reached;

   d. Concerning each SBE, the SBE contacted but rejected as unqualified, and the reasons for the bidder's conclusion; and

   e. Efforts made to assist the SBEs contacted that needed assistance in obtaining bonding or insurance required by the competitor or the city.

6. To determine whether a competitor that has failed to meet SBE goals may be awarded the contract, the city will determine whether the efforts the bidder made to obtain SBE participation were good faith efforts. Efforts that are merely pro forma are not good faith efforts to meet the goals. In order to award a contract to a bidder that has failed to meet SBE contract goals, the office of contract compliance will determine whether the bidder actively and aggressively made efforts to meet the city's SBE goals. A bidder making a good faith effort would consider a number of factors in negotiating with subcontractors, including SBE subcontractors, and would take a firm's price and capabilities as well as contract goals into consideration. However, the fact that there may be some additional costs involved in finding and using SBEs is not in itself sufficient reason for a bidder's failure to meet the contract SBE goal, as long as such costs are reasonable. Also, the ability or desire of a prime contractor to perform the work of a contract with its own organization does not relieve the bidder of the responsibility to make good faith efforts. Prime contractors are not, however, required to accept higher quotes from SBEs if the price difference is excessive or unreasonable. In determining whether a bidder has made good faith efforts, the office of contract compliance will take into account the performance of other bidders in meeting the contract. For example, when the apparent successful bidder fails to meet the contract goal, but others meet it, the office of contract compliance may reasonably raise the question of whether, with additional reasonable efforts, the apparent successful bidder could have met the goal. If the apparent successful bidder fails to meet the goal but meets or exceeds the average SBE participation obtained by other bidders, the city may view this, in conjunction with other factors, as evidence of the apparent successful

bidder having made good faith efforts. Competitors that fail to meet SBE goals and fail to demonstrate good faith efforts shall be deemed nonresponsive to the city's SBE requirements and shall not be eligible to be awarded the contract.

7. To ensure that all obligations under contracts awarded to SBEs are met, the city shall review the contractor's SBE involvement efforts during the performance of the contract. The contractor shall bring to the attention of the city any situation in which regularly scheduled progress payments are not made to SBE subcontractors.

(Ord. No. 5366, § 1(P), 7-20-2010)

Sec. 6-94-17. Penalties for noncompliance.

A contractor who fails to comply with any portion of this chapter, and whose failure to comply continues for a period of 30 calendar days after the contractor receives written notice of such noncompliance from the director of the office contract compliance, shall be subject to any or all of the following penalties:

1. Withholding of ten percent of all future payments for the eligible project until the office of contract compliance determines that the contractor is in compliance with this chapter.

2. Withholding of all future payments under the eligible project until it is determined that the contractor is in compliance with this chapter.

3. Cancellation of the eligible project.

4. Refusal of all future contracts or subcontracts with the city for a minimum of one year and a maximum of five years from the date upon which this penalty is imposed.

(Ord. No. 5366, § 1(Q), 7-20-2010)

Sec. 6-94-18. Outreach to SBEs.

The city considers information dissemination and communication with SBEs as an integral part of the city's SBE program. As a part of its outreach program, the office of contract compliance will solicit input from representatives of SBEs, trade associations and community organizations. This input will serve several important functions, including:

1. Providing information to identify additional SBE firms;

2. Assisting in refining SBE program goals and procedures; and

3. Providing an independent assessment of the effectiveness of the city's SBE program.

(Ord. No. 5366, § 1(R), 7-20-2010)

Sec. 6-94-19. Procedures to require that participating SBEs are identified by name by competitors for contracts.

A. The city shall indicate, in solicitations for contracts that provide opportunities for SBE participation, goals for the use of SBE firms. Solicitations shall require all bidders to submit a written assurance of meeting the goals in their bids or proposals. Bids must also include a proposed schedule of SBE participation that lists the names of SBE subcontractors, a description of the work each is to perform, and the dollar value of each proposed SBE subcontract. If the SBE participation does not meet the SBE contract goals, the bidders must submit sufficient information and evidence demonstrating that the bidder made good faith efforts to meet the goals.

B. Bidders are required to submit this information with their bids and bidders are so informed at the time of solicitation. Agreements between a bidder and a SBE in which the SBE promises not to provide subcontracting quotations to other bidders shall be prohibited.

(Ord. No. 5366, § 1(S), 7-20-2010)

Sec. 6-94-20. Severability.

If any provision of this chapter or any application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of this chapter which can be given effect without the invalid provisions or applications, and are to this end declared to be severable.

(Ord. No. 5366, § 1(T), 7-20-2010)

CHAPTER 6-96. LOCAL SMALL BUSINESS DEVELOPMENT AND PROCUREMENT PROGRAM

Sections:

Sec. 6-96-1. Local preference for award of city contracts.

Sec. 6-96-1. Local preference for award of city contracts.

A. *Definitions.* As used in this chapter, the following terms shall have the following meanings:

Contract means any contract, purchase order, or agreement (other than a lease or collective bargaining agreement or a contract awarded by MATA which is funded by federal moneys supplied under any federal grant program or plan), awarded by the purchasing agent, division head or his/her designee, or city agency, and whose cost is to be paid from funds belonging to or administered by the city.

Local business means that the vendor or contractor has a valid domestic type county and state business license, issued at least one year prior to bid or proposal opening date, to do business in said locality that authorizes the business to provide the goods, services, or construction to be purchased, and the physical principal business address located within the city limits, in an area zoned for the conduct of such business, from which the vendor operates or performs the majority of its business on a day-to-day basis, and also from which the vendor conducts 100 percent of the necessary functions to maintain or fulfill the contract with the city. Post office boxes are not verifiable and shall not be used for the purpose of establishing said address.

B. *Purpose and intent.* The city shall give a local preference to local businesses in the city limits in awarding city contracts and making purchases whenever the application of such a preference is reasonable in light of the dollar value of proposal received in relation to such expenditures.

1. *Local preference.*

   a. In order to be eligible for the local preference, the vendor must provide a copy of the domestic county and state business license and shall also provide proof that county personal property taxes and all other necessary local business operational taxes inherent to businesses whose principal base of operations is located within the city limits were appropriately paid and/or authorize the governing bodies of each agency to release such information to the city.

   b. In the bidding of, or letting contracts for procurement of supplies, materials, equipment and services, with a total price of $10,000.00 or more, local preference shall mean that if the lowest responsive bidder is a regional or non-local business, then all bids received from responsive local businesses are decreased by five percent. The original bid is not changed; the five percent decrease is calculated only for the purposes of determining the local preference. The local preference cost differential is not to exceed $100,000.00.

   c. In the case of request for proposal, letters of interest, best evaluated bids, qualifications or other solicitations and competitive negotiation and selection in which objective factors are used to evaluate the responses, local businesses are assigned five percent of the total points of the total evaluation points up to a maximum of five points.

   d. In the event of a tie between a local business and one or more non-local business meeting specifications, the ties shall be broken in favor of the local business.

2. *Local presence.*

   a. In the event there is no local business preference designation, either due to non-participation or non-eligibility after the five percent differential or five point assignment, then local presence will be considered for the procurement of goods and services over the amount of $2,000,000.00.

   b. Local presence will be demonstrated by the total number of individuals a business employs within the county. For procurements, a five percent differential which is not to exceed $200,000.00 shall be granted for the business that demonstrates the highest number of total employees located within the county at the time of the bid response. For request for proposals or matters for which factors are evaluated, local presence at the time of the response will be a weighted criteria. In no event shall the local presence designation be

allowed for a business with less than 25 local employees at the time of the bid response.

3. *Exceptions.*

a. The local business preference or presence criteria shall not apply to purchases or contracts which are funded, in whole or in part, by a governmental entity and the laws, regulations, or policies governing such funding prohibit application of the local preference, nor shall the local preference apply to purchases made or contacts let under emergency or noncompetitive situations.

b. Application of the local preference or local presence criteria to a particular purchase, contract or category of contracts for which the city is the awarding authority may be waived upon written justification and recommendation of the city to compare qualification, character, responsibility and fitness of all persons, firms, or corporations submitting bids or proposals. Further, the preference or presence criteria established herein in no way prohibit the right of the city from giving any other preference permitted by law in addition to the preference authorized herein.

(Ord. No. 5114, § 1, 2005; Ord. No. 5389, § 1, 1-18-2011)

CHAPTER 6-100. GOING OUT OF BUSINESS SALES

Sections:

Sec. 6-100-1. Definitions.
Sec. 6-100-2. Permit requirement.
Sec. 6-100-3. Application for permit.
Sec. 6-100-4. Issuance of permit—Time limit.
Sec. 6-100-5. Permit renewals.
Sec. 6-100-6. Permit application fee—Renewal fee.
Sec. 6-100-7. Contents of advertising.
Sec. 6-100-8. Display of permit—Books and records.
Sec. 6-100-9. Rules and regulations.
Sec. 6-100-10. Suspension or revocation of permit.
Sec. 6-100-11. Violations—Penalties.
Sec. 6-100-12. Application of chapter.

Sec. 6-100-1. Definitions.

As used in this chapter, the following terms shall have the following meanings unless a different meaning appears from the context:

Director means the director of public services, or his or her designated representative.

Inspector means the city employee selected by the director to inspect premises of going out of business activities.

On hand means only those items on hand and in stock under the name of applicant applying for permit, for at least 12 months prior to making application, at the address which appears on the face of the permit form, and shall include no other items.

Permit means a permit issued pursuant to this chapter.

Permittee means any person to whom a permit has been issued pursuant to this chapter.

Person means one or more individuals, partnerships, associations, corporations, business trusts, legal representatives, or any organized group of persons conducting a going out of business sale.

Publish, publishing, advertisement or *advertising* includes any and all means of every kind of conveying to the public notice of sale or notice of intention to conduct a sale, whether by word of mouth, by newspaper advertising, by magazine advertisement, by handbill, by written notice, by printed notice, by printed display, by billboard display, poster, by radio or television announcement, and any and all means including oral, written or printed.

Sales means the sale or any offer to sell to the public goods, wares and merchandise of any and all kinds and descriptions on hand and in stock in connection with a declared purpose, as set forth by advertising, on the part of the seller that such sale is anticipatory to the termination, closing, liquidation, revision, windup, discontinuance, conclusion or abandonment of the business in connection with such sale. It shall also include any sale advertised to be a "fire sale," "adjustment sale," "creditor's sale," "trustee's sale," "liquidation sale," "reorganization sale," "insurance salvage sale," "administrator's sale," "insolvent sale," "mortgage sale," "assignee's sale," "adjuster's sale," "receiver's sale," "loss-of-lease sale," "wholesaler's close-out sale," "retailer's close-out sale," "creditor's committee sale," "forced out-of-business sale,"

or "removal sale," and any and all sales advertised in such manner as to reasonably convey to the public that upon disposal of the stock of goods on hand, the business will cease and be discontinued.

Seller means the owner or operator of a legitimate on-going business in daily operation for at least 12 months prior to making application for permit, and may be composed of one or more individuals, partnerships, associations, corporations, business trusts, legal representatives, or any organized group of persons desiring to conduct a going-out-of-business sale.

Stock means only those items on hand, owned by seller, and in stock at least 12 months prior to making application for permit, at the address which appears on the face of the permit form, and shall include no other items.
(Code 1985, § 2-395; Ord. No. 3834, § 1(1, 2), 1-3-1989; Ord. No. 3919, § 1(1—3), 12-19-1989)

Sec. 6-100-2. Permit requirement.

No person, firm or corporation shall hereafter publish or conduct any sale of the type defined in section 6-100-1 without a permit therefor.
(Code 1985, § 2-396; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-3. Application for permit.

A. The director is authorized and empowered to supervise and regulate sales or special sales defined in section 6-100-1, and to issue the appropriate permit therefor.

B. Such permit shall be issued at the discretion of the director upon the written application in a form approved by the director and verified by the person who, or by an officer of the corporation which, intends to conduct such sale.

C. Such permit shall contain:

1. A description of the place where such sale is to be held, the nature of the occupancy, whether by lease or sublease, and the effective date of the termination of such occupancy, the means to be employed in publishing such sale, together with the proposed language content in any advertisement;
2. An itemized list of the goods, wares and merchandise to be offered for sale, certified by an independent audit of a public accountant or a certified public accountant, which goods, wares and merchandise have been under the ownership and name of the applicant, and located at the address which appears on the face of the permit form, for at least 12 months prior to the making of the application;
3. Any additional information as the director may require.

(Code 1985, § 2-397; Ord. No. 3563, § 1, 5-27-1986; Ord. No. 3834, § 1(3), 1-3-1989; Ord. No. 3919, § 1(4), 12-19-1989)

Sec. 6-100-4. Issuance of permit—Time limit.

Upon receipt of such application and payment of the fee prescribed in section 6-100-6, the director shall cause the same to be examined and investigated. If in any such investigation the director is satisfied as to the truth of the statements contained in such application, and as to the form and content of the advertising to be used in connection with such sale, he or she may then issue a permit permitting the publication and conduct of such sale. Such permit shall be for a period of not exceeding 30 days.
(Code 1985, § 2-398; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-5. Permit renewals.

Upon satisfactory proof by the permittee that the stock itemized in the original application has not been disposed of, the director may renew such permit for the remaining items, for an additional 30-day period upon payment of the prescribed renewal fee. Such proof for a renewal permit shall be furnished in form to be issued by the director. The renewal application shall contain an itemized list of stock on hand and the same shall be verified by the applicant. The director shall cause the same to be examined and investigated, and if satisfied as to the truth of the statements therein contained, the director may issue a renewal permit for a period not exceeding 30 days; provided, however, that not more than three such renewals shall be granted for any such sale for the same location within a period of one year from the date of issuance of the first permit.
(Code 1985, § 2-399; Ord. No. 3834, § 1(4), 1-3-1989; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-6. Permit application fee—Renewal fee.

Upon filing an original application, or a renewal application, for a permit to advertise and conduct a sale

or special sale, as defined in section 6-100-1, the applicant shall pay to the director a fee in the sum of $25.00. If any application or renewal application be disapproved, such payment shall be forfeited to the director as and for the cost of investigating the statements contained in such application or renewal application.
(Code 1985, § 2-400; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-7. Contents of advertising.

A. All advertisements or advertising and the language contained therein shall be in accordance with the purpose of the sale, as stated in the application pursuant to which a permit was issued, and the wording of such advertisements shall not vary from the wording as indicated in the application.

B. Such advertising shall contain a statement in these words, and no others:

> Sale held pursuant to Permit No: _____ of Director of Public Services, granted the _____ day of_____, 20____.

and in such blank spaces shall be indicated the permit number and the requisite dates.
(Code 1985, § 2-401; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-8. Display of permit—Books and records.

A. Upon commencement of any sale, as hereinbefore defined, the permit issued by the director shall be prominently displayed near the front entrance of the premises.

B. A duplicate of the original application and stock list pursuant to which permit was issued shall at all times be available to the director or to inspectors, and the permittee shall permit such inspectors to examine all merchandise in the premises for comparison with such stock list.

C. Suitable books and records as prescribed by the director shall be kept by the permittee and shall be at all times available to the inspectors of the city.

D. At the close of the business day the stock list attached to the application shall be revised and those items disposed of during such day shall be marked thereon.
(Code 1985, § 2-402; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-9. Rules and regulations.

The director is further empowered to make such rules and regulations for the conduct and advertisement of such sale or special sale as in his or her opinion will serve to prevent deception and to protect the public.
(Code 1985, § 2-403; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-10. Suspension or revocation of permit.

The director shall have power to suspend or revoke, at any time, any permit granted in accordance with this chapter.
(Code 1985, § 2-404; Ord. No. 3563, § 1, 5-27-1986)

Sec. 6-100-11. Violations—Penalties.

A. Any person who shall violate, neglect or refuse to comply with any of the provisions of this chapter shall, upon conviction thereof, be punished by a fine not to exceed $50.00.

B. In addition to penalties provided in subsection A of this section, the city shall have all legal enforcement powers up to and including injunctive relief requiring violators to cease or suspend business operations and/or initiate court proceedings to enjoin such violations.
(Code 1985, § 2-405; Ord. No. 3563, § 1, 5-27-1986; Ord. No. 3919, § 1(5), 12-19-1989)

Sec. 6-100-12. Application of chapter.

The provisions of this chapter shall not apply to or affect the following persons:

A. Persons acting pursuant to an order or process of court of competent jurisdiction from one of the courts of Shelby County, Tennessee;

B. Persons acting in accordance with their powers and duties as public officers, such as sheriffs and marshals, or city purchasing agents in the sale of surplus stocks; or

C. Duly licensed auctioneers, selling at auction.
(Code 1985, § 2-406; Ord. No. 3563, § 1, 5-27-1986; Ord. No. 3834, § 1(5), 1-3-1989)

CHAPTER 6-104. WEIGHTS AND MEASURES*

Sections:

Sec. 6-104-1. Registration of commercial devices.
Sec. 6-104-2. Inspector office created—General duties.
Sec. 6-104-3. Inspector not to have conflicting interests.
Sec. 6-104-4. Inspection of weights, measures, scales, taximeters and gas dispensers.
Sec. 6-104-5. Sealing of tested devices.
Sec. 6-104-6. Annual registration fees.
Sec. 6-104-7. Monthly report of fees to director of public services.
Sec. 6-104-8. Weights and measures violations.

Sec. 6-104-1. Registration of commercial devices.

It is the responsibility of businesses and manufacturers operating in the city to register commercial devices such as gas dispensers, platform scales, taxi meters, etc. with the city weights and measures bureau prior to operation. Businesses and manufacturers that fail to comply will be fined according to the terms specified in section 6-104-6(C).
(Code 1985, § 40-1; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-2. Inspector office created—General duties.

The office of city inspector of weights and measures is created, and it shall be the inspector's duty, by himself or herself or deputies, to inspect, test, measure or weigh, and mark all articles of commerce or merchandise usually inspected, tested, weighed or measured, and particularly to weigh, measure, test, and mark devices in this chapter. It shall likewise be the duty of the inspector to have, keep and preserve all instruments, weight standards, books, etc., belonging to this office, and to deliver all such that belong to the city to his or her successor in office, or to the mayor at his or her order.
(Code 1985, § 40-2; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-3. Inspector not to have conflicting interests.

Neither the inspector of weights and measures nor deputies shall deal or trade in any articles subject to inspection, weight or measurement by the ordinances of the city, for himself or herself or as an agent, and shall never solicit or interfere in any trade, sale or purchase between others. Any inspector who shall be guilty of this section shall be punished as prescribed in section 1-24-1, and such acts shall be just cause for removal from office.
(Code 1985, § 40-3; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-4. Inspection of weights, measures, scales, taximeters and gas dispensers.

A. It shall be the duty of the inspector of weight and measures to try, test and correct the weights, measures, scales, meters and/or gas dispensers, of all businesses, manufacturers, motor freight carriers or others in the city who buy or sell any articles of commerce or weigh commodities to be sold to the public or to the trade, or fix their charges for services rendered by scales, measures and weights, and for trying, testing and correcting, as aforesaid, the inspector shall keep correct records in the office, or the same quantity, weight and standard as are fixed by the laws of the state.

B. It will be the duty of the inspector of weights and measures to test or inspect all scales, gas dispensers, and meters used in the sale or manufacturing of merchandise, annually or when necessary. Any proprietor, clerk or employee of any place of business who shall make to the inspector any false statements in regard to the number of such scales, gas dispensers, weights or meters kept in his or her establishment or place of business, or endeavor to secrete or hide away the same to avoid the inspector shall be guilty of a misdemeanor provided that nothing herein contained shall be held to apply to scales, weights, gas dispensers, or meters kept for sale.
(Code 1985, § 40-4; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-5. Sealing of tested devices.

Whenever the inspector of weights and measures shall test, gauge, weigh or inspect any device, he or she shall properly seal or mark the same, and it shall be a misdemeanor to remove such seals or mark.
(Code 1985, § 40-5; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-6. Annual registration fees.

A. For the annual registration of all devices by the inspector of weights and measures, the city shall charge and receive, from the owner, lessee, or seller, the following fees and not other by January 31 of each year.

1. Platform scales: $20.00;
2. Counter scales: $15.00;

*__Charter reference—__Authority to inspect weights and measures and prescribe fees therefor, § 163.

__State law reference—__Weights and measures, T.C.A. § 47-26-101 et seq.

3. Gas dispensers (per pump): $15.00;

4. Taxi meters: $15.00.

B. A late fee of $3.00 per device will be assessed to all businesses or manufacturers who fail to register devices with the city weights and measures by March 31 of each year.

C. Businesses and manufacturers must register devices within 30 days of operation or be subject to fines and penalties as set forth in this Code.
(Code 1985, § 40-6; Ord. No. 4641, § 1, 1-5-1999; Ord. No. 5111, § 1, 2005)

Sec. 6-104-7. Monthly report of fees to director of public services.

The manager of weights and measures shall make to the director of public services, by the second week of each month, a report of the inspector's official transactions for the previous month, showing the amount of fees reported and summary of the kind and quality of goods registered.
(Code 1985, § 40-7; Ord. No. 4641, § 1, 1-5-1999)

Sec. 6-104-8. Weights and measures violations.

In addition to any conditions, violations or penalties set forth in T.C.A. title 47, chapter 26, part 9, as revised July 1, 1997, any violation of this chapter shall be deemed a misdemeanor and subject to a fine and penalty as set forth in section 1-24-1.
(Code 1985, § 40-8; Ord. No. 4641, § 1, 1-5-1999)

Title 7

ALCOHOLIC BEVERAGES*

Chapters:

7-4. Alcoholic Beverages Generally
7-8. Beer and Light Alcoholic Beverages
7-12. Tax on Retail Sales of Alcohol for On-Premises Consumption
7-16. Inspection Fees

***State law reference—**Intoxicating liquor, T.C.A. § 57-1-101 et seq.

CHAPTER 7-4. ALCOHOLIC BEVERAGES GENERALLY

Sections:

Sec. 7-4-1. Alcoholic beverage and zoning districts defined.
Sec. 7-4-2. Manufacture and sale legalized—Compliance with state law and chapter.
Sec. 7-4-3. Certificate of good moral character required of applicants for state license.
Sec. 7-4-4. Area within which retail sale permitted.
Sec. 7-4-5. Manufacture and sale near churches, schools or other public or private institutions or residential areas.
Sec. 7-4-6. Relocation of liquor stores.
Sec. 7-4-7. Limitation on number of retail outlets.
Sec. 7-4-8. Sale to certain persons prohibited—Drinking in or on premises of retail liquor stores prohibited—Penalty.
Sec. 7-4-9. Hours of sale at retail.
Sec. 7-4-10. Inducement to purchase prohibited.
Sec. 7-4-11. Inspection of sales premises.
Sec. 7-4-12. Possession or consumption in Liberty Bowl Memorial Stadium.
Sec. 7-4-13. Time of appeal from alcohol commission to the city council.
Sec. 7-4-14. Investigations by city for violations under state law regarding sexual and pornographic conduct.
Sec. 7-4-15. Open containers and consumption of alcoholic beverages prohibited in certain public places.

Sec. 7-4-1. Alcoholic beverage and zoning districts defined.

"Alcoholic beverage" or "beverage," as used in this title, means and includes alcohol, spirits, liquor, wine and every liquid containing alcohol, spirits, wine and capable of being consumed by a human being, other than patent medicine, or beer where the latter contains an alcoholic content of five percent by weight or less.

All zoning districts referenced in this title shall include those zoning districts reflected on the City of Memphis and Shelby County Zoning District Map, as well as the areas in approved planned developments that are designated for those zoning districts or their preceding equivalent zoning districts according to the Memphis and Shelby County Unified Development Code.
(Code 1967, § 5-1; Code 1985, § 4-1; Ord. No. 3507, § 1, 11-5-1985; Ord. No. 5459, § 4, 7-17-2012)

Sec. 7-4-2. Manufacture and sale legalized—Compliance with state law and chapter.

It shall be lawful to engage in the business of manufacturing, selling, storing, transporting, and distributing alcoholic beverages within the corporate limits of the city. The manufacture, sale, receipt, possession, storage, transportation, distribution, or in any manner dealing in alcoholic beverages within the corporate limits of the city shall be regulated in accordance with the provisions of T.C.A. title 57, the rules and regulations adopted by the Commissioner of Revenue of the state, and in accordance with the provisions of this title.
(Code 1967, § 5-2; Code 1985, § 4-2)

Sec. 7-4-3. Certificate of good moral character required of applicants for state license.

A. Each applicant for the certificate of good moral character required prior to the issuance or renewal of a state alcoholic beverage license shall make application to the alcohol commission created by section 2-82-1 on forms to be approved by the mayor. Such applications shall be transmitted by the alcohol commission to the mayor for his or her approval or disapproval.

B. The mayor shall have authority to prepare, in accordance with state law, and have printed a form of certificate to be issued in certifying to the Commissioner of Revenue of the state the good moral character of applicants for such certificate.

C. No such certificate of good moral character will be issued in any case where the location of the proposed retail liquor store has been disapproved by the mayor.
(Code 1967, § 5-7; Code 1985, § 4-3; Ord. No. 117, § 1, 2-20-1968)

State law reference—Certificates of moral character, T.C.A. §§ 57-3-208, 57-4-201.

Sec. 7-4-4. Area within which retail sale permitted.

It shall be lawful to sell at retail any alcoholic beverages within the corporate limits of the city, provided the retail liquor store is located in compliance with section 7-4-5.
(Code 1985, § 4-4; Ord. No. 188, §§ 1, 2, 6-11-1968; Ord. No. 286, § 1, 9-17-1968)

Sec. 7-4-5. Manufacture and sale near churches, schools or other public or private institutions or residential areas.

A. No alcoholic beverages shall be manufactured, distilled, rectified, sold or stored on any premises located within 1,500 feet (as measured along the center

line of the street or streets as defined further herein and applying to retail liquor stores located on either side of such street or streets) from any church (defined as property owned and used by a church having regular attendance at its meetings and whose property is exempt from taxation by the property assessor); school (defined as duly accredited public, private, or parochial school for grades one through 12, or any other division of such grades); park (defined as public park upon which children usually play); library (defined as tax supported public library) or any other retail liquor store, or within a 500-foot radius in any other direction from any such church, school, park, library, or any other retail liquor store or in any area in violation of the zoning ordinances. The 1,500 feet shall be measured from a point in the center line of the public or private street (private street being defined to be a private passageway for vehicles in a multi-establishment commercial area of at least two acres in size) on which the liquor store fronts, such point being directly opposite the center of the threshold of the wall of the liquor store if the threshold faces the street and if not, then at the midpoint of the liquor store building; thence along the center line of the street and the center line of intersecting street or streets to a point in the center line of the street opposite the nearest point to the property line of such church, school, park, library, or other liquor store which faces the public or private street. Such 500-foot restriction shall be measured from the center of the threshold of the store to the nearest point in the property line of such church, school, park, library, or other liquor store, it being the intent that no part of the property of such church, school, park, library, or other liquor store shall be within a radius of 500 feet from the point in the center of the threshold of the liquor store. The measurements set forth herein shall apply only to liquor store locations after September 17, 1986. For clarification as to location and continuous use for liquor stores receiving a permit before September 17, 1968, such business may continue as long as;

1. The store remains at the same location;
2. It is a continuing business without any intervening use; and
3. Any transfer of ownership to subsequent or succeeding owners occurs within a one-day period (24 hours) without the depletion of inventories.

At any time a license is surrendered, all prior existing rights are nullified. In addition to the above set forth restrictions on location due to measurement to such school, church, park or library, or any other liquor store, no liquor store may be located where any part of any residential property zoned R-15, R-10, R-8, R-6, RU-1 or RU-2 shall be within a radius of 200 feet from the point in the center of the threshold of the wall of the liquor store if the threshold faces the street and if not, then at the midpoint of the liquor store building. Liquor stores having received permits before September 17, 1968, shall be allowed to remain so long as they otherwise meet the ordinances. The subsequent location of a church, school, park or library nearer to the liquor store than the prescribed distance shall not of itself cause the removal of the liquor store so long as the liquor store remains at the same location. Likewise, should any real property be already zoned or which is rezoned R-15, R-10, R-8, R-6, RU-1 or RU-2 within the radius of such 200 feet above described, such zoning or rezoning shall not of itself cause the removal of the liquor store as long as the liquor store remains in the same location.

B. The foregoing provisions of this section shall not apply to the relocation of any retail dealer who is compelled to relocate as the direct result of the actions of a governmental body or agency thereof, and such dealer can relocate his or her business within a radius of 1,500 feet as measured from the center of the front door of his or her business, provided the new location is approved by the alcohol commission subject to appeal to the council.

C. Upon a clear showing by a liquor dealer, whose property has been taken through governmental action so that it is impossible to relocate the store within the 1,500 feet prescribed distance, such liquor dealer shall be allowed to relocate within the prohibited distance from parks, playgrounds, churches, schools or libraries if such location is approved by the city council after a hearing and recommendation by the alcohol commission.

D. The location restriction (as defined in subsection A of this section) shall not apply to a qualified "retail food store wine license" applicant, that as of December 31, 2015, holds any off-premises beer permit, or upon application for a retail food store wine license, qualifies for any off-premises beer sales permit under chapter 7-8, article 2.

(Code 1967, § 5-9; Code 1985, § 4-5; Ord. No. 188, § 3, 6-11-1968; Res. of 8-6-1968; Ord. No. 286, § 1,

9-17-1968; Ord. No. 649, § 1, 2-3-1970; Ord. No. 694, § 1, 5-12-1970; Ord. No. 836, § 1, 12-22-1970; Ord. No. 1683, § 1, 4-10-1973; Ord. No. 3606, § 1, 9-23-1986; Ord. No. 5459, § 5, 7-17-2012; Ord. No. 5615, § 2, 5-3-2016)

State law reference—Location restrictions authorized, T.C.A. § 57-3-208.

Sec. 7-4-6. Relocation of liquor stores.

Owners of retail liquor licenses issued for a specific location shall not be allowed to relocate their liquor stores until at least 24 months have passed since the granting of the original license at that location, unless the location is lost through condemnation, loss of lease or unanticipated hardship.
(Code 1967, § 5-11; Code 1985, § 4-6)

Sec. 7-4-7. Limitation on number of retail outlets.

In no event shall the number of retail liquor stores, premises or outlets for the sale of alcoholic beverages exceed 177.
(Code 1967, § 5-10; Code 1985, § 4-6.1; Ord. No. 127, § 1, 5-8-1951; Ord. No. 96, § 1, 12-19-1980)

State law reference—Numerical limitation on licenses authorized, T.C.A. § 57-3-208.

Sec. 7-4-8. Sale to certain persons prohibited—Drinking in or on premises of retail liquor stores prohibited—Penalty.

A. No retailer shall sell any alcoholic beverages to any person who is drunk, nor shall any retailer selling alcoholic beverages sell to any person accompanied by a person who is drunk.

B. No retailer shall sell any alcoholic beverages to a person known to be a minor and no person under the age of 21 years old is allowed in a retail liquor store unless accompanied by a parent, legal guardian or spouse.

C. No retail liquor package store operator, licensee, or his or her employee shall consume any alcoholic beverage nor permit any alcoholic beverage to be consumed within the licensed premises at any time, nor shall any licensee, operator, or his or her employee engage in the sale of alcoholic beverages while under the influence of intoxicants or drugs.

D. It is unlawful for any other person to consume alcoholic beverages while upon the premises of a retail liquor package store or any parking lot under control of the store. Retail liquor package store operators or

licensees shall post a sign on painted wood or metal or on the glass show window with black lettering on white background, two feet by three feet in size, lettering not less than three inches in height, containing the following language:

"The consumption of alcoholic beverages upon these premises is prohibited by law."

These signs shall be posted in a conspicuous and readily visible place, and not less than one sign shall be posted within the sales area, and not less than one sign shall be posted within the parking area, if any.
(Code 1967, § 5-12(a)—(c); Code 1985, § 4-7; Ord. No. 1509, § 1, 11-14-1972; Ord. No. 5413, § 1, 9-20-2011)

State law reference—Alcohol and underage persons, T.C.A. §§ 57-3-406, 57-3-412.

Sec. 7-4-9. Hours of sale at retail.

No retail liquor store or retail food store shall sell, give away, or otherwise dispense alcoholic beverages except between the hours of 8:00 a.m. and 11:00 p.m. Monday through Saturday and between 10:00 a.m. and 11:00 p.m. on Sunday.
(Code 1967, § 5-13; Code 1985, § 4-8; Ord. No. 5720, § 1(A.), 1-22-2019)

State law reference—Hours of sale, T.C.A. § 57-3-406.

Sec. 7-4-10. Inducement to purchase prohibited.

No licensee under state law shall give away, sell, or in any manner whatsoever deal in premiums, tokens, or other articles by means of which inducements are held out to persons to purchase any alcoholic beverages.
(Code 1967, § 5-14; Code 1985, § 4-9)

Sec. 7-4-11. Inspection of sales premises.

The duly authorized representatives of the city shall have the right to inspect the premises of any business licensed for the sale of alcoholic beverages during the hours when such establishment is open for the conduct of business.
(Code 1967, § 5-16; Code 1985, § 4-10)

Sec. 7-4-12. Possession or consumption in Liberty Bowl Memorial Stadium.

A. The possession or consumption of alcoholic beverages in Liberty Bowl Memorial Stadium shall be prohibited.

B. The officials in charge at any event held in the Liberty Bowl Memorial Stadium shall be authorized by this section to eject, without refunding the admission price, if any, any person present who possesses or consumes any alcoholic beverage whatsoever.

C. Appropriate signs shall be publicly and conspicuously posted in the Liberty Bowl Memorial stadium, notifying all patrons that "the possession or consumption of alcoholic beverages is prohibited by ordinance of the City of Memphis," citing this section of the code.

D. Nothing in this section shall prevent the sale of beer and other light beverages with an alcoholic content of not more than five percent by weight as hereinafter regulated and set forth in section 7-84-20.
(Code 1967, § 5-17; Code 1985, § 4-11; Ord. No. 2071, § 1, 6-25-1974)

Sec. 7-4-13. Time of appeal from alcohol commission to the city council.

Notice of appeals from the action of the alcohol commission to the city council shall be filed in writing with the comptroller no later than ten days after the final decision of the alcohol commission. Otherwise, such decision shall be deemed and considered to be final.
(Code 1967, § 5-18; Code 1985, § 4-12; Ord. No. 279, § 1, 9-10-1968)

Sec. 7-4-14. Investigations by city for violations under state law regarding sexual and pornographic conduct.

All regularly employed, full-time employees of the police services division, when assigned by the director or his or her designee, shall have authority to conduct investigations into alleged violations of T.C.A. § 57-4-204, relating to prohibited sexual or pornographic conduct, and upon completion of their investigation shall report any such violation to the city alcohol commission for their appropriate action. The commission shall have the power to suspend or revoke such licenses, upon determining such violations exist, relating to establishments selling beer and malt beverages, and the commission shall recommend to the state alcoholic beverage commission its findings as they relate to establishments selling liquor by the drink for on-premises consumption.
(Code 1967, § 5-21; Code 1985, § 4-13; Ord. No. 3029, § 1, 7-8-1980)

Sec. 7-4-15. Open containers and consumption of alcoholic beverages prohibited in certain public places.

A. It is unlawful for any person or persons, while in or on any streets, sidewalks, alleyways, parking areas, bus and trolley stops and shelters, or other open areas operated and controlled by the city within the central business improvement district, defined in sections 12-32-2 and 12-44-2, to consume any alcoholic beverage as defined in section 7-4-1, or to possess for the purpose of consumption any such alcoholic beverage, unless such beverage remains commercially sealed.

B. Possession of any alcoholic beverage in an open container not permitted in subsection A of this section shall be prima facie evidence of having the beverage for the purpose of consumption.

C. This section shall not apply to the following:

1. Patrons of premises licensed for on-premises consumption while the patrons are in or upon such premises;
2. Patrons of premises licensed for on-premises consumption where attendance may be controlled by the owner or lessee;
3. Patrons of premises that have been granted a special event permit as set forth in section 7-8-21 of this Code;
4. The Beale Street Historic District as set forth in section 7-8-23, and other such districts within the Central Business Improvement District as may hereafter be designated by state or local authorities.

D. Subsection C of this section may include outdoor areas.

(Code 1985, § 4-14; Ord. No. 4828, § 1, 11-21-2000)

State law reference—Open containers of alcohol in motor vehicles, T.C.A. § 55-10-416.

CHAPTER 7-8. BEER AND LIGHT ALCOHOLIC BEVERAGES*

Sections:

Article 1. General Provisions

Sec. 7-8-1. Application of chapter.
Sec. 7-8-2. Transportation and sale legalized—Compliance required.
Sec. 7-8-3. Hours of sale.
Sec. 7-8-4. Purchase by minors.
Sec. 7-8-5. Wholesale beer tax.

Article 2. Licenses to Store, Sell, Distribute or Manufacture

Sec. 7-8-6. Required.
Sec. 7-8-7. Application—Generally.
Sec. 7-8-8. Application—Citizens' certificate to accompany.
Sec. 7-8-9. Prohibited sexual or pornographic conduct.
Sec. 7-8-10. Issuance or refusal generally.
Sec. 7-8-11. General restrictions on issuance.
Sec. 7-8-12. Issuance to specialty or convenience stores, service or filling stations.
Sec. 7-8-13. Issuance to hotels and clubs.
Sec. 7-8-14. Display.
Sec. 7-8-15. Licensee's employees.
Sec. 7-8-16. Revocation.
Sec. 7-8-17. Records to be kept—List of licenses to be filed with collector of licenses and privileges and director of police.
Sec. 7-8-18. Beer or alcoholic beverage sales in McCarver Stadium—Park commission's authority to permit.
Sec. 7-8-19. Beer or alcoholic beverage sales in coliseum—Board's authority to permit.
Sec. 7-8-20. Beer or alcoholic beverage sales in Liberty Bowl Memorial Stadium—Park commission's authority to permit.
Sec. 7-8-21. Permit for special event.
Sec. 7-8-22. Prohibited sexual or pornographic conduct—Penal provisions.
Sec. 7-8-23. Sales in the Beale Street Historic District.
Sec. 7-8-24. Sales for off-premises consumption by beer manufacturers operating as restaurants.
Sec. 7-8-25. Caterer's permit.

***State law references—**Beer and alcoholic beverages containing les than five percent alcohol, T.C.A. § 57-5-101 et seq.; local regulatory ordinances, T.C.A. § 57-5-101 et seq.

ARTICLE 1. GENERAL PROVISIONS

Sec. 7-8-1. Application of chapter.

Except as otherwise specifically provided, the provisions of this chapter shall apply to beer with an alcoholic content of not more than five percent by weight and any other beverage of like alcoholic content.
(Code 1967, § 5-70; Code 1985, § 4-51)

Sec. 7-8-2. Transportation and sale legalized—Compliance required.

It is lawful to transport, store, sell, distribute, possess, receive or manufacture beverages mentioned in section 7-8-1 within the corporate limits of the city, subject to all of the regulations, limitations and restrictions provided by the laws of the state and this chapter, and subject to all of the laws of the state and this chapter, and subject to the rules and regulations enacted by authorized public officials or boards.
(Code 1967, § 5-71; Code 1985, § 4-52)

Sec. 7-8-3. Hours of sale.

No retail liquor store or retail food store governed by this article shall sell, give away, or otherwise dispense alcoholic beverages except between the hours of 7:00 a.m. to 3:00 a.m. Monday through Saturday and between 10:00 a.m. and 11:00 p.m. on Sunday.
(Code 1967, § 5-72; Code 1985, § 4-53; Ord. No. 636, § 1, 1-27-1970; Ord. No. 2411, § 1, 6-8-1976; Ord. No. 5720, § 1(B.), 1-22-2019)

Sec. 7-8-4. Purchase by minors.

A. It is unlawful for any minor to purchase or attempt to purchase any beer or other beverage governed by this chapter and it is unlawful for any minor to possess any such beverage upon the premises of an on-premises licensee.

B. It is unlawful for any minor to present or offer to any licensee, or his or her agent or employee, any written evidence of his or her age which is false, fraudulent or not actually his or her own, for the purpose of purchasing or attempting to purchase or otherwise procuring or attempting to procure any beverage governed by this chapter.

C. Any minor who acts in violation of any one or more of the provisions of this section shall be guilty of a misdemeanor, and if 19 years of age, or more, shall upon conviction be subject to punishment as provided in section 1-24-1 of this Code; if 18 years of age, or less, he or she shall be taken before the juvenile court for appropriate disposition.
(Code 1967, § 5-73; Code 1985, § 4-54)

State law reference—Alcohol and underage persons, T.C.A. §§ 57-3-406, 57-5-301.

Sec. 7-8-5. Wholesale beer tax.

Pursuant to the authority contained in T.C.A. § 57-6-103, there is imposed on the sale of beer at wholesale within the city a tax of 17 percent of the wholesale price.
(Code 1967, § 5-74; Code 1985, § 4-55)

ARTICLE 2. LICENSES TO STORE, SELL, DISTRIBUTE OR MANUFACTURE

Sec. 7-8-6. Required.

No person shall engage in the storing, selling, distributing or manufacturing of beer or any other beverage referred to in section 7-8-1 within the corporate limits of the city until he or she receives approval from the alcohol commission and purchases a license from the city treasurer, or his or her designee.
(Code 1967, § 5-80; Code 1985, § 4-66; Ord. No. 117, § 1, 2-20-1968; Ord. No. 4352, § 1, 8-15-1995)

Sec. 7-8-7. Application—Generally.

Each applicant for a license under this article shall file with the alcohol commission a sworn petition in writing, establishing the following facts, which are made conditions of any license issued thereunder, and the violation of any such statements of fact shall be sufficient cause for the revocation of such license:

A. That the applicant will not engage in the sale of such beverages except at the place for which the alcohol commission has issued a license to such applicant;

B. That no sale of such beverages will be made except in accordance with the license granted;

C. That, if the license is to sell for consumption on the premises, the licensee will make no sale except where meals, consisting of no less than one meat and a vegetable, are prepared on premises with adequate kitchen facilities, as

provided in chapter 9-52, and are regularly served at tables with a menu provided for selection by the customers;

D. That, if the application is for a license to sell at hotels, sales for consumption on the premises will be made only where meals or lunches are served at tables to persons seated at tables, and to persons in guests' rooms;

E. That, if the application is for a license for a club or lodge, such applicant is a regularly incorporated club or lodge operating under a charter and by-laws, in which the officers were elected by a regular membership which is composed of persons who must pay a substantial initiation fee, and whose purpose of organization and existence is other than the sale of beverages covered by this chapter;

F. That, if the application is for a license to sell, not for consumption on the premises, that no sales will be made for consumption on the premises, no consumption will be allowed on the premises or on the sidewalks, streets or property within the immediate premises (building and parking lot) of any off-premises location selling beer, and that no such beverages will be kept for sale in such premises except in the original packages or containers; except that an off-premise licensee may offer complimentary samples of the products it sells for tastings to be held on the premises of the off-premise licensee. Such tastings shall be for sales, education and promotional purposes;

G. That no sale shall be made to minors; and that applicant will not permit minors or disorderly or disreputable persons heretofore connected with the violation of the liquor laws to loiter around or frequent his or her place of business; that applicant will not allow gambling or gambling devices on his or her premises; provided that, the provisions of this section relative to the frequenting of his or her place of business shall not apply to minors 18 years of age, who are under contract to provide entertainment in the field of music or vocal entertainment. This exception is in effect only during the actual hours of the minors' employment. Such minors must have the written consent of their parents or guardian, sworn to before a notary public. The owner or operator shall keep the written consent on file at all times during the employment of such minor, and same shall be available for inspection by officers of the city police department. A duplicate of such written consent shall be forwarded to the director of police of the city. The provisions herein shall not apply to disorderly or disreputable persons;

H. That neither the applicant nor any persons employed or to be employed by him or her in such distribution or sale of such beverage has been convicted of any violation of the law against prohibition, sale, manufacture or transportation of intoxicating liquor, or of any crime involving moral turpitude, within the past ten years;

I. That the applicant will conduct the business in person, for himself or herself, or, if he or she is acting as agent, the applicant shall state the person, firm, corporation, syndicate, association or joint stock company for whom, and only for whom, the applicant intends to act;

J. That the applicant or licensee providing musical entertainment in his or her business establishment, including but not limited to jukeboxes, live bands, with or without vocalists, and utilizing amplifiers, loudspeakers or other equipment for the reproduction or amplification of sound, shall not permit the noise, sound or vibration created, emitted or transmitted by such jukeboxes, bands, vocalists or sound equipment to be audible to persons on any public street, highway or upon any adjoining residential or

commercial premises, to the extent that it is detrimental to the life or health of any individual or disturbs the public peace and welfare.

(Code 1967, § 5-81; Code 1985, § 4-67; Ord. No. 2080, § 1, 7-18-1967; Ord. No. 117, § 1, 2-20-1968; Ord. No. 346, § 1, 12-26-1968; Ord. No. 1848, §§ 1—3, 10-2-1973; Ord. No. 2694, § 1, 2-13-1979; Ord. No. 3248, §§ 1, 2, 11-9-1982; Ord. No. 5472, § 1, 11-20-2012)

Sec. 7-8-8. Application—Citizens' certificate to accompany.

There shall be attached to each application for a license under this article a certificate signed by at least ten reputable citizens residing or doing business in the ward in which the petitioner seeks to do business, stating the residence or place of business of each person, and certifying the length of time that such persons have been acquainted with the petitioner, and if petitioner is a corporation or association, the length of time they have been acquainted with its officers or members, and that they have good reason to believe that all of the statements contained in the petition are true, and that they join in the prayer of the petitioner for the granting of the license prayed for.

(Code 1967, § 5-82; Code 1985, § 4-68)

Sec. 7-8-9. Prohibited sexual or pornographic conduct.

A. In addition to the other duties imposed under this title, the city alcohol commission is authorized to enforce provisions of subsections B, C and D of this section, as same relates to selling beer and other beverages governed by this chapter; and upon violation of such subsections by any person, firm or corporation licensed under the provisions of this title, the commission shall revoke the privilege license of such violator.

B. The following acts or conduct on licensed premises are deemed contrary to public policy, and therefore no license shall be held at any premises where such conduct or acts occur:

1. To employ, use or allow any person in the sale or service of beer or other beverages governed by this chapter in or upon the licensed premises while such person is unclothed or in such attire, costume or clothing as to expose to view any portion of the breast below the top of the areola or of any portion of the pubic hair, anus, cleft of the buttocks, vulva or genitals;

2. To employ, use or allow the services of any host, hostess or other person to mingle with the patrons while such host, hostess or other person is unclothed or in such attire, costume or clothing as described in subsection (B)(1) of this section;

3. For any person on the licensed premises to touch, caress or fondle the breasts, buttocks, anus or genitals of any other person;

4. For any employee or person to wear or use any device or covering, exposed to view, which simulates the breast, genitals, anus, pubic hair or any portion thereof.

C. Additional acts prohibited.

1. Acts or conduct on licensed premises in violation of this subsection are deemed contrary to public policy, and therefore no license shall be held at any premises where such conduct or acts occur.

2. Live entertainment is permitted on any licensed premises, except that:

   a. No person shall perform acts of or acts which simulate:

      i. Sexual intercourse, masturbation, sodomy, bestiality, cunnilingus, fellatio, flagellation or any sexual acts which are prohibited by law;

      ii. The touching, caressing or fondling of the breast, buttocks, anus or genitals; or

      iii. The displaying of the pubic hair, anus, vulva or genitals.

   b. Subject to the provisions of subsection (C)(2)(a) of this section, any entertainer who is employed in whole or in part, whether directly or as independent contractor or agent, by the licensee to dance at such licensee's premises shall perform only upon a stage at least 18 inches above the immediate floor level and removed at least 12 inches from the nearest patron.

3. No person shall use artificial devices or inanimate objects to depict any of the prohibited activities described above.

D. The following acts or conduct on licensed premises are deemed contrary to public policy, and therefore no license shall be held at any premises where such conduct or acts occur:

1. Engaging in sexual activity or any sexual relations as a business or loitering at a licensed premises for the purpose of being hired to engage in sexual activity or any sexual relations;

2. a. Soliciting or hiring another person with the intent that the other person engage in prostitution, defined as those activities described in subsection (D)(1) of this section, or

   b. Soliciting a person to do those things described in subsection (C)(2)(a) of this section;

3. Procuring a prostitute for a patron; or

4. Soliciting, receiving, or agreeing to receive any benefit for engaging in any of the activities defined in subsections (D)(1) through (3) of this section.

(Code 1967, § 5-83; Code 1985, § 4-69; Ord. No. 3958, § 1(1), 5-8-1990)

Sec. 7-8-10. Issuance or refusal generally.

The alcohol commission shall consider all applications filed under this article and grant or refuse the license according to its best judgment under all of the facts and circumstances, and the action of the commission in granting or refusing a license shall be final, except as same is subject to review at law.

(Code 1967, § 5-85; Code 1985, § 4-70; Ord. No. 117, § 1, 2-20-1968)

Sec. 7-8-11. General restrictions on issuance.

A. No license shall be issued to sell any beverage coming within the provisions of this chapter:

1. In violation of any provision of state law;

2. In violation of the Unified Development Code;

3. Where such sale will cause congestion of traffic or interference with schools, churches or other places of public gathering, or otherwise interfere with public health, safety and morals, and the judgment of the alcohol commission on such matters shall be final, except as same is subject to review at law;

4. Unless it is necessary for the accommodation of the public that such place should be licensed, and the judgment of the alcohol commission on such matters shall be final except as same is subject to review at law; provided, however, that nothing herein contained shall prevent the issuance of a license for the sale of beer upon private property next and adjacent to regularly licensed and operated sandwich shops, eating houses or restaurants, or to prevent the sale of beer for consumption in automobiles or other vehicles parked upon such premises; provided that, such beverages shall be consumed while such automobiles are parked upon such premises, but no beer or such beverages shall be served or consumed while such automobiles are parked upon a public street, alley or other public place.

B. Where the sale shall be for on-premise, and food sales shall consist of less than 40 percent of gross sales, the business establishment shall be located no less than 500 feet (as measured along the center line of the street or streets as defined further herein) or not less than within a 250-foot radius in any other direction from the property line of any single-family or duplex residential property zoned R-15, R-10, R-8, R-6, R-3, or RU-1, any church (defined as property owned and used by a church having regular attendance at its meetings and whose property is exempt from taxation by the property assessor) or school (defined as fully accredited public, private, or parochial school for grades one through 12 or any other division of such grades). The 500 feet shall be measured from a point in the center line of the public or private street adjacent to the threshold (private street being defined to be a private passageway for vehicles in a multi-establishment commercial area of at least two acres in size) on which the beer establishment fronts, such point being directly opposite the center of the threshold of the wall of the establishment if the threshold faces the street and if not, then at the midpoint of the establishment building; thence along the intersecting street or streets to a point on the center line of the street opposite the nearest point to the property line of the residence, church or school. Such 250-foot restriction shall be measured from the center of the threshold of the store to the nearest point in the property line of such residence, church, or school, it being the intent of the

restriction that no part of the property of such residence, church or school shall be within a radius of 250 feet from the point in the center of the threshold herein shall apply only to beer establishment locations after the effective date of this section. Further, T.C.A. § 57-5103(5) states "a business can sell beer for both on-premises and off premises consumption at the same location pursuant to one (1) permit." Where the business establishment does not meet the distance requirements set above, percentage of food sales notwithstanding, sale of more than two 16-ounce sealed containers, for off-premise consumption, per customer is not permitted per this section. This section shall not prohibit the sale and transfer of the assets, goodwill, equipment and fixtures of any on-going business to a new owner to continue the operation of such business, however, such new owner must comply with all the provisions of this section.

C. Where the sale shall be for off-premises consumption, the business establishment shall be located no less than 500 feet (as measured along the center line of the street or streets and such measurement is defined further herein by reference to subsection B above) or not less than within a 250-foot radius in any other direction from the property line of any residential property zoned R-E, R-15, R-10, R-8, R-6, R-3 or RU-1, any church (as defined in subsection B above) or school (as defined in subsection B above) except establishments located along interstate, U.S. and state highways. Said 500 feet and 250-foot radius restrictions shall be measured in the same manner as that set out in subsection B above with regard to on-premise sales. This location restriction is intended to and shall apply only to new beer establishment locations that make application for off- premises sales after the effective date of this subsection. This location restriction shall apply to any existing beer establishment location licensed for off-premises sales that ceases to sell, distribute or manufacture beer at that location during any continuous six-month period after the effective date of this subsection. The distance requirements of this paragraph do not apply to an establishment where less than ten percent of its gross sales consists of alcohol sales.

D. The location restriction (as defined in subsection C of this section) shall not apply to a qualified "retail food store wine license" applicant, that as of December 31, 2015, holds any off-premises beer permit, or upon application for a retail food store wine license, qualifies for any off-premises beer sales permit under chapter 7-8, article 2.

(Code 1967, § 5-86; Code 1985, § 4-71; Ord. No. 117, § 1, 2-20-1968; Ord. No. 3246, § 1, 11-9-1982; Ord. No. 5000, 5-20-2003; Ord. No. 5134, § 1, 2005; Ord. No. 5223, § 1, 2007; Ord. No. 5343, 1-26-2010; Ord. No. 5615, § 3, 5-3-2016; Ord. No. 5459, §§ 6, 7, 7-17-2012; Ord. No. 5825, § 5, 6-7-2022)

Sec. 7-8-12. Issuance to specialty or convenience stores, service or filling stations.

A beer permit for off-premises consumption may be issued to any convenience store, grocery store, sundry store, service or filling station having a minimum inventory of $2,000.00 in stock, not including equipment, fixtures or petroleum products, subject to the location restriction set out in section 7-8-11(C).

(Code 1967, § 5-87; Code 1985, § 4-72; Ord. No. 2410, § 1, 6-8-1976; Ord. No. 2507, § 1, 10-5-1976; Ord. No. 2694, § 2, 2-13-1979; Ord. No. 5000, 5-20-2003)

Sec. 7-8-13. Issuance to hotels and clubs.

It is lawful for the alcohol commission to issue licenses for the sale of any beverage coming within the provisions of this chapter in hotels, clubs or lodges, subject to all of the limitations and restrictions contained in the state law and the rules and regulations promulgated thereunder, and subject to all of the limitations and restrictions contained in the license and in this chapter.

(Code 1967, § 5-88; Code 1985, § 4-73; Ord. No. 117, § 1, 2-20-1968)

Sec. 7-8-14. Display.

The license required by this article shall be framed under glass and placed so that it is conspicuous and may be easily read at all times.

(Code 1985, § 4-74; Code 1967, § 5-89)

Sec. 7-8-15. Licensee's employees.

Before a person is employed to dispense beer, said person shall provide proof acceptable by the permits office of the City of Memphis that such person is not in violation of T.C.A. § 57-5-301.

(Code 1967, § 5-90; Code 1985, § 4-75; Ord. No. 3958, § 1(2), 5-8-1990; Ord. No. 4112, § 1, 6-16-1992; Ord. No. 5459, § 8, 7-17-2012)

Sec. 7-8-16. Revocation.

A. All licenses issued under this article shall be revocable in the discretion of the alcohol commission, and whenever it shall be brought to the attention of the alcohol commission that any declaration of fact contained in the application is false, or that there has been any violation thereof, or that the limitations and conditions of the license have been violated, or that the licensee permits minors to frequent or loiter around his or her place of business or permits gambling or gambling devices thereon, or permits drunken, disreputable or disorderly persons, or persons heretofore connected with the violation of liquor laws to make it a customary place of visitation or resort, or otherwise violates any of the provisions or restrictions of the state law or of this chapter, the alcohol commission shall revoke such license. Such revocation shall become final after five days, unless the licensee, within five days, demands a hearing before the alcohol commission, at which hearing the burden shall be upon the licensee to show that he or she has not violated the declaration of fact or statements contained in his or her application, or the limitations or restrictions upon his or her license, and that he or she has not violated the state law or the provisions of this chapter. The action of the alcohol commission at such hearing in arming or setting aside the revocation of such license shall be final, except as same is subject to review at law.

B. Three violations of the provisions or restrictions of state law or city ordinances during a two-year period by any licensee shall result in the automatic revocation of the licensee's license in accordance with the rules and procedures otherwise established by this ordinance and state law.

C. Any licensee whose license is revoked shall not be eligible to receive a license for three years from the date of revocation.

D. No permit for off-premises consumption will be issued for any subsequent applicant for a location where a license has been revoked under this chapter for three years from the date of revocation.

(Code 1967, §5-92; Code 1985, § 4-76; Ord. No. 117, § 1, 2-20-1968; Ord. No. 2694, § 3,2-13-1979; Ord. No. 5223, § 2, 2007)

Sec. 7-8-17. Records to be kept—List of licenses to be filed with collector of licenses and privileges and director of police.

The secretary of the alcohol commission shall preserve a complete record of applications received and licenses granted and refused under this article and all protests and hearings held by the commission. Such secretary shall file with the collector of licenses and privileges and with the director of police a complete list of licenses issued by the commission, giving the name, place and nature of the license.

(Code 1967, § 5-93; Code 1985, § 4-77; Ord. No. 117, § 1, 2-20-1968)

Sec. 7-8-18. Beer or alcoholic beverage sales in McCarver Stadium—Park commission's authority to permit.

Notwithstanding any other provisions of this chapter to the contrary, the city park commission is authorized and empowered in its discretion to permit the sale of beer and alcoholic beverages for consumption on the premises in McCarver Stadium at such times and events and under such terms, conditions, rules and regulations as such commission may establish for that facility.

(Code 1967, § 5-94; Code 1985, § 4-78; Ord. No. 322, § 1, 11-12-1968; Ord. No. 3066, § 1, 10-14-1980)

Sec. 7-8-19. Beer or alcoholic beverage sales in Coliseum—Board's authority to permit.

Notwithstanding any other provisions of this chapter to the contrary, the Coliseum board is authorized and empowered in its discretion to permit the sale of beer and alcoholic beverages for consumption on the premises in the Coliseum at such times and events and under such terms, conditions, rules and regulations as such board may establish for that facility.

(Code 1967, § 5-95; Code 1985, § 4-79; Ord. No. 323, § 1, 11-19-1968; Ord. No. 3066, § 1(2), 10-14-1980)

Sec. 7-8-20. Beer or alcoholic beverage sales in Liberty Bowl Memorial Stadium—Park commission's authority to permit.

Notwithstanding any other provisions of this chapter to the contrary, the city park commission is authorized and empowered in its discretion to permit the sale of beer and alcoholic beverages for consumption on the premises in Liberty Bowl Memorial Stadium at such times and events and under such terms, conditions, rules and regulations as such commission may establish for that facility.

(Code 1967, § 5-97; Code 1985, § 4-80; Ord. No. 2071, § 1, 6-25-1974; Ord. No. 3066, § 1(3), 10-14-1980)

Sec. 7-8-21. Permit for special event.

A beer permit for a special event may be issued for a specific location for a period not to exceed 30 days, upon the following conditions:

A. Application is made stating the dates and time permit will be used during the 30-day period;

B. Application is made setting out the purpose upon forms supplied by the secretary of the alcohol commission, the application to be approved at any regular or special meeting of the alcohol commission;

C. Approval is received from the city and county health department, the city building department, the city fire department, the police services division, the board of supervisors of public solicitation of funds, and/or any other affected governmental agencies;

D. Exemption has been granted by the city council of the conditions as set forth in section 12-84-20 of this Code;

E. The required business or other necessary licenses and permits have been issued for the event.

(Code 1967, § 5-98; Code 1985, § 4-81; Ord. No. 2694, § 4, 2-13-1979; Ord. No. 3067, § 1, 10-21-1980)

Sec. 7-8-22. Prohibited sexual or pornographic conduct—Penal provisions.

In any location holding a valid license to store, sell, distribute or manufacture beer or any beverage with an alcoholic content of not more than five percent by weight and any other beverage of like alcoholic content, the following acts or conduct on licensed premises are deemed contrary to public policy and shall be subject to all penal provisions provided by law:

A. Live entertainment is permitted on any licensed premises, except that:

1. No person shall perform acts of or acts which simulate:

a. Sexual intercourse, masturbation, sodomy, bestiality, cunnilingus, fellatio, flagellation or any sexual acts which are prohibited by law;

b. The touching, caressing or fondling of the breasts, buttocks, anus or genitals; or

c. The displaying of the pubic hair, anus, vulva or genitals.

2. Subject to the provisions of subsection A of this section, any entertainer who is employed in whole or in part, whether directly or as independent contractor or agent, by the licensee to dance at such licensee's premises shall perform only upon a stage at least 18 inches above the immediate floor level and the edge of the stage must be at least 12 inches from the nearest patron.

B. No person shall use artificial devices or inanimate objects to depict any of the prohibited activities described in subsection A of this section.

(Code 1985, § 4-82; Ord. No. 4049, § 1, 7-2-1991)

Sec. 7-8-23. Sales in the Beale Street Historic District.

A. Notwithstanding any other provisions of this chapter to the contrary, the alcohol commission is authorized and empowered in its discretion to permit the sale of beer and alcoholic beverages for consumption outside the clubs, but within the Beale Street Historic District at such times and events and under such terms, conditions, rules and regulations as such commission may establish for the district.

B. Outside bars cannot be more than ten feet from the business establishments which use these bars for beverage sales.

C. No beverages, alcoholic or nonalcoholic, will be permitted in glass or metal containers outside of the business establishments within the Beale Street Historic District.

(Code 1985, § 4-83; Ord. No. 4187, § 1, 6-22-1993)

Sec. 7-8-24. Sales for off-premises consumption by beer manufacturers operating as restaurants.

Notwithstanding any other provisions of this chapter, or any rule or regulation of the City of Memphis Alcohol Commission to the contrary, any manufacturer of beer operating as a restaurant and licensed to sell beer for consumption therein shall have the right to sell beer to go, provided that such beer is manufactured within the premises of the restaurant and is sold unopened and in the original container.

(Ord. No. 5276, § 1, 10-21-2008)

Sec. 7-8-25. Caterer's permit.

Notwithstanding any other provisions of this chapter, or any rule or regulation of the City of Memphis Alcohol Commission to the contrary, any brewery meeting the exemption requirements set forth in T.C.A. § 57-5-101 (c)(1)(A) that does not also operate as a restaurant as defined in section 9-52-1 of this Code ("brewery"), shall be subject to the following provisions and restrictions:

A. *Legislative intent.* The intent of this section is to recognize the distinction between breweries with tasting rooms and other establishments that sell alcoholic beverages, specifically that a brewery tasting room is an adjunct to the primary business of manufacture and sale to wholesale or retail establishments. It being the intent of this section to encourage the growth of local business and tourism while protecting the public welfare and morals.

B. *Permit required.* Each brewery with a tasting room in which beer is to be manufactured and sold must apply for a beer permit through the City of Memphis Alcohol Commission in conformity with section 7-8-7 above. Such permit application shall make reference to the fact that the application is for a brewery with a tasting room. The permit application shall conform to all onpremises permit requirements if the brewery intends to allow the consumption of beer in its tasting room, but so long as the application is accompanied by a sworn petition indicating that the restrictions of subsection D of this section are met, then there shall be no requirement for a brewery with a tasting room to maintain kitchen facilities or serve food.

C. *On and off premises consumption allowed.* So long as the tasting room of the brewery conforms with the requirements of subsection D below, breweries with tasting rooms shall be authorized to sell beer manufactured on premises for on-premises consumption or off-premises consumption (off-premises consumption shall include beer sold to licensed wholesalers or retail establishments) so long as all beer sold for off-premises consumption is in the original, sealed container.

D. *No food requirement—Restrictions.* No brewery with a tasting room shall be required to serve food, maintain kitchen facilities or conform to any requirement relating to the percentage of sales attributable to food so long as it:

1. Does not engage in the sale of any alcoholic beverage other than beer manufactured on premises;
2. Does not derive more than 25 percent of its gross annual income from the sale of beer for consumption on premises;
3. Does not open to the public for any period between the hours of 12:00 a.m. and 12:00 p.m.;
4. Does offer water or other non-alcoholic beverages at no cost to its patrons;
5. If located within a 500-foot radius or 250-foot radius of a church, a school or certain enumerated residential zoning districts as set forth in section 7-8-11(B) above, shall not open to the public on Sundays before 12:00 p.m. and shall close to the public each Sunday through Thursday no later than 10:00 p.m., this section being intended to prevent traffic congestion, to reduce noise and to protect the public welfare and morals of the community.

(Ord. No. 5490, § 1, 1-22-2013; Ord. No. 5459, § 9, 7-17-2012; Ord. No. 5825, §§ 3, 4, 6-7-2022)

CHAPTER 7-12. TAX ON RETAIL SALES OF ALCOHOL FOR ON-PREMISES CONSUMPTION

Sections:

Sec. 7-12-1. Definitions.
Sec. 7-12-2. Tax imposed—Amount—Term.

Sec. 7-12-1. Definitions.

As used in this chapter:

Club means a nonprofit corporation organized and existing under the laws of the State of Tennessee, which has been in existence at least two years prior to the application for a license hereunder having at least 100 members regularly paying dues, organized and operated exclusively for pleasure, recreation and other nonprofit purposes, no part of the net earning of which inures to the benefit of any shareholder or member and owning,

hiring or leasing a building or space therein for the reasonable use of its members with suitable kitchen and dining room space and equipment and maintaining and using a sufficient number of employees for cooking, preparing and serving meals for its members and guests; provided that no member or officer, agent or employee of the club is paid, or directly or indirectly receives, in the form of salary or other compensation, any profits from the sale of spirituous liquors, wines, champagnes or malt beverages beyond the amount of such salary as may be fixed by its members at an annual meeting or by its governing body of the general revenue of the club. For the purpose of this section, tips which are added to the bills under club regulations shall not be considered as profits hereunder. The alcohol commission shall have specific authority through rules and regulations to define with specificity the terms used herein and to impose additional requirements upon applicants seeking a club license not inconsistent with this definition.

Common carrier includes any mode of transportation, by train, plane, ship, boat, or other vehicle operating under certificates of public convenience and necessity issued by the appropriate federal or state agency, with adequate facilities and equipment for serving passengers, on regular schedules, or charter trips, while moving through any county of the state, but not while any such common carrier is stopped in a county or municipality that has not legalized such sales.

Hotel (motel) means every building or other structure kept, used, maintained, advertised and held out to the public to be a place where food is actually served and consumed and sleeping accommodations are offered for adequate pay to travelers and guests, whether transient, permanent, or residential, in which 50 or more rooms are used for the sleeping accommodations of such guests and having one or more public dining rooms, with adequate and sanitary kitchen and a seating capacity of at least 75 at tables, where meals are regularly served to such guests, such sleeping accommodations and dining rooms being conducted in the same building or in separate buildings or structures used in connection therewith that are on the same premises and are a part of the hotel operation. Motels meeting the qualifications set out herein for hotels shall be classified in the same category as hotels. Hotels shall have the privilege of granting franchises for the operation of a restaurant on their premises and the holder of such franchise shall be included in the definition of hotel hereunder, and property contiguous to a hotel.

Restaurant means any public place kept, used, maintained, advertised and held out to the public as a place where meals are served and where meals are actually and regularly served, without sleeping accommodations, such place being provided with adequate and sanitary kitchen and dining room equipment and seating capacity of at least 75 people at tables, having employed therein a sufficient number and kind of employees to prepare, cook and serve suitable food for its guests. At least one meal per day shall be served at least five days a week, with the exception of holidays, vacations and periods of redecorating, and the serving of such meals shall be the principal business conducted.
(Code 1967, § 5-111; Code 1985, § 4-116; Ord. No. 604, § 1, 12-16-1969)

Sec. 7-12-2. Tax imposed—Amount—Term.

A. There is levied and imposed a privilege tax to be paid to the collector of licenses and privileges of the city in the amounts and in accordance with the terms and conditions herein stated upon each person, firm, corporation, partnership or association who may be authorized to engage in the business of selling at retail alcoholic beverages for consumption on the premises within the city. The amount of privilege tax levied and imposed shall be as follows:

1.	Private club	$300.00
2.	Hotel and motel	$1,000.00
3.	Restaurant, according to seating capacity, on licensed premises:	
	75—125 seats	$600.00
	126—175 seats	$750.00
	176—225 seats	$800.00
	226—275 seats	$900.00
	276 seats and over	$1,000.00

B. The amount of privilege tax aforesaid shall be for the period of one year commencing January 1 of each year and expiring on December 31 of each year, and shall be paid upon receipt of a license from the state authorizing the business of selling at retail alcoholic beverages for consumption on the premises. The original payment of the privilege tax shall be prorated for the remaining quarters or portions thereof, of that calendar year. This tax shall be effective from and after January 1, 1970.
(Code 1967, § 5-110; Code 1985, § 4-117; Ord. No. 604, § 2, 12-16-1969)

CHAPTER 7-16. INSPECTION FEES*

Sections:

Sec. 7-16-1. Definitions.
Sec. 7-16-2. Fee levied on retailers—Computation.
Sec. 7-16-3. Wholesalers.
Sec. 7-16-4. Enforcement.

Sec. 7-16-1. Definitions.

For the purposes of this chapter the following definitions shall apply:

Alcoholic beverages shall have the same meaning as ascribed by section 7-4-1.

Retailer means a person who sells alcoholic beverages for consumption and not for resale.

Wholesaler means a person who sells alcoholic beverages to retailers, and shall include distributors, distillers, or any person making sales to retailers.
(Code 1985, § 4-131; Ord. No. 3508, § 2, 11-5-1985)

Sec. 7-16-2. Fee levied on retailers—Computation.

A. For the purpose of providing a means of regulating the liquor business in the city and pursuant to the authority granted the city by Chapter 87 of the Public Acts of the General Assembly of Tennessee for 1969, there is levied and imposed against retailers an inspection fee at the rate of five percent on all purchases of alcoholic beverages made by such retailers from wholesalers. The fee shall be measured by the wholesale price of the alcoholic beverage sold by the wholesaler and paid by the retailer to the wholesaler, and shall be five percent of such wholesale price.

B. The fee levied by this chapter shall be added by the wholesaler to each invoice for alcoholic beverages sold to each retailer within the city and shall be collected by the wholesaler at the time of the sale or at the time the retailer makes payment for the delivery of the alcoholic beverages.
(Code 1985, § 4-132; Ord. No. 3508, § 1, 11-5-1985)

Sec. 7-16-3. Wholesalers.

A. *Monthly reports; collection and remittance of fee.* Each wholesaler making sales to retailers within the city, shall furnish to the city treasurer a report monthly which report shall contain a list of alcoholic beverages sold to each retailer within the city, the wholesale price of the alcoholic beverages sold to each retailer, the amount of tax due, and such other information as shall be required by the city treasurer. The monthly report shall be furnished to the city treasurer not later than the 20th day of the month following which the sales were made, and the inspection fees collected by the wholesaler from the retailer shall be paid to the city treasurer at the time the monthly report is made.

B. *Reimbursement.* Wholesalers collecting and remitting the above inspection fee to the city shall be entitled to reimbursement for this collection service, a sum equal to five percent of the total amount of inspection fees collected and remitted, such reimbursement to be deducted and shown on the monthly report to the city treasurer.

C. *Penalties.* Failure to collect or timely report and/or pay the inspection fee collected shall result in a penalty of ten percent of the fee due the city which shall be paid to the city treasurer.

D. *Access to wholesalers' records.* The city treasurer and his or her authorized representative shall have access to the pertinent records and books of all wholesalers at reasonable times for the purpose of ascertaining and verifying the taxes due under the provisions of this chapter.
(Code 1985, § 4-133; Ord. No. 3508, § 3, 11-5-1985)

Sec. 7-16-4. Enforcement.

The city treasurer is authorized and empowered to take any and all steps necessary to enforce the payment of any inspection fees due under the provision of this chapter.
(Code 1985, § 4-134; Ord. No. 3508, § 4, 11-5-1985)

***State law reference—**Municipal inspection fees, T.C.A. § 57-3-501 et seq.

Title 8

ANIMALS*

Chapters:

8-1. Scope of Chapter and Definitions

8-2. Animals Generally
8-3. Dogs and Cats
8-4. Livestock and Fowl
8-5. Memphis Animal Services
8-8. Animals Generally
8-12. Memphis Animal Shelter
8-16. Dogs and Cats
8-20. Dangerous and Vicious Animals
8-24. Enforcement
8-28. Mandatory Spaying and Neutering of Cats and Dogs
8-32. Cruelty to Animals

***Charter reference—**Authority of city council to regulate animals and fowl within the city, § 854.
State law reference—Amimals, T.C.A. § 44-2-101 et seq.

CHAPTER 8-1. SCOPE OF CHAPTER AND DEFINITIONS

Sections:

Sec. 8-1-1. Scope of Chapter.
Sec. 8-1-2. Definitions.

Sec. 8-1-1. Scope of Chapter.

Conduct which is in violation of this Chapter shall constitute an ordinance offense for which a summons may be issued.

This title does not bar, suspend, or otherwise affect any right or liability for damages, penalty, forfeiture, or other remedy authorized by law to be recovered or enforced for a criminal offense as set forth in T.C.A. Title 39, or in a civil suit for conduct that the state criminal code defines as an offense, and the civil injury is not merged into the offense.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-1-2. Definitions.

As used in this chapter, the following terms shall have the meanings ascribed to them herein, except when the context requires otherwise:

Abandonment means an animal that has not been provided adequate conditions as defined in this chapter, and whose owner failed to respond within 24 hours to an official notice left by animal services officers at the location where the dog is kept.

Adequate care shall include but not be limited to current vaccinations and/or medical treatment for illness, injury, disease, excessive parasitism, or any malformations; regular grooming to prevent matting which could lead to disease or injury; and nail clipping so no toenail grows long enough to penetrate the paw or affect the normal position of the paw.

Adequate conditions shall include but not be limited to adequate care, food, shelter, general maintenance, and water as defined in this section.

Adequate food means food that is not spoiled or contaminated and is of sufficient quantity and quality to meet the normal daily dietary requirements for the condition and size of the animal. Adequate food may be impacted by the environment in which the animal is kept and must be taken into account by the owner/custodian. An animal shall be fed or have food available at least once each day, unless a licensed veterinarian instructs otherwise, or withholding is in accordance with accepted agricultural or veterinarian practices. Food stored outside must be kept in sealed containers to prevent vermin from accessing it.

Adequate shelter means a four-sided ventilated structure in good repair with an entrance on one side, a roof, and a solid floor and allows the dog to remain reasonably dry and maintain normal body temperature. The dimensions of the entrance and structure shall allow each dog present to enter, stand, turn around, and lie down in a natural manner, whether in the same structure or by providing multiple structures, and protect the dog from adverse weather and direct sunlight. During cold weather, the structure must contain bedding material that is sufficient to promote the retention of body heat and during summer months a separate natural or artificial shaded area must be available outside the structure and accessible by the dog. "Adequate shelter" does not include the space under buildings, decks, steps, or open crates and carriers designed for temporary housing unless modified to meet the requirements of this section. The shelter shall be cleaned regularly enough so as not to force the animal to stand, sit or lie in bodily waste. The enclosure in which the structure is located must be of a square footage sufficient to allow the dog to defecate at one end and lie at least twice its length away at the other end of the enclosure.

Adequate water means potable water provided continuously and changed out no less than once daily. The animal must have uninhibited access to the water. Adequate water may be impacted by environment in which the animal is kept and must be taken into account by the owner/custodian.

Animal means a domesticated living creature or species of life different from man or plants or a wild creature previously captured and domesticated.

Animal services officer means any person assisting the animal services director authorized to impound animals and issue ordinance summons.

Animal services director means a person in charge of the city's animal services division, as designated by the mayor, and hereafter referred to as "director."

Bite scale means a standardized measurement tool used for determining the severity of a bite inflicted on a human or animal based on the physical damage the bite causes to the victim.

Cat means any animal of the domestic feline family.

Community cat means a cat that lives outdoors, is unowned/semi-owned, and free-roaming typically in a colony. Behavior is not an indicator of community cats as they can be friendly or "feral"(unsocialized). An ear-tip is an indicator that the cat is a community cat and has been sterilized.

Companion animal means domesticated animals kept in or near the household for the primary purpose of companionship for members of the household and/or companionship for other such animals. This includes dogs, cats, rabbits, guinea pigs, hamsters, domesticated rats, domesticated mice, ferrets, birds, reptiles, amphibians, invertebrates, and any other species that a reasonable person would consider to be a pet.

Competent person means any person 18 years old or older, who is able to comprehend and understand the nature of their responsibility, and has sufficient ability, mentally and physically, to handle any particular animal he or she may take charge of or have in their control.

Cruelty shall be defined in accordance with T.C.A. § 39-14-202.

Dangerous dog for the purposes of this chapter means any dog which:

a. attacks and bites a person, animal, or community cat without provocation, causing serious illness, injury or death including but not limited to a major fracture, muscle tears, or lacerations requiring multiple sutures or corrective or cosmetic surgery;

b. any dog previously declared dangerous in a court of law;

c. any dog owned or harbored for the purpose of dog fighting, to include animals bred for this purpose;

d. any dog that has committed a bite that scores at least a level 3 or higher on a nationally recognized bite scale as defined herein and been found at-large twice;

e. any dog that has bitten twice with at least one of the bites scoring a level 3 or higher on a nationally recognized bite scale as defined herein.

Dog means any animal of the canine family.

Ear tip means a procedure to remove the distal one-quarter of a cat's left ear for identification purposes and done under anesthesia during a sterilization surgery.

Employee means any person employed by the city under the management of the city's animal services division.

Fee schedule means fees charged for any services requiring payment at animal services, which shall be approved by the animal services director and authorized by passage of a resolution by the council. A current copy of the fee schedule shall be posted on the city of Memphis' website and in a conspicuous place in the Memphis Animal Services facility.

Fertile/unaltered animal means an animal which can produce offspring.

Fowl means any domesticated or undomesticated chickens, ducks, geese, turkeys, or other such birds as may be so designated by the director of the city's animal services division.

General maintenance means adequate care, conditions, food, shelter, and water as defined by this chapter and encompasses all reasonable measures to promote the health and safety of the animal.

Gross neglect means a conscious and voluntary disregard for adequate conditions as defined herein, which is likely to cause foreseeable grave injury or harm to a companion animal. Gross neglect is conduct that a reasonable person would consider extreme when compared with ordinary neglect or mere failure to provide adequate conditions.

Guard dog means any dog trained or used to protect persons or property by attacking or threatening to attack any person found within the area patrolled by the dog. Subject to the regulations set forth herein, nothing shall prohibit or limit a person's right to possess a dog for protection to their person or property. No person shall use a dog as a weapon or to threaten or harass other persons or animals.

Humane trap means a cage equipped with a trap door which, when tripped, locks an animal or fowl within the structure unharmed.

Inclement weather conditions shall mean rain, hail, sleet, snow, high winds, extreme low temperatures, or

extreme high temperatures, or any environmental condition sufficient to threaten the health and/or safety of a companion animal.

Livestock means animals such as cattle, cows, swine, sheep, horses, mules, goats, or any animal designated as such by the director of the city's animal services division.

Ordinance summons means a written order to appear in court for alleged violations of any part of this chapter, issued by an animal services officer.

Owner means any person, partnership or corporation owning an animal; or any person who feeds, shelters, or harbors an animal or permits it to remain on the person's property. If any dog is found on the premises of any person for a period of ten days or more, it shall be prima facie evidence that such dog belongs to the occupant of such residence. Any person keeping or harboring a dog for ten consecutive days shall, for the purpose of this chapter, be declared to be the owner thereof, and liable for violations of this title. If the animal is owned by a person under the age of 18 that person's parent or guardian shall be liable.

Properly fitted collar or *harness* means a band of material specifically designed to be placed around the neck of a dog or a set of straps constructed of nylon, leather, or similar material, specifically designed to restrain, or control a dog that is:

a. appropriately sized for the dog based on the dog's measurements and body weight;

b. does not choke the dog or impede the dog's normal breathing or swallowing; and not cause pain or injury to the dog.

Provocation, regarding a dangerous dog means and includes trespassing on property, teasing and release of the dog from its restraint, an attempt to injure the dog or the dog's owner or the individual in possession thereof or other such actions. Entry on property by persons with actual or implied permission of the owner or occupant, including a postal service employee or other authorized government or service employee, shall not in and of itself be characterized as provocation. Provocation can also include actions by another animal which justifiably incited the attack. The burden of proof as to provocation shall be with the owner of the dog.

Restraint means a chain, rope, tether, leash, cable, or other device that attaches a dog to a stationary object or trolley system.

Severe injury means any physical injury that results in broken bones, multiple punctures, or disfiguring lacerations, requiring sutures or cosmetic surgery.

Shelter-neuter-release (SNR)/Trap-neuter-release (TNR) means stray, owned or unowned, cats who are brought into the custody of the shelter, spayed/neutered, ear-tipped, vaccinated, and returned to location of pick-up.

Steel trap means a contraption which, when engaged, locks an animal or fowl in place by applying pressure against any part of its body.

Sterile/altered animal means an animal which has been surgically rendered incapable of producing offspring.

Unprovoked attack means an attack in which an animal without provocation as defined herein attacks or bites a human being or another animal.
(Ord. No. 5843, § 1, 7-11-2023)

Chapter 8-2. ANIMALS GENERALLY

Sections:

Sec. 8-2-1. Trapping animals.
Sec. 8-2-2. Striking or hitting an animal with a moving vehicle.
Sec. 8-2-3. Disposal of animals.
Sec. 8-2-4. Roadside sale of animals prohibited.
Sec. 8-2-5. Kennel licenses.

Sec. 8-2-1. Trapping animals.

It is unlawful for any person to set or bait any steel leg-trap or other contrivance which would maim, mutilate, or seriously injure any animal, excluding animals commonly referred to as vermin.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-2-2. Striking or hitting an animal with a moving vehicle.

It is unlawful for any person driving a vehicle to strike or hit any animal upon a public right-of-way or any public property without stopping and assisting the animal, or in the alternative notifying Memphis Animal Services or the Memphis Police Department immediately,

excluding animals commonly referred to as vermin as contemplated in Code of Ordinances Title 9 Health and Safety.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-2-3. Disposal of Animals.

No person shall leave or throw into any stream or river, nor leave exposed or bury the body, or any part thereof, of any animal, nor shall the same be kept where it may be dangerous to the life or detrimental to the health of any person. The sanitation services division of the city shall be promptly notified by the owner/discoverer of any deceased animal and where it is located. The animal will be scanned for a microchip, animal services notified if a microchip or other identifying information is found, the deceased animal will then be removed and disposed of in a sanitary manner.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-2-4. Roadside sale of animals prohibited.

A. It shall be unlawful for any person, firm or corporation to attempt to sell, exchange, trade, barter, lease, rent, donate or display for a commercial purpose any animal on any roadside, public right-of-way, parkway, median, park, playground, swimming pool, other recreation area, or commercial or retail parking lot that is generally accessible by the public, regardless of whether such access is authorized.

B. This section shall not apply to any city animal shelter or nonprofit organization founded for the purpose of providing humane sanctuary or shelter for abandoned or unwanted animals pursuant to T.C.A. § 39-14-210 or any dealer licensed to sell at a flea market pursuant to T.C.A. § 44-17-101 et seq.

C. This section shall not be construed to prohibit the sale of certain animals by those engaged in the business of selling the same for consumption and who have obtained the appropriate licenses or permits to conduct such activity.

D. This section shall not be construed to prohibit a properly licensed for-profit store from selling or donating any animals on the walkway or parking lot immediately adjacent to such store's physical address.

E. The sale, exchange, trade, barter, lease, rent, donation or display for a commercial purpose in violation of this section shall constitute for each animal a separate violation and be punishable by a fine in accordance with an amount allowed under state law for city ordinance violations.

F. Upon issuance of an ordinance summons for a violation of this section, the violator must immediately discontinue the activity.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-2-5. Kennel licenses.

A. Persons desiring to operate a commercial kennel where dogs and/or cats are owned, bred and/or held for sale must have an active kennel license issued by Memphis Animal Services to operate.

B. Prior to moving any animals into the facility, the person must submit a request to Memphis Animal Services for a kennel inspection via the online inspection request form available on the city's website.

C. Within 30 days of receipt of the request the requester will be notified when their inspection will occur.

D. At the time of inspection, an animal services officer will inspect the facility for adequate care and conditions and determine the maximum capacity of the facility.

E. Once the inspection is complete, the owner must show proof of inspection in-person at Memphis Animal Services to purchase a kennel license in accordance with the current fee schedule as defined in this chapter.

F. Persons holding an active kennel license shall not be required to pay the license fee prescribed in section 8-3-2, provided they can produce evidence that all dogs and cats on the property 12 weeks and older have been vaccinated for rabies and such vaccinations are current.

G. A kennel license is valid for one year, beginning during the month of purchase and expiring during the same month of the following year, and thereafter purchased annually on the same basis. Renewals require a reinspection to verify capacity/conditions at the facility and must be requested at least 30 days prior to the expiration of the existing license. No license is transferable.
(Ord. No. 5843, § 1, 7-11-2023)

CHAPTER 8-3. DOGS and CATS

Sections:

Sec. 8-3-1. Animal neglect and animal cruelty.
Sec. 8-3-2. Dog license tags required/Cat vaccination required.
Sec. 8-3-3. Mandatory spaying and neutering of cats and dogs.
Sec. 8-3-4. Fertile permit.
Sec. 8-3-5. Mandatory microchipping.
Sec. 8-3-6. Dogs running at-large.
Sec. 8-3-7. Defecation by dogs or cats.
Sec. 8-3-8. Guard dogs.
Sec. 8-3-9. Examination for rabies.
Sec. 8-3-10. Dangerous dogs; determination of dangerous dog.
Sec. 8-3-11. Dangerous dogs; duty of owner of dangerous dog.

Sec. 8-3-1. Animal neglect and animal cruelty.

A. Pursuant to this chapter, animal services may impound any animal suffering from gross neglect as detailed herein or animal cruelty.

B. Any person who shall, voluntarily or by necessity, take custody of any animal, on any property, shelter, or other place, shall supply to that animal adequate care, conditions, food, shelter, and water as defined in section 8-1-2 of this chapter.

C. Owners/custodians shall not allow any companion animal that is pregnant, nursing, or less than six months old to remain outdoors during inclement weather conditions unless such animal is accompanied by a custodian, keeper, or handler. In the event of extreme weather, as determined by the director of animal services, the owner/custodian must make alternate housing arrangements to ensure the health and safety of the pet if the provided shelter does not offer adequate protection from heat or cold exposure.

D. Inhumane transport of animals. No person shall carry or cause to be carried in or upon any vehicle or other conveyance, any creature in a cruel, inhumane, or unsafe manner. Whenever any person in violation of this section is taken into custody by an officer, the officer may take charge of such vehicle or other conveyance and its contents and deposit the same in some safe place of custody. Any necessary expense incurred for taking charge of and keeping and sustaining the vehicle or other conveyance and its contents shall be paid before the vehicle or other conveyance can be recovered.

E. Abandonment of dogs. No person may intentionally, knowingly, recklessly or with criminal negligence leave a dog at a location without providing adequate care as defined in this section, release a dog they have taken into their custody to run at-large, or tether the pet to a structure they do not own with the intent of abandonment. This includes dogs abandoned on the property of an animal shelter, veterinary clinic or any commercial or residential property.

F. If the animal services director or an animal services officer determines that evidence exists that any person has committed acts of animal neglect or cruelty knowingly, willfully or with gross neglect for the welfare of the animal, then misdemeanor or felony cruelty charges will be issued by the Memphis Police Department, in addition to any summons for an ordinance violation of this chapter.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-2. Dog license tags required/Cat vaccination required.

A. *Dogs—Licensing and vaccination.* It is unlawful for any person to own, have, harbor, keep or to cause or permit to be harbored, or kept in the city, any dog three months old or over, unless a current city license tag has been issued for such dog, subject to the exceptions provided in section 8-2-5(F). Prior to the issuance of a city dog license tag, the animal must receive a vaccination for rabies, or the owner of the animal must provide evidence that such animal has been so vaccinated and such vaccination is still current. In addition to the cost of the rabies vaccination, a city dog license tag shall be required for a 12-month period, beginning during the month of purchase, and expiring during the same month of the following year, and a license must thereafter be purchased annually on the same basis, in advance of such expiration date. Fees vary based on whether the animal is fertile or sterile, in accordance with the city's current fee schedule as defined in this chapter.

1. No license is transferable.

2. A city dog license tag may be purchased from the veterinarian at the time of vaccination or can be purchased at Memphis Animal Services.

3. If the license is purchased from a veterinary clinic, the veterinarian issuing the license may collect an agent's fee of $1.00 for this service.

4. If the license is purchased from a non-veterinarian source, such as Memphis Animal Services, the purchaser shall exhibit records from a licensed veterinarian, describing and identifying the animal and certifying its sterility, to pay the proper license fee. No license is transferable.

5. In the event a dog tag or license is lost, stolen or unavoidably mutilated, or damaged, the owner may apply for a duplicate license and tag. After investigation and upon payment of a fee in accordance with the city's current fee schedule as defined in this chapter, the director may, at their discretion, issue a duplicate license and tag.

B. *Cats—Vaccination.* It is unlawful for any person to own, have, harbor, keep or to cause or permit to be harbored, or kept in the city, any cat three months old or over, unless such person holds a current certificate of rabies vaccination for each such animal, subject to the exceptions provided in section 8-2-5(F).

C. The provisions of this section regarding licensing shall not apply to nonresidents traveling through the city or if the animal is staying temporarily for a period of less than 30 days.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-3. Mandatory spaying and neutering of cats and dogs.

No person shall own, harbor, or keep within the city a dog or cat which has not been spayed or neutered. It is a defense to prosecution under this section that:

1. The animal is under six months old;

2. A licensed veterinarian has certified within the past year that the dog or cat should not be spayed or neutered for health reasons or is permanently infertile;

3. The animal is being held for adoption by animal services or an animal welfare organization with an active 501(c)3;

4. The dog is documented as having been appropriately trained and actually being used by public safety agencies for law enforcement or search and rescue activities, or such dogs designated as breeding stock for law enforcement or search and rescue by an appropriate agency or organization and approved by the director of animal services;

5. The dog is designated by an appropriate agency or organization as breeding stock for service dogs such as guide dogs, hearing dogs, assistance dogs, seizure alert dogs, or social/therapy dogs, and approved by the director of animal services;

6. The dog is appropriately trained and actually being used for herding of other animals, or as a livestock guardian dog, hunting dog, or such dogs designated as breeding stock for these functions by an appropriate agency or organization and approved by the director of animal services;

7. The dog or cat is registered with a purebred dog or cat club, approved by the director of animal services, that maintains and enforces a code of ethics for breeding that includes restrictions on breeding dogs and cats with genetic defects and life-threatening health problems common to the breed.

8. The owner produces to the court proof of sterilization from a licensed veterinarian showing the dog or cat was sterilized at the time the summons was issued, or not later than 30 days after the summons was issued; or

9. The owner holds a valid fertile permit under section 8-3-4.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-4. Fertile permit.

A. Owners of fertile pets and not qualifying for any of the exemptions listed in section 8-3-3 must purchase a fertile permit in person during regular business hours from the division of animal services in accordance with the current fee schedule as defined in this chapter.

B. A separate permit is required for each unsterilized dog or cat. Each permit authorizes the whelping of no more than one litter per female in any 12-month period and no more than one litter per domestic household in any 12-month period.

C. The dog or cat must follow the vaccination requirements as defined in the Section 8-3-2 of this chapter to be eligible for a fertile permit.

D. The dog or cat must be microchipped to be eligible for a fertile permit.

E. Animals impounded for violation of this chapter are not eligible for a fertile permit purchase at the time the animal is reclaimed at animal services and must be spayed/neutered before leaving the facility unless another exemption defined in this chapter is met.

F. The director shall revoke a fertile permit if animal services determines that the permittee:

1. Failed to comply with any provision of this chapter;
2. Allows the offspring of a permitted dog or cat to be sold, adopted, or otherwise transferred, regardless of compensation, before the offspring have reached at least eight weeks old and have been vaccinated against common diseases;
3. Intentionally made a false statement as to a material matter to obtain a fertile permit.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-5. Mandatory microchipping.

A. The owner or custodian of any dog or cat must have the animal implanted with a registered microchip before the animal is six months old or within 30 after acquired if over six months.

B. A dog or cat is exempt from this requirement if the dog or cat is determined in writing to be medically unsuitable for microchipping by a licensed veterinarian.

C. The owner or custodian of a dog or cat shall maintain current registration with a microchip registration company.

1. The owner or custodian shall update contact information, including new address or telephone number with the microchip registration company within 30 days of the change in contact information.
2. After any change in ownership of a registered dog or cat, the initial owner or custodian shall be responsible for notifying the microchip registration company of a change in ownership within 30 days of transfer to the new owner. The new owner or custodian shall be responsible for re-registering the microchip to have the registration information transferred to the new owner's or custodian's name within 30 days after the change in ownership and for maintaining current contact information as described herein.

D. It is a violation of this chapter for any owner or custodian to fail to microchip or maintain current registration as described herein.

E. It is a defense to prosecution under this section that:

1. The animal owner is a non-resident of this city or has been a resident of this city for fewer than 30 days;
2. The animal is abandoned or lost and the temporary custodian possessed the dog or cat for fewer than 30 days; or
3. The owner produces to the court proof of microchipping from a licensed veterinarian showing the dog or cat was microchipped at the time the summons was issued, or not later than 30 days after the summons was issued.

F. Memphis animal services shall be authorized to provide funds, if available, to defray the cost of microchipping any dog or cat for any owner that cannot afford the cost thereof.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-6. Dogs Running at-large.

A. *Generally.* Dog owners or custodians shall always keep animals on a leash or other suitable restraint (as defined in subpart C) or confined by a fence on their property or, with permission, the private property of another. Dogs shall be restrained to prevent the animal from being at-large; biting; harassing any person engaged in a lawful act; interfering with the use of public or private property; or violation of any other section of this code. Unless confined by a fence or other suitable restraint, no animal shall be permitted to run at-large on the property of the owner or custodian of such animal.

B. *Walking dog on a leash.* Any person walking a dog on public property including sidewalks, or on the private property of others, must always keep the dog on a leash and under physical control. Physical control means the ability to restrain the movement of the dog. The leash must be kept in good condition, of sufficient strength to prevent breaking under pressure,; and of material generally resistant to chewing or gnawing by

an animal. The length of a leash must be sufficient to always control the dog from harassing pedestrians or other animals.

C. *Methods of restraint.*

1. *Dog restrained by traditional fencing.* To prevent the dogs from escaping fencing must be in good condition and maintained, of recognized construction methods, and of adequate size for the number and size of dogs. Entry or exit gates must be properly secured by a latching or locking mechanism. Fences should be at least 2½ times the height of the animal it is intended to restrain. The height of the dog is measured at the dog's shoulder when the dog is standing on four legs. If should a dog escapes from a fence, either by climbing or digging, additional fencing height, kennels, or other restraint methods may be required. Fencing must be sufficient to make an in-heat female dog inaccessible to any male dog and prevent the female dog from running at-large. Existing fencing, regardless of height, will be considered acceptable means of restraint unless and until a written and verified complaint is filed with Memphis Animal Services.

2. *Dogs restrained by invisible fencing.* As an alternative to traditional fencing, tie-outs or overhead cable runs, a dog may be restrained with invisible fencing properly set up and maintained.

The following conditions must be met:

a. The system must be rated for use by dogs, installed according to manufacturer's instructions, and properly maintained.

b. The dog must receive training regarding the boundaries of the fencing.

c. The fencing must be sufficient to make an in-heat female dog inaccessible to any male dog and prevent the female dog from running at-large.

d. Two warning signs of a minimum six inches by eight inches (6'×8') visible from the public sidewalks and public streets or driveways must be placed on the fenced yard. The signs must include the following: "Dog is contained by electronic device" or similar wording, the name, logo/trademark, address, and telephone number of either the company that installed the system or the company that maintains the system.

3. Dog restrained by tethering. As an alternative to fencing, dogs may be restrained by tether. No person shall allow any dog restrained by tether to remain outside and unattended unless all of the following conditions are satisfied:

a. The tether is not unreasonably heavy in proportion to the weight of the animal.

b. A swivel is located at both ends of the tether and the tether is free of tangles.

c. The collar or harness on the animal to which the swivel is attached is a properly fitted collar or harness as defined in this chapter. The collar must be made of a material which poses no risk of lacerations. Choke and pinch collars are not permitted on tethered dogs.

d. The tether is not less than ten feet in length.

e. At all times, the animal has access to water, shelter, dry ground free of standing water and animal waste, and access to adequate food.

f. The animal is at least three months old and has a current rabies vaccination with its tag visibly displayed.

g. The animal is not sick or injured.

h. If used, pulley, running line, or trolley systems are installed according to manufacturer's instructions and do not pose a safety risk to the dog.

i. If there are multiple animals, each animal must be tethered separately.

j. The tethering device shall allow the tethered dog to lie down comfortably in all positions of tether.

k. Dogs restrained by tie-outs or overhead cable runs must be spayed or neutered, even if otherwise subject to any exemption in this chapter.

D. *Exemptions.*

1. Dogs employed as police, service, therapy, and search and/or rescue dogs are exempt from the requirements of this section while used in their working capacity or while engaged in a train-

ing program with a recognized organization or government agency that regularly trains dogs for such use.

2. Dogs off-leash in areas designated for such use by departments of city government, or on grounds under their jurisdiction, and dogs engaged in conformation, competition, or performance related events on public or private property.

E. *Prima facie evidence.* If a dog is found running at-large by animal services employees, the incident shall constitute prima facie evidence that current restraint methods are inadequate. The owner shall be required to correct any conditions that permitted the dog to run-at-large or provide such additional restraints as necessary to secure and maintain the restraint of the dog.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-7. Defecation by dogs or cats.

A. It is unlawful for any owner/custodian of any dog or cat to fail to promptly remove and dispose in a sanitary manner of feces left by a dog or cat on property, public or private, other than the premises of the owner or custodian of such dog or cat.

B. Persons owning pet dogs or service dogs, such as seeing eye dogs, who are legally blind or confined to a wheelchair and thereby physically incapable of disposing of feces left by their animal, are exempt from this law.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-8. Guard dogs.

It is unlawful for any person to place or maintain guard dogs in any area of the city for the protection of persons or property unless the following provisions are met:

1. The guard dog shall be confined, or the guard dog shall always be under the absolute control of a custodian when not confined by way of lead or leash.

2. The owner or other persons in control of the premises upon which the guard dog is maintained shall post warning signs stating that such a dog is on the premises. At least one such sign shall be posted at each driveway or entranceway to said premises. Such signs shall be in lettering clearly visible from either the curb line or 50 feet, whichever is less, and shall contain a telephone number where some person responsible for controlling such guard dog can be reached 24 hours a day.

3. The above provisions shall not be applicable to dogs used in law enforcement by federal, state, or local law enforcement agencies.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-9. Examination for Rabies.

A. If any dog or cat has bitten any person and breaks the skin or is suspected of being infected with rabies, it shall be the duty of the owner or custodian to notify Memphis Animal Services within 24-hours of the bite, and to quarantine the pet for a ten day period. The animal shall be restricted to a building, pen, or other escape-proof enclosure and monitored for signs of rabies. Signs and symptoms of rabies can be found in the National Rabies Compendium on the Centers for Disease Control and Prevention website available at www.cdc.gov.

B. Quarantine.

1. Within 24-hours of the bite incident or first indication of rabies, the owner/custodian must contact Memphis Animal Services to provide proof of current rabies vaccination and to begin quarantine process at home or at a licensed veterinary clinic.

2. The owner/custodian must provide secure containment for the animal during the quarantine. If on day 11 the pet is exhibiting symptoms consistent with rabies, the owner must present the pet to a licensed veterinarian for examination. Written certification from the examining veterinarian of negative rabies status shall be provided to Memphis Animal Services withing 24 hours of receipt from veterinarian.

3. The owner/custodian must complete all documents provided by Memphis Animal Services to fulfill compliance requirements for this section.

4. At the end of the quarantine period and no later than 30 days of the bite incident, the animal must provide proof of or, if not previously, be fitted with a microchip implant and spayed/neutered even if otherwise subject to any exemption in this chapter.

C. Special circumstances.

1. The director of Memphis Animal Services may order the quarantine completed at the MAS facility if the attack resulted in a severe bite, mauling, and/or human death, the animal has a history of running at-large, or the animal is not properly confined by the owner during the quarantine period.

2. Any stray, unowned, or apparently abandoned animal that bites a human being will be held for ten-days. At the end of the ten-day holding period, the animal may be euthanized in an expeditious and humane manner. Any animal determined to have been involved in a bite incident and held for less than ten-days shall be tested at the state laboratory for rabies.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-10. Dangerous dogs; determination of dangerous dog.

A. If an animal services officer initially determines that a dog should be classified as dangerous as defined in this chapter or under T.C.A. § 44-17-120(a), notification will be sent to the owner or other responsible party. A mandatory ordinance summons shall be issued to the owner/custodian by the animal services officer citing the Code section violated and setting a date to appear in a court of competent jurisdiction for a determination. Any decision of the court shall be final, subject to appeal to a higher court of competent jurisdiction.

1. In the alternative a petition may be filed by Memphis Animal Services with the general sessions court, pursuant to T.C.A. § 44-17-120 (b), for a disposition order for the dangerous dogs or dogs causing death or serious bodily injury to humans or other animals.

2. If the owner does not appear before the court within five days of the receipt of notice and show cause why the dog should not be destroyed, then the order shall issue and the dog shall be destroyed.

B. Upon receipt of summons, the owner/custodian shall place their pet into a secure boarding facility until a final decision is issued by a judge. The owner/custodian has following options for secure boarding:

1. Upon payment of security bond to Memphis Animal Services according to the current fee schedule as defined in this chapter, the owner/custodian may board the dog at a licensed veterinary clinic at the owner/custodian's sole expense. The veterinary clinic must confirm in writing to the animal shelter director that the animal will be boarded in a private, licensed veterinary clinic. The purpose of the security bond it to ensure compliance pending all court appearances.

2. Alternately, without a security bond and at the owner/custodian's request and sole expense, the dog may be kept at Memphis Animal Services. The owner shall pay the daily boarding rate for each day or fraction thereof the dog remains at the shelter in accordance with the current fee schedule as defined in this chapter. The owner must pay for 30 days of care in advance. After the initial payment and until the court authorizes the release of the animal, the owner/custodian must pay the charge in advance, keeping the account ahead 30 days.

3. Alternately, the owner/custodian may elect to surrender the dog to Animal Services with a signed document requesting the dog be euthanized.

4. All payments to Memphis Animal Services must be made within ten days of issuance of the summons or within 24-hours of the defendant's initial court appearance whichever comes later. If the bond or boarding fees are not paid as required in this section, the animal shall be deemed forfeited.

5. After the satisfaction of fees, fines, and/or court-ordered payments, overpayments shall be returned to the owner/custodian within a reasonable time after of the final disposition of the case.

C. Failure of an owner to respond to the ordinance summons shall result in the animal being declared a dangerous dog by operation of law. The owner/custodian is deemed to have waived all rights to a hearing on the dog's classification. The animal shall be surrendered to Memphis Animal Services immediately or it shall be impounded. A show cause notice shall be issued requiring the owner/custodian to appear before the court within five days to show cause why the dog should not be euthanized. The show cause hearing is solely for determination of the issue of euthanasia.

Failure to appear or show cause will result in entry of a final surrender and disposition order permitting the dog to be euthanized.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-3-11. Dangerous Dogs; Duty of Owner of Dangerous Dog.

Upon conviction, a court of competent jurisdiction may order the defendant to:

A. Enroll, attend, and complete an approved animal behavior modification at the owner/custodian's expense.

B. *Registration and Tag.*

1. Within 30 days after an animal is classified as dangerous, the owner of the animal must obtain a dangerous dog tag for the animal from Memphis Animal Services. The tag shall be worn by the dog at all times and renewed annually. The animal services director, or their designee, is only authorized to issue such tags and renewals to persons who are at least 18 years old and who present to the animal services director, or their designee, sufficient evidence of:

a. A current certificate of rabies vaccination for the animal;

b. A proper enclosure to confine a dangerous animal and the posting at all entry points of the premises a clearly visible warning sign of a dangerous animal on the property or premises which reads:

WARNING
DANGEROUS DOG ON PREMISES

c. Proof that the dog has been spayed/neutered and microchipped;

d. Proof of a current public liability insurance policy or a bond of not less than $50,000.00 insuring the owner of the animal for any damages, whether arising from personal injury or otherwise, which may be caused by the dangerous animal. Such policy must provide for 30 days' notice to the city of Memphis Animal Services prior to cancellation or expiration of the policy. In the event such liability insurance or bond is canceled, lapses, or for any other reason becomes unenforceable, the owner shall be in violation of the provisions of this chapter and title;

e. Payment in accordance with the current fee schedule as defined in this chapter for the issuance of a dangerous dog tag.

2. If the owner/custodian does not obtain a dangerous dog tag within 30 days or fails to comply with any of the conditions listed herein, the classified dog shall be forfeited and must be immediately surrendered to Memphis Animal Services or shall be impounded by an animal services officer.

3. The owner/custodian shall immediately notify the appropriate animal control authority when an animal that has been classified as dangerous:

a. Is running at-large or unconfined;

b. Has bitten a human being;

c. Is sold, given away, or dies; prior to a dangerous animal being sold or given away, the owner shall provide the name, address, and telephone number of the new owner to the animal control authority; any new owner residing in the city must comply with all the requirements of this chapter and title without further order of the court.

d. Is moved to another address.

B. *Confinement outdoors.*

1. All dangerous dogs shall be confined in a securely enclosed and locked pen or kennel, except when leashed and muzzled as provided in this section.

2. Such pen, kennel or structure shall be at least 20 feet from any street or sidewalk, ten feet from any property line and must have secure sides and a secure top to the structure.

3. Such structures must be locked with a key or combination lock when any animal is within the structure.

4. Such structure must have a secure concrete bottom or floor attached to the sides of the pen or the sides of the pen must be embedded in the ground no less than two feet.

5. All structures erected to house dangerous animals must be a minimum of six feet by ten feet (6'×10') enclosure and comply with all zoning and building regulations of the city.

6. All such structures must meet the definition of adequate shelter as defined in this chapter and must be inspected and approved by Memphis Animal Services.

D. *Confinement indoors.* No dangerous animal may be kept on a porch, patio or in any part of a house or structure that would allow the animal to exit such building of its own volition. In addition, no such animal may be kept in a house or structure when any unbarred window is open or when any screened window or screen door is the only obstacle preventing the animal from exiting the structure.

E. *Leash and muzzle.*

1. No person shall permit a dangerous animal to go outside its kennel or pen unless such animal is securely leashed with a substantial restraint no longer than four feet in length.

2. No person shall permit a dangerous animal to be kept on rope or other type of leash outside of its kennel or pen unless a competent person at least 18 years old is in physical control of the restraint.

3. Such animal may not be leashed to inanimate objects.

4. All dangerous animals on a leash outside the animal's kennel must be muzzled to prevent such animal from biting persons or other animals. The muzzle should not cause injury to the animal or interfere with its vision or breathing but shall prevent it from biting any person.

F. Any dog charged as dangerous, notwithstanding a later finding of not guilty, must be fitted with a microchip implant and spayed/neutered within 30 days of the biting incident with no exceptions.

(Ord. No. 5843, § 1, 7-11-2023)

CHAPTER 8-4. LIVESTOCK AND FOWL

Sections:

Sec. 8-4-1. Neglect of livestock and fowl.
Sec. 8-4-2. Running at—Large of livestock and fowl.
Sec. 8-4-3. Keeping of livestock within 1,000 feet of residence or business.
Sec. 8-4-4. Killing birds.
Sec. 8-4-5. Unlawful to sell fowl as pets or novelties.

Sec. 8-4-1. Neglect of livestock and fowl.

No livestock or fowl shall be kept or confined where the water, shelter, ventilation, and food are not sufficient and wholesome for the preservation of its health and safe condition. No animal or fowl shall be kept in such place or condition as to become a nuisance either because of odor or contagious disease.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-4-2. Running at—Large of livestock and fowl.

It is unlawful for any person in charge of any animal defined in this chapter as livestock to permit it to run at-large upon any street, alley, or unenclosed lot within the city.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-4-3. Keeping of livestock within 1,000 feet of residence or business.

No person shall keep livestock within 1,000 feet of any residence or place of business in the city without a permit to do so from the health officer. The health officer shall issue permits only when the keeping of such animals in the yard or buildings, and under the circumstances set forth in the application for the permit, shall not injuriously affect the public's health. Domesticated pigs or other livestock that meet the definition of companion animal in this chapter are exempt from this provision.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-4-4. Killing birds.

A. The killing or attempting to kill any bird, other than domestic fowl, within the limits of the city, is prohibited, except as hereafter provided.

B. For control purposes and to alleviate public distress, and to promote public health, owners of private residential property and public commercial property are authorized to destroy or otherwise remove pigeons and/or birds located within the boundaries of their property, and to dispose of them in accordance with sanitation services procedures. In addition, such property owners may contract with pest control companies properly licensed and bonded by the state for the removal and disposition of pigeons or birds from their property. Such pest control companies shall dispose of such pigeons and/or birds in accordance with sanitation services procedures.

C. Whenever a homing pigeon bearing a ring or seamless leg-band with its registered number stamped thereon, or any protected wild bird, is found among pigeons trapped under this section, the same shall immediately be released from custody.

D. This section shall not be construed to permit the use of firearms to destroy pigeons and birds, and such use is expressly prohibited.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-4-5. Unlawful to sell fowl as pets or novelties.

A. It is unlawful for any person, firm, or corporation to display, sell, offer for sale, barter, or give away chicks or ducklings as pets or novelties. It shall further be unlawful for any person, firm or corporation to dye, color or otherwise artificially treat any animal or fowl.

B. This section shall not be construed to prohibit the display or sale of natural chicks, ducklings, or other fowl by those engaged in the business of selling the same to be raised for food purposes.
(Ord. No. 5843, § 1, 7-11-2023)

CHAPTER 8-5. MEMPHIS ANIMAL SERVICES

Sections:

Sec. 8-5-1. Establishment and supervision.
Sec. 8-5-2. Business hours.
Sec. 8-5-3. Badges, uniforms, and police power of animal services officers.
Sec. 8-5-4. Resisting or interfering with animal shelter employee.
Sec. 8-5-5. Aid and assistance by police.
Sec. 8-5-6. Enforcement; issuance of ordinance summons.
Sec. 8-5-7. Enforcement; limitation on action for violations.
Sec. 8-5-8. Enforcement; dismissal or entering nolle prosequi not prohibited.
Sec. 8-5-9. Enforcement; violation-penalty.
Sec. 8-5-10. Impoundment and redemption of cats.
Sec. 8-5-11. Impoundment and redemption of dogs.
Sec. 8-5-12. Impoundment, redemption, and disposition of livestock.
Sec. 8-5-13. Impoundment, redemption, and disposition of fowl.
Sec. 8-5-14. Adoption of animals.
Sec. 8-5-15. Euthanasia of abandoned or neglected animals.
Sec. 8-5-16. Animal services advisory committee.

Sec. 8-5-1. Establishment and supervision.

Memphis Animal Services is established under the executive division of the City of Memphis. The operation and management of such service center shall be under the supervision of the director of animal services.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-2. Business hours.

Memphis Animal Services shall post in a conspicuous and prominent location at the shelter and on the shelter's website the business hours as designated by the animal services director, subject to concurrence by the chief operating officer of the City of Memphis.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-3. Badges, uniforms, and police power of animal services officers.

A. Animal services officers shall wear badges and uniforms identifying them as such and shall have the necessary police powers for the enforcement of this chapter. Animal services officers shall have the authority to issue ordinance summonses related to violations of this chapter or state law summons for such violations.

B. Pursuant to T.C.A. § 39-14-207(a), an animal services officer, who has a reasonable belief that an animal inside a home, fenced in yard, behind a locked gate, or in a vehicle has been without necessary food and water for more than 12 successive hours, may, as often as necessary, enter any place in which any animal is so confined, and to supply it with necessary food and water for as long as it remains so confined. That person

shall not be liable for such entry to any person in any legal action, and the reasonable cost of the food and water may be collected from the owner or keeper of the animal. The animal shall not be exempt from levy and sale upon execution issued upon a judgment therefor.

C. If an animal services officer who has a reasonable belief that an animal inside a home, fenced in yard, behind a locked gate, or in a vehicle needs emergency care, or that there is an imminent threat to the life or welfare of an animal behind one of these barriers, the officer may make entry to any place in which any animal is so confined for the purpose of taking temporary custody of the animal but only after obtaining a warrant, except that a warrant shall not be required if the animal services officer has a good faith belief that the animal has a medical condition or injury of such a nature that the failure to render immediate care would reasonably likely result in the animal's imminent death and otherwise complies with T.C.A. § 39-14-215.

D. Any animal that is found to be injured, diseased, suffering from the elements or malnourished and abandoned as defined in this chapter may be taken into temporary custody by an animal services officer.

E. Upon taking temporary custody of any animal under this section, the animal services officer shall attempt to contact the owner of the animal and shall seek emergency veterinary care for the animal, if necessary, as soon as available. The officer shall leave notification of temporary custody at the location the animal was found or at the registered address of the owner if the owner cannot be reached. The owner of the animal is responsible for any costs of providing care to the animal.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-4. Resisting or interfering with animal shelter employee.

It is unlawful for any person to resist or interfere with an animal services employee in the performance of their duties.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-5. Aid and assistance by police.

It shall be the duty of all police officers to render any assistance necessary.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-6. Enforcement; issuance of ordinance summons.

Any ordinance summons issued pursuant to this chapter shall be left with the offender and shall provide information related to the offense charged and the time and place when such offender is to appear in court. Failure of the offender to appear in court shall result in a default judgment against the offender in an amount allowed under state law for city ordinance violations, and/or a warrant issued in accordance with T.C.A. § 7-63-204.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-7. Enforcement; limitation on action for violations.

A. No action shall be commenced by the city in any court for the purpose of enforcing any violation of animal violation sections of the Code of the city after one year from the commission of the offense. For this section, a court action shall be deemed to be commenced:

1. Upon the issuance of an ordinance summons to the offender;

2. Upon the arrest of the offender; or

3. Upon the issuance of an arrest or bench warrant for the offender.

B. A summons may be served by:

1. Personal service on the offender; or

2. Registered or certified mail, addressee only, return receipt requested.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-8. Enforcement; dismissal or entering nolle prosequi not prohibited.

Nothing herein shall prevent the city, through the city attorney's office, from dismissing or entering a nolle prosequi of any ordinance summons in open court. Such ordinance summons shall be dismissed if it shall be determined that the summons was issued to a nonresident and is deemed uncollectible; there is a lack of proof; or for such other valid reason as stated to the court.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-9. Enforcement; violation-penalty.

A person in violation of any part of this chapter is guilty of a city ordinance violation. Upon conviction, a court of competent jurisdiction may order the defendant to:

1. Pay fines in accordance with an amount allowed under state law for city ordinance violations. Each day that any violation of this chapter continues may constitute a separate offense.
2. Be precluded from owning, harboring, or having custody or control of companion animals permanently, or for a period that the court deems reasonable.
3. Participate in available animal cruelty prevention programs and educational programs or both.
4. Undergo a behavioral health evaluation and comply with any recommendations resulting from the evaluation.
5. Forfeit to Memphis Animal Services animals that are the basis of conviction.
6. Sterilize the companion animals. Sterilization is mandatory upon a second violation.
7. Payment of all costs and expenses of enforcement of this ordinance, including veterinary treatment and care, and feeding and housing of animals surrendered or forfeited under this ordinance.
    a. Failure to pay any portion of fees and costs shall result in a lien upon the property of the owner subject to the city ordinance and state law.
    b. Liens shall be enforced by attachment proceedings in any court of competent jurisdiction and payment made directly to Memphis Animal Services.

(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-10. Impoundment and Redemption of Cats.

A. *Impoundment*.

1. *First impoundment.* Any non-community cat found running at large, abandoned, or subject to neglect, cruelty or any of the conditions described Section 8-5-3 or is not in compliance with any other provision of this chapter may be apprehended and impounded in the city animal shelter, and the owner notified, if known. If such cat has any ownership identification (tag, microchip, etc.), it shall be held for at least 72 hours during which time the owner may redeem or repossess the same upon payment of reclaim fees for impound and boarding in accordance with the current fee schedule as defined in this chapter. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and the animal may be designated for disposition by the animal shelter director or their designee. If no ownership identification exists, the cat can be deemed a community cat and the 72 hour stray hold does not apply. If the cat is deemed a community cat and is not in need of medical attention, it shall be sterilized, ear-tipped, and returned to the location it was found. If the cat is less than 12 weeks old and no ownership identification exists, the kitten can be immediately placed for adoption, and a 72 hour stray hold does not apply.
2. *Second impoundment.* Should a cat belonging to the same owner be picked up for a second time within two years of the date of the first offense, the owner may redeem and repossess the cat upon payment of reclaim fees for 2nd impound and boarding in accordance with the current fee schedule as defined in this chapter. 72 hour stray hold provisions as described in subpart 1 still apply.
3. *Third impoundment.* Should a cat belonging to the same owner be picked up for a third time within three years of the date of the first offense, the owner may redeem and repossess the cat upon payment of reclaim fees for 3rd impound and boarding in accordance with the current fee schedule as defined in this chapter. The owner also must receive a summons for animal neglect as defined in this chapter. 72 hour stray hold provisions as described in subpart 1 still apply.

B. *Fees and costs.* Impoundment fees for any cat confiscated and held pending a court ruling for violations of section 8-3-1 of this section or any violation of state animal cruelty codes (T.C.A. § 39-14-201, et seq.) must be paid within 2 hours of impoundment for the owner to maintain claim to ownership rights for the

animal. If the court determine there is probable cause to proceed with the charges at the owner's first appearance in court, a security bond order will be issued by the presiding judge to cover boarding and additional fees in accordance with the current fee schedule as defined in this chapter. The security bond order shall be in an amount sufficient to cover all expenses from the date of impoundment through the date of the trial and shall be paid within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services. Should the trial date be reset for a later date, the owner of the animal will be presented with an updated security bond order at the next scheduled court appearance, which will also require payment within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services.

C. *Sterilization.* Any unaltered cat that is not eligible for an exemption to the mandatory spay/neuter ordinance as defined in this chapter will be altered before discharge from Memphis Animal Services. Exemption 1 (under six months old) of the mandatory spay/neuter ordinance does not apply for cats brought into the shelter, if a licensed veterinarian determines the cat is of sufficient age and weight to proceed with sterilization. A fertile permit cannot be purchased after a lawful impound occurs.

D. *Microchip implant.* Before release into the owner's custody, the director of animal services is authorized to have a veterinarian humanely implant any animal lawfully impounded with an electronic microchip that will allow the animal to be positively identified.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-11. Impoundment and redemption of dogs.

A. *Impoundment.*

1. *First impoundment.* If any dog is found running at large, abandoned or subject to neglect, cruelty or any of the conditions described Section 8-5-3 or is not in compliance with any other provision of this chapter shall be apprehended and impounded in the city animal shelter, and the owner notified, if known, except in cases where an owner can be located within a reasonable amount of time or when exigent circumstances exist preventing the animal services officer from impounding the dog. Such dog shall be held for at least 72 hours during which time the owner may redeem or repossess the same upon payment for, or presentation of, a current license therefor, and payment of reclaim fees for impound and boarding in accordance with the current fee schedule as defined in this chapter. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and the animal may be designated for disposition by the animal shelter director or their designee. If the dog is less than 12 weeks old and no ownership identification exists, the puppy can be immediately placed for adoption, and a 72 hour stray hold does not apply.

2. *Second impoundment.* Should a dog belonging to the same owner be picked up for a second time within two years of the date of the first offense, the owner may redeem and repossess the dog upon presentation of a current license thereof and payment of reclaim fees for 2nd impound and boarding in accordance with the current fee schedule as defined in this chapter. 72 hour stray hold provisions as described in subpart 1 still apply.

3. *Third impoundment.* Should a dog belonging to the same owner be picked up for a third time within three years of the date of the first offense, the owner may redeem and repossess the dog upon payment of reclaim fees for 3rd impound and boarding in accordance with the current fee schedule as defined in this chapter. The owner also must receive a summons for dog running at-large as defined in this chapter. 72 hour stray hold provisions as described in subpart 1 still apply.

B. *Fees and costs.* Impoundment fees for any dog confiscated and held pending a court ruling for violations of section 8-3-1 of this section or any violation of State animal cruelty codes (T.C.A. § 39-14-201, et seq.) must be paid within 72 hours of impoundment for the owner to maintain claim to ownership rights for the animal. If the court determine there is probable cause to proceed with the charges at the owner's first appearance in court, a security bond order will be issued by the presiding judge to cover boarding and additional fees in accordance with the current fee schedule as defined in this chapter. The security bond order shall be in an amount sufficient to cover all expenses from the date of impoundment through the date of the trial and shall be paid within ten days of the issuance of said order or

ownership of the pet is forfeited to Memphis Animal Services. Should the trial date be reset for a later date, the owner of the animal will be presented with an updated security bond order at the next scheduled court appearance, which will also require payment within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services.

C. *Sterilization*. Any unaltered dog that is not eligible for an exemption to the mandatory spay/neuter ordinance as defined in this chapter will be altered before discharge from Memphis Animal Services, and a fertile permit cannot be purchased after a lawful impound occurs. Additionally, exemption 1 of the mandatory spay/neuter ordinance does not apply for dogs brought into the shelter, if a licensed veterinarian determines the dog is of sufficient age and weight to proceed with sterilization.

D. *Microchip implant.* Before release into the owner's custody, the director of animal services is authorized to have a veterinarian humanely implant any animal lawfully impounded with an electronic microchip that will allow the animal to be positively identified.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-12. Impoundment, redemption, and disposition of livestock.

A. Livestock found running at-large in violation of this chapter may be apprehended and placed into the animal shelter. Such livestock shall be held for at least 72 hours during which time the owner may redeem or repossess the same upon payment of reclaim fees for impound, trailering fees, and boarding in accordance with the current fee schedule as defined in this chapter. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and may be designated for disposition by the animal shelter director or their designee.

B. Impoundment fees for any livestock confiscated and held pending a court ruling for violations of section 8-4-1 of this section or any violation of State animal cruelty codes (T.C.A. § 39-14-201, et seq.) must be paid within 72 hours of impoundment for the owner to maintain claim to ownership rights for the animal. If the court determine there is probable cause to proceed with the charges at the owner's first appearance in court, a security bond order will be issued by the presiding judge to cover boarding and additional fees in accordance with the current fee schedule as defined in this chapter. The security bond order shall be in an amount sufficient to cover all expenses from the date of impoundment through the date of the trial and shall be paid within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services. Should the trial date be reset for a later date, the owner of the animal will be presented with an updated security bond order at the next scheduled court appearance, which will also require payment within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-13. Impoundment, redemption, and disposition of fowl.

A. Fowl found running at-large in violation of this chapter may be apprehended and placed into the animal shelter. Such fowl shall be held for at least 72 hours during which time the owner may redeem or repossess the same upon payment of reclaim fees for impound and boarding in accordance with the current fee schedule as defined in this chapter. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and may be designated for disposition by the animal shelter director or their designee.

B. Impoundment fees for any animal confiscated and held pending a court ruling for violations of 8-4-1 of this section or any violation of State animal cruelty codes (T.C.A. § 39-14-201, et seq.) must be paid within 72 hours of impoundment for the owner to maintain claim to ownership rights for the animal. If the court determine there is probable cause to proceed with the charges at the owner's first appearance in court, a security bond order will be issued by the presiding judge to cover boarding and additional fees in accordance with the current fee schedule as defined in this chapter. The security bond order shall be in an amount sufficient to cover all expenses from the date of impoundment through the date of the trial and shall be paid within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services. Should the trial date be reset for a later date, the owner of the animal will be presented with an updated security bond order at the next scheduled court appearance, which will also require payment within ten days of the issuance of said order or ownership of the pet is forfeited to Memphis Animal Services.

C. The director of animal services, or designated staff member, is authorized to waive fees related to reclamation on a case-by-case basis.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-14. Adoption of animals.

Once an animal becomes the property of Memphis Animal Services by any method described in this chapter, the animal may be adopted in accordance with current adoption policies as enacted by the director of animal services, and upon payment of an adoption fee, licensing fee and fees for any other service supplied by Memphis Animal Services in connection with such animal. Each unaltered dog and/or cat will be sterilized by the shelter veterinarian prior to leaving the shelter, unless it is determined by the director of animal services that the pet should not be altered. Any individual taking an unaltered dog or cat from the shelter must comply with applicable ordinances and policies relating to unsterilized animals. If it is determined that a former owner of an animal is applying for adoption, such former owner may only regain ownership or possession by payment of redemption fees set forth in the current fee schedule as defined in this chapter.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-15. Euthanasia of abandoned or neglected animals.

The director of animal services, or their designee, may lawfully euthanize immediately, or cause to be euthanized immediately, any animal that is legally the property of the city of Memphis, or that is suffering, and euthanasia will end that suffering.
(Ord. No. 5843, § 1, 7-11-2023)

Sec. 8-5-16. Animal services advisory committee.

There is hereby created the animal services advisory committee, consisting of seven citizens of the city, who shall be appointed by the mayor, subject to approval of the city council, for a term of two years or until their successors are appointed and qualified, and who shall serve without compensation, or oath. The director of animal services shall be an ex officio member of such committee.

A. *Chairperson and secretary.* The chairperson and the secretary of the animal services advisory committee shall be designated by the mayor when making appointments to the committee.

B. *Rules and regulations.* The animal services advisory committee shall have the power to make rules and regulations for the conduct of its business. Such committee shall meet as prescribed by its rules, and upon call of its chairperson.

C. *Powers and duties.* The animal services advisory committee shall:

1. Provide guidance and support to the director of animal services based on each individual committee member's area of expertise.
2. Serve as community liaisons for animal services, helping spread messaging regarding quality pet ownership and how to access resources through MAS.
3. Support and advocate for progressive animal control and sheltering programming to keep Memphis in alignment with national best practices.

(Ord. No. 5843, § 1, 7-11-2023)

CHAPTER 8-8. ANIMALS GENERALLY

Sections:

Sec. 8-8-1. General maintenance requirements for animals and fowl.
Sec. 8-8-2. Running at large of livestock and fowl prohibited.
Sec. 8-8-3. Impoundment, redemption and disposition.
Sec. 8-8-4. Destruction of abandoned or neglected animals.
Sec. 8-8-5. Cruelty to animals.
Sec. 8-8-6. Trapping animals.
Sec. 8-8-7. Striking or hitting animal with moving vehicle.
Sec. 8-8-8. Killing birds—Prohibited generally.
Sec. 8-8-9. Killing birds—Removal of pigeons and birds from private, residential and commercial property.
Sec. 8-8-10. Keeping of livestock within 1,000 feet of residence or place of business.
Sec. 8-8-11. Disposal of animals.
Sec. 8-8-12. Unlawful to sell fowl as pets or novelties.
Sec. 8-8-13. Roadside sale of animals prohibited.

Sec. 8-8-1. General maintenance requirements for animals and fowl.

No animal or fowl shall be kept or confined where the water, shelter, ventilation and food are not sufficient and wholesome for the preservation of its health and safe

condition. No animal or fowl shall be kept in such place or condition as to become a nuisance either because of odor or contagion of disease.
(Code 1967, § 7-20; Code 1985, § 5-2; Ord. No. 3189, § 1, 3-9-1982)

State law reference—Cruelty to animals, T.C.A. § 39-14-202.

Sec. 8-8-2. Running at large of livestock and fowl prohibited.

It is unlawful for any person in charge of any animal, including, but not limited to cattle, swine, sheep, horses, mules, goats or any offensive animal, or any chickens, ducks, geese, turkeys or other fowl, to permit it to run at large upon any street, alley or unenclosed lot within the city.
(Code 1967, § 7-21; Code 1985, § 5-3; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-3. Impoundment, redemption and disposition.

A. Livestock and animals other than fowl. It shall be the duty of the administrator in charge of the city animal shelter, or his or her agent, to cause any animal, other than fowl, running at large in violation of section 8-8-2 to be apprehended and placed into the animal shelter. If, within three business days from the time such animal is impounded, the owner or person in charge of such animal calls for the same, such animal may be released upon payment of a $50.00 redemption fee, per animal, a $25.00 trailering fee, and $10.00 per day boarding fee, other than fowl. If no one comes forward to claim the above-incarcerated animals within the three business-day period, such animals shall be considered abandoned property and will become the property of the city.

B. Fowl. It shall be the duty of the administrator in charge of the animal shelter, or his or her agent, to cause fowl running at large in violation of section 8-8-2 to be apprehended and incarcerated in the city animal shelter.

C. If within three business days from the day such fowl is incarcerated the owner or person in charge thereof calls for same, such fowl may be released upon the payment of $10.00 for each fowl so impounded plus $7.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public.

D. If no one comes forward to claim the above-incarcerated fowl within the three-business-day period, such shall be considered abandoned property and will become the property of the city.
(Code 1967, §§ 7-22, 7-23; Code 1985, § 5-4; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 4247, § 11, 4-5-1994; Ord. No. 5214, §§ 1, 4—6, 9-7-2007)

Sec. 8-8-4. Destruction of abandoned or neglected animals.

The administrator in charge of the city animal shelter, or his or her agent, may lawfully destroy immediately, or cause to be destroyed immediately, any animal found to be injured or diseased past recovery.
(Code 1967, § 7-24; Code 1985, § 5-5; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5214, § 1, 9-7-2007)

Sec. 8-8-5. Cruelty to animals.

It is unlawful for any person to overdraw, overload, torture, torment, deprive of necessary sustenance, cruelly beat, needlessly mutilate, kill or cause to procure same to be done, any animal, fowl or bird within the meaning of this chapter, or use, buy, sell or exchange any horse or mule when unfit for labor, or abandon any animal upon any public street, alley or any public property. Nothing herein shall prohibit the purchase of animals by laboratories or humane societies incorporated under the laws of the State of Tennessee.
(Code 1967, § 7-25; Code 1985, § 5-6; Ord. No. 3189, § 1, 3-9-1982)

State law reference—Cruelty to animals, T.C.A. § 39-14-202.

Sec. 8-8-6. Trapping animals.

It is unlawful for any person to set or bait any steel leg-trap or other contrivance which would maim, mutilate or seriously injure any animal.
(Code 1967, § 7-26; Code 1985, § 5-7; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-7. Striking or hitting animal with moving vehicle.

It is unlawful for any person driving a vehicle to strike or hit any animal upon a public right-of-way or any public property without stopping and assisting the animal, or in the alternative notifying the Memphis Animal Shelter immediately.
(Code 1967, § 7-27; Code 1985, § 5-8; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-8. Killing birds—Prohibited generally.

The killing or attempting to kill any bird, other than domestic fowl, within the limits of the city, is prohibited, except as hereafter provided.
(Code 1967, § 7-28; Code 1985, § 5-9; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-9. Killing birds—Removal of pigeons and birds from private, residential and commercial property.

A. For control purposes and to alleviate public distress, and to promote public health, owners of private residential property and public commercial property are authorized to destroy or otherwise remove pigeons and/or birds located within the boundaries of their property, and to dispose of them in accordance with sanitation services procedures. In addition, such property owners may contract with pest control companies properly licensed and bonded by the state for the removal and disposition of pigeons or birds from their property. Such pest control companies shall dispose of such pigeons and/or birds in accordance with sanitation services procedures.

B. Whenever a homing pigeon bearing a ring or seamless legband with its registered number stamped thereon, or any protected wild bird, is found among pigeons trapped under this section, the same shall immediately be released from custody.

C. This section shall not be construed to permit the use of firearms to destroy pigeons and birds, and such use is expressly prohibited.
(Code 1967, § 7-29; Code 1985, § 5-10; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-10. Keeping of livestock within 1,000 feet of residence or place of business.

No person shall keep any cattle, cows, sheep, horses, mules, swine or goats within 1,000 feet of any residence or place of business in the city without a permit to do so from the health officer. The health officer shall issue permits only when the keeping of such animals in the yard or buildings, and under the circumstances set forth in the application for the permit, shall not injuriously affect the public's health. This section shall not apply to slaughterhouses or city parks.
(Code 1967, § 7-30; Code 1985, § 5-11; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-11. Disposal of animals.

No person shall leave or throw into any stream or river, nor offensively expose or bury the body, or any part thereof, of any animal, nor shall the same be kept where it may be dangerous to the life or detrimental to the health of any person. The sanitation services division of

the city shall be promptly notified of the existence of any such animal and where it is to be found so that it may be removed and disposed of in a sanitary manner.
(Code 1967, § 7-31; Code 1985, § 5-12; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-8-12. Unlawful to sell fowl as pets or novelties.

A. It is unlawful for any person, firm or corporation to display, sell, offer for sale, barter or give away chicks or ducklings as pets or novelties. It shall further be unlawful for any person, firm or corporation to dye, color or otherwise artificially treat any animal or fowl.

B. This section shall not be construed to prohibit the display or sale of natural chicks, ducklings or other fowl by those engaged in the business of selling the same to be raised for food purposes.
(Code 1967, § 7-32; Code 1985, § 5-13; Ord. No. 3189, § 1, 3-9-1982)

State law reference—Cruelty to animals, T.C.A. § 39-14-202.

Sec. 8-8-13. Roadside sale of animals prohibited.

A. It shall be unlawful for any person, firm or corporation to attempt to sell, exchange, trade, barter, lease, rent, donate or display for a commercial purpose any animal on any roadside, public right-of-way, parkway, median, park, playground, swimming pool, other recreation area, or commercial or retail parking lot that is generally accessible by the public, regardless of whether such access is authorized.

B. This section shall not apply to any city animal shelter or nonprofit organization founded for the purpose of providing humane sanctuary or shelter for abandoned or unwanted animals or any dealer licensed to sell at a flea market pursuant to T.C.A. § 44-17-101 et seq.

C. This section shall not be construed to prohibit the sale of certain animals by those engaged in the business of selling the same for consumption and who have obtained the appropriate licenses or permits to conduct such activity.

D. This section shall not be construed to prohibit a properly licensed for-profit store from selling or donating any animals on the walkway or parking lot immediately adjacent to such store's physical address.

E. The sale, exchange, trade, barter, lease, rent, donation or display for a commercial purpose of each animal in violation of this section shall constitute a separate violation and be punishable by fine up to $50.00 in accordance with section 8-20-10.

F. Once a citation or ordinance summons has been issued for a violation of this section, the violator must immediately discontinue the activity.
(Ord. No. 5300, § 1(5-15), 4-21-2009; Ord. No. 5390, § 2, 1-4-2011)

State law reference—Authority to issue ordinance summons in lieu of arrest, T.C.A. § 7-63-201.

CHAPTER 8-12. MEMPHIS ANIMAL SHELTER

Sections:

Sec. 8-12-1.	Establishment and supervision.
Sec. 8-12-2.	Business hours.
Sec. 8-12-3.	Badges, uniforms and police power of shelter officers.
Sec. 8-12-4.	Resisting or interfering with animal shelter employee.
Sec. 8-12-5.	Animal shelter advisory committee—Creation.
Sec. 8-12-6.	Animal shelter advisory committee—Chairperson and secretary.
Sec. 8-12-7.	Animal shelter advisory committee—Rules and regulations.
Sec. 8-12-8.	Animal shelter advisory committee—Powers and duties.

Sec. 8-12-1. Establishment and supervision.

A Memphis Animal Shelter is established under the division of public services. The operation and management of such shelter shall be under the supervision of the administrator in charge of the city animal shelter.
(Code 1967, § 7-12; Code 1985, § 5-26; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5214, §§ 1, 7, 9-7-2007)

Sec. 8-12-2. Business hours.

The city animal shelter shall post in a conspicuous and prominent location at the shelter the business hours as designated by the animal services administrator, subject to concurrence by the director of public service.
(Code 1967, § 7-13; Code 1985, § 5-27; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5214, § 8, 9-7-2007)

Sec. 8-12-3. Badges, uniforms and police power of shelter officers.

The animal shelter officers and assistants shall wear badges and uniforms designating them as shelter employees. Shelter officers shall have the necessary police powers for the enforcement of this title and the penal laws of the state regulating the keeping, care and impounding of animals.
(Code 1967, § 7-14; Code 1985, § 5-28; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-12-4. Resisting or interfering with animal shelter employee.

It is unlawful for any person to resist or interfere with an animal shelter employee in the performance of his or her duties by acting in a violent and tumultuous manner toward any animal officer so that such officer is placed in danger of safety of his or her life, limb or health.
(Code 1967, § 7-44; Code 1985, § 5-29; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-12-5. Animal shelter advisory committee—Creation.

There is hereby created the animal shelter advisory committee, consisting of seven citizens of the city, who shall be appointed by the mayor, subject to approval of the city council, for a term of two years or until their successors are appointed and qualified, and who shall serve without compensation, or oath. The manager in charge of the animal shelter and the health officer shall be ex officio members of such committee.
(Ord. No. 5260, § 1(part), 6-12-2008)

Sec. 8-12-6. Animal shelter advisory committee—Chairperson and secretary.

The chairperson and the secretary of the animal shelter advisory committee shall be designated by the mayor when making appointments to the committee.
(Ord. No. 5260, § 1(part), 6-12-2008)

Sec. 8-12-7. Animal shelter advisory committee—Rules and regulations.

The animal shelter advisory committee shall have the power to make rules and regulations for the conduct of its business. Such committee shall meet regularly as prescribed by its rules, and upon call of its chairperson.
(Ord. No. 5260, § 1(part), 6-12-2008)

Sec. 8-12-8. Animal shelter advisory committee—Powers and duties.

In addition to other duties prescribed by this title, the animal shelter advisory committee shall:

A. Assist the animal shelter staff in the investigation and prosecution, if necessary, of all complaints of cruelty or mistreatment of animals or fowl, and if necessary, take charge of and make proper disposition of the animals or fowl involved in such complaints, when so requested by the director of public service;

B. Advise the director of public service and the animal shelter administrator in matters relating to the efficient and humane operation of the animal shelter;

C. Serve as advocates for the humane treatment of animals and fowl, as set out in this title, while maintaining an awareness of the needs to protect and enhance the total environment of the city.

(Ord. No. 5260, § 1(part), 6-12-2008)

CHAPTER 8-16. DOGS AND CATS*

Sections:

Sec. 8-16-1. Evidence of ownership of animals.
Sec. 8-16-2. Dog license tags required—Fees—Exceptions—Cat rabies vaccination required.
Sec. 8-16-3. Examination for rabies.
Sec. 8-16-4. Kennel license fees.
Sec. 8-16-5. Duplicate dog licenses or tags.
Sec. 8-16-6. Dogs running at large.
Sec. 8-16-7. Impoundment and redemption of dogs.
Sec. 8-16-8. Adoption of animals.
Sec. 8-16-9. Defecation by dogs or cats.
Sec. 8-16-10. Adequate food, water, shelter, care and conditions—Defined—Penalties.
Sec. 8-16-11. Impoundment and redemption of cats.

Sec. 8-16-1. Evidence of ownership of animals.

If any dog is found on the premises of any person for a period of ten days or more, it shall be prima facie evidence that such dog belongs to the occupant of such residence. Any person keeping or harboring a dog for ten

*State law reference—Dogs and cats, T.C.A. § 44-17-101 et seq.

consecutive days shall, for the purpose of this chapter, be declared to be the owner thereof, and liable for violations of this title.
(Code 1967, § 7-36; Code 1985, § 5-56; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3973, § 1(2), 6-26-1990)

Sec. 8-16-2. Dog license tags required—Fees—Exceptions—Cat rabies vaccination required.

A. Dogs—Licensing and vaccination. It is unlawful for any person to own, have, harbor, keep or to cause or permit to be harbored, or kept in the city, any dog three months of age or over, unless a current city license tag has been issued for such dog. Prior to the issuance of a city dog license tag, the animal must receive a vaccination for rabies or the owner of the animal must provide evidence that such animal has been so vaccinated and such vaccination is still current. In addition to the cost of the rabies vaccination, a city dog license tag shall be required for a 12-month period, beginning during the month of purchase and expiring during the same month of the following year, and a license must thereafter be purchased annually on the same basis, in advance of such expiration date, for an applicable fee, as follows:

1. For each fertile dog: $15.00;

2. For each sterile dog: $5.00.

B. Such a city dog license tag may be purchased from the veterinarian at the time of vaccination or can be purchased from the city animal shelter, and/or agencies and offices designated by the director of public service.

C. If the license is purchased from a veterinary clinic, the veterinarian issuing the license may collect an agent's fee of $1.00 for this service.

D. If the license is purchased from a nonveterinarian source, such as the shelter, the purchaser shall exhibit an affidavit from a licensed veterinarian, describing and identifying the animal and certifying its sterility, in order to pay the proper license fee. Falsification of such affidavit shall be punishable in accordance with state law. No license is transferable.

E. The provisions of this section shall not apply to nonresidents traveling through the city or staying temporarily for a period of less than 30 days.

F. Cats—Vaccination. It is unlawful for any person to own, have, harbor, keep or to cause or permit to be harbored, or kept in the city, any cat three months of age or over, unless such person holds a current certificate of vaccination for each such animal.

G. The provisions of this section shall not apply to nonresidents traveling through the city or staying temporarily for a period of less than 30 days.
(Code 1967, § 7-37; Code 1985, § 5-57; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3973, § 1(3), 6-26-1990; Ord. No. 4145, § 2, 11-17-1992; Ord. No. 4819, § 1, 11-21-2000)

Charter reference—Authority of city to provide for registration and licensing of dogs, § 854.

Sec. 8-16-3. Examination for rabies.

A. If any dog or cat has bitten any person so as to break the skin, or is suspected of being infected with rabies, it shall be the duty of the animal shelter to cause such animal to be apprehended and quarantined in the shelter, or veterinary clinic, securely penned and separated from other animals for such period as may be necessary to ascertain whether or not the animal is infected with rabies. Pet owners who are bitten by their own dog or cat may be allowed to quarantine their animal at a veterinary clinic or at home. The health officer will have final authority with regard to animal bite quarantines.

B. If, after sufficient quarantine, the animal is not infected, in the opinion of the county officer, or the designated staff of the animal shelter, it shall be returned to the owner, upon payment of appropriate impound, licensing, and rabies inoculation fees, and board fees for each day of quarantine. If not redeemed by the owner at the end of the quarantine period, the animal shall become the property of the animal shelter and will be humanely put to death as soon as practicable thereafter.

C. If, in the opinion of the health officer, or his or her agent, a lab diagnosis is justified, the animal may be euthanized, and proper examination made by the health officer. In determining the necessity of the microscopic examination, the action of the health officer shall be final.

D. Any animal desired for observation by the health department or the animal shelter under the provisions of this section shall be delivered to the police or city animal shelter personnel upon demand and shall not be withheld, hidden or harbored.

E. When any person refuses to deliver a dog desired for observation, the city court clerk shall issue to the police department a warrant for the arrest of such person, which warrant shall also provide for the surrender of the animal and shall be lawful authority for the apprehending and forcible taking of the animal.
(Code 1967, § 7-43; Code 1985, § 5-14; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3973, § 1, 6-29-1990; Ord. No. 4145, § 1, 11-17-1992; Ord. No. 4247, § 2, 4-5-1994; Ord. No. 4578, § 1, 5-5-1998)

Sec. 8-16-4. Kennel license fees.

A. Persons operating a commercial kennel, where dogs are owned, bred, boarded and/or held for sale, containing four or more dogs, in which dogs are kept and maintained exclusively therein, shall not be required to pay the license fee prescribed in section 8-16-2, provided they can produce evidence that the dogs have been vaccinated for rabies and such vaccinations are still current, but may pay in lieu thereof an annual license fee, beginning during the month of purchase and expiring during the same month of the following year, and thereafter purchased annually on the same basis, in advance of such expiration date, as follows:

1. For each kennel with less than ten dogs: $10.00;

2. For each kennel with from ten to 20 dogs: $20.00;

3. For each kennel with over 20 dogs: $30.00.

B. Persons operating a commercial kennel must, at the time of purchasing their license, show approval from the city and county health department as to the location and number of dogs to be kept. In making application for such a license to the city's treasurer's office, the kennel owner or operator shall furnish an affidavit showing the number of dogs kept therein. No license is transferable.

C. A person owning four or more dogs, in a noncommercial capacity, but who may have dogs registered with a recognized kennel club, and the owner holds such animals for show or breeding purposes may, in lieu of section 8-16-2, purchase for a 12-month period, beginning during the month of purchase and expiring during the same month of the following year, a breeder's exemption certificate, which must thereafter be purchased annually on the same basis in advance of such expiration date from the city treasurer's office, for a fee of $30.00, which shall constitute a city license fee for all dogs so held. No license is transferable.
(Code 1967, § 7-38; Code 1985, § 5-58; Ord. No. 3189, § 1, 3-9-1982)

Sec. 8-16-5. Duplicate dog licenses or tags.

In the event a dog tag or license is lost, stolen or unavoidably mutilated, damaged or destroyed, the administrator in charge of the animal shelter may, in his or her discretion, and upon sworn application of the owner of the dog for which the license was purchased, setting forth the facts in connection therewith, and after investigation thereof, issue a duplicate license and tag upon payment of a fee of $2.00.
(Code 1967, § 7-39; Code 1985, § 5-59; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5214, § 1, 9-7-2007)

Sec. 8-16-6. Dogs running at large.

A. *Generally.* Dog owners or handlers shall, at all times, keep their animals on a leash or other suitable restraint or confined by a fence on their property or the private property of another, with the permission of the owner of that property, so as to prevent the animal from being at large, biting, or harassing any person engaged in a lawful act; interfering with the use of public property or with the use of another person's private property; or being in violation of any other section of this Code. No animal shall be allowed to run at large even on the property of the owner or handler of such animal, unless confined by a fence or other suitable restraint.

B. *Walking dog on a leash.* Any person walking a dog on public property, including sidewalks, and the private property of others, must keep the dog on a leash and under physical control being able to restrain the movement of the dog with the leash at all times. The leash must be kept in good condition; of sufficient strength to prevent breaking under pressure; and of material generally resistant to chewing or gnawing by an animal. The length of a leash must be such so as to control the dog from harassing pedestrians or other animals at all times.

C. *Methods of restraint.*

1. *Dog restrained by traditional fencing.* Fencing must be in good condition, of recognized construction methods, and adequate in terms of size to the number of dogs contained in the fenced area to prevent the dogs from escaping. Entry or exit gates must be properly secured by a latch-

ing or locking mechanism. The height and condition of the fence must be such to prevent the dog from escaping. As a general rule, a fence should be at least 2½ times the height of the animal it is intended to restrain. The height of the dog is measured by the height of the dog's shoulder when the dog is standing on four legs. However, should a dog be able to escape from a fence, either by climbing or digging, additional fencing height, kennels, or other restraint methods may be required in addition to fencing. Fencing must be maintained in continued good condition. Existing fencing regardless of height will be considered acceptable means of restraint unless and until a written complaint is filed with the city animal shelter and verified as valid.

2. *Dogs restrained by tie-outs or overhead cable runs.*

   a. Dogs may be restrained with suitably sized tie-outs or overhead cable runs. These restraints must be sufficient in length but never less than six feet, excluding length around collar, and nonrigid, to allow the animal freedom of motion, and to move about at will within a protected area on the property of the owner or handler without becoming tangled in obstacles. These types of restraints shall prevent the dog from traversing upon another person's property, public sidewalks or public property and from charging and harassing persons and pedestrians utilizing these properties.

   b. Dogs restrained by tie-outs or overhead cable runs must be spayed or neutered, not subject to any exemption under section 8-28-3.

3. *Dogs restrained by invisible fencing.* As an alternative to traditional fencing, tie-outs or overhead cable runs, a dog may be restrained with invisible fencing, provided the fencing is set up and maintained in the following manner:

   a. The owner or handler and dog receive training regarding the use and maintenance of the system.

   b. The owner or handler must post signs visible from the public sidewalks and public streets or driveways sufficient to alert the general public upon approaching the property upon which the fencing is located. Two signs are required containing the following wording: "Dog is contained by electronic device," or similar wording; the name, address and telephone number of the company, any trademark and/or logo of either the company that installed the system or the company that maintains the system, and the signs shall be of minimum size of six inches by eight inches.

D. *Protective purposes.* No person shall use a dog as a weapon or to threaten or harass other persons or animals. Nothing herein shall prohibit or limit a person's right to possess a dog for protection to their person or property.

E. *Exceptions.*

1. Dogs employed as police, service, therapy and search and/or rescue dogs are exempt from the requirements of this section while used in their working capacity or while engaged in a training program with a recognized organization or government agency that regularly trains dogs for such use;

2. Dogs off-leash in areas designated for such use by departments of city government, or on grounds under their jurisdiction, and dogs engaged in conformation, competition or performance related events on public or private property.

F. *Prima facie evidence.* If a dog is found running at large by the city animal shelter, the incident shall constitute prima facie evidence that current restraint methods are inadequate, and the owner shall be required to correct any conditions that permitted the dog to run-at-large, or provide such additional restraints as are necessary to secure and maintain the future restraint of the dog.

(Code 1967, § 7-40; Code 1985, § 5-60; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 4530, § 1, 8-4-1998; Ord. No. 5378, § 1, 9-28-2010)

Charter reference—Authority of city to regulate running at large of dogs, § 854.

Sec. 8-16-7. Impoundment and redemption of dogs.

A. *Impoundment.*

1. *First impoundment.*

   a. Any dog not wearing a current license tag required by this title or running at large in

violation of this title shall be apprehended and incarcerated in the city animal shelter, and the owner notified, if known. Such dog shall be held for at least three business days during which time the owner may redeem or repossess the same upon payment for, or presentation of, a current license therefor, and payment of $80.00, plus $15.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and the animal may be designated for adoption, as provided for in section 8-16-8, or humanely put to death as soon as practicable thereafter.

2. *Second impoundment.*

   a. Should a dog belonging to the same owner be picked up for a second time within two years of the date of the first offense, the owner may redeem and repossess the dog upon presentation of a current license thereof and payment of $150.00, plus $15.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public.

3. *Third impoundment.*

   a. Should a dog belonging to the same owner be picked up for a third time within three years of the date of the first offense, the administrator of the animal shelter, or his or her agent, will serve a summons upon the owner of the animal. The owner shall also be liable for a penalty of not less than $225.00 to defray the cost of capture of the animal and protection of the public, with a boarding fee of $15.00 per day being charged.

B. *Sterilization at the animal shelter.* When an owner is reclaiming an animal that is not spayed or neutered and the owner chooses to sterilize the animal pursuant to this section, the owner will be given the option of having the animal sterilized at the animal shelter by the staff veterinarian when such person is available.

(Code 1967, § 7-41; Code 1985, § 5-61; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3973, § 1(4), 6-26-1990; Ord. No. 4247, § 3, 4-5-1994; Ord. No. 4506, § 1, 9-16-1997; Ord. No. 5214, §§ 1, 11, 9-7-2007; Ord. No. 5433, § 1, 1-3-2012)

Sec. 8-16-8. Adoption of animals.

Once an animal becomes the property of the city animal shelter either by gift, donation, abandonment or any other voluntary conveyance or as a result of pickup by the animal shelter or any other person or entity after the animal has been found running at large in violation of this chapter and as provided for in section 8-16-17, may be adopted in accordance with the terms of the adoption contract (supplied by the shelter) and upon payment of an adoption/sterilization fee, licensing fee and fees for any other service supplied but the city animal shelter in connection with such animal. Each unaltered dog and/or cat may be sterilized by the shelter veterinarian or representative prior to leaving the shelter. Any individual taking an unaltered dog or cat from the shelter must comply with applicable ordinances and policies relating to unsterilized animals. If it is determined that a former owner of an animal is applying for adoption, such former owner may gain ownership or possession only by payment of redemption fees set forth in section 8-16-17.

(Code 1967, § 7-42; Code 1985, § 5-62; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 4506, § 1, 9-16-1997; Ord. No. 5433, § 1, 1-3-2012)

State law reference—The Tennessee Spay/Neuter Law, T.C.A. § 44-17-501 et seq.

Sec. 8-16-9. Defecation by dogs or cats.

A. It is unlawful for any owner of any dog or cat to fail to promptly remove and dispose of, in a sanitary manner, feces left by a dog or cat being handled by that person on property, public or private, other than the premises of the owner or handler of such dog or cat.

B. Persons owning pet dogs or service dogs, such as seeing eye dogs, who are legally blind or confined to a wheelchair and thereby physically incapable of disposing of feces left by their animal, are exempt from this law.

C. Enforcement of this section shall be in accordance with chapter 8-24.

(Code 1985, § 5-63; Ord. No. 4826, § 1, 11-21-2000)

Sec. 8-16-10. Adequate food, water, shelter, care and conditions—Defined—Penalties.

A. For the purposes of this section, the following words and phrases shall have the meanings ascribed to them by this section:

Adequate care shall include but not be limited to current vaccinations and/or medical treatment for illness, injury, disease, excessive parasitism, or any malformations.

Adequate conditions shall include but not be limited to adequate care, food, shelter, and water as defined in this section; some examples include, but are not limited to the following:

1. Owning or having a companion animal that injures a member of the general public or interferes with the ordinary use and enjoyment of their property;

2. Allowing or permitting a cat to damage the property of anyone other than its owner, including defecating upon the property of another;

3. Maintaining companion animals in an unsanitary environment which results in offensive odors or is dangerous to the public health, welfare, or safety so as to increase the probability of the transmission of disease;

4. Maintaining a companion animal that is diseased and thus dangerous to the public health.

Adequate food means food that is not spoiled or contaminated and is of sufficient quantity and quality to meet the normal daily requirements for the condition and size of the animal and environment in which it is kept. An animal shall be fed or have food available at least once each day, unless a licensed veterinarian instructs otherwise, or withholding is in accordance with accepted agricultural or veterinarian practices.

Adequate shelter means a structure or enclosure which provides an animal with protection from the elements (weather), which structure or enclosure must have a roof, floor and three sides and be of sufficient size as to allow each animal to stand up, lie down and turn around in a natural position and shall include, but not be limited to, proper restraints as defined in section 8-16-6.

Adequate water means fresh, potable water provided at suitable intervals for the species and which in no event shall exceed 24 hours at any interval. The animal must have access to the water.

Companion animal means domesticated animals kept in or near the household for the primary purpose of companionship for members of the household and/or companionship for other such animals. This includes dogs, cats, rabbits, guinea pigs, hamsters, rats, mice, ferrets, birds, reptiles, amphibians, invertebrates and species that a reasonable person would consider to be a pet.

Person means an individual, firm, partnership, or corporation or authorized agent or representative of a person, partnership, or corporation.

B. No person may possess, lodge, or maintain over five companion animals if such a person displays a general disregard for the conditions under which the animals are living, including, but not limited to, failing to provide all the following to all the companion animals in his care: adequate food, water, shelter, care and conditions.

C. A person in violation of this section is guilty of a misdemeanor. Upon conviction for companion animal hoarding, as defined in subsection (B) of this section, the city court, court of general sessions, or a court of competent jurisdiction may order that the person do any or all of the following:

1. Be precluded from owning, harboring, or having custody or control of companion animals for a period of time that the court deems reasonable;

2. Participate in available animal cruelty prevention programs and educational programs or both;

3. Undergo a behavioral health evaluation and comply with any recommendations resulting from the evaluation;

4. Forfeit to the Memphis Animal Shelter animals that are the basis of conviction;

5. Sterilize the companion animals, with sterilization being mandatory upon a second violation; or

6. Pay appropriate fees and fines.

(Ord. No. 5214, § 12, 9-7-2007)

State law reference—Cruelty to animals, T.C.A. § 39-14-202.

Sec. 8-16-11. Impoundment and redemption of cats.

A. *lmpoundment*.

1. *First impoundment.*

a. Any cat found in violation of this chapter shall be apprehended and incarcerated in the city animal shelter, and the owner notified, if known. Such cat shall be held for at least three business days during which time the owner may redeem or repossess the same upon payment of $80.00, plus $15.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public. If not reclaimed or redeemed by the owner within such time, the animal will become the property of the shelter and the animal may be designated for adoption, as provided for in section 8-16-8, or humanely put to death as soon as practicable thereafter.

2. *Second impoundment.*

a. Should a cat belonging to the same owner be picked up for a second time within two years of the date of the first offense, the owner may redeem and repossess the cat upon payment of $150.00, plus $15.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public.

3. *Third impoundment.*

a. Should a cat belonging to the same owner be picked up for a third time within three years of the date of the first offense, the administrator of the animal shelter, or his or her agent, will serve a summons upon the owner of the animal. The owner shall also be liable for a penalty of not less than $225.00 to defray the cost of capture of the animal and protection of the public, with a boarding fee of $15.00 per day being charged.

B. *Second impoundment.*

1. Should a cat belonging to the same owner be picked up for a second time within two years of the date of the first offense, the owner may redeem and repossess the cat upon payment of $150.00, plus $7.00 for each day of confinement to defray the cost of the capture of such animal and the protection of the public.

2. The second impoundment fee is reduced to $110.00 if the owner provides proof within 30 days that the animal is altered or if the owner agrees and provides proof thereof within 30 days that the unaltered animal has been sterilized.

C. *Third impoundment.*

1. Should a cat belonging to the same owner be picked up for a third time within three years of the date of the first offense, the administrator of the animal shelter, or his or her agent, will serve a summons upon the owner of the animal. The owner shall also be liable for a penalty of not less than $225.00 to defray the cost of capture of the animal and protection of the public, with a boarding fee of $7.00 per day being charged.

2. The third impoundment fee is reduced to $185.00 if the owner provides proof within 30 days that the unaltered animal has been sterilized.

D. *Sterilization at the animal shelter.* When an owner is reclaiming an animal that is not spayed or neutered and the owner chooses to sterilize the animal pursuant to this section, the owner will he given the option of having the animal sterilized at the animal shelter by the staff veterinarian when such person is available.
(Ord. No. 5214, § 13, 9-7-2007; Ord. No. 5433, § 1, 1-3-2012)

CHAPTER 8-20. DANGEROUS AND VICIOUS ANIMALS

Sections:

Sec. 8-20-1. Definitions.
Sec. 8-20-2. Determination of dangerous/vicious dog or animal.
Sec. 8-20-3. Dog or animal declared dangerous/vicious.
Sec. 8-20-4. Duty of owner of dangerous/vicious dog or animal.
Sec. 8-20-5. Surrender of dog or animal.
Sec. 8-20-6. Unowned or abandoned dog or animal.
Sec. 8-20-7. Dogs or animals not declared dangerous/vicious.
Sec. 8-20-8. Exemptions.
Sec. 8-20-9. Duties of animal control officer.

Sec. 8-20-10. Violation—Penalty.
Sec. 8-20-11. Guard dogs.

Sec. 8-20-1. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Animal includes any dog or animal of the canine family.

Competent person means any person 18 years of age or older, who is able to comprehend and understand the nature of his or her responsibility, and has sufficient ability, mentally and physically, to handle any particular animal he or she may take charge of, or have in his or her control.

Dangerous/vicious animal means any dog, or animal of the canine family, that according to records of the appropriate authority has:

1. Aggressively bitten, attacked, or has otherwise inflicted injury on a human being on public or private property;
2. Severely injured or killed a human being;
3. Been used primarily, or in part, for the purpose of dog fighting or any other aggressive activity;
4. Aggressively and unprovoked, while off its owner's property, attacked another domestic animal causing serious injury or death;
5. Bitten once and been found at large twice.

Dog means any animal of the canine family.

Guard dog means any dog trained or used to protect persons or property by attacking or threatening to attack any person found within the area patrolled by the dog.

Keeper means any person, corporation, or other legal entity possessing or having custody or control of an animal.

Owner means:

1. Any person, partnership or corporation owning an animal;
2. Any person in charge of maintaining an animal;
3. Any person who feeds, shelters or harbors an animal or permits it to remain on such person's property; or
4. If the animal is owned by a person under the age of 18, that person's parent or guardian.

Severe injury means any physical injury that results in broken bones, multiple punctures, or disfiguring lacerations, requiring sutures or cosmetic surgery.

Sporting kennels means a facility which offers no services for profit, which maintains animals solely for the owners' sporting or hobby purposes, and which sells offspring and adult animals only on an occasional basis. The term "occasional basis" means animal sales of a frequency of no greater than one litter per fertile female per year.

Trained attack dog means an animal trained by authorized and specialized personnel for specific purposes.

Unprovoked attack means an attack in which an animal without provocation attacks or bites a human being who has been conducting himself or herself peacefully and lawfully and has not teased, threatened or otherwise provoked the attacking animal.
(Code 1985, § 5-64; Ord. No. 4954, § 1, 8-6-2002; Ord. No. 5214, § 14, 9-7-2007; Ord. No. 5379, § 1, 9-28-2010)

Sec. 8-20-2. Determination of dangerous/vicious dog or animal.

A. After an animal control officer has initially determined that a dog should be classified as dangerous/vicious and notification has been sent to the owner or other responsible party, unless a petition has been filed with the Shelby County District Attorney, pursuant to T.C.A. § 44-17-120, a mandatory ordinance summons shall be obtained by the animal control officer against the owner or other responsible party citing the code section violated, setting a date to appear in city court, court of general sessions, or a court of competent jurisdiction for a determination. If the animal shelter administrator obtains a summons under this code section, then during such time the administrator shall have authority to retain the animal for observation of rabies and safekeeping of the animal shelter. Any decision of the court shall be final, subject to appeal to a higher court of competent jurisdiction. During the running of any appeal time, the animal shelter administrator shall have authority to continue to retain the animal for observation of rabies and safekeeping of the animal shelter. The owner is required to pay $68.00 per day as a boarding fee for the dog for each day or fraction

thereof the dog remains unclaimed, awaiting hearing, or retained by administrator. After the initial payment the owner must pay the charge in advance, keeping the account ahead. The owner must initially pay for at least 30 days of care and payments must be made in advance until the court authorizes the release of the animal. The initial payment shall be within ten days of the shelter taking possession of the animal. If the boarding fee is not paid as required to this section, the animal shall be deemed forfeited. At the owner's request and expense, the animal may be kept at a licensed veterinary clinic upon written statement from the veterinary clinic to the animal shelter administrator that the animal will be boarded in a private, licensed veterinary clinic and the posting of a bond with the administrator in the amount of $2,000.00 to insure compliance pending any and all court appearances.

B. Failure of an owner to respond to the ordinance summons shall result in the animal being automatically declared a dangerous/vicious animal and owner has waived all rights to a hearing, and will result in the animal's ownership being relinquished to the animal shelter. At this time notice shall be given as in civil cases, that if the owner does not appear before the court within five days of receipt thereof and show cause why the dog should not be destroyed then the order shall be issued and the dog shall be destroyed.
(Code 1985, § 5-65; Ord. No. 4954, § 1, 8-6-2002; Ord. No. 5214, § 16, 9-7-2007; Ord. No. 5434, § 1, 1-3-2012)

Sec. 8-20-3. Dog or animal declared dangerous/vicious.

A. Within 30 days after an animal has been classified as dangerous/vicious, the owner of the animal must obtain a certificate of registration and a tag for the animal from the animal control authority, and the certificate shall be renewed annually. The animal control administrator, or his or her designee, is authorized to issue such certificates of registration, and renewals thereof, only to persons who are at least 18 years of age and who present to the animal control administrator, or his or her designee, sufficient evidence of:

1. A current certificate of rabies vaccination for the animal;
2. A proper enclosure to confine a dangerous/vicious animal and the posting of the premises with a clearly visible warning sign at all entry points which informs both children and adults of a dangerous/vicious animal on the property or premises which reads:

   Warning

   Dangerous/Vicious Dog
   (or Animal) on Premises

3. Permanent identification of the animal such as a tattoo on the inside thigh or electronic implantation;
4. Proof that the dog has been spayed/neutered;
5. Proof to the animal control authority that public liability insurance or a bond of at least $50,000.00 is in effect insuring the owner of the animal for any damages, whether arising from personal injury or otherwise, which may be caused by the dangerous/vicious animal. Such policy must provide for 30 days' notice to the City of Memphis Animal Services prior to cancellation or expiration of the policy. In the event such liability insurance or bond is cancelled, lapses, or for any other reason becomes unenforceable, the owner shall be in violation of the provisions of this chapter and title;
6. Purchase of a dangerous/vicious dog tag from the animal control administrator which must be worn by the animal at all times; and
7. Payment in the amount of $50.00 for the issuance of certificates of registration and dangerous/vicious dog (animal) tag. For purposes of administering the provisions of this section, the fees provided herein shall be credited to the Memphis Animal Shelter in a specific line item account.

B. If the owner does not obtain a certificate of registration and a tag within 30 days then the dog becomes the property of the city.

C. The owner shall immediately notify the appropriate animal control authority when an animal that has been classified as dangerous/vicious:

1. Is running at large or unconfined;
2. Has bitten a human being;
3. Is sold, given away, or dies;
4. Is moved to another address.

Prior to a dangerous/vicious animal being sold or given away, the owner shall provide the name, address and telephone number of the new owner to the animal control authority; any new owner residing in the city must comply with all the requirements of this chapter and title.

D. It is unlawful for the owner of a dangerous/vicious animal to permit the animal to be outside a proper enclosure unless the animal is muzzled and restrained by a substantial chain or leash and under the control of a competent person. The muzzle shall be made in a manner that will not cause injury of the animal or interfere with its vision or respiration, but shall prevent it from biting any person.
(Code 1985, § 5-66; Ord. No. 4954, § 1, 8-6-2002; Ord. No. 5214, § 17, 9-7-2007)

Sec. 8-20-4. Duty of owner of dangerous/vicious dog or animal.

The owner of any dangerous/vicious animal shall keep the animal confined. As used in this chapter, the word "confined" shall mean as follows:

A. *Leash and muzzle.* No person shall permit a dangerous/vicious animal to go outside its kennel or pen unless such animal is outfitted with a choke or pinch collar and securely leashed with a substantial chain or leash no longer than four feet in length. No person shall permit a dangerous/vicious animal to be kept on rope or other type of leash outside of its kennel or pen unless a competent person at least 18 years of age is in physical control of the leash. Such animal may not be leashed to inanimate objects, including, but not limited to, posts, buildings or fences. In addition, all dangerous/vicious animals on a leash outside the animal's kennel must be muzzled by a muzzling devise sufficient to prevent such animal from biting persons or other animals. Such muzzle should not cause injury to the animal or interfere with its vision or breathing, but shall prevent it from biting any person.

B. *Confinement outdoors.* All dangerous/vicious animals shall be securely confined indoors or in a securely enclosed and locked pen or kennel, except when leased and muzzled as provided above. Such pen, kennel or structure shall be at least 20 feet from any street or sidewalk, ten feet from any property line and must have secure sides and a secure top to the sides. Such structures must be locked with a key or combination lock when any animal is within the structure. Such structure must have a secure concrete bottom or floor attached to the sides of the pen or the sides of the pen must be embedded in the ground no less than two feet. All structures erected to house dangerous/vicious animals must be a minimum of six feet by ten feet enclosure and comply with all zoning and building regulations of the city. All such structures must be adequately ventilated and kept in a clean and sanitary condition at all times, and must be inspected and approved by the local health officer, or his or her designee.

C. *Confinement indoors.* No dangerous/vicious animal may be kept on a porch, patio or in any part of a house or structure that would allow the animal to exit such building of its own volition. In addition, no such animal may be kept in a house or structure when any unbarred window is open or when any screened window or screen door is the only obstacle preventing the animal from exiting the structure.

(Code 1985, § 5-67; Ord. No. 4954, § 1, 8-6-2002)

Sec. 8-20-5. Surrender of dog or animal.

Any owner of an animal which has been involved in a biting incident must surrender that animal to the animal control administrator or his or her designee. Should the owner choose to relinquish ownership rights to the animal, he or she must sign a statement acknowledging that the animal may be destroyed and, if so, the remains submitted to the state laboratory for testing for the rabies virus. In addition, the owner will be required to pay boarding costs and other fees if the dog is kept at the shelter after being confiscated.

(Code 1985, § 5-68; Ord. No. 4954, § 1, 8-6-2002; Ord. No. 5214, § 1, 9-7-2007)

Sec. 8-20-6. Unowned or abandoned dog or animal.

Any stray, unowned, or apparently abandoned animal that bites a human being will be held for ten days. At the end of the ten-day holding period, the animal may be destroyed in an expeditious and humane manner. Any animal determined to have been involved in a bite incident, and held for less than ten days shall be tested at the state laboratory for rabies.

(Code 1985, § 5-69; Ord. No. 4954, § 1, 8-6-2002)

Sec. 8-20-7. Dogs or animals not declared dangerous/vicious.

When an animal attacks or bites strangers:

A. If an animal that has not been declared dangerous/vicious under this chapter aggressively attacks and causes severe injury to, or death of, any human being, the owner of the animal shall be issued an ordinance summons for failing to properly control the animal and shall be subject to a fine of $50.00.

B. An unaltered animal with a record of one bite and/or attack must be fitted with a microchip

implant and spayed or neutered, not subject to any exemption under section 8-28-3, within 30 days of the incident.

(Code 1985, § 5-70; Ord. No. 4954, § 1, 8-6-2002; Ord. No. 5379, § 2, 9-28-2010; Ord. No. 5390, § 3, 1-4-2011)

Sec. 8-20-8. Exemptions.

Hunting dogs are exempt from the provisions of this chapter when engaged in any legal hunt or training procedure. Dogs engaged in training or exhibiting in legal sports such as obedience trials, conformation shows,

field trials, retrieving trials, herding trials, or when engaged in any legal procedures, are exempt from the provisions of this chapter. However, such dogs at all other times in all other acts shall be subject to this chapter. The foregoing exemptions shall not apply unless all damages done by dogs or animals, therein exempted, to the person or property of another, shall be paid to that person or his or her agent within 30 days after the damage is done.
(Code 1985, § 5-71; Ord. No. 4954, § 1, 8-6-2002)

Sec. 8-20-9. Duties of animal control officer.

An animal control officer shall investigate incidents involving dogs and animals that may be dangerous/vicious. The animal control officer shall make an initial determination whether an animal is to be classified as dangerous/vicious and shall immediately provide written notification by registered or certified all to the owner, authorized handler, or person maintaining possession of the animal, that the animal has been preliminarily classified as dangerous/vicious. A dog shall not be classified as dangerous/vicious if the threat, injury or damage was sustained by a person, who, at the time, was unlawfully on the property, or while lawfully on the property was tormenting, abusing, or assaulting the animal or its owner or handler. The officer shall take possession of any dog or animal preliminarily determined to be dangerous/vicious and transport the animal to the animal shelter.
(Code 1985, § 5-72; Ord. No. 4954, § 1, 8-6-2002)

Sec. 8-20-10. Violation—Penalty.

Any person violating or permitting the violation of any provision of this chapter and title, shall upon conviction, be subject to a fine of not more than $50.00 for each separate violation. Each day that any violation of this Code or any ordinance continues shall constitute a separate offense.
(Code 1985, § 5-73; Ord. No. 4954, § 1, 8-6-2002)

Sec. 8-20-11. Guard dogs.

It is unlawful for any person to place or maintain guard dogs in any area of the city for the protection of persons or property unless the following provisions are met:

A. The guard dog shall be confined; or

B. The guard dog shall be under the absolute control of a handler at all times when not confined by way of lead or leash.

C. The owner or other persons in control of the premises upon which the guard dog is maintained shall post warning signs stating that such a dog is on the premises. At least one such sign shall be posted at each driveway or entranceway to said premises. Such signs shall be in lettering clearly visible from either the curb line or a distance of 50 feet, whichever is less, and shall contain a telephone number where some person responsible for controlling such guard dog can be reached 24 hours a day.

D. The above provisions shall not be applicable to dogs used in law enforcement by federal, state or local law enforcement agencies.

(Ord. No. 5214, § 15, 9-7-2007)

CHAPTER 8-24. ENFORCEMENT

Sections:

Sec. 8-24-1. Official to designate special officers.
Sec. 8-24-2. Issuance of ordinance summons.
Sec. 8-24-3. Procedures applicable to summonses and animal citations.
Sec. 8-24-4. Animal violation forfeiture schedule.
Sec. 8-24-5. Limitation on action for violations—When action deemed commenced—Service of summons.
Sec. 8-24-6. Dismissal or entering a nolle prosequi of citation/summonses not prohibited.
Sec. 8-24-7. Aid and assistance.

Sec. 8-24-1. Official to designate special officers.

The city animal shelter manager may designate, subject to the approval of the director of public service, certain animal shelter employees to serve as municipal enforcement officers for the purpose of issuing ordinance summonses related to violations of this chapter witnessed by the officer.
(Code 1967, § 7-55; Code 1985, § 5-76; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5214, § 1, 9-7-2007; Ord. No. 5390, § 4, 1-4-2011)

Sec. 8-24-2. Issuance of ordinance summons.

Any ordinance summons issued pursuant to this chapter shall be treated in accordance with the procedures set forth in section 8-24-3 included herein. The ordinance summons shall be left with the offender and shall provide information related to the offense charged and the time and place when such offender is to appear in

court. Failure of the offender to appear in court shall result in a default judgment against the offender in an amount not to exceed $50.00 plus costs for each offense. (Code 1967, § 7-56; Code 1985, § 5-77; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5390, § 5, 1-4-2011)

Sec. 8-24-3. Procedures applicable to summonses and animal citations.

The following shall apply as to animal and fowl summonses and citations:

A. *Citations.* Whenever any citation has been issued pursuant to this title, the citation shall provide for payment within 15 days from issuance. Any person receiving such citation may appear and pay the forfeiture set herein at the city court clerk's office on or before the end of the 15-day period. If no one appears to pay the citation by the end of such 15 days, a summons shall be issued as provided for in this title, and served either by personal service or certified or registered mail as provided by law indicating the date and time for such person to appear to answer the charge in such citation. The summons shall be set upon the docket specially established for such summons by the city court judge. If such person fails to appear to answer summons before the court indicated and at the date and time provided for, the court, upon motion of the city, shall take a default judgment against the defendant in favor of the city. The amount of such default judgment shall be at least the amount of the forfeiture set for violation of such section and no more than $50.00 and cost for each violation. The summons shall be sworn to by the officer before a person designated as a city court clerk for the purpose of taking oaths approved by a majority of the city court judges. If the defendant contests the ownership of the animal or the violation of this title, he or she shall file a sworn pleading in advance of the hearing setting forth such defense or defenses so as to allow the city sufficient time to prepare for the trial.

B. *Summons.* Every summons issued shall provide for an appearance date and such date shall be not less than five nor more than 15 days after the issuance of a summons. The offender shall pay by mail or shall appear at the city court clerk's office on the date set therein or at any time prior thereto and pay the forfeiture as set forth therein, or may request a trial on the date set therein. If any offender fails to appear on or before the appearance date, a docket shall be prepared, as soon as possible of all those persons failing to appear, to be called the default docket. The docket shall be presented to the court and the court shall, upon motion of the clerk, take a default judgment against the defendant in favor of the city in an amount not less than that specified by the schedule of forfeitures nor more than $50.00, plus costs, for each offense. The default docket shall be assigned in accordance with procedures established by the court rules.

C. *Procedures.* Any ordinance summons issued pursuant to this chapter shall follow the procedures set forth herein in accordance with the preceding subsections A and B of this section.

(Code 1967, § 7-57; Code 1985, § 5-78; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3973, § 1, 6-26-1999; Ord. No. 5390, § 6, 1-4-2011)

Sec. 8-24-4. Animal violation forfeiture schedule.

A. The city court clerk's office is authorized to collect the following scheduled forfeitures:

Section Violation	*Nature of Violation*	*Forfeiture*
8-8-5	Cruelty to animal	$50.00
8-16-2	Failure to vaccinate a dog or cat for rabies	50.00
8-16-6	Dog running at large	50.00

B. The established forfeitures as provided herein may be paid at the city court clerk's office at any time prior to the court date appearing upon any citation or ordinance summons issued pursuant to this chapter. Such payments at the city court clerk's office may be made in person or by mail, or as otherwise provided by law.

(Code 1967, § 7-58; Code 1985, § 5-79; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 3471 § 1, 7-2-1985; Ord. No. 3973, § 1, 6-26-1999; Ord. No. 5390, § 7, 1-4-2011)

Sec. 8-24-5. Limitation on action for violations—When action deemed commenced—Service of summons.

A. No action shall be commenced by the city in any court for the purpose of enforcing any violation of animal violation sections of the Code of the city after one

year from the commission of the offense. For the purpose of this section a court action shall be deemed to be commenced:

1. Upon the issuance of a citation or ordinance summons to the offender; or
2. Upon the arrest of the offender;
3. Upon the issuance of an arrest or bench warrant for the offender; or
4. Upon the issuance of a summons to the offender.

B. A summons may be served by:

1. Personal service on the offender; or
2. Registered or certified mail, addressee only, return receipt requested.

(Code 1967, § 7-59; Code 1985, § 5-80; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5390, § 8, 1-4-2011)

Sec. 8-24-6. Dismissal or entering a nolle prosequi of citation/summonses not prohibited.

Nothing herein shall prevent the city through the city attorney's office from dismissing or entering a nolle prosequi of any citation, summons, or ordinance summons in open court. Such summons, citation or ordinance summons shall be dismissed if it shall be determined that the citation was issued to a nonresident and is deemed uncollectible; there is a lack of proof; or for such other valid reason as stated to the court.
(Code 1967, § 7-61; Code 1985, § 5-81; Ord. No. 3189, § 1, 3-9-1982; Ord. No. 5390, § 9, 1-4-2011)

Sec. 8-24-7. Aid and assistance.

It shall be the duty of all police officers to render any assistance necessary.
(Code 1967, § 7-61; Code 1985, § 5-82; Ord. No. 3189, § 1, 3-9-1982)

CHAPTER 8-28. MANDATORY SPAYING AND NEUTERING OF CATS AND DOGS

Sections:

Sec. 8-28-1. Spay and neuter requirement.
Sec. 8-28-2. Owner.
Sec. 8-28-3. Exemption for certain animals.
Sec. 8-28-4. Fertile animal permits.
Sec. 8-28-5. Enforcement.
Sec. 8-28-6. Proof of compliance to enforcement agents, including ACOs.
Sec. 8-28-7. Penalties.
Sec. 8-28-8. Data.

Sec. 8-28-1. Spay and neuter requirement.

No person shall own, harbor, or keep within the city a dog or cat over the age of six months, which has not been spayed or neutered unless the dog or cat is exempted from the provisions of this section, as defined under section 8-28-3.
(Ord. No. 5380, § 1(5-83), 9-28-2010)

Sec. 8-28-2. Owner.

As used in this chapter, an owner is:

A. Any person, partnership or corporation owning an animal;

B. Any person in charge of maintaining an animal;

C. Any person who feeds, shelters or harbors an animal or permits it to remain on such person's property; or

D. If the animal is owned by a person under the age of 18, that person's parent or guardian.

(Ord. No. 5380, § 1(5-84), 9-28-2010)

Sec. 8-28-3. Exemption for certain animals.

The following animals are exempt from the provisions of section 8-28-1:

A. Dogs documented as having been appropriately trained and actually being used by public law enforcement agencies for law enforcement activities, or such dogs designated as breeding stock by an appropriate agency or organization approved by the director of animal services after consultation with knowledgeable professionals;

B. Dogs having been appropriately trained and actually being used as a service dog, such as a guide dog, hearing dog, assistance dog, seizure alert dog, or social/therapy dog, or such dogs designated as breeding stock by an appropriate agency or organization approved by the director of animal services after consultation with knowledgeable professionals;

C. Dogs documented as having been appropriately trained and actually being used by search and rescue agencies for search and rescue activities,

or such dogs designated as breeding stock by an appropriate agency or organization approved by the director of animal services after consultation with knowledgeable professionals;

D. Dogs or cats certified by a licensed veterinarian as having a health reason for not being spayed/neutered;

E. Dogs which are appropriately trained and actually being used for herding of other animals, or as livestock guardian dogs, hunting dogs, or such dogs designated as breeding stock by an appropriate agency or organization approved by the director of animal services after consultation with knowledgeable professionals;

F. Dogs or cats boarded in a licensed kennel or a business which boards such animals for professional training or resale;

G. Dogs or cats which are registered with the American Kennel Club, the Cat Fancier Association or other recognized registry or trained and kept for the purpose of show, field trials or agility trials;

H. Dogs or cats whose owner has obtained an unaltered animal permit issued by the license-collecting agent of the city, or any successor agency authorized by law to issue said permit.

(Ord. No. 5380, § 1(5-85), 9-28-2010)

Sec. 8-28-4. Fertile animal permits.

Obtaining an unaltered (fertile animal) permit. Applicants must apply for unaltered permits with the city's division of public services.

A. The owner of a fertile animal will have to pay the city a one-time $200.00 permit fee to keep a fertile animal within the city. Said payment must be made to the city treasury.

B. In order to prevent the over-breeding of animals, each permit authorizes the whelping of no more than one litter per female dog in any 12-month period and no more than one litter per domestic household in any 12-month period.

(Ord. No. 5380, § 1(5-86), 9-28-2010)

Sec. 8-28-5. Enforcement.

Memphis Animal Services, which is the department under the division of public services and neighborhoods, is charged with the enforcement of this chapter. Animal control officers (ACOs) are the agents of the city which are generally charged with compliance activities. ACOs shall issue citations under this chapter only as a secondary offense to another violation of this title, including but not limited to: dogs running at large; defecation by dogs and cats; and dangerous and vicious animals.

(Ord. No. 5380, § 1(5-87), 9-28-2010)

Sec. 8-28-6. Proof of compliance to enforcement agents, including ACOs.

Proof of compliance before citation may include, but is not limited to:

A. A uniform mark or symbol at the spay incision site, such as the mark already utilized by the Mid-South Spay and Neuter Services that is in conformance with the American Veterinarian Medical Association (AVMA) standards;

B. A written statement from a veterinarian, which identifies the animal and explains why the animal is exempt;

C. A current rabies certificate, which identifies the animal and states that it has been spayed or neutered;

D. A visual inspection and determination by the ACO that the animal has been altered.

(Ord. No. 5380, § 1(5-88), 9-28-2010)

Sec. 8-28-7. Penalties.

A. The offender of this chapter shall be issued a citation, the penalty shall be a $50.00 fine and court costs. Each day that any violation of this chapter continues may constitute a separate offense. Said fines may be waived by the court of appropriate jurisdiction on a first offense, if proof is provided that the dog or cat is/or has been brought in compliance with this chapter by the date of the hearing.

B. On a second or subsequent offense, the court shall have authority to enforce the $50.00 fine plus costs and may hold the owner in criminal contempt and require the owner to prove that the animal has been brought into compliance with this chapter.

(Ord. No. 5380, § 1(5-89), 9-28-2010)

Sec. 8-28-8. Data.

The council hereby recognizes that adoption of the spay neuter ordinance from which this chapter is derived may qualify the city to apply for available grant money and encourages the administration to maintain records to be able to provide statistics which may be requested for use in grant applications.
(Ord. No. 5380, § 1(5-90), 9-28-2010)

CHAPTER 8-32. CRUELTY TO ANIMALS

Sections:

Sec. 8-32-1. Cruelty to animals.
Sec. 8-32-2. Cock and animal fighting.
Sec. 8-32-3. Penalty.

Sec. 8-32-1. Cruelty to animals.

A. A person commits an offense who intentionally or knowingly:

1. Tortures, maims or grossly overworks an animal;
2. Fails unreasonably to provide necessary food, water, care or shelter for an animal in the person's custody;
3. Abandons unreasonably an animal in the person's custody;
4. Transports or confines an animal in a cruel manner; or
5. Inflicts burns, cuts, lacerations, or other injuries or pain, by any method, including blistering compounds, to the legs or hooves of horses in order to make them sore for any purpose including, but not limited to, competition in horse shows and similar events.

B. A person commits an offense who knowingly ties, tethers, or restrains a dog in a manner that results in the dog suffering bodily injury. "Bodily injury" includes a cut, abrasion, bruise, burn or disfigurement, and physical pain or temporary illness or impairment of the function of a bodily member, organ, or mental faculty.

C. It is a defense to prosecution under this section that the person was engaged in accepted veterinary practices, medical treatment by the owner or with the owner's consent, or bona fide experimentation for scientific research.

D. Whenever any person is taken into custody by any officer for violation of subsection (A)(4), the officer may take charge of the vehicle or conveyance, and its contents, used by the person to transport the animal. The officer shall deposit these items in a safe place for custody. Any necessary expense incurred for taking charge of and sustaining the same shall be a lien thereon, to be paid before the same can lawfully be recovered; or the expenses, or any part thereof, remaining unpaid may be recovered by the person incurring the same of the owners of the animal in an action therefor.

E. In addition to the penalty imposed in subsection (G), the court making the sentencing determination for a person convicted under this section shall order the person convicted to surrender custody and forfeit the animal or animals whose treatment was the basis of the conviction. Custody shall be given to a humane society incorporated under the laws of this state. The court may prohibit the person convicted from having custody of other animals for any period of time the court determines to be reasonable, or impose any other reasonable restrictions on the person's custody of animals as necessary for the protection of the animals.

F. 1. Nothing in this section shall be construed as prohibiting the owner of a farm animal or someone acting with the consent of the owner of that animal from engaging in usual and customary practices which are accepted by colleges of agriculture or veterinary medicine with respect to that animal.

2. It is an offense for a person other than a law enforcement officer acting with probable cause to knowingly interfere with the performance of any agricultural practices permitted by subsection (F)(1).

3. An offense under subsection (F)(2) is a Class B misdemeanor.

G. 1. Cruelty to animals is a Class A misdemeanor.

2. A second or subsequent conviction for cruelty to animals is a Class E felony.

3. Violation of any prohibition or restriction imposed by the sentencing court pursuant to subsection (E) is a Class A misdemeanor.

(Ord. No. 5417, § 1, 10-18-2011)

Sec. 8-32-2. Cock and animal fighting.

A. It is unlawful for any person to:

1. Own, possess, keep, use or train any bull, bear, dog, cock, swine or other animal, for the purpose of fighting, baiting or injuring another such animal, for amusement, sport or gain;

2. Cause, for amusement, sport or gain, any animal referenced in subsection (A)(1) to fight, bait or injure another animal, or each other;

3. Permit any acts stated in subsections (A)(1) and (2) to be done on any premises under the person's charge or control, or aid or abet those acts; or

4. Be knowingly present, as a spectator, at any place or building where preparations are being made for an exhibition for the fighting, baiting or injuring of any animal, with the intent to be present at the exhibition, fighting, baiting or injuring.

B. It is the legislative intent that the provisions of this section shall not apply to the training or use of hunting dogs for sport or to the training or use of dogs for law enforcement purposes.

C. 1. Except for any offense involving a cock, an offense under subsections (A)(1)—(3) is a Class E felony.

2. An offense involving a cock under subsections (A)(1)—(3) is a Class A misdemeanor.

D. 1. An offense under subsection (A)(4) is a Class B misdemeanor if the person is a spectator at a dog fight.

2. Any other violation of subsection (A)(4) is a Class C misdemeanor.

E. It is not an offense to own, possess or keep cocks, or aid or abet the ownership, possession or keeping of cocks, for the sole purpose of selling or transporting cocks to a location in which possession or keeping of cocks is legal.
(Ord. No. 5417, § 1, 10-18-2011)

Sec. 8-32-3. Penalty.

A. Animal cruelty and animal fighting are dangerous public nuisances and all monies, profits and fruits of such illegal activity shall be subject to forfeiture action.

B. In addition to penalties named in subsections 8-32-1(D) and (E), a lien for all costs and expenses of enforcement of this ordinance, including veterinary treatment and care, feeding and housing of animals surrendered or forfeited under this ordinance is declared on property where violation(s) of this section occurred. Such liens shall be enforced by attachment proceedings in any court of competent jurisdiction.
(Ord. No. 5417, § 1, 10-18-2011)

Title 9

HEALTH AND SAFETY*

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***State law reference—**Health, safety and environmental protection, T.C.A. § 68-1-101 et seq.

CHAPTER 9-4. HEALTH DEPARTMENT*

Sections:

Sec. 9-4-1. Establishment and control.
Sec. 9-4-2. General duties of health department.
Sec. 9-4-3. Appointment and qualifications of health officer.
Sec. 9-4-4. Bureaus, divisions and other administrative units of health department.
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Sec. 9-4-6. Health officer to establish rules and regulations for conduct of health department and prescribe duties of department employees.
Sec. 9-4-7. Health officer may delegate authority and responsibilities.
Sec. 9-4-8. Right of entry of health department personnel.

Sec. 9-4-1. Establishment and control.

A. There is established a department of health which shall be known as the Memphis and Shelby County health department and which shall be under the general supervision and control of the health officer.

B. The health officer shall have administrative control over all books, records, policies, programs, budgets, employees and property of the health department.
(Code 1967, § 32-1; Code 1985, § 16-1)

Charter references—Health department generally, §§ 61, 62; consolidation and joint operation of city and county governmental functions, §§ 847—850.

Sec. 9-4-2. General duties of health department.

It shall be the duty of the department of health to carry out the laws of the state and ordinances of the city in relation to public health and sanitation, together with its own regulations governing these subjects.
(Code 1967, § 32-2; Code 1985, § 16-2)

Sec. 9-4-3. Appointment and qualifications of health officer.

The health officer shall be appointed jointly by the city mayor and the county mayor. The health officer shall be licensed by the state licensing board for the healing arts to practice in the state and shall be trained and experienced in public health administration.
(Code 1967, § 32-3; Code 1985, § 16-3)

***State law reference—**Local health services, T.C.A. § 68-2-601 et seq.

Sec. 9-4-4. Bureaus, divisions and other administrative units of health department.

The health officer shall have the authority to establish such bureaus, divisions, services, or other administrative units as deemed necessary for the efficient operation of the health department. The health officer shall appoint the administrative head of each of the administrative units so established, and it shall be his or her duty to prescribe the work to be performed by each such unit.
(Code 1967, § 32-4; Code 1985, § 16-4)

Sec. 9-4-5. Appointment, removal and salaries of health department personnel.

It shall be the duty of the health officer to appoint, from time to time, subject to the merit system of the health department, such physicians, engineers, bacteriologists, chemists, veterinarians, dentists, nurses, environmentalists, technicians, machine operators, statisticians, skilled workmen, stenographers, clerks and other employees as may be necessary to efficiently operate the health department and to safeguard and preserve the health of the people of the city. Such personnel shall be subject to removal by the health officer for cause, as provided by the rules and regulations of the merit system of the health department. The salaries of personnel of the health department shall be fixed by the health officer and shall be in accordance with the rules and regulations of the merit system.
(Code 1967, § 32-5; Code 1985, § 16-5)

Sec. 9-4-6. Health officer to establish rules and regulations for conduct of health department and prescribe duties of department employees.

The health officer shall have power and authority, and it shall be his or her duty, to establish and enforce all necessary rules and regulations for the government of the health department and prescribe the duties of all employees of the health department.
(Code 1967, § 32-6; Code 1985, § 16-6)

Sec. 9-4-7. Health officer may delegate authority and responsibilities.

The health officer is empowered to delegate the authority and responsibilities assigned to him or her by this code to such duly authorized employees and representatives of the health department as he or she may see fit and appropriate.
(Code 1967, § 32-7; Code 1985, § 16-7)

Sec. 9-4-8. Right of entry of health department personnel.

For the purpose of carrying out the requirements of this title and other laws and ordinances relating to public health and sanitation; and the regulations of the health department, the health officer and his or her authorized representatives, including engineers, assistants, environmentalists and other employees, shall be permitted at all reasonable times to enter into any manufacturing plants, business buildings or other buildings, and all lots, grounds and premises, in order to thoroughly examine any items in relation to public health and sanitation and other conditions thereon and therein.
(Code 1967, § 32-36; Code 1985, § 16-31; Ord. No. 1227, § 1, 4-4-1972)

CHAPTER 9-8. HEALTH AND SAFETY REGULATIONS GENERALLY

Sections:

Sec. 9-8-1. Adoption of state regulations relative to communicable diseases.
Sec. 9-8-2. General powers and duties of health officer relative to communicable diseases.
Sec. 9-8-3. Free vaccination and treatment in certain cases.
Sec. 9-8-4. Special powers in health emergencies.
Sec. 9-8-5. Report of births and stillbirths.
Sec. 9-8-6. Physicians' reports of deaths.
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Sec. 9-8-24. Obedience to regulations and orders of health department.

Sec. 9-8-1. Adoption of state regulations relative to communicable diseases.

The Regulations Governing Communicable Diseases in Tennessee, pages four through 20, and any changes and amendments thereto, published by the Tennessee Department of Public Health, in accordance with the provisions of chapter 111 of the Public Acts of 1941, are adopted and approved and made a part of this title as fully as if set out herein.
(Code 1967, § 32-8; Code 1985, § 16-8)

Sec. 9-8-2. General powers and duties of health officer relative to communicable diseases.

The health officer or his or her representative shall make such investigations as in his or her judgment may be necessary to determine the presence or absence of any of the diseases named in the state regulations adopted by section 9-8-1, and if any such be found he or she shall adopt such measures as are authorized by law for the prevention of the spread of such disease and for the relief of the patient. The health officer, or his or her representative, shall secure material for cultures or specimens for bacteriological or other laboratory examination to assist in determining the diagnosis whenever, in his or her judgment, such procedure is necessary, and any person, when requested by him or her or his or her representative, shall permit such specimens to be taken.
(Code 1967, § 32-9; Code 1985, § 16-9)

Sec. 9-8-3. Free vaccination and treatment in certain cases.

Whenever any person is, by the provisions of state law or the regulations adopted by section 9-8-1 required to be vaccinated or treated with any virus or preparation to protect against or treat a communicable disease and is

unable to pay for such virus or preparation, the department of health shall furnish it free, and shall provide for the vaccination or treatment of such person.
(Code 1967, § 32-10; Code 1985, § 16-10)

Sec. 9-8-4. Special powers in health emergencies.

Whenever any emergency occurs, or any rare or unusual disease appears, or when any disease becomes unduly prevalent, the health officer, subject to the approval of the mayor, shall have the power to employ any measures necessary for the protection of the public health; and the mayor shall have the power, by proclamation, to establish quarantine and to promulgate such rules and regulations as may be necessary to combat such emergencies, including rules and regulations for persons residing in, entering or leaving the city, and the regulation of property, and he or she shall have power to make such expenditures as may be necessary for such purpose. The health officer and his or her deputies, assistants and officers shall have the right to enter private premises and it shall be their duty to enforce the rules and regulations promulgated by the mayor and established by the health officer under the provisions of this section. Any person who violates any such regulation, or who fails to carry out any lawful order of the health officer in such emergencies, shall be guilty of a misdemeanor.
(Code 1967, § 32-11; Code 1985, § 16-11)

Sec. 9-8-5. Report of births and stillbirths.

Any person, including physicians and midwives, who delivers or assists in delivering any woman, shall report all births and stillbirths, as required by the provisions of the state Vital Statistics Act, T.C.A. §§ 68-3-101—68-3-313, as amended.
(Code 1967, § 32-14; Code 1985, § 16-12)

Sec. 9-8-6. Physicians' reports of deaths.

It shall be the duty of every practicing physician in the city to report, in writing, to the department of health, the death of any of his or her patients who shall have died in the city, within 72 hours thereafter, and to state in such report the specific name and type of the disease, or other cause of death; provided, however, that so long as the department of health of the city, or any member thereof, shall act as registrar of vital statistics under the general laws of the state, separate reports to the department of health shall not be required.
(Code 1967, § 32-15; Code 1985, § 16-13)

Sec. 9-8-7. Birth and death certificates.

The vital statistics division of the department of health shall have authority to issue transcripts and photostatic copies of births and deaths, or certified copies of births and deaths occurring prior to 1914, and charge therefor a sum to be fixed by the health officer not to exceed $4.00 each to be paid upon delivery of same.
(Code 1967, § 32-16; Code 1985, § 16-14; Ord. No. 215, § 1, 7-16-1968)

State law reference—Vital Records Act of 1977, T.C.A. § 68-3-101 et seq.

Sec. 9-8-8. Burials in unauthorized places.

It is unlawful for any person to bury or cause to be buried a dead body of any human being on any lot or plot of ground in the city other than those officially registered and licensed for this purpose and in which there is sufficient space or ground for the location of the grave so that it can be dug in solid earth without digging on or into another grave.
(Code 1967, § 32-18; Code 1985, § 16-16)

Sec. 9-8-9. Retaining or exposing dead bodies.

No person shall retain, expose, or allow to be retained or exposed the dead body of any human being, to the peril or prejudice of the life or health of any person.
(Code 1967, § 32-19; Code 1985, § 16-17)

Sec. 9-8-10. Disinterment of dead bodies.

The disinterment of dead bodies from any of the cemeteries or burial places in or near the city, or storing dead bodies within the same, except for freezing or embalming, without special permission from the registrar of vital records, and on such terms as he or she may prescribe, is forbidden.
(Code 1967, § 32-20; Code 1985, § 16-18)

State law reference—Disinterments of dead bodies, T.C.A. § 68-3-508.

Sec. 9-8-11. Cleanliness and ventilation of places of public assemblage.

No person, being the lessee, manager, conductor or owner, of any theatre, church, motion picture house, hall or other place of public assemblage, shall cause, permit, or allow the same, or any part or appurtenance thereof, to be so far overcrowded or inadequate, faulty or insufficient in respect to cleanliness, ventilation, excreta dis-

posal, water supply, or in any other particular as to cause any avoidable peril to any person properly at or in any such place.
(Code 1967, § 32-21; Code 1985, § 16-19)

Sec. 9-8-12. Use of common utensils and towels in public or semipublic places.

The use of common drinking or eating utensils, towels, or any other article for common use in public or semipublic places or establishments which might cause the spread of any communicable disease is forbidden in the city. The term "common," as used in this section, means for use of more than one person without proper cleaning or disinfecting by methods approved by the health officer.
(Code 1967, § 32-22; Code 1985, § 16-20)

Sec. 9-8-13. Toilets and lavatories at industrial and business establishments.

Adequate toilets, urinals, lavatories, showers and locker and toilet rooms shall be provided at all industrial establishments, business establishments and other places of employment, as may be deemed necessary for each establishment by the health officer.
(Code 1967, § 32-23; Code 1985, § 16-21)

Sec. 9-8-14. Offensive water or other liquids.

No person shall permit, have or cause any offensive water or other liquid substance on his or her premises or grounds, to the prejudice of health, safety or life, whether for use in any trade, business or otherwise.
(Code 1967, § 32-27; Code 1985, § 16-23)

Sec. 9-8-15. Septic tanks and privies.

A. No septic tank or vault, privy, sink, cistern, well or cesspool shall be constructed or rebuilt in the city except in accordance with the regulations of and pursuant to a permit from the department of health, nor shall any erection or cover be made or put upon or over the same, until the same has been examined by the health officer or an officer detailed by him or her, and found to correspond to such permit and regulations.

B. No privy shall be built within four feet of the line of any lot.

C. All septic tanks and privies for excrement shall be under the supervision of the health department. The department shall see that every septic tank and privy is kept in good working order and in a sanitary condition, and it is unlawful for any person to fail to keep his or her septic tank or privy in such clean and sanitary condition.

D. The department of health shall make periodic inspections, as often as may be deemed necessary, of any septic tank or privy in the city, and where the inspector shall find any unsanitary condition, he or she shall at once condemn the same as a nuisance and notify the occupant or owner of the premises where such septic tank or privy is to clean out, disinfect and fill up the same within five days thereafter, or take such steps as may be necessary to render such septic tank or privy sanitary.

E. Whenever the city's sanitary sewer system shall be extended into any unsewered portion of the city, it shall be the duty of every owner or occupant on whose premises there is a septic tank or privy to have the same cleaned out, disinfected and filled up as soon as possible after sewer connections are available, and it is unlawful for such owner or occupant to fail so to do after notice from the department of health. Connection with the sewer system shall be made as soon as possible.

F. The type and methods of construction of receptacles for excrement and the methods of providing for the reception, collection and disposition of excrement, shall be under the supervision of the department of health. The department may from time to time make such rules and regulations for the building of such receptacles, the collection and disposition of excrement, in such parts of the city as are not supplied with sanitary sewers, as it may deem best suited for the protection of human life and the public health.

G. All excrement collected in any receptacle shall be carried off at the expense of the city and removed to such place as the department of health may designate.

H. No person shall empty or attempt to empty any septic tank or privy in the city, except under the permit therefor first obtained from the department of health. The department of health is required to keep a record of all septic tanks and privies emptied, and when any are emptied they shall be reported to the department of health so that the same may be inspected.

I. No part of the contents of any septic tank or privy or any accumulation of any offensive fluid, liquid or semi-liquid substance material, being in any excavation, cellar or place within the city, shall be removed therefrom, nor shall the same be transported through any of the streets or avenues of the city, unless and except the

same shall be removed and transported by means of airtight apparatus, or in such manner as shall prevent entirely the escape of any noxious or offensive odors therefrom, and by a permit from the department of health.

J. No person shall draw off, or allow to run off, into any ground place of the city, the contents of any septic tank or privy, nor shall any owner, tenant or occupant of any building to which any septic tank or privy shall appertain or be attached, permit the contents, or any part thereof, to flow therefrom, or to rise within two feet of the top, or permit such contents to become offensive; nor shall any septic tank or privy be filled with or covered with dirt until its filthy contents shall be emptied.
(Code 1967, § 32-28; Code 1985, § 16-24)

State law reference—Subsurface sewage disposal systems, T.C.A. § 68-221-401 et seq.

Sec. 9-8-16. Disposal of industrial waste generally.

A. No person shall permit the discharge into any drainage system or sewerage system within the city of any industrial waste, liquid waste or other by-product that is toxic, or obnoxious or may in due time become toxic or obnoxious or create a condition which, upon examination, is found to be a menace to health, unless such waste is treated in a manner to render it in a safe condition as may be accepted by the health officer or his or her authorized representatives. The effluent and by-products from the treatment plant shall not exceed the maximum allowable concentration as may be established by the health officer.

B. Before any work is commenced on any new construction or alteration of any existing industrial establishment involving the lease or discharge of materials known to be toxic or adversely affecting health, plans and specifications as to chemical processes, nature of liquid waste or by-products and proposed control measures, accompanied by such pertinent data as may be required, shall be submitted to the health department for its approval. No part of the work shall be undertaken until the health department has endorsed upon the plans and specifications its written approval thereof.
(Code 1967, § 32-29; Code 1985, § 16-25)

Sec. 9-8-17. Refuse from gashouses.

No person, being a manufacturer or distributor of gas, shall throw or deposit, or allow to run, or shall permit to be thrown or deposited, into any public waters, or into any sewer, or into any street, or public place, any gas tar, or any refuse matter of or from any gashouse, works or manufactory, or make gas of any such ingredients or quality that any substance shall escape therefrom, or be formed in the process of burning any gas, which shall be offensive or dangerous, or prejudicial to life or health, nor shall any such person or company fail to use all reasonable means for preventing the escape of odors.
(Code 1967, § 32-30; Code 1985, § 16-26)

Sec. 9-8-18. Fluoridation of public water supply.

A. The light, gas and water division of the city, through its board of commissioners, is authorized and directed to take all necessary proper steps to fluoridate the water supply of the city. This process shall include the addition of 0.7 to 1.0 p.p.m. of fluorine to the water distributed by the city light, gas and water division, in accordance with the approved and recommended procedures of the state department of public health, in order that the citizens of Memphis and the citizens of areas outside the corporate limits of the city served by the water division of the city light, gas and water division, may obtain the benefits to be derived from same.

B. The board of commissioners of the city light, gas and water division is authorized and directed to proceed with the purchase and installation of the proper equipment and materials for the fluoridation of the city public water supply and to provide that the necessary funds be made available for this purpose on a continuing basis.
(Code 1967, § 32-37; Code 1985, § 16-32; Ord. No. 354, §§ 1, 2, 1-14-1969)

State law reference—Notice of commencing or ceasing fluoridation, T.C.A. § 68-221-708.

Sec. 9-8-19. Plumbing—Maintenance requirements.

A. In buildings and structures used for human occupancy, water lines, plumbing fixtures, vents and drains shall be properly installed, connected and maintained in working order and shall be kept free of obstructions, leaks, and defects and shall be capable of performing the function for which they are designed. All repairs and installations shall be made in accordance with the provisions of the building code or plumbing code of the city and county.

B. In buildings and structures used for human occupancy, every plumbing stack, waste and sewer line shall be so installed and maintained as to function properly and shall be kept free from obstructions, leaks, outcrop-

pings and defects to prevent health hazards. All repairs and installations shall be made in accordance with the provisions of the building code or plumbing code of the city and council.
(Code 1985, § 16-33; Ord. No. 3436, § 1(6), 2-19-1985)

Sec. 9-8-20. Filling of unmarked holes, abandoned cisterns and wells.

It shall be the duty of the owner or responsible tenant to fill or make secure any unmarked holes, or abandoned cisterns and wells which may exist on property, for the safety and security of persons or animals who may come upon the property as an innocent passerby, city personnel authorized to cut and clean, or for individuals who have a purpose for entering the premises.
(Code 1985, § 16-473; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-8-21. Nuisances.

A. Prohibited. No person shall cause, keep or permit any material, substance or condition which is, or is likely to become, a public nuisance, by the emission of odors, fumes, dusts, vapors, or gases that are offensive, providing a harborage for mosquitoes or rodents, or which may imperil or affect the comfort, health or life of other persons. Any such person creating or maintaining such a nuisance within the city limits or within one mile thereof shall be guilty of a misdemeanor.

B. Abatement. It shall be the duty of the health department, through the health officer, engineers, assistants, environmentalists or other employees, to serve notice in writing upon the owner, occupant or agent of any lot, building or premises in or upon which any nuisance or violation of this title, or regulations or orders of the health department may be found, or upon the person maintaining any nuisance, or aiding therein, requiring him or her to abate or correct the same in such manner as the health department shall prescribe, within a reasonable time. It shall not be necessary in any case for the health officer to specify in his or her notice the manner in which a nuisance shall be abated, unless he or she shall deem it advisable so to do. Such notice may be given or served by engineers, assistants, environmentalists or other employees of the health department, as well as by the health officer. If the person to whom such notice is lawfully directed shall fail, neglect or refuse to comply with the requirements of such order, within the time specified, he or she shall be guilty of a misdemeanor, and each day's violation shall constitute a separate offense. Upon the failure of such person to comply with such requirements, it shall be the duty of the department of health, whenever public necessity requires it, to proceed at once, upon the expiration of the time specified in such notice, to cause such nuisance to be abated.

C. Whenever the owner, occupant or agent of any premises or person maintaining or aiding in the maintenance of a nuisance is unknown or cannot be found, the department of health shall proceed to abate the nuisance without notice.

D. In the event any nuisance is abated by the department of health, it shall keep an itemized account thereof and shall certify a bill thereof to the city attorney, whose duty it shall be to collect the same according to law.
(Code 1967, §§ 32-31, 32-32; Code 1985, § 16-27; Ord. No. 837, § 2, 1-12-1971; Ord. No. 1227, § 1, 4-4-1972)

Charter references—Authority to define and prohibit nuisances, § 410; condemnation and abatement of nuisances, § 411.

State law reference—Nuisances, T.C.A. § 29-3-111.

Sec. 9-8-22. Notice on buildings placarded by health department.

When any building or structure within the city becomes dangerous to public health and is placarded by the department of health, it shall be the duty of the department to place notices on some conspicuous place thereon of the dangerous character of the building or structure, and it shall be a misdemeanor for any person to tear down or deface such notice, unless by permission of the health officer.
(Code 1967, § 32-33; Code 1985, § 16-28)

Sec. 9-8-23. Assistance of police in enforcing health laws.

Whenever necessary to carry out the provisions of the health and sanitary laws, the health officer shall have the power to call upon the director of police services for a detail of officers, and the director of police shall furnish such officers, and the officers so detailed shall act under the direction of the health officer for the time being, for the purpose of carrying out the provisions of any health or sanitary law or regulation, and for the time being, such police officer shall be clothed with all the power to enter buildings and abate nuisances therein conferred upon the department of health.
(Code 1967, § 32-34; Code 1985, § 16-29)

Sec. 9-8-24. Obedience to regulations and orders of health department.

Every person shall observe and obey every special regulation and every order of the department of health, the health officer and engineers, assistants, environmentalists or other employees of the health department that is or may be made for the purpose of carrying into effect the provisions of the public health and sanitary laws and ordinances.
(Code 1967, § 32-35; Code 1985, § 16-30; Ord. No. 1227, § 11, 4-4-1972)

CHAPTER 9-12. AIR POLLUTION CONTROL*

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Article 1. General Provisions

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*__State law reference—__Tennessee Air Quality Act, T.C.A. § 68-201-101 et seq.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9-12-1. Definitions.

For the purpose of enforcement of the definitions, chapter 1200-3-2, of the Tennessee Air Pollution regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made become a part of this code and shall have the same effect as if set out in full herein.

Additionally, the following definitions are adopted into this code:

Health officer is the health officer for Memphis and Shelby County.

Odor is the sensation of smell perceived as a result of olfactory stimulation. An odor is deemed objectionable,

and therefore a nuisance, when one-third or more of a sample of persons exposed to it believe it to be objectionable in usual places of occupancy. The sample size is to be at least 25 persons, or when fewer than 25 are exposed, one-half must believe it to be objectionable.
(Code 1967, § 3-1(A); Code 1985, § 16-46; Ord. No. 3230, § 1(1), 8-3-1982; Ord. No. 4320, § 1, 5-2-1995; Ord. No. 4636, § 5, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-2. Words and phrases substituted in state regulations adopted by reference.

For the purpose of enforcement of this chapter, the following shall apply:

A. Wherever the terms "Air Pollution Control Board of the State of Tennessee," "Tennessee Air Pollution Control Board," or "Board" appear, they shall be replaced by "Memphis and Shelby County Air Pollution Control Board," with the following exceptions:

Section This Code	*State Regulations Section Adopted*
9-12-23	1200-3-7.06
9-12-24	1200-3-6-.01
9-12-27	1200-3-14-.01(1)(a)
9-12-28	1200-3-11-.01(1)

B. Wherever the terms "Tennessee," "State of Tennessee," or "State" appear, they shall be replaced by "City of Memphis," with the following exceptions:

Section This Code	*State Regulations Section Adopted*
9-12-27	1200-3-14-.01(1)(a)

When referring to the Tennessee Code Annotated, and when referring to the Tennessee Air Quality Act.

C. Wherever the terms "technical secretary of the Tennessee Air Pollution Control Board," "technical secretary," or "secretary" appear, they shall be replaced by "health officer" except in section 9-12-7(E)(2)(a) and (b) for the purposes of T.C.A. § 68-201-116(b)(1).

D. Wherever the terms "Department of Environment and Conservation of the State of Tennessee," "Tennessee Department of Environment and Conservation," or "Department" appear, they shall be replaced by "Memphis and Shelby County Health Department."

E. Wherever the terms "Tennessee Air Pollution Control," "Division of Air Pollution Control," or "Division" appear, they shall be replaced by "Memphis and Shelby County Health Department, Air Pollution Control Section."

F. Wherever the terms "Tennessee Air Pollution Control Regulations" or "Regulations" appear, they shall be replaced by "City of Memphis Air Pollution Control Code."

G. Wherever the term "Nashville Office" appears, it shall be replaced by "Memphis Office."

H. Wherever the term "State Civil Defense" appears, it shall be replaced by "Memphis and Shelby County Emergency Management Agency."

I. Wherever the terms "Chapter 1200-3-26," "Rule 1200-3-02," or other citations involving "1200-3-26" appear, they shall be replaced by "sections 9-12-34 through 9-12-43."

(Code 1967, § 3-1.11; Code 1985, § 16-48; Ord. No. 2921, § 1(5), 10-9-1979; Ord. No. 4320, § 3, 5-2-1995; Ord. No. 4636, § 1, 12-15-1998; Ord. No. 4981, § 1, 12-17-2002; Ord. No. 5041, § 1(1), 2004)

Sec. 9-12-3. Ambient air quality standards.

For the purpose of enforcement of the ambient air quality standards, chapter 1200-3-3 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-6; Code 1985, § 16-49; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(1), 10-9-1979; Ord. No. 4320, § 4, 5-2-1995; Ord. No. 4636, § 6, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 1, 12-17-2002)

Sec. 9-12-4. Open burning.

A. No person shall cause, suffer, allow or permit open burning of refuse, garbage, trade waste, trees, limbs, brush, or materials from salvage operations. The open burning of tires and other rubber products, vinyl shingles and siding, other plastics, asphalt shingles and other

asphalt roofing materials, and/or asbestos containing materials is expressly prohibited, and such materials shall not be lawful in any open burning conducted under the provisions of this section.

B. Open burning as listed below may be conducted without permit subject to fire department approval and provided further that no public nuisance is or will be created by the open burning:

1. Fires used for the cooking of food or for ceremonial, recreational or comfort-heating purposes including barbecues and outdoor fireplaces. This exception does not include commercial food preparation facilities and their operation;

2. Fires set for the training and instruction of firefighters or for research in fire protection or prevention. However, routine demolition of structures via supervised open burning by responsible fire control persons will not be considered fire training. Additionally, the person responsible for such burning, unless conducted at a recognized fire-training academy, must certify compliance with the following requirements by written statement. The certification must be delivered to the pollution control section of the Memphis-Shelby County health department (department) at least ten working days prior to commencing the burn:

    a. The open burning is being conducted solely for fire training purposes,

    b. All vinyl siding, carpet, vinyl flooring, asphalt roofing materials, and any other materials expressly prohibited in subsection A of this section have been removed,

    c. All regulated asbestos containing materials have been removed in accordance with section 9-12-18, Reference 1200-3-11-.02(2)(d)3.(x),

    d. A traffic hazard will not be caused by the air contaminants generated by the fire training,

    e. A public nuisance will not be created by the open burning;

3. Smokeless flares or safety flares for the combustion of waste gases provided other applicable subsections of this section are met;

4. Fire used for carrying out recognized agricultural procedures necessary for the production or harvesting of crops or for the control of diseases or pests, in accordance with practices acceptable to the department;

5. Fires for the burning of bodies of dead animals, including poultry, where no other safe and/or practical disposal method exists;

6. Other open burning as may be approved by the health officer and with approval by the fire department, where there is no other practical, safe, and lawful method of disposal.

C. Exceptions to subsection A of this section may be permitted for vegetation if all of the following conditions are met when an air curtain destructor is used:

1. A request is filed with the health officer giving the reason why no method except open burning can be employed to dispose of the material involved, the amount and kind of material to be burned, the exact location where the burning will take place, and the dates when the open burning will be done. All changes in types of, or increase in quantities of, materials burned must be preceded by notification. The notification must be delivered to the department at least ten working days prior to commencing the change in the burn;

2. The person applying for the permit certifies, by written statement, compliance with following distance requirements, at a minimum:

    a. The open burning site must be at least 500 feet from any federal and from any state highway,

    b. The open burning site must be at least 1,000 feet from any school, national or state park, national reservation, national or state forest, wildlife area, and/or residence not on the same property as the air curtain destructor, and

    c. The open burning site must be at least one-half mile from any airport, nursing home or hospital;

3. The plume from the air curtain destructor must meet the visible emission standards specified in section 9-12-20, Reference 1200-3-5-.01(1); however, for certain materials the department may

allow one start-up period in excess of the standard, per day, not to exceed 20 minutes in 24 hours;

4. All material to be burned must be dry and in other respects be in a state to sustain good combustion. Open burning must be conducted when ambient conditions are such that good dispersion of combustion products will result. Priming materials used to facilitate such burning shall be limited to No. 1 or No. 2 grade fuel oils;

5. No fire shall be ignited while any air pollution emergency episode is in effect in the area of the burn. No fire shall be ignited during any exceedance of the National Ambient Air Quality Standard for ozone, oxides of nitrogen, carbon monoxide, or particulate matter. Permittee is required to contact the department's computerized local air index reporting system (CLAIR) recorded line at (901) 544-7489 or 544-7490 before igniting a fire to determine if it is a burning day or a no-burning day;

6. Approval is received from the health officer in writing;

7. Permission is secured from the fire department in the jurisdiction involved;

8. The burning will be done between the hours of 9:00 a.m. and 4:00 p.m. or as authorized by the health officer.

This approval will not relieve the person responsible for such burning from the consequences of any damages, injuries, or claims resulting from such burning.

D. Definitions.

Air curtain destructor is a portable or stationary combustion device that directs a plane of high velocity forced draft air through a manifold head into a burn chamber with vertical walls in such a manner as to maintain a curtain of air over the surface of the burn chamber and a recirculating motion of air under the curtain. The use of an air curtain destructor is considered controlled open burning.

Air pollution emergency episode is defined as air pollution alerts, warnings, or emergencies declared by the health officer during adverse air dispersion conditions that may result in harm to public health or welfare.

Natural disaster is defined as any event commonly referred to as an "act of God" and includes but is not limited to the following weather related or naturally occurring categories of events: tornadoes, hail and wind storms, snow or ice storms, flooding, and earthquakes.

Open burning is the burning of any matter under such conditions that products of combustion are emitted directly into the open atmosphere without passing directly through a stack.

Person is any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, political subdivision, an agency, authority, commission, or department of the United States government, or of the State of Tennessee government; or any other legal entity, or its legal representative, agent, or assigns.

E. Burning after natural disasters.

1. Open burning of materials resulting from a natural disaster, and when conducted in conformity with the following conditions, may be permitted:

   a. Fires disposing of structural and household materials and vegetation are allowed only when those structures or materials are destroyed or severely damaged by natural disaster. Input from emergency management personnel may be requested in determining qualification with this criteria. The provisions of this section pertaining to structural and household materials may be waived if the persons seeking to open burn under this provision make a reasonable effort to remove all expressly prohibited material from the structural remains before ignition. The department reserves the right to inspect the proposed materials to be burned before ignition. The alternative use of chippers and grinders, landfilling, or on-site burial of waste in lieu of burning, if lawful, is encouraged.

   b. If a governmental collective burn site for disposing of structural and household materials and vegetation damaged by a natural disaster is planned, the person responsible for such burning must notify the department of the proposed location. The

notification must be delivered to the department at least three days prior to commencing the burn. The department may request that alternate sites be identified to minimize impact to air quality. The alternative use of chippers and grinders in lieu of burning is encouraged.

c. A traffic hazard will not be caused by the air contaminants generated by the fire.

d. No fire shall be ignited while any air pollution emergency episode is in effect in the area of the burn. No fire shall be ignited during any exceedance of the National Ambient Air Quality Standard for ozone, oxides of nitrogen, carbon monoxide, or particulate matter. Contact the department's computerized local air index reporting system (CLAIR) recorded line at (901) 544-7489 or 544-7490 before igniting a fire to determine if it is a burning day or a no-burning day.

e. Open burning conducted under this exception is only allowed where no other safe and/or practical means of disposal is available.

2. The health officer reserves the right to require a person to cease or limit open burning if emissions from the fires are deemed by the health officer or his or her designee to jeopardize public health or welfare, create a public nuisance or safety hazard, create a potential safety hazard, or interfere with the attainment or maintenance of the air quality standards.

3. Any exception to the open burning prohibition granted by this section does not relieve any person of the responsibility to obtain a permit required by any other agency, or of complying with other applicable requirements, ordinances, or restrictions. (Particular attention is directed to T.C.A. § 39-14-306, which prohibits open air fires between October 15 and May 15 within 500 feet of any forest, grasslands or woodlands without first securing a permit from the state forester in unincorporated portions of the county.)

(Code 1967, § 3-16; Code 1985, § 16-50; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 4981, § 2, 12-17-2002; Ord. No. 5582, 4-21-2015)

Sec. 9-12-5. Good engineering practice stack height regulations.

For purposes of enforcement of the "Good Engineering Practice Stack Height Regulations," chapter 1200-3-24 of the Tennessee Air Pollution Control Regulations, as effective December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein. (Code 1985, § 16-52; Ord. No. 3784, § 1, 8-2-1988; Ord. No. 4320, § 5, 5-2-1995; Ord. No. 4636, § 7, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

ARTICLE 2. ENFORCEMENT

Sec. 9-12-6. Notice—Citation—Injunctive relief.

A. *Notice—Citation.* Whenever evidence has been obtained or received establishing that a violation of this chapter has been committed, the health officer shall issue a notice to correct the violation or a citation to cease the violation. Such notice or citation shall briefly set forth the general nature of the violation and specify a reasonable time within which the violation shall be rectified or stopped. If the violation is not corrected within the time so specified, or the violation stopped, or reasonable steps taken to rectify the violation, the health officer shall have the power and authority to issue an order requiring the violator to cease or suspend operation of the facility causing the violation until the violation has been corrected, or initiate proceedings to prosecute the violator for violation of this chapter.

B. *Injunctive relief.* In the event any person fails to comply with a cease-or-suspend-operation order that is not subject to a stay pending administrative or judicial review, the health officer shall institute proceedings in a court of competent jurisdiction for injunctive relief to enforce the regulations or orders pursuant hereto.
(Code 1967, § 3-2; Code 1985, § 16-56; Ord. No. 1265, § 1, 4-25-1972)

Sec. 9-12-7. Penalties for noncompliance.

A. Failure to comply with any of the provisions of the city air pollution control code shall constitute a violation thereof and shall subject the person or persons responsible therefor to any and all of the penalties provided by law.

B. The Memphis-Shelby County health department in conjunction with the local air pollution control board shall have authority, at their option, to institute and litigate proceedings for violations as set out therein. Any person who knowingly:

1. Violates or fails to comply with any provision of the city air pollution control code, any board or administrative order or any permit condition;

2. Makes any false material statement, representation, or certification in any record, report, plan or other document required by permit to be either filed or maintained;

3. Falsifies, tampers with, renders inaccurate or fails to install any monitoring device or method required to be maintained or followed; or

4. Fails to pay a fee; commits a Class C misdemeanor pursuant to the Tennessee Code Annotated with the fine not to exceed $10,000.00 per day per violation. For the purpose of this section, each day of continued violation constitutes a separate offense and is punishable as such.

No warrant, presentment or indictment arising under subsection B of this section shall be issued except upon application, authorized in writing, by the health officer on behalf of the local air pollution control program operating under a certificate of exemption pursuant to T.C.A. § 68-201-115, for a violation within its jurisdiction.

C. Willful and knowing violation of any provision of the city air pollution control code is declared to be a misdemeanor, and each day of violation shall constitute a separate offense. Conviction of a misdemeanor is punishable with the fine not to exceed $10,000.00 per day per violation or with imprisonment not greater than 30 days, or both.

D. In addition and supplemental to any criminal action which may be prosecuted under this section, the health officer has and is vested with jurisdiction and authority to determine whether or not any provision of the city air pollution control code, any permit condition, or any order has been violated, and whether or not such violation constitutes a public nuisance. Upon such finding that a public nuisance exists, the health officer has authority to abate any such public nuisance in the manner provided by the general law relating to the abatement of public nuisances.

E. Orders and assessments of damages and civil penalties and appeals.

1. When the health officer discovers that any provision of the city air pollution control code has been violated, the health officer may issue an order for correction to the responsible person, and this order shall be complied with within the time limit specified in the order. Such order shall be served by personal service or sent by certified mail, return receipt requested. The recipient of such an order may appeal in the same manner as with an assessment of damages or civil penalty under subdivision 2 of this subsection.

2. a. In addition to the criminal penalties in this section, any person who violates or fails to comply with any provision of the city air pollution control code or any standard adopted pursuant thereto in a permit, shall be subject to a civil penalty of up to $25,000.00 per day for each day of violation. Any person against whom an assessment in excess of $10,000.00 for each violation has been issued by a local pollution control program pursuant to this section may petition the technical secretary for de novo review of the assessment under the provisions of T.C.A. § 68-201-116. The technical secretary shall render an initial determination, and that initial determination may be appealed to the Tennessee Air Pollution Control Board pursuant to this section. Each day such violation continues constitutes a separate punishable offense, and such person shall also be liable for any damages to the municipality resulting therefrom.

   b. Any civil penalty or damages shall be assessed in the following manner:

      i. The health officer on behalf of the Memphis-Shelby County health department operating under a certificate of exemption pursuant to T.C.A. § 68-201-115 may issue an assessment against any person responsible for the violation or damages. Such person shall receive notice of such assessment by certified mail, return receipt requested;

ii. Any person against whom an assessment has been issued may appeal the assessment by filing a petition for review with the health officer, or with the technical secretary of an assessment in excess of $10,000.00 for each violation, within 30 days after receipt of the assessment, setting forth the grounds and reasons for such person's objections and requesting a hearing on the matter; and

iii. If a petition for review of the assessment is not filed within 30 days after the date the assessment is served, the violator shall be deemed to have consented to the assessment and it shall become final.

c. In assessing such civil penalty, the factors specified in T.C.A. § 68-201-106 and 42 USC 7413 and 7420 may be considered. Damages to the state or to the city may include any expenses incurred in investigating the enforcing of this section; in removing, correcting, or terminating the effects of air pollution; and also compensation for any expense, loss or destruction of plant or animal life or any other actual damages or clean-up expenses caused by the pollution or by the violation. The plea of financial inability to prevent, abate or control pollution by the polluter or violator shall not be a valid defense to liability for violations of the provisions of the city air pollution control code.

d. The issuance of an order or assessment of civil penalty by the Memphis-Shelby County health department operating under a certificate of exemption as provided for in this section is intended to provide additional and cumulative remedies to prevent, abate and control air pollution in Tennessee. Nothing herein shall be construed to preempt, supersede, abridge or otherwise alter any rights, action or remedies of the technical secretary, Tennessee Air Pollution Control Board or commissioner of the state Department of Environment and Conservation.

e. i. Whenever any order or assessment under this section has become final, a notarized copy of the order or assessment may be filed in the office of the clerk of the chancery court of the county if the final order or assessment is from the Memphis-Shelby County health department.

ii. When filed in accordance with subdivision (2)(e)(i) of this subsection, a final order or assessment shall be considered as a judgment by consent of the parties on the same terms and conditions as those recited therein. Such judgment shall be promptly entered by the court. Except as otherwise provided in this section, the procedure for entry of the judgment and the effect thereof shall be the same as provided in T.C.A. title 26, ch. 6.

iii. Within 45 days after entry of a judgment under subdivision (2)(e)(ii) of this subsection, any citizen of the city shall have the right to intervene on the ground that the penalties or remedies provided are inadequate or are based on erroneous findings of facts. Upon receipt of a timely motion to intervene, the court shall determine whether it is duplicitous or frivolous, and shall notify the movant and the parties of its determination. If the motion is determined not to be duplicitous or frivolous, all parties shall be considered to have sought review of the final order or assessment, and the court shall proceed in accordance with T.C.A. § 4-5-322. If no timely motion to intervene is filed, or if any such motion is determined to be duplicitous or frivolous, the judgment shall become final 45 days after the date of entry.

iv. A final judgment under this subsection has the same effect, is subject to the same procedures, and may be

enforced or satisfied in the same manner, as any other judgment of a court of record of this state.

(Code 1967, § 3-3; Code 1985, § 16-57; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 3230, § 1(2), 8-3-1982; Ord. No. 4981, § 3, 12-17-2002)

Sec. 9-12-8. Variances.

A. Any person who owns or is in control of any plant, building, structure, establishment, process or equipment including a group of persons who own or control like processes or like equipment may apply to the air pollution control hearing board, hereinafter referred to as "the board", for a variance from rules or regulations governing the quality, nature, duration or extent of discharge of air contaminants. The application for a variance shall include information and data sufficient for the board to make the findings required below. The hearing held hereunder shall be conducted in accordance with the rules of evidence as set forth in section 9-12-12(F) of the city air pollution control code. The board may grant such variance, but only after public hearing on due notice and subject to the certificate of exemption issued pursuant to T.C.A. § 68-201-115 if it finds that:

1. The emissions proposed to occur as a result of a variance would not endanger or tend to endanger human health, safety, or welfare, and would not cause or tend to cause property damage; and

2. Compliance with the rules or regulations from which variance is sought would produce serious hardship without equal or greater benefits to the public or a variance is needed only until a rule adopted by the Tennessee Air Pollution Control Board becomes state effective. If economic hardship is claimed, a description of expected monetary losses shall be included.

B. No variance shall be granted or denied pursuant to this section until the board has considered the relative interests of the applicant, other owners of property likely to be affected by the discharges, and others who may be affected by granting or denying a request for variance.

C. Any variance or renewal thereof shall be granted within the requirements of subsection A of this section for time periods and under conditions consistent with the reasons therefor, and with the following limitations:

1. If the variance is granted on the grounds that there is no practicable means known or available for the adequate prevention, abatement, or control of the air pollution involved, the variance shall be permitted only until the necessary means for prevention, abatement, or control become known and available, and the variance shall be subject to the taking of any substitute or alternate measures that the board may prescribe.

2. If the variance is granted on the ground that compliance with the particular requirement or requirements from which variance is sought will necessitate the taking of measures which, because of their extent or cost, must be spread over a considerable period of time, it shall be for a period not to exceed such reasonable time as, in view of the board, is requisite for the taking of necessary measures. A variance granted on the ground specified herein shall contain a timetable for the taking of action in an expeditious manner and shall be conditioned on adherence to such timetable and submittal of proof that such timetable is being met.

3. Any variance or renewal granted shall be for a time period not to exceed one year.

D. Any variance granted pursuant to this section may be renewed by the air pollution control hearing board on terms and conditions and for periods which would be appropriate on initial granting of the variance following the same procedures required for issuance of the initial variance. If complaint is made to the board on account of the variance, no renewal thereof shall be granted, unless, following public hearing on the complaint, the board finds that renewal is justified. No renewal shall be granted except on application therefor. Any such application shall be made at least 60 days prior to the expiration of the variance. Immediately upon a receipt of an application for renewal, the board shall give public notice of such application in accordance with rules and regulations of the board.

E. A variance of renewal shall not be a right of the applicant or holder thereof, but shall be in the discretion of the board. However, any applicant adversely affected by the denial or the terms and conditions of the granting of an application for a variance or renewal of a variance by the board may obtain judicial review thereof only in a court of competent jurisdiction.

F. Nothing in this section and no variance or renewal granted pursuant hereto shall be construed to prevent or limit the application of the emergency provisions and procedures of sections 9-12-9 and 9-12-10 (Reference 1200-3-15) to any person or his or her property.
(Code 1967, § 3-10; Code 1985, § 16-58; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 4981, § 4, 12-17-2002)

Sec. 9-12-9. Emergency powers of health officer.

A. Any other provision of the law notwithstanding, if the health officer finds that a generalized condition of air pollution exists and that it creates an emergency requiring immediate action to protect human health or safety, the health officer shall order persons causing or contributing to the air pollution to reduce or discontinue immediately the emission of air contaminants. Upon issuance of any such order, the health officer shall fix a place and time, not later than 24 hours thereafter, for a hearing to be held before the air pollution control hearing board. Such hearing shall be held in conformity with the provisions of section 9-12-12, insofar as applicable. No more than 24 hours after the commencement of such hearing and without adjournment thereof, the air pollution control hearing board shall affirm, modify or set aside the order of the health officer.

B. In the absence of a generalized condition of air pollution of the type referred to in subsection A of this section, if the health officer finds that emissions from the operation of one or more air contaminant sources is causing imminent danger to human health or safety, he or she may order the person responsible for the operation in question to reduce or discontinue operations immediately, without regard to the provisions of this chapter. In such event, the requirements for hearing and affirmance, modification or setting aside of orders set forth in subsection A of this section shall apply.
(Code 1967, § 3-4; Code 1985, § 16-59; Ord. No. 1265, § 1, 4-25-1972)

Sec. 9-12-10. Emergency episode plan.

For the purpose of enforcement of an emergency episode plan, chapter 1200-3-15 of the Tennessee Air Pollution Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-60; Ord. No. 4981, § 13, 12-17-2002)

Sec. 9-12-11. Right of entry.

For the purpose of carrying out the requirements of the city air pollution control code, the health officer and his or her authorized representatives, including engineers, assistants, environmentalists and other employees, shall be permitted at all reasonable times to enter into any manufacturing plants, business buildings or other buildings, and all lots, grounds and premises, in order to thoroughly examine any items in relation to public health and air pollution thereon and therein.
(Code 1985, § 16-61; Ord. No. 4981, § 5, 12-17-2002)

ARTICLE 3. AIR POLLUTION CONTROL BOARD

Sec. 9-12-12. Created—Membership—Terms of office—Jurisdiction—Hearing—Appeals.

A. There is created the Memphis and Shelby County air pollution control board, hereinafter referred to as "the board" to be composed of nine members to be appointed as described in subsections (A)(1) and (2) of this section. No member of the board shall hold any elective office or receive any governmental salary except as a member of the faculty or staff of a school in the state education system. Otherwise, all members shall serve without compensation. Any member of the board who has any conflict of interest or potential conflict of interest shall make adequate disclosure of it and abstain from matters related to it.

1. Eight members of the board are to be appointed jointly by the mayor of the city and the mayor of Shelby County and confirmed by both the city council and the Shelby County board of commissioners. These eight members shall consist of the following: one professional engineer knowledgeable in the field of air pollution control, one physician licensed to practice in Tennessee, one attorney licensed to practice law in the state, one member of academia, a representative of industry at large, and such other citizen members as may be appointed, except that industry may have no more than two representatives.

2. One member of the board is to be appointed by the executive committee of the Memphis Area Association of Governments. This member is to be representative of the municipalities of Arlington, Bartlett, Collierville, Germantown, Lakeland, and Millington and is to be a citizen of one of these communities.

B. The terms of the members shall be four years except that of the initially appointed members, of which three shall serve for four years, two shall serve for three years, two shall serve for two years and two shall serve for one year as designated at the time of appointment. Whenever a vacancy occurs, the vacancy shall be filled for the unexpired term in the same manner as the original appointment. Should the term of any board member expire without a replacement member being appointed, the existing member shall continue to hold the board membership until such appointment or reappointment occurs.

C. The board shall select annually a chairperson from among its members. The board shall hold at least four regular meetings each year and such additional meetings as the chairperson deems necessary. All hearings conducted by the board shall be open to the public. The health officer shall act as secretary to the board and shall keep records of its hearings and other official actions. All hearings shall be held before not less than a majority of the board.

D. The board is vested with the following jurisdiction and authority:

1. Grant, deny or revoke variance applications;

2. Grant, deny or revoke confidentiality protected status after a contested hearing pursuant to section 9-12-14, Reference 1200-3-9.02(11)(d)1.(iii) or issue confidentiality protection orders to prevent public dissemination of secret formulae, processes or methods used in any manufacturing operation carried on by any person (or under such person's direction) required to furnish the department information required by the department in the discharge of its duties. Any person who petitions the department or the Memphis and Shelby County air pollution control board for a confidentiality protection order shall include in the petition information sufficient for the board to make the finding that the information for which the confidentiality protected status is sought is eligible for such status under section 9-12-14, Reference 1200-3-9 and subsection (D)(2) of this section. The composition and quantity of air contaminants emitted from the source; the applicable requirements for the source and its compliance status with each applicable requirement; and the business name, address, and location of the source shall not be considered confidential. For the purpose of ensuring compliance, if a confidentiality protection order is granted, the protected information may be disseminated to the Tennessee Department of Environment and Conservation and/or to the Environmental Protection Agency, upon written request of an authorized representative of such agency;

3. To decide appeals from any decisions, rulings, or determinations of the health officer or his or her designated representative under this chapter;

4. To hear appeals arising from the failure of the health officer or his or her designated representative to act within a reasonable period on complaints under this chapter.

E. Any person taking exception to and who is uniquely affected by any decision, ruling, requirement, rule, regulation, or order of the health officer or by his or her failure to act within a reasonable amount of time may take an appeal to the board as established by this section. Such appeals shall be made within 15 days after receiving notice of such decision, ruling, requirement, rule, regulation, or order or failure to act by filing a written notice of appeal directly to the board specifying the ground thereof and the relief requested. Such an appeal shall act as a stay of the decision, ruling, requirement, rule, regulation or order in question until the board has taken final action on the appeal, except when the health officer has acted under section 9-12-9, emergency order or except when an appeal has been filed pursuant to section 9-12-14, Reference 1200-3-9-.05(8). The board, not more than 30 days after the date of filing an appeal, shall set a date for the hearing not more than 60 days after the date of filing of the appeal and shall give notice thereof by mail to the interested parties.

F. Hearings before the board shall be conducted in the following manner:

1. Notice of any and all hearings shall be given at least 15 days prior to the scheduled date of the hearing by public advertisement in a newspaper

of general circulation in Shelby County, Tennessee, giving the date, time, place and purpose of the hearing.

2. The chairperson of the board shall act as the hearing examiner to conduct such hearing.

3. Any person seeking a variance or any party who has filed a written notice of appeal pursuant to this section or section 9-12-14 [Reference 1200-3-9-.05], may appear in person or by agent or attorney and present evidence, both written or oral, relevant to the questions and issues involved and may examine and cross examine witnesses.

4. All testimony shall be under oath and recorded. The board is authorized to have all testimony transcribed and a transcript of such testimony, if transcribed, shall be made available to the respondent or any party to the hearing upon payment of the normal fee, which shall not exceed the cost of transcribing such testimony.

5. After due consideration of the written and oral statements, the testimony and arguments submitted at the hearing upon such complaint, or, upon default in appearance of the respondent on the return date specified in the formal notice of complaint, the board shall issue and enter such final order or make such final determination as it shall deem appropriate not later than 60 days after the hearing date, and shall immediately notify the respondent thereof, in writing, by certified mail. Such order or determination shall be approved by at least a majority of members to which the board is entitled.

6. Upon failure of the board to enter a final order or determination within 60 days after the final argument of such hearing, the respondent shall be entitled to treat for all purposes such failure to act as a finding favorable to the respondent.

7. The burden of proof shall be on the health officer or his or her duly authorized representative where appeal has been sought pursuant to this section or section 9-12-14. The burden of proof is on the applicant where a variance has been sought pursuant to section 9-12-8, in accordance with T.C.A. § 68-201-118(k).

8. Any person aggrieved by any final order or determination of the board hereunder, including the health officer, shall have judicial review thereof by common law writ of certiorari. No judicial review shall be available until and after all administrative remedies have been exhausted.

(Code 1967, § 13-35; Code 1985, § 16-71; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 3230, § 1(5), 8-3-1982; Ord. No. 4320, § 6, 5-2-1995; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 6, 12-17-2002; Ord. No. 5041, § 1(2—5), 2004)

ARTICLE 4. SOURCE EMISSION STANDARDS

Sec. 9-12-13. New source performance standards.

For the purpose of enforcement of the new source performance standards, chapter 1200-3-16 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.

(Code 1985, § 16-76; Ord. No. 4320, § 7, 5-2-1995; Ord. No. 4636, § 8, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-14. Construction and operating permits.

For the purpose of enforcement of the construction and operating permits chapter 1200-3-9 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.

(Code 1967, § 3-5; Code 1985, § 16-77; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2671, § 1, 1-17-1978; Ord. No. 4320, § 8, 5-2-1995; Ord. No. 4636, § 9, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002; Ord. No. 5041, § 1(6—8), 2004)

Sec. 9-12-15. Process emission standards.

For the purpose of enforcement of the process emission standards, chapter 1200-3-7 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such deletions, changes

and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-20; Code 1985, § 16-78; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(8), 10-9-1979; Ord. No. 4320, § 9, 5-2-1995; Ord. No. 4636, § 10, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-16. Nonprocess emission standards.

For the purpose of enforcement of the nonprocess emission standards, chapter 1200-3-6 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-21; Code 1985, § 16-79; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(9), 10-9-1979; Ord. No. 4320, § 10, 5-2-1995; Ord. No. 4636, § 11, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-17. Volatile organic compounds.

For the purpose of enforcement of the volatile organic compounds, chapter 1200-3-18 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-22; Code 1985, § 16-79; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(10), 10-9-1979; Ord. No. 4320, § 11, 5-2-1995; Ord. No. 4636, § 12, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-18. Hazardous air contaminants.

For the purpose of enforcement of the hazardous air contaminants, chapter 1200-3-11 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-25; Code 1985, § 16-81; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(11), 10-9-1979; Ord. No. 4320, § 12, 5-2-1995; Ord. No. 4636, § 13, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-19. Sulfur oxide emissions.

For the purpose of enforcement of the sulfur oxide emissions, chapter 1200-3-14 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-24; Code 1985, § 16-82; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 1988, § 1, 3-19-1974; Ord. No. 2761, § 1, 1-17-1978; Ord. No. 4320, § 13, 5-2-1995; Ord. No. 4636, § 14, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-20. Visible emissions.

For the purpose of enforcement of the visible emissions, chapter 1200-3-5 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-17; Code 1985, § 16-83; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(7), 10-9-1979; Ord. No. 4320, § 14, 5-2-1995; Ord. No. 4636, § 15, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-21. Particulate matter from incinerators.

A. No person shall cause, suffer, allow or permit the emissions from any incinerator having a charging rate of 2,000 pounds per hour or less, fly ash or other particulate matter in quantities exceeding two-tenth grains per cubic foot of flue gas at standard conditions corrected to 12 percent carbon dioxide by volume excluding the contribution of auxiliary fuel.

B. No person shall cause, suffer, allow or permit the emissions from any incinerator having a charging rate greater than 2,000 pounds per hour, fly ash or other particulate matter in quantities exceeding one-tenth grains per standard cubic foot of flue gas at standard conditions corrected to 12 percent carbon dioxide by volume excluding the contribution of auxiliary fuel.

C. No person shall cause, suffer, allow or permit the emission of particles of unburned waste or ash from any incinerator which are individually large enough to be visible while suspended in the atmosphere.

D. No person shall construct, install, use or cause to be used any incinerator which will result in odors being detectable by sense of smell in any area of human use or occupancy.

E. No person shall install or construct an incinerator to be used for disposal of combustible waste from dwelling units if such incinerator is to be used to burn such wastes produced by fewer than 25 dwelling units.

F. No person shall use or cause to be used any incinerator unless all components connected or attached to, or serving the incinerator, including control apparatus, are functioning properly and are in use. Incinerators shall be operated so as to comply with recognized good practices.

G. Incinerators having two and five-tenths cubic feet furnace volume or less used solely for the disposal of infective dressings and other similar material shall not be required to meet these emission standards.

H. No person shall cause, suffer, allow or permit to be discharged into the atmosphere from any incinerator, visible emissions with an opacity in excess of 20 percent. (Code 1967, § 3-23; Code 1985, § 16-84; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 3230, § 1(4), 8-3-1982)

Sec. 9-12-21.5. Emission standards for existing hospital/medical/infectious waste incinerators (HMIWI).

A. *Definitions.* As used in this section:

Batch HMIWI means an HMIWI that is designed such that neither waste charging nor ash removal can occur during combustion.

Biologicals means preparations made from living organisms and their products, including vaccines, cultures, and similar substances, intended for use in diagnosing, immunizing, or treating humans or animals or in research pertaining thereto.

Blood products means any product derived from human blood, including, but not limited to, blood plasma, platelets, red or white blood corpuscles, and other derived licensed products such as interferon and similar substances.

Body fluids means liquid emanating or derived from humans and limited to blood; dialysate; amniotic, cerebrospinal, synovial, pleural, peritoneal, and pericardial fluids; and semen and vaginal secretions.

Bypass stack means a device used for discharging combustion gases to avoid severe damage to the air pollution control device or other equipment.

Chemotherapeutic waste means waste material resulting from the production or use of antineoplastic agents used for the purpose of stopping or reversing the growth of malignant cells.

Co-fired combustor means a unit combusting hospital waste and/or medical/infectious waste with other fuels or wastes (for example coal, municipal solid waste) and, subject to an enforceable requirement limiting the unit to combusting a fuel feed stream, ten percent or less of the weight of which is comprised, in aggregate, of hospital waste and of medical/infectious waste as measured on a calendar quarter basis. For purposes of this definition, pathological waste, chemotherapeutic waste, and low-level radioactive waste are considered "other" wastes when calculating the percentage of hospital waste and medical/infectious waste combusted.

Continuous emission monitoring system or *CEMS* means a monitoring system for continuously measuring and recording the emissions of a pollutant.

Continuous HMIWI means an HMIWI that is designed to allow waste charging and ash removal during combustion.

Dioxins/furans means the combined emissions of tetra-through octa-chlorinated dibenzo-paradioxins and dibenzofurans, as measured by EPA Reference Method 23.

Dry scrubber means an add-on air pollution control system that injects dry alkaline sorbent (dry injection) or

sprays an alkaline sorbent (spray dryer) to react with and neutralize acid gases in the HMIWI exhaust stream forming a dry power material.

Fabric filter or *baghouse* means an add-on air pollution control system that removes particulate matter (PM) and nonvaporous metals emissions by passing flue gas through filter bags.

Facilities manager means the individual in charge of purchasing, maintaining, and operating the HMIWI or the owner's or operator's representative responsible for the management of the HMIWI. Alternative titles may include director of facilities or vice president of support services.

High-air phase means the stage of the batch operating cycle when the primary chamber reaches and maintains maximum operating temperatures.

Hospital means any facility that has an organized medical staff, maintains at least six inpatient beds, and where the primary function of the institution is to provide diagnostic and therapeutic patient services and continuous nursing care primarily to human inpatients who are not related and who stay on average in excess of 24 hours per admission. This definition does not include facilities maintained for the sole purpose of providing nursing or convalescent care to human patients who generally are not acutely ill but who require continuing medical supervision.

Hospital/medical/infectious waste incinerator or *HMIWI* or *HMIWI unit* means any device that combusts any amount of hospital waste and/or medical/infectious waste.

Hospital/medical/infectious waste incinerator operator or *HMIWI operator* means any person who operates, controls or supervises the day-to-day operation of an HMIWI.

Hospital waste means discards generated at a hospital, except unused items returned to the manufacturer. The definition of hospital waste does not include human corpses, remains, and anatomical parts that are intended for interment or cremation.

Infectious agent means any organism (such as a virus or bacteria) that is capable of being communicated by invasion and multiplication in body tissues and capable of causing disease or adverse health impacts in humans.

Intermittent HMIWI means an HMIWI that is designed to allow waste charging, but not ash removal, during combustion.

Large HMIWI means:

1. Except as provided in paragraph 2 of this definition:
    a. An HMIWI whose maximum design waste burning capacity is more than 500 pounds per hour; or
    b. A continuous or intermittent HMIWI whose maximum charge rate is more than 500 pounds per hour; or
    c. A batch HMIWI whose maximum charge rate is more than 4,000 pounds per day.
2. The following are not large HMIWI:
    a. A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 500 pounds per hour; or
    b. A batch HMIWI whose maximum charge rate is less than or equal to 4,000 pounds per day.

Low-level radioactive waste means waste material that contains radioactive nuclides emitting primarily beta or gamma radiation, or both, in concentrations or quantities that exceed applicable federal or state standards for unrestricted release. Low-level radioactive waste is not high-level radioactive waste, spent nuclear fuel, or by-product material as defined by the Atomic Energy Act of 1954 (42 U.S.A.C. § 2014(e)(2)).

Malfunction means any sudden, infrequent and not reasonably preventable failure of air pollution control equipment, process equipment, or a process to operate in a normal or usual manner. Failures that are caused, in part, by poor maintenance or careless operation are not malfunctions. During periods of malfunction the operator must operate within established parameters as much as possible, and monitoring of all applicable operating parameters must continue until all waste has been combusted or until thermal function ceases, whichever comes first.

Maximum charge rate means:

1. For continuous and intermittent HMIWI, 110 percent of the lowest three-hour average charge

rate measured during the most recent performance test demonstrating compliance with all applicable emission limits.

2. For batch HMIWI, 110 percent of the lowest daily charge rate measured during the most recent performance test demonstrating compliance with all applicable emission limits.

Maximum design waste burning capacity means:

1. For intermittent and continuous HMIWI:

$$C = P_v \times 15{,}000/8{,}500$$

Where:

C	=	HMIWI capacity, lb/hr
P_v	=	primary chamber volume, ft^3
15,000	=	primary chamber heat release rate factor, Btu/ft^3fhr
8,500	=	standard waste heating value, Btu/lb.

2. For batch HMIWI:

$$C = P_V \times 164.5/8$$

Where:

C	=	HMIWI capacity, lb/hr
P_v	=	primary chamber volume, ft^3
164.5	=	waste density, lb/ft^3
8	=	typical hours of operation of a batch HMIWI, hours

Maximum fabric filter inlet temperature means 110 percent of the lowest three-hour average temperature at the inlet to the fabric filter (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the dioxin/furan emission limit.

Maximum flue gas temperature means 110 percent of the lowest three-hour average temperature at the outlet from the wet scrubber (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the mercury (Hg) emission limit.

Medical/infectious waste means any waste generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in the production or testing of biologicals that is listed in paragraphs 1 through 7 of this definition. The definition of medical/infectious waste does not include hazardous waste identified or listed under the regulations in Title 40 CFR Part 261; household waste, as defined in 40 CFR 261.4(b)(1); ash from incineration of medical/infectious waste, once the incineration process has been completed; human corpses, remains and anatomical parts that are intended for interment or cremation; and domestic sewage materials identified in 40 CFR 261.4(a)(1).

1. Cultures and stocks of infectious agents and associated biologicals, including: cultures from medical and pathological laboratories; cultures and stocks of infectious agents from research and industrial laboratories, wastes from the production of biologicals; discarded live and attenuated vaccines; and culture dishes and devices used to transfer, inoculate, and mix cultures.

2. Human pathological waste, including tissues, organs, and body parts and body fluids that are removed during surgery or autopsy, or other medical procedures, and specimens of body fluids and their containers.

3. Human blood and blood products including:

   a. Liquid waste human blood;

   b. Products of blood;

   c. Items saturated and/or dripping with human blood; or

   d. Items that were saturated and/or dripping with human blood that are now caked with dried human blood; including serum, plasma, and other blood components, and their containers, which were used or intended for use in either patient care, testing and laboratory analysis or the development of pharmaceuticals. Intravenous bags are also included in this category.

4. Sharps that have been used in animal or human patient care or treatment or in medical, research, or industrial laboratories, including treatment or in medical, research, or industrial laboratories, including hypodermic needles, syringes (with or without the attached needle), Pasteur pipettes, scalpel blades, blood vials, needles with at-

tached tubing, and culture dishes (regardless of presence of infectious agents). Also included are other types of broken or unbroken glassware that were in contact with infectious agents, such as used slides and cover slips.

5. Animal waste including contaminated animal carcasses, body parts, and bedding of animals that were known to have been exposed to infectious agents during research (including research in veterinary hospitals, production of biologicals or testing of pharmaceuticals).

6. Isolation wastes including biological waste and discarded materials contaminated with blood, excretions, exudates or secretions from humans who are isolated to protect others from certain highly communicable diseases, or isolated animals known to be infected with highly communicable diseases.

7. Unused sharps including the following unused, discarded sharps: hypodermic needles, suture needles, syringes, and scalpel blades.

Medium HMIWI means:

1. Except as provided in paragraph 2 of this definition:

   a. An HMIWI whose maximum design waste burning capacity is more than 200 pounds per hour but less than or equal to 500 pounds per hour; or

   b. A continuous or intermittent HMIWI whose maximum charge rate is more than 200 pounds per hour but less than or equal to 500 pounds per hours; or

   c. A batch HMIWI whose maximum charge rate is more than 1,600 pounds per day but less than or equal to 4,000 pounds per day.

2. The following are not medium HMIWI:

   a. A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 200 pounds per hour or more than 500 pounds per hour; or

   b. A batch HMIWI whose maximum charge rate is more than 4,000 pounds per day or less than or equal to 1,600 pounds per day.

Minimum dioxin/furan sorbent flow rate means 90 percent of the highest three-hour average dioxin/furan sorbent flow rate (taken, at a minimum, once every hour) measured during the most recent performance test demonstrating compliance with the dioxin/furan emission limit.

Minimum Hg sorbent flow rate means 90 percent of the highest three-hour average Hg sorbent flow rate (taken, at a minimum, once every hour) measured during the most recent performance test demonstrating compliance with the Hg emission limit.

Minimum horsepower or amperage means 90 percent of the highest three-hour average horsepower or amperage to the wet scrubber (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the applicable emission limits.

Minimum hydrogen chloride (HCl) sorbent flow rate means 90 percent of the highest three-hour average HCl sorbent flow rate (taken, at a minimum, once every hour) measured during the most recent performance test demonstrating compliance with the HCl emission limit.

Minimum pressure drop across the wet scrubber means 90 percent of the highest three-hour average pressure drop across the wet scrubber PM control device (taken at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the PM emission limit.

Minimum scrubber liquor flow rate means 90 percent of the highest three-hour average liquor flow rate at the inlet to the wet scrubber (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with all applicable emission limits.

Minimum scrubber liquor pH means 90 percent of the highest three-hour average liquor pH at the inlet to the wet scrubber (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the HCl emission limit.

Minimum secondary chamber temperature means 90 percent of the highest three-hour average secondary chamber temperature (taken, at a minimum, once every minute) measured during the most recent performance test demonstrating compliance with the PM, CO, or dioxin/furan emission limits.

Modification or *modified HMIWI* means any change to an HMIWI unit after March 16, 1998, such that:

1. The cumulative costs of the modifications, over the life of the unit, exceed 50 percent of the original cost of the construction and installation of the unit (not including the cost of any land purchased in connection with such construction or installation updated to current costs; or
2. The change involves a physical change in or change in the method of operation of the unit which increases the amount of any air pollutant emitted by the unit for which standards have been established under section 129 or section 111 of the Clean Air Act.

Operating day means a 24-hour period between 12:00 midnight and the following 12:00 midnight during which any amount of hospital waste or medical/infectious waste is combusted at any time in the HMIWI.

Operation means the period during which waste is combusted in the incinerator excluding periods of startup or shutdown.

Particulate matter or *PM* means the total particulate matter emitted from an HMIWI as measured by EPA Reference Method 5 or EPA Reference Method 29.

Pathological waste means waste material consisting of only human or animal remains, anatomical parts, and/or tissue, the bags/containers used to collect and transport the waste material, and animal bedding (if applicable).

Primary chamber means the chamber, in an HMIWI that receives waste material, in which the waste is ignited, and from which ash is removed.

Pyrolysis means the endothermic gasification of hospital waste and/or medical/infectious waste using external energy.

Secondary chamber means a component of the HMIWI that receives combustion gases from the primary chamber and in which the combustion process is completed.

Shutdown means the period of time after all waste has been combusted in the primary chamber. For continuous HMIWI, shutdown must commence no less than two hours after the last charge to the incinerator. For intermittent HMIWI, shutdown must commence no less than four hours after the last charge to the incinerator. For batch HMIWI, shutdown must commence in less than five hours after the high-air phase of combustion has been completed.

Small HMIWI means:

1. Except as provided in paragraph 2 of this definition:
   a. An HMIWI whose maximum design waste burning capacity is less than or equal to 200 pounds per hour;
   b. A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 200 pounds per hour; or
   c. A batch HMIWI whose maximum charge rate is less than or equal to 1,600 pounds per day.
2. The following are not small HMIWI:
   a. A continuous or intermittent HMIWI whose maximum charge rate is more than 200 pounds per hour;
   b. A batch HMIWI whose maximum charge rate is more than 1,600 pounds per day.

Small rural HMIWI means a small HMIWI that is located more than 50 miles from the boundary of the nearest standard metropolitan statistical area and which burns less than 2,000 pounds per week of hospital waste and medical/infectious waste.

Standard conditions means a temperature of 20 degrees Celsius and a pressure of 101.3 kilopascals.

Standard metropolitan statistical area or *SMSA* means any area listed in OMB Bulletin No. 93-17 entitled "Revised Statistical Definitions for Metropolitan Areas" dated June 30, 1993. This information can also be obtained from the nearest metropolitan planning organization.

Startup means the period of time between the activation for the system and the first charge to the unit. For batch HMIWI, "startup" means the period of time between activation of the system and ignition of the waste.

Wet scrubber means an add-on air pollution control device that utilizes an alkaline scrubbing liquor to collect particulate matter (including nonvaporous metals and condensed organics) and/or to absorb and neutralize acid gases.

B. *Applicability.*

1. These emission standards for existing hospital/medical/infectious waste incinerators (HMIWI) apply to each individual HMIWI for which construction was commenced on or before June 20, 1996, except as provided below.

2. A combustor is not subject to this section during periods when only pathological waste, low-level radioactive waste, and/or chemotherapeutic waste (as those terms are defined in 40 CFR 60.51c) is burned, provided the owner or operator of the combustor:

   a. Notifies the health officer of an exemption claim; and

   b. Keeps records on a calendar quarter basis of the periods of time when only pathological waste, low-level radioactive waste, and/or chemotherapeutic waste is burned.

3. Any co-fired combustor (as defined in subsection A of this section) is not subject to this section if the owner or operator:

   a. Notifies the health officer of an exemption claim;

   b. Provides an estimate of the relative weight of hospital waste, medical/infectious waste, and other fuels and/or wastes to be combusted; and

   c. Keeps records on a calendar quarter basis of the weight of hospital waste and medical/infectious waste combusted, and the weight of all other fuels and wastes combusted at the co-fired combustor.

4. Any combustor required to have a permit under section 3005 of the Solid Waste Disposal Act is not subject to this section.

5. Any combustor that meets the applicability requirements under Title 40 CFR Part 60, Subparts Cb, Ea, or Eb for certain municipal waste combustors is not subject to this section.

6. Any pyrolysis unit (defined in subsection A of this section) is not subject to this section.

7. Cement kilns firing hospital waste and/or medical/infectious waste are not subject to this section.

8. Physical or operational changes made to an existing HMIWI unit solely for the purpose of complying with this section are not considered a modification and do not result in an existing HMIWI unit becoming subject to the provisions of Title 40 CFR part 60, subpart Ec or this section.

9. Each individual HMIWI subject to this section shall operate pursuant to a Title V operating permit issued pursuant to section 3-5.

C. *Emission standards.*

1. On and after the date on which the initial performance test is completed or is required to be completed under subsection (G) of this section, whichever date comes first, no owner or operator of an individual HMIWI shall cause to be discharged into the atmosphere from the stack of that individual HMIWI any gases that contain stack emissions in excess of the emission limits in Table 1 below.

Table 1
Emission Limits for Small, Medium and Large HMIWI

Pollutant	*Units (7 Percent Oxygen Dry Basis)*	*HMIWI Size Emission Limits:*		
		Small	*Medium*	*Large*
Particulate matter	Milligrams per dry standard cubic meter (grains per dry standard cubic foot)	115 (0.05)	69 (0.03)	34 (0.15)
Carbon monoxide	Parts per million by volume	40	40	40

Pollutant	*Units (7 Percent Oxygen Dry Basis)*	*HMIWI Size Emission Limits:*		
		Small	*Medium*	*Large*
Dioxins/furans	Nanograms per dry standard cubic meter total dioxins/ furans (grains per billion dry standard cubic feet) or nanograms per dry standard cubic meter TEO (grains per billion dry standard cubic feet)	125 (55) or 2.3(1.0)	125 (55) or 2.3 (1.0)	125 (55) or 2.3 (1.0)
Hydrogen chloride	Parts per million by volume or percent reduction	100 or 93%	100 or 93%	100 or 93%
Sulfur dioxide	Parts per million by volume	55	55	55
Nitrogen oxides	Parts per million by volume	250	250	250
Lead	Milligrams per dry standard cubic meter (grains per thousand dry standard cubic feet) or percent reduction	1.2 (0.52) or 70%	1.2 (0.52) or 70%	1.2 (0.52) or 70%
Cadmium	Milligrams per dry standard cubic meter (grains per thousand dry standard cubic foot) or percent reduction	0.16 (0.07) or 65%	0.16 (0.07) or 65%	0.16 (0.07) or 65%
Mercury	Milligrams per dry standard cubic meter (grains per dry standard cubic foot) or percent reduction	0.55 (0.24) or 85%	0.55 (0.24) or 85%	0.55 (0.24) or 85%

D. *Opacity limits.*

1. On and after the date on which the initial performance test is completed or is required to be completed under subsection (G) of this section, whichever date comes first, no owner or operator of an individual HMIWI shall cause to be discharged into the atmosphere from the stack of that individual HMIWI any gases that exhibit greater than ten percent opacity (six-minute block average).

2. On and after the date on which the initial performance test is completed or is required to be completed under subsection (G) of this section, whichever date comes first, no owner or operator of an individual HMIWI utilizing a large HMIWI shall cause to be discharged into the atmosphere visible emissions of combustion ash from an ash conveying system (including conveyor transfer points) in excess of five percent of the observation period (i.e., nine minutes per three-hour period) as determined by EPA Reference Method 22, except as provided in subsection (D)(3) of this section.

3. The emission limit specified in subsection (D)(2) of this section does not cover visible emission discharged inside buildings or enclosures of ash conveying systems; however, the emission limit does cover visible emissions discharged to the atmosphere from, buildings or enclosures of ash conveying systems. This provision does not apply during maintenance and repair of ash conveying systems. Maintenance and/or repair shall not exceed ten operating days per calendar quarter unless the owner or operator obtains written approval from the health officer establishing a date whereby all necessary maintenance and repairs of ash conveying systems shall be completed.

E. *Operator training and qualification requirements.*

1. No owner or operator of an affected facility shall allow the individual HMIWI to operate at any time unless a fully trained and qualified HMIWI operator is accessible, either at the facility or available within one hour. The trained

and qualified HMIWI operator may operate the HMIWI directly or be the direct supervisor of one or more HMIWI operators.

2. Operator training and qualification shall be obtained through a state-approved program or by completing the requirements included in subsections (E)(3) through (11) of this section.

3. Training shall be obtained by completing an HMIWI operator training course that includes, at a minimum, the following provisions:

   a. 24 hours of training on the following subjects:

      i. Environmental concerns, including pathogen destruction and types of emissions;

      ii. Basic combustion principles, including products of combustion;

      iii. Operation of the type of incinerator to be used by the operator, including proper startup, waste charging, and shutdown procedures;

      iv. Combustion controls and monitoring;

      v. Operation of air pollution control equipment and factors affecting performance (if applicable);

      vi. Methods to monitor pollutants (continuous emission monitoring systems and monitoring of HMIWI and air pollution control device operating parameters) and equipment calibration procedures (where applicable);

      vii. Inspection and maintenance of the HMIWI, air pollution control devices, and continuous emission monitoring systems;

      viii. Actions to correct malfunctions, upsets, or conditions that may lead to malfunctions or upsets;

      ix. Bottom and fly ash characteristics and handling procedures;

      x. Applicable federal, state and local regulations;

      xi. Work safety procedures;

      xii. Pre-startup inspections; and

      xiii. Recordkeeping requirements.

   b. An examination designed and administered by the instructor.

   c. Reference material distributed to the attendees covering the course topics.

4. Qualification shall be obtained by:

   a. Completion of a training course that satisfies the criteria under subsection (E)(3) of this section; and

   b. Either six months experience as an HMIWI operator, six months experience as a direct supervisor of an HMIWI operator, or completion of at least two burn cycles under the observation of two qualified HMIWI operators.

5. Qualification is valid from the date on which the examination is passed or the completion of the required experience, whichever is later.

6. To maintain qualification, the trained and qualified HMIWI operator shall complete and pass an annual review or refresher course of at least four hours covering, at a minimum, the following:

   a. Update of regulations;

   b. Incinerator operation, including startup and shutdown procedures;

   c. Inspection and maintenance;

   d. Responses to malfunctions and upsets or conditions that may lead to malfunctions and upsets; and

   e. Discussion of operating problems encountered by attendees.

7. A lapsed qualification shall be renewed by one of the following methods:

   a. For a lapse of less than three years, the HMIWI operator shall complete and pass a standard annual refresher course described in subsection (E)(6) of this section.

   b. For a lapse of three years or more, the HMIWI operator shall complete and pass a training course with the minimum criteria described in subsection (E)(3) of this section.

8. The owner or operator of an individual HMIWI shall maintain documentation at the individual HMIWI that addresses the following
    a. Summary of the applicable standards under this section;
    b. Description of basic combustion theory applicable to an HMIWI;
    c. Procedures for receiving, handling, and charging waste;
    d. HMIWI startup, shutdown, and malfunction procedures;
    e. Procedures for maintaining proper combustion air supply levels;
    f. Procedures for operating the HMIWI and associated air pollution control systems within the standards established under this section;
    g. Procedures for responding to periodic malfunctions or upsets or conditions that may lead to malfunctions or upsets;
    h. Procedures for monitoring HMIWI emissions;
    i. Reporting and recordkeeping procedures; and
    j. Procedures for handling ash.
9. The owner or operator of an individual HMIWI shall establish a program for reviewing the information listed in subsection (E)(8) of this section annually with each HMIWI operator.
    a. The initial review of the information listed in subsection (E)(8) of this section shall be conducted within six months after the effective date of this section.
    b. Subsequent reviews shall be conducted annually.
10. The information listed in subsection (E)(8) of this section shall be kept in a readily accessible location for all HMIWI operators. This information, along with records of training, shall be available for inspection by the health officer upon request.
11. Compliance by the individual HMIWI with this subsection (E), operator training and qualification requirements, is required by the date one year after the effective date of this section.

F. *Waste management plan requirements.* The owner or operator of an individual HMIWI shall prepare a waste management plan. The waste management plan shall identify both the feasibility and the approach to separate certain components of solid waste from the health care waste stream in order to reduce the amount of toxic emissions from incinerated waste. A waste management plan may include, but is not limited to, elements such as paper, cardboard, plastics, glass, battery, or metal recycling; or purchasing recycled or recyclable products. A waste management plan may include different goals or approaches for different areas or departments of the facility and need not include new waste management goals for every waste stream. It should identify, where possible, reasonably available additional waste management measures, taking into account the effectiveness of waste management measures already in place, the costs of additional measures, the emission reductions expected to be achieved, and any other environmental or energy impacts they might have. The American Hospital Association publication entitled "An Ounce of Prevention: Waste Reduction Strategies for Health Care Facilities" available for purchase at Post Office Box 92683, Chicago, IL 60675 from that association, shall be considered in the development of the waste management plan.

G. *Compliance and performance testing.*

1. The emission standards and opacity limits under this section apply at all times except during periods of startup, shutdown, upsets that qualify for the affirmative defense of "malfunction" or "emergency" as those terms are defined in this air pollution control code, or "malfunction", provided that no hospital waste or medical/infectious waste is charged to the individual HMIWI during startup, shutdown, upsets that qualify for the affirmative defense of "malfunction" or "emergency" as those terms are defined in this air pollution control code, or malfunction.
2. The owner or operator of an individual HMIWI shall conduct an initial performance test as required under this subsection to determine compliance with the emission standards and opacity limits using the procedures and test methods listed in subsections (g)(2)(a) through (l) of this section. The use of the bypass stack during a performance test shall invalidate the performance test.
    a. All performance tests shall consist of a minimum of three test runs conducted under representative operating conditions.

b. The minimum sample time shall be one hour per test run unless otherwise required.

c. EPA Reference Method I of Title 40 CFR Part 60, Appendix A, shall be used to select the sampling location and number of traverse points.

d. EPA Reference Method 3, 3A, or 3 B of Title 40 CFR Part 60, Appendix A, shall be used for gas composition analysis, including measurement of oxygen concentration. EPA Reference Method 3, 3A, or 3B shall be used simultaneously with each of the other required EPA Reference Methods.

e. The pollutant concentrations shall be adjusted to seven percent oxygen using the following equation:

$$C_{adj} = C_{meas}(20.9-7)(20.9 - \%O_2)$$

Where:

C_{adj} = Pollutant concentration adjusted to 7 percent oxygen;

C_{meas} = Pollutant concentration measured on a dry basis;

(20.9-7) = 20.9 percent oxygen -7 percent oxygen (defined oxygen correction basis);

20.9 = Oxygen concentration in air, percent; and

$\% O_2$ = Oxygen concentration measured on a dry basis, percent.

f. EPA Reference Method 5 or 29 of Title 40 CFR Part 60, Appendix A, shall be used to measure the particulate matter emissions.

g. EPA Reference Method 9 of Title 40 CFR Part 60, Appendix A, shall be used to measure stack opacity.

h. EPA Reference Method 10 or 10B of Title 40 CFR Part 60, Appendix A, shall be used to measure the CO emissions.

i. EPA Reference Method 23 of Title 40 CFR Part 60, Appendix A, shall be used to measure total dioxin/furan emissions. The minimum sample time shall be four hours per test run. If the individual HMIWI has selected the toxic equivalency standards for dioxin/furans in Table 1 in subsection (C) of this section, the following procedures shall be used to determine compliance:

i. Measure the concentration of each dioxin/furan tetra/through octa-congener emitted using EPA Reference Method 23.

ii. For each dioxin/furan congener measured in accordance with subsection (G)(2)(i)(i) of this section, multiply the congener concentration by its corresponding toxic equivalency factor specified in Table 2 below.

Table 2
Toxic Equivalency Factors

Dioxin/Furan Cogener	*Toxic Equivalency Factor*
2,3,7,8-tetrachlorinated dibenzo-o-dioxin	1
1,2,3,7,8-pentachlorinated dibenzo-p-dioxin	0.5
1,2,3,4,7,8-hexachlorinated dibenzo-p-dioxin	0.1
1,2,3,7,8,9-hexachlorinated dibenzo-p-dioxin	0.1
1,3,6,7,8-hexachlorinated dibenzo-p-dioxin	0.1
1,2,3,4,6,7,8-heptachlorinated dibenzo-p-dioxin	0.01
Octachlorinated dibenzo-p-dioxin	0.001
2,3,7,8-tetrachlorinated dibenzofuran	0.1
2,3,4,7,8-pentachlorinated dibenzofuran	0.5
1,2,3,7,8-pentachlorinated dibenzofuran	0.05
1,2,3,4,7,8-hexachlorinated dibenzofuran	0.1
1,2,3,6,7,8-hexachlorinated dibenzofuran	0.1
1,2,3,6,7,9-hexachlorinated dibenzofuran	0.1
2,3,4,6,7,8-heptachlorinated dibenzofuran	0.1

Dioxin/Furan Cogener	*Toxic Equivalency Factor*
1,2,3,4,6,7,8-heptachlorinated dibenzofuran	0.01
1,2,3,4,6,7,9-heptachlorinated dibenzofuran	0.01
Octachlorinated dibenzofuran	0.001

iii. Sum the products calculated in accordance with subsection (G)(2)(i)(ii) of this section to obtain the total concentration of dioxins/furans emitted in terms of toxic equivalency.

j. EPA Reference Method 26 or 26A of Title 40 CFR Part 60, Appendix A, shall be used to measure HCl emissions. If the individual facility has selected the percentage reduction standards for HCl under Table 1 of subsection (C) of this section, the percentage reduction in HCl emissions ($\%R_{HCl}$) is computed using the following formula:

$$(\%R_{HCl}) = \frac{(Ei - Eo)}{Ei} \times 100$$

Where:

$(\%R_{HCl})$ = percentage reduction of HCl emissions reductions achieved;

Ei = HCl emission concentration measured at the control device inlet, corrected to 7 percent oxygen (dry basis); and

Eo = HCl emission concentration measured at the control device outlet, corrected to 7 percent oxygen (dry basis).

k. EPA Reference Method 29 of Title 40 CFR Part 60, Appendix A, shall be used to measure Pb, Cd, and Hg emissions. If the individual HMIWI has selected the percentage reduction standards for metals under Table 1 of subsection (C) of this section, the percentage reduction in emissions ($\%R_{metal}$) is computed using the following formula:

$$(\%R_{metal}) = (Ei - Eo) \times 100 \; Ei$$

Where:

$(\%R_{metal})$ = percentage reduction of metal emission (Pb, Cd, or Hg) achieved;

Ei = metal emission concentration (Pb, Cd, or Hg) measured at the control device inlet, corrected to 7 percent oxygen (dry basis); and

Eo = metal emission concentration (Pb, Cd, or Hg) measured at the control device outlet, corrected to 7 percent oxygen (dry basis).

l. The EPA Reference Method 22 of Title 40 CFR Part 60, Appendix A, shall be used to determine compliance with the fugitive ash emission limit under section 60.52c(c). The minimum observation time shall be a series of three one-hour observations.

3. Following the date on which the initial performance test is completed or is required to be completed under this subsection, whichever date comes first, each owner or operator of an individual HMIWI shall:

a. Determine compliance with the opacity limit by conducting an annual performance test (no more than 12 months following the previous performance test) using the applicable procedures and test methods listed in subsection (G)(2) of this section;

b. Determine compliance with the PM, CO, and HCl emissions limits by conducting an annual performance test (no more than 12 months following the previous performance test) using the applicable procedures and test methods listed in subsection (G)(2) of this section. If all three performance tests over a three-year period demonstrate compliance with the emission limit for a pollutant (PM, CO, or HCl) the owner or operator may forego a

performance test for that pollutant for the subsequent two years. At a minimum, a performance test for PM, CO, and HCl shall be conducted every third year (no more than 36 months following the previous performance test). If a performance test conducted every third year demonstrates compliance with the emission limit for a pollutant (PM, CO, or HCl), the owner or operator may forego a performance test for an additional two years. If any performance test demonstrates noncompliance with the respective emission limit, a performance test for that pollutant shall be conducted annually until all annual performance test over a three-year period demonstrate compliance with the emission limit. The use of the bypass stack during a performance test shall invalidate the performance test.

c. (Reserved.)

d. Facilities using a CEMS to demonstrate compliance with any of the emission limits in Table I of subsection (C) of this section shall:

1. Determine compliance with the appropriate emission limit(s) using a 12-hour rolling average, calculated each hour as the average of the previous 12 operating hours (not including startup, shutdown, or malfunctions).

2. Operate all CEMS in accordance with the applicable procedures under Title 40 CFR Part 60, Appendices B and F.

4. The owner or operator of an individual HMIWI equipped with a dry scrubber followed by a fabric filter, a wet scrubber or a dry scrubber followed by a fabric filter and wet scrubber shall:

a. Establish the appropriate maximum and minimum operating parameters, indicated in Table 3 below for each control system, as site specific operating parameters during the initial performance test to determine compliance with the emission limits; and

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Table 3
Operating Parameters to be Monitored
and Minimum Measurement and Recording Frequencies

Operating Parameters to Be Monitored	*Minimum Frequency*		*Control System*		
	Data Measurement	*Data Recording*	*Dry Scrubber Followed By Fabric Filter*	*Wet Scrubber*	*Dry Scrubber Followed By Fabric Filter and Wet Scrubber*
Maximum Operating Parameters:					
Maximum charge rate	Continuous	1 × hour	X	X	X
Maximum fabric filter inlet temperature	Continuous	1 × minute	X	N/A	X
Maximum flue gas temperature	Continuous	1 × minute	X	X	N/A
Minimum Operating Parameters:					
Minimum secondary chamber temperature	Continuous	1 × minute	X	X	X
Minimum dioxin/furan sorbent flow rate	Hourly	1 × hour	X	N/A	X

Operating Parameters to Be Monitored	*Minimum Frequency*		*Control System*		
	Data Measurement	*Data Recording*	*Dry Scrubber Followed By Fabric Filter*	*Wet Scrubber*	*Dry Scrubber Followed By Fabric Filter and Wet Scrubber*
Minimum HCl sorbent flow rate	Hourly	1 × hour	X	N/A	X
Minimum mercury (Hg) sorbent flow rate	Hourly	1 × hour	X	N/A	X
Minimum pressure drop across the wet scrubber or minimum horsepower or amperage to wet scrubber	Continuous	1 × minute	N/A	X	X
Minimum scrubber liquor flow rate	Continuous	1 × minute	N/A	X	X
Minimum scrubber liquor pH	Continuous	1 x minute	N/A	X	X

b. Following the date on which the initial performance test is completed or is required to be completed under this subsection, whichever date comes first, ensure that the individual HMIWI does not operate above any of the applicable maximum operating parameters or below any of the applicable minimum operating parameters listed in Table 3 immediately above and measured as three-hour rolling averages (calculated each hour as the average of the previous three operating hours) at all times except during periods of startup, shutdown and malfunction. Operating parameter limits do not apply during performance tests. Operation above the established maximum or below the established minimum operating parameter(s) shall constitute a violation of established operating parameter(s).

5. Except as provided in subsection (G)(8) of this section, for individual HMIWI equipped with a dry scrubber followed by a fabric filter:

a. Operation of the individual HMIWI above the maximum charge rate and below the minimum secondary chamber temperature (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the CO emission limit.

b. Operation of the individual HMIWI above the maximum fabric filter inlet temperature, above the maximum charge rate, and below the minimum dioxin/furan sorbent flow rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the dioxin/furan emission limit.

c. Operation of the individual HMIWI above the maximum charge rate and below the minimum HCl sorbent flow rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the HCl emission limit.

d. Operation of the individual HMIWI above the maximum charge rate and below the minimum Hg sorbent flow rate (each measured on a three-hour rolling average simultaneously shall constitute a violation of the Hg emission limit.

e. Use of the bypass stack (except during startup, shutdown, or malfunction) shall constitute a violation of the PM, dioxin/furan, HCl, Pb, Cd and Hg emission limits.

6. Except as provided in subsection (G)(8) of this section, for individual HMIWIs equipped with a wet scrubber:

a. Operation of the HMIWI above the maximum charge rate and below the minimum pressure drop across the wet scrubber or below the minimum horsepower or amperage to the system (each measured on a

three-hour rolling average) simultaneously shall constitute a violation of the PM emission limit.

b. Operation of the individual HMIWI above the maximum charge rate and below the minimum secondary chamber temperature (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the CO emission limit.

c. Operation of the individual HMIWI above the maximum charge rate, below the minimum secondary chamber temperature, and below the minimum scrubber liquor flow rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the dioxin/furan emission limit.

d. Operation of the individual HMIWI above the maximum charge rate and below the minimum scrubber liquor pH (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the HCl emission limit.

e. Operation of the individual HMIWI above the maximum flue gas temperature and above the maximum charge rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the Hg emission limit.

f. Use of the bypass stack (except during startup, shutdown, or malfunction) shall constitute a violation of the PM, dioxin/furan, HCL, Pb, Cd and Hg emission limits.

7. Except as provided in subsection (G)(8) of this section, for individual HMIWI equipped with a dry scrubber followed by a fabric filter and a wet scrubber:

a. Operation of the individual HMIWI above the maximum charge rate and below the minimum secondary chamber temperature (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the CO emission limit.

b. Operation of the individual HMIWI above the maximum fabric filter inlet temperature, above the maximum charge rate, and below the minimum dioxin/furan sorbent flow rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the dioxin/furan emission limit.

c. Operation of the individual HMIWI above the maximum charge rate and below the minimum scrubber liquor pH (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the HCl emission limit.

d. Operation of the individual HMIWI above the maximum charge rate and below the minimum Hg sorbent flow rate (each measured on a three-hour rolling average) simultaneously shall constitute a violation of the Hg emission limit.

e. Use of the bypass stack (except during startup, shutdown, or malfunction) shall constitute a violation of the PM, dioxin/furan, HCl, Pb, Cd and Hg emission limits.

8. The owner or operator of an individual HMIWI may conduct a repeat performance test within 30 days after violation of applicable operating parameter(s) to demonstrate that the individual HMIWI is not in violation of the applicable emission limits. Repeat performance tests conducted pursuant to this paragraph shall be conducted using the identical operating parameters that demonstrated a violation under subsections (G)(5), (6) or (7) of this section.

9. The owner or operator of an individual HMIWI using an air pollution control device other than a dry scrubber followed by a fabric filter, a wet scrubber, or a dry scrubber followed by a fabric filter and a wet scrubber to comply with the emission limits in Table 1 of subsection (C) of this section shall petition the administrator (not the health officer) for other site-specific operating parameters to be established during the initial performance test and continuously monitored thereafter. The owner or operator shall not conduct the initial performance test until after the petition has been approved by the administrator.

10. The owner or operator of an individual HMIWI may conduct a repeat performance test at any

time to establish new values for the operating parameter. The health officer or the administrator may request a repeat performance test at any time.

H. *Monitoring requirements.*

1. The owner or operator of an individual HMIWI shall install, calibrate (to manufacturers' specifications), maintain and operate devices (or establish methods) for monitoring the applicable maximum and minimum operating parameters listed in Table 3 of subsection (G) of this section such that these devices (or methods) measure and record values for these operating parameters at the frequencies listed in Table 3 at all times except during periods of startup and shutdown.

2. The owner or operator of an individual HMIWI shall install, calibrate (to manufacturers' specifications), maintain and operate a device or method for measuring the use of the bypass stack including date, time and duration.

3. The owner or operator of an individual HMIWI using something other than a dry scrubber followed by a fabric filter, a wet scrubber, or a dry scrubber followed by a fabric filter and a wet scrubber to comply with the emission limits in Table 1 of subsection (C) of this section shall install, calibrate (to manufacturers' specifications), maintain and operate the equipment necessary to monitor the site-specific operating parameters developed pursuant to subsection (G)(9) of this section if other site-specific operating parameters are approved by the administrator.

4. The owner or operator of an individual HMIWI shall obtain monitoring data at all times during HMIWI operation except during periods of monitoring equipment malfunction, calibration or repair. At a minimum, valid monitoring data shall be obtained for 75 percent of the operating hours per day and for 90 percent of the operating hours per calendar quarter that the individual HMIWI is combusting hospital waste and/or medical/infectious waste.

I. *Reporting and recordkeeping requirements.*

1. Reserved.

2. The owner or operator of an individual HMIWI shall maintain the following information (as applicable) for a period of at least five years:

   a. Calendar date of each record; and

   b. Records of the following data:

      i. Concentration of any pollutant listed in Table 1 in subsection (C) of this section or measurements of opacity as determined by the continuous emission monitoring system (if applicable);

      ii. (Reserved)

      iii. HMIWI charge dates, times and weights and hourly charge rates;

      iv. Fabric filter inlet temperatures during each minute of operation, as applicable;

      v. Amount and type of dioxin/furan sorbent used during each hour of operation, as applicable;

      vi. Amount and type of Hg sorbent used during each hour of operation, as applicable;

      vii. Amount and type of HCl sorbent used during each hour of operation, as applicable;

      viii. Secondary chamber temperatures recorded during each minute of operation;

      ix. Liquor flow rate to the wet scrubber inlet during each minute of operation as applicable;

      x. Horsepower or amperage to the wet scrubber during each minute of operation, as applicable;

      xi. Pressure drop across the wet scrubber system during minute of operation, as applicable;

      xii. Temperature at the outlet from the wet scrubber during each minute of operation, as applicable;

      xiii. pH at the inlet to the wet scrubber during each minute of operation, as applicable;

xiv. Records of use of the bypass stack, including dates, times and durations; and

xv. For individual HMIWI complying with subsections (G)(9) and (H)(3) of this section concerning site-specific operating parameters, the owner or operator shall maintain all operating parameter data collected.

c. Identification of calendar days for which data on emission rates or operating parameters specified under subsection (I)(2)(b) of this section have not been obtained, with an identification of the emission rates or operating parameters not measured, reasons for not obtaining the data, and a description of corrective actions taken;

d. Identification of calendar days, times and durations of "malfunctions" as defined in this air pollution control code, upsets, a description of the malfunction or upset, and the corrective action taken;

e. Identification of calendar days for which data on emission rates or operating parameters specified under subsection (I)(2)(b) of this section exceeded the applicable limits, with a description of the exceedances, reasons for such exceedances, and a description of corrective actions taken;

f. The results of the initial, annual, and any subsequent performance tests conducted to determine compliance with the emission limits and/or to establish operating parameters, as applicable;

g. (Reserved)

h. Records showing the names of HMIWI operators who have completed review of the information in subsection E of this section as required by subsection E of this section, including the date of the initial review and all subsequent annual reviews;

i. Records showing the names of the HMIWI operators who have completed the operator training requirements, including documentation of training and the dates of the training;

j. Records showing the names of the HMIWI operators who have met the criteria for qualification under subsection (E) of this section and the dates of their qualification; and

k. Records of calibration of any monitoring devices as required under subsections (H)(1), (2) and (3) of this section.

3. The owner or operator of an individual HMIWI shall submit the information specified in subsection (I)(3)(a) through (c) of this section no later than 60 days following the initial performance test. All reports shall be signed by the facilities manager.

a. The initial performance test data as recorded under subsections (G)(2)(a) through (G)(2)(l) of this section.

b. The values for the site-specific operating parameters established pursuant to subsections (G)(4) or (G)(9) of this section.

c. The waste management plan as specified subsection (F) of this section.

4. An annual report shall be submitted one year following the submission of the information in subsection (I)(3) of this section and subsequent reports shall be submitted no more than 12 months following the previous report (once the unit is subject to permitting requirements under Title V of the Clean Air Act or section 3-5, Reference 1200-3-9-.02(11), the owner or operator of an individual HMIWI must submit these reports semiannually). The annual report shall include the information specified in subsections (I)(4)(a) through (h) of this section. All reports shall be signed by the facilities manager.

a. The values for the site-specific operating parameters established pursuant to subsections (G)(4) or (G)(9) of this section, as applicable.

b. The highest maximum operating parameter and the lowest minimum operating parameter, as applicable, for each operating parameter recorded for the calendar

year being reported, pursuant to subsections (G)(4) or (G)(9) of this section, as applicable.

c. The highest maximum operating parameter and the lowest minimum operating parameter, as applicable for each operating parameter recorded pursuant to subsections (G)(4) or (G)(9) of this section for the calendar year preceding the year being reported, in order to provide the administrator with a summary of the performance of the affected facility over a two-year period.

d. Any information recorded under subsections (I)(2)(c) through (e) of this section for the calendar year being reported.

e. Any information recorded under subsections (I)(2)(c) through (e) of this section for the calendar year preceding the year being reported, in order to provide the health officer with a summary of the performance of the individual HMIWI over a two-year period.

f. If a performance test was conducted during the reporting period, the results of that test.

g. If no exceedances or malfunctions or upsets were reported under subsections (I)(2)(c) through (e) of this section for the calendar year being reported, a statement that no exceedances occurred during the reporting period.

h. Any use of the bypass stack, the duration, reason for the malfunction or upset, and corrective action taken.

5. The owner or operator of an individual HMIWI shall submit semiannual reports containing any information recorded under subsections (I)(2)(c) through (e) of this section no later than 60 days following the submission of information in subsection (I)(3) of this section. Subsequent reports shall be submitted no later than six calendar months following the previous report. All reports shall be signed by the facilities manager.

6. All records specified under subsection (I)(2) of this section shall be maintained onsite in either paper copy or computer-readable format, unless an alternative format is approved by the health officer.

(Code 1985, § 16-84.1; Ord. No. 5041, § 1(9), 2004)

Sec. 9-12-22. Testing and monitoring air contaminant sources.

A. *Confirmation of emissions listed in a permit application.* The health officer may require the applicant for an operating permit to conduct or have conducted such tests as are necessary to establish the quantity or identity of air contaminants emitted from an air contaminant source. Such tests shall be conducted in a manner approved in advance by the health officer. The health officer may require that such tests be conducted in the presence of the health officer or a designee.

B. *General testing.* The health officer may conduct tests of air contaminant emissions from any source. Upon request of the health officer, the owner or operator of the source to be tested shall provide, at no expense to the health officer, reasonable and necessary performance testing facilities in accordance with section 9-12-23 of this chapter and openings in stacks, vents and ducts.

C. *Determination of violation(s).* Whenever the health officer has reason to believe that the emission limits of the regulations set forth in this chapter are being violated, the health officer may require the owner or operator to conduct or have conducted at the owner's or operator's expense, tests to determine the emission level of specific air contaminants. The health officer may require that such tests be conducted in the presence of the health officer or designee.

D. *Periodic testing.* The health officer may require the owner or operator of an air contaminant source, as a condition of an operating permit, to conduct or have conducted periodic tests to establish the amount of air contaminants emitted. The nature, extent, and frequency of such required testing shall be specified in the operating permit. Such tests shall be made at the expense of the owner or operator and shall be conducted in accordance with section 9-12-23 of this chapter.

E. *Filing emission data.* Any person subject to this air pollution control code and directed to do so by the health officer shall file emission data, reporting a minimum of one year of emissions, with the health officer on forms available from the health officer.

F. *Monitoring of emissions.* The requirements of the Rules and Regulations of Tennessee 1200-3-10-.02 are incorporated by reference as the requirements of this jurisdiction, except that the phrase "Federal Register, Volume 40, No. 194, October 6, 1975" in 1200-3-10-.02(1)(c) and the phrase "October 6, 1975, Federal Register, Volume 40, No. 194 (Appendix P, Paragraph 5.0)" in 1200-3-10-.02(2)(b)7 are deleted and the phrase "Title 40 Code of Federal Regulations Part 58, Appendix C" is substituted in lieu thereof.

G. *Major stationary source sampling, recording and reporting.* The requirements of the Rules and Regulations of Tennessee 1200-3-10-.04 are incorporated by reference as the requirements of this jurisdiction.

H. *Monitoring required for determination of compliance of certain large stationary sources.* The requirements of the Rules and Regulations of Tennessee 1200-3-12-.04 are incorporated by reference as the requirements of this jurisdiction.

(Code 1967, § 3-7; Code 1985, § 16-85; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(2), 10-9-1979; Ord. No. 4320, § 15, 5-2-1995; Ord. No. 4636, § 16, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002; Ord. No. 5041, § 1(10), 2004)

Sec. 9-12-23. Test methods.

A. Any of the following promulgated test methods may be performed for the purpose of demonstrating compliance with this chapter; for the purpose of submission of a compliance certification by a source; or for the purpose of establishing whether any person, owner or operator has violated any provision of this chapter, of a permit issued hereunder, or of a compliance plan entered by any person, owner or operator; so long as the effective date of the promulgated test method used is the date closest in time to the date of test performance; and so long as the test meets the applicability criteria in the test method itself:

1. Title 40 Code of Federal Regulations Part 51, Appendix M - Recommended Test Methods for State Implementation Plans.
2. Title 40 Code of Federal Regulations Part 51, Appendix P - Minimum Emission Monitoring Requirements.
3. Title 40 Code of Federal Regulations Part 51, Appendix W - Guideline on Air Quality Models and Appendices A, B and C to Appendix W.
4. Title 40 Code of Federal Regulations Part 60, Appendix A - Test Methods.
5. Title 40 Code of Federal Regulations Part 60, Appendix B - Performance Specifications.
6. Title 40 Code of Federal Regulations Part 60, Appendix C - Determination of Emission Rate Change.
7. Title 40 Code of Federal Regulations Part 60, Appendix F - Quality Assurance.
8. Title 40 Code of Federal Regulations Part 61, Appendix A - National Emission Standards for Hazardous Air Pollutants, Compliance Status Information.
9. Title 40 Code of Federal Regulations Part 61, Appendix B - Test Methods.
10. Title 40 Code of Federal Regulations Part 61, Appendix C - Quality Assurance Procedures.
11. Title 40 Code of Federal Regulations Part 61, Appendix D - Methods for Estimating Radionuclide Emissions.
12. Title 40 Code of Federal Regulations Part 61, Appendix E - Compliance Procedures Methods for Determining Compliance with Subpart I.
13. Title 40 Code of Federal Regulations Part 63, Appendix A - Test Methods.
14. Title 40 Code of Federal Regulations Part 63, Appendix C - Determination of the Fraction Biodegraded (F_{bio}) In A Biological Treatment Unit.
15. Title 40 Code of Federal Regulations Part 63, Appendix D - Alternative Validation Procedure For EPA Waste and Wastewater Methods.
16. Title 40 Code of Federal Regulations Part 75, Appendices A through I - Continuous Emissions Monitoring.
17. Title 40 Code of Federal Regulations Part 136 - Guidelines Establishing Test Procedures for the Analysis of Pollutants and Appendices A, B, C and D.

B. Where specific materials, equipment, or procedures are specified in a test method promulgated in the Code of Federal Regulations, it shall only be permissible to use other materials, equipment or procedures where the U.S. EPA Administrator: (1) specifies or approves, in

specific cases, the use of reference method with minor changes in methodology; (2) approves the use of an equivalent method; (3) approves the use of an alternate method the results of which the administrator has determined to be adequate for indicating whether a specific source is in compliance; (4) waives the requirement for performance tests because the owner or operator of a source has demonstrated by other means to the administrator's satisfaction that the affected facility is in compliance with the standard; or (5) approves shorter sampling times and smaller sampling volumes when necessary by process variables or other factors. Nothing in section 9-12-22 or this section shall be construed to abrogate the administrator's authority to require testing under section 114 of the Clean Air Act or the Technical Secretary's authority to require testing under the Tennessee Air Quality Act or the health officer's authority to require testing under this air pollution control code. For those air contaminants for which a test method has not been promulgated in the Code of Federal Regulations, the proposed test method shall be approved in advance by the health officer.

C. Unless otherwise specified in the test method, each performance test shall consist of three separate runs using the applicable test method. Each test run shall be conducted for the time and under the conditions specified in the applicable test method. For the purpose of determining compliance with an applicable standard, the arithmetic mean of results of the three runs shall apply. In the event that a sample is accidentally lost or conditions occur in which one of the three runs must be discontinued because of forced shutdown, failure of an irreplaceable portion of the sample train, extreme meteorological conditions, or other circumstances beyond the owner or operator's control, compliance may, upon the administrator's approval, be determined using the arithmetic mean of the results of the two other runs.

D. Any of the following U.S. EPA Administrator approved alternative test methods may be performed for the purpose of demonstrating compliance with this air pollution control ordinance; for the purpose of submission of a compliance certification by a source; or for the purpose of establishing whether any person, owner, or operator has violated any provision of this chapter, of a permit issued hereunder, or of a compliance plan entered by any person, owner or operator; so long as the administrator approval is in effect on the date of test performance; and so long as the test meets the applicability criteria in the test method itself:

1. Alternative test methods approved by the administrator or designee in the Code of Federal Regulations; and

2. Alternative test methods approved by the administrator or designee and posted on the U.S. Environmental Protection Agency Internet website at http://www.epa.gov/ttn//emc/approalt.html.

E. Any of the following U.S. EPA Administrator approved conditional test methods may be performed for the purpose of demonstrating compliance with this air pollution control chapter; for the purpose of submission of a compliance certification by a source; or for the purpose of establishing whether any person, owner, or operator has violated any provision of this chapter, of a permit issued hereunder, or of a compliance plan entered by any person, owner or operator; so long as the test meets the applicability criteria in the test method itself and provided that they are subject to both a U.S. Environmental Protection Agency permit veto opportunity and public notice and opportunity for public comment before test performance:

1. Conditional test methods approved by the administrator or designee in the Code of Federal Regulations; and

2. Conditional test methods approved by the administrator or designee and posted on the U.S. Environmental Protection Agency Internet website at http://www.epa.gov/ttn/emc/ctm.html.

F. Performance tests shall be conducted under representative performance conditions of the tested air contaminant source(s) for which compliance is to be demonstrated by the test. Samples shall be taken in such number, duration and location as to be statistically significant and representative of performance conditions for which compliance is to be demonstrated by the test. Unless otherwise specified in the test method, each performance test shall be corrected to standard conditions, defined as a temperature of 293 K (68° F) and a pressure of 101.3 kilopascals (29.92 in Hg). Emissions may have to be retested upon request of the health officer if the maximum production rate that occurred during compliance testing is exceeded by ten percent or more. The owner or operator shall make available to the health officer such records as may be necessary to determine the conditions of the performance tests. Operations during periods of startup, shutdown and upsets that qualify for the affirmative defense of "malfunction" or "emergency", as those terms are defined in this air pollution control code, shall not constitute representative conditions for the purpose of a performance test nor shall emissions in excess of the level of the applicable emission limit

during periods of startup, shutdown, and upsets that qualify for the affirmative defense of "malfunction" or "emergency", as those terms are defined in this air pollution control code, be considered a violation of the applicable emission limit unless otherwise specified in the applicable standard.

G. The owner or operator of an air contaminant source to be tested shall provide the health officer at least 30 days' prior written notice of any performance test and the test protocol form, except as otherwise specified in a promulgated test method, to afford the health officer the opportunity to have an observer present and to approve the test protocol. The health officer shall complete review of such submitted test protocol form and shall provide the source written notice of any changes required or any additional test(s) required at least ten calendar days prior to the test date, absent extraordinary circumstances. If there is a subsequent delay in conducting the scheduled performance test, the owner or operator of the source to be tested shall notify the health officer as soon as practicable of any delay in the original test date, either by providing at least seven days prior notice of the rescheduled date of the performance test or by arranging a rescheduled date by mutual agreement.

H. The owner or operator of an air contaminant source shall provide, or shall cause to be provided, performance testing facilities as follows:

1. Sampling ports adequate for performance of test methods applicable to such source or facility. This includes constructing the air pollution control system such that volumetric flow rates and pollutant emission rates can be accurately determined by applicable test methods and procedures and providing a stack or duct free of cyclonic flow during performance tests, as demonstrated by applicable test methods and procedures;
2. Safe sampling platform(s) for the person performing the test and for the health officer's designated observer; and
3. Safe access to sampling platform(s) and sampling ports for the person performing the test and for the health officer's designated observer;
4. Utilities for sampling and testing equipment; and
5. Such other sampling and testing facilities as the health officer may require.

I. The test methods in Title 40 Code of Federal Regulations Part 50 and Appendices A, B, C, D, F, G, H, I, J, K, L, M, and N, shall be performed for the purpose of determining compliance with the National Primary and Secondary Ambient Air Quality Standards. Three copies of 40 CFR Part 50 are on file at the Shelby County clerk's office. For those air contaminants for which the EPA has established reference and equivalent monitoring methods, the use of alternative sampling procedures shall be approved by the health officer and EPA. For those air contaminants for which the EPA has not established reference and equivalent 'methods, the use of alternative sampling procedures shall be approved by the health officer. The procedure for sampling and analyzing atmospheric fluorides shall conform with the method adopted by the American Society for Testing Materials found in the Annual Book of ASTM Standards published each year by the American Society for Testing Materials with a designation of D3266 "Standard Test Method for Automated Separation and Collection of Particulate and Acidic Fluoride in the Atmosphere ('Double Paper Tape Sampler Method')." Each ambient monitor sited in the field for the purpose of determining compliance with the National Primary and Secondary Ambient Air Quality Standards must meet the data completeness requirements in 40 CFR Part 50 and Appendices. Information that documents the cause of missing data shall be submitted in writing to the Technical Secretary for all missing data.

J. Each owner or operator of an air monitoring network required by the health officer shall submit in writing to the health officer a quality control/quality assurance plan for approval prior to commencing air monitoring. This plan shall be reviewed and approved prior to start-up of new monitoring networks or whenever any significant change is made to an existing network. The health officer will determine if a change that is made is significant. All ambient monitoring data generated by continuous operating monitors shall be submitted on magnetic media in a format acceptable to the Technical Secretary. All ambient monitoring data generated by intermittent sampling techniques shall be submitted in a format acceptable to the health officer.
(Code 1967, § 3-8; Code 1985, § 16-86; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(3), 10-9-1979; Ord. No. 4320, § 16, 5-2-1995; Ord. No. 4636, § 17, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002; Ord. No. 5041, § 1(11), 2004)

Sec. 9-12-24. Malfunctions, startups and shutdowns.

For the purpose of enforcement of the control of the emissions that occur during malfunctions, startups and

shutdowns, chapter 1200-3-20 of the Tennessee Air Pollution Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1967, § 3-9; Code 1985, § 16-87; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 2921, § 1(4), 10-9-1979; Ord. No. 4320, § 17, 5-2-1995; Ord. No. 4636, § 18, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-25. Nuisance abatement.

A. When dust, fumes, gases, mist, odorous matter, vapors, or any combination thereof escape from a building or equipment in such a manner and amount as to cause a nuisance or to violate any regulation, the health officer may order that the building or equipment in which processing, handling and storage are done be tightly closed and ventilated in such a way that all air and gases and air- or gas-borne material leaving the building or equipment are treated by removal or destruction of air contaminants before discharge to the open air.

B. No person shall cause, suffer, allow or permit any air contaminant source to be operated without employing suitable measures for the control of the emission of objectionable odors. Suitable measures shall include permit limitations, wet scrubbers, incinerators, or such other devices as may be approved by the health officer.
(Code 1967, § 3-19; Code 1985, § 16-88; Ord. No. 1265, § 1, 4-25-1972; Ord. No. 3230, § 1(3), 8-3-1982)

Sec. 9-12-26. Fugitive dust.

No person shall cause, suffer, allow, or permit any materials to be handled, transported or stored, or a building, its appurtenances, or a road to be used, constructed, altered, repaired or demolished, without taking reasonable precautions to prevent particulate matter from becoming airborne. Such reasonable precautions shall include, but not be limited to, the following:

A. Use, where possible, of water or chemicals for control of dust in the demolition of existing buildings or structures, construction operations, the grading of roads or the clearing of land;

B. Application of asphalt, oil, water, or suitable chemicals on material stockpiles, and other surfaces which can create airborne dusts;

C. Installation and use of hoods, fans, and fabric filters to enclose and vent the handling of dusty materials. Adequate containment methods shall be employed during sandblasting or other similar operations;

D. Covering, at all times when in motion, open-bodied trucks transporting materials likely to become airborne;

E. Conduct of agricultural practices such as tilling of land, application of fertilizers, etc., in such manner as to not create a nuisance to others residing in the area;

F. The paving of roadways and their maintenance in a clean condition;

G. The prompt removal of earth or other material from paved street which earth or other material has been transported thereto by trucking or earth moving equipment or erosion by water.

(Code 1967, § 3-18; Code 1985, § 16-89; Ord. No. 1265, § 1, 4-25-1972)

Sec. 9-12-27. General alternative emission standards.

For the purpose of enforcement of the methods of establishing alternate emission standards, chapter 1200-3-21, of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-90; Ord. No. 3464, § 1, 6-4-1984; Ord. No. 4320, § 18, 5-2-1995; Ord. No. 4636, § 19, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-28. Lead emission standards.

A. For the purpose of enforcement of the lead emission standards, chapter 1200-3-22, of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.

B. The RACT emission level specified as permit conditions on the operating permit(s) in paragraph (1) of Rule 1200-3-22-03, adopted by reference in subsection A of this section, must be submitted, reviewed and approved by the administrator of the environmental protection agency or his or her designee.
(Code 1985, § 16-91; Ord. No. 3465, § 1, 6-4-1984; Ord. No. 4320, § 19, 5-2-1995; Ord. No. 4636, § 20, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-29. Infectious waste incinerators.

For the purpose of enforcement of the control of infectious waste incinerators, chapter 1200-3-25, of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-91.1; Ord. No. 3889, § 1, 8-15-1989; Ord. No. 4320, § 20, 5-2-1995; Ord. No. 4636, § 21, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-30. Acid precipitation standard.

For the purpose of enforcement of the control of emissions that cause acid precipitation, chapter 1200-3-30 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-91.2; Ord. No. 4320, § 21, 5-2-1995; Ord. No. 4636, § 22, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-31. Case-by-case determinations of hazardous air pollutant control requirements.

For the purpose of enforcement of the requirements for case by case determinations of hazardous air pollutant control requirements, chapter 1200-3-31 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-91.3; Ord. No. 4320, § 22, 5-2-1995; Ord. No. 4636, § 23, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-32. Prevention of accidental releases.

For the purpose of enforcement of the requirements for the prevention of accidental releases, chapter 1200-3-32 of the Tennessee Air Pollution Control Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-91.4; Ord. No. 4320, § 23, 5-2-1995; Ord. No. 4636, § 24, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4981, § 12, 12-17-2002)

Sec. 9-12-33. Conformity.

For the purpose of enforcement of conformity, chapter 1200-3-34 of the Tennessee Air Pollution Regulations, as effective on December 31, 2000, is adopted by reference as a portion of this code. Such regulations and/or all such additions, deletions, changes and amendments as may subsequently be made shall become a part of this code and shall have the same effect as if set out in full herein.
(Code 1985, § 16-91.5; Ord. No. 4981, § 13, 12-17-2002)

ARTICLE 5. PERMITS AND INSPECTION FEES

Sec. 9-12-34. Applicability and enforcement authority.

A. The provisions of this article and section on permit fees shall apply to any person making application on or after July 1, 1992, to the Memphis and Shelby County health department for issuance, re-issuance or modification of a permit in accordance with this article and code, and shall be subject to the fee schedule set out in section 9-12-35. The provisions of this article and section on emissions fees shall apply to any person holding or obtaining a valid air pollution permit from the Memphis and Shelby County health department on or after July 1, 1992, and shall be subject to the fees set out in section 9-12-43.

B. The Memphis/Shelby County health department (hereinafter referred to as "the department") is designated to carry out and enforce the provisions of this article and to promulgate any regulations consistent with it as may be required for proper administration of the fee system created herein.
(Code 1985, § 16-93; Ord. No. 4105, § 1, 5-26-1992)

Sec. 9-12-35. Permit fee schedule.

Fees for permits are hereinafter set out as follows, and shall apply to any person as defined in this article:

A. *Construction permits.*

1. Any person making application to the Shelby County Health Department for a construction permit shall pay an initial filing fee of $200.00 per permit unit. This filing fee shall not be refundable if the permit is denied or if the application withdrawn, nor shall it be applied to any subsequent application.

2. In addition to the fees in subsection (A)(1) of this section, the largest of the following fees, if applicable, shall be paid:

a.	Prevention of significant deterioration (PSD) review	$3,960.00
b.	Major source or major modification review, except PSD sources review, requiring modeling	$2,640.00
c.	Minor source or minor modification review, requiring modeling	$660.00
d.	New resource performance standard (NSPS) source review, per permit unit	$660.00
e.	National Emission Standards for Hazardous Air Pollutant (NESHAP) source review, per permit unit	$660.00

B. *Inspection/operating permit.*

1. Any person making application to the Shelby County Health Department for an inspection/operating permit shall pay the larger of the applicable fees in accordance with the following schedule:

a.	Asbestos demolition/renovation removal, per notice	$130.00
b.	Air curtain destructor, per permit unit	$130.00
c.	NSPS source, per permit unit	$130.00
d.	NESHAP source, per permit unit	$130.00
e.	Any source issued a permit pursuant to local rules implementing Title 40, Code of Federal Regulations, Section 70 (major source permits)	$2,000.00
f.	Any permit unit with actual emissions of 50 tons or more a year, but less than 100 tons per year of any single pollutant	$130.00
g.	Any permit unit with actual emissions of 25 tons or more per year, but less than 50 tons per year of a single pollutant	$100.00
h.	Any permit unit with actual emissions of less than 25 tons per year of a single pollutant	$65.00
i.	Any permit issued as the result of a permit by rule or annual notification and general standards application to a particular business or business group	$130.00
j.	Any source issued an operating permit for which a construction permit was never obtained (Enforcement action may also apply)	$265.00

2. No portion of the inspection/operating fee shall be refundable in the event the source discontinues operation or service during the permitted period.

C. *Modification of a permit.*

1. Any person making application to the Shelby County Health Department for the modification

of a permit shall pay a fee for each permit shall pay a fee for each permit unit being modified, except that no fee is required for modification of a permit to correct clerical, typographical, or calculations errors. This fee shall be set out as follows:

a.	If the modification is anticipated to result in an increase in all pollutants less than 10 tons per year	$130.00
b.	If the modification is anticipated to result in an increase in all pollutants equal to or greater than 10 tons per year, but less than 50 tons per year	$330.00
c.	If the modification is anticipated to result in an increase in all pollutants equal to or greater than 50 tons per year	$660.00
d.	Name change	$130.00
e.	Ownership change—New owner pays inspection and operating fees (based on tonnage)	Varies based on tonnage fees
f.	Address change—New owner pays inspection and operating fees (based on tonnage) for the new address	$265.00 plus tonnage fees
g	Permit revision (with no emissions consequences)	$130.00

D. *Stack sampling.*

1. If a source is required to demonstrate compliance by stack sampling its emissions, it shall pay the following additional fees:

a.	Any testing requiring U.S./EPA methods 1 through 4 only, per stack test	$130.00
b.	Particulate emissions testing requiring U.S./EPA method 5, per stack test	$400.00
c.	Any other pollution testing by methods other than U.S./EPA method 5, (excepting those subject to subsection (D)(1)(a) of this section, per stack test)	$660.00

2. Any retest required to demonstrate compliance shall be subject to the fee schedule as stated in subsections (D)(1)(a) through (c) of this section.

(Code 1985, § 16-94; Ord. No. 4105, § 1, 5-26-1992; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4899, § 1, 10-2-2001; Ord. No. 5041, § 1(12, 13), 2004; Ord. No. 5513, 6-4-2013; Ord. No. 5581, 4-21-2015)

Sec. 9-12-36. Emissions fee for stationary sources.

A. *Emissions fee.* A fee shall be collected from each stationary air pollution source which emits more than one ton of actual emissions annually of a "regulated pollutant (for fee calculation)" as defined herein, called the "emissions fee", which shall equal the amount determined by the requirements set forth below. "Regulated pollutant (for fee calculation)", which is used only for purposes of this section, means any "regulated air pollutant" except the following: carbon monoxide; any pollutant that is a regulated air pollutant solely because it is a Class I or II substance to a standard promulgated under or established by Title VI of the Clean Air Act; or, for any pollutant that is a regulated air pollutant solely because it is subject to a standard or regulation under section 112(r) of the Clean Air Act.

1. $48.00 per ton of actual emissions emitted during calendar year 2013 to be collected beginning in 2015 and for successive years until such time as the council approves a further increase or decrease, not including fugitive emissions and actual excess emissions that are the result of process malfunctions and facility start-up and shutdown determined by the health department to be in compliance with the air pollution code sections that excuse these emissions from enforcement of each regulated pollutant as defined in section 502(b)(3)(B)(ii) of the Federal Clean Air Amendments of 1990.

2. If no adjustment in the emissions fee rate established for any calendar year after 1992 is made by the county commission and the city council, the fee shall be increased by the percentage, if any, by which the consumer price

index for the most recent calendar year preceding the unadjusted year exceeds the consumer price index for the calendar year two years prior to the unadjusted year, unless the county commission adopts an emissions fee rate that excludes a consumer price index adjustment. This rate amount shall then reflect a one-year consumer price index adjustment. For purposes of this title and air pollution control code, the consumer price index is the average of the consumer price index for all urban consumers published by the department of labor, as of the close of the 12-month period ending on August 31 of each calendar year, and the revision of the consumer price index which is most consistent with the consumer price index for 1989 shall be used.

3. The fee collected shall be adjusted by resolution of the board of Shelby County commissioners and by resolution of the Memphis City Council from time to time consistent with the need to cover the costs authorized by this chapter and air pollution control code. For purposes of this chapter and air pollution control code, a "stationary air pollution source" shall be that group of air pollution sources located within a contiguous area and under common control.

B. *Maximum amount subject to emissions fee.* Each stationary air pollution source shall be assessed the emissions fee on no more than 4,000 tons per year of each regulated pollutant it emits.

C. *Minimum annual emissions fee.* Air pollution sources issued a permit under Title 40, Code of Federal Regulations, Section 70, to include Title V and synthetic minor sources, being those sources of air pollution with actual emissions over the major source threshold or who have the potential to be a major source under Title V, but which have limited that potential by permit, and as further defined in the City of Memphis Air Code Section, shall pay a minimum annual emissions fee of no less than $1,000.00.

(Code 1985, § 16-95; Ord. No. 4105, § 1, 5-26-1992; Ord. No. 4636, §§ 2, 3, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4899, § 1, 10-2-2001; Ord. No. 4981, §§ 7—9, 12-17-2002; Ord. No. 5041, § 1(14—17), 2004; Ord. No. 5513, 6-4-2013; Ord. No. 5581, 4-21-2015)

Sec. 9-12-37. Payment of fees.

A. Any person acquiring a permit shall be subject to the following payment of permit fees and the following procedure shall be used in payment thereof:

1. Initial filing fees for construction permits must be submitted with the initial permit applications.
2. Additional fees related to construction permits including those related to public notice are due within 30 days of receipt of billing by the department.
3. Fees related to stack testing are due within 30 days of receipt of billing by the department.
4. Inspection/operating fees are assessed annually on the anniversary date of the issuance of the permit where applicable.
    a. Fees for asbestos removal must be submitted with the written notice of intent to remove.
    b. Fees for air curtain destructors must be submitted within ten days of receipt of permit.
5. Fees related to modification of a permit shall be submitted with the permit application.
6. Fees related to public notice necessary for the regulation of a source shall be due within 30 days of receipt of billing by the department.

B. If the emissions fees assessed to a stationary air pollution source are less than $5,000.00, the fees owed shall be submitted by September 30 of the year following the year the emissions occurred. If more than $5,000.00 is owed, then the amount due shall be submitted by January 31 of the year two years after the emissions occurred.

(Code 1985, § 16-96; Ord. No. 4105, § 1, 5-26-1992; Ord. No. 4636, §§ 2, 3, 12-15-1998; Ord. No. 4867, § 1, 6-19-2001; Ord. No. 4899, § 1, 10-2-2001; Ord. No. 4981, §§ 7—9, 12-17-2002)

Sec. 9-12-38. Allowable uses for emissions fee.

The department shall collect an annual emissions fee from those entities within the city which operate stationary air pollutant sources required to make application on or after July 1, 1992, to the Memphis-Shelby County health department for issuance, re-issuance or modifica-

tion of a permit in accordance with the city air pollution control code, and shall be subject to the fee schedule set out in section 9-12-35 of this code:

A. Reviewing and acting upon any application for a permit or permit modification under the city air pollution control code as amended;

B. Implementing and enforcing the terms and conditions of any permit issued under the city air pollution control code, provided, however, such cost shall not include any court cost or other costs associated with any judicial enforcement action;

C. Emissions and ambient monitoring and inspection of source operated monitoring programs;

D. Preparing generally applicable regulations or guidance;

E. Modeling, analyses and demonstrations;

F. Preparing inventories and tracking emissions;

G. Development of and support for the small business stationary source technical and environmental compliance assistance program as it applies to Part 70 sources;

H. Information management activities to support and track permit applications, compliance certifications and related data entry.

The emission and annual operating/inspection fees collected from major stationary air pollution sources as defined herein shall be used exclusively for and be sufficient to pay the direct and indirect costs of the major stationary source operating permit program allowable under the Federal Clean Air Act and under regulations in support of those federal provisions as adopted locally in the city air pollution control code. The owner or operator of any stationary source shall also pay any cost of expense associated with public notices or notifications required pursuant to the city air pollution control code or the Federal Clean Air Act.
(Code 1985, § 16-97; Ord. No. 4105, § 1, 5-26-1992; Ord. No. 4636, § 4, 12-15-1998; Ord. No. 4981, §§ 10, 11, 12-17-2002; Ord. No. 5041, § 1(18), 2004)

Sec. 9-12-39. Reporting requirement.

A. Except as provided below, each permitted stationary air pollution source must submit to the department, with the emissions fee, an annual report that establishes the amount of actual emissions of each regulated pollutant, including carbon monoxide, for that source. This report will be for the emissions of that source that occurred during the calendar year starting in 1991 and continuing for succeeding years thereafter. The department may request, and the air pollution source shall provide, additional information on the emissions data submitted when the department determines the data previously provided is inadequate to establish the actual type or amount of emissions from the source subject to fees.

B. Not including air toxics as they are defined in the Clean Air Act Amendments of 1990 and the amendments thereto, if the source emits fewer than 25 tons of actual emissions of pollutant during a year, it may at its option, use as the actual emissions figure, its permitted pollutant levels where available and known. If the source is a major source under the Air Toxics provisions of the Clean Air Act Amendments of 1990, it, too, must calculate its actual emission of regulated pollutants. Failure to provide, on a timely basis, any additional information requested shall be considered failure to pay the fees.
(Code 1985, § 16-98; Ord. No. 4105, § 1, 5-26-1992; Ord. No. 4320, § 25, 5-2-1995)

Sec. 9-12-40. Small business waiver.

The director of the department, on his or her discretion but consistent with section 507(f) of the Clean Air Act Amendments of 1990, may, upon written petition setting forth in detail the justification therefor, reduce or waive for up to three years, any emissions fee required under this chapter to take into account the financial resources of small business stationary air pollution sources as defined under the federal act or regulations promulgated pursuant thereto. A decision to deny the waiver may be appealed to the local air pollution control board by the party requesting the waiver and will be heard under the same procedures as any other decision that is appealed to this board. If a waiver is granted, it will be reviewed by the board in its annual review process and is then subject to revocation or modification by the board if found to be unwarranted or granted in an arbitrary fashion. Such action will have no effect on prior years emissions fees and will only apply to the collection of future emissions fees.
(Code 1985, § 16-99; Ord. No. 4105, § 1, 5-26-1992)

Sec. 9-12-41. Surplus funds carry forward.

Any surplus in emissions fee funds shall be carried forward from year to year for these stated purposes only.

If, however, in any year after 1993, this carry forward surplus exceeds on February 15 35 percent of the previous 12 months fee, a ten percent per ton credit on the established emissions fee amount shall be given to all stationary sources in the next emissions fee payment.
(Code 1985, § 16-100; Ord. No. 4105, § 1, 5-26-1992)

Sec. 9-12-42. Penalty provisions.

Failure to pay the fees set forth in this chapter shall be a violation of the Memphis/Shelby County air pollution code and can result in the assessment of penalties and injunction against the stationary air pollution source. In addition to any fee owed, a maximum penalty equal to 50 percent of the fees owed may be assessed for late payment. Interest in the amount equal to the maximum allowed under state law shall also be charged for all fees paid more than 30 days late. When an emissions fee amount is contested, only the contested portion can be withheld. Any uncontested fee amount must be paid by the due date for payment. Due process for contested amounts is provided by appeal under the administrative and judicial review provisions of the Memphis/Shelby County air pollution code for appeal of decisions of the director.
(Code 1985, § 16-101; Ord. No. 4105, § 1, 5-26-1992)

Sec. 9-12-43. Annual review of fee structure and financial need.

The Memphis/Shelby County air pollution control board shall annually review the fee structure established by this chapter and recommend to the Shelby County commission any change in rate or makeup of the fee it determines, after public hearing, is necessary to meet the financial requirements of the Memphis/Shelby County health department air pollution control program to fulfill the activities allowed to be funded by these fees. Such review shall include an estimate of other funds available to the program including surplus or carry forward funds as well as changes in state or federal laws that could effect the program. The recommendation shall be provided to the commission no later than April 1 of each year. The city shall not, however, be required to adopt this recommendation, nor to change fees on any predetermined schedule.
(Code 1985, § 16-102; Ord. No. 4105, § 1, 5-26-1992)

CHAPTER 9-16. POLICE AND FIRE EMERGENCY ALARM SYSTEMS*

Sections:

Article 1. Generally

Sec. 9-16-1. Purpose and definitions.
Sec. 9-16-2. System types.

Article 2. Individual Users/Operators

Sec. 9-16-3. Alarm user permits; responsibilities.
Sec. 9-16-4. Contents confidential.

Article 3. False Alarms

Sec. 9-16-5. False alarms fees and penalties; dispatch records; appeals.

Article 4. Alarm Systems Contractor Not Licensed by State

Sec. 9-16-6. Alarm system standards.
Sec. 9-16-7. Licensing procedures and qualifications.
Sec. 9-16-8. Revocation, appeal and reinstatement.

Article 5. Administration

Sec. 9-16-9. General rules.

Article 6. Enforcement

Sec. 9-16-10. Malicious false alarm declared violation and city misdemeanor.
Sec. 9-16-11. Exceptions.
Sec. 9-16-12. 911 calls in non-emergency situations prohibited; penalty.

ARTICLE 1. GENERALLY

Sec. 9-16-1. Purpose and definitions.

A. *Purpose.*

1. The purpose of this chapter is to encourage alarm users and alarm systems contractors to

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***Editor's note—**Ord. No. 5729, § 1, adopted Aug. 20, 2019, amended Ch. 9-16 in its entirety to read as herein set out. Former Ch. 9-16, §§ 9-16-1—9-16-16, pertained to alarm systems, and derived from the Code 1985, § 28-126—28-140; Ord. No. 4640, § 1, adopted Jan. 19, 1999; Ord. No. 4847, § 1—15, adopted Feb. 20, 2001; Ord. No. 5306, § 1(28-141), adopted May 19, 2009; Ord. No. 5328, §§ 1—3, adopted Feb. 9, 2010; Ord. No. 5374, §§ 1, 2, adopted Sept. 28, 2010; Ord. No. 5527, §§ 1—6, adopted July 16, 2013.

State law reference—Alarm Contractors Licensing Act of 1991, T.C.A. § 62-32-301 et seq.

maintain operational reliability, properly use alarm systems and to reduce or eliminate false alarm dispatch requests.

2. This chapter governs systems intended to summon police and fire emergency response and it sets forth the requirements for permits, establishes fees, provides for penalties for violations, establishes a system of administration and sets conditions for suspension or loss of permits.

3. The licensure requirements contained in this chapter shall only apply to those individuals and entities who are not required to be licensed by the state alarm contractor's licensing law, T.C.A. § 62-32-301 et seq.

4. The issuance of an alarm permit authorizing the use of an alarm system shall not create any duty or liability on the part of the city or guarantee any police or fire department or other response from the city. Nothing in this article shall be construed to waive the city's governmental immunity from suit or from liability.

B. *Definitions.*

Alarm agent means any person employed by a licensed alarm systems contractor whose duties include the altering, installing, maintaining, moving, repairing, replacing, selling, servicing or monitoring of an alarm system. This definition shall only include persons who work for an alarm systems contractor as defined in this section. The owners, managers, corporate officers and partners of all alarm systems contractors are classified as alarm agents. Further, any person who is not an alarm agent, who, as an employee of a licensed alarm systems contractor or a contractor for the alarm systems contractor, has access to confidential information of an alarm user or to monitor radio equipment, shall be considered an alarm agent.

Alarm dispatch request means a notification to the police or fire division by an alarm systems contractor that an alarm, either manual or automatic, has been activated at a particular alarm site.

Alarm site means a single premises or location where an alarm system is installed and capable of being operated. Each tenancy, served by a separate alarm system in a building or complex, shall be considered a separate alarm site requiring separate permits.

Alarm system means a device or equipment designed to emit or transmit an alarm signal. "Alarm system" does not include an alarm installed on a vehicle unless the vehicle is permanently located at a site or will cause emergency services to be dispatched.

Alarm systems contractor or *contractor* means any person, a firm, company, partnership, association or corporation, which sells, or attempts to sell, installs services or monitors alarm systems, signal devices, fire/life safety systems, alarms, burglar alarms, security cameras used to detect burglary, breaking and/or entering, intrusion, shoplifting, pilferage or theft. This definition shall not include persons who sell alarm systems strictly in an over-the-counter capacity in an established location or businesses where the alarm system is owned, operated and monitored by the same entity or proprietary alarm divisions of a company where the alarm user is also an employee of the alarm service provider.

Alarm user means any person, firm, partnership, corporation or other entity who (which) uses an alarm system.

Commercial alarm user means an alarm user required to register as [a] business with the Tennessee Department of Revenue or the City of Memphis.

Conversion means the transaction or process by which one alarm systems contractor begins the monitoring of an alarm system previously monitored by another alarm systems contractor.

Designated qualifying agent means any individual licensed by the board whose qualifications have been demonstrated to the metro alarm review board for overseeing and supervising alarm systems contractor operations of any classification or combination of classifications covered under this chapter.

Director means the director of police or fire services of the city.

Duress means a silent alarm system generated by activation at a key pad or device intended to signal a crisis situation requiring police response.

False alarm means the activation of an alarm system through mechanical failure, malfunction, improper installation or through the negligence of the owner or user of the alarm system, which activation results in a response by a law enforcement agency.

False alarm prevention class means a class operated or designated by the metro alarm office for the purpose of educating alarm users about the problems created by false alarm dispatches and in the responsible use of their alarm system.

False automatic fire alarm means the activation of any fire alarm system, which results in a response by the fire department caused by mechanical failure, malfunction, improper installation, lack of proper maintenance or any other response that is not activated by smoke, heat, fire or emergency condition for which the fire department personnel are unable to determine the apparent cause of the alarm activation. As required by T.C.A. § 62-32-321, no alarm shall be considered "false" if it is caused by a violent act of nature. Additionally, if an alarm is considered a false report as defined by T.C.A. § 39-16-502 the alarm owner will not be cited under this chapter for a false alarm.

Fire alarm system means an alarm or monitoring system that is intended to respond to or detect fire, heat, smoke or other byproducts of combustion.

Holdup alarm means a silent or audible alarm signal generated by the manual activation of a device at a commercial property intended to signal a robbery in progress.

Keypad means a device that allows control of an alarm system by the manual entering of a coded sequence of numbers or letters. Each keypad with a separate physical address is considered a separate alarm and each keypad is required to be permitted.

Malicious fire false alarm means the intentional false reporting to the fire division of an emergency condition, or the intentional setting off of an alarm system which will cause another person to report the signal to the fire division. However, this definition is not to include the testing of an alarm system by a licensed alarm systems contractor alarm business under guidelines established by the metro alarm administrator.

Malicious police false alarm means the intentional false reporting to the police of a police emergency condition, or the intentional setting off of an alarm system which will cause another person to report the signal to the police. However, this definition is not to include the testing of an alarm system by a licensed alarm systems contractor under guidelines established by the metro alarm administrator.

Metro alarm administrator means the administrator of the alarm office.

Metro alarm office means the office of the city having the responsibility to administer the permitting and oversight of alarm systems, alarm system contractors and alarm agents subject to the authority of this chapter and chapters 2-28 through 2-33 and the regulations and procedures established by the metro alarm review board.

Metro alarm review board. The metro alarm review board shall consist of six members as follows: the metro alarm administrator; a dispatcher or other person designated by the police director; a person designated by the memphis fire director; a resident of the city who shall be appointed by the mayor subject to approval by city council; and two licensed alarm contractors who shall be appointed by the mayor subject to approval by city council.

Metro alarm review board dispute committee. The metro alarm review board dispute committee shall consist of five members, consisting of the metro alarm administrator and four persons designated by the metro alarm review board.

Monitoring means the process by which an alarm systems contractor receives signals from alarm systems and relays an alarm dispatch to the city for the purpose of summoning police response to the alarm site.

Multi-unit alarm system means an alarm system covering multiple individual units or alarm sites. Each alarm site within a multi-unit alarm system must have a separate alarm permit.

Non-permitted alarm system means an alarm system for which no valid alarm permit is in existence.

Notice means written notice of false alarm by U.S. mail addressed to the person to be notified at his or her last known address.

Officer means a city police officer.

Panic alarm means a silent alarm signal generated by the manual activation of a device in a residence intended to signal a crisis requiring police response.

Person means an individual, corporation, partnership, association, organization or similar entity.

Police emergency alarm system means an assembly of equipment or devices which is designed, arranged or used for the detection of a hazardous condition or an

unauthorized entry or attempted entry into a building, structure or facility, or for alerting persons of a hazardous condition or the commission of an unlawful act within a building, structure or facility, and which emits a sound, or transmits a signal or message when activated, to which annunciation a law enforcement agency or other service agency may be summoned to respond, but shall exclude a proprietary system.

Proprietary system means an alarm system emitting alarm or supervisory signals from within a control center, the control center being under the supervision of the proprietor of the protected premises. If a proprietary system includes any signal visible or audible outside the protected premises, it thereby becomes a police emergency alarm system as defined in this section.

Remote visual inspection means a visual inspection of the premises protected by the burglar alarm system which is accomplished through the use of a video camera or other similar device to capture real time visual images of the premises to the alarm system user, alarm company operator, private guard responder, or person or entity authorized by the alarm system user. The visual images must be sufficiently discernable to permit the viewer to confirm that an unauthorized entry, attempted unauthorized entry, or other crime has occurred at the premises protected by the burglar alarm system.

Residential alarm user means an alarm user that uses an alarm on private property and is not considered a commercial alarm user.

Signature means the act of signing one's name or making a mark in lieu thereof; the name of a person written with his or her own hand to signify that the writing which precedes is in accordance with his or her wishes or intentions; or an electronic marking or signature made to serve as an indication of the party's execution or authentication of the document and intent to be bound by it.

Signed certification means the act of a handwritten signature certifying receipt or an electronic signature certifying receipt.

Verify means, to contact the alarm site by telephonic or other electronic means in order to verify as required by subsection 9-16-3(E) the validity of the alarm before requesting a police dispatch.
(Ord. No. 5729, § 1(28-126), 8-20-2019)

Sec. 9-16-2. System types.

A. No automatic telephone dialing devices of any kind shall be permitted to dial directly to the 911. No business or person shall cause a programmed tape, digital, or other recorded message to be sent to the alarm dispatch center, nor shall any business or person cause a programmed tape, digital, other recorded message to be sent to any person or place to call for police emergency services. Police communications cannot receive calls from automated dialers.

B. Alarm systems contractors shall not program alarm systems so that they are capable of sending one plus duress alarms without the prior written approval of the alarm administrator's office.

C. Alarm systems contractors shall not install devices for activating a hold-up alarm which is single action, non-recessed button.
(Ord. No. 5729, § 1(28-127), 8-20-2019)

ARTICLE 2. INDIVIDUAL USERS/OPERATORS

Sec. 9-16-3. Alarm user permits; responsibilities.

A. *Required.*

1. No alarm user shall operate, or cause to be operated, an alarm system unless a valid alarm permit has been issued by the metro alarm office.
2. It is the responsibility of the alarm user to obtain a permit for each alarm system.
3. Alarm permits must be renewed each year on or before July 1 of each calendar year by the alarm user when the alarm systems contractor provides an alarm or monitoring service to an alarm user.
4. All duties and responsibilities for the use of and/or operation of a non-permitted alarm system operation at an alarm site and the obligation to pay all fines, penalties and other amounts authorized in this article in connection with such system shall be imposed on the alarm user.
5. A separate alarm permit is required for each alarm site. Multi-unit facilities must have a valid alarm permit for each unit. An alarm

system may not be operated, used, installed or monitored to protect more than one alarm site.

6. If a licensed alarm systems contractor uses an alarm system to protect its own premises, it shall obtain a permit for such system as required in this section.

7. Upon submission of a completed permit form and the permit fee, the metro alarm office shall have discretion to issue an alarm permit to an applicant unless the applicant has:

   a. Failed to provide proof of requisite alarm system requirements;

   b. Failed to pay a fine assessed under this section;

   c. Had an alarm permit for the alarm site suspended or revoked, and the violation causing the suspension or revocation has not been corrected to the satisfaction of the metro alarm administrator.

If the metro alarm administrator denies an application for a permit, the individual seeking the license may file an appeal with the metro alarm board.

8. The issuance of an alarm permit authorizing the use of an alarm system shall not create any duty or liability on the part of the city or guarantee any police or fire department or other response from the city. Nothing in this article shall be construed to waive the city's governmental immunity from suit or from liability.

B. *Application information.*

1. Except as otherwise set out here below, each permit application or request must include the following information:

   a. The name, address, and telephone numbers of the person who will be the permit holder and be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this section;

   b. The name, address, and telephone numbers of the alarm systems contractor providing alarm or monitoring services to the alarm permit holder;

   c. The classification of the alarm site as residential, commercial, medical, or government owned facility;

   d. If the alarm is housed at an individual facility or the alarm system is housed at a multi-unit facility, whichever is applicable;

   e. Signed certification from the alarm user and the alarm systems contractor stating;

      (1) The date of installation;

      (2) The name, address, telephone number, Tennessee Alarm Contractor's License number and Tennessee Qualifying Alarm Agent's license number for the alarm systems contractor performing the alarm system installation, and responsible for providing repair service to the alarm system. If the alarm systems contractor is not required to be licensed under the Tennessee Alarm Contractor's Licensing Law, all provisions in section 9-16-7 of this chapter shall be met by the alarm systems contractor in addition to all other provisions under this chapter and chapters 2-28 through 2-33 prior to an alarm user permit being issued;

      (3) The name, address, telephone number, state alarm contractor's license number and the state qualifying alarm agent's license number for the monitoring company or central station if different from the alarm systems contractor performing the responsibilities listed in this section. If the monitoring company is not required to be licensed under the state alarm contractor's licensing law, all revisions in section 9-16-7 of this chapter shall be met by the monitoring company in addition to all other provisions under this chapter and chapters 2-28 through 2-33;

      (4) A list containing the names, addresses and telephone numbers of at least two persons and at least

one of those individuals must have keys and keypad numbers for the residential alarm site;

(5) That a set of written operating instructions for the alarm system;

(6) That the alarm systems contractor has trained the applicant, including instructions on how to avoid false alarms and the penalties, fines and consequences for false alarms under this chapter have been provided to the alarm user;

(7) A certificate from an alarm systems contractor duly licensed under the state alarm contractor's licensing board signed by the designated qualifying agent stating that the alarm system has been tested. If the alarm systems contractor is not required to be licensed under state alarm contractor's licensing board, then all provisions in section 9-16-7 of this chapter in addition to all other provisions under this chapter and chapters 2-28 through 2-33 shall be met by both the alarm systems contractor and the designated qualifying agent; and

(8) Entities identified as proprietary under definition in section 9-16-1 are exempt and provide only that information as required by the metro alarm administrator; and

f. Classification of the alarm site as being equipped with duress alarm, panic alarm, hold up alarm, or remote visual inspection if applicable.

2. Any false statement of a material matter made by an applicant for the purpose of obtaining an alarm permit shall be sufficient cause for refusal to issue or renew a permit.

3. An alarm permit cannot be transferred to another person or another address, except as provided for in subsection 19-16-3(F)(2). An alarm user shall inform the alarm administrator of any change that alters any information listed on the permit application within five business days.

C. *Fees.*

1. All fees, fines and penalties owed by an applicant must be paid before a permit may be issued or renewed. Payments will not be accepted on current fees, fines and penalties until past due fees, fines and penalties are paid in full. The permit fee shall be issued by the metro alarm administrator, or alarm administrator's designee, upon the following conditions:

a. There shall be a $30.00 permit fee for the first year for residential customers. There shall be a $60.00 permit fee for the first year for commercial customers.

b. There shall be an annual renewal fee of $10.00 for residential customers and $25.00 for commercial customers. Renewal fees become delinquent after July 30 of each calendar year. Fees paid after July 30 will include a delinquent fee of $30.00 for residential customers and $60.00 for commercial customers.

c. It is the responsibility of the alarm user to renew the permit for each active alarm or monitoring system.

D. The metro alarm administrator may deny the renewal of permits based if the permit holder has outstanding fees, fines or penalties which have been incurred as a result of the use of the system have not been paid. If an applicant has false alarm citations pending in the administrative process or a court system, then a permit may be issued or renewed at the discretion of the metro alarm administrator.

E. *Commercial alarm users.* The following provisions are applicable to commercial alarm users who have at least six false alarms from July 1 to June 30 of any year.

1. Commercial alarm users may be required to show proof an alarm system with the ability to confirm validity of the alarm prior to police dispatch.

2. A commercial alarm system must confirm an unauthorized entry or attempted unauthorized entry upon the premises, building or structure protected by alarm system.

3. In-person confirmation: confirmation may be made by the alarm system user, other person at

or near the scene of the activation, private guard responder. An in-person confirmation shall include an observation of or inspection of the premises.

4. Digital verification: on-site digital verification may be made by an alarm systems contractor or alarm user verifying the validity of alarm through digital surveillance. The images must confirm unauthorized entry or attempted unauthorized entry.

F. *Multi-unit alarm systems.*

1. *Alarm systems in multi-unit dwelling contracted for by individual tenant.* If an alarm system is installed by an individual tenant in an apartment complex unit, the tenant may provide the name of a representative of the apartment owner or property manager who can grant access to the apartment to the alarm business which is providing any services to the alarm user pertaining to the alarm system.

   A tenant of a multi-unit dwelling shall not operate an alarm system in a residential unit before an alarm permit has been issued by the alarm administrator. The fees for this permit and the renewal of this permit shall be the same as the fees and renewal for a residential alarm site.

   For the purpose of enforcing this section against an individual residential unit, the tenant is responsible for false alarm dispatches emitted from the alarm system in the tenant's residential unit.

2. *Alarm systems in multi-unit dwelling within residential units contracted by owner or property manager.* If the owner or property manager of a multi-unit dwelling provides alarm systems in each residential unit as an amenity, then the owner or property manager of the multi-unit dwelling shall not operate an alarm system in each residential unit before an alarm permit has been issued by the alarm administrator. The permits are transferable from tenant to tenant at the same alarm site. Each living unit within the multi-unit dwelling shall be considered one alarm site and be required to be permitted. The fees for this permit and the renewal of this permit shall be the same as the fees and renewal for a residential alarm site.

   All units shall be required to be permitted if the alarm system is active, regardless of the unit's occupancy status.

   For purposes of assessing fines and enforcing this section, the master alarm permit holder is responsible for payment of fines for false alarm dispatches emitted from the alarm systems in residential units.

3. *Alarm systems in multi-unit facility contracted for by individual alarm user.* If an alarm system is installed by an individual alarm user, the individual alarm user may provide the name of a representative of the multi-unit facility or property manager who can grant access to the unit to the alarm business which is providing any services to the individual alarm user pertaining to the alarm system.

   An individual alarm user in a multi-unit facility shall not operate an alarm system in the multi-unit facility before an alarm permit has been issued by the alarm. The fees for this permit and the renewal of this permit shall be the same as the fees and renewal for a commercial alarm site

   For the purpose of enforcing this section against an individual alarm user, the individual alarm user is responsible for false alarm dispatches emitted from the individual's alarm system.

4. *Alarm systems in multi-unit facility contracted by the owner or property manager.* If the owner or property manager of a multi-unit facility provides alarm systems in each unit as an amenity, then the owner or property manager of the multi-unit facility shall be required to obtain a permit, or apply for a permit for each unit and show proof of a permit prior to activating the alarm system. The permits are transferable from tenant to tenant at the same alarm site. However, if the owner or property manager requires individual tenants to apply for and obtain permits, the permit shall not be transferable. Regardless, each unit within the multi-unit facility shall be considered one alarm site and be required to be permitted. The fees

for this permit and the renewal of this permit shall be the same as the fees and renewal for a commercial alarm site.

All units shall be required to be permitted if the alarm system is active, regardless of the unit's occupancy status.

For purposes of assessing fines and enforcing this section, the master alarm permit holder is responsible for payment of fines for false alarm dispatches emitted from the alarm systems in multi-unit facilities.

G. *Permit duration and renewal.*

1. A permit shall expire at midnight on June 30 of each calendar year. The permit must be renewed annually, for a fee of $10.00 for residential users and $25.00 for commercial users by the metro alarm administrator. The alarm administrator may notify the alarm user of the need to renew prior to the expiration of the permit. It is the responsibility of the alarm user to renew the permit prior to the expiration date. Failure to renew will be classified as use of a non-permitted alarm system and penalties shall be assessed without waiver; except, if the alarm system is installed after January 1, but before July 1 of each calendar year, and the permit fee was paid, the alarm site will not be subject to an annual renewal fee until the following July 1, provided the alarm site has not exceeded its false alarm threshold two false alarms.
2. Fees paid after July 30 will include a delinquent fee of $30.00 for residential customers and $60.00 for commercial customers.
3. If an alarm user does not have a proper permit, the alarm user will be charged an additional $20.00 for administrative costs associated with false alarms.

H. *Proper alarm systems operation and maintenance.* An alarm user shall:

1. Maintain the premises and the alarm system in a manner that will minimize or eliminate false alarm dispatches;
2. Make every reasonable effort to respond or cause a representative to respond to the alarm system's location within a reasonable amount of time when notified by the city or the alarm company to deactivate a malfunctioning alarm system, to provide access to the premises, or to provide security for the premises;
3. Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report; and
4. Adjust the mechanism or cause the mechanism to be adjusted so that an alarm signal audible on the exterior of the alarm system will sound for no longer than 15 minutes after being activated. This shall provision shall not apply to duress, hold up, panic or glass break signals.
5. The alarm user or permit holder shall cause a properly sized and easy to locate address of the alarm company to be placed at the alarm site as determined by the metro alarm administrator.

(Ord. No. 5729, § 1(28-128), 8-20-2019)

Sec. 9-16-4. Contents confidential.

The information contained in an alarm user permit application required by this section and other information received by the alarm administrator through correspondence or communications with an alarm user shall be securely maintained and restricted to inspection only by the alarm administrator or certain officers or city employees specifically assigned the responsibility for handling and processing alarm user permits in the course of official duties or as otherwise required by law. The register of business subject to a verified response shall remain confidential.
(Ord. No. 5729, § 1(28-129), 8-20-2019)

ARTICLE 3. FALSE ALARMS

Sec. 9-16-5. False alarms fees and penalties; dispatch records; appeals.

A. *Fines.*

1. An alarm user shall be subject to fines, warnings, civil penalties, and suspension or revocation of permit after the first false alarm dispatch from July 1 to June 30 based upon the following schedule:

No. of False Alarm Dispatches for Police for permitted alarms	Action Taken	Fine	Fees
1	Written Notice	No Fine	No Fees
2—6	Written Notice	$50.00	Cost of service
7 or more	Written Notice, potential revocation of permit, ordinance and/or board summons, future alarms may be considered false in nature and may require additional confirmation prior to response.	$50.00	Cost of service + court costs and fines
No. of Unintentional Dispatches for Fire	Action Taken	Fine	Fees
1	Written Notice	No Fine	No Fees
2 or more	Written Notice and/or board summons.	$50.00	Cost of service + court costs and fines
No. Hold Up Alarms for permitted systems	Action Taken	Fine	Fees
1	Written Notice	No Fine	No Fees
2 or more	Written Notice	$50.00	Cost of service + additional resource service cost

[1] Cost of service and additional resource service cost ([subsections 9-16-5(A)(9) and (10)])

2. Any false or unintentional alarm from an unpermitted alarm shall result a fee of $20.00 (for additional admininstrative costs) plus the permit fee and cost of service.

3. Any individual or entity which receives notice of a false alarm may dispute the false alarm by filing with the metro alarm office, within 30 business days of the notification of the false alarm, a notice of dispute. The metro alarm administrator will review any such notice of dispute. If the metro alarm administrator denies the dispute the matter may be appealed to the metro alarm board dispute committee within five business days of the administrative decision. Adjudication of disputes before the metro alarm board dispute committee shall be governed by sections 9-16-10, 9-16-12 and 9-16-13. A failure to timely file a notice of dispute shall constitute an admission of the facts contained in the false alarm notice.

4. Disputes for commercial alarms verified by in-person confirmation that result in a false disposition, must be notarized statement by the individual that verified the incident.

5. Failure to comply with fines, penalties within 60 days of issuance may result in mandatory revocation of permit, online mandatory class approved by metro alarm office and review by the metro alarm office. Failure to complete online mandatory class may result in a $150.00 penalty.

6. Failure to comply with the above conditions may result in alarm user being summoned before the metro alarm board dispute committee or into city court, or other court of competent jurisdiction, by issuance of a mandatory summons issued by authorized officers.

7. Any owner, user or operator of any alarm system found to have violated this section two times or more in any permit period, which runs from shall also be liable for a service fee to the city for the actual cost of any response by law enforcement or emergency personnel, and for the actual cost to the city for any interruption of public services or closure of public facilities reasonably necessitated by response to such false alarm, in an amount up to the maximum allowed by state law. Additionally, any owner, user or operator of any alarm system will also be responsible for the admininstrative fees associated with the enforcement of this chapter.

8. Except for fire or mechanically-activated water flow alarm devices and alarm systems owned

and operated by any governmental entity or subdivision, upon a finding that an owner, user or operator has violated this section six times in any permit year which runs from July 1 to June 30, said owner, user or operator shall further be prohibited from operating the alarm system at issue in such a manner as to be the sole basis for a request for response by law enforcement personnel for a the remainder of the permit year from the date of such finding.

9. The metro alarm office shall collect the fines and civil penalties for false alarms in accordance with this section. Failure to comply with any of the action prescribed by this section within the time period required by the alarm office shall be considered an ordinance violation and the alarm user shall be subject to additional civil penalties.

10. The Memphis police director shall submit to the metro alarm office an amount commensurate to the cost of officers answering false alarms for approval by resolution no less than three months prior to the end of the fiscal year in every even numbered year. The Memphis fire director shall submit to the metro alarm office an amount commensurate to the cost of the fire department answering false alarms for approval by resolution no less than three months prior to the end of the fiscal year in every even numbered year.

11. The metro alarm administrator shall submit the amounts set forth in subsections [(8) and (9)] along with the administrative costs associated with enforcement of this chapter for approval by resolution on or before the second council meeting in May of each year.

B. *Non-permitted alarm system.*

1. Any person operating a non-permitted alarm system (whether revoked or suspended) will be subject to a false alarm penalty in addition to any other fines. Persons operating an alarm system that was never permitted shall receive written notice and will have ten business days after such violation to apply for a permit. The metro alarm office shall send a certified letter to users that have not applied within the ten days notifying alarm user that a false alarm fine and service fees will be levied if application is not complete a total of 30 days after the original violation. In addition, alarm user will further be prohibited from operating the alarm system at issue in such a manner as to be the sole basis for a request by law enforcement personnel until application has been submitted and all fees and fines have been paid.

2. Any subsequent false alarm calls to a non-permitted alarm system shall also be liable for a service fee to the city for the actual cost of any response by law enforcement or emergency personnel, and for the actual cost to the city for any interruption of public services or closure of public facilities reasonably necessitated by response to such false alarm, along with the admininstrative costs associated with enforcement of this chapter and in an amount up to the maximum allowed by state law and a fee of $20.00 for the failure to have a permit.

C. *Reports.* All alarm installation companies providing services in the city shall, prior to activation, send the alarm office application for permit. In addition, alarm monitoring firms shall provide after the fifth day of the end of each month, a list of any and all locations where alarm monitoring services are provided. Such list shall remain confidential to the extent allowed by law.
(Ord. No. 5729, § 1(28-130), 8-20-2019)

ARTICLE 4. ALARM SYSTEMS CONTRACTOR NOT LICENSED BY STATE

Sec. 9-16-6. Alarm system standards.

Alarm systems contractors which perform monitoring services must maintain for a period of at least one year following request for police dispatch to an alarm site, records relating to the dispatch. Those records are to be maintained July 1, 00:00 to June 30, 23:59. Records must include the name, address, and phone number of the alarm user, the alarm system zone(s), or point(s) activated, (if applicable), the time of the request for law enforcement dispatch and evidence that an attempt to verify was made to the alarm site prior to the request for law enforcement dispatch, where applicable. The alarm administrator may request copies of such records for individually named alarm users.
(Ord. No. 5729, § 1(28-131), 8-20-2019)

Sec. 9-16-7. Licensing procedures and qualifications.

A. Any person engaging in an alarm systems contractor or installing, servicing, or monitoring alarm systems in the city not required to be licensed under the state alarm contractor's licensing law shall be approved by the metro alarm administrator.

B. An alarm systems contractor which is not required to be licensed under the Tennessee Alarm Contractor's Licensing Act, shall:

1. Have a regular place of business at a permanent fixed location;

2. Have a business license or license for the city and county in which the business is located;

3. Complete a background check for all alarm system contractors and employees;

4. Provide proof that all alarm systems contractors and employees with access to records, diagrams, plans or other sensitive information pertaining to monitored, installed or proposed alarm systems are at least 18 years of age.

C. No person shall do business under this chapter unless the business entity has been approved by the alarm administrator and meets the requirements of this section.

D. *Insurance.* No approval shall be issued under this chapter and chapters 2-28 through 2-33 unless the alarm systems contractor files with the metro alarm review board evidence of insurance as follows:

A policy of liability insurance providing the following minimum coverage:

1. $100,000.00 because of bodily injury or death of one person as a result of the negligent act or acts of the principal insured or the principal insured's agents operating in the course and scope of such agent's employment;

2. $100,000.00 because of injury to or destruction of property in the course and scope of such agent's agency.

Every business company shall at all times maintain on file with the alarm administrator certificates of insurance as required by this chapter and chapters 2-28 through 2-33, and upon failure to do so, the approval of such business/company shall be suspended and not reinstated until the insurance certificates are filed.
(Ord. No. 5729, § 1(28-132), 8-20-2019)

Sec. 9-16-8. Revocation, appeal and reinstatement.

A. *Revocation, suspension or loss of alarm permit.*

1. A person commits an offense if he or she operates an alarm system during the period in which his or her alarm permit is suspended or revoked.

2. Unless there is separate indication that there is a crime in progress, the respective law enforcement office may refuse police response to an alarm dispatch request at an alarm site for which the alarm permit is revoked.

B. *Appeal from denial, suspension or revocation of permit.*

1. If the alarm administrator denies the issuance or renewal of a permit, or suspends or revokes a permit, he or she shall send written notice of his or her action and a statement of the right to appeal, by certified mail, return receipt requested, to the applicant or alarm user.

2. The applicant or alarm user may appeal the decision of the alarm administrator by filing a written request for a review setting forth the reasons for the appeal within 20 days after receipt of the notice from the alarm administrator. An alarm systems contractor may submit the request for review on behalf of an alarm user.

3. Filing of a request for appeal shall stay the action by the alarm administrator suspending or revoking a permit until a review has been completed. If a request for appeal is not made within the 20-day period, the action of the alarm administrator is final.

4. The appeal shall be heard by the metro alarm board dispute committee. The decision of the metro alarm administrator shall be overturned only upon a showing that the decision was arbitrary and capricious. Additionally, the metro alarm board dispute committee may impose other conditions it deems appropriate for the issuance of the permit.

C. *Reinstatement of permit.* A person whose alarm permit has been revoked may be issued new permit if the person:

1. Pays, or otherwise resolves all fees, fines and penalties;
2. Submits a certificate from an alarm systems contractor designated qualifying agent licensed under the provisions of this chapter, or the applicable statutes of the state, stating that the alarm system has been inspected, repaired or upgraded to meet current industry standards; and
3. Satisfies any other conditions or requirements set by the metro alarm board.

(Ord. No. 5729, § 1(28-133), 8-20-2019)

ARTICLE 5. ADMINISTRATION

Sec. 9-16-9. General rules.

A. *Establishment of office of metro alarm administrator.* There is established the office of alarm administrator, under the supervision of the city treasurer, to oversee the installation, service, maintenance and use of alarm security systems in the City of Memphis, who shall oversee operations. The office shall be operated as a self-funding unit and permitting revenue received by such office are to be used exclusively for the continued operation of the office. The office is to maintain a reserve of $100,000.00 plus ten percent of the previous year's operating expenses. The metro alarm office may reimburse the city attorney's office for $25,000.00 for resources used to defend matters under this chapter. Any surplus revenue will be divided pro rata between the Memphis Police and Fire Department based on the percentage of fees collected from alarm system users.

B. *Metro alarm administrator.* The metro alarm administrator shall act as executive director, and his or her appointment shall be by the mayor of the city. The metro alarm administrator may adopt regulations, in accordance with this subtitle, article VI, police emergency alarm system to:

1. Establish the form and content of the registrations and permits required by this subtitle;
2. Establish the procedures that regulate the request for police response to an alarm location;
3. Establish policies and procedures to ensure that alarm monitoring companies are verifying alarms; calling notification lists; and notifying the alarm dispatch center of alarm cancellations;
4. Oversee the creation and implementation of an alarm user awareness class;
5. Enforce the criteria for revocation of any registration or permit required by this subtitle;
6. Enforce the criteria for reinstatement of a registration or permit required by this subtitle after revocation;
7. File suit in any court of competent jurisdiction for the collection of all outstanding fees, fines and penalties; and
8. Further the metro alarm administrative office's ability to carry out and enforce the provisions of this subtitle.

C. *Metro alarm review board.* The metro alarm review board shall consist of six members as follows: the metro alarm administrator, a dispatcher or other person designated by the police director; a person designated by the Memphis Fire Director; a resident of the city who shall be appointed by the mayor subject to approval by city council; and two licensed alarm contractors who shall be appointed by the mayor subject to approval by city council. The appointed members shall serve for a term of two years, and shall serve no more than two consecutive terms. The chair of the metro alarms review board shall be voted on by the members. The metro alarm review board shall meet no less than twice a year.

D. *Metro alarm review board dispute committee.* The metro alarm review board dispute committee shall consist of five members designated by the metro alarms review board. The dispute committee shall hear all appeals from alarm users asserting an alarm should not be considered a false alarm. The burden shall be on the alarm user to demonstrate why the alarm was not false and why the alarm user should not be charged the fines, fees and penalties assessed herein. If an alarm user is dissatisfied with the decision of the dispute committee the alarm user may file an appeal in Chancery Court of Shelby County, Tennessee in accordance administrative act.

(Ord. No. 5729, § 1(28-134), 8-20-2019)

ARTICLE 6. ENFORCEMENT

Sec. 9-16-10. Malicious false alarm declared violation and city misdemeanor.

Any person who shall cause a malicious false alarm to be reported shall be guilty of a violation, punishable as provided in section 1-24-1 of this Code, or section 1-4 of the Code of Shelby County, whichever is applicable.
(Ord. No. 5729, § 1(28-135), 8-20-2019)

Sec. 9-16-11. Exceptions.

A. Sections 9-16-1 and 9-16-7 shall not apply to any governmental entity with regard to payment of a fee or a penalty or the revocation of a permit which provides, maintains and services police emergency alarm reporting systems for its own protection when acting in a governmental capacity as opposed to a proprietary function. These governmental entities shall be required to secure permits and renew such as required so that their alarm devices will be recorded by the police services division.

B. When law enforcement services are requested to respond to the governmental entities, all directives of this chapter shall be in force. This is not to exempt private businesses which provide, maintain or service governmental entities with such alarm systems. This exception is to include electronic surveillance program systems used by the law enforcement agencies.
(Ord. No. 5729, § 1(28-136), 8-20-2019)

Sec. 9-16-12. 911 calls in non-emergency situations prohibited; penalty.

A 911 call for a communication that is for some purpose other than to report an emergency or an event that the person placing the call reasonably believes to be an emergency is a Class C misdemeanor, subject to a $50.00 fine.
(Ord. No. 5729, § 1(28-136), 8-20-2019)

CHAPTER 9-20. AMBULANCES*

Sections:

Article 1. General Provisions

Sec. 9-20-1. Financial responsibility of owners and operators.
Sec. 9-20-2. Driver and attendant to be available.
Sec. 9-20-3. Attendants to have first aid certificate.
Sec. 9-20-4. Age of drivers—Driver's license.
Sec. 9-20-5. Display of red light on vehicle.
Sec. 9-20-6. Vehicle to be equipped with oxygen, splints and sandbags.
Sec. 9-20-7. Notice to police of accident calls.

Article 2. City's Emergency Service

Sec. 9-20-8. Established.
Sec. 9-20-9. Operation and control by fire services division.
Sec. 9-20-10. Fees.
Sec. 9-20-11. False alarms or calls.
Sec. 9-20-12. Rules and regulations.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9-20-1. Financial responsibility of owners and operators.

All owners and operators of ambulances shall meet the requirements of the laws of the state as to financial responsibility for the operation of their vehicles.
(Code 1967, § 6-1; Code 1985, § 16-106)

Sec. 9-20-2. Driver and attendant to be available.

Each vehicle designated as an ambulance shall have a driver and an attendant available at all times while an injured or ill person is occupying the vehicle.
(Code 1967, § 6-2; Code 1985, § 16-107)

Sec. 9-20-3. Attendants to have first aid certificate.

All ambulance attendants employed to render aid to the injured persons suffering from an illness shall be required to complete a course in first aid given by the

***Charter reference—**Authority to regulate ambulances, § 745.

State law reference—Emergency Medical Services Act of 1983, T.C.A. § 68-140-301 et seq.

Red Cross before being assigned as such attendants and shall be recertified by the Red Cross annually as to proficiency.
(Code 1967, § 6-3; Code 1985, § 16-108)

Sec. 9-20-4. Age of drivers—Driver's license.

Ambulance drivers shall be 21 years of age or over and shall be duly licensed to operate vehicles under the laws of the state.
(Code 1967, § 6-4; Code 1985, § 16-109)

Sec. 9-20-5. Display of red light on vehicle.

Vehicles designated as ambulances shall display at least one lighted red lamp visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle while on emergency runs.
(Code 1967, § 6-7; Code 1985, § 16-110)

Sec. 9-20-6. Vehicle to be equipped with oxygen, splints and sandbags.

Each vehicle designated as an ambulance shall be equipped with oxygen apparatus complete with pressure regulator with one hour's supply at normal rate of usage, and further shall be equipped with a set of splints, sandbags and first aid kits.
(Code 1967, § 6-8; Code 1985, § 16-111)

Sec. 9-20-7. Notice to police of accident calls.

Every person operating an ambulance within the city shall, upon receipt of a call to any accident involving death, injury or property damage, before leaving any establishment to answer such call, notify the division of police services of the location of the accident and the fact that they are answering the call.
(Code 1967, § 6-9; Code 1985, § 16-112)

ARTICLE 2. CITY'S EMERGENCY SERVICE

Sec. 9-20-8. Established.

There is established an emergency ambulance service which shall be and is incident to the operation of the fire services division. All policies governing this ambulance service shall be determined by the fire services division, with a copy of the policy sent to the chairperson of the council. Any change in the policy will be provided to the council.
(Code 1967, § 6-20; Code 1985, § 16-126; Ord. No. 4667, § 1, 4-20-1999)

Sec. 9-20-9. Operation and control by fire services division.

The city's emergency ambulance service shall be operated and controlled by the fire services division for emergency calls only.
(Code 1967, § 6-21; Code 1985, § 16-127)

Sec. 9-20-10. Fees.

A. There shall be a fee charged for each patient transported by an ambulance operated by the fire services division under this chapter, except that for any trip on behalf of a city employee on duty, there shall be no charge. No fee shall be charged for any passenger accompanying the patient, provided consent is given by the driver of the ambulance to such accompanying passenger.

B. In the event that members of the same immediate family living under the same roof (husband, wife and/or children) are transported to one hospital, the charge will be considered one charge, regardless of the number of members of the family, except that if more than one stop is made an additional fee will a charged for each stop, or if more than one ambulance is used an additional fee will be charged for each ambulance.

C. In the event that members of separate families are transported in the same ambulance, the charge will be a separate fee for each of the families.

D. There shall be a fee charged where an emergency call is made, but it is determined by the ambulance attendants that on-the-scene-treatment is adequate without transporting a patient to the hospital or when further treatment is waived by the patient.

E. Fees for such calls shall be fixed by the director of fire services.

F. Such fees shall be paid into a special general fund revenue account, separate from all other revenues.
(Code 1967, § 6-22; Code 1985, § 16-128; Ord. No. 1822, § 1, 8-14-1973; Ord. No. 2379, § 1, 2-17-1976; Ord. No. 2542, § 1, 1-4-1977; Ord. No. 2904, § 1,

7-31-1979; Ord. No. 3196, § 1, 4-6-1982; Ord. No. 3210, § 1, 6-15-1982; Ord. No. 3406, § 1, 9-25-1984; Ord. No. 3920, § 11, 1-9-1990)

Sec. 9-20-11. False alarms or calls.

It is unlawful for any person to willfully turn in any false alarm or call for the emergency ambulance service provided for in this chapter.
(Code 1967, § 6-23; Code 1985, § 16-129)

Sec. 9-20-12. Rules and regulations.

The director of fire services shall promulgate such rules and regulations as he or she deems advisable for the operation of the city's emergency ambulance service.
(Code 1967, § 6-24; Code 1985, § 16-130)

CHAPTER 9-24. CIVIL EMERGENCIES*

Sections:

Sec. 9-24-1. Definitions.
Sec. 9-24-2. Written declaration by mayor.

***State law reference—**Civil emergencies, T.C.A. § 38-9-101 et seq.

Sec. 9-24-3. General curfew—Duration.
Sec. 9-24-4. Powers of mayor.
Sec. 9-24-5. Inability or absence of mayor—Substitute officer designated.
Sec. 9-24-6. Persons not bound by curfew.
Sec. 9-24-7. Procurements made during civil emergency.
Sec. 9-24-8. Immunity to city and indemnification in use of procurements.
Sec. 9-24-9. Violations—Penalties.

Sec. 9-24-1. Definitions.

As used in this chapter:

Civil emergency is defined to be:

1. A riot or unlawful assembly characterized by the use of actual force or violence or a threat to use force if accompanied by the immediate power to execute by three or more persons acting together without authority of law;
2. Any natural disaster or manmade calamity including but not limited to flood, conflagration, cyclone, tornado, earthquake or explosion within the geographic limits of a municipality resulting in the death or injury of persons, or the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare;
3. The destruction of property, or the death or injury of persons brought about by the deliberate acts of one or more persons acting either alone or in concert with others when such acts are a threat to the peace of the general public or any segment thereof.

Curfew is defined as a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of the municipality except persons officially designated to duty with reference to such civil emergency or those lawfully on the streets as defined hereinafter.

Substitute officer is defined as an official who shall act in the absence or inability to act of the mayor as provided in this chapter and chapters 6-56, 6-72, 9-32, 9-88, 10-4 through 10-32, 12-64 and 12-68 in cases of civil emergencies.

(Code 1967, § 22-91; Code 1985, § 20-66; Ord. No. 170, § 1, 5-14-1968; Ord. No. 1226, § 1, 4-11-1972)

State law reference—Similar provisions, T.C.A. § 39-1-101.

Sec. 9-24-2. Written declaration by mayor.

When, in the judgment of the mayor, a civil emergency as defined in this chapter is determined to exist, he or she shall forthwith proclaim in writing the existence of same, a copy of which proclamation will be filed with the comptroller.

(Code 1967, § 22-92; Code 1985, § 20-67; Ord. No. 170, § 2, 5-14-1968)

State law reference—Similar provisions, T.C.A. § 39-1-102.

Sec. 9-24-3. General curfew—Duration.

A. After proclamation of a civil emergency by the mayor he or she may order a general curfew applicable to such geographical areas of the municipality or to the municipality as a whole, as he or she deems advisable, and applicable during which hours of the day or night as he or she deems necessary in the interest of the public safety and welfare. Such proclamation and general curfew shall have the force and effect of law and shall continue in effect until rescinded in writing by the mayor but not to exceed 15 days.

B. Until overruled by final decision of a court of last resort, the provisions of this section shall apply only to a general curfew applicable to the municipality as a whole and may not be applicable only to such geographical areas of the municipality as the mayor deems advisable, but should this sentence be found improper by such court of last resort, then, in that event, this sentence will be considered as having not been passed, such being the legislative intent of the council.

(Code 1967, § 22-93; Code 1985, § 20-68; Ord. No. 170, § 3, 5-14-1968)

State law reference—Similar provisions, T.C.A. § 39-1-103.

Sec. 9-24-4. Powers of mayor.

After proclamation of a civil emergency the mayor may, at his or her discretion, in the interest of public safety and welfare:

A. Order the closing of all retail liquor stores;

B. Order the closing of all establishments wherein beer or alcoholic beverages are served;

C. Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and/or beer is permitted;

D. Order the discontinuance of the sale of beer;

E. Order the discontinuance of selling, distribution or giving away of gasoline or other liquid flammable or combustible products in any container other than a gasoline tank property affixed to a motor vehicle;

F. Order the closing of gasoline stations, and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products;

G. Order the discontinuance of selling, distributing, dispensing or giving away of any firearm or ammunition of any character whatsoever;

H. Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms and/or ammunition;

I. Issue such other orders as are necessary for the protection of life and property.

(Code 1967, § 22-94; Code 1985, § 20-69; Ord. No. 170, § 4, 5-14-1968)

State law reference—Similar provisions, T.C.A. § 39-1-105.

Sec. 9-24-5. Inability or absence of mayor—Substitute officer designated.

A. In the event of the inability to act or absence of the mayor during any civil emergency as defined in this chapter, the chairperson of the city council or in such chairperson's absence or inability to act, the member of the council who is the most immediate past chairperson is designated as substitute officer as defined herein and shall act for and in place of the mayor with respect to any civil emergencies as provided for in this chapter.

B. In the event there is no immediate past chairperson serving on the council, then by majority vote a substitute officer shall be selected from the remaining members of the council to serve.

C. The above described substitute officer to serve in place of the mayor or chairperson in civil emergencies shall have no duties the chairperson pro tem who shall be selected as provided in the rules of procedure of the council heretofore adopted by resolution.

(Code 1967, § 22-94.1; Code 1985, § 20-70; Ord. No. 1226, § 2, 4-11-1972)

Sec. 9-24-6. Persons not bound by curfew.

Any curfew as defined by this chapter shall not apply to persons lawfully on the streets and public places during a civil emergency who have obtained permission of the local chief of police or other law enforcement officer then in charge of municipal law enforcement which permission shall be granted on good cause shown. This curfew also shall not apply to medical personnel in the performance of their duties.

(Code 1967, § 22-96; Code 1985, § 20-71; Ord. No. 170, § 6, 5-14-1968)

State law reference—Similar provisions, T.C.A. § 39-1-106.

Sec. 9-24-7. Procurements made during civil emergency.

After proclamation of a civil emergency pursuant to section 9-24-2, in the event the mayor further should determine in his or her judgment that the resources then available to the city are insufficient for the protection of life or property, and that the public peace, health, safety and welfare require that additional labor, equipment or supplies be procured in order to combat such civil emergency, the mayor shall forthwith authorize the director of civil defense, to procure by contract on behalf of the city all such additional labor, equipment or supplies as may be necessary in order to combat such civil emergency. Such procurement on behalf of the city may be by employment or subemployment of personnel for such times and such durations as the director of civil defense may determine, or by lease or purchase of equipment or supplies. All such procurements made or contracted for on behalf of the city by the director of civil defense shall become the obligations of the city and shall be paid for from the general funds of the city.

(Code 1967, § 22-98; Code 1985, § 20-72; Ord. No. 2072, § 1, 6-18-1974)

Sec. 9-24-8. Immunity to city and indemnification in use of procurements.

This chapter and chapters 6-56, 6-72, 9-32, 9-88, 10-4 through 10-32, 12-64 and 12-68 are an exercise by the city of its governmental functions for the protection of the public peace, health, safety and welfare, and the city shall not be liable for any damage to person or property in the utilization of any labor, equipment or supplies procured under section 9-24-7. Any person or corporation furnishing labor, equipment or supplies to the city pursuant to the provisions of section 9-24-7 shall be

indemnified and held harmless by the city from any and all claims made by third persons for damage to person or property arising out of the utilization of such labor, equipment or supplies during a civil emergency.
(Code 1967, § 22-99; Code 1985, § 20-73; Ord. No. 2072, § 2, 6-18-1974)

Sec. 9-24-9. Violations—Penalties.

Any person violating the provisions of orders issued by the mayor pursuant to this chapter during a proclaimed civil emergency shall be guilty of a misdemeanor and be punished as provided in section 1-24-1 of this code.
(Code 1967, § 22-95; Code 1985, § 20-74; Ord. No. 170, § 5, 5-14-1968)

State law reference—Authorized penalty, T.C.A. § 39-1-105.

CHAPTER 9-28. DAY CARE CENTERS*

Sections:

Sec. 9-28-1. Definitions.
Sec. 9-28-2. Registration.
Sec. 9-28-3. Approval generally.
Sec. 9-28-4. Conditions to approval.
Sec. 9-28-5. First-story operation required—Prohibited equipment.
Sec. 9-28-6. Age limit.
Sec. 9-28-7. Toilet facilities.
Sec. 9-28-8. Penalties for violations.

Sec. 9-28-1. Definitions.

When referred to in this chapter, the terms below shall be defined as follows:

Ambulatory means the ability to walk unaided.

Day care means all types of day care programs wherein are received for pay five or more children for care, which are operated for a period of less than 24 hours per day, or other similar businesses operated under any name whatsoever, provided that kindergarten for five-year old children under the direct supervision of any private or parochial school or the board of education, operating on essentially the same time schedule as public school guidelines, are not subject to this chapter.

Day care center means the building, group of buildings, room or other place where day care is provided.

Institution, for the purposes of this chapter, means the building, group of buildings, room or other place providing care for nonambulatory persons, or children under the age of 15 months, when used to conduct day care activities and complying with standards of the building official, the fire marshal and health department outlined in sections 9-28-3 and 9-28-4.

Supervisor means any person in charge of children at a day care center.
(Code 1967, § 14-1; Code 1985, § 12-1; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-2. Registration.

A. Every day care center shall be registered with the office of planning and development and the plan of building shall be submitted as required by the building official and the fire marshal and the health department. The center shall furnish the name and address of the owner, and if the owner is a corporation or association, the names and residences of all of the officers thereof, the present or proposed location of the center, the name and address of the superintendent or of the person to be in charge thereof, and such other information as the building official and the fire marshal and the health department may request in connection with such day care center, its management, operation and personnel.

B. Every day care center shall be required to post in a prominent and easily visible location the following information:

1. The name and address of the owner. If the owner is a corporation, partnership or association, the names and addresses of all of the officers thereof;
2. The name and address of the superintendent, manager or person in charge of the center's operation;
3. The most recent fire department inspection report;
4. The most recent health department inspection report;
5. The most recent department of human services inspection report;

***Charter reference—**Authority to regulate homes and institutions operated for the care of children, § 860.

State law reference—Child care agencies, T.C.A. § 71-3-501 et seq.

6. A certificate of liability insurance with the carrier's name and address;
7. A list of all employees, their job titles and a notice that additional, detailed information on the employees' qualifications are available upon request;
8. The telephone numbers of the department of human services and the mayor's citizen service center to register complaints;
9. The number of children actually enrolled and the number of children for which the center is licensed.

It shall be the responsibility of the fire department to make sure that all necessary information is posted in a suitable manner and location.
(Code 1967, § 14-2; Code 1985, § 12-2; Ord. No. 2401, § 1, 4-13-1976; Ord. No. 4705, § 1, 9-7-1999)

Sec. 9-28-3. Approval generally.

All day care centers shall be approved by the office of planning and development, such approval to be given only after it is recommended by the building official, the fire marshal and the health department. Such recommendation for approval shall be made after an inspection of the premises by the fire marshal and health department. Such officers are authorized and empowered to enter any day care center in the city and the premises on which the same is conducted, for the purpose of making a full inspection thereof.
(Code 1967, § 14-3; Code 1985, § 12-3; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-4. Conditions to approval.

The building official, the fire marshal and the health department are empowered to require day care centers to meet all applicable conditions and ordinances as to provide safe and proper facilities for children therein, before recommending approval of such centers.
(Code 1967, § 14-4; Code 1985, § 12-4; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-5. First-story operation required—Prohibited equipment.

Day care centers shall operate on the first story only. There shall be no measures or devices that prohibit quick egress by all children in case of emergency. Each day care center shall contain a minimum open floor space of 30 square feet per child, excluding offices, halls, kitchens and bathrooms.
(Code 1967, § 14-5; Code 1985, § 12-5; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-6. Age limit.

Day care centers, except those which qualify as institution facilities and comply with the building official, fire marshal and health department regulations, shall not admit children less than 15 months of age or nonambulatory children.
(Code 1967, § 14-6; Code 1985, § 12-6; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-7. Toilet facilities.

One water closet and one lavatory shall be provided for each 15 children or appreciable fraction thereof.
(Code 1967, § 14-7; Code 1985, § 12-7; Ord. No. 2401, § 1, 4-13-1976)

Sec. 9-28-8. Penalties for violations.

Any person who shall violate any of the provisions of this chapter shall be guilty of a misdemeanor and subject to a fine of not less than $10.00, nor more than $50.00 for each and every violation.
(Code 1967, § 14-8; Code 1985, § 12-8; Ord. No. 2401, § 1, 4-13-1976)

CHAPTER 9-32. EMERGENCY ENERGY CURTAILMENT PLAN

Sections:

Sec. 9-32-1. Definitions.
Sec. 9-32-2. Notice of energy emergency—Proclamation by mayor of energy emergency.
Sec. 9-32-3. Energy curtailment measures.
Sec. 9-32-4. Exceptions.
Sec. 9-32-5. Authority to act when mayor disabled or absent.
Sec. 9-32-6. Conclusion of emergency—Proclamation by mayor.
Sec. 9-32-7. Violations—Penalties.

Sec. 9-32-1. Definitions.

As used in this chapter:

Customer means every person, partnership, company, firm, corporation, unincorporated association or any

other legal entity using or receiving any form of energy resource from the Memphis light, gas and water division.

Energy emergency means a condition of danger to the health, safety, welfare or economic well-being of the citizens for the city, arising out of a present or threatened shortage or reduction of usable energy resources; also, any condition of substantial danger resulting from the operation of any electrical power generating facility or the transport of any energy resource by any means whatsoever.

Energy resource means all forms of energy or power including, without limitation, natural or synthetic gas, electricity in all forms and from all sources, and other fuels of any description.

Occupied space means a space then occupied by human beings for business or living.

Substitute officer means an official who shall act in the absence or inability to act of the mayor as provided in this chapter in case of energy emergencies.
(Code 1967, § 22-105; Code 1985, § 20-86; Ord. No. 2186, § 1, 12-17-1974; Ord. No. 2563, § 1, 2-22-1977)

Sec. 9-32-2. Notice of energy emergency—Proclamation by mayor of energy emergency.

The board of commissioners of the Memphis light, gas and water division shall advise the mayor when in its opinion an energy emergency, for whatever reason, exists in the city. When, in the judgment of the mayor, an energy emergency, as defined in this chapter, is determined to exist, the mayor shall forthwith proclaim the existence of same, a copy of which proclamation shall be filed with the comptroller.
(Code 1967, § 22-106; Code 1985, § 20-87; Ord. No. 2186, § 2, 12-17-1974; Ord. No. 2563, § 1, 2-22-1977)

Sec. 9-32-3. Energy curtailment measures.

A. After proclamation of an energy emergency, the mayor may, at his or her discretion, in the interest of the public health, safety and welfare, order the implementation of any or all of the following energy curtailment steps:

1. Prohibit any customer from making, causing or permitting any use of an energy resource from the light, gas and water division for exterior floodlighting and motorized devices for decorative use, with the exception that commercial customers may operate window display lighting and one outdoor sign for business logo or identification purposes;

2. Reduce the amount of electric energy usage for lighting billboards and other outdoor advertising signs under contract by the same percentage of kilowatt hours that the Tennessee Valley Authority reduces the total supply of kilowatt hours available to the light, gas and water division. This reduction shall not apply to the amount of energy used in connection with lighting the one outdoor sign for business logo or identification permitted under subsection (A)(1) of this section;

3. Prohibit any customer from making, causing or permitting any use of an energy resource from the light, gas and water division for outdoor gaslights, swimming pool heaters, outdoor barbecue grills or similar nonessential uses;

4. Prohibit any customer from making, causing or permitting any use of an energy resource from the Memphis light, gas and water division for the purpose of:

   a. Heating or cooling an occupied space beyond the temperature limits set by order of the mayor, or

   b. Heating or cooling an unoccupied space at a temperature in excess of that required to prevent loss of perishable goods, animals or damage to piping or equipment;

5. Prohibit any customer from making, causing or permitting any use of an energy resource from the light, gas and water division for exterior lighting during daylight hours;

6. Prohibit any customer from making, causing or permitting any use of an energy resource from the light, gas and water division for interior lighting within commercial and industrial buildings when they are closed for business;

7. Prohibit any customer from making, causing or permitting any use of an energy resource from the light, gas and water division for noncommercial recreational use after 10:00 p.m., and such use before 10:00 p.m. shall not be in

excess of 50 percent of the amount of that energy resource used in the billing period for the same month one year earlier;

8. Declare and set the maximum number of hours and the maximum number of days that commercial customers may be open for the conduct of trade or business in any seven-consecutive-day period. Such declaration or restriction shall not be in conflict with any restrictions that may be imposed by the state or the federal government;

9. Declare certain businesses as nonessential to the maintenance of the public health, welfare and safety. Such businesses shall be subject to having their energy resource supply from the light, gas and water division restricted or eliminated upon order of the mayor;

10. Prohibit or restrict such other activities as he or she reasonably believes are necessary to help maintain life, health or property within the city.

B. In imposing the restrictions provided by this section, the mayor may impose them for such times, upon such conditions, with such exceptions and in such areas of the city as he or she from time to time deems necessary.

C. Whenever the restrictions imposed under this chapter are more restrictive than are required by any other statute, local ordinance or regulations, the provisions of the restriction imposed hereunder shall govern.

D. Whenever the restrictions of any other statute, local ordinance or regulation are more restrictive than the restriction imposed under this chapter, the provisions of such statute, local ordinance or regulations shall govern.

(Code 1967, § 22-107; Code 1985, § 20-88; Ord. No. 2186, § 3, 12-17-1974; Ord. No. 2563, § 1, 2-22-1977)

Sec. 9-32-4. Exceptions.

Exceptions to the foregoing provisions in sections 9-32-1 through 9-32-3 may be made where necessary for the maintenance of the public health, welfare and safety, or where required by law. Such exceptions shall include, but not necessarily be limited to, police, fire and other essential governmental services, the room rental services of hotels, motels or similar establishments, funeral homes and mortuaries, hospitals, medical clinics, sanitariums, rest homes and the prescription drug services of business establishments. The mayor shall determine such approved exceptions as are necessary for the maintenance of the public health, welfare and safety, and include a listing of the same in such proclamations as may be issued by him or her invoking the provisions of section 9-32-3; and he or she shall file such proclamations with the office of the city comptroller.

(Code 1967, § 22-108; Code 1985, § 20-89; Ord. No. 2186, § 4, 12-17-1974; Ord. No. 2563, § 1, 2-22-1977)

Sec. 9-32-5. Authority to act when mayor disabled or absent.

A. In the event of the inability to act or absence of the mayor during any energy emergency as defined herein the chairperson of the city council or in such chairperson's absence or inability to act, the member of the council who is the chairperson of the council's committee on public utilities is designated as substitute officer as defined herein and shall act for and in place of the mayor with respect to any energy emergencies as provided for in this chapter.

B. In the event there is no chairperson of the council's committee on public utilities serving on the council, then by majority vote a substitute officer shall be selected from the remaining members of the council to serve.

(Code 1967, § 22-109; Code 1985, § 20-90; Ord. No. 2186, § 5, 12-17-1974)

Sec. 9-32-6. Conclusion of emergency—Proclamation by mayor.

All curtailment of energy use decreed by the mayor shall terminate upon the conclusion of the energy emergency as defined in section 9-32-1, and the mayor shall proclaim the same to have come to an end.

(Code 1967, § 22-110; Code 1985, § 20-91; Ord. No. 2186, § 6, 12-17-1974)

Sec. 9-32-7. Violations—Penalties.

Any customer as herein defined who violates any section of this chapter shall be guilty of a misdemeanor and upon conviction shall be subject to punishment as provided in section 1-24-1 of this code.

(Code 1967, § 22-111; Code 1985, § 20-92; Ord. No. 2186, § 7, 12-17-1974)

CHAPTER 9-36. FIRE PREVENTION CODE ADOPTED

Sections:

Sec. 9-36-1. International Fire Code adopted.
Sec. 9-36-2. Definitions.
Sec. 9-36-3. Penalty for violations.
Sec. 9-36-4. Amendments.

Sec. 9-36-1. International Fire Code adopted.

The 2021 Edition of the ICC International Fire Code is hereby adopted as the Fire Prevention Code of the City of Memphis, and such code shall have the same force and effect as if set out in full herein. The following Appendices of the 2021 Edition of the ICC International Fire Code, or as locally drafted, are also adopted. Appendix B - Fire-Flow Requirements for Buildings, Appendix E - Hazard Categories, Appendix F - Hazard Ranking, and Appendix G -Cryogenic Fluids - Weight and Volume Equivalents. Any appendix not listed in this ordinance is specifically not adopted.
(Code 1985, § 14-51; Ord. No. 3939, § 2, 1-30-1990; Ord. No. 4389, § 1, 2-20-1996; Ord. No. 4900, § 1, 10-16-2001; Ord. No. 5225, § 1, 12-3-2007; Ord. No. 5486, § (a), 12-18-2012; Ord. No. 5701, § (a), 8-28-2018; Ord. No. 5808, 11-16-2021)

State law reference—Adoption by reference, T.C.A. § 6-54-501 et seq.

Sec. 9-36-2. Definitions.

For the purposes of this chapter, certain terms shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise.

City or *municipality* means the City of Memphis, Tennessee.

Fire official means the fire marshal of the fire services division, City of Memphis, or his or her designated assistant, deputy or representative.
(Code 1985, § 14-52; Ord. No. 3939, § 2, 1-30-1990; Ord. No. 4389, § 1, 2-20-1996; Ord. No. 4900, § 1, 10-16-2001)

Sec. 9-36-3. Penalty for violations.

Any person, firm or corporation violating any of the provisions of this chapter shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished as provided in section 1-24-1 of this code. Each day a violation continues after a service of notice specifying a compliance date, shall be deemed a separate offense.
(Code 1985, § 14-53; Ord. No. 3939, § 2, 1-30-1990; Ord. No. 4389, § 1, 2-20-1996; Ord. No. 4900, § 1, 10-16-2001)

Sec. 9-36-4. Amendments.

The International Fire Code, 2021 Edition, is hereby amended as set out in this Article. All references to Chapter, Section and sub-section numbers in the text of the amendments hereafter set out shall be construed as if followed by the words, "of the Fire Code" unless clearly indicated to the contrary.

2021 International Fire Code Amendments

Chapter 1 Scope and Administration

101.1 Title is amended to delete the words "[NAME OF JURISDICTION]," and replace with the words "Memphis, Tennessee."

104.6 Official records is amended to delete the entire section and subsections 104.6.1 Approvals, 104.6.2 Inspections, 104.6.3 Fire records, and 104.6.4 Administrative without substitution.

105.5.29 LP-gas is amended to add the following sentence at the end of section 1 after the word "gas":

"It shall be the responsibility of the owner of the LP container to obtain the permit."

105.5.49 Temporary membrane structures and tents is amended to delete the second exception and substitute in lieu thereof the following:

"2. Funeral tents and curtains or extensions attached thereto, when used for funeral services."

105.5.49 Temporary membrane structures and tents is further amended by adding the following new subsection:

105.5.49.1 Responsibility. It shall be the responsibility of the owner of the tent to obtain the permit.

105.6.24 Temporary membrane structures and tents is amended to delete the third exception without replacement.

105.6.24 Temporary membrane structures and tents is further amended by adding the following new sub-section:

105.6.24.1 Responsibility. It shall be the responsibility of the owner of the tent to obtain the permit.

106.4 Retention of construction documents is amended to delete the first sentence, "One set of construction documents shall be retained by the fire code official for a period of not less than 180 days from date of completion of the permitted work, or as required by state or local laws," without substitution.

110.1 Authority to disconnect service utilities is amended to delete the last sentence, "If not notified prior to disconnection, then the owner, the owner's authorized agent or occupant of the building, structure or service system shall be notified in writing as soon as practical thereafter," without substitution.

111 Means of appeals is amended by adding the following new sub-section:

111.5 Notice of appeal. Notice of appeal shall be in writing and filed with the fire code official within 15 days of a decision that is rendered by the fire code official.

112.4 Violation penalties is amended to delete the words "guilty of a [SPECIFY OFFENSE], punishable by a fine of not more than [AMOUNT] dollars or by imprisonment not exceeding [NUMBER OF DAYS], or both such fine and imprisonment," and replace with the words "subject to a citation and/or fines as determined by a court of law."

113.4 Failure to comply is amended to delete the words "subject to fines established by the authority having jurisdiction" and replace with the words "guilty of a civil offense subject to a citation and/or fines as determined by a court of law."

Chapter 2
Definitions

Section 202 General Definitions is amended by adding the following definitions:

Automated external defibrillator (AED): A medical device heart monitor and defibrillator that:

(1) Has received approval of its premarket notification, filed pursuant to 21 U.S.C. §360(R), from the United States Food and Drug Administration.

(2) Is capable of recognizing the presence or absence of ventricular fibrillation or rapid tachycardia, and is capable of determining, without intervention by an operator, whether defibrillation should be performed; and

(3) Upon determining that defibrillation should be performed, automatically charges and requests delivery of an electrical impulse to an individual's heart.

Fenced compound: A property such as, but not limited to, a car lot, storage lot, warehouse, retail or wholesale business, night watchmen staffed facility, or facility that is open during business hours and uninhabited when closed, etc.

Light wood truss: Manufactured from the natural wood fiber in trees, cut and dried to nominal dimensions such as 2 x 4, 2 x 6, 2 x 8, 2 x 10, 2 x 12, etc., which is used in floor and ceiling systems. These wooden structures are composed of a combination of members such as chords, diagonals, and web members, usually in same triangular arrangements to constitute a rigid framework.

Chord: A principal member of a truss which extends from one end to the other, primarily to resist bending; usually on of a pair of such members.

Diagonal: In a framed structure, an inclined member running across a panel as in a truss.

Web: The portion of a truss or girder between the chords or flanges, whose principal function is to resist shear on the span.

Residential community: A community shall be defined as a location at which a group resides and/or dwells, including but not limited to, apartments, hotels, modular home communities, private subdivision, etc.

Chapter 3
General Requirements

308.1.4 Open-flame cooking devices is amended to delete the second and third exceptions.

311.5 Placards is amended to delete the words "as required by Sections 311.5.1 through 311.5.5" after the word "marked."

311.5.1 Placard location is deleted without substitution.

311.5.2 Placard size and color is deleted without substitution.

311.5.3 Placard date is deleted without substitution.

311.5.4 Placard symbols is deleted without substitution.

311.5.5 Informational use is deleted without substitution.

319.1 General is amended to add the following sentence after the section following the word "section":

"Mobile units must remain mobile at all times during operation. The unit must be on wheels (excluding boats) at all times. Any mobile food unit that removes such wheels or becomes stationary must meet Tennessee Department of Health Regulations Chapter 1200-23-1 et seq. in its entirety. Mobile food preparation vehicles do not include pushcarts as regulated by city codes and prohibited from selling potentially hazardous foods by the state department of health, nor vehicles from which only ice cream and other frozen nonhazardous food products are sold, nor vehicles operating under special event permit."

319.8.2 General is amended to add the words "in accordance with NFPA 96" at the end of the section following the word "movement."

Chapter 4
Emergency Planning and Preparedness

401.1 Scope is amended to delete the exception without replacement.

402.1 Definitions is amended to add the following definition term:

"**AUTOMATED EXTERNAL DEFIBRILLATOR (AED).**"

Chapter 4 shall be amended by adding the following new section:

Section 408 Automated External Defibrillators

408.1 Where required. An Automated External Defibrillator shall be installed and maintained in newly constructed or newly classified Group A, B, E, F, H, I, M, R-1, R-2, R-4 and S occupancies with an occupant load of 300 or more.

408.2 Location. Automated External Defibrillators shall be in conspicuous locations where they will be readily accessible and immediately available for use. AED devices, where required, shall be installed in sufficient numbers and in locations so that an AED device shall be accessible within three (3) minutes in the event of an emergency, in accordance with American Heart Association recommendations.

408.2.1 Unobstructed and unobscured. Automated External Defibrillators shall not be obstructed or obscured from view. Means shall be provided within occupancies and at outdoor public assemblages and events to indicate the location of AEDs.

408.2.2 Cabinets. Cabinets used to house Automated External Defibrillators shall not be locked.

Exceptions:

1. Where Automated External Defibrillators subject to malicious use or damage are provided with a means of ready access.
2. In Group I-3 occupancies and in mental health areas in Group I-2 occupancies, access to Automated External Defibrillators shall be permitted to be locked or to be in staff locations provided the staff has keys.

408.3 General requirements. Automated External Defibrillators and the programs for their use shall comply with the requirements set forth in the Tennessee Code Annotated and the rules adopted by the Tennessee Department of Health.

408.3.1 Required Maintenance. Automated External Defibrillators shall be maintained and tested in accordance to the manufacturer's operational guidelines. Written records of all maintenance and testing performed on AEDs shall be maintained.

408.3.2 Registration. Automated External Defibrillators shall be registered with the primary provider of emergency medical services where the defibrillator is located. A copy of the required AED program and plan for each installation shall be included with the registration.

Chapter 5
Fire Service Features

502.1 Definitions is amended to add the following definition terms:

FENCED COMPOUND.

RESIDENTIAL COMMUNITY.

503.2.5 Dead ends is amended to add the following sentence after the section following the word "apparatus":

"Turnarounds required by this section shall comply with Table D103.4 Requirements for Dead-End Fire Apparatus Access Roads in Appendix D."

503.6 Security gates is amended to delete the entire section and substitute in lieu thereof the following:

503.6 Security gates. The installation of security gates across a fire apparatus access road shall be approved by the fire code official. Where security gates are installed, they shall have an approved means of emergency operation. Any gated and/or fenced community shall have at least one 20-foot opening gate which shall be designated as the Fire Department primary access. This gate shall conform to sections 503.6.1.1 through 503.6.1.6 and, if automated, shall be siren activated and equipped with both primary and secondary overrides.

Exception: Group R-3 occupancies are exempt from the requirements of this section when the fenced area is for a single occupancy.

503.6.1 Automatic gates. All automatic gates on required fire apparatus access roads, as determined by the fire code official, shall provide approved override and power-off equipment. This override system shall provide controls to open, override timer functions for emergency access, and power off equipment for manual operation.

503.6.1.1 Emergency override. Emergency override of all automated gate systems shall operate with power on or off. The emergency override system shall consist of a fire access housing designed as follows: The access box shall be red in color and display "Fire Dept." or "Fire Access" in white letters on the face plate. The face plate shall be hinged and designed to accept a Medeco padlock, keyed to the Memphis Fire Department access key. The Fire Access housing shall be equipped with an internal switch so as when the pad lock is removed and the face plate is opened it will signal the automated gate to open. The automated gate shall remain open while the face plate remains open. Upon closing of the face plate and reinserting the Medeco pad lock, the automated gate shall return to normal operation. The Fire Access housing shall be installed in a manner as to be plainly visible from the cab of the approaching emergency vehicle.

503.6.1.2 Manual disconnects. All automated entry gates shall be equipped with Medeco padlocked disconnects for use if the power supply to the automated gate fails or the Fire Access housing device fails to open the gate.

503.6.1.2.1 For a sliding gate, the rear chain attachment point, at which the chain connects to the physical gate, shall be padlocked and secured with a Memphis Fire Department keyed Medeco lock. If the disconnect is not accessible from the public side or the secured sides of the gate, a walk gate padlocked with a Memphis Fire Department keyed Medeco lock shall be installed to allow access to the disconnect.

503.6.1.2.2 For a swing gate, the attachment point of the swing arm to the gate shall be equipped with a disconnect pin that shall be padlocked. As with the slide style gate, this pin shall be accessible from both the public and secured sides of the gate

503.6.1.3 Additional gates. If a community design prevents emergency equipment from accessing any area of the property from the primary access gate, it may be deemed necessary by the fire code official that more than one Fire Department access gate is required. Additional emergency access gates shall conform to the same standards as the primary gate, unless the fire code official declares these gates to be secondary, and allows them to be padlock secured with a Memphis Fire Department keyed Medco lock, interlocked with the owner's lock, rather than being automated.

503.6.1.4 Locking access gates. If locked, gates in fenced compounds shall be padlock secured with a Memphis Fire Department keyed Medeco padlock, interlocked with the owner's lock.

503.6.2 Access to hydrants. The fire code official shall require all fences that impede access to hydrants, whether from the street or to the protected structure, to have 48" walk gates installed at or near those hydrants. To allow proper access to the hydrant for firefighting purposes, these fences shall not be located within a 10' radius of the center line of the hydrant. Additionally, long runs of fencing that block access to buildings shall require the installation of walk gates at intervals not exceeding 300 linear feet. Gates installed at hydrants may be included to meet this requirement. If locked, required walk gates shall be equipped with Medeco locks properly keyed for Memphis Fire Department use.

505 Premises identification is amended to add the following new sub-section:

505.3 Identifying emblems for structures with light wood truss construction

505.3.1 Emblem permanently affixed. The identifying emblem shall be permanently affixed as prescribed by city ordinance at all buildings having light wood truss construction. This section shall not apply to one- and two-family dwellings.

505.3.2 Emblem description. The identifying emblem shall be in the shape of an isosceles triangle with a vertical height of six (6) inches and a horizontal length of twelve (12) inches. The background of the emblem shall be made of a white reflective material and all lettering thereon shall be made of a red reflective material, said lettering having a minimum height of at least four (4) inches with a one-half (½) inch stroke.

The emblem shall contain the following designations to identify the presence of light wood trusses in the structure:

(1) "F" shall designate a floor with truss construction.

(2) "R" shall designate a roof with truss construction.

(3) "F/R" shall designate both a floor and roof truss construction.

505.3.3 Location of emblem. The emblem shall be permanently affixed at one of the following locations:

(1) Where a building or group of buildings has an approved fire apparatus access drive(s) meeting the requirements of Section 503 of this code, emblems shall be placed at each entrance on the left side of each drive at a height of 3 to 5 feet above ground, no more than 3 feet from the curb line; or,

(2) Where a building or group of buildings do not have approved fire apparatus access drive(s) immediately adjacent to the building, the emblem shall be affixed to each building on the address side of the building visible to approaching fire companies; or,

(3) At such other location(s) approved by the fire code official.

If a building exceeds 12 tenant spaces or 12,000 square feet, additional emblems shall be provided on the building at locations designated by the fire code official. These emblems shall be installed and maintained by the owner of the structure(s).

507.3 Fire flow is amended to add the following words after the end of the last sentence following the word "method":

"Fire flows required by this section shall comply with Appendix B Fire-Flow Requirements for Buildings as amended in this code."

507.3 is further amended by adding the following new sub-section:

507.3.1 Fire Hydrant systems shall be designed such that each individual fire hydrant on the system can flow a minimum of 1500 gallons per minute (gpm) at 20 pounds per square inch (psi)(138kPa) residual pressure.

507.5.1 Where required is amended to delete the numbers "400 (122 m)" in the first sentence and replace with the numbers "500 (152 m)." This section shall be further amended to delete Exceptions 1 and 2 without substitution.

507.5.2 Inspection, testing and maintenance is amended to add the following new sections:

507.5.2.1 Private hydrants periodic inspection, testing, and maintenance. Hydrants shall be checked monthly to make sure they are not obstructed by storage, weeds, etc., conveniently accessible, visible and with outlet caps in place. At least once a year, they shall be opened and closed to ensure proper operation and drainage in compliance with the International Fire Code, as amended, and shall be properly lubricated. All such inspections, tests and maintenance shall be performed by a fire protection company licensed by the State of Tennessee. Records of all such inspections, tests, and maintenance activities shall be submitted to the fire code official. Such records shall also be kept on the premises and shall be available to the fire code official upon request.

507.5.2.2 Notice to inspect private fire hydrant. Upon failure of any private fire hydrant owner within the city to properly inspect, test and maintain such private fire hydrant in accordance with the law, it shall be the duty of the fire services division to serve a notice on such owner to inspect their fire hydrant within twenty (20) days of the service of such notice. Such notice may be

served personally on the owner by mailing same, by registered or certified mail, to owner's last known address, or it may be posted on the property on which such fire hydrant is located. Service of notice by any of the above methods shall be due notice to such owner. Should the owner or its responsible agent fail to inspect all private fire hydrants on said property following notice as set out above, then the Fire Services Division may enter such property or premises, directly or through their designated contractor, for inspecting, testing, and maintaining such fire hydrants.

507.5.2.3 Inspection by City. In addition to the penalties provided for in Section 1-24-1 of the City Code of Ordinances, any owner of a private fire hydrant in the city who fails or refuses to inspect, test and maintain such fire hydrants in accordance with the notice mentioned in section 507.5.2.2 shall be liable for a penalty of two hundred dollars ($200) per day for each day of non-compliance with the said notice. This ordinance is deemed to be an environmental ordinance and shall be enforced in courts having appropriate jurisdiction over such subject matter.

Chapter 5 shall be amended by adding the following new section:

Section 511 Electric security fence installations

511.1 Electric security fence installations. All new and existing electric security fence installations shall be equipped with the following features:

1. An approved manual disconnect shall be provided that will interrupt the power supply to the fence. The manual disconnect means shall be located at an approved and accessible location. It shall be secured by an approved locking device that is keyed to the Memphis Fire Department's specifications.

2. The manual disconnect means shall clearly indicate the fence power status.

3. Signage shall be provided at the manual disconnect that indicates "Fence Power Emergency Bypass" in red letters at least 1" high on a white background. Based on the installation, additional signs may be required at additional points to clearly indicate the location of the manual disconnect means.

Chapter 6
Building Services and Systems

No Amendments

Chapter 7
Fire-Resistance-Rated Construction

No Amendments

Chapter 8
Interior Finish, Decorative Material and Furnishings

806.1.1 Restricted occupancies is amended to add the letter "B," following the letter "A". This section is further amended to delete the first exception and substitute in lieu thereof the following:

1. Where protected in a manner approved by the fire code official.

Section 806 Decorative vegetation in new and existing buildings is amended to add the following new sub-section:

806.5 Restricted occupancies. Combustible decorative materials such as, but not limited to, cotton batting, vegetation, moss, straw, hay, vines, split bamboo, leaves and similar material shall not be used in Group A, B, E, I-1, I-2, I-3, I-4, M, R-1, R-2, R-4 occupancies.

Chapter 9
Fire Protection Systems

901.2 Construction documents is amended to add the following new sub-sections:

901.2.2 Fire sprinkler plans submittal. Plans for the installation of sprinkler systems shall be submitted to the Fire Prevention Bureau and approved prior to installation of any new system and on all existing systems where 10 or more sprinkler heads are added or when calculations for the system must be revised.

901.2.3 Fire alarm plans submittal. Plans for the installation of fire alarm systems shall be submitted to the Fire Prevention Bureau and approved prior to installation of any new system and for any alterations to existing systems where devices are added or removed.

901.2.4 All other fire protection system plans. Any plans for the installation of fire protection systems shall be submitted to the Fire Prevention Bureau and approved prior to installation.

903.3.5 Water supplies is amended to add the following words at the end of the second sentence following the word "Code":

"and Memphis Light, Gas, and Water requirements."

903.4 Sprinkler system supervision and alarms is amended to add the following sentence at the end of the section following the word "unit":

"These valves shall also be mechanically locked in the normal position."

Section 903.4 is further amended to add Exceptions 9 and 10 at the end of the section:

9. Existing systems that have not been extended, modified or previously electrically supervised may be mechanically locked in the normal position.

10. In private fire service mains, underground control or section valves with roadway boxes accessible with a special wrench shall not be required to be electrically supervised or locked in the normal position.

903.4.1 Monitoring is amended to add the following new sub-section:

903.4.1.1 Where monitoring of an automatic sprinkler system is required in this jurisdiction, it shall be by an approved central station and shall be in accordance with the requirements of Fire Alarm Systems for Central Station Service as described in NFPA 72. The method of retransmission of signals shall be approved by the Fire Communications Bureau.

903.4.3 is amended to delete the words "high-rise buildings" at the end of the section and replace therewith the following words: "all buildings two (2) or more stories in height." This section is further amended to add the following exceptions at the end of the section:

Exceptions: 1. Buildings equipped with an approved 13R sprinkler system that are not equipped with a standpipe system.

2. Buildings equipped with an approved 13D sprinkler system.

904.13 Commercial cooking systems is amended to insert the following sentences before the first sentence of this section following the section title word "systems":

"Commercial cooking systems shall include all cooking operations except those conducted in one- and two-family dwelling units. One- and two-family dwellings being used as group homes shall be required to install a suppression system unless otherwise approved by the fire official. Domestic cooking equipment and related exhaust systems/hoods regulated by this section may be protected by an automatic fire extinguishing system of a type recognized for their protection."

904.13.5.3 Fusible link and sprinkler head replacement is amended to insert the following words in the first sentence following the words "Fusible links":

"shall be replaced semi-annually"

905.2 Installation standard is amended to add the following sentence at the end of the section following the words "Section 912":

"Where required, standpipe systems shall be of the wet, automatic dry, or semiautomatic dry types, unless specifically allowed elsewhere in this code."

905.3 Required installations is amended to delete the number "905.3.8" in the first sentence and substitute in lieu thereof the number "905.3.9."

Section 905.3 is further amended to add the following new sub-section:

905.3.9 Other buildings. Buildings 50 feet or more in height, except those with a roof slope greater than 4:12 that do not require a wet standpipe shall be provided with a dry standpipe. The standpipe shall provide coverage for all areas of the building including the roof. The standpipe need not have an automatic water supply and shall be located so that hose lays do not exceed 250 feet. Access to the roof and the standpipe shall be provided. Each standpipe shall be capable of providing 500 gallons per minute at the top most outlet when supplied by fire department equipment. Signage shall be provided on each standpipe indicating that it is a dry standpipe with no automatic water supply.

905.3.1 Height is amended to add the following sentence after the words "parking garages" in Exception 3:

"Class I manual standpipes are allowed in open parking garages that are subject to freezing temperatures, provided that the hose connections are located as required for Class II standpipes in accordance with Section 905.5."

905.3.2 Group A is amended to delete the second exception in its entirety without substitution.

905.3.5 Underground buildings is amended to delete the words "or manual wet" in the first sentence without substitution.

907.2.5 Group H is amended to delete the letter and number "H-5" in the first sentence and replace with the letter "H."

907.5.2.3 Visible alarms is amended to delete the first exception in its entirety without substitution.

907.6 Installation and monitoring is amended to delete the number "907.6.6.3" in the first sentence and substitute in lieu thereof the number "907.6.6.5."

907.6.6 Monitoring is amended to add the following new sub-sections:

907.6.6.4 Monitoring requirements. Where monitoring of a fire alarm system is required in this jurisdiction, it shall be by an approved central station and shall be in accordance with the requirements of Fire Alarm Systems for Central Station Service as described in NFPA 72. The method of retransmission of signals shall be approved by the Fire Communications Bureau.

907.6.6.5 Runner service. A runner or technician, as defined by NFPA 72, must be dispatched to the protected premises to arrive within 1 hour after receipt of a signal, when required to respond.

910.4 Mechanical smoke removal systems is amended to delete the number "910.4.7" in the first sentence and substitute in lieu thereof the number "910.4.8."

910.4 Mechanical smoke removal systems is further amended to add the following new subsection:

910.4.8 Mechanical smoke removal systems plans submittal. Plans for the installation of all mechanical smoke exhaust systems shall be submitted to the Fire Prevention Bureau and approved prior to installation of any new system and for any alterations to existing systems where components are added or removed.

910.4.3 System design criteria is amended to add the following sentence at the end of the section following the word, "minute":

"Exhaust fans shall be uniformly spaced within the building and the maximum distance between fans shall not be greater than 100 feet (30,480 mm), unless approved by the fire code official."

910.4.3.1 Makeup air is amended to add the following sentence at the end of the section following the word, "exhaust":

"Overhead doors shall not be used as required makeup air inlets."

910.4.5 Manual control location is amended to add the following sentences at the end of the section following the word, "both":

"The mechanical smoke removal system fire department control panel shall be in an approved location. The control panel may be located at an exterior location approved by the fire code official. The location and the control panel shall be clearly identified. Automatic sprinkler protection shall be provided in the control panel room."

910.4.7 Controls is amended to add the following sentence at the end of the section following the word, "system":

"Controls shall be designed for selective control of no more than 3 smoke removal units. Fans grouped on a single switch shall be in the same fire area."

Section 912.2 Location is amended to add the following new sub-section:

912.2.3 Proximity to fire hydrants. Fire department connections shall be located not more than 100 feet from an approved fire hydrant.

913.4 Valve supervision is amended to delete the entire section and substitute in lieu thereof the following:

913.4 Valve supervision. Where provided, all valves which effect the proper operation of the fire pump, shall be supervised by approved central-station signaling service and be locked in the normal position.

Exception: In private fire service mains, underground control or section valves with roadway boxes accessible with a special wrench shall not be required to be electrically supervised or locked in the normal position.

914.3.2 Secondary water supplies is amended to add the following words to the end of the last sentence following "NFPA 13":

"; however, this supply need not exceed 10,000 gallons in capacity unless required by the fire code official."

Chapter 10
Means of Egress

1001.1 General is amended to add the following new sub-section:

1001.3 Other standards. When this code does not contain requirements relative to a specific means of egress system, NFPA 101 may be used as an accepted engineering practice standard as approved by the fire code official.

1008.2 Illumination required is amended to add the following at the end of Exception 2 following the letter "A":

"and Group S (Sprinklered)."

1032 Maintenance of the means of egress is amended to add the following new sub-section:

1032.11 Overcrowding. The number of occupants of any building or portion thereof shall not be permitted to exceed the allowed or posted capacity, determined in accordance with the building code.

Chapter 11
Construction Requirements for Existing Building

No amendments

Chapter 12
Energy Systems No amendments

Chapters 13 through 19
Reserved

No amendments

Chapter 20
Aviation Facilities

No amendments

Chapter 21
Dry Cleaning

No amendments

Chapter 22
Combustible Dust-Producing Operations

No Amendments

Chapter 23
Motor Fuel-Dispensing Facilities and Repair Garages

No Amendments

Chapter 24
Flammable Finishes

No amendments

Chapter 25
Fruit and Crop Ripening

No Amendments

Chapter 26
Fumigation and Insecticidal Fogging

No Amendments

Chapter 27
Semiconductor Fabrication Facilities

No Amendments

Chapter 28
Lumber Yards and Woodworking Facilities

No Amendments

Chapter 29
Manufacture of Organic Coatings

2909.4.2 Spills is amended by deleting the words "or by burning in the open at an approved detached location" without substitution.

Chapter 30
Industrial Ovens

No Amendments

Chapter 31
Tents and Other Membrane Structures

3103.2 Approval required is amended to delete the second exception and substitute in lieu thereof the following:

2. Funeral tents and curtains or extensions attached thereto, when used for funeral services.

3104.2 Flame propagation performance treatment is amended to add the following sentence at the end of the section following the word, "permit":

"The flame propagation performance treatment requirements shall also apply to tents or air-supported structures that do not require permits and are used for public gatherings."

3107.12.5 Cooking tents is amended to add the words "unless approved by the fire code official" at the end of the section following the numbers and letters "20 feet (6096 mm)."

3107.12.6 Outdoor cooking is amended to add the words "unless approved by the fire code official" at the end of the section following the word "structure."

Chapter 32
High-Piled Combustible Storage

3206.7.6 Door size and type is amended to add the following exception:

Exception: Roll up doors shall be allowed to be considered for use as fire fighter access doors provided provisions are made for the doors to unlock upon activation of the water flow alarm.

Chapter 33
Fire Safety During Construction and Demolition

3314.3 Detailed requirements is amended to add the following sentence at the end of the exception following the word "materials":

"The type of standpipe permitted shall be approved by the fire code official."

Chapter 34
Tire Rebuilding and Tire Storage

No Amendments

Chapter 35
Welding and Other Hot Work

No Amendments

Chapter 36
Marinas No Amendments

Chapter 37
Combustible Fibers

No Amendments

Chapter 38
Higher Education Laboratories

No Amendments

Chapter 39
Processing and Extraction Facilities

No Amendments

Chapter 40
Storage of Distilled Spirits and Wines

No Amendments

Chapters 41 through 49
Reserved

No Amendments

Chapter 50
Hazardous Materials General Provisions

No Amendments

Chapter 51
Aerosols

No Amendments

Chapter 52
Reserved

No Amendments

Chapter 53
Compressed Gases

No Amendments

Chapter 54
Corrosive Materials

No Amendments

Chapter 55
Cryogenic Fluids

No Amendments

Chapter 56
Explosives and Fireworks

No Amendments

Chapter 57
Flammable and Combustible Liquids

5704.1 General is amended to add the following new sub-section:

5704.1.1 Unauthorized storage. It shall be illegal to store or keep gasoline powered equipment such as motor vehicles, motorcycles, scooters, lawn equipment, generators, power washers, or equipment associated with the construction trades in any structure, facility, building, suite, or room unless the structure, facility, building, suite, or room is approved for such use. This restriction does not apply to items displayed for sale with no gasoline in the attached tank.

5703.5 Labeling and signage is amended to add the words "or combustible" following the word "flammable" in the first sentence.

5704.2.9.6.1 Locations where above-ground tanks are prohibited is amended to delete the words "limits established by law as the limits of districts in which such storage is prohibited [jurisdiction to specify]" in the first sentence and substitute in lieu thereof the words "fire district."

5704.3.3 Indoor storage is amended to add the following exception:

3. The storage of flammable and combustible liquids in plastic containers shall comply with this chapter as well as applicable sections of NFPA 30. Secondary containment for the storage of flammable and combustible liquids in plastic containers shall comply with Factory Mutual Data sheet 7-29.

5706.2.4.4 Locations where above-ground tanks are prohibited is amended to delete the words "limits established by law as the limits of districts in which such storage is prohibited [JURISDICTION TO SPECIFY]" in the first sentence and substitute in lieu thereof the words "fire district".

Chapter 58
Flammable Gases and Flammable Cryogenic Fluids

5806.2 Limitations is amended to delete the words "limits established by law as the limits of districts in which such storage is prohibited [JURISDICTION TO SPECIFY]" in the first sentence and substitute in lieu thereof the words "fire district."

Chapter 59
Flammable Solids

No Amendments

Chapter 60
Highly Toxic and Toxic Materials

No Amendments

Chapter 61
Liquefied Petroleum Gases

6103.2.1 Portable containers is amended to add the following new sub-section:

6103.2.1.8 Flame effects before a proximate audience. The use of LP gas as part of a flame effect before a proximate audience shall comply with this chapter and NFPA 160 and shall be approved by the fire code official.

6104.2 Maximum capacity within established limits is amended to delete the words "limits established by law restricting" in the first sentence and substitute in lieu thereof the words "fire district."

6104.2 is further amended to delete the words "[JURISDICTION TO SPECIFY]" in the first sentence without replacement.

6107 Safety Precautions and Devices is amended to add the following new sub-section:

6107.5 Storage and Transport. Portable LP-gas containers shall be maintained in the upright position relative to the relief valve during storage and transport.

Chapter 62
Organic Peroxides

No Amendments

Chapter 63
Oxidizers, Oxidizing Gases and Oxidizing Cryogenic Fluids

No Amendments

Chapter 64
Pyrophoric Materials

No Amendments

Chapter 65
Pyroxylin (Cellulose Nitrate) Plastics

No Amendments

Chapter 66
Unstable (Reactive) Materials

No Amendments

Chapter 67
Water-Reactive Solids and Liquids

No Amendments

Chapters 68 through 79
Reserved

No Amendments

Chapter 80
Referenced Standards

Chapter 80 Referenced Standards is amended by deleting and adding the following corresponding standards and publications:

DELETE

NFPA Standards

02—19 Hydrogen Technologies Code	1206.3, 1206.4, 2309.1, 2309.3.1.1, 2309.3.1.2, 2309.4, 2309.6, 2311.8, 2311.8.2, 2311.8.10, 2311.8.11, 5301.1, 5801.1
10—21 Portable Fire Extinguishers	Table 901.6.1, 906.2, Table 906.3(1), Table 906.3(2), 906.3.2, 906.3.4, 3006.3
11—16 Low-, Medium- and High-expansion Foam	904.7, 5704.2.9.2.2
17—20 Dry Chemical Extinguishing Systems	Table 901.6.1, 904.6, 904.13
17A—20 Wet Chemical Extinguishing Systems	Table 901.6.1, 904.5, 904.13
32—16 Drycleaning Facilities	2107.1, 2107.3
33—18 Spray Application Using Flammable or Combustible Materials	2403.3.3
34—18 Dipping, Coating and Printing Processes Using Flammable or Combustible Liquids	2405.3, 2405.4.1.1
35—16 Manufacture of Organic Coatings	2901.3, 2905.4
55—19 Compressed Gases and Cryogenic Fluids Code	3508.1, 5301.1, 5307.4.2, 5501.1, 5801.1, 6301.1
68—13 Explosion Protection by Deflagration Venting	911.1, 911.4, Table 2205.1
76—16 Fire Protection of Telecommunications Facilities	1207.1.2.1, 1207.2.1, 1207.3.1, 1207.3.7.1, 1207.4.1, 1207.5.1, 1207.5.2, 1207.5.3, 1207.5.5, Table 1207.6, 1207.6.2.3, Table 1207.7
77—14 Static Electricity	Table 2205.1
92—18 Smoke Control Systems	909.7, 909.8
96—20 Ventilation Control and Fire Protection of Commercial Cooking Operations	606.2, 904.13
170—18 Standard for Fire Safety and Emergency Symbols	1025.2.6.1
204—18 Smoke and Heat Venting	Table 901.6.1, 910.5.1, 910.5.2
704—17 Standard System for Identification of the Hazards of Materials for Emergency Response	202, 608.8, 5003.2.2.2, 5003.5, 5003.10.2, 5005.1.10, 5005.1.12, 5005.2.1.1, 5005.4.4, 5503.4.1, 5704.2.3.2
780—17 Installation of Lightning Protection Systems	4003.4

ADD

NFPA Standards

02—20 Hydrogen Technologies Code	1206.3, 1206.4, 2309.1, 2309.3.1.1, 2309.3.1.2, 2309.4, 2309.6, 2311.8, 2311.8.2, 2311.8.10, 2311.8.11, 5301.1, 5801.1
10—18 Portable Fire Extinguishers	Table 901.6.1, 906.2, Table 906.3(1), Table 906.3(2), 906.3.2, 906.3.4, 3006.3
11—21 Low-, Medium- and High-expansion Foam	904.7, 5704.2.9.2.2
17—21 Dry Chemical Extinguishing Systems	Table 901.6.1, 904.6, 904.13
17A—21 Wet Chemical Extinguishing Systems	Table 901.6.1, 904.5, 904.13
32—21 Drycleaning Facilities	2107.1, 2107.3
33—21 Spray Application Using Flammable or Combustible Materials	2403.3.3
34—21 Dipping, Coating and Printing Processes Using Flammable or Combustible Liquids	2405.3, 2405.4.1.1
35—21 Manufacture of Organic Coatings	2901.3, 2905.4
55—20 Compressed Gases and Cryogenic Fluids Code	3508.1, 5301.1, 5307.4.2, 5501.1, 5801.1, 6301.1
68—18 Explosion Protection by Deflagration Venting	911.1, 911.4, Table 2205.1
76—20 Fire Protection of Telecommunications Facilities	1207.1.2.1, 1207.2.1, 1207.3.1, 1207.3.7.1, 1207.4.1, 1207.5.1, 1207.5.2, 1207.5.3, 1207.5.5, Table 1207.6, 1207.6.2.3, Table 1207.7
77—19 Static Electricity	Table 2205.1
92—21 Smoke Control Systems	909.7, 909.8
96—21 Ventilation Control and Fire Protection of Commercial Cooking Operations	319.8.2, 606.2, 904.13
170—21 Standard for Fire Safety and Emergency Symbols	1025.2.6.1
204—21 Smoke and Heat Venting	Table 901.6.1, 910.5.1, 910.5.2
704—22 Standard System for Identification of the Hazards of Materials for Emergency Response	202, 608.8, 5003.2.2.2, 5003.5, 5003.10.2, 5005.1.10, 5005.1.12, 5005.2.1.1, 5005.4.4, 5503.4.1, 5704.2.3.2
780—20 Installation of Lightning Protection Systems	4003.4

FM Global Data Sheets

7-29 Ignitable Liquid Storage in Portable Containers, (current edition) - Sections that relate to requirements for flammable and combustible liquids in plastic containers only.

American Petroleum Institute

API Recommended Practice 2201, Safe Hot Tapping Practices in the Petroleum and Petrochemical Industries (current edition)

Appendix B
Fire-Flow Requirements for Buildings

B103.2 Increases is amended to insert the following words at the end of the first sentence following the word "conflagrations":

", present a special hazard use, or include the protection of a special hazard commodity."

Section B105 Fire-flow Requirements for Buildings is amended to delete sub-sections B105.1, B105.2, Table B105.1(1) and Table B105.2 and substitute in lieu thereof the following new subsections:

B105.1 One- and two-family dwellings, Group R-3 and R-4 buildings and townhouses. The minimum fire-flow and flow duration requirements for one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses shall be as specified in Table B105.1(2).

B105.2 Buildings other than one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses. The minimum fire-flow and flow duration for buildings other than one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses shall be as specified in Table B105.1(2).

Exceptions:

1. A reduction in required fire-flow of up to 30 percent is allowed when the building is provided

with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2. A reduction in required fire-flow of up to 40 percent is allowed when the building is provided with an approved ESFR sprinkler system installed in accordance with this code and NFPA 13. A reduction in required fire-flow which exceeds the percentages listed above must be specifically approved by the fire code official. No reductions in required fire-flows are allowed for occupancies located within congested valve districts (including the fire district as defined in the International Building Code) or Group H occupancies unless specifically approved by the fire code official.

2. Buildings subjected to the plan of services relative to Annexation Area #01-50, which are provided with an approved ESFR sprinkler system installed in accordance with this code and NFPA 13, may have limited fire-flow requirements commensurate to that available from the public water supply. Limitations are not applicable for occupancies located within congested valve districts (including the fire district as defined in the International Building Code) or Group H occupancies unless specifically approved by the fire code official.

(Ord. No. 5225, § 2, 12-3-2007; Ord. No. 5486, § (b), 12-18-2012; Ord. No. 5701, § (b), 8-28-2018; Ord. No. 5808, 11-16-2021)

CHAPTER 9-40. FIRE PREVENTION INSPECTIONS, CHARGES AND PERMITS

Sections:

Sec. 9-40-1. Definitions.
Sec. 9-40-2. Fees, charges and permits established.
Sec. 9-40-3. Fees deposited in anti-neglect administrative fund.
Sec. 9-40-4. Fee schedules—Payable to fire prevention bureau.
Sec. 9-40-5. Penalties.

Sec. 9-40-1. Definitions.

For purposes of this chapter the following definitions and terms shall apply:

Alteration means any addition, repair and/or replacement of any building.

Applicant means the person who applies for an application.

Building is any structure designed or built for the support, enclosure, shelter or protection of persons, animals, chattels or property.

Building code is the building codes of the City of Memphis and County of Shelby, as amended.

Corporation means the entity in charge of a building and in control of its operation.

Director means the director of fire services of the City of Memphis, or his or her designated representative.

Division means the division of fire services of the City of Memphis.

Fees include charges and permits as required by the fire prevention bureau.

Fire prevention bureau is the authorized bureau established under the fire services division.

Inspection means physical inspection of buildings, and shall include all tests as required by the rules and regulations prescribed in the Standard Fire Prevention Code adopted by the city.

Inspector is the person appointed by the director to carry out inspections of buildings.

Licensee includes the term individual and is the person officially in charge of any building and has control of the operations therein.

New installation means new buildings constructed for any habitation and includes the application for permit and all accompanying documents necessary to complete the application.

Operator includes the term individual and is the person officially in charge of any building and has control of the operations therein.

Owner includes holder of legal title as well as holders of any equitable interest, such as trust beneficiaries, contract purchasers, option holders, lessees under leases having an unexpired term of at least ten years, and the like.

Plans review means an inspection by the fire prevention inspector of the design of buildings or systems and/or installation layouts.

Premises means a lot, plot or parcel of land, together with the buildings and structures thereon.
(Code 1985, § 14-110; Ord. No. 4192, § 1, 6-22-1993)

Sec. 9-40-2. Fees, charges and permits established.

There is established fire prevention inspection fees, charges and permits to defray part of the costs of administering the city's anti-neglect and/or dangerous derelict abandoned structures in multi-housing, commercial and industrial districts, regulations, chapter 14-8, which fees, charges and permits shall be payable by the applicant, the owner, the operator or the corporation, as set out in this chapter, prior to the physical inspection. The fees, charges and permits shall be billed by the fire prevention bureau on behalf of the city and the proceeds used exclusively by the city.
(Code 1985, § 14-111; Ord. No. 4192, § 1, 6-22-1993)

Sec. 9-40-3. Fees deposited in anti-neglect administrative fund.

All fire prevention inspection fees, charges and permits collected herein at the fire prevention bureau pursuant to section 9-40-2 shall be placed in the anti-neglect, administrative fund for the implementation of regulations of chapter 14-8, and used for the purposes stated herein. Beginning with the fiscal year 2004, all anti-neglect expenses for inspections and general operation of this department shall be funded out of the general fund of the city and fees collected shall be paid into the office of the city treasurer and placed in the general fund.
(Code 1985, § 14-112; Ord. No. 4192, § 1, 6-22-1993)

Sec. 9-40-4. Fee schedules—Payable to fire prevention bureau.

Fees, charges and permits are hereinafter set out as follows, and shall apply to any applicant, owner, operation, licensee or corporation, as defined in this chapter:

A. *Original inspections.* Original inspection for occupancies which require fire department approval for state licensing, including but not limited to:

Day care centers	$75.00
Adult day care centers	$75.00
Residential board and care homes	$75.00
Day treatment centers	$75.00
Institutional occupancies	$100.00
Alcohol and drug care centers	$75.00

B. *Yearly inspections.* Annual re-inspection for occupancies which require fire department for state licensing, including but not limited to:

Day care centers	$50.00
Adult day care centers	$50.00
Residential board and care homes	$50.00
Day treatment centers	$50.00
Institutional occupancies	$100.00
Alcohol and drug care centers	$50.00

C. *Plans review for new installations.* Following fees including plans review and two approval inspections for new installations.

Fire pump installation	$25.00
Plus per 250 gpm	$50.00
Fire suppression system (hood and duct system)	$100.00
Smoke and heat detection system	$100.00
Standpipe system	$100.00
Sprinkler system (each system)	$100.00
Dry/wet chemical system	$100.00
Carbon dioxide system	$100.00
Foam system	$100.00
Fire alarm system:	
a. 1—5 stories	$100.00
b. 6 plus stories	$150.00
Transmitter installation for purpose of supervising a fire protection system	$50.00
Point of connection to fire alarm by central station to monitoring system	$50.00
Private fire hydrant installation	$50.00
Each additional fire hydrant	$25.00
Flammable liquid storage room	$75.00
Flammable liquid storage building	$100.00
Hazardous chemical storage room	$75.00

Hazardous chemical storage building	$100.00
Paint spray booth	$50.00
Paint spray room/area	$100.00
Installation of inside/outside above ground flammable/ combustible liquid storage tank	$100.00
Installation of inside/outside above ground hazardous chemical storage tank	$100.00
Liquid petroleum storage tank (120 gallons plus)	$100.00
Cryogenic storage tank	$100.00

D. *Plans review for alterations.* Fees include plans review and two approval inspections.

Fire suppression system (hood and duct system)	$50.00
Smoke and heat detection system	$100.00
Halon system	$50.00
Dry/wet chemical system	$50.00
Carbon dioxide system	$50.00
Foam system	$50.00
Sprinkler system (10+ heads)	$50.00
Fire alarm system:	
a. 1—5 stories	$50.00
b. 6 plus stories	$75.00
Flammable liquid storage room	$75.00
Flammable liquid storage building	$100.00
Hazardous chemical storage room	$75.00
Hazardous chemical storage building	$100.00
Paint spray booth	$50.00
Paint spray room area	$100.00
Installation of inside/outside above ground flammable/ combustible liquid storage tank	$100.00
Installation of inside/outside above ground hazardous chemical storage tank	$100.00
Liquid petroleum storage tank (120 gallons plus)	$100.00
Cryogenic storage tank	$100.00

E. *Miscellaneous permits and fees.*

Fireworks, pyrotechnic, or flame effect display (Standby firefighter requires additional cost)	$25.00
Tent inspection (over 400 square feet)	$25.00
Cutting and welding	$25.00
Flammable and combustible liquid underground tank test	$50.00
Flammable and combustible liquid line test	$50.00
Flammable and combustible liquid tank removal	$50.00
Use, handle or store explosives	$50.00
Mobile Food Preparation Vehicle (annual)	$50.00
901 fire report	$10.00
Fire investigation report	$25.00
Fire inspection report:	
a. First page	$10.00
b. Each additional page	$1.00
Fire inspection required by alcohol commission	$50.00
Fire inspection photos (per each photo)	$10.00
Permit for approved, controlled, open burning	$50.00
Inspection requested for insurance (charge per hour or similar purpose)	$25.00
High piled combustible storage, exceeding 500 square feet (for compliance with chapter 32, International Fire Code)	$100.00

(Code 1985, § 14-113; Ord. No. 4192, § 1, 6-22-1993; Ord. No. 5700, § (a), 8-28-2018; Ord. No. 5809, 11-16-2021)

Sec. 9-40-5. Penalties.

A. Additional inspections required in connection with the permit approval, after the first two inspections, shall be billed at a rate of $25.00 per man hour.

B. For applications submitted less than 48 hours in advance of date permit is needed, include additional $25.00 fee.

C. Failure to obtain permit approval prior to installation and/or construction shall result in double permit fees.
(Code 1985, § 14-114; Ord. No. 4192, § 1, 6-22-1993)

CHAPTER 9-44. MISCELLANEOUS FIRE PREVENTION REGULATIONS*

Sections:

Sec. 9-44-1. Obstructing fire access areas and fire hydrants.
Sec. 9-44-2. Smoking in bed.
Sec. 9-44-3. Smoking prohibited in certain public places.
Sec. 9-44-4. Reports of fires to fire department.
Sec. 9-44-5. Elevator key box.
Sec. 9-44-6. Fire protection equipment—Smoke detector devices—Required—Design—Installation and maintenance.

Sec. 9-44-1. Obstructing fire access areas and fire hydrants.

A. No obstruction of any kind, including motor vehicles or trailers, whether attended or unattended, shall be placed, stored, parked or permitted to remain for any period of time in any area required for the access of fire equipment to any public or private residential or business building or complex of such buildings, which may, in the discretion of the director of fire services, and with the consent of the owner when such areas are not public property, be designated as "fire access areas."

B. Such fire access areas may include both public and private streets and alleys designated by the director of fire services, and off-street driveways or alleyways owned by such hospitals, buildings or complexes of such buildings, designated by the director of fire services with the consent of the owner thereof, and shall be marked by official signs designed and approved by the director of fire services indicating that approval is pursuant to this section, which design shall be used exclusively by the city and fire services division. A record of all approved fire access areas shall be kept on file at the fire services fire prevention bureau.

C. Any and all signs erected, or areas marked or posted as a fire access area, by any owner of private property must bear different identification and color scheme, and such signs must indicate that such designation is not an official fire access area enforceable by the city fire division and police department. For the purposes of this section the terms "fire access areas" and "fire lanes" are synonymous.

*__Charter references—__Authority to regulate storage of combustible articles, § 405; miscellaneous powers relative to fire prevention, § 834.

D. No such obstruction of any kind, including motor vehicles or trailers, whether attended or unattended, shall be placed, stored or parked or permitted to remain for any period of time within ten feet of a fire hydrant, whether such fire hydrant is located on public streets, alleys, off-street driveways or alleyways or on public or private property, including, but not limited to hospitals, residential or business buildings or complexes.

E. When used herein, "owner" means individuals, partnerships or corporations actually legal owners or otherwise entitled to occupancy, use or possession thereof.

F. Any person violating this section shall be guilty of a misdemeanor and such motor vehicles or trailers found in violation hereof may be impounded and towing and storage charges assessed under the provisions of section 11-40-26 of this code.

G. The amount of forfeiture which may be paid at the traffic violations bureau for violation of this section is designated as $13.00, which amount shall be added to the traffic violations bureau schedule of forfeitures contained in section 11-8-5(A) of this code.
(Code 1967, § 17-15; Code 1985, § 14-1; Ord. No. 718, § 1, 5-26-1970; Ord. No. 928, § 1, 4-27-1971; Ord. No. 3212, § 1, 6-15-1982)

Cross reference—Motor vehicles and traffic, title 11.

Sec. 9-44-2. Smoking in bed.

It shall be a misdemeanor for any person to start or cause a fire by smoking in bed, or by placing or leaving any lighted cigarette, cigar or tobacco on any bed or by permitting any lighted cigarette, cigar or tobacco to fall upon a bed.
(Code 1967, § 17-16; Code 1985, § 14-2; Ord. No. 213, § 1, 7-16-1968)

Sec. 9-44-3. Smoking prohibited in certain public places.

It shall be a misdemeanor for any person to smoke cigarettes, cigars or pipes in any theater, hall, hotel, public building, store, warehouse, factory, or on the premises of any establishment, public conveyance or anywhere that smoking is dangerous, provided signs of a suitable size are posted in such places where they can be seen.
(Code 1967, § 17-13; Code 1985, § 14-3)

Sec. 9-44-4. Reports of fires to fire department.

A. *Definition.* As used in this section:

Required means fire protection systems, equipment or apparatus that is required by applicable fire and building codes or ordinances.

B. *Responsibility for reporting fire.*

1. Any person who has knowledge of a fire in progress shall immediately notify the Memphis division of fire services (Memphis fire department).
2. Additionally, whenever any required fire alarm system is activated at any premises of any kind, the owner, manager, occupant, or any person in control of such building or premises, shall immediately notify the Memphis division of fire services (Memphis fire department).
3. Approved central stations, as defined in the National Fire Protection Standard No. 71, "Installation, Maintenance and Use of Central Station Signaling System," 1982 edition, receiving an alarm signal initiated by required manual fire alarm boxes, automatic fire detectors, waterflow from an automatic sprinkler system, or actuation of other fire extinguisher systems or equipment, shall treat such signal as a fire alarm and immediately retransmit the alarm signal to the fire department.

C. *Delaying actions.* No person shall make, issue, post or maintain any regulation or order, written or verbal, which will delay or require unnecessary action prior to the reporting of a fire or alarm signal to the Memphis fire services division (Memphis fire department).

D. *Violation—Penalty.* Violation of this section shall be a misdemeanor punishable by a fine not to exceed $50.00.
(Code 1967, § 17-14; Code 1985, § 14-4; Ord. No. 3479, § 1, 7-23-1985)

Sec. 9-44-5. Elevator key box.

A. *Requirement—Installation.* Owners of all structures containing elevators, with the exception of residential lifts, shall be required to install and maintain an approved key box at an accessible location approved by the fire official. The key and lock on such box shall meet standardized fire department regulations. The box shall

contain elevator access and control keys, but may also contain keys necessary for life-saving or fire-fighting purposes.

B. *Effective date.* Effective September 1, 1984, this section shall apply to all structures, whether new building construction or existing building construction.
(Code 1967, § 17-35; Code 1985, § 14-5; Ord. No. 3364, § 1, 2-21-1984)

Sec. 9-44-6. Fire protection equipment—Smoke detector devices—Required—Design—Installation and maintenance.

A. *Where required.* Smoke detectors are required:

1. In every existing dwelling unit within an apartment house, condominium complex, dormitory, townhouse or duplex; and

2. Every existing guest room in a motel and hotel.

These occupancies shall be provided with an approved U.L. or F.M. -listed smoke detector(s). A smoke detector shall be installed to protect each separate sleeping area, which may consist of one bedroom, or immediately adjoining or adjacent bedroom units of two or more separate rooms; at the head of each stairway leading to an occupied area; and also at the head of each interior basement stairway. Where one smoke detector can be located outside the bedrooms but within the immediate vicinity of the sleeping area, one smoke detector may be so located and used. When activated, the detector(s) shall provide an alarm which shall be clearly audible in all bedroom units and over background noise levels with all intervening doors closed. The test of the audibility level shall be conducted with all household equipment in full operation. Examples of such household equipment are, but are not limited to, window air conditioners and room humidifiers. This test shall be conducted by the installer in the presence of the owner or his or her authorized representative. In the event an owner or his or her authorized agent cannot be present for an installation test, the installer shall submit to the owner a written notice that the smoke detectors were installed in accordance with the manufacturer's specifications and were tested and are properly functioning. Smoke detectors located in rooms with ceiling slopes greater than one foot rise per eight feet horizontally shall be located at the high side of the room. A smoke detector installed at the head of a stairway shall be so located as to assure that smoke rising in the stairwell cannot be prevented from reaching the detector by an intervening door or obstruction. Smoke detectors shall be located on or near the ceiling, in accordance with the manufacturer's specifications.

B. *Exception.* Any residential unit or occupancy as set out in subsection A of this section, having in operation a form or system of electronic or other fire detection system, device or similar system, when approved by the fire official as an alternate alarm system shall be exempt from the equipment requirements of this section, as to all areas so protected.

C. *Responsibility.* It shall be the responsibility of the owner, the lessor and/or the managing agent of all of the above-listed residential occupancies to provide and install smoke detectors in full operating condition. It shall be the occupants' responsibility to make operational safety tests and notify the owner, lessor and/or managing agent in writing of any malfunction. These operational tests, or inspections, as recommended by the manufacturer, shall be made by the occupant not less than once a month. Detector(s) installed in common corridors or at the head of common stairs shall be tested by the owner or his or her authorized agent periodically, but at least once a month. If the owner is also the occupant, the owner shall also make the test. It shall be the responsibility of the owner, lessor and/or managing agent to test the detectors at the time each unit is occupied to ensure they are operating properly. If batteries are used as a source of energy, they shall be replaced in accordance with the recommendations of the alarm equipment manufacturer.

D. *Interference.* It is unlawful for any person to remove or to intentionally interfere with the proper operation of any required smoke detectors.

E. *Definition.* "Smoke detector," whenever used in this section, means a fire alarm device capable of sensing visible or invisible particles of combustion, and providing suitable alarm audible in all sleeping areas and stairways as set out in this section.
(Code 1967, § 17-131; Code 1985, § 14-106; Ord. No. 3114, § 1, 4-14-1981; Ord. No. 3234, § 1, 7-20-1982)

State law reference—Smoke detectors, T.C.A. § 68-102-151.

CHAPTER 9-48. FIRE HYDRANTS

Sections:

Sec. 9-48-1. Installation generally.
Sec. 9-48-2. Roadway accessibility.

Sec. 9-48-1. Installation generally.

A. *Where required.* With the exception of one- and two-family dwellings, owners of buildings and structures, including, but not limited to, assembly, educational, residential, institutional, mercantile business, industrial storage, and/or other use occupancies, which buildings or structures are located more than 500 feet, by standard roadway, street, or approved fire lane, from the nearest public fire hydrant, shall install the number and type of fire hydrants and/or branch line valves as directed by the fire official. Hydrants and/or branch line valves shall also be installed where the distance from any required fire protection connection exceeds 100 feet.

B. *Design standards.* Hydrant design and pattern shall conform to published specifications and standards of the division of fire services and the Memphis light, gas and water division. Installation details shall also comply with National Fire Protection Association Standard No. 24, 1981 Edition, "Installation of Private Fire Service Mains and Their Appurtenances."

C. *Fire flow demand.* Fire flow standards, as established and published by the division of fire services and the light, gas and water division, shall be provided at the required hydrants through approved water mains with approved controlling sectional valves located as directed by the fire official. Water main sizes may be calculated based on fire flow demand, but in no case shall mains and valves be less than six inches in diameter.

D. *When required.* Fire hydrants, mains, and valves shall be installed as work progresses, and shall be fully operational at such time as combustible or hazardous materials are introduced or stored on the construction site, and/or at other times deemed necessary by the fire official. In no case shall any building or structure as herein described be issued an occupancy permit until all such required hydrants, water mains, and valves are completely installed, tested and approved.
(Code 1967, § 17-120; Code 1985, § 14-91; Ord. No. 2931, § 1, 10-23-1979)

Sec. 9-48-2. Roadway accessibility.

Where fire hydrants are installed to comply with the provisions of this chapter, approved all-weather roadways, drives, and/or fire lanes are to be provided before construction begins. Temporary roadways, drives, and/or fire lanes, where installed to facilitate work on the site, shall be located with consideration to fire hydrants and shall be approved by the fire official. Roadways, drives, and/or fire lanes shall be properly maintained and unobstructed at all times. In no case shall any building or structure herein described be issued an occupancy permit until all required roadways, drives, and/or fire lanes are completely installed.
(Code 1967, § 17-121; Code 1985, § 14-92; Ord. No. 2931, § 1, 10-23-1979)

CHAPTER 9-52. FOOD ESTABLISHMENTS

Sections:

Article 1. General Provisions

Sec. 9-52-1. Definitions.
Sec. 9-52-2. Approval of plans for construction and alteration of food service establishment.
Sec. 9-52-3. Permit to manufacture, sell, or distribute food generally—Required.
Sec. 9-52-4. Permit—Application.
Sec. 9-52-5. Permit—Issuance.
Sec. 9-52-6. Permit—Display—Not transferable.
Sec, 9-52-7. Permit—Revocation or suspension.
Sec. 9-52-8. Periodic inspections.
Sec. 9-52-9. Sale of food or drinks on streets from vehicles, vacant lots or temporary stands prohibited, except as authorized.
Sec. 9-52-10. Reserved.
Sec. 9-52-11. Temporary food service establishment.
Secs. 9-52-12—9-52-18. Reserved.
Sec. 9-52-19. Frozen desserts—Mobile vendors.
Sec. 9-52-20. Right of entry into food establishment—Interfering with health department personnel.
Sec. 9-52-21. Interpretation of article—Policies and standards of health officer.
Sec. 9-52-22. Enforcement of article—Rules and regulations of health department.
Secs. 9-52-23—9-52-25. Reserved.

Article 2. General Sanitary Requirements

Sec. 9-52-26. Application.
Secs. 9-52-27—9-52-47. Reserved.
Sec. 9-52-48. Birds and animals prohibited—Exception.
Secs. 9-52-49—9-52-70. Reserved.

Article 3. Requirements for Specific Types of Establishments and Mobile Food Units

Sec. 9-52-71. Application of article.
Secs. 9-52-72—9-52-77. Repealed.
Sec. 9-52-78. Mobile food trucks and industrial caterers.

Secs. 9-52-79—9-52-80. Reserved.
Sec. 9-52-81. Produce truck.
Sec. 9-52-82. Same—Operating on public property.
Sec. 9-52-83. Pedestrian vendors and push carts.
Sec. 9-52-84. Farmer's market.
Sec. 9-52-85. Reserved.
Sec. 9-52-86. Mobile food preparation vehicles.
Sec. 9-52-87. Operational requirements.
Sec. 9-52-88. Food requirements.
Sec. 9-52-89. Food handler requirements.
Sec. 9-52-90. Equipment standards.
Sec. 9-52-91. Maintenance of premises.
Sec. 9-52-92. Vehicle sanitation requirements.
Sec. 9-52-93. Zoning districts.
Sec. 9-52-94. Mobile food market.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9-52-1. Definitions.

The following definitions shall apply in the interpretation and enforcement of this article:

Approved means acceptable to the health officer based on his or her determination as to conformance with appropriate standards and good public health practice, as hereinafter set forth.

Bakery means a plant where bread, rolls, cakes, doughnuts, pies and similar products are processed, mixed, baked, packaged or stored for sale and distribution to retailers.

Commissary means any state licensed stationary food establishment that serves mobile food dispensers, mobile food facilities, vending machines or other food dispensing operations where (i) food, containers or supplies are stored; (ii) food is prepared or prepackaged for sale or service at other locations; (iii) utensils are cleaned; or (iv) liquid and solid wastes are disposed of or potable water is obtained.

Food commissary means an establishment with an eating and drinking classification, which prepares food for distribution to an approved retail food establishment owned or operated by the same person who has ownership of the commissary. Adequate equipment must be provided to maintain good sanitation in the preparation and transportation of such food.

Environmentalist is the term designated to include inspectors, sample collectors or any other person employed by the health department and assigned to food control.

Frozen dessert is any clean frozen or partially frozen combination of two or more of the following: Grade A milk products, manufactured milk or manufactured milk products, eggs or egg products, sugars, water, fruit or fruit juices, candy, nut meats, or other harmless and wholesome food products, flavors, color, or harmless stabilizers, and shall be deemed to include ice cream, ice milk, sherbet, imitation ice cream, novelties, and other similar products.

Grocery store or *retail market* means a place of business where food and food products are stored, displayed and offered for sale to retail customers to be prepared or cooked elsewhere. Another type of business such as a meat market, restaurant, or bakery may be incorporated into the grocery store area but will not be included in this definition. A grocery store or retail market routinely sells fruits, vegetables or other produce and/or has a meat market. See also, *retail market*.

Health officer means the county health officer and/or director of the county health department, or his or her designated representative.

Historical district means a specific area included on the state register of historical places, as defined by state laws or the state historical commission.

Labeling means the marking, designation, or descriptive device on food containers and/or articles of food denoting the name of the product, ingredients thereof; name and address of manufacturer and/or distributor (if name and address of distributor is utilized then the permit number and the permitting agency shall appear on the product); and any other information required by the state department of agriculture, USDA or FDA, as found in the Tennessee Food, Drug, and Cosmetic Act Food Labeling Requirements, T.C.A. § 53-1-105 et seq.

Meat market means a place of business or an area in a grocery store which meat, or meat products, are stored, processed, displayed or offered for sale.

Menu change means a modification of a food establishment's menu that requires a change in the food establishment's food preparation equipment, storage equipment or storage capacity previously approved by the health department. The term "menu change" shall include, but is not limited to, the addition of potentially hazardous food to a menu, installation of new food preparation or storage equipment, or increasing storage capacity.

Misbranded means the presence of any written, printed or graphic matter upon or accompanying food or containers of food, which is false or misleading, or which violates any applicable state or local labeling requirements.

Mobile food units means:

1. *Mobile food truck* means a truck that dispenses pre-packaged food and drinks.

   A. *Mobile food market* means a truck that dispenses pre-packaged food and drinks or sells pre-packaged frozen or refrigerated meat, poultry, or dairy products, fresh fruits and vegetables and other perishable and/or non-perishable packaged products from approved locations in Memphis and Shelby County in accordance with Tennessee Department of Agriculture Rules Chapter 0080-4-9, 0080-03-01 and 0080-04-01.

   B. *Mobile food market with deli* as defined above, with the addition of the preparation of potentially hazardous food, including cold or hot sandwiches, hot dogs, ready-to-eat meats, pizza, chili, dip ice cream and soft serve machines.

   C. *Industrial caterer* dispenses pre-packaged food products and drinks to one or more locations on commercial or industrial property, private or public, with the permission/authorization of the owner or occupant.

2. *Mobile food preparation vehicle* is a mobile food preparation vehicle that is any motorized vehicle that includes a self-contained or attached trailer kitchen in which food is prepared, processed or stored and used to sell and dispense food to the ultimate consumer. Mobile units must be mobile at all times during operation. The unit must be on wheels (excluding boats) at all times. Any mobile food unit that removes such wheels or becomes stationary must meet Tennessee Department of Health Regulations Chapter 1200-23-1 et seq. in its entirety. This definition does not include push-carts as regulated by city codes and prohibited from selling potentially hazardous foods by the state department of health, nor vehicles from which only ice cream and other frozen non-hazardous food products are sold, nor vehicles operating under special event permit.

3. *Mobile frozen meat truck* means a truck that sells pre-packaged frozen meat or poultry to retail customers from approved locations in Memphis and Shelby County in accordance with Tennessee Department of Agriculture Rules and Regulations Chapter 0080-4-9 et seq.

4. *Mobile seafood truck* means a truck that sells pre-packaged frozen or refrigerated seafood as well as seafood packaged on site to retail customers from approved locations in Memphis and Shelby County in accordance with Tennessee Department of Agriculture Rules and Regulations Chapter 0080-04-10-.01 and 0080-04-10-.02.

5. *Produce truck* means person who sells or peddles from a vehicle on the streets of the city only fruits, vegetables, melons, berries, chestnuts and packaged nuts. Such products may be produced by him/her or they may be purchased from others for resale.

6. *Push cart* means a mobile unit which dispenses non-potentially hazardous food on a daily basis from a non-motorized mobile vehicle which operates within the confines of a public or private pedestrian mail, shopping center, commercial business, city park or commercially zoned historical district, in accordance with Tennessee Department of Health Rules and Regulations for mobile units, Chapter 1200-23-1-.02(12).

7. *Pedestrian vendor* means a person engaged in the business of dispensing non-potentially hazardous or non-perishable packaged food on a daily basis from a non-motorized mobile vehicle which operates within the confines of a public or private pedestrian mall, shopping center, commercial business, city park or commercially zoned historical district.

8. *Ice cream vendor* means any person who offers for sale or sells to another any frozen desserts while operating from an ice cream cart or truck on the streets of the city.

Packaged-goods store means a retail food establishment in which non-perishable food is stored, displayed

and/or offered for sale in the packaged form and is intended for consumption off the premises. No meat market is included in the establishment, nor are fruits, vegetables and other produce routinely offered for sale.

Pedestrian mall means an open or covered passageway or concourse which provides access to rows of stores and is closed permanently to private motor vehicles, and dedicated or otherwise appropriated to the public for public use, which is under the authority of a mall agent or manager.

Perishable food means any food of such type or in such condition as may spoil.

Person in charge means the individual present in a food service establishment at the time of inspection. If no individual is the apparent supervisor, then any employee present is the person in charge.

Potentially hazardous food are those foods which consist of meat, poultry, liquid eggs and partially cooked egg products, fish, milk and milk products, shellfish, partially cooked bakery products and/or other ingredients capable of supporting rapid and progressive growth of infectious or toxigenic micro-organisms when stored at temperatures in excess of 41 degrees Fahrenheit, if a cold food, or 135 degrees Fahrenheit or below, if a hot food.

Also included as potentially hazardous foods are foods with a Ph greater than 4.2 and a water activity greater than .88, such as low acid canned foods (vegetables, fish, meat, etc.) and acidified foods (pickled vegetables, fish, meat, eggs, etc.).

Retail bakery means a place of business where bread, rolls, cakes, doughnuts, pies and similar products are processed, mixed, racked, packaged and sold to consumers primarily for consumption off the premises.

Retail market or *grocery store* means a place of business where food and food products are stored, displayed and offered for sale to retail customers to be prepared or cooked elsewhere. Another type of business such as a meat market, restaurant, or bakery may be incorporated into the grocery store area but will not be included in this definition. A grocery store or retail market routinely sells fruits, vegetables or other produce and/or has a meat market. See also, "grocery store."

Servicing area means a mobile food unit servicing area shall be provided and shall include at least overhead protection for any supplying, cleaning, or servicing operation. Within this servicing area, there shall be a location provided for the flushing and drainage of liquid wastes separate from the location provided for water servicing and for the loading and unloading of food and related supplies.

Shopping center means a group of two or more commercial establishments that occupies at least 30,000 square feet of gross leasable area, located in a building or buildings that are planned, developed, owned and managed as a unit.

Wholesome, when applied to food for human consumption, means in sound condition, clean and free from adulteration.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-2. Approval of plans for construction and alteration of food service establishment.

Whenever a non-temporary food service establishment is constructed or extensively remodeled and whenever an existing structure is converted to use as a food service establishment, at least one set of properly prepared plans and specifications for such construction, remodeling, or conversion shall be submitted to the health department for review and approval at least 15 days before construction, remodeling, or conversion is begun. The plans and specifications shall indicate the proposed menu, layout, arrangement, mechanical plans, and construction materials of work areas, as well as the type and model of proposed fixed equipment and facilities.

After the plans and specifications have been approved by the health department, the food service establishment shall not start operations until a preoperational inspection has determined compliance with the approved plans and specifications and the requirements of this article and the TDH/TDA Rules and Regulations as referenced below.

Reference: Tennessee Department of Health Rules and Regulations Chapter 1200-23-1.02 et seq, and Tennessee Department of Agriculture Rules and Regulations Chapter 0080-4-9 et seq.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-3. Permit to manufacture, sell, or distribute food generally—Required.

A. No person shall engage in the manufacture, sale or distribution of any food without a permit from the department of health.

B. The health officer shall determine which type of permit each establishment must obtain. If an establishment does not fit into any type of business listed, the health officer shall have the authority to assign it to one of those listed which is in his or her judgment most reasonable.

C. All food permits are issued for the period July 1 to June 30 of each year. A late penalty equal to 50 percent of the permit fee will be assessed on all permit fees received 30 days past the expiration date. Permit fees received on or after January 1 will be prorated. In addition, the county health department shall assess a fee equal to ½ of the permit fee for non-sufficient funds or returned checks. Returned checks will be considered as non-payment of permit fees.

D. State and local permit fee schedules for food service and retail food establishments shall be posted on-line at www.shelbycountytn.gov/health and are available upon request through the county health department environmental sanitation office.

E. These fees shall be reviewed and modified on a bi-annual schedule.

F. Fees for retail and food service establishments not listed above can be found in either the state department of health or department of agriculture rules and regulations. The county health department will provide additional information upon request.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-4. Permit—Application.

Any person desiring a permit required by section 9-52-3 shall make written application to the department of health on forms approved by the department The applicable fee must be paid at the time the permit application is completed. No permit shall be issued until the applicable fee is paid.

Local permittees shall be billed, collected and retained by the county health department to maintain sufficient staffing, inspection equipment and training to effectively enforce all applicable laws, ordinances, regulations and rules. Contracts between the county health department and the state department of health and the state department of agriculture will dictate the terms of reimbursement or compensation to the county health department for services provided under those agreements, including billing for state permits.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-5. Permit—Issuance.

A permit required by section 9-52-3 shall be granted only after inspection and approval by the health department and the payment of applicable fees.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-6. Permit—Display—Not transferable.

Every permit issued under section 9-52-5 shall be conspicuously displayed in the location where food is manufactured, sold or distributed. No such permit shall be transferable from one location to another or from one person to another, or from one mobile food unit to another. Any change of location or ownership shall require issuance of a new permit.
(Ord. No. 5542, § 1, 12-17-2013)

Sec, 9-52-7. Permit—Revocation or suspension.

A. The health officer shall have the power, and it shall be his or her duty, to suspend or revoke any permit issued under TDH Rules and Regulations Chapter 1200-23-.03 and/or TDA Rules and Regulations Chapter 0080-4-9, where it is made to appear that the provisions of TDH and TDA Rules and Regulations and this chapter have been violated by the person or persons engaging in the manufacture, sale or distribution of food; provided, however, that the person holding such permit shall be given reasonable notice and an opportunity to be heard as to why such permit should not be revoked or suspended. Such notice may be given by the environmentalist/inspector on his or her regular inspection form or may be in the form of a letter from the health department.

The health officer shall develop uniform policies and procedures for the suspension and/or revocation of permits. In the event of a foodborne illness outbreak or the existence of an imminent health hazard in a food service establishment, the health officer may suspend the food permit pending an administrative hearing if the owner/manager agrees to voluntarily close. If the owner/manager refuses to close voluntarily, the health officer shall convene an administrative hearing immediately and rule on the need for permit suspension or permit revocation.

B. On each occasion, where a permit is suspended or revoked, the holder of the permit may appeal the health officer's decision to the TDH or TDA whose decision on the matter shall be binding.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-8. Periodic inspections.

A. Each food service establishment in the city shall be inspected routinely in accordance with TDH Rules and Regulations Chapter 1200-23-1 et seq. and TDA Rules and Regulations 0080-4-9 et seq. At the time of each inspection, an inspection form will be used by the environmentalist or inspector to indicate the specific deficiencies, which may exist. The form will contain items of weighted value as regulated by TDH or TDA. Upon completion of the inspection, the environmentalist or inspector shall note deficiencies on such form and shall review his or her findings with the person in charge. A copy shall be acknowledged or signed by the person in charge, and the same shall be left with the person in charge.

B. The inspection sheet must be prominently displayed for public view it. It must be located where it is clearly visible to customers upon entering the establishment. Placement of the inspection sheet behind posters, calendars or other items that would obscure visibility is prohibited.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-9. Sale of food or drinks on streets from vehicles, vacant lots or temporary stands prohibited, except as authorized.

It is unlawful for any person to sell or offer for sale on any street in the city, or from any vehicle thereon, or from any vacant lot or temporary or improvised stand or structure in the city, any fruits, vegetables, ice cream, or other food or drinks, except as provided for in sections 9-52-11, 9-52-19, 9-52-78, 9-52-81, 9-52-83, 9-52-86, 9-52-87 and 9-52-93.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-10. Reserved.

Sec. 9-52-11. Temporary food service establishment.

A temporary food service establishment permit may be issued for an event lasting from two to 14 days and shall comply with all provisions of this chapter and TDH Rules and Regulations Chapter 1200-23-1 et seq., as well as its policies which are applicable to its operation; provided that, the health officer may augment such requirements when needed to assure the service of safe food; may prohibit the sale of certain potentially hazardous food; and may relax specific requirements for physical facilities when, in his or her opinion, no imminent health hazard will result and where close supervision of the operation can be provided by the health department. (Ord. No. 5542, § 1, 12-17-2013)

Secs. 9-52-12—9-52-18. Reserved.

Sec. 9-52-19. Frozen desserts—Mobile vendors.

A. No person shall sell, offer for sale, or give away any frozen desserts on city streets, vacant lots or premises without a permit issued by the health department; provided that, a mobile ice cream truck or cart vendor may sell novelties which have been manufactured and packaged at a frozen desserts plant.

B. A mobile frozen desserts vendor's permit shall not be issued to a person unless the following conditions are met:

1. The vending vehicle or cart must be specially designed as a vending vehicle or cart and be approved by the health department.

   Automobile or passenger conveyance vehicles shall not be used to transport or dispense frozen desserts.

2. The vending vehicle or cart must be constructed so as to be easily cleaned and shall be kept clean.

3. The vending vehicle or cart must be constructed so as to protect the frozen desserts from contamination.

4. The vending vehicle or cart shall have a separate compartment or containers for the storage of boxes and paper.

5. The vending vehicle or cart shall be labeled with the name and address of the distributor on both sides of the vehicle in three-inch letters or numbers as designated by the health department.

6. Only frozen desserts novelties shall be sold, offered for sale, or given away in a mobile frozen desserts vendor's vehicle or cart. Thermometers must be visible in each freezer compartment to monitor the temperature of the frozen desserts.

7. Vehicles or carts shall be loaded and operated only from an establishment which meets the requirements of the state law and local ordinances of the city and which has a permit from the health department.

8. Vehicles or carts shall be parked only in a location, which coincides with the zoning ordinances of the county or city.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-20. Right of entry into food establishment—Interfering with health department personnel.

The health officer, all agents, environmentalists or inspectors of the department of health shall have the right to enter any lot, premises, building, factory or place where food is manufactured, processed, distributed, stored, sold, or offered for sale, and it is unlawful for any person to deny to such officers, agents and employees access to any such place, or to interfere with such officers in the performance of their duties under the provisions of this chapter.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-21. Interpretation of article—Policies and standards of health officer.

The interpretation of the provisions of this article shall be made by the health officer, and he or she shall adopt written policies and standards consistent with state law in carrying out the provisions of this article.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-22. Enforcement of article—Rules and regulations of health department.

It shall be the duty of the department of health to enforce this chapter and to adopt and enforce TDH and TDA state law rules and regulations and such other written rules and regulations as may be recommended by the health officer.

(Ord. No. 5542, § 1, 12-17-2013)

Secs. 9-52-23—9-52-25. Reserved.

ARTICLE 2. GENERAL SANITARY REQUIREMENTS

Sec. 9-52-26. Application.

The provisions of this article shall be the state and local laws, rules and regulations governing the sanitary conditions of food service establishments and retail food establishments, including mobile food units. Reference: Tennessee Retail Food Safety Act, TDH Rules and Regulations Chapter 1200-23-1 et seq., and TDA Rules and Regulations Chapter 0080-4-9 et seq.

(Ord. No. 5542, § 1, 12-17-2013)

Secs. 9-52-27—9-52-47. Reserved.

Sec. 9-52-48. Birds and animals prohibited—Exception.

No live birds or animals shall be allowed in any area used for the conduct of food service establishment operations; provided that, guide dogs and service animals accompanying blind patrons or other physically disabled persons may be permitted; and, further, provided that, trained mallard ducks and caged birds are excluded from that classification of live birds and animals prohibited by this section.

(Ord. No. 5542, § 1, 12-17-2013)

Secs. 9-52-49—9-52-70. Reserved.

ARTICLE 3. REQUIREMENTS FOR SPECIFIC TYPES OF ESTABLISHMENTS AND MOBILE FOOD UNITS

Sec. 9-52-71. Application of article.

The provisions of this article shall apply to the below specific food establishments and mobile food units including all sections under the article.

(Ord. No. 5542, § 1, 12-17-2013)

Secs. 9-52-72—9-52-77. Repealed.

Sec. 9-52-78. Mobile food trucks and industrial caterers.

Mobile food trucks and industrial caterers shall meet all the applicable requirements of this chapter and shall also meet the following special requirements:

1. Food shall be dispensed only from mobile food trucks on commercial/industrial sites with the permission of the property occupant or owner.
2. Prepackaged potentially hazardous food shall be transported stored and served only in containers and equipment, which is designed and thermostatically controlled to keep the food above 135 degrees Fahrenheit or 41 degrees Fahrenheit or below.

3. An industrial caterer shall dispense only food which has been processed at a food processing plant.

4. industrial catering trucks shall be based at or operated from premises in an area other than residential where storage facilities are available for food processors and where cleaning facilities are available.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-79—9-52-80. Reserved.

Sec. 9-52-81. Produce truck.

A produce truck shall meet all of the applicable requirements of this chapter and shall also meet the following special requirements:

A. No person shall engage in the business as a produce truck without a permit.

B. If the pre-operational inspection is approved, a permit application will be issued to the operator upon payment of the permit fee.

C. Produce truck permits shall be issued for fruits, vegetables, melons, berries, chestnuts and packaged nuts only.

D. A produce truck permit may be suspended or revoked for violating the applicable provisions of this article as required in section 9-52-7.

E. A produce truck vehicle shall be identified on both sides by the name and address of the person holding the permit and by the health department permit number.

F. A produce truck shall be kept in motion except when making sales and its movement shall be timed and executed so as to cause a minimum interference with traffic.

G. When not in use, a produce truck vehicle which contains fruits, vegetables, melons, chestnuts, packaged nuts and berries shall be stored in such a place and condition so as to prevent contamination of the food from dust, flies, insects, rodents and animals.

H. Produce vehicles must carry waste containers and this waste must be properly disposed of as required in TDA Rules § 0080-4-9.

I. Fruits and vegetables shall be sold whole and not cut or sliced while in the produce truck operator's possession. In addition, all fruits and vegetables must be sold from the truck or trailer not from tables or stands.

J. Operation of produce trucks is prohibited between sundown and sunrise.

K. Produce trucks shall carry the required permit at all times while in operations as required by this section.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-82. Same—Operating on public property.

This section shall not apply wherever produce trucks are otherwise regulated in specific chapters or sections of this code.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-83. Pedestrian vendors and push carts.

Pedestrian vendors and push cart vendors shall meet all the applicable requirements of this article and shall also meet the following special requirements. The health officer shall adopt written rules and regulations for pedestrian vendors and push cart vendors for the purpose of interpretation of this article.

A. No person shall engage in the business as a pedestrian vendor or push cart vendor without a permit.

B. If the pre-operational inspection is approved, a permit application will be issued to the vendor upon payment of the required permit fee.

C. The permitted pedestrian vendor or push cart vendor shall secure the written permission of an agent, manager, superintendent, or director in charge of a mall, pedestrian mall, shopping center, commercial business, historical district or city park. Such agent, manager, superintendent or director shall be directly responsible for the operation or activities of such vendors.

D. All food to be served and sold by a pedestrian vendor or push cart vendor shall be processed under proper and sanitary facilities as required by the health officer and state department of health and/or state department of agriculture rules and regulations.

E. All push carts shall have a commissary licensed by the state department of health and/or the state department of agriculture where the food is prepared and/or stored when the cart is not in use, and cleaning facilities are available.

F. Push carts shall have facilities where perishable food can be kept below 41 degrees Fahrenheit and/or above 135 degrees Fahrenheit in a controlled container.

G. Push carts shall be especially designed for food distribution and shall be made from material that can be kept clean and well maintained.

H. All push cart vendors must have a copy of their permit and most recent inspection available upon request.

I. Pedestrian vendors and push cart vendors shall wash their hands as required by the state department of health and state department of agriculture rules and regulations.

J. Vendors shall wear clean outer garments at all times.

K. Toilet facilities shall be provided by the sponsoring organization and made available to the public and shall meet the requirements of the county plumbing code.

L. All pedestrian vendor carts and pushcarts shall be clearly identified with the name of the business and permit number posted and unobstructed on the exterior of the unit in letters at least three inches in height.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-84. Farmer's market.

A farmer's market shall meet all of the applicable requirements of this chapter and shall also meet the following special requirements:

A. The agent, manager, or director of the sponsoring organization of a farmer's market shall secure a farmer's market permit from the health department and shall pay the appropriate fee as required in section 9-52-3. This permit shall cover all sellers operating within the market, and the agent, manager or director thereof shall be directly responsible for the operation of each seller.

B. The person requesting the permit must make a written application to the health department. No regular inspections will be conducted at farmer's markets, however all complaints will be investigated. Each applicant will be provided basic food safety training and materials describing the permitting requirements for selling different types of food at the farmer's market.

C. A farmer's market permit shall be issued for fruits, vegetables, melons, berries or nuts only. All other types of food sold at farmer's markets shall require a separate permit.

D. A farmer's market permit may be suspended or revoked for violating the applicable provisions of this chapter, as required in section 9-52-7.

E. Fruits, including cantaloupe and watermelon, shall be sold whole and shall not be cut or sliced while on the premises of the market.

F. Toilet facilities shall be provided by the sponsoring organization and made available to the public, and shall meet the requirements of the county plumbing code.

G. A separate permit must be obtained for each farmer's market site. This permit shall not be transferable from site to site.

H. The farmer's market must be completely contained on a paved surface.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-85. Reserved.

Sec. 9-52-86. Mobile food preparation vehicles.

Mobile food preparation vehicles shall meet all applicable requirements of this article in addition to the requirements outlined as follows:

A. No person shall engage in the business of a mobile food preparation vehicle within the municipal limits without first having obtained a permit required by section 9-52-3 of the city Code and the State of Tennessee.

B. A mobile food preparation vehicle license, as authorized by the state and local ordinances, will not be issued to a person unless the following conditions are met:

1. The vehicle must be specially designed as defined as a mobile food preparation ve-

hicle and be approved by the health officer in addition to meeting the standards as set forth in section 16-208 of the city Code.

2. No person shall engage in the business of a mobile food preparation vehicle without first having obtained a commissary license or having a written commissary agreement, if required by the health officer.

3. Each mobile food preparation vehicle must display its business name and state and local permit numbers, with letters and numbers at least three inches in height, in a prominent and visible location on the vehicle.

4. The driver of the truck must have a current Tennessee driver's license, current auto insurance (including liability insurance) and current vehicle registration as required by state law and enforced by law enforcement authorities.

5. The vehicle can only operate in locations where the operation of motorized vehicles is permitted under local zoning ordinances and enforced by local code enforcement authorities

6. All current permits must be posted in a conspicuous manner, in compliance with T.C.A., 68-14-305.

C. The health officer shall adopt written rules and regulations for mobile food preparation vehicles for the purpose of interpretation of this article.

(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-87. Operational requirements.

A. When legally parked on a city street, alley and other public thoroughfares in an allowed zoning district, mobile food preparation vehicles shall park for no less than 30 minutes and shall not exceed a total of six hours in any one block, with food service available for no more than four hours of that time. The mobile food vendor must then provide a minimum break from that location of one hour.

B. When parked on private property with the permission of the property owner, a mobile food preparation vehicle may operate at the times and for the duration provided in its permission by the property owner.

C. No mobile food preparation vehicle shall be equipped with any external electronic sound-amplifying device.

D. No operator of such vehicle shall park or stand such vehicle within 300 feet of a school or school playground in a residential district while school is in session, unless an agreement is established with such school.

E. When legally parked on a city street, alley and other public thoroughfare in an allowed zoning district, no such vehicle shall park or stand within 300 feet of any principal customer entrance to a restaurant outside of the central business improvement district (CBID) during its posted hours of operation, unless a signed waiver, with a stated duration, has been obtained from all restaurants which are within a 300 foot radius of that parking location. For any restaurant within the CBID, this distance shall be 50 feet, unless a similar waiver is obtained from all restaurants within that lesser distance. Restaurant, for purposes of this section, means any public place at a fixed location kept, used, maintained, advertised and held out to the public as a place where food and drink are prepared and served to the public for consumption on or off the premises pursuant to the required licenses. Such establishments include, but are not limited to, restaurants, bars, lounges, coffee shops, cafeterias, dining rooms, eating houses, short order cafes, luncheonettes, grills, tearooms and sandwich shops. All measured distances and distance requirements addressed in this regulation shall be distances measured in a straight line from the nearest edge of the mobile vehicle or trailer to the nearest edge of the object from which the mobile vehicle or trailer is to be distant.

When legally parked on private property, the distance requirements established above shall still be applicable if a restaurant is present on adjacent or abutting property, unless a signed waiver, with a stated duration, has been obtained from all restaurants on adjacent or abutting property which are within a 300 foot radius of that parking location on private property. For any restaurant within the CBID, this distance restriction shall be 50 feet, unless a similar waiver is obtained from all restaurants within that distance located on adjacent or abutting property.

F. When legally parked on a city street, alley and other public thoroughfares in an allowed zoning district, no sale shall be made from such vehicle except from the curb side.

G. Cooking must not be conducted while the vehicle is in motion.

H. Mobile food preparation vehicle shall be parked only at its commissary or any other location approved by the health department that does not violate an applicable city ordinance.

I. No detached signs are permitted. All signs used must be permanently affixed to, or painted on, the mobile food preparation vehicle and shall extend no more than six inches from the vehicle. No sign shall flash, cause interference with radio, telephone, television or other communication transmissions; produce or reflect motion pictures; emit visible smoke, vapor, particles, or odor; be animated or produce any rotation, motion or movement. A sign on which the message is changed electronically not more than one time per eight seconds shall not be considered to be an animated sign or a sign with movement, but is classified as a changeable copy sign. Changeable copy signs shall be permitted, but the total area of such signs on the vehicle, when parked and the vehicle is set up to operate, must not exceed 30 square feet. Any message on a changeable copy sign shall have an instantaneous change of message with no fading, fly-in, dissolve or other feature used. The change of message rate on digital signs shall be limited to no more than once every eight seconds. No sign shall utilize any exposed incandescent lamp with a wattage of more than 40 watts, any revolving beacon light; or a luminance in excess of 350-foot lamberts measured at the sign face.

J. Vendor must provide for the sanitary collection of all refuse, litter and garbage generated by the patrons using that service and remove all such waste materials from the location before the vehicle departs. This includes physically inspecting the general area for such items prior to the vehicle's departure.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-88. Food requirements.

A. All food shall be protected from contamination and the elements while being stored, prepared, displayed or sold at a mobile food preparation vehicle and during transportation to or between such establishments or vending machine locations, and so shall all food equipment, containers, utensils, food-contact surfaces and devices and vehicles, in accordance with the provisions of this chapter and the rules and regulations of the health department.

B. All foods to be used, prepared, cooked, displayed, sold, served, offered for sale or stored in a food establishment, or during transportation to or between locations shall be from sources approved by the health authorities of the point of origin and must be clean, wholesome, free from spoilage, adulteration, contamination or misbranding and safe for human consumption. The standards for judging wholesomeness for human food shall be those promulgated and amended from time to time by the United States Food and Drug Administration, United States Department of Agriculture, the state department of health and the state department of agriculture and published in the United States Code of Federal Regulations and the Tennessee Code Annotated or the Tennessee Rules and Regulations. Such laws will be adopted by reference when approved and deemed effective as of the date designated by the above government agencies or the appropriate legislative body approving such changes.

C. The only milk or milk products which may be used as food ingredients shall be pasteurized Grade A milk or milk products from sources approved by the health department. All pasteurized milk and fluid milk products shall be sold in the individual original containers in which they were received from distributor and shall be stored at a temperature of 41 degrees Fahrenheit or less until sold.

D. Raw shellfish, including oysters, clams and mussels, with the exception of properly prepared fish for sushi, shall not be sold or distributed, unless such item has received specific authorization from the state department of agriculture and the county health department.

E. All meats, meat food products, poultry and poultry products used in cooking, offered for sale, sold or prepared shall be from sources inspected and approved by the United States Department of Agriculture, the state department of agriculture or the state or local department of health and shall be plainly marked, tagged or stamped to indicate the source, and the inspection and approval.

F. All hermetically sealed foods shall have been processed in approved food- processing establishments. The use, preparation, display, sale or storage of home-canned foods is prohibited and no other foods which have been processed in a private home or other than in an approved food-processing establishment shall be stored, used, kept for sale or served in a food establishment or automatic food-vending machine.

G. The use of newspaper or any unclean paper for the purpose of wrapping food is forbidden.

H. The health officer may augment such requirements when needed to assure the service of safe food and may prohibit the sale of certain potentially hazardous food.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-89. Food handler requirements.

All food handlers shall meet the standards as set forth in T.C.A.S 53-8-108, state department of health rules and regulations, and city Code Title 9, Chapter V, Article II, section 9-52-26.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-90. Equipment standards.

All mobile food preparation vehicles shall meet the standards as set forth in state department of health rules and regulations, and city Code Title 9, Chapter V, Article II, section 9-52-26.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-91. Maintenance of premises.

All mobile food preparation vehicles shall meet the standards as set forth in T.C.A. § 53-8-102, T.C.A. § 53-8-103, state department of health rules and regulations, and city Code, Title 9, Article V, Division II.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-92. Vehicle sanitation requirements.

A. Each vehicle shall be constructed so that the portions of the vehicle containing food shall be covered so that no dust or dirt will settle on the food; and such portions of the vehicles which are designed to contain food shall be at least 18 inches above the surface of the public way while the vehicle is being used for the conveyance of food.

B. The food storage areas of each vehicle shall be kept free from rats, mice, flies and other insects and vermin. No living animals, birds, fowl, reptiles or amphibians shall be permitted in any area where food is stored.

C. Hazardous non-food items such as detergents, insecticides, rodenticides, plants, paint and paint products that are poisonous or toxic in nature shall not be stored in the food area of the vehicle.

D. The vehicle shall be enclosed with tops and sides.

E. The vehicle shall not be used for any purpose other than for the purpose described in this chapter.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-93. Zoning districts.

A. Mobile food preparation vehicles are allowed to operate on sites and city streets, alleys and other public thoroughfares within the Office General (OG); Commercial Mixed Use 1, 2 and 3 (CMU-1, CMU-2 and CMU-3); Central Business (CBD); Campus Master Plan -1 and -2 (CMP-1 and CMP-2); Employment (EMP); Warehouse and Distribution (WD) and Heavy Industrial (IH) zoning districts; the South Central Business Improvement Special Purpose District (SCBiD) and the Mixed Use (MU), Neighborhood Center Overlay (NC), Uptown Hospital (UH) and Uptown Light Industrial (ULI) districts of the Uptown Special Purpose District. In addition, mobile food preparation vehicles are allowed to operate on public and private school sites within residential zoning districts with written authorization from the school.

B. Mobile food preparation vehicles must operate at least 1,000 feet from permitted special events locations and permitted farmer's market locations and the mobile food preparation vehicle shall not operate within two hours before or after a scheduled, permitted event or farmer's market, unless the vendor has received specific authority to operate from the event or farmer's market officials. Mobile food preparation vehicles may not operate within 300 feet of FedEx Forum or Autozone Park when events are being conducted or within two hours before or after such event.

C. Approval to operate a mobile food preparation vehicle within all residential and residential work districts, or parks, except as provided below, shall require approval of a special use permit from the land use control board and the legislative body, subject to the provisions of Chapter 9.6 of the Memphis and Shelby County Unified Development Code.

1. Mobile food vendors shall be authorized to operate in any park under a management agreement with the city or county government under terms and conditions established by those entities authorized by the city or county for such park management activities as to the times and locations within the park and additional fees charged for such vendors.

2. Written authorization for activities within such parks by the management group shall be provided by the food vendor upon request by local or state authorities.

D. Regulation of this section shall be performed by law enforcement and Shelby County Code Enforcement.
(Ord. No. 5542, § 1, 12-17-2013)

Sec. 9-52-94. Mobile food market.

A mobile food market shall meet all the applicable requirements of this chapter and shall also meet the following special requirements:

Pre-operational requirements:

Floor plans, equipment layouts, and equipment specifications for both the mobile food market and commissary or food storage facility must be submitted to the health department at least 15 days prior to construction.

A. All floors, walls, and ceilings must be smooth and washable.

B. All equipment must be movable or sealed to the floor, in compliance with TDH Rules 1200-23-1 et seq.

C. Adequate mechanical refrigeration and freezing equipment must be provided to maintain potentially hazardous food at the proper temperature.

D. All coolers and freezers must have visible, accurate, easily readable thermometers.

E. All openings to the outside must be screened or self-closing.

F. Solid waste/trash shall be contained in durable, easily cleanable, insect-proof containers.

G. All potentially hazardous food (meat, poultry, dairy products, etc.) must be stored in an approved commissary. A separate food storage permit is required for that facility.

If the commissary is owned by another operator, a mobile unit/commissary agreement must be submitted to the county health department.

H. All mobile units shall be clearly identified with the name of business and permit number posted and unobstructed on the exterior of the unit in letters at least three inches in height.
(Ord. No. 5542, § 1, 12-17-2013)

CHAPTER 9-56. GARBAGE COLLECTION AND DISPOSAL*

Sections:

Article 1. General Provisions

Division 1. Solid Waste Division

Sec. 9-56-1. Definitions.
Sec. 9-56-2. Division of solid waste established; director.
Sec. 9-56-3. Exclusive collection.
Sec. 9-56-4. Jurisdiction of director.
Sec. 9-56-5. Rules and regulations to implement articles.
Sec. 9-56-6. Collection and disposal of industrial waste, pathogenic and radioactive waste and salvageable materials for reclamation.

***Editor's note—**Ord. No. 5707, §§ 15-1—15-8, 15-10—15-34, 15-41—15-45, adopted Aug. 25, 2018, amended Ch. 9-56 in its entirety to read as herein set out. Former Ch. 9-56, §§ 9-56-1—9-56-34, 9-56-41—9-56-45 pertained to similar subject matter, and derived from the Code 1967, §§ 2-250, 19-1—19-7, 19-9, 19-10—19-16, 19-18—19-26, 19-50—19-54; Ord. No. 187, 6-11-1968; Res. of 6-11-1968; Ord. No. 267, 9-3-1968; Ord. No. 280, 9-10-1968; Ord. No. 298, 10-15-1968; Ord. No. 495, 7-22-1969; Ord. No. 572, 10-28-1969; Ord. No. 704, 5-12-1970; Ord. No. 723, 6-2-1970; Ord. No. 860, 2-2-1971; Ord. No. 1062, 9-28-1971; Ord. No. 1184, 2-8-1972; Ord. No. 1494, 10-17-1972; Ord. No. 1742, 5-29-1973; Ord. No. 2476, 7-13-1976; Ord. No. 2610, 6-28-1977; Ord. No. 2388, 8-30-1977; Ord. No. 2631, 8-30-1977; Ord. No. 2835, 3-6-1979; Ord. No. 2876, 5-15-1979; Ord. No. 3010, 6-9-1980; Ord. No. 3124, 5-26-1981; Ord. No. 3292, 4-26-1983; Ord. No. 3298, 5-24-1983; the Code 1985, §§ 15-1—15-8, 15-10—15-29, 15-41—15-45; Ord. No. 3541, 4-6-1986; Ord. No. 3870, 6-13-1989; Ord. No. 4000, 10-9-1990; Ord. No. 4027, 4-9-1991; Ord. No. 4048, 6-25-1991; Ord. No. 4438, 9-10-1996; Ord. No. 4776, 6-6-2000; Ord. No. 4860, 5-1-2001; Ord. No. 4950, 7-2-2002; Ord. No. 5074, 2004; Ord. No. 5091, 2005; Ord. No. 5112, 2006; Ord. No. 5261, 6-23-2008; Ord. No. 5329, 12-15-2009; Ord. No. 5353, 5-25-2010; Ord. No. 5354, 6-8-2010; Ord. No. 5355, 6-8-2010; Ord. No. 5430, 12-20-2011; Ord. No. 5540, 12-17-2013.

Division 2. Containers; Disposal Fees

Sec. 9-56-7. Container provided.
Sec. 9-56-8. Location of containers; safe premises for collection.
Sec. 9-56-9. Reserved.
Sec. 9-56-10. Sanitary landfills, other places of disposal and disposal fees.
Sec. 9-56-11. Leaves, grass, trimmings, trees and paper.
Sec. 9-56-12. Solid waste fees for collection and disposal.
Sec. 9-56-13. Classification of commercial business for collection services.
Sec. 9-56-14. Special collection services.
Sec. 9-56-15. Billing of solid waste disposal fee.
Sec. 9-56-16. Charges for loss or damage of carts.
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ARTICLE I. GENERAL PROVISIONS

DIVISION 1. SOLID WASTE DIVISION

Sec. 9-56-1. Definitions.

For the purposes of this chapter the following words and phrases shall have the meanings herein:

Bulky refuse means discarded appliances such as stoves, refrigerators, water tanks, washing machines, and discarded furniture or similar bulky materials having a weight greater than 75 pounds and/or volume greater than 35 gallons.

Cart means the wheeled, mechanically dumped, usually plastic container, with a capacity in excess of 90 gallons, as distributed by the city for use by the public as a refuse container.

Director means the director of the solid waste division.

Garbage includes every accumulation of both animal and vegetable matter, liquid or otherwise, that attends the preparation, use, cooking, dealing in or storage of meat, fish, fowl, fruits or vegetables, cans or other containers originally used for foodstuffs.

Hazardous waste means a hazardous waste as defined in T.C.A. § 68-46-104.

Industrial waste means solid waste produced in, or generated by, industrial or manufacturing processes. The term does not include commercial or domestic waste.

Person means every natural person, firm, partnership, association or corporation.

Public place includes parks, docks, wharves, water or open adjacent spaces thereto and public yards, grounds and areas and all open spaces between buildings and streets and in view of such streets.

Recycling bin means any container distributed or designated by the city for use as a repository for recyclable materials, the materials to be collected by the city or its designee.

Refuse is a comprehensive term meaning any worthless leaving to be discarded; including, but not limited to, garbage, bulky refuse, rubbish, and industrial and hazardous waste.

Rubbish/trash includes all nonputrescible solid waste except building material, bulky refuse, hazardous waste and industrial waste.

Solid waste is the same as "refuse" or "trash," normally presented for collection at the curb in a disposable container and collected in packer type vehicles.
(Ord. No. 5707, § 15-1, 9-25-2018)

Sec. 9-56-2. Division of solid waste established; director.

There is established a division of solid waste with a director to be appointed thereto in the same manner as other division directors.
(Ord. No. 5707, § 15-2, 9-25-2018)

Sec. 9-56-3. Exclusive collection.

It is unlawful for any person other than the city to engage in the business of collecting, removing, and disposing of solid waste in the city, except those private collectors specifically authorized by permit.
(Ord. No. 5707, § 15-3, 9-25-2018)

Sec. 9-56-4. Jurisdiction of director.

The removal and final disposition of all solid waste from premises in the city shall be under the jurisdiction of the director of the solid waste division.
(Ord. No. 5707, § 15-4, 9-25-2018)

Sec. 9-56-5. Rules and regulations to implement articles.

The director of the solid waste division, except as otherwise stated, subject to the approval of the mayor, may make such rules and regulations as are consistent with the provisions of this article as may be necessary or desirable to aid in the administration of and obtaining compliance with the provisions of this article.
(Ord. No. 5707, § 15-5, 9-25-2018)

Sec. 9-56-6. Collection and disposal of industrial waste, pathogenic and radioactive waste and salvageable materials for reclamation.

A. *Industrial and hazardous waste.* All industrial and hazardous waste shall be disposed of by the industry, manufacturer or processing plant generating such waste under such methods and conditions as shall be approved by the director. Such industries may apply for a special permit as a private collector or may dispose of industrial waste by licensed private collectors. Solid waste not consisting of industrial waste and hazardous waste may be collected by the city and charges made therefor in accordance with the fee set forth herein, provided, however, that if the person in disposing of his or her industrial and hazardous waste also desires to dispose of other solid waste generated on his or her premises, the city shall allow him or her to do so as a special private collector for his or her own premises or through licensed private collectors, if he or she desires.

B. *Pathogenic and radioactive waste.* All pathogenic and radioactive waste shall be disposed of by the hospital or institution generating such waste under such conditions as shall be approved by the health department. If the health department approves the treatment of such waste so that it may be disposed of by collections from the city, or if the hospital is eligible due to classification by volume, then such waste may be disposed of by the hospital as a special private collector or through licensed private collectors. Solid waste not consisting of pathogenic and radioactive waste may be collected by the city and charges made therefor accordance with the fee set forth herein. Provided, however, that if the person disposing of his or her pathogenic or radioactive waste so desires to dispose of his or her other solid waste generated on the premises, the city shall allow him or her to do so by granting a special permit to the hospital or institution if so classified by volume for itself as a special private collector or through use of a licensed private collector. All pathological waste from physicians' clinics, dental clinics, blood banks and medical laboratories, shall be separate from normal waste, placed in durable disposable bags that can be tied and sealed when full. The bags shall be stored in containers approved by the director while in the process of being filled. Containers shall be kept in places restricted from access by the public and placed at the collection point only on the regularly scheduled collection day. Needles shall be separated from disposable

syringes by breaking them off at the hub immediately after use. Fluids may be discharged into the sewer system in accordance with the guidelines set forth in the city sewer use ordinance. Storage, collection and disposal of pathological waste shall be in accordance with local, state and federal regulations.

C. *Salvageable materials for reclamation.* Persons engaged in collecting or purchasing for resale paper, cardboard, rags and scrap metals, for reclamation purposes, shall be exempted from the provisions of this article except insofar as regulations of the health department and the solid waste division apply to maintaining standards of health and cleanliness, preventing nuisances, preventing interference with refuse containers and preventing littering.
(Ord. No. 5707, § 15-6, 9-25-2018)

DIVISION 2. CONTAINERS; DISPOSAL FEES

Sec. 9-56-7. Container provided.

A. *Duty to have carts.* It shall be the duty of every person in possession, charge or control of any premises where solid waste is created or accumulated and in the case of multiple dwellings or multiple occupancy, the owner of the premises, at all times to keep or cause to be kept a sufficient number of city-issued carts for the deposit of garbage generated on the premises. It shall be incumbent upon every person in possession, charge or control of any premises to which a city-owned cart has been issued, to ensure the security of such cart from the perils of theft and damage at times other than when the cart is curbside between 6:00 a.m. and 7:30 p.m. on the regularly scheduled collection day, or at times otherwise established by the director. The cost of damage or loss occurring to a cart as the result of a failure to adequately secure it shall be borne by the person in possession, charge or control of the premises who shall also be responsible for reporting any damage or loss of the cart to the solid waste division as soon as the damage or loss is realized. The cost of damage to the cart caused by fire shall be borne by the person in possession, charge or control of the premises, without regard to the time or location of the cart when such damage occurs.

B. *Cart requirements.* Lids or covers of city-issued carts shall be kept tightly closed at all times other than when solid waste is being deposited therein or removed therefrom. Carts used for the deposit of solid waste for collection by the city shall be in good condition so that collection thereof shall not injure the person collecting the contents. Carts having ragged or sharp edges or other defects must be reported to solid waste for repair or replacement.

C. Except where exempt from cart participation by the director, solid waste will collect solid waste contained in city-issued carts only. Solid waste placed in personally owned carts, personally owned containers and in unregistered previously purchased city carts will not be collected by the city.

D. Residential units may lease additional city-owned carts at the monthly fee established in section 9-56-12.

E. *Unauthorized city carts.* Solid waste will not collect waste from additional city carts where the residential unit has unauthorized possession of the cart or if the cart is not registered in the cart lease program. Unauthorized city carts at residential units are subject to confiscation by the city.

F. *Previously purchased city carts.* Residential units possessing previously purchased city carts may register their city purchased cart with solid waste in order to receive collection of waste from said cart at the monthly fee per cart established in section 9-56-12. Upon registration of the cart, the previously sold city cart will receive the same repair and replacement benefits of leased carts, as long as the cart remains registered and is actively billed at the monthly fee per cart established in section 9-56-12.

G. It shall be the duty of both the person in possession, charge or control of any premises as well as the owner of the premises to comply with the provisions of this section regarding the cleanliness of the premises and keeping carts properly closed.
(Ord. No. 5707, § 15-7, 9-25-2018)

Sec. 9-56-8. Location of containers; safe premises for collection.

A. Carts shall be placed on the neutral strip immediately adjacent to the curb or, in the absence of a neutral strip, immediately adjacent to and just behind the sidewalk, if possible. If, because of a retaining wall or other impediment, carts must be placed on the sidewalk, they shall be placed immediately adjacent to the curb in such a manner that pedestrian traffic on such sidewalk is minimally obstructed. In the absence of curbs, carts shall be placed immediately adjacent to the

surfaced roadbed. Where alley collection is provided, carts shall be placed immediately adjacent to the rear property line in such a manner so as to provide open access from the alley. Nothing is to be placed in the alley right-of-way.

B. Where exempted from cart participation, it shall be incumbent upon tenants, lessees, occupants or owners of premises to provide a safe and convenient entrance to and through the premises when required for the purpose of collecting solid waste. Where alley collection is provided, individual can-type containers shall be placed at a convenient and accessible point in the yard within five feet of the alley. In the absence of alley service, can-type containers shall be placed at a convenient and accessible point adjacent to a drive or walkway. Where yards are fenced, a gate suitable for passage of collectors and equipment and a minimum of 40 inches in width shall be left open to provide a safe and convenient entrance to and through the premises. Containers shall be placed where collectors may service them without attack from animals.

C. City collectors shall not enter any structure for the collection of solid waste nor shall they accept any money or valuable gifts from persons served.

D. Solid waste shall not be stored in close proximity to other personal effects which are not desired to be collected, but shall be reasonably separated in order that the collectors can clearly distinguish between what is to be collected and what is not.

E. The director may, by regulation, provide for the location of all solid waste containers.
(Ord. No. 5707, § 15-8, 9-25-2018)

Sec. 9-56-9. Reserved.

Sec. 9-56-10. Sanitary landfills, other places of disposal and disposal fees.

A. The city may establish sanitary landfills or other places of disposal as may be necessary, and no person shall use any disposal facility or sanitary landfill or other place of disposal except with the approval of the director and in accordance with the rules and regulations promulgated under this article.

B. All sanitary landfills, incinerators or other collection stations operated by or on behalf of the city, either within or without the city limits, shall have disposal fees established, and all persons (other than persons in passenger-type vehicles hauling refuse emanating from a private residence) shall pay a disposal fee based on rates established by the director of solid waste.

An appropriate handling or incinerator disposal fee shall be charged at any transfer station or incinerator for all haulers (other in persons in passenger-type vehicles hauling solid waste emanating from a private residence), as established by the director.

C. The director shall be authorized to promulgate reasonable rules and regulations for the collection of such fees, including collection at the landfills, incinerators or other collection stations, or the sale of coupon books at one or more locations, with coupons to be given upon the presentation of a vehicle for dumping at the landfill, incinerator or transfer station. The director shall also make reasonable rules and regulations as shall be necessary to carry out the inspection, supervision and enforcement of fees.

D. All vehicles transporting solid waste shall be enclosed at the sides and the back and covered with a tarpaulin or methods established by the director so as to reasonably avoid spilling solid waste, disseminating odors, and attracting insects, and the director may establish such reasonable time when such vehicles may be presented for dumping. Vehicles which are not covered a tarpaulin or other approved cover shall not be allowed to dump at the landfill, incinerator and/or transfer station.
(Ord. No. 5707, § 15-10, 9-25-2018)

Sec. 9-56-11. Leaves, grass, trimmings, trees and paper.

A. Leaves, grass cuttings and garden trimmings, weeds and roots from which all dirt has been removed shall be deposited in disposable containers or carts and placed adjacent to the front property line or at the back property line where alley collection is provided or, when exempted from cart participation, in the regular can-type container, provided that it does not create an amount of solid refuse substantially greater than normal so as to require the collector to make an extra trip to remove such solid waste, provided further, that such solid waste is loose in such regular container and not tightly compacted so as to cause difficulty to the collector in removing the same from the container. The director of solid waste may grant waivers of this section in cases of hardship. Disposable containers for such solid waste shall be cardboard cartons or plastic bags or

moisture resistant paper bags and such containers shall have tops, ties or other means of preventing spillage, scattering or blowing away of the solid waste and be moisture proof or kept dry and be of sufficient strength to contain the solid waste without spillage during handling. They shall not exceed in size the approximate capacity of a 30-gallon regulation solid waste container which is considered the maximum size for manual lifting by a collector.

B. Large accumulations of magazines and newspapers shall be bundled and securely tied.

C. Bulky solid waste and tree trimmings shall be separated from other solid waste and neatly placed adjacent to the front property line.

D. Limbs or logs in excess of 13 inches in diameter and five feet in length will not be collected by the city.

E. All solid waste shall be drained and separately wrapped and placed in the cart or, where exempted from cart participation, in individual can-type containers or mechanically dumped commercial containers. Solid waste and other liquid substances shall not be kept in the same individual can-type containers with ashes and rubbish. (Ord. No. 5707, § 15-11, 9-25-2018)

Sec. 9-56-12. Solid waste fees for collection and disposal.

The following monthly fees are established for the collection, removal or disposal of solid waste:

	Fee
Residential units, including single-family dwellings, mobile homes, duplexes, triplexes, quadruplexes, apartment units with seven units or less, for each unit thereof[1]	$41.96
Additional carts for residential units may be leased for each[2]	$10.00
Apartment houses provided with non-mechanized collection, for each unit thereof**	$29.86
Apartment houses and mobile homes with centralized, mechanized collection for each unit thereof**	$19.42
Commercial businesses, churches, boardinghouses with three or more living quarters, and other institutions shall be charged the appropriate commercial rate based upon weekly containerized volume:	
Gallons	Monthly Fee
0-180	$97.96
181-360	$185.77
361-780	$377.76
781-1,200	$512.87
1,201-1,800	$715.98
1,801-3,600	$1,174.18
3,601-5,400	$1,874.59
5,401-7,200	$2,573.23
7,201-9,000	$3,272.76
9,001-10,800	$3,961.90
10,801-12,600	$4,670.67

Notes:

1. Residential customers will be assigned a minimum of one 90-gallon garbage cart and one 90-gallon recycle cart, for a total of two carts. Residential customers must have at least one 90-gallon garbage cart. Residential customers in this category will be eligible for a reduced fee in the amount of $9.23 if they meet the following criteria: Head of household, have an active utility account in their name, are at least 65 years of age or 100 percent disabled and have a gross household income of $25,000.00 per year or less.
2. Households qualifying for the reduced fee, which generate more waste than what can be contained in one 90-gallon garbage cart per week, may request an additional city cart through the cart lease program, and pay the normal monthly fee.

** This item may be adjusted as necessary by resolution with a recommendation of the director of solid waste and approval of the city council.

This section shall take effect on January 1, 2020, as to coincide with the monthly billing cycles of Memphis Light Gas and Water.
(Ord. No. 5707, § 15-12, 9-25-2018; Ord. No. 5739, § 1(15-12), 12-17-2019; Ord. No. 5904, § 1, 6-25-2024)

Sec. 9-56-13. Classification of commercial business for collection services.

The director shall cause each commercial establishment to be placed in the particular group based upon the average collections per week. The director from time to time may change the classifications of a commercial establishment from one group to another. The decision of the director shall be final.
(Ord. No. 5707, § 15-13, 9-25-2018)

Sec. 9-56-14. Special collection services.

A. The director may provide for the collection and removal of solid waste from any place or premises at times in addition to those when regular collection service is provided or in a manner different from the prescribed method of collection. Nonrecurring or infrequent special services shall be provided, as prescribed by the director. In the event special services, the method of special service and the fee therefor shall be submitted, by the director, to the council for approval by appropriate resolution.

B. In the event the director establishes such special service, the director shall have authority to charge the users of such special services a charge based on the division of solid waste' best estimate of their actual cost of providing such service, including labor and equipment used, plus the prevailing landfill fee and transportation costs.
(Ord. No. 5707, § 15-14, 9-25-2018)

Sec. 9-56-15. Billing of solid waste disposal fee.

A. The solid waste disposal fee for removal of refuse by the city shall be included as a separate item each month on the bills rendered by the light, gas and water division. Such charge shall be rendered to all persons whose billing date would be on or after January 1, 1968, and for each month thereafter, at the rate as set forth in section 15-12 [9-56-11]. All persons receiving solid waste service by the city who are not customers of the light, gas and water division shall be billed separately by the city. The amount shall be paid monthly to the person or department designated by the council by resolution.

B. In the event that all or any portion of the solid waste disposal fee remains unpaid 30 days after the delinquent date of the utility statement, the light, gas and water division shall, upon written request by the director of solid waste, terminate water service to the property affected. Additionally, the city shall cease the collection of solid waste from that premises.

C. When service commences or ceases, applicable charges may be prorated. If electricity, gas, or water services or any of them, shall be supplied to a location, the occupant or tenant of which has vacated such premises, and the city is satisfied that there has been a termination of the need for solid waste collection, then the city, on application of the owner or agent therefor, may suspend liability for such charges, and such charges shall be reinstated with the next utility bill rendered to an occupant or tenant of such premises.
(Ord. No. 5707, § 15-15, 9-25-2018)

Sec. 9-56-16. Charges for loss or damage of carts.

The director shall establish a schedule of charges for loss or damage to city-owned carts; such charges to be applied as liability is established under section 9-56-7. These charges may be collected by direct invoice.
(Ord. No. 5707, § 15-16, 9-25-2018)

Sec. 9-56-17. Responsibility for collection charges.

In the case of premises containing more than one dwelling unit or place of business, and each is billed separately for utilities by the light, gas and water division, such fees will be billed to the person in possession, charge or control who is the customer of the light, gas and water division. In the case of premises containing more than one dwelling unit or place of business which are served by a single utility bill, so that the occupants or tenants cannot be billed separately by the light, gas and water division, such fees as are prescribed by this article shall be billed by the light, gas

and water division to the customer of the single utility bill who shall be liable for the solid waste disposal fee for such premises.
(Ord. No. 5707, § 15-17, 9-25-2018)

Sec. 9-56-18. Nurserymen—Duty to remove refuse.

Every nurseryman or other person who cuts trees or trims shrubs or grass as an independent contractor and not as a regular employee of the occupant of the premises shall remove or cause to be removed all refuse from the premises serviced by him or her. In the event the contractor fails to remove the cuttings, the owner, occupant or person in charge or control of the premises shall cause the refuse to be privately removed. In cases where the owner, occupant or person in charge of the premises fails to remove or cause to be removed the refuse, the city shall initiate action as prescribed under sections 9-96-6 and 9-96-7.
(Ord. No. 5707, § 15-18, 9-25-2018)

Sec. 9-56-19. Responsibility for removal of building debris and restrictions for waste at commercial sites.

A. Building debris, including, but not limited to, scrap lumber, plaster, roofing, concrete, brickbats, sanding dust, and other types of construction debris generated as a result of construction, repair, remodeling or demolition of any building or appurtenances on private property, will not be removed by the solid waste division of the city. The property owner shall cause such material and waste to be privately removed to a disposal site authorized by the solid waste division.

B. It is unlawful for any construction and/or demolition contractor to fail to provide an on-site enclosed container or an on-site enclosed area for loose debris, paper, building material waste, scrap building material and other solid waste on the site. All such materials shall be containerized by the end of each day, and the site shall be kept in a litter-free condition. The number and/or size of enclosed containers or enclosed areas shall be adequate to contain debris generated on site. Dirt, mud, construction materials or other debris deposited upon any public right-of-way or street as a result of construction or demolition shall be removed by the contractor by the end of each day. Dirt, mud, construction materials or other debris deposited upon any private property (aside from dirt used as fill material) as a result of construction or demolition shall be confined to the site and removed by the contractor upon completion of the job.

C. All solid waste or other such material generated at loading dock sites or other commercial sites on private property must be collected in an enclosed container or in an enclosed area. The number and size of such containers must be adequate for such collection. Preparation of such materials for collection shall be as required elsewhere in this chapter. The tops, lids, doors, or openings to any dumpster or other container or enclosed area shall be closed and tightly secured except when such material is being loaded or unloaded, so that littering or scattering of such debris outside the confines of such site is prevented.
(Ord. No. 5707, § 15-19, 9-25-2018)

Sec. 9-56-20. Interference with containers.

A. No person, other than the owner or person lawfully in control of any premises, or any authorized employee of the city or an authorized employee of a person licensed by the city for the collection or removal of solid waste or recyclable materials, shall interfere in any manner with a container used for the accumulation or handling of solid waste or recyclable materials or remove any such container from the location where it shall have been placed by the owner or person lawfully in control of the premises; nor shall any such person remove the contents from any such container.

B. It is unlawful for any person, firm or corporation to deposit or permit or suffer its agents, servants or employees to deposit household or commercial wastes in or about the anti-litter cans or like receptacles provided by the city in various public places in the community.
(Ord. No. 5707, § 15-20, 9-25-2018)

Sec. 9-56-21. Place for disposal of waste materials.

It is unlawful for any person to dispose of or cause to be disposed any solid waste or other waste materials upon any property other than a permitted disposal site as designated by the city.
(Ord. No. 5707, § 15-21, 9-25-2018)

Sec. 9-56-22. Littering prohibited.

It shall be a misdemeanor for any person to place any solid waste, straw, dirt, chips, shells, nails, iron, glass, fruit peelings, melon rinds, paper, shavings, rags, gravel, brick, building debris or other refuse or other obnoxious substance on any street, sidewalk, alley, public park, parkway, square or other place in the city or on the property of another person, or to violate any of the requirements of sections 9-56-22 through 9-56-24. Any illegally disposed of solid waste bearing a person's name shall be prima facie evidence that the person whose name appears thereon disposed of or caused to be disposed of the solid waste.
(Ord. No. 5707, § 15-22, 9-25-2018)

Sec. 9-56-23. Collection services subject to health department regulations.

The handling, collection and disposition of all solid waste shall be subject to the regulations of the department of health, which is charged with the duty of seeing to it that the public health shall not be endangered in the handling, storage or disposal of such solid waste matter.
(Ord. No. 5707, § 15-23, 9-25-2018)

Sec. 9-56-24. Hours during which carts may be placed outside property lines; extension.

A. It is unlawful for any person in possession, charge of or control of any premises to allow the cart assigned to or used by that premises to remain in public view at any time other than between the hours of 6:00 a.m. and 7:30 p.m. on the regularly scheduled collection day.

B. The director may, during inclement weather and other extreme circumstances, extend or otherwise modify the above stated hours in order to perfect the completion of a collection route.
(Ord. No. 5707, § 15-24, 9-25-2018)

DIVISION 3. PRIVATE COLLECTION—FEES

Sec. 9-56-25. Private collection authorized and regulated.

The director shall authorize the private collection of solid waste for a particular location only as hereinafter provided:

A. Except as allowed under subsection E. of this section, the director shall not authorize the private collection of solid waste from: (i) single-family, duplex, triplex, quadruplex residences and boardinghouses on dedicated city streets; or (ii) mobile homes. Any private collection fees shall be paid by the city and the city shall contract for the private collection.

B. The director may authorize the private collection of solid waste for apartment units of seven units or less, churches and institutions by the issuance of a location permit upon the application by a licensed private contractor, on the authority of the person in possession or control of the premises or his or her agent, whenever the director shall determine it is uneconomical for the city to provide collection or the city cannot give adequate service and a private collector can give adequate service. The collection shall be by a private garbage collector licensed under this article and suitable to the occupant of the premises.

The director, in considering whether it is economical for the city, shall take into consideration the location of the establishment, the solid waste collection routes, the available manpower, the equipment and manpower necessary for removal, times and cost studies by the city and all such other factors as may be necessary and proper to determine if it is economical or uneconomical for the city to provide such collection. In determining whether the city can give adequate collection service upon a request for a location permit, the director shall consider the feasibility of collection,

the building design, city-owned equipment available and whether the location can best be served by containerized equipment and such other factors as the director may deem appropriate.

C. The director shall authorize the private collection of solid waste from commercial establishments, governmental agencies and from industrial establishments by the issuance of a location permit, upon the application by a licensed private contractor, on the authority of the person in possession or control of the premises, or his or her agent, whenever the director shall determine that a private collector can give adequate service. The collection shall be by a private collector defined under this article and suitable to the occupant of the premises.

D. The director shall authorize the private collection of solid waste from apartment buildings and complexes of eight units or more by the issuance of a location permit, upon the application by a licensed private contractor, on the authority of the person in possession or control of the premises whenever the director shall determine that a private collector can give adequate service. The collection shall be by a licensed private collector defined under this article and suitable to the occupant of the premises, who has obtained a special apartment permit for the collection of apartments.

A special apartment permit for the collection of apartments shall be issued by the director only to licensed private collectors who have obtained a permit for private collection under this article and in addition have signed an agreement with the city to handle any apartments where application is made for their services. Any owner of an apartment building or complex who contends he or she has been unable to obtain private collection services may apply to the director for private collection and the licensed private collectors shall agree that such apartment units may be assigned by the director to the private collectors, on a rotating basis, for collection at the standard rates filed with the director; that is, the rates for each pickup and furnishing of containers, where applicable. The director shall have the authority to revoke immediately the special apartment permit for the handling of apartments of any private collector violating his or her agreement with the city.

E. When private collection services are considered to be in the public interest, the director may require that such services be provided by a licensed private collector. Private collection services are considered in the public interest if the director determines the structural dimensions, turn radiuses and load bearing capacities of any property does not permit public collection services. The director may also determine private collection services are considered to be in the public interest for economic reasons based on the factors set forth in subsection B. of this section, but any private collection services authorized by the director for economic reasons shall not permit any private collection service fees being charged to any of the dwelling units identified in subsection A. of this section.

(Ord. No. 5707, § 15-25, 9-25-2018)

Sec. 9-56-26. Private collection permits.

A. *Application.* Any person desiring to secure a permit for the private collection of solid waste or industrial waste by either a licensed private collector or a special private collector on and after July 1, 1968, shall submit an application therefor to the director of solid waste. The application shall contain the following information:

1. Private collector's name, home address, business address and telephone numbers. This includes information as to persons doing business under fictitious names, members of partnerships, and officers of corporations or associations;
2. A list of equipment intended to be used by the private collector within the city, including a full description thereof;
3. The rates or charges to be imposed for private collection;
4. The date upon which the applicant desires the permit to be issued;
5. Proof of public liability insurance issued by a company authorized to do business in the state in the amount of $100,000.00 for death or

injury to any one person in one accident, $300,000.00 for death or injury to more than one person in any one accident and $50,000.00 property damage;

6. Such other and further information as the director may require.

B. *Investigation and issuance.* The director shall cause such investigation to be made of the facts stated in the application and, if verified, shall without delay advise the collector of licenses and privileges to issue the private collector's permit upon payment of the fee.

C. *Effective period and fee.* The private garbage collection permit shall be effective for the fiscal year beginning on July 1 until the next ensuing June 30, on and after which date it shall be null and void. The licensed private collector shall pay an annual fee of $240.00, which fee shall be prorated and paid at the rate of $20.00 per month, in advance, to the director of solid waste. The fee for a special permit issued to a private collector whose sole collection is a location owned by the private collector shall be $26.00 per annum payable annually in advance, to the director of solid waste.

D. *Conditions of issuing permit.* The director may impose conditions upon the issuing of a permit reasonably calculated to eliminate excessive noise, scattering of dust and dirt, scattered materials, and similar nuisances, and to prevent obstruction of public streets and interference with traffic.

E. *Rules and regulations.* The director may make rules and regulations for the identification of private collectors and their equipment. Every private collector shall keep such records, receipts, invoices, and other pertinent papers in such form as the director may require which shall be open to inspection by the city.

F. *No vested right or property interest acquired—Suspension or revocation—Notice—Hearings.*

1. No vested right or property interest is acquired by the issuance to a licensed private collector of an annual permit or through a special permit issued to a licensed collector whose sole collection is a location owned by the private collector. Nor is there any vested right or property interest acquired by the issuance of a location permit to a particular location to be picked up by a licensed private collector, but the annual permit or location permit may be suspended or revoked when it shall appear:

   a. That any of the conditions thereof are being violated;

   b. That the permit is being exercised in violation of this article or any ordinance or statute;

   c. That the permit is being used for a purpose detrimental to public health, morals, peace and order or is being used for a purpose foreign to that for which the permit was issued;

   d. For the nonpayment of the annual permit fee, the nonpayment of the location fee or the nonpayment of any moneys rightfully due and payable to the city;

   e. That the application contains falsehoods;

   f. That the equipment being used by the private collector for collection or the containers used fail to meet the health and safety standards established by the city, state or federal government.

2. Ten days' written notice of suspension or revocation shall be given. Within such period of time the collector may ask for a hearing before the director. If no request for a hearing is made, the suspension for the period listed or the revocation shall be final. Hearings before the director shall be conducted informally, may be continued, and his or her decision shall be rendered within five days after the close of such hearing. The decision of the director in regard to the issuance, suspension or revocation of private collection permits shall be appealable to the city council under such rules and regulations as established by the council.

G. *Payment bond.* The city shall require of each private collector a bond to secure the payment of location permit fees, inspection fees and sanitary fill or landfill fees. Such bond shall be in an amount determined by the director to be the average amount due from the private collector of such fees for a three-month period, and shall be based upon the director's estimate of such fees from the location permits submitted by the private collector and approved by the director. The director is

authorized to increase or decrease the bond from time to time, at his or her discretion, as the number of location permits increase or decrease by the private collectors. (Ord. No. 5707, § 15-26, 9-25-2018)

Sec. 9-56-26.1. Dumpster regulations.

A. There is established a special downtown solid waste collection district that shall be an area bounded by the Mississippi River on the west, Auction Street on the north, Danny Thomas Boulevard on the east and G.E. Patterson on the south.

B. For purposes of this section, "dumpster" means a watertight container constructed of impervious material and provided with a cover or covers of like material intended and designed to be used for the retention or storage of garbage, refuse or recyclable materials. This term shall not include containers having a maximum capacity of 90 gallons or less, open top rolloff construction containers, or solid waste stationary compactors. "Impervious" means any nonorganic material which prohibits penetration by liquids or other soluble materials.

C. All existing commercial establishments where dumpsters are in use shall meet the requirements of this section within six months of the effective date of this section.

D. Any solid waste collection service by private haulers ("private refuse collectors") in this district will require a location permit.

E. The director of solid waste, or his or her designee, before approving a location permit for private solid waste collection, pursuant to section 9-56-27 of this Code, shall review the proposed dumpster location and determine if the location will require visual screening or site designation. If visual screening is required, a temporary location permit may be issued to remain in effect until approval and completion of construction of the visual screening or enclosure, or for six months, whichever occurs first.

F. 1. Dumpsters may not be located in a public right-of-way within the downtown solid waste collection district unless it is demonstrated by the applicant for a location permit that:

a. The physical layout of the property makes it impracticable to locate such dumpster on the private property of the premises using such dumpster; and

b. Special circumstances make it impracticable for the solid waste generator to employ alternative solid waste collection means such as a shared compactor or hand collection services.

2. Specific site designation is required for all dumpsters meeting the exception of subsection F.1. and located in a public right-of-way. Site designation shall consist of visual markings on the surface of the public right-of-way identifying the particular place where the dumpster must be placed for as long as the location permit allowing the placement of the dumpster remains valid.

The specific site designation of each dumpster in a public right-of-way must be approved by the design review board, established pursuant to subsection 12-44-7.F. of this Code, prior to the issuance of a location permit by the director of solid waste or by his or her designee.

3. The owner of any dumpster located in a public right-of-way within the downtown solid waste collection district shall pay to the city a location permit fee of $200.00 per month per dumpster for the use of the public right-of-way and to fund enforcement of the downtown dumpster ordinance. This fee shall be paid in advance by the first of each calendar month for as long as the dumpster is located in a public right-of-way.

4. Notwithstanding the foregoing of this subsection F., any dumpster that as of November 1, 2011, has a valid location permit allowing it to be located in the public right-of-way within the downtown solid waste collection district, and that is in compliance in all other respects with this section and former subsection F. as it existed as of November 1, 2011, shall not be required to comply with this subsection F. until November 1, 2013, on which date such preexisting location permit shall expire.

5. The city and Center City Commission d/b/a Downtown Memphis Commission (DMC) are each authorized to remove, at the owner's expense, any dumpster that is located in a public right-of-way within the downtown solid waste district that does not have a valid location permit and site designation pursuant to

subsection F.2. If a dumpster has a valid location permit but is not in compliance with this the downtown dumpster ordinance in some other respect, then the city and DMC are each authorized to remove, at the owner's expense, such dumpster after giving the notice and opportunity to cure required by subsection [9-56-26.1.J.]

G. Dumpsters located or to be located on private property but within public view, will require visual screening or enclosure. Visual screening or enclosure requirements will be determined by the design review board, established pursuant to sections 12-36-3 through 12-36-7 of this Code, prior to the issuance of a permanent location permit. The owner of any premises employing a dumpster shall be responsible, at his or her own expense, for preparing and submitting a design plan for required visual screening or enclosure to the design review board and for constructing the approved project.

H. In addition to the requirements set forth in subsections B. through F. of this section, all dumpsters located in the downtown solid waste collection district shall comply with the following requirements:

1. All dumpsters shall have the name and phone number of the private refuse collector holding the location permit for same, as well as the location permit number, stenciled thereon in letters inches in height in a location that is conspicuous and clearly visible from the nearest public through street.

2. All dumpsters must be equipped with a pad lock, and must remain locked at all times, in order to prevent overflowing and windblown garbage, interference with dumpster contents or frequent accumulation of litter.

3. All dumpsters shall be maintained free of jagged or sharp edges or inside parts which could prevent the free discharge of their contents.

4. All dumpsters shall be clean, painted, water tight, and in good condition.

5. Dumpsters shall be emptied by a private refuse collector at intervals which will preclude overflow. Dumpsters shall not be used for disposal of bulk items, such as furniture and major appliances, that may preclude compliance with this section.

6. All private refuse collectors holding location permits for dumpsters to be located in public right-of-way shall be responsible for assuring that their dumpsters are and remain within the marked site designation for such dumpster.

7. The owner of any premises employing a dumpster shall have the obligation and responsibility of assuring that the dumpster is kept closed and locked and of maintaining the dumpster, any dumpster enclosure or screening and all surrounding areas in a clean condition free of overflowing refuse during all times except on a scheduled pick-up date. If a continuous problem of insufficient dumpster capacity is proven to exist, additional or larger capacity dumpsters and enclosures or increased frequency of pick-up shall be required in order to eliminate the overflow problems.

I. Except as otherwise provided herein, it shall be the obligation and responsibility of the private refuse collector who holds the location permit for a specific dumpster, to assure that such dumpster is in compliance with all provisions of this section, with the exception of subsection G.7. of this section which shall be the obligation and responsibility of the owner of any premises employing such dumpster.

J. The city is authorized to remove any dumpster which is not in compliance with this section. Prior to any such removal, the city shall give notice of intent to remove a dumpster to the private refuse collector holding a location permit therefor. The notice shall set out the conditions that render the dumpster to be noncompliant with this section. If such conditions are not corrected to the city's satisfaction within seven days from the date of the notice, the city shall remove the dumpster at the expense of the private refuse collector.

K. Any person, residence, firm, corporation or commercial establishment who violates this section shall be guilty of a misdemeanor fined in an amount not to exceed $50.00 per violation. Each day on which a violation of, or failure to comply with, this section continues shall constitute a separate violation and shall be punishable as such. The city also is entitled to pursue all other remedies to which it is entitled under the authority of applicable law and in accordance with article 2 of this chapter.
(Ord. No. 5707, § 15-26.1, 9-25-2018)

Sec. 9-56-27. Location permits.

A. *Application.* Any private refuse collector who has secured a permit for the private collection of solid waste or industrial waste for either contract collection or special owner collection, and desires to secure a permit for the collection from any particular location or premises within the city, shall submit an application for such collection to the director of the solid waste division for each location to be so collected. The application shall include the following information:

1. The private collector's name and permit number;
2. The address of the location where the materials will be collected and the nature of the activity thereon;
3. The written approval of the request for a location permit by the operator or owner of the activity on the premises at the location for which collection will be made;
4. The character and description of the materials to be collected;
5. The proposed date the private collection is to begin;
6. The number of collections anticipated per week or month;
7. Equipment to be used;
8. Such other and further information as the director may require.

At the time of making application for a private collector's permit, the applicant may apply for location permits and the private collection and location permits may be issued simultaneously.

B. *Investigation and notice of refusal.* The application shall be forwarded to the director who shall cause an investigation to be made of the facts stated in the application and shall authorize the issuance of the location permit within ten days of the filing thereof, provided he or she makes the findings required by this article. Whenever the director refuses the location permit, he or she shall immediately notify the applicant, in writing, of this refusal.

C. *Fees and computation.* A disposal fee, as set forth in section 9-56-10, and a location permit fee shall be charged to defray the costs necessary to provide places of disposal, necessary inspections and the cost of maintaining the general cleanliness of the city. The fees shall be chargeable to the location collected by the licensed private collector or the special private collector and paid to the city by the tenth of the month following the month services were provided by such collector. The owner or operator, when he or she requests the issuance of a location permit for private collections, shall agree to pay the location permit fee and disposal fee to be collected by the private collectors as provided herein. The location fee shall be as follows:

1. $0.75 per apartment per month for apartment buildings and complexes;
2. $0.75 per commercial or industrial unit per month.

D. *Renewals.* The location permit shall remain effective without express renewal until such time as the conditions under which the application was approved have changed to such an extent as to render the permit invalid with respect to the requirements of this section and section 9-56-20. When such location permits are determined by the director to be invalid the director shall immediately notify the applicant in writing.
(Ord. No. 5707, § 15-27, 9-25-2018)

Sec. 9-56-28. Nuisances prohibited, compliance with article required.

It is unlawful for any person in possession, charge of or control of any premises to keep, cause to be kept, or allow the keeping on any premises within the corporate limits of the city any solid waste in such manner that it will become offensive or deleterious to health or likely to cause disease, and the same is declared a public nuisance. The health department, police division and supervisory employees of the solid waste division are authorized to inspect any premises in the city and its police jurisdiction for the purpose of seeing that the requirements of this article are being complied with.
(Ord. No. 5707, § 15-28, 9-25-2018)

Sec. 9-56-29. Solid waste disposal fund.

All funds received by the city from the solid waste disposal fee, whether billed by utilities or collected by the city for permit fees, location fees or sanitary fees, shall be placed by the comptroller of the city in a special account entitled "solid waste disposal fee." Such funds shall be used solely by the city to pay for the cost of solid waste services, including all salaries of the solid waste management bureau, all necessary capital expenditures for equipment and all other necessary and

reasonable charges. It being the intention of this article as previously set forth from its inception that such funds shall be used to defray the cost of collection and disposal of solid waste in the city.
(Ord. No. 5707, § 15-29, 9-25-2018)

DIVISION 4. DISPOSAL AND REMOVAL OF PERSONAL PROPERTY

Sec. 9-56-30. Landlord or property owner's responsibility to notify the city regarding tenant property discarded onto city right-of-ways, easements, or property owned or maintained by the city after an eviction.

Any landlord or property owner that discards personal property belonging to a tenant, including, but not limited to, household furniture, appliances, equipment, clothing, and any other type of personal property onto any city right-of-way, easement, or property owned or maintained by the city after an eviction must notify the division of solid waste by email or fax within 24 hours or the next business day of such eviction, and discard and remove such property in accordance with the provisions set forth in section 9-56-31.
(Ord. No. 5707, § 15-30, 9-25-2018)

Sec. 9-56-31. Disposal and removal of personal property discarded onto city right-of-ways, easements, or property owned or maintained by the city after an eviction.

Any landlord or property owner that discards tenant property onto a city right-of-way, easement, or property owned or maintained by the city after an eviction must discard such property, excluding bulky items, in heavy duty trash bags or cardboard boxes in a neat and organized manner, and remove such property within 72 hours of such eviction as a matter of health and public safety.
(Ord. No. 5707, § 15-31, 9-25-2018)

Sec. 9-56-32. Violations for failure to provide notice to city and to remove and dispose of personal property discarded onto city right-of-way.

A. *First offense violations.* Any landlord or property owner that commits a first offense violation of sections 9-56-30 or 9-56-31 shall be issued a courtesy citation and assessed the actual costs incurred by the city for the removal and disposal of such property.

B. *Second and subsequent violations.* Any landlord or property owner that commits a second or subsequent violation of sections 9-56-30 or 9-56-31 shall be issued a misdemeanor citation in accordance with article 2 of this chapter and assessed the actual costs incurred by the city for the removal and disposal of such property. Each day that the discarded property remains in a city right-of-way, easement, or on property owned or maintained by the city in violation of this section shall constitute a separate offense punishable up to $50.00, plus costs, per offense.

C. *Disposal and removal costs.* The actual costs of disposal and removal assessed by the city shall not be less than $50.00 and shall not exceed $1,000.00.
(Ord. No. 5707, § 15-32, 9-25-2018)

Sec. 9-56-33. Disposal and removal by city.

A. In addition to the penalties set forth in section 9-56-32, upon failure of any landlord or property owner to discard and remove such property in the manner set forth in section 9-56-31, the solid waste division is hereby authorized and directed to have such property removed and disposed, and to provide a statement of costs to the director of finance or his designee. A lien is hereby declared on such property for all costs and expenses incurred by the city provided that, such costs and expenses shall not exceed the amounts set forth in subsection 9-56-32.C.

B. Upon receipt of the statement of costs of disposal and removal by the city, the director of finance or his designee may transmit a true copy thereof to the city attorney, who shall forthwith institute suit or take such other action as may be necessary to enforce the lien on such property.

C. All uncollected costs for the current year shall be certified to the city treasurer on or before December 31 of each year. It shall be the duty of the city treasurer to collect, as a special tax, the amount so certified at the time city taxes levied against the property for which the disposal and removal was performed for the next succeeding year are collected. The cost of disposal and removal pursuant to this section is hereby declared to be a special tax to be collected as general taxes levied by the city.
(Ord. No. 5707, § 15-33, 9-25-2018)

Sec. 9-56-34. Responsibility of property owners, tenants, developers, and others that do not pay solid waste disposal fees for discarded items.

A. The owner, responsible tenant, lessor, lessee, or developer of any commercial or residential property or real estate, including vacant lots and structures, which does not pay a monthly fee for solid waste services for such commercial or residential property or real estate shall be responsible for the removal of any debris, refuse, trash, or any other items placed at the curb, right-of-way or easement of the subject property.

B. Any debris, refuse, trash or other items discarded onto the curb, right-of-way or easement of the property referenced herein shall be tagged by the division of solid waste, with notice to the owner or responsible person for the property to remove such debris or items of refuse within five days of the tagging. If the debris, refuse, trash and other items are not properly removed within the five-day period, the division of solid waste will remove all discarded items and bill the property owner or responsible party.
(Ord. No. 5707, § 15-34, 9-25-2018)

Secs. 9-56-35—9-5615-40. Reserved.

ARTICLE 2. ENFORCEMENT

Sec. 9-56-41. Definitions.

The following definitions shall apply to this article:

Citation means a written order issued by a law enforcement officer requiring a person accused of violating the law to appear in a designated court at a specified date and time, signed by the person agreeing to appear at the time and place indicated.

Summons means an order issued by a court requiring a person against whom a charge has been filed to appear in a designated court at a specific date and time, such summons to be signed by the judge or the clerk.

Traffic violations bureau means the division of the city court system designated to file and process citations and summonses and to deliver the ticket or citation to the clerk for hearing as provided herein.
(Ord. No. 5707, § 15-41, 9-25-2018)

Sec. 9-56-42. Official to designate special officer.

Both the director of the division of public works and the director of solid waste are authorized to designate certain city employees to become special officers of the municipality to issue citations in lieu of arrest to offenders that violate the provisions of this chapter in such cases as they have jurisdiction.
(Ord. No. 5707, § 15-42, 9-25-2018)

Sec. 9-56-43. When citations/summonses deemed lawful complaints for prosecution.

An employee designated as provided in section 9-56-42 of this chapter is authorized to issue misdemeanor citations, in lieu of arrest, for violations of this chapter or sections 9-96-2 , 9-96-6 and 11-52-1. In the event the form of such citation includes information and is sworn to, it shall be deemed to be a lawful complaint for the purpose of prosecution under the section specified.
(Ord. No. 5707, § 15-43, 9-25-2018)

Sec. 9-56-44. Procedure applicable to citations/summonses.

A. Every citation or summons issued shall provide for an appearance date. If any offender fails to appear on the appearance date, the court may take a default judgment against the defendant in favor of the city in an amount not to exceed $50.00 plus costs, for each offense.

B. The summons shall be sworn to by the officer before a person designated as a city court clerk for the purpose of taking oaths.
(Ord. No. 5707, § 15-44, 9-25-2018)

Sec. 9-56-45. Limitation on action for violations—When action deemed commenced—service of summons.

A. No action shall be commenced by the city in any court for the purpose of enforcing any violation of this chapter or section 11-52-1 after one year from the commission of the offense.

B. For the purpose of this section, a court action shall be deemed to be commenced:

1. Upon the issuance of a citation to the offender;
2. Upon the arrest of the offender; or
3. Upon the issuance of a summons to the offender.

C. A summons may be served by:

1. Personal service on the offender; or

2. Registered or certified mail, addressee only, return receipt requested.

(Ord. No. 5707, § 15-45, 9-25-2018)

CHAPTER 9-57. SOLID WASTE MANAGEMENT EMPLOYEES RETIREMENT BENEFIT PLAN

Sections:

Chapter 9-57. Solid Waste Management Employees Retirement Benefit Plan

Sec. 9-57-1. Creation of solid waste supplemental retirement benefit plan.
Sec. 9-57-2. Definitions.
Sec. 9-57-3. Eligibility requirements.
Sec. 9-57-4. Retirement benefit amount.
Sec. 9-57-5. Payment of retirement benefit.
Secs. 9-57-6—9-57-15. Reserved.

Sec. 9-57-1. Creation of solid waste supplemental retirement benefit plan.

There is hereby created a solid waste supplemental retirement benefit plan for solid waste employees hired by the city as of July 1, 2014.
(Ord. No. 5537, § 1, 12-3-2013)

Sec. 9-57-2. Definitions.

Sec. 9-57-3. Eligibility requirements.

Normal retirement. A solid waste employee in the regular, full-time employ of the city that has reached the age of 65 and has a minimum of 25 years of service shall be eligible for normal retirement pursuant to this section.

Early retirement. A solid waste employee in the regular, full-time employ of the city that has reached the age of 62 and has a minimum of 30 years of service shall be eligible for early retirement pursuant to this section.
(Ord. No. 5537, § 1, 12-3-2013)

Sec. 9-57-4. Retirement benefit amount.

A. Any employee that satisfies the eligibility requirement as set forth in section 9-57-3 shall be entitled to a supplemental retirement benefit in the amount of $400.00 multiplied by the number of years of service completed upon retirement; provided, however, that the years of service of such employee shall be capped at 30 years with partial years to be calculated based upon completed months.

B. The supplemental retirement benefit as provided for herein shall not be subject to a cost of living adjustment (COLA) and shall be paid in accordance with section 9-57-5.
(Ord. No. 5537, § 1, 12-3-2013)

Sec. 9-57-5. Payment of retirement benefit.

A. The supplemental retirement benefit provided hereunder shall be paid monthly in the form of a straight life annuity to a single employee that has satisfied the eligibility requirements set forth in section 9-57-3 herein and retired from service.

B. In the event of the death of a married solid waste employee that has satisfied the eligibility requirements included herein and retired prior to such employee's death, 50 percent of the supplemental retirement benefit provided hereunder shall be paid to the surviving spouse. If there is no spouse, the benefit shall be paid to or on behalf of the deceased employee's surviving children. Notwithstanding the foregoing, a surviving spouse shall have the ability to buy up to 100 percent of the deceased employee's benefit as provided herein.

C. If an employee receiving a benefit pursuant to this chapter is reemployed after the commencement of his retirement benefit payments, no further benefit payment shall be made to such employee during his period of reemployment.
(Ord. No. 5537, § 1, 12-3-2013)

Secs. 9-57-6—9-57-15. Reserved.

CHAPTER 9-58. TIRE BUSINESS AND TIRE HAULER REGISTRATION

Sections:

Sec. 9-58-1. Purpose and intent.
Sec. 9-58-2. Definitions.
Sec. 9-58-3. Tire business permits.
Sec. 9-58-4. Tire hauler permit.
Sec. 9-58-5. Denial of permit or renewal; suspension or revocation of permit.
Sec. 9-58-6. Destruction of tires.
Sec. 9-58-7. Storage of tires.
Sec. 9-58-8. Transport and place for disposal of tires.

Sec. 9-58-9. Disposal records/transmittal manifest.
Sec. 9-58-10. Reserved.
Sec. 9-58-11. Administration/enforcement.
Sec. 9-58-12. Violations and penalties.
Sec. 9-58-13. Injunctive relief.
Sec. 9-58-14. Tire disposal fund.

Sec. 9-58-1. Purpose and intent.

It is declared to be the purpose and intent of the city to protect the public health, safety, and welfare of its citizens, prevent the spread of disease and creation of nuisances, and to protect and enhance the quality of its environment. The purpose of this chapter is to institute and maintain a comprehensive city-wide program for tire disposal which will ensure that the storage, transportation, collection, processing, and disposal of tires does not adversely affect the health, safety, and well-being of the public and does not degrade the quality of the environment.
(Ord. No. 5334, § 1(15-46), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-2. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dump means to throw, discard, place, deposit, discharge, bury, or dispose of.

Elements of nature means rainfall, snow, sleet, hail, or other natural precipitation.

Manifest means a form or document used for identifying the quantity and the origin, routing, and destination of tires during transportation from the point of generation, through any intermediate points, to an end user, processor, or disposer.

Person means any and all persons, natural or artificial, including any individual, firm, or association.

Store means to place, collect, or accumulate tires that are not for sale or resale as tires, whether the tires are directly on the ground, in roll-off containers, or otherwise.

Tire means a continuous solid or pneumatic rubber, covering encircling the wheel of a bicycle, motorcycle, automobile, truck, trailer, tractor, or other vehicle.

Tire business means and includes any place or establishment engaged in the business of reselling tires or that generates waste tires and is occupied, used, or maintained for the purpose of offering, transporting, repairing, processing, storing, utilizing, and disposing of any and all types of such tires.

Used tire means any tire that has been in use and no longer considered new.

Tire marking means the marking of a tire with the tire business permit number.

Tire recycling facility means a county facility, mandated and licensed pursuant to the Tennessee Solid Waste Management Act, which recycles or properly disposes of tires.

Waste tire means a tire that is no longer suitable for its original intended purpose because of wear, damage, or defect. The term "waste tire" also includes any tire that is destined for a tire disposer or reprocess or (i.e., recapper).

Waste tire hauler means any person or entity permitted by the city engaged in the business of picking up or transporting waste tires for the purpose of removal to a tire recycling facility, waste tire disposer, processor, end user, or disposal facility.

Waste tire disposer means any person who is approved by the state department of environment and conservation to receive waste tires from waste tire generators or waste tire haulers for the purpose of waste tire processing, shredding or otherwise facilitating recycling or resource recovery techniques for waste tires.

Waste tire generator means any person or entity that generates waste tires. Generators may include, but are not limited to, retail tire dealers, retreaders, waste tire disposers not approved by the state department of environment and conservation, automobile dealers, private company vehicle maintenance shops, garages, and service stations.
(Ord. No. 5334, § 1(15-47), 11-3-2009; Ord. No. 5558, § 1, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-3. Tire business permits.

All tire businesses located within the city limits engaging in the resale of tires or the generation of waste tires shall be issued a permit annually by the city, by and through its permit's office for a nonrefundable fee of $250.00. Tire businesses with multiple locations must purchase a permit for each location. Tire businesses that have their own trucks utilized to transport waste tires

will receive one decal included with the permit fee. A separate decal must be purchased by such business for any additional truck utilized by the tire business to transport waste tires at a cost of $50.00 per decal. The city will conduct random inspections of such tire businesses for the sake of monitoring compliance with the foregoing requirement. Tire business permits issued under this article are personal to the applicant and may not be transferred, leased, assigned, or given away or sold in any manner or under any circumstance. It shall be the duty of each registrant and permittee to advise the permits office in writing in ten business days of any change to any item for which representation or response was made in its application for registration or permit.

A. *Application*. Every person, firm or corporation obligated to comply with the permit requirement set forth herein shall make written application to the city. The application shall be made on a form obtained from the city permits office setting forth, among other things, the following:

1. Name, physical address, telephone, and facsimile number of the applicant;
2. Tax identification number or taxpayer identification number;
3. Proof of current county business license, issued to the applicant at the proposed business address;
4. County code enforcement use and occupancy certificate;
5. Name, mailing address, telephone, and facsimile number of the owner of the tire business (if different from subsection A.1 of this section);
6. Name, mailing address, telephone, facsimile number and copy of a valid City of Memphis tire hauler permit of the waste tire hauler who will be transporting tires and waste tires to and from the tire business.
7. The estimated maximum number of tires that will be stored on site;
8. The current physical address of the site;
9. A statement setting forth and describing the available space for properly accommodating and protecting all tires;
10. Proof of insurance required in accordance with the state financial responsibility laws;
11. Such other and further information as the permit's office may require.

B. *Annual fees.*

1. All permit and decal fees are due annually by July 1 of each calendar year at the city permits office. These annual fees shall be paid in advance of the issuance of such permit and decal and shall be prorated, as necessary.
2. A current valid permit or decal may be replaced by the permit's office for a fee of $50.00.

C. *Issuance*. The permits office shall issue a permit and decal to a tire business which submits the required and completed application, pays to the city the fee as required in this chapter, and has demonstrated compliance with this chapter and all applicable city ordinances. Each tire business registered in accordance with the provisions of this chapter shall immediately post such permit and decal in a prominent manner or cause such permit to be posted in a conspicuous place within the premises where such tire business is thereby authorized to be established, maintained, or operated. The decal shall be conspicuously displayed on each vehicle owned by such tire business that is utilized to transport used or waste tires. Any permit or decal issued hereunder shall not be sold, assigned, mortgaged, or otherwise transferred without approval by the city permits office and shall expire upon termination of the existence of the tire business or revocation of such business' permit.

D. *Effective period.* The permit shall be effective beginning on July 1 until the next ensuing June 30, on and after which date it shall be null and void.

(Ord. No. 5334, § 1(15-48), 11-3-2009; Ord. No. 5558, §§ 2, 3, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-4. Tire hauler permit.

All tire haulers, not affiliated with a tire business that is properly permitted as required herein, transporting used or waste tires within the city limits shall be issued a permit and decal annually by the city, by and through

its permit's office for a nonrefundable fee of $250.00. Tire haulers with multiple locations must purchase a permit for each location. Tire haulers will receive one decal included with the permit fee. A separate decal must be purchased by such hauler for any additional vehicles utilized by the hauler to transport waste tires at a cost of $50.00 per decal. Tire hauler permits issued under this article are personal to the applicant and may not be transferred, leased, assigned, or given away or sold in any manner or under any circumstance. It shall be the duty of each registrant and permittee to advise the permits office in writing in ten business days of any change to any item for which representation or response was made in its application for registration or permit.

A. *Application*. Every person, firm or corporation obligated to comply with the permit and decal requirement set forth herein shall make written application to the city. The application shall be made on a form obtained from the city permits office setting forth, among other things, the following:

1. Name, physical address, telephone, and facsimile number of the applicant;
2. Tax identification number or taxpayer identification number (if applicable);
3. Proof of current county business license, issued to the applicant at the proposed business address;
4. Proof of insurance required in accordance with the state financial responsibility laws;
5. Such other and further information as the permit's office may require.

B. *Annual fees*.

1. All permit and decal fees are due annually by July 1 of each calendar year at the city permits office. These annual fees shall be paid in advance of the issuance of such permit, and such fee shall be prorated, as necessary.
2. A current valid permit or decal may be replaced by the permit's office for a fee of $50.00.

C. *Issuance*. The permits office shall issue a permit and decal to a tire hauler who submits the required and completed application, pays to the city the fee as required in this chapter, and has demonstrated compliance with this chapter and all applicable city ordinances. Each waste tire hauler registered in accordance with the provisions of this chapter shall conspicuously post and maintain such decal in his or her vehicle which is used for transporting tires at all times. Any permit or decal issued hereunder shall not be sold, assigned, mortgaged, or otherwise transferred without approval by the city permits office and shall expire upon termination of the tire hauler's business or revocation of such hauler's permit.

D. *Effective period.* The permit shall be effective beginning on July 1 until the next ensuing June 30, on and after which date it shall be null and void.

E. *Permit exemptions.* The following persons are exempt from the tire hauler permit requirements set forth herein:

1. A tire hauler who is regulated or licensed by, and is currently in compliance with, state or federal agencies such as the department of transportation;
2. A private individual transporting the individual's own waste tires to an approved tire disposal or tire recycling facility;
3. Haulers removing four or less tires from a residential location, which is under contract to remove that residence's solid waste; or
4. Anyone transporting four or fewer used tires directly from a used tire generator facility to a point of re-use or proper storage prior to their re-use.

(Ord. No. 5334, § 1(15-49), 11-3-2009; Ord. No. 5558, §§ 4, 5, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-5. Denial of permit or renewal; suspension or revocation of permit.

In addition to the penalties set forth in section 9-58-12, the permits office may refuse to issue or renew a tire business or tire hauler permit or may suspend or revoke such permit if:

A. The applicant or permit holder refuses to allow entry into the tire business by the authorized

representatives of the city or otherwise willfully obstructs the inspection of the tire business;

B. There are repeated or serious violations of any city ordinance by the tire business or tire hauler;

C. The tire business or tire hauler fails to comply with any provisions of this chapter and/or any other applicable city ordinance;

D. The tire business or tire hauler fails to comply with any applicable state or federal law, rule, or regulation, including state and local traffic laws; or

E. The tire business knowingly authorizes a tire hauler who is not properly permitted as required in section 9-58-4 to transport tires on behalf of such business.

(Ord. No. 5334, § 1(15-50), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-6. Destruction of tires.

Any tire that is no longer suitable for its original intended purpose or deemed unfit for resale by a tire business shall be rendered unusable and properly disposed of at an authorized tire disposal or recycling facility. Such unusable and unfit tires may not be returned to the customer for disposal by that customer, but the customer may, in writing, request their return for continued use and, in so doing, releases the facility from all liability for that reuse.

Each tire business shall have six months from the effective date of the ordinance from which this chapter is derived to comply with this provision. Failure to comply with this requirement shall be grounds for revocation of the permit holder's permit in accordance with section 9-58-5.

(Ord. No. 5334, § 1(15-51), 11-3-2009; Ord. No. 5558, § 6, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-7. Storage of tires.

Tire businesses shall properly store tires at each facility in accordance with local, state, and federal laws. Prior to storage, each used or waste tire shall be permanently marked by the tire business with the tire business permit number. Tire markings should be at least two inches in height, clearly printed, and prominently displayed on the exterior of the tire.

To eliminate potential nuisances of litter, insect breeding, fire hazards and other health risks, each tire business shall at all times during storage:

A. Store tires in covered or enclosed areas, or under an impermeable cover, in accordance with applicable health and safety laws, including but not limited to the city's fire prevention code, to prevent the exposure to and collection of elements of nature, and accumulation of water, dirt or other foreign materials;

B. Ensure all used or waste tires are appropriately marked.

C. Tires stored outside shall be screened from public view.

D. Secure tires at each facility to prevent easy access or theft (lock, chain, or store inside a building or other securable structure);

E. Used tires, waste tires and tire pieces shall be stored separately.

F. Accumulate tires in piles in accordance with the city's fire prevention code, but not in excess of seven feet in height;

G. Isolate tires from other stored materials that may create hazardous products if there is a fire, including, but not limited to, lead acid batteries, fuel tanks, solvent barrels, and pesticide containers;

H. Store no more than 100 used or waste tires in each bay and a maximum of 200 used or waste tires on the site which includes inside and outside storage. Any requests for more than 200 used or waste tires must be approved by the inspecting agency and could result in additional fees.

(Ord. No. 5334, § 1(15-52), 11-3-2009; Ord. No. 5558, § 7, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-8. Transport and place for disposal of tires.

A. All tires, including used and waste tires shall be covered and secured during transport upon any public road or highway by a permitted waste tire hauler.

B. It shall be unlawful for any person or tire business to cause, suffer or allow the dumping of any tires at any place in the city, including, without limitation, in or on any public highway, road, street, alley, or thoroughfare,

including any portion of the right-of-way thereof, any public or private property in the city or any waters in the city. Notwithstanding the foregoing, residential property owners within the city may properly discard up to four rimless used or waste tires on the curbside immediately in front of the property owner's residence for normal trash pickup without violating this provision; provided that such tires are discarded for removal within 24-hours of the property owner's designated day for trash pickup.

C. It shall be unlawful for any person or tire business to cause, suffer, or allow the disposal of whole tires in a landfill.

D. Tires shall be properly disposed of in accordance with section 9-58-9 by the delivery and manifesting of tires to an authorized tire disposal or tire recycling facility designated by the city. Tire businesses contracting with a tire hauler for the proper disposal of tires generated by such business shall require such hauler utilize a transmittal manifest documenting the pickup and delivery of the tires to an authorized tire disposal or tire recycling facility.

E. It shall be unlawful for any person, tire business, or tire hauler to transport or dispose of tires or waste tires that are not marked with the tire business permit number.
(Ord. No. 5334, § 1(15-53), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-9. Disposal records/transmittal manifest.

A. Tire businesses shall keep disposal records in the form of a daily transmittal manifest, as prescribed by the city, the numbers of new, used and waste tires stored on site, and waste tires transported away at each business location for a minimum of three years and make such records readily available upon request at reasonable hours for inspection by representatives of the city. The daily manifest must be maintained legibly and signed by an authorized representative of the tire business and clearly state the following:

1. Name, address, telephone number, permit number and authorized signature of the tire hauler;

2. Name, address, telephone number, and authorized signature of the tire business who is contracting for the removal of the tires along with the permit number for such business;

3. Date and time of removal/transport and the number of tires being transported;

4. Name, address, and telephone number of the location where the tires are to be delivered; and

5. Upon delivery, the name and signature of the person accepting the tires, including the date of acceptance, the number of tires received, and certification the received tires are properly marked with permit numbers.

B. The manifest required by this section shall at all times accompany tires while in transit. Any tire business directly delivering waste or used tires generated at its business location to a tire disposal or tire recycling facility must also utilize the daily transmittal manifest and make such manifest available for production or inspection by representatives of the city, upon request. The original manifest shall be maintained by the tire business evidencing all information and signatures required herein, notwithstanding the use of a tire hauler or direct delivery by the tire business. A tire hauler contracted to deliver tires to a recycling facility or disposal facility must maintain a duplicate copy of the manifest reflecting the delivery of such tires for proper disposal. The tire recycling or tire disposal facility shall sign the manifest upon acceptance of the tires and also maintain a copy of the manifest for the facility's records.

C. It shall be unlawful for tire disposal businesses to accept delivery of tires or waste tires without tire markings from known used tire businesses. All tire disposal businesses shall immediately report to City of Memphis environmental enforcement if tires or waste tires are delivered without tire markings.
(Ord. No. 5334, § 1(15-54), 11-3-2009; Ord. No. 5558, § 8, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-10. Reserved.

Editor's note—Ord. No. 5875, § 1, adopted July 11, 2023, repealed § 9-58-10, which pertained to redemption program and derived from Ord. No. 5334, § 1(15-55), adopted November 3, 2009.

Sec. 9-58-11. Administration/enforcement.

A. Administration and enforcement of this chapter shall be the responsibility of the city permits office, City Police Department, public works division, and neighborhood improvement. The city, by and through its authorized

representatives, is hereby authorized to enter any property regulated by this chapter, at reasonable or necessary times in order to properly inspect for violations.

B. The permits office is hereby authorized to promulgate all such rules and regulations considered necessary and proper to effectuate the implementation and enforcement of this chapter.
(Ord. No. 5334, § 1(15-56), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-12. Violations and penalties.

A. The improper storage of one or more used tires shall constitute a separate offense per tire and be punishable by a fine of $50.00 for each improperly stored tire on the location of the tire business. Each day of continued violation of this subsection constitutes a separate offense.

B. The transport of one or more tires without the required permit and decal shall constitute a separate offense per tire and be punishable by a fine of $50.00 for each tire being transported in violation of this chapter. Each day of continued violation of this subsection constitutes a separate offense. In addition, if the improper transport of one or more tires was done from an identified motor vehicle, with the aid of an identified motor vehicle, or in connection with an identified motor vehicle, a traffic citation shall be issued against such vehicle for $50.00 for each offense of a tire or tires being transported in violation of this chapter. Furthermore, such traffic citation for improper dumping of tires, if unpaid, shall also constitute grounds for impoundment and/or immobilization of such vehicle as provided in section 11-40-27.

C. The improper transporting or dumping of a tire shall constitute a separate offense per tire and be punishable by a fine of $50.00 for each tire found improperly dumped. Each day of continued violation of this subsection constitutes a separate offense. In addition, if the improper transporting or dumping of one or more tires was done from an identified motor vehicle, with the aid of an identified motor vehicle, or in connection with an identified motor vehicle, a traffic citation shall be issued against such vehicle for $50.00 for each tire being transported in violation of this chapter. Furthermore, such traffic citation for improper transporting or dumping of tires, if unpaid, shall also constitute grounds for impoundment and/or immobilization of such vehicle as provided in section 11-40-27.
(Ord. No. 5334, § 1(15-57), 11-3-2009; Ord. No. 5475, § 1, 1-8-2013; Ord. No. 5558, §§ 9, 10, 9-16-2014; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-13. Injunctive relief.

In addition to, and cumulative of, all other penalties herein provided, the city shall have the right to seek injunctive relief for any violation of this chapter.
(Ord. No. 5334, § 1(15-58), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

Sec. 9-58-14. Tire disposal fund.

All funds received by the city pursuant to this chapter shall solely be used to pay for the administrative and operational costs resulting from the enforcement and implementation of this chapter.
(Ord. No. 5334, § 1(15-59), 11-3-2009; Ord. No. 5875, § 1, 7-11-2023)

CHAPTER 9-60. LITTER CONTROL*

Sections:

Sec. 9-60-1. Definitions.
Sec. 9-60-2. Throwing, dumping or depositing litter.
Sec. 9-60-3. Objects bearing name—Presumption of evidence.
Sec. 9-60-4. Evidence against driver of motor vehicle.
Sec. 9-60-5. Reporting litter from motor vehicle.
Sec. 9-60-6. Prosecution by peace officer or private citizen.
Sec. 9-60-7. Violations—Penalties.

Sec. 9-60-1. Definitions.

The following definitions shall apply to the interpretation and enforcement of this chapter:

Bulky refuse means discarded appliances such as stoves, refrigerators, water tanks, washing machines, discarded furniture, and inoperable motor vehicles, or similar bulky materials having a weight greater than 75 pounds and/or volume greater than 35 gallons.

Garbage includes putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

***State law reference—**Litter control, T.C.A. § 39-14-501 et seq.

Litter includes garbage, refuse, rubbish and all other waste materials.

Nuisance, for the purposes of this title and chapter, means a structure or building in such a state of deterioration or abandonment that it is a blighting influence on neighboring properties. The fact that buildings on neighboring properties are abandoned or deteriorated is not a defense.

Person means every natural person, firm, partnership, association, corporation, municipal corporation or public authority.

Refuse, as a comprehensive term, means any worthless leaving to be discarded, including but not limited to, garbage, bulky refuse, rubbish, and industrial and hazardous waste.

Rubbish includes all combustible and noncombustible waste materials, except garbage. The term shall include the residue from the burning of wood, coal, coke and other combustible materials, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery, dust and other similar materials.

Urban blight, for the purposes of this title and chapter, means a condition existing on property such as weeds, grass, undergrowth and uncut shrubbery without apparent or patent supervision by an owner or tenant so that the exterior of property is in disrepair, contains unduly amounts of high weeds, tall grass, unkept greenery and undergrowth about the premises creating an invitation to dust, obstructions to view, harbor for unauthorized persons or animals, or venom.
(Code 1985, § 16-491; Ord. No. 3442, § 1, 4-2-1985; Ord. No. 4610, §§ 1, 2, 9-15-1998)

Sec. 9-60-2. Throwing, dumping or depositing litter.

A. A person shall not throw, dump, deposit, or cause to be thrown, dumped, or deposited, litter or maintain a nuisance on property, improved or vacant or on any public parkway, pathway, street, or road, upon public parks, or recreation areas, or upon any other public property, except that property designated for that use.

B. No person shall allow high weeds or grass to accumulate so as to permit urban blight.
(Code 1985, § 16-492; Ord. No. 3442, § 1, 4-2-1985; Ord. No. 4610, § 3, 9-15-1998)

Sec. 9-60-3. Objects bearing name—Presumption of evidence.

If an object of litter is discovered, on another's property without his or her permission, on any public highway, street or road, upon public parks or recreation areas, or upon any other public property, except that property designated for that use, bearing a person's name, it shall be prima facie evidence that the person whose name appears on the object, threw, dumped, deposited or caused it to be thrown, dumped or deposited there.
(Code 1985, § 16-493; Ord. No. 3442, § 1, 4-2-1985)

Sec. 9-60-4. Evidence against driver of motor vehicle.

If the throwing, dumping or depositing of litter was done from a motor vehicle, except a motor bus, it shall be prima facie evidence that the throwing, dumping or depositing was done by the driver of the motor vehicle.
(Code 1985, § 16-494; Ord. No. 3442, § 1, 4-2-1985)

Sec. 9-60-5. Reporting litter from motor vehicle.

A. Any person, whether or not such person is a citizen of the city, who shall witness the throwing, dumping or depositing of litter from a motor vehicle onto any public highway, street or road, onto another's property without the owner's permission, onto public park or public recreation lands, or onto any other public property, except such as is designated for the throwing, dumping or depositing of litter, may report the date and time of day of the littering and the license plate registration number and state of registration to any state or local law enforcement authority.

B. The license plate registration number as recorded shall constitute prima facie evidence that the littering was done by the person to whom such motor vehicle is registered.

C. Any person so reporting a violation shall be required to appear as witness in any prosecutions resulting therefrom.
(Code 1985, § 16-495; Ord. No. 3442, § 1, 4-2-1985)

Sec. 9-60-6. Prosecution by peace officer or private citizen.

Prosecution for a violation of sections 9-60-1 through 9-60-5 may be initiated by a peace officer who witnessed an offense in violation of such sections, or who discovered an article bearing a person's name on the property of

another, or any public highway, street or road, upon a public park or recreation area, or upon any other public property, except that designated for that use, or by any private citizen, who witnessed an offense or discovered incriminating evidence, who is willing to make the initial charge and testify for the city, by having a summons issued by a court clerk.
(Code 1985, § 16-496; Ord. No. 3442, § 1, 4-2-1985; Ord. No. 4610, § 4, 9-15-1998)

Sec. 9-60-7. Violations—Penalties.

A. A person who violates a provision of this chapter shall be guilty of a misdemeanor and, upon conviction thereof, shall be punishable by a fine of not more than $50.00. Each violation is considered a separate offense and punishable as such.

B. Additionally, if the throwing, dumping or depositing of litter was done from an identified motor vehicle, with the aid of an identified motor vehicle, or in connection with an identified motor vehicle, a traffic citation shall be issued against such vehicle for $50.00. Furthermore, such traffic citation for throwing, dumping or depositing of litter from a motor vehicle, if unpaid, shall also constitute grounds for impoundment and/or immobilization of such vehicle as provided in section 11-40-27.
(Code 1985, § 16-497; Ord. No. 3442, § 1, 4-2-1985; Ord. No. 5474, § 1, 1-8-2013)

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CHAPTER 9-64. MOSQUITO CONTROL

Sections:

Article 1. General Provisions

Sec. 9-64-1. Treatment of collections of water—Generally.
Sec. 9-64-2. Treatment of collections of water—Methods.
Sec. 9-64-3. Action by city to prevent breeding.
Sec. 9-64-4. Rulings of health officer final—Authority of health officer to make rules and regulations.
Sec. 9-64-5. Right of entry to enforce chapter.
Sec. 9-64-6. Appropriation of funds for control of breeding.

Article 2. Fish Pools, Pools and Lakes

Sec. 9-64-7. Definitions.
Sec. 9-64-8. Purpose.
Sec. 9-64-9. Lakes to comply with state law.
Sec. 9-64-10. Inspection.
Sec. 9-64-11. Health officer to determine methods of treatment.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9-64-1. Treatment of collections of water—Generally.

A. It is unlawful for any owner of property occupied or vacant, agent of such owner, tenant, subtenant, or other occupant of any property or premises located within the city to have, keep, maintain, cause or permit upon such property or premises any collection of standing or flowing water in which mosquitoes breed or are likely to breed, unless such collection of water is treated so as effectually to prevent such breeding. This section shall apply to collections of water in ditches, pools, ponds, excavations, holes, depressions, open cesspools, privy vaults, fountains, cisterns, tanks, shallow wells, barrels, troughs, urns, cans, boxes, bottles, tubs, buckets, defective house roof gutters, old tires, old appliances, tanks of flush closets, or other similar water containers.

B. The natural presence of mosquito larvae in standing or running water shall be evidence that mosquitoes are breeding there and shall be deemed a violation of this section.

(Code 1967, § 32-47; Code 1985, § 16-301)

Sec. 9-64-2. Treatment of collections of water—Methods.

The method of treatment of any collection of water specified in section 9-64-1, directed toward the prevention of breeding of mosquitoes, shall be approved by the health officer and may be any one of the following:

A. *Screening.* Screening with wide netting of at least 16 meshes to the inch each way or with any other material which will effectually prevent the ingress or egress of mosquitoes;

B. *Emptying and cleaning.* Complete emptying every seven days of unscreened containers, together with their thorough drying or cleaning;

C. *Use of larvacides.* Using a larvacide approved and applied under the direction of the health officer;

D. *Oiling.* Covering completely the surface of the water with kerosene, petroleum, or paraffin oil once every seven days;

E. *Stocking with fish.* Cleaning and keeping sufficiently free of vegetable growth and other obstructions, and stocking with mosquito-destroying fish;

F. *Filling or draining.* Filling or draining to the satisfaction of the health officer, his or her agent or accredited representative;

G. *Destruction of breeding places.* Proper disposal, by removal or destruction, of tin cans, tin boxes, broken or empty bottles and similar articles likely to hold water.

(Code 1967, § 32-48; Code 1985, § 16-302)

Sec. 9-64-3. Action by city to prevent breeding.

A. Should any person responsible for conditions giving rise to the breeding of mosquitoes fail or refuse to take necessary measures to prevent the same, the health officer or his or her authorized agent is authorized to do so, and all necessary cost incurred by him or her for this purpose shall be a charge against the property owner or other person offending, as the case may be.

B. The health department may, if it deems necessary, immediately treat any collection of standing or flowing water in which mosquitoes are found to be breeding on public or private property to stop such breeding, at its own expense.

(Code 1967, § 32-49; Code 1985, § 16-303)

Sec. 9-64-4. Rulings of health officer final—Authority of health officer to make rules and regulations.

A. In determining when and where it is necessary to use the prevention methods set out in section 9-64-2, and in determining which of such methods shall be used, and in determining when proper and sufficient prevention methods have been used, the judgment of the health officer shall be final.

B. The health officer is authorized to pass such rules and regulations not inconsistent with the provisions of this chapter as may be proper in the administration and enforcement of this chapter.
(Code 1967, § 32-50; Code 1985, § 16-304)

Sec. 9-64-5. Right of entry to enforce chapter.

For the purpose of enforcing the provisions of this chapter, the health officer or his or her duly accredited agent, acting under his or her authority, may at all reasonable times enter in and upon any premises within the city.
(Code 1967, § 32-51; Code 1985, § 16-305)

Sec. 9-64-6. Appropriation of funds for control of breeding.

The city council shall appropriate, out of the general revenues of the city, sufficient funds to cover the costs of supervision for the control of disease-transmitting and pest mosquito breeding.
(Code 1967, § 32-52; Code 1985, § 16-306)

ARTICLE 2. FISH POOLS, POOLS AND LAKES

Sec. 9-64-7. Definitions.

For the purposes of this article, the following words and phrases all have the meanings set out below, unless the context indicates to the contrary.

Fish pool is a pool constructed of concrete or other impervious material to hold water, as frequently built in a garden, usually for the purpose of beautifying the premises where situated, and which contains less than one acre of water surface at the normal pool level, and whether used for the purpose of containing fish or lilies or other vegetation.

Lake is an impoundage of water of more than one acre of water surface at the normal pool level, whether it is for the purpose of beautification, recreation and fish, industrial mining, chemical waste, sewage treatment or other uses.

Pool is a collection of water containing less than one acre of water surface at the normal pool level and used for the purpose of beautification, recreation, industrial mining, chemical waste, sewage treatment or uses other than fish containment.
(Code 1967, § 32-58; Code 1985, § 16-316)

Sec. 9-64-8. Purpose.

It is the purpose of this article to regulate the maintenance of fish pools, pools and lakes and the impoundage of water which might provide breeding places for disease-transmitting and pest mosquitoes.
(Code 1967, § 32-59; Code 1985, § 16-317)

Sec. 9-64-9. Lakes to comply with state law.

Every lake, as defined in this article, shall be constructed and maintained in full compliance with T.C.A. §§ 68-7-101 through 68-7-109.
(Code 1967, § 32-62; Code 1985, § 16-318)

Sec. 9-64-10. Inspection.

The health officer, or his or her representative, may make an inspection of a fish pool, pool or lake at any time to investigate for mosquito breeding and as to health conditions, and shall have the authority to take such action as may be necessary to properly control mosquito breeding when found or to insure health conditions in and around such pool or lake.
(Code 1967, § 32-63; Code 1985, § 16-319)

Sec. 9-64-11. Health officer to determine methods of treatment.

The health officer shall have the final authority to decide as to what is the proper method of treatment of fish pools, pools and lakes to prevent mosquito breeding or to eliminate unhealthy conditions.
(Code 1967, § 32-64; Code 1985, § 16-320)

CHAPTER 9-68. NOISE CONTROL*

Sections:

Sec. 9-68-1. Loud, disturbing and unnecessary noises generally.
Sec. 9-68-2. Excessive noise near school, church, court or hospital.
Sec. 9-68-3. Creation of noise to attract attention to performance, show or sale.
Sec. 9-68-4. Playing of radios and phonographs.
Sec. 9-68-5. Yelling, shouting and singing.
Sec. 9-68-6. Building operations.
Sec. 9-68-7. Noisy animals and fowl.
Sec. 9-68-8. Blowing steam whistles.
Sec. 9-68-9. Noisy vehicles generally.
Sec. 9-68-10. Loading vehicles—Opening or destruction of bales or boxes.
Sec. 9-68-11. Loudspeakers or amplifiers on vehicles.
Sec. 9-68-12. Mufflers for steam and stationary internal combustion engines.
Sec. 9-68-13. Exemptions from chapter.

Sec. 9-68-1. Loud, disturbing and unnecessary noises generally.

The creating of any unreasonably loud, disturbing and unnecessary noise within the limits of the city is prohibited. Any noise of such character, intensity or duration as to be detrimental to the life or health of any individual, or in disturbance of the public peace and welfare is prohibited.
(Code 1967, § 24-1; Code 1985, § 22-1)

Sec. 9-68-2. Excessive noise near school, church, court or hospital.

The creation of any excessive noise on any street adjacent to any school, institution of learning, church or court while the same are in session, or adjacent to any hospital, which unreasonably interferes with the workings or sessions thereof is prohibited.
(Code 1967, § 24-2; Code 1985, § 22-2)

***Charter reference—**Authority to regulate and prohibit unnecessary noises, § 855.

State law reference—Excessive noise from motor vehicles, T.C.A. § 55-8-193.

Sec. 9-68-3. Creation of noise to attract attention to performance, show or sale.

The use of any drum, loudspeaker or other instrument or device for the purpose of attracting attention, by creation of noise, to any performance, show or sale or display of merchandise is prohibited.
(Code 1967, § 24-3; Code 1985, § 22-3)

Sec. 9-68-4. Playing of radios and phonographs.

A. The playing of any radio, phonograph, or any musical instrument or sound device, including, but not limited to, loudspeakers or other devices for reproduction or amplification of sound, either independently or in connection with motion pictures, radio or television, in such manner or with such volume, particularly during the hours between 11:00 p.m. and 7:00 a.m., as to annoy or disturb the quiet, comfort or repose of persons in my office, hospital or in any dwelling, hotel or other type of residence, or of any person in the vicinity is prohibited.

B. The use of playing of any radio or receiving device, at any time, on a public transportation bus or vehicle, which will interfere with, annoy, or disturb the quiet and comfort of any passenger, driver, or the use of any communications facilities installed in the bus or vehicle, unless such instrument is used with, or controlled by, an ear plug so as to make the sound audible only to the individual user, is prohibited.
(Code 1967, § 24-4; Code 1985, § 22-4; Ord. No. 1189, § 1, 2-8-1972)

Sec. 9-68-5. Yelling, shouting and singing.

Yelling, shouting, hooting, whistling or singing on the public streets, particularly between the hours of 11:00 p.m. and 7:00 a.m. or at any time or place so as to annoy or disturb the quiet, comfort or repose of persons in any hospital, dwelling, hotel or any other type of residence or of any persons in the vicinity is prohibited.
(Code 1967, § 24-5; Code 1985, § 22-5)

Sec. 9-68-6. Building operations.

The erection (including excavation), demolition, alteration or repair of any building or the excavation of streets and highways in any residential district or section, other than between the hours of 7:00 a.m. and 6:00 p.m. on weekdays and between the hours of 8:00 a.m. and 4:00 p.m. on Saturdays is prohibited, except in case of urgent necessity in the interest of public health and safety, and

then only with a permit from the chief building inspector, which permit may be granted for a period not to exceed 30 days while the emergency continues, if the chief building inspector determines that the public health and safety will not be impaired thereby and that loss or inconvenience will result to a party in interest if such permit is not granted.
(Code 1967, § 24-6; Code 1985, § 22-6; Ord. No. 5660, § 1, 10-3-2017)

Sec. 9-68-7. Noisy animals and fowl.

The keeping of any animal, bird or fowl which, by causing frequent or long continued noise, shall disturb the comfort or repose of any person in the vicinity is prohibited.
(Code 1967, § 24-7; Code 1985, § 22-7)

Sec. 9-68-8. Blowing steam whistles.

The blowing of any steam whistle attached to any stationary boiler except to give notice of the time to begin or stop work or as a warning of fire or danger, or upon request of proper city authorities, is prohibited.
(Code 1967, § 24-8; Code 1985, § 22-8)

Sec. 9-68-9. Noisy vehicles generally.

The use of any automobile, motorcycle, or other vehicle so out of repair, so loaded or in such manner as to cause loud and unnecessary grating, grinding, rattling or other noise is prohibited.
(Code 1967, § 24-9; Code 1985, § 22-9)

Sec. 9-68-10. Loading vehicles—Opening or destruction of bales or boxes.

The creation of any loud and excessive noise in connection with loading or unloading any vehicle or the opening and destruction of bales, boxes, crates and containers is prohibited.
(Code 1967, § 24-11; Code 1985, § 22-10)

Sec. 9-68-11. Loudspeakers or amplifiers on vehicles.

The use of mechanical loudspeakers or amplifiers on trucks or other moving or standing vehicles for advertising or other purposes is prohibited.
(Code 1967, § 24-12; Code 1985, § 22-11)

Sec. 9-68-12. Mufflers for steam and stationary internal combustion engines.

It is unlawful for any person to discharge into the open air the exhaust of any steam engine or stationary internal combustion engine, except through a muffler or other device which will effectively prevent loud or explosive noises therefrom.
(Code 1967, § 24-13; Code 1985, § 22-12)

Sec. 9-68-13. Exemptions from chapter.

None of the terms or prohibitions of this chapter shall apply to or be enforced against:

(1) Any vehicle of the city while engaged upon necessary public business;

(2) Excavations or repairs of bridges, streets, or highways by or on behalf of the city, county or state during the night or weekend, when the public welfare and convenience render it impossible to perform such work during the hours of 7:00 a.m. and 6:00 p.m. on weekdays and between the hours of 8:00 a.m. and 4:00 p.m. on Saturdays;

(3) The reasonable use of amplifiers or loudspeakers in the course of public addresses which are noncommercial in character;

(4) The use of sound trucks on behalf of candidates or questions during the hours of 10:00 a.m. through 9:00 p.m., on the day of any municipal, county, state or national general or special election, primary or referendum and during similar hours on the ten days immediately preceding such election, primary or referendum.

(Code 1967, § 24-14; Code 1985, § 22-13; Ord. No. 20, § 1, 9-12-1967; Ord. No. 5660, § 1, 10-3-2017)

CHAPTER 9-72. PERSONAL CARE HOMES*

Sections:

Sec. 9-72-1. Definitions.
Sec. 9-72-2. Permit to operate—Supervision of registration.
Sec. 9-72-3. Admission requirements.
Sec. 9-72-4 Staffing.
Sec. 9-72-5. Laundry services.
Sec. 9-72-6. Living/sleeping quarters.

***State law reference—**Regulation of health and related facilities, T.C.A. § 68-11-201 et seq.

Sec. 9-72-7. Nutritional requirements.
Sec. 9-72-8. Building and physical plant.
Sec. 9-72-9. Records.
Sec. 9-72-10. Removal of sick resident.
Sec. 9-72-11. Agency coordination.
Sec. 9-72-12. Personal health care home status at enactment of chapter.
Sec. 9-72-13. Rights of hearing, appeal and legal counsel.

Sec. 9-72-14. Rules and regulations.

Sec. 9-72-1. Definitions.

The following definitions shall apply to the interpretation and enforcement of this chapter:

Ambulatory/infirm person means those who, due to age or infirmity, are physically, medically, and/or mentally unable to satisfactorily care for themselves, but who do not necessarily need care provided by a licensed health care professional in custodial institutions, and for whom family type living can be made adequate to assure necessary protection and safety. Custodial institutions, as used herein, shall not be construed to include personal care homes.

Department means the health department.

Health officer means the health officer and director of the health department, or his or her designated representative or representatives.

Independently mobile means an individual who is physically and/or mentally capable of vacating the personal care home on his or her own power in case of emergency, including the capability to ascend or descend stairs that are present to the exit path. Residents who use canes, wheelchairs, or walkers are considered independently mobile as long as they do not require more than verbal or minimum assistance from another person to vacate and can do so in two minutes, or as required by local fire codes.

Owner/operator means and includes persons in possession and in control of property by virtue of lease-rental agreements; and as further set forth under the term "provider."

Personal care home means any premises operated for compensation in which food, shelter and personal assistance or supervision are provided for a period exceeding 24 consecutive hours for two or more independently mobile adults who are not related to the operator and who require assistance or supervision in such matters as dressing, bathing, diet, or medication prescribed for self-administration, but do not require hospitalization or care in a skilled nursing home or in intermediate care facilities. The state definition for "home for the aged" and "supportive living home" shall also be included in this category.

Personal care home permit means the permit to operate a personal care home and must be secured from the health department. This permit shall be issued only after the provider has complied with all health department rules and regulations necessary for issuance of such permit, which shall include building and occupancy permits, issued by the building official.

Provider means the owner, manager, operator, proprietor, or person in charge of a personal care home at any time during a 24-hour period.

Staff means those aides, cooks, homemakers, and other persons employed by the provider, to assist in providing personal health care services for all residents and clients in a personal care home.
(Code 1967, § 32-120; Code 1985, § 16-336; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-2. Permit to operate—Supervision of registration.

A. It is unlawful for any person to operate a personal care home as defined in this chapter without having first registered such establishment with, and received a permit and other certifications from, the health department.

B. An initial fee of $50.00 shall be paid to the health department by the owner, operator, or provider prior to issuance of such permit, and thereafter such permit to operate personal care homes must be renewed annually by the owner, operator, or provider at an annual fee of $50.00. All permits must be purchased prior to January 1 of the ensuing year. This permit is not transferable.

C. Supervision of registration of the personal care home shall be the responsibility of the health department.
(Code 1967, § 32-121; Code 1985, § 16-337; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-3. Admission requirements.

A. No proprietor or provider of personal care home services for adults shall allow any person to become a resident unless such person provides a certificate from a licensed physician. This certificate or form shall be provided by the health department and completed by a licensed physician before a person can enter as a resident in a personal care home. The health department is not required to provide the physician, but will provide assistance and direction to those seeking admission. Persons who are not independently mobile shall not be admitted to a personal care home. Any proposed resident referred by a mental health institution, mental health center, or a mental health facility for retarded individu-

als, or any agency responsible for rehabilitating persons involved in alcohol or drug abuse, must furnish a written assessment of his or her needs from that institution or agency, or qualified licensed clinical psychologist or psychiatrist before admission to a personal care home.

B. In cases of emergency admission, five working days from date of emergency admission will be allowed for acquisition of the certificate. Persons with levine tubes, gastronomy tubes, intravenous tubes, indwelling catheters, and persons with tracheotomies are specifically excluded from emergency admissions. "Emergency admission," as used herein, means whenever the state Department of Human Services is securing care for an ambulatory or independently mobile person within a 24-hour period when normal processing cannot be provided, as in the case of periods of extreme hot or cold weather, or destitution.
(Code 1967, § 32-122; Code 1985, § 16-338; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-4 Staffing.

A. The provider must be physically and mentally capable of providing needed services to the residents. Homes with nine or less residents shall require at least one staff person who is capable and responsive, to be physically present and available. Other staff shall be retained, as necessary, for laundry, food service, housekeeping, and maintenance requirements.

B. In homes with ten or more residents, the provider and/or staff shall be present in numbers to provide a minimum of 45 minutes of individual care service per day per resident, to all residents requiring these services.
(Code 1967, § 32-123; Code 1985, § 16-339; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-5. Laundry services.

Services for bed linen, towels, and personal clothing adequate for each resident must be provided at all times. Linen supply shall be sufficient to ensure complete bed linen change once per week minimum. Clean linen must be stored separate from soiled clothes or soiled linen.
(Code 1967, § 32-124; Code 1985, § 16-340; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-6. Living/sleeping quarters.

Bedrooms shall have a minimum of 80 square feet of floor space for each resident, and bedrooms for more than one person shall not contain more than four beds, or four residents. Bedrooms shall be equipped as required by the rules and regulations of the health department.
(Code 1967, § 32-125; Code 1985, § 16-341; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-7. Nutritional requirements.

Each home shall prepare wholesome, well balanced meals and the health department will provide nutritional education to assure that each staff person understands how to meet the special dietary needs of each resident. Kitchen employees of each home must receive this training at least two times per year. Persons who are registered dietitians, or who hold current nutritional education certificates, shall not be required to take the nutritional training required by the health department.
(Code 1967, § 32-126; Code 1985, § 16-342; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-8. Building and physical plant.

A. The provider shall be responsible for providing all required utilities. Heating and cooling shall be provided and maintained which will provide a temperature of not less than 70 degrees Fahrenheit, nor more than 85 degrees Fahrenheit. The home shall have an adequate supply of hot and cold or tempered water at each wash basin and bathtub/shower, kitchen sink, laundry equipment, and adequate hot and cold water to the dishwasher.

B. The building shall comply with all local, state and federal codes, designed for minimum risk from injuries and accidents. Fireplaces must be screened when in use. Floors, walls, ceilings and vents shall be in good repair in all parts of the home. All windows must be screened except those in which mechanical air conditioning units are installed. All parts of the building are to be kept clean by the provider, his or her staff or his or her agents. Safeguards must be taken at all times to minimize fire hazards associated with cigarette, cigar, or pipe smoking by providing metallic ashtrays, or the setting aside of smoking areas.

C. Individual telephone service, if provided, will be provided per written agreement between the provider and resident. All telephone areas shall provide numbers for fire department, police department, medical and ambulance service, and must be posted and easily readable by the elderly.

D. Food preparation areas shall comply with chapter 9-52.
(Code 1967, § 32-127; Code 1985, § 16-343; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-9. Records.

A. A record must be kept for each resident containing the name of his or her personal physician, social security number and next of kin, if known. This record should also include information on the individually required personal care services, including:

1. A list of all currently prescribed medication, updated at least quarterly;
2. Nearest relative or person to notify in an emergency, with current addresses;
3. An inventory of personal properties brought to the home by the resident; and
4. Fees charged and paid.

B. These records shall be accessible and available for review by the representative of the health department during routine inspections. Records not available on the premises of the personal care home within three days of the request during the inspection, shall be considered a violation of this section and this chapter.
(Code 1967, § 32-128; Code 1985, § 16-344; Ord. No. 3229, § 1, 8-3-1982; Ord. No. 4029, § 1, 4-23-1991)

Sec. 9-72-10. Removal of sick resident.

A. The provider shall make arrangement with a licensed physician/licensed hospital or licensed nursing home to transfer nonambulatory/nonindependently mobile residents who require skilled nursing care, intermediate nursing care, or more technical nursing or medical services.

B. When notified by the health department, the provider shall do so within ten days of such notification. Less time may be given by the health department, when, in the opinion of the health officer, a resident's life or health requires immediate medical attention. The provider must report these emergencies and imminent situations to the state Department of Human Services. The responsibility for the resident's care shall rest with the provider.
(Code 1967, § 32-130; Code 1985, § 16-345; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-11. Agency coordination.

The health department shall coordinate the administration of this chapter between itself and the fire services division, the bureau of construction code enforcement and the city and county office of planning and development and each shall be assigned special duties as follows:

A. *Health department.* The health department shall:

1. Make inspections at least quarterly to ascertain the sanitation level of the kitchen, the sanitation level of the residents' rooms, general health of the residents, and general compliance with this chapter. The results of this inspection shall be made available to the provider on forms provided by the health department;
2. Have the responsibility for notifying and confirming annual fire and building inspections, and be responsible for the coordination of plan review and approval, management of complaints and referrals, and the coordination of all required annual inspections, the institution of timely legal action, and the training of providers and staff who manage and operate personal care homes as provided in this chapter;
3. Coordinate its inspections with the department of public health, the state Department of Human Services, and the state Department of Mental Health and Mental Retardation, where applicable and appropriate.

B. *Division of fire services.* The division of fire services shall make inspections as necessary to assure fire safety codes are being enforced. An inspection of all personal care homes shall be made it least one time per year. The health department may request additional inspections with probable cause such as complaints or an observed hazard.

C. *City and county office of planning and development.* The city and county office of planning and development will review and process applications for zoning amendments in accordance with sections 6, 8, 9 or 14 of the Joint Ordinance/Resolution No. 3064, as amended, for residen-

tial homes for the aged, rooming houses, boarding homes, or group shelters which may be called personal care homes.

D. *Bureau of construction code enforcement.* The bureau of construction code enforcement will enforce zoning, electrical, plumbing and structural codes, as may be applicable by the provisions therein, including Joint Ordinance/Resolution No. 3064, section (9)(D)(2), paragraphs 1 and 2. New building, mechanical, and plumbing construction or remodeling of personal care homes shall have plans reviewed and approved by each appropriate department. Owners failing to obtain necessary approval from all departments shall be held liable and subject to citation, whether work had been started or completed.

(Code 1967, § 32-131; Code 1985, § 16-346; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-12. Personal health care home status at enactment of chapter.

Any personal care home in operation on August 31, 1982, shall have two years to come into compliance with standards. Conditions noted as imminent health or safety problems shall require immediate action. The foregoing shall not relieve the provider from complying with applicable zoning laws.

(Code 1967, § 32-132; Code 1985, § 16-347; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-13. Rights of hearing, appeal and legal counsel.

The health officer shall leave a report of his or her findings after each inspection of a personal care home. If violations are found, which, in the opinion of the health officer does not constitute an imminent or immediate health hazard, a report shall state a specified time in which such violations must be corrected. Upon reinspection, persons found in violation by the health officer or his or her representative, of this chapter shall be subject to suspension of permit, administrative hearing and/or court hearing. If the provider disagrees with the health officer's findings, the provider may request an administrative hearing. The provider must request the hearing within five days from the date of notification of a violation, and a hearing on the matter shall be held within 14 days from the date of such violation. The health officer or his or her designated representative will hear the provider's grievance. The provider may represent himself or herself, or may be represented by an attorney of his or her choosing. The decision of the health officer shall be final. Any provider aggrieved by action taken pursuant to this chapter shall have the right to appeal such decision as provided by law. If any violations are found which, in the opinion of the health officer constitutes an immediate or imminent health hazard, such violations shall be immediately corrected.

(Code 1967, § 32-133; Code 1985, § 16-348; Ord. No. 3229, § 1, 8-3-1982)

Sec. 9-72-14. Rules and regulations.

A. The health officer of the health department shall have the authority to establish rules and regulations governing good public health practices, and failure to comply with such instructions procedures shall be grounds for the suspension or revocation of the personal care home permit. Copies of the rules and regulations shall be supplied to personal care homes and operators and available to the public upon request.

B. The regulations for personal care homes, as defined in this chapter, which provide room, board and personal care assistance for mentally ill persons, shall comply with the licensure standards of the state Department of Mental Health and Mental Retardation for supportive living facilities. All other personal care homes, as defined in this chapter, shall comply with the rules of the state Department of Public Health, division of health care facilities for residential homes for the aged.

(Code 1967, § 32-134; Code 1985, § 16-349; Ord. No. 3229, § 1, 8-3-1982)

CHAPTER 9-76. QUASI-PUBLIC AND PRIVATE WATER SUPPLIES*

Sections:

Sec. 9-76-1.	Definitions.
Sec. 9-76-2.	Well digger's permit.
Sec. 9-76-3.	Permit to operate and maintain private supply.
Sec. 9-76-4.	Approval of plans and specifications for private supply.
Sec. 9-76-5.	Approval of plans and specifications for sewer work on property served by private supply.

***Charter references—**General authority relative to water, § 413; city-county water control board, §§ 413.1—413.6.

Sec. 9-76-6. Location, construction and operation of private supplies.
Sec. 9-76-7. Inspection of private supplies.
Sec. 9-76-8. Location, construction and operation of wells generally.
Sec. 9-76-9. Location of wells in street, alley or public place.
Sec. 9-76-10. Filling of abandoned or condemned wells.
Sec. 9-76-11. Approval of auxiliary intake.
Sec. 9-76-12. Connections with public supply generally.
Sec. 9-76-13. Equipment to prevent commingling with public supply.
Sec. 9-76-14. Independent piping system for nonpotable supply—Statement as to nonexistence of cross connections.
Sec. 9-76-15. Posting of signs where potential danger of contamination of a quasi-public supply exists.
Sec. 9-76-16. Limitation on use of water.
Sec. 9-76-17. Rules and regulations of health department.
Sec. 9-76-18. Chapter not to affect power of light, gas and water division.
Sec. 9-76-19. Installation of individual water meters on newly constructed residential rental units.

Sec. 9-76-1. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Abandoned well is any well that has been voluntarily abandoned for further use because of outliving its usefulness.

Auxiliary intake is any piping connection or device whereby water may be secured from a source other than that normally used.

Condemned well is any well which pollutes or contaminates or tends, in the judgment of the department of health, to pollute the water stratum and which cannot be corrected, in the judgment of the department of health, to prevent pollution or contamination.

Cross connection is any physical connection whereby a potable water system, whether public or private, is connected with another water supply either inside or outside of any building in such manner that a flow of water into the potable supply is possible, either through the manipulation of valves or because of ineffective check or back pressure valves, or for any other cause.

Light, gas and water division means the light, gas and water division of the city.

Potable water supply means any public, quasi-public or other water supply of a quality approved by the department of health as being safe for human consumption.

Private water supply means the source from which water is obtained and all structures, conduits and appurtenances by means of which the water is collected and treated, stored and delivered to the consumers.

Quasi-public water supply is any water supply used or made available by a person to his or her employees, tenants, members or guests for drinking, or, in connection with the manufacturing or handling of ice, foods, or drinks, such as: candy, ice cream, milk, ice, bottled drinks and any other or drink products. The source of a quasi-public water supply may be a private well or the city public water supply.

Shallow well is a well that is constructed to a depth shallower than the stratum of blue clay which is found just above the water bearing sands known as the Grenada formation. This stratum of blue clay in and adjacent to the city is usually intercepted at a depth of approximately 100 feet extends to a depth of from 200 to 300 feet.
(Code 1967, § 32-102; Code 1985, § 16-396)

Sec. 9-76-2. Well digger's permit.

No person shall engage in drilling, boring, digging or other constructing or repairing wells in the city without a permit from the department of health. Such permit shall be granted by the health department to any person upon application properly approved by the health officer, and such permit shall be in force and effect for one year from the date of its issuance. The health officer shall have the power and it shall be his or her duty to revoke any permit issued where it is made to appear that the provisions of this chapter have been violated by the person engaged in well construction. The holder of such permit shall, after such revocation, have the right of appeal to the city council.
(Code 1967, § 32-103; Code 1985, § 16-397)

Sec. 9-76-3. Permit to operate and maintain private supply.

A. No person shall operate or maintain a private water supply until a permit therefor has been issued by the department of health, which permit shall not be valid for longer than one year and may be renewed at the expiration thereof upon payment of the fees hereinafter

set out. All permits shall be in writing. Such permit may be revoked by the health officer upon the violation by the holder of any of the terms of this chapter, or in any emergency when, in the judgment of the health officer, the continued operation of the private water supply will be a public health menace. The holder of such permit, after such revocation, shall have the right of appeal to the city council.

B. The yearly permit to operate or maintain a private water supply shall not be issued until an inspection fee is paid each year to the department of health. A fee of $100.00 shall be paid by the owner of one private water supply well, whether shallow, deep, abandoned or condemned. An additional charge of $25.00 shall be paid for each additional well whether operating or not. The fee shall be due and payable on or before January 31 of each year.
(Code 1967, § 32-104; Code 1985, § 16-398; Ord. No. 352, § 1, 12-3-1968)

Sec. 9-76-4. Approval of plans and specifications for private supply.

Before work is commenced on the construction of any new well or private water supply, or any additions, alterations or changes, including cross connections, treatment, settling and storage tanks, aerators, wells, suction lines and any other part of such private water supply listed in any regulations adopted by the department of health, complete plans and specifications, accompanied by such pertinent data as may be required, shall be submitted, by the owner or his or her agent, to the department of health, and no part of the work shall be commenced until the department has given its written approval.
(Code 1967, § 32-105; Code 1985, § 16-399)

Sec. 9-76-5. Approval of plans and specifications for sewer work on property served by private supply.

Before any work is commenced on the construction of any sewers, sewage treatment plants, or any part of the sewerage system constructed underground, or any additions, alterations or major changes to an existing sewerage system on private property on which there is a private water supply, complete plans and specifications, accompanied by such pertinent data as may be required, shall be submitted by the owner or his or her agent to the department of health, and no part of the work shall be commenced until the department of health has given its written approval; provided that, this does not include changes and repairs to plumbing in buildings and above the ground which is controlled by the plumbing inspector of the city.
(Code 1967, § 32-106; Code 1985, § 16-400)

Sec. 9-76-6. Location, construction and operation of private supplies.

All private water supplies shall be properly located, constructed and operated, and be of an approved quality.
(Code 1967, § 32-107; Code 1985, § 16-401)

Sec. 9-76-7. Inspection of private supplies.

All private water supplies shall be open for inspection at all times by the health officer or the light, gas and water division.
(Code 1967, § 32-108; Code 1985, § 16-402)

Sec. 9-76-8. Location, construction and operation of wells generally.

A. All wells shall be located, constructed and operated in accordance with the rules and regulations adopted by the department of health, and the water shall be of a safe, sanitary quality.

B. No well shall be located close enough to any existing or proposed well of the light, gas and water division of the city to materially affect the static head of water from the underground strata of any such well or proposed well of the public supply.
(Code 1967, § 32-109; Code 1985, § 16-403)

Sec. 9-76-9. Location of wells in street, alley or public place.

A. No well shall be located in a street, alley or public place out a permit from the city council.

B. Any person making application for a permit to construct a well in any street, alley, or other public place shall be required, as a condition precedent to the issuance of such permit, to agree that if at any time subsequent to the construction of such well it shall become necessary for the city to use such street, alley, or other public place, for any public purpose, such person shall, within 90 days after the receipt of notice from the city, abandon, dismantle, and fill such well, at his or her own expense.
(Code 1967, § 32-110; Code 1985, § 16-404)

Sec. 9-76-10. Filling of abandoned or condemned wells.

The health department may order the owners to fill up any abandoned or condemned well.
(Code 1967, § 32-111; Code 1985, § 16-405)

Sec. 9-76-11. Approval of auxiliary intake.

No auxiliary intake for a potable water supply shall be made or permitted unless the source and use of the auxiliary supply, and the location and arrangement of the intake, shall be approved by the department of health.
(Code 1967, § 32-112; Code 1985, § 16-406)

Sec. 9-76-12. Connections with public supply generally.

A. It is unlawful for any person to cause a connection to be made or allow a connection to exist for any purpose whatever between the distribution system of the light, gas and water division, and any private water supply, unless the quality of such private water supply, and the interconnection of the two supplies, shall be approved, in writing, by the department of health.

B. It is unlawful for any engineer, plumber or other tradesman or workman, or any other person, to make any cross connection between the water supply of the light, gas and water division and any other water supply, or between any quasi-public water supply and any other water supply, unless written approval by the department of health has been given.

C. Whenever a cross connection between the light, gas and water division water supply and a private water supply has been made, the premises shall at all times be open for inspection by any agent or representative of the light, gas and water division, and of the health officer or of any officer or representative of the department of health, and, if on inspection, it is found that the city water supply might become contaminated through such cross connection because of some potential danger of contamination to the other water supply, then the light, gas and water division shall have the right to discontinue the city water service upon such premises upon written recommendation by the health officer that such discontinuance should be effected.
(Code 1967, § 32-113; Code 1985, § 16-407)

Sec. 9-76-13. Equipment to prevent commingling with public supply.

Whenever a cross connection may be made or now exists between the water supply of the light, gas and water division and any quasi-public water supply, such quasi-public water supply shall be equipped with gate valves, check valves and bleeder or test valves for the purpose of preventing the commingling of water, except as when desired, and to insure the means of immediate and complete separation during any possible emergency when commingling would not be approved. Such valve or valves must be installed by the owner of private supply in such a manner as to meet the approval of the department of health and the light, gas and water division.
(Code 1967, § 32-114; Code 1985, § 16-408)

Sec. 9-76-14. Independent piping system for nonpotable supply—Statement as to nonexistence of cross connections.

A. Whenever the water supply of the light, gas and water division or a quasi-public water supply is used for drinking and a nonpotable water supply is used for fire protection, industrial or other purposes, such nonpotable water supply shall be distributed through an independent piping system having no cross connection with the water supply of the light, gas and water division, or the quasi-public water supply, and shall not be rendered available for drinking or other personal or domestic uses.

B. Any person whose premises are supplied with water from the light, gas and water division, and who shall also have on the same premises a separate source of water supply that is nonpotable, but is circulated through a piping system, shall file with the light, gas and water division a statement of the nonexistence of cross connections.
(Code 1967, § 32-115; Code 1985, § 16-409)

Sec. 9-76-15. Posting of signs where potential danger of contamination of a quasi-public supply exists.

Whenever the potential danger of contamination of a quasi-public water supply is sufficient to be considered an emergency by the health officer, he or she shall have the right to post signs at all faucets, fountains or other places where people might drink, or prohibit the use of this water for drinking or in connection with the prepa-

ration of any ice, food or drink, until such time as the necessary protection changes are made and approved by the health department.
(Code 1967, § 32-116; Code 1985, § 16-410)

Sec. 9-76-16. Limitation on use of water.

The use of all water pumped by private or quasi-public water supplies for industrial and drinking purposes shall be limited to reasonable use. The term "reasonable use" shall be defined as that use of water which is ordinarily required by industries, firms and individuals in the usual operation of their business. It shall also include such water as may be reasonably necessary for cooling, refrigeration and air conditioning, subject however, to the limitations and conditions herein mentioned. The amount of water reasonably necessary for the purposes mentioned herein may be determined by the effect the use of the same, when combined with similar uses by others, may have on the available water supply and on the sewerage system available for the carrying off of waste water. In all cases where it will be feasible for private water supplies to reuse water for cooling through the use of cooling towers, evaporative condensers or some other such device, the health department may require the use of some such device in order to conserve the amount of water taken from the water bearing strata from which the public drinking water supply is obtained and to limit, so far as practicable, the amount of waste water which must be handled by the public sewer system. The city engineer may require the use of cooling towers, evaporative condensers or some other such device in all such conditions existing prior to the passage of this chapter in order to conserve the amount of water taken and to limit the amount of waste water handled by the public sewer system. In any and all cases that might arise due to the drilling of new wells in which the existing public sanitary or storm sewer available is too small to handle the additional load, then such waste water must be handled in some other manner satisfactory to the city engineer.
(Code 1967, § 32-117; Code 1985, § 16-411)

Sec. 9-76-17. Rules and regulations of health department.

The health department may make such rules and regulations, not inconsistent with this chapter or with the constitution or laws of the state, as may from time to time be necessary to carry out the purpose of this chapter.
(Code 1967, § 32-118; Code 1985, § 16-412)

Sec. 9-76-18. Chapter not to affect power of light, gas and water division.

Nothing in this chapter shall be construed as affecting the duty and power of the light, gas and water division of protecting the purity of the water supply of the city.
(Code 1967, § 32-119; Code 1985, § 16-413)

Sec. 9-76-19. Installation of individual water meters on newly constructed residential rental units.

A. *Definitions*. For purposes of this section, the following definitions shall apply:

Apartment means a residential rental unit consisting of one or more rooms with a private bath and kitchen facilities comprising an independent, self-contained residential unit in a building.

Apartment complex means two or more apartments in one or more buildings that are owned by the same owner, located on the same lot or tract, and managed by the same owner, agent or management company.

Condominium means the ownership of single units in a multiple unit structure or structures with common elements.

Master meter means a utility owned meter that measures and totalizes the volume of water flowing from the water distribution system into an apartment complex or newly constructed condominium.

Newly constructed condominium means:

1. Any structure for which a building permit for construction of a condominium is issued on or after July 1, 2014; or

2. Any existing apartment that is converted into a condominium on or after July 1, 2014.

B. The developer or condominium owner shall provide for individually metered water service to each unit in a newly constructed condominium. A master meter shall not satisfy the requirement in this subsection (B).

C. If the owner of an apartment complex fails to pay any water bill issued to the owner by MLGW, then MLGW shall notify the local code enforcement entity of the impending cut-off simultaneously with the issuance of the utility's notice of cut-off to the apartment owner.

D. Upon receipt of notification as provided in subsection (C) above, the local code enforcement agency shall inspect the property and take such additional action as may be permitted by federal, state and local law.
(Ord. No. 5545, § 1, 4-1-2014)

Editor's note—At the discretion of the editor, Ord. No. 5545, § 1, adopted Apr. 1, 2014, has been codified as herein set out. Said provisions did not expressly amend the Code.

CHAPTER 9-80. RAT CONTROL

Sections:

Article 1. General Provisions

Sec. 9-80-1. Definitions.
Sec. 9-80-2. Storage of chicken and animal feed.
Sec. 9-80-3. Accumulations of garbage, rubbish or trash providing food or harborage for rats.
Sec. 9-80-4. Accumulations of lumber, boxes, barrels, etc.
Sec. 9-80-5. Exterior property areas—Extermination of insects, rodents, and vermin.
Sec. 9-80-6. Interior structures—Extermination of insects, rodents, and vermin.

Article 2. Business Buildings and Multifamily Dwellings

Sec. 9-80-7. Buildings to be ratproof and rat-free.
Sec. 9-80-8. Inspections.
Sec. 9-80-9. Duty of owner to ratproof upon notice.
Sec. 9-80-10. Duty of occupant to free premises of rats or make repairs upon notice.
Sec. 9-80-11. Cement floors may be required.
Sec. 9-80-12. Removal of ratproofing—Failure to close openings.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9-80-1. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Business building means any structure, whether public or private, that is adapted for occupancy for transaction of business, for rendering of professional service, for amusement, for the display, sale or storage of goods, wares, or merchandise, or for the performance of work or labor, including hotels, rooming houses, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories, and all outhouses, sheds, barns and other structures on premises used for business purposes.

Multifamily dwelling/apartment house means any building or portion thereof used as a multiple dwelling for the purpose of providing two or more separate dwelling units which may share means of egress and other essential facilities.

Occupant means the individual, partnership or corporation that has the use of or occupies any business building or multifamily dwelling or part or fraction thereof, whether the actual owner or tenant. In the case of vacant business buildings or any vacant portion of a business building or multifamily dwelling, the owner, agent or other person having custody of the building shall have the responsibilities of an occupant of a building.

Owner means the actual owner of a business building, multifamily dwelling/apartment house, single-family dwelling/dwelling unit, or townhouse, whether individual, partnership or corporation, or the agent of the building or other person having custody of the building or to whom rent is paid.

Rat harborage means any condition which provides shelter or protection for rats, thus favoring their multiplication and continued existence in, under or outside of a structure of any kind.

Rat-stoppage or *ratproofing* apply to a form of ratproofing to prevent the ingress of rats into buildings from the exterior or from one building to another. It consists essentially of the closing of all openings in the exterior walls, ground or first floors, basements, roofs and foundations, that may be reached by rats from the ground, by climbing or by burrowing, with material impervious to rat gnawing.

Single-family dwelling/dwelling unit means a single unit providing complete, independent living facilities for one or more persons including permanent provisions for living, sleeping, eating, cooking and sanitation.

Townhouse is a single-family dwelling unit constructed in a series or group of attached units with property lines separating such units.
(Code 1967, § 32-77; Code 1985, § 16-361; Ord. No. 3436, § 1(1—5), 2-19-1985)

Sec. 9-80-2. Storage of chicken and animal feed.

All food and feed kept within the city for feeding chickens, cows, pigs, horses and other animals shall be kept and stored in rat-free and ratproof containers, compartments or rooms, unless kept in a ratproof building.
(Code 1967, § 32-78; Code 1985, § 16-362)

Sec. 9-80-3. Accumulations of garbage, rubbish or trash providing food or harborage for rats.

It is unlawful for any person to place, leave, dump or permit to accumulate any old appliances, demolition materials, garbage, rubbish or trash in any building or premises, improved or vacant, in the city so that same shall or may afford food or harborage for rats.
(Code 1967, § 32-79; Code 1985, § 16-363; Ord. No. 387, § 2, 1-12-1971)

Sec. 9-80-4. Accumulations of lumber, boxes, barrels, etc.

It is unlawful for any person to permit to accumulate on premises, improved or vacant, any lumber, boxes, barrels, bricks, stones or similar materials, unless the same are placed on open racks that are elevated not less than 18 inches above the ground, and evenly piled or stacked so that these materials will not afford harborage for rats.
(Code 1967, § 32-80; Code 1985, § 16-364)

Sec. 9-80-5. Exterior property areas—Extermination of insects, rodents, and vermin.

Every owner of a dwelling or multifamily dwelling shall be responsible for the extermination of insects, rodents, vermin, or other pests in all exterior areas of the premises, except that the occupant shall be responsible for such extermination in the exterior areas of the premises of a single-family dwelling. Whenever infestation exists in the shared or public parts of the premises of other than a single-family dwelling, extermination shall be the responsibility of the owner.
(Code 1985, § 16-365; Ord. No. 3436, § 1(6), 2-19-1985)

Sec. 9-80-6. Interior structures—Extermination of insects, rodents, and vermin.

A. Buildings used for human occupancy shall be kept free from insect and rodent infestation, and where insects or rodents are found, they shall be promptly exterminated by the owner by acceptable processes which will not be injurious to human health. After extermination, proper precautions shall be taken to prevent reinfestation.

B. Every owner of a dwelling or multifamily dwelling shall be responsible for the extermination of insects, rodents, vermin, or other pests in the shared or public parts of the structure.

C. The occupant of a single-family dwelling unit shall be responsible for such extermination, excluding termites, within the unit occupied by the occupant. However, the owner shall be responsible for such extermination within each unit of a multifamily dwelling.

D. Notwithstanding the foregoing provisions, whenever infestation of rodents is caused by failure of the owner to maintain any dwelling or multifamily dwelling in a rodent-proof condition, extermination of such rodents shall be the responsibility of the owner.
(Code 1985, § 16-366; Ord. No. 3436, § 1(6), 2-19-1985)

ARTICLE 2. BUSINESS BUILDINGS AND MULTIFAMILY DWELLINGS

Sec. 9-80-7. Buildings to be ratproof and rat-free.

A. All business buildings or multifamily dwellings in the city shall be ratproofed, freed of rats, and maintained in a ratproof and rat-free condition under the direction and supervision of the health officer.

B. It is unlawful to erect any business building or multifamily dwelling in the city unless the same is equipped with ratproofing.

C. The occupants of all ratproofed business buildings or multifamily dwellings are required to maintain the premises in a ratproof and rat-free condition and to repair all breaks or leaks that may thereafter occur.
(Code 1967, § 32-86; Code 1985, § 16-376)

Sec. 9-80-8. Inspections.

The health officer is empowered to make such unannounced inspections of the interior and exterior of business buildings or multifamily dwellings as, in his or her opinion, may be necessary to determine full compliance with this chapter. The health officer shall make periodic inspections of all rat-stopped buildings to determine evidence of rat infestation and the existence of new breaks or leaks and when any evidence is found indicating the presence of rats the health officer shall serve the occupants with notices or orders to abate the conditions found.
(Code 1967, § 32-87; Code 1985, § 16-377)

Sec. 9-80-9. Duty of owner to ratproof upon notice.

A. Upon receipt of written notice from the health officer, the owner of any business building or multifamily dwelling specified therein shall take immediate measures for ratproofing the building, and unless such work has been completed in the time specified in the written notice, in no event to be less than 15 days, or within the time to which a written extension may have been granted by the health officer, then the owner shall be guilty of a misdemeanor.

B. If the owner fails to comply with such written notice or extension, then the health officer is authorized and directed to take such action as may be necessary to completely ratproof the building at the expense of the owner, and the health officer shall submit bills for the costs thereof to the owner of the building, and if the same are not paid, the health officer shall certify the amount due from the owner to the city attorney, and the city attorney shall bring suit to collect the same. The expense thereof shall include the cost of labor, materials, and equipment necessary for ratproofing and the bills for the same may be rendered monthly or upon completion of work.
(Code 1967, § 32-88; Code 1985, § 16-378)

Sec. 9-80-10. Duty of occupant to free premises of rats or make repairs upon notice.

Whenever the health officer notifies, in writing, the occupant of a business building or multifamily dwelling theretofore ratproofed that there is evidence of rat infestation of the building, or that the ratproofing of the building is in need of repair, the occupant shall immediately institute appropriate measures for freeing the premises of all rats and making such repairs. Unless suitable measures for freeing the building of rats are instituted within three days after the receipt of notice and unless continuously maintained in a satisfactory manner until the building is free of rats, the health officer is authorized and directed to free the building of rats and make the necessary repairs at the expense of occupant thereof, and the health officer shall submit bills for the costs thereof to the occupant of the building, and if the same are not paid the health officer shall certify the amount due from the occupant to the city attorney, and the city attorney shall bring suit to collect the same. The expense thereof shall include the costs of labor, materials and equipment

necessary for eradication measures and to repair the ratproofing and the bills for the same may be rendered monthly or upon completion of the work.
(Code 1967, § 32-89; Code 1985, § 16-379)

Sec. 9-80-11. Cement floors may be required.

Whenever conditions inside or under business buildings or multifamily dwellings provide such extensive harborage for rats that the health officer deems it necessary to eliminate such harborage, he or she may require the owner to install suitable cement floors in basements or to replace wooden first or ground floors or require the owner to correct such other interior rat harborage as may be necessary in order to facilitate the eradication of rats in a reasonable time and thereby to reduce the cost thereof.
(Code 1967, § 32-90; Code 1985, § 16-380)

Sec. 9-80-12. Removal of ratproofing—Failure to close openings.

It is unlawful for the occupant, owner, contractor, public utility company, plumber or any other person to remove ratproofing from any business building or multifamily dwelling for any purpose and fail to restore the same in a satisfactory condition or to make any new openings that are not closed or sealed against the entrance of rats.
(Code 1967, § 32-91; Code 1985, § 16-381)

CHAPTER 9-84. SELF-SERVICE GASOLINE STATIONS

Sections:

Sec. 9-84-1. Compliance required—Attendant's duties—No smoking restrictions.
Sec. 9-84-2. Customers authorized to dispense flammable and combustible liquids into approved containers only.
Sec. 9-84-3. Required equipment.
Sec. 9-84-4. Coin-operated vending devices—Use of automatic shutoff nozzle with hold-open latch.
Sec. 9-84-5. Application of chapter.

Sec. 9-84-1. Compliance required—Attendant's duties—No smoking restrictions.

A. No customer or person other than the owner, manager or employed attendant shall dispense or be permitted to dispense gasoline or other Class 1 flammable liquid, as defined in the National Fire Protection Association Standard No. 30, at service stations or garages, or from pumps or devices from which the public is served, except in accordance with the provisions, conditions, limitations and instructions hereinafter provided.

B. Any such establishment permitting the dispensing of gasoline or other flammable liquid by customers or by any person other than the owner, manager or employed attendant, shall be under the control and supervision of no less than one employed attendant on duty at all times while such establishment is open to the public.

C. Such attendant's primary function shall be supervising the dispensing of gasoline and similar liquids at such establishments, collecting therefor, and maintaining the premises in safe condition.

D. The attendants shall constantly remain within the confines of such service stations and in a position to be in full view at all times of every portion of such station where gasoline or similar liquid is dispensed.

E. Such attendants shall refuse service to any customer who is smoking or who appears, for any reason, to be unable or incompetent to participate in the dispensing of gasoline.

F. Such attendants shall be thoroughly instructed in the operation of all equipment of such stations, including the pumps, fire extinguishers and emergency cutoff switches, and shall be thoroughly instructed concerning safety regulations for dispensing gasoline and similar flammable liquids.

G. Such attendants must enforce no-smoking restrictions and require that customers shut off their engines and follow safe practices generally.

H. 1. Unmanned self-service stations shall be permitted, subject to the following conditions:

a. Listed dispensing devices shall be used. (NFPA 30A, section 9-5.2).

b. Emergency controls shall comply with Standard Fire Code, 1994, section 907.4.6.

c. Operating instructions shall be conspicuously posted in the dispensing area and shall include location of emergency controls and a requirement that the user must stay outside of his or her vehicle, in view of the fueling nozzle during dispensing (NFPA 30A, section 9-5.4).

d. Emergency instructions shall be conspicuously posted in the dispenser area incorporating the following or equivalent wording. (NFPA 30A, section 9-5.5):

In case of fire or spill:

Use emergency stop button

Report accident by calling 911 on the phone

Report location.

e. A listed, automatic-closing type hose nozzle valve with latch-open device shall be provided. The system shall include listed equipment with a feature that causes or requires the closing of the hose nozzle valve before the product flow can resume or before the hose nozzle valve can be replaced in its normal position in the dispenser (NFPA 30A, section 9-5.6).

f. A telephone or other approved, clearly identified means to notify the fire department shall be provided on the site in a location approved by the authority having jurisdiction. (NFPA 30A, section 9-5.7) This means of notification shall be monitored by an approved central station and comply with the requirements of NFPA 71.

g. Fire suppression equipment shall be monitored by an approved central station. All dispensing of fuel and filling of tanks shall be prevented, immediately, when the central station monitoring is out-of-service for any reason.

h. The maximum gallonage per vehicle at fleet refueling operations shall not exceed 50 gallons of Class IB liquids (gasoline) per transaction or 250 gallons of Class II liquids (diesel) per transaction. Total gallonage per vehicle per day shall be limited to two transactions per day.

i. Card operated and similar non-monetary vending devices may be used for dispensing Class IB and III liquids at fleet refueling facilities.

2. Source of ignition.

a. Smoking materials, including matches and lighters shall not be used within 20 feet of areas used for fueling, servicing fuel systems for internal combustion engines, or receiving or dispensing of Class I liquids (NFPA 30A, section 9-7).

b. Conspicuous and legible signs prohibiting smoking shall be posted within sight of the customer being served (NFPA 30A, section 9-7).

c. The motors of all equipment being fueled shall be shut off during the fueling operations except for emergency generators, pump, etc., where continuing operation is essential (NFPA 30A, section 9-7).

3. Fire control.

a. Automatic fire suppression systems shall be installed in accordance with appropriate NFPA standards, manufacturers instructions, and the listing requirements of the systems. (NFPA 30A, section 9-8.1) This system shall be monitored by an approved central station and monitoring shall comply with NFPA 71.

b. The fire suppression systems shall provide complete coverage for the hazard including spillage under vehicles.

4. Signs. Warning signs shall be conspicuously posted in the dispensing area incorporating the following or equivalent wording. (NFPA 30A, section 9-9):

Warning

It is unlawful and dangerous to dispense

gasoline into unapproved containers.

No smoking.

Stop motor.

(Code 1967, § 17-91; Code 1985, § 14-71; Ord. No. 745, § 1, 7-28-1970; Ord. No. 3291, § 1, 3-1-1983; Ord. No. 4408, § 1, 6-4-1996; Ord. No. 4766, §§ 1—3, 5-2-2000)

Sec. 9-84-2. Customers authorized to dispense flammable and combustible liquids into approved containers only.

The attendant shall be responsible to insure that the dispensing of flammable or combustible liquids are into containers authorized under the laws of the city. No sale of flammable or combustible liquid shall be made in

containers unless such containers are clearly and permanently marked with the name of the product contained therein.
(Code 1967, § 17-92; Code 1985, § 14-72; Ord. No. 745, § 2, 7-28-1970; Ord. No. 3271, § 1, 3-1-1983)

Sec. 9-84-3. Required equipment.

A clearly identified and easily accessible switch(es) or a circuit breaker(s) shall be provided at a prominent location remote from dispensing devices, including remote pumping systems, to shut off the power to all dispensing devices in event of an emergency. Fire extinguishers must be located next to the emergency cutoff switches and as otherwise required by law.
(Code 1967, § 17-93; Code 1985, § 14-73; Ord. No. 745, § 3, 7-28-1970)

Sec. 9-84-4. Coin-operated vending devices—Use of automatic shutoff nozzle with hold-open latch.

A. Except as authorized herein, all coin-operated, card-operated and similar type automatic customer-operated vending devices for the dispensing of gasoline or other flammable liquids are prohibited.

B. The use of automatic shutoff nozzles with hold-open latches is prohibited where the dispensing of gasoline or other flammable liquids to the tanks of motor vehicles is performed by anyone other than a regularly designated approved employed attendant of the service station, or an individual holding a valid and current driver's license. The owner or operator of the self-service station or center, or his or her representative, shall inspect daily the hold-open latches of the nozzles to insure that they are in proper operating order.
(Code 1967, § 17-94; Code 1985, § 14-74; Ord. No. 745, § 4, 7-28-1970; Ord. No. 2856, §§ 1, 2, 4-17-1979)

Sec. 9-84-5. Application of chapter.

Provisions of this chapter are fully applicable notwithstanding any provision to the contrary which may appear elsewhere in this code.
(Code 1967, § 17-95; Code 1985, § 14-75; Ord. No. 745, § 5, 7-28-1970)

CHAPTER 9-88. SMOKING*

Sections:

Sec. 9-88-1. Definitions.
Sec. 9-88-2. Areas where smoking is prohibited.
Sec. 9-88-3. Exception.
Sec. 9-88-4. Notice requirements.
Sec. 9-88-5. Violations—Penalties.
Sec. 9-88-6. Injunction.

Sec. 9-88-1. Definitions.

As used in this chapter:

Restaurant means any eating place which is open to the public, having a seating capacity of 50 individuals or more.

Smoking includes carrying a lighted cigar, cigarette, cigarillo, pipe, or any other lighted smoking material and/or equipment.
(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(a); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

Sec. 9-88-2. Areas where smoking is prohibited.

Smoking in certain enclosed areas has been determined to be injurious to human health, to constitute a source annoyance and discomfort to nonsmokers, and to be a public nuisance. Therefore:

A. Smoking shall be unlawful and prohibited in:

1. All public elevators;
2. All Memphis Area Transit Authority buses;
3. The Mid-South Coliseum Arena (but allowed in the concourses and lobbies);
4. Dixon-Myers Hall, the Auditorium South Hall, and the Auditorium stage area (but allowed in the lobbies of such facilities);
5. All rooms in the Cook Convention Center designated by its management as nonsmoking meeting rooms;
6. Any theater, hall, hotel, public building, store, warehouse, factory, or on the premises of any establishment, public conveyance or anywhere that smoking is danger-

***State law references—**Local ordinances relating tobacco products, T.C.A. § 39-17-1551; smoking in public places, T.C.A. § 39-17-1801 et seq.

ous, provided signs of a suitable size are posted in such places where they can be seen;

7. All publicly or privately owned restaurants or other eating establishments, as defined herein, except that this prohibition shall not apply to any such eating establishment which maintains a nonsmoking area adequate to meet demand and which informs all patrons that a nonsmoking area is provided. At the request of the patron, the patron shall be seated in the nonsmoking area. This prohibition shall not apply to any rooms while being used for private functions. Notwithstanding the provisions of this subdivision, any owner or person in charge of a business activity governed may designate the restaurant as a nonsmoking area in its entirety;

8. All enclosed areas open to the public in any shopping area of a retail merchandising store, including grocery stores, having more than five employees; however, nothing herein shall prevent areas other than shopping areas from being established for smoking and nonsmoking employees and/or patrons by posting proper signs.

B. Nonsmoking areas shall be designated by the person in charge of all hospital lobbies and waiting rooms. After such designation, smoking is unlawful and prohibited in such areas.

Both the places described in subsection A of this section and the areas designated as nonsmoking areas pursuant to subsection B of this section shall henceforth be referred to as "nonsmoking areas."

(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(b); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

Sec. 9-88-3. Exception.

This chapter is not intended to regulate smoking in retail stores whose sales consist principally of tobacco or tobacco-related product sales.

(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(c); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

Sec. 9-88-4. Notice requirements.

The proprietor or other person in charge of any of the places or areas described in section 9-88-2 shall post and maintain conspicuous signs in all nonsmoking areas, advising the public that smoking is prohibited therein, describing generally the perimeters of the nonsmoking area, and stating the penalty for violation of the prohibition in language similar to the following:

NO SMOKING
(general description of nonsmoking area)
Memphis Code Chapter 9-88
UP TO $50.00 FINE

(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(d); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

Sec. 9-88-5. Violations—Penalties.

Any person or entity who fails to post and maintain the signs required by this chapter is guilty of a misdemeanor punishable by a fine of up to $50.00 per required sign for each day during which a required sign is either not posted or not maintained. Any person who smokes or carries a lighted cigar, cigarette, cigarillo, pipe or any other lighted smoking material and/or equipment in a nonsmoking area is guilty of misdemeanor punishable as provided in section 1-24-1 of this code.

(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(e); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

Sec. 9-88-6. Injunction.

The director of the city and county health department, the director of the city police services division, the director of the city fire services division, or any adversely affected party may institute an action to enjoin repeated violations of this section in any court of competent jurisdiction.

(Code 1967, §§ 17-13, 22-61; Code 1985, § 20-25(f); Ord. No. 2852, § 1, 4-3-1979; Ord. No. 3517, § 1(1)—(4), 2-11-1986)

CHAPTER 9-92. SWIMMING POOLS*

Sections:

Sec. 9-92-1. Definitions.

***State law reference—**Hotel, Food Service and Public Swimming Pool Inspection Act of 1985, T.C.A. § 68-14-301 et seq.

Sec. 9-92-2. Permit.
Sec. 9-92-3. Approval of plans and specifications.
Sec. 9-92-4. Design of pool area.
Sec. 9-92-5. Water requirements generally—Recirculation system.
Sec. 9-92-6. Disinfecting agent.
Sec. 9-92-7. Gaseous chlorine equipment.
Sec. 9-92-8. Dressing rooms—Maintenance of premises.
Sec. 9-92-9. Toilet facilities.
Sec. 9-92-10. Lighting system.
Sec. 9-92-11. Drinking water.
Sec. 9-92-12. Safety of bathers generally.
Sec. 9-92-13. Attendants.
Sec. 9-92-14. Diseased persons not to use pool—Spitting and spouting water prohibited.
Sec. 9-92-15. Common use of suits and towels.
Sec. 9-92-16. Records and reports.
Sec. 9-92-17. Rules and regulations of health department.
Sec. 9-92-18. Publication of grades of sanitary condition.

Sec. 9-92-1. Definitions.

A. The term "public swimming pool," as used in this chapter, means any body of water used for public or semipublic swimming or recreative bathing, which is of artificial or semiartificial construction, including all appurtenances concerning its use, whether operated for the public in general or for a portion of the public, as members of clubs, associations or other organizations.

B. Other terms used in this chapter shall have the meanings usually accorded to them by the health department of this and other cities regulating swimming pools.
(Code 1967, § 31-78; Code 1985, § 16-426)

Sec. 9-92-2. Permit.

A. No person shall operate or maintain a public swimming pool until a permit therefor has been issued by the health department, which permit shall not be valid for longer than one year. A new permit shall be secured at the first of each year or season of operation. All permits shall be in writing and shall state the conditions under which operation shall be maintained and the term for which the permit is allowed.

B. Before a permit is issued by the health department, an annual permit fee of $150.00 shall be paid to the city and county health department. Such fee shall be due on January 1 of each calendar year and shall be paid by January 31.

C. Any permit granted by the health department under the provisions of this section may be revoked by the health department, acting through the health officer, for failure to comply with any of the provisions of this chapter, or whenever, in the opinion of the health officer the further operation under such permit becomes a menace to the health and safety of bathers; provided that, the holder of any permit which has been revoked, feeling aggrieved at the action of the health officer, shall have the right to appeal to the city council and have tried before the council the question of the legality or reasonableness of the action of the health officer. No such appeal shall entitle the continued operation of the pool pending the action of the city council.
(Code 1967, § 31-79; Code 1985, § 16-427; Ord. No. 350, § 1, 12-31-1968; Ord. No. 2956, § 1(1), (2), 12-11-1979)

Sec. 9-92-3. Approval of plans and specifications.

No person shall begin construction of a public swimming pool or substantially alter or reconstruct any such swimming pool, unless plans and specifications therefor have been submitted to and approved by the health department. Such plans and specifications shall be accompanied by supporting data, such as shop drawings of equipment, fittings, skimmers, filters, disinfectant feeders, pump rating curves, etc. The plans shall be prepared by an architect or engineer licensed to practice in the state.
(Code 1967, § 31-80; Code 1985, § 16-428)

Sec. 9-92-4. Design of pool area.

Each public swimming pool area shall be designed in such a manner as to permit the installation of all equipment necessary for the proper operation of same, and so as to give the proper routing and segregation of bathers and spectators.
(Code 1967, § 31-81; Code 1985, § 16-429)

Sec. 9-92-5. Water requirements generally—Recirculation system.

A. No natural body of water which contains sewage or other waste, rendering it dangerous to public health, shall be used as a public swimming pool.

B. Every public swimming pool shall be provided with a sufficient quantity of fresh water which meets the drinking water standards of the health department as to physical, bacteriological and chemical quality. The water

shall show an alkaline reaction all times when the pool is in use. Frequent tests shall be made to insure the water having an alkaline reaction. At all times when the pool is in use, the water shall be sufficiently clear to permit the entire bottom of the pool to be clearly visible from the walkways.

C. A complete recirculating system for swimming pools consists of circulating pumps, chemical dosing equipment (alum and soda ash) or surge tank, float valve control on water supply, pump strainer, chlorinator, brominator, flow meters, pressure gauges, piping connections to inlets and outlets.
(Code 1967, § 31-82; Code 1985, § 16-430)

Sec. 9-92-6. Disinfecting agent.

Some means of disinfecting the water in a public swimming pool shall be used which provides a residual of a disinfecting agent in the pool water.
(Code 1967, § 31-83; Code 1985, § 16-431)

Sec. 9-92-7. Gaseous chlorine equipment.

Where gaseous chlorine equipment is provided in a filter room at a public swimming pool, or in any part of a building which provides housing, the mechanical proportioning and cylinders of chlorine shall be housed in a reasonably gas-tight corrosion-resistant and mechanically vented enclosure.
(Code 1967, § 31-84; Code 1985, § 16-432)

Sec. 9-92-8. Dressing rooms—Maintenance of premises.

All public swimming pools shall be provided with dressing rooms which shall be so constructed and maintained that they will be clean and in a sanitary condition at all times. The buildings and grounds shall be kept free from garbage, trash and other refuse.
(Code 1967, § 31-85; Code 1985, § 16-433)

Sec. 9-92-9. Toilet facilities.

All public swimming pools shall be provided with a sanitary method of excreta disposal, including one or more separate toilets for each sex, and their number and location will be determined by the health department.
(Code 1967, § 31-86; Code 1985, § 16-434)

Sec. 9-92-10. Lighting system.

A complete system of artificial lighting conforming to Article 680 of the National Electric Code 1981 shall be provided for all indoor public swimming pools and for all public swimming pools which are to be used at night.
(Code 1967, § 31-87; Code 1985, § 16-435)

Sec. 9-92-11. Drinking water.

Drinking water furnished at any public swimming pool shall be of a quality approved by the health department and shall be made available by means of sanitary drinking fountains. The use of common drinking cups is forbidden.
(Code 1967, § 31-88; Code 1985, § 16-436)

Sec. 9-92-12. Safety of bathers generally.

All reasonable precautions shall be taken at public swimming pools to protect the bathers from injury or accident. Convenient means of ingress and egress shall be provided. The various depths of the water and any irregularities of the bottom shall be clearly indicated on both sides of the pool. Safety appliances such as life buoys, life hooks, bamboo poles or ropes, and equipment, including first aid kits, shall be provided and be readily accessible.
(Code 1967, § 31-89; Code 1985, § 16-437)

Sec. 9-92-13. Attendants.

A sufficient number of attendants shall be on duty when a public swimming pool is in use. Such attendants shall be capable swimmers competent in life saving methods and trained in methods of artificial resuscitation.
(Code 1967, § 31-90; Code 1985, § 16-438)

Sec. 9-92-14. Diseased persons not to use pool—Spitting and spouting water prohibited.

No person having any skin eruptions or abrasions, sore or infected eyes, cold, nasal or ear discharge, or any communicable disease shall be permitted to use any public swimming pool. Spitting, spouting of water, or blowing the nose in the pool shall strictly prohibited. Suitable placards embodying such personal regulations and instructions shall be conspicuously posted.
(Code 1967, § 31-91; Code 1985, § 16-439)

Sec. 9-92-15. Common use of suits and towels.

Suits and towels for common use at a public swimming pool shall be thoroughly laundered and dried after each usage in such manner as to meet the requirements of the health department.
(Code 1967, § 31-92; Code 1985, § 16-440)

Sec. 9-92-16. Records and reports.

Such records concerning the operation of a public swimming pool shall be kept as may be required by the health department reports shall be submitted to the health department as required.
(Code 1967, § 31-93; Code 1985, § 16-441)

Sec. 9-92-17. Rules and regulations of health department.

The health department shall make such rules and regulations as may be necessary in its judgment to meet the requirements of public swimming pool sanitation, and to preserve the safety and health of the bathers. Such rules and regulations, when adopted by the health department, shall be printed and copies thereof delivered to all operators of public swimming pools and to such other persons as may request the same. When such rules have been duly adopted and printed, they shall constitute a part of the requirements imposed upon operators of public pools by this chapter, and for any violation of such rules and regulations or any failure to comply therewith, any permit to operate may be revoked by the health officer under the provisions of section 9-92-2.
(Code 1967, § 31-94; Code 1985, § 16-442)

Sec. 9-92-18. Publication of grades of sanitary condition.

The health department may, from time to time, publish grades of the sanitary condition of public swimming pools.
(Code 1967, § 31-95; Code 1985, § 16-443)

CHAPTER 9-94. VACANT/ABANDONED PROPERTY

Sections:

Article 1. Property Registration Requirements

Sec. 9-94-1. Purpose; definitions.
Sec. 9-94-2. Vacant property registration.
Sec. 9-94-3. Registration of real property upon vacancy, abandonment, and tax delinquency.
Sec. 9-94-4. Compliance.

ARTICLE 1. PROPERTY REGISTRATION REQUIREMENTS

Sec. 9-94-1. Purpose; definitions.

A. *Purpose and intent.* It is the purpose and intent of the City of Memphis ("city") to establish a process to address the deterioration and blight of city neighborhoods caused by an increasing amount of abandoned, foreclosed or distressed real property located within the city, and to identify, regulate, and reduce the number of abandoned properties located within the city. It is the city's further intent to establish vacant property registration requirements as a mechanism to protect neighborhoods from becoming blighted due to the lack of adequate maintenance and security of abandoned and foreclosed real property.

B. *Definitions.* The following words and terms shall have the meanings set forth in this section, except where otherwise specifically indicated.

Abandoned real property means any real property that is vacant, is subject to unauthorized occupancy, and has been determined by evidence of an affidavit by an agent or officer of the City of Memphis Housing Code Enforcement.

Willful and intentional mean the failure to register or take the necessary actions to register as required under this chapter after three successful attempts by a housing code official to notify the responsible party of their responsibility to register under this chapter. Such actions shall constitute a rebuttable presumption that the responsible party has willfully and intentional[ly] failed to register as required under this chapter.

Evidence of vacancy means any condition that on its own, or combined with other conditions present, would lead a reasonable person to believe that the property is vacant. Such conditions may include, but are not limited to: overgrown and/or dead vegetation; electricity, water or other utilities turned off; stagnant swimming pool; or statement by neighbors, passers-by, delivery agents or government agents.

Foreclosure means the judicial or non-judicial process by which a property, placed as security for a mortgage loan, is to be sold at an auction to satisfy a debt upon which the borrower has defaulted.

Material change in ownership is defined for purposes of this chapter as any change in ownership, whether of record or not, which results in a new party assuming responsibility:

1. For care and maintenance;
2. For receipt of notice and/or service of process; or
3. For acting as agent for the owner of record of the subject property.

Mortgage means any consensual lien created by a written instrument which grants or retains an interest in real estate to secure a debt or other obligation. The term includes, without limitation:

1. Mortgages securing reverse mortgage loans;
2. Mortgages securing revolving credit loans;
3. Every deed conveying real estate, although an absolute conveyance in its terms, which shall have been intended only as a security in the nature of a mortgage; and
4. Equitable mortgages.

Mortgagee means:

1. The holder of an indebtedness or oblige of a non-monetary obligation secured by a mortgage or any person designated including mortgage servicers or authorized to act on behalf of such holder, including mortgage servicers;
2. Any person claiming through a mortgage as successor; and
3. Any person identified as such in a recorded document which has not been released, assigned, or superseded of record.

Mortgagor means the person whose interest in the real estate is the subject of the mortgage and any person claiming through a mortgagor as successor. Where a mortgage is executed by a trustee of a land trust, the mortgagor is the trustee and not the beneficiary or beneficiaries.

Owner means any person who alone, jointly, or severally with others:

1. Has legal title to the property, with or without accompanying actual possession thereof;
2. Has charge, care or control of the property as owner or agent of the owner or an executor, administrator, trustee or guardian of the estate of the owner; or
3. Is the agent or the owner for the purpose of managing, controlling the property or collecting rents, or is any other person managing or controlling the property or is any person entitled to the control or direction of the management or disposition of the property. This article definition excludes real estate listing agents when acting exclusively in that capacity.

Property means any real, residential, commercial or industrial property, or portion thereof, located within the City of Memphis, including buildings or structures situated on the property.

Residential property means buildings of three stories or less in height where the whole building or parts thereof are designed or used as residential units or auxiliary uses to a residential unit.

Vacant means any building or structure that is not lawfully occupied or inhabited as evidenced by the conditions set forth in the definition of "evidence of vacancy" (see section 9-94-1(B)) and as defined in T.C.A. § 13-21-202.

C. *Applicability.*

1. These sections shall be considered cumulative and not superseding or subject to any other law or provision for same, but rather an additional remedy available to the city, above and beyond any other state, county or local provisions.
2. Parties identified as owners in subsection (B) above will not be fined or held liable for fines (under the doctrine of agency) in cases where their principal is disclosed and is identified by subsection (B).

(Ord. No. 5477, § 1, 4-2-2013)

Sec. 9-94-2. Vacant property registration.

Pursuant to the authority of T.C.A. § 6-54-113 and in addition to the requirements of section 9-94-3 set forth

herein, the City of Memphis or its designee shall establish a vacant property registry and require registration by the mortgage holder of single family residential real property, including condominiums within the City of Memphis upon notice of vacancy, abandonment (vacancy), and tax delinquency.
(Ord. No. 5477, § 1, 4-2-2013)

Sec. 9-94-3. Registration of real property upon vacancy, abandonment, and tax delinquency.

A. Any mortgagee who holds a mortgage on single family residential housing, including condominiums located within the City of Memphis, shall, register the property within 30 days of a notice of a declaration of vacancy, abandonment and tax delinquency as well as other housing code violations pursuant to a sworn affidavit by a City of Memphis Housing Code Official. The sworn affidavit shall be issued by the housing code official after reasonable observation and monitoring of the property. In addition, the housing code official shall also state under oath that after a reasonable and diligent search of all Shelby County public records, the said housing code official has not been able to determine the correct name and address of the mortgagee. Upon completing and filing the said affidavit with the department of code enforcement, a notice to register will be issued pursuant to the standards set forth in T.C.A. § 13-21-202. A separate registration is required for each property parcel.

B. *Cure prior to registration.* If within 30 days after notification of vacancy, abandonment and tax delinquency by a City of Memphis Housing Code Official pursuant to section 9-94-4(A), a mortgagee shows proof of payment of all tax delinquencies, no registration will be required for that notification.

C. *Registration requirements.* Registration pursuant to this section shall require the mortgagee to provide the name of mortgagee and the servicer, the direct mailing address of the mortgagee and the servicer, a direct contact name and telephone number for each, facsimile number and e-mail address for each, the folio or tax number, and the contact name and telephone number of the person responsible for the security and maintenance of the property. The owner shall be required to provide his direct mailing address, a direct contact name and telephone number, facsimile number and e-mail address, and the folio or tax number where applicable. Upon notification of vacancy by code enforcement both the mortgagee, or his designated agent, and the property owner shall be responsible for compliance with this article whether the vacancy occurred through default, foreclosure, vacancy, or otherwise.

D. *Annual registration fee for vacant, abandoned, and, tax delinquent property.* A non-refundable annual registration fee in the amount of $200.00 per property parcel, shall accompany the registration forms as provided by the City of Memphis. The registration fee shall be paid by the mortgagee or his agent.

E. *Registration of transferred property.* This section shall also apply to properties that have been the subject of a foreclosure sale where the title was transferred by the mortgagee, or its agent, or when any property is transferred under a deed in lieu of foreclosure/sale, or quit claim deed, or by transfer, whether filed with the register of deeds or not, and, upon transfer of ownership upon the death of a prior owner.

F. *Duration of registration for vacant, abandoned, and tax delinquent property.* Properties subject to this section shall remain under all registration requirements and maintenance standards of the department of housing code enforcement as long as the property remains vacant, abandoned, and tax delinquent. Property may be removed from the registry upon verification by the City of Memphis or its designee of cure of vacancy, abandonment or tax delinquency; and cure of any existing code violations, with title vested in an owner of record.

G. *Reporting changes in service, property conditions, mortgage status, etc.* Any person or legal entity that has registered a property under this section must report any change of information contained in the registration pursuant to section 9-94-3(C) within ten days of the change.

H. *Limited reporting requirements.* No release of private information shall be required if the release of such information would constitute a violation of any federal or state privacy law. In such event where the city requires such information, the city shall seek such private information by way of application to a court of competent jurisdiction.

I. *Service.* Service of notice under this section shall be:

1. Mailed to the mortgagee and owner at their last known addresses as it appears in Shelby County public records;

2. Posted on the property in a conspicuous location; or

3. Published at least three weeks in a newspaper of general circulation in Shelby County, providing that the first publication is 30 days before the hearing date.

(Ord. No. 5477, § 1, 4-2-2013)

Sec. 9-94-4. Compliance.

A. *Failure to comply.* Failure of the mortgagee and/or owner to properly register or to modify the registration from time to time to reflect a change of circumstances as required by this article is a violation of this article and shall be subject to enforcement and/or the levy of administrative fee of $50.00 per violation. Where the failure to register is found to be willful and intentional, then the administrative fee of $50.00 shall continue to be assessed daily until corrected.

B. *Exceptional penalty provision.* Upon reasonable cause to believe a deliberate attempt by a mortgagee to evade, conceal or otherwise not identify its true ownership or lienholder interest in a vacant property as certified by the department of code enforcement, the city may petition a court of competent jurisdiction to order that notice of any further transfer of title, ownership or interest to said property shall be filed with the City of Memphis Department of Code Enforcement.

C. *Description of violation: Civil penalty.* Any violation of section 9-94-3(A)—(G) of this article shall result in the levy of an administrative fee of $50.00 per violation payable by the mortgagee and subject to a continual violation where section 9-94-4(A) applies. This administrative fee amount shall not be increased without written justification presented at a hearing before the Memphis City Council, and by passage of a super majority (9) of the council.

D. *Collections and use of funds.* All funds collected under this chapter, sections 9-94-1 through 9-94-4, including fines and fees, are to be reserved for the use of the office of code enforcement for the removal of blight in the City of Memphis.

(Ord. No. 5477, § 1, 4-2-2013)

CHAPTER 9-96. WEEDS AND REFUSE

Sections:

Sec. 9-96-1. Definitions.
Sec. 9-96-2. Duty of property owner to cut and clean—Penalty.
Sec. 9-96-3. Height to which grass must be cut.
Sec. 9-96-4. Notice to property owner to cut and clean.
Sec. 9-96-5. Cutting and cleaning by city.
Sec. 9-96-6. Notice to remove refuse from property.
Sec. 9-96-7. Cleaning by city.

Sec. 9-96-1. Definitions.

As used in this chapter:

Abandoned is any tangible personalty or property left unclaimed for a period of 30 days or more without any identifiable ownership and its presence raises a presumption of abandonment by owner of property upon which the personalty is found, left unattended in an obvious state of disrepair or declared by owner of property as worthless or not under his or her ownership.

Cut and clean means cutting and removal of grass and/or rank grass and the clearing of the area from which such cuttings were made, the removal of all substances found upon the ground, the removal of noxious growth, tree branches, saplings, bushes, vines, undergrowth, abandoned foundations, abandoned piles of trash or any abandoned material, or tangible personalty which causes an obstruction to view of premises from the street, thoroughfare, or alleyway.

Hazardous substances and conditions means any element, chemical compound or otherwise which is a physical or health hazard as defined in the OSHA standard in 29 CFR, No. 1910-120(c) or a hazardous substance as defined in the OSHA standards in 29 CFR No. 1901-120(d), or any county health department regulation, which provides the opportunity to expose unsuspecting city grounds maintenance employees, grass cutter personnel, and other humans, particularly children, and animals.

Nuisance means a structure, building, portion of building, foundations, in such a state of deterioration or abandonment that it is a blighting influence on neighboring properties. The fact that such buildings or structures on neighboring properties are abandoned or deteriorated is not a defense.

Refuse is a comprehensive term meaning any worthless leaving to be discarded, on protected or unprotected lots, vacant or structured, including, but not limited to, garbage, all putrescible substances, bulky refuse, rubbish, undergrowth, (to include bushes, vines, saplings), household fixtures, furniture, cartons, boxes, excelsior,

rags, building/construction materials, abandoned materials (in bulk) such as residue from burning of wood, coal, coke, ashes, firewood, tree trunk/hazardous limbs/branches, gravel, tar, macadam, concrete, plaster, glass, plasterboard, tiles, and industrial or hazardous waste, are left by benign neglect for a period of 30 days or more.

Tangible personalty includes personal property such as goods, chattels and other articles which are capable of manual or physical possession, machinery and equipment detachable from real property, growing crops, pastures, orchards, plants, trees, timber, poles conduits, asphalt, macadam, rock, stone, and brick products.

Urban blight means a condition existing on property without apparent or patent supervision by an owner or tenant so that the exterior of property is in disrepair, or contains unduly amounts of high weeds, tall grass, unkept greenery and undergrowth (to include trees, saplings, vines, bushes), about the premises creating an invitation to dust, obstructions to view, harboring of unauthorized persons or animals, vermin, health problems, promotes vandalism, danger to innocent passerby, illicit drug traffic or illegal activity, and is detrimental to the immediate neighborhood.

Weeds, grass and noxious growth shall not be interpreted to require the property owner to dispose of, or cut down growing trees, shrubs, or crops on his or her property. Weeds and noxious growth shall, however, include: (1) trees, shrubbery and rank grasses, due to neglect, that overhang either the city streets or walkways abutting the city streets; or (2) weeds and rank grass, left unattended for a period of time creating urban blight and a nuisance.

(Code 1967, § 22-53.2; Code 1985, § 16-456; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-96-2. Duty of property owner to cut and clean—Penalty.

A. The owner or owners of all lands or lots in the city shall keep all weeds, rank grass and noxious growth of any kind upon such property cut or clipped to prevent a nuisance and urban blight.

B. Failure to carry out the provisions of this chapter shall be considered a misdemeanor subject to punishment as provided in section 1-24-1 of this code.

C. For the convenience of property owners, the weed section of the general services division will maintain a list of persons in the business of cutting grass and weeds and will supply such names on request of a property owner.

(Code 1967, § 22-53; Code 1985, § 16-457; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-96-3. Height to which grass must be cut.

A. Small tracts of land, whether improved or unimproved, within the city shall be maintained to insure that weeds, rank grass and noxious growth do not exceed a height of not more than 12 inches. "Small tracts" are defined as building lawns, sidewalk, neutral strips, walkways, gardens, decorative landscaped areas and unimproved lots of two acres or less.

B. Grass walkways abutting the city streets shall be kept mowed to a height not exceeding six inches.

C. Large tracts of land, whether improved or unimproved within the city shall be maintained to insure that weeds, rank growth, and noxious growth do not exceed 12 inches during the growing season. "Large tracts" are defined as unimproved property of a size two acres in area or larger, except, that if large tracts are adjacent to improved residential property, they shall be maintained to the same standards as small tracts within 130 feet of such improved residential property.

D. Any tract maintained in a natural state or as a wilderness area may be exempt from cutting by the director of general services, except for the requirements of provisions hereinabove mentioned.

(Code 1967, § 22-53.1; Code 1985, § 16-458; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-96-4. Notice to property owner to cut and clean.

A. Upon the failure of any owner of property within the city to cut, or have cut, weeds, rank grass or noxious growths, it shall be the duty of the grounds maintenance section of the general services division to serve a notice on the owner of such property to cut or to have cut, within five days of the service of such notice, all weeds, grass, or noxious growth upon his or her property. Such notice: (1) may be served personally on the owner of the property; (2) may be mailed to the last known address of

such owner by registered or certified mail; or (3) may be posted on the property on which such weeds, grass or noxious growths exist.

B. Service of notice by any of the above methods shall be due notice to such owner.

C. 1. Service of notice under the provisions of subsection A of this section, shall be required of the city only one time during a growth season and shall be deemed to be sufficient, satisfactory and

legal notice to the property owner for any further violations during the balance of that growth season.

2. "Growth season" is defined to be that period of time between May 1 and September 30 of each calendar year.

D. Should the owner or responsible tenant in charge fail to cut and clean the property following notice as set out above, city forces under supervision of director of general services reserves the right to enter the premises for the purpose of removing abandoned tangible personalty, weeds, rank grass and noxious growths to prevent hazard conditions, nuisances, and urban blight.
(Code 1967, § 22-54; Code 1985, § 16-459; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-96-5. Cutting and cleaning by city.

A. In addition to the penalty provided for in section 1-24-1 of this code, upon the failure of any owner of lots or lands in the city to cut or cause to be cut weeds, grass or noxious growths upon the property described in the notice mentioned in section 9-96-4 within five days thereof, the weed section of the general services division is authorized and directed to have such weeds, grass and noxious growths cut, and a statement of the cost thereof shall be filed with the director of finance or his or her designee. A lien is declared on such property for all costs and expenses of cutting incurred by the weed section of the general services division. Work performed under this section by the city may be accomplished by cutting or by chemical control, and with city forces or by retention of services from a private contractor to perform on the city's behalf in accordance with the city's contracting and purchasing procedures.

B. Upon receipt of the statement of costs of cutting weeds or chemical control of grass or noxious growths pursuant to this action, the director of finance may transmit a true copy thereof the city attorney, who shall forthwith institute suit or take such other proceedings as may be necessary to enforce the lien on such property.

C. All uncollected costs for cutting or chemical control of weeds, grass or noxious growths for the current year shall be certified to the city treasurer on or before December 31 of each year. It shall be the duty of the city treasurer to collect, as a special tax, the amount so certified at the time city taxes levied against properties on which the cutting or chemical control was done for the next succeeding year are collected. The cost of cutting chemical control of weeds, grass and noxious growth pursuant this section is declared to be a special tax to be collected general taxes levied by the city.
(Code 1967, § 22-25; Code 1985, § 16-460; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Charter reference—Cutting of weeds by city and collection of cost thereof, §§ 424, 425.

Sec. 9-96-6. Notice to remove refuse from property.

A. Upon the failure of any owner of property within the city to remove refuse from his or her property and dispose of it in accordance with the law, it shall be the duty of the general services division to serve a notice on the owner of such property to clean the property within five days of the service of such notice. Such notice may be served personally on the owner by registered or certified mail, or may be posted on the property on which such refuse exists.

B. Service of notice by any of the above methods shall be due notice to such owner.

C. 1. Service of notice under the provisions of subsection A of this section shall be required of the city only one time during a calendar year; and shall be deemed to be sufficient, satisfactory and legal notice to the property owner of any further violations during the balance of that calendar year.

2. "Calendar year" is defined to be that period of time between January 1 and December 30 of each calendar year.

D. Should the owner or responsible tenant in charge fail to remove all refuse, tangible property, or urban blight from the property following notice as set out below, city forces under the supervision of the director of general services reserves the right to enter the premises for the purpose of removing refuse and abandoned tangible personalty, to prevent nuisances and urban blight.
(Code 1967, § 22-58; Code 1985, § 16-471; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999; Ord. No. 4978, § 1, 12-3-2002)

Sec. 9-96-7. Cleaning by city.

A. In addition to the penalty provided for in section 1-24-1 of this code, upon failure of any owner of lots or lands in the city to clean the property described in the

notice mentioned in section 9-96-6 within five days thereof, the general services division is authorized and directed to have such work done and a statement of the costs thereof shall be filed with the director of finance or his or her designee. A lien is declared on such property for all costs and expenses incurred by the city.

B. Upon receipt of the statement of costs of cleaning property by city forces or by contract pursuant to this section, the director of finance or his or her designee may transmit a true copy thereof to the city attorney, who shall forthwith institute suit or take such other proceedings as may be necessary to enforce the lien on such property.

C. All uncollected costs for the current year shall be certified to the city treasurer on or before December 31 of each year. It shall be the duty of the city treasurer to collect, as a special tax, the amount so certified at the time city taxes levied against properties from which the refuse was removed for the next succeeding year are collected. The cost of cleaning property by city forces or by contract pursuant to this section is declared to be a special tax to be collected as general taxes levied by the city.
(Code 1967, § 22-59; Code 1985, § 16-472; Ord. No. 837, § 1, 1-12-1971; Ord. No. 4724, § 1, 12-7-1999)

CHAPTER 9-100. CITATIONS FOR HEALTH AND SANITATION VIOLATIONS

Sections:

Sec. 9-100-1. Definitions.
Sec. 9-100-2. Designation of health and sanitation personnel as special employee officers.
Sec. 9-100-3. Scope of authority.
Sec. 9-100-4. Failure to sign citation ticket.
Sec. 9-100-5. Failure of offender to appear for trial.
Sec. 9-100-6. Authority of special employee officers retained.

Sec. 9-100-1. Definitions.

For the purposes of this chapter the following definitions are applicable:

Citation is any ticket issued to a person showing the offense charged and signed by the person agreeing to appear at the time and place indicated.

Employee officer is any employee designated by the health director/officer of the Memphis and Shelby County health department to issue citations.

Health director/officer is the executive officer in charge of the Memphis and Shelby County health department.

Ordinance summons is process issued by the city court and signed by the judge or the clerk, as provided for in section 280 of the Charter of the City of Memphis.

Person is any person found violating any sections of this title, and the term "offender" wherever used shall be synonymous with the word "person."
(Code 1985, § 16-500; Ord. No. 3817, § 1, 10-18-1988)

Sec. 9-100-2. Designation of health and sanitation personnel as special employee officers.

The health director/officer may designate certain employees to be special employee officers of the municipality for the purpose of issuance of citations or complaints in lieu of arrest of offenders in such cases as they have jurisdiction.
(Code 1985, § 16-501; Ord. No. 3817, § 1, 10-18-1988)

Sec. 9-100-3. Scope of authority.

When employees are so designated, they are, in lieu of arrest, authorized to issue citation tickets, ordinance summons, and legal process. In the event the form of such citation ticket includes information and is sworn to, as required by general laws of the state, with respect to a complaint charging the commission of the offense alleged in such citation ticket when filed with a court or a branch or a court having jurisdiction, it shall be deemed to be a lawful complaint for the purpose of prosecution under the section specified.
(Code 1985, § 16-502; Ord. No. 3817, § 1, 10-18-1988)

Sec. 9-100-4. Failure to sign citation ticket.

In the event any person fails to comply with a citation ticket given to such person, or refuses to sign the ordinance summons, then the special employee officer in whose presence the violation is committed may have a summons issued by the clerk of the city court or the special employee officer may seek the assistance of a police officer to witness the violation who may issue a

citation in lieu of arrest for the violation, or to make arrest for failure to sign the citation, as provided in T.C.A. § 7-63-104.
(Code 1985, § 16-503; Ord. No. 3817, § 1, 10-18-1988)

Sec. 9-100-5. Failure of offender to appear for trial.

It is unlawful for any person to violate his or her written promise, given to an employee officer upon the issuance of a citation ticket, to appear regardless of the disposition of the charge for which such citation ticket was originally issued, and failure of the offender to appear for trial after signing of the ordinance summons agreement shall cause the court having jurisdiction thereof to issue a warrant against the offender, as provided for in T.C.A. § 7-63-105.
(Code 1985, § 16-504; Ord. No. 3817, § 1, 10-18-1988)

Sec. 9-100-6. Authority of special employee officers retained.

Nothing herein contained shall be construed as removal of the designated special employee officer's authority to make arrest for violations under his or her jurisdiction, and it shall be the duty of all police officers to render any assistance necessary.
(Code 1985, § 16-505; Ord. No. 3817, § 1, 10-18-1988)

CHAPTER 9-104. FACE COVERING/MASK REQUIREMENTS

Sections:

Sec. 9-104-1. Short Title.
Sec. 9-104-2. Legislative findings and intent.
Sec. 9-104-3. Requirements for wearing face coverings.
Sec. 9-104-4. Exemptions from requirements for wearing face coverings.
Sec. 9-104-5. Violations.
Sec. 9-104-6. Administration and enforcement.
Sec. 9-104-7. Miscellaneous.
Sec. 9-104-8. Definitions.

Sec. 9-104-1. Short title.

This chapter shall be known as the "Face Covering/ Mask Ordinance."
(Ord. No. 5751, § 1, 6-16-2020)

Sec. 9-104-2. Legislative findings and intent.

A. Tennessee General Assembly has declared the State's policy that safeguarding the life and property of its citizens is an innate responsibility of the governing body of each political subdivision of the state;

B. The council, as the governing body of the city, does hereby find, declare and conclude that it has the power and duty under the city's Charter:

1. To pass all laws to preserve the health of the city;
2. To prevent the introduction of contagious diseases within the city; and
3. To define, prevent, remove and cause to be abated nuisances within the city;

C. The council, as the governing body of the city, does hereby further find, declare and conclude that it has the power and authority under State statutes to take whatever prudent action is necessary to ensure the health, safety, and welfare of the community during a declared state of emergency and that this chapter is adopted pursuant to State policy and the authority granted it under State statutes and the city's Charter;

D. The council does hereby find and declare that this chapter is based on evidence of increasing occurrence of COVID-19 within the city, the State of Tennessee, and the United States of America and on scientific evidence, and best practices regarding the most effective approaches to slow the transmission of communicable diseases generally and COVID-19 specifically;

E. The council does hereby find and declare that this chapter is also issued in light of the existence, as of May 27, 2020, of a cumulative total of 4,703 confirmed cases of infection by the COVID-19 virus and 102 deaths in Shelby County, of which over 65 percent of the confirmed cases and over 68 percent of deaths are African-American citizens;

F. It is the intent of this chapter:

1. To help reduce the spread of the COVID-19 virus and mitigate the impact of the virus on members of the public and on the delivery of critical healthcare services to those in need. All provisions of this chapter must be interpreted to effectuate this intent.
2. To ensure that all people who are visiting or working at essential businesses and all people

who are seeking care at healthcare facilities or engaged in certain types of public transit or transportation with others wear a face covering to reduce the likelihood that they may transmit or receive the COVID-19 virus.

3. To ensure that people who work for or seek services from entities engaged in essential infrastructure work, minimum basic operations, or essential government functions also wear a face covering when they are in close proximity to others.

4. To create environments where employees, customers and members of the public may feel safe in visiting and/or working in essential businesses, essential government functions and healthcare operations.

(Ord. No. 5751, § 2, 6-16-2020)

Sec. 9-104-3. Requirements for wearing face coverings.

A. Specific requirement for wearing face coverings. All members of the public, except as specifically exempted herein, are required to wear a face covering outside their home or other place they reside in the following specific situations:

1. When they are inside of, or in line to enter, any essential business including, but not limited to, grocery stores, convenience stores, supermarkets, laundromats, and restaurants;

2. When they are inside of, or in line to enter, any non-essential business as defined in this chapter.

3. When they are inside or at any location or facility engaging in seeking or receiving essential government functions, including but not limited to City Hall or other city buildings and facilities;

4. When they are at the entrance to and inside elevators in all public and private buildings;

5. When they are engaged in essential infrastructure work;

6. When they are obtaining services at healthcare operations—including hospitals, clinics, COVID-19 testing locations, dentists, pharmacies, blood banks and blood drives, other healthcare facilities, mental health providers, or facilities providing veterinary care and similar healthcare services for animals—unless directed otherwise by an employee or worker at the healthcare operation; or

7. When they are waiting for or riding on public transportation (including without limitation any bus, MATA, street car or paratransit or are in a taxi, private car service, or ride-sharing vehicle.

8. Each driver or operator of any public transportation or paratransit vehicle, taxi, or private car service or ride-sharing vehicle must wear a face covering while driving or operating such vehicle, regardless of whether a member of the public is in the vehicle, due to the need to reduce the spread of respirator droplets in the vehicle at all times.

9. All essential businesses, non-essential businesses, as well as entities and organizations with workers engaged in essential infrastructure work, or essential government functions (except for healthcare operations, which are subject to their own regulation regarding specified face coverings), must:

   a. Require their employees, contractors, owners, and volunteers to wear a face covering at the workplace and when performing work off-site any time the employee, contractor, owner, or volunteer is:

      i. Interacting in person with any member of the public;

      ii. Working in any space visited by members of the public, such as by way of example and without limitation, reception areas, grocery' store or pharmacy aisles, service counters, public restrooms, cashier and checkout areas, waiting rooms, service areas, and other spaces used to interact with the public, regardless of whether anyone from the public is present at the time;

      iii. Working in any space where food is prepared or packaged for sale or distribution to others; working in or walking through common areas such as hallways, stairways, elevators, and parking facilities; or

iv. In any room or enclosed area when other people (except for members of the person's own household or residence) are present.

v. Take reasonable measures, such as posting signs, to remind their customers and the public of the requirement that they wear a face covering while inside of or waiting in line to enter the business, facility, or location. Essential businesses and entities or organizations that engaged in essential infrastructure work must take all reasonable steps to prohibit any member of the public who is not wearing a face covering from entering and must not serve that person if those efforts are unsuccessful.

B. Reusable face coverings or masks must remain clean and sanitary via regular washing and daily disinfecting.
(Ord. No. 5751, § 3, 6-16-2020)

Sec. 9-104-4. Exemptions from requirements for wearing face coverings.

A. A face covering is not required, but is strongly encouraged, when a person is not in any of the specific situations identified in subsection 9-104-3(A).

B. A face covering is not required when a person is in a personal office (a single room) when others outside of that person's household are not present as long as the public does not regularly visit the room. By way of example and without limitation, a construction worker, plumber, bank manager, accountant, or bike repair person is not required to wear a face covering if that individual is alone and in a space not regularly visited by the public, but that individual must put on a face covering when coworkers are nearby, when being visited by a client/customer, and anywhere members of the public or other coworkers are regularly present.

C. A face covering is not required after a person has been seated in a restaurant or bar or similar facility, but is strongly recommended when a person is ordering food or drink or otherwise interacting with workers or other customers at the restaurant or bar or similar facility.

D. Any child aged two years or less must not wear a face covering because of the risk of suffocation. This chapter does not require that any child aged 12 years or less wear a face covering. Parents and caregivers must supervise use of face coverings by children to avoid misuse.

E. Wearing a face covering is recommended but not required while engaged in outdoor recreation such as walking, hiking, bicycling, or running. But each person engaged in such activity must comply with social distancing requirements including maintaining at least six feet of separation from all other people to the greatest extent possible. Additionally, it is recommended that each person engaged in such activity bring a face covering and wear that face covering in circumstances where it is difficult to maintain compliance with social distancing requirements and that they carry the face covering in a readily accessible location, such as around the person's neck or in a pocket, for such use.

F. Because running or bicycling causes people to more forcefully expel airborne particles, making the usual minimum six feet distance less adequate, runners and cyclists must take steps to avoid exposing others to those particles, which include the following measures: wearing a face covering when possible; crossing the street when running to avoid sidewalks with pedestrians; slowing down and moving to the side when unable to leave the sidewalk and nearing other people; never spitting; and avoiding running or cycling directly in front of or behind another runner or cyclist who is not in the same household.

G. This chapter does not require any person to wear a face covering while driving in a motor vehicle, but is highly recommended if other persons who are not part of the driver's family are present.

H. A face covering is also not required by this chapter to be worn by a particular individual if the person can show either: (1) a medical professional has advised that wearing a face covering may pose a risk to the person wearing the mask for health-related reasons; or (2) wearing a face covering would create a risk to the person related to their work as determined by local, state, or federal regulators or workplace safety guidelines; or because the person suffers from a medical condition that prevents that person from wearing a face covering.

I. A face covering should also not be used by anyone who has trouble breathing or is unconscious, incapacitated, or otherwise unable to remove the face covering without assistance.
(Ord. No. 5751, § 4, 6-16-2020)

Sec. 9-104-5. Violations.

The council does hereby expressly find and declare that this chapter is necessary to slow the rate of spread of COVID-19 in the city, especially among its most vulnerable citizens. Failure to comply with any of the provisions of this chapter constitutes an imminent threat and immediate menace to public health, especially and therefore is declared to be a public nuisance, which is a Class C Misdemeanor that is punishable in the manner set forth herein or is subject to other extraordinary legal remedies available to the city to eliminate and/or abate public nuisances.
(Ord. No. 5751, § 5, 6-16-2020)

Sec. 9-104-6. Administration and enforcement.

A. Pursuant to the city's Charter, the mayor, by virtue of his office, is the chief executive officer of the city government, and each and every department thereof, and as such, shall have under his control and be charged with the duty of supervising and compelling the performance of duties by all other officers and employees. The mayor is required to see that provisions of the city's Charter and ordinances are obeyed and enforced.

B. Notwithstanding any city ordinance to the contrary, whenever any emergency occurs, or any rare or unusual disease appears, or when any disease becomes unduly prevalent, the mayor, in consultation with a medical professional selected by him, shall have the power to employ any measures necessary for the protection of the public health; and the mayor shall have the power, by proclamation, to establish quarantine and contact tracing measures and to promulgate such rules and regulations as may be necessary to combat such emergencies, including rules and regulations for persons residing in, entering or leaving the city, and the regulation of property, and he or she shall have power to make such expenditures as may be necessary for such purposes.

C. The mayor shall be authorized to appoint his officers, assistants and employees to enforce the rules and regulations promulgated by the mayor under the provisions of this chapter. Any person who violates any such regulation, or who fails to carry out any lawful order of the mayor or his designee(s) in such emergencies, shall be guilty of a misdemeanor.

D. Whenever the mayor deems it necessary to carry out the provisions of this chapter, the mayor shall have the power to call upon the chief of police services for a detail of officers, and the director of police shall furnish such officers, and the officers so detailed shall act under the direction of the mayor for the purpose of carrying out the provisions of this chapter or any proclamation or regulation issued by the mayor to abate any public health nuisances and may issue citations for violations hereof.

E. The municipal courts of the city shall have jurisdiction over any citations issued for violations of this chapter.

F. The fines or penalties that may be assessed by the city's municipal courts against individual violators shall be as follows:

1. First offense - warning.
2. There shall be no monetary fines or criminal penalties assessed for violations of this chapter by individuals.

G. Chapter 1, section 1-24-1 of the Memphis Code of Ordinances is hereby amended to add a new subsection C, which shall provide that court fees for violation of the face coverings/mask ordinance by individuals shall not exceed $20.00 per violation, which may be waived upon completion of the community service requirement.

H. In order to remedy continuing violations of this chapter the mayor shall be authorized to assess civil penalties against any business or entity after such business or entity has been issued a warning for violating section 9-104-3(A) of this chapter or any health directive on three separate occasions in an amount of $100.00 per successive violation and the mayor shall also be authorized to seek restraining orders or injunctive relief in courts of appropriate jurisdiction to abate any continuing health nuisances that have occurred and are continuing in violation of section 9-104-3(A) of this chapter or any health directive.

I. The council shall be expressly authorized to modify by resolution the fines and penalties required by this chapter.

J. The mayor shall be authorized to create, operate and/or contract with non-profit organizations, who are providing community services to the public during an infectious disease pandemic to coordinate and report community services performed by violators of this chapter.

K. The mayor is requested to develop and post on the city's website a sample sign to be used by essential business and governmental operations for notifying customers and the public of the need to comply with the requirements of this chapter for wearing face coverings.

L. The mayor is authorized to use any available federal COVID-19 funding for implementation of this chapter, including but not limited to compensation of inspectors and other employees whose services are substantially dedicated to mitigation of the COVID-19 public health emergency as provided in this chapter or for the provision of masks to small businesses, public transportation vehicles and for use by visitors to public buildings and facilities. The mayor is authorized to coordinate with the Shelby County Health Department in the use and deployment of city personnel assigned to mitigation of the COVID-19 public health emergency hereunder.

M. The mayor is authorized to establish a system for employees of essential and non-essential businesses to report the failure of an employer to provide masks for their work and for members of the public to report violations of this chapter, any executive orders or health directives relating to the operations of businesses and activities during an infectious disease pandemic, which may include telephone hot-lines and/or internet systems. (Ord. No. 5751, § 6, 6-16-2020)

Sec. 9-104-7. Miscellaneous.

This chapter shall remain in effect only during a declared public health emergency. Except as provided in this chapter, all health directives issued by the Shelby County Health Department and Health Officer shall be obeyed and observed by all persons and businesses. (Ord. No. 5751, § 7, 6-16-2020)

Sec. 9-104-8. Definitions.

A. *Essential businesses* are:

1. Healthcare operations and businesses that operate, maintain, or repair essential infrastructure;
2. Grocery stores, certified farmers' markets, farm and produce stands, supermarkets, food banks, convenience stores, and other establishments engaged in the retail sale of unprepared food, canned food, dry goods, non-alcoholic beverages, fresh fruits and vegetables, pet supply, fresh meats, fish, and poultry, as well as hygienic products and household consumer products necessary for personal hygiene or the habitability, sanitation, or operation of residences. The businesses included in this subparagraph (ii) include establishments that sell multiple categories of products provided that they sell a significant amount of essential products identified in this subparagraph, such as liquor stores that also sell a significant amount of food;
3. Food cultivation, including farming, livestock, and fishing;
4. Businesses that provide food, shelter, and social services, and other necessities of life for economically disadvantaged or otherwise needy individuals;
5. Construction:

Affordable housing that is or will be income-restricted, including multi-unit or mixed-use developments containing at least ten percent income-restricted units;

Public works projects;

Shelters and temporary housing, but not including hotels or motels;

Projects immediately necessary to provide critical noncommercial services to individuals experiencing homelessness, elderly persons, persons who are economically disadvantaged, and persons with special needs;

Construction or repair necessary to ensure that residences and buildings containing essential businesses are safe, sanitary, or habitable to the extent such construction or repair cannot reasonably be delayed;

6. Newspapers, television, radio, and other media services;
7. Gas stations and auto-supply, auto-repair (including, but not limited to, for cars, trucks, motorcycles and motorized scooters), and automotive dealerships;

8. Bicycle repair and supply shops;

9. Banks and related financial institutions;

10. Service providers that enable residential transactions (including rentals, leases, and home sales), including, but not limited to, real estate agents, escrow agents, notaries, and title companies;

11. Hardware stores;

12. Plumbers, electricians, exterminators, and other service providers who provide services that are necessary to maintaining the habitability, sanitation, and operation of residences and essential businesses, but not for cosmetic or other purposes;

13. Arborists, landscapers, gardeners, and similar service professionals, but only to the limited extent necessary to maintain the habitability, sanitation, operation of businesses or residences, or the safety of residents, employees, or the public (such as fire safety or tree trimming to prevent a dangerous condition);

14. Businesses providing mailing and shipping services, including post office boxes;

15. Educational institutions—including public and private K-12 schools, colleges, and universities;

16. Laundromats, drycleaners, and laundry service providers;

17. Restaurants and other facilities that prepare and serve food, including schools and other entities that typically provide free food services to students or members of the public, but only for delivery or carry out, unless authorized for in person service pursuant to a state, county or city back-to-business order;

18. Businesses that supply other essential businesses with the support or supplies necessary to operate;

19. Businesses that have the primary function of shipping or delivering groceries, food, or other goods directly to residences or businesses. This exemption shall not be used to allow for manufacturing or assembly of non-essential products or for other functions besides those necessary to the delivery operation;

20. Airlines, taxis, rental car companies, rideshare services (including shared bicycles and scooters), and other private transportation providers providing transportation services necessary for essential activities;

21. Home-based care for seniors, adults, children, and pets;

22. Residential facilities and shelters for seniors, adults, and children;

23. Professional services, such as legal, notary, or accounting services;

24. Services to assist individuals in finding employment with essential businesses;

25. Moving services that facilitate residential or commercial moves;

26. Childcare facilities providing services that enable owners, employees, volunteers, and contractors for essential businesses or essential governmental functions to work as permitted. Children of owners, employees, volunteers, and contractors who are not exempt under this order may not attend childcare facilities.

B. *Essential government functions* means all services needed to ensure the continuing operation of the government agencies and provide for the health, safety and welfare of the public.

C. *Essential infrastructure*, means airports, utilities (including water, sewer, gas, and electrical), oil refining, roads and highways, public transportation, solid waste facilities (including collection, removal, disposal, and processing facilities), cemeteries, mortuaries, crematoriums, and telecommunications systems (including the provision of essential global, national, and local infrastructure for internet, computing services, business infrastructure, communications, and web-based services).

D. *Health conditions* means health conditions, including, but not limited to, high blood pressure, chronic lung disease, diabetes, obesity, asthma, and those whose immune system is compromised such as by chemotherapy for cancer and other conditions requiring such therapy.

E. *Non-essential businesses* means all brick and mortar retail businesses not otherwise covered by this chapter that are engaged in the sale of goods, products and services to the public, in which ten or more workers are working.
(Ord. No. 5751, § 8, 6-16-2020)

CHAPTER 9-108. COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY AND RESILIENCY (C-PACER) PROGRAM

Sections:

Sec. 9-108-1. Establishment.
Sec. 9-108-2. Definitions.
Sec. 9-108-3. Territory.
Sec. 9-108-4. Program administration.
Sec. 9-108-5. C-PACER financing.
Sec. 9-108-6. C-PACER lien.
Sec. 9-108-7. Application and review.
Sec. 9-108-8. Program guidebook.
Sec. 9-108-9. Collection and enforcement.
Sec. 9-108-10. Fees.
Sec. 9-108-11. Enactment.
Sec. 9-108-12. No liability.

Sec. 9-108-1. Establishment.

There is hereby established within the boundaries of Memphis, Tennessee (the "city") a Commercial Property Assessed Clean Energy and Resiliency ("C-PACER") program (the "program") in accordance with chapter Tenn. Code Ann. §§ 68-205-101 et seq. (the "C-PACER Act"). The city finds that it is convenient and advantageous to establish the program, at no net cost to the city, in order to finance qualified projects (as hereinafter defined), repaid by voluntary annual assessment installment payments on the property benefited by such qualified projects, and that the program is in the public interest, providing for the safety, health, and environmental public benefit, and provides for economic development of the community. The program shall allow financing for the full range of qualified improvements on all eligible properties, as authorized by the C-PACER Act, and shall abide by and operate according to the C-PACER Act.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-2. Definitions.

The definitions in this section apply throughout this chapter unless the context clearly requires otherwise:

(1) *Application checklist* means the list of items in a program application required by the C-PACER Act, this chapter, the program guidebook, and the corresponding documentation that the city accepts in order to show the requirements of the C-PACER Act have been met;

(2) *Assessment* means the voluntary agreement of a record owner pursuant to an assessment agreement to allow the city to require the payment of annual assessment installments on their property in an amount sufficient to re-pay C-PACER financing, together with interest, penalties, fees and charges related thereto;

(3) *Assessment agreement* means an agreement between the city and a record owner whereby the city agrees to place an assessment to re-pay C-PACER financing and C-PACER lien on the property to secure the obligation to repay the financing;

(4) *Assessment installment* means annual payments assessed against property to repay C-PACER financing;

(5) *Capital provider* means a private third-party entity, including its designee, successor, and assigns that makes or funds C-PACER financing, including refinancing;

(6) *C-PACER financing* means an investment from a capital provider to a record owner to finance or refinance a qualified project as described under this chapter. The proposed C-PACER financing for a qualified improvement may authorize the record owner to:

a. Purchase directly the related equipment and materials for the installation or modification of a qualified improvement; and

b. Contract directly, including through lease or other service contract, for the installation or modification of a qualified improvement;

(7) *C-PACER lien* means the lien recorded at the Shelby County Register of Deeds on the eligible property to secure the C-PACER financing, which remains on the property until the C-PACER financing is paid in full;

(8) *Eligible property* means (a) privately owned commercial, industrial, or agricultural real property, (b) privately owned residential real property consisting of five or more dwelling units, (c) property owned by nonprofit, charitable, or religious organizations, and (d) property owned by pseudo-governmental organizations such as industrial development corporations, housing authorities, or health educational and housing facility boards. Pawn shops, adult entertainment and product stores, liquor and tobacco stores, payday loan and title loan establishments, as well as other business types determined in the local government's sole discretion shall not be considered commercial property;

(9) *Fair market value* means the as-appraised value, as determined by a state-certified appraiser, as if the property would change hands between a willing buyer and a willing seller, neither being under any compulsion to buy or to sell and both having reasonable knowledge of relevant facts;

(10) *financing agreement* means the contract under which a record owner agrees to repay a capital provider through assessment installments for the C-PACER financing including, but not limited to, details of any finance charges, fees, debt servicing, accrual of interest and penalties, and any terms relating to treatment of prepayment and partial payment of the C-PACER financing;

(11) *Local government* means the governing body, any department, or any office within the government for the City of Memphis;

(12) *Program* means the C-PACER program established under this chapter;

(13) *Program administrator* means the party designated by the local government to administer the C-PACER program. This party may be (1) a department or individual within the local government; (2) a quasi-governmental organization, such as an industrial development corporations, housing authorities, or health educational and housing facility boards; (3) a capital provider; or (4) another private and independent third party designated by the local government.

(14) *Program guidebook* means documents that, collectively, are incorporated in exhibit A of this chapter, including the assessment agreement and the notice of assessment interest and C-PACER lien;

(15) *Program application* means the application submitted to demonstrate that a proposed project qualifies for C-PACER financing and for a C-PACER lien;

(16) *Qualified improvement* means a permanent improvement affixed to real property and intended to:

(a) Decrease energy consumption or demand through the use of efficiency technologies, products, or activities that reduce or support the reduction of energy consumption, allow for the reduction in demand, or support the production of clean, renewable energy, including, but not limited to, a product, device, or interacting group of products or devices on the customer's side of the meter that generates electricity, provides thermal energy, or regulates temperature;

(b) Increase resilience and support the production of clean, renewable energy, including through the use of a product, device, or interacting group of products or devices on the customer's side of the meter that generates electricity, provides thermal energy, or regulates temperature;

(c) Decrease water consumption or demand and address safe drinking water through the use of efficiency technologies, products, or activities that reduce or support the reduction of water consumption;

(d) Allow for the reduction or elimination of lead from water that may be used for drinking or cooking;

(e) Increase water or waste water resilience, including through storm retrofits, flood mitigation, and stormwater management, or wind resistance, energy storage, microgrids, and other resilience projects approved by the local government;

(f) Electrical vehicle charging infrastructure;

(g) Conform to requirements of the most recent version of the International Energy Conservation Code adopted by the local government; or

(h) Conform to seismic requirements of the most recent version of the International Building Code adopted by the local government.

(17) *Qualified project* means a project approved by the program administrator, involving the installation or modification of a qualified improvement, including new construction or the adaptive reuse of eligible property with a qualified improvement, including qualified improvements installed no more than two years prior to the date of application. Together, qualified improvements, inclusive of all related and eligible costs pursuant to the C-PACER Act that are to be financed as described in a program application and approved by the program administrator, are a qualified project. If the program administrator is a capital provider, the local government must also approve the project for it be to be a qualified project. The minimum project size for a qualified project is one that costs $1,000,000.00; and

(18) *Record owner* means the owner or owners on title, duly recorded, of a commercial property, the owner listed on the property's legal documents on file or the owner of an estate for years created pursuant to a written ground lease agreement or similar agreement.

The record owner requesting to participate in the program must certify (1) the record owner is the legal owner o the eligible property; (2) the record owner is current on mortgage and property tax payments; (3) the record owner is not insolvent or in bankruptcy proceedings; and (4) the title of the eligible property is not in dispute.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-3. Territory.

The program shall be available to all eligible property within the boundaries of the region, in accordance with the C-PACER Act. The region is the areas of the city as shown in the map attached to this chapter.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-4. Program administration.

1. Pursuant to the C-PACER Act, the local government designates the economic development growth engine industrial development board of the City of Memphis and the County of Shelby, Tennessee ("EDGE") as the program administrator. If EDGE is no longer the program administrator for any reason, then the local government will either assume the role of public administrator or designate a new third-party entity to serve as public administrator. The program administrator shall review and approve the program applications submitted in accordance with the program guidebook, collect any fees, execute the documents required by the program guidebook to enable C-PACER financing, and record the documents requested by the record owner and capital provider.

2. The program administrator is authorized to impose fees to offset the actual and reasonable costs of administering the program. The fees may be assessed as part of the program application, to be paid by the record owner requesting to participate in the program. Service fees of approved applications must be calculated as one percent of the total amount financed, not to exceed $50,000.00. Service fees retained by a capital provider acting as the designated program administrator must be placed into a reserve account and utilized for costs related to the billing, collection, and enforcement of the special assessment and lien. If the local government does not select a capital provider as its designated program administrator, then the funds must be placed into an account designated by the program administrator.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-5. C-PACER financing.

1. C-PACER financing, under the C-PACER Act, is to be provided by capital providers through a financing agreement entered into with the owner of an eligible property to fund a qualified project.

2. The C-PACER financing may include:

a. The cost of the qualified improvement plus the costs of materials and labor necessary for the installation or modification of a qualified improvement;

b. Permit fees;

c. Inspection fees;

d. Financing or origination fees;

e. Program application and administrative fees;

f. Project development and engineering fees;

g. Third-party review fees, including verification review fees;

h. Capitalized interest, in an amount determined by the record owner and the capital provider for a period of years to be determined by the record owner and capital provider;

i. Interest reserves; and

j. Any other fees or costs that may be incurred by the incident to the installation, modification, or improvement of a qualified improvement on a specific or pro rata basis, as determined by the local government.

3. The interest rates imposed upon the assessment are subject to the usury laws of the State of Tennessee and shall not exceed the maximum allowed interest rates. The capital provider may not impose variable interest rates upon the assessment.

4. The assessment of the property, plus existing indebtedness on the property, cannot exceed:

a. Ninety percent of the fair market value of the property prior to the completion of all planned real property improvements, as determined by

a state-certified appraiser, with the exception that properties qualified under the federal low-income housing tax credit program set forth in 26 U.S.C. § 42 are exempt from this requirement; and

b. Twenty-five percent of the fair market value of the property at the time of the completion of all planned real property improvements, as determined by a state-certified appraiser.

5. Prior to entering into a financing agreement, the capital provider must receive written consent from every holder of a deed of trust or mortgage interest in the real property that will be subject to the assessment and C-PACER lien agreeing that the property may participate in the program and that the C-PACER lien will take precedence over all other liens except for a lien for taxes.

6. The period of the special assessment must not exceed the weighted average of the useful life of the qualified project that is the basis for the assessment.

7. Prior to approval of financing on a leasehold owned by this state or the local government, but leased to a privately owned entity as described in T.C.A. § 68-205-102(2)(C), the consent of this state or the local government must be obtained. A change to the leasehold local government must be held harmless if the privately owned entity to which the leasehold is leased defaults on a financing agreement for a leasehold changed in accordance with this section.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-6. C-PACER lien.

1. The C-PACER lien amount, plus any interest, penalties, fees and charges accrued or accruing on the C-PACER lien:

a. Takes precedence over all other liens or encumbrances except a lien for taxes imposed by the state, a local government, or a junior taxing district on real property, provided existing mortgage holders, if any, have provided written consent described in section 9-108-5(3); and

b. Is a first and prior lien, equal to the lien for taxes imposed by the state, a local government, or a junior taxing district against the real property on which the C-PACER lien is imposed, from the date on which the notice of the C-PACER lien is recorded until the C-PACER lien, interest, penalties, fees and charges accrued or accruing are paid in full.

2. The C-PACER lien runs with the land, and that portion of the C-PACER lien that has not yet become due is not accelerated or eliminated by enforcement of the C-PACER lien by tax sale or any lien for taxes imposed by the state, a local government, or junior taxing district against the real property on which the C-PACER lien is imposed.

3. Delinquent assessment installments incur interest and penalties as specified in the financing agreement.

4. After the C-PACER lien is recorded as provided in this chapter, the assessment, C-PACER financing and the C-PACER lien may not be contested on the basis that the improvement is not a qualified improvement or that the project is not a qualified project.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-7. Application and review.

1. A record owner and capital provider shall complete a program application and submit it to the program administrator for review.

2. The program application shall require:

a. An attestation by the record owner that the project consists of one or more "qualified improvement" as defined by [section] 9-108-2(14).

b. For an existing building seeking improvements:

(a) Where energy or water usage improvements are proposed:

(1) A certification by a licensed engineering firm, engineer, or other qualified professional listed in the program guidebook, with the licensed professional's stamp affixed to the certification, stating that the proposed qualified improvements will either result in more efficient use or conservation of energy or water, the reduction of greenhouse gas emissions, or the addition of renewable sources of energy or water; and

(2) An analysis by a licensed professional explaining how the proposed qualified improvements will either result in more efficient use or conservation of energy or water, the reduction of greenhouse gas emissions, or the addition of renewable sources of energy or water;

(b) Where safe drinking water measures are proposed:

(1) A certification by a licensed professional engineer, with the licensed professional engineer's stamp affixed to the certification, stating that the qualified improvements will result in the reduction of lead in potable water; and

(2) An analysis by a licensed professional engineer explaining how the qualified improvements will result in the reduction of lead in potable water; or

(c) Where resilience improvements are proposed:

(1) A certification by a licensed professional engineer, with the licensed professional engineer's stamp affixed to the certification, stating that the qualified improvements will result in improved resilience and an analysis explaining how the qualified improvements will result in improved resilience; and

(2) An analysis by a licensed professional engineer explaining how the qualified improvements will result in improved resilience and an analysis explaining how the qualified improvements will result in improved resilience.

c. For new construction, an applicant must provide:

(a) A certification by a licensed professional engineer, with the licensed professional engineer's stamp affixed to the certification, stating that the proposed qualified improvements, individually, or acting as a whole, will enable the project to exceed the energy efficiency, water efficiency, renewable energy, renewable water, or resilience requirements of the current building code of the city; and

(b) An analysis explaining how the qualified improvements, individually, or acting as a whole, will enable the project to exceed the energy efficiency, water efficiency, renewable energy, renewable water, or resilience requirements of the current building code of the city.

3. The program administrator shall review the program application according to the application checklist solely to determine whether it is complete, proposes a "qualified improvement," contains no errors on its face, and that all information is provided in the substance and form required by the application checklist. If so, the program administrator shall sign the application checklist indicating that the program application is deemed approved and the project is a qualified project. If a program application is incomplete and/or does not conform to the requirements of the application checklist, the program administrator shall inform the applicant as soon as practicable that the program application is denied, the reasons for the denial, and any corrections that could make the program application acceptable. If feasible, the applicant shall have an opportunity to correct the program application.

4. Upon approval of a program application, a record owner or capital provider shall provide the completed (1) the assessment agreement; (2) the notice of assessment interest and C-PACER lien; (3) Certificate of C-PACER completion; (4) Economic benefits compliance certificate; (5) Energy water resilience compliance certificate; (6) Mortgage holder consent; (7) MLGW compliance certificate, if applicable, and (8) Program application checklist for execution at least ten days prior to close of the C-PACER transaction, along with a requested date for recordation of such forms.

5. The program administrator, on behalf of the local government, shall record in its real property records (1) the assessment agreement; (2) the notice of assessment interest and C-PACER lien; (3) Certificate of C-PACER completion; (4) Economic benefits compliance certificate; (5) Energy water resilience compliance certificate; (6) Mortgage holder consent; (7) MLGW compliance certificate, if applicable, and (8) program application checklist at the date requested by the record owner and

capital provider or, at the request of the record owner and the capital provider, the executed documents may be delegated to the capital provider.

6. For a record owner and capital provider whose program application is denied by the local government's program administrator, either party, or both, may request an adjudicative proceeding before the local government's adjudicative body, consistent with the local government's rules and subject to the applicable provisions of Tennessee's Administrative Procedures Act, Tenn. Code Ann. §§ 4-5-101 et seq.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-8. Program guidebook.

1. The C-PACER program shall be administered in accordance with the requirements contained in the program guidebook established by the program administrator from time to time.

2. The program guidebook and forms may be amended by the program administrator without approval by the Memphis City Council, provided that such amendments comply with the C-PACER Act and other applicable law.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-9. Collection and enforcement.

1. Collection of assessment installments and enforcement of C-PACER liens due to delinquent assessment installments, including enforcement by tax sale, shall be enforced in the same manner that a property tax lien against commercial property is enforced by the local government.

2. The local government hereby designates the Memphis City Treasurer to collect assessment installments and enforce C-PACER liens due to delinquent assessment installments. The Memphis City Treasurer shall remit any and all assessment installments it collects to the capital provider to whom the payment is due within 90 days of receipt thereof.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-10. Fees.

An application fee shall be paid to the local government when the program application is submitted. The amount of the fee shall be determined by the program administrator. Pursuant to the program guidebook, the program administrator shall establish a fee that makes the costs of the C-PACER program cost-neutral to the local government and program administrator provided, however that the fees for any assessment may not exceed one percent of the applicable C-PACER financing and shall not in any case exceed $50,000.00.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-11. Enactment.

The provisions of this chapter are hereby declared to be severable and if any section, phrase or provision shall for any reason be declared by a court of competent jurisdiction to be invalid or unenforceable, such declaration shall not affect the validity or enforceability of the remainder of the sections, phrases and provisions hereof. All ordinances, orders, resolutions, and parts thereof in conflict herewith are to the extent of such conflict hereby repealed upon the effectiveness of this chapter. No provision of the Municipal Code or violation of any provision of the Code shall be deemed to impair the validity of this chapter or the instruments authorized by this chapter or to impair the security for or payment of the instruments authorized by this chapter; provided further, however, that the foregoing shall not be deemed to affect the availability of any other remedy or penalty for any violation of any provision of the Code. In the event and to the extent of a conflict between this chapter and the C-PACER Act, the C-PACER Act shall govern.
(Ord. No. 5832, § 1, 8-23-2023)

Sec. 9-108-12. No liability.

Except for a right of action to enforce the terms of this chapter, this chapter does not confer any right of action nor property interest upon any party to a C-PACER transaction against the local government or the program administrator, and, so long as the local government or program administrator comply in good faith with the terms of the C-PACER Act and this chapter, neither the local government nor the program administrator shall incur liability for enacting this program, nor shall the local government, its governing body, executives, or employees nor the program administrator, its governing body, executives, or employees be personally liable as a result of exercising any rights or responsibilities granted under this chapter.
(Ord. No. 5832, § 1, 8-23-2023)

Title 10

PUBLIC PEACE, MORALS AND WELFARE

Chapters:

10-4.	State Misdemeanor Statutes Adopted
10-8.	Offenses Against Public Peace and Decency
10-10.	Graffiti Vandalism
10-12.	Property Offenses
10-16.	Theft and Related Offenses
10-20.	Prostitution
10-24.	Performances Harmful to Minors
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CHAPTER 10-4. STATE MISDEMEANOR STATUTES ADOPTED

Sections:

Sec. 10-4-1. State misdemeanors.

Sec. 10-4-1. State misdemeanors.

A. Any offense made a misdemeanor under the laws of the state, committed within the corporate limits of the city, which the legislative body of the city could, by ordinance, make a misdemeanor by virtue of the charter powers of the city, shall be a misdemeanor.

B. It shall be a misdemeanor against this city for any person to do or cause to be done any act which shall be declared a misdemeanor against the state by legislation hereafter passed, whenever such act is committed within the corporate jurisdiction of the city, after such state legislation has become effective and in force and effect upon the inhabitants of this state.

(Code 1967, § 22-45; Code 1985, § 20-1)

State law reference—Crimes generally, T.C.A. § 39-11-101 et seq.

CHAPTER 10-8. OFFENSES AGAINST PUBLIC PEACE AND DECENCY

Sections:

Sec. 10-8-1. Assault and battery.
Sec. 10-8-2. Disorderly conduct.
Sec. 10-8-3. Disturbing religious or other lawful assemblies.
Sec. 10-8-4. Disturbing or disquieting school students or occupants.
Sec. 10-8-5. Drunkenness in private places.
Sec. 10-8-6. Drunkenness in public places.
Sec. 10-8-7. Malicious mischief.
Sec. 10-8-8. Unlawful assembly.
Sec. 10-8-9. Regulation of drug/gang-related lingering or loitering.
Sec. 10-8-10. Indecent exposure and dress.
Sec. 10-8-11. Gambling.
Sec. 10-8-12. Nudity and sexual activities in public places.

Sec. 10-8-1. Assault and battery.

A. It is unlawful for any person to commit an assault or an assault and battery.

B. Violation of this section shall be a misdemeanor punishable as provided in section 1-24-1.

(Code 1967, § 22-4; Code 1985, § 20-4)

Sec. 10-8-2. Disorderly conduct.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

A. He or she acts in a violent or tumultuous manner toward another whereby any person is placed in danger of safety of his or her life, limb or health;

B. He or she acts in a violent or tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged;

C. He or she causes, provokes or engages in any fight, brawl or riotous conduct so as to endanger the life, limb, health or property of another;

D. In a public place, he or she uses abusive or obscene language intending that it be heard by members of the public and uttered with the intention to disturb the hearer;

E. Without lawful authority, he or she disturbs any lawful assembly or meeting or persons with intent to disrupt and deprive others of their right to attend or participate;

F. He or she obstructs vehicular or pedestrian traffic;

G. He or she congregates with another or others in a public place depriving others of the lawful use and refusing to comply with a lawful order of the police to disperse; or

H. By acts of violence interferes with another's pursuit of a lawful occupation or activity.

(Code 1967, § 22-12; Code 1985, § 20-8; Ord. No. 869, § 1, 2-16-1971; Ord. No. 930, § 1, 4-27-1971)

State law reference—Disorderly conduct, T.C.A. § 39-17-305.

Sec. 10-8-3. Disturbing religious or other lawful assemblies.

It is unlawful for any person to disturb or disquiet any congregation or assembly, met for religious or other lawful purpose, by making any noise, or by rude and indecent behavior, or by boisterous or profane discourse within or near such place.

(Code 1967, § 22-15; Code 1985, § 20-9; Ord. No. 931, § 1, 4-27-1971)

State law reference—Disruption of meetings or processions, T.C.A. § 39-17-305.

Sec. 10-8-4. Disturbing or disquieting school students or occupants.

A. It is unlawful for any person while on any public road or street or sidewalk or in any building or structure or on the school premises to willfully interfere with, disturb, or in any way disquiet the students or pupils of any university, college, public or private school in the city while same is in session, or the principal or teachers in charge of such students or pupils; nor shall any such person, while such school is in session, communicate with such students or pupils for the purpose of interfering with, disturbing or in any way disquieting them, either orally or in writing or by signs or otherwise.

B. It shall also be unlawful for any person or persons to cause, advise or procure any other person or persons to perform or participate in the performance of any of the acts or conduct prohibited by this section.
(Code 1967, § 22-15.1; Code 1985, § 20-10)

Sec. 10-8-5. Drunkenness in private places.

It is unlawful for any person to be drunk in any private place, to the annoyance of others.
(Code 1967, § 22-17; Code 1985, § 20-11; Ord. No. 933, § 1, 4-27-1971)

Sec. 10-8-6. Drunkenness in public places.

It is unlawful for any person to be drunk in any public place so as to be incapable of protecting his or her own safety or in such condition as to constitute a danger to himself or herself or to others or to be drunk in any public place to the annoyance of other persons.
(Code 1967, § 22-17.1; Code 1985, § 20-12)

State law references—Public intoxication, T.C.A. § 39-17-305; local public intoxication ordinances, T.C.A. § 33-10-203.

Sec. 10-8-7. Malicious mischief.

A. For the purpose of this section, the term "malicious mischief" shall be defined and considered as any malicious or mischievous physical injury either to the property or rights of another or to those of the public in general, and without the consent of the owner.

B. Without excluding any act not herein named, but expressly included herein, the following acts shall be and constitute malicious mischief and a misdemeanor:

1. Damaging a vessel or building by explosion;
2. Burning crops, timber or grass;
3. Altering or removing a signal or light for a railroad or vessel or exhibiting false lights or signals;
4. Maliciously injuring, destroying, defacing or removing any milestone, post, guideboard, or street marker, bridge, private way, pier, tree, rock, post, or other monument for designating property, telegraph or telephone wire, or cable, or appurtenances belonging thereto, pipe or main for conducting gas or water and appurtenances thereto, electric lines, lamps, posts and appurtenances thereto, sewer or drain or pipe connected therewith, fire hydrants, hose or appliances, fire extinguishers, danger and guideposts;
5. Entering upon the garden, orchard, or improved cultivated or enclosed lands of another, and to willfully or wantonly sever, destroy, carry away, or injure the trees, shrubs, vines, flowers, moss, turf, grain, grass, hay, fruit or vegetables thereon;
6. Digging, taking or carrying away earth, soil or stone from the land of another;
7. Placing any structure upon the land of another;
8. Breaking plate glass windows or doors of another;
9. Breaking, defacing or injuring any house of religious worship;
10. Connecting any tube, pipe, wire or other instrument with any instrument used for conducting gas, fuel, electricity or water, in such manner as to use such gas, fuel, electricity or water without same passing through a meter or other instrument;
11. Altering, injuring or preventing the action of a meter, valve, stopcock, or other instrument used for measuring quantities of gas, electricity or water;
12. Breaking, defacing or causing to be broken or defaced, the seal on any water meter;
13. Loosening the brake or blocking of any car standing on any railroad track in the city;
14. Taking or carrying away any coal or other fuel from any railroad car or environs of the city;

15. Maliciously to cut away, let loose, injure or destroy any raft, boat, floating mill, watercraft or vessel of another, or carrying the same from its moorings;

16. Knowingly or willfully to destroy or carry away the rails or boards, wood or other lumber of another, or to tear down or remove any structure or part thereof, or to destroy or remove therefrom any plumbing, electrical equipment or other appurtenances;

17. Maliciously to destroy, injure or secrete any goods, chattels or valuable papers of another;

18. Wantonly or unnecessarily to remove, cut, injure or destroy any tree, shrub, vine, moss or turf growing or being located upon any public lands of any character whatsoever, including all public parks and the entire rights-of-way of all public highways, roads, streets and alleys;

19. For any chauffeur or any other person in like capacity to use the automobile of another without the owner's permission or consent;

20. Willfully to top, cut, burn, break down, injure or destroy, or otherwise to interrupt or interfere with the current, lines, cables, poles, towers, fixtures or appliances of any telephone or telegraph company, or electric light or power company or municipality engaged in furnishing communication, light, heat or power by electricity, or in any way to injure, remove, destroy or interfere with any gas, water or electrical fixtures or appliances.

(Code 1967, § 22-25; Code 1985, § 20-14; Ord. No. 936, § 1, 4-27-1971)

State law reference—Vandalism, T.C.A. § 39-14-408.

Sec. 10-8-8. Unlawful assembly.

A person is guilty of unlawful assembly when he or she assembles with four or more other persons for the purpose of engaging or preparing to engage with them in tumultuous and violent conduct likely to cause public alarm, or a clear and present danger to persons or property, or when, being present at an assembly which either has or develops such purpose or purposes, he or she remains there with intent to advance that purpose or purposes.

(Code 1967, § 22-48.1; Code 1985, § 20-20; Ord. No. 866, §§ 1, 2, 2-16-1971)

Sec. 10-8-9. Regulation of drug/gang-related lingering or loitering.

The purpose of this section and legislation is to regulate and punish violations of the act of illegal drug-related loitering/lingering. Exclusion: the activity of loitering/lingering does not include any activity by a person who passively stands or sits without addressing any solicitation to any specific person other than in response to any inquiry by that person, and in no manner intimidates or uses aggressive behavior.

A. *Generally.* It is unlawful for any person to linger or loiter alone or congregate with others upon any public street or sidewalk, public buildings, or other public place, school grounds, playing fields, park or recreation buildings, in such a manner and under circumstances manifesting the purpose of selling or purchasing illegal drugs or effecting a pattern of criminal gang activity, so as to obstruct pedestrian or vehicular traffic, and refuse to cease such obstruction when ordered to by police.

B. *Definitions.* For the purposes of this section, certain terms shall have the meaning as ascribed to them in this subsection, unless the context clearly indicates otherwise.

Aggressive behavior means to attempt to or to initiate conversation with intent to offer, sell, purchase, or intimidate another person into giving money or goods in exchange for illegal drugs or against their will.

Gang means any ongoing organization, association, or group of three or more persons, whether formal or informal, having as one of its primary activities the commission of a criminal act as defined in the Tennessee Code Annotated, having a common name or common identifying sign or symbol, and whose members individually or collectively engage in or have engaged in a pattern of criminal gang activity.

Illegal drugs means any controlled or restricted substance or drug, the sale of which is prohibited by the Tennessee Code Annotated.

Intimidate means to engage intentionally in conduct which would make a reasonable person fearful or feel compelled. A person commits the offense of intimidating others from exercising civil rights who injures or threatens to injure or

coerce another person with intent to unlawfully intimidate another from the free exercise or enjoyment of a right or privilege secured by the constitution or laws of the State of Tennessee.

Known drug dealer means a person who, within one year previous to the date of citation for violation of this section, has, within the knowledge of the enforcing officer, been convicted of a crime involving the sale of illegal drugs or a crime involving the possession of illegal drugs with the intent to sell.

Known drug purchaser means any person who, within one year previous to the date of a citation for violation of this section, has, within the knowledge of the enforcing officer, been convicted of a crime involving the purchase of illegal drugs.

Known gang associate/member means a person who, within one year previous to the date of a citation for violation of this section, has, within the knowledge of the enforcing officer, been convicted of a crime committed while the person was associated with or a member of a gang, or convicted of a crime committed in conjuncture with criminal gang activity.

Lingering or *loitering* means to lounge about idly or to linger, to stay unnecessarily, whether on foot or in or upon a motorized or nonmotorized vehicle.

Obstruct pedestrian or vehicular traffic means when a person without legal privilege intentionally, or knowingly walks, stands, sits or places any object in such a manner as to cause another person or a driver of a vehicle to take evasive action to avoid physical contact. Acts authorized as an exercise of one's constitutional right to picket or to legally protest shall not constitute obstruction of pedestrian or vehicular traffic.

Park means all public parks and public recreation areas, whether leased or owned, which have been or shall be adopted by the city park commission.

Pattern of criminal gang activity means the commission, attempted commission or solicitation of one or more of the following by two or more persons who are members of a gang as defined in this section, provided at least one of those offenses occurred within three years after a prior offense, and the offenses are committed on separate occasions, or by two or more persons:

1. Assault with a deadly weapon or by means of force likely to produce great bodily injury, as defined by Tennessee Statutes;
2. Robbery, as defined by the Tennessee Code Annotated;
3. Unlawful homicide or manslaughter, as defined by the Tennessee Code Annotated;
4. The sale, possession for sale, transportation, manufacture, offer for sale, or offer to manufacture controlled substances, as defined in the Tennessee Code Annotated;
5. Shooting at an inhabited dwelling or occupied motor vehicle, as defined in the Tennessee Code Annotated;
6. Discharging or permitting the discharge of a firearm from a motor vehicle, as defined in the Tennessee Code Annotated;
7. Arson, as defined in the Tennessee Code Annotated;
8. (Grand) theft, as defined in the Tennessee Code Annotated;
9. Burglary, as defined in the Tennessee Code Annotated;
10. Rape, as defined in the Tennessee Code Annotated;
11. Money laundering, as defined in the Tennessee Code Annotated;
12. Kidnapping, as defined in the Tennessee Code Annotated;
13. Felony extortion, as defined in the Tennessee Code Annotated;
14. Felony vandalism, as defined in the Tennessee Code Annotated;
15. The sale, delivery, or transfer of a firearm as described in the Tennessee Code Annotated;
16. Possession of a pistol, revolver, or other firearm capable of being concealed upon the person in violation of the Tennessee Code Annotated.

Public building means a building belonging to the federal government, to the state or to the city, whether owned or leased, and any church, meetinghouse or other building generally used for religious worship or any university, college, academy, school or other building used for educational purposes.

Public place means any area within the Memphis city limits that is city, state or federally owned or controlled and accessible to the general public, including but not limited to buildings, streets, schools, sidewalks, bridges, alleys, plazas, parks, driveways and parking lots.

School means all public primary, middle and high schools, colleges, academies and other buildings and grounds, whether leased or owned, generally used for educational purposes.

C. *Prohibited conduct.* It shall be a violation of this section for any person who is a known drug dealer or purchaser, as defined in this section, to loiter in any public place in a manner and under circumstances manifesting the purpose of selling or purchasing illegal drugs or for any known gang associate/member, as defined in this section, to loiter in any public place in a manner and under circumstances manifesting engagement in a pattern of criminal gang activity. In determining whether the prohibited conduct, as stated above, is manifested, the following circumstances may be considered:

1. That such person repeatedly beckons to, stops or attempts to stop passerby or pedestrians and engages or attempts to engage them in conversation with intent to offer, sale, purchase, or intimidate that person into giving money or goods in exchange for illegal drugs or to place that person in such a situation as to be the victim of a criminal act;

2. That such person repeatedly stops or attempts to stop motorized or nonmotorized vehicle operators by hailing, waiving of arms or other bodily gestures so that they may engage them in conversation with intent to offer, sale, purchase, or intimidate that person into giving money or goods in exchange for illegal drugs or to place that person in such a situation as to be the victim of a criminal act.

D. *Proof of guilt.* No person shall be found to have violated this section unless such person is:

1. A known drug dealer or drug purchaser as defined in this section;

2. A known gang associate or member as defined in this section;

3. Engaging in prohibited conduct, as defined in this section;

4. Loitering in any public place in a manner and under circumstances manifesting the purpose of selling or purchasing illegal drugs or engaging in prohibited conduct, as defined in this section;

5. Loitering in any public place in a manner and under circumstances manifesting engagement in a pattern of criminal gang activity as defined in this section; and/or

6. Refusing to cease such conduct when ordered to by a law enforcement officer and/or resumes such conduct after being ordered to cease by the officer.

E. *Penalties for violations.* Any person found in violation of any one or all of the subsections of this section is deemed guilty of a misdemeanor and upon conviction thereof subject to penalties as set under section 1-24-1.

F. *Posted property.* Authorization is given for the posting of appropriate signs, as may become necessary and desirable in order to: (1) protect minors in such parks, school grounds and other public property; (2) assist the police in crime prevention; (3) protect the public from crime and mischief; and (4) promote the public good, safety and welfare.

(Code 1985, § 20-30; Ord. No. 4400, § 1, 3-19-1996)

Sec. 10-8-10. Indecent exposure and dress.

It is unlawful for any person to appear in a public place in a state of nudity, or to bathe in such state or to appear in public in an indecent or lewd dress, or to do any obscene or indecent act in any public place.

(Code 1967, § 22-23; Code 1985, § 20-106; Ord. No. 934, § 1, 4-27-1971)

State law reference—Nudity, T.C.A. § 39-13-511.

Sec. 10-8-11. Gambling.

A. It is unlawful for any person to keep a gambling house, room or other place, or to keep or have in his or her possession any table, cloth, box or device for the purpose of gambling.

B. It is unlawful for any person to play at any game of chance or hazard any money or other valuable thing, or in any way to aid, abet, countenance or encourage such game.

C. It is unlawful for any person to maintain himself or herself by gaming or other undue means, or remain at hotels or in the city for the purpose of gaming.
(Code 1967, § 22-22; Code 1985, § 20-107; Ord. No. 3369, § 1, 4-3-1984)

State law reference—Gambling, T.C.A. § 39-17-501 et seq.

Sec. 10-8-12. Nudity and sexual activities in public places.

A. It is unlawful for any person to perform in a public place, or for any person who owns or operates premises constituting a public place to knowingly permit or allow to be performed therein, any of the following acts or conduct:

1. The performance of acts or simulated acts of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by laws, including but not limited to the actual or simulated touching, caressing or fondling of the breasts, buttocks, anus or genitals in public; or

2. The actual or simulated public displaying of the pubic hair, anus, vulva or genitals.

B. With the exception of nursing mothers feeding their babies, it is unlawful for any live female to appear in a public place so costumed or dressed that one or both breasts are wholly or substantially exposed to public view, and it is unlawful for an owner or operator of premises constituting a public place to permit or allow any such person to appear on the premises owned or operated by him or her. "Wholly or substantially exposed to public view," as it pertains to breasts, means the showing of the female breast, in a public place, with less than a fully opaque covering of any portion of the areola, or with a covering simulating the areola.

C. For the purpose of this section, "public place" includes: streets, sidewalks or highways; transportation facilities; schools; places of amusement; parks; playgrounds; restaurants; nightclubs; cocktail lounges; burlesque houses; bars; cabarets; taverns; taprooms; private fraternal, social, golf or country clubs; or any public place that allows the consumption of intoxicating beverages on the premises.

D. Any person violating any of the provisions of this section shall be subject to all penal provisions provided by law, and the maximum fine provided by law.

E. Any violation of this section shall be a public nuisance and shall be subject to abatement by injunction.
(Code 1985, § 20-150; Ord. No. 4102, § 1, 5-12-1992)

State law reference—Nudity, T.C.A. § 39-13-511.

CHAPTER 10-10. GRAFFITI VANDALISM

Sections:

Sec. 10-10-1. Definitions.
Sec. 10-10-2. Graffiti prohibition.
Sec. 10-10-3. Possession of graffiti implements by minors prohibited.
Sec. 10-10-4. Possession of graffiti implements prohibited in designated public places.
Sec. 10-10-5. Sale of graffiti implements to minors prohibited.
Sec. 10-10-6. Responsibilities of commercial establishments; signage required.
Sec. 10-10-7. Penalty.
Sec. 10-10-8. Parental civil liability.
Sec. 10-10-9. Graffiti removal.
Sec. 10-10-10. Anti-graffiti trust fund.
Sec. 10-10-11. Reimbursement to municipality.

Sec. 10-10-1. Definitions.

For the purpose of the ordinance codified in this chapter, words and phrases shall have the following meanings, unless otherwise clearly indicated by the context:

Aerosol paint container means any aerosol container which is adapted or made for the purpose of spraying paint or other substance capable of defacing property.

Felt tip marker means any indelible marker or similar implement with a tip which, at its broadest width, is greater than one-quarter of an inch, containing ink or other pigmented liquid which is not water soluble.

Graffiti means any inscription, word, figure, or design that is marked, etched, scratched, drawn, painted, pasted or otherwise affixed to or, on any surface, regardless of the nature of the material of that structural component, to the extent that same was not authorized in advance by the owners thereof.

Graffiti implement means an aerosol paint container, a felt tip marker, or a graffiti stick.

Graffiti stick means any device containing a solid form of paint, chalk, wax, epoxy, or other similar substance capable of being applied to a surface by pressure, and upon application, of leaving a mark at least one-quarter of an inch in width and not water-soluble.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-2. Graffiti prohibition.

A. It shall be unlawful for any person to apply graffiti on any public or privately owned structures located on public or privately owned real property located within the area of the City of Memphis.

B. All persons directly or indirectly involved in acts of graffiti vandalism may be found to be equally responsible and guilty of the act, in addition to the individual who personally defaced the object or area, such as others in the group who knowingly make available the tools, writing materials, ladders, lookouts, materials or assistance, or who knowingly supply funds to acquire such materials for such purposes.
(Ord. No. 5238, § 1(part), 2007)

State law reference—Vandalism, T.C.A. § 39-14-408.

Sec. 10-10-3. Possession of graffiti implements by minors prohibited.

It shall be unlawful for any person under the age of 18 years to have in his or her possession any graffiti implement while upon public property or upon private property without the consent of the owner of such private property whose consent is given in advance and whose consent shall be given as to the person's presence while in possession of a graffiti implement. The foregoing provision shall not apply to the possession of felt tip markers by minors attending, or traveling to or from a school at which the person is enrolled, if the person is participating in a class at said school which formally requires the possession of felt tip markers. The burden of proof in any prosecution for violation of this section shall be upon the minor student to establish the need to possess a felt tip marker.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-4. Possession of graffiti implements prohibited in designated public places.

It shall be unlawful for any person to have in his or her possession any graffiti implement while in or upon any public facility, park, playground, swimming pool, recreational facility, or other public building or within 100 feet of an underpass, bridge abutment, storm drain, or similar types of infrastructure unless otherwise authorized by the municipality.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-5. Sale of graffiti implements to minors prohibited.

No person or firm shall sell or cause to be sold to any person under the age of 18 years, and no person under the age of 18 years shall buy any graffiti implement as defined in section 10-10-1. Evidence that a person, or his/her employee or agent demanded and was shown bona fide evidence of majority and acted upon such evidence in a transaction or sale shall be a defense to any violation of this section. For purposes of this section, "bona fide evidence of majority" means a document issued by a federal, state, county, or municipal government or agency thereof, including but not limited to, a motor vehicle operator's license, or registration certificate issued under the Federal Selective Service Act, a passport, or an identification card issued to a member of the armed forces which identifies an individual and provides proof of the age of such individual.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-6. Responsibilities of commercial establishments; signage required.

Every person who operates a retail commercial establishment selling graffiti implements shall place a sign in clear public view at or near the display of such products stating:

> "Graffiti vandalism is against the law. Any person who vandalizes real or personal property with paint or any other liquid or device is guilty of a crime under the Code of Ordinances of Memphis, TN, Title 10, Chapter 10 - Graffiti Vandalism."

(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-7. Penalty.

Any person who is found to have violated this chapter shall be assessed a penalty. Acts of graffiti vandalism are to be valued according to the provisions of T.C.A. § 39-11-106(a)(36) and punished as vandalism pursuant to T.C.A. § 39-14-408.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-8. Parental civil liability.

Any parent or legal guardian who consents to, permits, or otherwise knowingly allows her or his child under the age of 18 to possess a graffiti implement which is found to have been used to deface private or public property shall be personally liable for any and all costs to any person incurred in connection with the removal of graffiti caused by said child or by said graffiti implement.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-9. Graffiti removal.

A. The City of Memphis Division of General Services may use municipal funds to remove graffiti or other inscribed material from publicly owned real or personal property or privately owned real or personal property visible from publicly owned property and located within the City of Memphis and to replace or repair publicly owned property or privately owned property visible from publicly owned property within the city that has been defaced with graffiti or other inscribed material.

B. In removing, repairing or replacing the real or personal property pursuant to this section, the City of Memphis may use the services of persons ordered to perform those services by a general sessions, criminal or juvenile court.

C. The City of Memphis and its officers, employees, agents, volunteers and persons ordered to perform nuisance removal by a general sessions, criminal or juvenile court shall not be liable for any damages or loss of property:

1. Due to the removal of graffiti performed pursuant to the provisions of this section.
2. Due to the repair or replacement of the property performed pursuant to the provisions of this section.
3. Due to the failure by the municipality to remove, repair or replace property defaced by graffiti.

D. Every owner of real or personal property shall keep and cause to be kept such building free of all graffiti.

1. Subject to the availability of annual appropriations, the City of Memphis may provide graffiti removal services to abate graffiti on real or personal property without charge to the property owner if the property owner first executes a written consent and a waiver of liability.
2. Should the real or personal property owner fail to accept the city's graffiti removal services after the city has attempted in good faith to obtain written consent and a waiver of liability from the owner for such services, and the property owner fails to remove such graffiti within 30 days of receiving a notice, the property may be declared a nuisance which may be abated in any manner provided by law.

(Ord. No. 5238, § 1(part), 2007)

State law reference—Graffiti removal, T.C.A. § 6-54-127.

Sec. 10-10-10. Anti-graffiti trust fund.

A. The City of Memphis hereby creates the city anti-graffiti trust fund. Fines and penalties against violators of this division shall be placed in the fund. The city shall direct expenditures of moneys from the fund for the purposes of payment of the cost of graffiti removal and for such other public purpose as may be approved by resolution of the city council.

B. The City of Memphis may also use city anti-graffiti trust funds or other municipal funds for anti-graffiti education and prevention.

C. The City of Memphis may operate a "hot line" for the purpose of receiving reports of unlawful application of graffiti on public or private property.
(Ord. No. 5238, § 1(part), 2007)

Sec. 10-10-11. Reimbursement to municipality.

In the event the person or persons responsible for the graffiti are convicted and the court orders the offender(s) to pay restitution for the cost of the clean up, and the City of Memphis has expended funds to remove the graffiti, the restitution shall be directed to the city as reimbursement for the cost of the clean up.
(Ord. No. 5238, § 1(part), 2007)

CHAPTER 10-12. PROPERTY OFFENSES*

Sections:

Sec. 10-12-1. Public library—Failure to return, destroying or injuring books and other property—Use of fictitious name or address to obtain books.
Sec. 10-12-2. Dangerous and offensive substances—Exposing in public places.
Sec. 10-12-3. Dangerous conditions on premises.
Sec. 10-12-4. Excavations—Leaving unguarded.
Sec. 10-12-5. Names to be affixed to business houses.
Sec. 10-12-6. Playing ball on streets, or public places, except in parks or playgrounds—Vacant lots.
Sec. 10-12-7. Giving performances on streets.
Sec. 10-12-8. Trees on public property—Destroying or damaging.
Sec. 10-12-9. Public property and works—Injuring or defacing, and regulating advertising and/or campaign materials.

Sec. 10-12-1. Public library—Failure to return, destroying or injuring books and other property—Use of fictitious name or address to obtain books.

A. It shall be a misdemeanor for any person to detain or fail to return to any public library in the city any book, periodical, map, newspaper, plate, engraving, magazine, pamphlet, manuscript, picture, clipping or other property belonging to any public library in the city after the lapse of 30 days from the date of posting by certified mail of a notice addressed to such person at the last address furnished the public library, which notice may be given at any time after the date on which such person should have returned the loaned property in accordance with the rules of such public library; provided, however that, no penalty shall be imposed in any case where restitution in value shall have been made prior to the expiration of such 30-day period, nor in any case where the return of such loaned property belonging to any public library in the city has been rendered impossible by causes beyond the control of the borrower.

B. It shall be a misdemeanor to give a fictitious or incorrect name or address at any public library in order to obtain possession or use of any property, as described in subsection A of this section, belonging to any public library in the city.

C. It shall be a misdemeanor for any person to cut, write upon, injure, deface, tear or destroy any property, as described in subsection A of this section, belonging to any public library in the city.
(Code 1967, § 22-42; Code 1985, § 18-1; Ord. No. 1207, § 1, 3-7-1972; Ord. No. 3009, § 1, 5-13-1980)

Sec. 10-12-2. Dangerous and offensive substances—Exposing in public places.

No person shall take, carry, expose or place in or upon any street or public building any substance, animal or thing which is or is likely to become a public nuisance; or which shall imperil the life, health or safety of any person who is or may properly be in such public place or building; or which through the giving off of odors or noises shall be or become offensive, or injuriously affect the comfort and service of persons using such public place or building.
(Code 1967, § 22-10; Code 1985, § 20-6)

Sec. 10-12-3. Dangerous conditions on premises.

No owner, tenant, lessee, occupant, or manager of any private, residential, commercial, industrial or publicly owned property within the city shall cause, keep or permit on such property excavations, corrosive chemicals, exposed electrical conduits, poisonous and highly flammable substances, unguarded operating machinery, or similar conditions, that because of their nature and ease of accessibility would be dangerous to small children and unsuspecting persons. Whenever such conditions exist, and when it is the determination of the health officer that such conditions constitute a threat to the life or safety of the citizens, it shall be his or her duty to require that the condition be made safe by modification, or made inaccessible to unauthorized and unsuspecting persons.
(Code 1967, § 22-11; Code 1985, § 20-7)

Sec. 10-12-4. Excavations—Leaving unguarded.

It shall be a misdemeanor for any person to permit any well, cistern or other excavation to remain open and uncovered, to the danger of others.
(Code 1967, § 22-20; Code 1985, § 20-13)

Sec. 10-12-5. Names to be affixed to business houses.

It is unlawful for any person doing any business in the city to follow the same, unless his or her name, or name

*__State law reference__—Property offenses, T.C.A. § 39-14-101 et seq.

of the firm, is printed or affixed in legible letters over the front door of his or her business house, the letters to be of the usual size used on such signs.
(Code 1967, § 22-33; Code 1985, § 20-15)

Sec. 10-12-6. Playing ball on streets, or public places, except in parks or playgrounds—Vacant lots.

A. It shall be a misdemeanor to play, or to throw or to kick balls in any sport, on any street or other public place within the city, except in parks and playgrounds.

B. It shall be deemed a nuisance to play, throw or kick balls, pucks, missiles, rocks, stones, or other objects used in sports or games, upon any vacant lot or yard without the owner's permission, or to create an annoyance in violation of conditions as provided under chapter 9-68.
(Code 1967, § 22-35; Code 1985, § 20-16; Ord. No. 4689, § 1, 7-20-1999)

Sec. 10-12-7. Giving performances on streets.

It is unlawful for any person to employ any device, noise or performance tending to the collection of persons on the streets or other public places, to the obstruction of the same, or to exhibit any tricks of legerdemain, or other devices of a like kind, or perform with bells, organs or other instruments upon any of the streets, public squares or promenades.
(Code 1967, § 22-41(b); Code 1985, § 20-17)

Sec. 10-12-8. Trees on public property—Destroying or damaging.

It shall be a misdemeanor for any person to willfully break down, destroy, injure or remove any tree not obnoxious to health or otherwise injurious, or any of the boxes enclosing the same, on any street, public square or open court.
(Code 1967, § 22-48; Code 1985, § 20-19)

Sec. 10-12-9. Public property and works—Injuring or defacing, and regulating advertising and/or campaign materials.

A. No person shall injure or deface any public building, public work or public property; provided, however, painting of numerals of the street address on the curb immediately in front of a structure shall not be an act prohibited in this section when conforming to provisions set forth in section 12-4-7.

B. No person shall post, stick, stamp, paint or otherwise fix, or cause the same to be done by any person, any notice, placard, bill, card, poster, advertisement or other paper or device calculated to attract the attention of the public, to or upon any public property, including but not limited to, any street, sidewalk, crosswalk, curb, or any other portion or part of any public way or public place or building, or any telephone pole, light standard, stop sign, railway structure, tree, bush or shrub, or upon any railings, gates, or other parts of any public bridge, viaduct, subway or overpass, or upon any other public property, right-of-way or easement granted to the city. No person shall remove, deface or otherwise tamper with any lawfully posted signs.

C. Any notice, placard, bill, card, poster, advertisement or other paper or device as referred to in subsection B of this section, which contains a message attributable to a person or entity named thereon or an advertisement or telephone number notification for the benefit of a person or entity, or any properly authenticated photograph or videotape of same, shall be prima facie evidence that the notice, placard, bill, card, poster, advertisement or other paper or device was placed on public property in violation of this section by the person or entity whose name appears thereon or whose telephone number appears thereon, or by their employee or agent while acting in the scope of their employment or agency and on behalf of the person or entity whose name or telephone number appears thereon.

D. Each notice, placard, bill, card, poster, advertisement or other paper or device as referred to in subsection B of this section, found posted on public property in violation of this section shall be deemed to be a separate violation of this section. Each separate violation shall be punishable by a fine of $50.00. In addition, in order to remediate the harm caused the city by violations of this section, the city shall be entitled to recover a penalty in an amount equal to the cost incurred in locating, removing and disposing of such material, provided however that such penalty shall not exceed $200.00.

E. The division of public works is authorized to issue citations for violation of this section, and to act as the city's official representative in all prosecutions of such citations in all appropriate courts.
(Code 1967, § 22-43; Code 1985, § 20-26; Ord. No. 1432, § 1, 9-26-1972; Ord. No. 3156, § 1, 9-29-1981; Ord. No. 4999, 5-20-2003; Ord. No. 5073, § 1, 2004)

CHAPTER 10-16. THEFT AND RELATED OFFENSES*

Sections:

Sec. 10-16-1. Community antenna systems—Connecting, modifying or tampering with franchised system.
Sec. 10-16-2. Shoplifting.
Sec. 10-16-3. Defrauding light, gas and water division by tampering with measuring devices and diverting the utility services of another.

Sec. 10-16-1. Community antenna systems—Connecting, modifying or tampering with franchised system.

A. It is unlawful for any person to make or use any unauthorized connection whether physically, electrically, acoustically, inductively or otherwise with any part of a franchised cable television system for the purpose of enabling himself or herself or others to receive or use any television signal, radio signal, picture, program or sound, without payment to the owner of such system.

B. It is unlawful for any person without consent of the franchise owner to willfully transfer with, remove, or injure in any manner cables, wires, or equipment used for the distribution of television signals, radio signals, pictures, programs or sound.

C. Nothing in this section shall be construed to apply to licensed and certified electrical contractors while performing usual and ordinary service in accordance with recognized standards.

(Code 1967, § 12½-1; Code 1985, § 10-1; Ord. No. 1712, §§ 1—3, 5-1-1973)

State law reference—Communications theft, T.C.A. § 39-14-149.

Sec. 10-16-2. Shoplifting.

A. Any person who shall willfully take possession of any goods, wares or merchandise offered for sale by any store or other mercantile establishment with the intent of converting the same to his or her own use without paying the purchase price thereof is guilty of shoplifting.

B. Any person willfully concealing unpurchased goods or merchandise of any store or other mercantile establishment, whether on the premises or outside the premises of such store, shall be prima facie presumed to have so concealed such article with intention of converting the same to his or her own use without paying the purchase price thereof.

C. The finding of such unpurchased goods or merchandise concealed upon such person or among the belongings of such person shall be prima facie evidence of willful concealment, and if such person conceals, or causes to be concealed, such unpurchased goods or merchandise upon the person, or among the belongings of another, the finding of the same shall also be prima facie evidence of willful concealment on the part of the person so concealing such goods.

D. A peace officer or merchant or a merchant's employee who has probable cause for believing that goods held for sale by the merchant have been unlawfully taken by a person and that he or she can recover them by taking the person into custody, may for the purpose of attempting to effect such recovery, take the person into custody and detain him or her in a reasonable manner for a reasonable length of time. Such taking into custody and detention by a peace officer, merchant, or merchant's employee shall not render such police officer, merchant, or merchant's employee criminally or civilly liable for false arrest, false imprisonment or unlawful detention.

(Code 1967, § 22-43.2; Code 1985, § 20-18; Ord. No. 607, §§ 1—5, 12-23-1969; Ord. No. 938, § 1, 4-27-1971)

State law reference—Shoplifting, T.C.A. § 39-14-144 et seq.

Sec. 10-16-3. Defrauding light, gas and water division by tampering with measuring devices and diverting the utility services of another.

A. It shall be a misdemeanor punishable as set forth hereinafter for any person as the owner, the tenant, or occupant to commit or authorize any of the following acts. It shall further be a misdemeanor punishable as set forth hereinafter for any person to commit any of the following acts which would make gas, electricity, or water available to an owner, tenant or occupant. All persons aiding and abetting or ready and consenting to aid and abet in the following prohibited acts shall be deemed principal offenders and punishable as such:

1. Connecting any tube, pipe, wire or other instrument with any meter, device or other instrument used for conducting gas, electricity or water in such a manner as to permit the use of such gas,

*__State law reference—__Theft, T.C.A. § 39-14-101 et seq.

electricity or water without the same passing through a meter or other instrument recording the usage for billing;

2. Altering, injuring or preventing the action of a meter, valve, stopcock or other instrument used for measuring quantities of gas, electricity or water;

3. Breaking, defacing or causing to be broken or defaced any seal, locking device or other parts that make up a metering device for recording usage of gas, electricity or water or a security system for such recording device;

4. Removing a metering device for measuring quantities of gas, electricity or water;

5. Transferring from one location to another a metering device for measuring quantities of gas, electricity or water;

6. Using a metering device belonging to the light, gas and water division that has not been assigned to such location and installed by the light, gas and water division;

7. Adjusting the indicated consumption, jamming the measuring device, by-passing the meter or measuring device with a jumper so that it does not indicate use or registers incorrectly or otherwise obtaining quantities of gas, electricity or water from the light, gas and water division without the same passing through a metering device for measuring quantities of consumption for billing;

8. Fabricating or using a device to pick or otherwise tamper with the locks used to deter current diversion, meter tampering and meter thefts;

9. Diverting the gas, electricity or water of another without the consent of the person liable for payment to light, gas and water division and knowingly using gas, electricity or water which has been diverted.

B. Any person in possession of the premises as owner, occupant or tenant who is found to have an electric, gas or water meter tampered with or found to have diverted electricity, gas or water of another in violation of this section or receiving electricity, gas or water as a result of some method of diversion described above, shall be guilty of a misdemeanor, and such receipt of gas, electricity or water shall be deemed prima facie evidence in a prosecution under this section.

C. This section shall not apply to installation and action done pursuant to instructions of appropriate officials of the light, gas and water division.

(Code 1967, § 22-60; Code 1985, § 20-24; Ord. No. 2308, § 1, 9-9-1975; Ord. No. 4022, § 1(1)—(3), 3-5-1991)

State law reference—Fraud, theft or destruction of public utility property, T.C.A. § 65-35-101 et seq.

CHAPTER 10-20. PROSTITUTION*

Sections:

Sec. 10-20-1. Definitions.
Sec. 10-20-2. Prostitution—Acts relative thereto prohibited.
Sec. 10-20-3. Assignation—Acts relative thereto prohibited.
Sec. 10-20-4. Presumption.
Sec. 10-20-5. Various acts relating to prostitution declared misdemeanor.

Sec. 10-20-1. Definitions.

As used in this chapter, except as more specifically defined in other sections of this chapter, the following terms shall have the meanings indicated:

Assignation is the making of any appointment or engagement for prostitution or for the purpose of fellatio or cunnilingus, or any act in furtherance of such appointment or engagement.

Prostitution is the giving or receiving of the body for sexual intercourse for hire or licentious sexual intercourse without hire.

(Code 1967, §§ 22-35.1, 22-35.2; Code 1985, § 20-116; Ord. No. 1209, § 1, 3-14-1972)

State law reference—Similar provisions, T.C.A. § 39-13-512.

Sec. 10-20-2. Prostitution—Acts relative thereto prohibited.

It is unlawful:

A. To engage in prostitution;

***State law reference—**Prostitution, T.C.A. § 39-13-512 et seq.

B. To knowingly aid or abet prostitution;

C. To procure or solicit for the purpose of prostitution;

D. To reside in, enter or remain in any vehicle, trailer, conveyance, place, structure or building for the purpose of prostitution;

E. To keep or set up a house of ill fame, brothel or bawdy house;

F. To receive or direct any person for purposes of prostitution to any vehicle, trailer, conveyance, place, structure or building or to permit any person to remain in such places for the purpose of prostitution;

G. To direct, take, transport, or to offer or agree to take or transport, or to aid and abet in transporting or directing any person to any vehicle, conveyance, trailer, place, structure or building for the purpose of prostitution;

H. To direct, transport or offer to agree to take, direct or transport any person to any other person with knowledge of or having reasonable cause to believe that the purpose of such directing, taking or transporting is for prostitution.

(Code 1967, § 22-35.3; Code 1985, § 20-117; Ord. No. 1209, § 1, 3-14-1972)

State law reference—Similar provisions, T.C.A. §§ 39-13-513—39-13-516.

Sec. 10-20-3. Assignation—Acts relative thereto prohibited.

It is unlawful:

A. To engage in assignation;

B. To knowingly aid or abet assignation;

C. To reside in, enter, or remain in any vehicle, trailer, conveyance, place, structure or building for the purpose of assignation;

D. To receive or direct any person for purposes of assignation to any vehicle, trailer, conveyance, place, structure, or building, or to permit any person to remain in such places for the purpose of assignation;

E. To direct, take, transport, or to offer or agree to take or transport, or to aid and abet in transporting or directing any person to any vehicle, conveyance, trailer, place, structure or building for the purpose of assignation;

F. To direct, transport, or offer to agree to take, direct, or transport any person to any other person with knowledge of or having reasonable cause to believe that the purpose of such directing, taking or transporting is for assignation;

G. To procure or solicit for the purpose of assignation.

(Code 1967, § 22-35.4; Code 1985, § 20-118; Ord. No. 1209, § 1, 3-14-1972)

Sec. 10-20-4. Presumption.

The signaling, approaching, stopping, or attempting to signal, stop or approach pedestrians, operators of any motor vehicle, passengers in any motor vehicle, occupants of any motel, hotel or any other dwelling place, by any method expressed or implied, shall be presumed to be done for the purpose of engaging in prostitution or assignation; or aiding and abetting prostitution and assignation where:

A. The person stops, signals, approaches or attempts to stop, signal or approach by any method expressed or implied:

1. One or more pedestrians, motor vehicle operators or passengers in any motor vehicle at any one place; or

2. Engages in such activity at more than one location;

B. The person stops, signals, approaches or attempts to stop, signal or approach, by any method expressed or implied, one or more residents of any motel, hotel or occupant of any other dwelling place at any time or engages in such activity at more than one location.

(Code 1967, § 22-35.7; Code 1985, § 20-119; Ord. No. 1209, § 1, 3-14-1972)

Sec. 10-20-5. Various acts relating to prostitution declared misdemeanor.

A. *Definitions.* For the purpose of this section:

Known prostitute or panderer is a person who, within one year previous to the date of arrest for violation of this subsection, has within the knowledge of the arresting

officer been convicted of violating any ordinance of the city defining and punishing acts of soliciting, committing, or offering or agreeing to commit prostitution.

Prostitution means engaging for hire in sexual activity, including homosexual or other deviate sexual relations.

B. *Prohibited acts.* It is unlawful and a misdemeanor for anyone:

1. To commit or offer or agree to commit an act of prostitution;

2. To secure or offer to secure another for the purpose of committing an act of prostitution;

3. To knowingly transport a person into or within the city with purpose to promote that person's engaging in prostitution, or procuring or paying for transportation with that purpose;

4. To knowingly and willfully receive, offer or agree to receive another into any place or building for the purpose of performing an act of prostitution, or to knowingly and willfully permit another to remain there for any such purpose;

5. To direct another to any place for the purpose of committing an act of prostitution;

6. To knowingly in any way aid, abet or participate in an act of prostitution;

7. To loiter in or near any thoroughfare or place open to the public in a manner and under circumstances manifesting the purpose of inducing, enticing, soliciting or procuring another to commit an act of prostitution. Among the circumstances which may be considered in determining whether such purpose is manifested are: that such person is a known prostitute or panderer, repeatedly beckons to, stops or attempts to stop, or engages male passers-by in conversation under circumstances manifesting the purpose of inducing, enticing or soliciting, or repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or any other deliberate bodily gesture. No arrest shall be made for a violation of this subsection unless the arresting officer first affords such person an opportunity to explain such conduct, and no one shall be convicted of violating this subsection if it appears at trial that the explanation given was true and disclosed a lawful purpose.

(Code 1967, § 22-35.8; Code 1985, § 20-120; Ord. No. 666, § 1, 3-31-1970)

CHAPTER 10-24. PERFORMANCES HARMFUL TO MINORS*

Sections:

Sec. 10-24-1. Definitions.
Sec. 10-24-2. Minor's presence at live performance unlawful—By promoter or producer.
Sec. 10-24-3. Minor's presence at live performance unlawful—By parent.
Sec. 10-24-4. Prohibited activity by minors.

Sec. 10-24-1. Definitions.

As used in this chapter the following definitions apply:

Excess violence means the depiction of acts of violence in such a graphic and/or bloody manner as to exceed common limits of custom and candor, or in such a manner that it is apparent that the predominant appeal of the material is portrayal of violence for the sake of violence.

Harmful to minors means the quality of any description or representation, in whatever form, during a live performance, of nudity, sexual excitement, sexual conduct, excess violence, or sado-masochistic abuse when it:

1. Predominantly appeals to the prurient, shameful or morbid interest of minors;

2. Is patently offensive to prevailing standards in the adult community as a whole with respect to what is suitable material for minors; and

3. Is utterly without redeeming social importance for minors.

Knowingly means having general knowledge of, or reason to know, or a belief or ground for belief, which warrants further inspection or inquiry or both:

1. The character and content of any material described herein which is reasonably susceptible of examination by the defendant; and

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***State law reference—**Obscenity, T.C.A. § 39-17-901 et seq.

2. The age of the minor; provided, however, that an honest mistake shall constitute an excuse from liability hereunder if the defendant makes a reasonable bona fide attempt to ascertain the true age of such minor.

Minor means any person who has not reached 18 years of age and is unemancipated.

Nudity means the showing of the human male or female genitals, pubic area or buttocks with less than full opaque covering or the showing of the female breast with the top of the nipple or the depiction of covered male genitals in a discernibly turgid state.

Sado-masochistic abuse means flagellation or torture or physical restraint by or upon a person for the purpose of sexual gratification of either person.

Sexual conduct means acts of masturbation, homosexuality, sexual intercourse or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or the breast.

Sexual excitement means the condition of human male or female genitals when in a state of sexual stimulation or arousal.
(Code 1985, § 20-135.1; Ord. No. 3957, § 1, 4-10-1990)

Sec. 10-24-2. Minor's presence at live performance unlawful—By promoter or producer.

It is unlawful for a promoter, performer, producer or director to knowingly allow a minor to be present during a live performance which is harmful to minors as hereinabove described.
(Code 1985, § 20-135.2; Ord. No. 3957, § 1, 4-10-1990)

Sec. 10-24-3. Minor's presence at live performance unlawful—By parent.

It is unlawful for a parent or legal guardian to knowingly allow their child or children to attend a live performance which is harmful to minors as hereinabove described.
(Code 1985, § 20-135.3; Ord. No. 3957, § 1, 4-10-1990)

Sec. 10-24-4. Prohibited activity by minors.

A. It is unlawful for any minor to knowingly purchase or attempt to purchase a ticket or attempt to gain admission to, or attend, a live performance which is harmful to minors as hereinabove described.

B. It is unlawful for any minor to present or offer to present any written evidence of his or her age which is false, fraudulent or not actually his or her own for the purpose of gaining admission to a live performance which is harmful to minors as hereinabove described.

C. Any minor who acts in violation of any one or more provisions of this section shall be taken before the juvenile court for appropriate disposition.
(Code 1985, § 20-135.4; Ord. No. 3957, § 1, 4-10-1990)

CHAPTER 10-28. OFFENSES BY OR AGAINST MINORS

Sections:

Sec. 10-28-1. Abandonment of airtight containers.
Sec. 10-28-2. Children—Leaving locked in house unattended.
Sec. 10-28-3. Truancy—Parental responsibility.
Sec. 10-28-4. Minor curfew.

Sec. 10-28-1. Abandonment of airtight containers.

It is unlawful for any person to place or permit to remain outside of any dwelling, building, or other structure, or within any warehouse or storage room or any unoccupied or abandoned dwelling, building, or other structure, under such circumstances as to be accessible to children, any icebox, refrigerator, or other airtight or semiairtight container which has a capacity of one and one-half cubic feet or more and an opening of 50 square inches or more and which has a door or lid equipped with a latch or other fastening device capable of securing such door or lid shut.
(Code 1967, § 22-1; Code 1985, § 20-2)

State law reference—Abandoned airtight containers and refrigerators, T.C.A. § 39-17-101 et seq.

Sec. 10-28-2. Children—Leaving locked in house unattended.

It is unlawful to leave any child so locked or fastened in a building that in case of fire or other calamity such child cannot escape, unless the child is attended at all times by an adult capable of protecting such child from the consequences of fire or other calamity.
(Code 1967, § 22-8; Code 1985, § 20-5)

Sec. 10-28-3. Truancy—Parental responsibility.

Notwithstanding any other statute, provision, ordinance or regulation to the contrary, if any minor child is

found, detained, or apprehended by a school truancy officer or a city police officer, upon the public streets during school hours during any school term who is unable to give an accounting of his or her whereabouts, the parents, parent, guardian, or ward having legal custody of the minor, shall be guilty of a misdemeanor and, upon conviction, subject to a fine of up to $50.00, plus penalties as provided in section 1-24-1.
(Code 1985, § 20-29; Ord. No. 4329, § 1, 6-6-1995)

State law reference—Truancy, T.C.A. § 49-6-3001 et seq.

Sec. 10-28-4. Minor curfew.

A. It is unlawful for any minor between 17 and 18 years of age to remain in or upon any public street, highway, park, vacant lot, establishment or other public place within the city during the following time frames:

1. Monday through Thursday between the hours of 11:00 p.m. to 6:00 a.m.;
2. Friday through Sunday between the hours of 12:00 midnight to 6:00 a.m.

B. It is unlawful for any minor 16 years of age and under to remain in or upon any public street, highway, park, vacant lot, establishment or other public place within the city during the following time frames:

1. Monday through Thursday between the hours of 10:00 p.m. to 6:00 a.m.;
2. Friday through Sunday between the hours of 11:00 p.m. to 6:00 a.m.

C. It is unlawful for a parent or legal guardian to knowingly permit or by inefficient control to allow such minor to be or remain upon any street or establishment under circumstances not constituting an exception to, or otherwise beyond the scope of subsections A and B of this section. The term "knowingly" includes knowledge which a parent or guardian should reasonably be expected to have concerning the whereabouts of a minor in that parent's legal custody. The term "knowingly" is intended to continue to keep neglectful or careless parents up to a reasonable community standard of parental responsibility through an objective test. It is not a defense that a parent was completely indifferent to the activities or conduct or whereabouts of such minor child.

D. The following are valid exceptions to the operation of the curfew:

1. At any time, if a minor is accompanied by such minor's parent or legal guardian;
2. When accompanied by an adult authorized by a parent or guardian of such minor to take such parent or guardian's place in accompanying the minor for a designated period of time and purpose within a specified area;
3. Until the hour of 12:30 a.m., if the minor is on an errand as directed by such minor's parent or guardian;
4. If the minor is legally employed, for a period of from 45 minutes before to 45 minutes after, while going directly between the minor's home and place of employment. This exception shall also apply if the minor is in a public place during the curfew hours in the course of the minor's employment. To come within this exception, the minor must be carrying written evidence of employment which is issued by the employer;
5. Until the hour of 12:30 a.m. if the minor is on the property of or the sidewalk directly adjacent to the place where such minor resides or the place immediately adjacent thereto, if the owner of the adjacent building does not communicate an objection to the minor and the law enforcement officer;
6. When returning home by a direct route from (and within 30 minutes of the termination of) a school activity or an activity of a religious or other voluntary association, or a place of public entertainment, such as a movie, play or sporting event. This exception does not apply beyond 1:00 a.m.;
7. In the case of reasonable necessity, but only after such minor's parent has communicated to law enforcement personnel the facts establishing such reasonable necessity relating to specified streets at a designated time for a described purpose including place of origin and destination. A copy of such communication, or the record thereof, an appropriate notation of the time it was received and of the names and addresses of such parent or guardian and minor constitute evidence of qualification under this exception;
8. When exercising first amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech

and the right of assembly. A minor shall show evidence of good faith of such exercise and provide notice to city officials by first delivering to the appropriate law enforcement authority written communication, signed by such minor, with the minor's home address and telephone number addressed to the mayor of the city specifying when, where and in what manner the minor will be on the streets at night in the exercise of a First Amendment right specified in such communication; and

9. When a minor is, with parental consent, in a motor vehicle engaged in good faith interstate travel.

Each of the foregoing exceptions, and the limitations are severable.

E. When any child is in violation of this section, the apprehending officer shall act in one of the following ways:

1. In the case of the first violation, and in the opinion of the officer such action would be effective, take the child to the child's home and warn and counsel the parents or guardians;

2. Issue a summons to the child and/or parents or guardians to appear at the juvenile court; or

3. Bring the child into custody of the juvenile court for disposition.

F. Penalty for violation.

1. A minor violating the provisions of this section shall commit an unruly act disposition of which shall be governed pursuant to T.C.A. title 37.

2. Any parent, guardian or other person having the care, custody and control of a minor violating the provisions of this section is guilty of a misdemeanor and shall be fined no more than $50.00 for each offense; each violation of the provisions of this section shall constitute a separate offense.

(Code 1985, § 20-32; Ord. No. 4430, § 1, 8-6-1996)

State law reference—Child Curfew Act of 1995, T.C.A. § 39-17-408.

CHAPTER 10-32. WEAPONS*

Sections:

Sec. 10-32-1. Air guns—Discharge prohibited—Exception.
Sec. 10-32-2. Reserved.
Sec. 10-32-3. Replica firearms.
Sec. 10-32-4. Discharging firearms.
Sec. 10-32-5. Weapons—Carrying.
Sec. 10-32-6. Commercial sale of assault rifles.
Sec. 10-32-7. Extreme risk protection orders.
Sec. 10-32-8. Emergency ex parte order.
Sec. 10-32-9. Order after hearing.
Sec. 10-32-10. Entry into background check systems.
Sec. 10-32-11. Violations.

Sec. 10-32-1. Air guns—Discharge prohibited—Exception.

It shall be a misdemeanor for any person to discharge within the limits of the city any air gun, air pistol, air rifle or BB gun, capable of discharging a metal bullet or pellet, whether propelled by spring, compressed air, expanding gas (CO_2), explosive, or other force-producing means or method, except within a legally established target range or shooting gallery.
(Code 1967, § 22-3; Code 1985, § 20-3)

Sec. 10-32-2. Reserved.

Editor's note—Ord. No. 5926, § 2, adopted Feb. 4, 2025, repealed § 10-32-2, which pertained to carrying weapons and derived from the 1967 Code, § 22-50; the 1985 Code, § 20-21; Ord. No. 940, § 1, 4-27-1971; Ord. No. 2232, § 1, 4-8-1975; Ord. No. 2732, § 1, 7-11-1978; Ord. No. 3343, § 1, 11-1-1983; Ord. No. 3724, § 1(1), 2-16-1988; and Ord. No. 5320, § 1, 7-21-2009.

Sec. 10-32-3. Replica firearms.

A. *Prohibited.* It shall be a misdemeanor for any person to sell, at retail or wholesale, manufacture, or give away, within the limits of the city, any toy look-alike gun, replica gun, or realistic toy gun.

B. *Definition.* For purposes of this section and chapter, "toy look-alike gun," "replica gun," or "realistic toy gun" means: any device or object which outwardly resembles a firearm manufactured after 1898, made of plastic, wood, metal, or any other material which is a replica, facsimile or toy version of, or is otherwise recognizable as, a pistol, revolver, shotgun, sawed-off

***State law references—**Weapons, T.C.A. § 39-17-1301 et seq.; local firearms ordinances, T.C.A. § 39-17-1314.

shotgun, rifle, machine gun, rocket launcher, or any other device, which might reasonably be perceived to be a real or actual firearm, unless the replica, imitation, or toy firearm shall be colored in colors other than black, blue, silver or aluminum, and further, that the barrel of the toy shall be closed with the same material of which the toy is made, for a distance of not less than one-half inch from the front end of the barrel. The term includes instruments which expel water and those which use air pressure to expel nonmetallic projectiles.

C. *Exception.* Such term shall not include any non-firing replica of an antique firearm, the original of which was designed, manufactured and produced prior to 1898. Practice or demonstrations in the use of such guns is permitted only in a legally established gun range or shooting gallery.

D. *Manufacture and marketing.* The manufacture, marketing, distribution and sale of replica or facsimile toy guns are permitted if such devices are manufactured, marketed, distributed or sold:

1. Solely for subsequent transportation in intrastate, interstate or foreign commerce; or

2. Solely for lawful use in theatrical productions, including action picture, television and stage productions.

E. *Effective date.* This section shall become effective from and after January 1, 1989, and shall apply to such guns manufactured for sale at retail or wholesale after said date.
(Code 1985, § 20-22; Ord. No. 3724, § 1(3), 2-16-1988)

State law reference—Imitation firearms, T.C.A. § 39-17-1362.

Sec. 10-32-4. Discharging firearms.

A. It shall be a misdemeanor to discharge any pistol, gun or firearm of any description within the city, except in self defense or while executing some law, or within a legally established gun range or shooting gallery.

B. It shall be a misdemeanor to discharge any replica gun, or realistic toy gun, of any description, including that as defined in section 10-32-3, within the limits of the city.
(Code 1967, § 22-52; Code 1985, § 20-23; Ord. No. 941, § 1, 4-27-1971; Ord. No. 3724, § 1(2), 2-16-1988)

Sec. 10-32-5. Weapons—Carrying.

A. No person shall be allowed to carry a handgun in the City of Memphis without possessing a valid handgun carry permit.

B. No person shall be allowed to carry, store, or travel with a handgun in a vehicle in the City of Memphis without possessing a valid handgun permit.

C. It shall be unlawful for a person to store a firearm, whether loaded or unloaded, or firearm ammunition, in a motor vehicle or boat while the person is not in the motor vehicle or boat unless the firearm or firearm ammunition is kept from ordinary observation and locked within the trunk, utility or glove box, or a locked container securely affixed to the motor vehicle or boat.

D. The proliferation and use of assault weapons pose a threat to the health, safety, and security of all citizens of Memphis.

E. It shall be unlawful and prohibited for a person to possess or carry, openly or concealed, any assault rifles in the City of Memphis. Persons with valid handgun permits are exempt from this restriction when possessing or carrying an assault rifle on their privately owned property or at a shooting range.

F. Any person who violates this section shall be guilty of a misdemeanor and upon conviction shall be subject to punishment as provided in section 1-1-8.
(Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-6. Commercial sale of assault rifles.

A. The commercial sale of assault rifles within the City of Memphis shall be deemed unlawful and is prohibited.

B. The provisions of this chapter shall not apply to the commercial sale of assault rifles to:

1. Any federal, state, local law enforcement agency;

2. The United States Armed Forces or department or agency of the United States;

3. Tennessee National Guard, or a department, agency, or political subdivision of a state; or

4. A law enforcement officer.

C. This prohibition shall not apply to those pre-existing owners who can demonstrate that the commercial sale of an assault rifle was completed prior to January 1, 2025.

1. A pre-existing owner is one who, in the purchase of an assault rifle in a commercial sale prior to January 1, 2025, completed an application, passed a background check, and has a receipt or purchase order for said purchase, without regard to whether the purchaser has actual physical possession of the assault rifle and complied with any other requirements regarding the purchase and sale of weapons, codified in Tenn. Code Ann. §§ 39-17-1316 and 39-17-1351.

(Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-7. Extreme risk protection orders.

A. Definitions:

1. *Petitioner* means:

   a. A law enforcement officer or agency, including an attorney for the state;

   b. A member of the family of the respondent, which shall be understood to mean a parent, spouse, child, or sibling of the respondent;

   c. A member of the household of the respondent;

   d. A dating or intimate partner of the respondent;

   e. A health care provider who has provided health services to the respondent;

   f. An official of a school or school system in which the respondent is enrolled or has been enrolled within the preceding month;

2. *Respondent* means the person against whom an order under sections 10-32-8 or 10-32-9 has been sought or granted.

B. Types of orders:

1. The petitioner may apply for an emergency ex parte order as provided in section 10-32-8 or an order following a hearing as provided in section 10-32-9.

(Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-8. Emergency ex parte order.

A. *Basis for order.* The court shall issue an emergency ex parte extreme risk protection order upon submission of an application by a petitioner, supported by an affidavit or sworn oral statement of the petitioner or other witness, that provides specific facts establishing probable cause that the respondent's possession or receipt of a firearm will pose a significant danger or extreme risk of personal injury' or death to the respondent or another person. The court shall take up and decide such an application on the day it is submitted, or if review and decision of the application on the same day is not feasible, then as quickly as possible but in no case later than 48 hours.

B. *Content of order.* An order issued under this section shall:

1. Prohibit the respondent from possessing, using, purchasing, manufacturing, or otherwise receiving a firearm;

2. Order the respondent to provisionally surrender any firearms in his or her possession or control, and any license or permit allowing the respondent to possess or acquire a firearm, to any law enforcement officer presenting the order or to a law enforcement agency as directed by the officer or the order; and

3. Inform the respondent of the time and place of the hearing under section 3 to determine whether he or she will be subject to a continuing prohibition on possessing and acquiring firearms.

C. *Search and seizure.*

1. If the application and its supporting affidavit or statement establish probable cause that the respondent has access to a firearm, on his or her person or in an identified place, the court shall concurrently issue a warrant authorizing a law enforcement agency to search the person of the respondent and any such place for firearms and to seize any firearm therein to which the respondent would have access.

2. The court may subsequently issue additional search warrants of this nature based on probable cause that the respondent has retained, acquired, or gained access to firearm while an order under this section remains in effect.

3. If the owner of a firearm seized pursuant to this subsection is a person other than the respondent, the owner may secure the return of the firearm as provided in section 10-32-9 C. 3.

D. *Time for service and searches.* The responsible law enforcement agency shall serve the order on the respondent and carry out any search authorized under subsection C. 1., promptly following issuance of the order. If a search is authorized under subsection C. 1., the agency may serve the order on the respondent concurrently with or after the execution of the search. (Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-9. Order after hearing.

A. *Order after hearing.* Upon application for an extreme risk protection order, supported by an affidavit or sworn oral statement of the petitioner or other witness that provides specific facts giving rise to the concern about the significant danger or extreme risk described in section 10-32-8, the court may issue an order under this section, which shall be effective for a period of one year after a hearing. An order issued under this section shall,

1. Prohibit the respondent from possessing, using, purchasing, or otherwise receiving a firearm; and

2. Order the respondent to surrender any firearm in his or her possession or control, and any license or permit allowing the respondent to possess or acquire a firearm, to any law enforcement officer presenting the order or to a law enforcement agency as directed by the officer or the order.

B. *Basis for order.* The court shall issue such an order based on a preponderance of the evidence that the respondent's possession or receipt of a firearm will pose a significant danger or extreme risk of personal injury or death to the respondent or another person. In determining the satisfaction of this requirement, the court shall consider all relevant facts and circumstances after reviewing the petitioner's application and conducting the hearing described in section 10-32-9 D. The court may order a psychological evaluation of the respondent, including voluntary or involuntary commitment of the respondent for purposes of such an evaluation, to the extent authorized by other law.

C. *Search and seizure.*

1. If the evidence presented at the hearing establishes probable cause that the respondent has access to a firearm, on his or her person or in an identified place, the court shall concurrently issue a warrant authorizing a law enforcement agency to search the person of the respondent and any such place for firearms and to seize any firearm therein to which the respondent would have access.

2. The court may subsequently issue additional search warrants of this nature based on probable cause that the respondent has retained, acquired, or gained access to a firearm while an order under this section remains in effect.

3. If the owner of a firearm seized pursuant to this subsection is a person other than the respondent, the owner may secure the prompt return of the firearm by providing an affidavit to the law enforcement agency affirming his or her ownership of the firearm and providing assurance that he or she will safeguard the firearm against access by the respondent. The law enforcement agency shall return the firearm to the owner upon its confirmation, including by a check of the National Instant Criminal Background Check System and the applicable state firearm background check system, that the owner is not legally disqualified from possessing or receiving the firearm.

D. *Time for hearings and service.*

1. A hearing under this section shall be held within three days of the filing of the application, or within one day of the issuance of an emergency ex parte order under section 10-32-8, if such an order is issued. The responsible law enforcement agency shall serve notice of the hearing on the respondent promptly after the filing of the application or issuance of an emergency ex parte order, but notice may be provided by publication or mailing if the respondent cannot be personally served within the specified period. The respondent shall be entitled to one continuance of up to two days on request, and the court may thereafter grant an additional continuance or continuances for good cause. Any emergency ex parte order under section 10-32-8 shall remain in effect

until the hearing is held. The court may temporarily extend the emergency order at the hearing, pending a decision on a final order.

2. The responsible law enforcement agency shall serve an order issued under this section on the respondent and carry out any search authorized under subsection C. 1., promptly following issuance of the order. If a search is authorized under subsection C. 1., the agency may serve the order on the respondent concurrently with or after the execution of the search.

E. *Termination and renewal of orders.*

1. A respondent may file a motion to terminate an order under this section one time during the effective period of that order. The respondent shall have the burden of proving, by the same standard of proof required for issuance of such an order, that he or she does not pose a significant danger or extreme risk of personal injury or death to himself or herself or another.

2. The petitioner may seek renewals of an order under this section for an additional six months at any time preceding its expiration. Renewals after the initial order shall be granted subject to the same standards and requirements as an initial order. The preceding order shall remain in effect until the renewal hearing is held and the court grants or denies a renewed order.

3. If the respondent fails to appear at, or cannot be personally served in relation to, any hearing or renewal hearing under this section, the default does not affect the court's authority to issue an order or entitle the respondent to challenge the order prior to its expiration. The order will lapse after one year if no eligible petitioner seeks its renewal.

(Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-10. Entry into background check systems.

The court shall forward any order issued under sections 10-32-8 or 10-32-9 to an appropriate law enforcement agency on the day it is issued. Upon receipt of an order under section 10-32-9, the law enforcement agency shall make the order available to the National Instant Criminal Background Check System and any state system used to identify persons who are prohibited from possessing firearms.

(Ord. No. 5926, § 1, 2-4-2025)

Sec. 10-32-11. Violations.

A. The following persons shall be in violation of the City Code of Ordinances:

1. *Filer of false or harassing application.* Any person filing an application under sections 10-32-8 or 10-32-9 containing information that he or she knows to be materially false, or for the purpose of harassing the respondent.

2. *Respondent not complying with order.* Any person who knowingly violates an order under sections 10-32-7 or 10-32-8, including by possessing or acquiring a firearm in violation of the order or failing to surrender a firearm as required by the order.

3. *Provider of prohibited access to respondent.* Any person who knowingly provides the subject of an order under section 10-32-7 or 10-32-8 access to a firearm, in violation of an assurance the person has provided in an affidavit under section 10-32-7 C. 3. or 10-32-8 C. 3. that he or she will safeguard the firearm against access by the respondent.

(Ord. No. 5926, § 1, 2-4-2025)

CHAPTER 10-36. FAIR HOUSING*

Sections:

Sec. 10-36-1. Title.
Sec. 10-36-2. Purpose.
Sec. 10-36-3. Definitions.
Sec. 10-36-4. Exemptions from housing provisions.
Sec. 10-36-5. Unlawful housing practices.
Sec. 10-36-6. Enforcement.
Sec. 10-36-7. Penalties for violation.
Sec. 10-36-8. Notice of violation.
Sec. 10-36-9. Annual report.

***State law reference—**Discrimination in housing and financing, T.C.A. § 4-21-601 et seq.

Sec. 10-36-1. Title.

This chapter shall be known and may be cited as the "City of Memphis Fair Housing Ordinance."
(Code 1985, § 48-251; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-2. Purpose.

A. The general purposes of this chapter are:

1. To provide for uniformity in policy and enforcement of the laws of the city, the state, and United States which prohibit discrimination in housing, including the Tennessee Human Rights Act, T.C.A. § 4-21-101 et seq. (the "Tennessee Human Rights Act"), the Civil Rights Act of 1866, 42 USC 1982, and the Civil Rights Act of 1968, 42 USC 3601 et seq., as amended (collectively the "Civil Rights Acts");

2. To foster cooperation between the city, state and United States in the implementation of such policies and laws designed to promote fair housing opportunities for all citizens; and

3. To safeguard all individuals residing within the city from discrimination in housing because of race, color, religion, national origin, sex, age, familial status, source of income or handicap/disability; to promote equal protection of all parties; and to encourage all citizens to maintain and improve the quality of housing within the city and thereby to preserve the health and general welfare thereof.

B. Nothing in this chapter shall be deemed to repeal or supercede any rights granted any person under any other law prohibiting discrimination in housing, including the Tennessee Human Rights Act and the Civil Rights Acts.
(Code 1985, § 48-252; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-3. Definitions.

The following terms shall have the following meanings as interpreted by federal or state courts.

Discriminatory practice means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or differentiation or preference in the treatment of a person or persons because of race, color, religion, national origin, sex, age, familial status, source of income, or handicap/disability.

Familial status means one or more individuals, who have not attained 18 years of age, being domiciled with:

1. A parent or another person having legal custody of such individual or individuals; or

2. The designee of such parent or other person having such custody, with the written permission of such parent or other person. The protections against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process or securing legal custody of any person who has not attained the age of 18 years.

Family includes a single individual.

Financial institution means a bank, banking organization, mortgage company, insurance company, or other lender to whom application is made for financial assistance for the purchase, acquisition, lease, construction, rehabilitation, repair, maintenance, or improvement of real property, or any individual employed by or acting on behalf of any such bank, banking organization, mortgage company, insurance company or other lender.

Handicap/disability means, with respect to a person:

1. A physical or mental impairment which substantially limits one or more of such person's major life activities;

2. A record of having such an impairment; or

3. Being regarded as having such an impairment;

The term "handicap/disability" does not include current, illegal use of or addiction to a controlled substance, as more specifically defined in the Tennessee Human Rights Act.

Housing accommodations means a building, structure, lot or part thereof which is used or occupied, or is intended, arranged or designed to be used or occupied, as the home or residence of one or more individuals and shall include improved or unimproved property.

National origin means the national origin or ancestry of a person, as more specifically defined in the Tennessee Human Rights Act.

Person includes one or more individuals, governments or government agencies, public authorities, labor organizations, corporations, limited liability companies,

partnerships or corporations, partnerships, trusts, or other organized groups of persons, or legal representatives thereof.

Real estate broker or *real estate salesperson* means an individual, whether licensed or not, who on behalf of others for a fee, commission, salary, or other valuable consideration, or who with the intention or expectation of receiving or collecting any such consideration, lists, sells, purchases, exchanges, rents or leases any interest in real property, or who negotiates or attempts to negotiate on behalf of others such activity; or who advertises or holds such individual out as engaged in such activities; or who negotiates or attempts to negotiate on behalf of others, a loan secured by mortgage or other encumbrance upon a transfer of real property, or who is engaged in the business of charging or collecting fees in connection with a contract whereby such individual undertakes to promote real estate transaction through listing such real property in a publication issued primarily for such purpose; or an individual employed by or acting on behalf of any of these.

Real estate operator means any person engaged in the business of consummating real estate transactions, or deriving income, in whole or in part, from real estate transactions; or any individual employed by or acting on behalf of any of these.

Real estate transaction includes the sale, exchange, rental or lease of real property.

Real property includes land and all buildings and structures thereon and all interests therein, including but not limited to, leaseholds, cooperatives, and condominiums.

Source of income means a regular, verifiable income, or its equivalent, from which an individual can pay rental, mortgage or other payments associated with the provision of housing. The term shall specifically include Section 8 vouchers or certificates issued by the United States Department of Housing and Urban Development or other similar contractual commitments whereby a third party commits to making all or a portion of rental, mortgage or other housing-related payments.
(Code 1985, § 48-253; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-4. Exemptions from housing provisions.

A. Nothing in this chapter shall apply to housing transactions meeting the requisites of T.C.A. § 4-21-602.

B. Nothing in this chapter shall require a real estate broker or salesperson or operator to negotiate with any person who has not shown evidence of financial ability to consummate the purchase or rental of a housing accommodation.

C. Nothing in this chapter shall prohibit the use of attorneys, escrow agents, abstractors, title companies and other such professional assistance as necessary to perfect or transfer the title.

D. Nothing in this chapter shall limit the applicability of any reasonable local, state or federal statute, ordinance, or restriction regarding the maximum number of occupants permitted to occupy a dwelling, nor shall any provision of this chapter regarding familial status apply

with respect to dwellings provided under any state or federal program specifically designed and operated to assist elderly persons, or to housing for older persons.

1. As used in this subsection, "housing for older persons" means housing communities consisting of dwellings:
   a. i. Intended for, at least 90 percent occupied by, at least one person 55 years of age or older per unit;
      ii. Providing significant facilities and services specifically designed to meet the physical or social needs of such persons; and
      iii. Publishing and adhering to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years or older; or
   b. Intended for and occupied solely by person 62 years or older.
2. Nothing in this chapter shall prohibit conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in section 102 of the Controlled Substances Act (21 USC 802), or as defined in the Tennessee Drug Control Act, compiled in title 39, chapter 17, part 4.

E. Nothing in this chapter shall apply to the rental of housing accommodations in a building which contains housing accommodations for not more than two families living independently of each other, if the owner or a member of the owner's family resides in one of the housing accommodations.

F. Nothing in this chapter shall apply to the rental of one room or one rooming unit in a housing accommodation by an individual, if such individual or a member of such individual's family resides therein, or, with regard to discrimination based on sex, rooms or rental units where tenants would be required to share a common bath.

G. Nothing in this chapter shall apply to a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, which limits the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or which gives preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin.

H. Nothing in this chapter shall apply, with regard to discrimination based on sex to the rental of housing accommodations of single-sex dormitory rental properties, including but not limited to, those dormitories operated by higher educational institutions.
(Code 1985, § 48-254; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-5. Unlawful housing practices.

A. It is unlawful for an owner or other person engaging in a real estate transaction, or for a real estate broker or salesperson, real estate operator, or person acting by or on behalf of any of these to discriminate against any person in the sale or rental of real property or any housing accommodation because of race, color, religion, national origin, sex, age, familial status, source of income or handicap/disability.

B. It shall be a discriminatory practice for any person because of race, color, religion, national origin, sex, age, familial status, source of income or handicap/disability to:

1. Refuse to sell or rent after the making of a bona fide offer or to negotiate for the sale or rental of, or otherwise to make unavailable or deny, real property or a housing accommodation to a person;
2. Discriminate against any person in the terms, conditions, or privileges of sale or rental of real property or a housing accommodation, or in the provision of services or facilities in connection therewith; and it shall specifically be a violation of this section for an owner or manager of rental property to fail to maintain rental property in compliance with applicable housing code provisions because some or all of the tenants are members of classes protected by this chapter or the Tennessee Human Rights Act;
3. Refuse to receive or transmit a bona fide offer to purchase, rent or lease real property or a housing accommodation from a person;
4. Represent to a person that real property or a housing accommodation is not available for inspection, sale, rental or lease when in fact it so

available, or to refuse to permit a person to inspect real property or a housing accommodation;

5. Make, print, publish, circulate, post or mail or cause to be made, printed, published, circulated, posted or mailed a notice, statement, advertisement, or sign, or to use a form of application for the purchase, rental or lease of real property or a housing accommodation, or make a record of inquiry in connection with the prospective purchase, rental or lease of real property or a housing accommodation, which indicates, directly or indirectly, a limitation, specification, or discrimination as to race, color, religion, national origin, sex, age, familial status, source of income, or handicap/disability or an intent to make such a limitation, specification, or discrimination;

6. Offer, solicit, accept, use or retain a listing of real property or housing accommodation for sale, rental or lease with the understanding that a person may be discriminated against in the sale, rental or lease of that real property or housing accommodation or in the furnishing of facilities or services in connection therewith; or

7. Deny any person access to, or membership or participation in, any multiple-listing services, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting real property, or to discriminate against such person in the terms or conditions of such access, membership or participation.

C. It is a discriminatory practice for any person to:

1. Discriminate in the sale or rental of, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap/disability of:

   a. The buyer or renter;

   b. A person residing in or intending to reside in the dwelling after it is sold, rented or made available;

   c. Any person associated with the buyer or renter; or

2. Discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap/disability of:

   a. The person;

   b. A person residing in or intending to reside in the dwelling after it is so sold, rented or made available; or

   c. Any person associated with the person.

3. For purposes of this subsection, "discrimination" includes:

   a. A refusal to permit, at the expense of the handicapped/disabled person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises; except that, in the case of a rental, no modification need be permitted unless the renter first agrees to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted, unless previously negotiated with the landlord;

   b. A refusal to make reasonable accommodations in rules, practices or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

   c. In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in such a manner that:

      i. The dwellings have a least one building entrance on an accessible route, unless it is impractical to do so because of terrain or unusual site characteristics; or

      ii. With respect to dwellings with a building entrance on an accessible route:

         (A) The public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;

(B) All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped person in wheelchairs; and

(C) All premises within such dwellings contain the following features of adaptive design:

(1) An accessible route into and through the dwelling;

(2) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(3) Reinforcements in bathroom walls to allow later installation of grab bars; and

(4) Usable kitchens and bathrooms, such that an individual in a wheelchair can maneuver about the space.

4. Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically handicapped people (commonly cited as "ANSI A1 17.1") suffices to satisfy the requirements of section 5, part C(3)(c)(2)(ii).

5. As used in this subsection, "covered multifamily dwellings" means:

a. A building consisting of four or more units if such buildings have one or more elevators; and

b. Ground floor units in other buildings consisting of four or more units.

6. Nothing in this subsection requires that dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

D. It shall be illegal for a real estate operator, a real estate broker a real estate salesperson, a financial institution, an employee of any of these, or any other person, to engage in blockbusting for the purpose of inducing a real estate transaction from which he or she may benefit financially. Those provisions of the Tennessee Human Rights Act concerning blockbusting are adopted by reference to define illegal practices under this chapter. Violation of T.C.A. § 4-21-603 shall be deemed a violation of this chapter.

E. It shall be illegal to make any oral agreement, insert a written agreement, honor or attempt to honor any such term or provision, or place in an agreement anything that purports to forbid or restrict conveyance, encumbrance, occupancy, or lease of real property to individuals on the basis of race, color, religion, national origin, sex, age, familial status source of income or handicap/disability. Those provisions of the Tennessee Human Rights Act concerning restrictive covenants or agreements are adopted by reference to define such illegal practices under this chapter. Violation of T.C.A. § 4-21-604 shall be deemed a violation of this chapter.

F. It shall be illegal for a financial institution, or an individual employee acting by or on behalf of such institution to discriminate against an individual, a present or prospective owner, tenant, or occupant of real property or a member, stockholder, director, officer, employee or representative of any of these, because of race, color, religion, national origin, sex, age, familial status, source of income and disability/handicap, in the extension or provision of financial services. Those provisions of the Tennessee Human Rights Act concerning prohibited financial practices are adopted by reference to define such illegal practices under this chapter. Violation of T.C.A. § 4-21-606 shall be deemed a violation of this chapter.

G. It is a discriminatory practice for a person in the business of insuring against hazards to refuse to enter into, or discriminate in the terms, conditions, or privileges of a contract of insurance against hazards to a housing accommodation or real property because of race, color, religion, national origin, sex, age, familial status, source of income or handicap/disability of the person owning, or residing in or near the housing accommodation or real property.

H. It is a discriminatory practice for a person to coerce, intimidate, threaten or interfere with any person in the exercise or enjoyment of, or on account of his or

her having exercised or enjoyed, or on account of his or her having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by the provisions of this chapter.

I. Those provisions of the Tennessee Human Rights Act concerning prohibited practices are adopted by reference in that it shall be no defense to a violation of this chapter by a real estate operator, real estate broker, real estate salesman, financial institution, or other person that the violation was requested, sought or otherwise procured by a person not subject to the provisions of this chapter.

J. It is an unlawful practice for any person or other entity whose business includes engaging in real estate transactions to discriminate against any person in making available such transaction, or in the terms and conditions of such transaction, because of race, color, religion, national origin, sex, age, familial status, source of income or handicap/disability:

1. In the making or purchasing of loans or providing financial assistance:
    a. For purchasing, constructing, improving, repairing, or maintaining a dwelling; or
    b. Where the security is residential real estate; or
2. The selling, brokering, or appraising of residential real estate.

(Code 1985, § 48-255; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-6. Enforcement.

A. The city, through the division of housing and community development, shall designate an employee of the city to serve as the city's fair housing officer. Alternatively, the director of the division of housing and community development may contract with an appropriate individual or entity to perform all duties of the fair housing officer.

B. Any person who claims to have been injured or aggrieved in any manner by a violation of this chapter may file a written complaint with the city, through its designated fair housing officer, within 365 days of the alleged discriminatory act. The complaint shall include the name and address of the complainant and of every person against whom the complaint is made, and shall set out the facts giving rise to the complaint.

C. Upon receipt of a timely complaint, the city's fair housing officer shall advise a complainant of his or her right to also file a complaint with the United States Department of Housing and Urban Development and the Tennessee Human Rights Commission and the procedures for so doing.

D. The city's fair housing officer shall promptly notify the person identified in the complaint as having violated this chapter (the "respondent(s)"), in writing, of the complaint and of their opportunity to submit a written response to the complaint. The fair housing officer shall initiate an investigation into the allegations in the complaint within 30 days of the filing of same.

E. The city's fair housing officer shall, after investigation, determine whether there is sufficient merit to initiate an action for violation of this chapter. Such determination shall be made within 100 days of the filing of such complaint (except that if a complaint is filed with the Department of Housing and Urban Development or the state Human Rights Commission it may defer the determination until a determination of cause has been made by the pertinent agency). The complainant shall be notified in writing of the determination.

F. The fair housing officer shall be and is made a special police officer of the city for purposes of the issuance of citations for violation of this chapter. For purposes of this chapter the term "citation" means a written order issued by a law enforcement officer or special police officer (as authorized in this chapter) including information of the nature of the violation of this chapter charged, and requiring the person so charged to appear in a designated court at a specified date and time, signed by the person agreeing to appear at the time and place indicated. In the event that the person so charged fails to appear in the designated court on the specified date and time, then the court may take a default judgment against the charged person in favor of the city.
(Code 1985, § 48-256; Ord. No. 4932, § 1, 3-5-2002)

Sec. 10-36-7. Penalties for violation.

Violation of any provision of this chapter shall be punished by a fine of $50.00 and a penalty in any sum not exceeding $200.00. Each day on which a continuing violation occurs shall constitute a new and separate violation of this chapter. Nothing herein contained shall be construed so as to preclude any aggrieved person from pursuing such other and further and equitable relief to which he or she may be entitled. Fines collected pursuant

to this section will be used to establish a fund to educate the community about fair housing and responsibilities and to promote fair housing in the city.
(Code 1985, § 48-257; Ord. No. 4932, § 7, 3-5-2002)

Sec. 10-36-8. Notice of violation.

The city attorney shall file with the state Real Estate Commission a notice of the conviction of any licensed real estate broker or affiliate broker found guilty of violating this chapter.
(Code 1985, § 48-258; Ord. No. 4932, § 8, 3-5-2002)

Sec. 10-36-9. Annual report.

The fair housing/human rights officer shall publish an annual report setting forth the number of complaints received during the prior year, as well as the disposition of the complaints, the number of convictions for violation.
(Code 1985, § 48-259; Ord. No. 4932, § 9, 3-5-2002)

CHAPTER 10-37. SEXUAL OFFENDERS—COMMUNITY NOTIFICATION SYSTEM

Sections:

Sec. 10-37-1. Mandatory registration.
Sec. 10-37-2. Forms of notification.

Sec. 10-37-1. Mandatory registration.

Pursuant to T.C.A., § 40-39-217, any sexual offender or violent sexual offender, as defined by T.C.A., § 40-39-202, residing in the City of Memphis must register with the Memphis Police Department and pay to the police department a notification fee of $50.00 per year.
(Ord. No. 5567, § 2, 10-21-2014)

Sec. 10-37-2. Forms of notification.

Whenever a sexual offender or violent sexual offender intends to reside, or, upon registration, declares to already reside within 1,000 feet of the property line of any public school, private or parochial school, licensed day care center, other child care facility, public park, playground, recreation center, or public athletic field available for use by the general public, the City of Memphis may notify the public using any or all of the following methods:

1. Notification by the police department to residents, schools, and child-care facilities within 1,000 feet of the offender′s residence;
2. A community notification flyer, whether made by regular mail or hand delivered, to all legal residences within 1,000 feet of the offender′s residence;
3. Posting a copy of the notice in a prominent place at the office of the police station closest to the declared residence of the offender;
4. Notifying homeowners associations within the immediate area of the declared residence of the offender; or
5. Any other method reasonably expected to provide notification as determined by city.

(Ord. No. 5567, § 2, 10-21-2014)

Title 11

VEHICLES AND TRAFFIC*

Chapters:

11-4.	General Provisions and Definitions
11-8.	Administration and Enforcement
11-12.	Traffic-Control Devices
11-14.	Traffic Control Photographic System
11-16.	Rules of the Road
11-20.	Motorcycles
11-21.	Speed Enforcement Photographic System
11-24.	Bicycles
11-28.	Pedestrians
11-32.	Vehicle Equipment
11-36.	Seatbelts and Child-Safety Devices
11-40.	Stopping, Standing and Parking Generally
11-42.	Valet Parking
11-44.	Parking Meters
11-48.	Accidents
11-52.	Vehicle Loads
11-56.	Vehicle Noise Regulations
11-60.	Registration of Vehicles
11-64.	Inspection of Vehicles
11-68.	Miscellaneous Traffic Regulations
11-70.	Immobilization of Motor Vehicles by Booting and Commercial Parking Lot Ticketing

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***Charter references—**Authority to regulate automobiles and operator thereof, § 728; authority to control drivers of motor vehicles and to regulate traffic, § 834; special privilege tax, § 789.

State law reference—Rules of the road, T.C.A. § 55-8-101 et seq.

CHAPTER 11-4. GENERAL PROVISIONS AND DEFINITIONS

Sections:

Sec. 11-4-1. Definitions.
Sec. 11-4-2. General duties of director of police under title.
Sec. 11-4-3. Establishment, control and general duties of traffic division of police division.
Sec. 11-4-4. Traffic design department generally.
Sec. 11-4-5. Duty of police to enforce traffic laws.
Sec. 11-4-6. Authority of police to direct traffic.
Sec. 11-4-7. Authority of firefighters to direct traffic.
Sec. 11-4-8. Obedience to traffic officers.
Sec. 11-4-9. Obedience to school safety patrols.
Sec. 11-4-10. Riding or driving animals or animal-drawn vehicles.
Sec. 11-4-11. Application to persons propelling pushcarts.
Sec. 11-4-12. Application to persons working on street.
Sec. 11-4-13. Exemptions for authorized emergency vehicles.
Sec. 11-4-14. Report of vehicles stored for more than 30 days.
Sec. 11-4-15. Traffic records and reports.
Sec. 11-4-16. Violators to furnish name and address.
Sec. 11-4-17. City impound lot—Sales.
Sec. 11-4-18. City impound lot—Unsalvageable sales.
Sec. 11-4-19. Non-driver participation in drag racing and reckless driving exhibitions.

Sec. 11-4-1. Definitions.

The following terms, whenever used in this title, except as otherwise specifically indicated, shall be held to have each of the meanings hereinbelow set forth, and any such term used in the singular number shall be held to include the plural.

Alley means any lane or other passageway as so designated by the official map of the city.

Authorized emergency vehicle means vehicles of the fire division, fire patrol, police vehicles and such ambulances and emergency vehicles as are designated or authorized by the state commissioner of safety or the director of police of the city.

Bicycle means every device propelled by human power upon which any person may ride, having two tandem wheels either of which is more than 20 inches in diameter.

Bus means every motor vehicle designed for carrying more than ten passengers and used for the transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

Chauffeur means every person who is employed by another for the principal purpose of driving a motor vehicle and every person who drives a school bus transporting school children or any motor vehicle when in use for the transportation of persons or property for compensation.

Coach stop means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

Controlled-access highway means every street, highway or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the proper authorities having jurisdiction over such street, highway or roadway.

Crosswalk means that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the street measured from the curbs or, in absence of curbs, from the edges of the traversable roadway. Such term shall also include any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb means the lateral boundary of that portion of the street designated for the use of vehicles, whether marked with a curbstone or not.

Driver means every person who drives or is in actual physical control of a vehicle.

Intersection means the areas embraced with the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two streets which join one another at, or approximately at, right angles, or the areas within which vehicles traveling upon different streets joining at any other angle may come in conflict. Where a street includes two roadways 30 feet or more apart, then every crossing of each roadway of such divided street by an intersecting street shall be regarded as a separate intersection. In the event such intersecting street also includes two roadways 30 feet or more apart, then every crossing of two roadways of such street shall be regarded as a separate intersection.

Laned roadway means a roadway which is divided into two or more clearly marked lanes for vehicular traffic.

License to operate a motor vehicle means any operator's or chauffeur's license, or any other license or permit to operate a motor vehicle issued under the laws of the state including:

1. Any temporary license or instruction permit;
2. The privilege of any person to drive a motor vehicle whether or not such person holds a valid license;
3. Any nonresident's operating privilege as defined in the Tennessee Code.

Loading and unloading zone means any portion of the street designated by the city engineer by official signs for the use of vehicles while actually engaged in loading or unloading freight or picking up and discharging passengers.

Metal tire means every tire the surface of which in contact with the street is wholly or partly of metal or other hard, nonresilient material.

Motorcycle means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor or motorized bicycle.

Motor-driven cycle means every motorcycle, including every motor scooter, with a motor which produces not to exceed five brake horsepower, or with a motor with a cylinder capacity not exceeding 125 cubic centimeters.

Motorized bicycle means a vehicle with fully operable pedals for propulsion by human power, an automatic transmission, and a motor with a cylinder capacity not exceeding 50 cubic centimeters which produces no more than two brake horsepower and is capable of propelling the vehicle at a maximum design speed of no more than 30 miles per hour on level ground. The operator of a motorized bicycle must be in possession of a valid operator's or chauffeur's license, and shall be subject to all applicable and practical rules of the road. A motorized bicycle may not be operated on a highway of the interstate and defense highway system, any similar limited-access multilane divided highway, or upon sidewalks.

Motor vehicle means every vehicle which is self-propelled, excluding motorized bicycles, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Off-street parking facility means any unenclosed lot, building or space used for the parking of automobiles or other motor vehicles where charges are made for the parking or storage of automobiles or other motor vehicles thereon.

Official traffic-control devices means all signs, markings, signals and devices not inconsistent with this title, placed or erected by authority of the city engineer for the purpose of regulating, warning or guiding traffic.

Operator means every person, other than a chauffeur, who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.

Owner means any person in whose name any vehicle shall be registered under the laws of the state, or of any other political subdivision where such owner may be domiciled.

Parking means the standing of a vehicle, whether occupied or not, upon a street otherwise than temporarily for the purpose of, and while actually engaged in, receiving or discharging passengers, or loading or unloading merchandise, or in obedience to traffic regulations or traffic signs or signals.

Parking meter means any device by which the time a vehicle may be parked at any point on the streets of the city is measured and compensation paid therefor.

Parking meter space means any space adjacent to a parking meter, and which is duly designated for the parking of a single vehicle.

Pedestrian means any person afoot.

Pneumatic tire means every tire in which compressed air is designed to support the load.

Police officer means every officer of the police division of the city, or any person authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road or *driveway* means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Railroad means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad sign or signal means any sign, electrically or manually operated signal or other device erected by authority of the proper officials of the city or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Railroad train means a steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails, except streetcars.

Right-of-way means the privilege of the immediate use of the roadway.

Roadway means that portion of a street improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a street includes two or more separate roadways, the term "roadway" shall refer to any such roadway separately but not to all such roadways collectively.

Safety zone means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school or privately owned and operated for compensation for the transportation of children to or from school.

Semitrailer means every vehicle, with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Sidewalk means that portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines, intended for use of pedestrians.

Solid tire means every tire of rubber or other resilient material which does not depend upon compressed air for the support of the load.

Stop, when required, means complete cessation from movement.

Stopping, standing, or *parking,* when prohibited, means any stopping or standing or parking of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street means the entire width between right-of-way lines of every way, except designated alleys, publicly maintained when any part thereof is open to the use of the public for the purpose of vehicular travel.

Taxicab means any vehicle, other than a bus, used in the carrying or transporting of persons or property for hire.

Taxicab stand means any portion of the street assigned or allotted to any person for the exclusive purpose of parking one or more taxicabs.

Tractor means any self-propelled vehicle designed or used as a traveling power plant or for drawing other vehicles, but having no provision for carrying loads independently.

Traffic means pedestrians, ridden or herded animals, vehicles, and other conveyances, either singly or together, while using any street for purposes of travel.

Traffic-control signal means any sign or device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed, or otherwise controlled.

Traffic division means the traffic division of the police division, as created by this title.

Trailer means every vehicle, with or without motive power, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

Truck means every motor vehicle designed, used or maintained primarily for the transportation of property.

Vehicle means every device in, upon or by which any person or property is or may be transported or drawn upon a street, excepting devices moved by human power or used exclusively upon stationary rails or tracks.
(Code 1985, § 21-1; Ord. No. 3586, § 1, 9-2-1986)

State law reference—Definitions, T.C.A. § 55-1-102 et seq.

Sec. 11-4-2. General duties of director of police under title.

The director of police is vested with the power and is charged with the duty of observing, administering and enforcing the provisions of this title and of all laws

regulating the operation of vehicles or the use of the streets, the enforcement or administration of which is now vested in the police division.
(Code 1967, § 23-2; Code 1985, § 21-2)

Sec. 11-4-3. Establishment, control and general duties of traffic division of police division.

There is established in the police division of the city a traffic division to be under the control of an officer of police directly responsible to the director of police. It shall be the primary duty of the traffic division, with such aid as may be rendered by other members of the police division, to enforce the street traffic regulations of the city and all of the state vehicle laws applicable to street traffic in the city, to make arrests for traffic violations, to investigate traffic accidents and to arrest and to assist in the prosecution of those persons charged with violations causing or contributing to such accidents, to cooperate with the director of public works and other officials of the city in the administration of the traffic laws and in developing ways and means to improve traffic conditions, and to carry out those duties specially imposed upon such division by this title and other traffic ordinances of the city.
(Code 1967, § 23-3; Code 1985, § 21-3)

Sec. 11-4-4. Traffic design department generally.

It shall be the general function of the traffic engineering department to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the movement of traffic on the streets and highways of this city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions.
(Code 1967, § 23-4; Code 1985, § 21-4; Ord. No. 3586, § 2, 9-2-1986)

Sec. 11-4-5. Duty of police to enforce traffic laws.

It shall be the duty of the officers of the police division of the city or such persons as are assigned by the director of police to enforce all street traffic laws of this city and all the state motor vehicle laws applicable to street traffic in the city.
(Code 1967, § 23-5; Code 1985, § 21-5)

Sec. 11-4-6. Authority of police to direct traffic.

Officers of the police division or such persons as are assigned by the director of police are authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police division may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.
(Code 1967, § 23-6; Code 1985, § 21-6)

Sec. 11-4-7. Authority of firefighters to direct traffic.

Personnel of the fire division, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1967, § 23-7; Code 1985, § 21-7)

Sec. 11-4-8. Obedience to traffic officers.

No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer, or of a fire division official at the scene of a fire, or any person authorized to direct, control or regulate traffic.
(Code 1967, § 23-8; Code 1985, § 21-8)

State law reference—Similar provisions, T.C.A. § 55-8-104.

Sec. 11-4-9. Obedience to school safety patrols.

All motorists and pedestrians shall obey the directions or signals of the school safety patrols, when such patrols are assigned under the authority of the director of police, and when acting in accordance with instructions; provided that such persons giving any order, signal or directions shall, at the time, be wearing some insignia and using authorized flags for giving signals.
(Code 1967, § 23-9; Code 1985, § 21-9)

Sec. 11-4-10. Riding or driving animals or animal-drawn vehicles.

A. Every person riding an animal upon a roadway, and every person driving any animal-drawn vehicle, shall be subject to the provisions of this title applicable to the driver of any vehicle, except those provisions of this title which, by their very nature, can have no application.

B. No person shall ride or drive any animal upon any street beyond a moderate gait. Every person riding or driving any animal upon any street shall slacken the pace of such animal in approaching any street crossing upon

which any person may be in the act of crossing and shall also slacken the pace of such animal when any person is boarding or leaving a bus or trackless trolley. Every person driving or riding any animal shall exercise due care to avoid colliding with or striking any person or property in a public street. It is unlawful for any person to leave any animal standing in a public street without the animal's being fastened or so guarded as to prevent running away, or to turn the animal loose in any street.
(Code 1967, § 23-16; Code 1985, § 21-10)

State law reference—Similar provisions, T.C.A. § 55-8-105.

Sec. 11-4-11. Application to persons propelling pushcarts.

Every person propelling any pushcart shall be subject to the provisions of this title applicable to the driver of any vehicle, except those provisions which, by their very nature, can have no application.
(Code 1967, § 23-17; Code 1985, § 21-11)

Sec. 11-4-12. Application to persons working on street.

Unless specifically made applicable, the provisions of this title shall not apply to persons, teams, motor vehicles and other equipment while actually engaged in work upon the surface of a street, but shall apply to such persons and vehicles when traveling to or from such work.
(Code 1967, § 23-18; Code 1985, § 21-12)

Sec. 11-4-13. Exemptions for authorized emergency vehicles.

A. The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

B. The driver of an authorized emergency vehicle may:

1. Park, stand or stop irrespective of the provisions of this title;
2. Proceed past a red signal or stop sign, but only after slowing down as may be necessary for safe operation;
3. Exceed the speed limits so long as he or she does not endanger life or property;
4. Disregard regulations governing direction of movement or turning in specified directions.

C. The exemptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of audible and visual signals meeting the requirements of the applicable state laws, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

D. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his or her reckless disregard for the safety of others.
(Code 1967, § 23-19; Code 1985, § 21-13)

State law reference—Similar provisions, T.C.A. § 55-8-108.

Sec. 11-4-14. Report of vehicles stored for more than 30 days.

A. Whenever a motor vehicle has been stored, parked or left in a garage, trailer park or court, or any type of storage or parking lot for a period of more than 30 consecutive days, the owner of such garage, trailer park or lot shall report in writing the make, motor number, vehicle identification number and serial number of such motor vehicle to the police division. This section shall not apply where the owner of the motor vehicle so parked or stored is personally known to the owner or operator of the garage, trailer park or court, storage or parking lot and where such motor vehicle owner has made arrangements for the parking or storing of such motor vehicle for a longer period of time than 30 days.

B. Any person who fails to submit the report required hereunder within ten days after the termination of such 30-day period shall forfeit all claims for storage or parking of such vehicle and shall be guilty of a misdemeanor and shall be fined not less than $10.00 for each offense. Each day's failure to make such report shall be deemed a separate offense.
(Code 1967, § 23-21; Code 1985, § 21-25)

Sec. 11-4-15. Traffic records and reports.

The police division shall maintain a suitable system of filing accident reports, drivers' records, arrests, convic-

tions for arrests or citations and shall periodically prepare a traffic report which shall be filed with the city council containing information on traffic matters in this city. Such reports shall include the following:

A. The number of traffic accidents, the number of persons injured and/or fatally injured, and other pertinent traffic accident data;

B. The number of traffic accidents investigated and other pertinent data on the safety activities of the police;

C. The plans and recommendations of the division for future traffic safety activities.

(Code 1967, § 23-22; Code 1985, § 21-26)

Sec. 11-4-16. Violators to furnish name and address.

Any person charged with violating any provision of this title shall furnish to any police officer, on demand, his or her correct name and address and supply also, if required, proof of his or her identity. Any failure to comply with this requirement shall be justification for immediate arrest.

(Code 1967, § 23-23; Code 1985, § 21-27)

Sec. 11-4-17. City impound lot—Sales.

It is unlawful to sell more than six vehicles any one calendar year, from the city's impound lot, on an individual basis. This restriction shall not apply to duly licensed automobile dealers.

(Code 1985, § 21-31; Ord. No. 4432, § 1, 8-6-1996)

Sec. 11-4-18. City impound lot—Unsalvageable sales.

Individual sale of unsalvageable vehicles from the city impound lot is unlawful. This restriction shall not apply to duly licensed salvage dealers.

(Code 1985, § 21-32; Ord. No. 4433, § 1, 8-6-1996)

Sec. 11-4-19. Non-driver participation in drag racing and reckless driving exhibitions.

A. For purposes of this section, the following terms shall mean:

Drag racing and *reckless driving exhibition* means any motor vehicle ascertaining the maximum speed obtainable by the vehicle; performing donuts, burnouts and drifting by a single automobile; ascertaining the highest obtainable speed of the vehicle within a certain distance or within a certain time limit; the use of any one or more motor vehicles for the purpose of comparing the relative speeds of the vehicle or vehicles, or for comparing the relative speeds of the vehicle or vehicles within a certain distance or within a certain time limit; the use of one or more motor vehicles in an attempt to outgain, outdistance or to arrive at a given destination simultaneous with or prior to that of any other motor vehicle; or the use of any motor vehicle for the purpose of the accepting of, or the carrying out of any challenge, made orally, in writing, or otherwise, made or received with reference to the performance abilities of one or more motor vehicles;

Organizer means any individual who in any manner knowingly takes part in the planning, organization, coordination, facilitation, advertising or sharing of the location for any such drag race, or collect moneys in connection with a drag racing exhibition, as defined herein;

Participant means any individual who is knowingly present at a drag racing exhibition for the purpose of actively taking part in the event, through conduct including riding in a race vehicle as a passenger; assisting the organizers and/or drivers in carrying out or promoting the event; or exchanging money or anything of value with any driver, car owner, or other participant in connection with the event. For the purposes of this section, a person who is a mere bystander, passerby, or observer not aware of the illegal activity shall not be deemed a participant.

B. Violations.

1. No person shall knowingly act as an organizer of a drag racing or reckless driving exhibition, as defined herein.

2. Except as provided elsewhere in this chapter, no person shall knowingly act as a participant in a drag racing or reckless driving exhibition, as defined herein.

C. Penalties.

1. Anyone found in violations of this section shall be prosecuted in the same manner as other traffic violations of this Code, shall be initiated upon issuance of a traffic citation ticket subjected to a fine not to exceed $50.00 and shall require a mandatory court appearance.

D. Exemptions.

This section shall not apply to licensed or duly authorized racetracks, drag strips, or other designated areas set aside by proper authorities for such purposes. (Ord. No. 5771, § 1, 7-6-2021)

CHAPTER 11-8. ADMINISTRATION AND ENFORCEMENT

Sections:

Sec. 11-8-1. Definitions.
Sec. 11-8-2. Sections 7-63-101 through 7-63-107, T.C.A., adopted.
Sec. 11-8-3. When summonses deemed lawful complaints for prosecution.
Sec. 11-8-4. Procedures applicable to summonses and traffic citations.
Sec. 11-8-5. Violation forfeitures.
Sec. 11-8-6. Court may adopt rule permitting deposit of chauffeur's or operator's license in lieu of bond.
Sec. 11-8-7. Limitation on action for traffic violation—When action deemed commenced—Service of summons.
Sec. 11-8-8. Dismissal or nolle prossing of summons or citation not prohibited.
Sec. 11-8-9. When attendance of driver education course required—Additional penalty for benefit of driver education program.
Sec. 11-8-10. Compliance with financial responsibility law required—Evidence of compliance.
Sec. 11-8-11. Electronic citations.

Sec. 11-8-1. Definitions.

The following definitions shall apply to sections 11-8-2 through 11-8-8:

Electronic traffic citation is any traffic citation or traffic summons, containing all information required by law, that is prepared by a law enforcement officer in an electronic data device with the intent that the data collected shall be filed electronically with a court having jurisdiction over the alleged offense.

Ordinance summons is a ticket issued to an offender by a police officer or other person authorized by law under T.C.A. § 7-63-101 to appear in the city court for any offense other than traffic, showing the offense charged and signed by the offender agreeing to appear at the place and time indicated; the ordinance summons being issued for the violation of any other ordinance, law or regulation of the municipality in the presence of the police officer or other designated official authorized to issue such summonses by T.C.A. § 7-63-101.

Summons is the process issued by the city court, and signed by the judge or clerk as provided by law, and served by personal service or certified or registered mail, as provided by law.

Traffic citation is any ticket issued by a police officer or other person authorized by law where there is no personal delivery of the ticket to the offender and the ticket is not signed by the offender, such as a parking ticket.

Traffic summons is any ticket issued to an offender by a police officer or other person authorized by law to appear in the city court, showing the offense charged and signed by the offender agreeing to appear at the time and

place indicated, or to appear in the traffic violations bureau on or before the time indicated to pay the forfeiture required or to request a trial date.

Traffic violations bureau is the bureau established to file and process traffic summonses and traffic citations for payment prior to the preparation of the docket and delivery of the ticket or citation to the clerk for hearing as provided herein, and to maintain records of disposition of summons and citations.

(Code 1967, § 23-24; Code 1985, § 21-46; Ord. No. 2229, § 2, 5-13-1975; Ord. No. 2223, § 1(1—3), 7-11-1975; Ord. No. 5568, § 1, 10-21-2014)

Sec. 11-8-2. Sections 7-63-101 through 7-63-107, T.C.A., adopted.

The provisions of T.C.A. §§ 7-63-101 through 7-63-107 are adopted. The adoption of T.C.A. § 7-63-101 et seq., applies to violations of any traffic or other ordinances, laws and regulations of the city as provided in such code provision.

(Code 1967, § 23-25; Code 1985, § 21-47; Ord. No. 2229, § 2, 5-13-1975; Ord. No. 2455, § 1, 6-29-1976)

Sec. 11-8-3. When summonses deemed lawful complaints for prosecution.

In the event the form of traffic summons, traffic citation or ordinance summons issued includes information as required under the general laws of this state, adopted herein, or the Charter of the city, or this chapter in respect to a complaint charging the commission of offense alleged in the traffic summons, traffic citation or ordinance summons to have been committed, then such summons or citation, when filed with the clerk's office or the traffic violations bureau, shall be deemed to be a lawful complaint for the purpose of prosecution under this title in accordance with the procedures herein.

(Code 1967, § 23-26; Code 1985, § 21-48; Ord. No. 2229, § 2, 5-13-1975)

Sec. 11-8-4. Procedures applicable to summonses and traffic citations.

The following procedures shall apply as to traffic summonses, ordinance summonses and traffic citations:

A. *Traffic summons.* Every traffic summons issued shall provide for an appearance date and such date shall be not less than five nor more than 15 days after the issuance of a traffic summons. The offender shall pay by mail or shall appear at the traffic violations bureau on the date set therein or at any time prior thereto and pay the forfeiture as set forth herein, or may request a trial date prior to or on the date set therein. The trial date shall be set at some time thereafter upon one of the dates established as the court date for the police officer writing the summons and the docket prepared.

If any offender fails to appear on or before the appearance date, a docket shall be prepared as soon as possible of all those persons failing to appear to be called the default docket. The docket shall be presented to the court and the court shall, upon motion of the clerk, take a default judgment against the defendant in favor of the city in an amount not less than that specified by the schedule of forfeitures nor more than $50.00, plus costs, for each offense. The default docket shall be assigned in accordance with procedures established by the court rules.

B. *Ordinance summonses.* Whenever any person is served with an ordinance summons, the person shall appear at the date and time set forth therein in court for hearing of the cause unless such violation has a forfeiture set specifically in section 11-8-5. If such person fails to appear on the date and time, a default judgment shall be taken not to exceed $50.00 and costs for each offense.

C. *Traffic citation.* Whenever any traffic citation has been issued, the citation shall provide for payment within 15 days from issuance. Any person receiving such traffic citation may appear and pay the forfeiture set therein at the traffic violations bureau on or before that date, either in person or by mail. If no one appears to pay such traffic citation by the end of the 15-day period, then a summons shall be issued as provided in the Charter and served either by personal service or certified or registered mail as provided by law indicating the date and time for such person to appear to answer the charge in such traffic citation. The traffic citation summons shall be set upon the docket specially established for such summons. If such person fails to appear to answer such citation before the court indicated and at the date and time provided for, the court, upon motion of the city, shall take a default judgment against the defendant in favor of the city. The amount of such

default judgment shall be at least the amount of the forfeiture set for the violation of such section and no more than $50.00 and costs for each violation.

The traffic citation summons shall be sworn to by the officer before a person designated as a city court clerk for the purpose of taking oaths on a form of oath approved by a majority of the city court judges. The city court clerk's office shall certify that the defendant is the registered owner of the vehicle by signing the docket and certifying to such registration. The oath of the officer and the certification of the clerk shall be prima facie evidence that the defendant violated the section charged. If the defendant contests the ownership of the vehicle or the violation of the ordinance, he or she shall file a sworn pleading in evidence of the hearing setting forth such defense or defenses so as to allow the city sufficient time to prepare for the trial.

(Code 1967, § 23-27; Code 1985, § 21-49; Ord. No. 2229, § 2, 5-13-1975; Ord. No. 2223, § 1(4—6), 7-11-1975; Ord. No. 3201, § 1(1), 5-18-1982)

Sec. 11-8-5. Violation forfeitures.

A. The traffic violations bureau is authorized to collect the following schedule of forfeitures:

Traffic Violations Bureau
Schedule of Forfeitures

Section Violated	*Nature of Violation*	*Forfeiture*
6-88-11	Report of accidents, wrecker	Court
9-44-1	Obstructing fire access areas and fire hydrants	$25.00
11-20-4	Motorcycles, etc.—windshield; wearing of goggles by operator and passenger	$25.00
11-20-6	Motorcycles, etc.—parent deemed guilty of misdemeanor for permitting minors to violate sections 11-20-2 through 11-20-4.	Court
11-4-8	Obedience to traffic officers	$15.00
11-4-9	Obedience to safety patrols	$50.00
11-4-10	Riding or driving animals or animal drawn vehicles	$15.00
11-4-14	Report of vehicle stored for more than 30 days	$15.00
11-4-16	Chapter violators to furnish name and address	Court
11-8-3	When summonses deemed lawful complaints for prosecution	Court
11-12-4	Unauthorized signs, signals, etc.	$15.00
11-12-6	Traffic-control signal legend generally	$50.00
11-12-7	Flashing signals	$30.00
11-12-8	Pedestrian-control signal	$20.00
11-12-12	Controlled-access roadways	$15.00
11-12-13	Obedience to devices	$50.00
11-16-1	State license required	Court
11-16-2	Duty to devote full time and attention to operating vehicle	$30.00
11-16-3	Duty to drive at safe speed, maintain lookout and keep vehicle under control	$30.00
11-16-4	Driving when view or control obstructed	$20.00
11-16-5	Lap driving	$20.00
11-16-6	Pulling away from curb	$30.00
11-16-7	Emerging from or entering alley, private driveway or building	$30.00

Section Violated	*Nature of Violation*	*Forfeiture*
11-16-8	Duty to drive on right side of roadway	$30.00
11-16-9	Passing vehicles proceeding in opposite direction	$25.00
11-16-10	Passing vehicles proceeding in same direction—generally	$25.00
11-16-11	Passing vehicles proceeding in same direction—on right side	$25.00
11-16-12	Passing vehicles proceeding in same direction—duty of driver of overtaken vehicle	$25.00
11-16-13	Overtaking and passing school buses; identification of buses	Court
11-16-14	Driving on roadways laned for traffic	$25.00
11-16-15	Driving on divided street	$25.00
11-16-16	Entering/leaving controlled-access roadway	$25.00
11-16-17	Driving in parks	$25.00
11-16-18	Driving within a sidewalk area	$50.00
11-16-19	Obstructing intersection or crosswalk	$50.00
11-16-20	Following too closely	$30.00
	General Speed Restrictions	
11-16-21	Speed limit—parks—20 mph zone	
	21 mph through 25 mph	$10.00
	26 mph through 30 mph	$20.00
	31 mph through 35 mph	$35.00
	36 mph through 45 mph	$45.00
	46 mph and over	Court
11-16-21	Speed limit 25 mph zone	
	26 mph through 30 mph	$10.00
	31 mph through 35 mph	$20.00
	36 mph through 40 mph	$35.00
	41 mph through 50 mph	$45.00
	51 mph and over	Court
11-16-21	Speed limit 35 mph zone	
	36 mph through 40 mph	$10.00
	41 mph through 45 mph	$20.00
	46 mph through 50 mph	$35.00
	51 mph through 55 mph	$45.00
	61 mph and over	Court
11-16-21	Speed limit 40 mph zone	
	41 mph through 45 mph	$10.00
	46 mph through 50 mph	$20.00
	51 mph through 55 mph	$35.00
	56 mph through 65 mph	$45.00
	66 mph and over	Court

Section Violated	*Nature of Violation*	*Forfeiture*
11-16-21	Speed limit 45 mph zone	
	46 mph through 50 mph	$10.00
	51 mph through 55 mph	$20.00
	56 mph through 60 mph	$35.00
	61 mph through 70 mph	$45.00
	71 mph and over	Court
11-16-21	Speed limit 50 mph zone	
	51 mph through 55 mph	$10.00
	56 mph through 60 mph	$20.00
	61 mph through 65 mph	$35.00
	66 mph through 75 mph	$45.00
	76 mph and over	Court
11-16-21	Speed limit 55 mph zone	
	56 mph through 60 mph	$10.00
	61 mph through 65 mph	$20.00
	66 mph through 70 mph	$35.00
	71 mph through 80 mph	$45.00
	81 mph and over	Court
11-16-22	Speed limit—school zone—15 mph zone	
	16 mph through 25 mph	Court
	26 mph through 35 mph	Court
	36 mph and over	Court
11-16-23	Minimum speed regulations	$15.00
11-16-24	Right-of-way at uncontrolled intersections	$30.00
11-16-25	Yield intersections	$30.00
11-16-26	Stop intersections	$30.00
11-16-27	One-way streets	$30.00
11-16-28	Turning movements generally	$30.00
11-16-29	Markings or signs regulating manner of making turns	$20.00
11-16-31	Prohibited turns	$20.00
11-16-32	Limitations on turning around	$20.00
11-16-33	Turning and stopping signals—generally	$20.00
11-16-34	Turning and stopping signal—manner of giving with hand and arm	$20.00
11-16-35	Turning and stopping signal—change of direction after signal given	$20.00
11-16-36	Turning and stopping signals—duty of drivers receiving signal	$20.00
11-16-37	Right-of-way when vehicle turning left at intersection	$30.00
11-16-38	Limitations on backing	$30.00
11-16-39	Procedure upon approach of authorized emergency vehicle	$50.00
11-16-40	Following fire apparatus or driving near fire	$20.00
11-16-41	Driving over fire hose	$20.00
11-16-42	Driving in processions	$20.00

Section Violated	*Nature of Violation*	*Forfeiture*
11-16-43	Driving through processions	$10.00
11-16-44	Reckless driving	Court
11-16-45	Striking parked vehicles or fixed objects	$30.00
11-16-46	Operating vehicle for advertising purposes	$15.00
11-16-47	Restriction on use of certain streets by trucks, trailers and heavy duty vehicles	$15.00
11-16-48	Truck routes	$15.00
11-16-49	Duty to stop at railroad crossing upon approach of train	$30.00
11-16-50	Cruising on public streets	$50.00
11-16-57	Procedures to be taken when in the presence of stationary solid waste collection vehicles	$50.00
11-20-1	Riding on motorcycles	$20.00
11-20-2	Motorcycles, etc.—wearing of crash helmets by driver and passenger required; operation of headlights required	$25.00
11-20-2	Motorcycles, etc.—passengers seats required	$25.00
11-24-1	Bicycles—effect of regulations	$15.00
11-24-4	Equipment—lights and reflectors	$50.00
11-24-5	Equipment—break	$20.00
11-24-7	Riding on roadways	$20.00
11-24-8	Obedience to traffic control devices	$50.00
11-24-9	Bike lanes	$20.00
11-24-12	Right-of-way to pedestrians; passing pedestrians	$50.00
11-24-13	Clinging to moving vehicles	$50.00
11-24-15	Racing and endurance contests	$20.00
11-24-16	Carrying articles on bicycles	$20.00
11-24-17	Child bicycle safety	$20.00
11-28-1	Pedestrians—applicability	$20.00
11-28-2	Pedestrians—use of crosswalks generally	$5.00
11-28-3	Right-of-way in crosswalks	$50.00
11-28-4	Crossing at other than crosswalks	$40.00
11-28-5	Pedestrians—walking on roadways	$20.00
11-28-6	Pedestrian tunnels or overhead crossings	$5.00
11-28-7	Walking on roadways	$5.00
11-28-8	Pedestrian right-of-way on sidewalks	$30.00
11-28-9	Soliciting the watching or guarding of parked vehicles	$5.00
11-28-10	Duty of drivers with regard to pedestrians	$15.00
11-28-11	Special provisions relative to pedestrians carrying white cane or guided by dog	$5.00
11-32-1	Brakes generally	$15.00
11-32-2	Brakes for motorcycles and motorized bicycles	$15.00
11-32-3	Brakes for trailers and semitrailers	$15.00
11-32-4	Service brakes required	$15.00
11-32-5	Performance ability of brakes	$30.00

Section Violated	*Nature of Violation*	*Forfeiture*
11-32-6	Maintenance and adjustment of brakes	$15.00
11-32-7	Lights—required on motor vehicles	$25.00
11-32-8	Lights—on vehicles other than motor vehicles; visibility distance	$25.00
11-32-9	Lights—headlamps on motorcycles	$25.00
11-32-10	Lights—lamp at end of train of vehicles	$25.00
11-32-11	Lights—lighting devices and reflectors on vehicles	$15.00
11-32-12	Lights—headlights on motor vehicles; operation during inclement weather	$25.00
11-32-13	Lights—headlights complying with prohibition against glaring and dazzling lights; anti-glare devices; mounted height of lamps	$15.00
11-32-14	Lights—use of spotlights prohibited; exception	$15.00
11-32-15	Muffler required	$15.00
11-32-16	Muffler cutout prohibited	$15.00
11-32-17	Horn, bells, sirens or exhaust whistles on emergency vehicles	$15.00
11-32-18	Windshields and windows	$15.00
11-32-190	Windshield wipers	$15.00
11-32-20	Steering mechanism and wheel alignment	Court
11-32-21	Rear view mirrors	$15.00
11-32-22	Operating vehicle equipped with tire in dangerous condition	$15.00
11-36-1	Child passenger safety responsibility	$10.00
11-40-1	Obedience to parking signs	$10.00
11-40-2	Prohibited in specified places	$10.00
11-40-2(A)(14)	Restricted zone	$20.00
11-40-4	Prohibited for certain purposes	$8.00
11-40-5	Obstructing traffic prohibited	$20.00
11-40-6	Opening door of parked or standing vehicle	$20.00
11-40-7	Unattended vehicles	$30.00
11-40-8	Stopping with left side to curb	$10.00
11-40-9	No-parking zones	$20.00
11-40-10	Angle parking	$8.00
11-40-11	Parking vehicles on residential streets	$25.00
11-40-12	Parking of nonmotorized equipment or vehicles on residential streets	$25.00
11-40-13	Storage of property on public streets and right-of-way unlawful	$25.00
11-40-14	Parking, loading and unloading in alleys	$10.00
11-40-15	Parking in handicapped spaces $50.00 plus penalty of $50.00 for a total of	$100.00
11-40-16(A)	Restricting handicapped parking $50.00 plus penalty of $50.00 for a total	$100.00
11-40-16(B)	Encroachment - handicapped parking $50.00 penalty of $50.00 for a total	$100.00
11-40-16(C)	Restriction of curb-cut or ramp $50.00 plus penalty of $50.00 for a total	$100.00
11-40-17	Loading and unloading zones—generally	$10.00
11-40-18	Loading and unloading zones—use	$20.00
11-40-19	Bus stops	$10.00
11-40-20	Taxicab stands	$10.00

Section Violated	*Nature of Violation*	*Forfeiture*
11-40-21	Regulation of parking on city property	$10.00
11-40-23	Vehicle owner not to permit parking violations	$10.00
11-44-3	Marking of and parking within metered spaces	$20.00
11-44-4	Deposit of coin; overtime parking	$20.00
11-44-5	Deposit of slugs prohibited	$10.00
11-44-6	Injuring or tampering with meters	$10.00
11-48-1	Accidents—immediate notice to police	Court
11-48-2	Accidents—garages to report	$10.00
11-52-1	Vehicles to be constructed and loaded so as to prevent escape of load	$30.00
11-52-2	Vehicles so constructed or loaded as to obstruct traffic prohibited	$15.00
11-52-3	Permit required for excessively wide vehicles	$15.00
11-52-4	Extension of loads on passenger vehicles	$15.00
11-52-5	Protruding objects	$15.00
11-52-7	Mud flaps on trucks	$15.00
11-60-2	Persons required to register motor vehicles; exceptions	$25.00
11-60-4	Registration fees	$25.00
11-60-5	Improper state registration	Court
11-60-6	Display of registration plates; manner	$15.00
11-64	Inspection of vehicles—Required; frequency; exceptions	$25.00
11-64	Inspection of vehicles—Procedure when vehicle found defective	$25.00
11-68-1	Use of roller skates, coasters, etc., in roadway	$15.00
11-68-2	Clinging to moving vehicles	$20.00
11-68-3	Boarding or alighting from vehicle in motion	$20.00
11-68-4	Riding on a portion of vehicle not intended for passengers or operating a vehicle while persons are riding on a portion of a vehicle not intended for passengers	$50.00
11-68-4	Riding on portion of vehicle not intended for passengers	$20.00
11-68-5	Deposit of glass, nails, etc., in street prohibited; removal of same	$50.00
12-48-7	Vehicle illegally on mall	$50.00
12.84-13	Parking or stopping of vehicles in certain places prohibited	$15.00
Various	Violation of prohibited activities, per violation	$50.00

B. Nothing herein shall prohibit a person from requesting that the ticket or citation issued against him or her be transferred to the docket of the city court for disposition.

C. In the event of a violation of any traffic regulation not herein set out, the chief of the traffic violations bureau is authorized to collect, as a forfeiture, the sum of $15.00 prior to the issuance of a summons; but after issuance of such summons, $30.00.

D. The schedule of forfeitures for the traffic violations bureau is raised $14.00 on each and every amount set therein when the municipal violation was served upon the person by means of a traffic summons. For the purposes of this section, a "traffic summons" is any ticket issued by an officer or other person authorized by law to issue such ticket to an offender showing the offense charged and signed by the offender agreeing to appear at the time and place indicated. The same schedule of forfeitures shall remain in effect, however, for any person receiving a traffic citation; that is, any ticket issued by a police officer or other person provided by law where

there is no personal delivery of the ticket (such as a parking ticket) to the offender and the ticket is not signed by the offender.

E. The established forfeitures as provided herein may be paid at the traffic violations bureau at any time prior to the court date appearing upon any citation issued for a violation of any traffic ordinance contained in this Code except in those instances in which by law or order of court an appearance in court is required. Such payments at the traffic violations bureau may be made in person or by mail, or as otherwise provided by law. All moneys collected by the traffic violations bureau shall be turned over to the city treasurer daily.

F. Notwithstanding the foregoing, in addition to the forfeiture amounts resulting from parking tickets issued in accordance with this chapter, a delinquency fee in the amount of $20.00 shall be imposed for any parking ticket remaining unpaid 60 days following the date of issuance and $40.00 for any ticket that remains unpaid for 90 days following the date of issuance.

(Code 1967, §§ 23-28, 23-242; Code 1985, § 21-50; Ord. No. 2229, § 2, 5-13-1975; Ord. No. 2719, § 1, 5-16-1978; Ord. No. 2883, § 1, 5-29-1979; Ord. No. 3168, § 1, 10-20-1981; Ord. No. 3201, § 1(2), 5-18-1982; Ord. No. 3314, § 1, 6-28-1983; Ord. No. 3375, § 1(1), 5-22-1984; Ord. No. 3758, § 1, 5-17-1988; Ord. No. 3783, § 1, 7-26-1988; Ord. No. 3975, § 1, 6-26-1990; Ord. No. 4263, § 1, 6-14-1994; Ord. No. 4296, § 1, 12-6-1994; Ord. No. 4310, § 1, 3-21-1995; Ord. No. 4387, § 2, 2-6-1996; Ord. No. 4953, § 2, 8-6-2002; Ord. No. 5429, § 1, 12-6-2011; Ord. No. 5505, § 1, 5-21-2013; Ord. No. 5507, § 1, 6-4-2013; Ord. No. 5560, § 2, 9-2-2014; Ord. No. 5576, § 2, 12-16-2014)

Sec. 11-8-6. Court may adopt rule permitting deposit of chauffeur's or operator's license in lieu of bond.

The judges of the city court by rules adopted by them may adopt the provisions of T.C.A. §§ 55-7-401 through 55-7-405 so as to provide for the deposit of a chauffeur's or operator's license in lieu of bond or other security. Such court rules when adopted shall be posted in the clerk's office and distributed to the police division for information and implementation.

(Code 1967, § 23-29; Code 1985, § 21-51; Ord. No. 2229, § 2, 5-13-1975)

Sec. 11-8-7. Limitation on action for traffic violation—When action deemed commenced—Service of summons.

A. No action shall be commenced by the city in any court for the purpose of enforcing any violation of traffic ordinances of the city after one year from the commission of the offense.

B. For the purpose of this section a court action shall be deemed to be commenced:

1. Upon the arrest of the offender;
2. Upon the issuance of a traffic summons to the offender;
3. Upon the issuance of an arrest or bench warrant for the offender; or
4. Upon the issuance of a summons to the offender.

C. A summons may be served by:

1. Personal service on the offender; or
2. Registered or certified mail, addressee only, return receipt requested.

(Code 1967, § 23-30; Code 1985, § 21-52; Ord. No. 2229, § 2, 5-13-1975)

Sec. 11-8-8. Dismissal or nolle prossing of summons or citation not prohibited.

Nothing herein shall prevent the city through the city attorney's office from dismissing or nolle prossing any summons or citation in open court. Such summons or citation shall be dismissed if it shall be determined that the citation was issued where there was the mechanical failure of a parking meter, the citation was issued to a nonresident and is deemed uncollectible, there is a lack of proof, or for such other valid reasons as stated to the court.

(Code 1967, § 23-31; Code 1985, § 21-53; Ord. No. 2229, § 2, 5-13-1975)

Sec. 11-8-9. When attendance of driver education course required—Additional penalty for benefit of driver education program.

A. Pursuant to T.C.A. § 55-10-308, authority is granted to municipalities to enforce regulation and operation of vehicles and the imposing of attendance of a driver education course upon persons found guilty of moving traffic violations.

B. In addition to all other fines, fees, costs and punishments now prescribed by law, the driver of any motor vehicle upon his or her conviction by any judge or plea of guilty or submission to fine for any offense involving a moving traffic violation prescribed by municipal ordinance may be required, at the discretion of the court, to attend a driver education course approved by the state department of safety, in addition to, or in lieu of, any portion of other penalty imposed.

C. There shall be a fee of $12.00 assessed in addition to all other fines, fees, costs and punishments now prescribed by law upon the driver of any motor vehicle upon his or her conviction by any judge or plea of guilty or submission to fine for any offense involving a moving traffic violation or upon conviction or plea of guilty or submission to fine for any moving traffic violation prescribed by municipal ordinance, for the driver education course, but no one shall be refused admittance to any course if found to be unable to pay such fee.

D. For the purpose of this section, the term "moving traffic violation" means any offense which can occur only if the motor vehicle is in motion.

E. All fees collected under this section shall be forwarded by the office of the court which collects the same to the city comptroller within 30 days after the fee, penalty or forfeiture is collected. The city comptroller shall then be responsible for transferring these funds to the agency in charge of the driver education program.

F. The $12.00 additional fee collection under section 11-8-5(D) for this program shall also be forwarded to the city comptroller, who shall then transfer these funds to the agency in charge of the driver education program.
(Code 1967, § 23-35; Code 1985, § 21-54; Ord. No. 2719, § 1, 5-16-1978; Ord. No. 3171, § 1, 11-17-1981; Ord. No. 3375, § 1(2), 5-22-1984; Ord. No. 3783, §§ 2, 3, 7-26-1988; Ord. No. 4303, § 1, 2-21-1995)

Sec. 11-8-10. Compliance with financial responsibility law required—Evidence of compliance.

A. Every vehicle driven on the streets of the city must be in compliance with the financial responsibility law.

B. At the time the driver of a motor vehicle is charged with any moving violation under this title regulating traffic, or at the time of an accident for which notice is required under state law, the officer shall request evidence of financial responsibility as required by this section. In case of an accident for which notice is required under state law, the officer shall request such evidence from all drivers involved in the accident, without regard to apparent or actual fault. For purposes of this section, the term "financial responsibility" means:

1. Documentation, such as the declaration page of an insurance policy, an insurance binder, or an insurance card from an insurance company authorized to do business in Tennessee, stating that a policy of insurance meeting the requirements for the Tennessee Financial Responsibility Law of 1977, compiled in T.C.A. tit. 55, ch. 12, has been issued;

2. A certificate, valid for one year, issued by the commissioner of safety, stating that a cash deposit or bond in the amount required by the Tennessee Financial Responsibility Law of 1977, compiled in T.C.A. tit. 55, ch. 12, has been paid or filed with the commissioner, or has qualified as a self-insurer under T.C.A. § 55-12-111; or

3. The motor vehicle being operated at the time of the violation was owned by a carrier subject to the jurisdiction of the department of safety, or the interstate commerce commission, or was owned by the United States, the state, or any political subdivision thereof, and that such motor vehicle was being operated with the owner's consent.

C. It is an offense to fail to provide evidence of financial responsibility pursuant to this section. Any violation is punishable only by fine of not more than $50.00.

D. The fine imposed by this section shall be in addition to any other fine imposed by this title, for any other violation under this title.

E. On or before the court date, the person so charged may submit evidence of financial responsibility at the time of the violation. If it is the person's first violation of this section and the court is satisfied that the financial responsibility was in effect at the time of the violation, the charge of failure to provide evidence of financial responsibility shall be dismissed. Upon the person's second or subsequent violation of this section, if the court is satisfied that the financial responsibility was in effect at the time of the violation, the charge of failure to provide evidence of financial responsibility may be dismissed. Any charge that is dismissed pursuant to this

subsection shall be dismissed without costs to the defendant and no litigation tax shall be due or collected, notwithstanding any law to the contrary.
(Code 1985, § 21-55; Ord. No. 4930, § 1, 8-20-2002; Ord. No. 5308, § 1, 5-19-2009)

State law reference—State financial responsibility law, T.C.A. § 55-12-101 et seq.

Sec. 11-8-11. Electronic citations.

A. In lieu of filing written traffic citations and traffic summonses, law enforcement officers may file electronic traffic citations. Replicas of traffic citation data sent by electronic transmission shall be sent within three days of the issuance of the citation to the court having jurisdiction over the alleged offense. Any person issued a traffic citation prepared by a law enforcement officer electronically shall be provided with a paper copy of the traffic citation. A law enforcement officer who files a citation electronically shall be considered to have certified the citation and has the same rights, responsibilities, and liabilities as other citations issued pursuant to this chapter.

B. Pursuant to T.C.A. § 55-10-207, the city court clerk shall charge and collect an electronic traffic citation fee of $5.00 for each traffic citation resulting in a conviction. Such fee shall be assessable as court costs and paid by the defendant for any offense cited in an issued traffic citation that results in a plea of guilty or nolo contendere, or a judgment of guilty. This fee shall be in addition to all other fees, taxes and charges. One dollar of such fee shall be retained by the city clerk. The remaining $4.00 of the fee shall be transmitted monthly by the city clerk to the Memphis Police Department.

C. Pursuant to T.C.A. § 55-10-207, all funds derived from the electronic traffic citation fee issued pursuant to subsection (B) that are transmitted to the Memphis Police Department shall be accounted for in a special revenue fund for the Memphis Police Department and may only be used for the following purposes:

1. Electronic citation system and program related expenditures; and

2. Related expenditures by the Memphis Police Department for technology, equipment, repairs, replacement, and training to maintain electronic citation programs.

D. Pursuant to T.C.A. § 55-10-207, all funds derived from the electronic citation fee set aside for the city clerk pursuant to subsection (B) shall be used for computer hardware purchases, usual and necessary computer related expenses, or replacement. Such funds shall be preserved for those purposes and shall not revert to the general fund at the end of a budget year if unexpended.

E. Pursuant to T.C.A. § 55-10-207, the fee requirements of this section shall terminate five years from the date of adoption.
(Ord. No. 5568, § 2, 10-21-2014)

CHAPTER 11-12. TRAFFIC-CONTROL DEVICES*

Sections:

Sec. 11-12-1. Installation and maintenance generally.
Sec. 11-12-2. Uniformity—When official.
Sec. 11-12-3. When signs required.
Sec. 11-12-4. Unauthorized signs and signals.
Sec. 11-12-5. Altering or injuring devices.
Sec. 11-12-6. Traffic-control signal legend generally.
Sec. 11-12-7. Flashing signals.
Sec. 11-12-8. Pedestrian-control signal.
Sec. 11-12-9. Designation of crosswalks.
Sec. 11-12-10. Establishment of safety zones.
Sec. 11-12-11. Marking traffic lanes.
Sec. 11-12-12. Controlled-access roadways.
Sec. 11-12-13. Obedience to devices.

Sec. 11-12-1. Installation and maintenance generally.

The director of public works shall, as authorized by the city engineer, place and maintain traffic-control signs, signals and devices when and as required under this title and other traffic ordinances of the city to make effective the provisions of this title and other ordinances, and may place and maintain such additional traffic-control devices as he or she may deem necessary to regulate traffic under this title, other traffic ordinances of the city or under state law, or to guide or warn traffic.
(Code 1967, § 23-128; Code 1985, § 21-366; Ord. No. 3586, § 25, 9-2-1986)

Sec. 11-12-2. Uniformity—When official.

All traffic-control signs, signals and devices required by this title for a particular purpose shall, so far as

***State law reference—**Traffic control devices, T.C.A. § 55-8-109 et seq.

practicable, be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this title shall be official traffic-control devices.
(Code 1967, § 23-197; Code 1985, § 21-367)

Sec. 11-12-3. When signs required.

No provision of this title for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(Code 1967, § 23-203; Code 1985, § 21-368)

Sec. 11-12-4. Unauthorized signs and signals.

A. No person shall place, maintain or display upon or in view of any street any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the parking or movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal, and no person shall place or maintain nor shall any public authority permit upon any street any traffic sign or signal bearing thereon any commercial advertising. This section shall not be deemed to prohibit the erection, upon private property adjacent to highways, of signs giving useful directional information and of a type that cannot be mistaken for official signs.

B. Every such prohibited sign, signal or marking is declared to be a public nuisance and the city is empowered to remove the same or cause it to be removed without notice.
(Code 1967, § 23-207; Code 1985, § 21-369)

State law reference—Similar provisions, T.C.A. § 55-8-113.

Sec. 11-12-5. Altering or injuring devices.

A. No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof.

B. Violation of this section shall be a misdemeanor punishable as provided in section 1-24-1.
(Code 1967, § 23-208; Code 1985, § 21-370; Ord. No. 2371, § 1, 2-10-1976)

State law reference—Similar provisions, T.C.A. § 55-8-114.

Sec. 11-12-6. Traffic-control signal legend generally.

A. Whenever traffic is controlled by traffic-control signals exhibiting illuminated and different colored circular lenses or lighted arrows successively one at a time or in combination, only the colors green, yellow and red shall be used, except for special pedestrian signals carrying a word or symbol legend, and such signals shall indicate and apply to drivers of vehicles and pedestrians as follows:

1. Green indication:
   a. Vehicular traffic facing the signal may proceed straight through or turn right or left, unless a sign at such place prohibits either such turn, but vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.
   b. Vehicular traffic facing a green arrow signal, alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movements as are permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians within any adjacent crosswalk and to other traffic lawfully within the intersection.
   c. Unless otherwise directed by a pedestrian control signal, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.
2. Steady yellow indication, when shown following the green indication:
   a. Vehicular traffic facing a steady yellow signal is thereby warned that the related

green movement is being terminated or that a red indication will be exhibited immediately thereafter.

b. Pedestrians facing a steady yellow indication, unless otherwise directed by a pedestrian control signal, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown, and no pedestrian shall then start to cross the roadway.

3. Steady red indication:

a. Vehicular traffic facing a steady red signal shall stop at a clearly marked stop line, if any, before entering the crosswalk on the near side of the intersection, or, if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown, except that a right turn shall be permitted at any time unless otherwise prohibited by a sign; and, provided that, the prospective turning car comes to a full and complete stop before turning and that the turning car yields the right-of-way to pedestrians and all vehicles lawfully within the intersection in accordance with the signal indications controlling them, and such turn will not endanger other traffic lawfully using such intersection. A right turn on red shall be permitted at all intersections except those clearly marked by a "NO TURN ON RED" sign.

b. Unless otherwise directed by a pedestrian control signal, no pedestrian facing a steady red indication alone shall enter the roadway.

c. A left turn may be permitted by sign during the display of a steady red indication at any intersection where a one-way street intersects with another one-way street moving in the same direction into which the left turn would be made from the original one-way street. Before making such a turn, the turning car shall come to a full and complete stop and shall yield the right-of-way to pedestrians and all vehicles lawfully in the intersection in accordance with the traffic signal controlling them, and so as not to endanger traffic lawfully using the intersection. Unless signs permitting this left turn during the display of a steady red indication are erected, left turns on red are prohibited.

B. If an official traffic control signal is erected and maintained on a street, at a location other than an intersection with another street, including, but not limited to, a private road or a driveway entering a public street, or a signal-controlled midblock pedestrian crossing, and if signal indications are provided to control traffic entering or crossing the public street, the provisions of this section shall be applicable, except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or stop line marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking, the stop shall be made before entering the street from a private road or driveway.

C. If a private road or driveway enters the intersection of two streets which are under the control of an official traffic-control signal and if signal indications are provided for the control of traffic entering the intersection from such private road or driveway, the provisions of this section shall be applicable, except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or stop line marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking, the stop shall be made before entering the near side crosswalk or sidewalk, or, if none, the stop shall be made at the street right-of-way. If no signal indications are provided to control traffic on the private road or driveway, the provisions of this title covering vehicles entering and leaving a street via an uncontrolled private road or driveway shall apply.

(Code 1967, § 23-204; Code 1985, § 21-371; Ord. No. 2456, § 1, 6-29-1976; Ord. No. 3586, § 26, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-110.

Sec. 11-12-7. Flashing signals.

Whenever an illuminated flashing circular red or yellow signal is used in conjunction with a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

A. Flashing red (stop signal). When a red signal is illuminated with rapid intermittent flashes, drivers of vehicles shall stop at a clearly marked stop line, but if none, before entering the nearest crosswalk, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

B. Flashing yellow (caution signal). When a yellow signal is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

C. This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed by the rules as set forth in T.C.A. § 55-8-145.

(Code 1967, § 23-205; Code 1985, § 21-372)

State law reference—Similar provisions, T.C.A. § 55-8-112.

Sec. 11-12-8. Pedestrian-control signal.

Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate require obedience as follows:

A. Walk. Pedestrians facing such a signal may proceed across the roadway in the direction of the signal, within a marked crosswalk, if one exists, and shall be given the right-of-way by the drivers of all vehicles.

B. Flashing or "Don't Walk." No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has begun his or her crossing on the walk signal may proceed to a sidewalk or designated pedestrian refuge area.

C. Steady "Don't Walk." No pedestrian shall leave the curb or start crossing the roadway in the direction of such signal.

(Code 1967, § 23-206; Code 1985, § 21-373)

State law reference—Similar provisions, T.C.A. § 55-8-111.

Sec. 11-12-9. Designation of crosswalks.

The city engineer is authorized to designate and maintain by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where, in his or her opinion, there is particular danger to pedestrians crossing the roadway, and at such other places as he or she may deem necessary.

(Code 1967, § 23-198; Code 1985, § 21-374; Ord. No. 3586, § 27, 9-2-1986)

Sec. 11-12-10. Establishment of safety zones.

The city engineer shall establish safety zones of such kind and character and at such places as he or she may deem necessary for the protection of pedestrians.
(Code 1967, § 23-199; Code 1985, § 21-375; Ord. No. 3586, § 28, 9-2-1986)

Sec. 11-12-11. Marking traffic lanes.

The director of public works is authorized to mark traffic lanes upon the roadway of any street where a regular alignment of traffic is necessary, upon authorization by the city engineer.
(Code 1967, § 23-200; Code 1985, § 21-376; Ord. No. 3586, § 29, 9-2-1986)

Sec. 11-12-12. Controlled-access roadways.

The director of public works may, with respect to any controlled-access roadway under his or her jurisdiction, prohibit the use of any such roadway by pedestrians, bicycles or other nonmotorized traffic or by any person operating a motor-driven cycle. Such prohibition shall be indicated by appropriate signs erected by the director of public works and, when so erected, no person shall disobey the restrictions stated on such signs.
(Code 1967, § 23-201; Code 1985, § 21-377)

Sec. 11-12-13. Obedience to devices.

The driver of any vehicle, or any pedestrian, shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with this title and other traffic ordinances of the city, unless otherwise directed by a police officer, subject to any specific exceptions granted by this title or other ordinances.
(Code 1967, § 23-202; Code 1985, § 21-378)

State law reference—Similar provisions, T.C.A. § 55-8-109.

CHAPTER 11-14. TRAFFIC CONTROL PHOTOGRAPHIC SYSTEM*

Sections:

Sec. 11-14-1. Definitions.
Sec. 11-14-2. Administration.
Sec. 11-14-3. Offense.
Sec. 11-14-4. Procedure.
Sec. 11-14-5. Penalty.
Sec. 11-14-6. Reserved.
Sec. 11-14-7. Reserved.
Sec. 11-14-8. Reserved.
Sec. 11-14-9. Reserved.
Sec. 11-14-10. Reserved.

***State law reference—**Unmanned traffic enforcement cameras, T.C.A. § 55-8-198.

Sec. 11-14-1. Definitions.

The following words, terms and phrases, when used herein, shall have ascribed to them the following meanings, except where the context clearly indicates a different meaning.

Citations and warning notices means the documents of notice of violation and shall include:

1. The name and address of the registered owner of the vehicle;
2. The registration plate number of the motor vehicle involved in the violation;
3. The violation charged;
4. The location of the violation;
5. The date and time of the violation;
6. A copy of the recorded image;
7. The amount of the civil penalty imposed and the date by which the civil penalty should be paid;
8. A sworn statement signed by an officer or agent of the police services division that based on inspection of recorded images, the subject motor vehicle was being operated in violation of sections 11-12-6 and/or 11-12-13; and
9. Information advising the person alleged to be liable for violation of sections 11-12-6 and/or 11-12-13 (i) of the manner and time in which the liability alleged in the citation may be contested in city court, and (ii) warning that failure to contest in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

Recorded images means images recorded by a traffic control photographic system:

1. On a photograph, microphotograph, electronic image, videotape, or any other medium; and

2. At least one image or portion of tape, clearly identifying the registration plate number, or other identifying designation of the license plate, on the motor vehicle.

System location is the approach to an intersection toward which a traffic control photographic system device, including but not limited to a photographic, video, or electronic camera, is directed and is in operation.

Traffic control photographic system is an electronic system consisting of a photographic, video or electronic camera and a vehicle sensor installed to work in conjunction with an official traffic control sign, signal or device, and to automatically produce photographs, video or digital images of each vehicle violating a standard traffic control sign, signal or device.

Vehicle owner is the person identified on records maintained by the Tennessee Department of Safety as the registered owner of a motor vehicle.
(Ord. No. 5108(part), 2005)

Sec. 11-14-2. Administration.

A. The division of police services or an agent of said division shall administer the traffic control photographic system and shall maintain a list of all system locations where traffic control photographic systems are installed.

B. Signs to indicate the use of the traffic control photographic system shall be clearly posted.
(Ord. No. 5108(part), 2005)

Sec. 11-14-3. Offense.

It shall be unlawful for a vehicle to cross the stop line at a system location, in disregard or disobedience of the traffic control sign, signal or device at such location, or to otherwise violate sections 11-12-6 or 11-12-13 of this code.
(Ord. No. 5108(part), 2005)

Sec. 11-14-4. Procedure.

A. The city shall adopt procedures for the issuance of uniform citations and warning notices hereunder.

B. A citation or warning notice so issued, alleging an offense hereunder in violation of sections 11-12-6 or 11-12-13 of this code, which is sworn to or affirmed by an official of the division of police services or an agent of said division based on inspection of recorded images produced by the traffic control photographic system, and which includes copies of such recorded images, shall be prima facie evidence of the facts contained therein and shall be admissible in any proceeding alleging a violation hereunder. The citation or warning notice shall be forwarded by first-class mail, postmarked pursuant to state law, to the vehicle owner's address as given on the motor vehicle registration records maintained by the Tennessee Department of Safety. Personal delivery to or personal service of process on the owner of the vehicle shall not be required.

C. A person who receives a citation or warning notice may:

1. Pay the assessed fine and civil penalty, in accordance with instructions on the citation or warning notice, directly to the city court clerk; or

2. Elect to contest the citation for the alleged violation.

D. Liability hereunder shall be determined based upon preponderance of the evidence. Admission into evidence of a citation or warning notice, together with proof that the defendant was at the time of the violation the registered owner of the vehicle, shall permit the trier of fact in its discretion to infer that such owner of the vehicle was the driver of the vehicle at the time of the alleged violation. Such an inference may be rebutted if the owner of the vehicle:

1. Testifies under oath in open court that he or she was not the operator of the vehicle at the time of the alleged violation; and

2. Presents to the court prior to the return date established on the citation and warning notice a certified copy of a police report showing that the vehicle had been reported to the police as stolen prior to the time of the alleged violation; or

3. Submits to the court prior to the return date established on the citation and warning notice the owner's sworn notarized statement that the vehicle was in the care, custody or control of another person or entity at the time of the violation and identifying the name and address of the person or entity who leased, rented or otherwise had such possession of the vehicle at the time of the alleged violation.

(Ord. No. 5108(part), 2005; Ord. No. 5493, § 1, 2-19-2013)

Sec. 11-14-5. Penalty.

A. Any offense hereunder shall be deemed a non-criminal violation for which a civil penalty of $50.00 shall be assessed. Failure to pay the civil penalty or appear in court to contest the citation or warning notice on the designated date shall result in an assessment of court costs of $45.00. The city may establish procedures for the trial of civil violators and may enforce and collect all penalties assessed in the nature of a debt.

B. All net revenues generated from penalties and assessments associated with the enforcement of this section shall be apportioned as follows: the first $150,000.00 collected in a fiscal year shall be allocated to the Memphis Area Neighborhood Watch Program for the funding of an executive director position and to provide neighborhoods with mechanisms to assist them in protecting their homes and/or communities; thereafter, 50 percent shall be used for the purchase and installation of cameras and/or GPS systems in police cars, and/or Skycop or Skywatch systems (the police department will submit a budget and plan outlining their recommended plan and budget for each budget year) and 50 percent shall be used for maintenance of the Memphis Area Neighborhood Watch Program. Said funds shall be distributed equally on a monthly basis immediately upon receipt from the city court clerk office once the $150,000.00 threshold is met. Any traffic control photographic system funds accrued as of the passage of this section shall be restricted for distribution equally among Neighborhood Watch and the Memphis Police Department for the uses specified above.

C. A violation for which a civil penalty is imposed hereunder shall not be considered a moving violation and may not be recorded by the division of police services or the state department of safety on the driving record of the owner or driver of the vehicle and may not be considered in the provision of motor vehicle insurance coverage.
(Ord. No. 5108(part), 2005; Ord. No. 5325, 9-15-2009; Ord. No. 5493, § 2, 2-19-2013)

Sec. 11-14-6. Reserved.

Sec. 11-14-7. Reserved.

Sec. 11-14-8. Reserved.

Sec. 11-14-9. Reserved.

Sec. 11-14-10. Reserved.

CHAPTER 11-16. RULES OF THE ROAD*

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Sec. 11-16-35. Turning and stopping signals—Change of direction after signal given.
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Sec. 11-16-1. State license required.

No person shall operate any motor vehicle on any street without having in his or her possession an operator's license or a chauffeur's license valid under the laws of this state.
(Code 1967, § 23-138; Code 1985, § 21-86)

Sec. 11-16-2. Duty to devote full time and attention to operating vehicle.

It is unlawful for a driver of a vehicle to fail to devote full time and attention to operating such vehicle when such failure, under the then existing circumstances, endangers life, limb or property.
(Code 1967, § 23-139; Code 1985, § 21-87)

Sec. 11-16-3. Duty to drive at safe speed, maintain lookout and keep vehicle under control.

Notwithstanding any speed limit or zone in effect at the time, or right-of-way rules that may be applicable, every driver shall:

A. Operate his or her vehicle at a safe speed;

B. Maintain a safe lookout;

C. Use due care to keep his or her vehicle under control.

(Code 1967, § 23-155; Code 1985, § 21-88)

Sec. 11-16-4. Driving when view or control obstructed.

A. No person shall drive a vehicle when it is so loaded, or when there are in the front seat such number of persons, exceeding four, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

B. No driver of any bus shall permit his or her vision ahead or to the sides of his or her vehicle to be obscured by any passenger standing in the vestibule thereof, nor shall he or she permit any passenger to interfere with his or her control over the driving mechanism of the vehicle.
(Code 1967, § 23-156; Code 1985, § 21-89)

State law reference—Similar provisions, T.C.A. § 55-8-165.

Sec. 11-16-5. Lap driving.

No operator of a vehicle shall have in his or her lap any other person, adult or minor, nor shall the operator be seated in the lap of any person while the vehicle is in motion.
(Code 1967, § 23-157; Code 1985, § 21-90)

Sec. 11-16-6. Pulling away from curb.

No vehicle shall be pulled out or backed from a curb into traffic until such movement may be made without danger to persons or property, and all vehicles proceeding in a street shall have the right-of-way over all vehicles pulling from a curb into traffic.
(Code 1967, § 23-172; Code 1985, § 21-91)

Sec. 11-16-7. Emerging from or entering alley, private driveway or building.

The driver of a vehicle entering into a street, either from an alley or from a private road, driveway or building, shall yield the right-of-way to all pedestrians on a sidewalk crossing such alley or driveway and to all vehicles approaching on such street, and it shall be the duty of the driver of every vehicle so entering a street to bring his or her vehicle to a stop and not enter therein until same may be done with safety and without danger to others using the street, and he or she shall proceed with caution. The driver of any vehicle leaving a street to enter an alley, private driveway or building, shall likewise yield the right-of-way to all pedestrians in any sidewalk crossing such alley or driveway, and when such driver is making a left turn into an alley, private driveway or building, such driver shall yield the right-of-way to all vehicles approaching from the opposite direction.
(Code 1967, § 23-173; Code 1985, § 21-92)

Sec. 11-16-8. Duty to drive on right side of roadway.

A. Upon all roadways of sufficient width, a vehicle shall be driven upon the right half of the roadway, except as follows:

1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

2. When the right half of a roadway is closed to traffic while under construction or repair;

3. Upon a roadway designated and signposted for one-way traffic;

4. Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon.

B. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.
(Code 1967, § 23-140; Code 1985, § 21-93)

State law reference—Similar provisions, T.C.A. § 55-8-115.

Sec. 11-16-9. Passing vehicles proceeding in opposite direction.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction, each driver shall give to the other at least one-half of the main-traveled portion of the roadway as nearly as possible.
(Code 1967, § 23-141; Code 1985, § 21-94)

State law reference—Similar provisions, T.C.A. § 55-8-116.

Sec. 11-16-10. Passing vehicles proceeding in same direction—Generally.

A. Except as otherwise provided in section 11-16-11, the driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

B. No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction, unless such left side is clearly visible and is free from oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to the right-hand side of the roadway before coming within 100 feet of any vehicle approaching from the opposite direction.

C. No vehicle shall be driven to the left of the center of any street for the purpose of passing another vehicle when approaching within 100 feet of any intersection or while traversing any intersection or railroad grade crossing. This subsection shall not apply to one-way streets or to streets where special signs or markings permit driving to the left of the center.

D. No vehicle shall be driven to the left of the center of the roadway upon any street of sufficient width for two or more lines of moving vehicles in each direction, except when the right half of the roadway is obstructed, and then such movement shall be made in safety in accordance with this section.
(Code 1967, § 23-142; Code 1985, § 21-95)

State law reference—Similar provisions, T.C.A. § 55-8-117.

Sec. 11-16-11. Passing vehicles proceeding in same direction—On right side.

A. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

1. When the vehicle overtaken is making or about to make a left turn;
2. Upon a street with unobstructed pavement not occupied by parked vehicles of sufficient width for two or more lines of moving vehicles in each direction when traffic is moving in two or more substantially continuous lines in direction of travel;
3. Upon a one-way street or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

B. The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main-traveled portion of the roadway.

(Code 1967, § 23-143; Code 1985, § 21-96)

State law reference—Similar provisions, T.C.A. § 55-8-118.

Sec. 11-16-12. Passing vehicles proceeding in same direction—Duty of driver of overtaken vehicle.

Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle and shall not increase the speed of his or her vehicle until completely passed by the overtaking vehicle.
(Code 1967, § 23-144; Code 1985, § 21-97)

Sec. 11-16-13. Overtaking and passing school buses—Identification of buses.

A. The driver of a motor vehicle within the city limits upon meeting or overtaking from either direction any school bus which has stopped for the purpose of receiving or discharging any school children shall stop the motor vehicle before reaching such school bus, and such driver shall not proceed until such bus resumes motion or is signaled by the school bus driver to proceed or the visual signals are no longer actuated.

B. All motor vehicles used in transporting school children to and from school in this city are required to be distinctly marked "School Bus" on the front and rear thereof in letters of not less than six inches in height, and so plainly written or printed and so arranged as to be legible to persons approaching such school bus, whether traveling in the same or opposite direction.

C. The driver of a vehicle upon a street or highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled-access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

D. For the purpose of this section, "separate roadways" means roadways divided by an intervening space which is not suitable to vehicular traffic.

E. Except as otherwise provided by the preceding subsections, the school bus driver is required to stop such school bus on the right-hand side of a street or highway, and such driver shall cause the bus to remain stationary and the visual stop signs on the bus to be actuated until all school children who should be discharged from the bus have been so discharged and until all children whose destination causes them to cross the street or highway at that place have negotiated such crossing.

F. Any person failing to comply with the requirements of this section, requiring motor vehicles to stop upon approaching school buses, or violating any of the provisions of this section, shall be deemed guilty of a misdemeanor, and upon conviction shall be subject to punishment as provided in section 1-24-1.

G. The preceding subsections of this section shall not be applicable to the vehicles of the Memphis Transit Authority, while such vehicles are being used for the transportation of school children within the city.
(Code 1967, § 23-140.1; Code 1985, § 21-98; Ord. No. 1636, § 1, 2-20-1973)

State law reference—Similar provisions, T.C.A. § 55-8-151.

Sec. 11-16-14. Driving on roadways laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules, in addition to all others consistent herewith, shall apply:

A. A vehicle shall be driven entirely within a single lane and shall not be moved from such lane until the driver has ascertained that such movement can be made with safety.

B. Upon a roadway which is divided into three lanes, a vehicle shall not be driven in the center lane, except where overtaking and passing another vehicle where the roadway is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn, or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

C. Official signs may be erected directing slow-moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and drivers of vehicles shall obey the directions of every such sign.

(Code 1985, § 21-99)

Sec. 11-16-15. Driving on divided streets.

Whenever any street has been divided longitudinally into two roadways by leaving an intervening space, such as a parkway, wall, sunken way, viaduct or traffic-guide,

every vehicle shall be driven to the right of the longitudinal division. No vehicle shall be driven across, over or within such divided space or section, except through an opening in such physical barrier or divided section or space, or at a crossover or intersection established by the city engineer. This section shall not prohibit a driver from making a left turn into a private driveway where such turn is permitted and where such turn would require the driver to drive across a center dividing strip of the corrugated concrete type which does not constitute a physical barrier.
(Code 1967, § 23-146; Code 1985, § 21-100; Ord. No. 3586, § 8, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-125.

Sec. 11-16-16. Entering or leaving controlled-access roadway.

No person shall drive a vehicle onto or from any controlled access roadway except at such entrances and exits as are established by the city engineer.
(Code 1967, § 23-147; Code 1985, § 21-101; Ord. No. 3586, § 9, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-126.

Sec. 11-16-17. Driving in parks.

All traffic regulations set forth in this title shall apply to all drives and all roadways within all public parks, except as otherwise provided in chapter 12-84; provided, however, that no person shall use the driveways in public parks by driving over such driveways in vehicles other than passenger vehicles, motorcycles, motor-driven cycles, bicycles and persons mounted on horseback. The use of all bridle paths is prohibited to all traffic other than to persons on horseback and pedestrians.
(Code 1967, § 23-148; Code 1985, § 21-102)

Sec. 11-16-18. Driving within sidewalk area.

The operator of a motor vehicle shall not drive within any sidewalk area except in crossing such in a traverse manner at a permanent or temporary driveway.
(Code 1967, § 23-149; Code 1985, § 21-103)

Sec. 11-16-19. Obstructing intersection or crosswalk.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he or she is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal to proceed.
(Code 1967, § 23-150; Code 1985, § 21-104)

Sec. 11-16-20. Following too closely.

The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard to the speed of such vehicle and the traffic upon and condition of the street.
(Code 1967, § 23-151; Code 1985, § 21-105)

State law reference—Similar provisions, T.C.A. § 55-8-124.

Sec. 11-16-21. General speed restrictions.

It is unlawful for any person to drive a vehicle upon the streets of this city at a speed greater than 25 miles per hour. However, the city engineer shall have the authority, after determining on the basis of an engineering and traffic investigation that the stated limit is greater or lesser than is reasonable and safe, to designate certain streets or sections of streets as speed zones where greater speeds may be permitted or lesser speeds required. No person shall drive a vehicle upon the streets or sections of streets designated by the city engineer as speed zones at a greater speed than is permitted, when signs are in place giving notice thereof.
(Code 1967, § 23-152; Code 1985, § 21-106; Ord. No. 2236, § 1, 4-15-1975; Ord. No. 3586, § 10, 9-2-1986; Ord. No. 4491, § 1, 5-20-1997; Ord. No. 5767, § 1, 1-5-2021)

State law reference—Speed limits, T.C.A. § 55-8-152 et seq.

Sec. 11-16-22. Speed limit in school zones.

A. No vehicle shall be driven at a greater rate of speed than 15 miles per hour on that portion of any street which has been designated as a school zone by official signs, during any time when school children are on the streets or sidewalks within such school zone, either en route to or returning from school or while school safety patrols or police officers are on duty. Such school zones shall be confined to such portions of the streets adjacent to school grounds, or for a distance not to exceed 750 feet beyond the boundaries of such grounds.

B. All Memphis city schools shall have official signs so designating the area as a school zone. Further, official signs shall be erected prior to the commencement of operation of such schools(s).
(Code 1967, § 23-153; Code 1985, § 21-107; Ord. No. 5017, §§ 1, 2, 2003)

State law reference—Speed limits, T.C.A. § 55-8-152 et seq.

Sec. 11-16-23. Minimum speed regulations.

No person shall drive a motor vehicle upon any street at such a slow speed as to impede the normal and reasonable movement of traffic, except when reduced speed is necessary for safe operation or in compliance with the law.
(Code 1967, § 23-154; Code 1985, § 21-108)

State law reference—Similar provisions, T.C.A. § 55-8-154.

Sec. 11-16-24. Right-of-way at uncontrolled intersections.

The driver of a vehicle approaching an intersection not controlled by a traffic sign or signal shall yield the right-of-way to a vehicle which has entered the intersection from a different street. When two vehicles enter an uncontrolled intersection from different streets at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the driver of the vehicle on the right.
(Code 1967, § 23-158; Code 1985, § 21-109)

State law reference—Similar provisions, T.C.A. § 55-8-128.

Sec. 11-16-25. Yield intersections.

Whenever a yield right-of-way sign has been placed at or near an intersection, all drivers approaching such sign shall proceed with caution, slowing down or stopping if necessary so as not to interfere with traffic moving on the intersecting street and such drivers shall not proceed into the intersecting street until such movement can be made with safety.
(Code 1967, § 23-159; Code 1985, § 21-110)

Sec. 11-16-26. Stop intersections.

A. *Conduct generally.*

1. When official stop signs are erected at or near the entrance to any intersection, every driver of a vehicle approaching a stop sign shall stop before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection except when directed to proceed by a police officer or traffic-control signal.

2. Every driver who has stopped his or her vehicle at a stop sign in compliance with this section shall remain stopped and shall not proceed into or through the intersecting street until such movement can be made in safety. Such driver shall yield the right-of-way to all vehicles moving in a lawful manner upon the intersecting street.

B. *Multiway stop intersections.*

1. When official stop signs are erected at or near the entrances to any intersection creating a multiway stop intersection, the driver of a vehicle approaching such a stop sign, shall stop before entering the crosswalk on the near side of the intersection, or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway except when directed to proceed by a police officer or traffic-control signal.

2. The first vehicle approaching and stopping at a multiway stop intersection, after stopping, shall have the right-of-way to proceed into and through the intersection. Each succeeding vehicle approaching must stop at such intersection, and after stopping and yielding to the preceding vehicle, shall then have the right-of-way to proceed into and through the intersection.

3. Each driver of a vehicle approaching and entering any multiway stop intersection, must use reasonable and ordinary care in proceeding through the intersection.

(Code 1967, § 23-160; Code 1985, § 21-111; Ord. No. 3675, § 1, 7-7-1987)

State law reference—Stop sigs, T.C.A. § 55-8-149.

Sec. 11-16-27. One-way streets.

The city engineer is authorized to designate, by signs or markers, certain streets and alleys for traffic in only one direction where the conditions of traffic, width of street and other conditions make such restrictions necessary. Whenever a street or alley has been so designated as one-way, no person shall drive a vehicle upon such a street in any direction other than that indicated by signs.
(Code 1967, § 23-161; Code 1985, § 21-112; Ord. No. 3586, § 11, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-122.

Sec. 11-16-28. Turning movements generally.

A. No person shall turn a vehicle at an intersection, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety.

B. The driver of a vehicle intending to turn at an intersection shall do so as follows:

1. *Right turns.* Except as otherwise indicated by directional markings placed in conformity with provisions of this title, both the approach for a right turn and right turn shall be made as close as practicable to the right-hand curb or edge of the street.

2. *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center lane thereof and by passing to the right of such center line where it enters the intersection and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

3. *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection, the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

C. The driver of any truck, bus or any large vehicle which cannot comply with the foregoing provisions due to the size of the vehicle may use such additional portions of the street or roadway as may be necessary for a right turn; provided, however, that, the driver of such vehicle, before making such turn, shall first determine that this movement may be made in safety.
(Code 1967, § 23-162; Code 1985, § 21-113)

State law reference—Similar provisions, T.C.A. § 55-8-140.

Sec. 11-16-29. Markings or signs regulating manner of making turns.

The city engineer may cause markings or signs to be placed within or adjacent to intersections and thereby require and direct that a different course from that specified in section 11-16-28 be traveled by vehicles turning at an intersection, and when markings or signs are so placed, no driver of a vehicle shall turn a vehicle at an intersection other than as directed and required by such markings or signs.
(Code 1967, § 23-163; Code 1985, § 21-114; Ord. No. 3586, § 12, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-140.

Sec. 11-16-30. Turns from a designated center lane.

Where a special lane for making left turns by drivers proceeding in opposite directions has been established:

A. A left turn shall not be made from any other lane unless a vehicle cannot safely enter the turn lane;

B. A vehicle shall not be driven in the designated left turn lane except when preparing for or making a left turn from or into the roadway, which should never exceed 100 feet, or pass through any intersection;

C. A vehicle shall not use the left turn lane solely for the purpose of passing another vehicle;

D. A vehicle shall not enter a left turn lane more than a safe distance from the point of the intended turn, or less than the length of 100 feet;

E. When any vehicle enters the turn lane, no other vehicle proceeding in an opposite direction shall enter that turn lane if such entrance would prohibit the vehicle already in the lane from making the intended turn; and

F. When vehicles enter the turn lane proceeding from opposite directions, the first vehicle to enter the lane shall have the right-of-way.

(Code 1985, § 21-56)

State law reference—Similar provisions, T.C.A. § 55-8-140.

Sec. 11-16-31. Prohibited turns.

Whenever authorized signs are erected indicating that no right or left turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.
(Code 1967, § 23-164; Code 1985, § 21-115)

Sec. 11-16-32. Limitations on turning around.

No driver of any vehicle shall make a U-turn (reverse direction) upon any street except at locations designated by the city engineer with authorized signs and such movement shall not be made unless the same can be made in safety and without interfering with other traffic.
(Code 1967, § 23-165; Code 1985, § 21-116; Ord. No. 748, § 1, 7-21-1970; Ord. No. 3586, § 13, 9-2-1986)

Sec. 11-16-33. Turning and stopping signals—Generally.

The driver of any vehicle who intends to stop or turn, or partly turn from a direct line, shall first see that such movement can be made in safety, and whenever the operation of any other vehicle may be affected by such movement, shall give an appropriate signal, plainly visible to the driver of such other vehicle, of his or her intention to make such movement. Such signal shall be given continuously for a distance of at least 50 feet before slowing down, stopping, turning, partly turning or materially altering the course of the vehicle. The signal herein required shall be given by means of the hand and arm or by some mechanical or electrical device approved by the state department of safety.
(Code 1967, § 23-166; Code 1985, § 21-117)

State law reference—Similar provisions, T.C.A. § 55-8-143.

Sec. 11-16-34. Turning and stopping signals—Manner of giving with hand and arm.

Whenever the signal required by section 11-16-33 is given by means of the hand and arm, the driver shall indicate his or her intention to stop or turn, or partly turn, by extending the hand and arm from and beyond the left side of the vehicle, in the following manner:

A. *Left turn.* For a left turn, or to pull to the left, the arm shall be extended in a horizontal position straight from and level with the shoulder.

B. *Right turn.* For a right turn, or to pull to the right, the arm shall be extended upward.

C. *Slowing down or stopping.* For slowing down or to stop, the arm shall be extended downward.

(Code 1967, § 23-167; Code 1985, § 21-118)

State law reference—Similar provisions, T.C.A. § 55-8-144.

Sec. 11-16-35. Turning and stopping signals—Change of direction after signal given.

Drivers having once given a hand, electrical or mechanical device signal must continue the course thus indicated, unless they alter the original signal and take care that the drivers of the vehicles and pedestrians have seen and are aware of the change.
(Code 1967, § 23-168; Code 1985, § 21-119)

Sec. 11-16-36. Turning and stopping signals—Duty of drivers receiving signal.

Drivers receiving a signal from another driver shall keep their vehicles under complete control and shall be able to avoid an accident resulting from a misunderstanding of such signal.
(Code 1967, § 23-169; Code 1985, § 21-120)

Sec. 11-16-37. Right-of-way when vehicle turning left at intersection.

The driver of a vehicle within an intersection intending to turn to the left shall yield the right-of-way to any vehicle approaching in the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard, but such driver, having so yielded and having given a signal when and as required by this chapter, may make such left turn and the drivers of all

other vehicles approaching the intersection from the opposite direction shall yield the right-of-way to the vehicle making the left turn.
(Code 1967, § 23-170; Code 1985, § 21-121)

State law reference—Similar provisions, T.C.A. § 55-8-129.

Sec. 11-16-38. Limitations on backing.

The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic.
(Code 1967, § 23-175; Code 1985, § 21-122)

State law reference—Similar provisions, T.C.A. § 55-8-163.

Sec. 11-16-39. Procedure upon approach of authorized emergency vehicle.

A. Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of the applicable laws of the state, or of a police vehicle properly and lawfully making use of an audible signal only, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

B. This section shall not operate to relieve the driver of an emergency vehicle from the duty to drive with due regard for the safety of all persons using the street.
(Code 1967, § 23-171; Code 1985, § 21-123)

State law reference—Similar provisions, T.C.A. § 55-8-132.

Sec. 11-16-40. Following fire apparatus or driving near fire.

The driver of a vehicle, other than one on official business, shall not follow any fire apparatus traveling in response to a fire alarm closer than 500 feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.
(Code 1967, § 23-176; Code 1985, § 21-124)

State law reference—Similar provisions, T.C.A. § 55-8-168.

Sec. 11-16-41. Driving over fire hose.

No vehicle shall be driven over any unprotected hose of the fire division when laid down on any street or private driveway to be used at any fire or alarm of fire, without the consent of the fire division official in command.
(Code 1967, § 23-177; Code 1985, § 21-125)

State law reference—Similar provisions, T.C.A. § 55-8-169.

Sec. 11-16-42. Driving in processions.

A. Each driver in a funeral or other authorized procession shall drive as near the right-hand edge of the roadway as practical and shall follow the vehicle ahead as close as is practical and safe.

B. Each driver of a vehicle in a funeral procession shall cause the lights on his or her vehicle to be lighted during the entire procession as a means of identifying the vehicle in the procession.

C. A funeral or other authorized procession shall be permitted to proceed through a red light at an intersection when a police officer in charge of the intersection or procession so directs and the procession shall continue moving and cross-traffic shall stop until the entire procession has passed such signal.
(Code 1967, § 23-178; Code 1985, § 21-126)

State law reference—Funeral processions, T.C.A. § 55-8-183.

Sec. 11-16-43. Driving through funeral processions.

A. Unless complying with the specific order of a law enforcement officer, it is unlawful for the operator of a motor vehicle to:

1. Fail to yield the right-of-way to a properly identified funeral procession progressing across an intersection in accordance with the provisions of section 11-16-42, or T.C.A. § 55-8-183(a)(1);
2. While following a properly identified funeral procession along a two-lane street, road or highway, pass or attempt to pass a properly identified funeral procession; or
3. Drive or attempt to drive between the vehicles within a properly identified funeral procession as identified in section 11-16-42.

B. Each violation of this section is subject to penalties as set out in section 1-24-1.

C. For purposes of this section, to be a properly identified funeral procession, such procession must be indicated by a flashing amber light and an auditory signaling device mounted on the lead vehicle, or by other properly identified escort, and a flag or other appropriate marking device on each vehicle in the procession indicating that such vehicle is part of the funeral procession, in addition to requirements in section 11-16-42.

D. No driver of a vehicle shall drive between the vehicles comprising a funeral procession while they are in motion and when such vehicles are conspicuously designated as provided in this section or section 11-16-42; however, this rule shall not apply to emergency vehicles answering emergency calls.
(Code 1967, § 23-179; Code 1985, § 21-127; Ord. No. 4808, § 1, 9-19-2000)

State law reference—Similar provisions, T.C.A. § 55-8-183.

Sec. 11-16-44. Reckless driving.

A. Any person who drives any vehicle in a willful or wanton disregard for the safety of persons or property is guilty of reckless driving.

B. Violation of this section shall be a misdemeanor punishable as provided in section 1-24-1.
(Code 1967, § 23-180; Code 1985, § 21-128; Ord. No. 942, § 1, 4-27-1971)

State law reference—Similar provisions, T.C.A. § 55-10-205.

Sec. 11-16-45. Striking parked vehicles or fixed objects.

It is unlawful for the driver of any vehicle while operating such vehicle on a public street or alley to drive such vehicle into, against or upon a parked vehicle or fixed object thereon.
(Code 1967, § 23-182; Code 1985, § 21-129)

Sec. 11-16-46. Operating vehicle for advertising purposes.

No person shall operate or park on any street any vehicle for the primary purpose of advertising unless authorized by the director of police.
(Code 1967, § 23-183; Code 1985, § 21-130)

Sec. 11-16-47. Restriction on use of certain streets by trucks, trailers and heavy-duty vehicles.

Trucks, trailers or heavy-duty vehicles shall not be allowed on any street which the city engineer may designate by appropriate official sign indicating that such street is so restricted, except that such vehicles may be operated thereon for the purpose of delivering or picking up materials or merchandise and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon further than the nearest intersection thereafter; provided further, however, that the city engineer is authorized to grant a permit to the operator of the vehicle to be driven on such street for a greater distance where urgent necessity requires it. This section shall apply only to vehicles of weight capacity of over one ton, excluding recreational vehicles, emergency vehicles, city school buses and Memphis Area Transit Authority vehicles on designated routes.
(Code 1967, § 23-184; Code 1985, § 21-131; Ord. No. 2345, § 1, 12-16-1975; Ord. No. 2439, § 1, 6-1-1976; Ord. No. 2996, § 1(1), 4-1-1980; Ord. No. 3586, § 14, 9-2-1986)

Sec. 11-16-48. Truck routes.

The city engineer is authorized to designate, by official signs, certain streets for traffic by trucks, trailers or heavy-duty equipment entering, passing through, or departing from the city. Deviation from such truck routes shall be made only for pickups of shipments destined for points out of the city, delivery of shipments consigned from out of the city to an address within the city off a truck route, or for bona fide service or repair stops, in any of which events, departure from and return to the designated truck route shall be by the most direct route; provided, however, that nothing herein shall be construed as altering or amending section 11-16-47, and further provided, this section shall apply only to vehicles of weight capacity of over one ton, excluding recreational vehicles, emergency vehicles, city school buses and Memphis Area Transit Authority vehicles on designated routes.
(Code 1967, § 23-185; Code 1985, § 21-132; Ord. No. 2996, § 1(2), 4-1-1980; Ord. No. 3586, § 16, 9-2-1986)

Charter reference—Authority to establish and require use of truck routes, § 748. See also, § 751.

Sec. 11-16-49. Duty to stop at railroad crossing upon approach of train.

A. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the following circumstances, the driver of such vehicle shall

stop within 50 feet but not less than 15 feet from the nearest rail of such railroad, and shall not proceed until he or she can do so safely. The foregoing requirements shall apply when:

1. A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train;
2. A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train;
3. A railroad train approaching within approximately 1,500 feet of the street crossing emits a signal audible from such distance, or when such railroad train, by reason of its speed or nearness to such crossing is an immediate hazard;
4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

B. No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

(Code 1967, § 23-174; Code 1985, § 21-133)

State law reference—Similar provisions, T.C.A. § 55-8-145.

Sec. 11-16-50. Cruising on public streets.

A. For purposes of this section, the following definitions shall apply:

Cruising means driving a motor vehicle past a traffic control point in the area designated as a no cruising zone more than three times in one hour.

Prohibited activities means engaging in any of the following activities with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a public risk thereof by the use of a vehicle or in person:

1. Acting in a violent or tumultuous manner toward another whereby any person is placed in danger of safety of his or her life, limb or health (section 10-8-2);
2. Acting in a violent or tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged (section 10-8-2);
3. Causing, provoking or engaging in any fight, brawl or riotous conduct so as to endanger the life, limb, health or property or another (section 10-8-2);
4. Using abusive or offensive language intending that it be heard by members of the public and uttered with the intention to disturb the hearer (section 10-8-2);
5. Obstructing vehicular or pedestrian traffic (section 10-8-2);
6. Being drunk in any public place so as to be incapable of protecting his or her own safety or in such condition as to constitute a danger to himself or herself or to others or to be drunk in any public place to the annoyance of other persons (section 10-8-6);
7. Engaging in unlawful assembly by five or more persons for the purpose of engaging or preparing to engage with them in a tumultuous and violent conduct likely to cause public alarm or a clear and present danger to persons or property, or when, being present at an assembly which either has or develops such purpose or purposes, and remaining there with intent to advance that purpose or purposes (section 10-8-8);
8. Carrying in any manner whatever, with the intent to go armed, any razor; dirk; bowie knife or other knife of like form, shape or size; pocket knife with any blade over four inches in length; sword cane; ice pick; slingshot; black jack; brass knuckles; Spanish stiletto; or any rifle or shotgun or any pistol or revolver of any kind whatever; or a fountain pen pistol or gun or like instrument containing a firing pin capable of shooting tear gas or pistol cartridges; or any other dangerous weapon (section 10-32-2);
9. Carrying or exhibiting in any manner any replica gun, or realistic toy gun, as defined in section 10-32-3, or brandish in a threatening manner, in any public place, or on any public street in a vehicle or otherwise, so as to cause a reasonable person apprehension or fear of bodily harm, or to believe their personal safety is endangered (section 10-32-2);
10. Blocking or obstructing the movement of a trolley vehicle by:
    a. Parking or abandoning any vehicle whether self-propelled, animal drawn or motor powered on or near the tracks (chapter 12-64);

b. Placing any object on or near the tracks (chapter 12-64),

c. Standing on, in the middle of, or adjacent to the tracks (chapter 12-64),

11. Interfering in any way with the safe and orderly operation of the Main Street Trolley System (chapter 12-64);

12. Engaging intentionally in conduct which would make a reasonable person fearful or feel compelled or committing the offense of intimidating others from exercising civil rights by injuring or threatening to injure or coerce another person with intent to unlawfully intimidate another from the free exercise or enjoyment of a right or privilege secured by the constitution or laws of the State of Tennessee (section 10-8-9);

13. Violating the ordinance pertaining to minor curfew (section 10-28-4);

14. Violating the ordinance pertaining to indecent exposure, dress, etc. (section 10-8-10);

15. Violating the ordinance pertaining to display of sexually explicit materials to minors (section 6-72-15);

16. Violating the ordinance pertaining to performances harmful to minors (chapter 10-24);

17. Violating the ordinance pertaining to nudity and sexual activities in public place (section 10-8-12);

18. Violating the ordinance pertaining to clinging to moving vehicles (section 11-68-2);

19. Violating the ordinance pertaining to boarding or alighting from vehicle in motion (section 11-68-3);

20. Violating the ordinance pertaining to riding on a portion of vehicle not intended for passengers or operating a vehicle while persons are riding on a portion of a vehicle not intended for passengers (section 11-68-4);

21. Violating the ordinance pertaining to obstructing intersection or crosswalk (section 11-16-190);

22. Violating the ordinance pertaining to following too closely (section 11-16-20);

23. Violating the ordinance pertaining to reckless driving (section 11-16-44);

24. Violating the ordinance pertaining to stopping, standing and parking prohibited in specified places (section 11-40-2);

25. Violating the ordinance pertaining to obstructing traffic prohibited (section 11-40-5);

26. Violating the ordinance pertaining to opening door of parked or standing vehicle (section 11-40-6);

27. Violating the ordinance pertaining to unattended vehicles (section 11-40-7);

28. Violating the ordinance pertaining to impounding vehicles obstructing street (section 11-40-26);

29. Violating the ordinance pertaining to loud, disturbing and unnecessary noises generally (section 9-68-1);

30. Violating the ordinance pertaining to playing of radios, phonographs, etc. (section 9-68-4);

31. Violating the ordinance pertaining to yelling, shouting, singing, etc. (section 9-68-5); or

32. Violating the ordinance pertaining to loudspeakers or amplifiers on vehicles (section 9-68-11).

No cruising zone means the area bounded by and including the following streets or portions of streets and any other area as designated by the city council, between the hours of 7:00 p.m. to 4:00 a.m., Monday through Sunday, except for Riverside Drive, which shall be designated a no cruising zone from 2:00 p.m. to 12:00 a.m., Saturday, Sunday and holidays, namely an area bordered by Union Avenue on the north, Vance Avenue on the south, Riverside Drive on the west, and Danny Thomas on the east.

Traffic control point means a reference point within or adjacent to a designated area selected by a police officer for the purpose of enforcing this section.

B. At every point where a public street or alley becomes or provides ingress to a no cruising zone, there shall be posted a sign which designates no cruising zones and times.

C. It is unlawful for anyone to engage in cruising in connection with any one or more of the prohibited activities within an area designated a no cruising zone.

For purposes of this section, the person having control or ownership of a motor vehicle shall be considered the person cruising, without regard as to whether that person was actually driving the motor vehicle each time it passed the traffic control point. Having control or ownership of a motor vehicle shall mean either the owner of the vehicle, if present in the vehicle at the time of the violation, or, if the owner is not present, the person operating the vehicle at the time of the violation.

D. This section shall be enforced in accordance with the provisions contained in chapters 2-88 and 11-8.
(Code 1985, § 21-134; Ord. No. 4953, § 1, 8-6-2002)

Sec. 11-16-51. Use of off-highway motor vehicles on highways.

A. Off-highway motor vehicles such as motorcycle dirt bikes, dune buggies or similar all-terrain vehicles may be operated or driven upon a highway but only as follows:

1. On a two-lane highway, only to cross such highway at an angle of approximately 90 degrees to the direction of the roadway and at a place where a quick and safe crossing may be made;
2. With respect to the crossing of a highway having more than two lanes, or a highway having limited access, such off-highway motor vehicles may cross such highways, but only at a place designated by the department of transportation or local government authorities with respect to highways under their respective jurisdictions as a place where such motor vehicles, or specified types of such motor vehicles, may cross the highways, and such vehicles shall cross such highways only at such designated places and only in a quick and safe manner; and
3. The city, with respect to highways under its respective jurisdiction, may designate, by the erection of appropriate signs of a type approved by the appropriate division, places where such motor vehicles, or specified types of such motor vehicles, may cross any highway having more than two lanes or having limited access.

B. Such vehicles may be moved, by non-mechanical means only, adjacent to a roadway, in such a manner so as to not interfere with traffic upon the highway, only for the purpose of gaining access to, or returning from, areas designed for the operation of off-highway vehicles, when no other route is available. The city may designate access routes leading to off-highway parks as suitable for the operation of off-highway vehicles, if such access routes are available to the general public only for pedestrian and off-highway motor vehicle travel.

C. Notwithstanding any law to the contrary, three- or four-wheel all-terrain vehicles may not be operated on city highways or streets.

D. A violation of this section is a Class C misdemeanor, subject to a $50.00 fine.
(Ord. No. 5309, § 1(21-134.1), 5-19-2009)

Sec. 11-16-52. Low-speed vehicles prohibited.

A. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Low-speed vehicle means any four-wheeled electric vehicle, excluding golf carts, whose top speed is greater than 20 miles per hour but not greater than 25 miles per hour.

B. All low-speed vehicles are prohibited from being operated on streets.

C. A violation of this section is a Class C misdemeanor, subject to a $50.00 fine.
(Ord. No. 5311, § 1(21-134.2), 5-19-2009)

Sec. 11-16-53. Overtaking and passing bicycles.

A. The operator of a motor vehicle, when overtaking and passing a bicycle proceeding in the same direction on the roadway, shall leave a safe distance between the motor vehicle and the bicycle of not less than three feet and shall maintain the clearance until safely past the overtaken bicycle.

B. A violation of this section is a Class C misdemeanor, subject to a $50.00 fine.
(Ord. No. 5305, § 1(21-134.3), 5-19-2009)

Sec. 11-16-54. School buses; handheld mobile telephones.

A. Definitions. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Mobile telephone means a cellular, analog, wireless or digital telephone.

School bus means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school or privately owned and operated for compensation for the transportation of children to or from school.

B. No driver shall operate a school bus on any city roads or state highways while using a handheld mobile telephone while such vehicle is in motion and such vehicle is transporting children.

C. This section does not apply to mobile telephones or two-way radio communications made to and from a central dispatch, school transportation department or its equivalent.

D. A violation of this section is a Class C misdemeanor, subject to a $50.00 fine.

E. It is an affirmative defense to prosecution under this section, which must be proven by a preponderance of the evidence, that the driver's use of a mobile telephone was necessitated by a bona fide emergency.
(Ord. No. 5304, § 1(21-134.4), 5-19-2009)

Sec. 11-16-55. Open container law.

A. *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Open container means any container containing an alcoholic beverage, the contents of which are immediately capable of being consumed or the seal of which has been broken.

B. *Consumption while driving, possession of open containers prohibited.*

1. No driver or passenger shall consume any alcoholic beverage or beer or possess an open container of alcoholic beverage or beer while either operating a motor vehicle or while a passenger within a motor vehicle within the boundaries of the city.

2. For purposes of this section:

   a. An open container is in the possession of the driver when it is not in the possession of any passenger or is not located in a closed glove compartment, trunk or other non-passenger area of the vehicle; and

   b. A motor vehicle is in operation if its engine is operating, whether or not the motor vehicle is moving.

C. *Violation and penalty.*

1. A violation of this section is a Class C misdemeanor, punishable by a fine of $50.00.

2. For a violation of this section, a law enforcement officer shall issue a citation in lieu of continued custody, unless the offender refuses to sign and accept the citation, as provided in T.C.A. § 40-7-118.

(Ord. No. 5310, § 1(21-134.5), 5-19-2009)

Sec. 11-16-56. Texting while driving.

A. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Mobile telephone means a cellular, analog, wireless or digital device that provides for voice communication and for data communication other than by voice.

Personal digital assistant means a wireless electronic communication device that provides for data communication other than by voice.

B. No driver shall operate a motor vehicle on any highway while using a handheld mobile telephone or a handheld personal digital assistant to transmit or read a written message while such vehicle is in motion; provided that a driver does not transmit or read a written message for the purpose of this subsection if such driver reads, selects or enters a telephone number or name in a handheld mobile telephone or a personal digital assistant for the purpose of making or receiving a telephone call.

C. The provisions of this section shall only apply to a person driving a motor vehicle that is in motion at the time a written message from a mobile telephone or handheld personal digital assistant is transmitted or read by such person.

D. A violation of any provision of this section is a Class C misdemeanor, subject only to imposition of a fine, not to exceed $50.00, and court costs, not to exceed $10.00, including, but not limited to, any statutory fees of officers. No state or local litigation taxes shall be applicable to a case prosecuted under this section.

E. The provisions of this section shall not apply to the following persons:

1. Officers of the state, or of any county, city or town, charged with the enforcement of the laws of the state, when in the actual discharge of their official duties;
2. Campus police officers and public safety officers, as defined by T.C.A. § 49-7-118, when in the actual discharge of their official duties;
3. Emergency medical technicians, emergency medical technician-paramedics, and firefighters, both volunteer and career, when in the actual discharge of their official duties; and
4. Emergency management agency officers of the state, or of any county, city or town, when in the actual discharge of their official duties.

F. A traffic citation that is based solely upon a violation of this section shall be considered a non-moving traffic violation and no points shall be added to a driver's record for such violation.
(Ord. No. 5324, § 1(21-134.6), 8-18-2009)

Sec. 11-16-57. Procedures to be taken when in the presence of stationary solid waste collection vehicles.

Upon approaching a stationary solid waste collection vehicle, a person who drives an approaching vehicle shall: proceeding with due caution, yield the right-of-way by making a lane change into a lane not adjacent to that of the authorized emergency vehicle, if possible with due regard to safety and traffic conditions, if on a highway having at least four lanes with not less than two lanes proceeding in the same direction as the approaching vehicle; or proceeding with due caution, reduce the speed of the vehicle, maintaining a safe speed for road conditions, if changing lanes would be impossible or unsafe.
(Ord. No. 5560, § 1, 9-2-2014; Ord. No. 5576, § 1, 12-16-2014)

CHAPTER 11-20. MOTORCYCLES

Sections:

Sec. 11-20-1. Riding on motorcycles.
Sec. 11-20-2. Wearing of crash helmets by driver and passenger required—Operation of headlights required.
Sec. 11-20-3. Passenger seats required.
Sec. 11-20-4. Windshield—Wearing of goggles by operator and passenger.
Sec. 11-20-5. Penalty for violation.
Sec. 11-20-6. Parent deemed guilty of misdemeanor for permitting minors to violate chapter.

Sec. 11-20-1. Riding on motorcycles.

A person operating a motorcycle or a motor-driven cycle shall ride only upon the permanent and regular seat attached thereto. Such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached behind the operator's seat.
(Code 1967, § 23-14; Code 1985, § 21-18)

State law reference—Similar provisions, T.C.A. § 55-8-164.

Sec. 11-20-2. Wearing of crash helmets by driver and passenger required—Operation of headlights required.

A. The driver of a motorcycle or motor-driven cycle and any passenger thereon shall be required to wear a crash helmet of a type approved by the Commissioner of Safety of the state.

B. Whenever motorcycles or motor-driven cycles are in operation upon the streets, highways and alleys of the city, headlights and tail lights shall be in operation irrespective of daylight or darkness.
(Code 1967, § 23-186; Code 1985, § 21-19; Ord. No. 214, § 1, 7-16-1968; Res. of 7-16-1968; Ord. No. 2046, § 1, 5-21-1974)

State law reference—Similar provisions, T.C.A. §§ 55-9-302, 55-8-164, 55-9-403.

Sec. 11-20-3. Passenger seats required.

No person shall ride as a passenger upon a motorcycle or motor-driven cycle unless a proper seat for a passenger is installed thereon.
(Code 1967, § 23-187; Code 1985, § 21-20; Ord. No. 214, § 2, 7-16-1968; Res. of 7-16-1968)

State law reference—Similar provisions, T.C.A. § 55-8-164.

Sec. 11-20-4. Windshield—Wearing of goggles by operator and passenger.

Every motorcycle or motor-driven cycle operating upon any public street or public alley of the city shall be equipped with a windshield of a type approved by the Commissioner of Safety of the state, or, in the alternative, the operator and any passenger on such motorcycle or motor-driven cycle shall be required to wear safety goggles of a type approved by the Commissioner of Safety of the state for the purpose of preventing any flying object from striking the operator or any passenger in the eye.

(Code 1967, § 23-188; Code 1985, § 21-21; Ord. No. 214, § 3, 7-16-1968; Res. of 7-16-1968)

State law reference—Similar provisions, T.C.A. § 55-8-304.

Sec. 11-20-5. Penalty for violation.

Any person who violates the provisions of sections 11-20-2 through 11-20-4 shall be guilty of a misdemeanor and upon conviction shall be subject to punishment as provided in section 1-24-1.

(Code 1967, § 23-189; Code 1985, § 21-22; Ord. No. 214, § 4, 7-16-1968; Res. of 7-16-1968)

Sec. 11-20-6. Parent deemed guilty of misdemeanor for permitting minors to violate chapter.

If any parent or guardian knowingly permits a minor to operate motorcycle or a motor-driven cycle in violation of sections 11-20-2 through 11-20-4, such parent or guardian shall be guilty of a misdemeanor and upon conviction shall be subject to punishment as provided in section 1-24-1.

(Code 1967, § 23-190; Code 1985, § 21-23; Ord. No. 214, § 5, 7-16-1968; Res. of 7-16-1968)

CHAPTER 11-21. SPEED ENFORCEMENT PHOTOGRAPHIC SYSTEM*

Sections:

Sec. 11-21-1. Speed enforcement photographic system.

Sec. 11-21-1. Speed enforcement photographic system.

A. *Definitions*. The following words, terms and phrases, when used herein, shall have ascribed to them the following meanings, except where the context clearly indicates a different meaning.

Citations and *warning notices* means the documents of notice of violation and shall include:

1. The name and address of the registered owner of the vehicle;
2. The registration plate number of the motor vehicle involved in the violation;
3. The violation charged;
4. The location of the violation;
5. The date and time of the violation;
6. A copy of the recorded image;
7. The amount of the civil penalty imposed and the date by which the civil penalty should be paid;
8. A sworn statement signed by an officer or agent of the police services division that based on inspection of recorded images, the subject motor vehicle was being operated in violation of section 21-106, and/or 21-107; and
9. Information advising the person alleged to be liable for violation of section 21-106, and/or 21-107: (i) of the manner and time in which the liability alleged in the citation may be contested in city court, and (ii) warning that failure to contest in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

Recorded images means images recorded by a speed enforcement photographic system:

1. On a photograph, microphotograph, electronic image, videotape, or any other medium; and
2. At least one image or portion of tape, clearly identifying the registration plate number, or other identifying designation of the license plate, on the motor vehicle.

System location is within the boundary of an active school speed zone or in a reverse curve or "S" curve portion of a public road or highway, as defined by T.C.A. § 55-8-198.

Speed enforcement photographic system is an electronic system consisting of a photographic, video or electronic camera that automatically detects and produces photographs, video or digital images of each vehicle exceeding the active school zone speed limit or exceeding the speed limit within a reverse or "S" curve.

***State law reference—**Unmanned traffic enforcement cameras, T.C.A. § 55-8-198.

Vehicle owner is the person identified on records maintained by the Tennessee Department of Safety as the registered owner of a motor vehicle.

B. *Administration.*

1. The city court clerk or an agent of said office shall administer the speed enforcement photographic system and shall maintain a list of all system locations where speed enforcement photographic systems are installed.

2. Signs to indicate the use of the speed enforcement photographic system shall be clearly posted not less than 500 feet but not more than 1,000 feet in advance of the enforcement area of the unmanned traffic enforcement camera informing drivers as to the presence of traffic enforcement cameras at the approaching location. All regulatory and warning signs relating to the intersection or enforcement area shall meet the conventional road size or larger requirements of the MUTCD.

C. *Offense.*

It shall be unlawful for any person to drive a vehicle at a rate of speed greater than 15 miles per hour on that portion of any street which has been designated as a school zone by official signs during any time when school children are present, when school zone flashing signals are in operation or otherwise in violation of sections 21-378 or 21-107 of this code ("School Zone Offense").

It shall be unlawful for any person to drive a vehicle at a rate of speed greater than is permitted on that portion of any street which is constructed as a reverse or "S" curve or otherwise in violation of sections 21-378 or 21-106 of this Code (" 'S' Curve Offense").

D. *Procedure.*

1. The city shall adopt procedures for the issuance of uniform citations and warning notices hereunder.

2. A citation or warning notice so issued, alleging an offense hereunder in violation of section 21-106 or 21-107 of this Code, which is sworn to or affirmed by an official of the division of police services or an agent of said division based on inspection of recorded images produced by the speed enforcement photographic system, and which includes copies of such recorded images, shall be prima facie evidence of the facts contained therein and shall be admissible in any proceeding alleging a violation hereunder. The citation or warning notice shall be forwarded by first-class mail, postmarked pursuant to state law, to the vehicle owner's address as given on the motor vehicle registration records maintained by the Tennessee Department of Safety. Personal delivery to or personal service of process on the owner of the vehicle shall not be required.

3. A person who receives a citation or warning notice may:

   a. Pay the assessed fine and civil penalty, in accordance with instructions on the citation or warning notice, directly to the city court clerk; or

   b. Elect to contest the citation for the alleged violation.

4. Liability hereunder shall be determined based upon preponderance of the evidence. Admission into evidence of a citation or warning notice, together with proof that the defendant was at the time of the violation the registered owner of the vehicle, shall permit the trier of fact in its discretion to infer that such owner of the vehicle was the driver of the vehicle at the time of the alleged violation. Such an inference may be rebutted if the owner of the vehicle:

   a. Testifies under oath in open court that he or she was not the operator of the vehicle at the time of the alleged violation; and

   b. Presents to the court prior to the return date established on the citation and warning notice a certified copy of a police report showing that the vehicle had been reported to the police as stolen prior to the time of the alleged violation; or

   c. Submits to the court prior to the return date established on the citation and warning notice the owner's sworn notarized statement that the vehicle was in the care, custody or control of another person or entity at the time of the violation and identifying the name and address of the person or entity who leased, rented or

otherwise had such possession of the vehicle at the time of the alleged violation.

5. The following vehicles are exempt from receiving a citation and warning notice:

   a. Emergency vehicles with active emergency lights;

   b. Vehicles moving through the intersection to avoid or clear the way for a marked emergency vehicle;

   c. Vehicles under police escort; and

   d. Vehicles in a funeral procession.

E. *Penalty.*

1. Any offense hereunder shall be deemed a non-criminal violation for which a civil penalty of $50.00 shall be assessed. Failure to pay the civil penalty or appear in court to contest the citation or warning notice on the designated date shall result in an assessment of court costs. The city may establish procedures for the trial of civil violators and may enforce and collect all penalties assessed in the nature of a debt.

2. A violation for which a civil penalty is imposed hereunder shall not be considered a moving violation and may not be recorded by the division of police services or the state department of safety on the driving record of the owner or driver of the vehicle and may not be considered in the provision of motor vehicle insurance coverage.

F. *Use of revenues.*

1. All net revenues generated from penalties and assessments associated with this program and the enforcement of section 21-106 or 21-107 that exceed the cost of the administration and operation of the speed enforcement photographic system will be apportioned to the division of engineering for traffic safety projects or initiatives. This would include, but not be limited to the design, installation, operation, and maintenance of traffic control devices, traffic calming infrastructure, and pedestrian safety infrastructure. Said funds shall be distributed from the office of the city court clerk on a monthly basis upon receipt.

(Ord. No. 5747, § , 4-7-2020)

Note—A. With respect to an "S" Curve Offense, this Ordinance shall take effect from and after the date it shall have been passed by the Council, signed by the Chairman of the Council, certified and delivered to the Office of Mayor in writing by the comptroller and become effective as otherwise provided by law. B. With respect to a School Zone Offense, this Ordinance shall not take effect from and after the date it shall have been passed by the Council, signed by the Chairman of the Council, certified and delivered to the Office of Mayor in writing by the comptroller but the effective date of this Ordinance shall be deferred and become effective upon the commence upon the opening of the Shelby County Schools for all students for the 2020-2021 school year.

CHAPTER 11-24. BICYCLES*

Sections:

Sec. 11-24-1. Effect of regulations.
Sec. 11-24-2. Traffic laws apply to persons riding bicycles.
Sec. 11-24-3. Removal or alteration of serial number.
Sec. 11-24-4. Equipment—Lights and reflectors.
Sec. 11-24-5. Equipment—Brake.
Sec. 11-24-6. Use of permanent seat required; carrying excess persons forbidden.
Sec. 11-24-7. Riding on roadways.
Sec. 11-24-8. Obedience to traffic control devices.
Sec. 11-24-9. Bike lanes.
Sec. 11-24-10. Riding on sidewalks.
Sec. 11-24-11. Parking on sidewalks.
Sec. 11-24-12. Right-of-way to pedestrians; passing pedestrians.
Sec. 11-24-13. Clinging to moving vehicles.
Sec. 11-24-14. Towing other vehicles.
Sec. 11-24-15. Racing and endurance contests.
Sec. 11-24-16. Carrying articles on bicycles.
Sec. 11-24-17. Child bicycle safety.

Sec. 11-24-1. Effect of regulations.

A. It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.

***Charter references—**Authority to regulate sale, use and operation of bicycles, § 749; dealers in secondhand bicycles, §§ 730—734.

State law reference—Bicycles, T.C.A. § 55-8-171 et seq.

B. The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any provisions of this chapter.

C. These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated herein.
(Code 1967, § 10-1; Code 1985, § 21-196; Ord. No. 2155, § 1, 5-20-1975)

State law reference—Similar provisions, T.C.A. § 55-8-1.

Sec. 11-24-2. Traffic laws apply to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter, except as to special regulations in this chapter and except as to those provisions of this chapter which by their nature can have no application.
(Code 1967, § 10-3; ; Code 1985, § 21-197; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-197), 5-11-2010)

State law reference—Similar provisions, T.C.A. § 55-8-172.

Sec. 11-24-3. Removal or alteration of serial number.

A. It is unlawful for any person to willfully or maliciously remove, destroy, mutilate or alter the serial number of any bicycle frame registered pursuant to this chapter.

B. Nothing in this section shall prohibit a representative of the traffic bureau of the division of police from stamping serial numbers on the frames of bicycles on which no serial number can be found, or on which such number is insufficient for identification purposes.
(Code 1967, § 10-4; Code 1985, § 21-198; Ord. No. 2155, § 1, 5-20-1975)

Sec. 11-24-4. Equipment—Lights and reflectors.

Every bicycle, operated upon streets in the city during hours of darkness, shall be equipped with the following:

1. A forward-facing lamp mounted on the front of the bicycle and shall emit a white light visible from a distance of at least 500 feet to the front; and
2. Either a rearward-facing red reflector or rearward-facing lamp emitting a red light that shall be visible from a distance of at least 500 feet when directly in front of lawful upper beams of headlight or headlamps on a motor vehicle.

(Code 1967, § 10-5; Code 1985, § 21-199; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-199), 5-11-2010)

State law reference—Similar provisions, T.C.A. § 55-8-177.

Sec. 11-24-5. Equipment—Brake.

Every bicycle operated upon streets in the city shall be equipped with a brake or brakes which will enable its driver to stop the bicycle within 25 feet from a speed of ten miles per hour on dry, level, clean pavement. Such brake shall be maintained in good working order at all times. For purposes of this section, the drivetrain of a fixed gear bike is considered a brake, provided the rider can demonstrate compliance with the braking requirement stated herein.
(Code 1967, § 10-6; Code 1985, § 21-200; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-200), 5-11-2010)

State law reference—Similar provisions, T.C.A. § 55-8-177.

Sec. 11-24-6. Use of permanent seat required; carrying excess persons forbidden.

A. A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached thereto, except for a certified police cyclist who is performing duties that require riding in a side dismounting position.

B. No bicycle shall be used at any time to carry more persons than the number for which it has been equipped per person in terms of seats and handlebars, with the exception of properly installed child carriers with hand and foot protection.
(Code 1967, § 10-7; Code 1985, § 21-201; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-201), 5-11-2010)

State law reference—Similar provisions, T.C.A. § 55-8-173.

Sec. 11-24-7. Riding on roadways.

A. Any person operating a bicycle upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride in

the same direction as other vehicular traffic as close as practicable to the right-hand curb or edge of the roadway, except under any of the following situations:

1. When overtaking and passing another vehicle proceeding in the same direction;

2. When preparing for a left turn at an intersection or into a private road or driveway; or

3. When reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving vehicles, pedestrians, animals, surface hazards, or when traveling in a lane that is too narrow for a bicycle and another vehicle to travel safely side by side within the lane.

This section shall not apply to a certified police cyclist engaged in the lawful performance of duty relating to traffic control or in pursuit of an actual or suspected violator of the law.

B. No person shall operate a bicycle on any part of any roadway where official signs have been erected and are in place indicating the prohibition of such activity.

C. Hand signals for stopping, turning and changing lanes shall be given at least one time but are not required to be continuous if the bicycle is in a designated turn lane or if the operator's hands are needed for the safe operation of the bicycle. A person operating a bicycle shall either give a right turn signal by extending the left hand and arm upward and to the left side of the bicycle; or by extending the right hand and arm horizontally and to the right side of the bicycle.

D. Persons riding bicycles upon a roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles. Persons riding two abreast shall not impede the normal and reasonable movement of traffic and, on a laned roadway, shall ride within a single lane. This section shall not apply to a certified police cyclist engaged in the lawful performance of duty relating to traffic control or in pursuit of an actual or suspected violator of the law.

(Code 1967, § 10-8; Code 1985, § 21-202; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-202), 5-11-2010)

Sec. 11-24-8. Obedience to traffic control devices.

Any person operating a bicycle shall obey the instructions of all official traffic signals, signs and other control

devices applicable to vehicles, unless otherwise directed by a police officer; except that a bicyclist who is faced with a red traffic-control signal or device may, after coming to a complete stop at the intersection and waiting a reasonable time to determine the signal or device will not change to green, proceed after yielding the right-of-way to all traffic lawfully proceeding through the intersection.
(Code 1967, § 10-9; Code 1985, § 21-203; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-203), 5-11-2010)

Sec. 11-24-9. Bike lanes.

A. The creation of one or more bicycle lanes does not inhibit a bicycle operator's ability to operate a bicycle upon a roadway in accordance with this chapter.

B. Every person operating a motor vehicle shall yield the right-of-way to a person operating a bicycle within a bicycle lane. A person operating a motor vehicle may cross a bicycle lane when making a turn or when entering or leaving the roadway, but a bicycle lane shall not be used as a turning lane or passing lane.

C. Motor vehicles shall not be parked, stopped or left standing in a bicycle lane unless the city has determined that parking within the bicycle lane in specific locations is appropriate during certain hours and official signs have been erected in the designated areas to that effect or the city engineer has issued written special permission parking for a specific event during certain hours.

D. A person operating a bicycle within a bicycle lane shall give an audible signal before overtaking and passing another person operating a bicycle proceeding in the same direction and shall further pass on the left. The audible signal shall be given verbally or via a bell, and shall not be given via a whistle or siren.

E. A person operating a bicycle entering a bicycle lane shall yield the right-of-way to all bicycles in the bicycle lane. A person operating a bicycle leaving the bicycle lane shall yield the right-of-way to all vehicles and pedestrians. No person operating a bicycle within a bicycle lane shall leave the bicycle lane until the movement can be made with reasonable safety and, if any vehicle would be affected by the movement, by giving an appropriate signal before the movement is made.

F. A person operating a bicycle within a bicycle lane shall travel in the same direction as vehicles traveling in the adjacent traffic lane.
(Code 1967, § 10-10; Code 1985, § 21-204; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-204), 5-11-2010)

Sec. 11-24-10. Riding on sidewalks.

A. Any person may operate a bicycle on a sidewalk except where official signs have been erected and are in place indicating the prohibition of such activity.

B. When operating a bicycle on a sidewalk, such person shall yield the right-of-way to any operator of sidewalk-type vehicles and give an audible signal before overtaking and passing any such operator. The audible signal shall be given verbally or via a bell, and shall not be given via a whistle or siren. For purposes of this subsection, sidewalk-type vehicles shall include coasters, sleds, non-motorized scooters, roller skates, or any similar vehicle, toy or article on wheels.
(Code 1967, § 10-11; Code 1985, § 21-205; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-205), 5-11-2010)

Sec. 11-24-11. Parking on sidewalks.

No person shall park a bicycle upon a street other than upon the roadway against the curb or upon the sidewalk in a rack to support the bicycle or against a building or at the curb, in such manner as to afford the least obstruction to pedestrian traffic.
(Code 1967, § 10-12; Code 1985, § 21-206; Ord. No. 2155, § 1, 5-20-1975)

Sec. 11-24-12. Right-of-way to pedestrians; passing pedestrians.

A. Any person operating a bicycle, on a sidewalk or otherwise, shall yield the right-of-way to any pedestrian.

B. Any operator of a bicycle shall give an audible signal before overtaking and passing any pedestrian. The audible signal shall be given verbally or via a bell, and shall not be given via a whistle or siren.
(Code 1967, § 10-13; Code 1985, § 21-207; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-207), 5-11-2010)

Sec. 11-24-13. Clinging to moving vehicles.

It shall be unlawful for any person riding upon a bicycle to cling or attach himself or herself or his or her bicycle to any other moving vehicle upon a street in the city.
(Code 1967, § 10-14; Code 1985, § 21-208; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-208), 5-11-2010)

Sec. 11-24-14. Towing other vehicles.

The operator of a bicycle shall not tow or draw any coaster, sled, person on roller skates, toy vehicles or other similar vehicle. The provisions of this section shall not be construed to prohibit the attachment of a bicycle trailer or bicycle semitrailer to a bicycle if the trailer or semitrailer is designed specifically for that purpose.
(Code 1967, § 10-15; Code 1985, § 21-209; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-209), 5-11-2010)

Sec. 11-24-15. Racing and endurance contests.

No person operating a bicycle upon a street in the city shall participate in any race of speed or endurance, or contest with any vehicle unless such activity is specifically authorized by the police director or his or her designee and is supervised.
(Code 1967, § 10-16; Code 1985, § 21-210; Ord. No. 2155 § 1, 5-20-1975; Ord. No. 5352, § 1(21-210), 5-11-2010)

Sec. 11-24-16. Carrying articles on bicycles.

No person operating a bicycle shall carry any package, bundle or article that prevents the driver from keeping at least one hand upon the handlebars.
(Code 1967, § 10-17; Code 1985, § 21-211; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-211), 5-11-2010)

Sec. 11-24-17. Child bicycle safety.

A. No person who is under 16 years of age shall operate a bicycle or ride as a passenger on a bicycle or a bicycle trailer on a roadway, bikeway, sidewalk, bike lane or bike path unless he or she is wearing a protective helmet of good fit fastened securely upon his or her head with the straps of the helmet and which meets or exceeds the standards set by the American National Standards Institute (ANSI) or the Snell Memorial Foundation, or that is otherwise approved by the commissioner of safety for the state.

B. No person who weighs less than 40 pounds or is less than 40 inches in height shall be a passenger on a bicycle unless such person can be and is properly seated in and adequately secured to a restraining seat. For purposes of this section, a restraining seat means a seat separate from the saddle seat of the operator of the bicycle that is fastened securely to the frame of the bicycle and is adequately equipped to restrain the passenger in the seat and protect the passenger from the moving parts of the bicycle.
(Code 1967, § 10-18; Code 1985, § 21-212; Ord. No. 2155, § 1, 5-20-1975; Ord. No. 5352, § 1(21-212), 5-11-2010)

CHAPTER 11-28. PEDESTRIANS*

Sections:

Sec. 11-28-1. Applicability.
Sec. 11-28-2. Use of crosswalks generally.
Sec. 11-28-3. Right-of-way in crosswalks.
Sec. 11-28-4. Crossing at other than crosswalks.
Sec. 11-28-5. Walking on roadways.
Sec. 11-28-6. Pedestrians soliciting rides or business.
Sec. 11-28-7. Pedestrian responsibilities.
Sec. 11-28-8. Pedestrian right-of-way on sidewalks.
Sec. 11-28-9. Pedestrians using white canes or sticks.
Sec. 11-28-10. Penalty.

Sec. 11-28-1. Applicability.

A. Pedestrians shall be subject to traffic-control signals at intersections as provided for in this title, and at all other places pedestrians shall be accorded the privileges, and shall be subject to restrictions as hereinafter stated.

B. Notwithstanding the provisions of this chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway, and shall give warning by sounding the horn when necessary, and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.
(Code 1967, § 23-259; Code 1985, § 21-226; Ord. No. 5401, § 1(11-28-1), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-133.

***State law reference—**Pedestrians, T.C.A. § 55-18-133 et seq.

Sec. 11-28-2. Use of crosswalks generally.

Whenever there is a marked crosswalk, all pedestrians crossing in such crosswalk shall stay within the markings or lines, and whenever practicable such pedestrian shall walk on the right half of the crosswalk.
(Code 1967, § 23-260; Code 1985, § 21-227; Ord. No. 5401, § 1(11-28-2), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-137.

Sec. 11-28-3. Right-of-way in crosswalks.

A. When traffic signals are not in place or not in operation, the driver of the vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway within a crosswalk upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

B. No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle, which is so close that it is impossible for the driver to yield.

C. Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.
(Code 1967, § 23-262; Code 1985, § 21-229; Ord. No. 5401, § 1(11-28-3), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-134.

Sec. 11-28-4. Crossing at other than crosswalks.

A. Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a marked crosswalk.

B. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

C. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.
(Code 1967, §§ 23-261, 23-263, 23-264; Code 1985, §§ 21-228, 21-230, 21-231; Ord. No. 5401, § 1(11-28-4), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-135.

Sec. 11-28-5. Walking on roadways.

A. Except as provided in this section, where sidewalks are provided, it is unlawful for any pedestrian to walk or use a wheelchair along and upon an adjacent roadway.

B. Where sidewalks are not provided or are obstructed, any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic that may approach from the opposite direction.

C. Where sidewalks are not provided, are obstructed or are not wheelchair accessible, any person using a wheelchair along and upon a highway shall, when practicable, use the wheelchair on the left side of the roadway or its shoulder facing traffic that may approach from the opposite direction; provided that a person using a wheelchair along and upon a highway may use the wheelchair on the right side of the roadway or its shoulder if it is convenient or reasonably necessary for travel by the person.
(Code 1967, § 23-265; Code 1985, § 21-232; Ord. No. 5401, § 1(11-28-5), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-138.

Sec. 11-28-6. Pedestrians soliciting rides or business.

A. No person shall stand in a roadway for the purpose of soliciting a ride or employment from the occupant of any vehicle.

B. No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.
(Code 1967, §§ 23-266, 23-267; Code 1985, §§ 21-233, 21-234; Ord. No. 5401, § 1(11-28-6), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-139.

Sec. 11-28-7. Pedestrian responsibilities.

A. Upon the immediate approach of an authorized emergency vehicle making use of an audible signal and/or visual signals or of a police vehicle properly and lawfully making use of an audible signal only, every pedestrian shall yield the right-of-way to the authorized emergency vehicle.

B. This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway, nor from the duty to exercise due care to avoid colliding with any pedestrian.

C. No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

D. No person shall cross any street within ten feet of the front of any vehicle which has stopped momentarily to load or discharge passengers, except in compliance with the direction of a police officer or a traffic signal.

E. It is unlawful for a pedestrian who is under the influence of alcohol or any drug to a degree which renders oneself a hazard to walk or be upon a street except on a sidewalk.
(Code 1967, § 23-268; Code 1985, § 21-235; Ord. No. 5401, § 1(11-28-7), 7-5-2011)

Sec. 11-28-8. Pedestrian right-of-way on sidewalks.

The driver of a vehicle shall yield the right-of-way to any pedestrian on a sidewalk that extends across any alley, building entrance, road or driveway.
(Ord. No. 5401, § 1(11-28-8), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-134.

Sec. 11-28-9. Pedestrians using white canes or sticks.

A. It is unlawful for any person except persons wholly or partially blind to carry or use on the public streets any canes or walking sticks which are white in color with a red end.

B. Whenever any pedestrian guided by a service animal or carrying any cane or walking stick white in color with a red end undertakes to cross any public street or thoroughfare, it is the duty of all drivers of any vehicles to immediately come to a full stop and yield the right-of-way to said person.
(Code 1967, § 23-269; Code 1985, § 21-236; Ord. No. 5401, § 1(11-28-9), 7-5-2011)

State law reference—Similar provisions, T.C.A. § 55-8-180.

Sec. 11-28-10. Penalty.

Violations of this chapter shall be prosecuted in the same manner as prescribed in chapter 11-8.
(Ord. No. 5401, § 1(11-28-10), 7-5-2011)

CHAPTER 11-32. VEHICLE EQUIPMENT*

Sections:

Sec. 11-32-1. Brakes generally.
Sec. 11-32-2. Brakes for motorcycles and motorized bicycles.
Sec. 11-32-3. Brakes for trailers and semitrailers.
Sec. 11-32-4. Service brakes required.
Sec. 11-32-5. Performance ability of brakes.
Sec. 11-32-6. Maintenance and adjustment of brakes.
Sec. 11-32-7. Lights—Required on motor vehicles—Exceptions—Regulations as to color, type and visibility distance.
Sec. 11-32-8. Lights—On vehicles other than motor vehicles—Visibility distance.
Sec. 11-32-9. Lights—Headlamps on motorcycles.
Sec. 11-32-10. Lights—Lamp at end of train of vehicles.
Sec. 11-32-11. Lights—Lighting devices and reflectors on vehicles having width in excess of 80 inches, truck tractors and trailers—Lamp or flag on projecting load.
Sec. 11-32-12. Lights—Headlights on motor vehicles—Operation during inclement weather.
Sec. 11-32-13. Lights—Headlights complying with prohibition against glaring and dazzling lights—Anti-glare devices—Mounted height of lamps.
Sec. 11-32-14. Use of spotlights prohibited—Exception.
Sec. 11-32-15. Muffler required.
Sec. 11-32-16. Muffler cutout prohibited.
Sec. 11-32-17. Horn—Bells, sirens or exhaust whistles on emergency vehicles.
Sec. 11-32-18. Windshields and windows.
Sec. 11-32-19. Windshield wipers.
Sec. 11-32-20. Steering mechanism and wheel alignment.
Sec. 11-32-21. Rear view mirrors.

***State law reference—**Vehicle equipment, T.C.A. § 55-9-101 et seq.

Sec. 11-32-22. Operating vehicle equipped with tire in dangerous condition.
Sec. 11-32-23. Emission control devices and emissions generally.
Sec. 11-32-24. Television in motor vehicles—Penalty—Law enforcement.
Sec. 11-32-25. Obscene or patently offensive bumper stickers, window signs or automotive equipment—Prohibited.
Sec. 11-32-26. Offensive sound systems installed in or on vehicles—Prohibited.

Sec. 11-32-1. Brakes generally.

Every motor vehicle, other than a motorcycle, when operated upon any street within the city, shall be equipped with brakes adequate to control the movement of and to stop and hold such vehicle, including two separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two wheels. If these two separate means of applying brakes are connected in any way, they shall be so constructed that failure of any one part of the operating mechanism shall not leave the motor vehicle without brakes on at least two wheels.
(Code 1967, § 23-105; Code 1985, § 21-321)

State law reference—Brakes, T.C.A. §§ 55-8-204, 55-8-205.

Sec. 11-32-2. Brakes for motorcycles and motorized bicycles.

Every motorcycle and bicycle with motor attached when operated upon any street within the city shall be equipped with at least one brake, which may be operated by hand or foot.
(Code 1967, § 23-106; Code 1985, § 21-322)

State law reference—Similar provisions, T.C.A. § 55-9-204.

Sec. 11-32-3. Brakes for trailers and semitrailers.

Every trailer or semitrailer of a gross weight of 3,000 pounds or more, when operated upon any street within the city, shall be equipped with brakes adequate to control the movement of and to stop and to hold such vehicle and so designed as to be applied by the driver of the towing motor vehicle from its cab, and the brakes shall be so designed and connected that in case of an accidental breakaway of the towed vehicle, the brakes shall be automatically applied.
(Code 1967, § 23-107; Code 1985, § 21-323)

State law reference—Brakes, T.C.A. §§ 55-8-204, 55-9-205.

Sec. 11-32-4. Service brakes required.

Every new motor vehicle, trailer or semitrailer sold in this city and operated upon any of the streets of the city shall be equipped with service brakes upon all wheels of every such vehicle, except trucks and truck tractors having three or more axles need not have brakes on the front wheels, unless such vehicles are equipped with at least two steerable axles the wheels of one such axle need not be equipped with brakes, except any motorcycle and except that any semitrailer of less than 1,500 pounds gross weight need not be equipped with brakes.
(Code 1967, § 23-108; Code 1985, § 21-324)

State law reference—Brakes, T.C.A. §§ 55-8-204, 55-9-205.

Sec. 11-32-5. Performance ability of brakes.

A. The service brakes upon any motor vehicle or combination of vehicles shall be adequate to stop such vehicle when traveling 20 miles per hour within a distance of 30 feet when upon dry asphalt or concrete pavement surface free from loose material where the grade does not exceed one percent.

B. Under the above conditions, the hand brake shall be adequate to stop such vehicle within a distance of 55 feet and such hand brake shall be adequate to hold such vehicle stationary on any grade upon which operated.

C. Under the above conditions, the service brakes upon a motor vehicle equipped with two wheel brakes only, when permitted under this chapter, shall be adequate to stop the vehicle within a distance of 40 feet and the hand brake adequate to stop the vehicle within a distance of 55 feet.

D. All braking distances specified in this section shall apply to all vehicles mentioned, whether or not such vehicles are loaded to the maximum capacity.
(Code 1967, § 23-109; Code 1985, § 21-325)

Sec. 11-32-6. Maintenance and adjustment of brakes.

All brakes specified in this chapter shall be maintained in good working order and shall be so adjusted as to operate as equally as practicable with respect to the wheels on opposite sides of the vehicles.
(Code 1967, § 23-110; Code 1985, § 21-326)

State law reference—Brakes, T.C.A. §§ 55-8-204, 55-9-205.

Sec. 11-32-7. Lights—Required on motor vehicles—Exceptions—Regulations as to color, type and visibility distance.

A. Every motor vehicle other than a motorcycle, road roller, road machinery or farm tractor shall be equipped with at least two and not more than four headlights, with at least one on each side of the front of the motor vehicle; provided that, auxiliary road lighting lamps may be used, but not more than two of such lamps shall be lighted at any one time in addition to the two required headlights; and, provided that, no spotlight or auxiliary lamps shall be so aimed upon approaching another vehicle that any part of the high intensity portion of the beam therefrom is directed beyond the left side of the motor vehicle upon which the spotlight or auxiliary lamp is mounted, nor more than 100 feet ahead of such motor vehicle.

B. Every motor vehicle shall be equipped with two red tail lamps and two red stoplights on the rear of such vehicle, and one tail lamp and one stoplight shall be on each side, except that passenger cars manufactured or assembled prior to January 1, 1939, trucks manufactured or assembled prior to January 1, 1968, and motorcycles and motor-driven cycles shall have at least one red tail lamp and one red stoplight.

C. The stoplight shall be so arranged as to be actuated by the application of the service or foot brake and shall be capable of being seen and distinguished from a distance of 100 feet to the rear of a motor vehicle in normal daylight but shall not project a glaring or dazzling light.

D. The stoplight may be incorporated with the tail lamp.

E. Each lamp and stoplight required in this section shall be in good condition and operational.

F. No vehicle operated in this state shall be equipped with any flashing red or blue lights which displays to the front of such vehicle, except school buses, law enforcement vehicles, and emergency vehicles used in firefighting including ambulances, firefighting vehicles, rescue vehicles, privately owned vehicles of regular or volunteer firefighters certified in T.C.A. § 55-9-201(c) or other emergency vehicles used in firefighting owned, operated, or subsidized by the governing body of any county or municipality; provided, however, that any emergency rescue vehicle owned, titled and operated by a state chartered rescue squad, a member of the state association of rescue privately owned vehicle of regular or volunteer firefighters certified in T.C.A. § 55-9-201(c), squads, and marked with lettering at least three inches in size and displayed on the left and right sides of the vehicle designating it as "emergency rescue vehicle"; any authorized civil defense emergency vehicle displaying the appropriate civil defense agency markings of at least three inches; and any ambulance or vehicle equipped to provide emergency medical services properly licensed as required in the state and displaying the proper markings shall also be authorized to be lighted in one or more of the following manners:

1. A red light visibar type with P.A. system;
2. A red oscillating type light;
3. Blinking red lights, front and rear.

G. Any vehicle, other than an emergency vehicle or law enforcement vehicle authorized by this section to display flashing red or blue lights, which displays any such lights shall be considered in violation of this provision and subject for each offense.
(Code 1967, §§ 23-111(e), 23-115; Code 1985, § 21-327; Ord. No. 4938, § 1, 4-16-2002)

Sec. 11-32-8. Lights—On vehicles other than motor vehicles—Visibility distance.

Every vehicle other than a motor vehicle when traveling upon a city street dedicated, appropriated or open to public use or travel, shall be equipped with a light attached to and on the upper left side of such vehicle, capable of displaying a light visible 500 feet to the front and 500 feet to the rear of such vehicle under ordinary atmospheric conditions and such light shall be displayed during the period from one-half hour after sunset to one-half hour before sunrise and at all other times when there is not sufficient light to render clearly discernible any person on the road or highway at a distance of 200 feet ahead of such vehicle.
(Code 1967, § 23-111(a), (c), (d); Code 1985, § 21-328)

State law reference—Brakes, T.C.A. §§ 55-8-204, 55-9-402.

Sec. 11-32-9. Lights—Headlamps on motorcycles.

Every motorcycle shall be equipped with at least one and not more than two headlamps.
(Code 1967, § 23-111(b); Code 1985, § 21-329)

State law reference—Similar provisions, T.C.A. § 55-9-403.

Sec. 11-32-10. Lights—Lamp at end of train of vehicles.

Every motor vehicle and every trailer or semitrailer which is being drawn at the end of a train of vehicles shall carry at the rear a lamp of a type which exhibits a yellow or red light plainly visible under normal atmospheric conditions from a distance of 500 feet to the rear of such vehicle and such light shall be so constructed and placed that the number plate carried on the rear of such vehicle shall under like conditions be so illuminated by a white light as to be read from a distance of 50 feet to the rear of such vehicle.

(Code 1967, § 23-111(f); Code 1985, § 21-330)

State law reference—Similar provisions, T.C.A. § 55-9-404.

Sec. 11-32-11. Lights—Lighting devices and reflectors on vehicles having width in excess of 80 inches, truck tractors and trailers—Lamp or flag on projecting load.

A. *Generally.* Every motor vehicle other than any passenger car, any road roller, road machinery or farm tractor having a width of 80 inches or more shall be equipped with at least the following lighting devices and reflectors:

1. On the front, at least two headlamps, an equal number at each side; two turn signals, one at each side; two clearance lamps, one at each side; three identification lamps, mounted on the vertical center line of the vehicle, or the vertical center line of the cab where different from the center line of the vehicle, except that where the cab is not more than 42 inches wide at the front roofline, a single lamp at the center of the cab shall be deemed to comply with the requirements for identification lamps. No part of the identification lamps or their mountings may extend below the top of the vehicle windshield;

2. On the rear, two tail lamps, one at each side; two stop lamps, one at each side; two turn signals, one at each side; two clearance lamps, one at each side; two reflectors, one at each side; three identification lamps, mounted on the vertical center line of the vehicle, provided that the identification lamps need not be lighted if obscured by a vehicle towed by the truck;

3. On each side, one side-marker lamp at or near the front, one side-marker lamp at or near the rear; one reflector at or near the front, and one reflector at or near the rear.

B. *Truck tractors.* Every truck tractor shall be equipped as follows:

1. On the front, at least two headlamps, an equal number at each side; two turn signals, one at each side; two clearance lamps, one at each side; three identification lamps, mounted on the vertical center line of the vehicle, or the vertical center line of the cab where different from the center line of the vehicle, except that where the cab is not more than 42 inches wide at the front roofline, a single lamp at the center of the cab shall be deemed to comply with the requirement for identification lamps. No part of the identification lamps or their mountings may extend below the top of the vehicle windshield;

2. On the rear, one tail lamp; one stop lamp; two reflectors, one at each side; and, unless the turn signals on the front are so constructed (double faced) and located as to be visible to passing drivers, two turn signals on the rear of the cab, one at each side.

C. *Trailers.* Every semitrailer or full trailer 80 inches or more in overall width, except converter dollies, shall be equipped as follows:

1. On the front, two clearance lamps, one at each side;

2. On the rear, two tail lamps, one at each side; two stop lamps, one at each side; two turn signals, one at each side; two clearance lamps, one at each side; two reflectors, one at each side; three identification lamps, mounted on the vertical center line of the vehicle, provided that the identification lamps need not be lighted if obscured by another vehicle in the same combination;

3. On each side, one side-marker lamp at or near the front; one side-marker lamp at or near the rear: one reflector at or near the front; one reflector at or near the rear; and, in case of semitrailers and full trailers 30 feet or more in length, at least one additional side-marker lamp at optional height and at least one additional reflector, the additional side-marker lamp (or

lamps) and reflector (or reflectors) to be at or near the center or at approximately uniform spacing in the length of the vehicle.

4. For the purposes of these regulations, a "converter dolly" is a motor vehicle with a fifth wheel lower half or equivalent mechanism, the attachment of which vehicle converts a semitrailer to a full trailer. Each dolly, when towed singly by another vehicle, and not as part of a full trailer, shall be equipped with one stop lamp, one tail lamp, and two reflectors on the rear. No lighting devices or reflectors are required on the front or sides of any dolly.

D. *Projections.* During the time when lights are required to be displayed, there shall be attached to the rearmost extremity of any load which projects four feet or more beyond the rear of the of the body of the motor vehicle, or at any tailboard or tailgate so projecting, or to the rearmost extremity of any load, carried on a pole trailer, at least one red lamp, securely fastened thereto, which shall be visible from a distance of 500 feet to the sides and rear under normal atmospheric conditions. At all other times a red flag or cloth, synthetic or manmade material shall be so displayed.

E. *Towed vehicles.* Any vehicle attached to, or being towed, drawn or hauled by another vehicle, shall have separately displayed thereon the lights required herein to be displayed on vehicles to which they belong.

F. *Electric turn signal lights; exceptions.* Every passenger vehicle and truck shall be equipped with electric turn signal lights except that passenger cars and trucks less than 80 inches in width, manufactured or assembled prior to 1955, and motorcycles and motor-drive cycles, need not be equipped with electric turn signal lights.

The electric turn signal lights shall indicate an intention to turn by flashing lights showing to the front and rear of a vehicle or on a combination of vehicles on the side of the vehicle or combination toward which the turn is to be made.

The lights showing to the front shall be mounted on the same level and as widely spaced laterally as practicable and, when signaling, shall emit white or amber light, or any shade of light between white and amber. The light showing to the rear shall be mounted on the same level and as widely spaced laterally as practicable, and when signaling, shall emit a red or amber light, or any shade of color between red and amber. Turn signal lights on vehicles 80 inches or more in overall width shall be visible from a distance of not less than 500 feet in normal sunlight. Turn signal lights on vehicles less than 80 inches wide shall be visible at a distance of not less than 300 feet in normal sunlight. Turn signal lights may, but need not be, incorporated in other lights on the vehicle.
(Code 1967, §§ 23-1(c), (e)—(g), 23-112, 23-113; Code 1985, § 21-331; Ord. No. 3514, § 1(1), (2), 1-7-1986)

State law reference—Similar provisions, T.C.A. § 55-9-405.

Sec. 11-32-12. Lights—Headlights on motor vehicles—Operation during inclement weather.

A. The headlights of every motor vehicle shall be so constructed, equipped, arranged, focused, aimed, and adjusted, that they will at all times mentioned in section 11-32-8, and under normal atmospheric conditions and on a level road produce a driving light sufficient to render clearly discernible a person 200 feet ahead, but shall not project a glaring or dazzling light to persons in front of such headlights. Such headlights shall be displayed during the period from one-half hour after sunset to one-half hour before sunrise, during fog, smoke, or rain and at all other times when there is not sufficient light to render clearly discernible any person on the road at a distance of 200 feet ahead of such vehicle.

B. Operation of headlights during periods of rain, as required in this section, shall be made during any time when rain, mist, or other precipitation, including snow, necessitates the constant use of windshield wipers by motorists.
(Code 1967, § 23-111(e); Code 1985, § 21-332)

State law reference—Similar provisions, T.C.A. § 55-9-406.

Sec. 11-32-13. Lights—Headlights complying with prohibition against glaring and dazzling lights—Anti-glare devices—Mounted height of lamps.

Headlights shall be deemed to comply with the provisions of section 11-32-12, prohibiting glaring and dazzling lights, if such headlights are of a type customarily employed by manufacturers of automobiles and in addition are equipped with some anti-glare device approved by the state department of safety in conformance with the standards of T.C.A. § 55-9-408.
(Code 1967, § 23-111(e); Code 1985, § 22-333)

State law reference—Similar provisions, T.C.A. § 55-9-408.

Sec. 11-32-14. Use of spotlights prohibited—Exception.

Dirigible search lights or spotlights shall not be used on the public streets, except by authorized emergency vehicles.
(Code 1967, § 23-114; Code 1985, § 21-334)

Sec. 11-32-15. Muffler required.

No person shall drive a motor vehicle on a street unless such motor vehicle is equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise, annoying smoke and the escape of excessive gas, steam or oil.
(Code 1967, § 23-116; Code 1985, § 21-335)

State law reference—Similar provisions, T.C.A. § 55-9-202.

Sec. 11-32-16. Muffler cutout prohibited.

It is unlawful to use a muffler cutout on any motor vehicle upon a street.
(Code 1967, § 23-117; Code 1985, § 21-336)

State law reference—Similar provisions, T.C.A. § 55-9-202.

Sec. 11-32-17. Horn—Bells, sirens or exhaust whistles on emergency vehicles.

A. Every motor vehicle, when operated upon any street shall equipped with a horn in good working order capable of emitting sound audible under normal conditions from a distance of not less than 200 feet, and it is unlawful, except as otherwise provided in this section, for any vehicle to be equipped with or for any person to use upon a vehicle any siren, exhaust, compression or spark plug whistle or for any person at any time to use a horn otherwise than as a reasonable warning or to make any unnecessary or unreasonably loud or harsh sound by means of a horn or other warning device.

B. Every police and fire department and fire patrol vehicle and every ambulance and emergency repair vehicle of public service companies used for emergency calls shall be equipped with a bell, siren, or exhaust whistle of a type approved by the division of police.
(Code 1967, §§ 23-118, 23-118.1, 23-119; Code 1985, § 21-337)

State law reference—Similar provisions, T.C.A. § 55-9-202.

Sec. 11-32-18. Windshields and windows.

A. It is unlawful for any person to drive any vehicle upon a street with any sign, poster or other nontransparent material upon the front windshield, sidewings, or side or rear window of such motor vehicle other than a certificate or other paper required to be so displayed by law, where such sign, poster or other nontransparent material will interfere with, obstruct or impair the driver's view from and through the windshield, sidewings, or side or rear window of such vehicle. The windshield and windows of such vehicle shall be of transparent material so as to furnish the driver a clear unobstructed view of the front, sides and rear.

B. All motor vehicles shall be equipped with safety glass of a type approved by the commissioner of the state department of safety, for windshields, doors and windows, according to the provisions of state law. It is unlawful to operate any motor vehicle in the city upon which the glass of the windshield, doors, windows or window vents is broken, cracked, pitted, discolored, marred or otherwise defective so as to constitute an impairment or obstruction to the vision of the operator.

C. It is unlawful for any person to operate a motor vehicle upon a public highway, street or road, which has been altered, treated or replaced by the affixation, application or installation of any material which causes the visible light transmittance of any window to be less than 35 percent.

D. No sunscreen material shall be installed below the manufacturer's standard shade ban length and width of the front windshield.

E. All installers of tinted glass or other light-retarding materials shall supply an adhesive sticker or other method of certification that the standards required under this section have been met by the materials or method used on the motor vehicle.

F. All drivers with tinted windows, or windows treated with other light-retarding materials, shall completely roll down the window on the driver's side of the vehicle or exit the vehicle immediately upon being stopped by a uniformed law enforcement officer.
(Code 1985, § 21-338; Ord. No. 5405, § 1, 7-5-2011; Ord. No. 5559, § 1, 9-2-2014)

State law reference—Similar provisions, T.C.A. § 55-9-107.

Sec. 11-32-19. Windshield wipers.

Every motor vehicle other than a motorcycle and a motor-driven cycle shall be equipped with a device for cleaning rain, snow or other moisture from the windshield of the vehicle, which device shall be so constructed as to be controlled or operated by the operator of the vehicle.
(Code 1967, § 23-121; Code 1985, § 21-339)

State law reference—Similar provisions, T.C.A. § 55-9-203.

Sec. 11-32-20. Steering mechanism and wheel alignment.

No motor vehicle shall be driven upon the streets of the city when the "play" in the steering wheel is in excess of three inches. The steering arms, tie rod, drag link or other mechanism by which the vehicle is steered, and the associated parts, must be secure and free from excessive "play" or wear. The "toe-in" and "toe-out" shall not vary more than one-quarter inch from the factory specifications. Rear wheels must be in good condition and in alignment so as not to have more than a ten-foot sideslip per mile, and the center bolts must be secure in the rear springs. The alignment of wheels shall be determined by a standard test as prescribed by the director of police.
(Code 1967, § 23-122; Code 1985, § 21-340)

Sec. 11-32-21. Rear view mirrors.

No person shall drive a motor vehicle on a street unless such vehicle is equipped with a mirror so located as to reflect to the driver a view of the street for a distance of at least 200 feet to the rear of such vehicle.
(Code 1967, § 23-123; Code 1985, § 21-341)

Sec. 11-32-22. Operating vehicle equipped with tire in dangerous condition.

It is unlawful to operate in the city any motor vehicle while using thereon any tire or tires with visibly exposed fabric or bulges or other obvious defects indicating a dangerous condition.
(Code 1967, § 23-129; Code 1985, § 21-349; Ord. No. 1017, § 1, 7-20-1971)

State law reference—Tires, T.C.A. § 55-9-106.

Sec. 11-32-23. Emission control devices and emissions generally.

A. Every gasoline-powered vehicle shall not emit carbon monoxide (CO) and/or hydrocarbon (HC) in its exhaust in excess of standards established by the director of the public service division. In setting inspection standards for emission of pollutants, the director of the public service division may use manufacturer's specifications, industry guidelines, and recommendations of the U.S. Environmental Protection Agency. Where required by law, regulation or court order, he or she shall establish inspections to meet the mandated standards, and shall provide for an inspection at least one time per year by the public service division of the city.

B. No person shall remove or cause to be removed any factory-installed device which has as its purpose, or produces the effect of, reducing the emission of pollutants, except when the removal is for the purpose of repair or replacement.

C. No person shall introduce or cause to be introduced into any gas tank of a motor vehicle any fuel or additive which has the effect of directly increasing the emission of pollutants or which will directly or indirectly result in damage to pollution-control devices which were installed by the manufacturer.

D. The director of the public service division may waive any standards and the requirement to make repairs to meet those standards for any group of motor vehicles when, in his or her opinion, the cost of making the required repairs is unreasonable or when it is unlikely that repairs will result in significantly improved performance; however, such waivers shall not adversely affect the overall viability or air pollution control plans or strategies developed by the city for the purpose of attaining and maintaining compliance with ambient air quality standards.
(Code 1967, § 23-133; Code 1985, § 21-351; Ord. No. 3306, § 1, 7-5-1983)

Sec. 11-32-24. Television in motor vehicles—Penalty—Law enforcement.

A. No television screen or other device of a similar nature shall be installed or used in the city in any position or location in a motor vehicle where it may be visible to the driver, or where it may in any other manner interfere with the safe operation and control of the vehicle.

It is unlawful for any person to install or cause to be installed a television screen or other device of a similar nature, in violation of the provisions of this section, or to operate upon the public highways, or sell within this city,

any motor vehicle which has a television screen or other devise of a similar nature installed in violation of the provisions of this section.

B. The prohibitions contained in this section do not apply to the following:

1. Electronic displays used in conjunction with vehicle navigation systems;
2. Closed circuit video monitors designed to operate only in conjunction with dedicated video cameras and used in rear-view systems on motor vehicles;
3. Television receivers or monitors used in government-owned vehicles by law enforcement officers in the course of their official duties; and
4. a. Computer or other electronic displays or monitors used in utility vehicles by employees of the utility in the course of their official duties; provided, however, such use shall only be permitted while the vehicles are stopped, standing or parked.
   b. As used in this subsection, "utility" means any person, municipality, county, metropolitan government, cooperative, board, commission, district, or any entity created or authorized by public act, private act, or general law, to provide electricity, natural gas, water, wastewater services, telephone service, or any combination thereof for sale to consumers in any particular service area.
   c. As used in subsection (B)(4)(b) of this section, "cooperative" means any cooperative providing utility services, including, but not limited to, electric and/or telephone services.

C. A violation of this section is declared to be a misdemeanor and subject to a fine of not more than $50.00.

D. This section does not apply to local, state or federal law enforcement officers who are engaged in the performance of their official duties.

(Code 1985, § 21-352; Ord. No. 5084, § 1(part), 2004)

Sec. 11-32-25. Obscene or patently offensive bumper stickers, window signs or automotive equipment—Prohibited.

A. In order to avoid distracting other drivers and, thereby, to reduce the likelihood of accidents arising from lack of attention or concentration:

1. No obscene or patently offensive bumper sticker, window sign or other marking on a motor vehicle shall be displayed in any manner visible to other drivers; and
2. No obscene or patently offensive movies, bumper stickers, window signs, or other markings on or in a motor vehicle, motion picture, film, movie, videotape, digital video disc or other pictorial representation shall be exhibited on a television, monitor or other viewing screen or surface, located within or on a motor vehicle, in any manner visible to other drivers.

B. As used in subsection A of this section, the terms "obscene" and "patently offensive" shall be defined as set forth within T.C.A. § 39-17-901.

C. 1. The owner of a vehicle involved in a violation of subsection (A)(1) of this section shall be fined not more than $50.00 per incident.

2. The operator of a vehicle involved in a violation of subsection (A)(2) of this section shall be fined not more than $50.00 per incident.

D. This section does not apply to local, state or federal law enforcement officers who are engaged in the performance of their official duties.

(Code 1985, § 21-353; Ord. No. 5084, § 1(part), 2004)

State law reference—Similar provisions, T.C.A. § 55-8-187.

Sec. 11-32-26. Offensive sound systems installed in or on vehicles—Prohibited.

A. No person operating or occupying a motor vehicle on any public street, highway, alley, parking lot, or driveway shall operate or permit the operation of any sound amplification system, including, but not limited to, any radio, tape player, compact disc player, loud speaker, or any other electrical device used for the amplification of sound from within the motor vehicle so that the sound is plainly audible at a distance of 50 or more feet from the vehicle. For the purpose of this section, "plainly audible" means any sound which clearly can be heard, by unimpaired auditory senses based on a direct line of sight of 50 or more feet; however, words or phrases need not be discernible and such sound shall include bass reverberation.

B. This section shall not be applicable to emergency or public safety vehicles, vehicles owned and operated by a municipality or county government or any utility company, for sound emitted unavoidably during a job-related operation, school or community sponsored activities, auctioneers or auctioning activities, boats or other watercrafts operated on waters or any motor vehicle used

in an authorized public activity for which a permit has been granted by the appropriate agency of a municipal or county government.

C. The violation of this section is declared to be a misdemeanor and subject to a fine of not more than $50.00 per incident.

D. This section does not apply to local, state or federal law enforcement officers who are engaged in the performance of their official duties.

E. It is not the intent of this section to prohibit any right guaranteed by the United States Constitution and state constitution including freedom of speech and freedom of religion.

(Code 1985, § 21-354; Ord. No. 5084, § 1(part), 2004)

State law reference—Similar provisions, T.C.A. § 55-8-193.

CHAPTER 11-36. SEATBELTS AND CHILD-SAFETY DEVICES*

Sections:

Sec. 11-36-1. Child passenger safety responsibility.
Sec. 11-36-2. Use of safety belts in passenger vehicles.
Sec. 11-36-3. Transportation of children in truck beds.

Sec. 11-36-1. Child passenger safety responsibility.

A. Any person transporting any child under one year of age, or any child, weighing 20 pounds or less, in a motor vehicle upon a road, street or highway of the city, is responsible for the protection of the child and properly using a child passenger restraint system in a rear facing position, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions. (Reference to T.C.A. § 55-9-603). Children are to be kept rear facing until they are one year old. If they are over one year old and still weigh less than 20 pounds, they shall remain rear facing until they weigh more than 20 pounds.

B. Any person transporting any child, one through three years of age weighing greater than 20 pounds, in a motor vehicle upon a road, street or highway of the city, is responsible for the protection of the child and properly using a child passenger restraint system in a forward-facing position, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions. (Reference to T.C.A. § 55-9-603).

C. Any person transporting any child, four through eight years of age and measuring less than five feet in height, in a passenger motor vehicle upon a road, street or highway of the city, is responsible for the protection of the child and properly using a belt positioning booster seat system, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions. (Reference to T.C.A. § 55-9-603).

1. All passenger vehicle rental agencies doing business in the city shall make available at a reasonable rate to those renting such vehicle an approved restraint as described in T.C.A. § 55-214(a).

2. If a child is not capable of being safely transported in a conventional child passenger restraint system as provided for in this subsection, a specially modified professionally manufactured restraint system meeting the intent of this subsection shall be in use; provided that the provisions of this subsection shall not be satisfied by use of the vehicle's standard lap or shoulder safety belts independent of any other child passenger restraint system. A motor vehicle operator who is transporting a child in a specially modified, professionally manufactured child passenger restraint system shall possess a copy of the physician's signed prescription that authorizes the professional manufacture of the specially modified child passenger system.

3. A person shall not be charged with a violation of this subsection if such person presents a copy of the physician's prescription in compliance with the provisions of this subsection to the arresting officer at the time of the alleged violation.

4. A person charged with a violation of this section may, on or before the court date, submit a copy of the physician's prescription and evidence of the possession of a specially modified, professionally manufactured child passenger restraint system to the court. If the court is satisfied that compliance was in effect at the time of the violation, the charge for violating the provisions of this section may be dismissed.

***State law reference—**Seat belts and child-safety devices, T.C.A. § 55-9-601 et seq.

D. Any person transporting any child, nine through 12 years of age, or any child through 12 years of age, measuring five feet or more in height, in a passenger motor vehicle upon a road, street or highway of the city, is responsible for the protection of the child, and properly using a seat belt system meeting federal motor vehicle safety standards. It is recommended that any such child be placed in the rear seat if available. (Reference to T.C.A. § 55-9-603).

E. Any person transporting any child 13 through 15 years of age, in a passenger motor vehicle upon a road, street or highway of the city, is responsible for the protection of the child and properly using a passenger restraint system, including safety belts, meeting federal motor vehicle safety standards. (Reference T.C.A. § 55-9-603).

F. If the driver is neither a parent nor legal guardian of the child and the child's parent or legal guardian is present in the vehicle, the parent or legal guardian is responsible for ensuring that the provisions of this subsection are complied with. If no parent or legal guardian is present at the time of the violation, the driver is solely responsible for compliance with this subsection. (Reference to T.C.A. § 55-9-603).

G. Notwithstanding any provisions of this part to the contrary, for any child transported by child care agencies licensed by the Department of Human Services pursuant to T.C.A. § 71-3-501 et seq. and transported pursuant to the rules and regulations of such department, such rules and regulations shall remain effective until the department amends such rules and regulations; provided that the department shall either promulgate rules consistent with the provisions of this part of promulgated rules exceeding, based on federal regulations or standards, the provisions of this part no later than January 1, 2007. (Reference to T.C.A. § 55-9-603).

H. Violation of any provision of this section is declared a misdemeanor and any one convicted of any such violation shall be fined not more than $50.00 for each violation.

I. As used in this section, unless specified otherwise, "passenger motor vehicle" means any motor vehicle with a manufacturer's gross vehicle weight rating of 10,000 pounds or less, that is not used as a public livery conveyance for passengers. "Passenger motor vehicle" does not apply to motor vehicles which are not required by federal law to be equipped with safety belts.

J. A person who has successfully met the minimum required training standards for installation of child restraint devices established by the National Highway Traffic Safety Administration of the United States Department of Transportation, who in good faith installs or inspects the installation of a child restraint device shall not be liable for any damages resulting from any act or omission related to such installation or inspection unless such act or omission was the result of the person's gross negligence or willful misconduct. (Reference to T.C.A. § 55-9-603).

K. This section does not apply to local, state or federal law enforcement officers who are engaged in the performance of their official duties.

(Code 1967, § 23-36; Code 1985, § 21-23.1; Ord. No. 3287, § 1, 4-5-1983; Ord. No. 3557, § 1, 6-17-1986; Ord. No. 5059, § 1(part), 2004; Ord. No. 5084, § 1(part), 2004)

State law reference—Similar provisions, T.C.A. § 55-9-602.

Sec. 11-36-2. Use of safety belts in passenger vehicles.

A. *Definitions.* The following terms as used in this section shall have the following meaning:

Passenger car or *passenger motor vehicle* means any motor vehicle with a manufacturer's gross vehicle weight rating of 10,000 pounds or less, that is not used as a public livery conveyance for passengers. "Passenger motor vehicle" does not apply to motor vehicles which are not required by federal law to be equipped with safety belts.

B. *Violations, penalties and applicability.*

1. No person shall operate a passenger motor vehicle in this city unless such person and all passengers are restrained by a belt at all times the vehicle is in forward motion.
2. The provisions of this section shall apply only to the operator and all passengers occupying the front seat of a passenger motor vehicle. If the vehicle is equipped with a rear seat which is capable of folding, the provisions of this section shall only apply to front seat passengers and operator when the back seat is in the fold down position.
3. Violation of any provision of this section is declared to be a misdemeanor, and any operator of a passenger motor vehicle convicted of a

violation hereunder shall be fined $25.00 for each person in the passenger motor vehicle failing to use a seat belt as provided in this subsection.

4. Revenues collected (less than two percent of the revenues which shall go to the city clerk's office to defray the cost of collecting the fines) under this subsection, shall be paid to the Memphis and Shelby County Health Department to be designated for child restraint seats for the indigent; provided that any funds remaining unused for such purpose, after the Memphis and Shelby County Health Department has made every effort to distribute such child restraint seats, may be used for other health promotion initiatives as identified by the health director.

5. Notwithstanding the provisions of this section, any and all revenues derived from the penalties imposed herein shall be independent of and in addition to the city's contribution pursuant to the amended and restated contract for joint funding of the Memphis and Shelby County Health Department as amended on December 22, 1999, and first amendment to the amended and restated contract for joint funding of the Memphis and Shelby County Health Department, as amended on March 27, 2000.

(Code 1985, § 21-23.2; Ord. No. 4264, § 1, 6-14-1994; Ord. No. 4982, § 1, 12-17-2002; Ord. No. 5059 § 1(part), 2004)

State law reference—Similar provisions, T.C.A. § 55-9-601.

Sec. 11-36-3. Transportation of children in truck beds.

A. No person shall transport on city roads or state highways a child under 12 years of age in the bed of a truck with a manufacturer's ton rating not exceeding three-quarter ton and having a pickup body style.

B. This section does not apply:

1. To a person transporting such child in the bed of such vehicle when such vehicle is being used as part of an organized parade, procession, or other ceremonial event, and when such vehicle is not exceeding the speed of 20 miles per hour; or

2. When a child being transported is involved in agricultural activities.

C. A violation of this section is a Class C misdemeanor, subject to a $50.00 fine.

(Ord. No. 5307, § 1(21-23.3), 5-19-2009)

CHAPTER 11-40. STOPPING, STANDING AND PARKING GENERALLY

Sections:

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Sec. 11-40-2. Prohibited in specified places.
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Sec. 11-40-28. Claims for damaged booting devices—Presumption on registered owner.
Sec. 11-40-29. Parking permit program for neighborhoods.

Sec. 11-40-1. Obedience to parking signs.

The owner or operator of any vehicle shall obey the instructions of any official parking sign applicable thereto placed in accordance with this title, and other traffic ordinances of the city, unless otherwise directed by a police officer.
(Code 1967, § 23-242; Code 1985, § 21-135; Ord. No. 3186, § 1, 10-20-1981)

Sec. 11-40-2. Prohibited in specified places.

A. No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic-control device, in any of the following places:

1. On a sidewalk or between the curb and an adjacent sidewalk;
2. More than 12 inches from the curb;
3. In front of a public or private driveway;
4. Within an intersection;
5. Within 15 feet of a fire hydrant;
6. On a crosswalk;
7. Within 20 feet of a crosswalk at an intersection, unless otherwise designated by markers or parking meters;
8. Within 30 feet upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of a roadway;
9. Within 50 feet of the nearest rail of a railroad crossing;
10. Within 20 feet of the driveway entrance to any fire station and, on the side of a street opposite the entrance to any fire station, within 75 feet of such entrance, when properly signposted;
11. Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;
12. On the roadway side of any vehicle stopped or parked at the edge or curb of a street;
13. Upon any bridge or other elevated structure upon a street or within a street tunnel;
14. Any place where official signs prohibit parking;
15. So as to obstruct access to any United States mailbox;
16. On any part of the interstate highway system; except that vehicles may be left on the portion of the interstate not intended for travel for a period of four hours if a note is attached thereto or the hood of such vehicle is left raised indicating that an emergency situation necessitated the vehicle being left in this location.

B. No person shall move a vehicle not owned by such person into any such prohibited area or away from a curb such distance as is unlawful.
(Code 1967, § 23-219; Code 1985, § 21-136; Ord. No. 2399, § 11, 4-13-1976; Ord. No. 3109, § 1, 4-7-1981)

Sec. 11-40-3. City engineer to create and designate tow-away zones—Parking in zones—Enforcement.

A. The city engineer is authorized to create and designate certain portions of public streets as tow-away zones.

B. It is unlawful for any person to park a vehicle within such designated areas, except as otherwise provided by law.

C. Any vehicle parked within such zones shall be subject to removal by the police services division at the expense and risk of the owner of the vehicle.

D. Section 11-60-1 shall be applicable with respect to the presumption of ownership.
(Code 1967, § 23-4.1; Code 1985, § 21-137; Ord. No. 2138, § 1, 10-1-1974; Ord. No. 3586, § 16, 9-2-1986)

Sec. 11-40-4. Prohibited for certain purposes.

No person shall stand or park a vehicle upon any roadway for the principal purpose of:

A. Displaying it for sale or rent;

B. Washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.

(Code 1967, § 23-220; Code 1985, § 21-138;)

Sec. 11-40-5. Obstructing traffic prohibited.

A. No driver shall stop, stand or park a vehicle abreast of another vehicle parallel to the curb or in any other manner so as to interrupt or interfere with the

passage of other vehicles on any street except in the case of public emergency or when directed by a police officer.

B. It is unlawful to leave any vehicle standing in any street when such vehicle constitutes a hazard to public safety or an obstruction to traffic.
(Code 1967, § 23-221; Code 1985, § 21-139)

Sec. 11-40-6. Opening door of parked or standing vehicle.

Whenever any vehicle is standing or parked upon or beside a roadway, no person shall open any door of such vehicle on that side of the vehicle nearest the flow of traffic on such street, whenever the opening of such door shall constitute a hazard or obstruction to vehicles moving on the street in a lawful manner.
(Code 1967, § 23-227; Code 1985, § 21-140)

Sec. 11-40-7. Unattended vehicles.

A. No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key and effectively setting the brake thereon and, when standing upon any grade, turning the front wheels to the curb or side of the street.

B. The portion of this section pertaining to the locking of or removal of keys from the vehicle shall not apply when a vehicle is parked upon an off-street parking facility where an attendant is present.

C. It shall be the duty of every person driving or in charge of any vehicle, when parking or stopping such vehicle, to secure such vehicle so that it shall not roll unattended into or upon any public street or alley.
(Code 1967, § 23-222; Code 1985, § 21-141)

State law reference—Similar provisions, T.C.A. § 55-8-162.

Sec. 11-40-8. Stopping with left side to curb.

No vehicle shall stop with its left side to the curb; provided, however, that this prohibition shall not apply to one-way streets when such stopping has been authorized by the city engineer and is not prohibited.
(Code 1967, § 23-223; Code 1985, § 21-142; Ord. No. 3586, § 17, 9-2-1986)

State law reference—Similar provisions, T.C.A. § 55-8-161.

Sec. 11-40-9. No-parking zones.

The city engineer is authorized to designate spaces upon either side of any street in the city where vehicles shall not be parked at any time or to designate spaces where parking may be limited to certain times or places, as indicated by the placing of official signs. The city engineer shall locate these spaces with regard to public convenience and to meet the conditions of traffic.

It is unlawful for any person to park any vehicle in violation of any sign or marking erected or maintained under this section.
(Code 1967, § 23-224; Code 1985, § 21-143; Ord. No. 3586, § 18, 9-2-1986)

Sec. 11-40-10. Angle parking.

The city engineer shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets. Upon those streets which have been signed or marked for angle parking no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.
(Code 1967, § 23-225; Code 1985, § 21-144; Ord. No. 3586, § 19, 9-2-1986)

Sec. 11-40-11. Parking vehicles in residential zone.

A. It is unlawful for any person to park, or knowingly permit, any vehicle as defined in this title, on any residential street in the city for a period of time longer than 24 hours consecutively.

B. No truck, truck trailer, or tractor or bus, as defined in this title, but specifically excluding pickup trucks with two axles and passenger vans and sport utility vehicles, shall be parked or left unattended on any public street located within a residential district and/or zone, as defined in the Memphis and Shelby County Unified Development Code, except while actively being loaded or unloaded, or while such vehicle is being used in connection with any work or service being performed on adjacent property.

C. No recreation vehicle shall be parked or left unattended on any residential street or in any residential district, except while actively being loaded or unloaded.

D. The division of police services is authorized to remove any vehicle found parked in violation of this section when such vehicle constitutes a traffic hazard or

obstruction of traffic. Such vehicle may be impounded by the division of police services in accordance with the provisions of section 11-40-26.

E. Violation of this section shall be a misdemeanor punishable as provided in section 1-24-1. Proof of ownership, as identified on registration records maintained by the Tennessee Department of Safety, or similar agency of other relevant state and as certified by the city court clerk's office pursuant to section 11-8-4(C), of any vehicle found parked in violation of this section shall be prima facie evidence that the vehicle, at the time of the violation, was operated and used by the owner, or by the owner's employee or agent while acting in the scope of their employment or agency and with the owner's authority, consent and knowledge.
(Code 1967, § 23-238; Code 1985, § 21-145; Ord. No. 1639, § 1, 2-27-1973; Ord. No. 3790, § 1, 8-30-1988; Ord. No. 4906, § 1, 11-20-2001; Ord. No. 4959, 9-3-2002; Ord. No. 5002, 6-3-2003)

Sec. 11-40-12. Parking of nonmotorized equipment or vehicles in residential zone.

A. It is unlawful for any person to park or store any nonmotorized vehicle or equipment, such as, but not limited to, campers, trailers, boats, or other recreational type equipment, on any public street located within a residential district and/or zone, as defined in the Memphis and Shelby County Unified Development Code, in the city.

B. Such nonmotorized vehicles or equipment may be removed by the police division in accordance with the provisions of section 11-40-26 relating to the impounding of vehicles obstructing the streets.

C. Violation of this section shall be a misdemeanor punishable as provided in section 1-24-1.
(Code 1967, § 23-239; Code 1985, § 21-146; Ord. No. 2136, § 1, 10-1-1974; Ord. No. 3790, § 2, 8-30-1988; Ord. No. 4960, 9-3-2002; Ord. No. 5002, 6-3-2003)

Sec. 11-40-13. Storage of property on public streets and right-of-way unlawful.

A. It is unlawful for any person to use a public street or public right-of-way along the street, for the purpose of storing any item, except where otherwise lawfully provided.

B. "Storage" is defined, for the purposes of this section, as the placing of any property in such public street or right-of-way in such a manner as to preclude the use of such street or right-of-way by the general public or the normal flow of vehicular or pedestrian traffic.
(Code 1967, § 23-240; Code 1985, § 21-147; Ord. No. 2262, § 1, 6-10-1975)

Sec. 11-40-14. Parking, loading and unloading in alleys.

It is unlawful for any person to park any vehicle in any alley or to place or permit any obstruction in the same at any time; provided that, this section shall not apply to trucks and wagons that are actually engaged in loading or unloading; provided, further, that no such vehicle shall be left standing so as to obstruct ingress and egress to and from an alley. All loading and unloading activity permitted in alleys shall be performed in accordance with section 11-40-18.
(Code 1967, § 23-226; Code 1985, § 21-148; Ord. No. 2838, § 1, 3-12-1979)

Sec. 11-40-15. Parking in handicapped spaces.

No person shall stop, stand or park a vehicle in a parking space clearly designated as being reserved for the physically handicapped, as provided for in T.C.A. §§ 55-21-104 and 105, unless the person driving the vehicle is physically handicapped or parking such vehicle for the benefit of a physically handicapped passenger. A vehicle parking in such space shall display a distinguishing placard, license plate, disabled veterans' license plate, or distress flag or card, under the provisions of T.C.A. title 55, chapter 21. A person who parks a vehicle in violation of this section shall be subject to a fine of not more than $25.00 for a first offense, or as provided in section 1-24-1 for each subsequent offense. This section shall be enforceable on public property or on private property where a business, firm or other person transacting business with the public from a permanent location has provided specially marked parking spaces for the exclusive use of handicapped drivers or passengers, as set forth in T.C.A. title 55, chapter 21.
(Code 1967, § 23-219.1; Code 1985, § 21-148.1; Ord. No. 3323, § 1, 8-2-1983)

State law reference—Similar provisions, T.C.A. § 55-21-108.

Sec. 11-40-16. Parked vehicles restricting or encroaching upon designated handicapped spaces.

A person who parks a vehicle in violation of this section, as hereinafter set out in subsections A, B or C of this section shall be subject to a fine of not more than $50.00, for each violation, or as provided in section 1-24-1. This section shall be enforceable on public property or on private property where a business, firm or other person transacting business with the public from a permanent location, has provided specially marked parking spaces for the exclusive use of handicapped drivers or passengers, as set forth in T.C.A. § 55-21-101 et seq., and T.C.A. § 68-120-204. Notwithstanding any other provision set out in this Code, a $50.00 penalty shall be automatically assessed with each violation, as authorized under T.C.A. §§ 55-21-108(a) and 55-21-108(b).

A. *Vehicles parked adjacent to handicapped spaces.* No person shall stop, stand or park a vehicle in any space immediately adjacent to a designated handicapped space, so as to restrict, or unreasonably restrict, a person confined to a wheelchair from exiting or entering a motor vehicle properly parked within such designated handicapped parking space.

B. *Vehicles parked so as to encroach in to handicapped spaces.* No person shall stop, stand or park a vehicle in any space immediately adjacent to a designated handicapped space, so that a portion of such vehicle encroaches into a handicapped parking space in a manner which restricts, or reasonably could restrict, a person confined to a wheelchair from exiting or entering a motor vehicle properly parked within such handicapped parking space.

C. *Vehicles parked so as to prevent use of curb cut or ramp by handicapped person.* No person shall stop, stand or park a vehicle in a manner which restricts, or reasonably could restrict, a mobility impaired person, or a physically handicapped person, from using a curb cut or ramp designed to provide access to a sidewalk or parking area.

(Code 1985, § 21-148.2; Ord. No. 4263, § 1, 6-14-1994; Ord. No. 4296, § 1, 12-6-1994)

Sec. 11-40-17. Loading and unloading zones—Generally.

A. Any person desiring to have a loading or unloading zone established on any street or public way shall first obtain the written consent of the owners of the property abutting on the street where such loading and unloading zone is sought to be placed, or if the applicant for such loading and unloading zone is the abutting property owner, then his or her application shall so state, and he or she shall then make application to the city engineer for the establishment of such loading and unloading zone. If, in the judgment of the city engineer, the establishment of such loading and unloading zone will serve a substantial public need and will not interfere with nor present a hazard to the traffic on the street where such loading and unloading zone is sought to be established, the city engineer shall, upon payment of the fees herein prescribed, issue such permit and erect the necessary standard official signs and markings to properly designate such loading and unloading zone. Such permit shall not be effective at any location where parking is or may hereafter be prohibited, and shall be inoperative during any time parking is or hereafter may be prohibited, either permanently or temporarily. Such permit shall be subject to annual renewal, and may be revoked at any time the public welfare and safety requires the use of such street space for moving traffic, subject to refund to the applicant of the pro rata portion of the annual fee paid.

B. Any person requesting the establishment of a loading and unloading zone shall pay an installation fee, based on reimbursement to the city of the cost of investigating the application and installing, inspecting and maintaining the signs and markings, such installation fee to cover the first year's maintenance. Upon each annual renewal of the permit, the person requesting the same shall pay an annual maintenance fee, based on reimbursement to the city of the cost of inspecting and maintaining the signs and markings. Where the loading and unloading zone is installed in a parking meter space, the installation and annual renewal fee shall also include reimbursement to the city for loss of revenue from meters displaced by such loading and unloading zone. The installation and annual maintenance fees shall be established and reviewed annually by the city engineer and shall become effective upon posting for public inspection in the permit section of the department of the city engineer, and shall be applied on a uniform basis.

C. All applications under this section shall be filed with and fees paid through the permit section of the department of the city engineer. No permit shall be issued or renewed nor shall any zone be established or maintained unless the annual fee has been paid to the city. It is unlawful for any person to remove, alter or

deface any sign or other marking so installed, or to place any other or additional signs or markings on the public right-of-way.
(Code 1967, § 23-228; Code 1985, § 21-149; Ord. No. 3586, § 20, 9-2-1986)

Charter reference—Authority to establish loading and unloading zones, § 744.

Sec. 11-40-18. Loading and unloading zones—Use.

A. No person shall stop, stand or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of property in any place marked as a loading zone. The stop for loading and unloading of property shall not exceed 30 minutes, unless visible and continuously active loading or unloading of property cannot be completed within this period.

B. The driver of a vehicle may stop temporarily at a loading zone for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any vehicle which is waiting to enter or about to enter such zone to load or unload property.

C. The front and rear hazard signals of any vehicle stopped, standing or parked in a public alley or marked loading zone shall be continuously flashed. If vehicle is not equipped with hazard signals, the left side turn signal shall be so operated.
(Code 1967, § 23-229; Code 1985, § 21-150; Ord. No. 2838, § 1, 3-12-1979)

Sec. 11-40-19. Bus stops.

A. The operator of a bus shall not stop, stand or park such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage, other than at a coach stop designated by the city engineer, except in case of an emergency.

B. The operator of a bus shall enter a coach stop on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of such vehicle not further than 18 inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.

C. No person shall stop, stand or park a vehicle other than a bus in a coach stop, when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus waiting to enter or about to enter such stop.
(Code 1967, § 23-230; Code 1985, § 21-151; Ord. No. 3586, § 21, 9-2-1986)

Sec. 11-40-20. Taxicab stands.

A. Taxicab stands shall be designated by the director of public service upon the director receiving concurrence from the city engineer. All taxicab stands are to be available for the use of all licensed taxicabs operating within the city on a basis of the driver of the first taxicab arriving at a vacant stand having the right to occupy the stand, except for the stands located at the Memphis International Airport. No stands shall be designated which will interfere with or present a hazard to the traffic on the street where the stand is to be located. The city engineer shall place the necessary signs and markings at the locations of the stands under the direction of the director of public service. It is expressly provided that passengers may select any taxicab at such stands regardless of the taxicab's position in the line at such stand.

B. While in service, the operator of a taxicab shall not stand or park such vehicle upon any street other than at a taxicab stand so designated. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers or packages or the delivery of packages. Where parking for this designated purpose is upon a metered space, the driver shall pay the appropriate fee. Nothing in this section shall deemed to apply to regularly scheduled limousine service.

C. The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than in a taxicab stand designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place the purpose of and while actually engaged in the expeditious loading or unloading of passengers.

D. No person other than the owner of a taxicab stand permit, his or her agent, servants or employees, shall occupy a taxicab stand so designated by the director of

public service, except that the driver of a passenger vehicle may temporarily stop therein for the purpose and while actually engaged in loading or unloading passengers when such stopping does not interfere with any taxicab waiting to enter or about to enter such stand.
(Code 1967, § 23-231; Code 1985, § 21-152; Ord. No. 1782, § 1, 12-11-1973; Ord. No. 3586, § 22, 9-2-1986)

Charter reference—Authority to establish taxicab stands, § 744.

Sec. 11-40-21. Regulation of parking on city property.

The city engineer shall have authority to regulate or prohibit the parking of vehicles upon any property owned by the city.
(Code 1967, § 23-233; Code 1985, § 21-153; Ord. No. 3586, § 23, 9-2-1986)

Sec. 11-40-22. Attendants at off-street parking facilities.

Owners and operators of off-street parking facilities are required to keep attendants on duty at all times when automobiles or other motor vehicles are stored thereon with the lock keys therein or in the custody of the owners or proprietors; provided, however, that this section shall not apply to off-street parking facilities where the owners or operators of automobiles or motor vehicles parked thereon lock their own cars and retain the keys.
(Code 1967, § 23-234; Code 1985, § 21-154)

Sec. 11-40-23. Vehicle owner not to permit parking violations.

It is unlawful for any person to cause, allow, permit or suffer any vehicle registered in the name of such person to be parked in such manner as to violate the terms and provisions of this title.
(Code 1967, § 23-232; Code 1985, § 21-155)

Sec. 11-40-24. Duty of police relative to illegally parked vehicles—Ticket for parking violations.

Whenever any motor vehicle without a driver is found parked or stopped in violation of any of the restrictions imposed by this title or by state law, the officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a traffic citation ticket, on a form provided by the city, for the driver to answer to the charge against him or her within 15 days, during the hours and at a place specified in the ticket.
(Code 1967, § 23-235; Code 1985, § 21-156; Ord. No. 1874, § 1, 10-9-1973)

Sec. 11-40-25. Presumption in prosecutions for parking violations.

A. In any prosecution charging a violation of any provision of this title or other law or regulation governing the stopping, standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such law or regulation, together with proof that the defendant named in the complaint was, at the time of such parking, the registered owner of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the point where, and for the time during which, such violation occurred.

B. This presumption shall not apply in instances where the vehicle involved was rented or leased. In these instances, the sworn statement of the lessor or renter that the person named in the statement was, at the time of such parking, the person to whom such vehicle was rented or leased, shall constitute in evidence a prima facie presumption that the person to whom the vehicle was rented or leased was the person who parked or placed such vehicle at the point where, and for the time during which, such traffic violation occurred.
(Code 1967, § 23-236; Code 1985, § 21-157; Ord. No. 2205, § 1, 2-4-1975)

Sec. 11-40-26. Impounding vehicles obstructing street.

A. In order to remove all obstructions and to provide free use of the streets and alleys for the fire and police divisions and for the public, whenever a motor vehicle is wrecked or abandoned in the street or is found parked in violation of any of the provisions of this title, and it becomes necessary, in the opinion of the police division, to remove such vehicle from the street as an obstruction, such vehicle shall be towed or driven to a designated place of storage and stored until the owner claims the vehicle and gives satisfactory evidence of ownership. The police division is authorized to advertise for bids and to enter into a contract with garage or storage

company for fixed charges for pulling in and storing such vehicles and to provide by such contract that the garage or storage company shall look to the owner of the vehicle so pulled in or stored for the stipulated compensation.

B. Where the police division elected to pull in and store such vehicle a charge shall be made therefor as follows:

1. For pulling same in: $30.00;

2. For storing same, per day: $5.00.

For the purpose of fixing these charges, a day shall begin at 12:01 a.m. Nothing herein shall alter or amend the rights and privileges provided in chapter 599 of the Private Acts 1939, as amended, regarding the disposition of property held by the police division which remains unclaimed for a period of 30 days.
(Code 1967, § 23-237; Code 1985, § 21-158; Ord. No. 1353, § 1, 7-5-1972; Ord. No. 1433, § 1, 10-24-1972; Ord. No. 3137, § 1, 7-7-1981)

Charter references—For Act referred to in text, see § 495 et seq.; authority to move and hold illegally parked vehicles, § 742.

Sec. 11-40-27. Impoundment and/or immobilization of vehicles with outstanding traffic ticket violations.

A. Any unattended motor vehicle found parked at any time upon any public thoroughfare, street, alleyway or other public property of the city against which there is either a traffic citation or traffic summons that has not been paid 60 days after final adjudication may, by or under the direction of an officer or a member of the police division, either by towing or otherwise, be removed or conveyed to and impounded in any place designated by the director of police. In lieu of towing and impoundment, such vehicle may be immobilized in such manner as to prevent its operation, except that no such vehicle shall be immobilized by any means other than by the use of a device or other mechanism that will cause no damage to such vehicle unless it is moved while such device or mechanism is in place. The city shall not be liable for any damage to such vehicle while such vehicle is immobilized by boot, towed or impounded.

B. The owner of a vehicle which has been immobilized by the installation of a boot or other similar device shall be required to pay a fee of seventy-five dollars ($75.00) in addition to any forfeiture amount or bond. If a vehicle which has been immobilized by a booting device is later impounded by tow-in, the owner of the vehicle shall be required to pay towing and storage fees, in addition to any forfeiture amount or bond, but shall not be required to pay the booting fee.

C. It shall be the duty of the officer or a member of the police division removing or immobilizing such motor vehicle, or under whose direction such vehicle is removed or immobilized, to inform in writing, as soon as practicable, the owner of an impounded or immobilized vehicle of the nature and circumstances of the prior unsettled traffic citation(s), traffic summons(es), or warrant(s), for which, or on account of which, such vehicle was impounded or immobilized. The notice shall also inform the owner that if he or she feels that the vehicle was towed, impounded or immobilized in error, he or she may arrange for a prompt hearing before the city claim agent, or his or her designee, by contacting him or her during normal business hours. The notice shall also state that the owner has a right to present evidence in his or her own behalf, to have a representative, and to have a decision that states its basis in writing. The city claim agent, or his or her designee, shall hold a hearing within 24 hours after request and shall have the authority to immediately grant a free release or refund towing, booting and/or storage fees in those cases when a motor vehicle has been towed, impounded or immobilized in error. Any decision of the city claim agent, or his or her designee, concerning these matters may be appealed within ten days to the city attorney, or his or her designee. In any case involving immobilization of a vehicle pursuant to this section, such member or officer shall cause to be placed on such vehicle, in a conspicuous manner, notice sufficient to warn any individual to the effect that such vehicle has been immobilized and that any attempt to move such vehicle might result in damage to such vehicle.

D. Unless released pursuant to subsection C of this section, if a warrant has not been issued, the owner of such impounded or immobilized motor vehicle, or other duly authorized person, shall be permitted to repossess or secure the release of the vehicle upon the depositing of the forfeiture amount prescribed by ordinance for each violation for which there is a traffic citation or traffic summons outstanding, according to the standards set forth in subsection A of this section, and payment of towing, booting and/or storage fees incurred by the immobilization or impounding. If a warrant has been

issued, then posting of the bond required by the court clerk and payment of any towing, booting and/or storage fees due shall be sufficient to obtain the release of the vehicle. Deposits and payments of boot fees are to be made at the office of the city court clerk, or at other sites as determined by the clerk. Payments of towing and/or storage fees shall be made at the place where the vehicle was impounded.
(Code 1967, § 23-241; Code 1985, § 21-159; Ord. No. 2433, § 1, 6-1-1976; Ord. No. 2482, § 1, 8-10-1976; Ord. No. 2858, § 1, 5-8-1979; Ord. No. 2920, §§ 1, 2, 9-25-1979; Ord. No. 3201, § 1(3), 5-18-1982; Ord. No. 5428, § 1, 12-6-2011)

Sec. 11-40-28. Claims for damaged booting devices—Presumption on registered owner.

In the event that a boot or similar vehicle immobilization device, which was properly and lawfully affixed to a vehicle, is damaged or destroyed as a result of attempts to remove it from the vehicle or attempts to drive the vehicle, proof of ownership of such vehicle shall be prima facie evidence that such damage occurred through actions of the owner of the vehicle or with his or her authority, consent and knowledge.
(Code 1967, § 23-241.1; Code 1985, § 21-160; Ord. No. 3201, § 1(3), 5-18-1982)

Sec. (. Parking permit program for neighborhoods.

A. *Definitions*. For the purpose of this section, the following words and phrases are defined and shall be construed as hereinafter set out, unless it shall be apparent from the context that they have a different meaning:

Nonresident vehicle shall mean a motor vehicle parked in a residential area which is not owned, leased or otherwise controlled by:

a. A resident who lives in the area designated as a permit parking district.

b. A guest visiting residents living in the area designated as a permit parking district.

Resident means a person who lives in a dwelling unit located in a permit parking district.

Absentee landlord means an owner of residential property who does not live on the property. Such property shall be located in a permit parking district.

Guest means a person who is visiting in a dwelling located in a permit parking district.

Permit parking district means a residential area with streets and boundaries designated by a city council resolution wherein vehicles displaying a valid permit shall be exempt from parking restrictions established pursuant to this section.

B. *Designation of permit parking district*. Permit parking districts may be designated or dissolved, by the city engineer.

The city engineer shall consider for designation as permit parking districts those areas satisfying the criteria established in this section for said districts.

If the city engineer determines that the criteria, rules and procedures required in this section have been met, it may establish permit parking districts with appropriate boundaries and parking restrictions.

Motor vehicles displaying a valid parking permit may be parked exempt from the parking restrictions established pursuant to the authority of this section in the permit parking district for which the permit is issued.

C. *Designation process and criteria*. The city engineer shall prepare rules and procedures for the designation of permit parking districts setting forth the petition process (requiring approval by 75 percent of property owners), the hearing and notification processes, reporting requirements, criteria for designation of a permit parking district and for the implementation and administration of this section.

D. *Issuance of permits.* Parking permits for permit parking districts shall be issued by the city engineer.

1. Each annual parking permit shall be designated to state or reflect thereon the particular permit parking district, the license number of the vehicle for which the permit is issued and the date on which the permit shall expire.

2. No more than two annual parking permits shall be issued to any one dwelling unit.

3. Parking permits may be issued only to residents of the permit parking district.

4. Year-long visitor permits shall be issued as provided in subsection (1).

5. Applicants for any parking permits are required to clear all unpaid parking citations prior to the issuance of new permits or renewals for annual or visitor permits.

E. *Posting of permit parking area.* Upon designation of a permit parking district, the city engineer shall cause appropriate signs to be erected in the district, indicating prominently thereon the parking limitation, period of the day for its application, and the fact that motor vehicles with valid permits shall be exempt therefrom. Parking restriction signs may be posted on school and church frontages located within the district.

F. *Permit parking exemption*.

1. A motor vehicle on which is displayed a valid annual or visitor parking permit, as provided for herein, shall be permitted to be parked on any block within the permit parking district for which it is issued without being limited by parking restrictions established pursuant to this section. Except as provided below, all other motor vehicles parked within a permit parking district shall be subject to the parking restrictions adopted as provided in this section as well as the penalties provided for herein.

2. A parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated permit parking district.

3. The following vehicles shall be exempt from parking restrictions established pursuant to this section:

    a. A motor vehicle, identified as owned by or operated under contract to a utility, whether privately, municipally or publicly owned and when used in the construction, operation, removal, or repair of utility property or facilities or engaged in authorized work in the designated permit parking district.

    b. A motor vehicle when identified as owned by or operated under contract to a governmental agency, when used in the course of official government business.

    c. Vehicles parked directly adjacent to a property which has a primarily commercial use.

G. *Exemption of commercial vehicles.* No person shall without a permit therefore park or leave standing any commercial vehicle or trailer in a permit parking district in excess of the parking restrictions authorized pursuant to this section, except

1. While loading or unloading property; or

2. When such vehicle is parked in connection with, or in aid of, the performance of a service to or on a property in the block in which such vehicle is parked.

H. *Application for and duration of permit.* Except as otherwise provided, each parking permit shall be valid for a period not to exceed one year. Permits may be renewed annually upon reapplication in the manner required by the city engineer. Each application for a parking permit shall contain information sufficient to identify the applicant, his residence address or address of real property owned or leased within a permit parking district, the license number(s) of the motor vehicle(s) for which application is made, and such other information as may be deemed relevant by the city engineer. Permits may be issued only for vehicles registered in the City of Memphis.

I. *Annual permit fees.* The fee for an annual parking permit shall be $50.00. The fee for an annual parking permit shall be prorated by the month for the unexpired period of the district, but in no case less than $15.00. Upon the permittee's change of place of residence, change of vehicle or damaged permit, the permittee shall surrender the permit to the city engineer before a replacement permit can be issued. If the permit is lost or stolen, the city engineer shall be notified immediately. The city engineer shall collect a fee of $15.00 for replacement of lost, stolen or transferred permits and the replacement permit shall expire on the same day as the original permit. In the event a permittee moves from one of the permit parking districts to another permit parking district, the city engineer shall collect a fee of $15.00 for the transfer of the permit. The permits so transferred shall expire on the same day as do all permits in the new district. No refund shall be made for any unused portion of the permit's duration.

J. *Rules and regulations.* The city engineer shall have authority to promulgate and administer rules to implement and enforce the program and to implement the issuance of permit parking districts and the collection of fees for these permits.

K. *Penalty provisions.*

1. Unless exempted pursuant to this section, no person shall stand or park a motor vehicle in violation of any parking restrictions established pursuant to this section.
2. No person shall falsely represent himself or herself as eligible for a parking permit or furnish false information in an application for a parking permit to the city engineer.
3. No permit issued pursuant to this section shall thereafter be assigned, transferred or used for any consideration, monetary or otherwise.
4. No person shall copy, produce or create a facsimile or counterfeit parking permit; nor shall any person use or display a facsimile or counterfeit permit parking district permit.
5. The permit or permits of any person who after a hearing has been found by the city engineer to have violated any of the provisions of this ordinance shall be revoked by the city engineer and no new permit shall be issued to that person or household for a period of one year. Such person upon written notification of such revocation, shall surrender the permit or permits to the department within 15 days. Use of a revoked parking permit shall be subject to the penalty provisions of subsection K(1).

L. *Visitor permits.* Any resident eligible for an annual parking permit and whose residence has frontage or side frontage on a block posted within the permit parking district may apply to the city engineer for an annual visitor parking permit for the use of visitors to the person's residence. The owners of a residence under construction and absentee landlords may purchase a maximum of four visitor permits for their personal use or for the use of construction service personnel. The city engineer shall collect a fee of $25.00 for each visitor permit issued. No more than four visitor permits shall be issued for any one dwelling at any one time. These permits shall be valid only on the block or blocks for which they are issued and for a period not to exceed one year. Visitor permits can be replaced at a prorated cost when lost or stolen if the applicant submits written documentation of actual loss to the city engineer.

M. *Budget neutral program provisions.* Fees will be revisited each year by the city engineer and a recommendation for fee adjustment brought before city council that will allow for the permit parking program to be self-supporting and continue to operate without a shortfall.

N. *Restricted to residential districts with excessive parking demand.* Section 11-40-29 shall only be in effect for neighborhoods that have a demonstrated need for permit parking according to the city engineer. Additional neighborhoods may be added to this ordinance by city council resolution upon recommendation by the city engineer. No eligible street shall be subject to permit parking until they have been designated as such in accordance with subsection (B). Areas eligible to be designated as permit parking districts include:

1. The east side of N. Main Street, between Saffarans Avenue and Looney Avenue.

(Ord. No. 5550, 8-5-2014; Ord. No. 5933, § 1(21-136.1), 4-8-2025)

CHAPTER 11-42. VALET PARKING

Sections:

Sec. 11-42-1. Definitions.
Sec. 11-42-2. Permits.
Sec. 11-42-3. Conditions of valet parking permits.
Sec. 11-42-4. Cancellation of permit.
Sec. 11-42-5. Valet parking operations.
Sec. 11-42-6. Employees.
Sec. 11-42-7. Violations.
Sec. 11-42-8. Enforcement.
Sec. 11-42-9. Appeals.

Sec. 11-42-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Permit or *valet parking permit* means the permit issued by the division of engineering allowing a person to conduct a valet parking service.

Valet operator means:

1. A person whose business is served by valet parking service;
2. A person who provides valet parking service; and
3. Any employee or agent of a person described in (1) or (2) who provides, or participates in the provision of valet parking service.

For purposes of this chapter, valet operator shall not mean the City of Memphis or a person acting on behalf of the City of Memphis.

Valet parking service means accepting possession of a vehicle for the purpose of parking the vehicle for the operator or retrieving a parked vehicle and returning it to the operator, regardless of whether a fee is charged. (Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-2. Permits.

A. *Permit required.* No valet parking service is permitted unless a permit allowing such activity has been issued pursuant to this section. The City of Memphis through its division of engineering shall issue parking permits to valet operators to conduct their operations as a commercial enterprise or in furtherance of a commercial enterprise. No valet parking shall occur without the valet operator securing a valet parking permit from the division of engineering, except that parties conducting or offering valet parking services on a short-term, infrequent and/or occasional basis in connection with private parties or special events outside the Central Business Improvement District (CBID) shall not be required to obtain a permit. A separate permit is required for each location where valet parking services are provided. Valet operators engaged in valet parking under contract or otherwise on behalf of others, except as excepted above, shall be required to obtain a separate permit. Permits will be issued only for locations where valet parking would not be detrimental to the public safety, health and welfare of the inhabitants of the City of Memphis and only after approval of the city engineer.

B. *Permit application.* An application for a valet parking permit shall be made in writing on a form prescribed by the city engineer and submitted to the city engineer's office along with payment of the permit fee in the amount of $50.00. Failure to provide such permit fee upon the submission of the application shall result in a rejection of the application. All permit fees will be deposited into the parking fee revenue fund of the City of Memphis.

In addition to the permit fee, the application must contain the following information:

1. The name, address, and telephone number of the business(es) to be served by the valet parking service and, if separate from the business to be served, the owner/operator of the valet parking service;
2. A written justification of the need for valet parking service by the business to be served;
3. A scale drawing of the location and limits of the proposed valet parking service activities, including an identification of any on-street parking spaces or loading zones to ensure that these areas would not be affected by the activities;
4. An operation plan that includes the days and times when valet parking services will be provided and the location where valet customer vehicles will be parked;
5. An indemnity and release form as prescribed by the city engineer and approved by the city attorney;
6. Proof of insurance as required by the city engineer;
7. Any other information reasonably required by the city engineer; and
8. Payment of a non-refundable application fee.

The permit application and fee requirements of this section shall also apply to permit renewals.

C. *Permitting criteria.* The city engineer shall issue or deny a valet parking permit taking into consideration the following factors:

1. Whether the application is complete;
2. The extent to which the valet parking service might unreasonably disrupt the flow of pedestrian and vehicular traffic, including the location of the proposed valet parking service in relationship to traffic control devices;
3. The extent to which the valet parking service might unreasonably interfere with or impinge upon on-street parking;
4. The proximity of traditional on-street and off-street parking to the business to be served by the valet parking service;
5. The proximity and relationship to any other previously permitted valet parking service; and
6. Payment of the permit fee.

A permit shall specify: (i) the business served; (ii) the location and limits of the valet parking service activities; (iii) the days and times when the valet parking

service is permitted and the location where valet customer vehicles will be parked; (iv) any additional restrictions or requirements regarding the location or operation of the valet parking service; (v) identification tag requirements for valet operators; (vi) the permit expiration date; and (vii) any other conditions on the permit.

D. *Modification and revocation.* The city may modify or revoke a permit issued pursuant to this section at any time in the interest of the public health, welfare and safety upon violation of this chapter or the permit requirements included herein.

E. *Temporary suspension.* The city may temporarily suspend a permit issued pursuant to this section when warranted by traffic conditions or anticipated traffic conditions.

F. *No rights established.* Nothing in this chapter is intended to establish any legal right to provide a valet parking service or any legal property interest in a valet parking permit. Valet parking permits and privileges may not be transferred.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-3. Conditions of valet parking permits.

A. *Hold harmless.* Each valet parking operator applying for a permit shall execute an agreement approved by the City of Memphis City Attorney providing for the valet operator to indemnify and hold harmless the City of Memphis for any and all claims against the city resulting from the actions of the valet operator, including without limitation, claims of property damage or expenses resulting from the valet operator's violation of this chapter or any applicable ordinance.

B. *Term.* The term of each permit shall be for one year. Renewal shall be on an annual basis and shall be granted after confirmation of extension of all applicable permit requirements established in this chapter and payment of applicable fees.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-4. Cancellation of permit.

A. A valet parking permit may be canceled by the city engineer under the following circumstances:

1. The City of Memphis determines that the valet operation is creating a hazardous traffic condition and/or serious disruption of traffic flow or is otherwise inimical to the public health, safety and welfare;
2. Parking is no longer permitted in the area where valet service is provided;
3. The valet parking operator repeatedly fails to comply with the rules and regulations established by the City of Memphis and/or the provisions of this chapter or otherwise creates a situation that is inimical to the public health, safety and welfare.

B. Cancellation pursuant to subparagraph (3) of this section shall preclude the valet parking operator, a general partner, or immediate family member of the operator from being issued a valet parking permit for any location for a period of one year if the operator whose license has been canceled has any participation in the operation, management and/or maintenance of the valet parking operation(s) for which the permit application is being made.

C. When a permit is canceled by the city engineer pursuant to subsection (A) of this section, the city engineer shall immediately provide the permit holder written notice by certified mail of the cancellation and the reasons for the cancellation.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-5. Valet parking operations.

A. Valet services shall be operated in accordance with the terms of the permit approved by the city engineer. Valet service on public property shall not be permitted in any location other than for immediate loading and unloading of passengers in a zone established under sections 11-40-17 and 11-40-18 by the city engineer. Each valet service operator shall utilize an approved off-street parking facility for the parking of each valet vehicle.

B. An ADA accessible passenger loading and unloading area meeting ADA standards shall be provided.

C. Valet parking is not permitted in any alley, on-street public parking space or where otherwise prohibited by law, unless previously approved in writing by the city engineer.

D. The permit holders are responsible for reimbursing the City of Memphis for the cost of installing any signs, notices or warnings deemed necessary for the establishment of valet parking operations. Permit holders will be billed for any required installation by the division of engineering.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-6. Employees.

The valet parking operator shall require all employees who operate motor vehicles to have in their possession at the time of such operation a valid Tennessee driver's license.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-7. Violations.

A. It shall be unlawful for a valet operator to provide or engage in valet parking service without a valid valet parking permit issued pursuant to this chapter. A valet parking permit that has expired or that has been suspended or revoked is not a valid permit.

B. It shall be unlawful for a valet operator to provide or engage in valet parking service in violation of the terms and conditions of a valet parking permit issued to the valet parking service.

C. It shall be unlawful for a valet operator to block, stop or direct traffic.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-8. Enforcement.

A. The permit of any valet operator that violates this chapter shall be subject to suspension upon the first violation, and revocation upon the second violation along with the imposition of a civil penalty in the amount of $50.00.

B. All fines paid pursuant to this section will be deposited into the parking revenue fund of the City of Memphis.

C. Valet parking operators shall pay all fines and fees, including towing charges, arising in connection with a valet patron's vehicle which is in the possession of the valet parking operator at the time such fine, fee or charge is incurred. This does not preclude the valet parking operator from also being cited for violations of this chapter which resulted in the imposition of the fines and fees.
(Ord. No. 5418, § [1], 10-18-2011)

Sec. 11-42-9. Appeals.

The denial, modification, revocation, or suspension of a valet parking permit, and the issuance of civil penalties, may be appealed to the City of Memphis Transportation Board within ten days of receipt of notice of such action taken by the city engineer's office. A ruling on appeal is

subject to further review by the Shelby County courts by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the court within 60 days after notice of the decision has been sent to the appellant.
(Ord. No. 5418, § [1], 10-18-2011)

CHAPTER 11-44. PARKING METERS*

Sections:

Sec. 11-44-1. Duties of the city engineer.
Sec. 11-44-2. Installation and operation generally.
Sec. 11-44-3. Marking of and parking within metered spaces.
Sec. 11-44-4. Deposit of payment—Overtime parking.
Sec. 11-44-5. Deposit of slugs prohibited.
Sec. 11-44-6. Injuring or tampering with meters.
Sec. 11-44-7. Daily deposit of route collections required.

Sec. 11-44-1. Duties of the city engineer.

The city engineer is directed to provide for the installation, regulation, control, operation, and use of parking meters and multi-space kiosks at such locations as shall be necessary, reasonable and proper, and shall make regulations covering the time which a vehicle may be parked at such locations and the compensation to be paid for the parking of such vehicle.

The city engineer shall establish and continually update the amounts to be paid for on-street parking on a block-by-block basis to balance demand and supply with the goal of having 85 percent on-street parking occupancy on each block so that drivers may easily find short-term places to park near their destinations.
(Code 1967, § 23-243; Code 1985, § 21-176; Ord. No. 5531, § 1, 8-20-2013)

Sec. 11-44-2. Installation and operation generally.

A. *Single-space parking meters.* Single-space parking meters installed shall be placed behind and adjacent to the curb immediately adjacent to the front or rear of the individual parking meter spaces. Each single-space parking meter shall be placed or set in such a manner as to show or display by a signal that the parking meter space adjacent to such meter is or is not legally in use. Each single-space parking meter shall be installed and set to display, upon the deposit of the appropriate form of payment, a signal indicating legal parking for that period of time, conforming to the limit of parking time which has been or may be established for the street upon which such single-space parking meter is installed, and shall continue to operate from the time of the deposit of such payment therein until the expiration of the time fixed as the parking limit for the part of the street upon which such meter is placed. Each single-space meter shall also be arranged so that upon the expiration of the legal parking time, such meter will indicate by mechanical operation or signal that the lawful parking period has expired.

B. *Multi-space kiosk.* A "multi-space kiosk" refers to a parking meter for a parking zone in which there is space for more than one vehicle to park. Multi-space kiosks shall be placed behind and adjacent to the curb within the parking zone such multi-space kiosk shall control. Where a multi-space kiosk has been installed, every vehicle shall park adjacent to the curb, (head-in where pavement stall markings dictate angled parking) in the zone controlled by the multi-space kiosk. Each vehicle operator shall deposit in the kiosk the appropriate form and the required amount of payment for the time the vehicle operator intends to park, up to the maximum time limit available. Unless otherwise specified or directed by a kiosk's instructions, each vehicle operator parking in a zone controlled by a multi-space kiosk must obtain and properly display a receipt, ticket, or display device issued by the multi-space kiosk which displays the date and period of time for which parking is legal, up to the maximum time limit available. Proper display of the receipt, ticket, or display device issued by a multi-space kiosk shall consist of displaying the receipt, ticket, or display device on the curbside of the vehicle dashboard in a publicly visible location or affixing the receipt, ticket, or display device to the front lamp of a motorcycle or a motor scooter. A receipt, ticket, or display device issued by a multi-space kiosk may be used to park the operator's vehicle in a parking zone controlled by a different multi-space kiosk prior to the expiration of time on the receipt, ticket, or display device if the parking zone has an equal or greater maximum allowable time limit and the same hourly rate as the parking zone controlled by the multi-space kiosk where the original payment was made.
(Code 1967, § 23-244; Code 1985, § 21-177; Ord. No. 5531, § 1, 8-20-2013)

***Charter reference—**Authority of city relative to parking meters, § 744.

Sec. 11-44-3. Marking of and parking within metered spaces.

A. *Single-space parking meters.* Lines or markings shall be painted or placed upon the curb or upon the street adjacent to each single-space parking meter for the purpose of designating the parking meter space for which such meter is to be used, and each vehicle parked alongside or next to any single-space parking meter shall park within the lines or markings so established. It is unlawful to park any vehicle across any such line or marking, or to park any vehicle in such a position that the same shall not be wholly within the area so designated by such lines or markings.

B. *Multi-space kiosk.* When parking stall markings designating parking spaces are present, the provisions for single space parking meters shall apply. If parking stall markings are not present, official signs shall designate the physical limits or boundaries of the parking zone for multi-space kiosks.
(Code 1967, § 23-245; Code 1985, § 21-178; Ord. No. 5531, § 1, 8-20-2013)

Sec. 11-44-4. Deposit of payment—Overtime parking.

A. When any vehicle is parked in any parking meter space next to which a single-space parking meter is located, or in a parking zone controlled by a multi-space kiosk, in accordance with the provisions of this chapter and chapter 11-40, the operator of such vehicle shall, upon entering the parking meter space or parking zone, immediately deposit, or cause to be deposited, the payment indicated on such parking meter or kiosk, and the parking space may then be lawfully occupied by such vehicle during the period of parking time prescribed for the part of the street in which such parking space is located. If any vehicle shall remain parked in any such parking space beyond the parking time limit fixed for such parking space, the single-space parking meter shall display a sign or signal showing illegal parking. The receipt, ticket, or display device issued by a multi-space kiosk shall indicate that the time for legal parking has expired. In that event, such vehicle shall be considered as parked overtime and beyond the period of legal parking time in any such part of a street where any such meter or kiosk is located and shall be a violation of this title. Each period of overtime parking beyond the duration of time specified by the parking meter or kiosk shall be considered a separate offense.

B. No person shall permit a vehicle to remain or to be placed in any parking space adjacent to any single-space parking meter or in a zone controlled by a multi-space kiosk while such meter, or the receipt, ticket, or display device issued by a multi-space kiosk is indicating that the vehicle occupying such parking space has already been parked beyond the period of time prescribed for such parking space.

C. The provisions of this section shall be enforced between the hours of 8:00 a.m., and 6:00 p.m., on every day of the week except on Saturday, Sunday and the following holidays:

1. Christmas Day;
2. New Year's Day;
3. July Fourth;
4. Thanksgiving Day;

However, the above provisions shall not apply to those areas designated by the city engineer as areas of public necessity. In such areas so designated, parking meters or kiosks shall specify "twenty-four (24) hours per day each day of the week, holidays included."

D. No person shall permit a vehicle to remain in any parking space adjacent to any single-space parking meter or parking zone controlled by a multi-space kiosk for a consecutive period of time longer than the maximum period of time provided by the meter or kiosk following a single occurrence of depositing payment. The intent of this provision is to make illegal the practice of purchasing additional time on the meter or kiosk for a single parked vehicle by successive occurrences of depositing payment. This practice is commonly described as "meter feeding."
(Code 1967, § 23-246; Code 1985, § 21-179; Ord. No. 2250, § 1, 5-6-1975; Ord. No. 3110, § 1, 5-12-1981; Ord. No. 3586, § 24, 9-2-1986; Ord. No. 5531, § 1, 8-20-2013)

Sec. 11-44-5. Deposit of slugs prohibited.

No person shall deposit or cause to be deposited in any parking meter or kiosk, any slug, device or metallic substitute for the coin or other accepted form of payment indicated on the parking meter or kiosk as being required.
(Code 1967, § 23-247; Code 1985, § 21-180; Ord. No. 5531, § 1, 8-20-2013)

Sec. 11-44-6. Injuring or tampering with meters.

No person shall deface, injure, interfere with, open or willfully break, destroy or impair the usefulness of any parking meter or kiosk installed under the provision of this chapter.
(Code 1967, § 23-248; Code 1985, § 21-181; Ord. No. 5531, § 1, 8-20-2013)

Sec. 11-44-7. Daily deposit of route collections required.

The daily route collections of the division of public works shall be deposited daily with the treasurer's office.
(Code 1985, § 21-182; Ord. No. 5531, § 1, 8-20-2013)

CHAPTER 11-48. ACCIDENTS*

Sections:

Sec. 11-48-1. Immediate notice to police.
Sec. 11-48-2. Garages to report.
Sec. 11-48-3. Review of traffic accident reports—Fee.
Sec. 11-48-4. Accident studies.

Sec. 11-48-1. Immediate notice to police.

The driver of a vehicle involved in an accident resulting in injury to or death of any person or property damage to an apparent extent of $50.00 or more shall immediately, by the quickest means of communication, give notice of such accident to the police division. Whenever the driver of a vehicle is physically incapable of giving an immediate notice of an accident as required by this section, and there was another occupant in the vehicle at the time of the accident capable of doing so, or whenever the driver is not the owner of the vehicle, such occupant or the owner shall make or cause to be given the notice not given by the driver.
(Code 1967, § 23-284; Code 1985, § 21-246; Ord. No. 497, § 1, 7-8-1969)

State law reference—Similar provisions, T.C.A. § 55-10-106.

Sec. 11-48-2. Garages to report.

The person in charge of any garage or repair shop to which is brought any motor vehicle which shows evidence of having been involved in an accident or struck by any bullet, shall report the facts immediately to the police division after such motor vehicle is received, giving the license number, the engine number and the name and address of the owner or operator of such vehicle. Compliance with this section shall not relieve the driver of any vehicle involved in an accident from complying with section 11-48-1.
(Code 1967, § 23-285; Code 1985, § 21-247)

State law reference—Similar provisions, T.C.A. § 55-10-113.

Sec. 11-48-3. Review of traffic accident reports—Fee.

The police division shall permit the review of traffic accident reports. Upon request, a complete copy of such reports shall be furnished as provided herein. The director of police services is authorized to fix a standard charge for copies of traffic accident reports not to exceed $15.00 for the basic initial report and $1.00 for each page in addition thereto.
(Code 1967, § 23-286.1; Code 1985, § 21-248; Ord. No. 490, § 2, 6-24-1969; Ord. No. 3138, § 1(2), 8-11-1981; Ord. No. 4896, 10-2-2001)

Sec. 11-48-4. Accident studies.

Whenever the accidents at any particular location become numerous, the traffic division shall cooperate with the traffic design department in conducting studies of such accidents and determining remedial measures.
(Code 1967, § 23-287; Code 1985, § 21-249; Ord. No. 4896, 10-2-2001)

CHAPTER 11-52. VEHICLE LOADS†

Sections:

Sec. 11-52-1. Vehicles to be constructed and loaded so as to prevent escape of load.
Sec. 11-52-2. Vehicles so constructed or loaded as to obstruct traffic prohibited.
Sec. 11-52-3. Permit required for excessively wide vehicles.
Sec. 11-52-4. Extension of loads on passenger vehicles.
Sec. 11-52-5. Protruding objects.
Sec. 11-52-6. Ownership identification.
Sec. 11-52-7. Mud flaps on trucks.

*State law reference—Accidents, T.C.A. § 55-10-101 et seq.

†State law reference—Vehicle size, weight and load, T.C.A. § 55-7-101 et seq.

Sec. 11-52-1. Vehicles to be constructed and loaded so as to prevent escape of load.

A. No vehicle shall be driven or moved on any street unless such vehicle is so constructed as to prevent its contents from dropping, shifting, leaking or otherwise escaping therefrom.

B. No owner, lessee, operator or driver shall load any vehicle with dirt, ashes, rubbish, debris, sand, gravel, wood chips or any other material that is capable of blowing or slipping from a vehicle as a result of movement or exposure to air, wind current or weather, in such a manner or to the extent that such load or a material can or will fall or drop from the vehicle to the street, and no vehicle so loaded shall be driven or conveyed through any street of the city.

C. All vehicles transporting dirt, ashes, rubbish, debris, sand, gravel, wood chips or any other such material shall be loaded so that the top of the load making contact with any sideboard or side panel or front or rear part of the enclosure must not be within six inches of the top of the part of the enclosure contacted, and at no time shall the load exceed the six inches as stated in this section during transportation of load without being covered.

D. Subsection (C) of this section does not apply to any load-carrying compartment that completely encloses the load or to the transporting of any load that is otherwise suitably covered or secured by other means which prevents the escape of loose material.

E. It is unlawful for any person to use a motor vehicle to dispose of, or cause to be disposed of, any garbage, rubbish or other waste materials not suitable for fill purposes on any property other than a garbage dump or sanitary landfill, so designated by the city.

F. In any prosecution charging a violation of any provision of this section, proof that the particular vehicle described in the complaint or summons was used in violation of this section, together with proof that the defendant named in the complaint or summons was, at the time of the violation, the registered owner of such vehicle, or in the case of a lease, the lessee of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle, or the lessee of such vehicle, as the case may be, was the person in control of such vehicle at the time of such violation, or that such vehicle was at such time being used or operated at his or her instruction and direction, and in his or her behalf.

G. Any person found to have violated this section by a judge of the city court shall be subject to punishment as provided in section 1-24-1.

(Code 1967, § 23-124; Code 1985, § 21-342; Ord. No. 737, § 1, 6-23-1970; Ord. No. 1447, § 1, 9-19-1972; Ord. No. 1519, §§ 1, 2, 12-19-1972)

State law reference—Vehicle scatting loads, T.C.A. § 55-7-107 et seq.

Sec. 11-52-2. Vehicles so constructed or loaded as to obstruct traffic prohibited.

No person shall drive or direct any vehicle on a street when such vehicle is in a condition, or so constructed or loaded as to be likely to cause delay in traffic or injury to persons or property.

(Code 1967, § 23-125; Code 1985, § 21-343)

Sec. 11-52-3. Permit required for excessively wide vehicles.

No person shall drive or convey through any street any vehicle, the width of which, with its load, exceeds eight feet, except in accordance with a permit issued by the director of police.
(Code 1967, § 23-126; Code 1985, § 21-344)

Sec. 11-52-4. Extension of loads on passenger vehicles.

No passenger vehicle shall carry any load extending beyond the fenders on the left side of such vehicle or extending more than six inches beyond the line of the fender on the right side thereof.
(Code 1967, § 23-127; Code 1985, § 21-345)

Sec. 11-52-5. Protruding objects.

It is unlawful to operate any motor vehicle in the city whereon any installation, attachment or addition thereto or any portion of the vehicle's body, such as windows, doors or bumpers are damaged and are protruding so as to create a dangerous condition to any person or property.
(Code 1967, § 23-128; Code 1985, § 21-346; Ord. No. 573, § 2, 10-28-1969)

Sec. 11-52-6. Ownership identification.

All local commercial trucking vehicles, including, but not limited to, vehicles carrying or hauling gravel, sand, metals, trash, garbage, wood, brick, oils, tar, tar derivatives, cement, pipes, beams, or any similarly related materials, shall have identification by displaying on two parallel horizontal lines, on the right and left frontmost doors of such trucking vehicle, in letters at least three inches high, the name of the owner or firm, or in the event equipment is leased, the name of the lessee, on the first line and the street address immediately below upon the second line, and an individual vehicle identification number no less than six inches in height on the frontmost doors shall be displayed conspicuously.
(Code 1967, § 23-131; Code 1985, § 21-347; Ord. No. 2103, § 1, 7-30-1974)

Sec. 11-52-7. Mud flaps on trucks.

A. No person shall operate upon a public highway or street any motor vehicle or combination of vehicle having a carrying capacity in excess of 3,000 pounds, which motor vehicle or combination of vehicles is not equipped with rear fenders, mud flaps or mudguards which shall be of such size as will substantially prevent the projection of rocks, dirt, water or other substances to the rear. Such fenders, flaps or guards shall be of a type approved by the director of police.

B. This section shall have no application to farm vehicles, or vehicles used by farmers to haul produce from farm to market, nor shall it apply to vehicles used exclusively for hauling logs.

C. Any person violating the provisions of this section shall be guilty of a misdemeanor which shall be punishable as provided in section 1-24-1.
(Code 1967, § 23-130; Code 1985, § 21-348; Ord. No. 1272, § 1, 5-9-1972)

CHAPTER 11-56. VEHICLE NOISE REGULATIONS

Sections:

Sec. 11-56-1. Definitions.
Sec. 11-56-2. Motorized vehicles.
Sec. 11-56-3. Mufflers.
Sec. 11-56-4. Horns and other warning devices generally.
Sec. 11-56-5. Trains.
Sec. 11-56-6. Manner of enforcement.
Sec. 11-56-7. Exemptions.

Sec. 11-56-1. Definitions.

For the purposes of this chapter, certain words and phrases used herein are defined as follows:

Ambient noise is the all-encompassing noise associated with a given environment being usually a composite of sounds from many sources, near and far.

A-weighted level is the total sound pressure level of all noise as measured with a sound level meter using the A-weighting network. The unit of measurement is the dB(A).

Band pressure level of sound for a specified frequency band is the sound pressure level for the sound contained within the restricted band. The reference pressure must be specified.

Cycle is the complete sequence of values of a periodic quantity that occurs during a period.

Decibel or *dB,* is one-tenth of a decibel and is a unit of level when the base of the logarithm is the tenth root of ten, and the quantities concerned are proportional to power.

Sound analyzer is a device for measuring the band pressure level or pressure spectrum level of a sound as a function of frequency.

Sound level meter is an instrument, including a microphone, an amplifier, an output meter, and frequency-weighting networks for the measurement of noise and sound levels in a specified manner.

Sound pressure level, in decibels of sound, is 20 times the logarithm to the base ten of the ratio of the pressure of this sound to the reference pressure, which reference pressure is for the purposes of this chapter a reference pressure of 20 micro-newtons per meter squared.

All technical definitions are in accordance with American National Standards Institute S1. 1-1960 entitled "Acoustical Terminology."
(Code 1967, § 23-132; Code 1985, § 21-350(a); Ord. No. 2106, § 1, 8-20-1974)

Sec. 11-56-2. Motorized vehicles.

It is unlawful to operate a motorized vehicle, including, but not limited to, cars, trucks, buses, motorcycles, motorbikes, minibikes, and go-carts, within the city limits, on private or public property, which creates a noise or sound which exceeds the noise level limits set out in Table I below:

Table I
Limiting Noise Levels
for Motor Vehicles

	Maximum Allowable Limit (dB(A))
Trucks and buses:	
Over 10,000 pounds:	
Measured at 50 feet	87
Measured at 25 feet	93
Under 10,000 pounds:	
Measured at 50 feet	80
Measured at 25 feet	86
Passenger cars:	
Measured at 50 feet	78
Measured at 25 feet	84
Motorcycles, go-carts, trail bikes and other motorized vehicles not classified as trucks or passenger cars:	
Measured at 50 feet	87
Measured at 25 feet	93

A. The measurement of sound or noise shall be made with a sound level meter meeting the standards prescribed by the American National Standards Institute. The instrument shall be maintained in calibration and good working order. A calibration check shall be made of the system at the time of any noise measurement. Measurements recorded shall be taken so as to provide a proper representation of the noise source and shall not exceed the above levels as measured in any direction. The microphone during measurement shall be positioned so as not to create any unnatural enhancement or diminution of the measured noise. A windscreen for the microphone shall be used when required. Traffic, aircraft and other transportation noise sources and other background noises shall not be considered in taking measurements except where such background noise interferes with the primary noise being measured.

B. Measurement of noise levels caused by a moving vehicle shall be confirmed by a noise level measurement taken with the vehicle stationary. The driver of the vehicle shall be required to accelerate his or her engine to one-half throttle, in order to conduct the noise level reading.

(Code 1967, § 23-132; Code 1985, § 21-350(b); Ord. No. 2106, § 1, 8-20-1974)

Sec. 11-56-3. Mufflers.

It is unlawful for any person to operate or cause to be operated any muffler attached to any motor vehicle or any other mechanized unit which produces noise levels within the city exceeding dB(A) ratings as set out in Table I and accompanying sections above.
(Code 1967, § 23-132; Code 1985, § 21-350(c); Ord. No. 2106, § 1, 8-20-1974)

State law reference—Mufflers, T.C.A. § 55-9-202.

Sec. 11-56-4. Horns and other warning devices generally.

It is unlawful for any person to operate or cause to be operated any horn, siren, whistle, bell or any electronic blast which may be attached to any motor vehicle or other mechanized unit which is in any manner inconsistent with section 11-32-17.
(Code 1967, § 23-132; Code 1985, § 21-350(d); Ord. No. 2106, § 1, 8-20-1974)

Sec. 11-56-5. Trains.

It is unlawful for any person to operate or cause to be operated a warning device of any type, including, but not limited to, a whistle, horn or electronic blast, on trains or vehicles which operate on stationary rails in excess of 87 dB(A) at 50 feet (Table I in section 11-56-2) within the city for a sustained period of more than 30 seconds, except as may be required by any federal safety regulation requiring sounding of warning signals at grade crossings.
(Code 1967, § 23-132; Code 1985, § 21-350(e); Ord. No. 2106, § 1, 8-20-1974)

Sec. 11-56-6. Manner of enforcement.

Violations of this chapter shall be prosecuted in the same manner as other misdemeanor violations of this Code, and shall be initiated upon issuance of a traffic citation ticket, or brought upon complaint of a private citizen by issuance of a summons, after verification by a police officer using a sound meter.
(Code 1967, § 23-132; Code 1985, § 21-350(f); Ord. No. 2106, § 1, 8-20-1974)

Sec. 11-56-7. Exemptions.

The following uses and activities shall be exempt from noise level regulations:

A. Ambulances, whether owned by private company or city operated, while upon call to scene of accident or emergency situation;

B. Vehicles used as garbage collection trucks while in performance of duties and used for either loading or processing of garbage and debris, whether privately owned or city operated;

C. City fire equipment upon emergency call and return;

D. City police equipment, and/or other city, county, state and federal law enforcement equipment, upon emergency call;

E. Sound trucks or trucks with mounted amplifiers or public address systems used in connection with election campaigns, and more specifically designated under section 9-68-13(C) and (D);

F. Vehicular equipment used in connection with removal of trees, brush, undergrowth, etc., whether privately owned or city operated;

G. All of the above-mentioned vehicles, with the exception of city fire equipment, shall be required to maintain mufflers and related equipment within the noise level regulations contained in this chapter.

(Code 1967, § 23-132; Code 1985, § 21-350(g); Ord. No. 2106, § 1, 8-20-1974)

CHAPTER 11-60. REGISTRATION OF VEHICLES

Sections:

Article 1. General Provisions

Sec. 11-60-1. Definitions.
Sec. 11-60-2. Persons required to register motor vehicles—Exceptions.
Sec. 11-60-3. Proof of inspection prerequisite to registration.
Sec. 11-60-4. Registration fees.
Sec. 11-60-5. Registration under chapters 1 through 6 of title 55, Tennessee Code Annotated—Required—Penalty for violation of section.
Sec. 11-60-6. Display of registration plates—Manner.

Article 2. Freight Vehicles

Sec. 11-60-7. Required registration.
Sec. 11-60-8. Information to be given.
Sec. 11-60-9. Registration fees for freight motor vehicles.

ARTICLE 1. GENERAL PROVISIONS

Sec. 11-60-1. Definitions.

The following definitions shall apply to this chapter:

City's registration agent means the agent designated by the city to be in charge of city registrations and to

issue certificates of registration pursuant to receiving proper applications from owners/operators of motor vehicles.

Motorcycle means a motor vehicle having a saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground.

Motor vehicle means any device self-propelled in, upon or by which a person or property is transported or drawn upon the streets or the public ways of the city except a motorcycle, farm tractor or special mobile equipment.

Owner means the person who holds the legal title of a vehicle, or in the event a vehicle is the subject of an agreement for the conditional sale or lease thereof, with the right of purchase upon performance of the condition stated in the agreement, and with an immediate right of possession vested in the conditional vendee or lessee, or in the event a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purpose of this chapter; provided that every agent, servant, or employee operating the vehicle for the owner shall also be defined as owner if the owner, whether a natural person, firm, copartnership, association or corporation, has failed to comply with this article, and such agent, servant or employee shall be required to comply with the registration of the vehicle which he or she is operating, and the owner so designates the agent, servant or employee for this purpose as representing him or her by his or her use of the streets of the city.

Person includes every natural person, firm, copartnership, association or corporation and shall be synonymous with "owner" as defined herein and may be used interchangeably.

Special mobile equipment means any vehicle not designed or used primarily for the transportation of personal property and incidentally operated or moved over the streets or other public ways.
(Code 1967, § 23-59; Code 1985, § 21-266; Ord. No. 244, § 1, 8-20-1968; Ord. No. 2491, § 1, 9-7-1976; Ord. No. 3187, § 1(1), 2-2-1982)

Sec. 11-60-2. Persons required to register motor vehicles—Exceptions.

A. All residents of the city operating any motor vehicle for pleasure or business purposes shall register their motor vehicles and motorcycles with the city's registration agent during the dates prescribed by the state in chapters 1 through 6 of title 55, T.C.A., as presently enacted or hereafter amended, for the original or renewal of state registration of motor vehicles or within five days after the acquisition of any such vehicle.

B. Exceptions to the registration requirement are the following:

1. Vehicles owned by governmental agencies, that is, the United States government, state, county and municipal governments, which have a state motor vehicle registration plate designating them as such, are not required to register with the city. If the state motor vehicle registration plate does not so designate the vehicle, city registration must be made, but no registration fee is to be charged;

2. A handicapped veteran, or former prisoner-of-war, who is a permanent resident of the city and who qualifies under section 55-4-209 or 55-4-211, T.C.A., must register, but shall be issued free of charge a city registration tag of the same classification as issued by the state motor vehicle registration department for a state license tag, commencing with city registration for the year 1977;

3. A resident of the state, and permanent resident of the city, who is a recipient of the Congressional Medal of Honor, as defined in T.C.A. § 55-4-231;

4. A handicapped person who is permanently and totally confined to a wheelchair when so certified by a physician's statement, and other qualifications as defined in T.C.A. § 55-21-103(a), paragraphs 1, 2, and 3, and is a permanent resident of the city;

5. Any other exceptions allowable under T.C.A. title 55, which would be applicable to the city.

(Code 1967, § 23-60; Code 1985, § 21-267; Ord. No. 244, § 1, 8-20-1968; Ord. No. 425, § 1, 4-1-1969; Ord. No. 462, § 1, 4-29-1969; Ord. No. 1979, § 5, 3-5-1974; Ord. No. 2491, § 1, 9-7-1976; Ord. No. 2558, § 1, 2-1-1977; Ord. No. 3187, § 1(2), 2-2-1982; Ord. No. 3310, § 1, 5-31-1983)

Sec. 11-60-3. Proof of inspection prerequisite to registration.

Effective October 1, 1985, no registration of vehicles owned by residents of the city shall be permitted without proof of current inspection.
(Code 1985, § 21-267.1; Ord. No. 3458, § 1, 4-30-1985)

Sec. 11-60-4. Registration fees.

A. For every motor vehicle which is registered as required by this chapter, the owner thereof as classified under T.C.A. § 55-4-111 shall pay the city's registration agent fees as follows:

Vehicle Registration Fee Classes	Current	Proposed
Class (A) Motorcycles	$10.00	$20.00
Class (B) Motorcycles with three wheels, used in furtherance of a commercial enterprise	$21.00	$62.00
Class (C) Passenger motor vehicles	$30.00	$60.00
Class (E) Private buses (not for hire)	$30.00	$60.00
Class (F) Low-speed vehicles "Low Speed Vehicle" means any four wheeled electric or gasoline vehicle, excluding golf carts, whose top speed is greater than 20 mph but not greater than 25 mph, including neighborhood electric vehicles. Low speed vehicles must comply with the standards in 49 FR 571.500.	$30.00	$60.00
Class (G) Medium-speed vehicles "Medium Speed Vehicle" means any four wheeled electric or gasoline vehicle, excluding golf cans, whose top speed is greater than 30 mph but not greater than 35 mph, including neighborhood electric vehicles and mini-trucks. Medium speed vehicles must meet or exceed the federal safety standards set forth in 49 CFR 571.500.	$30.00	$60.00
Class (H) (i) Class I off-highway vehicles "Class I off-highway vehicle" means a motorized vehicle with not less than four non-highway tires, no more than six non-highway tires, whose top speed is greater than 35 mph, that is limited in total dry weight up to 2,500 lbs, that is 80 inches or less in width, and that has a non-straddle seating capable of holding no more than four passengers and a steering wheel. "Class I off-highway vehicle" includes mini-trucks.	$30.00	$60.00
Class (H) (ii) Class II off-highway vehicles "Class II off-highway vehicle" means any off-highway vehicle that is designed to be primarily used for recreational purposes, that has a non-straddle seating capable of holding at least two but no more than four passengers and a steering wheel, and that is commonly referred to as a sand buggy, dune buggy, rock crawler, or sand rail, "Class II off-highway vehicle" does not include a snowmobile or other vehicle designed to travel exclusively over snow or ice.	$30.00	$60.00

COMMERCIAL VEHICLE REGISTRATION FEES

CLASS	*WEIGHT*	*MEMPHIS FEE*
BU1	1-7 SEATS	$60.00
BU2	8-15 SEATS	$60.00
BU3	16-25 SEATS	$60.00
BU4	26-25 SEATS	$60.00
BU5	OVER 25 SEATS	$60.00
BU6	WITHIN CITY	$60.00
HO1	9000	$68.00
H02	16000	$81.00
H03	20000	$113.00
H04	26000	$144.00
H05	32000	$176.00
H06	38000	$207.00
H07	44000	$239.00
H08	55000	$382.00
H09	66000	$413.00
H10	74000	$476.00
H11	80000	$552.00
J02	16000	$68.00
J03	20000	$81.00
J04	26000	$113.00
J05	32000	$144.00
J06	38000	$176.00
J07	44000	$207.00
J08	56000	$309.00
J09	66000	$382.00
J10	74000	$413.00
J11	80000	$476.00
Z01	74000 LOCAL	$413.00
Z02	74000 MULTI	$413.00
Z03	LOCAL CONCRETE	$413.00
Z04	MULTI CONCRETE	$413.00
Z05	80000 LOCAL	$476.00
Z06	80000 MULTI	$476.00
FL1	9000	$40.00
FL2	16000	$43.00
FL3	20000	$51.00
FL4	26000	$59.00
FL5	32000	$67.00
FL6	38000	$74.00
FL7	44000	$82.00

CLASS	*WEIGHT*	*MEMPHIS FEE*
FL8	56000	$101.00
F19	66000	$108.00
FL10	74000	$124.00
FL11	80000	$143.00
WDI	WELL DRILLER	$68.00
SPO	SEMI TRAILER	

B. Registration fee for dealers, manufacturers and transporters.

1. Any manufacturer, transporter or dealer owning a motor vehicle for the sole purpose of resale may obtain "dealer" registration of the vehicle at the hereinafter fees for the specified purpose of operating such vehicles upon the city streets. Operation upon the streets of the city under this special registration is to be limited to operation by their customers for temporary purposes, not in excess of 24 hours, or for movement of any vehicle of the like type upon the city streets solely for the purpose of delivery. The operation of service vehicles owned by a manufacturer or transporter or dealer while using special registration is not permitted. The fee for the first registration shall be at the rate of $41.00, for a passenger motor vehicle and the charge for each additional registration for the manufacturer, transporter or dealer special registration shall be at $21.00 per vehicle.

2. Any dealer engaged in the sale of trucks (freight motor vehicles) at retail may make application for purchase of special dealer registration at a fee of $325.00 per unit. No dealer shall permit such registrations to be used by any person except one who is a prospective purchaser of such track. All other restrictions that apply to such dealers in T.C.A. § 55-4-117 shall also apply to the city registration.

C. Proration of fees for any class shall be done in accordance with the laws of the State of Tennessee.

D. All city registrations issued for motor vehicles as registered for state purposes under chapters 1 through 6 of title 55, T.C.A., shall expire at the same date set out in T.C.A. § 55-4-104 for the registration with the state.

E. These fees shall apply to all vehicles whose registration becomes due from and after the effective date hereof. (Code 1967, § 23-61; Code 1985, § 21-268; Ord. No. 244 § 1, 8-20-1968; Ord. No. 425 § 2, 4-1-1969; Ord. No. 462 § 2, 4-29-1969; Ord. No. 596 § 1, 12-9-1969; Ord. No. 1357 § 1, 7-5-1972; Ord. No. 1979 § 1, 3-5-1974; Ord. No. 2491 § 1, 9-7-1976; Ord. No. 2559 § 1, 2-1-1977; Ord. No. 3187 § 1(3), 2-2-1982; Ord. No. 5912, § 1, 8-6-2024)

Sec. 11-60-5. Registration under chapters 1 through 6 of title 55, Tennessee Code Annotated—Required—Penalty for violation of section.

A. No vehicle, required to be registered under chapters 1 through 6 of title 55, T.C.A., shall be operated upon any street or public way of the city unless there shall be attached thereto and displayed thereon when and as required by chapters 1 through 6 of title 55, T.C.A., a valid and outstanding registration plate or plates issued therefor to the owner thereof for the current registration year, or a registration plate or plates issued to the owner thereof with the proper tabs, stickers or other devices attached or affixed thereto indicating a valid renewal of such registration plate or plates. Violation of this requirement by the owner or operator hereof shall be a misdemeanor punishable by fine of not more than $50.00.

B. Any owner or operator of a vehicle who fails or refuses to display the certificate of registration therefor and in the case of a freight vehicle refusing to submit the vehicle and load for a weighing when directed by an officer of the law shall be guilty of misdemeanor punishable as provided in section 1-24-1.
(Code 1967, § 23-68; Code 1985, § 21-269; Ord. No. 218, § 1, 7-23-1968)

Sec. 11-60-6. Display of registration plates—Manner.

Registration plates issued for motor vehicles shall be attached in compliance with state law. The registration

plate issued for a truck shall be attached to the rear of the vehicle. The registration plate for a truck trailer shall be attached to the front of the vehicle. The registration plate issued for a motorcycle, trailer, semitrailer, or dealer's plate shall be attached to the rear of the vehicle.
(Code 1967, § 23-69; Code 1985, § 21-270; Ord. No. 573, § 3, 10-28-1969)

ARTICLE 2. FREIGHT VEHICLES

Sec. 11-60-7. Required registration.

All residents of the city owning and operating a motor vehicle classified in section 11-60-9 in the city shall register such vehicle with the city's registration agent between March 1 and April 15 of each calendar year; provided that, upon the acquisition of any vehicle which does not replace any vehicle previously registered under this chapter, the owner shall register the same within five days after such acquisition.
(Code 1967, § 23-74; Code 1985, § 21-281; Ord. No. 1137, § 1, 12-14-1971; Ord. No. 2491, § 1, 9-7-1976; Ord. No. 3187, § 1, 2-2-1982)

Sec. 11-60-8. Information to be given.

When a vehicle is registered under this chapter, the owner shall give the city's registration agent, the motor vehicle identification number, tonnage capacity and make of the vehicle, together with the name and residence location of the owner, and any other material information required by the agent.
(Code 1967, § 23-75; Code 1985, § 21-282; Ord. No. 3187, § 1, 2-2-1982)

Sec. 11-60-9. Registration fees for freight motor vehicles.

The registration fees for trucks and truck tractors shall be:

A. Private carriers:

1. Class 1: freight motor vehicles with declared maximum gross weight, including vehicle and load, of not more than 9,000 pounds.

   Registration fee: $38.00.

2. Class 2: freight motor vehicles with declared maximum gross weight, including vehicle and load, of not more than 16,000 pounds.

   Registration fee: $51.00.

3. Class 3: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 20,000 pounds.

   Registration fee: $83.00.

   This registration class may likewise be issued for motor vehicles in excess of 20,000 pounds which are hereinafter identified and for limited use hereinafter described:

   a. Truck tractors used exclusively to pull lowboy type trailers on which is transported machinery that is used only for agricultural purposes, such as but not limited to terracing, clearing land, and building ponds, levees, ditches and/or canals; and

   b. Trucks on which are mounted lime-for-fertilizer spreaders. The use of the highways by these limited use motor vehicles registered in this class is restricted to that which is incidental to the movement of such designated machinery from farm to farm and any volume and unpackaged lime and fertilizer from the distribution point to the farm.

   Provided, however, that the applicant for licensing hereinabove must file an affidavit with the city's registration agent that such trucks or truck tractor combina-

tions are used exclusively for such agricultural purposes; and, further, that a notarized carbon copy of the affidavit shall be attached to the owner's certificate of registration and shall be carried and displayed as provided in T.C.A. § 5-54-108 for state registration purposes.

4. Class 4: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 26,000 pounds.

   Registration fee: $114.00.

5. Class 5: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 32,000 pounds.

   Registration fee: $146.00.

6. Class 6: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 38,000 pounds.

   Registration fee: $177.00.

7. Class 7: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 44,000 pounds.

   Registration fee: $209.00.

8. Class 8: freight motor vehicles with declared maximum gross weight, including vehicle and load, not in excess of 56,000 pounds.

   Registration fee: $282.00.

9. Class 9: freight motor vehicles with a declared maximum gross weight, including vehicle and load, not in excess of 66,000 pounds.

   Registration fee: $313.00.

10. Class 10: freight motor vehicles with a declared maximum gross weight, including vehicle and load, not in excess of 74,000 pounds.

    Registration fee: $376.00.

11. Class 11: freight motor vehicles with a declared maximum gross weight, including vehicle and load, not in excess of 80,000 pounds.

    Registration fee: $452.00.

B. City motor vehicle registration shall not be required on over-the-road vehicles carrying freight and cargo to and from places outside the city from and to places within the city exclusively, and not making local stops within the city except at terminals or depots which are registered and licensed by the Interstate Commerce Commission, and are for public hire only.

C. City motor vehicle registration shall not be required for vehicles not required to register annually with the state.

D. Combined farm and limited private trucks. Motor vehicles used exclusively for the movement of farm products for the grower from the point of production to the first market, or operated as farm trucks, as defined in T.C.A. § 55-1-119, or as logging and lumbering trucks, or as the owner's private conveyance, transporting only tangible personal property belonging to the owner or guest occupant, as defined in T.C.A. § 55-4-113, shall be classified and registered with the city's registration agent as freight motor vehicles at the following fees in lieu of those set out in subsection A of this section:

Class 1	$30.00
Class 2	$38.00
Class 3	$51.00
Class 4	$83.00
Class 5	$114.00
Class 6	$146.00
Class 7	$177.00
Class 8	$209.00
Class 9	$282.00
Class 10	$313.00
Class 11	$376.00

E. Freight trailers and semitrailers. No city registration fee shall be required for such vehicles as defined in T.C.A. § 55-3-113.

(Code 1967, § 23-76; Code 1985, § 21-283; Ord. No. 245, § 1, 8-13-1968; Ord. No. 599, § 1, 12-9-1969; Ord. No. 1375, § 1, 7-5-1972; Ord. No. 1979, § 4, 3-5-1974; Ord. No. 2491, § 1, 9-7-1976; Ord. No. 3187, § 1(13), 2-2-1982)

CHAPTER 11-64. INSPECTION OF VEHICLES

Sections:

Sec. 11-64-1. Definitions.
Sec. 11-64-2. Motor vehicle inspection requirements; frequency.
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Sec. 11-64-4. Emission control devices and emissions generally.
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Sec. 11-64-7. Motor vehicle anti-tampering test criteria.
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Sec. 11-64-9. Waiver provisions.
Sec. 11-64-10. Safety inspection.
Sec. 11-64-11. Motorcycle/motor scooter inspections.
Sec. 11-64-12. Procedure when vehicle found defective.
Sec. 11-64-13. Director of public services and neighborhoods authorized to promulgate rules and regulations regarding inspection of vehicles.

Sec. 11-64-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Air pollution is any particulate matter or any gas or vapor other than water or any combination thereof, including any physical, chemical, biological, radioactive substance or matter which is emitted into or otherwise enters the ambient air.

Antique motor vehicle is any motor vehicle over 25 years old which is owned solely as a collectors' item and is used for participation in club activities, exhibits, tours, parades and similar uses, but in no event for general transportation.

Carbon dioxide is a compound consisting of the chemical formula (CO_2).

Carbon monoxide is a compound consisting of the chemical formula (CO).

Catalytic converter is a pollution control device containing a catalyst for converting automobile exhaust into mostly harmless products.

Centralized network means that motor vehicle inspections are conducted by the local or state government at permanent locations.

Certificate of compliance is a certification issued by a department vehicle examiner or a fleet vehicle inspector that the motor vehicle identified on the certificate complies with the emission performance, safety, and anti-tampering criteria appropriate to the vehicle as specified in this chapter.

Check engine light. See *Malfunction indicator light (MIL)*.

Department means the city's motor vehicle inspection bureau (MVIB).

Department vehicle examiner is any person employed by the city's division of public services and neighborhoods who is designated by the MVIB as qualified to perform vehicle emissions performance, safety, and anti-tampering inspections.

Diagnostic trouble codes (DTCs) is an alphanumeric code which is set in a vehicle's onboard computer when a monitor detects a condition likely to lead to (or has already produced) a component or system failure or otherwise contribute to exceeding emissions standards by 1.5 times the certification FTP standard.

Diesel-powered motor vehicle is a motor vehicle powered by a compression-ignition internal combustion engine.

Electric-powered motor vehicle is a motor vehicle which uses a propulsive unit powered exclusively by electricity.

Exhaust emissions are substances emitted into the atmosphere from any opening downstream from the exhaust ports of a motor vehicle engine.

Exhaust gas analyzer is a device for sensing the amount of air pollutants, including carbon monoxide and hydrocarbons, in the exhaust emissions of a motor vehicle. For the purpose of this chapter, this shall mean analyzing devices of the non-dispersive infrared type or any other analyzing devices that provide equal or greater accuracy as approved by the United States Environmental Protection Agency.

Factory-installed motor vehicle pollutant control system is a motor vehicle pollution control system installed

by the vehicle or engine manufacturer to comply with the United States government motor vehicles emission control laws and regulations.

Federal test procedure (FTP) is the test procedure used to determine the compliance of vehicles with federal emission standards.

Fleet means ten or more motor vehicles owned by the same person or business entity which are in use, registered in any county that has been designated by the state air pollution control board to have a motor vehicle inspection and maintenance program in order to attain and maintain compliance with national ambient air quality standards within any area of the state or an adjoining state and not owned or held primarily for the purpose of resale.

Fleet inspection operator is a business who has been certified, in accordance with this regulation and other requirements as determined by the MVIB to perform inspections on their own fleet, as defined herein.

Fleet inspection permit is a certificate issued by the MVIB authorizing a fleet operator to become a fleet inspection operator.

Fleet vehicle inspector is any person retained by a fleet inspection operator holding a valid fleet inspection permit, and who is certified by the MVIB as qualified to perform vehicle emissions performance, safety, and anti-tampering inspections.

Fuel inlet restrictor is the leaded fuel nozzle restrictor installed on motor vehicles which was designed for the use of unleaded gasoline only.

Gasoline cap is the manufacturer cover that seals the motor vehicle gasoline tank.

Gasoline-powered motor vehicle is any motor vehicle powered by a spark-ignition internal combustion engine.

Gross vehicle weight (GVWR) is a term defining the gross vehicle weight as determined from the combined manufacturer vehicle and maximum load rating.

Heavy-duty motor vehicle is any motor vehicle having a combined manufacturer vehicle and maximum load rating (GVWR) to be carried thereon in excess of 10,500 pounds (4,773 kilograms).

Hydrocarbon is any organic compound consisting predominantly of carbon and hydrogen.

Idle speed means the unloaded engine speed of a motor vehicle when the accelerator pedal is fully released. In a motor vehicle equipped with an automatic transmission, this is with the drive selector in neutral or park. In a motor vehicle equipped with a manual transmission, this is with the gear selector in neutral and the clutch fully engaged. In all motor vehicles, the engine operated accessories shall be turned off.

Internal combustion engine is any engine in which the combustion of gaseous, liquid or pulverized solid fuel takes place within one or more cylinders, or any engine with one or more combustion chambers.

Light-duty motor vehicle is any motor vehicle having a combined manufacturer vehicle and maximum load rating (GVWR) to be carried thereon of 10,500 pounds (4,773 kilograms) or less.

Malfunction indicator light (MIL) is known as the check engine light. The malfunction indicator light is illuminated on the dashboard when conditions exist likely to result in emissions exceeding FTP standards by 1.5 times or worse. Alternatives include "service engine soon," as well as an unlabeled icon of an engine.

Manufacturer's idle-speed specification is the engine idle speed specified for a particular motor vehicle as printed on the engine compartment emissions system data plate or in the owner's manual.

Model year means the annual production period of new motor vehicles or new motor vehicle engines designated by the calendar year in which such production ends. If the manufacturer does not designate a production period, the year with respect to such motor vehicle or engines shall mean the 12-month period beginning January of the year in which production thereof begins. The model year for a motor vehicle constructed by other than the original manufacturer shall be assigned by the state department of motor vehicles.

Motor vehicle is any self-propelled vehicle used for transporting persons or commodities on public roads.

Motor vehicle regulatory license is the annual motor vehicle license required as a condition for legal operation of certain classes of motor vehicles.

Motorcycle is any motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, and having a curb weight of 2,000 pounds (907 kilograms) or less.

New motor vehicle is any motor vehicle that has never been previously titled or registered in this or any other jurisdiction and whose ownership document remains as a manufacturer's certificate of origin.

Official inspection station means a facility operated by the MVIB to conduct motor vehicle inspections pursuant to this chapter, in a centralized network.

Onboard diagnostics (OBD) is a system of vehicle component and condition monitors controlled by a central, onboard computer designed to signal the motorist when conditions exist which could lead to a motor vehicle's exceeding its certification standards by 1.5 times the FTP standard. OBD refers specifically to EPA's OBDII requirements. The following vehicles are equipped with OBDII systems: 1996+ gasoline-powered vehicles less than 8,500 pounds GVWR, 1997+ diesel-powered vehicles less than 8,500 pounds GVWR, and 2007+ gasoline- and diesel-powered vehicles between 8,500 and 14,000 pounds GVWR.

OBD data link connector (DLC) serves as an interface between a motor vehicle's OBD computer and the OBD scanner and is usually located under the dashboard on the driver's side. Connecting an OBD scanner to the DLC allows inspectors and motor vehicle repair technicians to read the readiness status of motor vehicle's onboard monitors as well as any diagnostic trouble codes.

Opacity is the degree to which emissions reduce the transmission of light and obscure the view of an object in the background.

Pollution control device is the equipment designed by the manufacturer for installation on a motor vehicle for the purpose of reducing pollutants emitted from the motor vehicle, or a system or engine modification on a motor vehicle which causes a reduction of pollutants emitted from the motor vehicle.

Readiness codes are status flags stored by a motor vehicle's onboard computer which is different from the DTC in that it does not indicate a motor vehicle fault, but rather whether or not a given monitor has been run (i.e., whether or not the component or system in question has been checked to determine if it is functioning properly).

RPM is a term describing the engine crankshaft revolutions per minute.

Tampering means to remove, render inoperative, cause to be removed, or make less operative any emission control device, unless such removal or act to render inoperative or less operative is for the purpose of motor vehicle disposal or salvage operation.

Vehicle exhaust system means all devices, equipment and systems which transport exhaust emissions from the exhaust ports of the motor vehicle engine to the atmosphere.
(Ord. No. 5317, § 21-301, 7-21-2009)

Sec. 11-64-2. Motor vehicle inspection requirements; frequency.

A. For the protection of the public health, safety and welfare and for the promotion of safe operation of motor vehicles on the streets and highways of the city, all motor vehicles and freight vehicles required to be registered under chapter 11-60 of this title which are four years old or older shall be inspected by the public service and neighborhoods division of the city or other authorized vehicle inspection agency at least one time per year. Owners or drivers of all such motor vehicles shall present such motor vehicles for inspection to the motor vehicle inspection bureau (MVIB) or other authorized location.

B. All motor vehicles, including motorcycles and motor scooters, are required to have a vehicle identification number plate permanently affixed to the vehicle prior to inspection of same.

C. All motor vehicles are required to be inspected annually for compliance with omissions performance; safety, and anti-tampering, unless specifically excluded in this article.

D. Owners of motor vehicles so inspected are required to obtain a certificate of compliance, which shall be issued by the MVIB and/or a licensed fleet vehicle inspector, authorized pursuant to section 11-64-3(C), only after the motor vehicle demonstrates compliance with the test criteria established herein.

E. The certificate of compliance shall be valid for 90 days following the date of issuance and must be presented to the county clerk's office prior to the issuance of the wheel tax or the vehicle regulatory license.

F. Any motor vehicle which is owned or operated by an agency of the federal government and which is operated on a federal installation located in any county that has been designated by the state air pollution control board to have a motor vehicle inspection and mainte-

nance program is required to be inspected annually for compliance with emissions performance and anti-tampering criteria as specified in sections 11-64-4, 11-64-5, 11-64-6, and 11-64-7. This requirement applies to all employee-owned or leased motor vehicles (including vehicles owned, leased, or operated by civilian and military personnel on federal installations. This requirement shall not apply to a motor vehicle which is on the facility for less than a total of 60 days during the calendar year or to tactical military vehicles.

G. Any motor vehicle which is operated on property owned by the city, county, and state government within the city shall be inspected annually for compliance with emissions performance and anti-tampering criteria as specified in sections 11-64-4, 11-64-5, 11-64-6, and 11-64-7. This requirement applies to all employee-owned or -leased vehicles, excluding tactical vehicles. This requirement shall not apply to a vehicle which is operated on government property for less than a total of 60 calendar days per year.

(Code 1967, § 23-88; Code 1985, § 21-301; Ord. No. 243, §§ 1, 2, 8-13-1968; Ord. No. 335, § 1, 12-3-1968; Ord. No. 390, §§ 1, 2, 5, 1-28-1969; Ord. No. 1018, § 1, 8-3-1971; Ord. No. 3306, § 1, 7-5-1983; Ord. No. 3457, § 1, 7-16-1985; Ord. No. 5317, § 21-302, 7-21-2009; Ord. No. 5351, § 1, 6-22-2010)

Sec. 11-64-3. Motor vehicle inspection program/fleet inspections.

A. The MVIB, through its motor vehicle inspection program, is responsible for testing motor vehicles for compliance with emissions, anti-tampering and safety standards.

B. All motor vehicle inspections shall be conducted at official or mobile inspection stations operated by the MVIB, except those fleet inspections authorized pursuant to subsection C of this section.

C. In lieu of the requirement in subsection B of this section, the city council, by resolution, upon recommendation of the public services and neighborhoods division, when it finds it is necessary that inspections be made other than by the public services and neighborhoods division, is authorized to permit the public services [and neighborhoods] division to issue rules and regulations and to grant the privilege to operators of fleets of ten or more motor vehicles and similar establishments to conduct inspections of its own fleet at a rate established by the MVIB in the rules and regulations. The mayor shall be authorized to contract with such establishments that meet the standards set by the public services and neighborhoods division, consistent with those used by the MVIB.

1. A fleet vehicle operator may make application to the MVIB for a fleet inspection permit. Minimum requirements for issuance of a permit shall be:
   a. Possession of an emissions analyzer, tools and other testing equipment approved by the MVIB, and in accordance with the applicable rules and regulations, to be adequate for conducting the required emissions inspections;
   b. Demonstration of knowledge regarding the methods and procedures for conducting the required emissions performance, safety and anti-tampering inspections according to criteria developed by the MVIB;
   c. Provisions of appropriate facility for motor vehicle testing and secure storage facility for storing inspection records;
   d. Agreement to supply inspection information as requested by the MVIB and to allow access to testing facility, testing equipment, testing personnel, testing data, inventory and fleet vehicles as requested by the MVIB;
   e. Retention of a certified automotive service excellence mechanic to conduct fleet vehicle inspections.
2. A fleet inspection permit shall be valid for one year from the date of issuance and shall be renewed through application to the MVIB within 30 days prior to the date of expiration.
3. A fleet inspection permit is not transferable and may be denied, suspended or revoked by the MVIB for failure to comply with this regulation and other requirements as determined by the department, in its sole discretion.
4. Any person operating as a fleet inspection operator, which:
   a. Changes its business name, ownership, official inspection personnel, or approved emissions analyzers; or
   b. Ceases to operate a fleet operation;

shall notify the MVIB program manager within ten days of such change. Failure to provide such notice may be cause for the MVIB to revoke the fleet inspection permit.

5. A fleet inspection operator shall notify, and obtain written approval of, the MVIB program manager prior to relocating its fleet operation. A fleet inspection permit shall automatically terminate as a result of a fleet inspection operator's failure to obtain prior written approval as required herein.

6. Any vehicle inspected by a fleet inspection operator under the provision of this section, shall be subject to retesting at either the fleet inspection location or an official inspection station as deemed necessary by the department in order to maintain compliance with the intent of this chapter.

(Ord. No. 5317, § 21-303, 7-21-2009)

Sec. 11-64-4. Emission control devices and emissions generally.

Pursuant to section 11-32-23, every gasoline-powered motor vehicle shall be subject to inspection for emission of pollutants.

(Ord. No. 5317, § 21-304, 7-21-2009)

Sec. 11-64-5. Motor vehicle emission performance test criteria.

A. Motor vehicles shall not be allowed to undergo idle emission performance testing if, when the motor vehicle is presented for testing, smoke is present from the exhaust system, or the motor vehicle is overheating or losing fluids. Such presence is a health nuisance and would interfere with the operation of the testing equipment.

B. Motor vehicles shall not be allowed to undergo idle emission performance testing if, when the motor vehicle is presented for testing, the vehicle identification number (VIN) plate is missing or illegible.

C. To successfully pass the emission performance testing, the idle speed of the vehicle shall not exceed manufacturer specifications.

D. For vehicles subject to idle emission tests, if the vehicle exhaust system leaks in such a way as to dilute the exhaust emissions being sampled by the exhaust gas analyzer, the sum of carbon monoxide and carbon dioxide concentrations recorded for idle speed reading from an exhaust outlet must not be less than six percent.

E. All 1996 and newer gasoline-powered motor vehicles and all 2002 and newer diesel-powered motor vehicles that are equipped with OBDII systems shall be subject to an OBD inspection for emissions testing. An OBD check shall consist of two parts: a visual check of the MIL and an electronic examination of the OBD computer. The motor vehicle is required to pass a MIL command on test, readiness evaluation and a bulb check test. A vehicle shall fail the OBD inspection if one or more of the following conditions exist:

1. The vehicle's MIL is commanded-on and there are DTCs stored in the computer.

2. The vehicle has more than the allowable number of monitors not ready:

   a. 1996—2000 models: two monitors.

   b. 2001+ models: one monitor.

3. The vehicle's MIL fails to illuminate when the ignition key is placed in the key-on engine off position.

F. If the vehicle is incompatible with the OBD test equipment or if the DLC is readily unavailable (e.g., behind fender walls, under seats, etc.), then the vehicle is required to pass the MIL command on test readiness evaluation and a bulb check test conducted by the station supervisor.

G. All gasoline-powered motor vehicles that are not equipped with OBDII systems shall be subject to gasoline cap and idle emissions testing.

H. When a motor vehicle is equipped with other than the original engine or when a motor vehicle has been constructed, modified, customized or altered in such a way so that the model year cannot be clearly determined, the motor vehicle shall be classified, for purposes of the emission performance test, by the model year of the chassis.

I. All gasoline-powered motor vehicles which have idle speed emission values that exceed the test standards specified in Table I below shall fail the emission performance test.

Table I
Maximum Idle Speed Emissions Allowable During Idle Speed Emissions Test

Vehicle Model Year	*CO (%)*		*HC (PPM)*	
	Light Duty Vehicles Less Than or Equal to 6,000 Pounds GVWR	*Light Duty Vehicles Greater Than 6,000 Pounds to 10,500 Pounds GVWR*	*Light Duty Vehicles Less Than or Equal to 6,000 Pounds GVWR*	*Light Duty Vehicles Greater Than 6,000 Pounds to 10,500 Pounds GVWR*
Pre-72	8.2	8.9	700	900
1973—74	8.2	8.9	700	900
1975—77	5.0	6.5	500	750
1978—79	4.0	6.0	400	600
1980	3.0	4.5	300	400
1981—95	1.2	4.0	220	400
1996+	NA	4.0	NA	400

Year	*Heavy Duty Vehicles 10,501 Pounds to 25,999 Pounds GVWR*	
	CO (%)	*HC (PPM)*
Pre-72	8.9	1,000
1973—74	8.2	1,000
1975—79	8.0	1,000
1980	6.0	800
1981—85	4.0	800
1996+	4.0	800

(Ord. No. 5317, § 21-305, 7-21-2009)

Sec. 11-64-6. Exemptions from motor vehicle emission requirements.

The following classes of motor vehicles are exempt from the emission requirements established in sections 11-64-4 and 11-64-5:

A. Antique motor vehicles with antique registration;

B. Electric powered light-duty vehicles;

C. Motorcycles;

D. Motor scooters;

E. New motor vehicles registered for the first time;

F. Tactical military vehicles;

G. Vehicles over 26,000 pounds GVWR.

(Ord. No. 5317, § 21-306, 7-21-2009)

Sec. 11-64-7. Motor vehicle anti-tampering test criteria.

A. Each gasoline and diesel-powered motor vehicle subject to an emission performance test is also subject to a visual anti-tampering inspection under this rule and shall comply with the following minimum anti-tampering requirements:

1. At a minimum, the emissions control devices subject to an inspection are the catalytic converter, and fuel cap. If emission control devices are found in a tampered condition, such devices shall be repaired or replaced prior to any retesting, re-inspection or waiver issuance as provided for in sections 11-64-12 and 11-64-9.

2. Nothing in this section shall be construed as to relieve a motor vehicle owner from complying with the provisions of sections 11-64-4 and 11-64-5.

B. Each gasoline- and diesel-powered motor vehicle, subject to an OBD inspection, is also subject to an anti-tampering test and shall comply with a DLC check.
(Ord. No. 5317, § 21-307, 7-21-2009)

Sec. 11-64-8. Motor vehicle anti-tampering test methods.

A. The motor vehicle anti-tampering test shall be verified by the department vehicle examiner and consists of the following elements:

1. The vehicle examiner shall visually check the vehicle to see that the appropriate fuel cap is securely in place and limits the escape of fumes into the environment.

2. If the appropriate fuel cap is present and the vehicle is 1995 or older model, the gas cap shall be removed and a fuel cap pressure test shall be performed to ensure the cap is working properly, (FTP 26-21 Pass/Fail Standard). If the fuel cap fails the pressure test, it shall result in a failure of the anti-tampering test. If the appropriate fuel cap is not in place or is damaged, it shall result in failure of the anti-tampering test.

3. Each gasoline-powered motor vehicle with a model year of 1996 and newer, and each diesel-powered motor vehicle with a model year of 2002 and newer, shall comply with the DLC inspection. If the DLC has been tampered with or is missing, it must be repaired or replaced prior to any retesting or re-inspection.

B. Pass/fail determination. A pass or fail determination shall be made for each of the anti-tampering test elements in this section. If a motor vehicle fails any of the anti-tampering elements, it shall result in the failure of the motor vehicle inspection test and a certificate of compliance shall not be issued until the repairs have been made to the vehicle, in accordance with section 11-64-12.
(Ord. No. 5317, § 21-308, 7-21-2009)

Sec. 11-64-9. Waiver provisions.

A. The purpose of this section is to allow a person to operate a motor vehicle that fails to meet the applicable motor vehicle emission performance test criteria as specified in sections 11-64-4 and 11-64-5, provided the department has issued a waiver to the owner of the motor vehicle.

1. A waiver issued pursuant to this section shall relieve the registered owner of a motor vehicle from responsibility for taking any further action to reduce exhaust emissions from the motor vehicle until the motor vehicle is next due for inspection, pursuant to section 11-64-2.

2. Any registered owner of a motor vehicle may be eligible and may apply to the department for a waiver pursuant to this rule if:

   a. An application for a waiver is submitted to a representative at an inspection site designated by the department; and

   b. The vehicle passed the tampering portion of the vehicle inspection; and

   c. All of the exhaust emissions components appropriate to make, model, year, series, and engine size are in place and visually operating; and

   d. The motor vehicle failed the initial emissions test and the emissions retest after repairs; and

   e. The registered owner of the motor vehicle has spent the required amount, pursuant to parts (i), (ii) or (iii) of this subparagraph, in parts and/or labor as an attempt to bring the vehicle into compliance with the motor vehicle emission performance test criteria as specified in section 11-64-5 and has satisfied the remaining requirements of this subparagraph:

      i. For 1980 and older model year vehicles—the minimum expenditure requirement is $75.00. All repairs must be appropriate and/or related to the cause of the test failure. This expenditure includes parts and labor, as specified in part (iv) of this section.

      ii. For 1981 through 1995 model year vehicles—the minimum expenditure requirement is $200.00. All repairs must be appropriate and/or related to the cause of the test failure. This expenditure includes parts and labor, as specified in part (iv) of this section.

      iii. For 1996 and newer model year vehicles—the minimum expenditure requirement is $650.00. All repairs must be appropriate and/or related to the cause of the test failure. This expenditure includes parts and labor, as specified in part (iv) of this section.

      iv. The cost of labor can be applied towards the expenditure amount only if the repairs were performed by a certified repair technician (National Institute for Automotive Service Excellence [ASE] certified in engine repair and engine performance). Repairs performed by non-technicians (e.g., owners) may only apply the cost of parts towards the expenditure.

      v. Documentation of repairs must be provided to the department. Documentation shall include dated re-

ceipts itemized with the name of each part, part number, and manufacturer.

vi. Emission related repairs were performed on the motor vehicle 60 days before or after the initial failed exhaust emissions inspection.

vii. Proof of registration is provided to the department. (Example: Title, vehicle registration).

viii. The registered owner of a motor vehicle, within the failed vehicle's warranty period, shall use all available warranty coverage to have repairs made that are directed toward correcting the cause of the motor vehicle's inspection failure prior to applying for a waiver and provide support documentation pursuant to subparagraph (A) or (B) of this paragraph:

(A) Documentation indicating that any available warranty coverage has been used to have the repairs made that are directed toward correcting the cause of the motor vehicle's failure to pass the motor vehicle inspection shall be provided to the department; or

(B) A written denial of warranty coverage for the needed repairs from the manufacturer or authorized dealer shall be provided to the department.

f. Prior to the issuance of a waiver, department staff shall perform a visual (under hood) inspection of the motor vehicle. This inspection will be performed to determine that emission related repairs have been completed and verify that the minimum expenditure has been met. If during the visual inspection any motor vehicle tampering, as defined in section 11-64-7, is discovered, a waiver cannot be granted.

g. The waiver shall be valid for one year or until the next registration expiration date, whichever is sooner.

h. A waiver shall be granted to the registered owner of a motor vehicle provided the requirements of this section have been fulfilled.

i. Upon receiving a waiver from the department, the registered owner shall be exempt from the requirements of section 11-64-2 within the time period prescribed in paragraph (A)(2)(g) above.

B. Upon application, the department may issue an exemption, as specified in paragraphs (1), (2), or (3) below, from the inspection requirements pursuant to this chapter, provided the subject motor vehicle is registered in the name of the individual applying for the exemption and (i) is not impounded or non-operational; (ii) has never been inspected or has not failed inspection within the past 90 days; or (iii) is not registered in another city or state.

1. Out-of town exemption. The department may grant an exemption for a vehicle that is out-of-town during the required annual inspection period, subject to the following requirements:

a. The motor vehicle must be a minimum of 300 miles outside of the city;

b. The applicant must complete the application required by the city and provide all documentation required by the department; and

c. In the event a federal-approved emissions program is available in the locale where the motor vehicle is located, the motor vehicle must successfully pass a federal emissions test.

2. Military exemption. The department may grant an exemption for active-duty military personnel, including his or her spouse, when the military personnel's vehicle(s) are out-of-town during the required annual inspection period, subject to the following requirements:

a. The individual must provide evidence of an active-duty military identification and leave earning statement (LES), issued by the military, of the motor vehicle owner or his or her spouse;

b. In the event the motor vehicle was registered in another state, the vehicle must successfully pass a federal emissions test; and

c. The individual must complete the application required by the city and provide all documentation required by the department.

3. Reciprocal inspection. The department may grant an exemption for motor vehicles inspected at another federal-approved inspection facility in another locale, subject to the following requirements:

a. The motor vehicle must have passed a federal-approved emissions test within the past 90 days, and the individual must provide evidence of a certificate of compliance from such federal-approved inspection facility;

b. The certificate of compliance, as referenced in the preceding paragraph, shall be valid for a period of 90 days from the test completion date.

4. Financial hardship. The department may grant a wavier for financial hardship subject to the following requirements.

a. Submit a completed financial hardship application including copies of:

i. Failed vehicle inspection report for emissions

ii. Current vehicle registration in the applicant's name.

iii. Valid Tennessee driver's license.

iv. Cost estimate for the vehicle emission related repairs.

v. Statement of financial hardship.

vi. Seniors 62 years and older who are on fixed incomes and vehicles failed the initial on-board diagnostic II test but pass the subsequent emissions tailpipe test would be granted a waiver for one year.

(Ord. No. 5317, § 21-309, 7-21-2009; Ord. No. 5457, § 1, 7-3-2012)

MEMPHIS MOTOR VEHICLE INSPECTION
Financial Hardship Waiver Application

(See rear of form for instructions)

Vehicle must be currently registered by owner in Memphis Tennessee to obtain a Financial Hardship Waiver. All requested information below must be completed and the **receipts and estimates** must be attached, or **your application will be denied**.

VEHICLE INFORMATION - Please Print:

Registration Expiration Date: _____ **Vehicle ID Number:** _____

License Plate Number: _____ **Year/Make of Vehicle:** _____

Registered Owner(s) - Please Print Name(s)/Current Address:

Owner 1: _____ **Address:** _____

Owner 2: _____ **Address:** _____

ALL REGISTERED OWNER(s) MUST COMPLETE THE FOLLOWING:

Yes No

[ ] [ ] 1. Has this vehicle failed the vehicle emissions test? (A **"Reject"** is **not** a failure.)

[ ] [ ] 2. Has this vehicle previously received a financial hardship waiver?

[ ] [ ] 3. Have you attached a written estimate of emissions-related repair costs for at least $200? (See instructions below)

The estimate must total at least **$75 for 1980 and older vehicles, $200 for 1995 and older vehicles,** or **$650 for 1996 and newer vehicles** on the cost of emissions-related repairs. The estimate must include parts, services, and diagnostic fees signed and dated from an Automotive Service Excellence (ASE) repair technician.
Note: Costs of emissions recall repairs cannot be included in these estimates.

4. Please check the box and sign below.

[ ] I am having a financial hardship and unable to make the necessary emissions-related repairs to my vehicle.

I/We hereby swear or affirm the information provided above is true and correct, and authorize the City of Memphis Motor Vehicle Inspection Bureau or its representatives to make legitimate inquiries to all relevant federal, state, or local offices regarding the accuracy of the information provided.

Please sign and date:

Signature _____ Date _____ Phone Number _____

Signature _____ Date _____ Phone Number _____

After completing the application, send to:

City of Memphis Motor Vehicle Inspection Bureau 590 Washington Avenue Memphis, TN 38105	E-mail: mvib@memphistn.gov (Subject: Economic Hardship)

MEMPHIS

MOTOR VEHICLE INSPECTION BUREAU

FINANCIAL HARDSHIP WAIVER

Instructions

Motorists may be eligible for a one year financial hardship waiver for a vehicle that fails the Memphis Vehicle Emissions Inspection if the household's income falls within the income guidelines. The hardship waiver is one time only for the life of the vehicle. The vehicle must be repaired for the next year inspection cycle.

To qualify for a financial hardship waiver:

1. The vehicle must be currently registered in applicant's name. Provide copy of registration.
2. Copy of a valid Tennessee driver's license.
3. The motorist must provide a completed Financial Hardship Waiver Application.
4. A current failed vehicle inspection test with the past thirty (30) days.
5. A type written estimate for the vehicle emission related repairs from an Automotive Service Excellence (ASE) repair technician.
6. Must have a financial hardship that prevents the motorist from making the emission-related repairs.

(Ord. No. 5457, § 1, 7-3-2012)

Sec. 11-64-10. Safety inspection.

In addition to any and all other tests required herein, all motor vehicles registered in the city shall pass the safety inspection prior to registration. The following components shall be inspected:

1. Visible smoke.

2. Emergency/parking brakes. The emergency and parking brakes shall function according to the manufacturer's specifications. When emergency brakes or parking brakes are applied, the motor vehicle should not move more than 12 inches in either direction when lightly accelerated.

3. Turn signals. The turn signals and components shall function according to the manufacturer's specifications. Both the left and right turn signals on the front and rear of the vehicle must be operational. No aftermarket lens that reduces the candle light power should be affixed to the motor vehicle. The lights shall be in good working condition and operational in accordance with state law.

4. Rear lights. The rear lights and components shall function according to the manufacturer's specifications. Rear lights on both sides must be fully illuminated when activated. No aftermarket lenses that reduce the candle light power should be affixed to the motor vehicle. The lights shall be in good working condition and operational in accordance with state law.

5. Brake lights. The brake lights and lens shall function according to the manufacturer's specifications. Both the left and right brake lights must illuminate brightly when the brakes are applied. This must occur when headlights are in the on and off state. No aftermarket lens that reduces the candle light power should be affixed to the vehicle. The lights shall be in good working condition and operational in accordance with state law.

6. Headlights. The headlights and components shall function according to the manufacturer's specifications. Both headlights must operate and be properly aligned. The dimmer switch must change the headlights from high to low beam. No aftermarket lens that reduces the candle light power should be affixed to the vehicle. No device or lens may impair the direction or intensity of the headlights.

7. Windshield wipers. The windshield wipers and components shall function according to the manufacturer's specifications. The windshield wipers must cover the sweep of the windshield and the blades shall not be frayed or missing.

8. Windshield. The windshield, front and rear, is designed to help support the roof of the motor vehicle. Cracks or starbursts can reduce the structural integrity of the windshield. Any crack six inches or longer anywhere on the windshield, a crack three inches in length inside the critical area (wiper sweep), starbursts larger than one inch in diameter in the critical area, or a missing windshield shall be cause for inspection failure.

9. Rearview mirrors. The rearview mirror shall be attached to the inside of the windshield. The mirror shall not be broken or missing, and shall be in good working condition.

10. Side mirrors. The side mirrors shall be attached to the sides of the motor vehicle according to the manufacturer's specifications. The mirrors shall not be broken, or missing, and shall be in good working condition.

11. Window tint. No window on a motor vehicle may have a visible light transmittance of less than 35 percent. Windshields, specifically, may not have a visible light transmittance of less than 70 percent, with the exception of the manufacturer's standard installed shade band, which reduces the visible light transmittance in the uppermost portion of the windshield. (The shade band should not exceed six inches from the top of the windshield, or below the AS1 line on the windshield.)

12. Exhaust and muffler. The muffler and exhaust system shall be in good working order and in constant operation to prevent excessive or unusual noise, annoying smoke, escape of excessive gas, steam or oil, and to prevent entrain carbon monoxide from entering the vehicle. The exhaust system shall extend pass the rear bum-

per or exit near the rear tires on the motor vehicle according to the manufacturer's specifications.

(Ord. No. 5317, § 21-310, 7-21-2009; Ord. No. 5559, § 2, 9-2-2014)

Sec. 11-64-11. Motorcycle/motor scooter inspections.

An annual safety inspection is required on motorcycles and motor scooters that are registered in the city. These inspections are performed at the motor vehicle inspection stations. The following items shall be inspected:

1. Vehicle identification number.
2. Turn signals. The turn signals and components shall function according to the manufacturer's specifications. Both the left and right turn signals on the front and rear of the motor vehicle must be operational. No aftermarket lens that reduces the candle light power should be affixed to the motor vehicle. The lights shall be in good working condition and operational in accordance with state law.
3. Headlights. The headlights and components shall function according to the manufacturer's specifications. The headlight or headlights must be operational and aligned properly. The dimmer switch must change the headlights from high to low beam. No aftermarket lens that reduces the candle light power should be affixed to the motor vehicle. No device or lens may impair the direction or intensity of the headlights.
4. Brake lights. The brake lights and lens shall function according to the manufacturer's specifications. The brake lights must illuminate bright in a steady state when the brakes are applied. This must occur when headlights are in the on and off state. Oscillating or flashing brake lights are legal for emergency vehicles only. No aftermarket lens that reduces the candle light power should be affixed to the motor vehicle. The lights shall be in good working condition and operational in accordance with state law.
5. Rearview mirrors. Two rearview mirrors shall be securely mounted. The mirrors must not be broken, missing, tarnished, or peeling.
6. Muffler and exhaust. The muffler and exhaust system shall be in good working order with a sound baffling device inside the tailpipe. Motor vehicle noise level will be checked in accordance with section 11-56-2.

(Ord. No. 5317, § 21-311, 7-21-2009)

Sec. 11-64-12. Procedure when vehicle found defective.

A. If any motor vehicle fails to pass the windshield safety inspection provided for in this chapter, the registered owner of such motor vehicle shall be allowed 14 days from the date the motor vehicle registration expires to make repairs or corrections in order that such vehicle shall pass such inspection. The owner of such motor vehicle shall be required to resubmit the motor vehicle for inspection within 14 days to pass the required inspection.

B. If any motor vehicle fails to pass the emissions test provided for in this chapter, the registered owner of such motor vehicle shall be provided an inspection certificate stating the date the emissions test was administered and failed and shall be allowed 30 days from the date the vehicle registration expires, in accordance with T.C.A. § 55-4-128(a), to make repairs or corrections in order that such motor vehicle shall pass such test. The owner of such motor vehicle shall be required to resubmit the motor vehicle for inspection until such motor vehicle successfully passes the emissions test requirements.

C. If any motor vehicle fails inspection, excluding the emissions testing, the owner of such motor vehicle shall resubmit the motor vehicle for re-inspection of the failed items within 30 days from the date of failure. Should the owner fail to comply with this provision, the motor vehicle shall be subject to all inspection requirements as specified in section 11-64-2.

D. If, in the opinion of the police director, or his or her designated agent, the director of the division of public services and neighborhoods or his or her designated agent, any motor vehicle is so defective as to make it dangerous to the public to allow such motor vehicle to be operated on the public streets and highways, the time period, as specified in subsections A and B of this section, allowed for repair may be denied and the owner or driver of such motor vehicle shall take same immediately to a place of repair and, until same passes inspection, shall not operate same except to the place where it is to be repaired and to return same to the municipal testing station.

(Code 1967, § 23-90; Code 1985, § 21-303; Ord. No. 390, §§ 3, 4, 1-28-1969; Ord. No. 3306, § 1, 7-5-1983;

Ord. No. 3497, § 1(1), 10-1-1985; Ord. No. 3591, § 1, 8-5-1986; Ord. No. 5317, § 21-312, 7-21-2009; Ord. No. 5343, 1-26-2010)

Sec. 11-64-13. Director of public services and neighborhoods authorized to promulgate rules and regulations regarding inspection of vehicles.

The director of public services and neighborhoods is authorized to promulgate rules and regulations subject to approval of the council for the inspection of motor vehicles, setting forth the equipment of such motor vehicles to be inspected in accordance with the standards and provisions of this title and such other standards as approved in such rules and regulations.
(Code 1967, § 23-95; Code 1985, § 21-307; Ord. No. 573, § 4, 10-28-1969; Ord. No. 5317, § 21-313, 7-21-2009)

CHAPTER 11-68. MISCELLANEOUS TRAFFIC REGULATIONS

Sections:

Sec. 11-68-1. Use of roller skates and coasters in roadway.
Sec. 11-68-2. Clinging to moving vehicles.
Sec. 11-68-3. Boarding or alighting from vehicle in motion.
Sec. 11-68-4. Riding on a portion of vehicle not intended for passengers.
Sec. 11-68-5. Deposit of glass and nails in street prohibited—Removal of same.

Sec. 11-68-1. Use of roller skates and coasters in roadway.

No person upon roller skates or a skateboard or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway except while crossing a street on a crosswalk; and when so crossing, such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians.
(Code 1967, § 23-10; Code 1985, § 21-14)

Sec. 11-68-2. Clinging to moving vehicles.

No person riding upon any roller skates, skateboard, sled, toy vehicle or other means of locomotion shall hang onto, catch hold of or otherwise attach himself or herself to a moving vehicle for the purpose of being propelled thereby along the street.
(Code 1967, § 23-11; Code 1985, § 21-15)

Sec. 11-68-3. Boarding or alighting from vehicle in motion.

No person shall board or alight from any vehicle while such vehicle is in motion.
(Code 1967, § 23-12; Code 1985, § 21-16)

Sec. 11-68-4. Riding on a portion of vehicle not intended for passengers.

A. No person shall ride on any vehicle upon any portion thereof not designed or intended for use of passengers except for: (1) a non-minor employee engaged in the necessary discharge of duty; or (2) a non-minor person riding within a truck body in space intended for merchandise.

B. No person driving any vehicle shall knowingly transport on such vehicle any person who is in violation of subsection A of this section.
(Code 1967, § 23-13; Code 1985, § 21-17; Ord. No. 4387, § 1, 2-6-1996)

Sec. 11-68-5. Deposit of glass and nails in street prohibited—Removal of same.

A. No person shall throw or deposit upon any street any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such street. Any person who drops, or permits to be dropped or thrown, any destructive or injurious material upon any street shall immediately remove the same or cause it to be removed.

B. Any person removing a wrecked or damaged vehicle from a street shall remove any glass or other injurious substance dropped upon the street from such vehicle.
(Code 1967, § 23-15; Code 1985, § 21-24)

CHAPTER 11-70. IMMOBILIZATION OF MOTOR VEHICLES BY BOOTING AND COMMERCIAL PARKING LOT TICKETING

Sections:

Sec. 11-70-1. Definitions.
Sec. 11-70-2. Licenses.
Sec. 11-70-3. Application requirements for a booting and ticketing license.
Sec. 11-70-4. Booting and ticketing permit required for employees; permit fee; identification badge.

Sec. 11-70-5. Licensee responsibilities—Compliance required.
Sec. 11-70-6. Notices at time boot device is installed.
Sec. 11-70-7. Notices at time ticket is issued.
Sec. 11-70-8. Booting fees.
Sec. 11-70-9. Ticketing fees.
Sec. 11-70-10. Signage—Unpaid parking violations.
Sec. 11-70-11. Immediate release of vehicle required; payment of unpaid parking fees.
Sec. 11-70-12. Prohibited acts.
Sec. 11-70-13. Hearings for license application.
Sec. 11-70-14. Hearing for suspension, revocation or probation and after refusal to renew license or permit.
Sec. 11-70-15. Making false statement—Power not to grant application.
Sec. 11-70-16. Severability.

Sec. 11-70-1. Definitions.

As used in this chapter, the following words and phrases shall have the meaning ascribed to them in this section, except as otherwise may be provided or unless a different meaning is plainly required by the context:

Attended commercial parking lot means a lot or garage used for the temporary storage of passenger cars or trucks for a fee, and that is staffed by an attendant at all times vehicles are parked. Attended commercial parking lots do not include residential parking areas.

Booting means the attachment of any device to a vehicle that prevents the vehicle from being driven.

Booting and ticketing license means a license issued by the transportation licensing commission authorizing the holder thereof to engage in the business of booting and/or enforcement of commercial parking lot time limits by ticketing within the area of the metropolitan government.

Booting service means a person, business, or firm engaged in the practice of booting for a fee or other compensation within the area of the metropolitan government, provided that the vehicle's owner/lien holder, a metropolitan police officer in the performance of his/her official duty, or a parking patrol officer for a college or university engaging in the practice of booting shall not be considered a booting service.

Business parking lot means a parking lot or garage for use by patrons of a particular business or businesses for which no parking fee is charged.

Commercial parking lot means either an unattended commercial parking lot or attended commercial parking lot.

Ticketing means charging a penalty to a motor vehicle that is parked in a commercial parking lot as a means of enforcing parking lot policies, in lieu of booting or towing.

Unattended commercial parking lot means a lot or garage used for the temporary storage of passenger cars or trucks for a fee, and that is not staffed by an attendant. Unattended commercial parking lots do not include residential parking areas.
(Ord. No. 5679, § 41.5-1, 3-6-2018)

Sec. 11-70-2. Licenses.

No person shall engage in the business of providing booting services, neither installing nor removing, within the City of Memphis without first obtaining and keeping in force a booting and ticketing license issued by the permits office. An applicant for a booting and ticketing License must be at least 18 years of age.
(Ord. No. 5679, § 41.5-2, 3-6-2018)

Sec. 11-70-3. Application requirements for a booting and ticketing license.

A. Every application for, and renewal of, a license under this chapter, shall, at a minimum, contain, or in the case of license renewal confirm, the following information:

1. If the applicant is an individual:
    a. The applicant's full name, residence address, business address, business, home and cellular telephone numbers, and e-mail address;
    b. The name and telephone number of an emergency contact person;
    c. The applicant's date of birth and social security number;
    d. Proof that the applicant is at least 18 years of age;
2. If the applicant is a corporation:
    a. The applicant's name, the name under which the applicant is doing business, the

applicant's address, the business' address, the applicant's telephone number and the business location's telephone number;

b. The date and state of incorporation;

c. The name, residence address and residence telephone number of all controlling persons;

d. The date of birth and social security number of all controlling persons;

e. The name and telephone number of an emergency contact person;

f. Proof that all controlling persons are at least 18 years of age;

g. Proof that the corporation is in good standing under the laws of the State of Tennessee.

h. A current background check (no more than 90 days old) based upon Fair Credit Reporting Act standards on all persons owning five percent or greater of all outstanding stock. The city, through the permits office, reserves the right to deny a permit based on the content of the report which can be appealed to the Memphis Transportation Commission within ten days of such denial.

3. If the applicant is a partnership or limited liability company:

a. The applicant's name, the name under which the applicant is doing business, the applicant's address, the business' address, the applicant's telephone number and the business location's telephone number;

b. The name, residence address, residence telephone number, date of birth and social security number of all partners, if a general partnership; of all general and limited partners, if a limited partnership; of all managers, managing members and members, if a limited liability company; and of all controlling persons;

c. The name and telephone number of an emergency contact person;

d. Proof that all controlling persons are at least 18 years of age;

e. A current background check (no more than 90 days old) based upon Fair Credit Reporting Act standards on all controlling persons. The city, through the permits office, reserves the right to deny a permit based on the content of the report which can be appealed to the Memphis Transportation Commission within ten days of such denial.

4. If the applicant seeks to do business under an assumed name, proof of compliance with State of Tennessee relevant laws;

5. A description of the activities and services, as applicable, that the applicant will carry on or provide at the licensed premises;

6. Whether the business activity at the location meets the requirements of the City of Memphis Zoning Ordinance;

7. The license fee; and

8. Any other information or requirements that the permits office and/or the Memphis Transportation Commission may reasonably require in connection with issuance or renewal of a license.

B. It is a condition of the license that all information in the license application is kept current. The licensee shall report to the permits office any change in the above required information within ten business days of such change.

C. The permits office shall be responsible for issuing any required license shall promulgate rules and regulations to provide for situations where any of the information required in subsection (A) of this section or in a specific license in the case of license renewal confirm, the following information:

1. If the applicant is sole proprietor:

a. The applicant's full name, residence address, business address, business, home and cellular telephone numbers, and e-mail address;

b. The name and telephone number of an emergency contact person;

c. The applicant's date of birth and social security number;

d. Proof that the applicant is at least 18 years of age;

2. If the applicant is a corporation:
   a. The applicant's name, the name under which the applicant is doing business, the applicant's address, the business' address, the applicant's telephone number and the business location's telephone number;
   b. The date and state of incorporation;
   c. The name, residence address and residence telephone number of all controlling persons;
   d. The date of birth and social security number of all controlling persons;
   e. The name and telephone number of an emergency contact person;
   f. Proof that all controlling persons are at least 18 years of age;
   g. Proof that the corporation is in good standing under the laws of the State of Tennessee;
3. If the applicant is a partnership or limited liability company:
   a. The applicant's name, the name under which the applicant is doing business, the applicant's address, the business' address, the applicant's telephone number and the business location's telephone number;
   b. The name, residence address, residence telephone number, date of birth and social security number of all partners, if a general partnership; of all general and limited partners, if a limited partnership; of all managers, managing members and members, if a limited liability company; and of all controlling persons.

D. No license to operate a booting and ticketing service shall be issued, become effective, or continue in force or effect unless all insurance requirements, as determined by the risk management office of the city, and proof thereof are submitted in a form prescribed by the city prior to the issuance of a license.

E. The fee for a booting and ticketing license shall be $500.00. Booting and ticketing licenses expire annually on December 31 and the renewal fee shall be $250.00.
(Ord. No. 5679, § 41.5-3, 3-6-2018)

Sec. 11-70-4. Booting and ticketing permit required for employees; permit fee; identification badge.

A. An employee of a booting or ticketing service that engages in the practice of installing and removing booting devices from vehicles or enforcing commercial parking lot parking time limits through ticketing shall possess a permit issued by the permits office and meet the same requirement, qualifications and training deemed necessary by the Memphis Transportation Commission.

B. Every application for, and renewal of, a permit under this chapter, shall, at a minimum, contain, or in the case of permit renewal confirm, the following information:

1. The applicant's full name, residence address, business address, business, home and cellular telephone numbers, and e-mail address;
2. The name and telephone number of an emergency contact person;
3. The applicant's date of birth and social security number.
4. A current background check (no more than 90 days old) than based upon Fair Credit Reporting Act standards. The city, through the permits office, reserves the right to deny a permit based on the content of the report which may be appealed to the Memphis Transportation Commission within ten days of such denial.

C. The fee for a booting and ticketing permit shall be $10.00 per employee. Booting and ticketing permits shall expire annually on December 31 and the renewal fee shall be $10.00.

D. All person engaged in the act of booting or ticketing shall wear an identification badge including the person's first and last name, the name of the company, and the permit number of the employee.
(Ord. No. 5679, § 41.5-4, 3-6-2018)

Sec. 11-70-5. Licensee responsibilities—Compliance required.

A. No licensee shall permit any of its employees while engaged in the practice of booting or ticketing to engage in activities or practices contrary to the public safety or welfare or contrary to the proper discharge of their duties in the course of their employment.

B. Licensee shall be responsible for its employees complying with the ordinances of the City of Memphis, the State of Tennessee, the United States and rules and regulations of the Memphis Transportation Commission and the permits office which reflect on the fitness of such employees to be employed in the operation of a booting and/or ticketing service, and violations by the employees of a licensee shall be cause for revocation, suspension, probation or failure to renew the licensee of the licensee and the permits of the employees.
(Ord. No. 5679, § 41.5-5, 3-6-2018)

Sec. 11-70-6. Notices at time boot device is installed.

A. A notice must be affixed using temporary adhesive to the driver side window of every vehicle for which a booting device is installed.

B. Such notice shall measure not less than five inches in width and seven inches in height, and shall include the following information:

1. A warning not to move the vehicle. Such warning shall expressly state that movement of the vehicle may cause damage to the vehicle.
2. The reason for and date and time of immobilization.
3. The name of the booting service and a 24-hour telephone number at which the booting service can be reached.
4. The fee required for removal of the booting device.
5. A reference to chapter 11-70 of the City of Memphis Municipal Code regulating booting of vehicles.
6. "If you believe you have been booted improperly, please contact the City of Memphis Permits Office at (901) 636-6711".

(Ord. No. 5679, § 41.5-6, 3-6-2018)

Sec. 11-70-7. Notices at time ticket is issued.

A. A notice must be affixed using temporary adhesive to the driver side window of every vehicle for which a ticket is issued. Such notice shall measure not less than five inches in width and seven inches in height, and shall include the following information:

1. The reason for and date and time of ticket.
2. The name of the ticketing service and a 24-hour telephone number at which the ticketing service can be reached.
3. The fee required by the ticket.
4. A reference to chapter 11-70 of the City of Memphis Municipal Code regulating booting and ticketing of vehicles.
5. "If you believe you have been ticketed improperly, please contact the City of Memphis Permits Office at (901) 636-6711".

(Ord. No. 5679, § 41.5-7, 3-6-2018)

Sec. 11-70-8. Booting fees.

A. Booting company licensees shall maintain 24-hour telephones and wheel locking device removal services, and shall respond to a request to remove a wheel locking device within 30 minutes. If a licensee or permittee does not appear to remove the wheel locking device within one hour of a request from the owner or operator of the vehicle, the locking device shall be removed at no charge.

B. If the owner or operator of a motor vehicle that is parked without authorization on private property attempts to retrieve said vehicle before booting actually occurs there shall be no fee and the vehicle owner shall be allowed to remove the vehicle without further delay.

C. The maximum fee which may be charged for boot removal shall not exceed $50.00 and there shall be no other fees charged related to removal of the boot.

D. A booting licensee must accept payment by at least three of the following means:

1. Check;
2. Cash;
3. VISA;
4. MasterCard;
5. American Express.

E. There shall be no additional fee charged for the use of credit cards.

F. Booting fees shall not be charged in conjunction with ticketing and/or towing fees. An itemized receipt for all fees collected on site must be provided to payee. Unpaid parking fees, if any, must be listed separately from any booting or ticketing fees.
(Ord. No. 5679, § 41.5-8, 3-6-2018)

Sec. 11-70-9. Ticketing fees.

A. A motor vehicle that is parked on private property without authorization may be ticketed in lieu of booting or towing.

B. If the owner or operator of a motor vehicle that is parked without authorization on private property attempts to retrieve said vehicle before ticketing actually occurs there shall be no fee and the vehicle owner shall be allowed to remove the vehicle without further delay.

C. The maximum fee which may be charged by ticketing shall not exceed two times the maximum daily rate, and shall not exceed $50.00. There shall be no other fees charged related to the ticket.

D. A ticketing licensee must accept payment by at least three of the following means:

1. Check;
2. Cash;
3. VISA;
4. MasterCard;
5. American Express.

E. Ticketing fees shall not be charged in conjunction with booting and/or towing fees. An itemized receipt for all fees collected on site must be provided to payee. Unpaid parking fees, if any, must be listed separately from any booting or ticketing fees.
(Ord. No. 5679, § 41.5-9, 3-6-2018)

Sec. 11-70-10. Signage—Unpaid parking violations.

A. No boot or ticket shall be placed on a vehicle parked at a commercial parking lot unless there is a permanently placed sign affixed measuring not less than 24 inches in height and 18 inches in width is placed at all points of vehicular ingress to the lot, which sign shall include the following information in red lettering no less than four inches in size on a white background, as follows:

Parking Policy Strictly Enforced

Violators will be Booted, Ticketed, or Towed at Owner's Expense

$50.00 Maximum Booting fee

Ticketed Fee is two times the daily rate, $50.00 Maximum

(Name and 24-hour phone number of booting and/or towing company)

Complaints? Contact the City of Memphis Permits Office (901) 636-6711

B. Such signs shall be not less than 42 and not more than 72 inches from the ground.

C. If a vehicle is booted, ticketed, or towed as a result of a property owner's request and the property owner has not complied with the requirements of subsection (A) above, the property owner shall be guilty of a misdemeanor and may, in the discretion of the municipal judge, subject to a fine.
(Ord. No. 5679, § 41.5-10, 3-6-2018)

Sec. 11-70-11. Immediate release of vehicle required; payment of unpaid parking fees.

A. If a boot is placed on a vehicle parked at an unattended commercial parking lot for failure to pay the required parking charge, the vehicle must be immediately released upon making the $50.00 fee available to the booting company.

B. If a ticket is placed on a vehicle parked at an unattended commercial parking lot for failure to pay the required parking charge, the ticket must provide a mailing address to send the ticket fee and no immediate payment will be required. If a ticket is placed on a vehicle parked at an attended commercial lot, the vehicle must be immediately released upon making the ticket fee available to the parking attendant.

C. The owner or operator of a commercial parking lot may require the owner of the vehicle to pay all unpaid parking fees, which shall be based on the applicable rates during the time the vehicle was parked. Only the owner or its designated agent may collect the unpaid parking fees, but neither the booting, ticketing, nor towing company may serve as the designated agent for the purpose of collecting the unpaid parking fees. No vehicle may be withheld to collect unpaid parking fees if the vehicle owner has paid a booting or ticketing fee.
(Ord. No. 5679, § 41.5-11, 3-6-2018)

Sec. 11-70-12. Prohibited acts.

It is declared that the following acts are prohibited and unlawful and the license or permit of any person doing such acts may be revoked, suspended, placed on probation or not renewed:

A. No vehicle affixed with a boot may be towed unless the owner of the vehicle fails to contact the booting company within 24 hours of the notice. All towed vehicles are subject to compliance with local ordinances.

B. No vehicle may be immobilized or ticketed without proof that the vehicle was illegally parked.

C. Failure to remove a booting device within one hour of being contacted by the owner or operator of the vehicle that has been booted.

D. For a booting and/or ticketing service to make any payment to an owner, employee, agent, or person in possession of a commercial parking lot in excess of the reasonable and customary parking fee ordinarily charged by the parking lot thereon.

E. For any vehicle immobilization service to be licensed hereunder if that vehicle immobilization service is also engaged in the business of a parking lot or property where booting services are being performed.

F. For any vehicle immobilization service and owner of a parking lot or property where booting services are being performed to have any financial arrangement which result in a financial benefit related to the booting services.

G. Any failure to comply with the requirements of chapter 11-70.
(Ord. No. 5679, § 41.5-12, 3-6-2018)

Sec. 11-70-13. Hearings for license application.

A. Prior to the issuance of any license provided per this chapter, the Memphis Transportation Commission shall hold a hearing for the applicant after giving the applicant at least a 15-day notice of the time and place of such hearing.

B. The Memphis Transportation Commission is empowered to make all such rules and regulations which it considers necessary and proper for any hearings provided for by this chapter.
(Ord. No. 5679, § 41.5-13, 3-6-2018)

Sec. 11-70-14. Hearing for suspension, revocation or probation and after refusal to renew license or permit.

A. *Hearing before permits administrator.* If it appears that a booting or ticketing company has violated any permit holder has violated any of the aforementioned requirements or rules and regulations, the permits administrator shall have the authority to conduct a hearing with the booting/ticketing service representatives and/or license holder upon 48 hours' notice. If violations are found to have occurred, the permits administrator may suspend the license and/or permit up to a period not to exceed ten days and/or administer a fine in conjunction with the rules and regulations of the Memphis Transportation Commission. Upon expiration of the suspension, the booting/ticket license and/or permit will not be reinstated until such time that the requirement, rule or regulation violation is corrected and the booting/ticketing company meets all provisions of this chapter. Any decision by the permits administrator may be appealed within five days to the transportation commission.

B. *Appeal hearing before transportation commission.* At such any appeals hearing before the transportation commission the booting/ticketing company shall be allowed to answer such charges and respond to the decision of the permits administrator. The rules and regulations of the transportation commission shall apply for any penalties levied against the booting/ticketing company including but not limited to fines, suspensions, probation and/or revocations. Penalties are not subject to appeal, as the decision of the transportation commission being final.
(Ord. No. 5679, § 41.5-14, 3-6-2018)

Sec. 11-70-15. Making false statement—Power not to grant application.

Any person making a false statement in any application required by the permits office shall forfeit his permit and shall not be eligible to receive or hold a permit from permits office for a period of five years. The Memphis Transportation Commission shall have the power not to issue any permit when it finds that such issuance would interfere with the public health, safety, and welfare of the residents of the city.
(Ord. No. 5679, § 41.5-15, 3-6-2018)

Sec. 11-70-16. Severability.

If any section, subsection, sentence, clause, phrase, word or any other part of this chapter shall be declared unconstitutional or invalid by a court of competent authority, then the remainder of this chapter shall not be affected and shall remain in full force and effect.
(Ord. No. 5679, § 41.5-16, 3-6-2018)

MEMPHIS, TENNESSEE

MUNICIPAL CODE*

2007
Volume II

A Codification of the General Ordinances of Memphis, Tennessee

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Title 12

STREETS, SIDEWALKS AND PUBLIC PLACES*

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***Charter references—**Building lines under eminent domain for street widening, §§ 126—136; street lighting on petition of property owners, §§ 388—404; street improvements §§ 546—565; sidewalks, §§ 571—575.

State law reference—Streets and other public improvements, T.C.A. § 7-31-101 et seq.

CHAPTER 12-4. STREETS GENERALLY

Sections:

Sec. 12-4-1. Street improvements generally.
Sec. 12-4-2. Establishment of street grade prior to improvement of street.
Sec. 12-4-3. Removal of improper materials under grading or paving contract.
Sec. 12-4-4. Bus shelters.
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Sec. 12-4-6. Obstructing street lamps.
Sec. 12-4-7. Defacing or injuring streets—Painting house numerals on curb.
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Sec. 12-4-10. Gas and water pipes under streets and sidewalks.
Sec. 12-4-11. Flashing lights projecting revolving beam upon or in view of streets—Removal when interfering with traffic.
Sec. 12-4-12. Notice of excavation or site preparation work in utility easements.

Sec. 12-4-1. Street improvements generally.

Streets and public thoroughfares shall be paved and otherwise improved in such manner and with such materials as the city council may prescribe by ordinance or resolution. If any improvement is made on the front foot or district improvement plan, the provisions of the statutes authorizing such improvements shall be strictly followed, and each and every officer of the city shall follow the provisions of such statutes governing his or her powers and duties.
(Code 1967, § 36-1; Code 1985, § 34-1)

Charter references—Improvements under front-foot assessment law, §§ 503—545; improvements under district plan, §§ 546—565.

Sec. 12-4-2. Establishment of street grade prior to improvement of street.

The city engineer shall fix the official grade of any street or public thoroughfare in the city before such thoroughfare may be improved, or before an ordinance or resolution providing for such improvement may be passed. In such event, he or she shall deposit in the records of his or her office a copy of the survey or plan establishing such grade, and thenceforward the grade so established shall be conclusively held to be the official or established grade of such street or public thoroughfare.
(Code 1967, § 36-2; Code 1985, § 34-2)

Sec. 12-4-3. Removal of improper materials under grading or paving contract.

All contracts for grading and paving any street or wharf shall contain a provision that if the contractor or any other person shall bring, or cause to be brought, on the street or wharf, any materials which do not strictly conform to the contract or city ordinances, the city engineer, or other proper officer of the city, shall, on behalf of the city, have the right to order the same to be removed forthwith from such street or wharf. In case of neglect or refusal of the contractor, or those employed by him or her, to remove such material, then the engineer may cause such material to be removed at the expense of the contractor, and to deduct the expense of such removal, and all other expenses thereon, from the account of the contractor.
(Code 1967, § 36-3; Code 1985, § 34-3)

Sec. 12-4-4. Bus shelters.

The purpose of this section and legislation is to establish the procedure for the approval of site locations for bus shelters to be constructed on sidewalks by any company or companies contracting with the city or MATA to provide such shelters ("government contractor"). Any shelter(s) meeting the criteria set forth below shall be approved by the city engineer. If there is any dispute regarding a particular shelter's location, the government contractor shall, after exhaustion of its appeal to the CAO, have the right to appeal to the Memphis City Council Transportation Committee. The Memphis City Council Transportation Committee shall review the matters presented and may, at its option, adopt a recommendation of Memphis City Council action. The appeal will then be submitted to the Memphis City Council for a final and binding decision by a simple majority of those members present. The site approval procedure for any bus shelter constructed entirely on a city sidewalk is as follows:

A. MATA will determine which proposed transit shelters are acceptable for construction in accordance with MATA's routes, and the criteria set forth below. MATA will deliver approved lists, of not more than 20 shelters each week, to the city engineering division. For each approved site location, the government contractor will also submit a detailed schematic diagram which shows major site features, distances from adja-

cent driveways and intersections, etc., as prescribed by MATA's administrative procedures memorandum.

B. The city engineering division will have five working days to accept or reject MATA's list of approved site locations. If the city engineering division has not responded at the end of five days, the locations will be deemed to have been approved by the city engineering division. At the government contractor's request and upon payment of the fee, the city engineering division will immediately issue a sidewalk cut permit to the government contractor for each approved site location.

C. For any location properly rejected in compliance herewith by the city engineering division, the city engineering division will highlight the rejected locations and send a copy of the highlighted list to MATA, the government contractor, and the CAO along with the reasons why each shelter has been rejected. Within five working days from receipt of such rejection, the CAO will make a written determination of whether or not the disputed site locations are approved.

D. If the CAO is unable to act within five working days because of vacation or other absences from the office, the CAO's secretary will notify MATA, the government contractor and the engineering division of such absence, and will specify a date for a decision not more than five days after his or her return to the office. If MATA does not receive a written decision from the CAO within the time specified, the locations will be deemed to have been approved. At the government contractor's request and upon payment of the fee, the city engineering division will immediately issue a sidewalk cut permit to the government contractor for each approved site location.

E. If dissatisfied with the decision of the CAO, the government contractor shall have the right to appeal to the Memphis City Council Transportation Committee. The Memphis City Council Transportation Committee shall review the matters presented and may, at its option, adopt a recommendation of Memphis City Council action. The appeal will then be submitted to the Memphis City Council for a final and binding decision by vote of a simple majority of those present.

F. The city engineer shall follow the criteria listed below to determine the site locations which should be approved for bus shelters pursuant to this title:

1. Following receipt of MATA's approval of a site at a signalized public intersection, the city engineer shall approve a shelter located within 25 feet of the approved MATA site at a signalized intersection. Irrespective of such approval, the city engineer may require that additional traffic control devices be installed at such intersection where necessary for public safety. Such installation shall be at the expense of the government contractor; provided, however, that the city engineer may approve a distance greater than 25 feet from the originally MATA approved site, if any only if MATA also approves the greater distance.

2. Any existing MATA shelter shall be approved for retrofitting, including movement at the site, by the government contractor, although such shelter may not be moved more than 25 feet from its existing location; provided, however, that the city engineer may approve a distance greater than 25 feet from the originally MATA approved site, if and only if MATA also approves the greater distance.

3. In the event that the placement of a shelter is near a private drive or access point, the shelter shall be placed outside the required site triangle prescribed in the current Memphis and Shelby County subdivision landscape requirements.

4. If any shelter herein is or may be partially or totally constructed on private property, the shelter may be approved for construction by the city engineer if the Memphis and Shelby County Office of Construction Code Enforcement determines the shelter to be in compliance with applicable ordinances of the city and Shelby County.

(Code 1985, § 34-4; Ord. No. 4364, § 1, 10-10-1995)

Sec. 12-4-5. Street obstructions.

A. It is unlawful to obstruct the public streets, alleyways or rights-of-way with boxes, barrels, or any other thing, or any kind of obstruction whatsoever, or permit trees, shrubs or other foliage to project into the street or alleyway so as to impair the vision or passage of motorists.

B. It shall be a misdemeanor to place, or cause to be placed, any manner of buildings, erections, depositories, overhanging banners, temporary barriers marking off portions of streets, or other obstructions, with any sort of permanency for private use, benefit, or profit, upon any part or portion of the public grounds, thoroughfares, or passageways of the city, except for emergencies arising or repairs being made by city forces, without approval of the city treasurer, and issuance of a permit by the city treasurer, or his or her designee.
(Code 1967, § 36-5; Code 1985, § 34-5; Ord. No. 837, § 3, 1-12-1971; Ord. No. 4352, § 7, 8-15-1995)

Sec. 12-4-6. Obstructing street lamps.

It shall be a misdemeanor for any person to place any sign or other thing so as to obstruct the light from any street lamp. Failure to remove any such obstruction within five days after notice by the police to do so shall constitute a separate offense.
(Code 1967, § 36-5.1; Code 1985, § 34-6)

Sec. 12-4-7. Defacing or injuring streets—Painting house numerals on curb.

It is unlawful for any person to disturb, deface, injure, damage or alter the face of any street, thoroughfare or public place unless he or she shall have first obtained a permit from the city engineer as provided for by section 12-8-1; provided, further, that painting of numerals of the legally assigned house number on the curb immediately in front of a building or structure shall not be an act prohibited in this section when conforming to the following specifications: no deviation shall be allowed from use of standard block Arabic numerals, and no other embellishments, background coloring (other than white, immediately beneath numerals in an area not to exceed five inches in height and 24 inches in length), nor any script lettering shall accompany the numerals.

In the event the city should inadvertently or advertently remove or deface numerals so placed on street curbs, the city assumes no responsibility for the replacement or maintenance of such numbering and all maintenance or replacement remains the responsibility of the owner/occupant.
(Code 1967, § 36-6; Code 1985, § 34-7; Ord. No. 3164, § 1, 10-6-1981; Ord. No. 3590, § 1(1), 9-2-1986)

Sec. 12-4-8. Oil not to be spilled on asphalt pavements.

It is unlawful for any person to permit oil to drip, spill or fall upon any asphalt pavement of the city.
(Code 1967, § 36-7; Code 1985, § 34-8)

Sec. 12-4-9. Curb service.

The serving of food and drinks and the sale of other merchandise to passengers in vehicles in streets is prohibited.
(Code 1967, § 36-8; Code 1985, § 34-9)

Sec. 12-4-10. Gas and water pipes under streets and sidewalks.

A. It is unlawful to lay down any new water or gas pipes within the limits of the city less than three feet below the base of sidewalks. The city engineer shall furnish a certificate of the grade. No pipes shall be put down under the pavement or roadbed, except when necessary to connect with pipes already laid.

B. All water and gas connection pipes, from mains in the streets of the city to the connection with buildings, shall be of a type approved by the light, gas and water division.

C. Whenever a street is to be paved, the gas and water companies are required to put in house connection pipes every 25 feet to prevent the taking up of the streets after they are paved.
(Code 1967, § 36-9; Code 1985, § 34-10)

Sec. 12-4-11. Flashing lights projecting revolving beam upon or in view of streets—Removal when interfering with traffic.

The director of police services is authorized and directed to determine whether any existing flashing light interferes with vehicular traffic on any street so as to constitute a traffic hazard. When such determination is made in the affirmative, the director of police services shall notify the owner or operator thereof to remove such light within ten days thereafter. Each and every day's

continued operation of such light after the expiration of such ten-day period shall constitute a new and separate offense hereunder.
(Code 1967, § 36-11; Code 1985, § 34-11)

Sec. 12-4-12. Notice of excavation or site preparation work in utility easements.

All persons, including all public and private utilities, doing land site preparations within recorded utility easements where such site preparation involves dirt moving and grading for residential, commercial or industrial developments, shall file with the city engineer and the city light, gas and water division right-of-way department a notice of the proposed excavation or site preparation, including the exact location thereof, and a general description of the work proposed, which notice shall be given at least 20 days prior to the commencement of work. Street work done in accordance with engineering plans submitted to and reviewed by the city engineer shall be excepted from this notification requirement. Such notice shall be registered and records kept in the city engineer's office showing information concerning the exact location of such excavation or site preparation and the general purpose for which it is made.
(Code 1967, § 36-12; Code 1985, § 34-12; Ord. No. 2413, § 1, 4-27-1976; Ord. No. 3047, § 1(1), 8-12-1980)

CHAPTER 12-8. STREET CUTS

Sections:

Sec. 12-8-1.	Permit required.
Sec. 12-8-2.	Records relative to permits.
Sec. 12-8-3.	Work to be performed diligently—Expiration of permit if work not begun in 90 days.
Sec. 12-8-4.	Intersections to be kept open.
Sec. 12-8-5.	Warnings to be displayed.
Sec. 12-8-6.	Refilling of trench.
Sec. 12-8-7.	Notice when opening is repaired and ready for traffic.
Sec. 12-8-8.	Liability of permit holder for damages.
Sec. 12-8-9.	Standards of workmanship for repairing surfaces.
Sec. 12-8-10.	Period for which repairs must be maintained—Costs of permits.

Sec. 12-8-1. Permit required.

It is unlawful for any public or private utility, individual, or city or county department to cut or dig into or open any pit or trench, or to grade or excavate any pavement, gutter, sidewalk, lawn strip, neutral strip or any other portion of any city rights-of-way or easement, or for any railroad company having tracks upon, along or across any city rights-of-way or easement to repair such tracks or any of the appurtenances thereto, or for any pole company having pole lines upon the rights-of-way or easement or any company having conduits, mains or pipes under the surface of the rights-of-way or easement, to do any work in connection therewith by which any parts of any surface of a city right-of-way or easement is to be cut or disturbed, without having first obtained from the city engineer a permit to do such work. A copy of the permit shall be posted as the site of the work and be maintained until the work has been inspected and approved by the city engineer or his or her representative.
(Code 1967, § 36-38; Code 1985, § 34-51; Ord. No. 3047, § 1(3), 8-12-1980; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-8-2. Records relative to permits.

A. The city engineer shall provide in his or her office a well-bound book so designed as to form a record of applications for permits to make openings in the pavements, sidewalks, gutters, lawn strips, neutral strips and other portions of the streets and all other thoroughfares and a history by inspection of such opening during the period of construction and maintenance hereinafter provided for. This book shall show the serial number of the application, name of applicant, the street number at the point where the opening is to be made, or in the absence of a number, the distance to the nearest intersecting street shall be given, and the distance from the curb or from the property line, the kind of surface to be cut, the character of foundation, the size of opening to be made, the number of the permit, the completion date and the date that the maintenance period expires during which time the utility responsible shall maintain such street cut.

B. The caption of each page of the book shall be such that the applicant agrees, in applying for a permit, to carefully observe the provisions of this chapter and to save the city harmless from any claim for damages by reason of the cut or opening in the surface of the thoroughfare.

C. This book shall be a public record and shall be kept open for inspection by interested persons during office hours.
(Code 1967, § 36-39; Code 1985, § 34-52; Ord. No. 1061, § 1, 9-28-1971)

Sec. 12-8-3. Work to be performed diligently—Expiration of permit if work not begun in 90 days.

The holder of a permit required by this chapter shall perform the work provided for therein with due regard to the public convenience and safety and as expeditiously as possible. Such permits shall expire automatically thereunder unless the work is begun within 90 days after its issuance. Any permit not used within 90 days shall be returned for cancellation or renewal.
(Code 1967, § 36-40; Code 1985, § 34-53)

Sec. 12-8-4. Intersections to be kept open.

All intersections shall be kept open to vehicular and pedestrian traffic at all times by persons performing work authorized by permit issued under this chapter.
(Code 1967, § 36-41; Code 1985, § 34-54)

Sec. 12-8-5. Warnings to be displayed.

Barricades, lights and signs shall be provided and erected to adequately direct traffic and protect the public from the construction site. Signs shall be provided indicating who is in responsible charge of work being done pursuant to a permit issued under this chapter.
(Code 1967, § 36-42; Code 1985, § 34-55)

Sec. 12-8-6. Refilling of trench.

The holder of a permit under this chapter shall, as soon as practicable after finishing the work causing such opening, carefully refill the trench and properly fill the same according to specifications on file in the office of the city engineer.
(Code 1967, § 36-43; Code 1985, § 34-56)

Sec. 12-8-7. Notice when opening is repaired and ready for traffic.

Immediately upon completing the tamping, filling and properly paving the permitted opening, the utility who made such opening shall notify the city engineer's office in writing that the opening has been properly repaired and opened for traffic, stating the number of the permit and location of the opening.
(Code 1967, § 36-44; Code 1985, § 34-57; Ord. No. 1061, § 1, 9-28-1971)

Sec. 12-8-8. Liability of permit holder for damages.

The permit holder, while making the repairs, shall use every precaution required as to barricades, lights and devices for the safety of the public. This section shall not relieve the holder of the permit from responsibilities for accidents, should any occur. It shall be distinctly understood, and the application and permit shall state, that all permit holders making openings shall hold the city and its employees harmless from all damages which may be recovered by reason of injuries received to persons or property on account of such openings.
(Code 1967, § 36-45; Code 1985, § 34-58; Ord. No. 1061, § 1, 9-28-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-8-9. Standards of workmanship for repairing surfaces.

A. All work of repairing surfaces which have been cut or opened shall be done in accordance with the specifications and standards of workmanship of the city engineer and shall be inspected by the city engineer.

B. Should any cut or trench not be refilled in accordance with this chapter, the city engineer may cause such opening to again be excavated and refilled to his or her satisfaction at the expense of the permit holder.

C. The permit holder shall be responsible for total street failure, including changes in sub-base and supporting area, resulting from a water main breakage or from a sewer line breakage that was directly caused by a previous excavation of the permit holder.
(Code 1967, § 36-46; Code 1985, § 34-59; Ord. No. 1061, § 1, 9-28-1971; Ord. No. 3590, § 1(2), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-8-10. Period for which repairs must be maintained—Costs of permits.

A. Surfaces shall be kept in repair by the permit holder responsible for one year from the date of the notice of completion by the permit holder.

B. The city engineer shall cause bills for proper cost of all permits, covering the city's administrative, inspection or other expense, to be sent to all indebted individuals at the end of each month after all work on the opening is complete and the exact number of square yards of street opening is determined. The cost of each permit shall be on a linear foot basis, and determined by the city engineer, and such costs shall be reviewed annually.

C. Should they fail to make settlement for same within 30 days, the accounts shall be placed in the hands of the city attorney for collection. The city engineer shall send a copy of each bill to the city comptroller.
(Code 1967, § 36-47; Code 1985, § 34-60; Ord. No. 1061, § 1, 9-28-1971; Ord. No. 4196, § 1, 8-24-1993)

CHAPTER 12-12. STREET CONCRETE WORK

Sections:

Sec. 12-12-1. Compliance required.
Sec. 12-12-2. Worker's bond—Required—Amount—Conditions.
Sec. 12-12-3. Worker's bond—Renewal.
Sec. 12-12-4. Worker's bond—Breach of conditions.
Sec. 12-12-5. Job permit.
Sec. 12-12-6. When work to be commenced and concluded.
Sec. 12-12-7. Inspection of work—Certificate of approval.
Sec. 12-12-8. Notices to property owners to contain warning.

Sec. 12-12-1. Compliance required.

It is unlawful for any person to engage in the business of laying, constructing or building concrete sidewalks, steps, coping or other form of concrete work in or upon the streets, alleys, highways or public places of the city, except in compliance with the terms of this chapter.
(Code 1967, § 36-20; Code 1985, § 34-31)

Sec. 12-12-2. Worker's bond—Required—Amount—Conditions.

Any person desiring to engage in the business described in section 12-12-1 shall file with the city a bond in the amount of $5,000.00, with some surety company authorized to do business in this state, as surety, conditioned as follows:

Concrete Worker's Bond

Know all men by these presents, that we, _____, as principal, and _____, a surety company authorized to do business in the State of Tennessee, as surety, acknowledge ourselves to be held and truly bound to the City of Memphis in the sum of $5,000.00, for the payment of which sum well and truly to be made, we bind ourselves, our representatives, successors and assigns, firmly by these presents.

But the condition of the above obligation is such that:

Whereas the above bounden principal is desirous of engaging in the business of doing concrete work in or upon the streets, alleys, public places or ways in the City of Memphis for a period of one year from the date hereof; now, if the said principal shall during the term of one year faithfully observe the following regulations of the City of Memphis, to wit:

Shall observe the lines, grades and widths given by the City Engineer, shall not proceed to do any concrete work in the streets, alleys and places in the City of Memphis without specific instruction from the City Engineer, or his authorized subordinates limited to their particular duties; shall do no work until a permit shall have been obtained therefor from the City Engineer, shall cover no stop boxes, valves or meter boxes belonging to any firm, company or individual; shall surround no poles, posts or other objects rightfully occupying the sidewalks unless the same are in their regularly appointed locations adjacent to the curb or edge stone; shall mix or deposit no material loose on the surface of any pavement; shall clear away all rubbish and all forms and materials from the location of the work within 24 hours after the proper completion thereof; and shall do all work so that the same shall have the thickness, proportion, qualities, material and texture called for by the specifications for such work, which may be in force in the City of Memphis; and shall in all other respects observe the terms and regulations of the ordinances of the City of Memphis regulating the work of doing any concrete work in or upon any street, alley, public place or way in the City of Memphis and shall, within ten days after written notice by the City Engineer, remedy any defects that may appear within one year of completion of work, then this obligation shall be void; otherwise to remain in full force and effect.

Witness the hands and seals of the parties hereto, this the ____ day of _____, 20____.

(Seal)

_____

Principal

(Seal)

_____

Surety
(Code 1967, § 36-21; Code 1985, § 34-32; Ord. No. 3047, § 1(2), 8-12-1980)

Sec. 12-12-3. Worker's bond—Renewal.

The bond required by this chapter shall be renewed annually. This renewal shall be filed within three days of the expiration of any bond on file with the city engineer.
(Code 1967, § 36-22; Code 1985, § 34-33)

Sec. 12-12-4. Worker's bond—Breach of conditions.

Upon the failure to abide by the terms and conditions of the bond required by section 12-12-2, the person engaged in such business shall pay to the city such sum as is necessary to repay any injuries done by the nonobservance of the bond and shall immediately place the work in such condition as shall be directed and approved by the city engineer. The city attorney shall, in case of a failure to comply with this section, at once institute proceedings against the principal and surety upon the bond.
(Code 1967, § 36-23; Code 1985, § 34-34)

Sec. 12-12-5. Job permit.

A. Any person desiring to do concrete work governed by this chapter shall, after having filed the required plans and bond, apply in such instance in which it is desired to do work to the city engineer for a permit to do so. This permit shall be issued, provided the bond of the person has not been impaired by previous breaches of the conditions therein contained, and provided, further, that, no sidewalk permits shall be issued for streets or parts thereof until the area proposed to be covered shall have been graded to the true and lawful grade established for such street. The permit shall be posted in plain sight at the job location and shall be maintained until the work is completed, inspected and approved by the city engineer or his or her representative.

B. Whenever any person engaged in concrete work shall have, by breaches of the conditions of the bond required by this chapter, incurred an obligation to the city, to the extent that the bond has been impaired to the sum of $100.00, such person in default shall not be granted any further permit to do concrete work until a satisfactory bond has been filed conditioned as provided in section 12-12-2 for the full penalty therein prescribed.
(Code 1967, § 36-24; Code 1985, § 34-35)

Sec. 12-12-6. When work to be commenced and concluded.

When a permit is granted under this chapter, the work therein specified shall be commenced within three days from the date of the permit, and carried to conclusion in a reasonable time.
(Code 1967, § 36-25; Code 1985, § 34-36)

Sec. 12-12-7. Inspection of work—Certificate of approval.

A. When concrete work governed by this chapter has been completed, it shall be inspected by the city engineer or his or her representative. If such work is found to meet the requirements of all city ordinances regulating such work, the city engineer, on application, shall issue his or her certificate that the work has been inspected and approved as in accordance with provisions of this Code and the terms of the required bond.

B. A property owner, receiving notice requiring concrete work to be done in or about any public place, shall not be held to have complied with such notice until the certificate provided for in this section has been issued to such owner.
(Code 1967, § 36-26; Code 1985, § 34-37)

Sec. 12-12-8. Notices to property owners to contain warning.

Every notice to property owners with reference to concrete work in and about public places required to be done by such property owners, shall contain a warning to the effect that concrete workers are required to be under bond to the city, to observe faithfully the provisions of this chapter, and that, having faithfully observed all city regulations, they are entitled to receive from the city engineer a certificate to that effect.
(Code 1967, § 36-27; Code 1985, § 34-38)

CHAPTER 12-16. STREET THOROUGHFARE DESIGNATIONS AND NAMES

Sections:

Sec. 12-16-1. Designating alleys.
Sec. 12-16-2. Method of naming and renaming.
Sec. 12-16-3. North and South prefixes.
Sec. 12-16-4. East and West prefixes.
Sec. 12-16-5. Thoroughfares on same line to bear same name—Exception.
Sec. 12-16-6. Official map showing names.

Sec. 12-16-7. Reports to post office of changes in names.

Sec. 12-16-1. Designating alleys.

Thoroughfares less than 30 feet in width may be designated as alleys.
(Code 1967, § 36-60; Code 1985, § 34-76)

Sec. 12-16-2. Method of naming and renaming.

When the city shall acquire any street or other thoroughfare by purchase or dedication, the city engineer shall file with the director of public works his or her recommendation of a suitable name of such street or thoroughfare. It shall be the duty of the city council to select a suitable name for such new street. Furthermore, the Memphis City Council may change the official name adopted for City of Memphis streets and other thoroughfares, including streets and other thoroughfares within residential developments, by ordinance duly passed. Any conflicts with the Memphis and Shelby County Unified Development Code shall be made in favor of this section.
(Code 1967, § 36-62; Code 1985, § 34-77; Ord. No. 3047, § 1(4), 8-12-1980; Ord. No. 5459, § 10, 7-17-2012; Ord. No. 5759, § 2, 9-1-2020)

Sec. 12-16-3. North and South prefixes.

Thoroughfares abutting or intersecting Madison Avenue shall carry the prefix "South" for the thoroughfare, or part thereof, lying south of Madison Avenue, and the prefix "North" for the thoroughfare, or part thereof, lying north of Madison Avenue.
(Code 1967, § 36-63; Code 1985, § 34-78)

Sec. 12-16-4. East and West prefixes.

Thoroughfares abutting or intersecting Florida Street or Meridian A, as defined in section 12-20-2, shall carry the prefix "East," if lying east of this meridian, and the prefix "West," if lying west of this meridian.
(Code 1967, § 36-64; Code 1985, § 34-79)

Sec. 12-16-5. Thoroughfares on same line to bear same name—Exception.

Thoroughfares lying on approximately the same line shall have the same name unless the intervening space between the separate parts shall be greater than 2,000 feet.
(Code 1967, § 36-65; Code 1985, § 34-80)

Sec. 12-16-6. Official map showing names.

A map of the city showing streets, alleys, avenues, boulevards, lanes, places, parkways, and other thoroughfares, and the official names assigned to each, prepared under the supervision of the city engineer, authenticated by him or her, shall be published, from time to time. All streets, avenues, alleys, lanes, boulevards, parkways, places, and other thoroughfares in the city shall be known by the name allocated to each on this official map, and such later additions and changes as may be provided by the Memphis City Council Any conflicts with the Memphis and Shelby County Unified Development Code shall be made in favor of this section.
(Code 1967, § 36-66; Code 1985, § 34-81; Ord. No. 3590, § 1(3), 9-2-1986; Ord. No. 5459, § 11, 7-17-2012; Ord. No. 5759, § 3, 9-1-2020)

Sec. 12-16-7. Reports to post office of changes in names.

It shall be the duty of the city engineer to report to the postmaster of the city any change in the names of streets or other public thoroughfares which shall from time to time occur.
(Code 1967, § 36-67; Code 1985, § 34-82)

CHAPTER 12-20. BUILDING AND HOUSE NUMBERS

Sections:

Sec. 12-20-1. Required.
Sec. 12-20-2. Meridians described.
Sec. 12-20-3. Method of numbering on north and south streets.
Sec. 12-20-4. Method of numbering on east and west streets.
Sec. 12-20-5. Method of numbering two entrances.
Sec. 12-20-6. Method of numbering on streets not at right angles with meridians.
Sec. 12-20-7. Application for number—Issuance of certificate.
Sec. 12-20-8. Attaching, stenciling or painting number on building.
Sec. 12-20-9. Display of incorrect number.

Sec. 12-20-1. Required.

Every main entrance to every building and every lot fronting upon any street within the limits of the city shall bear, and be known by, a certain street number to be fixed by the light, gas and water division.
(Code 1967, § 36-78; Code 1985, § 34-96)

Sec. 12-20-2. Meridians described.

The street number required by this chapter shall be ascertained and fixed with reference to the distance and direction of such main entrance or lot, from two certain meridian lines, which lines are now described and established as follows:

A. Meridian A for east and west streets: beginning at the intersection of the south boundary line of the city and the center of Florida Street, running thence north along the center of Florida Street and with the center line of such street projected to an intersection with the west line of Tennessee Street; thence northwardly along the west line of such street to an intersection with the north line of Beale Street; thence northwardly parallel to that part of Second Street north of Beale Street to the city limits.

B. Meridian B for north and south streets: beginning at a point where Meridian A would intersect the center line of Madison Avenue if same were extended westwardly, thence east along the center of Madison Avenue, and the projection eastwardly of such center line to the center line of the Memphis and State Line Railway; thence offsetting to the south along the center line of such railway 1,140 feet; thence eastwardly to the intersection of Poplar Avenue and Lafayette Street; thence eastwardly to the intersection of the center lines of Walnut Grove Road and Highland Avenue; thence east along the center line of such road to the east city limits.

(Code 1967, § 36-79; Code 1985, § 34-97)

Sec. 12-20-3. Method of numbering on north and south streets.

Where the main entrance or lot is situated on a street running in a north and south direction, the number shall be fixed with reference to the distance north or south from Meridian B, each street number taking up a frontage of 20 feet. The odd numbers shall be on the west side of the street, and the even numbers on the east side. For example: a main entrance on Second Street 1,000 feet north of Madison Avenue would be No. 100 North Second Street if situated on the east side of the street, and No. 99 North Second Street if situated on the west side of the street.

(Code 1967, § 36-80; Code 1985, § 34-98)

Sec. 12-20-4. Method of numbering on east and west streets.

Where the main entrance or lot is situated on a street running east and west, the number shall be fixed with reference to the distance from Meridian A, each street number taking up a frontage of 20 feet, the odd numbers being on the south side and the even numbers on the north side of the street. For example: a main entrance or lot on Union Avenue 7,000 feet east of Meridian A would be No. 700 Union Avenue if situated on the north side of the street, and No. 699 Union Avenue if situated on the south side of the street.

(Code 1967, § 36-81; Code 1985, § 34-99)

Sec. 12-20-5. Method of numbering two entrances.

Where there is more than one main entrance within a 20-foot frontage on any street in the city, the first main entrance shall bear the proper number for this frontage. The other main entrance in such 20-foot frontage shall bear the same number followed by the capital letter A, B, etc. For example: 100, 100A, 100B.

(Code 1967, § 36-82; Code 1985, § 34-100)

Sec. 12-20-6. Method of numbering on streets not at right angles with meridians.

Where streets do not run at right angles with the meridians, the frontage of each street number shall be increased so as to make the number on that street correspond with the street numbers on other streets in the same block, which do run at right angles to the meridian.

(Code 1967, § 36-83; Code 1985, § 34-101)

Sec. 12-20-7. Application for number—Issuance of certificate.

The owner of any house or building fronting on any street shall apply to the light, gas and water division for his or her street number. The light, gas and water division shall issue a certificate designating the number to be used on any house or building, upon the payment of a fee of $5.00 for each certificate. The fee for a duplicate certificate shall be $2.50. Fees shall be turned over to the city treasurer for the use of the city. This section does not apply to numbers for buildings in the rear.

(Code 1967, § 36-84; Code 1985, § 34-102; Ord. No. 3024, § 1, 6-9-1980)

Sec. 12-20-8. Attaching, stenciling or painting number on building.

Every person owning or occupying any house or building fronting on any street in the city, and not bearing the proper street number for each main entrance, shall, within ten days after the beginning of such occupancy, have the proper number attached to, stenciled or painted on the front part of such house or building, over, on, or by each main entrance in such manner that the number shall be plainly visible from the street. Such street number shall conform with this chapter and be the number designated by the light, gas and water division. If, because of the setback of the house or building, or for any other reason, the number cannot readily be seen from the street, then the occupant shall, in addition to the provisions above, position the numbering so that it is clearly visible from the street. This section shall be enforced by the office of planning and development.
(Code 1967, § 36-85; Code 1985, § 34-103; Ord. No. 2286, § 1, 7-29-1975)

Sec. 12-20-9. Display of incorrect number.

It is unlawful for any person to display any false or incorrect house or lot number knowingly and willfully or with the intention to deceive another person.
(Code 1967, § 36-87; Code 1985, § 34-104)

CHAPTER 12-24. SIDEWALKS GENERALLY

Sections:

Sec. 12-24-1. Definitions.
Sec. 12-24-2. Obstructions generally.
Sec. 12-24-3. General duty of property owner to build, repair and clean.
Sec. 12-24-4. Work on sidewalks by tenants.
Sec. 12-24-5. To be kept free of mud, weeds and grass.
Sec. 12-24-6. To be kept free of ice and snow—Exceptions.
Sec. 12-24-7. Time and method of sweeping.
Sec. 12-24-8. Wood and brick sidewalks to be kept in repair.
Sec. 12-24-9. Slippery walks to be made safe.
Sec. 12-24-10. Use for storage, display or sale of merchandise prohibited.
Sec. 12-24-11. Drainage.
Sec. 12-24-12. Foliage and tree limbs projecting over sidewalks.
Sec. 12-24-13. Metal drains across sidewalks.
Sec. 12-24-14. Openings to be covered.
Sec. 12-24-15. Obstructing gutters adjoining sidewalks.
Sec. 12-24-16. Letters and numbers in sidewalks.
Sec. 12-24-17. Gates and doors not to swing over walks—Exception.
Sec. 12-24-18. Water not to drain on sidewalks.
Sec. 12-24-19. Location of meter boxes and cut-off valves.
Sec. 12-24-20. Base of poles set in sidewalks to be concreted.
Sec. 12-24-21. When sidewalks to be relaid—Concrete to be used.
Sec. 12-24-22. Compliance with chapter 12-12.

Sec. 12-24-1. Definitions.

As used in this chapter and chapter 12-28, the following terms shall have the indicated meaning:

Street means the entire width between right-of-way lines plus any pedestrian/sidewalk easement of every way, publicly maintained when any part thereof is open to the use of the public for the purpose of vehicular and/or pedestrian travel.

Walkway means that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent lines or pedestrian/sidewalk easement lines, intended for use of pedestrians.
(Code 1967, § 36-96; Code 1985, § 34-116; Ord. No. 894, § 1, 4-6-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-24-2. Obstructions generally.

It shall be a misdemeanor to obstruct any sidewalk or walkway with boxes, barrels, or other things interfering with the free passageway of the public or which may render such sidewalk or walkway unsafe for public travel. Bicycle parking is permitted on sidewalks, pursuant to section 4.5.3(C) of the Memphis and Shelby County Unified Development Code.
(Code 1967, § 36-104; Code 1985, § 34-117; Ord. No. 894, § 1, 4-6-1971; Ord. No. 5459, § 12, 7-17-2012)

Sec. 12-24-3. General duty of property owner to build, repair and clean.

A. The owner or every lot and parcel of land abutting on any street, avenue, parkway, boulevard or other public street of the city, for which an established grade has been lawfully fixed and curbs and gutters are in place, is required to provide and maintain adjacent to his or her property a sidewalk in accordance with the specifications set out in this chapter and chapter 12-28 when so ordered by the city engineer or his or her authorized representative.

B. It shall be the duty of every owner of property, whether vacant or occupied, within the limits of the city abutting on or adjacent to, any street, avenue, parkway, or other public street of the city, to keep clean and open for public passage all public sidewalks or walkways abutting on or adjacent to such property, and to keep such sidewalks or walkways in good repair and condition.

C. On streets, avenues, parkways or other public streets, for which an established grade has not been lawfully fixed, and curbs and gutters are not in place, the owners of abutting and adjacent property to such streets are required to keep the space provided for walkway or passageway for pedestrian traffic adjacent to their property in a safe condition, free from all obstructions, excavations, high grass, weeds, trash, debris, or other substances or material which may interfere with the free use of such passageway by the public. The abutting or adjacent owner may be required to lay a gravel, asphalt or cinder walkway of an approximate minimum width of three feet abutting his or her property.
(Code 1967, § 36-105; Code 1985, § 34-118; Ord. No. 894, § 1, 4-6-1971; Ord. No. 1635, § 3, 3-13-1973; Ord. No. 3590, § 1(5), 9-2-1986)

Sec. 12-24-4. Work on sidewalks by tenants.

The duties and obligations imposed by this chapter and chapter 12-28 on the owners of property abutting on any public street to build, repair, and keep clean and open for public passage, public sidewalks and walkways, shall also devolve upon the tenant or other person occupying the premises adjacent to such sidewalks. Notice to such tenant or occupant in the manner hereinbefore specified shall be sufficient to compel him or her to do the things specified in such notice; provided, that whenever any tenant or occupant shall be required under the provisions of this chapter and chapter 12-28 to build, repair, and keep clean and open for public passage any sidewalk or walkway abutting his or her premises, such tenant or occupant shall have a lien on such property occupied for reimbursement and reasonable attorney's fees, if the primary obligation to do such was on the landlord. This lien may be enforced by attachment proceedings in any court of competent jurisdiction and the tenant or occupant may, when so entitled under the general principles of law of set-off, use such claims against his or her liability for rent, all in accordance with the provisions of section 1 of chapter 163 of the Acts of the General Assembly of the State of Tennessee for 1889.
(Code 1967, § 36-106; Code 1985, § 34-119; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-5. To be kept free of mud, weeds and grass.

Every owner, tenant, lessee or occupant of any building or lot, whether vacant or occupied, within the city, shall keep, or cause to be kept, the sidewalks or walkways adjacent to or abutting such property free from mud, weeds, grass, noxious growth, obstructions, encumbrances, trash, debris and foreign substances of every kind.
(Code 1967, § 36-107; Code 1985, § 34-120; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-6. To be kept free of ice and snow—Exceptions.

All sidewalks shall be kept free from ice or snow; provided, however, that tightly adhering ice may be sprinkled with sawdust, ashes or sand, so as to make the uses of the sidewalk by pedestrians safe.
(Code 1967, § 36-108; Code 1985, § 34-121; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-7. Time and method of sweeping.

Sidewalks adjacent to businesses premises shall not be swept or cleaned, except in cases of necessity, between the hours of 7:30 a.m. and 7:30 p.m. Sidewalks shall be carefully cleaned or swept so as not to unnecessarily raise or spread dust, dried sputum or other substances which may carry the germs of infectious or contagious diseases.
(Code 1967, § 36-109; Code 1985, § 34-122; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-8. Wood and brick sidewalks to be kept in repair.

It shall be a misdemeanor to permit any wood or brick sidewalks now laid to become out of repair, or in such condition as to become dangerous or annoying to pedestrians or those lawfully using such sidewalks.
(Code 1967, § 36-110; Code 1985, § 34-123; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-9. Slippery walks to be made safe.

It is unlawful for any person to permit to remain on or in any sidewalk adjacent to or adjoining his or her property, dwelling house, store building or other property, any tile or other material which may, through use, become slippery or unsafe for public travel. It shall be the duty of the city engineer and his or her duly authorized representatives to order existing sidewalks which have become slippery or unsafe to be removed or made safe, and sidewalks according to the specifications set out in this chapter and chapter 12-28 to be laid. The notice and remedies of the city for the failure of any such person to obey such lawful order shall be the same as prescribed in the preceding sections of this chapter.
(Code 1967, § 36-111; Code 1985, § 34-124; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(6), 9-2-1986)

Sec. 12-24-10. Use for storage, display or sale of merchandise prohibited.

A. It shall be a misdemeanor for any person, or a public or private agency, to use any part of any sidewalk between the private property line and curb or within a pedestrian/sidewalk easement for the storage of goods, merchandise or other material or for the purpose of displaying goods or articles for sale or barter, or for the parking of vehicles, or to place on the sidewalk any sign or device for advertising purposes.

B. It is unlawful for any person, or public or private agency, to rent, lease or let to another any portion of the sidewalks or walkways of the city for the purpose of selling fruits, vegetables, magazines, or any class of merchandise thereon.
(Code 1967, § 36-112; Code 1985, § 34-125; Ord. No. 894, § 1, 4-6-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-24-11. Drainage.

It shall be a misdemeanor to permit any sidewalk to remain which does not properly drain storm water, or which permits water to lie upon the surface thereof.
(Code 1967, § 36-113; Code 1985, § 34-126; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-12. Foliage and tree limbs projecting over sidewalks.

It shall be a misdemeanor to permit shrubbery, hedges, or foliage of any kind to project over sidewalks or walkways so as to interfere with the free use of such sidewalks or walkways by pedestrians. All trees upon or near sidewalks or walkways shall be so trimmed that the lower branches thereof are not less than eight feet above the sidewalks.
(Code 1967, § 36-114; Code 1985, § 34-127; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-13. Metal drains across sidewalks.

It shall be a misdemeanor to permit any iron or metal drain to remain across a sidewalk, unless the top of such drain shall be roughened in an approved manner, and be level or flush with the surface of the walk and securely bolted, riveted or welded to the body of such drain.
(Code 1967, § 36-115; Code 1985, § 34-128; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-14. Openings to be covered.

A. It shall be a misdemeanor to leave open or unguarded any cellar or vault door or grating on any sidewalk, or to permit any unguarded well, cistern, coal hole or other opening to remain open and uncovered in any sidewalk.

B. Every opening in the paved sidewalk leading into an area or vault beneath the surface of such sidewalk, or into a cellar or basement, shall be fitted with an iron grating or roughened metal cover, flush with the surface of the walk and securely bolted, riveted or welded so as to remain in place.
(Code 1967, § 36-116; Code 1985, § 34-129; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-15. Obstructing gutters adjoining sidewalks.

It shall be a misdemeanor to obstruct any gutter with dirt, gravel, sand or other substance, bridge or thing which will prevent the free and unobstructed flow of water in such gutter.
(Code 1967, § 36-117; Code 1985, § 34-130; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-16. Letters and numbers in sidewalks.

It shall be a misdemeanor for any person to erect on, in or about any sidewalk, or to permit on, in or about any sidewalk adjacent to his or her premises, any character, device, letters or numbers of any material so constructed as to interfere with the free and safe use of any sidewalk. It shall be a misdemeanor for any person maintaining in

any sidewalk any such character, device, letter or number to permit same to become slippery or otherwise dangerous to those using the sidewalk.
(Code 1967, § 36-118; Code 1985, § 34-131; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-17. Gates and doors not to swing over walks—Exception.

It shall be a misdemeanor to permit any gate or door to open outwardly upon or across a sidewalk or driveway except where required by statute.
(Code 1967, § 36-119; Code 1985, § 34-132; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-18. Water not to drain on sidewalks.

No person, whether owner, lessee, tenant or occupant, of an house or building, shall permit any water or other liquid to run or drip from or out of his or her building upon or across any sidewalk. If such water or other liquid is carried to the street, it shall be confined in pipe, tile or other enclosed passageway, which shall be constructed of suitable strength and material underneath the surface of such sidewalk, and shall at all times be kept in repair and adequate to handle the waters or other liquids flowing into such street. No water, liquid or ice shall be allowed to gather, remain or drip upon the upper surface of such sidewalk or passageway. No storm water shall be allowed to fall through downpipes from any building upon the sidewalks or street, or across any sidewalk, but shall be conducted by downpipe or gutter under the sidewalk to the street gutter; provided, however, that it shall be lawful for such storm waters, when conducted to alleys, to be conducted on the surface of such alleys.
(Code 1967, § 36-120; Code 1985, § 34-133; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-19. Location of meter boxes and cut-off valves.

Whenever possible, meter boxes, cut-off valves and like instrumentalities shall be placed in the grass plot between the sidewalk and curb, but where no grass plot exists, such meter boxes, cut-off valves and other like instrumentalities shall be placed adjacent to the curb.
(Code 1967, § 36-121; Code 1985, § 34-134; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-20. Base of poles set in sidewalks to be concreted.

It shall be a misdemeanor to set or install in any concrete sidewalk any pole or post without properly concreting around the base of same within 30 days after installation. The area immediately around such pole or post shall be neatly isolated from the adjacent sidewalk by the placement of minimum one-half inch thick, full-depth expansion joint material forming a square or rectangular isolated sidewalk slab.
(Code 1967, § 36-122; Code 1985, § 34-135; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-21. When sidewalks to be relaid—Concrete to be used.

Whenever it becomes necessary to relay sidewalks or when any sidewalks are lawfully ordered to be made, and are laid or repaired on all streets, avenues, parkways or other public streets of the city, on which stone, concrete or granite curbs have been set, or on streets which have been brought to the established grade, such sidewalks shall be laid or repaired with concrete in accordance with lines and grades furnished and established by the city engineer, and in strict accordance with the specifications set out in this chapter and chapter 12-28, except as specifically approved by the city engineer.
(Code 1967, § 36-123; Code 1985, § 34-136; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-24-22. Compliance with chapter 12-12.

It shall be a misdemeanor to do or permit work to be done on any granolith, stone or cement sidewalk unless the person doing the work shall comply with the provisions of chapter 12-12, and shall have on file, in the office of the city engineer, the concrete worker's bond required by section 12-12-2.
(Code 1967, § 36-124; Code 1985, § 34-137; Ord. No. 894, § 1, 4-6-1971)

CHAPTER 12-28. SIDEWALK CONSTRUCTION AND MAINTENANCE

Sections:

Sec. 12-28-1. Work permit.
Sec. 12-28-2. Sidewalk construction in developing areas.
Sec. 12-28-3. Sidewalks required on existing improved streets—When construction to begin.
Sec. 12-28-4. Sidewalk inspector.

Sec. 12-28-5. Notice to property owner to build, repair or clean.
Sec. 12-28-6. Failure of property owner to comply with notice.
Sec. 12-28-7. City engineer to furnish grades and lines.
Sec. 12-28-8. Driveway openings.
Sec. 12-28-9. City engineer to accept and inspect work.
Sec. 12-28-10. Width, location of walks.
Sec. 12-28-11. Thickness and material to be used in concrete sidewalks.
Sec. 12-28-12. Tennessee One Call to be notified of laying sidewalks.
Sec. 12-28-13. Cement—Materials, preparation, placement, treatment and curing.
Sec. 12-28-14. Cuts and repairs.
Sec. 12-28-15. Sidewalks surrounding buildings.
Sec. 12-28-16. Contractor's responsibilities.

Sec. 12-28-1. Work permit.

A. It shall be a misdemeanor for any person to lay, construct, build or repair a sidewalk, hire others to work upon, or knowingly permit work to be done on any part of a sidewalk or street from the curb to the property line, without first obtaining a permit from the city engineer to do such work. The fee for such permit shall be $0.24 per square foot of sidewalk and driveway abutting property used for residential purposes, and $0.48 per square foot of sidewalk and driveway abutting property used for commercial or industrial purposes, provided a minimum fee shall be $20.00 for each permit. On any sidewalk which the city has to lay and charge to the property owner, the cost of the proper work permit shall be added to the bill of costs and recovered in the same manner as are costs for such laying. All sidewalk work shall be done under the conditions and pursuant to the directions contained in the permit. The work permit shall be conspicuously posted at the work site and maintained until such work is completed and inspected by the city engineer or his or her representative.

B. The permit shall state the place where the work is to be done, the nature of the work, and the material with which such work is to be constructed.

C. The work embraced in this section shall not be held to include the removal of grass, weeds, trash, debris or other obstructions which can be done without damage to the surface of such sidewalk, or which can be done without endangering the safety of persons lawfully using such sidewalk.

(Code 1967, § 36-125; Code 1985, § 34-138; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3024, § 1, 6-9-1980; Ord. No. 3747, § 1, 5-3-1988; Ord. No. 5110, § 1, 2005)

Sec. 12-28-2. Sidewalk construction in developing areas.

A. Sidewalks shall be constructed along public street frontages in accordance with Chapter 4.3 of the Memphis and Shelby County Unified Development Code.

B. It shall be the duty and responsibility of the contractor/builder to whom the building permit for the lot is issued to obtain a permit from the city engineer and to install the required sidewalk across the street frontage(s) of the lot. The building official shall advise the city engineer in a timely manner of the issuance of all such building permits. The sidewalk shall be installed by the contractor/builder, and inspected by the city engineer, prior to the final inspection of the structure by the building official and prior to any use or occupancy of the structure on the lot.

C. It shall be a misdemeanor for the contractor/builder to permit any use to commence on any lot, or occupancy to commence in any structure on any lot within a new development, prior to the installation, inspection and acceptance of the sidewalks required by this chapter and chapter 12-24.

D. The lot owner shall assume the responsibility of installation, maintenance and repair of the required sidewalks along the lot frontage(s) upon occupying the structure on the lot.

E. The city engineer reserves the right to include the installation of required sidewalks within a standard development contract for nonresidential developments, street dedication contracts, and streets abutted by reverse frontage lots and/or unbuildable common open space lots.

(Code 1967, § 36-97; Code 1985, § 34-151; Ord. No. 894, § 1, 4-6-1971; Ord. No. 969, § 1, 6-1-1971; Ord. No. 1635, § 1, 3-13-1973; Ord. No. 3590, § 1(7), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993; Ord. No. 5459, § 13, 7-17-2012)

Sec. 12-28-3. Sidewalks required on existing improved streets—When construction to begin.

A. On existing streets improved prior to the effective date of this section, sidewalks shall be required, provided that at least 25 percent of the sidewalks already exist. These sidewalks shall be constructed immediately upon receipt of notice from the city engineer. For topographic reasons, the city engineer may waive this requirement

on all or any portion of any street, parkway, boulevard, avenue or other public street of the city for which an established grade has been lawfully fixed. Exceptions to this section may be granted pursuant to section 4.3.4 of the Memphis and Shelby County Unified Development Code.

B. A "street" is defined as that portion composing one city block, both sides of the street, unless, in the opinion of the city engineer, a natural neighborhood dividing line would cause such street to be either shorter or longer than one block.
(Code 1967, § 36-97.1; Code 1985, § 34-152; Ord. No. 3047, § 1(b), 8-12-1980; Ord. No. 3590, § 1(8), 9-2-1986; Ord. No. 5459, § 14, 7-17-2012)

Sec. 12-28-4. Sidewalk inspector.

The city engineer shall employ an inspector to be known as the sidewalk inspector. It shall be his or her duty to enforce the provisions of this chapter and chapter 12-24, under the direction of the city engineer.
(Code 1967, § 36-98; Code 1985, § 34-155; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(11), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-5. Notice to property owner to build, repair or clean.

A. Whenever it is made to appear to the city engineer, or his or her lawfully authorized representative, that there has been a failure on the part of the owner of property to build, repair, or keep clean and open for public passage any sidewalk or walkway abutting on or adjacent to such property, the city engineer, or his or her duly authorized deputy, shall give notice to such owner, or his or her duly authorized agent, of the failure of such owner to build, repair, or keep clean and open for public passage such sidewalk or walkway.

B. Such notice may be given either by personal service on the owner or his or her duly authorized agent, or by certified letter addressed to the last known place of residence of such owner, or his or her duly authorized agent, and proof of the mailing of such registered letter by the city engineer, or his or her duly authorized deputy, shall be a complete compliance with this provision.

C. In the cases of nonresident or unknown owners, a publication of the notice by one insertion in a daily newspaper published in the city shall be a complete compliance with the provisions of this section as to notice.

D. The notice in each case shall specify what is required of the owner with respect to the sidewalk. The notice shall advise the owner that unless the requirement is carried out within 30 days of the date of service, mailing or publication of the notice, the necessary work will be done by the city at the expense of the owner.
(Code 1967, § 36-99; Code 1985, § 34-156; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(12), 9-2-1986)

Charter reference—Authority to compel property owners to build, repair and clean sidewalks, §§ 571, 572.

Sec. 12-28-6. Failure of property owner to comply with notice.

A. Failure to comply with the provisions of this chapter and chapter 12-24 shall be a misdemeanor subject to punishment as provided in section 1-24-1.

B. Further, upon the failure, refusal or neglect of any person notified to comply with the terms and orders of a notice given pursuant to section 12-28-5, the city engineer is authorized to build, repair, and keep clean and open for public passage any sidewalk or walkway abutting on or adjacent to the property of the person owning or controlling it. The cost of such work shall be a lien on such property, and may be enforced by suit in any court of competent jurisdiction.

C. As an additional and cumulative remedy, the city engineer may certify to the city treasurer the cost of such work. It shall be the duty of the city treasurer to place the amount so certified on the bill for city taxes assessed against the property abutting on or adjacent to the sidewalk or walkway laid. It shall be the duty of the city treasurer to collect, as a special tax, the amount so certified, which is declared to be a special improvement tax on the property abutting on, or adjacent to, such sidewalks or walkways. This special tax may be collected in the same manner as other general taxes are collected by the city.
(Code 1967, § 36-100; Code 1985, § 34-157; Ord. No. 894, § 1, 4-6-1971; Ord. No. 969, § 1, 6-1-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-7. City engineer to furnish grades and lines.

The city engineer shall furnish, to every person ordered or required to construct, pave or repair sidewalks, the proper grades and lines for such sidewalks, and such work shall be done in accord with the lines and grades so furnished.
(Code 1967, § 36-101; Code 1985, § 34-158; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(13), 9-2-1986)

Sec. 12-28-8. Driveway openings.

A. All driveway openings constructed for use by vehicular traffic to single-family and duplex residential land shall be six inches thick and composed of Portland cement concrete, proportioned, mixed and laid as specified in this chapter and chapter 12-24 and in accordance with the construction standards of the city.

B. All driveway openings constructed for use by vehicular traffic to multifamily residential, commercial and/or industrial land use shall be eight inches thick and composed of Portland cement concrete, proportioned, mixed and laid as specified in this chapter and chapter 12-24 and in accordance with the construction standards of the city.

C. All openings in the curb for driveways shall be approved by the city engineer prior to actual construction.

D. Driveway openings providing access to streets where curbs and gutters are not in place shall be constructed of asphalt pavement in accordance with the design and material standards established by the city engineer, and shall include a drainage pipe of adequate size as required to accommodate roadside drainage. Any person desiring to construct such a driveway opening shall obtain a permit from the city engineer prior to actual construction.

E. The design, number and location of all driveway openings providing access to a lot and/or land use are subject to the approval of the city engineer.

F. If the land use and/or the on-site improvements on a lot are modified, altered or changed, the design, number and location of all driveway openings providing access to the lot shall be submitted to the city engineer for review and approval.
(Code 1967, § 36-102; Code 1985, § 34-159; Ord. No. 1635, § 2, 3-13-1973; Ord. No. 3590, § 1(13A), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-9. City engineer to accept and inspect work.

The laying of all sidewalks and driveway openings and the material and component parts thereof shall be under the inspection and subject to the acceptance of the city engineer or his or her authorized deputy.
(Code 1967, § 36-103; Code 1985, § 34-160; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(14), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-10. Width, location of walks.

A. All walks shall not be less than five feet wide, unless otherwise especially provided in the permit or by this section.

B. The normal location of walks shall be such that the edge of the walk farthest from the curb shall be on the property line. At the discretion of the city engineer, the normal location of walks may be varied within the city's right-of-way. In the event a walk is located adjacent to the back edge of the curb, the width of such walk shall not be less than six feet as measured from the back edge of the curb, subject to the exception hereinafter noted, so as to avoid interference by poles, fire plugs, meters or any such obstruction capable of preventing free passage along such walk. Should the city not have sufficient right-of-way for a walk to be not less than six feet wide, where such walk is adjacent to the curb, then in such event, the walk shall be full width, from the back edge of the curb to the property line.

C. Sidewalks installed on residential minor streets, culs-de-sac, and loop streets shall not be less than four feet wide and normally placed adjacent to the property line. Those sidewalks placed adjacent to the curb shall not be less than six feet wide.

D. Sidewalks may be installed behind the property line (on private property) if an appropriate pedestrian/sidewalk/utility easement has been granted as part of an approved final plat of a subdivision. In such cases, sidewalks shall not be less than four feet in width and normally located with the edge of the walk farthest from the curb against the easement line located farthest from the curb. Sidewalks located adjacent to the curb shall have a width of not less than six feet.
(Code 1967, § 36-127; Code 1985, § 34-171; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(15), 9-2-1986)

Sec. 12-28-11. Thickness and material to be used in concrete sidewalks.

Walks shall be a minimum of four inches thick and composed of monolithic Portland cement concrete, proportioned, mixed and cured in accordance with the specifications of the city engineer.
(Code 1967, § 36-128; Code 1985, § 34-172; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(16), 9-2-1986)

Sec. 12-28-12. Tennessee One Call to be notified of laying sidewalks.

It shall be the duty of every person about to lay a sidewalk or driveway opening, or permitting such work to be done in his or her behalf, to give Tennessee One Call underground utility location service not less than three working days' notice in advance of the beginning of work.
(Code 1967, § 36-129; Code 1985, § 34-173; Ord. No. 894, § 1, 4-6-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-13. Cement—Materials, preparation, placement, treatment and curing.

All materials, preparation, placement, treatment and curing of Portland cement concrete used in sidewalk and driveway opening construction shall be in accordance with the specifications of the city engineer and the standard construction specifications of the city.
(Code 1967, § 36-136; Code 1985, § 34-180; Ord. No. 894, § 1, 4-6-1971; Ord. No. 3590, § 1(20), 9-2-1986; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-14. Cuts and repairs.

Not less than a five-foot by five-foot block shall be constructed in replacing or repairing sidewalk, except in replacing squares around objects in the sidewalk which have previously been separated with expansion joints.
(Code 1967, § 36-140; Code 1985, § 34-184; Ord. No. 894, § 1, 4-6-1971)

Sec. 12-28-15. Sidewalks surrounding buildings.

When a building permit is issued for the construction of new buildings or the remodeling of old buildings, the sidewalk, curb and driveway, if any, shall be left in first class condition upon completion of the building construction; and if damaged during the course of the demolition or construction of a building, it shall be restored to first class condition.
(Code 1967, § 36-142; Code 1985, § 34-186; Ord. No. 894, § 1, 4-6-1971; Ord. No. 4196, § 1, 8-24-1993)

Sec. 12-28-16. Contractor's responsibilities.

The contractor will be held responsible for all injury and damage to curbs, walks, pipelines, utility stretches and all other public and private property that may occur due to his or her operation while carrying out his or her work, and all repair or replacement costs, if and where necessary, shall be borne by him or her. The contractor, at his or her own expense, shall erect and maintain all necessary walkways, barricades, and warning signs to ensure safety of the public in the work area.
(Code 1967, § 36-144; Code 1985, § 34-188; Ord. No. 894, § 1, 4-6-1971)

CHAPTER 12-32. CENTRAL BUSINESS IMPROVEMENT DISTRICT*

Sections:

Sec. 12-32-1. Created.
Sec. 12-32-2. District boundaries.
Sec. 12-32-3. Required and permissible improvements.
Sec. 12-32-4. Estimate of overall cost.
Sec. 12-32-5. Assessments to pay for improvements.
Sec. 12-32-6. Board of assessment commissioners.
Sec. 12-32-7. Preliminary approval or disapproval of designs and improvements.
Sec. 12-32-8. Authority to establish zoning regulations, building code or sign code.

Sec. 12-32-1. Created.

There is created the Memphis Central Business Improvement District.
(Code 1967, § 10½-1; Code 1985, § 7-36; Ord. No. 1556, § 1, 1-23-1973)

Sec. 12-32-2. District boundaries.

A. The central business improvement district created by this chapter shall be comprised of that area located in the city within the following boundaries:

A line commencing at the point of intersection of the south line of McCall Avenue with the west line of

***State law reference—**Central Business Improvement District Act of 1971, T.C.A. § 7-84-101 et seq.

Wagner Street running thence eastwardly with such south line of McCall Avenue and continuing across Main Street eastwardly with an extension of the south line of McCall to the east line of Third Street; thence northwardly with the east line of Third Street to the point of intersection of such line with the south line of Union Avenue; thence northeastwardly to the intersection of the north line of Union Avenue with the east line of the first alley east of Third Street; thence northwardly with the east line of said alley to the north line of Exchange Avenue; thence westwardly with the north line of Exchange Avenue to the east line of Third Street; thence northwardly with the east line of Third Street to the south boundary of the Interstate 40 right-of-way; thence westwardly with such south side of Interstate 40 right-of-way and continuing along the boundary thereof in irregular lines to the point of intersection of such south side of Interstate 40 with the east line of Riverside Drive; thence southwardly with the east line of Riverside Drive to the point of its intersection with the south line of Union Avenue; thence east with the south line of Union Avenue to the point of its intersection with the west line of Wagner Street; thence southwardly with the west line of Wagner Street to the point of beginning.

B. The following area shall be included within the boundaries of the central business improvement district only for the purposes of applicability and enforcement of the zoning, building and sign codes established by section 12-32-8:

Beginning at a point, said point being the intersection of the southerly right-of-way line of Peabody Place (McCall Avenue) with the westerly right-of-way line of Wagner Street, thence westwardly along a westward projection of the southerly right-of-way line of Peabody Place (McCall Avenue) to its intersection with the mid-stream of the main channel of the Mississippi River; thence northwardly with the mid-stream of the main channel of the Mississippi River to its intersection with a westward projection of the northerly right-of-way line of Auction Avenue; thence eastwardly along said westward projection and the northerly right-of-way line of Auction Avenue to its intersection with the easterly right-of-way line of North Second Street; thence southwardly along the easterly right-of-way line of North Second Street to its intersection with the south boundary of the Interstate 40 right-of-way; thence westwardly with such south side of Interstate 40 right-of-way and continuing along the boundary thereof in irregular lines to the point of intersection of such south side of Interstate 40 with the east line of Riverside Drive; thence southwardly with the east line of Riverside Drive; to the point of its intersection with the south line of Union Avenue; thence east with the south line of Union Avenue to the point of its intersection with the west line of Wagner Street; thence southwardly with the west line of Wagner Street to the point of beginning.

(Code 1967, § 10½-2; Code 1985, § 7-37; Ord. No. 1556, § 2, 1-23-1973; Ord. No. 4268, § 1, 7-26-1994)

Sec. 12-32-3. Required and permissible improvements.

The improvements to be constructed in the central business improvement district created by this chapter shall include:

A. A mall extending down Main Street from the south line of McCall Avenue to the south line of Exchange Avenue. Such mall may be constructed to include new decorative and ornamental sidewalk and street paving, pylons for street lighting, drinking fountains, trash receptacles, directional signs, telephones, decorative planting and trees, and such other attractive facilities and/or items as may, in the opinion of the architects, be deemed desirable.

B. North Court Avenue and South Court Avenue between Main Street and Second Street may be closed to traffic and abolished as vehicle carrying arteries upon order of the mayor as of the date that construction on the improvements herein in this chapter and chapters 12-36 and 12-40 authorized is begun.

C. Court Square may be expanded from its present perimeters to the edge of the buildings presently fronting on the south side of South Court Avenue and the north side of North Court Avenue. Such mall shall include new and decorative planting and full and adequate lighting at pedestrian height throughout the entire Court Square area, it being the intention of the city council that the Court Square area, as expanded, shall be brilliantly lighted for the safety and convenience of the citizens who use it.

D. New and decorative lighting shall, to the extent practicable, be installed on the following streets

between Front Street and Third Street: McCall Avenue, Gayoso Avenue, Union Avenue, Monroe Avenue, Madison Avenue, Court Avenue, Jefferson Avenue, Adams Avenue, Poplar Avenue, Exchange Avenue and along the exit and entrance ramps on the south side of Interstate I-40.

E. Streets and sidewalks shall, to the extent practicable, be repaired or replaced with new and decorative pavement between Front Street and Third Street along the following streets: McCall Avenue, Gayoso Avenue, Union Avenue, Monroe Avenue, Madison Avenue, Court Avenue, Jefferson Avenue, Adams Avenue, Poplar Avenue and Exchange Avenue. The new paving is not considered to be to the full extent a portion of the improvements incidental to the creation of the Memphis Central Business Improvement District, but is, rather, an obligation of the city in conjunction with others, and the director of the division of public works is directed to prepare, and at the appropriate time after consultation with the architects hereafter to be employed by the city for the design of the Main Street Mall, an estimate of the costs of such cross-street improvements and a proposal for the sources of funds for such street improvements and a recommendation for the year or years in which such street improvements should take place.

(Code 1967, § 10½-3; Code 1985, § 7-38; Ord. No. 1556, § 3, 1-23-1973)

Sec. 12-32-4. Estimate of overall cost.

The overall cost of the improvements herein authorized, including interest and all other costs itemized in T.C.A. § 7-84-401, is estimated at $3,000,000.00.

(Code 1967, § 10½-5; Code 1985, § 7-39; Ord. No. 1556, § 3, 1-23-1973)

Sec. 12-32-5. Assessments to pay for improvements.

A. The sum of $2,983,188.00 shall be the cost of the improvements herein ordered and ordained which shall be paid by special assessments against all parcels of real property within the Memphis Central Business Improvement District as authorized by T.C.A. § 7-84-401; provided, however, that no assessments shall be levied against property belonging to the governments of the United States, the state, the county and the city.

B. Upon the completion of the construction of all improvements in the Memphis Central Business Improvement District herein authorized, the board of assessment commissioners, hereinafter created, shall apportion the sum of $2,983,188.00, including interest, upon the various properties located within such district in accordance with the benefits to each property thereon by such improvements conferred; provided, however, that a portion of the costs of the sidewalk and street improvements authorized under section 12-32-3(E) shall be borne in the manner and in an amount later to be determined by the city council. Interest shall be computed in an amount sufficient to provide for amortization of all other such costs in 20 approximately equal payments of principal and interest on the assumption that each payment is applied first to payment of interest on the unpaid principal balance at the rate of five percent per annum, and the balance to reduction of principal, and on the assumption that the first payment is made one year after due date.

C. All special assessments levied against property within the Memphis Central Business Improvement District shall be made as of and become effective on January 10 in the calendar year following the ordinance levying such assessments. Any affected property owner may pay such assessment in full within 60 days after the effective date of such ordinance, in which event the entire portion of interest attributable to such assessment shall abate and be deducted therefrom. If such assessment is not so paid, then it shall be paid in 20 equal annual installments, the first being due and payable in the calendar year when such ordinance becomes effective at the same time city ad valorem real property taxes are due and payable, and subsequent installments being due and payable in the same manner during the following 19 years.

(Code 1967, § 10½-6; Code 1985, § 7-40; Ord. No. 1556, § 6, 1-23-1973; Ord. No. 2817, § 1, 12-5-1978)

Sec. 12-32-6. Board of assessment commissioners.

There is created a Memphis board of assessment commissioners for the central business improvement district created by this chapter. Such board shall consist of five members to be appointed by the mayor of the city, by and with the consent of the city council. The qualifications of such members shall be as contained in T.C.A. § 7-84-303, and such commissioners shall perform all acts prescribed by T.C.A. title 7, chapter 84.

(Code 1967, § 10½-7; Code 1985, § 7-41)

Sec. 12-32-7. Preliminary approval or disapproval of designs and improvements.

The preliminary designs for the mall and other improvements generally described in section 12-32-3 shall be submitted to the city council for approval. After the selection of architects and appointment of the center city commission, the architects and the commission shall enter into such consultations between themselves and with other interested parties as the commission may deem advisable. Upon completion of preliminary designs, the council shall be notified, and a date shall be set for a hearing on the proposed design, and all property owners in the central business improvement district shall have at least ten days' written notice by mail of the hearing. After the hearing, the council may approve the preliminary design by resolution, or may reject the same and determine at that time what further steps shall be taken with respect to modifications which the council may deem desirable. This section is enacted pursuant to the general governmental powers of the council.
(Code 1967, § 10½-8; Code 1985, § 7-42; Ord. No. 1556, § 8, 1-23-1973; Ord. No. 2555, § 2, 2-22-1977)

Sec. 12-32-8. Authority to establish zoning regulations, building code or sign code.

The city council may establish zoning regulations, building code or sign code for the central business improvement district created by this chapter, as will best promote the overall district plan, notwithstanding any other portions of this Code.
(Code 1967, § 10½-9; Code 1985, § 7-43; Ord. No. 1556, 1-23-1973; Ord. No. 2318, § 1, 10-14-1975)

CHAPTER 12-36. CENTRAL BUSINESS DISTRICT SIGN CODE*

Sections:

Sec. 12-36-1. Established.
Sec. 12-36-2. Definitions.
Sec. 12-36-3. Design regulations—Purpose.
Sec. 12-36-4. Design regulations—Areas affected.
Sec. 12-36-5. Design regulations—Review procedure.
Sec. 12-36-6. Design regulations—Sign standards—General CBID sign standards.
Sec. 12-36-7. Design regulations—Sign standards—Special provisions for general districts.
Sec. 12-36-8. Existing nonconforming signs.
Sec. 12-36-9. Permits.

***Editor's note—**According to section 2-84-14 of the code, this chapter is to be repealed upon the adoption by the commission of rules and regulations pursuant to section 12-44-7(E).

Sec. 12-36-1. Established.

There is established a uniform sign code of the central business improvement district which shall read as set forth in this chapter.
(Code 1985, § 7-51; Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-2. Definitions.

As used in this chapter:

Above roof sign means a sign which is displayed above the highest projection of the roof.

Banner means a sign having the characters, letters, illustrations or ornamentation applied to cloth, paper or fabric of any kind with only such material for a backing.

CBID means the central business improvement district.

CCC means the center city commission.

Central business improvement district means the Central Business Improvement District No. II created by chapter 12-44.

Construction sign means a temporary graphic placed on a construction site listing such information as contractor, engineer or architect.

DRB means the design review board.

Design review board means the Memphis center city design review board created pursuant to section 12-44-7(F).

Doorway means area set back from the public right-of-way enclosed or surrounded by show windows or walled sides of show windows, but not inside the establishment itself.

Expressway means a limited access highway to which access is restricted except by ramps and interchanges.

Graphic means any letter, symbol, number, or combination of these that can be seen from the public right-of-way.

Graphic element means any syllable, abbreviation, number, or geometric shape.

Ground sign means a display sign supported by uprights or braces in or upon the ground surface.

Informational sign means a graphic giving direction or information without advertising.

Item of information means any of the following: a syllable; an abbreviation; a number; a symbol; a geometric shape.

Marquee means a permanent roofed structure projecting over public property, attached to and supported by a building.

Marquee sign means a display sign attached to or hung from a marquee canopy or other covered structure projecting from and supported by the building and extending beyond the building wall, building line, or street lot line.

Off-premises sign means a sign which attracts attention to a product, service, commodity or entertainment which primarily is conducted, sold, produced or offered off the premises where the sign is located.

Primary sign means permanent signs that are highly visible to pedestrian and vehicular traffic and do not include roof signs, rooftop signs, sandwich boards, or window graphics. Ground signs and projecting signs are also considered primary signs.

Primary wall sign means a primary sign no higher than the second floor windowsills of the building to which it is attached.

Projecting sign means a display sign which is attached directly to the building wall and which extends more than 18 inches from the face of the wall.

Real estate sign means a temporary graphic erected by the owner, or his or her agent, advertising the real property upon which the sign is located, for rent, for lease, or for sale.

Roof graphic means a sign that is displayed above the eaves and under the highest projection of the roof.

Roof line means either the edge of the roof or the top of the parapet, whichever forms the top line of the building silhouette and, where a building has several roof levels, such roof or parapet shall be the roof level belonging to that portion of the building where the sign is to be located.

Sign includes any announcement, declaration, or demonstration, display, illustration or insignia used to advertise or promote the intent of any person when the same is placed for the view of the general public.

Signable area means an area of the facade of the building below the roof line which is free of windows, doors or major architectural details and not higher than the lowest of the following: 25 feet above the adjoining sidewalk, the bottom of the window sills of the second story, or the highest part of the building under the roof as illustrated in Exhibit 1 set out at the end of this section.

Temporary sign means any sign, banner, pennant, valance, or advertising display constructed of cloth, canvas, light fabric, cardboard, wallpaper, or light material with or without frames, intended to be displayed for a limited period of time only.

Wall sign means a sign that is painted on or attached directly to the building wall and not more than 18 inches from the face of the wall.

Window graphic means a sign that is attached to or visible through a window.
(Code 1985, § 7-52; Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-3. Design regulations—Purpose.

Signs are a vital component of a community's streetscape and good commercial signage can make a significant contribution to the physical appearance and to the economic prosperity of a community. The design regulations outlined herein are intended to ensure that property owners in downtown and the central business improvement district have available to them a palette of street graphics that enhances and celebrates the character of the center city that is indescribably Memphis.
(Code 1985, § 7-53(a); Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-4. Design regulations—Areas affected.

A. The following design regulations apply to any property located within the central business improvement district (CBID). The CBID is generally bound by the Wolf River on the north, Crump Boulevard on the south, the Tennessee state line on the west and Danny Thomas on the east, with an extension between Poplar and Linden to Watkins encompassing the medical center as shown in Exhibit 2 set out at the end of this section.

B. For the purposes of these guidelines, the CBID has been divided into 13 general categories of review. The downtown core standards and the medical district standards modify the general CBID sign standards. The remaining ten areas, shown in Exhibit 3, set out at the end of this section, address further modifications to the downtown core sign standards.

1. General CBID sign standards.
    a. Downtown core sign standards.
        i. Main Street Mall sign standards.
        ii. Gayoso-Peabody/Cotton Row sign standards.
        iii. Beale Street sign standards.
        iv. South Main/warehouse district sign standards.
        v. Pinch sign standards.
        vi. Greenlaw and Bickford-Bearwater sign standards.
        vii. Victorian Village sign standards.
        viii. Riverfront sign standards.
        ix. Ballpark District sign standards.
        x. Peabody Place entertainment district sign standards.
    b. Medical district sign standards.

C. Standards for the downtown core, Main Street Mall, Gayoso-Peabody/Cotton Row, South Main/ warehouse district, Pinch, Victorian Village, Greenlaw and Bickford-Bearwater, Beale Street, ballpark district, Peabody Place entertainment district, medical district, and the Riverfront are intended to strengthen the character of each of the individual areas and to enhance the pedestrian-scale quality of Memphis' urban center. In some cases, they may be more restrictive than the general CBID sign standards. Any property that is located within the areas outlined on the following maps is subject to review relative to its geography or district. In addition, alterations to properties located within a city historic district must also be reviewed by the Memphis Landmarks Commission.
(Code 1985, § 7-53(b); Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-5. Design regulations—Review procedure.

The design review board shall implement the sign code for the central business improvement district set forth in this chapter as follows:

A. *Pre-design conference.* Before an application for review can be submitted to the DRB, a pre-design conference must be scheduled with the CCC staff to help accelerate the approval process by acquainting applicants with design standards, submittal requirements and application procedures.

B. *Application.* After the pre-design conference, an application for formal review and all information regarding the project must be submitted to the center city commission director of planning. The following materials must be submitted for all sign applications:
    1. Photo(s) of the building(s) in question;
    2. 13 copies of drawings that are to scale (not to exceed 11 inches by 17 inches in size) of the proposed sign(s) with size and dimensions. The drawings should show the front and side views of the sign and may require additional drawings if the proposal is not adequately illustrated in those drawings;
    3. A description of letter style and size to be used on the sign;
    4. A drawing or photo indicating where the sign(s) will be located on the building/site along with dimensions/measurements that are descriptive of the building or sign location;
    5. A description of the type of sign, colors, installation/mounting and materials of the proposed sign, including any proposed lighting.

The CCC staff shall have the right to waive the requirement that any of such material shall be submitted.

C. *Review of applications.* At each monthly meeting of the design review board, the CCC staff will present all applications that have been received by the director of planning no later than two weeks prior to the meeting. All meetings of the design review board are open to the public. Applicants or their representative should attend the meeting to answer any questions the design review board may have regarding the application. After reviewing each case, the design review board shall vote on the proposal.

D. *Post-review.* For approved applications, the CCC staff shall mail a letter stating the conditions of

the approval to the applicant and to the city construction code enforcement division. For denied application, the CCC staff may make recommendations to the applicant about changes that could be made to the application to warrant approval. Amendments to the application shall be considered at a future meeting of the DRB.

E. *Appeal.* Appeals must be made in writing to the chairperson of the center city commission within five business days of the date of the meeting at which the application was denied. Applicants may present the appeal at the regular CCC monthly board meeting. A representative of the design review board may be present and the CCC may outline the reasons for the denial. A final appeal may be made to the Memphis City Council after a decision has been issued by the center city commission.

(Code 1985, § 7-53(c); Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-6. Design regulations—Sign standards—General CBID sign standards.

All signs in the CBID shall adhere to the following guidelines and size limitations except in cases where outstandingly creative design solutions are offered. In such cases, if a proposal incorporates unique or high quality materials (such as neon, hand painting, some metals, or well-crafted wood), exterior lighting (such as floodlighting), unique shapes, and outstanding graphic composition, a sign exceeding the limits stated in this chapter may be approved. All signs should, however, be appropriately scaled to fit their context, should complement the building on which they are located, and should not intrude upon any architectural detail.

A. *Identification.* All signs within the CBID are encouraged to utilize creative approaches to property and business identification; however, signs should be used for identification only, not for the advertisement of services or products available within a building or site. The only exception to this is off-premises advertising.

1. *Removal.* When a business closes or relocates, its sign shall be removed within three months of the date of close. If the sign has not been removed after six months, the property owner will be notified that the sign is noncompliant and will be formally requested to remove the sign. Unless the owner can provide a reason acceptable to the design review board that the sign should be retained, the sign shall be removed immediately. If the sign has not been removed within one year of the close of the building or business, it can be removed by the city or the center city commission at the owner's expense.

2. *Disrepair.* When a sign (designated for identification or off-premises advertising) falls into disrepair or is abandoned, the CCC staff may notify the property owner that the sign is noncompliant and request that the sign be removed. Unless the owner can provide a reason acceptable to the design review board that the sign should be retained, the sign shall be removed immediately. If the sign has not been removed within one year following notification, it can be removed by the city or the center city commission at the owner's expense.

B. *Graphic elements.* All signs should contain no more than ten graphic elements.

1. If a name of a business consists of more than four syllables, it is counted only as four graphic elements.

2. The property's legal street address shall only count as one graphic element.

C. *Number of signs.* Any ground floor business is allowed two primary signs facing a public right-of-way; however, the area of the signs may not exceed the allowable size requirements as outlined in following sections.

D. *Upper floor tenants.* Each ground floor leasable unit is considered separately for signage; however, upper floor tenants are not allowed signs at the ground level unless they have a separate entrance at the ground level fronting onto a public right-of-way. Upper floor tenants in all cases are allowed, as established below, window or door graphics on the ground level and window graphics at the floor on which they are located.

E. *Multitenant buildings.* Multitenant buildings may incorporate a designation sign at the ground level that identifies all of its tenants.

F. *Size of signs.* The size of a sign will be determined by the smaller of the following two measurements: (1) the area of a rectangle enclosing all elements of a sign, including any sign cabinet or edges of a cabinet; or (2) the sum total of all areas of all elements of a sign.

G. *Ground signs.* Ground signs are freestanding elements, and include pole-mounted signs and shorter monument signs. Any activity that is set back from the street or public right-of-way by at least 35 feet may display one ground sign within the allowable size limits set forth below:

1. Pole signs shall be no taller than 20 feet and shall be no closer than 300 feet from any other pole sign. The size of the sign cabinet on top of the pole shall not exceed 45 square feet.

2. Monument signs shall not exceed 35 square feet. The height of a monument sign shall not exceed six feet. Monument signs should be designed and located so that they do not create security hazards or visual barriers to traffic.

3. Changeable copy signs of any type are not allowed. This includes individual cabinets as part of a pole sign or portable readerboard signs.

H. *Wall signs.* Wall signs may be attached flat to or pinned away from the wall and may not project from the wall by more than 18 inches. In no case should a wall sign obscure architectural details, window openings, or other open areas within a building facade.

1. Any activity may display one wall sign on each side of the building that fronts onto a public right-of-way.

2. The size of an individual wall sign will be no more than 40 percent of the signable area of any building.

3. If an activity in a building of two or more stories is a place of entertainment, a place of assembly for 200 or more people, a hospital, a hotel, or a majority tenant of the building, a sign may be placed on the wall near the roof line. In such cases, there is generally an area near the roof that is free of architectural detail; this area will be considered the signable area and no sign should exceed 40 percent of that area. Such signs are not considered primary signs and therefore do not count against the size limitations of lower, primary wall signs.

I. *Projecting signs.* Any activity may display one projecting sign on each public right-of-way frontage. A projecting sign may not extend above the roof of the structure to which it is attached.

1. Projecting signs shall be mounted at right angles to the building facade except if the building is a corner building. On corner buildings, a projecting sign may be mounted at a 45 degree angle to the building; however, in such cases, the sign at a 45 degree angle would be the only projecting sign allowed for the activity.

2. Projecting signs must clear the sidewalk by at least eight feet and shall project no more than four feet from the building face or one-third of the sidewalk width (whichever is less). Marquee graphics are excluded from this constraint.

3. The vertical axis of a projecting sign will be no more than 25 percent of the height of the building to which it is attached if the building is 75 feet tall or less, as shown in Exhibit 4 set out at the end of this section. If the height of the building to which the projecting sign is attached is greater than 75 feet, then the vertical axis of the sign cannot exceed 20 feet. The overall size of a projecting sign must adhere to Table 1 below.

Table 1

Length of Frontage on Public Right-of-Way	*Total Allowable Signage (square feet)*
Less than 30'	20
30' to 49' 11″	30
50' to 69' 11″	40
70' to 99' 11″	50
100' and greater	60

J. *Above-roof wall signs.* Wall signs above the roof are allowed only in three situations: on hotels, on hospital buildings, and when the tenant identified by the sign is a majority tenant within the building.

1. An above-roof wall sign may be attached to or pinned away from permanent portions of the building's structure that extend above what is traditionally considered to be the roofline of the building and may not project more than 18 inches from the wall to which it is attached. This type of sign should not extend above the highest projection of the roof, including elevator penthouses and mechanical enclosures. The size of the sign will be limited by the roof structure to which the sign is attached and will be no larger than 40 percent of its signable area.

2. Above-roof wall signs are allowed only on buildings that are taller than 50 feet in height.

K. *Rooftop signs.* Signs above the highest projection of the roof are not allowed except as outlined in the standards for the ballpark district and Peabody Place entertainment district.

L. *Marquee signs.* Marquees are allowed only on theaters, other entertainment establishments featuring live performances, and places of assembly of 200 or more people (including restaurants and bars).

1. As a permanent structure attached to and projecting from a building, a marquee is very much a part of a building's overall design and must be integrated into the facade design. A marquee can project the entire width of the sidewalk, assuming there are not obstructions, but must clear the sidewalk by at least eight feet.

2. Only individual letters or symbols should be placed on or attached to marquees. The area reserved for changeable copy should be no more than 85 percent of each side of a marquee. Changeable copy displayed on marquees is not included in the items of information calculation for the building or tenant.

3. If an activity is eligible for a marquee, it may not have any other projecting sign.

M. *Window signs.* Permanent window signs shall be affixed to the window and limited to 25 percent of the total area of the window in which they are displayed. Temporary window signs shall be limited to 15 percent of the total window area.

N. *Designation signs.* An industrial park, shopping center, or multitenant building can display a designation sign that indicates the name of multiple activities. These signs are subject to the above limitations regarding items of information and size. Designation signs shall not be taller than ten feet when a ground sign is allowed. Wall designation signs must adhere to the standards for wall signs.

1. Directional signage is allowed only for purposes of wayfinding and may not be used for advertising.

2. Directional signage must be kept to a minimum necessary to locate the intended destination.

3. The DRB will review all directional signage with regard to its integration with the overall signage package for the intended project.

O. *Directional signs.* Directional signs do not count toward the allowable sign limit per activity. These signs can be vehicular or pedestrian oriented, but in no case, should they exceed a size of six square feet if oriented toward vehicles or three square feet if oriented toward pedestrians or a height of four feet. Directional signs should not be designed or situated as to provide a traffic or security hazard. In no case shall they be located within a public right-of-way.

P. *Off-premises advertising.* Permitted off-premises signs fall within only one of two categories: wall painted signs and sponsored artwork. No other off-premises signs shall be permitted within the CBID.

1. Off-premises advertising attached to bus shelters and trolley kiosks is exempt from these standards.

2. Wall painted signs are allowed only in the following districts: South Main/warehouse, the Pinch, and Beale Street. Wall painted signs must be on the sides of buildings and must follow the guidelines and size restrictions for wall signs in subsection (F) of this section. When allowed, they are permitted only on buildings between two and 15 stories tall, not within 200 feet of any other wall painted off-premises sign and should not project from the face of the building wall.
3. A current certificate of use and occupancy is required before an off-premises identification sign can be installed.
4. When allowed, all off-premises wall signs must be hand painted unless the sign has been approved and designated by the design review board as sponsored art.
5. Sponsored artwork involves graphics which do not necessarily identify a particular product, place or event in their imagery; but include identification of a sponsor that may be a business enterprise or other entity; e.g., a private business may install a painted mural on the side of a building depicting a historic streetscape and include the name of its business as the provider of the mural.
6. For the purposes of these guidelines, sponsored art is considered to be only two-dimensional graphics or other types of signboards/sign cabinets; these standards are by no means intended to address three-dimensional sculpture or other types of artwork.
7. All sponsored art must adhere to size and placement guidelines outlined above regarding the particular type of artwork: wall art, projecting art, etc. The size of the identification of individual or group sponsors shall be limited to ten percent of the overall area of the piece of art.

Q. *Awnings.* Awnings can greatly enhance the appearance of a building, can provide shade and shelter, and can provide an alternative means of tenant identification. As extensions of the building to which they are attached, they must be carefully considered for their appropriateness of design in relation to the building's architectural character.

1. Buildings of historic character should have awnings that respect and complement the architecture. Contemporary building designs may accept a wider range of awning styles. Buildings or storefronts with 19th or early 20th century facades should, typically, have simple, sloped awnings rather than curved or rounded awnings or one of more modern design.
2. Awnings should fit the openings of the building on which they are attached and not overlap the opening or multiple openings.
3. Awnings should not obscure any significant architectural detail such as ornamental metal, glass or woodwork.
4. Lettering on awnings can be placed on the vertical valance flap or on the sloped portion of the awning. Any lettering that is larger than three inches in height will be counted against the allowable amount of primary signage for the activity or property. In such cases, the area of the graphic will be determined by measuring the area of the smallest rectangle that encloses all of the elements of the graphic. The maximum signable area for awnings is 30 percent of the awning's face.
5. The recommended material for awnings shall be canvas, particularly on historic buildings; however, vinyl-type awnings may be allowed on more contemporary buildings, except as stated elsewhere relative to each district's guidelines.
6. Illumination of awnings is allowed; however, the illumination must be directed or focused toward the ground, not upward creating the effect of an oversized illuminated sign. Lighting external to the awning is also allowed.

R. *Canopies.* Canopies can be constructed of canvas, well-crafted wood, or metal and are generally supported by vertical supports along their length. For the purposes of this sign code, however, a canopy that is of differing construc-

tion and that projects out from a building and/or is supported from above also falls under the guidelines outlined in this section.

1. Canopies are integral parts of buildings, and as such, require great sensitivity in order to make certain that they complement the design and character of the building.

2. Lettering on canvas or other fabric-type canopies should not be greater than six inches in height and should be located only on vertical surfaces and not on sloped or curved sections of the canopy. The front piece of a canopy may present an opportunity to prominently display a graphic symbol or logo with lettering no greater than six inches in height. Illumination of fabric-type canopies is allowed from the exterior or from within only if it is directed downward to the ground.

3. Larger identification or signage on canopies made of wood, metal or other permanent material may be allowed if it is compatible with the design of the canopy. Such signs may be internally illuminated, but in such cases, the background color must be darker than the color of the graphics.

S. *Temporary signs.* Temporary signs may be installed for a predetermined length of time and must be removed at the end of that time period. The predetermined length of time must be approved by the design review board. Temporary signs may be wall signs, window signs, or banners, but in no case should a temporary sign obscure any architectural detail of a building. Temporary signs shall be installed in an unobtrusive manner so that their removal does not damage a building facade.

1. For sale and for lease signs do not require approval of the design review board if they are limited to one sign for each available space or building frontage and are five square feet or smaller.

2. Tethered signs such as blimps or balloons must be reviewed by the DRB for appropriateness and compatibility with surrounding establishments. Tethered signage must not drift into space above public rights-of-way or across surrounding property lines.

T. *Sandwich boards.* One sandwich board sidewalk sign is allowed for each building and can identify multiple tenants on one sign. All such signs shall be designed to be folding in nature and must be removed at the close of business each day. The size of each face of a sandwich board shall not exceed 12 square feet and the overall sign shall be no taller than four feet. A sandwich board within the public right-of-way must be such that at least a five-foot unobstructed sidewalk width remains between the curb and the building front.

U. *Banners.* Banners on streetlights are allowed throughout the CBID. Banners attached to buildings are allowed only within the downtown core. Standards for building banners are included within the individual district sections of this sign code.

1. Street banners are permitted only for nonprofit organizations or governmental entities. No for-profit, commercial enterprises will be allowed to hang banners to advertise or to promote their businesses, merchandise, products or services.

2. Banners should generally be event-oriented. For events lasting one week or longer, banners may be installed 30 days prior to the event. All banners must be removed within 14 days of the conclusion of the event. If banners are not removed within the required time frame, and if city crews perform removal, the organization will be assessed the cost and may be denied future banner requests.

3. The name of a for-profit sponsor organization or event may appear at the bottom of a banner in letters no more than one inch high and occupying no more than ten percent of the overall area of the banner. Logos may be permitted within that area.

4. Banners shall be a maximum of five feet in length and 30 inches wide. The minimum distance from the bottom of the banner to the top of the curb shall be 12

feet, unless it is installed on an existing mechanism that is currently part of the public infrastructure.

5. Coordination with the city engineer is necessary before any banner is installed on a street light.

6. Installation and removal of banners is the responsibility of the sponsoring organization, but must be performed by a licensed sign company with proof of adequate liability insurance.

7. Maintenance and replacement of damaged or missing banners is the responsibility of the sponsoring organization for the duration of the banners' display and shall be addressed in a timely manner.

V. *Illumination.* Internally illuminated signs in which the background color is darker than the color of the graphics is encouraged. Exterior illumination, such as floodlights or spotlights, shall be positioned so that none of the light shines onto an adjoining property or in the eyes of motorists or pedestrians. For the purposes of these guidelines, neon-type lighting is considered external illumination.

1. Signs with marquee or bare bulb illumination shall not be located within 60 feet of any other similar sign or within 500 feet of any single, two-, three-, or four-family detached residential building. Exposed fluorescent tubes are not permitted.

2. There are no limits on neon tube illumination as a part of a sign and such lighting is strongly encouraged. Decorative neon accents intended to illuminate a building should be utilized only on nonhistoric structures and should not obscure any architectural details.

3. Signs are not required to be lit but in the event illumination is added, it must conform to this sign code.

W. *Mechanization.* Mechanized signs that incorporate moving elements shall not be located within 60 feet of another similar sign or within 500 feet of any single-, two-, three-, or four-family detached residential building.

X. *Vehicles.* Any sign painted or adhered to a vehicle that remains parked in front of any business establishment for the purposes of permanent advertising in the CBID is subject to review by the design review board. Such identification must meet the standards for identification and graphic elements explained above.

(Code 1985, § 7-53(d)(1); Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-7. Design regulations—Sign standards—Special provisions for general districts.

A. *Downtown core.* All signs within the downtown core, notwithstanding the general CBID sign standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the downtown core, for the purposes of this sign code, is bound by Auction Street, Riverside Drive, Linden Avenue and Danny Thomas Boulevard as shown in Exhibit 5 set out at the end of this section.

2. *Ground signs.* No pole signs are allowed within the downtown core unless they are utilized for a public surface parking lot, in which case they shall only identify the parking lot, management company, and rate information. Ground signs shall not be allowed for any off-premises business.

3. *Signs on parking structures.* Structured parking is a particular land use that requires immediate identification by users in order to strengthen the overall viability and success of an urban center. As such, these types of facilities may incorporate signs that exceed the size limitations established previously; however, in no case shall a sign attached to a parking structure cover any portion of a window opening or open area of the facade. One primary sign shall be allowed on each side of a parking facility that fronts onto a public right-of-way. The allowable size of signs under this section differs from the general CBID sign standards in the following ways: a wall sign may be 60 percent of the signable area; a projecting sign may be no taller than 35 percent of the overall height of the parking structure if the parking structure is less than 85 feet tall, although it may not extend above the second highest level of parking. If the parking structure exceeds 85 feet in height, then the projecting

sign is limited to a vertical axis of 30 feet. The size of a projecting sign is limited to the allowable square footage in Table 1 set out in section 12-36-6(I).

B. *Main Street Mall.* All signs on the Main Street Mall, notwithstanding the general CBID and downtown core sign standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Main Street Mall, for the purposes of this sign code, is bound by Adams Avenue, the mid-block between Main Street and Front Street, Peabody Place Avenue and the mid-block between Main Street and Second Street as shown in Exhibit 6 set out at the end of this section.

2. *Ground signs.* No ground sign will be allowed within the Main Street Mall area except for temporary and portable sandwich board/sidewalk signs. These types of signs must be reviewed by the design review board prior to their use.

3. *Projecting signs.* Projecting signs on the mall shall not project more than five feet and shall not extend above the second floor windowsills of the building to which they are attached.

4. *Illumination.* If lit, all signs within the Main Street Mall must be externally illuminated.

5. *Awnings.* All awnings shall be of a canvas or other durable cloth material.

C. *Gayoso-Peabody/Cotton Row.* All signs within the Gayoso-Peabody/Cotton Row area, notwithstanding the general CBID and downtown core sign standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Gayoso-Peabody/Cotton Row area, for the purposes of this sign code, is bound by Riverside Drive, the mid-block between Monroe Avenue and Madison Avenue, the mid-block between South Main Street and South Second Street, the mid-block between Monroe Avenue and Union Avenue, the mid-block between Second Street and Third Street, Union Avenue, Hernando Avenue, mid-block between Union Avenue and Gayoso Avenue, Second Street and mid-block between Gayoso Avenue and Peabody Place Avenue as shown in Exhibit 7 set out at the end of this section.

2. *Ground signs.* No ground sign will be allowed within the Gayoso-Peabody/Cotton Row except for temporary and portable sandwich board/sidewalk signs.

3. *Projecting signs.* Projecting signs in Gayoso-Peabody/Cotton Row shall not extend above the second floor windowsills of the building to which they are attached.

4. *Illumination.* If lit, all signs within Gayoso-Peabody/Cotton Row must be externally illuminated.

5. *Awnings.* All awnings within Gayoso-Pea-body/Cotton Row shall be of a canvas or other durable cloth material.

D. *Beale Street.* All signs within the Beale Street district, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Beale Street District, for the purposes of this sign code, is bound by Wagner Place, the mid-block between Beale Street and Peabody Place Avenue, South Fourth Street and Linden Avenue as shown in Exhibit 8 set out at the end of this section.

2. *Size of signs.* There are no size limits for signs in the Beale Street District except that the scale and character of the building to which the sign is attached must be considered and respected.

3. *Illumination.* All types of illumination will be allowed in the Beale Street District while still insuring that vehicular traffic can be safely maintained.

E. *South Main/Warehouse; The Pinch.* All signs within the South Main/Warehouse District and the Pinch, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the South Main/warehouse district, for the purposes of this sign code, is bound by Riverside Drive, Linden Avenue, South Second Street and Calhoun Avenue as shown in Exhibit 9 set out at the end

of this section. The area included within the Pinch district, for the purposes of these guidelines, is bound by Front Street, Auction Avenue, Third Street and Interstate 40 as shown in Exhibit 10 set out at the end of this section.

2. *Ground signs.* No pole sign will be allowed within South Main/warehouse district and the Pinch unless they are utilized for a public surface parking lot. When allowed, they shall be not taller than 20 feet.

3. *Illumination.* If lit, all signs within the South Main/warehouse district and the Pinch must be externally illuminated.

4. *Awnings.* All awnings within the South Main/warehouse district and the Pinch shall be of a canvas or other durable cloth material.

F. *Greenlaw/Bickford-Bearwater; Victoria Village.* All signs within the Greenlaw/Bickford-Bearwater and Victorian Village areas, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Greenlaw/Bickford-Bearwater area, for the purposes of this sign code, is bound by Front Street, Hickory Street, Second Street, Marble Street, Danny Thomas Avenue and Auction Street as shown in Exhibit 11 set out at the end of this section. The area included within the Victorian Village area, for the purposes of these guidelines, is bound by west property lines of parcels aligned with Neely, the alley north of Washington Avenue, mid-block between Orleans and Manassas and Avant as shown in Exhibit 12 set out at the end of this section.

2. *Ground signs.* No pole sign will be allowed within Greenlaw/Bickford-Bearwater and Victorian Village areas.

3. *Projecting signs.* Projecting signs in the Greenlaw/Bickford-Bearwater and Victorian Village areas shall not exceed 30 square feet and should not extend above the second floor windows of the building to which they are attached.

4. *Illumination.* If lit, all signs within the Greenlaw/Bickford-Bearwater and Victorian Village areas must be externally illuminated. In this case external illumination excludes neon lighting.

5. *Awnings.* All awnings within the Green-law/Bickford-Bearwater and Victorian Village areas shall be of a canvas or other durable cloth material.

G. *Riverfront.* All signs within the Riverfront area, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Riverfront area, for the purposes of this sign code, is bound by Island Drive, Auction Street, Riverside Drive, the railroad alignment, the Mississippi River and the Wolf River as shown in Exhibit 13 set out at the end of this section.

2. *Size of signs.* No sign within the Riverfront area shall be larger than 30 square feet.

3. *Wall signs.* Wall signs within the Riverfront area shall be no larger than 30 percent of the signable area.

4. *Wall signs above the roof.* Wall signs above the roof are not allowed.

5. *Ground signs.* No pole sign will be allowed within the Riverfront area. Only monument-type signs no taller than six feet in height shall be allowed.

6. *Projecting signs.* Projecting signs in the Riverfront area will be no larger than 30 square feet.

7. *Off-premises signs.* Off-premises signs are not allowed along the riverfront.

8. *Illumination.* If lit, all signs within the Riverfront area must be externally illuminated.

9. *Awnings.* All awnings within the Riverfront area shall be of a canvas or other durable cloth material.

H. *Baseball District.* All signs within the Ballpark District, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Ballpark District, for the purposes of this sign code, is bound by the mid-block between Madison Avenue and Court Avenue, Fourth Street, Madison Avenue, Danny Thomas Boulevard, mid-block between Union Avenue and Gayoso Avenue, Hernando Avenue, Union Avenue and

the mid-block between Third Street and Second Street as shown in Exhibit 14 set out at the end of this section.

2. *Ballpark.* The ballpark itself is excluded from this district, as all new and amended signage will have to come before the design review board for approval.

3. *Banners.* The name of a for-profit sponsor organization or event may appear at the bottom of a banner occupying no more than 25 percent of the overall area of the banner. Logos may be permitted within that area. Banners shall be a maximum of eight feet in length and either 24 inches, 30 inches or 36 inches wide. The minimum distance from the bottom of the banner to the top of the curb must be at least 12 feet, unless it is installed on an existing mechanism that is currently part of the public infrastructure.

4. *Rooftop signs.* Signage projecting above the highest point of the roof or rooftop structure is permitted within the Ballpark District on buildings that exceed 40 feet in height. Signs must identify the name of the property or the majority tenant. Signage must face the direction of the ballpark and must be visible from the interior of the ballpark. Signage must consist of individual lettering attached to a minimally visible frame. The horizontal length of the sign shall not exceed 50 percent of the length of the roof on the side of the building where the sign is located. The total area of the sign shall not exceed 350 square feet.

I. *Peabody Place Entertainment District.* All signs within the Peabody Place Entertainment District, notwithstanding the general CBID and downtown core design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the Peabody Place Entertainment District, for the purposes of this sign code, is bound by Fourth Street, Peabody Place Avenue, Third Street, the mid-block between Peabody Place Avenue and Beale Street, the mid-block between Second Street and Main Street, the mid-block between Peabody Place Avenue and Gayoso Avenue, Second Street and the mid-block between Gayoso Avenue and Union Avenue as shown in Exhibit 15 set out at the end of this section.

2. *Size of signs.* There are no size limits for signs in the Peabody Place Entertainment District except that the scale and character of the building to which the sign is attached must be considered and respected.

3. *Height and placement.* There are no limits for height and placement of signs in the Peabody Place Entertainment District except that the scale and character of the building to which the sign is attached must be considered and respected.

4. *Illumination.* All types of illumination will be allowed in the Peabody Place Entertainment District while still insuring that vehicular traffic can be safely maintained.

J. *Medical District.* All signs within the medical district, notwithstanding the general CBID design standards, shall adhere to the following guidelines and limitations:

1. *Area defined.* The area included within the medical district, for the purposes of this sign code, is bound by Union Avenue, Dunlap Street, Poplar Avenue and Claybrook Street as shown in Exhibit 16 set out at the end of this section.

2. *Ground signs.* No pole signs are allowed within the medical district unless they are utilized for a public surface parking lot, in which case they shall only identify the parking lot, management company, and rate information.

3. *Signs on parking structures.* Structured parking is a particular land use that requires immediate identification by users in order to strengthen the overall viability and success of an urban center. As such, these types of facilities may incorporate signs that exceed the size limitations established previously; however, in no case shall a sign attached to a parking structure cover any portion of a window opening or open area of the facade. One primary sign shall be allowed on each side of a parking facility that fronts onto a public right-of-way. The allowable size of signs under this section differs from standards earlier established in the following ways: a wall sign may be 60 percent of the signable area; a projecting sign may be no taller than 35 percent of the overall height of the parking structure if the parking structure is less than 85 feet tall,

although it may not extend above the second highest level of parking. If the parking structure exceeds 85 feet in height, then the projecting sign is limited to a vertical axis of 30 feet. The size of a projecting sign is limited to the allowable square footage in Table 1 set out in section 12-36-6(I).

(Code 1985, § 7-53(d)(2); Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-8. Existing nonconforming signs.

A. Any sign in existence on the effective date of this sign code which violates or does not conform to the current provisions but was constructed, erected or maintained in accordance with the requirements of previously existing ordinances or regulations, shall be regarded as a nonconforming sign.

B. No nonconforming sign shall be changed or altered in any manner which would increase the degree of its nonconformity; be expanded; structurally altered to prolong its useful life; or removed in whole or in part to any other location where it would be nonconforming.

(Code 1985, § 7-54; Ord. No. 4750, § 1, 3-7-2000)

Sec. 12-36-9. Permits.

A. *Requirements.* No sign shall be erected, altered or relocated within the central business improvement district without a permit, except as provided herein.

B. *Application.* Applications for permits shall be filed with the division of construction code enforcement.

C. *DRB approval.* No permit shall be issued unless the design review board shall have issued a letter of approval for such sign as provided in sections 12-36-3 through 12-36-7 or such sign is approved on appeal from the design review board.

(Code 1985, § 7-55; Ord. No. 4750, § 1, 3-7-2000)

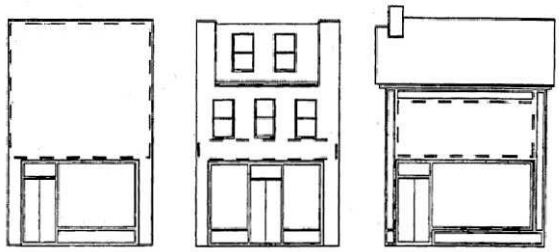
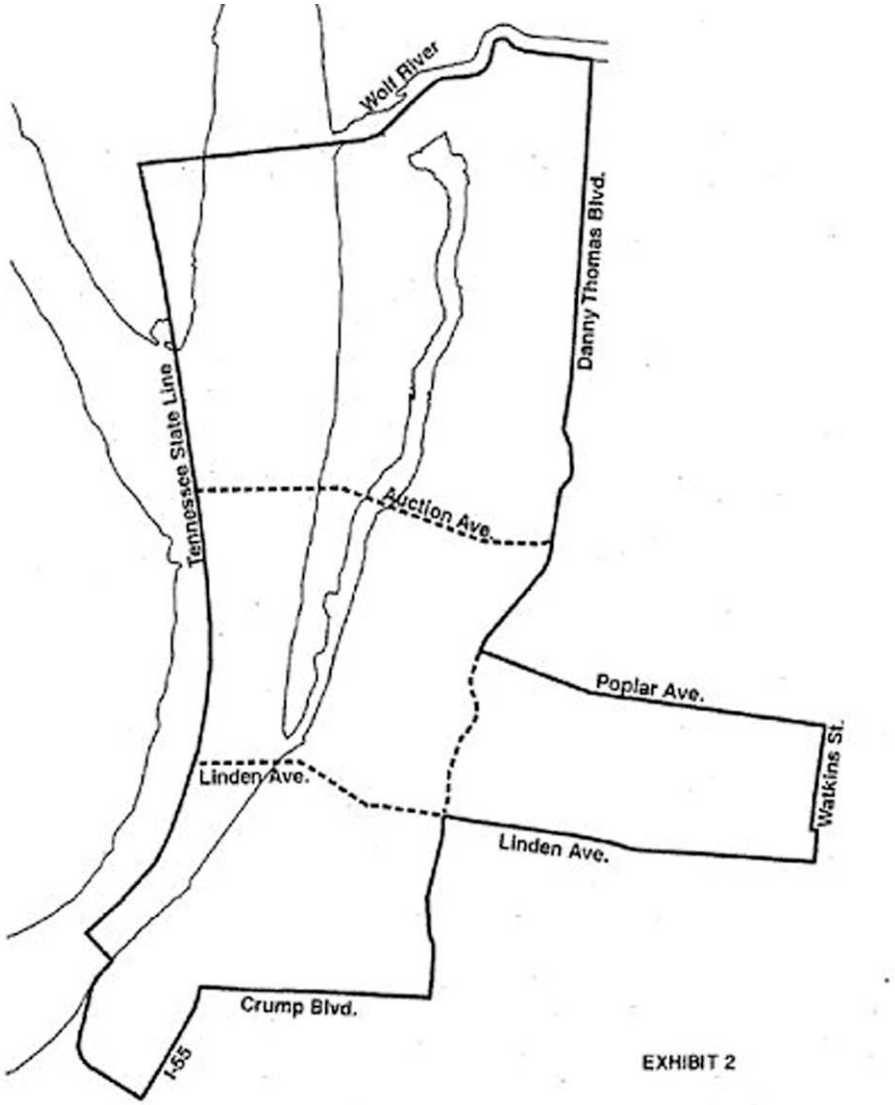
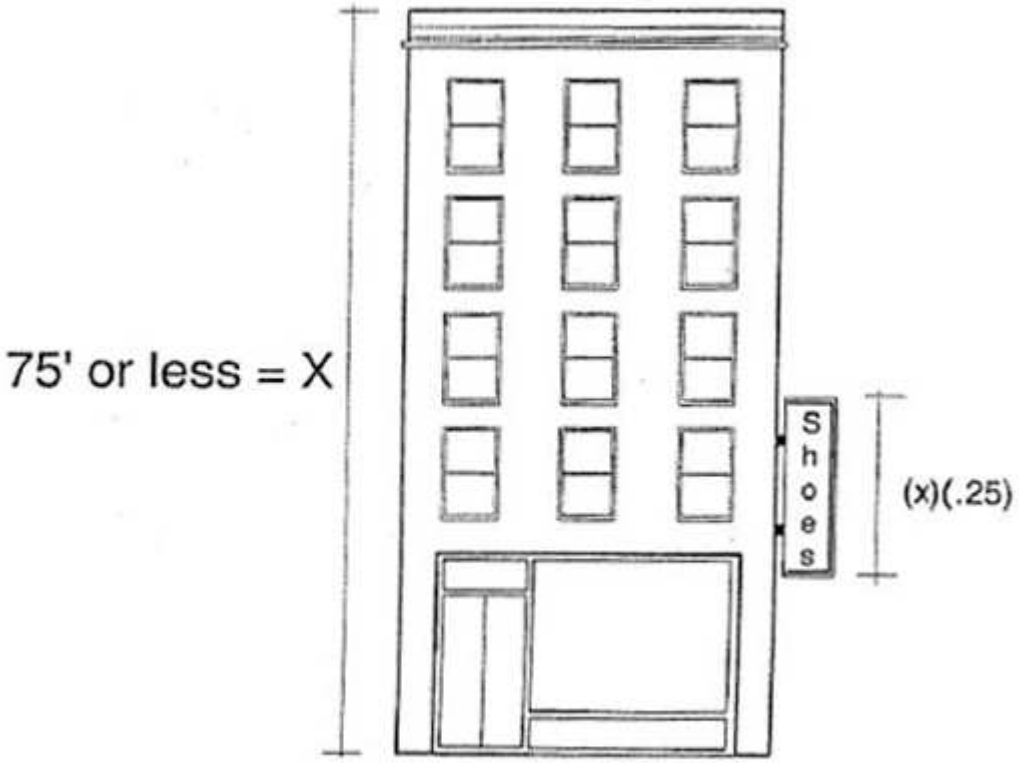


Exhibit 1 Determining the signable area of a building

Central Business Improvement District Boundaries




Review Districts in the CBID
Greenlaw & Bickford-Bearwater
Riverfront
The Pinch
Downtown Core
Victorian Village
Medical District
Main Street Mall
Gayoso-Peabody
& Cotton Row
Beale Street
BallPark
Peabody Place Entertainment
South Main/Warehouse District
EXHIBIT 3



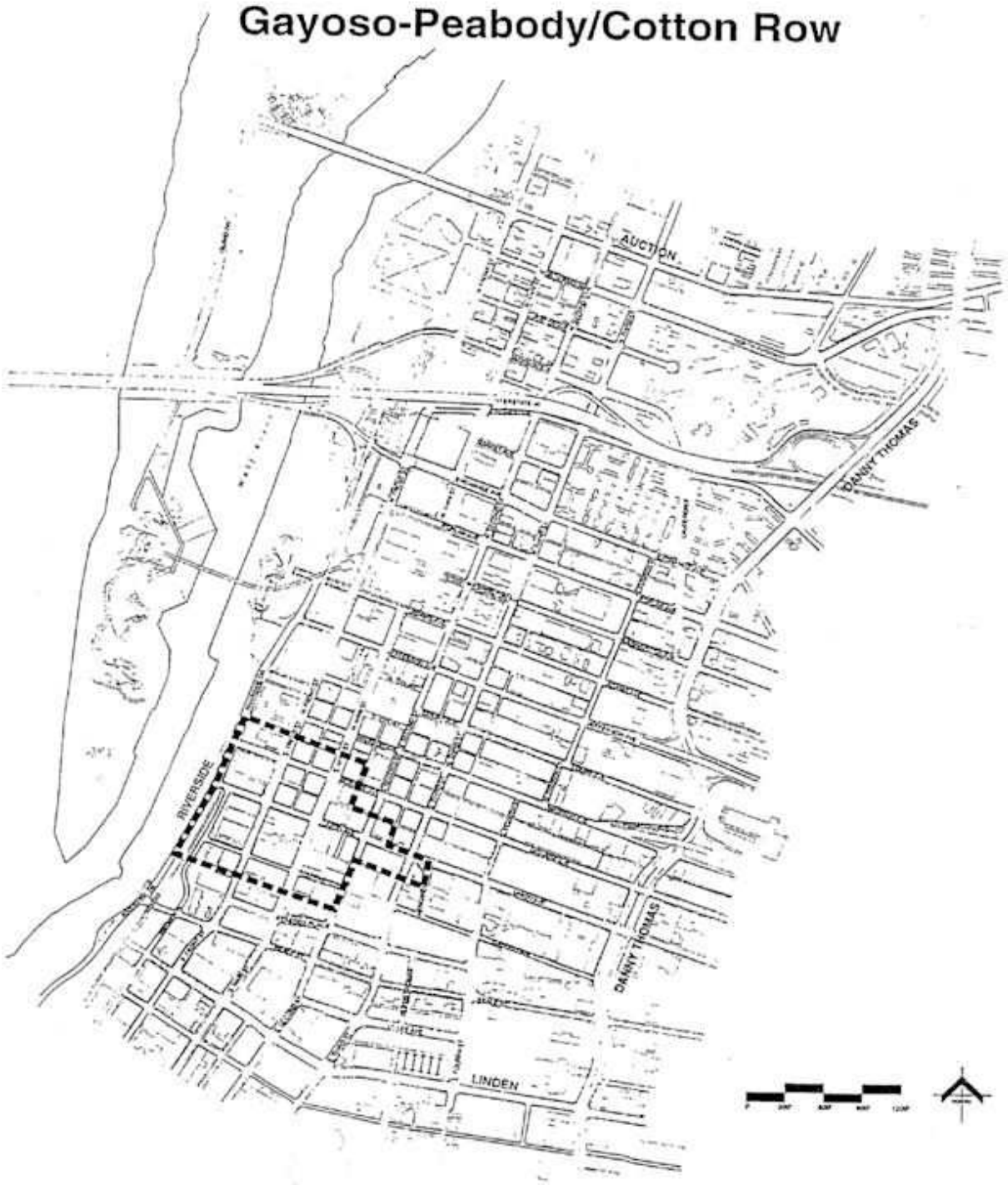
Determining the height of a projecting sign



EXHIBIT 5



EXHIBIT 6


Gayoso-Peabody/Cotton Row
AUCTION
DANNY THOMAS
RIVERSIDE
DANNY THOMAS
LINDEN


Beale Street
EXHIBIT B



EXHIBIT 9


The Pinch District

Greenlaw/Bickford-Bearwater



EXHIBIT 11

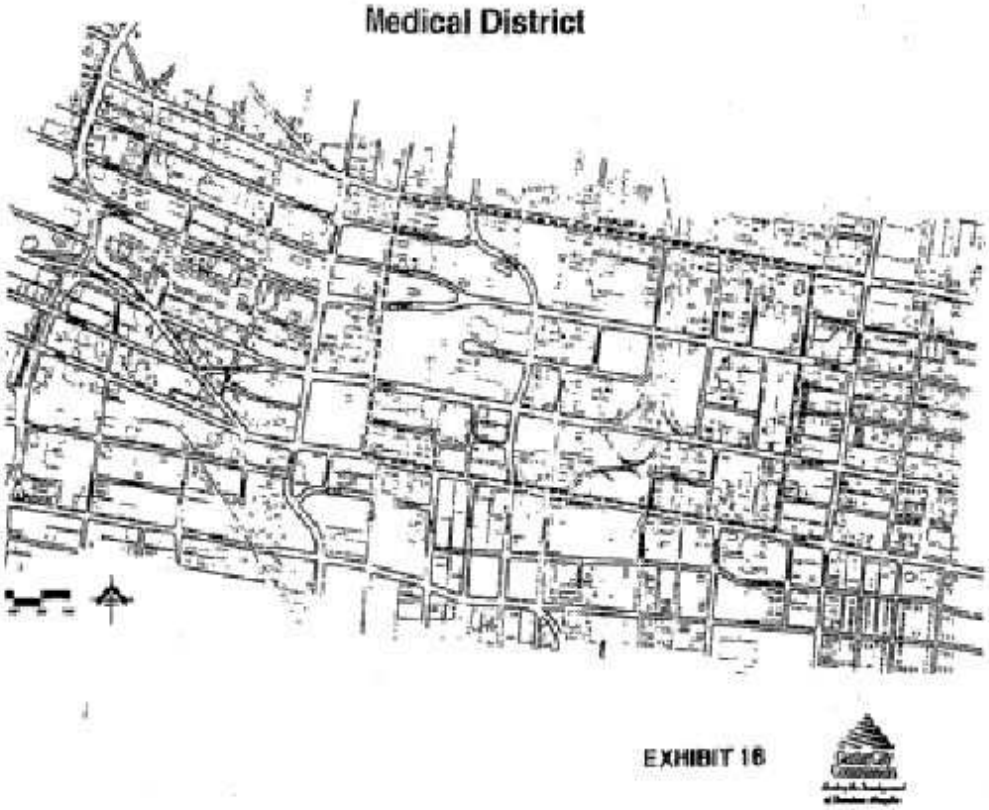

Victorian Village
EXHIBIT 12



EXHIBIT 13


Ballpark District
EXHIBIT 14


Peabody Place Entertainment District
EXHIBIT 15


Medical District
EXHIBIT 16

CHAPTER 12-40. CENTRAL BUSINESS DISTRICT SURFACE PARKING LOTS*

Sections:

Sec. 12-40-1. Established.
Sec. 12-40-2. Parking lot defined.
Sec. 12-40-3. Location prohibited.
Sec. 12-40-4. Locations permitted.
Sec. 12-40-5. Surface parking lot lighting.
Sec. 12-40-6. Parking lot fencing.
Sec. 12-40-7. Fences and walls.
Sec. 12-40-8. Supplemental zoning regulations.
Sec. 12-40-9. Downtown parking facility revitalization and safety program.

Sec. 12-40-1. Established.

There are established regulations for the location, design and landscaping of surface parking lots within the central business improvement district (CBID) which shall read as set forth in this chapter.
(Code 1985, § 7-62; Ord. No. 4177, § 1, 5-4-1993)

Sec. 12-40-2. Parking lot defined.

Parking lot means any area located within the CBID which, by design or by use, provides parking for six or more motor vehicles at grade outside of any structure. provided, however, that the term "parking lot" shall not include parking provided adjacent to and as support for an allowed use within the central business improvement district. Such parking shall not be available for use by the general public on a paying basis. In no event shall support parking for new construction be allowed within 40 feet of the property line abutting the Main Street Mall. Support parking within the CBID shall be screened by the primary structure or by landscaping as required in the Memphis and Shelby County Unified Development Code, included herein as title 15.
(Code 1985, § 7-63; Ord. No. 4177, § 1, 5-4-1993; Ord. No. 4269, § 1, 8-16-1994)

Sec. 12-40-3. Location prohibited.

Surface parking lots as defined herein shall not be permitted to be established within the central business improvement district in the area described as being located within 150 feet on either side of Main Street. Notwithstanding the foregoing, and the provisions of sections 12-40-2 and 12-40-4, a new surface parking lot or a new supporting parking lot which replaces a legal, paved surface parking lot and/or supporting parking lot existing on September 1, 2000, and abutting the Main Street Mall, shall be permitted in the central business improvement district within 150 feet of Main Street, if such replacement parking lot shall have fewer parking spaces located within 40 feet of the property line abutting the Main Street Mall than the parking lot being replaced, and shall be screened from the Main Street Mall by the primary structure or by landscaping as required in the Memphis and Shelby County Unified Development Code, included herein as title 15, for streetscapes, and otherwise conform to the design and landscape requirements of the Memphis and Shelby County Unified Development Code.
(Code 1985, § 7-64; Ord. No. 4177, § 1, 5-4-1993; Ord. No. 4827, § 1, 11-7-2000)

Sec. 12-40-4. Locations permitted.

Surface parking lots shall be permitted to be located within the central business improvement district, except as provided in section 12-40-3, provided such surface parking lots shall conform to the design and landscape requirements of the Memphis and Shelby County Unified Development Code, included herein as title 15.
(Code 1985, § 7-65; Ord. No. 4177, § 1, 5-4-1993)

Sec. 12-40-5. Surface parking lot lighting.

Parking lots shall be adequately illuminated to ensure the security and safety of vehicles, patrons and the general public. At a minimum, illumination of 0.8 footcandles measured at the lot surface shall be provided throughout the parking lot area between the hours of sunset and sunrise. In general, lighting should be provided in accordance with the guidelines published by Illuminating Engineers Society of North America, IES Lighting Handbook, 1981, or more current edition. Light fixtures shall be MLG&W standard downtown tear-drop fixtures or an equivalent alternative approved by the CBID design review committee.
(Code 1985, § 7-66; Ord. No. 4177, § 1, 5-4-1993)

Sec. 12-40-6. Parking lot fencing.

Parking lot fencing shall be permitted provided such fencing is constructed with ornamental iron, or a combina-

*__Charter reference—__According to section 2-84-14 of the Code, references to central business improvement district in sections 12-40-1 through 12-40-6 shall refer to District No. I upon the adoption by the commission of rules and regulations pursuant to section 12-44-7.

tion of iron and brick or masonry construction. No fence shall be constructed without prior approval by the CBID design review committee. Fence construction using chain link or cyclone fencing is expressly prohibited.
(Code 1985, § 7-67; Ord. No. 4177, § 1, 5-4-1993)

Sec. 12-40-7. Fences and walls.

In addition to the requirements of the Memphis and Shelby County Unified Development Code, included herein as title 15, the following regulations shall apply within the CBID boundaries set out in section 12-32-2(B):

A. Fences and walls greater than four feet in height, except ornamental iron or brick walls, shall not be permitted within 30 feet of any public street right-of-way; however, such fences shall be permitted during construction of a building on the premises during a period beginning ten days prior to commencement of construction and ending upon issuance of a certificate of use and occupancy by the building official.

B. In no event shall any fence be constructed with the application of razor wire, ribbon wire, concertina wire or similar elliptical or coiled wire. Furthermore, in no event shall any fence be equipped or extended in a manner so as to extend or cantilever the fence beyond a structure's property line.

(Code 1985, § 7-68; Ord. No. 4268, § 2, 7-26-1994)

Sec. 12-40-8. Supplemental zoning regulations.

Within the CBID boundaries set out in section 12-32-2(B), outdoor storage of merchandise, material, supplies, salvage materials, refuse or similar material shall not be permitted except as provided hereafter:

A. Materials and supplies necessary for the support of new construction, repair or alteration of a structure shall be permitted to be stored outdoors during a period beginning 30 days prior to commencement of construction and ending upon issuance of a certificate of use and occupancy by the building official.

B. In no event shall the outdoor storage of materials, supplies, merchandise, refuse or other similar material be permitted on the rooftop of any structure.

(Code 1985, § 7-69; Ord. No. 4268, § 2, 7-26-1994)

Sec. 12-40-9. Downtown parking facility revitalization and safety program.

A. *Intent and scope of the section.* This section is intended to create a new section to establish the downtown parking facility revitalization and safety program. In addition, this section designates downtown parking facilities as a priority area for inspections and enforcement of existing minimum standards for property maintenance, safety, and sanitation; and provide a framework for coordination between the city's code enforcement division and other city divisions and partner entities in addressing conditions of downtown parking facilities that may violate the IPMC or otherwise endanger public health, safety, and welfare.

B. *Definitions.*

1. *Downtown* means the geographic area defined by the Memphis 3.0 Comprehensive Plan, bounded generally by the Mississippi River to the west, A.W. Willis/North Parkway to the north, East Parkway to the east, and Crump Boulevard to the south.

2. *Parking facility* means any structure, surface lot, or combination thereof, open to the public for vehicular parking, whether for hourly, daily, monthly, or event-based use.

3. *Downtown public parking facility* means any parking facility located within downtown that is available for use by the general public, whether operated on a paid or unpaid basis.

4. *Parking garage* means any multi-level parking facility privately owned and managed that is accessible to the general public located in downtown Memphis.

5. *Code official* has the same meaning as in the IPMC as locally adopted, and includes any duly authorized representative or deputy of the code official acting within the scope of authority granted by the IPMC and city ordinances.

6. *Subject IPMC provisions* means, for purposes of downtown public parking facilities, the provisions of the IPMC as locally adopted that apply to nonresidential structures and related premises, including but not limited to sections 101, 102, 103, 104, 106, 107, 108, 109, 302, 304, 305, 308, 402, and 606, as they may be amended from time to time.

7. *Facility operators* means any individual, company, contractor, or entity responsible for managing, maintaining, or overseeing the daily operations of a parking facility.

8. *Program* means the downtown parking facility revitalization and safety program as established in this ordinance.

C. *Program objectives.* The program shall aim to:

1. Identify downtown public parking facilities whose physical condition, structural elements, lighting, sanitation, or maintenance may constitute a violation of the subject IPMC provisions or otherwise render the facility unsafe, unfit for occupancy, or unlawful under the IPMC.

2. Encourage regular observation and, as resources allow, periodic inspections of downtown public parking facilities by code enforcement, consistent with the authority granted by IPMC sections 103 and 104, to determine compliance with the subject IPMC provisions.

3. Promote timely correction of conditions that violate the subject IPMC provisions, including but not limited to:

   a. Unsafe structures or equipment, or structures unfit for human occupancy, as defined in IPMC Section 108;

   b. Exterior property and premises that are not maintained in a clean, safe, and sanitary condition as required by IPMC section 302;

   c. Exterior and interior structural elements (including but not limited to walls, ceilings, stairways, railings, decks, ramps, roofs, and other structural components) that are not maintained in sound condition and good repair as required by IPMC sections 304 and 305;

   d. Accumulations of rubbish and garbage, spills, fluids, or other hazards in violation of IPMC section 308;

   e. Inadequate light and illumination of interior or enclosed areas, where such conditions render the structure unsafe or unfit for use under IPMC section 402; and

   f. Elevators, escalators, and dumbwaiters that are not maintained in compliance with IPMC section 606 or applicable referenced codes.

D. *Program requirements.*

1. Inspections.

   a. The code official is authorized to make inspections of downtown public parking facilities pursuant to IPMC sections 103 and 104 and the city's property maintenance program, in order to determine compliance with the subject IPMC provisions.

   b. The code official may coordinate such inspections with other city divisions and with the downtown mobility authority as appropriate, provided that code enforcement's actions are in accordance with the IPMC and any other applicable city ordinances.

2. Findings and notices.

   a. Where a downtown public parking facility is found to be in violation of the subject IPMC provisions, the code official shall issue notices of violation, orders, or other remedies consistent with IPMC sections 106 and 107.

   b. Notices shall describe the conditions observed, identify the specific IPMC sections alleged to be violated, and provide a reasonable time to abate or correct the violations as required by the IPMC.

3. Unsafe structures and emergency measures.

   a. Where the condition of a parking garage or other downtown public parking facility constitutes an unsafe structure, unsafe equipment, or a structure unfit for human occupancy under IPMC section 108, the code official may condemn the structure or equipment and take such actions as are authorized by IPMC section 108, including placarding and requiring the structure to be vacated or secured.

   b. In cases of imminent danger, the code official may take emergency measures as authorized by IPMC section 109, includ-

ing ordering occupants to vacate, closing sidewalks or streets in coordination with the appropriate authorities, or taking temporary measures to secure the premises.

E. *Reporting.*

a. During the city's annual budget preparation and adoption process, or approximately six months following the effective date of the ordinance from which this section is derived if sufficient data is not available during the budget process, the administration shall make a presentation to the Memphis City Council, detailing the effectiveness of more focused enforcement of the IPMC as it relates to parking garages; and, if necessary, the administration shall, at that time, provide a detailed report that outlines any additional resources that may be beneficial in order to continue enforcement.

(Ord. No. 5943, § 1, 2-24-2026)

CHAPTER 12-44. CENTRAL BUSINESS IMPROVEMENT DISTRICT II*

Sections:

Sec. 12-44-1. Created.
Sec. 12-44-2. District boundaries.
Sec. 12-44-3. Special assessment.
Sec. 12-44-4. Authorized improvements, services and projects.
Sec. 12-44-5. Initial special assessment rates.
Sec. 12-44-6. District management corporation.
Sec. 12-44-7. Delegation of authority to district management corporation.
Sec. 12-44-8. Annual budget.
Sec. 12-44-9. Determination and apportionment of special assessments.
Sec. 12-44-10. Time and manner of payment of assessments.

Sec. 12-44-1. Created.

There is established and created the Memphis Central Business Improvement District II, pursuant to the Central Business Improvement District Act of 1990, T.C.A. title 7, chapter 84, part 5 (as amended from time to time, hereinafter in this chapter called the "1990 Act").

(Code 1985, § 7-86; Ord. No. 4468, § 2, 1-7-1997)

***State law reference—**Central Business Improvement District Act of 1971, T.C.A. § 7-84-101 et seq.

Sec. 12-44-2. District boundaries.

The central business improvement district created by this chapter shall be comprised of that area located in the city within the following boundaries:

That area bounded generally by the Tennessee state line on the west of the Interstate 55 bridge on the south, thence east along the Interstate 55 bridge, thence south along the shore line of the Mississippi River to a line extended from the ICC Railroad tracks to the Mississippi River, thence following the railroad tracks to Interstate 55, thence north along the center of Interstate 55 to Crump Avenue, thence following Crump Avenue to Danny Thomas, thence along Danny Thomas to Linden Avenue, thence east along Linden Avenue to Watkins Street, thence north generally along Watkins Street to Poplar Avenue, thence generally west along Poplar Avenue to Danny Thomas, thence north along Danny Thomas to the Wolf River, thence along the Wolf River to the point where it turns south, thence along the centerline of the Wolf River Riverfront Channel and following such line to the Tennessee state line.

(Code 1985, § 7-87; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-3. Special assessment.

All parcels of real property in the central business improvement district created by this chapter shall be subject to the provisions of the special assessment provided in this chapter; provided, however, that no assessments shall be levied against any government-owned property, including, but not limited to, property owned by the city or County of Shelby or by a public building authority created by either or both thereof, and provided further that the first $25,000.00 of appraised value of each parcel of real property shall be exempt from such assessment.

(Code 1985, § 7-88; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-4. Authorized improvements, services and projects.

The improvements, services and projects authorized to be provided within the central business improvement district created by this chapter, and other uses of special assessment revenues within the district, include:

A. Provide services for the improvement and operation of the district, including, but not limited to:

1. Promotion and marketing;

2. Advertising;
3. Health and sanitation;
4. Public safety;
5. Security;
6. Elimination of problems related to traffic and parking;
7. Recreation;
8. Cultural enhancements;
9. Consulting with respect to planning, management and development activities;
10. Maintenance of the improvements;
11. Activities in support of business or residential recruitment, retention or management development;
12. Aesthetic improvements, including the decoration, restoration or renovation of any public place or of building facades and exteriors in public view which confer a public benefit;
13. Furnishing of music in any public place;
14. Professional management, planning and promotion of the district; and
15. Design assistance;

B. Acquisition, construction, maintenance or operation of parking facilities;

C. Acquisition, construction, maintenance or operation of public improvements;

D. Acquisition of real property or an interest therein in connection with a public improvement;

E. To construct and install improvements across or along any public street, alley, highway, stream of water or watercourse; and

F. Construction and operation of child care facilities.

(Code 1985, § 7-89; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-5. Initial special assessment rates.

The initial rates of special assessment on all nonexempt property by property classifications (including without limitation any leasehold interest therein) are as follows:

Classification	*Assessment*
Single-family	$0.0/$100.00 of assessed value
Governmental	$0.0/$100.00 of assessed value
All other	$0.65/$100.00 of assessed value

The first $25,000.00 of appraised value of each tax parcel shall be exempt from such special assessment. (Code 1985, § 7-90; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-6. District management corporation.

Pursuant to T.C.A. § 7-84-519, Memphis Center City Commission is appointed to act as the district management corporation and advisory board for Memphis Central Business Improvement District II, for the purpose of making recommendations for the use of special assessment revenues and for the purpose of administering activities within and for the district, the making of improvements within and for the district, and the provision of services and projects within and for the district.

As so appointed, Memphis Center City Commission shall be known and referred to in this chapter as the "district management corporation."
(Code 1985, § 7-91; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-7. Delegation of authority to district management corporation.

The following powers are delegated to the district management corporation, pursuant to T.C.A. § 7-84-520:

A. To enter into contracts and agreements;

B. To hire employees or retain agents engineers, architects, planners, consultants, attorneys and accountants;

C. To acquire, construct, install and operate public improvements and parking facilities contemplated by this chapter and all property, rights, or interests incidental or appurtenant thereto and to dispose of real and personal property and any interest therein, including leases and easements in connection therewith;

D. To coordinate, manage, control and supervise:

1. All the business and affairs of the central business improvement district created by this chapter;

2. The acquisition, construction, installation and operation of public improvements and parking facilities within the district;

3. The operation of district services therein; and

4. The services provided by the city within the district, including without limitation, health, safety, sanitation, and construction code enforcement;

E. To adopt, promulgate, establish, enforce and amend from time to time written rules and regulations governing the design of building facades and exteriors in public view, signs and all other improvements, public or private, located within such parts of district II as shall be determined by the commission from time to time, including without limitation, different rules and regulations for different parts or neighborhoods within district II, a violation of such rules and regulations is declared to be a misdemeanor subject to punishment as provided in section 1-24-1;

F. To establish a design review board or other similar body to make recommendations to the commission regarding regulations to be promulgated with respect to the design of public building facades and exteriors in public view, signs and other public improvements located within district II and to review applications for and issue permits for such building facades and exteriors in public view, signs and other improvements;

G. To adopt, promulgate, establish, enforce and amend from time to time written rules and regulations governing operation of any or all Main Street Mall activities, including without limitation, regulation of noise, bicycles or other vehicles, privately used bicycles, floodlights, lights, music, machines, encroachments, concessions, leases, permits, fees, amusement devices, mechanical devices, sidewalk activity, and vehicular traffic and to assess uniform common mall fees; a violation of such rules and regulations is declared to be a misdemeanor subject to punishment as provided in section 1-24-1; and

H. To exercise all rights and powers necessary or incidental to or implied from the specific powers granted in this chapter. Such specific powers shall not be considered as a limitation upon any power necessary or appropriate to carry out the purposes and intent of this chapter.

(Code 1985, § 7-92; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-8. Annual budget.

On or before June 1 of each year, or such other time as may be set by the council, the district management corporation shall submit an annual budget for review and approval by the council of the city, provided however that the annual budget for the first fiscal year of operation of Memphis Central Business Improvement District II shall be submitted on or before March 1 of such year. This budget shall include a statement of the improvements to be made, the services to be provided and the projects and activities to be conducted during the ensuing fiscal year, the proposed program budget and a statement of the assessment rates for financing the proposed budget.
(Code 1985, § 7-93; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-9. Determination and apportionment of special assessments.

A. The council of the city shall determine annually, on or before July 1 of each year, the total costs and expenses of improvements, services and projects autho-

rized pursuant to this chapter which are to be paid from special assessments against all parcels of real property within the Memphis Central Business Improvement District II, as authorized by T.C.A. § 7-84-521, and annually apportion such costs and expenses upon the various properties located within such district in accordance with the benefits conferred upon the various properties. Such assessments and the apportionment thereof shall be determined in accordance with the 1990 Act, including T.C.A. §§ 7-84-521 through 7-84-528.

B. Changes may be made in the rates or additional rates of the special assessment, in accordance with the provisions of T.C.A. § 7-84-522.

C. After all assessments have been determined, an assessment roll shall be prepared by the council of the city, which shall show the location of the property, the owner of the property as shown in the records of the assessor, and the amount of the assessment.

D. Special assessments imposed pursuant to this chapter shall be in addition to assessments otherwise provided for, including without limitation, assessments pursuant to chapters 12-32 through 12-40.
(Code 1985, § 7-94; Ord. No. 4468, § 2, 1-7-1997)

Sec. 12-44-10. Time and manner of payment of assessments.

All special assessments levied pursuant to this chapter against property within the Memphis Central Business Improvement District II shall be made as of and become effective on January 10 in the calendar year following the imposition of such assessment (including the initial assessment and each annual assessment thereafter) and shall be payable on or before April 10 of such year; provided, however, that the assessment levied pursuant to this chapter against property within the Memphis Central Business Improvement District II for calendar year 1997 shall be made as of and become effective on the day after the adoption of this chapter by the council of the city, prorated for any partial year, and shall be payable on or before June 10, 1997.
(Code 1985, § 7-95; Ord. No. 4468, § 2, 1-7-1997)

CHAPTER 12-48. COMMON MALL AREA*

Sections:

Sec. 12-48-1. Definitions.
Sec. 12-48-2. Center city commission—Powers.
Sec. 12-48-3. Center city commission—Duties—Appeals.
Sec. 12-48-4. Center city commission—Meetings.
Sec. 12-48-5. Center city commission—Enforcement—Injunctive or other relief.
Sec. 12-48-6. Insurance.
Sec. 12-48-7. Regulation of vehicles.
Sec. 12-48-8. Violation—Penalty.

Sec. 12-48-1. Definitions.

As used in this chapter:

Amusement devices means any device created to perform for a customer a source of entertainment, other than coin-operated devices, mechanically operated or otherwise.

Bicycle or *wheeled vehicle* means any wheeled vehicle, whether propelled manually or motorized, offering services for pay for either a fixed base operator or otherwise.

Bicycle, private use, means the use by an individual for his or her personal use, using common mall passageways, including any entrance onto the mall or general public areas adjacent thereto.

Commission means the center city commission.

Common mall means that property used by the general public which width extends immediately from the front property line on the west side of the mall to the front property line on the east side of the mall and which length extends from Exchange Street on the north to McCall Street on the south, and which includes the land area known as Court Square and the north and south Court Streets immediately adjacent thereto, such Court Square area to retain its function as a public park and further includes West Court to the first north/south alley west of former Main Street.

Common mall transit vehicle means a vehicle designed specifically for common mall transportation or service and approved by the commission.

***Editor's note—**According to section 2-84-14 of the Code, this chapter is to be repealed upon the adoption by the commission of rules and regulations pursuant to section 12-44-7(G).

Concession means the serving of food or beverages in any form; sale of plants and flowers, wares of any type; by means of portable, semiportable or permanent equipment, carts or stands or the performances of services by any owner/operator or establishment operator.

Encroachment means the use of common mall property by any owner/operator or establishment owner for their own personal or private purposes to sell, solicit, give away, promote, or in any way further their business, charitable, or civic interests or the use of private property open to the mall and adjacent to it for any such purpose within four feet of the front property line of the property of any such owner/operator or establishment owner.

Establishment operator means an individual, company or group of persons operating in a building of a permanent nature immediately adjacent to the common mall area.

Fees means any charge levied by the commission for a permit, long-term or short-term lease as provided in the fee schedule, section 12-48-2, made a part of this chapter.

Floodlights means the use of any light, either on the building exterior or interior, to illuminate the immediate area or to produce attention of passersby or the general public.

Hold-harmless agreement means a written agreement whereby the owner/operator or establishment operator holds the commission and the city harmless from any losses and/or claims arising out of their use of the common mall area.

Liability and workers compensation insurance means insurance provided at the expense of the owner/operator or establishment operator whereby such operator's liability for damages or injury to their employees, members of the public and third parties are covered by any insurance carrier satisfactory to the commission.

Lights means the use of any lights, whether flashing, beaming, electronically operated or reflecting, which may attract individuals or customers inconsistent with written rules and/or regulations established by the commission.

Long-term lease means agreement as to length of time and use and/or rental of space or services upon the common mall by private or public concerns or individuals for a period of one year or more and for which a fee is collected. Long-term leases are to be negotiated by the commission with such assistance from city departments as required and within the framework set out in the fee schedule, section 12-48-2, and such leases are subject to approval by the city council and execution by the mayor.

Music means any type of musical sound, whether the original source emanates from within a building or is produced from a mechanism attached to the exterior of a business or consists of some other freestanding or freewheeling device and whether fixed or portable.

Noise means any sound produced by any means which can be heard upon the common mall.

Owner/operator means an individual, company, or group of persons who have obtained permits or long-term or short-term leases to operate a single venture upon the common mall.

Permit means any use granted by the commission for a period of time, up to 90 days and subject to extensions thereof, with or without a fee, for any purpose and subject to written regulations of the commission.

Property rights means any right, granted by the commission, of any owner/operator or establishment operator to use the common mall contingent upon written rules and regulations set out by such commission.

Short-term lease means agreement as to length of time and use and/or rental of space or services upon the common mall by private or public concerns or individuals for a period up to one year and for which a fee is collected. Short-term leases are to be negotiated by the commission with such assistance from city departments as required and within the framework set out in the fee schedule, section 12-48-2, and such leases are subject to execution by the mayor.

Sidewalk activity means the use of the common mall area immediately in front of a business or establishment carried on by any owner/operator or establishment operator for any craft, display, promotion or service to be rendered by such business establishment or the use of private property open to the mall and adjacent to it for any such purpose within four feet to the front property line of such business or establishment.

Vehicles means the use by any person of any type vehicle upon the common mall.

(Code 1967, § 10½-40; Code 1985, § 7-76; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977; Ord. No. 2839, § 1(1), (2), 3-6-1979)

Sec. 12-48-2. Center city commission—Powers.

The center city commission is empowered to establish written rules and regulations, subject to the approval of the city council, governing operation of all common mall activities, including, but not limited to, regulation of noise, bicycles or wheeled vehicles, privately used bicycles, floodlights, lights, music, machines, encroachments, concessions, leases, permits, fees, devices either amusement or mechanical, sidewalk activity; to limit vehicular traffic; and to assess uniform common mall fees.
(Code 1967, § 10½-42; Code 1985, § 7-77; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977; Ord. No. 2389, § 1(3), 3-6-1979)

Sec. 12-48-3. Center city commission—Duties—Appeals.

A. In addition to the commission devising written rules and regulations, it shall sit as a body to hear complaints and/or suggestions from common mall owner/operators and establishment operators at regular or special meetings, upon the giving of proper notice to the general public; render decisions based upon its findings and implement same into written rules and regulations. Appeal of any decision of the commission may be carried forward the city council, provided written appeal is accompanied by petition containing at least 100 signatures of individual mall owner/operators and/or establishment operators within ten days from date of such hearing before the commission. City council decisions shall be final.

B. It shall be the duty of the commission to secure both hold-harmless agreements and proof of liability and workers compensation insurance from prospective owner/operators or establishment operators utilizing the common mall in their endeavors, naming the commission and the city as additional insureds, with certificates of insurance provided on all long-term and short-term leases prior to the execution of such leases; and copies of such certificates shall be promptly forwarded to the city insurance coordinator.

C. On permits not requiring long-term or short-term leases, the commission will have the option of securing proof of liability and workers compensation insurance or a hold-harmless agreement in favor of the commission and city, as it deems appropriate.
(Code 1967, § 10½-43; Code 1985, § 7-78; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977)

Sec. 12-48-4. Center city commission—Meetings.

The center city commission shall meet at least once a month at such time and place as such commission may fix by resolution. Special meetings may be called from time to time by the chairperson. A majority of the members of the commission shall constitute a quorum for the transaction of business. Decisions shall be based upon a vote of the majority of the commission. The commission shall cause a proper record to be kept of its proceedings.
(Code 1967, § 10½-44; Code 1985, § 7-79; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977)

Sec. 12-48-5. Center city commission—Enforcement—Injunctive or other relief.

Enforcement of this chapter shall be delegated to any employee of the center city commission staff, who may obtain a summons through the city municipal court, and also to any city police officer, who may issue a summons or misdemeanor citation or effect a physical arrest for violations. In addition to the remedies provided herein, the center city commission may issue an order requiring any violator to cease or suspend operation of the facility causing the violation and/or initiate court proceedings to enjoin such violation.
(Code 1967, § 10½-47; Code 1985, § 7-82; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977; Ord. No. 2839, § 1(4), 3-6-1979)

Sec. 12-48-6. Insurance.

A. Where liability and workers compensation insurance is required, the limits and coverages are as follows:

Coverages	*Limits*
Comprehensive general liability:	
Bodily injury—	$500,000.00 each occurrence; $500,000.00 aggregate*
Premises operations	
Independent contractor	
Products-completed operations*	
Blanket contractual	
Property damage—	$100,000.00 each occurrence; $100,000.00 aggregate*
Premises operations	

Coverages	*Limits*
Independent contractor	
Products-completed operations*	
Blanket contractual	
Workers' compensation and employer's liability*	Statutory limits

*These coverages and limits may be waived or adjusted by the commission if, in the opinion of the city insurance coordinator, the exposure and circumstances do not justify their inclusion.

B. All moneys received from fees, permits and leases shall be paid into the general funds of the city less the costs or expenses borne by the board incidental to issuance of the permit, lease, or other property rights.
(Code 1967, § 10½-48; Code 1985, § 7-83; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2555, § 2, 2-22-1977)

Sec. 12-48-7. Regulation of vehicles.

A. No motorized or nonmotorized wheeled vehicles (except for police, fire and other emergency vehicles, official mall transit vehicles, and wheelchairs or similar vehicles for the handicapped) shall be allowed on the common mall area (other than North and South Court Streets from Second Street to the mall) unless a permit for such use shall first have been obtained from the center city commission. Permits will be issued only in connection with special events or construction or renovation of buildings facing the mall or for mall maintenance and repairs. Permits will not be issued for regular delivery vehicles, which shall park in designated loading zones or alleys in accordance with applicable city ordinances.

B. Except as otherwise provided in this section, the common mall area shall be designated as a tow-away zone and any illegally parked vehicles thereon shall be subject to the provisions of section 11-40-3 of this Code.

C. Manually propelled vehicles such as bicycles, skateboards, etc. and non-motorized wheeled vehicles such as pedi-cabs shall be allowed on the common mall area without a permit and are subject to the following rules of operation:

1. When operating a bicycle, skateboard, or other manually propelled vehicle or non-motorized wheeled vehicle on the common mall area, such person shall yield the right-of-way to any pedestrian or trolley.
2. Any operator of a bicycle, skateboard, or other manually propelled vehicle or non-motorized wheeled vehicle shall give an audible signal before overtaking and passing any pedestrian. The audible signal shall be given verbally or via a bell, and shall not be given via a whistle or siren.
3. No person shall park a bicycle or non-motorized wheeled vehicle upon the common mall area in such a manner as to obstruct pedestrian or trolley traffic.

(Code 1967, § 10½-49; Code 1985, § 7-84; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2839, § 1(5), 3-6-1979; Ord. No. 5432, § 1, 1-3-2012)

Sec. 12-48-8. Violation—Penalty.

Violation of any provision of this chapter or of any of the rules of the center city commission is declared to be a misdemeanor. The penalty for each such violation shall be a fine of not less than $15.00 nor more than $50.00.
(Code 1967, § 10½-50; Code 1985, § 7-85; Ord. No. 2383, § 2, 3-9-1976; Ord. No. 2839, § 1(6), 3-6-1979)

CHAPTER 12-50. QUALIFIED PUBLIC USE FACILITY—BEALE STREET

Sections:

Sec. 12-50-1. Designation as qualified public use facility.
Sec. 12-50-2. Creation of district.
Sec. 12-50-3. District boundaries.
Sec. 12-50-4. Surcharge assessment.
Sec. 12-50-5. Surcharge assessment rate.
Sec. 12-50-6. Mandatory registration, filing of returns, payment of surcharge and licensing.
Sec. 12-50-7. Delinquent payments.
Sec. 12-50-8. Allocation and use of revenues.
Sec. 12-50-9. Remittance of revenues.
Sec. 12-50-10. Termination of surcharge.

Sec. 12-50-1. Designation as qualified public use facility.

The hotel to be constructed at the address municipally known as One Beale Street, Memphis, Tennessee, containing not less than not less than 250 rooms, and related

retail, commercial, and parking space (the "One Beale QPUF"), is hereby designated as a qualified public use facility as described in T.C.A. 67-4-30 (as amended from time to time, hereinafter in this chapter called the "Act").
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-2. Creation of district.

There is created the One Beale Surcharge District (the "District") in accordance with the Act.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-3. District boundaries.

The District created by this chapter shall be comprised of the area located in the city within the following boundaries:

Approximately 5.265 acres known as One Beale as shown on Plat of record in Plat Book 279, Page 14 in the Register's Office of Shelby County, Tennessee consisting of:

(Phase I) Final Plat - PD 18-10, Phase One, The Landing at One Beale as shown on Plat of record in Plat Book 281, Page 3 in the Register's Office of Shelby County, Tennessee (approximately 2.26 acres) consisting of:

(a) The Residential Unit created under Master Deed, Declaration of Covenants, Conditions and Restrictions of The Landing Condominium recorded as Instrument No. 201906100056198 in the Register's Office of Shelby County, Tennessee; and

Municipal Address: 1 Dr. ML King, Jr. Avenue
Tax Parcel ID: 002098 00010

(b) The Parking Unit created under Master Deed, Declaration of Covenants, Conditions and Restrictions of The Landing Condominium recorded as Instrument No. 201906100056198 in the Register's Office of Shelby County, Tennessee.

Municipal Address: 1 Dr. ML King, Jr. Avenue
Tax Parcel ID: 002098 00009

(Phase II) Final Plat - PD 18-10, Phase Two, Hyatt Centric at One Beale as shown on Plat of record in Plat Book 281, Page 3 in the Register's Office of Shelby County, Tennessee (approximately 2.26 acres).

Municipal Address: 33 Beale Street
(0 Wagner Place)
Tax Parcel ID: 002099 00002C

(Phase III) Final Plat - PD 18-10, Phase Three, as shown on Plat of record in Plat Book 288, Page 24 in the Register's Office of Shelby County, Tennessee (approximately 0.654 acres) consisting of:

Parcel 1, Hyatt 2 Parcel:

BEING A SURVEY OF PART OF PARCEL I, PART OF PARCEL II AND PART OF PARCEL III OF THE FRONT STREET DEVCO, LLC PROPERTY AS RECORDED IN INSTRUMENT 16117584, ALSO BEING PART OF PHASE III OF THE PROPERTY SHOWN ON THE OUTLINE PLAN FOR THE ONE BEALE P.D. AMENDED AS RECORDED IN PLAT BOOK 279, PAGE 14, BOTH OF RECORD IN THE SHELBY COUNTY REGISTER'S OFFICE, BEING LOCATED IN MEMPHIS, SHELBY COUNTY, TENNESSEE AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE INTERSECTION OF THE WEST RIGHT-OF-WAY LINE OF SOUTH FRONT STREET (80.00 FOOT WIDE PUBLIC RIGHT-OF-WAY) WITH THE NORTH RIGHT-OF-WAY LINE OF DR. M.L. KING JR. AVENUE (60.00 FOOT WIDE PUBLIC RIGHT-OF-WAY); THENCE N56°56'01"W ALONG THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 108.00 FEET TO THE POINT OF BEGINNING (N 318717.16 - E 755672.60); THENCE N56°56'01"W AND CONTINUING ALONG THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 30.00 FEET TO A

POINT; THENCE N33°03'59"E ALONG A LINE THAT IS 138.00 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 38.00 FEET TO A POINT; THENCE N56°56'01"W ALONG A LINE THAT IS 38.00 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 20.17 FEET TO A POINT; THENCE N33°03'59"E ALONG A LINE THAT IS 158.16 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 13.83 FEET TO A POINT; THENCE N56°56'01"W ALONG A LINE THAT IS 51.83 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 41.83 FEET TO A POINT, SAID POINT LIES ON THE EAST RIGHT-OF-WAY LINE OF WAGNER PLACE (50.00 FOOT WIDE PUBLIC RIGHT-OF-WAY); THENCE N33°03'59"E ALONG THE EAST RIGHT-OF-WAY LINE OF SAID WAGNER PLACE (SAID EAST RIGHT-OF-WAY LINE BEING 200.00 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SOUTH FRONT STREET) A DISTANCE OF 26.67 FEET TO A POINT; THENCE S56°56'01"E ALONG A LINE THAT IS 78.50 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 54.00 FEET TO A POINT; THENCE N33°03'59"E ALONG A LINE THAT IS 146.00 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 31.50 FEET TO A POINT; THENCE N56°56'01"W ALONG A LINE THAT IS 110.00 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 1.00 FOOT TO A POINT; THENCE N33°03'59"E ALONG A LINE THAT IS 147.00 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 56.00 FEET TO A POINT; THENCE S56°56'01"E ALONG A LINE THAT IS 166.00 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 147.00 FEET TO A POINT ON THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET; THENCE S33°03'59"W ALONG THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 105.00 FEET TO A POINT; THENCE N56°56'01"W ALONG A LINE THAT IS 61.00 FEET NORTH OF AND PARALLEL TO THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 108.00 FEET TO A POINT; THENCE S33°03'59"W ALONG A LINE THAT IS 108.00 FEET WEST OF AND PARALLEL TO THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 61.00 FEET TO THE POINT OF BEGINNING AND CONTAINING 19,008 SQUARE FEET OR 0.436 ACRES.

Out Parcel 1:

BEING A SURVEY OF PART OF PHASE III OF THE PROPERTY SHOWN ON THE OUTLINE PLAN FOR THE ONE BEALE P.D. AMENDED AS RECORDED IN PLAT BOOK 279, PAGE 14, AT THE SHELBY COUNTY REGISTER'S OFFICE, BEING LOCATED IN MEMPHIS, SHELBY COUNTY, TENNESSEE AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE WEST RIGHT-OF-WAY LINE OF SOUTH FRONT STREET (80.00 FOOT WIDE PUBLIC RIGHT-OF-WAY) WITH THE NORTH RIGHT-OF-WAY

LINE OF DR. M.L. KING JR. AVENUE (60.00 FOOT WIDE PUBLIC RIGHT-OF-WAY); THENCE N56°56'01"W ALONG THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 108.00 FEET TO THE WESTERN MOST SOUTHEAST CORNER OF THE PROPERTY SHOWN ON THE FINAL PLAT FOR PHASE 3 OF THE ONE BEALE PD AS RECORDED IN PLAT BOOK 288, PAGE 24; THENCE N33°03'59"E ALONG THE WESTERN MOST EAST LINE OF SAID PHASE 3 A DISTANCE OF 61.00 FEET TO A POINT ON A SOUTH LINE OF SAID PHASE 3; THENCE S56°56'01"E ALONG A SOUTH LINE OF SAID PHASE 3 A DISTANCE OF 108.00 FEET TO THE NORTHERN MOST SOUTHEAST CORNER OF SAID PHASE 3, SAID POINT LIES ON THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET; THENCE S33°03'59"W ALONG THE WEST RIGHT-OF-WAY LINE OF SAID SOUTH FRONT STREET A DISTANCE OF 61.00 FEET TO THE TO THE POINT OF BEGINNING AND CONTAINING 6,588 SQUARE FEET OR 0.151 ACRES.

Out Parcel 2:

BEING A SURVEY OF PART OF PHASE III OF THE PROPERTY SHOWN ON THE OUTLINE PLAN FOR THE ONE BEALE P.D. AMENDED AS RECORDED IN PLAT BOOK 279, PAGE 14, AT THE SHELBY COUNTY REGISTER'S OFFICE, BEING LOCATED IN MEMPHIS, SHELBY COUNTY, TENNESSEE AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE INTERSECTION OF THE WEST RIGHT-OF-WAY LINE OF SOUTH FRONT STREET (80.00 FOOT WIDE PUBLIC RIGHT-OF-WAY) WITH THE NORTH RIGHT-OF-WAY LINE OF DR. M.L. KING JR. AVENUE (60.00 FOOT WIDE PUBLIC RIGHT-OF-WAY); THENCE N56°56'01"W ALONG THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 138.00 FEET TO THE EASTERN MOST SOUTHWEST CORNER OF THE PROPERTY SHOWN ON THE FINAL PLAT FOR PHASE 3 OF THE ONE BEALE PD AS RECORDED IN PLAT BOOK 288, PAGE 24, SAID POINT BEING THE POINT OF BEGINNING; THENCE N56°56'01"W AND CONTINUING ALONG THE NORTH RIGHT-OF-WAY LINE OF SAID DR. M.L. KING JR. AVENUE A DISTANCE OF 62.00 FEET TO A POINT ON THE EAST RIGHT-OF-WAY LINE OF WAGNER PLACE (50.00 FOOT WIDE PUBLIC RIGHT-OF-WAY); THENCE N33°03'59"E ALONG THE EAST RIGHT-OF-WAY LINE OF SAID WAGNER PLACE A DISTANCE OF 51.83 FEET TO THE NORTHERN MOST SOUTHWEST CORNER OF SAID PHASE 3 (PLAT BOOK 288, PAGE 24); THENCE ALONG THE SOUTHWESTERN PORTION OF SAID PHASE 3 THE FOLLOWING CALLS AND DISTANCES:

S56°56'01"E 41.83 FEET;

S33°03'59"W 26.67 FEET;

S56°56'01"E 20.17 FEET;

S33°03'59"W 38.00 FEET

TO THE POINT OF BEGINNING AND CONTAINING 2,935 SQUARE FEET OR 0.067 ACRES.

Municipal Address: 245 South Front Street, Memphis, Tennessee
Tax Parcel ID: 002099 00008

(Phase IV) PD 18-20, Phase Four, Grand Hyatt at One Beale (approximately 1.162 acres):

Description of the One Beale, LLC property recorded at Instrument No. 07085520 in Memphis, Shelby County, Tennessee:

Beginning at the intersection of the south line of Beale Street (60' R.O.W.) and the west line of Wagner Place (50' R.O.W.);

thence south 33 degrees 55 minutes 04 seconds west, 355.43 feet to a point in the north line of Parcel II of the Carlisle Landing, LLC property recorded at Instrument No. 04011935; thence north 55 degrees 44 minutes 29 seconds west with the north line of Parcel II of said property recorded at Instrument No. 04011935, 150.00 feet to a point in the east line of Tennessee Street (closed); thence north 33 degrees 55 minutes 04 seconds east with the east line of said Tennessee Street, 319.39 feet to a point in the south line of the aforesaid Beale Street; thence south 69 degrees 16 minutes 11 seconds east with the south line of said Beale Street, 154.06 feet to the Point of Beginning and containing 50,612 square feet or 1.162 acres of land.

Municipal Address: 1 Beale Street (245 Wagner PL), Memphis, Tennessee

Tax Parcel ID: 002070 00001C

(Ord. No. 5770, 1-26-2021)

Sec. 12-50-4. Surcharge assessment.

The making of sales (as such term is defined in the Act) by engaging in any business (as such term is defined in the Act), except for those businesses exempt under T.C.A. 67-4-712, in the district is declared to be a privilege. All such sales shall be subject to the surcharge assessment provided in this chapter and the city hereby levies such surcharge on all sales.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-5. Surcharge assessment rate.

The surcharge levied by this section shall be equal to five percent of the sales price (as such term is defined in the Act).
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-6. Mandatory registration, filing of returns, payment of surcharge and licensing.

All persons carrying on business (as such term is defined by the Act) in the district, and all person who may hereafter carry on business in the district, shall register with the city treasurer for the purpose of assessment and collection of the surcharge. All persons so registered shall file a return detailing sales for the prior month and surcharge collected on account of such sales on or before the 20th day of each calendar month and shall remit all surcharge collected during such month, together with any delinquent payments of surcharge, with such return. Each person who files a return and remits the appropriate amount of surcharge shall be granted a license which such person shall display with their place of business. The city treasurer is hereby authorized and directed to develop the forms for registration and filing monthly returns, as well as rules and regulations regarding the filing of the same.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-7. Delinquent payments.

Any nonpayment or delinquent payment of any surcharge shall be subject to the rights and remedies described in Chapter 5-24 of the Memphis City Code.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-8. Allocation and use of revenues.

All revenues received by the city as a result of the surcharge, except for the reasonable expenses of the city treasurer incurred as a result of its administrative duties under this chapter which shall not exceed one percent of the revenues, shall be designated for, and allocated to the payment of, the cost of the One Beale QPUF, including without limitation all debt issued or incurred in the acquisition, construction, leasing, renovation and equipping by the Memphis Center City Revenue Finance Corporation ("CCRFC"), or any other similar instrumentality of the City of Memphis, including principal, interest and other fees and charges.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-9. Remittance of revenues.

On or before the 15th day of each month, the city treasurer shall remit all revenues received during the prior month, less the aforedescribed administrative fee, to CCRFC or its assignee. CCRFC, or its assignee, are hereby directed to deposit such revenues in accordance with the Act and any agreements governing the debt issued or incurred by CCRFC on account of the qualified public facility.
(Ord. No. 5770, § 1, 1-26-2021)

Sec. 12-50-10. Termination of surcharge.

The surcharge shall continue until terminated pursuant to the terms of the Act.
(Ord. No. 5770, § 1, 1-26-2021)

CHAPTER 12-52. GUIDELINES FOR EVENTS*

Sections:

Sec. 12-52-1. Definitions.
Sec. 12-52-2. Permit required.
Sec. 12-52-3. Exceptions.
Sec. 12-52-4. Permit requirements.
Sec. 12-52-5. Fees.
Sec. 12-52-6. Police protection.
Sec. 12-52-7. Nondiscrimination.
Sec. 12-52-8. Standards for issuance.
Sec. 12-52-9. Modification or denial.
Sec. 12-52-10. Appeal procedure.
Sec. 12-52-11. Notice to city and other officials.
Sec. 12-52-12. Contents of permit.
Sec. 12-52-13. Duties of permittee.
Sec. 12-52-14. Prohibitions.
Sec. 12-52-15. Public conduct during parades or public assemblies.
Sec. 12-52-16. Revocation of permit.
Sec. 12-52-17. Violations—Fines and penalties.

Sec. 12-52-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City means the City of Memphis, Tennessee.

Director of police means the director of the police services division of the city or his or her designee.

Motorized vehicle right-of-way means any place or way set aside or open to the general public for purposes of motorized vehicular traffic, including any berm or shoulder, parkway, right-of-way, or median strip thereof.

Parade means any procession or motorcade consisting of persons, animals, or vehicles or a combination thereof upon the public rights-of-way within the city that interfere with or have a tendency to interfere with the normal flow or regulation of traffic upon the public rights-of-way. Parade does not include a private motorcade of vehicles transporting persons within the city limits from one destination to another destination with no intent to attract public attention or interfere with the normal flow or regulation of traffic upon public streets and rights-of-ways.

Pedestrian right-of-way means any area or way set aside or open to the general public for purposes of pedestrian or non-motorized vehicle traffic, whether or not it is paved, and including but not limited to such pedestrian and bicycle infrastructure as greenlines, greenways, and riverwalks.

Permit office means the office or department responsible for the issuance of any and all permits required under this chapter.

Person in this chapter should be read to include any person or collections of persons, such as firms, partnerships, associations, corporations, companies, or organizations of any kind.

Pre-approved route means any route approved by city council as route of travel for a parade or race, including the assembly, staging and disbanding areas.

Public assembly means any meeting, march, demonstration, picket line, rally, or gathering of more than 25 persons for a common purpose as a result of prior planning that interferes with or has a tendency to interfere with the normal flow or regulation of pedestrian or vehicular traffic or occupies any public area in a place open to the general public, to the hindrance of others.

Public assembly permit means a permit as required by this chapter for public assemblies, as defined herein.

Race means a planned speed event, for competitive or charitable purposes, in which a collection of persons traverse along a set route, impeding traffic in the rights-of-way or otherwise, by foot or otherwise, within the city.

Sidewalk means any area or way set aside or open to the general public for purposes of pedestrian traffic or non-motorized vehicle traffic, whether or not it is paved, and including but not limited to such pedestrian and bicycle infrastructure as greenlines, greenways, and riverwalks.

***Editor's note—**Ord. No. 5675, § 1, adopted Feb. 6, 2018, repealed the former chapter 12-52 and enacted a new chapter 12-52 as set out herein. The former chapter 12-52 pertained to parades and public assemblies and derived from Code 1985, §§ 21-28(a)—(r); Ord. No. 4576, 4-21-1998; Ord. No. 4875, 6-19-2001; Ord. No. 5502, 3-19-2013.

Special event means any parade or race submitted to the permit office for review.

Special event permit means a permit as required by this chapter for parades or races or any other event not meeting the definition of a public assembly.

Street means any place or way set aside or open to the general public for purposes of vehicular traffic, including any berm or shoulder parkway, right-of-way, or median strip thereof.

Structure means any means, permanent or temporary, by which normal vehicular or other traffic is diverted or impeded in the context of parades, races or public assemblies as defined in this section, including but not limited to barricades, signs, cones, ropes, and vehicles.
(Ord. No. 5675, § 1(a), 2-6-2018)

Sec. 12-52-2. Permit required.

No person shall engage in or conduct any parade, race, and/or public assembly unless a permit is issued by the permit office after consultation with the director of police.
(Ord. No. 5675, § 1(b), 2-6-2018)

Sec. 12-52-3. Exceptions.

This chapter shall not apply to the following:

A. Funeral processions/proceedings by vehicle under the most reasonable route from the funeral home, church or residence of the deceased to the place of interment;

B. Students going to and from school classes or participating in educational activities, provided that such conduct is under the immediate direction and supervision of the proper school authorities;

C. A governmental agency acting within the scope of its functions;

D. Spontaneous events occasioned by news or affairs coming into public knowledge within seven days of such public assembly, provided that the organizer thereof gives written notice to permit office at least 48 hours prior to such public assembly; and

E. Private gatherings, affairs or activities on private property that may inadvertently interfere with the normal flow or regulation of traffic upon the public streets.

(Ord. No. 5675, § 1(c), 2-6-2018)

Sec. 12-52-4. Permit requirements.

A. A person seeking a permit shall file an application with the permit office on forms provided by such officer and the application shall be signed by the applicant under oath.

B. The application deadline for permits are as follows:

1. An application for a "special event permit" shall be filed with the permit office at least 90 calendar days and not more than 180 days before the parade or race is proposed to commence.

2. An applicant for a "public assembly permit" shall be filed with the permit office at least 14 business days before public assembly is proposed to commence.

3. The permit office, in consultation with the director of police, may waive the minimum filing period and accept an application filed within a shorter period if, after due consideration of the date, time, place and nature of the event the anticipated number of participants, and the city services required in connection with the event, he or she determines that the waiver will not present a hazard to public safety, health, and/or welfare.

C. The application for a permit shall set forth the following information:

1. The name, address and telephone number of the person seeking to conduct such event;

2. The names, addresses and telephone numbers of the headquarters of the organization for which the event is to be conducted, if any, and the names of the authorized and responsible heads of the organization;

3. The requested date of the event;

4. Any route to be traveled, including the starting point and the termination point;

5. If applicable, a statement that a pre-approved route will be used for the special event or race;

6. The approximate number of persons who, and animals and vehicles which, will constitute such event and the type of animals and description of the vehicles;

7. The hours when such event will start and terminate;

8. A statement as to whether the event will occupy all or only a portion of the width of the streets proposed to be traversed;

9. The location by street of any assembly areas for such event;

10. The time at which units of the event will begin to assemble at any such area;

11. The intervals of space to be maintained between units of such event;

12. If the event is designed to be held by, or on behalf of, any person other than the applicant, the applicant for such permit shall file an oath from that person with the permit office authorizing the applicant to apply for a permit on his or her behalf;

13. The type of event including a description of activities planned during the event;

14. A description of any recording equipment, sound amplification equipment, banners, signs or other attention-getting devices to be used in connection with the event;

15. The approximate number of participants (spectators are by definition not participants);

16. The approximate number of spectators;

17. A designation of any public facilities or equipment to be utilized;

18. If applicant is not a resident of Shelby County, the applicant shall place a surety bond and deposit equal to 50 percent of the total cost as deemed applicable by the director of police;

19. For a special events permit, the applicant's plan and method of notification to any neighboring residential and commercial parties affected by a race or parade for approval by the permit office; and

20. Any additional information that either the permit office or director of police finds reasonably necessary to make a fair determination as to whether a permit should be issued.

D. Pre-approved routes.

1. The permit office shall submit a list of all pre-approved routes for races and parades to the city council during the second meeting in November for consideration.

2. The city council shall approve the pre-approved routes by resolution at the next regular meeting.

3. These pre-approved routes shall be constructed to minimize the use of motorized vehicular rights-of-way, particularly at highly trafficked times of day, residential streets without sidewalks, and to maximize the use of pedestrian rights-of-way.

(Ord. No. 5675, § 1(d), 2-6-2018)

Sec. 12-52-5. Fees.

A nonrefundable fee of $50.00 to cover administrative costs of processing the permit shall be paid to the city by the applicant when the application is filed, except in cases where the event will require the partial or complete closure of a public street, sidewalk, or right-of-way or diversion of the normal flow of vehicular or pedestrian traffic with structures, an additional nonrefundable fee of $100.00 shall be paid when the application is filed.

(Ord. No. 5675, § 1(e), 2-6-2018)

Sec. 12-52-6. Police protection.

A. The director of police shall determine whether and to what extent an event will reasonably require additional police protection to control traffic and preserve public safety. If additional protection for the event is necessary, the director of police shall notify the applicant.

B. The director of police shall base his decision on the types of public safety measures required for the proposed event on the size, location, duration, time and date of the event, the number of streets and intersections blocked or affected by the event, the need to detour or preempt citizen travel and use of the streets and sidewalks and realistic concerns and threats of social disorder, personal injuries, property damage and individual rights violations arising from the event. The speech content of the event shall not be a factor in determining the amount of police protection necessary, unless past experiences with similar events have demonstrated a need for additional police protection to protect event participants, spectators, passers-by and law enforcement personnel, and to preserve free speech and assembly rights of event sponsors and participants.

C. The applicant shall have the duty to secure the police protection deemed necessary by the director of police at the sole expense of the applicant. The director of police shall have the authority to enter into agreements with any applicant for additional police protection including security for the costs thereof.

D. The director of police shall be fully authorized to implement and require reasonable steps to forestall potential disorder and civil hostilities among participants, observers and opponents of a proposed event, including but not limited to: zoning of areas in proximity of the event site, crowd control measures, metal detector searches of all entrants to the event site, traffic rerouting, and cessation of street parking. Any such measures shall be narrowly tailored to advance the city's interest in public safety and protection of the rights to free speech and assembly.

(Ord. No. 5675, § 1(f), 2-6-2018)

Sec. 12-52-7. Nondiscrimination.

The permit office, after consultation with the director of police, shall uniformly consider each application upon its merits and shall not discriminate in granting or denying permits under this chapter based upon political, religious, ethnic, race, disability, sexual orientation or gender-related grounds.
(Ord. No. 5675, § 1(g), 2-6-2018)

Sec. 12-52-8. Standards for issuance.

A. The permit office shall consider the following factors prior to issuing a permit upon consideration of the application and other information as may be obtained:

1. The conduct of the event will not substantially interrupt the safe and orderly movement of other pedestrian or vehicular traffic contiguous to its route or location;
2. The conduct of the event will not require the diversion of so great a number of city police officers to properly police the line of movement and the areas contiguous thereto as to prevent normal police protection of the city;
3. The concentration of persons, animals, and vehicles at assembly points of event will not unduly interfere with proper fire and police protection of, or ambulance service to, areas contiguous to such public assembly areas;
4. The conduct of the event is not reasonably likely to cause injury to persons or property;
5. The event is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays in route;
6. Adequate sanitation and other required health facilities are or will be made available in or adjacent to any event areas;
7. The applicant has secured the police protection, if any required;
8. Such event is not for the primary purpose of advertising any product, goods or event that is primarily for private profit and the parade itself is not primarily for profit. The prohibition against advertising any product, goods or event shall not apply to signs identifying organizations or sponsors furnishing or sponsoring exhibits or structures used in the parade;
9. No event permit application for the same time and location is already granted or has been received and will be granted;
10. No event permit application for the same time but not location is already granted or has been received and will be granted, and the police resources required for that prior event are so great that in combination with the subsequent proposed application, the resulting deployment of police services would have an immediate and adverse effect upon the welfare and safety of persons and property;
11. No event is scheduled elsewhere in the city where the police resources required for that event are so great that the deployment of police services for the proposed event would have an immediate and adverse effect upon the welfare and safety of persons and property;
12. For a "special events permit", the applicant has submitted a sworn oath confirming the notification of the date, time and location of event to any neighboring residential and commercial parties affected by the event as approved by the permit office at least 60 days prior to event of any requested route not previously approved pursuant to subsection 12-52-4(D);
13. The applicant has agreed in writing to defend, hold harmless and indemnify the city for any and all claims, lawsuits or liability including attorneys' fees and costs allegedly arising out of loss, damage or injury to person or person's property occurring during the course of or pertaining to the event caused by the conduct of employees or agents of the applicant.
14. The director of police has issued written approval for the police protection for event;
15. The applicant meets all of the requirements of this section.

B. No special event permit that is utilizing a route other than a pre-approved route shall be granted when the event will require the partial or complete closure of a public street, sidewalk, or right-of-way or diversion of the normal flow of vehicular or pedestrian traffic with structures unless either no opposition has been forthcoming from the affected public or, in the case of opposition, advance approval for is obtained from the city council:

1. Any neighboring residential or commercial party may file written opposition to an applica-

tion for a special event permit. Written opposition must be received by the permit office at least 45 days prior to the commencement of the event.

2. The permit office shall immediately notify council administrator and council records of the written opposition so that an item might be added to the next scheduled city council agenda, or in the case that the agenda has already been published, to the immediately following city council agenda.

3. Permit cases shall be heard before the council in both the public safety committee and shall be before the full council on the same day, unless the permit applicant agrees to a delay.

4. Permit cases shall require a simple majority of members present for approval.

5. Upon the council approving, denying, or amending a permit request, the permit office shall approve or deny the permit application within five business days, still subject to the conditions laid out above.

(Ord. No. 5675, § 1(h), 2-6-2018)

Sec. 12-52-9. Modification or denial.

A. The permit office shall act promptly upon a timely filed application for all permits.

1. For all special event permits, the permit office will notify the applicant of denial or modification at least 30 days prior to the commencement of the event, or within three days of any decision by city council under section 12-52-8(B), if applicable.

2. For all public assembly permits, the permit office will notify the applicant of denial or modification at least five days prior to the commencement of the event.

B. The permits office in consultation with administration officials may modify the conduct of the event at a date, time, location or route different from that named by the applicant in a manner that protects the lives, safety, health, welfare and property of the general public.

C. Upon receipt of written notice, and applicant desiring to accept the modifications must file a written notice of acceptance with the permit office within three business days.

D. The permit office shall issue in writing a denial and reasons thereof to the applicant.

(Ord. No. 5675, § 1(i), 2-6-2018)

Sec. 12-52-10. Appeal procedure.

A. Any applicant shall have the right to appeal the permit office's denial of an event permit to the city council. The denied applicant shall make the appeal within five calendar days after receipt of the denial by filing a written notice with the permit office and a copy of the notice with the city comptroller.

B. In the event that the city council rejects an applicant's appeal, or in the rare event that an eligible council meeting does not fall within the time between the denial and the proposed event, the applicant may file an immediate request for review with a court of competent jurisdiction.

(Ord. No. 5675, § 1(j), 2-6-2018)

Sec. 12-52-11. Notice to city and other officials.

Immediately upon the receipt or issuance, as appropriate, of a permit, the permit office shall send a copy thereof to the following additional persons:

A. City attorney;

B. The director of police;

C. The director of fire services;

D. The city engineer;

E. The director of public works;

F. The head of each public transportation agency, if the regular routes of public transportation will be affected; and

G. The city council chair.

(Ord. No. 5675, § 1(k), 2-6-2018)

Sec. 12-52-12. Contents of permit.

Each permit shall state the following information:

A. Starting and approximate ending time;

B. Minimum speed of parade units;

C. Maximum speed of parade units;

D. Maximum interval of space to be maintained between parade units;

E. The portions of the rights-of-way that may be occupied by the event;

F. The maximum length of the route(s) in kilometers or fractions thereof; and

G. Such other information as either the permit office or the director of police shall find necessary to the enforcement of this chapter.

(Ord. No. 5675, § 1(l), 2-6-2018)

Sec. 12-52-13. Duties of permittee.

A. A permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances.

B. The parade, race or public assembly chairperson or other person heading such activity shall carry the event permit upon his or her person during the conduct of the event.

(Ord. No. 5675, § 1(m), 2-6-2018)

Sec. 12-52-14. Prohibitions.

The following prohibitions shall apply to all permitted events as defined by this chapter:

A. It is unlawful for any person to stage, present or conduct any parade, race or public assembly without first having obtained an event permit as herein provided, except in case of exemptions herein provided;

B. It is unlawful for any person to participate in a parade, race or public assembly for which the person knows an event permit has not been granted;

C. It is unlawful for any person in charge of, or responsible for the conduct of, a duly licensed parade, race or public assembly to knowingly fail to comply with any condition of the event permit;

D. It is unlawful for any person to engage in any parade, race or public assembly activity that would constitute a substantial hazard to the public health, safety or welfare, or that would materially interfere with or endanger the public peace or rights of residents to the quiet and peaceful enjoyment of their property;

E. It is unlawful for any person to ride, drive or cause to be ridden or driven any animal or any animal drawn vehicle upon any public right-of-way, unless specifically authorized by the permit;

F. It is unlawful for any person participating in a parade, race or public assembly to violate municipal ordinances and any applicable laws of the State of Tennessee;

G. It is unlawful for any participant, spectator or person at a parade, race or assembly to possess or carry weapons in violation of any applicable law of the State of Tennessee; and

H. It is unlawful to wear a mask or disguise with the intent to violate any law of the State of Tennessee.

(Ord. No. 5675, § 1(n), 2-6-2018)

Sec. 12-52-15. Public conduct during parades or public assemblies.

A. No person shall unreasonably hamper, obstruct or impede, or interfere with any parade or public assembly or with any person, vehicle or animal participating or used in a parade or public assembly.

B. No driver of a vehicle shall drive between the vehicles or persons comprising a parade or public assembly when such vehicles or persons are in motion and are conspicuously designated as a parade or public assembly.

C. The director of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street constituting a part of the route of a parade or public assembly. The director of police shall post signs to that effect, and it is unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this chapter.

(Ord. No. 5675, § 1(o), 2-6-2018)

Sec. 12-52-16. Revocation of permit.

The director of police shall have the authority to revoke a permit instantly upon violation of the conditions or standards for issuance as set forth in this chapter or when a public emergency arises where the police resources required for that emergency are so great that

deployment of police services for the event would have an immediate and adverse effect upon the welfare and safety of persons or property.
(Ord. No. 5675, § 1(p), 2-6-2018)

Sec. 12-52-17. Violations—Fines and penalties.

Any person violating the provisions of any section of this chapter shall, upon conviction, be punished by a fine not to exceed $50.00 and any other penalties which may be applicable.
(Ord. No. 5675, § 1(q), 2-6-2018)

CHAPTER 12-56. POLES, WIRES AND CONDUITS

Sections:

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Sec. 12-56-1. Compliance with National Electrical Safety Code.
Sec. 12-56-2. Dead wires or wires not in use.
Sec. 12-56-3. Trees near wires or street lights.

Article 2. Poles

Sec. 12-56-4. Supervision.
Sec. 12-56-5. Permit to install, reset, replace or repair—Required—Exceptions.
Sec. 12-56-6. Permit—Application.
Sec. 12-56-7. Permit—Refusal to issue.
Sec. 12-56-8. Joint construction.
Sec. 12-56-9. Reservation of space for city wires.
Sec. 12-56-10. Identification of poles located in street right-of-way.
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Sec. 12-56-12. Removal, replacement or relocation of poles in public places.

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Sec. 12-56-20. Depth, gradient, ventilation and drainage.

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Sec. 12-56-22. Excavations generally.
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Sec. 12-56-24. Permit to install wires.
Sec. 12-56-25. Manholes—Construction—Size—Control—Costs.
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Sec. 12-56-27. Manholes—Permit to enter.
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Sec. 12-56-29. To be used only for authorized public services.
Sec. 12-56-30. Disturbing or interfering with conduits.
Sec. 12-56-31. Transfer of rights in conduits.
Sec. 12-56-32. What rights acquired under article.

ARTICLE 1. GENERAL PROVISIONS

Sec. 12-56-1. Compliance with National Electrical Safety Code.

All poles, wires and conduits authorized or required by this chapter shall be installed and maintained in accordance with the applicable provisions of the National Electrical Safety Code, 1977 Edition, as amended, and it shall be a misdemeanor for any person or corporation to have, use or maintain within the limits of the city any such installation that does not meet such requirements as to quality or safety. Compliance with the National Electrical Safety Code shall be a complete compliance with all requirements of the city for the construction, maintenance and operation of poles, wires, conduits and other facilities in the city.
(Code 1967, § 29-1; Code 1985, § 27-1; Ord. No. 456, § 1, 4-22-1969)

Sec. 12-56-2. Dead wires or wires not in use.

No dead electric wire or wires not in use shall be permitted in the city and all dead wires or wires not in use shall be at once removed by the person who owns, operates, controls or manages the same.
(Code 1967, § 29-2; Code 1985, § 27-2)

Sec. 12-56-3. Trees near wires or street lights.

A. No tree, limb or part thereof shall be allowed to interfere with the safe distribution of electrical energy and any wire carrying electric current in or adjacent to any public street, alley, highway, easement for utility purposes or public place, whether such wire is insulated or not. No tree, limb or part thereof shall be allowed to grow so as to obstruct the light from any electric lamp or other appliance used by the city for the lighting of its public streets and ways.

B. Whenever it becomes necessary, in the extension of the city's fire and police signal system or the service of any public service corporation using wires carrying electricity in the furnishing of such service, to string or place overhead wires carrying currents of electricity through or across any public street, alley or place, or to erect any street lights, it shall be the duty of the city to see that no tree or parts thereof will violate subsection A of this section, and to this end it is authorized and empowered to remove or cause to be removed any tree, branch or limb in or overhanging any public street, alley or public place, interfering with such wires or street lighting.

C. The Memphis light, gas and water division, through its personnel or agents, shall have the right to trim or top trees which are on public property or intrude on public property, and which are in proximity to electric conductors in the distribution system.

D. The enforcement of this section shall be under the supervision of the director of public works or the Memphis light, gas and water division, as applicable, whose duty it shall be to direct the removal or trimming of any tree or part thereof which is in violation of subsection A of this section.

E. It shall be a misdemeanor for any person to interfere with the director of public works, the Memphis light, gas and water division, or persons working under their direction in the trimming or removing of trees under the provisions of this section.
(Code 1967, § 29-3; Code 1985, § 27-3)

ARTICLE 2. POLES

Sec. 12-56-4. Supervision.

The location, erection, placing, replacing and repair of poles used for the stringing of wires thereon shall be under the supervision of, and subject to the approval of, the director of public works.
(Code 1967, § 29-14; Code 1985, § 27-16)

Sec. 12-56-5. Permit to install, reset, replace or repair—Required—Exceptions.

A. It is unlawful for any person to install, put up, reset, replace or repair, within the city, any pole used or to be used for the overhead carrying of wires, cables or

other like instrumentalities, without first obtaining a permit to do so from the director of public works; provided, that no permit will be required for the resetting, replacement or repair of such a pole where such work is occasioned by accident or mishap and is done under emergency conditions.

B. The maintenance of any pole erected, reset, replaced or repaired without the permit provided for by this section shall be a nuisance, to be abated in the manner provided by law for the abatement of public nuisances erected or maintained in the city.
(Code 1967, § 29-15; Code 1985, § 27-17)

Sec. 12-56-6. Permit—Application.

An application, in writing, for a permit required by section 12-56-5 shall be filed with the director of public works, setting forth the location at which the pole is to be erected, reset, replaced or repaired, the character of the material of which the same is made, its height and diameter, and the kind and character of wires, cables or other instrumentalities to be carried thereon.
(Code 1967, § 29-16; Code 1985, § 27-18)

Sec. 12-56-7. Permit—Refusal to issue.

The director of public works shall refuse to issue the permit required by section 12-56-5 whenever it appears that the pole sought to be erected, reset, replaced or repaired is unsafe, unsuitable for the purposes to which it will be put, or not suited to the location in which it will be placed.
(Code 1967, § 29-17; Code 1985, § 27-19)

Sec. 12-56-8. Joint construction.

A. All poles used for the stringing of wires thereon shall be erected, reset or replaced under the rules of joint pole construction as set forth in this section. Whenever a new line of poles is to be erected, or whenever, by reason of street improvements, existing lines of poles are to be replaced, moved or reset, or whenever, due to the dangerous condition by reason of age or deterioration (in which case the director of public works shall have power to order the same replaced), then any such pole shall be constructed under the joint pole construction rules; provided, that the director shall have power and it shall be his or her duty to order such construction when, in his or her judgment, it shall be deemed advisable.

B. Such joint pole construction shall consist of poles of ample size and length to carry the wires of two or more companies using the same street, and the wires of the electric light and power companies, when such poles are to be used by them, shall have their wires strung at the top sections of poles. The telephone and telegraph companies shall occupy with their wires the middle sections of such poles. All poles and wires shall meet all the minimum standards and be installed so as to meet the requirements for quality and clearance as are specifically set out in the National Electrical Safety Code, 1977 Edition, as amended.

C. Whenever it is decided that poles shall be erected under the joint pole construction rules, all companies concerned shall agree on the space necessary to carry their respective wires, and shall also agree as to pro rata of expense for the erection of such poles. Whenever they are not able to come to an agreement, the director of public works shall have power to decide such matters.
(Code 1967, § 29-18; Code 1985, § 27-20; Ord. No. 456, § 1, 4-22-1969)

Sec. 12-56-9. Reservation of space for city wires.

Before any permission is given to erect any pole in the city, or to reset or replace any pole, provision shall be made for reserving proper space and furnishing all crossarms, pins and supports to carry all wires of the city traffic signal system and telephone systems of the city and of the fire and police telegraph and telephone systems of the city, and such space shall be under the wires of the electric light and power companies, when used by such companies. Whenever any poles are used exclusively for telephone or telegraph companies, then such space shall be reserved at the top of all such poles for the use of the wires of the city. The proper space reserved for the wires of the city shall be such that the installation can be made in full compliance with the minimum standards for clearance as are specifically set out in the National Electrical Safety Code, 1977 Edition, as amended.
(Code 1967, § 29-19; Code 1985, § 27-21; Ord. No. 456, § 1, 4-22-1969)

Sec. 12-56-10. Identification of poles located in street right-of-way.

A. It shall be a misdemeanor for any telegraph, telephone, gas, electric light or any other public utility to erect, maintain or allow to remain, in any public right-

of-way or easement, any pole or post, unless there shall be visibly painted or securely affixed to such pole or post some device, character, sign or other symbol identifying the ownership of such pole or post and such device, character, sign or symbol shall be registered with the city engineer. Such device, character, sign or symbol shall be legible and shall not be affixed at greater height than eight feet from the surface of the ground.

B. It shall be a misdemeanor for any person to efface, deface or otherwise make illegible any such device, character, sign or symbol affixed to any pole or post in any public right-of-way or easement.
(Code 1967, § 29-20; Code 1985, § 27-22)

Sec. 12-56-11. Privilege tax on poles in streets.

There is levied annually a privilege tax of $0.25 on each telephone pole or telegraph pole located on or in the streets and other thoroughfares within the corporate limits of the city, as authorized by T.C.A. § 67-4102, item Q.
(Code 1967, § 29-21.1; Code 1985, § 27-23)

Sec. 12-56-12. Removal, replacement or relocation of poles in public places.

The director of public works shall have the right to order the removal, replacement or relocation of any pole erected in any street, alley or other public place as may be necessary for proposed public improvements, which pole may become unsafe, or which ceases to be used for the purposes for which erected, or which interferes with the free use of such street, alley or public place, or interferes with the reasonable ingress and egress to private property abutting on such street, alley or public place. It shall be a misdemeanor for any person to maintain such pole or to fail to remove it to a new location designated by the director of public service after ten days' notice in writing from such director to remove, replace or relocate such pole.
(Code 1967, § 29-22; Code 1985, § 27-24)

ARTICLE 3. CONDUITS

Sec. 12-56-13. Conduit district established.

A. There is established within the city a conduit district bounded as follows:

On the north by the first alley north of Exchange Avenue; on the south by a line 148½ feet south of the south line of Vance Avenue; on the east by the first alley east of Third Street from Exchange Avenue south to Madison Avenue, and thence extended east on Madison Avenue to a point 150 feet east of the east line of North Neely Street; thence returning on the south side of Madison Avenue to the first alley east of Third Street; and running thence south to Union Avenue; thence east on Union Avenue to Third Street; thence along the east line of Third Street to Beale Street, and running thence east on Beale Street to 200 feet east of Fourth Street (formerly DeSoto Street); thence returning on the south side of Beale Street to Third Street; thence south along the east line of Third Street to a point 148½ feet south of the south line of Vance Avenue; and on the west by a line commencing at Exchange Avenue 20 feet west of the west line of Front Street; thence south to Union Avenue; thence west with Union Avenue to Wagner Place; thence south with the west side of Wagner Place to a point 148½ feet south of the south line of Vance Avenue.

B. The conduit district shall include such streets and also the parts of the following streets hereinafter set forth, both within and without the district above described:

1. Main Street, from the north line of Auction Avenue to the south line of Iowa Avenue;

2. Monroe Avenue, from the first alley east of Third Street to Marshall Avenue;

3. Marshall Avenue, from Madison Avenue to Union Avenue;

4. Union Avenue, from the first alley east of Third Street to East Parkway, South;

5. South Fourth Street, from Madison Avenue to Union Avenue;

6. Calhoun Avenue, from a point 148 feet west of the west line of Tennessee Street, to a point 148 feet east of South Third Street;

7. Union Avenue extended, beginning on the east line of the Parkway and extending along and with Union Avenue extended, to the south line of Poplar Avenue.

(Code 1967, § 29-33; Code 1985, § 27-36)

Charter reference—Authority to establish conduit district, § 928.

Sec. 12-56-14. Wires to be underground within conduit district—Exceptions.

A. In the public thoroughfares, streets, alleys and squares within the territory described in section 12-56-13, all electric service wire lines shall be placed in conduits underground, and no person shall construct any telegraph, telephone, electric light or power service above the ground in passing along or across such public thoroughfares within such territory.

B. This section shall not apply to the following overhead wires with their appurtenances:

1. Wires and lamp poles, with such appurtenances as may be deemed desirable by the director of public works, used for the purpose of public street lighting;

2. Such wires, poles and other appurtenances as may be deemed unobjectionable by the director of public works within the limits of any block used for the purpose of subdistribution of wires within that block, but in no event shall such wires be permitted to cross any street or alley overhead, within such conduit district;

3. All wires, poles and necessary appurtenances for the installation of traffic-control signal lights.

(Code 1967, § 29-34; Code 1985, § 27-37)

Charter reference—Authority to require that wires be placed underground in conduit district, § 930.

Sec. 12-56-15. Permit to construct, alter or repair.

A. Before any person shall proceed to construct, alter or repair any underground conduit into which to run any electric service wire line within the district established by section 12-56-13, such person shall make application to the director of public works for a permit to perform such work, such application to be filed with the director of public works. Such application shall state the name of the applicant, the purpose for which the use of the conduit is desired, the materials of which it is proposed to construct it, together with the plans and specifications showing the proposed method of construction. All such applications shall be accompanied by detailed plans showing the desired route of the conduit, grouping of ducts and distribution of boxes. No permit shall be issued until the bond required by section 12-56-16 has been filed.

B. Emergency maintenance work that is necessary to reestablish service shall not require a permit under this section.

(Code 1967, § 29-35; Code 1985, § 27-38)

Sec. 12-56-16. Bond.

Each applicant for a permit required by section 12-56-15 shall, after approval of the application, file with the comptroller a penal bond in the sum of $10,000.00, with two or more good and sufficient sureties, approved by the mayor, conditioned that the conduit construction shall be carried out in accordance with the terms of this article, or with the rules and regulations governing conduit construction and use approved by the director of public works, and that the city and its employees shall be held harmless from all suits for damages that may arise from the construction of any conduit, or that may arise from operations therein, or that may arise in any way as a result of such construction or operation.

(Code 1967, § 29-36; Code 1985, § 27-39)

Sec. 12-56-17. Conformity with general rules and requirements.

When an application has been filed with the director of public works under section 12-56-15, it shall be his or her duty to see that the proposed conduits, in their route, disposition, material and construction, conform with the general rules and requirements governing same, adopted by the city.

(Code 1967, § 29-37; Code 1985, § 27-40)

Sec. 12-56-18. Departure from approved construction plans.

When it becomes necessary to depart from any plans filed with and approved by the director of public works under section 12-56-15, because of obstructions, it shall be the duty of the person performing work on or in the electrical conduit to immediately report the difficulty to the city engineer, and at the same time to submit an alternative plan of construction calculated to overcome the difficulty. No departure from standard construction primarily approved by the director of public works shall be allowed until such modifications have been approved in writing by the director of public works.

(Code 1967, § 29-38; Code 1985, § 27-41)

Sec. 12-56-19. Location.

All conduits shall be constructed under sidewalks, except where the physical conditions render this impractical. In that event, special permission in each case shall be obtained from the director of public works to construct conduits in or under the street between curbs.
(Code 1967, § 29-39; Code 1985, § 27-42)

Sec. 12-56-20. Depth, gradient, ventilation and drainage.

The city engineer shall decide as to proper depth, gradient, ventilation and drainage proposed to be given to conduits within the district described in section 12-56-13, such data receiving also the endorsement of all city officers whose duties require them to supervise any underground construction whatever, so that no undue interference with the other underground construction may result from the building of the conduits.
(Code 1967, § 29-40; Code 1985, § 27-43; Ord. No. 3587, § 1, 9-2-1986)

Sec. 12-56-21. Required ducts.

Conduits shall be provided with ducts 50 percent in excess of those required to carry the wires in use along the routes of the proposed conduits at the time of making application for a permit to construct the same.
(Code 1967, § 29-41; Code 1985, § 27-44)

Sec. 12-56-22. Excavations generally.

A. In the construction, alteration or repair of any conduit or its appurtenances, no excavation shall be made on any one continuous line for a greater length than four blocks at the same time, nor shall any excavation be permitted to exist in any public thoroughfare for a longer period than is absolutely necessary to properly and expeditiously perform the work for which a permit is granted under this article. All excavations made in pursuance of the right which may be granted under this article shall at all times be provided with sufficient guards and lights to render the same secure in themselves, and free from becoming a source of danger to the public.

B. All excavations for trenches or manholes shall be backfilled and tamped to the satisfaction of the city engineer, of materials similar to that surrounding the street or pavement, and the person making such excavations shall pay to the city the cost of such repairs at the end of the month during which such repairing is done.
(Code 1967, § 29-42; Code 1985, § 27-45; Ord. No. 3587, § 2, 9-2-1986)

Sec. 12-56-23. Restoration of surface improvements.

A. All surface improvements disturbed in connection with the construction, alteration, repair or use of any conduit or subdistribution pole, or their appurtenances, carried on under the terms of this article, shall be repaired to the satisfaction of the city engineer in conformity to the city specifications for paving sidewalks or other improvements at the expense of the person possessing the permit for carrying on such construction, alteration, repairs or use. Such party shall, moreover, keep such repaired surface improvements in a condition satisfactory to the city engineer for a period of one year after they have been repaired.

B. Should such party fail to promptly fulfill the requirements of this section, the city may proceed with any or all of such work and charge the cost of performing the same to such party. This provision shall not give immunity from any penalty attached to the violation of the requirements of this article.
(Code 1967, § 29-43; Code 1985, § 27-46; Ord. No. 3587, § 3, 9-2-1986)

Sec. 12-56-24. Permit to install wires.

A. Before any electrical service wires are placed in any conduit constructed under this article, a permit shall be obtained. Application for this permit shall be made by the person owning the conduit. All such applications shall state:

1. The name of the applicant;
2. The purpose for which the use of the conduit is desired;
3. The number, material and dimensions of conductors proposed to be placed in the conduit;
4. The arrangement of the conductors, whether singly or in cables, and if in cables, the number of conductors and their disposition in each cable;
5. The maximum voltage to be used on such conductors;

6. The nature of the insulating material or materials to be employed, and such other specific information as will fully explain the use to be made of the conduit, except that the foregoing provisions and requirements shall not apply to any department or agency of the city.

B. On approval by the director of public works of an application for a permit under this section, a permit shall be issued, conditioned on compliance with the rules and regulations governing the occupation of electrical conduits as contained in the National Electrical Safety Code, 1977 Edition.
(Code 1967, § 29-44; Code 1985, § 27-47)

Sec. 12-56-25. Manholes—Construction—Size—Control—Costs.

A. The using agency shall construct all the manholes required for putting wires underground in accord with this article, and the cost of constructing and maintaining such manholes shall be borne and prorated among the companies using the same in proportion to the number of ducts entering such manholes.

B. All such manholes shall be constructed of such size and character as will enable them to accommodate 50 percent more ducts than all the companies entering them will at first require. Such manholes shall be constructed in accordance with plans and specifications approved by the city engineer.

C. After such manholes have been constructed, they shall be under the absolute control of the city, or some officer designated by the city, to be used and occupied by such companies for the purpose of connecting their conduits and ducts therewith.

D. Companies constructing and maintaining manholes shall file with the director of public works itemized, full and complete statements of the cost of constructing and maintaining such manholes.
(Code 1967, § 29-45; Code 1985, § 27-48; Ord. No. 3587, § 4, 9-2-1986)

Sec. 12-56-26. Manholes—Joint use.

Any company, other than the original using agency, desiring to enter and use any manhole constructed under this article shall be permitted to enter the same and use the same by first obtaining a permit from the city, and by paying its proper pro rata of the cost of construction and maintenance of the manhole, such pro rata to be determined by the director of public works, except that such use by other companies shall not extend to manholes or conduits constructed for the purpose of transmitting electrical energy for lighting, heating and power.
(Code 1967, § 29-46; Code 1985, § 27-49)

Sec. 12-56-27. Manholes—Permit to enter.

No person shall enter any manhole constructed under this article, unless he or she has a permit to do so from the division of public service, and no company using any manhole shall permit any person to enter the same, unless he or she has such a permit. Such permit shall be issued by the division of public service upon proper evidence submitted that the applicant is careful and experienced. Such permit shall not be granted for a period longer than six months. The foregoing provisions shall not apply to any division or agency, or its employees, of the city.
(Code 1967, § 29-47; Code 1985, § 27-50)

Sec. 12-56-28. Plans to be filed upon execution of work.

Plans showing all details of conduit construction and the disposition of all electrical conductors and apparatus within or connected with the conduits shall be filed with the director of public works promptly upon the execution of any work, so that a complete record of all conduits, with their appurtenances and over-ground connections, together with the electrical conductors and apparatus installed in connection therewith, shall at all times be on file with the director of public works.
(Code 1967, § 29-49; Code 1985, § 27-51)

Sec. 12-56-29. To be used only for authorized public services.

No conduit or duct constructed and maintained under this article shall be used other than for specific public services authorized by the director of public works.
(Code 1967, § 29-50; Code 1985, § 27-52)

Sec. 12-56-30. Disturbing or interfering with conduits.

Any person who shall disturb any conduit laid in accordance with the requirements of this article, or interfere with its legitimate use, shall pay all costs or damages resulting from such disturbance or interference.
(Code 1967, § 29-51; Code 1985, § 27-53)

Sec. 12-56-31. Transfer of rights in conduits.

No person owning, occupying or having rights in conduits under this article shall sell, lease or sublease any property or privilege in connection therewith, without first obtaining the consent of the director of public works, nor shall any such person consolidate with any other person or company without the consent of the director of public works.
(Code 1967, § 29-52; Code 1985, § 27-54)

Sec. 12-56-32. What rights acquired under article.

No person shall, by reason of compliance with this article, acquire any rights or privileges other or further than herein specifically expressed, and nothing herein contained shall be construed as extending or changing the terms, length of time or any of the conditions of any contract or agreement now existing between the city and any such person. The occupation and operation of conduits and manholes shall be upon the same terms, lengths of time and conditions as now fixed by law or contract for the maintenance and use of overhead poles and wires.
(Code 1967, § 29-53; Code 1985, § 27-55)

CHAPTER 12-60. RESERVED

Editor's note—Ord. No. 5459, § 15, adopted July 17, 2012, repealed Ch. 12.60, §§ 12-60-1—12-60-8, which pertained to residential corridors. For prior history, see Code Comparative Table. See section 8.3 of the Memphis and Shelby County Unified Development Code.

CHAPTER 12-64. MAIN STREET TROLLEY SYSTEM

Sections:

Sec. 12-64-1. Definitions.
Sec. 12-64-2. Prohibitions.
Sec. 12-64-3. Right-of-way.
Sec. 12-64-4. Vehicles on Main Street Mall.
Sec. 12-64-5. Conduct of passengers or occupants of trolley vehicles.

Sec. 12-64-1. Definitions.

As used in this chapter, unless the context requires otherwise:

Nonemergency vehicle means a vehicle which is not an authorized emergency vehicle as defined in T.C.A. § 55-8-101(2).

Proof of fare payment means the following:

1. A trolley pass or a MATA pass valid for the status of person, the time of use and the zones of travel;

2. A receipt showing payment of the applicable fare, used within the time and zones applicable to the receipt;

3. A prepaid ticket or series of tickets showing cancellation by MATA time stamp, used within the time and zones applicable to the ticket; or

4. Other passes or vouchers issued by MATA evidencing fare payment.

Transit inspector means any person authorized by the general manager of the Memphis Area Transit Authority (hereinafter "MATA") to demand proof of fare payment and to issue citations as provided hereunder in accordance with T.C.A. §§ 7-63-101 and 2-36-1.

Trolley equipment includes, but is not limited to, trolley cars, tracks, trolley stops including the lifts contained therein, trolley sign posts, overhead wires and the poles that support them, electrical equipment including wires that supply and carry power to the trolley, lifts, stops and ticket dispensing machines, the trolley facility located at 547 North Main Street, and any other item used in or necessary to the operation of or to maintain the Main Street Trolley System.

Trolley right-of way means a 22 foot six-inch wide paved cobblestone pathway running north and south through the common mall area known as Main Street Mall containing the parallel tracks (rails) upon which the trolley operates. The trolley right-of-way is not a public street nor a roadway.

Trolley stops are areas created for the protection of passengers boarding, disembarking or waiting for the Main Street Trolley System. These stops shall be indicated by either: (1) shelter stations at specific locations; (2) areas designated by painting, brickwork or other prominent markings, as may be authorized by the MATA board; or (3) such other locations as are designated from time to time by prominent MATA signage.
(Code 1985, § 20-27(a); Ord. No. 4202, § 1, 7-6-1993)

Sec. 12-64-2. Prohibitions.

The commission of the following acts shall be a misdemeanor and shall be punishable by payment of a fine of not more than $50.00 for each separate violation and court costs:

A. *Payment of fare.*

1. *Fares.* Passengers shall be permitted upon trolley vehicles only upon payment of such fares and under such circumstances as may from time to time be established by the Memphis Area Transit Authority. It is an infraction, punishable pursuant to section 1-24-1, for any person to refuse to pay, or to evade or attempt to evade the payment of such fares.

2. *Proof of payment.* No unauthorized person shall occupy, ride in or use any trolley vehicle without possessing and exhibiting upon demand of a trolley inspector, valid proof of fare payment.

3. *Agreement.* The use of any trolley vehicle shall constitute an agreement by the user to pay the applicable fare in accordance with the effective fare resolution established by the Memphis Area Transit Authority and to have in his or her immediate possession proof of fare payment.

4. *Procedure.* It is unlawful for any person to fail to provide his or her name, address or identification to a transit inspector. It shall also be unlawful for any person to provide a false or fictitious name, address or identification to a transit inspector.

5. *Counterfeiting of passes and tickets.* No person shall counterfeit, forge or alter any ticket, coupon, receipt for fare payment, or pass issued by Memphis Area Transit Authority designed to title the holder to ride MATA trolley vehicles.

No such person shall possess, offer or put into circulation, any such counterfeit, forgery or altered ticket, copy, receipt for fare payment, or pass.

B. *Riding the trolley.* It is unlawful for any person to:

1. Vandalize, damage or otherwise deface in any manner a trolley car;

2. Smoke, eat or drink any beverage aboard the trolley, or carry aboard, possess or cause any open food or drink container to be aboard any trolley vehicle. Appropriate notices or symbols indicating the foregoing may be posted on trolley vehicles so as to be visible to passengers.

Notwithstanding the preceding subsection, food and drink, including alcoholic beverages, may be consumed aboard trolley vehicles during the time any such vehicle is actually operating under charter, provided, that the consumption of food and drink, including alcoholic beverages, by any person, shall at all times be contingent upon and shall conform to the conditions applicable to the charter of MATA's trolley vehicles, as set forth in

[The next page is T12:73]

the Memphis Area Transit Authority Charter Policy, including mandatory prearrangement with MATA for the consumption of alcoholic beverages, and the providing by the chartering party of insurance satisfactory to MATA in the event that alcoholic beverages are consumed on board;

3. Extend his or her head, hand, arm, foot, leg or other portion of the body through any window or door opening of a trolley;
4. Harass, threaten or intimidate the trolley operator or a trolley inspector;
5. Ring or attempt to ring the trolley bell;
6. Throw or project a stone or other missile from the trolley, throw or project a stone or other missile at a trolley or trolley facility, or at any person or thing on a trolley;
7. Pull or attempt to pull the emergency cord except in case of an emergency;
8. Solicit any passengers for any purpose;
9. Carry or attempt to carry a bicycle on board a trolley vehicle. Folded bicycles may be carried aboard trolley cars provided space is available;
10. Bring, carry into or carry upon a trolley car a dog or other animal unless it is completely enclosed in a carrying case which can be accommodated in the lap of a passenger with no danger of annoyance to other persons. This prohibition shall not apply to a dog or other duly trained animal, properly harnessed, accompanying a visually-impaired, hearing-impaired or other disabled persons;
11. Carry aboard a trolley car any packages, bundle, sharp or pointed objects or other objects which, because of their size, bulk, shape or nature may be dangerous or cause discomfort to passengers, or which interferes with the safe operation of the trolley vehicle;
12. Ride upon the outside or roof of any trolley.
13. Urinate or defecate in or upon a trolley.

C. *Interference with trolley operation.* It is unlawful for any person to:

1. Hang upon, jump upon or attempt to hang upon or jump upon a trolley;
2. Displace or attempt to displace a trolley vehicle from the track below or the electrical lines above the trolley vehicle;
3. Vandalize, in any manner whatsoever, any trolley equipment or appurtenances;
4. Cut or break, in any manner whatsoever, or attempt to cut or break, the electrical lines supplying current to the trolley equipment, including throwing a switch that controls the electrical current;
5. Block or obstruct the movement of a trolley vehicle by: (1) parking or abandoning any vehicle whether self-propelled, animal drawn or motor powered on or near the tracks; or (2) placing any object on or near the tracks; or (3) standing on, in the middle of, or adjacent to the tracks;
6. Attach any advertising, hand bills, flyers or other material or object to any portion of the trolley stops, trolley signs or poles supporting the overhead wires as prohibited in section 10-12-9(B);
7. Solicit any person standing at a trolley stop;
8. Climb upon any trolley stop or the clock tower located in front of City Hall;
9. Interfere in any way with the safe and orderly operation of the Main Street Trolley System.

D. *Miscellaneous.*

1. No person shall exhibit, sell or offer for sale, hire, lease or let out in a trolley vehicle any object or merchandise, or anything whatsoever, whether corporeal or incorporeal, except concessions under contract to the Memphis Area Transit Authority.
2. No person (except Memphis Area Transit Authority staff and persons or firms under written contract with MATA) shall offer for sale, sell or put into circulation, any

transit ticket, coupon, receipt for fare payment or pass which entitles the holder to ride in MATA trolley vehicles.

(Code 1985, § 20-27(b); Ord. No. 4202, § 1, 7-6-1993)

Sec. 12-64-3. Right-of-way.

All pedestrians and all nonemergency vehicles, including, but not limited to, self-propelled, animal drawn, and motor powered, shall yield the right-of-way to the trolley vehicles at all points along the Main Street Trolley System. Trolley vehicles shall obey all traffic signals at intersections of the Main Street Trolley System and dedicated city streets.

(Code 1985, § 20-27(c); Ord. No. 4202, § 1, 7-6-1993)

Sec. 12-64-4. Vehicles on Main Street Mall.

Pursuant to section 12-48-7, vehicle traffic is prohibited on the Main Street Mall. In addition to the exceptions provided in section 12-64-1, an exception to this prohibition is also granted for MATA supervisory, maintenance and fare collection vehicles and Memphis light, gas and water division (MLGW) vehicles actively engaged in servicing, repairing or replacing electrical, gas or water equipment, facilities or service on the Mall or for the Main Street Trolley.

(Code 1985, § 20-27(d); Ord. No. 4202, § 1, 7-6-1993)

Sec. 12-64-5. Conduct of passengers or occupants of trolley vehicles.

The following are in addition to any rules and regulations established by Memphis Area Transit Authority, and shall not limit or restrict MATA's authority to from time to time promulgate rules and regulations relative to its trolley vehicles.

A. Any person under the influence of intoxicating liquor or any drug and, resulting therefrom, is in such a condition that he or she is unable to exercise care for his or her safety and the safety of others may be refused entry by the trolley operator.

B. No person shall discard litter in or upon a trolley.

(Code 1985, § 20-27(e); Ord. No. 4202, § 1, 7-6-1993)

CHAPTER 12-68. PUBLIC BUILDINGS, PROPERTY USE REGULATIONS, AND NAMES

Sections:

Sec. 12-68-1. Definitions.
Sec. 12-68-2. Opening and closing hours.
Sec. 12-68-3. Entry into work area.
Sec. 12-68-4. Open spaces, parks and recreational areas—Use for political gatherings.
Sec. 12-68-5. Intent of chapter—Responsibility of park commission.
Sec. 12-68-6. Method of naming and renaming.

Sec. 12-68-1. Definitions.

As used in this chapter:

Public property is any real property owned or leased by the city or any of its agencies, including the surrounding grounds.

Work area means publicly owned or leased property which is not ordinarily open to the public and is used by municipal employees in the ordinary course of their duties, or in assembling for their duties, and includes, but is not limited to, fire station engine houses, fire department shops, sanitation and public works substations, city shops, light, gas and water division substations or pumping stations, and other offices within public buildings where it is not normal and routine for members of the public to come for municipal services. (For example, City Hall is a public building, but the public works drafting room would be a work area, and the police headquarters would be a public building, but the record room or similar offices would be work areas.)

(Code 1967, § 22-42.1; Code 1985, § 20-136; Ord. No. 868, § 1(1), 2-2-1971)

Sec. 12-68-2. Opening and closing hours.

The executive division shall have the power to designate the opening and closing hours of public buildings or offices operated the city by posting such hours in the buildings. No person, except duly authorized personnel, shall remain in such public building after official closing hours to the general public, and any

Editor's note—Ord. No. 5759, § 4, adopted September 1, 2020, retitled ch. 12-68 from 'Public Buildings and Property Use Regulations' to 'Public Buildings, Property Use Regulations, and Names.'

person who, after being notified to leave and who refuses to leave, shall be guilty of a violation of this chapter and punishable as such.
(Code 1967, § 22-42.2; Code 1985, § 20-137; Ord. No. 868, § 1(2), 2-2-1971)

Sec. 12-68-3. Entry into work area.

No person shall enter into any work area of public property as defined in this chapter except with the permission of the supervisor of such area, and any person who inadvertently or with intent to enter such area fails and refuses to comply with any lawful request to leave such area shall be guilty of a violation of this section.
(Code 1967, § 22-42.3; Code 1985, § 20-138; Ord. No. 868, § 1(3), 2-2-1971)

Sec. 12-68-4. Open spaces, parks and recreational areas—Use for political gatherings.

All open spaces, including but not limited to, parks, playgrounds, picnic areas and areas set aside for recreational purposes, shall be used for those purposes and shall not be used for nonrecreational gatherings or purposes, except upon permission granted by the city park commission, which shall regulate the time, place and manner of the nonrecreational usage.
(Code 1967, § 22-42.4; Code 1985, § 20-139; Ord. No. 868, § 1(4), 2-2-1971; Ord. No. 4237, § 1, 1-18-1994)

Sec. 12-68-5. Intent of chapter—Responsibility of park commission.

A. It is the purpose of this chapter to detail the process for naming and renaming public place/property names not outlined in sections of the Memphis Municipal Code specifically concerning: (i) streets, and (ii) parks, and to prevent interference with normal use of public property by the general public and to prohibit only such use which will unduly interfere with the normal use of public property by other members of the public with an equal right to access it.

B. The park commission shall establish reasonable nondiscriminatory regulations that preserve peace, order and tranquility in granting permits for organized meetings as authorized above and such regulations shall be forwarded to the council for approval by resolution. Such regulations shall provide definite and objective standards and such regulations shall be published and available to the public as to how an application for a permit is to be submitted and shall provide for a speedy right of review, either administratively or judicially. The park commission may designate certain parks or open spaces at which no organized political gatherings or religious meetings may be held because of the nature or size of such facilities.
(Code 1967, § 22-42.5; Code 1985, § 20-140; Ord. No. 868, § 1(4), 2-2-1971; Ord. No. 5759, § 5, 9-1-2020)

Sec. 12-68-6. Method of naming and renaming.

When the city shall acquire property for use by the general public, by purchase, condemnation, or dedication, it shall be the duty of the Memphis City Council to select a suitable name for such new public place/property. Furthermore, the Memphis City Council may change the official name adopted for existing City of Memphis public places/property, by ordinance duly passed. Any conflicts with the Memphis and Shelby County Unified Development Code shall be made in favor of this section.
(Ord. No. 5759, § 6, 9-1-2020)

CHAPTER 12-70. PUBLIC TREES

Sections:

Sec. 12-70-1. Definitions.
Sec. 12-70-2. Creation and establishment of Memphis Tree Board.
Sec. 12-70-3. Public tree care.
Sec. 12-70-4. Tree pruning requirements.
Sec. 12-70-5. Removal of stumps.
Sec. 12-70-6. Tree contractor's insurance and bond requirements.
Sec. 12-70-7. Penalty.
Sec. 12-70-8. Indemnification.
Sec. 12-70-9. Conflicts.
Sec. 12-70-10. Severability.
Sec. 12-70-11. Effective date.

Sec. 12-70-1. Definitions.

Park trees are hereby defined as trees in city parks or city park-like areas to which the public has free access as a park.

Public trees are hereby defined as trees located on city property.

Tree is hereby defined as any self-supporting woody perennial plant, having one to several main stem[s] (trunk) and many lateral branches, extensive root system,

and at maturity normally attaining a trunk diameter greater than three inches at any point and a canopy height greater than 15 feet. Each category of tree should be planted in the appropriate space and environment.

A. *Large tree* is a tree generally expected to reach a height in excess of 50 feet at maturity.

B. *Medium tree* is a tree generally expected to reach a height between 25 and 50 feet at maturity.

C. *Small tree* is a tree generally expected to reach a height between 15 and 25 feet at maturity.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-2. Creation and establishment of Memphis Tree Board.

There is hereby created and established the Memphis Tree Board (hereafter "board").

A. *Duties and responsibilities.* It shall be the responsibility of the Memphis Tree Board to serve as an advisory board and recommend policies and practices to the director of park services and neighborhoods that have positive contributions to the establishment, management, enhancement, maintenance, and conservation of public trees in the City of Memphis. The board also serves to develop and promote public awareness programs that identify the community benefits from the establishment and maintenance of public urban trees, along with nurturing private/public collaborations to fund and further promote a public tree conservation program.

B. *Board composition and qualifications.* The board shall consist of seven members which shall include three officers: chairperson, co-chairperson, and treasurer. Each member shall be a resident of the City of Memphis and shall be appointed by the mayor, subject to the approval of the Memphis City Council. Three of the members are required to be a certified professional arborist, horticulturalist, or forester.

The majority of the board members shall recommend the appointment of a chairperson to be approved by the director of parks and neighborhoods. The chairperson shall select the co-chairperson and the treasurer.

C. *Term.* The term of each member shall be for a period of three years. Upon the expiration of a term, a member may be reappointed as his or her successor. The chair shall serve successive three-year terms, unless removed by the mayor. In the event of a vacancy during the term of any member, a successor shall be appointed by the mayor, subject to the approval of the council, to serve the remainder of such member's unexpired term.

D. *Removal.* A member may be removed from the board for continued absence from meetings or other just cause in accordance with the procedure for removal of board or commission members provided by the City of Memphis Charter.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-3. Public tree care.

The city shall have the right to plant, prune, maintain and remove trees, plants and shrubs on public property, as may be necessary to ensure public safety or to preserve or enhance the symmetry and beauty of the site.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-4. Tree pruning requirements.

No person shall top any public tree. Any tree requiring pruning to ameliorate any public safety issues, to ensure the safe distribution of public energy, to remove obstruction of street lights from any lamps or other public obstruction, shall be pruned according to ANSI standards. Topping a tree shall be used only when pruning by ANSI standards fail to address the foregoing issues.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-5. Removal of stumps.

The city will utilize its best efforts and embrace the operational preference to remove tree stumps below the surface of the ground.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-6. Tree contractor's insurance and bond requirements.

The city shall require individuals and companies conducting any pruning, treating or removing of park or public trees as defined in this chapter to satisfy the following requirements:

A. To protect the public, the city shall require any company or contractor which removes or maintains trees as a business on public lands to:

1. Furnish an acceptable surety bond covering the work in which they are engaged and provide proof of liability insurance satisfactory to city, upon the terms and conditions set forth in this section.

a. The bond shall be in a sum of 100 percent of the cost of the work to be performed and be executed by the applicant as principal and by a solvent corporation authorized to do business within the State of Tennessee as surety;

b. The bond shall be for a minimum term of one year and shall extend to cover the period of the contract with the city;

c. The bond shall not be canceled or terminated until at least 30 days after a notice of cancellation of the bond is received by the city risk manager;

d. The principal will at all times do all pruning, trimming and removing of trees strictly in accordance with this article;

e. All work will be done in a good and workmanlike manner;

f. The city shall be fully indemnified and held whole and harmless from any cost, expense, damages to real property or personal injury done to any person or property in the prosecution of such work that may arise out of or be occasioned in the performance of such work; and

g. The company or contractor will cause all streets, alleys and sidewalks that have been impaired in any manner to be repaired and put in the same condition as they were before the work was done.

2. Provide to the city risk manager an insurance policy or certificate of insurance with coverage for personal injury and property damage, including coverage for damage to trees, in amounts of not less than $50,000.00 property damage, $100,000.00 for bodily injury or death, and aggregate limits of $500,000.00 for each incident or occurrence. The city shall be named as an additional insured on any such policies and certificates of insurance and the company shall agree to indemnify the city as part of any contract with the city against any loss, liability or damage resulting from performance of the contract.

3. Have at least one certified arborist employed by each company operating within the city.

4. In addition, workmen's compensation insurance satisfying the statutes of the State of Tennessee shall be on file with the city risk manager.

5. Should any policy be cancelled, the city shall be notified of such within ten days after such cancellation is effective, and a provision to that effect, which shall also place upon the company writing such policy the duty to give such notice, shall be incorporated in each such policy.

(Ord. No. 5494, 3-5-2013)

Sec. 12-70-7. Penalty.

Any person violating any provision of this chapter shall be subject to a fine not to exceed $50.00. The appeal of any fine imposed hereunder shall be handled in accordance with section 1-8 of the Memphis City Code of Ordinances.
(Ord. No. 5494, 3-5-2013)

Sec. 12-70-8. Indemnification.

Nothing contained in this chapter shall be deemed to impose any liability upon the city, its officers or employees, nor to relieve the owner of any private property from the duty to keep any tree, shrub or plant upon any street tree area on his property or under his control in such condition as to prevent it from constituting a hazard or an impediment to travel or vision upon any public property or rights-of-way or public place within the city.
(Ord. No. 5494, 3-5-2013)

Sec. 12-70-9. Conflicts.

Should any section, clause, or provisions of this chapter be declared by the courts to be invalid, the same shall not affect the validity of the chapter as a whole, or parts thereof, other than the part so declared to be invalid.
(Ord. No. 5494, 3-5-2013)

Sec. 12-70-10. Severability.

If any subsection, sentence, clause, provision or part of this chapter shall be held invalid for any reason by a court of the competent jurisdiction, the remainder of this chapter shall not be affected thereby, but shall remain in force and effect.
(Ord. No. 5494, 3-5-2013)

Sec. 12-70-11. Effective date.

This chapter is hereby declared to be of immediate necessity for the preservation of public peace, health, and safety, and shall be in full force and effective from and after its passage and publication as provided by law.
(Ord. No. 5494, 3-5-2013)

CHAPTER 12-72. PUBLIC ART PROGRAM*

Sections:

Sec. 12-72-1. Purpose.
Sec. 12-72-2. Definitions.
Sec. 12-72-3. Funding source, use and disbursement of the public art program.
Sec. 12-72-4. Oversight.
Sec. 12-72-5. Administration.
Sec. 12-72-6. Ownership.

Sec. 12-72-1. Purpose.

The purpose of the public art program, as defined herein, is to provide a dedicated funding source for art enhancements to be implemented in selected city capital improvement projects constructed by the city or with city funds, and to provide, through the city public art oversight committee, guidance and support to the city in implementing such art enhancements and to thereby foster public projects of art in city buildings and landscapes with a minimal impact on existing procedures, practices and capital improvement project budgets.
(Ord. No. 5674, § 1(2-86), 1-9-2018)

Sec. 12-72-2. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except when the context clearly indicates a different meaning:

Art percentage means that percent defined in section 12-72-3(A), to be allocated to the public art fund out of eligible general fund capital improvement project ("CIP") funds (excluding public works project, PW 156) and used hereunder to enhance public buildings with artwork.

Artwork means all forms of original creations or works designed by a professional artist, team of artists, or design team.

Local artist means an artist who has current permanent residence within the city municipal limits. An artist team shall be considered as a local artist when at least 75 percent of the members of the team have current permanent residence within the city municipal limits.

Minority means those persons who are of a race or nationality other than Caucasian, including African Americans, Hispanics, Asians, Native Americans, or a combination thereof.

MWBE means an entity which is owned and controlled by one or more African Americans, Hispanics, Asians, Native Americans, or women, or a combination thereof.

Participating bureaus means departments of the city that either construct or fund CIP projects in which artwork is to be installed and public art funds are to be expended hereunder.

Public art fund means the special fund established as a separate account pursuant to section 12-72-3(A) with funds allocated to the public art fund and administered by the city. All interest and investment earnings attributable to the public art fund shall accrue therein. The city shall establish procedures for reporting activity of the public art fund. The city shall periodically provide the city council with reports reflecting all amounts allocated to the public art fund, encumbered to specific projects, and expended from the public art fund for artwork.

Public art maintenance fund means the special fund established as a separate account pursuant to section 12-72-3(B) with funds allocated to the public art maintenance fund, and administered by the city. All interest and investment earnings attributable to the public art maintenance fund shall accrue therein. The city shall establish procedures for reporting activity of the public art maintenance fund.

Public art oversight committee shall consist of seven members with three members nominated by the mayor and approved by the city council. Three members nominated by the council chair and approved by the council and one of the seven members shall be the chair of the UAC board or a board member designated by the UAC board chair. The members shall serve a maximum of four two-year terms. Members shall sign a conflict of interest statement and declare any conflicts annually. The committee shall also include as ex officio members the UAC executive director and the director or designee of any participating bureau.

Public art program means the activities and art enhancements generated pursuant to this chapter.

Regional artist means an artist who has lived and worked in the Memphis Metropolitan Statistical Area for the past three years.

***Editor's note—**Ord. No. 5674, §§ 1(2-86—2-91), adopted Jan. 9, 2018, amended chapter 12-72 in its entirety to read as herein set out. Former chapter 12-72, §§ 12-72-1—12-72-5, pertained to public art, and derived from Code 1985, § 2-86—2-90; Ord. No. 4934, 3-5-2002.

Rolling three-year period means at any given date, the previous three fiscal years combined.

UAC is the urban art commission, an independent 501(c)(3) organization established in 1999.

Women means those persons, citizens of the United States and lawfully admitted resident aliens, who are of the female gender and not otherwise included in one of the specific ethnic minority groups.
(Ord. No. 5674, § 1(2-87), 1-9-2018)

Sec. 12-72-3. Funding source, use and disbursement of the public art program.

A. An art percentage of one percent of the total general obligation bond amount included in the CIP budget for construction costs each fiscal year, not to exceed $1,000,000.00 per fiscal year, shall be allocated to the public art fund for use in the development of artwork hereunder, including, but not limited to, artist design services, the development of design concepts and models, an artist in residency program, the selection, acquisition, purchase, commissioning, placement, installation, exhibition and display of artwork, and architectural and engineering design associated with artwork.

B. Each fiscal year, the city shall provide operating funds in an amount equal to one-tenth of one percent of the total general obligation bond amount included in the CIP budget for construction costs each fiscal year, which funds shall be allocated to the public art maintenance fund for use for maintenance, curatorial and conservation care for artwork developed pursuant to the public art program.

C. Funds in the public art fund and the public art maintenance fund not expended by the end of the close of any fiscal year shall be carried forward to the next succeeding fiscal year, to the extent that such carried forward funds, when added to the art percentage funds for the succeeding fiscal year, do not exceed $1,500,000.00.

D. All participating bureaus shall include in their applications for funding for CIP projects to unrelated governmental agencies and other funding sources that allow for art enhancements in capital improvement projects, amounts up to the limit set by any such agency or other funding source, for artist design services and artwork. Any grant amounts received by participating bureaus for artwork or art enhancements to capital improvement projects shall be directed to the public art fund and shall not be included for purposes of computing the maximum funding amounts set out in subsections 12-72-3(A) or 12-72-3(B).

E. Public art funds shall be used for the creation of artwork in, upon, adjacent to, or in close proximity to CIP projects.

F. Disbursements from the public art fund and the public art maintenance fund shall be made only after authorization by the city, through its city engineer. Disbursements shall be made according to the terms of this chapter and any guidelines adopted by the city hereunder.

G. UAC will track dollars spent locally within each project. Sixty percent of the projects/dollars spent annually shall be contracted to a local artist or team of artists. It is possible that there may be years that due to the special needs of projects or unforeseen circumstances, there may not be local artists available to meet the 60 percent participation. In this case, the 60 percent participation shall be calculated on a three-year rolling period to allow for the UAC to meet the participation goal by increasing the local artists participation in the next two years.

H. In an effort to promote equality and diversity in all artwork undertaken pursuant to this chapter, the public art program funded hereunder should include significant minority and women participation. UAC will report annually on the total CIP dollars contracted in MWBE participation, including both certified and non-certified vendors.
(Ord. No. 5674, § 1(2-88), 1-9-2018)

Sec. 12-72-4. Oversight.

The City of Memphis Public Art Oversight Committee shall meet regularly to provide guidance and oversight in the implementation of the city's public art program.

A. All meetings of the public art oversight committee shall be open to the public and posted in accordance with city policies for meetings of appointed boards and commissions;

B. Review program policies and guidelines and make recommendations to city council for changes and updates to the public art ordinance as appropriate;

C. Provide guidance to UAC in the development of the annual plan and recommend its adoption to city council;

D. Recommend representatives for ad hoc selection committees to expand the roster of volunteers to serve as selection panelists;

E. Review quarterly reports presented by the UAC and evaluate the performance of the organization in the administration of the program;

F. Annually the members of the oversight committee shall complete a conflict of interest form and declare any conflicts of interest; members shall abstain from participating in discussions or voting on items in which they have a conflict of interest of the appearance of a conflict of interest.

(Ord. No. 5674, § 1(2-89), 1-9-2018)

Sec. 12-72-5. Administration.

The city shall contract annually with the UAC for the UAC to administer the public art program, and shall provide therein for compensation to be paid to UAC for all such administrative services. The UAC and the public art oversight committee shall, after consultation with the city council and participating departments of city, administer the provisions of this chapter relating to artwork acquisition and display, and shall adopt guidelines to:

A. Provide for annual meetings with participating bureaus;

B. Develop an annual plan for the public art program that considers the views of the participating bureaus and is consistent with all applicable city budgets;

C. Recommend to the city engineer and appropriate bureau director for his or her approval the selection of artwork to be created with public art funds;

D. Provide a method for the appointment of representatives to ad hoc selection committees, created solely for the purpose of selecting artists and reviewing artwork proposals. The method shall include a public solicitation of applications and an orientation for selection committee members on their role as panelists. The names and affiliations of the members of the selection committee shall be published in the call for artists.

E. Ad hoc selection committee members shall sign a conflict of interest statement and shall abstain from participating in discussion or voting on items in which they have a conflict of interest or the appearance of a conflict of interest;

F. Ad hoc selection committee meeting information and meeting minutes shall be publicly advertised on the UAC website and social media and ad hoc selection committee meetings shall be open to the public;

G. Determine a method or methods of selecting artists for the design, execution and siting of artwork;

H. Provide quarterly reports and reviews to the city council to account for artwork projects funded from the public art fund;

I. Clarify the responsibilities for maintenance of artwork, including any extraordinary operations or maintenance costs associated with artwork, prior to selection;

J. Facilitate the preservation of art objects, ethnic and cultural arts and crafts, and artifacts funded through this chapter;

K. Determine a process to accession and deaccession artwork, as necessary, and make recommendations to the oversight committee and, as appropriate, for the disposal of city assets to city administration or city council;

L. UAC shall provide the city with CIP-funded contracts to be made publicly available in the city's website for city contracts.

M. Set forth any other matter appropriate to the administration of this chapter.

(Ord. No. 5674, § 1(2-90), 1-9-2018)

Sec. 12-72-6. Ownership.

All artwork acquired pursuant to this chapter shall be acquired in the name of the city. Insurance coverage for artwork acquired hereunder shall be provided and maintained by the city.

(Ord. No. 5674, § 1(2-91), 1-9-2018)

CHAPTER 12-76. AIRPORTS AND AIRCRAFT*

Sections:

Article 1. General Provisions

Sec. 12-76-1. Definitions.
Sec. 12-76-2. General rules for operating aircraft over city.
Sec. 12-76-3. Acrobatic flying.
Sec. 12-76-4. Dropping handbills and circulars from aircraft.

Article 2. Administration

Sec. 12-76-5. Permit for commercial activities generally.
Sec. 12-76-6. Permit for commercial photography.
Sec. 12-76-7. Advertisements.
Sec. 12-76-8. Soliciting funds.
Sec. 12-76-9. President to have access to records of commercial users.
Sec. 12-76-10. Entering restricted area.
Sec. 12-76-11. Unauthorized taking of property.
Sec. 12-76-12. Firearms and explosives.
Sec. 12-76-13. Destroying or damaging property.
Sec. 12-76-14. Disposal of refuse.
Sec. 12-76-15. Gambling.
Sec. 12-76-16. Restrictions on dogs and other animals.
Sec. 12-76-17. Lost property.
Sec. 12-76-18. Eviction from premises.
Sec. 12-76-19. Accident reports.
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Article 3. Airport Operating Regulations

Sec. 12-76-21. Storage and repair of aircraft.
Sec. 12-76-22. Securing unattended aircraft.
Sec. 12-76-23. Runway usage.
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Sec. 12-76-25. Removal of disabled aircraft.
Sec. 12-76-26. Experimental and test flying.
Sec. 12-76-27. Parachute jumping.
Sec. 12-76-28. Aircraft radios.
Sec. 12-76-29. Radio procedure.
Sec. 12-76-30. Portable traffic-control light.
Sec. 12-76-31. Report of aircraft accidents.

Article 4. Motor Vehicle and Pedestrian Traffic at Airport

Sec. 12-76-32. Application of traffic regulations.
Sec. 12-76-33. Establishment of no parking zones and loading zones.
Sec. 12-76-34. Use of roads and walks.
Sec. 12-76-35. Pedestrians' right-of-way.
Sec. 12-76-36. Following other vehicles.
Sec. 12-76-37. Obstructing traffic.
Sec. 12-76-38. Operation of motorized equipment on apron.
Sec. 12-76-39. Speed of vehicles.
Sec. 12-76-40. Vehicles for hire.

***Charter reference—**Authority of board of commissioners to regulate the landing of airplanes and airships and the operation thereof above or in the city, § 834.

State law reference—Aviation, T.C.A. § 42-1-101 et seq.

ARTICLE 1. GENERAL PROVISIONS

Sec. 12-76-1. Definitions.

The following terms, whenever used or referred to in this chapter, shall have the following respective meanings, unless a different meaning clearly appears from the context:

Aircraft means any contrivance now known or hereafter invented, used or designed for navigation of or flight in the air.

Airman means any individual who engages as a person in command or as a pilot, mechanic or member of the crew, in the navigation of aircraft while under way, and any individual who is directly in charge of the inspection, maintenance, overhauling or repair of aircraft, aircraft engines, propellers or appliances, and any individual who serves in the capacity of aircraft dispatcher or air traffic control tower operator.

Airport means the Memphis International Airport and/or the General Dewitt Spain Airport where applicable.

Authority means the Memphis-Shelby County Airport Authority.

Director means the director of aviation of the airport authority or his or her duly authorized representatives; the director is also the president of the airport authority.

Fixed base operator means any person upon airport property engaged in the business of the sale of aircraft, the sale of aircraft parts, the sale of gasoline and oil for aircraft at retail, the rental of aircraft, the operation of a flying school or the rendition of any service to aircraft or the operators thereof for profit. The term shall include persons engaged in any one or more of such businesses, but shall not include oil companies renting space on airport property and selling gasoline and oil to commercial airlines or fixed base operators for resale at retail.

Operation of aircraft or *operate aircraft* means the use of aircraft for the purpose of air navigation. Any person who causes or authorizes the operation of aircraft, whether with or without the right of legal control of the aircraft, in the capacity of owner, lessee or otherwise, shall be deemed to be engaged in the operation of aircraft within the meaning of this chapter.

President means the president of the airport authority or his or her duly authorized representatives; the president is also the director of aviation of the airport authority.

Retail food store is defined as an establishment that is open to the public that derives at least 20 percent of its sales from the retail sale of food and food ingredients for human consumption taxed at the rate provided in T.C.A. § 67-6-228(a) and has retail floor space of at least 1,200 square feet, or as otherwise defined by Tennessee law.

Tower means the airport traffic control tower.

Wine means the product of the normal alcoholic fermentation of the juice of fresh, sound, ripe grapes, with the usual cellar treatment and necessary additions to correct defects due to climatic, saccharine and seasonal conditions, including champagne, sparkling and fortified wine of an alcoholic content not to exceed 18 percent by volume. No other product shall be called "wine" unless designated by appropriate prefixes descriptive of the fruit or other product from which the same was predominately produced, or an artificial or imitation wine. "Wine" does not mean alcohol derived from wine that has had substantial changes to the wine due to the addition of flavorings and additives.

Nothing in this section shall be construed to allow wine sales at retail food stores for on premises consumption, including by the drink or by the pour, nor shall this section be construed to allow the sale of liquor or spirits other than wine or beer at a food retail store.
(Code 1967, § 4-1; Code 1985, § 3-1; Ord. No. 5615, § 1, 5-3-2016)

Sec. 12-76-2. General rules for operating aircraft over city.

It is unlawful for any person to operate an aircraft in and over the city at any height or speed in any manner which is unreasonable or improper under the circumstances of the operation; or so as to endanger the property, life or limb of any person. Operation of an aircraft in violation of Federal Aviation Regulations shall be presumptive evidence of unreasonable and improper operation. In no event shall an aircraft be operated over the city at an altitude of less than 1,000 feet above any

obstruction and at a horizontal distance of less than 2,000 feet, in any direction, from an obstruction; provided however, that aircraft maneuvering for landing or take off are subject only to such rules and regulations as may apply thereto.
(Code 1967, § 4-2; Code 1985, § 3-2)

Sec. 12-76-3. Acrobatic flying.

Aerial acrobatics and trick flying over any area within the limits of the city, or within the airport control zone, are prohibited; and within such areas the controls of aircraft shall not be manipulated so as to divert the aircraft from normal, stable and safe flight; provided however, that acrobatic flying may be permitted within the airport control zone outside the boundaries of the city upon previous arrangement made with the controller on duty in the tower, and the approval of the president of the airport authority.
(Code 1967, § 4-3; Code 1985, § 3-3)

Sec. 12-76-4. Dropping handbills and circulars from aircraft.

It is unlawful for any person in any aircraft flying over the airport or over the territory within the boundaries of the city, to cause or permit to be thrown out, discharged or dropped, any handbills, circulars, cards or other matter whatsoever.
(Code 1967, § 4-4; Code 1985, § 3-4)

ARTICLE 2. ADMINISTRATION

Sec. 12-76-5. Permit for commercial activities generally.

No person shall use any portion of the airport property or any structure thereon for revenue-producing commercial activities without securing an appropriate permit for such activities from the president of the airport authority and paying the rates and charges prescribed for such use.
(Code 1967, § 4-19; Code 1985, § 3-16)

Sec. 12-76-6. Permit for commercial photography.

No person shall take still, motion or sound pictures for commercial purposes on the airport without permission of the president of the airport authority, and on such terms and conditions as such president may prescribe.
(Code 1967, § 4-20; Code 1985, § 3-17)

Sec. 12-76-7. Advertisements.

No person shall post, distribute or display signs, advertisements, circulars or other printed or written matter at the airport except with the approval of the president of the airport authority or in accordance with the provisions of a lease executed with the airport authority.
(Code 1967, § 4-21; Code 1985, § 3-18)

Sec. 12-76-8. Soliciting funds.

No person shall solicit funds for any purpose on the airport without the permission of the president of the airport authority.
(Code 1967, § 4-22; Code 1985, § 3-19)

Sec. 12-76-9. President to have access to records of commercial users.

As a condition precedent to the right of commercial airlines and air freight and express haulers to use the airport, the president of the airport authority shall be given access by them at all reasonable times, in person or by agent, to examine and check the records of such airlines and freight and express haulers, showing the information required by this chapter to be reported by them to the president of the airport authority.
(Code 1967, § 4-26; Code 1985, § 3-20)

Sec. 12-76-10. Entering restricted area.

All areas of airport property except those areas specifically open to the public are restricted and no person shall enter upon the aircraft movement areas, ramp areas, aircraft parking and storage areas, hangars or shop areas of the airport except:

A. Persons assigned to duty therein;

B. Persons authorized by the airport authority;

C. Passengers under appropriate supervision entering the apron for the purpose of embarkation and debarkation;

D. Persons engaged, or having been engaged, in the operation of any aircraft;

E. Persons under contractual agreement with the airport authority.

(Code 1967, § 4-27; Code 1985, § 3-21)

Sec. 12-76-11. Unauthorized taking of property.

No person shall take or use any aircraft, aircraft parts, instruments, or tools owned, controlled, or operated by any other person while the same are stored, housed, or otherwise left on the airport or within its hangars, except with the written consent of the owner or operator thereof, or other evidence of the right to do so satisfactory to the president of the airport authority.
(Code 1967, § 4-28; Code 1985, § 3-22)

Sec. 12-76-12. Firearms and explosives.

No person shall have any firearm, explosive or incendiary device on or about their person or accessible property except:

A. Duly authorized peace officers of the federal, state or municipal government or political subdivision thereof;

B. Duly authorized federal inspectors and postal employees;

C. Duly authorized airport or air carrier employees;

D. Members of the armed forces of the United States on official duty;

E. Air passengers transporting unloaded firearms in checked baggage.

Unauthorized persons possessing such property on the airport shall surrender same to the airport police officer on duty.
(Code 1967, § 4-29; Code 1985, § 3-23)

Sec. 12-76-13. Destroying or damaging property.

A. No person shall:

1. Destroy, injure, deface or disturb in any way any building, sign, equipment, marker, or other structure, tree, flower, lawn or other property on the airport;

2. Trespass on lawns and seeded areas of the airport.

B. Any and all airport property destroyed, injured, or damaged, by accident or otherwise, shall be paid for by the party responsible for such destruction, injury or damage.
(Code 1967, § 4-30; Code 1985, § 3-24)

Sec. 12-76-14. Disposal of refuse.

Garbage, papers and refuse or other similar material shall be placed in receptacles provided at the airport for that purpose.
(Code 1967, § 4-31; Code 1985, § 3-25)

Sec. 12-76-15. Gambling.

No person shall conduct gambling in any form or operate gambling devices anywhere on the airport.
(Code 1967, § 4-32; Code 1985, § 3-26)

Sec. 12-76-16. Restrictions on dogs and other animals.

Dogs or other animals shall not be permitted in the terminal building or on the landing area of the airport, except Seeing-Eye dogs and other animals being transported by air and confined in suitable shipping containers. Dogs shall be permitted in other areas of the airport if restrained by leash or confined in such manner as to be under control.
(Code 1967, § 4-34; Code 1985, § 3-27)

Sec. 12-76-17. Lost property.

Persons finding lost articles at the airport shall turn same in to the lost and found department located in the airport management offices or to the airport security office. Articles which remain unclaimed for a period of 90 days will be disposed of in the manner prescribed by the board of commissioners of the airport authority.
(Code 1967, § 4-35; Code 1985, § 3-28)

Sec. 12-76-18. Eviction from premises.

Any person operating or handling any aircraft, operating any vehicle, equipment, or apparatus or using the airport or any of its facilities in violation of this chapter, or refusing to comply herewith, may be removed from the airport, and deprived of and refused the further use of the airport and its facilities for such length of time as may be determined by the president of the airport authority.
(Code 1967, § 4-37; Code 1985, § 3-29)

Sec. 12-76-19. Accident reports.

All persons involved in any accident on the airport and all witnesses thereto shall report promptly to the president of the airport authority's office or to the airport police officer on duty.
(Code 1967, § 4-38; Code 1985, § 3-30)

Sec. 12-76-20. Airport authority—Promulgation of rules and regulations.

The board of commissioners of the airport authority shall have authority to make and promulgate rules and regulations for the development, operation, maintenance and management of the airport and to develop, maintain, manage and operate the airport in accordance therewith.
(Code 1967, § 4-55; Code 1985, § 3-41)

ARTICLE 3. AIRPORT OPERATING REGULATIONS

Sec. 12-76-21. Storage and repair of aircraft.

Aircraft shall be stored and repairs made on the airport only in the spaces designated for the purpose by the president of the airport authority. Aircraft other than those belonging to the commercial airlines entering the airport, and military aircraft, may be repaired on the airport only by fixed base operators doing business on the airport; provided, however, that a properly qualified airplane mechanic may work upon, service and repair aircraft owned by him or her.
(Code 1967, § 4-76; Code 1985, § 3-56)

Sec. 12-76-22. Securing unattended aircraft.

No aircraft shall be left unattended on the airport unless properly secured or within a hangar. Owners of aircraft shall be held responsible for any damage resulting from failure to comply with this section.
(Code 1967, § 4-77; Code 1985, § 3-57)

Sec. 12-76-23. Runway usage.

Landings and take-offs at the airport shall be made on the runways and in the direction indicated by the controller on duty in the tower.
(Code 1967, § 4-88; Code 1985, § 3-58)

Sec. 12-76-24. Airport authority may delay or restrict operations or refuse clearance.

The president of the airport authority may delay or restrict any flight or other operations at the airport and may refuse take-off clearance to any aircraft for any infraction of airport rules and regulations.
(Code 1967, § 4-90; Code 1985, § 3-60)

Sec. 12-76-25. Removal of disabled aircraft.

Aircraft owners, their pilots and agents, shall be responsible for the disposal of disabled aircraft and parts thereof, and shall promptly remove the same from the airport, unless directed to delay such action pending an investigation of an accident.
(Code 1967, § 4-91; Code 1985, § 3-61)

Sec. 12-76-26. Experimental and test flying.

Experimental and test flying will be permitted, but only upon previous arrangements with, and the approval of, the president of the airport authority and the controller on duty in the tower.
(Code 1967, § 4-92; Code 1985, § 3-62)

Sec. 12-76-27. Parachute jumping.

Experimental and exhibition parachute jumping at the airport will be permitted only on previous arrangement with the controller on duty in the tower and approval by the president of the airport authority.
(Code 1967, § 4-93; Code 1985, § 3-63)

Sec. 12-76-28. Aircraft radios.

All aircraft regularly operating from the airport shall be equipped with two-way radios capable of receiving tower transmissions at all times, from any position within the limits of the airport control zone; shall maintain such radio equipment on the control tower frequency; and shall follow whatever traffic control instructions may be given by the tower.
(Code 1967, § 4-95; Code 1985, § 3-65)

Sec. 12-76-29. Radio procedure.

Radio contacts between pilots of aircraft and air traffic control tower operators shall be conducted in accordance with the procedures and by means of the phraseologies prescribed by the administrator of the Federal Aviation Administration whenever practicable.
(Code 1967, § 4-96; Code 1985, § 3-66)

Sec. 12-76-30. Portable traffic-control light.

The portable traffic-control light shall be used to regulate landing and take offs of any aircraft not equipped with radio. Signals from the portable traffic-control light shall be those provided for such use by the air traffic rules issued by Federal Aviation Regulations. All such light

signals from the tower shall be acknowledged by the pilot by the wiggling of ailerons when on the ground, and by rocking of the wings when in the air.
(Code 1967, § 4-97; Code 1985, § 3-67)

Sec. 12-76-31. Report of aircraft accidents.

Persons employed on the airport who witness or participate in any aircraft accident shall promptly render a detailed report to the president of the airport authority's office, giving the names and addresses of all witnesses thereto.
(Code 1967, § 4-98; Code 1985, § 3-68)

ARTICLE 4. MOTOR VEHICLE AND PEDESTRIAN TRAFFIC AT AIRPORT

Sec. 12-76-32. Application of traffic regulations.

A. Insofar as the same are applicable and not in conflict with the following sections, the traffic regulations prescribed by title 11 as the same now exist, or as the same shall be hereafter amended, shall apply to and govern the area embraced within the airport.

B. The drives and parking spaces in and about the airport are declared to have the status of streets, for the purpose of application thereto of the traffic regulations of the city.
(Code 1967, § 4-131; Code 1985, § 3-81)

Sec. 12-76-33. Establishment of no parking zones and loading zones.

For the purpose of the establishment of no parking zones, loading and unloading zones, safety zones, one-way streets or drives and any and all other administrative and police regulations upon the airport, the airport authority shall have the powers delegated to the directors of fire and police and the director of public works by title 11.
(Code 1967, § 4-132; Code 1985, § 3-82)

Sec. 12-76-34. Use of roads and walks.

A. No person shall travel on the airport other than on the roads, walks or places provided for the particular class of traffic.

B. No person shall use the roads or walks in such manner as to hinder or obstruct their proper use.

C. No person shall operate any type of vehicle on roads or walks except as designated by the president of the airport authority.
(Code 1967, § 4-133; Code 1985, § 3-83)

Sec. 12-76-35. Pedestrians' right-of-way.

Pedestrians within pedestrian lanes, as marked at the airport, shall have the right-of-way over vehicular traffic.
(Code 1967, § 4-134; Code 1985, § 3-84)

Sec. 12-76-36. Following other vehicles.

No person shall operate a vehicle following another vehicle on the airport closer than 15 feet.
(Code 1967, § 4-135; Code 1985, § 3-85)

Sec. 12-76-37. Obstructing traffic.

Motor vehicles being operated at the airport shall not obstruct traffic by making right or left turns from the wrong traffic lane, or by weaving in and out of traffic, or in any other improper manner.
(Code 1967, § 4-136; Code 1985, § 3-86)

Sec. 12-76-38. Operation of motorized equipment on apron.

No motorized equipment shall be operated on the apron of the terminal building or the aircraft landing area at the airport, except:

A. By persons assigned to duty thereon;

B. By persons authorized by the president of the airport authority.

(Code 1967, § 4-137; Code 1985, § 3-87)

Sec. 12-76-39. Speed of vehicles.

Motor vehicles shall be operated in strict compliance with speed limits prescribed by the president of the airport authority and indicated by posted traffic signs, and in any event shall not be operated in excess of 25 miles per hour.
(Code 1967, § 4-138; Code 1985, § 3-88)

Sec. 12-76-40. Vehicles for hire.

A. No person shall operate any vehicle for hire from the airport except with the approval of the president of the airport authority and under such terms and conditions as may be prescribed by him or her.

B. No common carrier vehicle or vehicle for hire shall load or unload passengers at the airport at any place other than that designated for the purpose by the president of the airport authority.
(Code 1967, § 4-142; Code 1985, § 3-89)

CHAPTER 12-80. RAILROADS AND RAILROAD CROSSINGS*

Sections:

Article 1. General Provisions

Sec. 12-80-1. Trains obstructing street.
Sec. 12-80-2. Wooden bridges, culverts or trestles.
Sec. 12-80-3. Applicability of chapter to agents and officers.
Sec. 12-80-4. Contracts between city and railroads—Deemed ordinances.
Sec. 12-80-5. Contracts between city and railroads—Breaches.
Sec. 12-80-6. Work in streets to be under supervision of city engineer—Adjustment of conflicts between company and engineer.
Sec. 12-80-7. Rules and regulations relative to passenger terminal facilities.
Sec. 12-80-8. Obstructing passage between depots and trains.
Sec. 12-80-9. Climbing upon or between cars or engines.
Sec. 12-80-10. Locomotive headlight.
Sec. 12-80-11. Speed limit.
Sec. 12-80-12. Sounding of engine whistle.
Sec. 12-80-13. Parking of railway cars at crossings.

Article 2. Crossings

Sec. 12-80-14. Generally.
Sec. 12-80-15. Signal lights.
Sec. 12-80-16. Human flagmen, gates or crossarm signs.
Sec. 12-80-17. Overhead street or arc lights.
Sec. 12-80-18. Safety gates to be counterbalanced.
Sec. 12-80-19. Inspection by city engineer.

ARTICLE 1. GENERAL PROVISIONS

Sec. 12-80-1. Trains obstructing street.

It is unlawful for the directing officer or the operator of any railroad train to direct the operation of or to operate the same in such a manner as to prevent the use of any street for purposes of travel for a period of time longer than five minutes. This section shall not apply to trains or cars in motion other than those engaged in switching.
(Code 1967, § 34-19; Code 1985, § 31-1)

Sec. 12-80-2. Wooden bridges, culverts or trestles.

It is unlawful for any railroad company having tracks or obtaining the right-of-way to lay tracks in the corporate limits of the city to construct, alter, change or repair any wooden bridge, culvert or trestle, but, in all instances hereafter, bridges, culvert or trestles shall be constructed of concrete and/or steel. When any wooden bridge, culvert or trestle needs repairs, it shall be torn away and one of such materials constructed in its stead. The plans in all instances shall be submitted to and approved in writing by the city engineer before any work shall be done on the same.
(Code 1967, § 34-13; Code 1985, § 31-2)

Sec. 12-80-3. Applicability of chapter to agents and officers.

This chapter shall, in all respects, apply to the officers, agents and employees of any railroad company, as well as to the company itself.
(Code 1967, § 34-1; Code 1985, § 31-3)

Sec. 12-80-4. Contracts between city and railroads—Deemed ordinances.

Each and every contract between any railroad company and the city, under which such company occupies with its tracks any street or parts of a street within the city, or operates cars thereover, shall in addition to being a contract between the parties, be deemed also an ordinance, with the same effect as if the city had granted or consented to such use and occupancy by an ordinance wherein was embodied all the terms and provisions and conditions of such contract.
(Code 1967, § 34-2; Code 1985, § 31-4)

Sec. 12-80-5. Contracts between city and railroads—Breaches.

A. Any breach of a contract referred to in section 12-80-2 of this chapter on the part of the railroad company shall constitute a misdemeanor.

*__Charter reference—__Authority to regulate railroads, §§ 719—722.

B. The failure of any railroad company to lay or maintain its tracks, or to lay, relay, repair or maintain the paving of the streets, or parts of the streets occupied by it, in the manner, to the extent, and within the time prescribed by such contract, is declared a nuisance and a misdemeanor.

C. Whenever the surface of any street shall be disturbed by any railroad company, and there shall be a contract then existing showing the obligations of such company in respect to the paving, repaving, repairing or maintaining the paving of such streets, either within or without the tracks of such company, and such company shall fail to comply with and perform such work in every particular, such failure shall be considered and treated as if the use and the occupancy of such street had been in the first instance, unauthorized and unlawful, and a nuisance and a misdemeanor. Each day's breach of such contract shall constitute a separate offense.
(Code 1967, § 34-3; Code 1985, § 31-5)

Sec. 12-80-6. Work in streets to be under supervision of city engineer—Adjustment of conflicts between company and engineer.

The grade of streets, the manner of work and material used and the erection of poles by railroad companies shall all be under the supervision of the city engineer, and done according to his or her specifications and directions, and any conflict between him or her and the railroad company shall be adjusted by the mayor, whose action shall be final.
(Code 1967, § 34-4; Code 1985, § 31-6; Ord. No. 1426, § 1, 9-5-1972)

Sec. 12-80-7. Rules and regulations relative to passenger terminal facilities.

It is unlawful for any railroad company operating within the corporate limits of the city to fail to comply with rules and regulations adopted by the mayor and council for the operation, maintenance and use of railroad passenger terminal facilities. The director of public works shall be delegated the responsibility for enforcing such rules and regulations.
(Code 1967, § 34-5; Code 1985, § 31-7; Ord. No. 1426, § 2, 9-5-1972)

Sec. 12-80-8. Obstructing passage between depots and trains.

It is unlawful for any person to obstruct the passage of persons going to or from the cars of any railroad at any station or depot within the limits of the city by standing in the way or crowding upon, or in any other manner obstructing the free passage along or upon the platforms and ways leading to and from the depots to the trains.
(Code 1967, § 34-15; Code 1985, § 31-8)

Sec. 12-80-9. Climbing upon or between cars or engines.

It is unlawful for any person, except an employee of the railroad, to be found jumping upon, or attempting to jump upon, climbing upon, or attempting to climb upon or between the cars or engines of any railroad passing through any part of the city.
(Code 1967, § 34-16; Code 1985, § 31-9)

Sec. 12-80-10. Locomotive headlight.

All railway locomotives operated within the city between the hours of sunset and sunrise shall carry upon the forward portion thereof a properly constructed and lighted headlight, which shall be clearly distinguishable and visible at a distance of 300 feet or more from such locomotive.
(Code 1967, § 34-17; Code 1985, § 31-10)

Sec. 12-80-11. Speed limit.

It shall be a misdemeanor for any person to run any engine or train of cars on any railroad in the city at a greater speed than 20 miles an hour, except over track which has at least a Federal Railroad Administration Classification No. 4, where the speed may not exceed 30 miles an hour.
(Code 1967, § 34-20; Code 1985, § 31-11; Ord. No. 1426, § 7, 9-5-1972)

Sec. 12-80-12. Sounding of engine whistle.

It is unlawful for any person to sound or blow the whistle or other similar device of any engine operated on any railroad in the city except when the same is sounded as required by the laws of the state.
(Code 1967, § 34-21; Code 1985, § 31-12)

Sec. 12-80-13. Parking of railway cars at crossings.

It is unlawful for any person to park railway cars within the city limits of the city nearer than 150 feet to any grade crossing of any of the streets of the city occupied with the tracks of any railway company in the

city. This section shall not be so construed as to prohibit the parking of cars for the purpose of loading or unloading on a platform attached to a building.
(Code 1967, § 34-22; Code 1985, § 31-13)

ARTICLE 2. CROSSINGS

Sec. 12-80-14. Generally.

A. The owner or operator of every railroad, the tracks of which cross a street of the city at a grade, shall be and is required to lay and maintain a suitable crossing at the street so crossed, such crossing to be paved with a standard crossing in a manner and of such materials as shall be approved by the city engineer, for the full width of the street from curbline to curbline and extending between rails and two feet on either side of the rails, the crossing material to be laid flush with the surface of the track rails so as to at all times afford a good and safe crossing; provided that, where any existing crossing in the opinion of the city engineer is of suitable material and safe and satisfactory, such owner or operator of the railroad track shall be permitted to maintain such crossing until the same shall require extensive repairs or rebuilding, when the same shall be rebuilt as herein provided; and, provided, further, that, the city engineer shall have the power to designate the crossings of streets where little traffic exists, and when so designated, it shall not be necessary to install such standard crossings, but the same shall be paved with other material and in a manner satisfactory to the city engineer. Wherever more than one track crosses a street and the nearest rails of the tracks are less than 15 feet apart, the paving required shall extend between the tracks as well as between the rails and two feet outside of the outermost rails.

B. The owner or operator of every railroad shall also lay and provide sidewalks of asphalt or concrete, which shall be approved by the city engineer, to be laid between the curblines and street right-of-way lines for the full width of the right-of-way; and provided further, that the city engineer shall have power to designate crossings with little pedestrian traffic, and when so designated, it shall not be necessary to lay such sidewalks.
(Code 1967, § 34-7; Code 1985, § 31-26; Ord. No. 1426, § 3, 9-5-1972; Ord. No. 3588, § 1, 9-2-1986)

Sec. 12-80-15. Signal lights.

At each place where railroad tracks cross public streets or highways in the city, except as otherwise provided in this chapter, there shall be provided and maintained at all times, by one or more of such railroads whose tracks intersect such streets and whose locomotives, cars or trains cross same, approved automatic or manually controlled signal lights for the purpose of giving warning and notice of the approach of locomotives, cars, trains or parts of trains to each such street crossing. Such automatic or manually controlled signal lights shall be erected at the right side of the street or railway near the first railroad track to be crossed and so as to be plainly visible to pedestrians, drivers or operators of vehicles, streetcars, motorcars and other traffic using such streets, and such automatic or manually controlled signals shall display and burn two red lights in a horizontal line, mounted below a standard railroad crossing sign, flashing alternately at all times when any moving locomotive, rail train or car is within 300 feet of such street crossing. At crossings of streets with traffic in both directions, back-to-back pairs of lights shall be placed on each side of the tracks. On one-way streets and divided streets, signals shall be placed on the approach side of the crossing. Such automatic signals shall be controlled so as to be actuated a minimum of 20 seconds before the train reaches the crossing. Controls shall be set in each instance for the actual operating speed of the track to be protected, but in no event shall the speed of the train exceed 30 miles per hour. Additional regulations of the state manual on uniform traffic control devices shall be observed as though written herein. Applications with all necessary data shall be made to the city engineer, and he or she shall approve the automatic or manually controlled signal lights to be installed as herein required before such installations are made. The city engineer shall prepare and have on hand for public inspection general specifications for the installation and operation of such signal lights according to the provisions of this chapter.
(Code 1967, § 34-8; Code 1985, § 31-27; Ord. No. 1426, § 4, 9-5-1972; Ord. No. 3588, § 2, 9-2-1986)

Sec. 12-80-16. Human flagmen, gates or crossarm signs.

A. The city engineer, with the advise and concurrence of the director of fire and/or police, shall prepare and keep on file in his or her office for public inspection a list of railroad crossings on all main highways and boulevards where, by reason of the amount of traffic or number of trains, or geographical conditions, the public safety requires human flagmen, manually or automati-

cally controlled gates or large signs with crossarms, in lieu of signal lights as provided by section 12-80-15. Such list may be modified, from time to time, in like manner, as changes in conditions occur. At all crossings where manually or automatically controlled gates are specified by the city engineer, the railroads using such crossings shall provide and maintain such gates at their own expense. Gates shall be controlled so as to be activated a minimum of 20 seconds before the train reaches the crossing. Controls shall be set in each instance for the actual operating speed of the track to be protected, but in no event shall the speed of the train exceed 30 miles per hour. Additional regulations of state manual on uniform traffic control devices shall be observed as though written herein. At all crossings where human flagmen are designated to be placed, the railroads using such crossings shall provide human flagmen, who shall be on duty constantly at each such street crossing when trains, cars or locomotives are crossing or preparing to cross such streets and highways, and the flagmen at each such crossing shall display a sign bearing the word "STOP," or wave a red flag in the daytime, and wave a red light at night in such manner as to give timely and sufficient warning of the approach of each and every locomotive or train of cars to such street crossing.

B. At all crossings where signs with crossarms are designated by the city engineer, the railroads using such crossing shall erect and maintain at all times at their own expense on the right-hand side of the highway approaching each such railroad crossing and so situated as to be plainly visible, a large sign carrying cross-arms inscribed with the words "Railroad Crossing" painted on such crossarms in large letters.

C. Whenever any railroad or interested persons using such crossing shall feel aggrieved at the inclusion or exclusion of any crossing in the list of crossings requiring human flagmen or manually controlled or automatically controlled gates, he or she shall have the right to file a petition with the city engineer, stating the reason for his or her objection. The petition shall be acted on promptly by the city engineer, and the petitioner shall have the right, within five days after the city engineer has acted, to appeal to the mayor.
(Code 1967, § 34-9; Code 1985, § 31-28; Ord. No. 1426, § 5, 9-5-1972; Ord. No. 3588, § 3, 9-2-1986)

Annotation—The above section is applicable to a crossing designated to have human flagmen, regardless of whether the railroad had actual notice of the designation. See *Louisville & N.R. Co.* v. *Tucker,* 211 F.2d 325 (U.S. Circuit Court of Appeals, 6th circuit, 1954).

Sec. 12-80-17. Overhead street or arc lights.

A. Wherever designated by the city engineer, railroad companies whose tracks cross or intersect certain streets in the city shall provide and maintain overhead street or arc lights and keep the same burning nightly for the purpose of lighting the railroad tracks and rights-of-way where the same cross such streets. Whenever any railroad company shall fail to provide such overhead light at any designated street, the city shall have the right to install and maintain such lights for the safety and welfare of the public, and charge the cost of installation and maintenance thereof to the railroad company required by this section to install and maintain such lights.

B. The city engineer shall prepare and keep on file in his or her office for public inspection a list of those railroad crossings where such overhead lights are designated for the public safety, and whenever any railroad company or any person shall feel aggrieved at the inclusion or exclusion of any crossing in the list of those requiring overhead lights, such railroad company or person shall have the right to file a petition with the city engineer stating the reason for objecting to the inclusion or exclusion of such crossing in such list. Such petition shall be acted on promptly by the city engineer, and the petitioner shall have the right, within five days after the city engineer has acted on such petition, to appeal to the mayor.

C. The list of railroad crossings requiring overhead lights may be modified, from time to time, as changes in conditions occur and as the public safety requires.
(Code 1967, § 34-10; Code 1985, § 31-29; Ord. No. 1426, § 6, 9-5-1972; Ord. No. 3588, § 4, 9-2-1986)

Sec. 12-80-18. Safety gates to be counterbalanced.

All railroad safety gates in the city shall be so counterbalanced, or otherwise arranged, that they cannot fall to a horizontal position by their own weight. The use by any railroad company of safety gates not constructed in accordance with this section shall be deemed a misdemeanor.
(Code 1967, § 34-11; Code 1985, § 31-30)

Sec. 12-80-19. Inspection by city engineer.

The city engineer shall inspect all railroad crossings and see that the railroads of the city comply with the ordinances of the city and all contracts between the city and such railroads with respect to street crossings, and in case such crossings are not maintained as provided by ordinance or contract, he or she shall have the power to order the railroad company so in default to do the necessary work, and is vested with the power to enforce such order by instituting proper legal proceedings through the city attorney.
(Code 1967, § 34-12; Code 1985, § 31-31)

CHAPTER 12-84. PARK, PARKWAY REGULATIONS, AND NAMES*

Sections:

Sec. 12-84-1. Applicability.
Sec. 12-84-2. Injuring or picking flowers and plants.
Sec. 12-84-3. Sales and exhibitions.
Sec. 12-84-4. Making fires.
Sec. 12-84-5. Billposting—Erecting stands or platforms—Meetings.
Sec. 12-84-6. Permit required for poles and wires.
Sec. 12-84-7. Indecency or breaches of the peace.
Sec. 12-84-8. Animals at large prohibited.
Sec. 12-84-9. Bathing, fishing and interfering with birds prohibited.
Sec. 12-84-10. Throwing missiles, begging and gaming prohibited.
Sec. 12-84-11. Applicable park hours.
Sec. 12-84-12. Traffic regulations generally.
Sec. 12-84-13. Parking or stopping vehicles in certain places prohibited.
Sec. 12-84-14. Standing vehicles for hire.
Sec. 12-84-15. Use of drives and bridle paths generally.
Sec. 12-84-16. Position of horses ridden on roads.
Sec. 12-84-17. General regulations to cyclists.
Sec. 12-84-18. Riding more than two abreast.
Sec. 12-84-19. Instruction in operating automobiles, and other vehicles and trick riding prohibited.
Sec. 12-84-20. Drinking or sale of beverages with alcoholic content within public park areas and boundaries.
Sec. 12-84-21. Use of helmets required in skate parks.
Sec. 12-84-22. Method of naming and renaming.

***Editor's note—**Ord. No. 5759, § 7, adopted September 1, 2020, retitled ch. 12-84 from 'Park and Parkway Regulations' to 'Park, Parkway Regulations, and Names.

State law reference—Municipal recreation systems, T.C.A. § 11-24-101 et seq.

Sec. 12-84-1. Applicability.

The provisions of this chapter shall apply in the use of parks and parkways belonging to the city.
(Code 1985, § 23-66; Ord. No. 4763, 4-25-2000)

Sec. 12-84-2. Injuring or picking flowers and plants.

It is unlawful for any person to cut, break or in any way injure or deface any tree, plant or grass or pick any flowers, leaves or nuts, wild or cultivated, in any park.
(Code 1985, § 23-67; Ord. No. 4763, 4-25-2000)

Sec. 12-84-3. Sales and exhibitions.

It is unlawful for any person to expose any article for sale or exhibition in any park or parkway unless previously licensed so to do by the division of park services.
(Code 1985, § 23-68; Ord. No. 4763, 4-25-2000)

Sec. 12-84-4. Making fires.

It is unlawful for any person to make a fire within any of the parks, parkways, squares or places without special permission from the division of park services.
(Code 1985, § 23-69; Ord. No. 4763, 4-25-2000)

Sec. 12-84-5. Billposting—Erecting stands or platforms—Meetings.

It is unlawful for any person to post any bill, placard, notice or other paper upon any structure, erect any structure, stand or platform, or hold any religious or other meetings, or make any oration, or harangue or conduct any ceremony in any park or parkway without previous permission therefor from the division of park services.
(Code 1985, § 23-70; Ord. No. 4763, 4-25-2000)

Sec. 12-84-6. Permit required for poles and wires.

It is unlawful for any person to erect or have erected any telephone, telegraph, electric or other poles and wires in any of the parks or parkways in the city, except in accordance with a written permit from the division of park services.
(Code 1985, § 23-71; Ord. No. 4763, 4-25-2000)

Sec. 12-84-7. Indecency or breaches of the peace.

It is unlawful for any person to use threatening, abusive or insulting language, or commit any obscene or indecent act thereon, or any act tending to a breach of the public peace in any park or parkway.
(Code 1985, § 23-72; Ord. No. 4763, 4-25-2000)

Sec. 12-84-8. Animals at large prohibited.

It is unlawful for any person to allow to go at large any horse or other animal within any park or parkway, except that dogs may be allowed therein when led by a chain or proper leash not exceeding six feet in length.
(Code 1985, § 23-73; Ord. No. 4763, 4-25-2000)

Sec. 12-84-9. Bathing, fishing and interfering with birds prohibited.

It is unlawful for any person to bathe or fish in any of the waters or fountains, or cast any substance therein, or disturb or interfere in any way with the fish, birds or animals within any public park, parkway, square or place, except that the division of park services may authorize fishing in one or more of the lakes under its jurisdiction and adopt rules and regulations in respect thereto, and post appropriate signs to give the public notice thereof.
(Code 1985, § 23-74; Ord. No. 4763, 4-25-2000)

Sec. 12-84-10. Throwing missiles, begging and gaming prohibited.

It is unlawful for any person to throw stones or other missiles, or beg or publicly solicit subscriptions or contributions, or tell fortunes, or play games of chance, or climb upon any wall, fence, shelter, seat, statue or other erection in any park or parkway.
(Code 1985, § 23-75; Ord. No. 4763, 4-25-2000)

Sec. 12-84-11. Applicable park hours.

A. It is unlawful for any person to remain in any park between the hours of 8:00 p.m. and 6:00 a.m. March 15 through October 31, and 6:00 p.m. and 6:00 a.m. November 1 through March 14, except on special occasions specifically authorized by the city council.

B. Parks services may, by resolution approved by the city council, set hours varying from regular park hours for an individual park. Parks operating outside of regular park hours shall have a sign clearly posted at the established park entrance(s) indicating special hours.

C. This section shall not apply to downtown area parks maintained and managed by the Riverfront Development Corporation, or any museum, facility or institution maintained on park grounds.
(Code 1985, § 23-76; Ord. No. 4763, 4-25-2000; Ord. No. 5222, 11-5-2007)

Sec. 12-84-12. Traffic regulations generally.

The provisions of title 11 regulating traffic in the use of streets shall apply to the use of all drives in parks and parkways controlled by the city, whether within or without the corporate limits; provided, that if any provision of this chapter is inconsistent with the provisions of Title 11, the provisions of this chapter shall prevail and apply in parks and on parkways.
(Code 1985, § 23-77; Ord. No. 4763, 4-25-2000)

Sec. 12-84-13. Parking or stopping vehicles in certain places prohibited.

It is unlawful for any person to operate, stop or park any vehicle in the public parks and golf courses of the city except on the roadways therein and on other areas designated by the division of park services for public use provided such prohibition does not apply to golf carts and vehicles authorized by the division of park services.
(Code 1985, § 23-78; Ord. No. 4763, 4-25-2000)

Sec. 12-84-14. Standing vehicles for hire.

It is unlawful for any person to stand any vehicle for hire in any park or parkway without a permit to do so from the division of park services, and then only at such place as shall be indicated and allowed by the permit.
(Code 1985, § 23-79; Ord. No. 4763, 4-25-2000)

Sec. 12-84-15. Use of drives and bridle paths generally.

A. It is unlawful for any person to use the drives and bridle paths in public parks and parkways except as provided in section 11-16-17.

B. Animals to be used on either drives or bridle paths in public parks shall be well-broken, and constantly held in such control that they may be easily and quickly turned or stopped. They shall not be allowed to move at a rate of speed on the drives or bridle paths of more than eight miles an hour, and when it shall be deemed necessary to safety, good order, or the general convenience

that the speed of an animal or vehicle should be checked, or that it should be stopped, or its course altered, and the officer on duty shall so direct, by gesture or otherwise, such direction shall be obeyed.
(Code 1985, § 23-80; Ord. No. 4763, 4-25-2000)

Sec. 12-84-16. Position of horses ridden on roads.

All horsemen going at a walk or slow trot must keep near the curbstone or gutter on the right-hand side of the road while riding in parks or parkways. Those going more rapidly must keep nearer the middle of the road.
(Code 1985, § 23-81; Ord. No. 4763, 4-25-2000)

Sec. 12-84-17. General regulations to cyclists.

Cyclists must not coast in the parks, nor on the parkways or bicycle paths, and must keep their feet on the pedals and their hands on the handlebars and must not mount nor dismount, except on the extreme right of the roads or bicycle paths.
(Code 1985, § 23-82; Ord. No. 4763, 4-25-2000)

Sec. 12-84-18. Riding more than two abreast.

It is unlawful for persons riding horses or bicycles, or operating motorcycles, motor scooters or motor bikes, to ride more than two abreast within any park or parkway in the city.
(Code 1985, § 23-83; Ord. No. 4763, 4-25-2000)

Sec. 12-84-19. Instruction in operating automobiles, and other vehicles and trick riding prohibited.

Instruction in operating automobiles, bicycles, tricycles, motorcycles, velocipedes or other such vehicles of propulsion, and all trick or fancy riding on the same, is prohibited in the parks and parkways at all times.
(Code 1985, § 23-84; Ord. No. 4763, 4-25-2000)

Sec. 12-84-20. Drinking or sale of beverages with alcoholic content within public park areas and boundaries.

It is unlawful for any person or persons to sell, consume or possess any beverage with alcoholic content in any of the public parks or properties under the jurisdiction of the division of park services, except in such enclosed building or other structures and/or areas as are specifically designated and authorized by the division of park services, provided that the city council may by resolution exempt only persons participating in certain organized civic or charitable activities from the foregoing provisions.
(Code 1985, § 23-85; Ord. No. 4763, 4-25-2000)

Sec. 12-84-21. Use of helmets required in skate parks.

A. It is unlawful for any person to utilize the skate park(s) with skateboards, bicycles, or inline skates without the use of a helmet as a protective measure.

B. Violation of this section shall result in a fine of $50.00, unless otherwise waived at the discretion of the court and dismissed as a warning for a first offender.
(Ord. No. 5423, § 1, 12-6-2011)

Sec. 12-84-22. Method of naming and renaming.

When the city shall acquire any public parks and other public recreational areas, for use by the general public, by purchase, condemnation, or dedication, it shall be the duty of the Memphis City Council to select a suitable name for such new public park and other public recreational area. Furthermore, the Memphis City Council may change the official name adopted for existing City of Memphis parks and other recreational areas, by ordinance duly passed. Any conflicts with the Memphis and Shelby County Unified Development Code shall be made in favor of this section.
(Ord. No. 5759, § 8, 9-1-2020)

CHAPTER 12-88. MUD ISLAND RIVER PARK

Sections:

Sec. 12-88-1. Control and supervision.
Sec. 12-88-2. Reports on costs and revenues.

Sec. 12-88-1. Control and supervision.

An existing and established recreational area known as Mud Island River Park, located on Mud Island, shall hereafter be under the control and supervision of the mayor of Memphis.
(Code 1985, § 23-21; Ord. No. 4763, 4-25-2000)

Sec. 12-88-2. Reports on costs and revenues.

It shall be the responsibility of the mayor of Memphis and administration to maintain separate up-to-date records reflecting the costs of operating and maintaining Mud Island River Park, and all aspects thereof, and revenue

from the park, or any activities thereon. The mayor shall submit, on an annual basis, a report to the city council on the operating costs of, and revenue from, the park.
(Code 1985, § 23-22; Ord. No. 4763, 4-25-2000)

CHAPTER 12-92. WHARVES AND LANDINGS*

Sections:

Sec. 12-92-1. Bond may be required for wharfboats moored at public landings.
Sec. 12-92-2. Obstructing wharves and landings.
Sec. 12-92-3. Removal of leaking or sinking vessels from harbor—Generally.
Sec. 12-92-4. Removal of leaking or sinking vessels from harbor—Procedure in case of failure of master or person in charge to remove.

Sec. 12-92-1. Bond may be required for wharfboats moored at public landings.

The owners or operators of all wharfboats moored in front of any public landing on any river front may be required to give a bond in the sum of $5,000.00 to the city, conditioned that if any such wharfboat shall sink, be burnt or in any other manner become an obstruction to the ingress or egress of other watercraft, the owners or agents in charge of the same shall remove the wreck or obstruction at once, and at the owner's risk and expense.
(Code 1967, § 35-1; Code 1985, § 32-1)

Sec. 12-92-2. Obstructing wharves and landings.

No person, by himself or herself or agent, shall at any time, deposit, or cause to be deposited, on any wharf, landing or any of the contiguous public grounds or passageways leading to the river, any nuisance, incumbrance, obstacle or hindrance to the free and uninterrupted passage or transaction of business at such wharf or landing, except such articles as are intended for shipment or immediate storage in the city. Nor shall any person scatter hay, straw or any other article or substance on the levee, or make fires thereon, without permission of the port commission. All skids and other things used for the purpose of storing freight shall be placed and piled in such position and place as the agents of the commission may direct.
(Code 1967, § 35-2; Code 1985, § 32-2)

***Charter references—**Memphis and Shelby County Port Commission, §§ 627—654; Memphis River Front Harbor Commission, §§ 654.1—654.9.

Sec. 12-92-3. Removal of leaking or sinking vessels from harbor—Generally.

The agents of the port commission are vested with full power and authority to direct and compel the owner, master or agent or other person in charge of each and every boat or vessel, of whatsoever character or kind, lying and being within the harbor limits, or port of the city, that may be found, considered and adjudged to be in a leaking or sinking condition, to have the same forthwith removed beyond the limits of the harbor, or to such point or place within the limits of the city as they may deem best. It shall be the duty of such agents to give to the owner, master, agent or person in charge of such leaking or sinking boat or vessel immediate notice thereof, if found within or about the city, as well as to notify him or her of their determination in relation thereto. Should such master or person in charge fail, neglect or refuse to remove, or have the same promptly removed, he or she shall be guilty of a misdemeanor.
(Code 1967, § 35-3; Code 1985, § 32-3)

Sec. 12-92-4. Removal of leaking or sinking vessels from harbor—Procedure in case of failure of master or person in charge to remove.

Should the owner, master, agent or person in charge of any leaking or sinking boat, vessel or watercraft, as referred to in section 12-92-3, after having been duly notified of the condition thereof by an agent of the port commission, fail, neglect or refuse to remove the same as required, it shall be the duty of such agent to have such boat, vessel or watercraft removed, at the earliest possible period, at the expense of the owner, master, agent or person in charge of the same, and he or she shall retain the possession thereof until the entire cost and expense of such removal shall be fully paid and satisfied. In case such boat, vessel or watercraft should sink within the limits of the harbor before removal, the owner, master, agent or person in charge thereof shall be, and he or she is required, to remove the same and every part or parcel thereof, beyond the limits of the harbor, at his or her own proper cost and expense. In case of failure, neglect or refusal on the part of such owner, master, agent or person in charge to make the removal, as required by this section, of any and all such wrecks within the time specified, it shall be the duty of such agent, under the direction of the port commission, at the cost of the owner, master, agent or person in charge, to have the same removed beyond the precincts

of the city harbor, in the cheapest and most practical manner, keeping an accurate account of the outlay, so as to have the same charged up to the proper party on the books of the city. In case of such person's refusal to pay the same, on proper application, the amount so expended shall be recoverable from the owner, agent or charterer of such boat. The boat with all her machinery and fixtures, shall be liable for such charges, and a lien for such costs and charges is fixed and retained thereon. (Code 1967, § 35-4; Code 1985, § 32-4)

CHAPTER 12-96. MOTORBOATS*

Sections:

Sec. 12-96-1. Short title.
Sec. 12-96-2. Purpose.
Sec. 12-96-3. Definitions.
Sec. 12-96-4. Violation of federal laws or regulations.
Sec. 12-96-5. Reckless or negligent operation.
Sec. 12-96-6. Duty of operator in case of accident.
Sec. 12-96-7. Muffling of exhaust—Use of cut-outs.
Sec. 12-96-8. Motorboat traffic citation ticket—Arrest warrants.
Sec. 12-96-9. Motorboat violation forfeitures.

***State law reference—**Boating regulations, T.C.A. § 69-1-101 et seq.

Sec. 12-96-1. Short title.

This chapter shall be known as and may be cited as the "Memphis Motorboat Ordinance."
(Code 1967, § 35-41; Code 1985, § 32-46)

Sec. 12-96-2. Purpose.

The purpose of this chapter is to provide for and to promote the safety of persons and property in connection with the use, operation and equipment of motorboats, and to provide regulations relating to the use thereof, which are consistent with and in conformity with the laws of the United States regulating the use of motorboats upon navigable waters.
(Code 1967, § 35-42; Code 1985, § 32-47)

Sec. 12-96-3. Definitions.

The following terms and definitions shall be applied in the interpretation and enforcement of this chapter:

Federal Boating Program of 1958 means and includes the Federal Act of 1958 relating to the numbering of vessels and motorboats as contained in 46 USC 527, and all amendments thereto, all of which are incorporated herein by express reference, and all amendments which may hereafter be adopted by the United States Congress.

Motorboat means and includes every vessel propelled by machinery and not more than 65 feet in length, except tugboats and towboats propelled by steam or diesel power. The length shall be measured from end to end over the deck, excluding sheer.

Motorboat Act of 1940 means and includes the Motorboat Act of 1940 as adopted by the United States, and as appears in 46 USC 526 through and including 526u, and all amendments thereof, all of which are incorporated herein by express reference, and all amendments which may hereafter be adopted by the United States Congress.

Rules of the road means and includes the navigation rules of the United States relating to the navigation of vessels on the Mississippi River and its tributaries, as contained in 33 USC 301 through and including 356, and all amendments thereto, all of which are incorporated herein by express reference, and shall mean and include any amendments to such navigation rules hereafter made by the United States Congress. Such term shall also mean and include the regulations pursuant to such United States Code adopted by the United States Coast Guard, Department of the Treasury, styled "Pilot Rules for Western Rivers," and being sections 95.01 through 95.66 of part 95, subchapter F of chapter 1, under title 33, "Navigation and Navigable Waters," and all amendments thereto, all of which are incorporated herein by express reference, and any amendments of such regulations hereafter adopted by the United States Coast Guard.
(Code 1967, § 35-43; Code 1985, § 32-48)

Sec. 12-96-4. Violation of federal laws or regulations.

No person shall navigate, operate or use a motorboat in violation of:

A. The rules of the road;

B. The Motorboat Act of 1940; or

C. The Federal Boating Program of 1958, all of which are adopted as a part hereof by section 12-96-3.

(Code 1967, § 35-44; Code 1985, § 32-49)

Sec. 12-96-5. Reckless or negligent operation.

No person shall operate, navigate or use any motorboat in a reckless or negligent manner so as to endanger the life, limb or property of any person. Without in any way limiting the generality of the foregoing, by express enumeration of the following offenses, each of the following offenses shall constitute operation in a reckless or negligent manner, and shall be presumed to endanger life, limb or property:

A. Loading a motorboat with passengers or cargo beyond its safe carrying capacity, taking into consideration weather and all other existing conditions;

B. Operating a motorboat, or manipulating any water skis, surfboard, aquaplane, or other object towed by the motorboat, in such manner as to cause risk of collision, near misses with other vessels, or in such a reckless or negligent manner as to endanger the life, limb or property of any person;

C. Operating any motorboat, or manipulating any water skis, surfboard, aquaplane, or other object towed by the motorboat, while intoxicated or under the influence of any narcotic drug, barbiturate or marijuana;

D. Operating the motorboat while the operator or other person is sitting on the gunwale or on the

bow of the motorboat, providing that this restriction against sitting on the bow of a motorboat shall not apply to a motorboat which is equipped with protective bow railings, or lifelines, while the motorboat is moving at idle speed or a low speed, which does not approach a planing speed;

E. Operating a motorboat at speeds that create a damaging wake in designated "no wake" or "reduced speed" areas around docks, piers, etc.;

F. Operating a motorboat, towing a person or persons on water skis, surfboard, aquaplane, or similar device, or riding upon such water skis, surfboard, aquaplane or similar device, at any time between the hours from one hour after sunset to one hour before sunrise; providing that this prohibition shall not be applicable to exhibitions approved by the United States Coast Guard where adequate safeguards have been taken;

G. Operating, navigating or manipulating any motorboat, tow rope, water skis, surfboard, aquaplane, or rider thereon in such manner as to cause the vessel, towrope, water skis, surfboard, aquaplane, or other device, or any person riding thereon, to collide with or strike or throw water upon any other person, boat or object;

H. Operating a motorboat while pulling a person or persons on water skis, surfboard, aquaplane or other similar device, or riding upon such water skis, surfboard, aquaplane or other similar device, without two or more persons in the motorboat so that one will be available to keep a lookout ahead and the other to observe the person or persons being pulled;

I. Crossing the bow of a tow close aboard, in such manner that if the engine failed, or the skier fell from his or her skis, the tow would not have ample room and opportunity to stop before striking the boat or the skier;

J. Failing to have one United States Coast Guard approved life preserver aboard a motorboat for each person who is aboard the motorboat;

K. Failing to have the required lights and equipment aboard in operating condition, as prescribed by the Motorboat Act of 1940, for the particular time and circumstances under which the motorboat is then operating.

(Code 1967, § 35-45; Code 1985, § 32-50)

Sec. 12-96-6. Duty of operator in case of accident.

In case of collision, accident or other casualty involving a motorboat, it shall be the duty of the operator, insofar as he or she can do so without serious danger to his or her motorboat or persons aboard, to render such assistance as may be practicable and necessary to other persons affected by the collision, accident or other casualty, in order to save them from danger caused by the collision, accident or casualty. He or she shall also give his or her name, address, and identification of his or her motorboat to any persons injured, and to the owner of any property damaged.

(Code 1967, § 35-46; Code 1985, § 32-51)

Sec. 12-96-7. Muffling of exhaust—Use of cut-outs.

The exhaust of every internal combustion engine used on any motorboat shall be effectively muffled by equipment so constructed and used as to muffle the noise of the exhaust in a reasonable manner. The use of cut-outs is prohibited, except for motorboats competing in an organized and United States Coast Guard approved regatta or boat race, and for such motorboats which on trial runs, during a period not to exceed 96 hours immediately preceding such regatta or race, and for such motorboats while competing in official trials for speed records during a period not to exceed 48 hours immediately following such regatta or race.

(Code 1967, § 35-47; Code 1985, § 32-52)

State law reference—Engine mufflers, T.C.A. § 69-9-301 et seq.

Sec. 12-96-8. Motorboat traffic citation ticket—Arrest warrants.

A. An official making an arrest for a violation of this chapter shall be authorized to give a motorboat traffic citation ticket. In the event the form of traffic citation ticket includes information and is sworn to as required under the general laws of the state in respect to a complaint charging the commission of the offense alleged in such motorboat traffic citation ticket to have been committed, then such traffic citation ticket when filed with a court or a branch of a court having jurisdiction, shall be deemed to be a lawful complaint for the purpose of prosecution under this chapter.

B. It is unlawful for any person to violate his or her written promise to appear given to an officer upon the issuance of a motorboat traffic citation ticket regardless of the disposition of the charge for which such motorboat traffic citation ticket was originally issued.

C. In the event any person fails to comply with a motorboat traffic citation ticket given to such person or attached to a motorboat or fails to make appearance pursuant to a summons directing an appearance in the city court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the clerk of the city court shall secure and issue a warrant for his or her arrest.
(Code 1967, § 35-48; Code 1985, § 32-53)

Sec. 12-96-9. Motorboat violation forfeitures.

A. The city's traffic violations bureau is authorized to collect the following schedule of forfeitures:

Section Violated	*Nature of Violation*	*Amount of Forfeitures*
12-96-5(A)	Overloading	$15.00
12-96-5(D)	Riding bow or gunwale	$10.00
12-96-5(E)	Damaging wake	$5.00
12-96-5(F)	Skiing at night	$15.00
12-96-5(G)	Close aboard (boat)	$5.00
	Close aboard (skier)	$5.00
12-96-5(H)	No observer	$5.00
12-96-5(I)	Crossing bow of tow	$15.00
12-96-5(J)	Insufficient preservers	$10.00
12-96-5(K)	Improper or no lights	$25.00

B. Nothing herein shall prohibit a person from requesting that the ticket or citation issued against him or her be transferred to the city court for disposition.

C. In the event of a violation of any motorboat regulation or laws not herein set out, excepting sections 12-96-5(B), reckless operation, and 12-96-5(C), operating under the influence, the traffic violations bureau is authorized to collect as a forfeiture an amount not to exceed $10.00.
(Code 1967, § 35-49; Code 1985, § 32-54; Ord. No. 553, § 1, 10-7-1969)

CHAPTER 12-100. CONVENTION CENTER HOTEL TOURISM DEVELOPMENT ZONE

Sections:

Sec. 12-100-1. Designation as qualified public use facility.
Sec. 12-100-2. Creation of district.
Sec. 12-100-3. District boundaries.
Sec. 12-100-4. Surcharge assessment.
Sec. 12-100-5. Surcharge assessment rate.
Sec. 12-100-6. Mandatory registration, filing of returns, payment of surcharge and licensing.
Sec. 12-100-7. Delinquent payments.
Sec. 12-100-8. Allocation and use of revenues.
Sec. 12-100-9. Remittance of revenues.
Sec. 12-100-10. Termination of surcharge.

Sec. 12-100-1. Designation as qualified public use facility.

The hotel development is hereby designated as a qualified public use facility (collectively, the "Convention Center Hotel QPUF") pursuant to and in accordance with Tenn. Code Ann. title 67, chapter 4, part 30 (as amended from time to time, hereinafter in this chapter called the "Act").
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-2. Creation of district.

There is created the convention center hotel surcharge district (the "district") in accordance with the Act.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-3. District boundaries.

The district created by this chapter shall be comprised of the area located in the city within the following boundaries:

Parcel l (Hotel Site):

Legal Description of Land

Land situated in Shelby County, Tennessee:

Parcel 1

Tract 1

Being a survey of part of the City of Memphis property as recorded in Instrument U2-8944 at the Shelby County Register's Office located in Memphis, Tennessee and being more particularly described as follows:

Beginning at a point on the east line of North Main Street (82.5 ft. right-of-way), said point being 24.98 feet south of the extended south line of Market Avenue (66 ft. right-of-way); thence northwardly

along a curve to the right having a radius of 25.00 feet an arc distance of 39.25 feet (chord N65°34'21"E - 35.34 feet) to a point of tangency on the south line of Market Avenue; thence S69°27'10" along said south line a distance of 274.11 feet to a point of curvature; thence along a curve to the right, having a radius of 25.00 feet an arc distance of 39.22 feet (chord S24°26'09"E - 35.37 feet) to a point of tangency on the west line of Second Avenue (66 ft. right-of-way); thence S20°34'53"W along the west line of Second Avenue a distance of 225.51 feet to a point of curvature; thence along a curve to the right having a radius of 25.00 feet and an are length of 39.26 feet (chord S65°34'09"W -35.35 feet) to a point on the north line of Exchange A venue (106 ft. right-of-way); thence N69°26'36"W along the north line of Exchange Avenue a distance of 249.19 feet to a point; thence N20°35'53"E a distance of 80.00 feet to a point; thence N69°26'36"W a distance of 50.00 feet to a point on the east line of said North Main Street; thence N20°35'53"E along the east line of North Main Street a distance of 170.48 feet to the point of beginning.

Tract 11

Pedestrian crossing easement.

Being a pedestrian crossing across North Main Street (82.5 foot right-of-way), being 77.87 feet south of the south line of Market Avenue (66 foot right-of-way) and being more particularly described as follows:

Commencing at the intersection of the south line of Market Street (66 foot right-of-way) and the east line of north Main Street (82.5 foot right-of-way); thence S20°35'53"W along the east line of North main Street, a distance of 77.87 feet to the Point of Beginning; thence S20°35'53"W and continuing along the east line of North Main Street, a distance of 29.50 feet to a point; thence N68°56'18"W, a distance of 7.52 feet to a point; thence S64°53'15"W, a distance of 14.76 feet to a point; thence N69°15'23"W, a distance of 45.23 feet to a point; thence N25°15'16"W a distance of 14.45 feet to a point; thence N69°57'42"W a distance of 9.08 feet to a point, said point being the west line of North Main Street; thence N20°35'53"E along the west line of North Main Street a distance of 29.85 feet to a point; thence S70°35'14"E a distance of 9.44 feet to a point; thence N65°29'33"E a distance of 35.04 feet to a point; thence S69°37'14"E a distance of 15.52 feet to a point; thence S24°36'03"E a distance of 35.60 feet to a point; thence S69°56'31"E a distance of 7.55 feet to the point of beginning.

The underside and top of the structure occupying the described area is at 13.9' and 35.8' above the finish floor of the hotel at the west entrance.

Parcel 2

Tract 1

Beginning at a point on the east line of north Main Street (82.5' right-of-way), said point being 25.02 feet north of the extended north line of Market Avenue (66' right-of-way); thence N20°35'53"E along the east line of North Main Street a distance of 174.14 feet to point; thence N61°18'21"E a distance of 20.58 feet to a point on the south line of Winchester Avenue (50' right-of-way); thence S89°38'57"E along the south line of Winchester Avenue a distance of 158.85 feet to a point; thence S20°34'56"W a distance of 269.59 feet to a point the north line of said Market Avenue; thence N69°27'10"W along the north line of Market Avenue a distance of 137.51 feet to a point of curvature; thence along a curve to the right having a radius of 25.00 feet and an arc length of 39.29 feet (chord N24°25'39"W - 35.37 feet) to the point of beginning.

Tract II

Beginning at a point on the east line of North Main Street (82.5' R.O.W.), said

point being 24.98 feet south of the south line of Market Avenue (66' R.O.W.); thence along the east line of said North Main Street, N20°35'53"E a distance of 116.00 feet to a point; thence leaving the east line of said North Main Street and along a curve to the left, having a radius of 25.00 feet and an arc length of 39.29 feet (chord = S24°25'39"E - 35.37 feet) to a point, said point being on the north line of said Market Avenue; thence along the north line of said Market Avenue, S69°27'10"E a distance of 274.17 feet to a point; thence along a curve to the left, having a radius of 25.00 feet and an arc length of 39.22 feet (Chord - N65°36'11"E - 35.32 feet) to a point, said point being on the west line of Second Avenue (66' R.O.W.); thence along the west line of said Second Avenue, S20°37'38"W a distance of 115.97 feet to a point; thence leaving said Second Avenue and along a curve to the left, having a radius of 25.00 feet and an arc length of 39.28 feet (chord = N24°26'09"W - 35.37 feet) to a point, said point being on the south line of said Market Avenue; thence along the south line of said Market Avenue, N69°27'10"W a distance of 274.11 feet to a point; thence along a curve to the left, having a radius of 25.00 feet and an arc length of 39.25 feet (chord = S65°34'21"W a distance of 35.34 feet to the point of beginning.

Municipal Address	*Tax Parcel ID*
250 North Main Street, Memphis, Tennessee	001030 00001L
0 Market Avenue, Memphis, Tennessee	001029 00004
0 Market Avenue, Memphis, Tennessee	001029 00005
0 Market Avenue, Memphis, Tennessee	001030 00002
0 Market Avenue, Memphis, Tennessee	001030 00003
Market Avenue, Memphis, Tennessee	001030 00001Z

(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-4. Surcharge assessment.

The making of sales (as such term is defined in the Act) by engaging in any business (as such term is defined in the Act), except for those businesses exempt under Tenn. Code Ann. title 67, chapter 4, part 712, in the district is declared to be a privilege. All such sales shall be subject to the surcharge assessment provided in this chapter and the city hereby levies such surcharge on all sales.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-5. Surcharge assessment rate.

The surcharge levied by this section shall be equal to five percent of the sales price (as such term is defined in the Act).
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-6. Mandatory registration, filing of returns, payment of surcharge and licensing.

All persons carrying on business (as such term is defined by the Act) in the district, and all persons who may hereafter carry on business in the district, shall register with the city treasurer for the purpose of assessment and collection of the surcharge. All persons so registered shall file a return detailing Sales for the prior month and surcharge collected on account of such Sales on or before the 20th day of each calendar month and shall remit all surcharge collected during such month, together with any delinquent payments of surcharge, with such return. Each person who files a return and remits the appropriate amount of surcharge shall be granted a license which such person shall display within their place of business. The city treasurer is hereby authorized and directed to develop the forms for registration and filing monthly returns, as well as rules and regulations regarding the filing of the same.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-7. Delinquent payments.

Any nonpayment or delinquent payment of any surcharge shall be subject to the rights and remedies described in chapter 5-24 of the Memphis City Code.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-8. Allocation and use of revenues.

All revenues received by the city as a result of the surcharge, except for the reasonable expenses of the city

treasurer incurred as a result of its administrative duties under this chapter which shall not exceed one percent of such revenues, shall be designated for, and allocated to the payment of the cost of renovation and potential expansion of the Convention Center Hotel QPUF, including, without limitation, all debt issued or incurred in the acquisition, construction, leasing, renovation and equipping of the Convention Center Hotel QPUF, including principal, interest and other fees and charges.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-9. Remittance of revenues.

On or before the 15th day of each month, the city treasurer shall remit all revenues received during the prior month, less the aforedescribed administrative fee, to CCRFC or its assignee. CCRFC, or its assignee, is hereby directed to deposit such revenues in accordance with the Act and any agreements governing the payment or reimbursement of costs incurred, or debt issued or incurred by CCRFC to finance or refinance costs, in connection with renovation and potential expansion of the Convention Center Hotel QPUF.
(Ord. No. 5841, § 1, 12-20-2022)

Sec. 12-100-10. Termination of surcharge.

The surcharge shall continue until terminated as provided in the Act.

1. All actions heretofore undertaken by the mayor or his designee and other officials, employees, attorneys and agents of the city in furtherance of the intent of this resolution, and of the documents authorized by this resolution, are hereby ratified, confirmed and approved.
2. The mayor or his designee and other appropriate officials of the city are hereby authorized to enter into such agreements, and they and other appropriate employees of the city are hereby authorized to execute such certificates or other documents and take such other actions, as may be necessary or appropriate to carry out the intent of this chapter.
3. This chapter shall take effect from and after its adoption, the welfare of the City of Memphis requiring it.

(Ord. No. 5841, § 1, 12-20-2022)

Title 13

PUBLIC SERVICES*

Chapters:

13-4.	In General and Definitions
13-8.	Use of Public Sewers
13-12.	Private Sewage Disposal
13-16.	Building Sewers, Connections, Sewer Extensions and Development Fees
13-20.	Reserved
13-24.	Pretreatment
13-26.	Food Establishment Wastewater
13-28.	Sewer Fees and Charges
13-32.	Powers and Authority of Inspectors
13-36.	Review and Enforcement
13-40.	Stormwater Management and Pollution Control
13-41.	Stormwater Enterprise Fund

***State law reference—**Sewers and waterworks, T.C.A. § 7-35-101 et seq.

CHAPTER 13-4. IN GENERAL AND DEFINITIONS*

Sections:

Sec. 13-4-1. Definitions.

Sec. 13-4-1. Definitions.

Terms for which definitions are not specifically herein provided shall be interpreted consistent with the intent and substance of this chapter and as otherwise provided by state regulation at 0400-40-14-.03 or EPA regulation at 40 C.F.R. § 403.3. Unless the context specifically indicates otherwise, the meaning of terms used in this chapter shall be as follows:

Act or *the Act* means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, and found in 33 U.S.C. § 1251 et seq.

Action level means a goal set forth in a permit or other document. In order for a requirement in a permit or other document to be deemed an action level it must specifically be designated as an "action level" in the permit or document, as applicable. An action level may be established as a numerical or other limitation. While an exceedance of an action level is not a violation, it can trigger or otherwise lead to additional requirements being imposed upon the discharger, including, but not limited to, user study of the cause of the action level exceedance and/or the imposition of enforceable discharge limitations.

Additional treatment charge means the portion of the service charge, which is levied on those users whose wastes are greater in strength than the concentration values established as representative of normal sewage or wastewater.

Alkalinity means the mass of a 100 percent sulfuric acid required to reduce the pH of a given volume of wastewater to a pH of 7.0. The value is expressed as pounds of sulfuric acid per day.

Authorized representative of the user means:

(1) A responsible corporate officer if the user is a Corporation. A responsible corporate officer means: (i) a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or (ii) the manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility, including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual and general discharge permit requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) A general partner or proprietor if the user is a partnership or sole proprietorship, respectively.

(3) A duly authorized representative of the individual designated in subsection (1) or (2) if: (i) The authorization is made in writing by the individual described in subsection (1) or (2); (ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of the well, well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and (iii) the written authorization is submitted to the control authority.

***Cross references—**Memphis Light, Gas and Water division, ch. 2-20; water and/or water closets and equipment requirements for barbershops, § 6-8-3; required toilet facilities in day care centers, § 9-28-7; garbage, trash, and refuse, Ch. 9-56; health and sanitation, Ch. 9-4, Ch. 9-100; toilet facilities required in coin-operated launderettes, § 6-16-13; sewage disposal in food establishments, § 13-24-53; required toilet facilities at public swimming pools, § 9-92-9; planning, tit. 15; required toilets and urinals in undertaking establishments, § 6-84-6; sewage disposal requirements for trailer courts, § 14-20-1 et seq.; rivers and harbors, Ch. 32; streets and sidewalks, Ch. 12-24; toilets, urinals, etc., required in tattoo shops, ch. 6-76; building code, Ch. 14; plumbing, Ch. 14-14.

State law references—Power to acquire, construct, and maintain sewage system and to charge for service, T.C.A. § 7-35-401 et seq.; authority to require connections to sewer system, T.C.A. § 7-35-201(I); Power to impose administrative penalties, T.C.A. § 69-3-123 et seq.

(4) If an authorization under subsection (3) is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of subsection (3) must be submitted to the control authority prior to, or together with, any reports to be signed by an Authorized Representative of the user.

Best management practices ("BMPS") means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in sections 13-24-43 and 13-24-44 of this chapter [See also Tennessee Rule 0400-40-14-.05(1)(a) and (2)]. BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

Blowdown means the discharge of water with high concentrations of accumulated solids from boilers to prevent plugging of the boiler tubes or stream lines. In cooling tower, blowdown is discharged to reduce the concentration of dissolved salts in the recirculating cooling water.

BOD (denoting biochemical oxygen demand) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at 20 degrees centigrade, expressed in milligrams per liter (or pounds upon factoring in flow).

Building sewer means the extension from the building to the public sewer or other place of disposal, also called "house connection."

Calendar day means the 24-hour period from midnight-to-midnight or any other 24-hour period approved by the city for a particular facility that reasonably approximates the midnight-to-midnight time period.

Categorical industrial user ("CIU") means an industrial user subject to a categorical pretreatment standard or categorical standard (except for dental dischargers subject to 40 C.F.R. Part 441).

Categorical standards or *categorical pretreatment standard* means the national categorical pretreatment standards as found in 40 C.F.R. Chapter I, Subchapter N, Parts 405 et seq.

C.F.R. means the Code of Federal Regulations.

City means the City of Memphis, Tennessee.

COD (denoting chemical oxygen demand) means the measure of oxygen-consuming capacity of inorganic and organic matter present in wastewater. It is expressed as the amount of oxygen consumed from a chemical oxidant in a specific test. It is expressed in milligrams per liter (or pounds upon factoring in flow).

Composite sample means a sample composed of individual subsamples taken at regular intervals over a specified period of time. Unless otherwise specified by this chapter or the control authority, subsamples may be proportioned by time interval or size according to flow (i.e., flow-proportioned composite sample), or be of equal size and taken at equal time intervals (i.e., time-proportioned composite sample).

Control authority or *approving authority* means the City of Memphis, Division of Public Works. The term "Approving Authority" as used herein is differentiated from the term "Approval Authority" as defined in 40 C.F.R. § 403.3(c).

Control mechanism means a permit, order, or similar means of establishing enforceable requirements. This includes SIU discharge permits and other user permits. Failure to comply with the requirements set forth in these documents may result in enforcement actions, which may include, but is not limited to, administrative fines and/or withdrawal of the privilege to use the City of Memphis Wastewater System.

County means Shelby County, Tennessee unless otherwise specified.

Daily discharge means the "discharge of a pollutant" measured using approved methods at the appropriate sampling point during a calendar day, or any 24-hour period that reasonably represents the calendar day, established by the control authority in the control mechanism. For pollutants with limitations expressed in units of mass, the "daily discharge" is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the "daily discharge" is calculated as the average measurement of the pollutant over the day.

Daily maximum means the arithmetic average of all effluent samples for a pollutant (except pH) collected during a calendar day.

Daily maximum limit means the maximum allowable discharge limit of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily maximum limit will be determined by the daily discharge, i.e., the total mass discharged over the course of a calendar day. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements using approved methods at the appropriate sampling point taken that day. This can be based upon the averaging of several grab samples during a calendar day or composite samples (e.g., 8-hour or 24-hour composite samples).

Day, for the purposes of counting when an event must occur (e.g., report within ten days), means, unless otherwise specified, a calendar day, which is a 24-hour period from midnight to midnight. "Days" refers to consecutive calendar days. For the purposes of an effluent limit (e.g., daily maximum limit), "day" or "calendar day" refers to midnight-to-midnight or other 24-hour period that reasonably approximates the midnight-to-midnight time period.

Direct discharge to state waters or *direct discharge* means the addition of pollutants to waters of the State from a source.

Director means the director of public works except where another position is specifically identified (e.g., EPA Regional Water Protection Division Director).

Discharge or *indirect discharge* means the introduction of pollutants into the city's POTW including the introduction of pollutants into the sewer system of the POTW as well as the delivery of wastewaters and other pollutants by truck or any other conveyance. "Discharge" or "indirect discharge" does not include a "direct discharge to State water."

Discharge permit means a SIU discharge permit or other user permit.

Discharger means a person who discharges.

Division means the Division of Public Works of the City of Memphis except where another entity is specifically identified (e.g., EPA Regional Water Protection Division).

Domestic source means the waste and wastewater from human or typical household activities including a household kitchen, water closets, lavatories and laundries, or any waste from a similar source and possessing essentially the same characteristics. Commercial facilities such as restaurants, hospitals, institutions (e.g., colleges), cafeterias, bakeries, ground-water remediation sites, and other non-household sources are not considered to be a "domestic source" (except wastewater from their bathroom facilities, segregated from other flows, is considered a "Domestic Source").

Easement means an acquired legal right for the specific use of land owned by others.

Environmental Protection Agency or *EPA* means the U.S. Environmental Protection Agency or, where appropriate, the regional water protection division director, the regional administrator, or other duly authorized official of said agency.

Existing source means any source of discharge that is not a "new source."

Facility site means the land or water area where any indirect discharge activity that is subject to regulation under this chapter is physically located or conducted, including adjacent land used in connection with the facility or activity (e.g., manholes on the user's owned or occupied property).

Garbage means solid wastes from the domestic and commercial preparation, cooking, and dispensing of food, and from the handling, storage, and sale of produce.

General discharge permit means a discharge permit that can be issued to more than one discharger.

Grab sample means a sample that is taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Holding-tank waste means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, vaults, pits, sumps, and vacuum-pump tank trucks.

Hydrogen ion concentration: see "ph".

Industrial user means a source of indirect discharge.

Industrial wastes means the wastewater from industrial processes, trade, or business, as distinct from domestic sanitary sewage.

Instantaneous limit means the maximum concentration of a pollutant allowed to be discharged at any time,

determined from the analysis of any discrete sample (e.g., grab sample) of the discharge. pH may also be regulated by an instantaneous maximum and/or minimum limit. Where a composite sample shows a value higher than an instantaneous limit, such sampling result is deemed to provide conclusive evidence of a violation of an instantaneous limit applicable during that time period.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the sewer system, WWTP, treatment processes, or operations or its sludge processes, use or disposal, exceeds the design capacity of the treatment works or the collection system, and/or which causes or contributes to a violation of any requirement of the city's NPDES permit or poses a threat to worker health and safety (e.g., chemical fumes). The term includes disruption with the use of biogas generated by a POTW as a fuel or prevention of sewage sludge use or disposal by the POTW in accordance with criteria, guidelines, or regulations developed pursuant to the Solid Waste Disposal Act ("SWDA"), the Clean Air Act, the Toxic Substances Control Act, or more stringent state criteria (including those contained in any state sludge management plan prepared pursuant to Title IV of SWDA) applicable to the method of disposal or use employed by the POTW.

Legal authority means the rules, regulations and ordinances of the City of Memphis regulating the discharge and treatment of industrial waste.

Local hearing authority means the Memphis Wastewater Hearing Authority. See T.C.A. § 69-3-124.

Local limit means specific discharge limits developed by the control authority to implement the general and specific discharge prohibitions listed in Tennessee Rule 0400-40-14-.05(1)(a) and (2).

Medical waste means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

mg/l means a concentration unit of milligrams per liter of solution.

Monthly average means the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Monthly average limit means the highest allowable average of "daily discharges" over a calendar month, calculated as the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Municipality means a city, town, borough, county, parish, district, association, or other public body created by or pursuant to state law and having jurisdiction over disposal of sewage, industrial wastes, or other wastes, or an Indiantribe or an authorized Indian tribal organization, or a designated and approved management agency under Section 208 of the Clean Water Act (33 U.S.C. § 1288).

National pretreatment standards or *pretreatment standard or standard* means any regulation containing pollutant discharge limits promulgated by the Environmental Protection Agency in accordance with the Act, which applies to users. The term includes general and specific prohibitive discharge limits pursuant to sections 13-24-43(A) and (B)(1)-(7), and local limits pursuant to section 13-24-44(C), (D) and (F).

National Pollution Discharge Elimination System ("NPDES") means the program for issuing, conditioning, and denying permits for the direct discharge of pollutants from point sources into navigable waters, the contiguous zone, and the oceans pursuant to Section 402 of the Clean Water Act as amended, 33 U.S.C. § 1342.

Natural outlet means any outlet, into a watercourse, pond, ditch, lake or other body of surface, or ground water.

New source means:

(a) Any building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Clean Water Act, which will be applicable to such source if such Standards are thereafter promulgated in accordance with that section, provided that:

(1) The building structure, facility, or installation is constructed at a site at which no other source is located; or

(2) The building, structure, facility, or installation totally replaces the process or

production equipment that causes the discharge of pollutants at an existing source; or

(3) The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plan and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

(b) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of parts (A)(ii) or (A)(iii) of this definition but otherwise alters, replaces, or adds to existing process or production equipment.

(c) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

(1) Begun, or caused to begin, as part of a continuous onsite construction program:

(A) Any placement, assembly, or installation of facilities or equipment; or

(B) Significant site preparation work including cleaning, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

(2) Entered into a binding contractual obligation for the purchase of facilities or equipment, which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

Non-significant categorical industrial user means an industrial user, subject to categorical pretreatment standards, that never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling, and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

(a) The industrial user, prior to control authority's finding, has consistently complied with all applicable categorical pretreatment standards and pretreatment requirements;

(b) The industrial user annually submits the certification statement required in section 13-24-30(J)(2) of this chapter [see Tennessee Rule 0400-40-14-.12(17)], together with any additional information necessary to support the certification statement; and

(c) The industrial user never discharges any untreated concentrated wastewater.

Other user permit means an individual control mechanism or general discharge permit issued to a user that is not a significant industrial user. Failure to comply with the requirements set forth in other user permits may result in enforcement actions, which may include, but is not limited to, administrative fines and/or withdrawal of the privilege to use the City of Memphis Wastewater System. The requirements imposed in an other user permit and the manner in which such permits are issued and enforced, and such facilities are monitored or inspected, are subject to the city's sole discretion. Other user permits include, but are not limited to, food establishment wastewater discharge ("FEWD") permits imposing, among other things, requirements pertaining to fats, oils, and grease, waste hauler permits, permits issued to ground water remediation pump and treat facilities (except to the extent the discharger is identified as an SIU), special permits for the disposal of portable toilet wastewater, letters of approval for hauled wastewater, and letters of approval setting forth flow limitations (e.g., limiting use of the sewer system to certain hours) on users or new or expanded development or facilities.

Pass-through means a discharge which exits the wastewater treatment plant ("WWTP") into waters of the State in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other

sources, is a cause of a violation of any requirement of the WWTPs' NPDES permits, including an increase in the magnitude or duration of a violation.

Person means any and all persons, including individuals, firms, partnerships, associations, public or private institutions, state and Federal agencies, municipalities or political subdivisions, or officers thereof, departments, agencies, or instrumentalities, or public or private corporations or officers thereof, organized or existing under the laws of this or any state or country.

pH means the negative log of the hydrogen ion concentration (in moles per liter) of a given water, pH = - $\log_{10}[H^+]$. Water will dissociate into hydrogen and hydroxyl ions (H_2O ? $H^+ + OH^-$) and the concentration of hydroxyl ion can be expressed as pOH. The pH + pOH always equals 14 in water. pH limits may be established in standard units, based on this relationship and the hydroxide load.

pH maximum limit means a limit imposed on the alkalinity of a discharge. A pH Maximum Limit is distinct from a pH Minimum Limit.

pH minimum limit means a discharge limit imposed on the acidity of a discharge. A pH Minimum Limit is distinct from a pH Maximum Limit.

Pollutant means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural, and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

Pollution means the man-made or man induced alteration of the chemical, physical, biological, and radiological integrity of water.

Pretreatment means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological processes, by process changes, or by other means, except by diluting the concentration of the pollutants, unless allowed by an applicable pretreatment standard.

Pretreatment program means the rules, regulations, and/or ordinances of the city regulating the discharge and treatment of industrial and commercial wastewater, the Control Mechanisms issued under chapter 13-24 of title 13 of the Memphis Code and such other provisions as provided for in this chapter, 40 C.F.R. 403.1 et seq., and/or Tennessee Rule 0400-40-14-.01 et seq.

Pretreatment requirement means any substantive or procedural requirement related to pretreatment other than a National Pretreatment Standard imposed on a user.

Pretreatment standards or *standards* means prohibited discharge standards, categorical pretreatment standards, and local limits.

Priority pollutants means any pollutant identified in 40 C.F.R. Part 423, Appendix A.

Process wastewater means any water which, during manufacturing or processing, comes into direct contact with or results from the production or use of any raw material, intermediate product, finished product, by-product, or waste product.

Properly shredded garbage means the wastes from the preparation, cooking, and dispensing of food that has been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half inch in any dimension.

Publicly owned treatment works ("POTW") means a treatment works as defined by Section 212 of the Federal Water Pollution Control Act, (33 U.S.C. § 1292) which is owned in this instance by the municipality (as defined by Section 502(4) of the Federal Water Pollution Control Act). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes, and other conveyances only if they convey wastewater to a WWTP. The term also means the municipality as defined in Section 502(4) of the Federal Water Pollution Control Act, which has jurisdiction over the indirect discharges to and the discharges from such a treatment works.

Sanitary sewer means a sewer which carries sewage and/or wastewater. It does not include a storm sewer, which is designed primarily to address storm water, surface, and ground waters.

Service charge means the assessment levied on users of the public sewer system.

Sewage means a combination of the water-carried wastes from residences, business buildings, institutions and industrial establishments, together with any groundwater, surface water, and storm water that may be present.

Sewage system or *wastewater system* means all facilities for collecting, pumping, treating, and disposing of sewage that flows to a city's WWTP.

Significant industrial user ("SIU") means any Industrial user of the City of Memphis Wastewater System, or wastewater systems of other municipalities connected to the City of Memphis Wastewater System, that is subject to categorical pretreatment standards under 40 C.F.R. § 403.6 and 40 C.F.R. Chapter I, Subchapter N (except for dental dischargers subject to 40 C.F.R. Part 441) and/or has an average discharge flow of 25,000 gallons or more per day of process wastewater to the POTW (excluding sanitary, non-contact cooling, and boiler blowdown wastewater); and/or has a discharge of a process wastestream which is greater than or equal to five percent of the average dry weather hydraulic flow and/or organic design capacity of the receiving WWTP; and/or is found by the City of Memphis to have a reasonable potential for adversely affecting the POTW's operation, or for violating any pretreatment standard or pretreatment requirement either singly or in combination with other contributing industries on the City of Memphis' Wastewater System, including, but not limited to, the quality of sludge produced, the wastewater system's effluent quality, groundwater in the area, or air emission generated by the wastewater system. Upon a finding that a non-categorical industrial user meeting the criteria above has no reasonable potential for adversely affecting the POTW's operation, or for violating any pretreatment standard or pretreatment requirement, the city may, at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in Tennessee Rule 0400-40-14-.08(6)(f), determine that such industrial user is not a significant industrial user.

Unless otherwise designated by Memphis subject to its discretion, dental dischargers subject to 40 C.F.R. part 441 are not "significant industrial users" as defined herein and are not "categorical industrial users" or "industrial users subject to categorical pretreatment standards" as those terms and variations are used herein and in 40 CFR part 403.

SIU discharge permit is a control mechanism issued to a significant industrial user that establish specific parameter limits and other requirements for control and monitoring of the wastewater discharges. Failure to comply with the requirements set forth in an SIU discharge permit may result in enforcement actions, which may include, but is not limited to, administrative fines and/or withdrawal of the privilege to use the City of Memphis wastewater system. Individual SIU discharge permits may be issued to individual industrial/commercial users. Subject to the control authority's discretion, general SIU discharge permits may be issued to a group of facilities.

Slug discharge or *slug* means any discharge of a non-routine, episodic nature (including, but not limited to, an accidental spill) or a batch discharge (including customary and non-customary batch discharges) which has a reasonable potential to cause Interference or Pass-Through, or in any other way violate chapter 13-24 of title 13 of the Memphis Code and/or Local Limits or permit conditions.

Special sewer service area means a sewer service area which shall be subject to unique and separate sewer infrastructure surcharge fees in addition to normal sewer fees described within this chapter, based upon the particular costs associated with providing sewer service in that area.

Standard methods means the analytical procedures set forth in the latest edition of "Standard Methods for the Examination of Water and Wastewater" published by the American Public Health Association; and/or "EPA Methods for Chemical Analysis of Water and Wastes" as per 40 C.F.R. Part 136 and amendments thereto; and/or City of Memphis, Public Works Division's laboratory procedures for certain tests that detail specific requirements that are not addressed elsewhere or are presented as optional.

Storm drain or *storm sewer* means a sewer which primarily carries storm and surface waters and drainage, but is designed to exclude sewage and industrial wastes, other than unpolluted cooling water.

Storm water means any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

Suspended solids or *total suspended solids* means total suspended matter that either floats on the surface

of, or is in suspension in, water, wastewater, or other liquids, and that is removable by laboratory filtering as prescribed by standard methods.

TOC (denoting total organic carbon) means the measure of the concentration of covalently bonded carbon, which is combustible to carbon dioxide. It is not to be confused with elemental carbon, dissolved carbon dioxide, inorganic carbonates, or bicarbonates.

User means any person (including a waste hauler) that discharges wastewater or otherwise causes or permits wastewater to enter into the city's POTW, including, but not limited to, the sanitary sewer.

Wastewater means liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated.

Wastewater treatment plant ("WWTP") means the city's facilities for treating wastewater and includes that portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

Watercourse means a channel or conduit in which surface water flow of water occurs, either continuously or intermittently.

Waters of the state means any and all water, public or private, on or beneath the surface of the ground, which are contained within, flow through, or border upon Tennessee, or any portion thereof, except those bodies of water confined to and retained within the limits of private property in single ownership which do not combine or effect a junction with natural surface or underground waters.
(Code 1985, § 33-16; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 4443, § 1, 11-5-1996; Ord. No. 5793, § 1, 8-17-2021)

CHAPTER 13-8. USE OF PUBLIC SEWERS

Sections:

Sec. 13-8-1. Discharge to natural outlets where public sewer available prohibited.
Sec. 13-8-2. Maintaining private methods of disposal.
Sec. 13-8-3. Connection to public sanitary sewer, when required.
Sec. 13-8-4. Disconnection of sanitary sewer service.
Sec. 13-8-5. Damaging sewerage works.

Sec. 13-8-1. Discharge to natural outlets where public sewer available prohibited.

It shall be unlawful to directly discharge to any natural outlet within the city, or in any area under the jurisdiction of the city, any untreated sewage or other polluted waters where suitable public collection and/or treatment has been provided in accordance with the provisions of [chapters] 13-8, 13-12, 13-16, 13-28 and 13-32, except where a Federal National Pollutant Discharge Elimination System (NPDES) permit has been duly issued and is currently valid for such discharge or the discharger is specifically exempt from obtaining an NPDES permit under duly promulgated state regulations. The city, upon becoming aware of such unlawful discharges, may refer the matter to TDEC or take such other action as the city deems appropriate. Nothing herein shall be deemed to change the obligation of a septic system to connect to the city's POTW to the extent otherwise provided under this chapter.
(Code 1985, § 33-26; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-8-2. Maintaining private methods of disposal.

Except as hereinafter provided in this chapter, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool or other facility intended or used for the disposal of sewage.
(Code 1985, § 33-27; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-8-3. Connection to public sanitary or combined sewer—When required.

The owner, occupant or lessee of all houses, buildings, or properties used for human occupancy, employment, recreation, or other purposes, situated within the city where public sewer is available and abutting on any street, alley, right-of-way, or easement in which there is now located or may in the future be located a public sanitary sewer of the city, is hereby required at his expense to install suitable sanitary facilities therein and to connect such facilities directly with the proper public sewer, in accordance with the provisions of chapters 13-8, 13-12, 13-16, 13-28, 13-32 within one year after date of official notice by the regulatory agency to do so, as long as no health hazard exists or is imminent. In cases of health hazards as determined by the city and county health department, the owner, occupant or lessee

must connect within 90 days of the official notice of the city and county health department that there exists a health hazard or that a health hazard is imminent.
(Code 1985, § 33-28; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

State law reference—Authority to require sewer connection, T.C.A. § 7-35-201 et seq.

Sec. 13-8-4. Disconnection of sanitary sewer service.

Any person wishing to demolish a building or remove the sanitary sewer service from any point into their property shall obtain a "sanitary sewer line cap permit." After this line has been capped, joints shall be left exposed and inspected by the POTW. All construction procedures and specifications relative to capping shall be approved by the approving authority.
(Code 1985, § 33-29; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-8-5. Damaging sewerage works.

A. No person shall maliciously, willfully, or negligently break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance or equipment which is part of the sewage works. Any person violating this provision may be subject to immediate arrest and shall be guilty of a misdemeanor, punishable as provided in section 1-8 of this Code of Ordinances and shall be responsible for correcting such damages.

B. If public sewer and/or the WWTP becomes obstructed or damaged, whether intentionally or otherwise, the person or persons responsible for such discharge or other cause of damage may be billed and shall pay for the expenses incurred by the city in cleaning out, repairing or rebuilding the sewer and/or WWTP. This includes, but is not limited to: (i) the discharge of fats, oil and grease into the sewer system; and (ii) digging or other surface or subsurface work puncturing a sewer pipe.

C. No unauthorized person shall enter into or alter any manhole or similar appurtenance of any public sewer, place or cause to be placed anything therein or interfere therewith. No person shall insert or place in any public sewer, manhole or other appurtenance thereof any debris or other materials which such sewer manhole or appurtenance thereof was not intended to receive. The city may remove or require the removal of any unauthorized materials or substances from the public sewer, repair or replace damaged infrastructure, and shall seek reimbursement of all costs, expenses and resulting damages incurred by city. Any removal or repair work undertaken by city may be performed directly by city workforces or city may engage the services of a contractor to perform such work.
(Code 1985, § 33-126; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

CHAPTER 13-12. PRIVATE SEWAGE DISPOSAL

Sections:

Sec. 13-12-1. Required when public sanitary sewer not available.
Sec. 13-12-2. Permit—Required—Application and fees.
Sec. 13-12-3. Permit required-effective date; notification of completion of work; inspection.
Sec. 13-12-4. Design and other specifications; discharge to natural outlet prohibited.
Sec. 13-12-5. Connection to public sewer upon availability, filling of abandoned facilities required, hardship exemptions.
Sec. 13-12-6. Maintenance and manner of operation.
Sec. 13-12-7. Private industrial disposal as exception to [chapters 13-8 and 13-28] provisions.

Sec. 13-12-1. Required when public sanitary sewer not available.

Where a public sanitary sewer is not available under the provisions of [section] 13-8-3, the sewer shall be connected to a private sewage disposal system complying with the provision of this chapter.
(Code 1985, § 33-41; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-2. Permit—Required—Application and fees.

Before commencement of construction of a private sewage disposal system, the owner shall first obtain a written permit signed by the division of public works. The application for such permit shall be made on a form furnished to the applicant, which the applicant shall supplement by any plans, specifications, and other information, which may be deemed necessary by the regulatory agency. A permit and inspection fee as designated by the regulatory agency shall be paid at the time application is filed. The permit and inspection fee of $25.00, to help defray the cost of plan review and

construction inspection, shall be paid to the city and shall be placed in an account designated as "sewer collection and treatment fund."
(Code 1985, § 33-42; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-3. Permit required-effective date; notification of completion of work; inspection.

A private sewage disposal system shall not operate until the installation is completed to the satisfaction of the applicable governmental entity for which approval is required (e.g., TDEC, Health Department) The city shall be allowed to inspect the work at any stage of construction, and, in any event, the entity seeking to operate a private sewage disposal system shall notify the city when the work is ready for final inspection and before any underground portions are covered.
(Code 1985, § 33-43; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-4. Design and other specifications—Discharge to natural outlet prohibited.

The type, capacities, location and layout of a private sewage disposal system shall comply with all recommendations of the state regulatory agency and the city. No septic tank or cesspool shall directly discharge to any natural outlet.
(Code 1985, § 33-44; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-5. Connection to public sewer upon availability—Filling of abandoned facilities required—Hardship exemptions.

At such time as a public sewer becomes available to a property served by a private sewage disposal system, a direct connection shall be made to the public sewer in compliance with chapters 13-8, 13-12, 13-16, 13-28 and 13-32 of this title, and any septic tanks, cesspools, and similar private sewage disposal facilities shall be abandoned and filled with suitable material, as required by the state regulatory agency and/or the city. In the event a person cannot make immediate connection, application may be made for a hardship exemption. Proof of hardship is incumbent upon the applicant. The division of public works may grant a hardship exemption, not to exceed 12 months, as long as no health hazard exists or is imminent.
(Code 1985, § 33-45; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-6. Maintenance and manner of operation.

The owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times, at no expense to the city. The removal of septage (septic contents) from private sewage disposal facilities shall be performed by individuals licensed to perform such work.
(Code 1985, § 33-46; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-7. Private industrial disposal as exception to [chapters 13-8 and 13-28] provisions.

Nothing in [chapters 13-8 and 13-28] of this [title] shall exclude the right of any industry or other facility to properly directly discharge its wastewater, after proper treatment in accordance with an NPDES permit, as applicable, into any stream designated by the State of Tennessee.
(Code 1985, § 33-47; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-12-8. Penalty for violation.

Any person using the city storm sewers and drain system or any part thereof in violation of chapters 13-4 through 13-24 shall be guilty of a misdemeanor and subject to punishment as provided in section 1-24-1.
(Code 1985, § 33-48; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

CHAPTER 13-16. BUILDING SEWERS, CONNECTIONS, SEWER EXTENSIONS AND DEVELOPMENT FEES

Sections:

Sec. 13-16-1. Permit requirements.
Sec. 13-16-2. Sewer development fees.
Sec. 13-16-3. Sewer connection fees.
Sec. 13-16-4. Sewer extensions.
Sec. 13-16-5. Sewer extension fees.
Sec. 13-16-6. Urban service boundary—Definition and amendment.
Sec. 13-16-7. Internal sewers and upstream properties.
Sec. 13-16-8. Expenditure of city funds—Limitation.
Sec. 13-16-9. Fees deposited in sewer fund.
Sec. 13-16-10. Connection to be at expense of owner; indemnification of city; construction.

Sec. 13-16-11. Separate and independent connection required for each building—Exception.
Sec. 13-16-12. Connection of old building sewers.
Sec. 13-16-13. Construction standards—Size—Slope—Materials—Methods of excavation.
Sec. 13-16-14. Construction standards—Elevation—Lifts—Where required.
Sec. 13-16-15. Construction standards—Connection to sanitary sewer of sources of surface runoff—Approval required.
Sec. 13-16-16. Construction standards—Conformity of connection to codes—Connection to be made gas tight and watertight—Inspection during construction.
Sec. 13-16-17. Notification to division of public works prior to covering of work underground; final inspection.
Sec. 13-16-18. Guarding of excavations posing hazard to public—Restoration of public property—Posting of bond.
Sec. 13-16-19. Sewer infrastructure surcharge fees.

Sec. 13-16-1. Permit requirements.

No unauthorized person shall uncover, make any connections with or opening into, alter, or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the division of public works. One copy of the permit shall at all times be available for inspection at the site of the work.
(Code 1985, § 33-61; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-2. Sewer development fees.

A. There is established a sewer development fee, as set forth herein, to be paid by new sanitary sewer customers connecting to the System as of July 1, 2021. Such fee shall reflect: (1) the actual cost to provide service to such new customers connecting to the System seeking an approved sewer connection for subdivisions, land developments, new buildings, and redevelopments of land or buildings served by the city sanitary sewer system or where the facility served requires modification of or enlargement of the existing sewers, whether within or outside the corporate limits of the city and whether service is by existing or by new facilities to be constructed; (2) a portion of the capital costs incurred by the city for the construction of wastewater treatment plant facilities and related assets, including prior upgrades and expansions; and (3) a portion of the capital costs incurred by the city for the construction of the sewage collection and conveyance system including sewer mains, manholes, lift stations, associated appurtenances including prior upgrades and expansions. The sewer development fee shall be payable by the applicant, developer of the subdivision, or developer of industrial, commercial or residential site as set forth herein, upon the execution of the subdivision contract or the sewer extension contract, or at the time of application for the sewer connection or plumbing permit, as appropriately determined by the approving authority.

B. Sewer development fees shall be calculated based upon the size of the water meter used for the connection using a trended original cost method defined as the historical cost of the city's assets in present day dollar amounts. Written confirmation of the applicable water meter size from Memphis Light, Gas and Water (MLGW) must be provided by the applicant or developer prior to payment of the sewer development fee as such payment is required in accordance with section 13-16-2(A). The sewer development fee shall be assessed, as set forth in this section and the fee schedule adopted by the approving authority:

Meter Size (in inches)	*Sewer Development Fee*
5/8	$2,255
3/4	$3,383
1	$5,638
1 ½	$11,277
2	$18,043
3	$33,830
4	$56,384
6	$112,767
8	$180,427
10	$259,364
12	$484,899

C. The sewer development fee calculation may be reviewed and adjusted by the approving authority every five years or as determined necessary due to significant changes to the customer makeup of the system, and in the instance of an extensive capital improvement plan.

D. The sewer development fee authorized herein shall become effective on July 1, 2021. Notwithstanding the foregoing, such fee assessment shall be implemented as follows:

From July 1, 2021 to June 30, 2022	50% of applicable fee
Subsequent years	100% of applicable fee

E. In support of the objectives of the Memphis 3.0 Comprehensive Plan which encourage increased support for community-based developers and development of affordable housing, the sewer development fee may be reduced up to 50 percent by the director of public works or his designee upon written request. In order to qualify for this discounted fee, developer must submit proof of 501c3 status and evidence that the development meets affordable housing standards for the following residential property types: 2-family (duplex), 3-family (triplex), 4-family (quadplex) structures, and single-family homes. For purposes herein, affordable housing shall be defined as at least 50 percent of the units serving households at 80 percent of the area median income as defined by the applicable standards adopted by the US Department of Housing and Urban Development.

F. No sewer development fee shall be assessed to a person authorized to install a private sewage disposal system pursuant to this division, but a sewer development fee may be charged to the developer or property owner when sanitary sewers are available under section 13-8-3 or when it is determined that sanitary sewers shall be extended to such development. The approval authority may thereafter require the installation of the sewer and the payment of the sewer development fee. The developer or property owner by applying for and receiving a private sewage disposal permit shall agree to such fee when the sewer is available. Notwithstanding the foregoing, a sewer development fee may be waived or reduced up to 50 percent by the director of public works or his designee upon written request by a low-income residential property owner of the following property types: 2-family (duplex), 3-family (triplex), 4-family (quadplex) structures and single-family homes; provided that, proof of such low-income is made available to the city upon request. For purposes herein, low-income shall mean families who have incomes at or below 80 percent of the area median income as defined by the applicable standards adopted by the U.S. Department of Housing and Urban Development.

G. The prior payment of a sewer development fee for any land or building currently served by the system shall not restrict the city's ability to assess a sewer development fee in accordance with section 13-16-2(A) for any proposed redevelopment of such land or building.

H. A sewer development fee shall be assessed to any development, redevelopment, new building or building addition resulting in the installation of an additional water meter or enlarged water meter. No sewer development fee shall be assessed for water meters dedicated to fire protection or irrigation.

I. Within the city reserve area, the owner(s) of property who petition for connection to the city's sanitary sewer system to serve their property shall at that time consent to, petition and request the annexation of such property by the city, with the annexation to take place at such time as the city may deem appropriate pursuant to state law. Until such time as annexation occurs, the owner(s) shall agree not to seek either incorporation as a separate entity nor annexation to any other incorporated area.

The consent to annexation shall be incorporated as a part of the city land development and/or sewer extension contract(s). At the time the sewer extension and/or land development contract is entered into the property owner shall submit his or her petition for annexation to the city.

The above-described consent to annexation by the city shall be made a restrictive covenant imposed by the property owner(s) upon the property which shall run with the land and shall be binding upon all heirs, successors and assigns. Such covenant shall be recorded in the office of the Shelby County register and it shall be the duty of the original property owner and all subsequent property owners to disclose the existence of the covenant to any parties to whom the property or a portion thereof is conveyed. Reference to such recorded covenant shall be evidenced on any final plat or plan development prior to the recordation of the plat or plan in the office of Shelby County register. It shall be the responsibility of the division of planning and development to ensure that the signed petition for annexation is submitted by the property owner and that the covenant appears on the plat or plan prior to signing and recordation of the final plat or plan.

(Code 1985, § 33-62; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 4143, § 1, 3-4-1993; Ord. No. 4292, § 1, 11-22-1994; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-3. Sewer connection fees.

There is established a sewer connection charge, as set forth herein, to defray the construction costs of providing a sewer tap to a property which charges shall be payable by the owner, applicant, developer of the subdivision, or developer of industrial, commercial or residential site as set forth herein, and which charge shall be payable prior to the physical sewer connection

being made. Sewer connection charges shall apply only where the physical connection is made by the division of public works.

A. Standard four- or six-inch connections to residential and small commercial facilities will be made at the owner's expense. The owner shall be responsible for all costs and expenses incurred.

B. For any connections other than standard connections as determined by the division of public works, or for a second connection to any property, the cost shall be based on time, materials and labor for the approving authority to install the connection.

(Code 1985, § 33-63; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-4. Sewer extensions.

A. The city may permit the orderly extension of its sanitary sewer system to provide gravity sewer service of adequate capacity to unsewered properties and to properties not served by sewers of adequate capacity following the comprehensive plan and policies of the city for gravity sewer system expansion.

B. No person shall undertake to extend city sanitary sewer service to his property without entering into a sewer extension contract with the city.

C. In order for a property to be eligible for city participation in the cost of a gravity sewer extension, all of the following criteria must be met:

1. The capacity, location and design of the proposed gravity sewer extension shall conform to the city's comprehensive plans and policies for extension of the sanitary sewer system.

2. The portion of the property or contiguous properties under one ownership being the subject of the request for a sewer extension shall neither be served by gravity sanitary sewer at the time of the request, nor have previously been part of a parcel or tract of property which was served by gravity sanitary sewers; i.e., for the purposes of determining eligibility for city funding participation, once a property or contiguous properties under one ownership is served by gravity sewers, it cannot be disassociated from that sewer service by the sale of all or part of the property.

3. The property shall not be situated within the corporate limits or within the recognized annexation reserve area of another municipality unless the sewer extension will be used to serve other properties that would otherwise be eligible for city funding participation. The city shall participate in funding only those portions of the sewer extension, which will serve such other properties.

D. Whenever the city enters into a contract with an owner/developer relative to extending a sanitary sewer to his property, a reasonable estimated time shall be indicated in the contract for the completion of this service by the city.

(Code 1985, § 33-64; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-5. Sewer extension fees.

A. The developer/owner/applicant shall pay to the city, upon execution of the sewer extension contract, a sewer extension fee as set forth herein. The developer/owner/applicant may secure payment of the sewer extension fee by executing a performance bond, certificate of deposit assigned to the city, or an irrevocable, automatically renewable letter of credit in favor of the city. Such securities shall be in the full amount of the sewer extension fee and be in a form acceptable to the city. Payment of the sewer development fee shall be made by the developer/owner/applicant to the city upon advertisement for bids for construction of the sewer extension.

B. The minimum sewer extension fee to be paid by the developer/owner/applicant shall not be less than 50 percent of the cost of engineering including surveying, easement acquisition, inspection and construction of any sewer extension and other applicable fees for a development located within the municipal boundaries of Memphis and 100 percent of such cost for developments located in unincorporated Shelby County which were authorized for a sewer extension or connection prior to August 18, 2017, and parcels to which sewer must be extended or connected pursuant to existing obligations between the city and the applicable developer or land owner. A preliminary estimate, based on the estimated cost of construction, engineering, easement acquisition, inspection, and other applicable fees shall be used for determining the fee to be charged to the developer for the purpose of negotiating a sewer extension contract. The final cost accounting shall be determined by the city

upon completion of the sanitary sewer extension, and final accounting shall be made to the developer of any additional fee required or refund due to the developer.

C. Sewer extension fees paid to the city prior to July 1, 2021, shall run with the land described in the sewer extension contract and may be used for the purpose of defraying sewer development fees. Any sewer extension fees paid on or after July 1, 2021, shall not be used for the purpose of defraying sewer development fees as determined in section 13-16-2.
(Code 1985, § 33-65; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 4143, § 1, 3-4-1993; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-6. Urban service boundary—Definition and amendment.

The Urban Service Boundary is defined by the Memphis 2000 Policy Plan and Map adopted by the Memphis City Council in September 1981 or its most recent adopted amendment. The Memphis and Shelby County Office of Planning and Development (O.P.D.) and the division of public works shall review the Urban Service Boundary periodically, and recommendations for amendments, if any, shall be forwarded to the Memphis City Council for consideration.
(Code 1985, § 33-66; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-7. Internal sewers and upstream properties.

A. The owner/developer or his successors in title or assigns shall, at the time of developing the property covered in the sewer extension contract, construct all internal sanitary sewers necessary to serve the property at their sole expense.

B. The owner/developer, upon entering into a sewer extension contract, shall grant permanent sanitary sewer easements and temporary construction easements to the city at no cost for future extension of the sanitary sewers through the property covered by the sewer extension contract to serve upstream properties. The sewer easement alignment shall be recommended by the owner/developer and be subject to the approval of the city. Acceptance of the sanitary sewer easements does not impose upon the city any obligation or responsibility to participate in the cost of or construct sanitary sewers within the easements.
(Code 1985, § 33-67; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-8. Expenditure of city funds—Limitation.

The city may only expend city funds on construction for which the city has contracted through the standard bidding process.
(Code 1985, § 33-68; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-9. Fees deposited in sewer fund.

All sewer development fees, connection fees and sewer extension fees collected herein shall be placed in the sewer collection and treatment fund established by [chapter] 13-28 and used for the purpose stated therein.
(Code 1985, § 33-69; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-10. Connection to be at expense of owner; indemnification of city; construction.

All costs and expenses incidental to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the city and its employees from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer. All construction on the owner's property shall conform to the applicable plumbing code.
(Code 1985, § 33-70; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-11. Separate and independent connection required for each building—Exception.

A separate and independent building sewer shall be provided for every building and for every dwelling unit in single family detached, single family attached and duplex developments, except that, where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear building through an adjoining alley, courtyard or driveway, the building sewer from the front building may be extended to the rear building and the whole considered as one building sewer, but the city does not

and will not assume any obligation or responsibility for damage caused by or resulting from any such single connection aforementioned.
(Code 1985, § 33-71; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-12. Connection of old building sewers.

Old building sewers may be used in connection with new buildings only when they are found, on examination and test by the division of public works, to meet all requirements of [chapters] 13-8, 13-12, 13-16, 13-28 and 13-32.
(Code 1985, § 33-72; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-13. Construction standards—Size—Slope—Materials—Methods of excavation.

The size, slopes, alignment, materials of construction of a building sewer, and the methods to be used in excavating, placing of the pipe, jointing, testing and backfilling the trench, shall all conform to the requirements of the building and plumbing codes and other applicable rules and regulations of the city.
(Code 1985, § 33-73; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-14. Construction standards—Elevation—Lifts—Where required.

Whenever possible, the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings in which any building gradient is too shallow to permit gravity flow to the public sewer, sanitary sewage carried by such building gradient shall be lifted by an approved pumping system and discharged to the building sewer. The installation and operational expenses of this system shall be borne solely by the property owner.
(Code 1985, § 33-74; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-15. Construction standards—Connection to sanitary sewer of sources of surface runoff—Approval required.

No person shall make connection of roof downspouts, foundation drains, areaway drains, or other sources of surface runoff or groundwater to a building sewer which in turn is connected directly or indirectly to a public sanitary sewer, unless connection is approved by the division of public works.
(Code 1985, § 33-75; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-16. Construction standards—Conformity of connection to codes—Connection to be made gas tight and watertight—Inspection during construction.

The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing codes and other applicable rules and regulations of the city. All such connections shall be made watertight and verified by proper testing. Any deviation from the prescribed procedures and materials must be approved by the division of public works before installation. The division of public works shall have the right to inspect the work at any stage of construction, and in any event, the covers of all building sewer manholes, inspection chambers, cleanouts, and the like shall be watertight and shall be capable of withstanding, without damage or displacement, any traffic load to which they may be subjected.
(Code 1985, § 33-76; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-17. Notification to division of public works prior to covering of work underground; final inspection.

The applicant for the building sewer permit shall notify the division of public works before covering portions of the work to be underground, and when the building sewer is ready for final inspection and connection to the public sewer. The connection and testing shall be made under supervision of the division of public works.
(Code 1985, § 33-77; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-18. Guarding of excavations posing hazard to public—Restoration of public property—Posting of bond.

All excavations for building any sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways and other public property disturbed in the course of the work shall be restored in a manner

satisfactory to the city. The posting of a bond of appropriate value may be required to safeguard the interest of the city with regard to damage to public property.
(Code 1985, § 33-78; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 2, 8-17-2021)

Sec. 13-16-19. Sewer infrastructure surcharge fees.

A. There is established a sewer infrastructure surcharge fee, as set forth herein, to defray the construction costs, bond costs, and/or design costs associated with providing sewer services to a special service to a special sewer service area. Such a fee may take any of the following forms:

1. Sewer development infrastructure surcharge fee;
2. Sewer construction connection infrastructure surcharge fee;
3. Sewer extension infrastructure surcharge fee; and/or
4. Sewer user infrastructure surcharge fee.

B. Sewer infrastructure surcharge fees may not be credited against extension fees.
(Code 1985, § 33-79; Ord. No. 4443, § 2, 11-5-1996; Ord. No. 5793, § 2, 8-17-2021)

CHAPTER 13-20. RESERVED*

*__Editor's note—__Ord. No. 5793, § 3, adopted August 17, 2021, repealed ch. 13-20, §§ 13-20-1—13-20-9, which pertained to wastewater discharge agreements and derived from Code 1985, § 33-82—33-89; Ord. No. 4023, § 1, adopted March 26, 1991.

CHAPTER 13-24. PRETREATMENT†

Sections:

Article 1. Generally and Definitions

Sec. 13-24-1. Definitions.

Article 2. System Discharge and Incorporation of Federal and State Requirements

Sec. 13-24-20. [User compliance].
Sec. 13-24-21. Incorporation of Federal and State pretreatment requirements by reference.
Sec. 13-24-22. SIU permits and other permits.
Sec. 13-24-23. Permit provisions.
Sec. 13-24-24. Time period of permits; continuation of expired permits.
Sec. 13-24-25. Modification, suspension, or revocation of permits and appeals.
Sec. 13-24-26. Limitation to specific operation of specific user; nontransferable.
Sec. 13-24-27. Monitoring facilities, provisions to be outlined in discharge permit.
Sec. 13-24-28. Right of inspection, sampling and oversight; access to premises by control authority.
Sec. 13-24-29. Availability of information on user to public; use of claimed confidential information.
Sec. 13-24-30. Reporting and recordkeeping.
Secs. 13-24-31—13-24-39. Reserved.

Article 3. Discharge to Public Sanitary Sewers

Sec. 13-24-40. Reserved.
Sec. 13-24-41. Discharges of storm water, groundwater, etc., into sanitary sewer prohibited; exceptions; discharges into sanitary sewer system other than through specifically permitted building sewer, permit required.
Sec. 13-24-42. Implementation of categorical pretreatment standards.
Sec. 13-24-43. General and specific prohibitions.
Sec. 13-24-44. Certain discharge restricted, local limits, etc.
Sec. 13-24-45. Discretionary actions of control authority with respect to restricted discharges.

†__Editor's note—__Ord. No. 5793, §§ 3, 5 adopted August 17, 2021, repealed the former ch. 13-24, §§ 13-24-1—13-24-11, and enacted a new ch. 13.24 as set out herein. The former ch. 13-24 pertained to sewer discharge prohibitions and derived from Code 1985, § 33-101—33-111; Ord. No. 4023, § 1, adopted March 26, 1991; Ord. No. 5099, §§ 1—4, adopted 2005.

Sec. 13-24-46. Proper operation and maintenance/maintenance and inspection of pretreatment or flow equalization facilities, bypass and upset.
Sec. 13-24-47. Monitoring, control facilities for sampling and observation of industrial and commercial wastes/flow monitoring and repeat monitoring.
Sec. 13-24-48. Measurement and testing methods.
Sec. 13-24-49. Accidental and slug discharges.
Sec. 13-24-50. Reserved.
Sec. 13-24-51. Discharge of hauled wastes.
Sec. 13-24-52. Specific charge for hauled waste transported for disposal at the discharge point designated by the City of Memphis.
Sec. 13-24-53. Food establishment wastewater.
Sec. 13-24-53-01. Waste disposal - Construction plans approval and permit required.
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Sec. 13-24-53-04. Permit application required for new construction and others.
Sec. 13-24-53-05. Duration of fewd permits.
Sec. 13-24-53-06. Revocation of food establishment wastewater permit.
Sec. 13-24-53-07. Grease pretreatment required.
Sec. 13-24-53-08. Maintenance reports.
Sec. 13-24-53-09. Penalty for violation and civil liability.
Sec. 13-24-53-10. Surcharges for oil and grease.
Secs. 13-24-53-11—13-24-53-20. Reserved.
Secs. 13-24-54—13-24-59. Reserved.

Article 4. Review and Enforcement

Secs. 13-24-60—13-24-69. Reserved.
Sec. 13-24-70. Violations and enforcement actions.
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Sec. 13-24-72. Purpose.
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Sec. 13-24-80. Hearings.
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Sec. 13-24-82. Violations and penalties.
Sec. 13-24-83. Damages assessment.
Sec. 13-24-84. Additional enforcement provisions.
Sec. 13-24-85. Special fund.
Sec. 13-24-86. Public notification and significant noncompliance.
Secs. 13-24-87—13-24-89. Reserved.

Article 5. Review and Oversight of Outlying Jurisdictional Programs with Permitted Industrial User and/or Other Discharges to Memphis STP(S)

Sec. 13-24-90. Purpose of this division.
Sec. 13-24-91. Prohibitions applicable to outlying jurisdiction issuance of industrial user permits for discharge to Memphis.
Sec. 13-24-92. Memphis review of and objections to outlying jurisdiction permits.
Sec. 13-24-93. Memphis issuance of industrial user permits for dischargers in outlying jurisdiction.
Sec. 13-24-94. Miscellaneous provisions regarding outlying jurisdictions issuance of permits.
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Article 6. Miscellaneous provisions
Sec. 13-24-100. Reservation of rights.
Sec. 13-24-101. Special agreements or arrangements.
Secs. 13-24-102—13-24-109. Reserved.

ARTICLE 1. GENERALLY AND DEFINITIONS

Sec. 13-24-1. Definitions.

Unless the context specifically indicates otherwise, the meanings of terms used in this chapter shall be the definitions as set forth in section 13-4-1 of chapter 13-4, which are hereby incorporated by reference into this chapter. Terms for which definitions are not specifically provided shall be interpreted consistent with the intent and substance of this chapter and as otherwise provided by state regulation at 0400-40-14-.03 or EPA regulation at 40 C.F.R. § 403.3.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

ARTICLE 2. SYSTEM DISCHARGE AND INCORPORATION OF FEDERAL AND STATE REQUIREMENTS

Sec. 13-24-20. [User compliance].

User compliance with these requirements is required whether or not such requirements are specifically incorporated into an SIU discharge permit or other user permit. This includes fees and charges as set forth in chapters 13-8 and 13-28, as well as other fees the division of public works may impose (e.g., permit fees, sampling fees, and inspection fees) on users.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-21. Incorporation of Federal and State pretreatment requirements by reference.

The regulatory requirements pertaining to users as set forth in: (a) 40 C.F.R. Part 403, (b) 40 C.F.R., Chapter I (Environmental Protection Agency), Subchapter N (Effluent Guidelines and Standards), Parts 405 et. seq., and (c) Tennessee Pretreatment Requirements as set forth in Chapter 0400-40-14, are hereby incorporated by reference, including all future changes to such regulations. User compliance with these requirements is required, and subject to enforcement for noncompliance, whether or not such requirements are specifically incorporated into an SIU discharge permit or other user permit.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-22. SIU permits and other permits.

A. Requirements to obtain a permit. Except as provided in subsection (C), below, the discharge of wastewater by: (i) a significant industrial user; or (ii) such other commercial or industrial facility that the city, based upon the exercise of its discretion, identifies as requiring a discharge permit, is illegal unless such entity has an SIU discharge permit or other user permit, as applicable, issued by the city or an outlying jurisdiction which is authorized under the city's pretreatment program and this chapter to issue a discharge permit.

B. Discretionary permitting of non-significant industrial users. In addition to food establishments and waste haulers, non-significant industrial users that the city, subject to its discretion, may require to obtain an other user permit are commercial or industrial facilities that: result in additional treatment costs to the city; have the potential for discharge of acidic wastewater; have the potential for discharge of wastewater with offensive characteristics (e.g., odors); have a wastestream or treatment process that the city believes is preferable to be regulated under a permit; any new or expanded development where the additional flows raise potential concerns regarding capacity associated with the collection system, pump station, and/or WWTP; discharge wastewater containing a pollutant that could potentially result in additional requirements (e.g., monitoring or effluent limitation) being imposed in the city's NPDES permit; or as the city otherwise deems appropriate. Conditions included in other user permits and the city regulation of non-significant industrial users are subject to the city's sole discretion.

C. Time frame for obtaining permit. An existing user designated by the control authority as requiring an SIU discharge permit or other user permit, shall submit a permit application and/or such other information as the city may require for a permit within the timeframe specified by the city. Any proposed new discharger which has not discharged prior to the date it is notified that it must be permitted, shall not discharge to the system until a permit is issued and it is in compliance with the terms of such permit. The city may issue individual or general discharge permits. It is illegal to discharge wastewater to the city's POTW (including the collection system) in violation of a discharge permit, other user permit and/or this chapter. The city may adjust the timeframes for applying for a permit on a case-by-case basis as it deems appropriate.

D. Construction summary submission. A letter report setting forth an engineering summary of proposed changes shall be submitted to the control authority prior to commencement of construction, if applicable, by any existing or other industrial or commercial facility intending to discharge to the city's POTW. The control authority does not by its approval of the letter report, submitted by an industrial or commercial facility, warrant or aver in any manner that the implementation of such measures will result in compliance with the applicable pretreatment requirements. Notwithstanding any approval of such letter report by the city, the industrial or commercial facility remains solely responsible for compliance with the applicable pretreatment requirements and all other Federal, state, and local requirements.

E. City options for non-significant industrial users. Notwithstanding anything to the contrary in this chapter, nothing herein shall preclude the City of Memphis from issuing a letter or other authorization allowing discharge into the POTW for wastewater involved in groundwater clean-ups or other such discharges as the city deems appropriate. SIUs, however, shall be regulated by an SIU discharge permit (see section 13-24-22(F)).

F. SIU discharge permits.

1. Except as otherwise specifically provided in this chapter, an SIU shall apply for and obtain an SIU discharge permit (individual or general).
2. The application for an individual SIU discharge permit shall contain, but not be limited to, the following information: Standard industrial classification; facility name, physical address, and

mailing address; if applicable, corporate name and address; facility contact name and contact information; authorized representative of the user; date facility began operations or expects to start-up; number of employees; water supply and use information; raw material and chemical use rates; production rates; byproduct and waste generation rates; if applicable, service volume rates; if applicable, descriptions of onsite and office waste storage and disposal; volumes of wastewater to be discharged, whether process wastewater, equipment or vehicle wash water, condensate, non-contact cooling water, boiler blowdown, storm water, domestic sanitary wastewater, or other wastewater; wastewater constituents and characteristics; time and duration of discharge, and whether discharges are batch or continuous; average wastewater flow rates, including daily, monthly, and seasonal variations, or estimates of such where such information is not yet available; site plans and floor plans showing all drains and sewers, description of activities, facilities and plant processes; if applicable, descriptions of pretreatment systems; discharge and monitoring locations; and any additional information, data, diagrams, and drawings as required by the control authority to make permitting decisions. Applications for specialized individual permits, such as for groundwater remediation sites, may not require all the information listed above. This will be determined by the control authority.

3. Except for existing dischargers, industrial users seeking an SIU discharge permit shall obtain a permit application form from the control authority and file with the control authority a completed permit application form with all required descriptions, certifications, determinations, reports, information, data, plans, diagrams, and drawings, in the form prescribed by the control authority, not less than 180 days prior to the first discharge of industrial wastewater to the POTW, unless modified or waived by the control authority. Existing dischargers shall file for a permit in accordance with section 13-24-22(C), above.

4. At the discretion of the control authority, the control authority may use general SIU discharge permits to control SIU discharges to the POTW if, in the opinion of the control authority, the following conditions are met. All facilities to be covered by a general permit must:

   a. Involve the same or substantially similar types of operations;

   b. Discharge the same types of wastes;

   c. Require the same effluent limitations;

   d. Require the same or similar monitoring; and

   e. In the opinion of the control authority, are more appropriately controlled under a general permit than under individual permits.

5. To be covered by the general SIU discharge permit, the SIU must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general SIU discharge permit, any requests in accordance with section 13-24-42(H) for a monitoring waiver for a pollutant neither present nor expected to be present in the discharge, and any other information the control authority deems appropriate. A monitoring waiver for a pollutant neither present nor expected to be present in the discharge is not effective in the general SIU discharge permit until after the control authority has provided written notice to the SIU that such a waiver request has been granted in accordance with section 13-24-42(H).

G. Other user permits.

1. A user required to obtain an other user permit shall submit an application, or such information as the city may require, for developing permit conditions and evaluating issues associated with the other user permit, within the timeframe identified by the city.

2. Subject to its discretion, the control authority may use general other user permits to control non-SIUs or other users to the POTW subject to such requirements as the city deems appropriate.

H. Requirement for a permittee with a general permit to obtain an individual permit. Notwithstanding any provision to the contrary, the city may require any permittee subject to a general SIU discharge permit or a general other user permit to be covered by an individual permit instead. In such instance, the permittee shall submit an individual permit application, or such information as the city may require, as applicable, within the timeframe specified by the city.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-23. Permit provisions.

A. General authority/change of discharge. The control authority has the right to deny issuance of a permit (and, as such, the use of the city's sewer system and treatment facilities) or to impose such conditions in a discharge permit as the city deems appropriate, including conditions upon the types of wastes that can be discharged (e.g., precluding wastes which are solid or viscous in nature), new or increased contributions of pollutants, or changes in the nature of pollutants to the POTW by industrial users or other users. Except as otherwise provided by the control authority, any significant industrial user changes that have the potential to substantially increase flow or pollutants discharged or otherwise substantially affect the POTW, the treatability of the wastewater entering the POTW, or the ability of the POTW to meet NPDES, sludge and other applicable requirements, are subject to control authority approval prior to SIU implementation. The authority may require the SIU to undertake a compatibility study to demonstrate to the satisfaction of the control authority that the wastewater to be discharged is compatible with the existing POTW, will not affect any requirements imposed upon the city (including sludge disposal requirements), and will not otherwise adversely affect the POTW. The control authority may preclude the discharge of certain wastes even if those wastes would otherwise meet numeric effluent limits for specific pollutants.

B. Requirements applicable to all users. Users, whether permitted (e.g., with an individual or a general permit), are hereby expressly subject to all provisions pertaining to users as set forth in: (1) 40 C.F.R. Part 403, (2) 40 C.F.R., Chapter I (Environmental Protection Agency), Subchapter N (Effluent Guidelines and Standards), Parts 405 et. seq. (categorical pretreatment requirements), (3) Tennessee pretreatment requirements as set forth in Rule 0400-40-14-.05, and (4) This chapter, as well as all other applicable ordinances, regulations, charges, and fees administered by the division of public works. User compliance with these requirements is required whether or not such requirements are specifically incorporated into an SIU discharge permit or other user permit.

C. Permit conditions. SIU discharge permits and other user permits, whether individual or a general permit, may contain such conditions as the city deems appropriate including, but not limited to, the following conditions:

1. Minimum and maximum pH limits in standard units and/or hydroxide loading;
2. Daily maximum limits, weekly average limits, monthly average limits, and instantaneous maximum limits
3. Daily maximum, weekly and monthly average discharge flow limits and, when deemed appropriate by the control authority, flow regulation and/or equalization, including average and/or maximum flow rates;
4. Requirements for installation of inspection and sampling facilities, and when required, for continuous pH monitoring and flow monitoring;
5. When categorical standards are applicable, categorical pretreatment standards, effluent limits, best management practices, baseline monitoring reports, compliance monitoring, and certification statements, based on applicable general pretreatment standards in Part 403 of the Federal Regulations;
6. Other best management practices (e.g., to implement local limits and/or the requirements of sections 13-24-43 and 13-24-44 in addition to, or in lieu of, the underlying 13-24-43 and 13-24-44);
7. A prohibition on the use of dilution to meet permit limits (e.g., to meet color limits) and/or the imposition of mass limitations to prevent dilution to meet applicable pretreatment standards or pretreatment requirements or where otherwise deemed appropriate;
8. Self-monitoring, sampling, reporting (e.g., electronic reporting), notification and record keeping requirements, including an identifica-

tion of the pollutants to be monitored, sample location, sampling frequency, sample type, and numbers, types, and standards for tests;

9. Requirements for submission of self-monitoring and other reports;

10. Maintaining plant records relating to wastewater discharge, as specified by the control authority, and for affording the control authority access thereto;

11. Maximum discharge rates, or other appropriate limits or prohibitions, when a potentially incompatible pollutant is proposed or present in the user's wastewater discharge or otherwise deemed appropriate by the control authority;

12. Penalties and damages for violation of the permit and provisions of chapter 13-24 of this title, including any daily penalties, costs to the control authority, and damages. Statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any schedule to achieve compliance with applicable requirements, however, such schedules do not extend the compliance date beyond applicable Federal and state deadlines;

13. Statement of duration;

14. Statement of non-transferability or a provision allowing transfer of a permit with, at a minimum, prior notification to the control authority and provision of a copy of the existing control mechanism to the new owner or operator;

15. When deemed appropriate by the control authority, compliance schedules to meet applicable requirements (e.g., local ordinance requirements and/or Federal Categorical Pretreatment Standards);

16. Requirements for repeat sampling after becoming aware of a violation;

17. Requirements to control slug discharges, if determined by the control authority to be necessary;

18. Requirements pertaining to the proper operation and maintenance of the user's treatment, sampling and analytical equipment, and notification to the authority regarding the failure of such equipment;

19. Requirements to address control authority concerns about the potential effect of influent sulfur content (e.g., upon the biogas at the WWTP) or the effect of other wastewater characteristics upon activities at the WWTP;

20. Action levels;

21. Other conditions as deemed appropriate by the control authority; and

22. The process for seeking a waiver from monitoring for a pollutant neither present nor expected to be present in the discharge in accordance with section 13-24-42(H).

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-24. Time period of permits; continuation of expired permits.

A. SIU discharge permits shall be issued for a specified time period, not to exceed five years. Other user permits may be issued for such time period as the city deems appropriate. To continue discharging wastewater to the POTW, a user with an existing permit must obtain a permit application form from the control authority, if applicable, and file with the control authority a completed permit application and/or such other information required by the city with all required descriptions, certifications, determinations, reports, information, data, plans, diagrams, and drawings, in the form prescribed by the control authority not less than 180 days prior to the expiration date of the existing discharge permit (unless an alternative period is provided by the city). General permits are automatically continued after its expiration date pending a city decision to reissue the general permit, except for any discharger that does not timely submit such information as required by the city, if applicable.

B. Notwithstanding any provision to the contrary, the conditions of an expired SIU discharge permit and others permits, as applicable, continue in force until the effective date of a new permit or the date of a decision by the city not to reissue the permit, as applicable, if: (i) the permittee has submitted a complete and timely permit application or such other information as the control authority may require; and (ii) the control authority, through no fault of the permittee, does not reissue a permit on or before the expiration date of the previous permit (for example, when issuance is impractical due to time or resource constraints).

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-25. Modification, suspension, or revocation of permits and appeals.

A. During the life of the permit, the control authority may conduct review of the permit to assess if the individual or general permit should be modified, suspended, or revoked.

B. The terms and conditions of a permit, or any part thereof, are subject to modification for good cause, including, but not limited to, the following reasons:

1. To incorporate any new or revised Federal, state, or local requirements;
2. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character;
3. A change in the POTW'S NPDES permit or in the POTW (e.g., changes in the design or capability of WWTP or sludge disposal options);
4. A change in any condition that requires either a temporary or permanent reduction or elimination of the authorized activity;
5. Information indicating that the authorized discharge poses a threat to the city's WWTP (e.g., would adversely impact the wastewater treatment process) or the collection system (e.g., could cause corrosion to the pipes or pumping station), city personnel, the receiving waters, or that contradicts prior information;
6. Violation of any term or condition of the permit and/or any requirement set forth in applicable law, regulation, and/or this chapter;
7. Misrepresentations or failure to fully disclose all relevant facts in the permit application or in any required reporting or the tampering of monitoring equipment;
8. Failure to allow timely access to the user's facility or records;
9. Failure to timely pay fines or applicable sewer charges;
10. Revision of or a grant of variance from categorical pretreatment standards pursuant to Tennessee Rule 0400-40-14-.13;
11. To correct typographical errors, omissions, or other errors in the permit;
12. Changes to the local sewer discharge requirements;
13. To change monitoring, sampling, or reporting requirements; and/or
14. For such other reason as the city deems appropriate.

C. When a permit is modified, only the conditions subject to modification are reopened. The user may request that the control authority modify the permit. All other terms and conditions of the existing SIU discharge permit and/or other user permit remain unchanged. In lieu of modifying or changing an existing permit, the control authority may require the user to apply for a new permit when there are significant changes to a user's facility, significant changes to the discharges, or other good cause exists. A user newly designated as a significant industrial user shall obtain an SIU permit, in which case its other user permit for the same discharge, if applicable, shall terminate upon issuance of an SIU discharge permit.

D. A request for modification or other change to a permit does not stay any term or condition set forth in the existing or modified permit pending a determination upon the request. The control authority may, upon its own initiative or in response to a request by the permittee, stay contested permit conditions or actions.

E. Any user is subject to having its permit modified, suspended, or revoked and sewer service discontinued for cause, including:

1. Violation of the SIU discharge permit, other user permit, or any provision of this chapter;
2. Failure of a user to fully disclose all relevant facts, or the permittee's misrepresentation of any relevant facts, including the reporting of the wastewater constituents and characteristics of its discharge;
3. Failure of the user to report significant changes in operations, which affect wastewater constituents and characteristics;
4. Refusal of reasonable access at the user's premises for the purpose of inspection or monitoring the applicable sewage or wastewater system;
5. Refusal or failure to pay all appropriate fees, charges, or civil penalties;

6. Causing the city to violate any condition of its NPDES permit(s); or

7. A determination by EPA, TDEC, or the control authority that the permitted activity endangers human health or the environment and can only be regulated to acceptable levels by permit modification or termination.

F. Duty to provide information: The user shall furnish the control authority, within a reasonable time, any information which the control authority may request to determine whether cause exists for issuing, modifying, reissuing, suspending, or revoking an SIU discharge permit or other user permit or to determine compliance. The user shall also furnish to the control authority, upon request, copies of records required to be kept. Where the user becomes aware that it failed to submit any relevant facts in an application for a permit, or submitted incorrect information in an application for a permit, report to the control authority, or in any other correspondence pertaining to its regulated activities, it shall promptly submit such facts or information.

G. A user shall not refuse to provide the City of Memphis or its representatives (e.g., inspector) information or refuse to allow the city to undertake actions authorized by this chapter, based upon the user's belief that the information would be confidential business information. The user may request that the information be treated as confidential in accordance with section 13-24-29.

H. A permittee shall have the right to appeal the issuance, reissuance, modification, suspension, or revocation of a permit to the local hearing authority under article 4 of this chapter. Any appeal must be received within 30 days of the city's action.

I. Action of the control authority for which review has been available (e.g., enactment of an ordinance, or issuance, reissuance, modification, suspension, or revocation of a permit) shall not be subject to administrative or judicial review in any civil or criminal proceeding for enforcement. Among other things, this means that an underlying permit condition or ordinance requirement cannot be challenged in an enforcement proceeding.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-26. Limitation to specific operation of specific user; nontransferable.

A. SIU discharge permits and other user permits are issued to a specific user for a specific operation and the SIU discharge permit and other user permit shall not be reassigned, transferred, or sold to a new owner, other industrial user, or different premises. The city, subject to its discretion, may modify the existing SIU discharge permit and/or other user permit to include the new owner and may make such changes to the SIU discharge permit or other permit as the city deems appropriate.

B. The user shall provide the city 90-days written notice prior to requested transfer of a permit and shall include a permit application (unless waived by the city).
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-27. Monitoring facilities, provisions to be outlined in discharge permit.

Monitoring facilities, in accordance with section 13-24-47 of this chapter, may be required in the SIU permit or other user permit.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-28. Right of inspection, sampling and oversight; access to premises by control authority.

Inspectors may include representatives of the division of public works, control authority, and/or its designee (including contractors), bearing proper credentials and identification. Inspectors shall be permitted to enter appropriate property areas at all reasonable times for the purpose of inspection, observation, measurement, sampling, and testing as the inspector deems necessary, to assure user compliance with [this chapter]. Sampling, inspection, and other oversight may be undertaken at any location at the facility site including, but not limited to, effluent discharge points, internal wastestream points, and manholes located on the user's owned or occupied property. This includes the authority to inspect the production, sewage, and wastewater facilities of any user to ascertain whether the purposes of this chapter are being met and all requirements are being complied with. Persons or occupants of premises where wastewater is discharged shall allow the inspector ready access at all reasonable times, at a minimum, the days and hours of operations indicated in the permit application submitted by the user, for the purposes of inspection, sampling, testing, photographing, videotaping, copying documents and records, and conducting interviews in the performance of their duties. Access to the property for the purposes set forth herein shall not be conditioned upon the City of Memphis and/or the inspectors signing an access agreement, including, but not limited to, a

document pertaining to the potential waiver or release from liability or provisions pertaining to secrecy, confidentiality, or disclosure of information. The inspector shall have the right to set up on the user's property such sensors or other devices as are necessary to conduct sampling, metering operations, or other oversight, which includes, but is not limited to, composite samplers, discrete samplers, flow measuring devices, continuous monitoring devices and/or sensors, controllers, remote telemetry devices, modems, and cleaning devices such as air blasts or water blasts. Where a user has security measures in force, which would require proper identification and clearance before entry into the premises, the user shall make necessary arrangements with security personnel so that, upon presentation of suitable identification, the inspectors shall be permitted to enter without delay for the purposes of performing their specific responsibilities.
(Ord. No. 5793, §§ 3, 5 8-17-2021)

Sec. 13-24-29. Availability of information on user to public; use of claimed confidential information.

A. Confidential business information. All information and data on a user obtained from reports, Questionnaires, applications, permits, inspection, monitoring programs, or submitted to the control authority pursuant to this chapter shall be available to the public, subject to the restrictions of the Tennessee Open Records Act codified at [T.C.A. §] 10-7-501 et seq., and applicable statutory exemptions. Any such claim must be asserted at the time of submission in the manner prescribed on the application form or instructions, or, in the case of other submission, by stamping the words "confidential business information" on each page containing such information. If no claim is made at the time of submission, the control authority may make the information available to the public without further notice. If a claim is asserted, the information will be treated in accordance with the standards in 40 C.F.R. Part 2 (Public Information).

B. Effluent data. Notwithstanding any provision to the contrary, user information and data which are effluent data shall be available to the public without restriction.

C. State or control authority. All other information which is submitted to the State or control authority shall be available to the public at least to the extent provided by T.C.A. §§ 10-7-501 et seq.

D. Information requested by another governmental agency. Where user information is lawfully requested by another governmental agency (e.g., TDEC or EPA), the city may provide such information to the governmental agency and the city will not be required to make a confidentiality determination regarding such information. The user seeking confidentiality protection of the information shall bear the burden of demonstrating to the other governmental agency that such information is entitled to confidential protection. Prior to providing such information to the other governmental agency, the city shall provide notice to the user.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-30. Reporting and recordkeeping.

A. General. The control authority has the right to require the submission of such notices and self-monitoring reports from users as are necessary to assess and assure compliance by, among others, users with pretreatment standards and pretreatment requirements, including, but not limited to, the reports required in 40 C.F.R. § 403.12. Industrial users shall submit the following reports, as applicable, and industrial users and other users shall submit such reports as may be required by the control authority and shall contain the certification statement set forth in subsection 13-24-30(J)(1), below.

B. Baseline monitoring report (BMR).

1. Within either 180 days after the effective date of a categorical pretreatment standard or the final administrative decision on a category determination under Tennessee Rule 0400-40-14-.06(1)(d), whichever is later, existing categorical industrial users currently discharging to or scheduled to discharge to the WWTP shall submit to the control authority a report which contains the information listed in subsections (2)a—(2)e, (3) and (4), below. At least 90 days prior to commencement of their discharge, new sources and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical standard, shall submit to the control authority a report which contains the information listed in subsection (2) below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards and shall provide estimates of the information required under

subsections (B)(2)(d) and (E), below, regarding its anticipated flow and quantity of pollutants to be discharged.

2. Industrial users described above shall submit the information set forth below.

   a. Identifying information. The username and address of the facility including: the names of operators and owners.

   b. Permit information. A listing of any environmental control permits held by or for the facility.

   c. Description of operations. A brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production), and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram, which indicates points of discharge to the WWTP from the regulated processes.

   d. Flow measurement. Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from each regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula pursuant to section 13-24-42(B) (See Tennessee Rule 0400-40-14-.06(5)). The control authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations. In addition, discharge flow data showing whether flow-proportional, time-proportional composite, and/or grab sampling are required for collecting representative samples for discharge monitoring purposes based on the consistency of the discharge flows.

   e. Measurement of pollutants.

      (i) Identification of the categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes for existing sources.

      (ii) The results of sampling and analysis identifying the nature and concentration (and/or mass, where required by the pretreatment standard or by the control authority), of regulated pollutants in the discharge from each regulated process.

      (iii) Instantaneous, daily maximum, and long-term average concentrations (or masses, where required), shall be reported.

      (iv) The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in 40 C.F.R. § 136 and amendments, unless otherwise specified in an applicable categorical standard. Where the pretreatment standard requires compliance with a best management practice (BMP) or pollution prevention alternative, the industrial user shall submit documentation as required by the control authority, or the applicable standards, to determine compliance with the pretreatment standard.

      (v) The industrial user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this subsection.

      (vi) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the industrial user should measure the flows and concentrations necessary to allow use of the combined wastestream formula pursuant to section 13-24-42(B) and Tennessee Rule 0400-40-14-.06(5) to evaluate compliance with the pretreatment standards.

      (vii) The control authority may allow the submission of a baseline report, which utilizes only historical data,

so long as the data provide information sufficient to determine the need for industrial pretreatment measures.

(viii) The baseline report shall indicate the time, date, and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the WWTP.

3. Compliance certification. Existing industrial users shall submit a statement, reviewed by the authorized representative of the industrial user and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards.

4. Compliance schedule. If additional pretreatment and/or O&M will be required to meet the pretreatment standards, existing industrial users shall submit the shortest schedule by which the user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule for meeting a categorical pretreatment standard shall not be later than the compliance date established for the applicable categorical pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in subsection (C) of this section, below.

C. Compliance schedule progress report. The following conditions shall apply to the compliance schedule required under the BMR section above:

1. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring a Tennessee State licensed professional engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation).

2. No increment referred to above shall exceed nine months.

3. The user shall submit a progress report to the control authority no later than 14 days following each date in the schedule and the final date of compliance including, at a minimum, whether or not it has complied with the increment of progress and, if not, the date on which it expects to comply with this increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule.

4. In no event shall more than nine months elapse between such progress reports to the control authority.

5. At the discretion of the control authority, progress reports may be submitted by the 15th of each calendar month until full compliance is achieved, as determined by the control authority.

D. Report on compliance with categorical pretreatment standard deadline. Within 90 days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source, following commencement of the introduction of wastewater into the POTW, any industrial user subject to pretreatment standards and requirements shall submit to the control authority a report containing the information described in [subsections] (B)(2)(d) and (e) and (B)(3). For industrial users subject to equivalent mass or concentration limits, established by the control authority in accordance with the procedures in section 13-24-42(E) or (F), this report shall contain a reasonable measure of the industrial user's long term production rate. For all other industrial users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period.

E. Self-monitoring reports (SMRs)

1. All significant industrial users (including CIUs, except for non-significant CIUs) must submit, at a frequency determined by the control authority, but no less than twice per year, reports indicating the nature, concentration of pollutants in the discharge, which are limited or otherwise required to be sampled by the

discharge permit and such other pretreatment standards as are applicable, and the measured or estimated average and maximum daily flows, as applicable, for the reporting period. In cases where the pretreatment standard requires compliance with a BMP (or pollution prevention alternative), the industrial user must submit documentation necessary to determine the compliance status of the industrial user, including documentation required by the control authority and/or the pretreatment standard. If a semi-annual reporting schedule is established, then such reports are to be submitted on April 15 and October 15 for the preceding six full-month calendar period, unless a different schedule is established by the control authority. Monthly self-monitoring reports (and reports at other frequencies established by the control authority) are required to be submitted on the 15th of the month following the compliance report (i.e., monthly compliance reports are due by the 15th of each successive calendar month) unless an alternative approach is established in writing by the control authority.

2. All self-monitoring reports must be signed and certified in accordance with this chapter (see subsection (J), below).

F. Potential reduced reporting for small CIUs. If allowed by State law or regulation, the control authority may reduce the requirement for self-monitoring reports by a categorical industrial user in section 13-24-30(E) herein, to a requirement to report no less frequently than once a year, unless required more frequently in the pretreatment standard or by the State, where the industrial user's total categorical wastewater flow does not exceed any of the following, and the industrial user otherwise meets the requirements as set forth in 40 C.F.R § 403.12(e)(3)(ii)—(v).

1. One one-hundredth (0.01) of a percent of the design dry weather hydraulic capacity of the POTW or 5,000 gallons per day, whichever is smaller, as measured by a continuous effluent flow monitoring device, unless the industrial user discharges in batches;

2. One one-hundredth (0.01) of a percent of the design dry weather organic treatment capacity of the receiving treatment plant as determined by the control authority; and

3. One one-hundredth (0.01) of a percent of the maximum allowable headworks loading (MAHL) of the receiving treatment plant for any pollutant regulated by applicable categorical pretreatment standard for which local limits were developed as determined by the control authority.

G. Reporting of alternate concentration or mass limits. Where an alternate concentration or mass limit has been calculated in accordance with section 13-24-42(F), this adjusted limit, along with supporting data, shall be submitted to the control authority.

H. Reports of changed conditions. Each industrial user must notify the control authority at least 30 days before any significant changes to the industrial user's operations or system or any substantial increase to the nature, quality, or volume of its wastewater discharged, including the listed or characteristic hazardous wastes for which the industrial user has submitted initial notification under subsection (K), below, or any changes that could reasonably be expected to cause interference or pass-through.

1. The control authority may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a new or updated permit application.

2. The control authority may issue an individual or general permit under section 13-24-22, modify, suspend, or revoke an existing discharge permit in response to, among other things, changed conditions or anticipated changed conditions.

   Control authority approval is required before a significant industrial user can make such changes.

I. Report of potential problems.

1. In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, or a slug discharge that might cause potential problems to the POTW (including problems to the collection system that may be caused by fats, oils or grease clogging the sewer system or lift stations), the industrial user shall immediately notify the control authority of the incident. This notification shall include

the location of the discharge, type of waste, concentration, and volume, if known, and corrective actions taken by the industrial user.

2. Within five days following such discharge, the industrial user shall, unless waived by the control authority, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the industrial user to prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the WWTP, natural resources, or any other damage to person or property; nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to this chapter.

3. A notice shall be permanently posted on the industrial user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in subsection (1), above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

4. Significant industrial users are required to notify the control authority immediately of any changes at its facility that significantly increases the potential for a slug discharge.

J. Certification statements.

1. The following reports shall be signed by the authorized representative of the user and shall have the certification statement set forth below in the indented language: permit applications, periodic self-monitoring reports, compliance schedule compliance reports, baseline monitoring, reports of accidental or slug discharges, and such other reports as the city identifies in writing to a user:

   I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

2. Annual certification for non-significant categorical industrial users. The city may determine that an industrial user, subject to categorical pretreatment standards, is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user meets the definition of "non-significant categorical industrial user" in section 13-4-1 due to its discharge of less than 100 gallons of total categorical wastewater on any given day. A facility identified by the city as a non-significant categorical industrial user based upon such criteria must annually submit the following certification statement signed by the authorized representative of the industrial user filling in the appropriate information:

   Based on my inquiry of the person or persons directly responsible for managing compliance with the categorical pretreatment standards under 40 C.F.R. ____, I certify that, to the best of my knowledge and belief that during the period from _____, _____ to _____, _____ [months, days, year]:

   a. The facility described as _____ [facility name] met the definition of a non-significant categorical industrial user as described in section 13-4-1 Definitions;

   b. The facility complied with all applicable pretreatment standards and requirements during this reporting period; and

   c. The facility never discharged more than 100 gallons of total categorical wastewater on any given day during this reporting period.

   This compliance certification is based on the following information.

   _____.

3. Certification of pollutants not present. Industrial users that have an approved monitoring waiver based on section 13-24-42(H) must certify on each report with the following statement that there has been no increase in the pollutant in its wastestream due to activities of the industrial user.

   Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 C.F.R. _____ [specify applicable National Pretreatment Standard part(s)], I certify that, to the best of my knowledge and belief, there has been no increase in the level of [list pollutant(s)] in the wastewaters due to the activities at the facility since filing of the last self-monitoring report under section 13-24-30(E).

K. Notification of the discharge of hazardous wastes.

(1) Industrial/commercial users shall notify the control authority, the EPA Regional Waste Management Division, and the Tennessee Department of Environment and Conservation (TDEC) in writing of any discharge into the POTW of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 C.F.R. Part 261 or Rule 0400-2-01. Such notification must include the name of the hazardous waste as set forth in 40 C.F.R. Part 261 or Rule 0400-12-01, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the industrial user discharges more than 100 kilograms of such waste per calendar month to the POTW, the notification shall also contain the following information to the extent such information is known and readily available to the industrial user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the waste stream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months. All notifications for dischargers existing at the time should have taken place within 180 days of the city's first adoption of this rule (i.e., within 180 days of March 26, 1982). Industrial users who commence discharging after March 26, 1982, were and are required to provide the notification no later than 180 days after the discharge of the listed or characteristic hazardous waste. Any notification under this subsection need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges must be submitted under section 13-24-30(H). The notification requirement in this section does not apply to pollutants already reported under the self-monitoring requirements of this chapter.

(2) Dischargers are exempt from the requirements of subsections (K)(1) in this section during a calendar month in which they discharge no more than 15 kilograms (kg) of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 C.F.R. §§ 261.30(d) and 261.33(e). A discharge of more than 15 kg of non-acute hazardous wastes in a calendar month or of any quantity of acute hazardous wastes as specified in 40 C.F.R. §§ 261.30(d) and 261.33(e) requires a one-time notification.

(3) In the case of any new regulations under Section 3001 of the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. § 6921, identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the industrial user must notify the POTW, the EPA Regional Waste Management Division control authority, and the TDEC of the discharge of such substance within 90 days of the effective date of such regulations.

(4) In the case of any notification made under subsection (K) of this section, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

L. Recordkeeping. Users subject to the reporting requirements of this chapter shall retain and make available for inspection and copying all reports, and records of information obtained pursuant to any monitoring activities required by this chapter, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with best management practices. Records shall include the date, exact place, method, and time of sampling, and the

name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any enforcement action or litigation concerning the user's compliance with its discharge permit or this sewer ordinance, or an enforcement action or litigation concerning the city, or where the user has been specifically notified of a longer retention period by the control authority.

M. Submission of all monitoring data. A user may monitor its discharge more frequently than the minimum set forth in its discharge permit, this sewer use ordinance, or as otherwise required. If a user subject to reporting requirements monitors any regulated pollutant at the appropriate sampling location more frequently than required by the control authority, using the procedures prescribed in section 13-24-48, the results of this monitoring shall be included in the reports required under section 13-24-30 and/or the discharge permit, as applicable.

N. Electronic reporting. Reports of permittees shall contain all results of sampling and analysis of the discharge, including the flow, nature, concentration, production and/or mass, where required. Upon the City of Memphis receiving approval from TDEC of a Cross Media Electronic Reporting Regulation (CROMERR) system, compliant with the Code of Federal Regulations Title 40, Part 3 (CROM ERR), the City of Memphis may require all or some of its users to submit such reports as the city deems appropriate in an electronic-only format through a CROMERR compliant system. CROMERR is an Environmental Protection Agency approved system allowing states, tribes, and local governments that receive or plan to begin receiving electronic documents in lieu of paper documents to satisfy regulations under an authorized program. Each user shall submit such CROMERR reports as the city identifies in a control mechanism (e.g., permit or letter) to the user within the time frame set forth, which shall provide the user at least 90 days to become CROMERR compliant. The user may request additional time for good cause, but such request does not automatically extend the deadline for becoming CROMERR compliant. New significant industrial user dischargers, including those located in outlying jurisdictions, shall submit reports through a CROMERR compliant system unless waived by the City of Memphis, Division of Public Works, in writing.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Secs. 13-24-31—13-24-39. Reserved.

ARTICLE 3. DISCHARGE TO PUBLIC SANITARY SEWERS

Sec. 13-24-40. Reserved.

Sec. 13-24-41. Discharges of storm water, groundwater, etc., into sanitary sewer prohibited; exceptions; discharges into sanitary sewer system other than through specifically permitted building sewer, permit required.

A. No person shall discharge or cause to be discharged any storm water, surface water, groundwater, roof runoff, subsurface drainage, or uncontaminated cooling water to any sanitary sewer except by permission of the City of Memphis and under permit from the control authority.

B. No person shall discharge, whether directly or by truck or other transportation, any substance into a manhole or other opening in a public sewer, other than through an approved building sewer, unless he/she has been issued a discharge permit by the control authority that specifically authorizes a discharge at such location. No person shall discharge any holding tank waste into the city POTW, including the collection system, unless he/she has been issued a permit by the control authority specifically authorizing such discharge. Unless otherwise allowed by the control authority under the terms and conditions of the permit, a separate permit must be secured for each separate discharge. This permit may state the specific location of discharge, the time of day the discharge is to occur, the volume of the discharge, the maximum discharge rate, wastewater constituents and characteristics, and such other conditions as the control authority deems appropriate. If a permit is granted for discharge of such waste into a community sewer, the user shall pay the applicable charges and fees and shall meet such other conditions as are required by the control authority.

C. No person who generates wastewater at one property shall discharge it at another property without approval from the control authority.

D. No person shall flush commercial or other non-domestic wastewater down the toilet or discharge it through other bathroom connections (e.g., shower drain). (Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-42. Implementation of categorical pretreatment standards.

A. *Compliance with categorical pretreatment standards required.* Users must comply with the categorical pretreatment standards found at 40 C.F.R. Chapter I, Subchapter N, Parts 405-471, as applicable. Compliance by existing sources with categorical pretreatment standards shall be within three years of the date the standard is effective unless a shorter compliance time is specified in the appropriate subpart of Subchapter N or the Federal Register promulgation of the Standard. Existing sources, which become industrial users subsequent to promulgation of an applicable categorical pretreatment standard, shall be considered existing industrial users except where such sources meet the definition of a new source. New sources shall install, have in operating condition and, "start-up" all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge. Within the shortest feasible time (not to exceed 90 days), new sources must meet all applicable pretreatment standards.

B. *Use of the combined wastestream formula*. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the control authority may impose an alternate limit in accordance with the combined wastestream formula as set forth in Tennessee Rule 0400-40-14-.06(5) or take such other action as necessary to assure compliance with categorical pretreatment standards.

C. *Fundamentally different factors variance*. A discharger may request a variance from categorical pretreatment standards in accordance with applicable procedures. See, e.g., Tennessee Rule 0400-40-14-.13.

D. *Net gross adjustment*. A categorical industrial user (CIU) may obtain a net/gross adjustment to a categorical pretreatment standard in accordance with the following subsections:

1. Categorical pretreatment standards may be adjusted to reflect the presence of pollutants in the industrial user's intake water in accordance with this section. Any industrial user wishing to obtain credit for intake pollutants must make application to the city. Upon request of the industrial user, the applicable pretreatment standard will be calculated on a "net" basis (i.e., adjusted to reflect credit for pollutants in the intake water) if the requirements of subsections (2) through (5) of this section are met.

2. Criteria.

   a. The applicable categorical pretreatment standards contained in 40 C.F.R. subchapter N specifically provide that they shall be applied on a net basis; or

   b. The industrial user demonstrates that the control system it proposes or uses to meet applicable categorical pretreatment standards would, if properly installed and operated, meet the pretreatment standards in the absence of pollutants in the intake waters.

3. Credit for generic pollutants such as biochemical oxygen demand (BOD), total suspended solids (TSS), and oil and grease should not be granted unless the industrial user demonstrates that the constituents of the generic measure in the industrial user's effluent are substantially similar to the constituents of the generic measure in the intake water or unless appropriate additional limits are placed on process water pollutants either at the outfall or elsewhere.

4. Credit shall be granted only to the extent necessary to meet the applicable categorical pretreatment standard(s), up to a maximum value equal to the influent value. Additional monitoring may be necessary to determine eligibility for credits and compliance with pretreatment standard(s) adjusted under this section.

5. Credit shall be granted only if the user demonstrates that the intake water is drawn from the same body of water as that into which the POTW discharges. The city may waive this requirement if it finds that no environmental degradation will result.

E. *Implementation of production-based limit.*

1. When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the control authority may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users.

2. Any industrial user operating under a control mechanism incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the control authority within two business days after the user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any industrial user not notifying the control authority of such anticipated change will be required to meet the mass or concentration limits in its control mechanism that were based on the original estimate of the long-term average production rate.

F. *Imposition of equivalent mass or concentration based limits.*

1. When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, the control authority may also establish equivalent mass limits so that local, state, or Federal authorities may enforce either concentration or mass limits. In the alternative, an industrial user may request that the control authority convert the concentration limits to equivalent mass limits and include only the equivalent mass limits in the permit. The determination to convert concentration limits to mass limits is within the discretion of the control authority. The control authority may establish equivalent mass limits in lieu of a concentration limit only if the industrial user meets all the conditions set forth in subsections (F)(1)(a) through (e) below.

   a. Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its discharge permit;

   b. Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical pretreatment standard and has not previously used or plan to use dilution as a substitute for treatment;

   c. Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;

   d. Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and

   e. Have consistently complied with all applicable categorical pretreatment standards during the period prior to the industrial user's request for equivalent mass limits.

2. An industrial user subject to equivalent mass limits must:

   a. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

   b. Continue to record the facility's flow rates with a continuous effluent flow monitoring device;

   c. Continue to record the facility's production rates and notify the control authority whenever production rates are expected to vary by more than 20 percent from its baseline production rates. Upon notification of a revised production rate, the control authority may reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and

   d. Continue to employ the same or comparable water conservation methods

and technologies as those implemented pursuant to subsection (F)(1)(a) of this section, so long as it discharges under an equivalent mass limit.

3. When developing equivalent mass limits, the control authority may:

   a. Calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the industrial user by the concentration-based daily maximum and monthly average standard for the applicable categorical pretreatment standard and the appropriate unit conversion factor;

   b. Upon notification of a revised production rate, reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility;

   c. Retain the same equivalent mass limit in subsequent discharge permit terms if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment; and

   d. Deny or condition equivalent mass limits upon the industrial user also being in compliance with section 13-24-46(C)(4) regarding the prohibition of bypass.

4. The control authority may convert the mass limits of the categorical pretreatment standards of 40 C.F.R. Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users. The conversion is at the discretion of the control authority.

5. If only equivalent mass limitations are included in the control mechanism, once included in the control mechanism, the industrial user must comply with the equivalent limitations in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

G. *Calculation of categorical limits*. Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day average limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation under applicable categorical pretreatment standards.

H. *Sampling waiver*. The control authority may authorize an industrial user subject to a categorical pretreatment standard to forego sampling of a pollutant regulated by a categorical pretreatment standard if the industrial user has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the discharge, is present only at background levels from intake water, and there will be no increase in the pollutant due to activities of the industrial user. See Tennessee Rule 0400-40-14-.12(5)(b). This authorization is subject to the following conditions:

1. The waiver may be authorized where a pollutant is determined to be present solely due to sanitary wastewater discharged from the facility, provided that the sanitary wastewater is not regulated by an applicable categorical standard and otherwise includes no process wastewater.

2. The monitoring waiver is valid only for the duration of the effective period of the individual control mechanism, but in no case longer than five years. The user must submit a new request for the waiver before the waiver can be granted for each subsequent control mechanism.

3. In making a demonstration that a pollutant is not present, the industrial user must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes.

4. The request for a monitoring waiver must be signed by an authorized representative of the user and include the certification statement in [section] 13-24-30(J)(3). See 40 C.F.R. § 403.6(a)(2)(ii) and Tennessee Rule 0400-40-14-.06(1)(b)2.

5. EPA and TDEC have determined that, where the lowest minimum detection level for a pol-

lutant as set forth in 40 C.F.R. Part 136 has been used in the analysis, it is appropriate to equate a non-detectable sample result as demonstrating that a pollutant is not present.

6. In order for a monitoring waiver approval by the control authority to be effective, it must be included as a condition in the user's discharge permit.

7. Upon approval of the monitoring waiver and revision of the user's control mechanism by the control authority, the industrial user must certify on each report with the statement in section 13-24-30(J)(3) that there has been no increase in the pollutant in its wastestream due to activities of the industrial user.

8. In the event that a waived pollutant is found to be present or is expected to be present because of changes that occur in the industrial user's operations, the industrial user must immediately comply with the monitoring requirements as set forth in section 13-24-30(E) or other more frequent monitoring requirements imposed by the control authority and notify the control authority.

9. This provision does not supersede certification processes and requirements established in categorical pretreatment standards, except as otherwise specified in the categorical pretreatment standard.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-43. General and specific prohibitions.

A. General prohibition against interference and pass-through. No person shall introduce into the POTW any pollutant(s) which cause pass-through or interference. This prohibition and the specific prohibitions in subsections (B)(1) through (11), below, apply to each person introducing pollutants into the POTW, whether or not the person is subject to other National Pretreatment Standards or any national, state, or local pretreatment requirements.

B. Specific prohibitions. No person shall discharge, or cause to be discharged, any of the following to the city's POTW (including the city's sewers):

1. Petroleum oil (e.g., gasoline, benzene, naptha, fuel oil, diesel fuel, jet fuel, or kerosene), nonbiodegradable cutting oil, products of mineral oil origin, or any other pollutant: (i) which causes interference or pass-through, (ii) creates a fire or explosion hazard in the POTW, including, but not limited to, wastewater with a closed cup flashpoint of less than 140° Fahrenheit or 60° Celsius using the test methods specified in 40 C.F.R. § 261.21, as determined by a Pensky-Martens Closed Cup Tester, using the test method specified in ASTM Standard D-93-79 or D-93-80 or a Setaflash Closed-Cup Tester, using the test method specified in ASTM Standard D-3278-78, and/or (iii) pollutants which cause an exceedance of ten percent of the lower explosive limit (LEL) at any point within the POTW.

2. Pollutants, including toxic or poisonous solids, liquids, vapors, or gases in sufficient quantity, either singly or by interaction with other wastes, to result in the presence of toxic gases, vapors, or fumes within the WWTP in a quantity that may injure personnel, cause workers to have acute health or safety problems, cause fires, explosions, interfere with any sewage or wastewater treatment process or any sanitary sewer system, constitute a hazard to humans or animals, threaten the public health or safety, create a public nuisance, or create any hazard in the receiving waters of the sewage or wastewater treatment plant.

3. Pollutants in violation of a pH minimum limit, i.e., having a pH lower than 5.5 standard units.

4. Pollutants with corrosive properties capable of causing damage or hazard to the structures, equipment, conveyances, and personnel of the sewerage works or interfering with the operation of the treatment facility.

5. Wastewaters in violation of a pH maximum limit, i.e., having a pH higher than 10.0 standard units unless prior approval of a higher limit is approved by the City of Memphis, Division of Public Works, and set forth in a discharge permit. In order to discharge a pH above 10.0 standard units, the city may require the user to submit a study identifying, among other things, the flow and pH concentrations requested, an estimate of the duration the discharge will exceed 10.0 standard units, the potential impacts of the high pH on the sewer system, lift

stations, WWTP or any other part of the POTW, and such other information as the city may request. In no event shall a user discharge a pH equal to or over 11.5 s.u.

6. Wastewaters exceeding the hydroxide loadings set forth in a discharge permit, as applicable.

7. Solid, viscous, or foaming substances in quantities of such size or amount as to reasonably raise a concern to the city of the potential to cause obstruction to the flow in sewers, overflows, Interference with the proper operation of the wastewater facilities, or cause a violation of the POTW's NPDES permit. This prohibition includes, but is not limited to, the discharge of user's, foaming agents, paper pulp, clays, ashes, bones, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, oil, grease, underground garbage, whole blood, paunch manure, hair and fleshing, wipes, bed pads, cotton tips, tissues, entrails, paper dishes, cups, Styrofoam, milk containers, etc., either whole or ground by garbage grinders. Should blood, tissue, or other prohibited body parts be unavoidably discharged into the sanitary sewer, then such discharge must be accompanied by or immediately followed with a liquid disinfectant; such disinfectant may include bleach.

8. Any trucked or hauled pollutants, except at discharge points designated by the control authority.

9. Any pollutant, including oxygen-demanding pollutants (e.g., BOD, etc.), released at a flow rate and/or pollutant concentration which will cause interference.

10. Any wastewater having a temperature which will inhibit biological activity in the WWTP resulting in interference, but in no case wastewater with a temperature resulting in the temperature at the introduction into the WWTP which exceeds 40°C (104° F) unless approved by the control authority.

11. Any wastewater or waste into street inlets or sewer manholes.

C. pH Limits. The pH discharge limit is an instantaneous reading of any discharge into the sanitary sewer and not an average of any kind. In addition to standard units, the city may establish limits on pH based upon the hydroxide loading.

D. *Limits on other corrosive pollutants*. The city may establish limits in a discharge permit on other pollutants (e.g., chloride and sulfates), as the city deems necessary to prevent corrosion to the collection system or other parts of the POTW.

E. *Dilution prohibition*. No industrial user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or pretreatment requirement or, in the case of other discharge limitations (e.g., local limits), unless expressly authorized by the control authority.

F. *Safe harbor affirmative defense*. A user shall have an affirmative defense in any action brought against it alleging a violation of the general prohibitions established in subsection (A) of this [section] and the specific prohibitions in subsections (B)(1), (2), (6) and (7) where the user can demonstrate that:

1. It did not know, or have reason to know, that its discharge, alone, or in conjunction with a discharge or discharges from other sources, would cause pass-through or interference, and a local limit designed to prevent pass-through and/or interference, as the case may be, fits one of the following descriptions:

   a. The local limit for that pollutant is established in section 13-24-44(C) for each pollutant in the user's discharge that caused pass-through or interference, and the user was in compliance with each such local limit directly prior to and during the pass-through or interference; or

   b. The local limit has not been established in section 13-24-44(C) for the pollutant(s) that caused the pass-through or interference, the user's discharge directly prior to and during the pass-through or interference did not change substantially in nature or constituents from the user's

prior discharge activity when the WWTP was regularly in compliance with the WWTP's NPDES permit requirements and, in the case of interference, applicable requirements for sewage sludge use or disposal.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-44. Certain discharge restricted, local limits, etc.

A. *Restricted discharges*. Except as otherwise specifically authorized by the control authority in writing, no person shall discharge or cause to be discharged the following described pollutants, substances, materials, wastewaters, and/or wastes. The limitations or restrictions of materials or characteristics of waste or wastewaters discharged to the sanitary sewer, shall not be violated without a variance being granted. The following are restricted discharges to the POTW:

1. Any liquid or vapor having a temperature higher than 150 degrees Fahrenheit (65 degrees Celsius).

2. Any wastewater or waste containing fats, wax, grease, or oils in excess of 100 milligrams per liter (mg/l) or containing substances which may solidify or become viscous at temperatures between 32 and 150 degrees Fahrenheit (zero (0) and 65 degrees Celsius). This 100 mg/l standard applies to hydrocarbons, whether measured as: (i) petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, (ii) animal or vegetable origin, or (iii) total hydrocarbons.

3. Any waste that has not been properly shredded. The installation and operation of any waste grinder equipped with a motor of three-fourths (0.75) horsepower or greater shall be subjected to the review and approval of the control authority.

4. Any wastewaters or wastes containing strong acid, iron pickling wastes, or any waters or wastes containing concentrated plating solutions whether neutralized or not, except by written permission of the control authority.

5. Any wastewater or wastes (e.g., contaminated waters, rinse waters, etc.) containing iron, chromium, copper, lead, mercury, zinc, other heavy metals or toxic substances to such degree that any such discharge exceeds the local limits established by the control authority unless a variance is obtained.

6. Any wastewater or wastes containing phenols and/or chlorophenols, to such degree that any such discharge in the composite sewage at the WWTP exceeds the limits established by the control authority.

7. Any radioactive wastes or isotopes of long half-life (over 100 days) without special permit. The radioactive isotopes (I 131 and P 32) used at hospitals are not prohibited if properly diluted at the source.

8. Materials, which exert or cause:

   a. Concentrations of inert suspended solids (such as, but not limited to, clays, fibers, fuller's earth, lime slurries, and lime residues) or of dissolved solids (such as, but not limited to, sodium chloride and sodium sulfate), which is reasonably anticipated to cause obstruction to the flow in sewers, damage to the sewer system, or interference.

   b. BOD, chemical oxygen demand, or disinfection requirements in such quantities as to constitute interference.

9. Wastewater containing objectionable substances, which are not readily amenable to treatment or reduction by the sewage treatment processes employed.

10. Any wastewater that may cause the wastewater treatment facility effluent or any product of the treatment process, residues, biogas, sludges, or scums to be unsuitable for reclamation and reuse or to interfere with the reclamation process.

11. Any wastewater that could have a detrimental environmental impact or create an objectionable color, foam, or nuisance in the waters of the state.

12. Any wastewater that could cause excessive collection or treatment costs or may use a disproportionate share of the POTW.

13. Any wastewater, which causes hazard to human life or creates a public nuisance.

14. Any wastewater containing hydraulic fluid, brake fluid, transmission fluid, steering fluid, motor oils, or lubricants removed from vehicles or other machinery except to the extent that there is a de minimis amount after having gone through an oil/water separator or other treatment device.

15. Any wastewater where there is a significant likelihood of producing toxic effects to the biota in the receiving water of the POTW's effluent.

16. Any hazardous waste as classified or characterized under the Resource, Conservation, and Recovery Act (RCRA), 40 C.F.R. Part 261. This prohibition does not apply if the domestic sewage exemption as set forth in 40 C.F.R. § 261.4(a)(1) would be applicable.

17. Any wastewater or waste from an EPA Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA) site, unless approved by the U.S. Environmental Protection Agency in writing and the city (subject to the city's sole discretion).

B. *Discharge that potentially interferes with plant operations.* When it is determined by the control authority that a user is discharging wastewater so as to potentially interfere with the operation or efficacy of the POTW then the control authority may develop effluent limitation(s) (including a prohibition) for such user to correct the concern and/or take such other action as the city deems appropriate.

C. *Local limits.*

1. The control authority is authorized to establish local limits for pollutants discharged to the POTW pursuant to Tennessee Rule 0400-40-14-.05(3). Local limits may be reviewed and revised as deemed appropriate by the control authority. The local limits may be implemented as concentration and/or mass limits, as permitted or required under applicable state or Federal rules and regulations. When mass limits are used, continuous flow monitoring of the discharge flows may be required. Daily discharge flow volumes and monthly average discharge flows measured shall be reported and used to calculate pollutant mass discharge for each day of discharge, the calendar monthly average discharge, and the daily maximum discharge for the calendar month.

2. The following local limits apply to all users discharging into the city's POTW (including the sewer system) unless subject to a variance under subsection (d), below, or superseded by local limits subsequently adopted by the division of public works and approved by TDEC, with the notice of such local limits set forth on the division of public works (e.g., website at www.memphistn.gov). Such subsequent local limits may also include limits on additional pollutants beyond those identified below. Compliance with all local limits (including those identified on the above identified website) is required regardless of whether a person is issued a permit.

TABLE I
LOCAL LIMITS FOR DISCHARGE INTO THE MUNICIPAL SEWERAGE SYSTEM

Constituent	*Daily * Maximum Limit Concentration mg/l*	*Instantaneous Maximum Limit** Concentration mg/l*
Biochemical Oxygen Demand	(1)	(1)
Settleable Solids (ml/l)	(1)	(1)
Total Suspended Solids	(1)	(1)
Nitrogen (total Kjeldahl)	(1)	(1)
Arsenic	1.0	2.0
Cadmium (total)	(2)	(2)
Chromium (hexavalent)	1.0	2.0
Chromium (total)	5.0	10.0
Copper (total)	5.0	10.0
Cyanide (oxidizable) ***	2.0	4.0
Cyanide (total) ***	4.0	8.0
Lead (total)	(2)	(2)
Mercury	(2)	(2)
Nickel (total)	5.0	10.0
Zinc (total)	5.0	10.0

Constituent	*Daily * Maximum Limit Concentration mg/l*	*Instantaneous Maximum Limit** Concentration mg/l*
Ammonia NH3-N	125 ppm	250 ppm

* See definition of "Daily Maximum Limit."

** See definition of "Instantaneous Limit" providing for noncompliance to be determined by use of a grab sample or a composite sample, as applicable.

*** Cyanide samples are required to be collected as grab samples.

(1) Effluent Limits and/or action levels may be established for these pollutants.

(2) Cadmium, mercury, and lead discharges are severely restricted due to limitations placed on the disposal of sewage sludge containing cadmium, mercury, and/or lead. Actual allowable discharge concentrations for these constituents will be determined on a case-by-case basis.

D. *Potential variances*. The city, subject to its discretion, may grant a variance for a user's local limits, as it deems appropriate. Notwithstanding such authority, nothing herein shall be deemed to entitle a user to a variance.

1. Consideration of variances to the Local Limits may be based on consideration of any of the following criteria:
   a. Age, location, land availability, and type of manufacturing processes employed;
   b. Total mass of pollutant discharged by the industry;
   c. Volume of industrial waste in proportion to the total wastewater flow in the system;
   d. Energy requirements of the application of control and treatment technology, but only if the discharger demonstrates that less energy consumptive alternative control technology is not available;
   e. Removal efficiency of the receiving WWTP to effectively treat the pollutant, and potential to cause interference or pass-through of the WWTP treatment process;
   f. Available pollutant treatment capacity at the receiving WWTP;
   g. Potential threat to the health and safety of sewer workers;
   h. Protection of biosolids produced at the receiving WWTP;
   i. Interim measures that can be undertaken to reduce the discharge of the pollutant(s) of concern;
   j. Costs and schedule associated with installing additional pretreatment to meet the limits; and/or
   k. Such other factors as the control authority deems appropriate.
2. In no case shall a variance be granted for those parameters defined by Federal Pretreatment regulations as general and specific prohibitions at 40 C.F.R. §§ 403.5(a) and (b) (see sections 13-24-43(A) and (B)), or that would violate applicable categorical standards.

E. *Discharge of specific pollutants restricted*. No user or other person shall discharge wastewater containing any of the pollutants listed herein into the municipal sewer system or shall otherwise allow any wastewater to enter the municipal sewer system containing any of the listed pollutants without obtaining written approval from the control authority.

Individual Pollutants	*Groups of Pollutants*
O,M,P-Xylenes	a) Total Polychlorinated Biphenyls (PCBs), Arochlor compounds
1,1-Dichloroethlyene	
1,2 trans,dichloroethylene	(b) Herbicides and Pesticides, including, but not limited to:
3,3-Dichlorobenzidene	Aldrin
Beryllium	Chlordane
Bromodichloromethane	Demeton
Dimethylnitrosamine	Dieldrin
Ethyl benzene	Endosulfan I
O-Dichlorobenzene	Endosulfan II
Tin	Endosulfan sulfate
1,1,1,2-Tetrachloroethane	Endrin
1,1,2-Trichloroethane	Endrin aldehyde
1,1-Dichloroethane	Guthion
1,1-Dichloropropane	Heptachlor
1,2,3-Trichloropropane	Heptachlor epoxide
1,2-Cis,dichloroethylene	Hexachlorocyclo-hexane

Individual Pollutants	*Groups of Pollutants*
1,2-Dibromo-3-Chloro-propane	Hexachlorocyclopentadi-ene
1,2-Dichloroethane	Lindane
1,2-Dichloropropane	Mirex
1,3-Dichloropropane	Methoxychlor
1,3-Dichloropropene	Parathion
1,4-Dichlorobenzene(p)	4,4-DDD
2,2-Dichloropropane	4,4-DDE
2,4-Dinitroluene	4,4 DDT
2,4-Dinitrophenol	Alpha BHC, Beta BHC, Delta BHC, or Gamma BHC
2-butanone (MEK)	Tetrachlorodiphenyle-thane (TDE)
2-Chlorophenol	Toxaphene
4-methyl-2-pentanone (MIBK)	
Acetone	(c) Total Dioxin
Acrylonitrile	
Aluminum	
Barium	
Benzo (a) pyrene	
Benzotrichloride	
Bromobenzene	
Bromoform	
Chlorobenzene	
Chlorodibromomethane	
Chloroethane	
Chloroform	
Cumene	
Dichloroethylether(Bis(2-chloroethyl)	
Diisobutylenes	
Hexachlorobenzene	
Hexachlorobutadiene	
Hexane	
Isopropylbenzene	
M-Dichlorobenzene	
Molybdenum	
O-Chlorotoluene	
Para-Dichlorobenzene	
P-Chlorotoluene	
Phenanthrene	
Pyrene	
Titanium	
Toluene	
Vinyl chloride	

The control authority reserves the right to modify this list of pollutants restricted from entering the POTW as may become necessary to protect the POTW from interference and pass-through or as the city otherwise deems appropriate. This may be undertaken by the city providing an updated list of restricted pollutants on the city website or in any other manner that provides a discharger notice.

F. *Fifteen percent of maximum allowable loading limitation*. Unless otherwise agreed to in writing by the control authority, no user shall discharge a mass loading of any compound or pollutant, which has a local limit, of more than 15 percent of the maximum allowable industrial loading (MAIL) of that compound or pollutant as calculated from current local limits. The city may impose a 15 percent limit on pollutants based upon the rated capacity of the WWTP.

G. *Best management practices*. The city may develop best management practices (BMPs), by ordinance or in individual and/or general wastewater discharge permit, to implement local limits and such other requirements, as it deems appropriate. The city may decide not to apply a local limit to user(s) that are subject to a best management practice designed to address that pollutant. (Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-45. Discretionary actions of control authority with respect to restricted discharges.

A. *Potential options for acceptance of wastewater*. If any waters or wastes are discharged or are proposed to be discharged to the public sanitary sewers, which waters contain substances or possess characteristics which, in the judgment of the control authority, are incompatible with the capacities of the publicly owned treatment works (including the collection system) and/or may have a deleterious effect upon the sewerage works, processes, sludge use, equipment, or receiving waters, or which otherwise may create a hazard to life or constitute a public nuisance, the control authority may undertake such action(s) as it deems appropriate, including but not limited to of the following: (1) Reject the wastes; (2) Require pretreatment or an acceptable condition for discharge to the public sanitary sewers; (3) Require control over the quantities and rate of discharge; and/or (4) Require payment to cover the added cost of handling and treating the wastes as provided in [chapter 13-28].

B. *Flow and other associated requirements*. The city, in response to potential capacity concerns associated with the collection system, wastewater treatment plant, and/or pumping/lift station, or for other good cause, may impose flow limits including limitation on the hours that flows may enter the sewer system (e.g., limiting the discharge of wastewater and/or domestic wastewater to off-peak hours), may require any user to install on-site storage as a condition to connect or increase flow, and/or may impose such other conditions as the control authority deems appropriate. Such conditions may be set by the control authority in a control mechanism (e.g., permit, letter of approval, or conditional letter of approval). No person shall violate the conditions established by the control authority set forth in a control mechanism issued by the control authority.

C. *Control authority review of pretreatment system*. If the control authority permits the pretreatment or equalization of waste flows, the design and installation of any new process pretreatment or flow equalization system installed in connection therewith shall, upon request from the city, be subject to the review and/or approval of the control authority. The City of Memphis does not by its approval of any of the designs, installation, or the construction of the plans and equipment or any of the information or plans submitted by the permittee, warrant or aver in any manner that the permittee's implementation of such measures will result in compliance with the applicable pretreatment requirements. Notwithstanding such review and/or approval, compliance with Federal, state, and local law (including this chapter and/or a discharge permit) is the sole responsibility of the user. In no event shall the City of Memphis be deemed liable for any user actions based upon the city's review and/or approval of user documents.

D. *Use of interceptors, traps and/or separators.* Interceptors, traps, and/or separators shall be provided by industrial and commercial dischargers (in addition to those cases otherwise specified in this chapter) when, in the opinion of the control authority, they are necessary for the proper handling of water or waste containing such materials as fats, oils, greases, sand, or flammable reactive or corrosive liquids, substances which may solidify or become viscous in the system, or other harmful ingredients. In maintaining interceptors, traps, and separators, the owner shall be responsible for the proper removal and disposal by appropriate means of the captured material and shall maintain records of the waste manifests, laboratory reports, chain-of-custodies, any field reports, log sheets, field test data (e.g., pH, temperature, ammonia, or chlorine), dates, and means of disposal, which are subject to review by the control authority. Any removal and hauling of the collected materials not performed by the owner's personnel must be performed by waste transport and disposal firms and must be documented by the facility. Any transport to a Memphis WWTP or to a designated discharge point must be undertaken by a city approved waste transport firm.

E. *Removed substances*. Except as provided by subsection (D) above, or otherwise approved in a discharge permit or in writing by the City of Memphis, division of public works, removed substances, such as solids removed from liquid wastestreams, sludges, filter backwash, or other residuals removed in the course of treatment or control of wastewater, shall be disposed of in a manner such as to prevent such material from entering the sewer system and waters of the state.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-46. Proper operation and maintenance/ maintenance and inspection of pretreatment or flow equalization facilities, bypass and upset.

A. *Proper operation and maintenance*. The user shall, at all times, properly operate and maintain all pretreatment facilities and systems of treatment and control (and related appurtenances) which are installed or used by the industrial user to achieve and monitor compliance with pretreatment standards and pretreatment requirements. This includes adequate laboratory controls and appropriate quality assurance procedures, the operation of back-up or auxiliary facilities, or similar systems which are installed by the industrial user only when the operation is necessary to achieve compliance. Except as provided by 13-24-46(C), the intentional diversion of waste streams from any portion of the industrial user's treatment facility is prohibited. In no event shall the diversion of waste streams from any portion of the user's treatment facility cause interference or pass-through.

B. *Pretreatment and/or flow equalization*. Where pretreatment or flow equalization facilities are required for any water or wastewater, they shall be maintained continuously and satisfactorily and in effective operation by the owner at his expense and shall be subject to

periodic inspection by the control authority. The owner or operator shall maintain and make available, as requested, operating records as prescribed by the control authority.

C. *Bypass.*

1. For the purposes of this section,

   a. Bypass means the intentional diversion of wastestreams from any portion of a user's treatment facility or around required metering or sampling equipment.

   b. Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

2. A user may allow any bypass to occur which does not cause pretreatment standards or pretreatment requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections (3) and (4) of this section.

3. Bypass notifications.

   a. If a user knows in advance of the need for a bypass, it shall submit prior notice to the control authority, at least ten days before the date of the bypass, if possible.

   b. A user shall submit oral notice to the control authority of an unanticipated bypass that exceeds applicable pretreatment standards within 24 hours from the time it becomes aware of the bypass. A written submission shall also be provided within five days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The control authority may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.

4. Bypass.

   a. Bypass is prohibited, and the control authority may take an enforcement action against a user for a bypass, unless bypass was unavoidable to prevent loss of life, personal injury, or severe property damage; there were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime; and the user submitted notices as required under subsection (3) of this section. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass, which occurred during normal periods of equipment downtime or preventive maintenance.

   b. The control authority may approve an anticipated bypass, after considering its adverse effects, if the control authority determines that it will meet the three conditions listed in [subsection] (4)(A) of this section.

   c. In no event shall the diversion of flows cause the city to violate its NPDES permit(s). Notwithstanding any provision to the contrary, bypass shall not be a defense to causing interference or pass-Through.

D. *Upset.*

1. For the purposes of this section, upset means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

2. An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection (3), below, are met. An upset is not an affirmative defense for violation of any other requirement (e.g., general and specific prohibitions, local limits).

3. A user who wishes to establish the affirmative defense of upset shall demonstrate through properly signed, contemporaneous operating logs or other relevant evidence that:

   a. An upset occurred and the user can identify the cause(s) of the upset;

   b. The facility was, at the time being operated, in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures; and

   c. The user has submitted the following information to the control authority within 24 hours of becoming aware of the upset (and, if this information is provided orally, a written submission must be provided within five days) that includes: a description of the indirect discharge and cause of noncompliance; the period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and steps being taken and/or planned to reduce, and prevent recurrence of the noncompliance.

4. In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

5. Review of whether an event meets the upset criteria is available to a user only in the context of an enforcement action brought for noncompliance with categorical pretreatment standards.

E. *Reduction in production required as necessary to achieve compliance.* Users shall control production to the extent necessary to maintain compliance with discharge limitations upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-47. Monitoring, control facilities for sampling and observation of industrial and commercial wastes/flow monitoring and repeat monitoring.

A. *Installation of control facility*. When required by the control authority, the owner or operator of any industrial, commercial property, any new or expanded development (including developments discharging only domestic flow), or facility serviced by a sewer, shall install a suitable control facility for sampling together with such necessary equipment, which could include: meters, instruments, refrigerated samplers, connections such as contact closures or flowmeter output to drive flow-proportional composite sampler, digital read-outs, data-loggers, recorders, and other appurtenances, in the sewer to facilitate observation, sampling, measurement, and recording of the wastes and discharge and/or domestic flows.

B. *Monitoring manhole and related provisions*. Unless otherwise required by the city and/or federal or State regulations, all regulated and permitted non-domestic waste from the property or facility shall be discharged through the control facility or facilities, as applicable, after any pretreatment of the waste. Unless otherwise required by the city, those industries with a permitted average daily maximum BOD_5 or TSS of 10,000 pounds per day or greater and/or with a permitted average daily maximum discharge flow of 700,000 gallons per day or greater and/or as deemed necessary by the control authority to monitor other permitted pollutants shall install a monitoring manhole. The facility, when required, shall be accessible and safely located, and shall be constructed in accordance with plans approved by the control authority. The facility shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times. Plans for such facilities for the installation of control and related equipment must be reviewed and/or approved by the control authority before construction is begun.

C. *Calibration.* The user shall ensure that all monitoring, analytical, and sampling equipment used to monitor flow or analyze pollutants discharged under a permit are periodically calibrated and maintained at intervals which

ensure the accuracy and reliability of measurements, and when required by the control authority, the user shall provide written documentation and certification of the calibrations.

D. *Flow monitoring maintenance and calibration logs*. When the measurement or reporting of discharge flow is required, appropriate effluent flow measurement devices and methods consistent with accepted scientific and engineering practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. The City of Memphis may require that the entire flow measuring system be designed, stamped, signed, constructed, and installed under the direct supervision of a Tennessee State Licensed Professional Engineer. The devices shall be installed, calibrated, and maintained to ensure that the accuracy and reliability of the measurements are consistent with the accepted capabilities of the device and in accordance with the device manufacturer. The flow measuring devices shall be capable of measuring flows with a maximum deviation of less than plus or minus five percent from the true discharge rates throughout the range of expected discharge flows (i.e., from the highest peak flow to the minimum flow) using no less than three calibration points, unless otherwise approved by the control authority. The flow measuring device shall be calibrated and maintained at the expense of the permittee as often as recommended by the device manufacturer or at least annually, whichever is more frequent. The city, subject to its discretion, may require a user to have a qualified third-party undertaking calibration. If the flow measuring device can be tested and certified to prove accuracy of ± five percent, then recalibration is not required. Calibration reports and/or verification reports shall be submitted as required by the city. The permittee shall maintain written maintenance and calibration logs for the flow measuring device, which will include at least the following information:

1. Name of permittee's facility;
2. Name, signature, and affiliation of person(s) performing maintenance and/or calibration;
3. Device type, manufacturer, model, and serial number;
4. Date and time of maintenance and/or calibration;
5. Description of maintenance and/or calibration;
6. Whether the maintenance and/or calibration was routine or due to problem with device, with brief explanation;
7. Whether or not it was likely that the device was producing accurate flow readings before maintenance and/or calibration, with brief explanation; and
8. Whether and/or not it is likely that the device is producing accurate flow readings after maintenance or calibration, with brief explanation.

E. *Flow monitor calibration report*. The permittee shall submit a flow measuring device calibration certification letter to the control authority within 30 days, or such alternative time established by the control authority, of initial permitted sewer discharge and all subsequent letters before June 30th every year thereafter. Any user first subject to this requirement shall submit the certification June 30th of every year it discharges. If required by the City of Memphis, each of these letters must be certified by either: (i) the manufacturer that calibrated the meter or (ii) both a Tennessee State Licensed Professional Engineer and a responsible corporate officer. The flow measuring device calibration reports shall include at least the following information:

1. Name of permittee's facility;
2. Location and ID of the device;
3. Device type, manufacture, model, serial number, and size;
4. Total range capacity of the device;
5. Maximum range used at the facility;
6. Minimum of three calibration points evenly spaced within the maximum range used at the facility to determine accuracy of the device (e.g., 0%, 25%, 50%, 75% and 100%; 4 mA, 8 mA, 12 mA, 16 mA and 20 mA; or 0 GPM, 200 GPM, 400 GPM, 600 GPM and 800 GPM when the maximum range is 800 GPM);
7. Final accuracy of device at each of the calibration points used;
8. Date of calibration;
9. Name of person performing the calibration; and,

10. Name and signature of certifying Tennessee State Licensed Professional Engineer (if required) or other appropriate third-party approved by the control authority.

F. *Monitoring instrumentation calibration and maintenance*. Instrumentation used for self-monitoring (e.g., pH monitoring) shall be calibrated and maintained at least as often as recommended by the manufacturer and shall be calibrated and maintained more frequently when necessary to maintain instrument reading accuracy and reliability within acceptable error limits based upon the manufacturer's specifications. The permittee shall maintain a maintenance and calibration log for each instrument, which would include at least the following information:

1. Name of permittee facility;
2. Name, signature, and affiliation of person(s) performing maintenance and/or calibration;
3. Instrument type, manufacturer, model, and serial number;
4. Date and time of maintenance and/or calibration;
5. Description of maintenance and/or calibration;
6. Whether the maintenance and/or calibration was routine or due to problem with the instrument, with brief explanation;
7. Whether or not it was likely that the instrument was producing accurate readings before maintenance and/or calibration, with brief explanation; and
8. Whether or not it is likely that the instrument is producing accurate readings after maintenance and/or calibration, with brief explanation.

G. *Repeat monitoring*. If sampling performed by an industrial user indicates a violation, the industrial user shall notify the control authority within 24 hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the city within 30 days after becoming aware of the violation (or sooner if so directed by the control authority or its designee). Repeat sampling within 30 days of a violation under this section need not be undertaken if the control authority undertakes sampling and indicates in writing to the industrial user that such repeat sampling is not required.

H. *Toxicity testing/toxicity reduction evaluation*. The user shall undertake effluent toxicity testing as required by the authority, using the test procedures and methodology specified by the authority. In the event toxicity is indicated, the user shall undertake a toxic reduction evaluation and take steps to reduce toxicity, as required by the City of Memphis and/or the control authority. (Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-48. Measurement and testing methods.

A. *Analytical requirements*. All pollutant analyses, including sampling techniques, to be submitted as part of a discharge permit application or report(s) shall be performed in accordance with the techniques prescribed in 40 C.F.R. Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 C.F.R. Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the control authority or other qualified parties approved by EPA.

B. *Representative sample collection.* Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report and be based on data that is representative of conditions occurring during the reporting period. The control authority, subject to its sole discretion, may undertake all or part of the sampling and/or analysis otherwise required by the SIU in lieu of requiring the SIU to undertake the minimum sampling.

1. Except as indicated in subsections (B)(2) and (3) below, the industrial user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the control authority. Where time-proportional composite sampling or grab sampling is authorized by the control authority, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 C.F.R. Part 136, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide,

total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the control authority, as appropriate. Notwithstanding anything to the contrary, grab samples may be required to show compliance with instantaneous limits.

2. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

3. For sampling required in support of baseline monitoring report and 90-day compliance reports, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the control authority may authorize a lower minimum. For the self-monitoring reports required by 13-24-30(E), the industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and pretreatment requirements.

4. Chain-of-custody forms must be filled out and maintained in the user's files for a period of at least three years. Upon request of the control authority, the chain-of custody forms shall be submitted to the city.

C. *Approval required to change sampling locations*. The control authority may specify user monitoring points. In such a case, compliance monitoring points shall not be changed without the approval of the control authority.

D. *Monitoring and flow measurement facilities*. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that non-compliant sample results are not representative of its discharge.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-49. Accidental and slug discharges.

A. Authority to require development of a plan. The control authority may require a user to develop a plan to provide protection from accidental and/or slug discharge of prohibited materials or other substances regulated by these regulations. Any facilities to prevent accidental and/or slug discharge of prohibited material shall be provided and maintained at the user's own cost and expense.

B. Minimum requirements for SIU slug control plans. If a significant industrial user is required to develop a slug control plan by the control authority, the plan shall contain, at a minimum, the following elements:

1. Detailed descriptions of discharge practices, including routine and non-routine batch discharges;

2. Detailed descriptions of stored chemicals, and/or stored waste;

3. Procedures for immediately notifying the POTW of slug discharge, including any discharges that would violate a prohibition under section 13-24-43, with procedures for follow-up written notification within five days;

4. If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operation, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (include solvents), and/or measure and equipment for emergency response.

C. Additional potential requirements for SIU slug control plans. Upon notice from the control authority, an SIU shall submit the following additional information in a Slug control plan as indicated in the control authority's notice:

1. Material safety data sheets, when applicable;

2. Best management practices to prevent, control, and cleanup releases of chemicals, materials, and/or wastes;

3. If necessary, engineering practices (e.g., temporary storage) to assure that interference or pass-through does not occur;

4. Employee education;

5. Adequate storage or other practices (e.g., trucking the waste off-site for disposal) to assure that potential batch discharges (whether wastewater or off-specification product) will not interfere with the operation of the POTW (including the collection system); and

6. Such other requirements as the control authority deems appropriate.

D. Potential requirements for Non-SIU slug control plans. The control authority may require a non-SIU to develop a Slug control plan containing such requirements as set forth in section 13-24-49(B) and (C) as the control authority deems appropriate.

E. Control authority approval of slug control plan. Subject to the control authority's discretion, a user may be required to submit a plan to the control authority for approval. Failure to submit a slug control plan to the control authority, meeting the requirements of section 13-24-49, may subject the user to an enforcement action.

F. Notice to potentially avoid downstream problem at POTW. In order to ensure the integrity of the wastewater treatment plant at a high level and protect the treatment process from unacceptable flows, any user facility at which an accidental spill occurs or any person causing an accidental spill that may enter the sewer system, shall notify the POTW as soon as reasonably possible by telephone and e-mail as to the spill's nature, relating its location, quantity, duration of event, the time of such spill, and corrective action, so that further action may be taken at the wastewater treatment plant to deal with any problems which the incoming flow may create. The applicable e-mail and telephone numbers for notification are as follows:

- Stiles Wastewater Treatment Plant: 901-636-4300

- Maxson Wastewater Treatment Plant: 901-789-0510

- E-Mail: pretreatment@memphistn.gov

G. *Written notice*. See section 13-24-30(I) regarding reporting of, among other things, accidental discharges or slug discharges.

H. *Notice to employees*. A notice shall be permanently posted on the industrial user's bulletin board(s) or other prominent places advising employees who to call in the event of a dangerous discharge. Employers shall ensure that all employees who become aware of a slug discharge occurring are advised of the emergency notification procedure.

I. *Closure plan*. In the event a significant industrial user will be terminating its discharge on a temporary or permanent basis, the discharger shall notify the control authority at least 60 days prior to such termination. The control authority, subject to its discretion, may require any user to submit a closure plan to the control authority for approval at least 30 days before cessation of discharge. If required, the closure plan, at a minimum, shall address the cleaning and other activities that will be occurring, the anticipated effect on the quality and quantity of the discharge, and how the discharger will assure that such activities will not adversely impact the POTW or otherwise cause interference or pass-through. (Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-50. Reserved.

Sec. 13-24-51. Discharge of hauled wastes.

A. *Requirements applicable to trucked or hauled wastes*. The requirements of this chapter apply to pollutants from domestic and non-domestic sources, which are transported (e.g., by truck or rail) to the POTW. These requirements apply to such trucked or hauled pollutants to the same extent as pollutants discharged directly into the sewer system. Except for wastewater from residential household septic tank, food establishment grease, drive through car wash traps, and portable toilets, no user shall have wastewater hauled to the Memphis WWTP without receiving preapproval from the City of Memphis.

B. *Requirements for generators and/or haulers of wastewater*. The control authority may require any generator and/or hauler of wastewater, including but not limited to, those pertaining to holding tank wastes, industrial waste, sludge, septage, fats, oils and grease, or other sanitary sewage to:

1. Monitor, sample, and analyze the wastewater;

2. Provide a representative waste analysis of the waste prior to discharge;

3. Submit reports, including a waste tracking form, and such other information as requested

by the control authority for every load or at such other frequency as the control authority deems appropriate; and/or

4. Undertake such additional requirements as deemed appropriate by the control authority to implement pretreatment requirements and to protect the POTW, human health, and the environment.

C. *Designated discharge points and approvals*. No person may discharge hauled wastewater of any type into the sewer system or WWTP except at a discharge point designated by the City of Memphis and with proper permit, approvals, and manifest. Alternate site locations must be approved or designated by the City of Memphis. Sewer systems treated by the POTW include all sewer systems located in Memphis, Germantown, certain systems located in Bartlett, Collierville, Lakeland, Millington, unincorporated Shelby County, and certain parts of Desoto County, Mississippi, including Southaven, Mississippi, and Horn Lake, Mississippi. Except for the Memphis designated point(s), wastewater may not be hauled into any sewer systems treated by the Memphis POTW.

D. *Hauling license required and other requirements*. Any person engaged in the hauling of wastewater to the Memphis WWTP must obtain any necessary approvals from the Shelby County Health Department. Licensed haulers shall be responsible for complying with all the terms and conditions contained in the license, in addition to Section R.5 of the Septic Cleaner Regulations of the Memphis and Shelby County Plumbing Code. Additionally, if the waste hauler intends to use the POTW disposal site, the hauler must obtain a disposal permit from the control authority and shall be responsible for complying with all the terms and conditions contained in the permit and the City of Memphis Sewer Use Ordinance. All trucks must be marked with the company name, phone number, waste hauler permit number, city, and state. The tank must also be marked with the company name and capacity of the tank in gallons.

E. *Hauled waste tracking form required for every load*. Waste haulers must provide a waste-tracking form for every load. This form shall include, at a minimum, the name and address of the industrial waste hauler, permit number, truck identification, names and addresses of sources of waste, and volume and characteristics of waste. The form shall identify the type of industry, known or suspected waste constituents, and a certification that none of the hauled wastes are RCRA hazardous wastes as defined in 40 C.F.R. Part 261 or State Rule 0400-12-01.

F. *Absolute prohibition on hauling of hazardous waste to Memphis POTW*. In no event shall any person arrange for or deliver to the POTW (including the collection system), by truck or rail, any pollutant or waste which would be a hazardous waste as defined in 40 C.F.R. Part 261 or State Rule 0400-12-01.

G. *Letter of approval and manifest*. Except as provided in subsection (H), below, or the City of Memphis otherwise provides in writing, no wastewater may be picked up and disposed at the POTW (including the collection system) unless the entity producing the waste has a letter of approval from the City of Memphis authorizing receipt of the particular wastestream, and each truck load or other load is accompanied with a properly completed manifest. Misrepresentation as to the waste delivered by a hauler may lead to civil and/or criminal enforcement. The generator of the waste must submit a written request to the City of Memphis containing all required information requesting approval to dispose of the waste and must receive the letter of approval prior to the pickup of the waste. The following are the requirements for the written request:

1. Must be on company letterhead and must be signed by an authorized representative of the user;

2. Must include the physical address or location of the facility;

3. Must include the address or physical location of the waste sump, pit, or catch basin;

4. Must include estimated volume or volumes of wastewater and/or sludge from each basin, sump, pit, basement, etc.;

5. Must include source of waste for each basin, sump, pit, basement, etc. (e.g., sanitary or septic waste, lift station sludge, sediment from industrial Pretreatment system, laundry waste, maintenance shop sludge, mop water, storm water, etc.);

6. Must include a certification statement of non-hazardous waste, "I certify that the waste to be disposed of would not be classified as hazard-

ous waste as defined under the Resource Conservation and Recovery Act at 40 C.F.R. Part 261 and State Rule 0400-12-01;"

7. Must include a certification regarding inapplicability or compliance with categorical pretreatment Standards in accordance with one of the following two options:

   a. "I certify that the waste is not subject to categorical pretreatment standards as set forth in 40 C.F.R. Chapter I, Subchapter N, Part 405 et seq." or

   b. "I certify that the waste is from the following category [insert category], is subject to categorical pretreatment standards as set forth in 40 C.F.R. Chapter I, Subchapter N, Part 405 et seq., and that based upon the attached sampling information, the waste is in compliance with the applicable categorical pretreatment standard.

   If option B applies, the letter must include the sampling information.

8. Must include the number of expected disposals or frequency of disposals from each basin, sump, or pit (e.g., a one-time event, one-disposal every three months for 12 months, one disposal per month for 12 months, etc., but not for any longer than 12 months); and

9. When required by the control authority, must include the laboratory report(s) of test results for a representative grab sample collected from each basin, sump, pit, basement, etc., with completed chain-of-custody document(s) attached, and must include any required field test results (e.g., pH) or such additional information as the control authority may require.

H. *Wastestreams not requiring separate written approval*. Notwithstanding subsection (G), above, the following wastestreams are not required to have a separate written approval for each particular wastestream unless otherwise required by the control authority on a case-by-case basis:

1. Wastewater from residential household septic tanks;

2. Food establishment grease removal equipment;

3. Drive-through car wash traps; and

4. Portable toilets.

I. *Documents required during disposal and fee.* A copy of the approval letter and properly completed manifest must accompany the permitted waste hauler during the disposal at the City of Memphis' designated discharge point. The disposal fee will be a charge based on a rate established by the division of public works in accordance with the gallon capacity of the truck.

J. *Pollutant limits and other conditions*. Maximum hauled waste pollutant limits and such other conditions as the control authority deems appropriate may be set by the control authority in a permit and/or letter of approval for determining whether a request to transport and dispose of waste to the designated discharge point is acceptable or not. No person shall violate the pollutant limits established by the control authority for hauled wastewater or otherwise be in violation of a waste hauler permits, disposal permit, letter of approval, or other user permit issued by the control authority.

K. pH Limits for hauled wastewater and volume.

1. All hauled wastewater must not violate a pH minimum limit of 5.5 standard units, i.e., having a pH lower than 5.5 standard units.

2. Notwithstanding section 13-24-43(B)(5), all hauled wastewater must not violate a pH maximum limit of 10.0 standard units.

3. Decanting or back flushing of the grease trap or its wastes for the purpose of reducing the volume to be hauled is prohibited.

L. *Forfeiture of hauler waste privileges*. Failure to renew and/or obtain a waste hauler permit or disposal permit or recurrence of late payment of disposal fees may result in the waste hauler not being allowed to use the City of Memphis' designated discharge point for disposal.

M. *City reservation of rights*. The City of Memphis, subject to its discretion, may prohibit the disposal and/or discharge of pollutants or wastes hauled or trucked to the POTW or any subcategories thereof.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-52. Specific charge for hauled waste transported for disposal at the discharge point designated by the City of Memphis.

The disposal fee charge for hauled wastewater originating from residential household septic tanks, food establish-

ment grease removal equipment, drive through car washes, portable toilets, and industrial wastewater and sludge shall be a flat rate based upon the volume of the truck (tank capacity). All customers will be charged on a hauled waste disposal charge based on rate in cents per gallon of wastewater multiplied by the capacity in gallons of the truck hauling the wastewater. The rate may be reviewed and adjusted by the division of public works.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53. Food establishment wastewater.

Sec. 13-24-53-01. Waste disposal - construction plans approval and permit required.

A. *Compliance with chapter*. All food service establishments ("FSE"), including but not limited to cafes, restaurants, hotels, retirement centers, nursing homes, hospitals, grocery stores, markets, prisons, mobile food units, or other food preparation establishments, discharging wastewater to the city's POTW, including the sewer system, shall comply with this chapter except to the extent that any requirement is specifically superseded by the City of Memphis, Division of Public Works, Fats, Oil and Grease ("FOG") Plan, if applicable. The FOG Management Plan, if applicable, would be available at www.memphistn.gov.

B. *Grease trap required/design criteria.*

1. An FSE shall not discharge to the POTW, including the collection system, unless it has installed and is operating and maintaining a sufficiently sized oil and grease, water and solids separator (hereinafter called grease removal equipment) necessary to prevent the accumulation of oil and grease in the sewer collection system. Approval of the City of Memphis, Division of Public Works, shall be required during the construction plans approval process.

2. All grease traps used in conjunction with food service establishments shall have the capacity of 15 gallons per seat of dining capacity, except that no single grease trap shall be smaller than 750 gallons or larger than 3,000 gallons. In certain cases, multiple grease traps may be utilized. Alternative treatment technologies shall be considered on a case-by-case basis for food establishments that are to be located in an existing building where large grease removal equipment is not feasible. The use of enzymes and other chemical agents to dissolve, emulsify, or break-up fats, oil, and greases (FOG) in lieu of physically cleaning and removing FOG with grease removal equipment is prohibited.

C. *Food establishment wastewater discharge ("FEWD") permits*. All FSE's shall obtain a FEWD permit to discharge to the POTW, including the collection system, from the control authority. This permit shall be posted on the premises and renewed as needed. Except where the control authority requires the FSE to obtain an individual permit, an FSE may be covered by a general other user permit.

D. *Multi-dwelling units, apartments and other FSE's - Control of fats, oils and grease (FOG) discharges*. Any multi-dwelling unit, or apartment building, complex or FSE's may be subject to enforcement action for discharging FOG that contributes to a sanitary sewer overflow event, or obstruction to the sewer system.

E. *Person who causes obstruction of sewers*. No person shall discharge or cause a discharge that results in an obstruction of the sewer system. For example, a plumber shall take such actions as necessary to avoid the release of FOG material that is lodged in a pipe to be released into the sewer system.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-02. Subject to industrial wastewater limitations.

Wastewater discharged into public sewers from FSE's are subject to the limitations set forth in sections 13-24-43 and 13-24-44 of this chapter and such other provisions of this chapter and City Code provisions that apply to discharges to the POTW (including the sewer system), general and specific prohibitions, reporting, user charges, permit fees, sampling fees, inspection fees, and any other fees established from time to time by the city, and such conditions as the control authority includes in a permit.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-03. Permit for food establishment wastewater discharge.

In addition to requirements otherwise set forth in this chapter, a permit for food establishment wastewater discharge may require pretreatment of wastewater before

discharge, restriction of peak flow discharges, discharge of certain wastewater only to specified sewers of the city, relocation of point of discharge, prohibition of discharge of certain wastewater components, restriction of discharge to certain hours of the day, payment of additional charges to defray increased costs of the city created by the wastewater discharge, and such other conditions as may be required. Except as otherwise provided in this section 13-24-253 and subparts thereof, FEWD permits are subject to the same provisions in this chapter applicable to other user permits.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-04. Permit application required for new construction and others.

Any newly constructed building or redevelopment resulting in a new FEWD establishment shall complete and file with the division of public works, an application in the form prescribed by the division of public works. The applicant may be required to submit, in units and terms appropriate for evaluation, the following information:

A. Name and address of applicant;

B. Volume of wastewater to be discharged;

C. Time of daily food preparation operations;

D. Description of food preparation, dining room capacity by seats, number of employees, and size of kitchen;

E. Type of FOG treatment; and

F. Any other information as may be deemed by the approving authority to be necessary to evaluate the permit application.

The division of public works, subject to its discretion, may require other FEWDS (e.g., existing FEWDS) to submit permit applications. The division of public works, after evaluating the data furnished by the applicant, may require additional information. After evaluation and acceptance of the data furnished, an on-site inspection of the waste discharge system, treatment systems, or other systems relating to the waste discharge may be required. The approving authority may then issue a FEWD Permit subject to the terms and conditions provided herein.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-05. Duration of FEWD permits.

FEWD permits shall be issued for a specified time period, not to exceed five years. If the permittee is not notified by the city 30 days' prior to the expiration of the permit, the permit shall be extended under section 13-24-24(B) until such time as the city: (1) reissues a new FEWD permit; or (2) decides that a new FEWD permit should not be reissued. The terms and conditions of the permit may be subject to modification and change by the city during the life of the permit as limitations or requirements as identified in sections 13-24-43 and 13-24-44 are modified and changed or as otherwise deemed appropriate by the control authority. See section 13-24-25 pertaining to modification of permits, including FEWD permits.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-06. Revocation of food establishment wastewater permit.

In addition to causes set forth in section 13-24-25, the division of public works may revoke the FEWD permit of any permittee who is found to be in violation of this chapter or who:

A. Fails to install grease pretreatment devices as required by permit;

B. Fails to fulfill reporting requirements or pretreatment maintenance as required by permit;

C. Refuses reasonable access to the permittee's premise for the purpose of inspection or monitoring; or

D. Violates any condition of the FEWD permit.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-07. Grease pretreatment required.

A. *Grease reduction equipment/oil and grease limit.* FEWDs shall make wastewater acceptable under the limitations established herein (see, e.g., section 13-24-44(A)(2) setting forth a FOG limit of 100 mg/l) before discharging to any public sewer. All permittees are required to install an approved type of grease removal equipment ("GRE") in the waste line leading from the food preparation area, or from sinks, drains, appliances, dish washers, mop sinks, floor drains, and other fixtures or equipment used in food preparation or cleanup where grease may be introduced into the sewerage system. Such grease pretreatment devices shall be installed to remove grease from wastewater and shall be maintained

in efficient operating conditions by periodic removal of the accumulated grease. No such collected grease shall be introduced into any drainage piping or public sewer. Such grease may, however, be hauled by a licensed waste hauler to the city's WWTP subject to the provisions of this chapter.

B. *Segregation of oils, greases and greasy solids.* Each FEWD shall also be required to provide a collection drum or container for the purpose of physically segregating oils, greases, and greasy solids. FEWDs shall establish procedures for personnel to practice maximum segregation of oils, greases, and greasy solids to the collection drum or container prior to washing and other water cleaning, which goes into sewers. The FEWD is responsible for the proper removal and disposal by appropriate means of the material captured from either grease pretreatment devices on wastewater lines or the collection drum for segregating oils, grease, and greasy solids.

C. *Training program to assure proper handling of grease waste*. Upon notification from the division of public works, the FEWD shall undertake a training program to assure that its employees are familiar with and implement a program to assure that grease waste is properly handled. Recordkeeping and reporting of such training program, and other food and grease related activities may be required.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-08. Maintenance reports.

The FEWD shall maintain records of grease pretreatment device cleaning, maintenance, and grease removal on site. The division of public works may require the FEWD to provide results of periodic measurements of its discharge, which may include chemical analysis of oil and grease content and measurements of FOG content in GRE. FEWDs shall allow the city or its representative ready access at all reasonable times to all parts of the premises for purposes of sampling and inspections.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-09. Penalty for violation and civil liability.

Any person(s) discharging wastewater in violation of a FEWD permit and/or this chapter is subject to fines, penalties, cost recovery, injunction, termination of sewer service, permit revocation, and/or such other remedies as are available to the control authority.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-53-10. Surcharges for oil and grease.

The division of public works may impose and modify such additional surcharges, as it deems appropriate, to address disproportional costs or other concerns associated with the discharge of FOG (e.g., the impact on the collection system).
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Secs. 13-24-53-11—13-24-53-20. Reserved.

Secs. 13-24-54—13-24-59. Reserved.

ARTICLE 4. REVIEW AND ENFORCEMENT

Secs. 13-24-60—13-24-69. Reserved.

Sec. 13-24-70. Violations and enforcement actions.

A. *Enforcement.* A violation of any of the foregoing may result in enforcement actions including, among other things, administrative fines, civil penalties, withdrawal of the privilege to use the City of Memphis Wastewater System, and suspension or termination of the existing permit (e.g., waste hauler permit) and/or prohibition from obtaining a new permit.

B. *Criminal penalties*. Any person in violation of this chapter shall be guilty of a misdemeanor and subject to punishment as provided in section 1-24-1. Any person who willfully and negligently violates permit conditions may be subject to other criminal penalties, including criminal penalties imposed by the State of Tennessee and/or the United States.

C. *Damaging sewerage works*. The prohibitions and requirements of section 13-8-5 (damaging sewerage works) are hereby incorporated by reference. A violation of section 13-8-5 is also a violation of this chapter.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-71. Local hearing authority.

There is hereby created and established a local hearing authority to be known as the Memphis Wastewater Hearing Authority and referred to hereinafter as the "Hearing Authority."
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-72. Purpose.

The hearing authority shall serve as the local hearing authority as prescribed in T.C.A. § 69-3-124 and shall be responsible for the review of orders issued or actions undertaken by the director of public works or his designee pursuant to the Sewer Use Ordinance, pretreatment statutes codified at T.C.A. §§ 69-3-123 through 69-3-129, and such requirements as set forth in the National Pollutant Discharge Elimination System ("NPDES") permits issued to the City of Memphis.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-73. Composition, length of term, officers.

A. The hearing authority shall be composed of the following seven members and two alternates who shall be appointed by the mayor subject to approval by the Memphis City Council, and shall constitute the voting members of the hearing authority:

Representative Group (# of members)	*Length of Term (years)*
Industry (2)	1
Private Citizenry (3)	2
Engineering/Science (2)	2
Public Interest Group/ University (2)	1

B. Each member and alternate shall serve without compensation and may be reappointed, but do not succeed themselves automatically.

C. One alternate shall be appointed from the "industry" group and one from the "public interest/university" group.

D. A chairperson of the hearing authority shall be elected at the first meeting of each newly appointed hearing authority from among its own membership to serve for a term of one year. Another member shall serve as vice chair for a period of one year upon a majority vote of all members.

E. The hearing authority shall keep complete and accurate records of the proceedings of all meetings and the director of public works or his designee shall serve as the hearing authority's technical secretary.

F. The hearing authority may issue subpoenas requiring attendance of witnesses and production of such evidence as requested, administer oaths, and take testimony as the hearing authority deems necessary to fulfill its purpose.

G. No member or alternate shall participate in the appeal of any matter in which the member or alternate has a direct personnel or financial interest.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-74. Removal.

Members may be removed from the hearing authority for continued absence from meetings or other just cause in accordance with the procedure for removal of board or commission members set forth within House Rule Ordinance No. 1852 of the City Charter.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-75. Power and duties.

In addition to any other duty or responsibility otherwise conferred upon the hearing authority by this chapter, the hearing authority shall have the duty and power as follows:

A. To recommend to the director of public works as the local administrative officer that this article or any provision included within this chapter be amended or modified;

B. To establish, modify, or amend procedural rules governing hearings, orders, issuance of permits, and all other matters not specifically requiring a hearing, provided that such rules do not conflict with applicable State or Federal law or the City Code of Ordinances;

C. To establish a schedule of the amount of civil penalty that can be assessed for certain specific violations or categories of violations in accordance with T.C.A. § 69-3-125(a)(3);

D. To hold meetings and such special meetings as the hearing authority may find necessary;

E. To hold hearings upon appeals from orders or actions of the director of public works as the local administrative officer in accordance with T.C.A. § 69-3-124;

F. To hold hearings related to the issuance, reissuance, suspension, revocation, or modification of an SIU discharge permit or other user permit and issue appropriate orders related thereto;

G. To hold such other hearings related to any aspect or matter in the administration of this chapter and to make such determinations and issue such orders as may be necessary to effectuate the purpose of this chapter;

H. To obtain assistance upon request from the director of public works or his designee as the hearing authority might need;

I. In addition to any other power granted by this title, the hearing authority is granted the authority to review the assessment of a civil penalty against any person in the amount not to exceed the sum of $10,000.00 per day for each day of violation during which the act or omission continues or occurs in accordance with T.C.A. § 69-3-125;

J. The decision of the hearing authority shall become final and binding on all parties unless appealed to the courts as provided in section 13-24-76, which governs appeals.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-76. Appeal.

Pursuant to T.C.A. § 69-3-124(b), an appeal may be taken from any final order or other final determination of the hearing authority by any party who is or may be adversely affected thereby, to the chancery court pursuant to the common writ of certiorari set out in T.C.A. § 27-8-101, within 60 days from the date such order or determination is made.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-77. Quorum.

A quorum of the hearing authority must be present at any regular or special meeting in order to conduct a hearing. Four members of the authority shall constitute a quorum.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-78. Members to be residents of the city.

Each member and alternate of the hearing authority must have been a resident of Memphis for not less than one year and shall continue to maintain such residency throughout such member's term.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-79. Members oath.

Each member of the hearing authority shall take an oath to faithfully perform the duties imposed upon him without fear or favor, and in full accordance with the constitution and laws of the State and the ordinances of the city.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-80. Hearings.

Any hearing or rehearing brought before the hearing authority shall be conducted in accordance with T.C.A. § 69-3-124.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-81. Administrative order/emergency order procedures.

A. Complaint issued by director or his designee.

1. Whenever the director or his/her designee has reason to believe that a violation of any provision of the pretreatment program (including but not limited to a violation of the sewer use ordinance, SIU discharge permit or other user permit) or orders of the hearing authority issued pursuant thereto has occurred, is occurring, or is about to occur, the director or his/her designee may cause a written complaint to be served upon the alleged violator or violators.

2. The complaint should specify the provision or provisions of the pretreatment program (including but not limited to a violation of the sewer use ordinance, SIU discharge permit or other user permit) or order alleged to be violated or about to be violated, the facts alleged to constitute a violation thereof, may order that necessary corrective action be taken within a reasonable time to be prescribed in such order, and shall inform the violators of the opportunity for a hearing before the hearing authority.

3. Any such order shall become final and not subject to review unless the person or persons

named therein request by written petition a hearing before the hearing authority, no later than 30 days after the date such order is served; provided, however, that the hearing authority may review such final order on the same grounds upon which a court of the state may review default judgments.

B. Emergency circumstances.

1. Whenever the director or his/her designee finds that an emergency exists imperatively requiring immediate action to protect the public health, safety or welfare, the health of animals, fish or aquatic life, a public water supply, or the facilities of the POTW, the director or his/her designee may, without prior notice, issue an order reciting the existence of such an emergency and requiring that such action be taken as the director or his designee deems necessary to meet the emergency (e.g., immediate termination of sewer service).

2. If the violator fails to respond, or is unable to respond, to the director or his/her designee's order, the director or his/her designee may take such emergency action, as he deems necessary, or contract with a qualified person or persons to carry out the emergency measures. The director or his designee may assess the person or persons responsible for the emergency condition for actual costs incurred by the POTW and local agencies in meeting the emergency.

3. Any person to whom an emergency order is issued shall comply with the emergency order immediately, but on petition to the hearing authority shall be afforded a hearing as soon as possible, but in no case shall such hearing be held later than three days from the receipt of such petition by the hearing authority.

C. Except as otherwise expressly provided, any notice, complaint, order, or other instrument issued by or under authority of this article 4 may be served on any person affected thereby personally, by the director or any person designated by him/her, or such service may be made in accordance with Tennessee statutes authorizing service of process in civil action. Proof of service shall be filed in the office of the director.

D. User compliance with the requirements of an administrative order or emergency order does not relieve the user of liability for any violations occurring before or after receipt of the order. Failure of a user to comply with any condition or requirement set forth in an administrative order or emergency order is a violation and is independently enforceable for each day of violation. An administrative order and emergency order have the full force of law and are enforceable in a court of law. Nothing in this section shall limit the authority of the control authority to take any action, including emergency actions or any other enforcement action, whether or not an administrative order or emergency order has been issued.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-82. Violations and penalties.

A. *Violations.*

1. Any person including, but not limited to, residential, carwash, restaurant, waste haulers, commercial facilities, or industrial users, who does any of the following acts or omissions shall be subject to a civil penalty of up to $10,000.00 per day for each day during which the act or omission continues or occurs:

   a. Violates an effluent standard or limitation imposed by the pretreatment program (including a violation of the sewer use ordinance);

   b. Violates the terms or conditions of an SIU discharge permit or other user permit;

   c. Fails to complete a filing requirement of the pretreatment program (including a violation of a filing requirement of the sewer use ordinance);

   d. Fails to allow or perform an entry, inspection, and monitoring or reporting requirement of the pretreatment program (including the sewer use ordinance);

   e. Fails to pay user or cost recovery charges imposed by the pretreatment program (including the sewer use ordinance); or

   f. Violates a final determination or order of the hearing authority or the director or his designee.

2. Any civil penalty may be assessed in the following manner:

   a. The director or his/her designee may issue an assessment against any person or industrial user responsible for the violation;

   b. Any person or industrial user against whom a civil penalty assessment has been issued may secure a review of such assessment by filing with the director or his/her designee a written petition setting forth the grounds and reasons for his/her objections and asking for a hearing in the matter involved before the hearing authority and, if a petition for review of the assessment is not filed within 30 days after the date the assessment is served, the violator shall be deemed to have consented to the assessment and it shall become final;

   c. Whenever any assessment has become final because of a person's failure to appeal the director or his/her designee's assessment, the director or his/her designee may apply to the appropriate court for a judgment and seek execution of such judgment and the court, in such proceedings, shall treat a failure to appeal such assessment as a confession of judgment in the amount of the assessment.

   d. In assessing the civil penalty, the director or his/her designee may consider the following factors:

      (i) Whether the civil penalty imposed will be a substantial economic deterrent to illegal activity;

      (ii) Damages to the POTW, including compensation for the damage or destruction of the facilities of the POTW, and also including any penalties, costs, and attorneys' fees incurred by the control authority as the result of the illegal activity, as well as the expenses involved in enforcing this section and the costs involved in rectifying any damages;

      (iii) Cause of the discharge or violation;

      (iv) The severity of the discharge and its effect upon the facilities of the POTW and upon the quality and quantity of the receiving waters;

      (v) Effectiveness of action taken by the violator to cease the violation;

      (vi) The technical and economic reasonableness of reducing or eliminating the discharge; and

      (vii) The economic benefit gained by the violator.

   e. The director or his/her designee may institute proceedings for assessment in the chancery court of the county in which all or part of the pollution or violation occurred, in the name of the control authority.

3. The division of public works may establish a schedule of the amount of civil penalty which can be assessed by the director or his/her designee for certain specific violations or categories of violations.

B. *Imprisonment.* In accordance with T.C.A. § 6-54-306, any violation of this chapter shall be subject to a maximum imprisonment under State law of 30 days. A violator may be subject to a greater length of imprisonment under Federal and/or State law.

C. *State or Federal enforcement*. Notwithstanding anything to the contrary, violation of a pretreatment program requirements by a user may subject a user to an enforcement action by TDEC, EPA, or a citizen suit including but not limited to the following:

1. In the case of civil enforcement under the federal Clean Water Act by EPA or a citizen suit, a user may be subject to, among other things, civil penalties of $55,800.00 per day, per violation, and such additional amounts as provided for by the Civil Monetary Penalty Inflation Adjustments in 40 C.F.R. § 19.4.

2. Any person who negligently or knowingly violates any requirement imposed in a pretreatment program including, but not limited to, SIU discharge permit or other user permit (e.g., hauled wastewater permit or food establishment wastewater permit conditions) may be subject to criminal penalties under the Clean Water Act.

D. *Interest/lien*. Interest may accrue on unpaid balances. A lien against the user's property may be sought for unpaid charges, fines, and penalties.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-83. Damages assessment.

A. The director or his/her designee may assess the liability of any polluter or violator for damages to the pretreatment agency resulting from any person's or industrial user's pollution or violation, failure, or neglect in complying with any permits or orders issued pursuant to the provisions of the pretreatment program or sections 13-24-75, 13-24-81, and 13-24-82, herein.

B. Any polluter or violator against whom a damage assessment has been issued may secure a review of such assessment by filing with the hearing authority an appeal asking for a hearing in the matter. If an appeal from such assessment is not made to the hearing authority by the polluter or violator within 30 days of notification of such assessment, he/she shall be deemed to have consented to such assessment and it shall become final.

C. Damages may include any expenses incurred in investigating and enforcing the pretreatment program or T.C.A., §§ 69-3-123 through 69-3-129 in removing, correcting, and terminating any pollution, and also compensation for any actual damages caused by the pollution or violation.

D. Whenever any assessment has become final because of a person's failure to appeal within the time provided, the director may apply to the appropriate court for a judgment and seek execution on such judgment. The court, in such proceedings, shall treat the failure to appeal such assessment as a confession of judgment in the amount of the assessment.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-84. Additional enforcement provisions.

A. *Other enforcement actions*. In addition to the enforcement remedies and responses otherwise identified in sections 13-24-70 through 13-24-83 of this chapter, noncompliance by a user may subject a user to enforcement response(s) including, but not limited to, a phone call, e-mail, notice of violation, increased monitoring, consent order or agreement, show cause request, case referral to Federal or state government, or such other remedy as the control authority deems appropriate. These enforcement responses include:

1. Notice of violation: The control authority may issue a notice of violation to a user when the control authority determines that a user violated, or continues to violate, any provision of this chapter, an SIU discharge permit, other user permit, enforcement order issued hereunder, or any pretreatment standard or pretreatment requirement. The notice of violation may request that the user promptly respond to the control authority and to identify, among other things, an explanation of the cause(s) of the violation and a plan for the satisfactory correction and prevention of future violations. Submission of the response by a user does not relieve the user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the control authority to take any action, including emergency actions or any other enforcement action, whether or not a notice of violation has been issued.

2. Increased monitoring: The control authority, in response to user violation(s), may require the user to increase the sampling and monitoring of its discharge or the control authority may undertake increased sampling and monitoring of the user's discharge. If increased monitoring is undertaken by the authority, the costs associated with such increased sampling and monitoring may be charged to the user.

The increase in a user's sampling and monitoring activities in response to violation(s) may be imposed upon the industrial user by the control authority issuing a modification to the user's SIU discharge permit or other user permit, issuing an administrative order, or by issuing any other appropriate mechanism. An option the control authority, subject to its discretion, may include in an SIU discharge permit or other user permit is a permit condition which automatically provides for increased sampling upon user noncompliance.

3. Consent order or consent agreement: The control authority may enter into a consent order or consent agreement when the control authority determines that a user violated, or continues to

violate, any provision of this chapter, a SIU discharge permit, other user permit or enforcement order issued hereunder, or any pretreatment standard or pretreatment requirement. A consent order or consent agreement may provide for monetary penalties for past violation(s), stipulated monetary penalties for future violation(s), an enforceable compliance schedule setting forth specific action(s) to be taken by the user to correct noncompliance within a specified time period, and/or such other conditions as the control authority deems appropriate.

Failure of a user to comply with any condition or requirement set forth in a consent order or consent agreement is a violation of this chapter and each day of a violation is independently enforceable. A consent order and consent agreement have the full force of law and are enforceable in a court of law. A consent order is subject to judicial approval as a precondition to its effectiveness whereas a consent agreement is not subject to such judicial approval prior to its adoption.

4. Show cause request: The control authority may issue a show cause request to a user when the control authority determines that a user violated, or continues to violate, any provision of this chapter, a SIU discharge permit, other user permit, enforcement order issued hereunder, or any pretreatment standard or pretreatment requirement. A show cause request may provide for the user to appear before the control authority (at a show cause meeting) and show cause as to why a proposed or subsequent enforcement action should not be taken. Nothing in this section shall limit the authority of the control authority to take any action, including emergency actions or any other enforcement action, whether or not a show cause request has been issued or a show cause meeting has been held.

5. Referral to State or Federal government: The control authority may refer a matter to a Federal and/or state government for enforcement by such governmental entity when the control authority determines that a user violated, or continues to violate, any provision of this chapter, an SIU discharge permit, or enforcement order issued hereunder, or any pretreatment standard or pretreatment requirement. The control authority may assist the Federal and/or state government in a Federal or state-initiated enforcement action against a user.

B. *City enforcement options not limited*. Nothing in this chapter, the control authority's enforcement response plan, or any other provision of Memphis' approved pretreatment program shall be intended to limit the enforcement discretion of the control authority as otherwise provided for by law.

C. *User liability for causing city violations*. A user shall be liable for any penalty imposed upon the city (whether the penalty is a result of a judicial or administrative trial or hearing or the settlement of a judicial or administrative penalty action) where the city's violation was caused by the user, either alone or in conjunction with the discharge(s) from other source(s). Where the user has violated a local limit under section 13-24-44(C) and a violation of the NPDES permit applicable to the city's POTW subsequently occurred for the same pollutant or associated pollutant(s), a rebuttable presumption is deemed to exist that the permittee caused the violation of the NPDES permit. The user shall have the burden of proof to demonstrate that its discharge did not cause, in whole or part, the city to violate its NPDES permit limitation.

D. *Exhaustion of administrative remedies and appeals*. Any issue that was decided by the hearing authority in a prior hearing or could have been decided by the hearing authority had the permittee or defendant, as applicable, appealed the matter, shall be binding upon such permittee or defendant in subsequent hearing(s) unless there is a change in law (e.g., a court overturned the hearing authority's decision or the underlying ordinance standard has been amended) or a significant change in the underlying facts.

E. *Need to halt or reduce activity not a defense*. It shall not be a defense in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit. See section 13-24-46(E), requiring the reduction in production as necessary to achieve compliance.

F. *Duty to mitigate*. The user shall take all reasonable steps to minimize or prevent any discharge which has a reasonable likelihood of adversely affecting human

health or the environment or any action which has the reasonable likelihood of obstructing flow in the sewer collection system.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-85. Special fund.

All damages and/or penalties assessed and collected under section 13-24-82 and/or 13-24-83 shall be placed in a special fund by the pretreatment agency and allocated and appropriated to the City of Memphis for the administration of its pretreatment program.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-86. Public notification and significant noncompliance.

A. *Publication of SNC.* As provided for by 40 C.F.R. § 403.8, the control authority may publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by the city, of industrial users, which at any time during the year were in significant noncompliance with applicable pretreatment requirements. For purposes of this provision, a significant industrial user (or any industrial user which violates subsection (3), (4), or (8) of this section) is in significant noncompliance if its violation meets one or more of the following criteria:

1. Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all the measurements for each pollutant taken during a six-month period exceed (by any magnitude) a numeric pretreatment standard or pretreatment requirement, including instantaneous limits, for the same pollutant parameter;
2. Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the numeric pretreatment standard or pretreatment requirement, including instantaneous limits, multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH);
3. Any other violation of a pretreatment standard or pretreatment requirement (daily maximum, long term average, instantaneous limit or narrative standard) that the control authority determines has caused, alone, or in combination with other discharges, interference or pass-through (including endangering the health of POTW personnel or general public);
4. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or to the environment or has resulted in the POTW's exercise of its emergency authority to halt or reduce such a discharge;
5. Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;
6. Failure to provide, within 45 days after the due date, Federal or State required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules (however an industrial user is not in significant noncompliance if the late report only pertains to the reporting of a pollutant value for surcharge purposes, not for compliance purposes);
7. Failure to accurately report noncompliance;
8. Any other violation or group of violations, which may include a violation of best management practices, the control authority determines will adversely affect the operation or implementation of the control authority's pretreatment program.

B. *Publication of non-SNC violations*. Notwithstanding any provision to the contrary, the control authority may publish in a newspaper of general circulation any other noncompliance that does not meet the criteria or is not addressed in subsection (A) above (e.g., exceedance of the TRC by a non-significant industrial user).
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Secs. 13-24-87—13-24-89. Reserved.

ARTICLE 5. REVIEW AND OVERSIGHT OF OUTLYING JURISDICTIONAL PROGRAMS WITH PERMITTED INDUSTRIAL USER AND/OR OTHER DISCHARGES TO MEMPHIS STP(S)

Sec. 13-24-90. Purpose of this division.

A. Inasmuch as Memphis is the NPDES permittee that owns and operates WWTPs that receive wastewater, not only from discharges within the city but discharges

from facilities located outside of the city's corporate limits, this article of chapter 13-24 is drafted to provide a mechanism to assure that: (i) industrial user permits for discharge to Memphis issued by outlying jurisdictions impose requirements at least as stringent as that required by federal law, Tennessee law, and as set forth in this article; and (ii) outlying jurisdictions do not approve any discharges that would enter Memphis' sewers or WWTPs (e.g., discharges originating from outside the corporate limits of the outlying jurisdiction) without Memphis' approval.

B. The provisions of this article are modeled after the Clean Water Act ("CWA") §§ 401 and 402(b) provisions and implementing regulations (see, e.g., 40 C.F.R. §§ 122.4(a), 123.44 and 124.53) wherein EPA or an approved NPDES state review, comment upon, and potentially object to a draft permit proposed to be issued by the other governmental entity.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-91. Prohibitions applicable to outlying jurisdiction issuance of industrial user permits for discharge to Memphis.

A. No permit may be issued by an outlying jurisdiction to an industrial user to discharge to a Memphis WWTP when:

1. The conditions of the industrial user permit do not provide for compliance with the applicable requirements of CWA and regulations, Tennessee pretreatment Rules, and [this chapter] of Memphis;

2. The outlying jurisdiction has failed to provide Memphis an opportunity to review and object to an industrial user permit under section 13-24-92;

3. The outlying jurisdiction has failed to provide Memphis the requested information under section 13-24-92(B); and/or

4. Memphis has objected to issuance of the permit under section 13-24-92 and: (i) the permit has not been changed to resolve the objection(s); or (ii) Memphis and the outlying jurisdiction have not otherwise resolved the issue(s).

B. No user shall introduce sewage or wastewater to the Memphis POTW, including to the sewers, pipes, and other conveyances that convey wastewater to the Memphis WWTP if:

1. A permit cannot be issued to that user under section 13-24-91(A), above;

2. The industrial user is an existing source and has been identified as a significant industrial user by the outlying jurisdiction and/or Memphis and a permit has not been issued to such industrial user within 180 days of being identified as a significant industrial user;

3. A permit has not yet been issued to a new source unless the new source facility is designated as a non-significant categorical industrial user; or

4. The user is located in an outlying jurisdiction which does not have a written agreement with Memphis allowing the discharge of its users to the Memphis POTW.

C. Unless Memphis agrees in writing, in no event shall an outlying jurisdiction allow any person (including any industrial user) located outside of its jurisdictional boundaries to introduce sewage or wastewater to that outlying jurisdiction's sewer system such that it would discharge to the Memphis POTW, including to the sewers, pipes, and other conveyances that convey wastewater to the Memphis WWTP.

D. Issuance of a permit by an outlying jurisdiction or other authorization of the outlying jurisdiction for a user to discharge in contravention of the requirements set forth in this division, once approved as part of Memphis' pretreatment program, shall be deemed a violation by the outlying jurisdiction of the Clean Water Act ("CWA"), 33 U.S.C. §§ 1251 et seq., Tennessee Water Quality Control Act ("TWQCA"), T.C.A. §§ 68-3-101 et seq., and this chapter.

E. The introduction of sewage or wastewater to the Memphis POTW, including sewers, pipes, and other conveyances that convey wastewater to the Memphis WWTP, in contravention of the requirements set forth in this article, once approved as part of Memphis' pretreatment program, shall be deemed a violation by an industrial user in an outlying jurisdiction of the Clean

Water Act ("CWA"), 33 U.S.C. §§ 1251 et seq., Tennessee Water Quality Control Act ("TWQCA"), T.C.A. §§ 68-3-101 et seq., and this chapter.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-92. Memphis review of and objections to outlying jurisdiction permits.

A. Before issuing, reissuing, or modifying an industrial user permit for a discharge to the Memphis WWTP, an outlying jurisdiction shall provide a draft of the permit to Memphis and provide Memphis a minimum of 30 days to review and comment upon the draft permit. Memphis may extend the time to comment on the draft permit for an additional 30-day period for an existing permitted facility, and 60-day period for a newly permitted facility, upon providing the outlying jurisdiction written notice of such extension.

B. If Memphis needs more information (e.g., industrial user permit application, outlying jurisdiction rationale for the permit conditions) regarding its evaluation of the proposed industrial user permit, Memphis may request that the outlying jurisdiction provide Memphis the requested information. The time periods under section 13-24-92(A), above, are automatically extended during the pendency of the request until Memphis receives all the requested information.

C. Memphis may object to the issuance, reissuance, or modification of an industrial user permit by an outlying jurisdiction. Such objection may identify permit conditions in the draft permit that must be changed (e.g., modified or deleted) or additional conditions that must be added to the permit.

1. In objecting to the industrial user permit, Memphis shall provide a statement of the reason(s) for the objection(s) and the actions that must be taken by the outlying jurisdiction to eliminate the objection. These changes may be based upon the specific wording of a federal, Tennessee, or Memphis requirement or Memphis' general approach for implementing requirements for industrial users.

2. An objection may be based upon the objective that industrial users in outlying jurisdictions should not be subject to more lenient requirements than industrial users located in Memphis.

3. Objections may address any provisions of the proposed permit as well as the absence of permit conditions, including those relating to effluent limitations, the maintenance of records, reporting, monitoring, sampling, enforcement, or assuring that Memphis receives notice and information from the industrial user (e.g., slug reports, permit applications, etc.).

4. Unless Memphis agrees to withdraw its objections, if the outlying jurisdiction does not resubmit a permit revised to resolve an objection to Memphis' satisfaction, the permit shall not be issued by the outlying jurisdiction to the industrial user.

D. Where a Memphis objection is not resolved:

1. If an unresolved Memphis objection involves a proposed modification to the industrial user permit, then the permittee can continue to discharge to Memphis under the preexisting unmodified industrial user permit for the remaining term of the permit unless precluded by subsequent legal requirements.

2. If an unresolved Memphis objection involves a new industrial user permit, the industrial user may not discharge to Memphis unless it obtains a valid industrial user permit. The industrial user may request that Memphis issue the permit under section 13-24-93.

3. If an unresolved Memphis objection involves the reissuance of an industrial user permit, the industrial user may continue to discharge to Memphis under the preexisting permit, subject to the limitation in section 13-24-94(B).

E. In addition, Memphis may provide recommendations with respect to the proposed permit issuance, reissuance, or amendment. Failure of the outlying jurisdiction to follow a recommendation does not trigger the requirements of section 13-24-91(A).

F. Notwithstanding anything to the contrary, nothing herein shall be deemed to require Memphis to review industrial user permits issued by outlying jurisdictions.

(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-93. Memphis issuance of industrial user permits for dischargers in outlying jurisdiction.

A. Where an unresolved Memphis objection exists, the industrial user may request that Memphis issue an industrial user permit authorizing the discharge to the

Memphis sewers and WWTP. Memphis may condition its willingness to issue the permit to an industrial user located in an outlying jurisdiction, on the industrial user entering into a separate written agreement with Memphis wherein the industrial user agrees to be subject to such conditions as Memphis deems appropriate, including, but not limited to, being subject to:

1. Memphis' pretreatment Ordinance,
2. Announced and unannounced inspections and sampling by Memphis, and/or
3. Any and all enforcement actions as deemed appropriate by Memphis, including agreeing to be subject to administrative actions before Memphis and judicial actions in Tennessee State Courts, subject to the civil penalty amounts and damages as provided in Tennessee law and/or Memphis' Ordinance. Notwithstanding this provision, the industrial user does not waive any arguments as to whether it actually committed the alleged violation.

B. A permit issued by Memphis to an industrial user in an outlying jurisdiction may be appealed to the Memphis Hearing Authority.

C. Wherein Memphis issues a permit to an industrial user in an outlying jurisdiction, nothing herein shall be deemed to waive federal, State, and local legal obligations of the industrial user that apply in the outlying jurisdiction.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-94. Miscellaneous provisions regarding outlying jurisdictions issuance of permits.

A. For the purposes of this division, an "outlying jurisdiction" means a city, town, county, district, association, or other public body created by or pursuant to state law in which an industrial user is located outside the Memphis City limits that discharges sewage and/or wastewater to a sewer system located in that jurisdiction, wherein the sewage and/or wastewater empties into the Memphis sewage system for eventual treatment at the Memphis WWTP(s). An "outlying jurisdiction" also includes a state that is approved pursuant to 40 C.F.R. § 403.10(e), that issues permits to industrial user(s) for discharging sewage and/or wastewater to a sewer system located in that state, wherein the sewage and/or wastewater empties into the Memphis sewage system for eventual treatment at the Memphis WWTP(s). The City of Memphis is not an "outlying jurisdiction."

B. Where an industrial user in an outlying jurisdiction has submitted a timely and complete permit renewal application or request for permit reissuance, in no event shall the existing permit, if not reissued by the expiration date, be continued for a period longer than six months.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Secs. 13-24-95—13-24-99. Reserved.

ARTICLE 6. MISCELLANEOUS PROVISIONS

Sec. 13-24-100. Reservation of rights.

Nothing contained in chapters 13-4, 13-8, 13-12, 13-16, 13-24, 13-28 and 13-32, or otherwise contained in a city ordinance shall be construed to interfere with any additional requirements that may be imposed by the control authority subject to its sole discretion. Notwithstanding any other pretreatment program provision to the contrary, nothing in this chapter, any other city ordinance, or in the city's pretreatment program shall be deemed a legally binding commitment under the Clean Water Act, 33 U.S.C. §§ 1251 et seq., the Tennessee Water Quality Control Act of 1977, T.C.A. §§ 69-3-101 et seq., and applicable regulations (e.g., 40 C.F.R. Part 403, Rule 1400-40-14) for the city to undertake pretreatment implementation or enforcement activities beyond the minimum otherwise required by these Federal/state laws and regulations. Nevertheless, the city maintains its discretionary authority to undertake pretreatment activities beyond the minimum required.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Sec. 13-24-101. Special agreements or arrangements.

Nothing contained in this chapter shall be construed as prohibiting any special agreement or arrangement between the control authority and any person, or for the control authority to otherwise waive requirements herein, when conditions and circumstances making such special agreement(s), arrangement(s), or waiver(s) advisable and/or necessary, in the opinion of the control authority, are present. In no event shall special agreement(s), arrangement(s), or waiver(s) permit any industrial user to violate applicable minimum Federal or State pretreat-

ment requirements (e.g., National Categorical Pretreatment Standards) as set forth in 40 C.F.R. Part 403 and Rule 1400-40-14.
(Ord. No. 5793, §§ 3, 5, 8-17-2021)

Secs. 13-24-102—13-24-109. Reserved.

CHAPTER 13-26. FOOD ESTABLISHMENT WASTEWATER

Sections:

Sec. 13-26-1. Waste disposal—Construction plans approval and permit required.
Sec. 13-26-2. Subject to industrial wastewater limitations.
Sec. 13-26-3. Permit for food establishment wastewater discharge.
Sec. 13-26-4. Permit application.
Sec. 13-26-5. Duration of permits.
Sec. 13-26-6. Transfer of permit.
Sec. 13-26-7. Revocation of food establishment wastewater permit.
Sec. 13-26-8. Grease pretreatment required.
Sec. 13-26-9. Maintenance reports.
Sec. 13-26-10. Penalty for violation and civil liability.

Sec. 13-26-1. Waste disposal—Construction plans approval and permit required.

A. *Grease trap required.* All food service establishments discharging wastewater to the city's wastewater facilities shall install, operate, and maintain a sufficiently sized oil and grease, water and solids separator (hereinafter called grease trap) necessary to prevent the accumulation of oil and grease in the sewer collection system. Approval of the City of Memphis, division of public works, shall be required during the construction plans approval process.

B. *Design criteria.* All grease traps used in conjunction with food service establishments shall have the capacity of 15 gallons per seat of dining capacity, except that no single grease trap shall be smaller than 750 gallons or larger than 3,000 gallons. In certain cases, multiple grease traps may be utilized. Alternative treatment technologies shall be considered on a case-by-case basis for food establishments that are to be located in an existing building where a large grease trap is not feasible.

C. *General permit to discharge.* All food establishments shall obtain a permit to discharge to the wastewater system from the approving authority. This permit shall be posted on the premises and renewed as needed.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-2. Subject to industrial wastewater limitations.

Wastewater discharged into public sewers from facilities engaged in preparing food for consumption by the public shall be subject to the limitations set forth in sections 13-24-3 and 13-24-4 and such other conditions and requirements as are set forth in section 13-26-3. The permit for food establishment wastewater discharge shall be subject to all provisions of this chapter and all other regulations, user charges, and fees established from time to time by resolution of the council of the City of Memphis.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-3. Permit for food establishment wastewater discharge.

The permit for food establishment wastewater discharge may require pretreatment of wastewater before discharge, restriction of peak flow discharges, discharge of certain wastewater only to specified sewers of the city, relocation of point of discharge, prohibition of discharge of certain wastewater components, restriction of discharge to certain hours of the day, payment of additional charges to defray increased costs of the city created by the wastewater discharge, and such other conditions as may be required.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-4. Permit application.

Persons seeking a food establishment wastewater discharge permit shall complete and file with the approving authority, an application in the form prescribed by the approving authority. The applicant may be required to submit, in units and terms appropriate for evaluation, the following information:

Name and address of applicant;

Volume of wastewater to be discharged;

Time of daily food preparation operations;

Description of food preparation, dining room capacity by seats, number of employees, and size of kitchen;

Any other information as maybe deemed by the approving authority to be necessary to evaluate the permit application.

The approving authority will evaluate the data furnished by the applicant and may require additional information. After evaluation and acceptance of the data furnished, an on-site inspection of the waste discharge system, treatment systems or other systems relating to the waste discharge may be required. The approving authority may then issue a food establishment wastewater discharge permit subject to the terms and conditions provided herein.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-5. Duration of permits.

Permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period less than a year or may be stated to expire on a specific date. If the permittee is not notified by the city 30 days prior to the expiration of the permit, the permit shall be extended one additional year. The terms and conditions of the permit may be subject to modification and change by the city during the life of the permit as limitations or requirements as identified in sections 13-24-3 and 13-24-4 are modified and changed. The permittee shall be informed of any proposed changes in his permit at least 30 days prior to the effective date of change. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-6. Transfer of permit.

Food establishment wastewater discharge permits shall be issued only for specific use for a specific operation. Any sale, lease, transfer, or assignment of the premises or operation for which the permit was issued shall require a new permit to be issued. Any new or changed conditions of operation shall require a new permit to be issued.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-7. Revocation of food establishment wastewater permit.

The approving authority may revoke the permit of any permittee who is found to be in violation of this ordinance or who:

Fails to install grease pretreatment devices as required by permit;

Fails to fulfill reporting requirements or pretreatment maintenance as required by permit;

Refuses reasonable access to the permittee's premise for the purpose of inspection or monitoring; or

Violates conditions of the permit.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-8. Grease pretreatment required.

Permittee shall make wastewater acceptable under the limitations established herein before discharging to any public sewer. All permittees shall be required to install an approved type grease pretreatment device in the waste line leading from the food preparation area, or from sinks, drains, appliances, and other fixtures or equipment used in food preparation or cleanup where grease may be introduced into the sewerage system. Such grease pretreatment devices shall be installed to remove grease from wastewater and shall be maintained in efficient operating conditions by periodic removal of the accumulated grease. No such collected grease shall be introduced into any drainage piping or public sewer.

Each permittee shall also be required to provide a collection drum or container for the purpose of physically segregating oils, greases, and greasy solids. Permittees shall establish procedures for personnel to practice maximum segregation of oils, greases, and greasy solids to the collection drum or container prior to washing and other water cleaning, which goes into sewers. The permittee shall be responsible for the proper removal and disposal by appropriate means of the material captured from either grease pretreatment devices on wastewater lines or the collection drum for segregating oils, grease, and greasy solids.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-9. Maintenance reports.

The approving authority shall require the permittee to keep records of grease pretreatment device cleaning, maintenance and grease removal on site. The approving authority may require the permittee to provide results of periodic measurements of its discharge, which is to include chemical analysis of oil and grease content. Permittees shall allow the city or its representative ready access at all reasonable times to all parts of the premises for purposes of sampling and inspections.
(Ord. No. 5099, § 5(part), 2005)

Sec. 13-26-10. Penalty for violation and civil liability.

Any person(s) discharging wastewater in violation of the food establishment wastewater discharge permits is subject to fines, penalties, cost recovery, injunction, termination of sewer service, permit revocation, and/or such other remedies as are available to the approving authority under section 13-36-3.
(Ord. No. 5099, § 5(part), 2005)

CHAPTER 13-28. SEWER FEES AND CHARGES

Sections:

Sec. 13-28-1. Established—Basis for determination.
Sec. 13-28-2. Distribution of funds—Accounting therefore.
Sec. 13-28-3. Sewer fee review.
Sec. 13-28-4. Appeals.
Sec. 13-28-5. Grays Creek Special Sewer Service District 1.
Sec. 13-28-6. Loosahatchie River Special Sewer Service Area.
Sec. 13-28-7. Billing and collection.
Sec. 13-28-8. Mary's Creek Special Sewer Service Area.
Sec. 13-28-9. Grays Creek Special Sewer Service District 2.

Sec. 13-28-1. Established—Basis for determination.

A. Requirements generally. In accordance with Public Law 92-500 and Title 40, Chapter 1, Subchapter B, Part 35, Subpart E, Section 35.925-11, which requires the city to implement a wastewater treatment user's charge, each user will pay its proportionate share of the cost for operation and maintenance of the total treatment works. Direct and incidental costs to the city, including, but not limited to, administrative, technical and legal expenses, shall be considered a part of the cost of operations and maintenance of the total treatment works. There shall be two types of charges: The first type of charge is volumetric charge; the second is a charge for treating wastewater, which has an excessive strength.

B. Sewer service charge. The sewer service charge shall be made up of two types of charges.

1. Volumetric charge. All customers will be charged a volumetric charge based on the equivalent strength of domestic sewage BOD5 of 250 milligrams per liter, SS of 300 milligrams per liter, and COD of 800 milligrams per liter. Since seven and forty-eight one hundredths (7.48) gallons equal one cubic foot, 1,000 gallons equals 133.689 cubic feet (cf) or 1,000 gallons equals 1.33689 hundred cubic feet (cf). The volumetric charge per 1,000 gallons shall be based on annual debt service, capital costs, treatment and operations and maintenance costs, and all other charges assigned to the sewer fund.

All customers shall be charged a volumetric charge in accordance with the following fee schedule until changed by amendment to this section. The volumetric charge shall be assessed against the name in which a meter has been installed.

Beginning January 1, 2020, the volumetric charge will be $3.32 per 1,000 gallons of flow. A residential maximum volume fee of $75.00 and a minimum of $8.65 per month per individual dwelling unit is herewith established.

Notwithstanding the foregoing, in the case of multifamily dwellings, a portion of the volumetric charge may be recovered through a monthly flat rate per customer charge. The charge, as determined by the director of public works, shall not exceed the amounts set forth in the fee schedule below. Amounts collected through any monthly flat rate charge shall be credited in accordance with section 13-28-56.

Beginning January 1, 2020	$12.95 per month

All citizens who qualify for the solid waste fee discount program as delineated in section 9-56-12, City of Memphis, Code of Ordinances shall be charged a reduced fee for wastewater use in accordance with the following fee schedule, until changed by amendment to this section:

Beginning January 1, 2020	$2.43 per 1,000 gallons

2. Additional treatment charge. In addition to the volumetric charge, all users who discharge wastewater with a strength greater than domestic sewage which shall include, but not be limited to, BOD of 250 milligrams per liter, SS of 300 milligrams per liter, and COD of 800 milligrams per liter will be assessed an additional treatment charge (ATC) based on the following formula:

$$ATC = \frac{U(B)T(B)}{B} + \frac{U(S)T(S)}{S} + \frac{U(C)T(C)}{C}$$

Where:

U(B) = BOD loading in excess of 250 milligrams per liter

T(B) = Treatment costs assigned to BOD (includes debt service, operation, maintenance, and replacement costs)

B = Total BOD loading or BOD capacity of treatment plants, whichever is less

U(S) = Suspended solids loading in excess of 300 milligrams per liter

T(S) = Treatment costs assigned to suspended solids (includes debt service, operation, maintenance, and replacement costs)

S = Total suspended solids loading or suspended solids capacity of treatment plants, whichever is less

U(C) = COD loading in excess of 800 milligrams per liter

T(C) = Treatment costs assigned to COD (includes debt service, operation, maintenance, and replacement costs)

C = Total COD loading or COD capacity of treatment plants, whichever is less

Sampling frequency for determination of the ATC will be specified in the discharge permit. COD or TOC analytical results may be used in lieu of the BOD test if the BOD test is not applicable due to a toxic effect of the wastewater or a substantial correlation can be developed between BOD and the substitute test, and if allowed by the approving authority. If a BOD test is not applicable due to a toxic effect, then the approving authority has the authority to require the discharger to determine the cause of the toxic effect and then to eliminate the constituent causing the toxic effect.

3. The division of public works may impose and modify such additional surcharges as it deems appropriate to address, among other things, disproportional costs associated with the discharge of wastewater by one or more users. For example, a fee schedule may be established to address disproportional costs the city incurs due to color, COD (due to its impacts on the city's disinfection process), sulfur (due to its impact on biogas generation), dissolved organics (due to its impact on disinfection costs) or fats oils and grease (due to its impact on the collection system). Nothing herein shall be deemed to require the city to accept such wastes for treatment.

C. Cooperative agreements. The sewer service charges in this section are applicable to every person inside and outside the corporate limits of the city whose sewage or wastewater empties into the city's sewage system for eventual disposal through the sewage system and sewage or wastewater treatment plants. The city may enter into appropriate agreements with the county and all other municipalities in the county or elsewhere using the city's sewage system for the disposal of their sewage or wastewater, which agreements shall provide for the implementation of the charges herein and the billing and collection thereof. Such county and municipalities shall be required to enter into such agreement in order to continue their position of discharging their sewage and wastewater through the sewerage system established by the city. All funds collected shall be deposited with the city in the sewer treatment fund in accordance with applicable agreements.

D. Private wells. Those users having private wells will install either water meters on the wells or approved flow metering devices on wastewater discharged to the city sewers. These water meters are subject to approval, inspections, and any maintenance, calibration, record keeping, and reporting requirements deemed necessary by the control authority to continually and reliably produce accurate flow volumes. Wastewater discharge flow metering devices requirements are found in section 13-24-47. Users will be classified as residential or commercial-industrial according to classifications established by the light, gas and water division or other water-serving utility.

E. Seasonal adjustment of sewer fees. Section 13-28-1(B) establishes a monthly maximum charge for residential sewer service regardless of the amount of water flow measured in a billing period. During the months of June, July, August, and September, the maximum charge shall be reduced, and the following fee shall apply for residential customers until changed by amendment to this section:

> June through September 2020 and during such months for subsequent years: $50.00

Those residential customers living in special sewer service surcharge areas will not be relieved of the flat rate charges even if their volumetric charges are reduced by the monthly maximum charge. The appropriate flat rate charge will be added to the volumetric charge to reach the adjusted monthly value. No such relief shall be granted to those customers residing in other cities or service areas whose fees are assessed based upon current contracts and agreements.

F. Any user desiring to exercise his option of installing an approved metering device shall notify the control authority of his exercise of the option, and the control authority from the date of installation of the metering device shall adjust its charges back to the date of the notice of the user to install the metering device or 90 days, whichever is sooner and such adjustment shall be based upon the average charge for the 90 days following the installation of the metering device. Those users having private wells shall have 90 days in which to install a water meter or a metering device for measuring wastewater discharged into the city sewer system. The city shall estimate charges for the period of time prior to the installation of the device and shall adjust the charges based on 90 days experience after the installation of the device. If a private well owner installs a water meter and thereafter elects to install a metering device for measuring wastewater discharge into the city sewerage system, then he likewise shall have his charges adjusted from the time of the installation of the device back to the date of notice to the control authority or 90 days, whichever is sooner, and such adjustment shall be based on the charges for 90 days following the installation. Wherever used in this section, the word "sewer" shall mean "sanitary sewer".

G. Groundwater remediation and monitoring wells. Owners or operators of groundwater remediation and/or monitoring wells, such as for TDEC leaking underground storage tank (LUST) sites or dry cleaner environmental remediation program (DCERP) sites, shall be subject to applicable rates based on flow and pollutants.

(Code 1985, § 33-131; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5036, § 1(part), 2004; Ord. No. 5099, § 6, 2005; Ord. No. 5312, § 1(33-131), 6-2-2009; Ord. No. 5356, § 1(33-131), 6-8-2010; Ord. No. 5498, § 1, 3-5-2013; Ord. No. 5514, § 1, 6-4-2013; Ord. No. 5651, § 1, 7-25-2017; Ord. No. 5738, § 1, 12-3-2019; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-2. Distribution of funds—Accounting therefor.

The division of public works shall institute an accounting system reflecting an equal distribution of total funds produced under the division based upon the respective needs of each segment of the wastewater treatment operations and maintenance functions, including but not limited to, treatment plant operations; sewer maintenance; sewer design; sewer construction; pollution control monitoring; wastewater treatment capital improvements bond indebtedness loan repayments; direct and incidental costs to the city, including, but not limited to, administrative, technical and legal expenses; and other expenditures necessary for an effective wastewater treatment program. Revenue generated under this division shall be used exclusively for the wastewater treatment program.

(Code 1985, § 33-132; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-3. Sewer fee review.

Rates generated under chapters 13-8, 13-12, 13-16, 13-28 and 13-32 of this title shall be reviewed periodically and approved or adjusted by the division of public works subject to the approval of the Memphis City Counsel.

(Code 1985, § 33-133; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-4. Appeals.

Appeals related to sewer use fees, connection fees, development fees, and/or sewer extension fees in situations in which the owner, user, company, etc., feels that extenuating circumstances exist that warrant a modification of the applicable fee should be made to the director of public works or his/her designee. The director of public works or his/her designee shall have authority to

modify or waive fees as is considered appropriate. The decision of the director of public works or his/her designee shall be final.
(Code 1985, § 33-134; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-5. Grays Creek Special Sewer Service District 1.

Due to the cost of designing, constructing, construction and financing a sewer system for the Grays Creek Drainage Basin the following sewer infrastructure surcharge fees are hereby established for any person directly or indirectly served by the Grays Creek Outfall Sewer outfall sewer:

A. Residential lot infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be $1,000.00 per lot.

B. Multifamily dwelling infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be the greater of $3,500.00 per acre or $415.00 per unit.

C. Commercial and industrial multi-unit building infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be the greater of $50.00 per front foot, or $3,500.00 per acre.

D. Residential and commercial infrastructure user surcharge fee (which shall be in addition to normal user fees) shall be $6.00 per month.

E. Industrial user infrastructure surcharge fee (which shall be in addition to normal user fees) shall be ($0.60) per 1,000 gallons.

(Code 1985, § 33-135; Ord. No. 4443, § 3, 11-5-1996; Ord. No. 5196, § 2, 12-19-2006; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-6. Loosahatchie River Special Sewer Service Area.

There is now established the Loosahatchie River special sewer service area. Due to the cost of designing, constructing and financing a sewer system for the Loosahatchie River Drainage Basin east of the Illinois Central railroad and north of the existing city limits for the city (as of March 31, 1999), the following sewer infrastructure surcharge fees are established for any Person directly or indirectly served by the Loosahatchie River interceptor within the bounds delineated above.

A. Residential lot infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be $1,000.00 per lot.

B. Multifamily dwelling infrastructure surcharge development fee (which shall be in addition to normal development fee shall be the greater of $3,500.00 per acre or $415.00 per unit.

C. Commercial and industrial multiunit building infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be the greater of $50.00 per front foot or $3,500.00 per acre.

(Code 1985, § 33-136; Ord. No. 4734, § 1, 1-18-2000; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-7. Billing and collection.

A. The sewer service charge shall be included each month on the bills rendered by the light, gas and water division, or other serving utility, in accordance with its standard billing practices. Such charges shall be rendered on the first bill of the serving utility sent out on and after June 1, 1979, and for each month thereafter. Billings separate from those made by the light, gas and water division, as determined by the director of public works, may be made to commercial and users. Failure to pay the sewer service charge within 30 days from due date of the utility statement shall be grounds for terminating water service by the serving utility.

B. When service commences or ceases, applicable charges may be prorated.

C. If service shall be supplied to a location, the occupant or tenant of which was vacated, and the city is satisfied that there has been a termination of sewer service, then the city, on timely application of the owner or agent thereof, may suspend liability for such charges, and such charges shall be reinstated for the next utility bill rendered to the occupant or tenant of such premises.

D. Charges based on metered measurement of volume discharged to the sewer system and/or additional treatment charges based on wastewater strength, shall be paid monthly to the city in a manner prescribed by the division of public works.

E. The sewer service charges are applicable to every person, inside and outside the corporate limits of the city, whose sewage and wastewater empties into the city's collection and treatment systems.

F. Credit for prior billing errors is limited to errors occurring less than or equal to 12 months prior to the date that the claim for credit is made by residential or commercial customers.

G. In accordance with the apartment credit program the approving authority has the right to charge each tenant $12.95 per month effective January 1, 2020, if so requested in writing by the apartment owner, until this section is otherwise amended. The total amount collected will then be credited against the amount billed from the master water meter reading each month.

H. Commercial and industrial users that are billed separately from the light, gas, and water division or other serving utility billing system will be charged a late fee of one percent or $500.00, whichever is less, for any portion of each month in which billing information as required is not submitted to the sewer billing office by the 15th of each month for the previous month.
(Code 1985, § 33-156; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5036, § 1(part), 2004; Ord. No. 5099, § 7, 2005; Ord. No. 5312, § 1(33-156), 6-2-2009; Ord. No. 5356, § 1(33-156), 6-8-2010; Ord. No. 5651, § 3, 7-25-2017; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-8. Mary's Creek Special Sewer Service Area.

There is now established the Mary's Creek Special Sewer Service District. Due to the cost of designing, construction and financing a sewer system for the Mary's Creek drainage basin the following sewer infrastructure surcharge fees are established for any person directly or indirectly served by the Mary's Creek. Mary's Creek is a tributary of Gray's Creek in an area north of the Wolf River, east of the City of Memphis, and in the City of Memphis annexation reserve area as of July 2004. Mary's Creek runs generally east to west. Sewer service provided to Mary's Creek will only service land in the city and/or city annexation area:

A. Residential lot infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be $2,200.00 per lot.

B. Multifamily dwelling infrastructure surcharge development fee (which shall be in addition to normal development fees) shall be the greater of $7,700.00 per acre or $915.00 per unit.

C. Commercial and industrial multiunit building infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be the greater of $110.00 per front foot or $7,700.00 per acre.

D. Residential and commercial infrastructure user surcharge fee (which shall be in addition to normal user fees) shall be $12.00 per month.

E. Industrial user infrastructure surcharge fee (which shall be in addition to normal user fees) shall be $1.20 per 1,000 gallons.

(Ord. No. 5070, § 1, 2004; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-28-9. Grays Creek Special Sewer Service District 2.

There is now established the Grays Creek Special Sewer Service District 2. Due to the cost of designing, construction and financing a sewer system for the Grays Creek Special Sewer Service District 2, the following sewer infrastructure surcharge fees are established for any person directly or indirectly served by this portion of the Grays Creek sewer basin. Grays Creek District 2 begins at the upstream terminus of the interceptor constructed under the original Grays Creek Special Sewer Service Area (hereafter called District 1). The general boundaries of district 2 are the Memphis annexation area in the Grays Creek drainage basin that is upstream of a point approximately one mile east of Pisgah Road. This encompasses the area outside of Grays Creek District 1 that is bounded on the north by U.S. Highway 64, on the west by: (1) the eastern ridge line of an unnamed tributary to Grays Creek that is approximately 2,000 feet west of Roland Road; said tributary is north of and drains southward into Grays Creek; and (2) the eastern ridge line of an unnamed tributary to Grays Creek approximately 1,800 feet east of Pisgah Road; said tributary is south of and drains northward into Grays Creek. The southern boundary of this district is the Grays Creek Basin ridge line which generally follows Macon Road east of Pisgah. The eastern boundary is the Shelby County line which is also the eastern limit of the City of Memphis annexation reserve area. Sewer service will only be provided to

those areas in Grays Creek District 2 that are within the current limits of the City of Memphis and/or the City of Memphis annexation reserve area.

A. Residential lot infrastructure surcharge development fee (which fee shall be in addition to normal development fees) shall be $2,500.00 per lot.

B. Multifamily dwelling infrastructure surcharge development fee (which shall be in addition to normal development fees) shall be the greater of $8,750.00 per acre or $1,040.00 per unit.

C. Commercial and industrial multiunit building infrastructure surcharge development fee (which fee shall be addition to normal development fees) shall be the greater of $125.00 per front foot or $8,750.00 per acre.

D. Residential and commercial infrastructure user surcharge fee (which shall be in addition to normal user fees) shall be $12.00 per month.

E. Industrial user infrastructure surcharge fee (which shall be in addition to normal user fees) shall be $1.20 per 1,000 gallons.

(Ord. No. 5196, § 1, 12-19-2006; Ord. No. 5793, § 4, 8-17-2021)

CHAPTER 13-32. POWERS AND AUTHORITY OF INSPECTORS*

Sections:

Sec. 13-32-1. Authority to enter, sampling and oversight.
Sec. 13-32-2. Injury to or by city employees engaged in inspection activities.
Sec. 13-32-3. Authority to enter upon easements for the purposes of inspection of sewerage works.

Sec. 13-32-1. Authority to enter, sampling and oversight.

Inspectors may include representatives of the City of Memphis, division of public works, control authority, and/or its designee (including contractors), bearing proper credentials and identification. Inspectors shall be permitted to enter appropriate property areas at all reasonable times for the purpose of inspection, observation, measurement, sampling, and testing as the inspector deems necessary in accordance with this chapter. Sampling, inspection and other oversight may be undertaken at any location at the facility site including, but not limited to, effluent discharge points, internal wastestream points and manholes located on the user's owned or occupied property. This includes the authority to inspect production, waste and other areas to ascertain whether the purposes of this chapter are being met and all requirements are being complied with. Persons or occupants of premises where regulated activities occur shall allow the inspector ready access at all reasonable times, at a minimum the days and hours of operations for the purposes of inspection, sampling, testing, photographing, videotaping, copying documents and records, conducting interviews in the performance of their duties. Access to the property for the purposes set forth herein shall not be conditioned upon the City of Memphis and/or the inspectors signing an access agreement, including, but not limited to, a document pertaining to the potential waiver or release from liability or provisions pertaining to secrecy, confidentiality or disclosure of information. The inspector shall have the right to set up on the user's property such sensors or other devices as are necessary to conduct sampling, metering operations or other oversight, which includes, but is not limited to, composite samplers, discrete samplers, flow measuring devices, continuous monitoring devices and/or sensors, controllers, remote telemetry devices, modems, and cleaning devices such as air blasts or water blasts. Where a user has security measures in force, which would require proper identification and clearance before entry into the premises, the user shall make necessary arrangements with security personnel so that, upon presentation of suitable identification, inspectors shall be permitted to enter without delay for the purposes of performing their specific responsibilities.

(Code 1985, § 33-141; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-32-2. Injury to or by city employees engaged in inspection activities.

While performing the necessary work on private properties referred to in section 13-32-1 above, representatives of the division of public works, control authority and/or its designee shall observe all safety rules applicable to the premises established by the company except as otherwise deemed necessary by the city (e.g., to address an emergency situation).

(Code 1985, § 33-142; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

Sec. 13-32-3. Authority to enter upon easements for the purposes of inspection of sewerage works.

Representatives of the division of public works (including its designee), and Tennessee Department of Environment and Conservation bearing proper credentials and identification, shall be permitted to enter all private properties through which the city holds a duly negotiated easement for the purposes of inspection, observation, measurement, sampling, repair and maintenance of any portion of the sewerage works lying within such easement. All entry and subsequent work, if any, on such easement shall be done in full accordance with the terms of the duly negotiated easement pertaining to the private property involved.

(Code 1985, § 33-143; Ord. No. 4023, § 1, 3-26-1991; Ord. No. 5793, § 4, 8-17-2021)

***Editor's note—**Ord. No. 5793, § 4, adopted August 17, 2021, amended ch. 13-32, §§ 13-32-1—13-32-4 in its entirety to read as herein set out. Former ch. 13-32, §§ 13-32-1—13-32-4, pertained to inspection of wastewater treatment facilities; said ordinance repealed § 13-32-4, which pertained to termination of service upon finding of violation and derived from Code 1985, § 33-144; Ord. No. 4023, § 1, 3-26-1991.

CHAPTER 13-36. REVIEW AND ENFORCEMENT*

Sections:

Sec. 13-36-1. Local hearing authority.
Sec. 13-36-2. Purpose.
Sec. 13-36-3. Composition, length of term, officers.
Sec. 13-36-4. Removal.
Sec. 13-36-5. Powers and duties.
Sec. 13-36-6. Appeal.
Sec. 13-36-7. Quorum.
Sec. 13-36-8. Members to be residents of city.
Sec. 13-36-9. Members oath.
Sec. 13-36-10. Hearings.

Sec. 13-36-1. Local hearing authority.

There is hereby created and established a local hearing authority to be known as the Memphis Wastewater Hearing Authority and referred to hereinafter as the "hearing authority."
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-2. Purpose.

The hearing authority shall serve as the local hearing authority as prescribed in T.C.A. § 69-3-124 and shall be responsible for the review of orders issued or actions undertaken by the director of public works or his designee pursuant to the sewer use ordinance, pretreatment statutes codified at T.C.A. §§ 69-3-123—69-3-129, and such requirements as set forth in the National Pollutant Discharge Elimination System ("NPDES") permit issued to the City of Memphis.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-3. Composition, length of term, officers.

A. The hearing authority shall be composed of the following seven members who shall be appointed by the mayor subject to approval by the Memphis City Council, and shall constitute the voting members of the hearing authority:

Representative Group (# of members)	*Length of Term (years)*
Industry (1)	1
Private Citizenry (3)	2
Engineering/Science (2)	2
Public Interest Group/ University (1)	1

B. A chairperson of the hearing authority shall be elected at the first meeting of each newly appointed hearing authority from among its own membership to serve for a term of one year.

C. The director of public works or his designee shall serve as the hearing authority's technical secretary.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-4. Removal.

Members may be removed from the hearing authority for continued absence from meetings or other just cause in accordance with the procedure for removal of board or commission members set forth within Home Rule Ordinance No. 1852 of the City Charter.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-5. Powers and duties.

In addition to any other duty or responsibility otherwise conferred upon the hearing authority by this chapter, the hearing authority shall have the duty and power as follows:

1. To recommend to the director of public works as the local administrative officer that this chapter or any provision included within this chapter be amended or modified;

2. To establish, modify or amend procedural rules governing hearings, orders, issuance of permits, and all other matters not specifically requiring a hearing, provided that such rules do not conflict with applicable state or federal law or the City Code of Ordinances;

3. To hold meetings and such special meetings as the hearing authority may find necessary;

4. To hold hearings upon appeals from orders or actions of the director of public works as the local administrative officer in accordance with T.C.A. § 69-3-124;

***Editor's note—**Ord. No. 5445, § 1, adopted April 3, 2012, repealed the former Ch. 13-36, §§ 13-36-1—13-36-4, and enacted a new Ch. 13-36 as set out herein. The former Ch. 13-36 pertained to sewage pretreatment enforcement and derived from Code 1985; Ord. No. 4023, 3-26-1991; Ord. No. 5099, 2005.

5. To hold hearings relating to the issuance, reissuance, suspension, revocation or modification of an industrial wastewater discharge permit and issue appropriate orders relating thereto.

6. To hold such other hearings relating to any aspect or matter in the administration of this chapter and to make such determinations and issue such orders as may be necessary to effectuate the purposes of this chapter;

7. To obtain assistance upon request from the director of public works or his designee as the hearing authority might need;

8. In addition to any other power granted by this title, the hearing authority is granted the authority to review the assessment of a civil penalty against any person in an amount not to exceed the sum of $10,000.00 per day for each day of violation during which the act or omission continues or occurs in accordance with T.C.A. § 69-3-125;

9. The decision of the hearing authority shall become final and binding on all parties unless appealed to the courts as provided in section 13-36-6 which governs appeals.

(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-6. Appeal.

Pursuant to T.C.A. § 69-3-124(b), an appeal may be taken from any final order or other final determination of the hearing authority by any party who is or may be adversely affected thereby, to the chancery court pursuant to the common writ of certiorari set out in T.C.A. § 27-8-101 within 60 days from the date such order or determination is made.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-7. Quorum.

A quorum of the hearing authority must be present at any regular or special meeting in order to conduct a hearing. Four members of the authority shall constitute a quorum.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-8. Members to be residents of city.

The members of the hearing authority shall be residents of the city and shall have been for at least three consecutive years immediately preceding their appointment.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-9. Members oath.

Each member of the hearing authority shall take an oath to faithfully perform the duties imposed upon him without fear or favor, and in full accordance with the constitution and laws of the state and the ordinances of the city.
(Ord. No. 5445, § 1, 4-3-2012)

Sec. 13-36-10. Hearings.

Any hearing or rehearing brought before the local hearing authority shall be conducted in accordance with T.C.A. § 69-3-124.
(Ord. No. 5445, § 1, 4-3-2012)

CHAPTER 13-40. STORMWATER MANAGEMENT AND POLLUTION CONTROL

Sections:

Article 1. General Provisions

Sec. 13-40-1. Purpose.
Sec. 13-40-2. Definitions.
Sec. 13-40-3. Abbreviations.
Sec. 13-40-4. Unauthorized discharge a public nuisance.
Sec. 13-40-5. Improper disposal.
Sec. 13-40-6. Exceptions—Allowable discharges.
Sec. 13-40-7. Illicit connection defined.
Sec. 13-40-8. Monitoring and inspection.
Sec. 13-40-9. Construction activity.
Sec. 13-40-10. Construction activity regulated.
Sec. 13-40-11. Construction activity letter of intent required.
Sec. 13-40-12. Data required in construction activity letter of intent.
Sec. 13-40-13. Private infrastructure defined.
Sec. 13-40-14. Maintenance criteria.
Sec. 13-40-15. Enforcement options.

Article 2. Stormwater Discharges from Industrial Sources

Sec. 13-40-16. Purpose.
Sec. 13-40-17. Industry defined.
Sec. 13-40-18. Right of inspection defined.
Sec. 13-40-19. Availability of information on discharger to public—Use of information accepted as confidential.
Sec. 13-40-20. Information required.
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Sec. 13-40-24. Stormwater discharge to sanitary sewer—Approval required.
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Sec. 13-40-27. Administrative enforcement remedies.
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Sec. 13-40-30. Reserved.
Sec. 13-40-31. Appeal judicial proceedings and relief.
Sec. 13-40-32. Damages—Disposition of funds.
Sec. 13-40-33. Records retention.
Sec. 13-40-34. Reserved.
Sec. 13-40-35. Memphis Stormwater Board—Created.

ARTICLE 1. GENERAL PROVISIONS

Sec. 13-40-1. Purpose.

A. It is the purpose of this chapter to protect, maintain and enhance the environment of the City of Memphis and the short-term and long-term public health, safety and the general welfare of the citizens of the city by controlling discharges of pollutants to the city MS4 and to maintain and improve the quality of the receiving waters into which the stormwater outfalls flow, including without limitation, lakes, rivers, streams, ponds, wetlands and ground water of the city.

B. It is further the purpose of this chapter to enable the city to comply with the NPDES permit and applicable regulations (at 40 CFR 122.26) for stormwater discharges.

(Code 1985, § 33-200; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-2. Definitions.

For the purpose of this chapter the following terms, phrases and words and their derivatives, shall have the meaning given herein:

Accidental discharge means a discharge prohibited by this chapter into the MS4 which occurs by chance and without planning or consideration prior to occurrence.

Best management practices or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures and other management practices to prevent or reduce the pollution of stormwater runoff. BMPs also include treatment requirements, operating procedures and practices to control site runoff, spillage or leaks, sludge or waste disposal or drainage from raw materials storage.

Clean Water Act or the *Act* means the Federal Water Pollution Control Act, as amended, codified at 33 USC 1251 et seq.

Commercial means property devoted in whole or in part to commerce, that is, the exchange and buying and selling of commodities or services. The term shall include, by way of example, but not be limited to, the following businesses: amusement establishments, animal clinics or hospitals, automobile service stations, automobile dealerships for new or used vehicles, automobile car washes, automobile and vehicular repair shops, banking establishments, beauty shops and barbershops, bowling alleys, bus terminals and repair shops, camera shops, dental offices or clinics, day care centers, department stores, drug stores, funeral homes, furniture stores, gift shops, grocery stores, hardware stores, hotels, jewelry stores, laboratories, laundries and dry cleaning establishments, liquor stores, medical offices and clinics, motels, movie theaters, office buildings, paint stores or shops, parking lots, produce markets, professional offices, radio

stations, repair establishments, retail stores, restaurants and similar establishments serving prepared foods and beverages, rooming houses, shopping centers, stationary stores, television stations and production facilities, theaters, truck or construction equipment service stations, truck or construction equipment dealerships for new or used vehicles, truck or construction equipment washing facilities and truck or construction equipment repair shops.

Erosion and sediment control plan means a written plan, including drawings or other graphic representations, for the control of soil erosion and sedimentation resulting from a construction activity.

Impervious means not allowing the passage of water through the surface of the ground or ground covering or a substantial reduction in the capacity for water to pass through the surface of the ground or ground covering.

Industrial means a business engaged in industrial production or service, that is, a business characterized by manufacturing or productive enterprise or a related service business. This term shall include by way of example, but not be limited to the following: apparel and fabric finishers, automobile salvage and junk yards, blast furnace, blueprint and related shops, boiler works, cold storage plants, contractor's plants and storage facilities, foundries, furniture and household goods manufacturing, forge plants, greenhouses, manufacturing plants, metal fabrication shops ore reduction facilities, planing mills, rock crushers, rolling mills, saw mills, smelting operation, stockyards, stone mills or quarries, textile production, utility transmission or storage facilities, truck or construction equipment salvage or junkyards, warehousing and wholesaling facilities.

Institutional means an established organization, especially of a public or charitable nature. This term shall include, by way of example, but not be limited to, the following: churches, community buildings, colleges, day care facilities, dormitories, drug or alcohol rehabilitation facilities, fire halls, fraternal organizations, golf courses and driving ranges, government buildings, hospitals, libraries, kindergartens or preschools, nursing homes, mortuaries, schools, social agencies, synagogues, parks and playgrounds.

Manager means the person designated by the city to supervise the operation of the stormwater management program and who is charged with certain duties and responsibilities by this chapter, or his or her duly authorized representative.

Multifamily residential means an apartment building or other residential structure built for three or more units or lots under common ownership and condominiums of three or more units.

National Pollutant Discharge Elimination System or *NPDES permit* means a permit issued pursuant to section 402 of the Act (33 USC 1342).

Notice of intent or *N.O.I.* means a written notice by the discharge to the Commissioner of the Tennessee Department of Environment and Conservation or his or her designee, that a person wishes his or her discharge to be authorized under a general permit authorized by state law or regulation, particularly Tennessee NPDES general permit number TNR050000 for stormwater discharges associated with industrial activity.

Non-stormwater means any discharge to the MS4 that is not: discharged pursuant to a NPDES permit; discharged pursuant to a State of Tennessee multi-sector general permit for stormwater discharges associated with industrial activity or any discharge as described at 40 CFR part 122.26(d)(2)(iv)(B)(1).

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Person means any individual, partnership, copartnership, firm, company, trust estate, governmental entity or any other legal entity or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by context.

Pollution prevention plans means a written site specific plan to eliminate or reduce and control the pollution of stormwater through designed facilities, sedimentation ponds, natural or constructed wetlands and best management practices.

Significant spills includes, but is not limited to releases of oil or hazardous substances in excess of reportable quantities under section 311 of the Clean Water Act (at 40 CFR 110.10 and CFR 117.21) or section 102 of the Comprehensive Environmental Response Compensation and Liability Act (CERCLA), (at 40 CFR 302.4).

Stormwater means stormwater runoff, snow melt runoff and surface runoff and drainage.

Stormwater management means the collection, conveyance, storage, treatment and disposal of stormwater runoff in a manner to meet the objectives of this chapter and its terms, including, but not be limited to measures that control the increased volume and rate of stormwater runoff and water quality impacts caused by manmade changes to the land.

Stormwater management plan or *SWMP* means the set of drawings and other documents that comprise all of the information and specifications for the programs, drainage systems, structures, BMPs, concepts and techniques for the control of stormwater and which is incorporated at part of the NPDES permit for the city and as part of this chapter.

Toxic pollutant means any pollutant or combination of pollutants listed as toxic in 40 CFR part 401 promulgated by the administrator of the Environmental Protection Agency under the provisions of 33 USC 1317.

Variance means the modification of the minimum stormwater management requirements contained in this chapter and the stormwater management plan for specified circumstances where strict adherence of the requirement would result in unnecessary hardship and not fulfill the intent of this chapter.

Water quality means characteristics that are related to the physical, chemical, biological and/or radiological integrity of stormwater.
(Code 1985, § 33-201; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-3. Abbreviations.

CERCLA means the Comprehensive Environmental Response, Compensation and Liability Act in its original form or as amended.

CFR means Code of Federal Regulations.

USC means United States Code.
(Code 1985, § 33-202; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-4. Unauthorized discharge a public nuisance.

Discharge of stormwater in any manner in violation of this chapter; or any violation of any condition of a permit issued pursuant to this chapter; or any violation of any condition of a stormwater discharge permit issued by the State of Tennessee Department of Environment and Conservation is declared a public nuisance and shall be corrected or abated.
(Code 1985, § 33-206; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-5. Improper disposal.

A. It is unlawful for any person to improperly dispose any contaminant into the MS4. Contaminants include, but are not limited to the following:

1. Trash or debris;
2. Construction materials;
3. Petroleum products including but not limited to oil, gasoline, grease, fuel oil, heating oil or hydraulic fluids;
4. Antifreeze and other automotive products;
5. Metals in either particulate or dissolved form;
6. Flammable or explosive materials;
7. Radioactive materials;
8. Batteries, including but not limited to, lead acid automobile batteries, alkaline batteries, lithium batteries or mercury batteries;
9. Acids, alkalis or bases;
10. Paints, stains, resins, lacquers or varnishes;
11. Degreasers and/or solvents;

12. Drain cleaners;
13. Pesticides, herbicides or fertilizers;
14. Steam cleaning wastes;
15. Soaps, detergents or ammonia;
16. Swimming pool backwash including chlorinated swimming pool discharge;
17. Chlorine, bromine and other disinfectants;
18. Heated water;
19. Animal waste, either from domestic animals or from feeder lot operations;
20. Known leaking sanitary sewers and connections which have remained uncorrected for more than seven days;
21. Recreational vehicle waste;
22. Animal carcasses;
23. Food wastes;
24. Medical wastes;
25. Bark and other fibrous materials;
26. Collected lawn clippings, leaves or branches;
27. Silt, sediment or gravel;
28. Dyes, except as stated in subsection B of this section;
29. Chemicals, not normally found in uncontaminated water;
30. Any hazardous material or waste, not listed above;
31. Washing of fresh concrete for cleaning and/or finishing purposes or to expose aggregates;
32. Junk motor vehicles, as defined in subsection C of this section;
33. Leaking solid waste disposal containers.

B. Dye testing. Dye testing is allowed but requires verbal notification to the city's stormwater manager a minimum of 24 hours prior to the date of the test. The city and Shelby County governmental agencies are exempt from this requirement.

C. Junk motor vehicles defined.

Junk motor vehicle means any vehicle which shall include by way of example but not be limited to the following vehicle types: automobiles, construction equipment, motorcycles and trucks, which meets all of the following requirements:

1. Is three years old or older;
2. Is extensively damaged, such damage including, but not limited to any of the following: a broken window or windshield or missing wheels, engine or transmission;
3. Is apparently inoperable;
4. Is without a valid current registration;
5. Has a fair market value equivalent only to the value of the scrap in it.

(Code 1985, § 33-207; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5530, § 1, 8-20-2013)

Sec. 13-40-6. Exceptions—Allowable discharges.

The following types of discharges shall not be considered prohibited discharges for the purpose of this chapter unless the director of public works determines that the type of discharge, whether singly or in combination with others, is causing significant contamination of the MS4:

A. Potable water;
B. Potable water line flushing;
C. Uncontaminated water from crawl space, pumps or footing drains;
D. Lawn watering;
E. Residential car and boat washing;
F. Dechlorinated swimming pool water;
G. Materials placed as part of an approved habitat restoration or bank stabilization project;
H. Natural uncontaminated surface water or ground water;
I. Flows from riparian habitats and wetlands;

J. Common practices for water well disinfection; and other discharges as described at 40 CFR 122.26(d)(2)(iv)(B)(1), some of which are described above;

K. Other types of discharges as determined by the director of public works;

L. Unless otherwise prohibited by this chapter, any discharge that could be made directly to waters of the state without a federal or state permit being required.

(Code 1985, § 33-208; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-7. Illicit connection defined.

Any connection, existing or future, identified by the director of public works, as that which could convey anything not composed entirely of surface and stormwater directly to the MS4 is considered an illicit connection and is prohibited with the following exceptions.

A. Connections conveying allowable discharges as defined in section 13-40-6;

B. Connections conveying discharges pursuant to an NPDES permit (other than an NPDES stormwater permit).

(Code 1985, § 33-209; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-8. Monitoring and inspection.

A. *Monitoring*. The manager shall periodically monitor the quantity of and the concentration of pollutants in stormwater discharges from the areas and locations designated in the city stormwater management plan and the NPDES stormwater permit.

B. *Detection of illicit connections and improper disposal.*

1. The manager shall take appropriate steps to detect and eliminate illicit connections to the city MS4, including the adoption of a program to screen illicit discharges and identify their source or sources.

2. The manager shall take appropriate steps to detect and eliminate improper discharges, including programs to screen for improper disposal and programs to provide for public education, public information and other appropriate activities to facilitate the proper management and disposal of used oil, toxic materials and household hazardous waste.

C. *Inspections.*

1. The manager or his or her designee, bearing proper credentials and identification, may enter and inspect all properties for regular periodic inspections, investigations, monitoring, observation, measurement, enforcement, sampling and testing, to effectuate the provisions of this chapter, the stormwater management plan and/or the NPDES stormwater permit. The manager or his or her designee shall duly notify the owner of the property or the representative on site and the inspection shall be conducted at reasonable times.

2. Upon refusal by any property owner to permit an inspector to enter or continue an inspection, the inspector shall terminate the inspection or confine the inspection to areas which no objection is raised. The inspector shall immediately report the refusal and the grounds to the manager. The manager may seek appropriate compulsory process.

3. In the event the manager or his or her designee reasonably believes that discharges into the city MS4 may cause an imminent and substantial threat to human health or the environment, the inspection may take place at any time and without notice to the owner of the property or a representative on site. The inspector shall present proper credentials upon reasonable request by the owner or representative.

4. At any time during the conduct of an inspection or at such other times as the manager or his or her designee may request information from an owner or representative, the owner or representative may identify areas of the facility or establishment, material or processes which contains or may contain a trade secret. If the manager or his or her designee has no clear and convincing reason to question such identification, the inspection report shall note that trade secret information has been omitted. To the extent practicable, the manager shall protect all information which is designated as a trade secret by the owner or their representative.

(Code 1985, § 33-210; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-9. Construction activity.

All construction activity, defined below, shall be in compliance with all applicable requirements under this section.

If one or more acres are disturbed by construction activity, an application shall be applied for under the "State of Tennessee's General Permit for Stormwater Discharges Associated with Construction Activity." If a Tennessee General NPDES Permit is applied for, a copy of the notice of intent (N.O.I.) shall be sent to the manager of the stormwater management section. To seek coverage under the Tennessee Department of Environment and Conservation General Permit, the N.O.I. shall be submitted to the following address:

Stormwater N.O.I. Processing

Division of Water Pollution Control

401 Church Street

Tennessee Department of Environment and Conservation

Nashville, TN 37243-1534

The copy of the N.O.I. should be sent to the following address:

Attn:

Manager/Stormwater Management

City of Memphis-Environmental Engineering

125 N. Main Room 620

Memphis, TN 38103
(Code 1985, § 33-221; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5116(part), 2005)

Sec. 13-40-10. Construction activity regulated.

A. It shall be unlawful for any person to permit any discharge of stormwater from a construction activity from land owned or controlled by them on a total land area of one or more acres disturbed by construction activity without having received coverage under the general permit for stormwater discharges associated with construction activity from the Tennessee Department of Environment and Conservation, with a copy of the notice of intent (N.O.I.) provided to the stormwater management section at the same address listed in section 13-40-9.

B. The term "construction activity" shall mean any clearing, grading, or excavating that results in the disturbance of more than one acre of total land area. The term shall not include the following:

1. "Surface mining" as the same is defined in T.C.A. § 59-8-202;
2. Such minor construction activities as home gardens and individual home landscaping, home repairs, home maintenance work and other related activities which result in minor soil erosion;
3. The construction of single-family residences when built separately on lots within subdivisions which have been approved and recorded in the office of the Shelby County Register that are not a part of a larger common plan of development; provided that excavation is limited to trenches for the foundation, basements, service and sewer connections, and minor grading for driveways, yard areas and sidewalks;
4. Individual service and sewer connections for single or two family residences;
5. Agricultural practices involving the establishment, cultivation or harvesting of products of the field or orchard, preparing and planting of pasture land, forestry land management practices including harvesting, farm ponds, daily operations, and livestock and poultry management practices and the construction of farm buildings;
6. Any project carried out under the technical supervision of the Soil Conservation Service of the United States Department of Agriculture;
7. Construction, installation or maintenance of electrical, natural gas, telephone and cable television lines or poles;
8. Installation, maintenance, and repair of any underground public utility lines when such activity occurs in an existing hard surface road, street or sidewalk, provided the activity is confined to the area of the road, street or sidewalk which is hard surfaced and a street, curb, gutter or sidewalk permit has been obtained;
9. Construction, repair or rebuilding of track or other related facilities of a railroad company;

These activities may be undertaken without formal notice; however, the persons conducting these excluded activities shall remain responsible for otherwise conducting those activities in accordance with the provisions of this chapter and other applicable law including responsibility for controlling sedimentation and runoff.

C. Best management practices for construction activities. The minimum standards for controlling erosion and sedimentation to prevent or minimize the discharge of stormwater from a construction activity, shall be set forth in the Tennessee Department of Environment and Conservation's "Erosion and Sediment Control Handbook" as adopted and amended from time to time. These erosion and sediment control best management practices ("BMPs") apply to all construction activity regardless if there is a discharge of stormwater from the construction site. The city subject to its sole discretion may waive these BMPs for any construction less than one acre.
(Code 1985, § 33-222; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5116(part), 2005; Ord. No. 5446, § 2, 4-3-2012)

Sec. 13-40-11. Construction activity letter of intent required.

No discharge of stormwater from a construction activity, whether temporary or permanent, shall be conducted within the corporate boundaries of the City of Memphis unless the developer has submitted a notice of intent to be covered under the state's general NPDES permit for stormwater discharges associated with construction activity ("N.O.I.").
(Code 1985, § 33-223; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5116(part), 2005)

Sec. 13-40-12. Data required in construction activity letter of intent.

A. To be covered under a L.O.I., the developer shall submit the following information to:

Attn:
Manager/Stormwater Management
664 St. Jude Place
Memphis, TN 38105-2800

B. The L.O.I. shall include:

1. Name, mailing address and location for which the letter of intent is submitted;
2. Name, mailing address, telephone number, ownership status (federal, state, private, public or other entity) of the developer responsible for the construction activity;
3. A site map, on 8½ by 11 inch sized paper with boundaries one to two miles outside the site property, with the site and construction area outlined and with the receiving water or receiving storm sewer highlighted and identified.

C. Construction activities may begin after submission of the letter of intent. One need not wait for approval from the city. When the construction activity is finished the developer shall notify the Memphis MS4 and request termination of the L.O.I. under this chapter. Coverage under this chapter terminates 20 days after the MS4's receipt of such notice.
(Code 1985, § 33-224; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-13. Private infrastructure defined.

Private detention facilities, defined in chapter 6, page 10 of the city's Drainage Design Manual, located in the city engineer's office shall be maintained so as to enhance water quality to meet the requirements of this chapter and the NPDES stormwater permit.
(Code 1985, § 33-229; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-14. Maintenance criteria.

Maintenance of detention facilities shall consist of, but not be limited to, the following items: outlet cleaning, mowing, herbicide spraying, litter control, removal of sediment from basin and outlet control structures and repair of drainage structures. Any material removed from a detention structure shall be disposed of in an environmentally sound manner. Herbicide spraying shall be conducted in an environmentally sound manner.
(Code 1985, § 33-230; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-15. Enforcement options.

Maintenance criteria not performed as listed in section 33-230, or other violations of this article, may be subject to the provisions of sections 33-247 through 33-251 as set forth herein.
(Code 1985, § 33-231; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5530, § 2, 8-20-2013)

ARTICLE 2. STORMWATER DISCHARGES FROM INDUSTRIAL SOURCES

Sec. 13-40-16. Purpose.

It is the purpose of this article to control stormwater runoff from industrial sources in order to minimize, to the maximum extent practicable, pollutants discharged from industrial sources into the MS4. This reduction will

be achieved by a combination of management practices, control techniques, system design, engineering methods and plan review.
(Code 1985, § 33-236; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-17. Industry defined.

An "industry" is one as defined in section 13-40-2.
(Code 1985, § 33-237; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-18. Right of inspection defined.

Right of inspection is defined in section 13-40-8.
(Code 1985, § 33-238; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-19. Availability of information on discharger to public—Use of information accepted as confidential.

All information and data on a discharger obtained from reports, questionnaires, permits, monitoring programs and from inspections shall be available to the public without restriction unless the discharger specifically requests confidential treatment and is able to demonstrate to the satisfaction of the approving authority that the release of such information would divulge information regarding processes or methods which would be detrimental to the discharger's competitive position. Information accepted by the approving authority as confidential shall not be transmitted to any other governmental agency by the approving authority until and unless prior and adequate notification is received by the discharger. Information accepted by the approving authority as confidential shall not be transmitted to the general public by the approving authority unless written permission has been obtained from the discharger. All information relating to the discharge form a discharger into the MS4 shall not be confidential information. All such information which is submitted to the approving authority shall be available to the public without restrictions.
(Code 1985, § 33-239; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-20. Information required.

As required in the Tennessee multi-sector permit (TMSP) for stormwater discharges associated with industrial activity and any NPDES stormwater permit, all industries discharging into the city storm sewer system shall prepare a stormwater pollution prevention plan (SWPPP). A copy of this SWPPP must be kept on the industrial site and available for inspection and copying at reasonable times by the manager or his or her designee.
(Code 1985, § 33-240; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-21. SWPPP plan requirements.

The SWPPP must follow, at a minimum, the outline of the plan listed in the Tennessee multi-sector permit language or a facility NPDES stormwater permit language, whichever is applicable.
(Code 1985, § 33-241; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-22. Samples.

A. Samples of stormwater collected for compliance monitoring shall be representative of the discharge. Sampling locations will be those defined in the Tennessee multi-sector permit or a NPDES permit. Sampling and analyses shall be in accordance with 40 CFR part 122.21 and 40 CFR part 136 and/or applicable permit language.

B. Samples taken by city personnel for the purpose of determining compliance with the requirements of this chapter or rules adopted hereunder may be split with the discharger if requested before the time of sampling.

C. Sampling manhole or access. The division may require a stormwater discharger to install and maintain at the discharger's expense a suitable manhole or sampling facility at the discharger's facility or suitable monitoring access to allow observation, sampling and measurement of all stormwater runoff being discharged into the city storm sewer system. The manhole shall be constructed in accordance with plans approved by the division and shall be designed so that flow measurement and sampling equipment can be installed. Access to the manhole or monitoring access shall be available to city representatives at all times.
(Code 1985, § 33-242; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-23. Reporting.

A. Any facility required to sample under either the TMSP or an NPDES stormwater permit shall provide a copy of the periodic monitoring report to the city as required in the applicable permit's language.

B. The division may require reporting by dischargers of stormwater runoff to the city stormwater system, where an NPDES stormwater permit is not required, to

provide information to the city. This information may include any data necessary to characterize the stormwater discharge.
(Code 1985, § 33-243; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-24. Stormwater discharge to sanitary sewer—Approval required.

Stormwater discharges to the sanitary sewer are prohibited unless prior written approval is granted from the industrial pretreatment section of the division of public works.
(Code 1985, § 33-244; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-25. Accidental discharges.

A. In the event of any discharge of a material as defined in section 13-40-2 in amounts which could cause a threat to public drinking water suppliers, a significant spill as defined in definitions or any other discharge which could constitute a threat to human health or the environment, the owner or operator of the facility shall give notice to the manager of the stormwater management department and the local field office of the Tennessee Department of Environment and Conservation as soon as practicable, but in no event later than the close of business on the day following the accidental discharge or as soon as the discharger becomes aware of the circumstances.

If an emergency response by governmental agencies is needed, the owner or operator should also call the city's emergency management agency, immediately to report the discharge. A written report must be provided to the manager of stormwater management within five days of the time the discharger becomes aware of the circumstances, unless this requirement is waived by the manager for good cause shown on a case-by-case basis, containing the following particulars.

1. A description of the discharge, including an estimate of volume;
2. The exact dates and times of discharge;
3. Steps being taken to eliminate and prevent recurrence of the discharge;
4. A site drawing should be rendered that shows the location of the spill on the impacted property, the direction of flow of the spill in regards to the topographical grade of the property, the impacted watercourse(s) and the property or properties adjacent to the spill site.

B. The discharger shall take all reasonable steps to minimize any adverse impact to the MS4, including such accelerated or additional monitorings as necessary to determine the nature and impact of the discharge. It shall not be a defense for the discharger in an enforcement action that it would have been necessary to halt or reduce the business or activity of the facility in order to maintain water quality and minimize any adverse impact that the discharge may cause.

C. It is unlawful for any entity, whether an individual, residential, commercial or industry to fail to comply with the provisions of this section.
(Code 1985, § 33-245; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-26. Fraud and false statements.

Any reports required by this chapter or rules adopted hereunder and any other documents required by the city to be submitted or maintained by the discharger shall be subject to the enforcement provisions of this chapter and any other applicable local and state laws and regulations pertaining to fraud and false statements. Additionally, the discharger shall be subject to the provisions of 18 USC 1001 relating to fraud and false statements and the provisions of section 309 of the Clean Water Act, as amended, governing false statements and responsible corporate officials.
(Code 1985, § 33-246; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-27. Administrative enforcement remedies.

The enforcement remedies enumerated herein shall be applicable to all sections of this chapter.

A. *Notification of violation.* Whenever the manager finds any permittee or person discharging stormwater has violated or is violating this chapter, or a stormwater permit or order issued hereunder, the manager or his or her agent may serve upon the user written notice of the violation. This notice shall be by registered or certified mail with return receipt. Within ten days of the receipt date of this notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specified required actions, shall be submitted to the manager. Submission of this plan in no way relieves the discharger of liability for any violations occurring before or after receipt of the notice of violation.

B. *Consent orders.* The director of public works is empowered to enter into consent orders, assurances of voluntary compliance or other similar documents establishing an agreement with the person responsible for the noncompliance. Such orders will include specific action to be taken by the permittee or person discharging stormwater to correct the noncompliance within a time period specified by the order. Consent orders shall have the same force and effect as compliance orders issued pursuant to subsection D of this section.

C. *Show cause hearing.* The director of public works may order any person who causes or contributes to violation of this chapter or stormwater permit or order issued hereunder to show cause why a proposed enforcement action not be taken. Notice shall be served on the person specifying the time and place for the meeting, the proposed enforcement action and the reasons for such action and a request that the violator show cause why this proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail with return receipt at least ten days prior to the hearing. Such notice may be served on any person, principal executive, general partner or corporate officer.

D. *Compliance order.* When the director of public works finds that any person has violated or continues to violate this chapter or a permit or order issued thereunder, he or she may issue an order to the violator directing that, following a specified time period, adequate structures and/or devices be installed or procedures implemented and properly operated. Orders may also contain such other requirements as might be reasonably necessary and appropriate to address the noncompliance, including the construction of appropriate structures, installation of devices, self monitoring and management practices.

E. *Cease and desist orders.* When the director of public works finds that any person has violated or continues to violate this chapter or any permit or order issued hereunder, the director of public works may issue an order to cease and desist all such violations and direct those persons in noncompliance to:

1. Comply forthwith; or

2. Take such appropriate remedial or preventative action as may be needed to properly address a continuing or threatened violation, including halting operations and terminating the discharge.

(Code 1985, § 33-247; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-28. Unlawful acts—Misdemeanor.

It is unlawful for any person to:

A. Violate a provision of this chapter;

B. Violate the provisions of any permit issued pursuant to this chapter;

C. Fail or refuse to comply with any lawful notice to abate issued by the manager, which has not been timely appealed to the director of public works within the time specified by such notice; or

D. Violate any lawful order to the director of public works within the time allowed by such order shall be guilty of a misdemeanor; and each day of such violation or failure or refusal to comply shall be deemed a separate offense and punishable accordingly. Any person found to be in violation of the provisions of this chapter shall be punished by a fine as set out in section 1-24-1.

(Code 1985, § 33-248; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-29. Civil penalty for violation.

A. Any person who violates the provisions of this chapter shall be subject to a civil penalty of not less than $50.00 or more than $5,000.00 per day for each day of violations. Each day of violation may constitute a separate violation. The imposition of a civil penalty under this section may be in addition to the recovery of damages as provided in subsection (D), below.

B. The city shall give the violator 30 days notice of the assessment of any penalty.

C. In assessing a civil penalty, the city may consider the following factors:

1. The harm done to the public health or the environment;

2. Whether the civil penalty imposed will be substantial economic deterrent to the illegal activity;

3. The economic benefit gained by the violator;

4. The amount of effort put forth by the violator to remedy this violation;

5. Any unusual or extraordinary enforcement costs incurred by the city;

6. The amount of penalty established by ordinance or resolution for specific categories of violations, if applicable; and

7. Any equities of the situation which outweigh the benefit of imposing any penalty or damage assessment.

D. The city may also assess damages proximately caused by the violator to the city which may include any reasonable expenses incurred in investigating and enforcing violations of this chapter, or any other actual damages caused by the violation.

E. The violator may appeal the civil penalty or damage assessment by filing a petition for review with the Memphis Stormwater Board in accordance with section 13-40-35. If a petition for review of such damage assessment or civil penalty is not filed within 30 days after the damage assessment or civil penalty is served in any manner authorized by law, the violator shall be deemed to have consented to the damage assessment or civil penalty and it shall become final.

F. The alleged violator may appeal a decision of the Memphis Stormwater Board pursuant to title 27, chapter 9 of the T.C.A.

G. Whenever any damage assessment or civil penalty has become final because of a person's failure to appeal the damage assessment or civil penalty, the city may apply to the appropriate chancery court for a judgment and seek execution of such judgment. In accordance with T.C.A. § 68-221-1106(e) the court, in such proceedings, shall treat the failure to appeal such damage assessment or civil penalty as a confession of judgment.
(Code 1985, § 33-249; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5446, § 1, 4-3-2012)

Sec. 13-40-30. Reserved.

Editor's note—Ord. No. 5446, § 1, adopted April 3, 2012, repealed § 13-40-30, which pertained to processing a violation and derived from Code 1985, § 33-250; Ord. No. 4538, § 1, 11-18-1997.

Sec. 13-40-31. Appeal judicial proceedings and relief.

The director of public works may initiate proceedings in any court of competent jurisdiction against any person who has or is about to:

A. Violate the provisions of this chapter;

B. Violate the provisions of any permit issued pursuant to this chapter;

C. Fail or refuse to comply with any lawful order issued by the director or public works which has not been timely appealed to the director of public works, within the time allowed by this chapter;

D. Violates any lawful order of the director of public works within the time allowed by such order.

Any person who shall commit any act declared unlawful under this chapter shall be guilty of a misdemeanor and each day of such violation or failure shall be deemed a separate offense and punishable accordingly.

The director of public works, with consent of the mayor may also initiate civil proceedings in any court of competent jurisdiction seeking monetary damages for any damages caused to the MS4 by any person, and to seek injunctive or other equitable relief to enforce compliance, with any lawful orders of the director of public works or the manager.
(Code 1985, § 33-251; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-32. Damages—Disposition of funds.

All damages and civil penalties collected under the provisions of section 13-40-29, following the adjustment for the expenses incurred in making such collections shall be allocated and appropriated to the stormwater management program for its administration.
(Code 1985, § 33-252; Ord. No. 4538, § 1, 11-18-1997; Ord. No. 5446, § 1, 4-3-2012)

Sec. 13-40-33. Records retention.

All discharges subject to this chapter shall maintain and preserve for no fewer than five years, all records, books, documents, memoranda, reports, correspondence and any and all summaries thereof, relating to monitoring, sampling and chemical analyses made by or in behalf of the discharger in connection with its discharge. All records which pertain to matters which are the

subject of any enforcement or litigation activities brought by the city pursuant hereto shall be retained and preserved by the discharger until all enforcement activities have concluded and all periods of limitation with respect to any and all appeals have expired.
(Code 1985, § 33-253; Ord. No. 4538, § 1, 11-18-1997)

Sec. 13-40-34. Reserved.

Editor's note—Ord. No. 5446, § 1, adopted April 3, 2012, repealed § 13-40-34, which pertained to requests for consideration and derived from Code 1985, § 33-254; Ord. No. 4538, § 1, 11-18-1997.

Sec. 13-40-35. Memphis Stormwater Board—Created.

A. There is hereby created and established the Memphis Stormwater Board (hereafter "board") to hear appeals filed by any person relating to an order, permit or such other actions deemed appropriated by the director or incurring a civil penalty or damage assessment imposed by the city pursuant to the City of Memphis Stormwater Ordinance.

B. The board may issue subpoenas requiring attendance of witnesses and production of such evidence as requested, administer oaths, and take testimony as the board deems necessary to fulfill its purpose.

C. The membership of the board shall consist of five members and two alternate members as follows:

Representative Group (# of members)	*Initial Length of Term*	*Subsequent Length of Term*
Development or Industrial Community (1)	1	2
Development or Industrial Community (1)	2	2
Private Citizenry (1)	2	2
Civil or Environmental Engineers (2)	1	2
Civil or Environmental Engineers (1)	2	2
Public Interest Group/University (1)	2	2

1. The members and the alternates shall be appointed by the mayor and confirmed by the council.

2. Each member and alternate member appointed by the mayor must have been a resident of Memphis for not less than one year, and shall continue to maintain such residency throughout such member's term.

3. Each member shall serve without compensation and may be reappointed, but do not succeed themselves automatically.

4. Each member shall serve for a term of two years. However, the initial term of two of the original members representing the civil or environmental engineers group and one of the original members representing the development or industrial community group shall expire after one year and the term of the remaining original members shall expire after two years. Subsequent terms for every group shall expire after two years.

D. The board shall annually select one of its members to serve as chair and another member to serve as vice chair for a period of one year upon a majority vote of all members.

E. The board shall keep complete and accurate records of the proceedings of all meetings and the director of public works or his designee shall serve as the board's technical secretary.

F. No member shall participate in the appeal of any matter in which the member has a direct personal or financial interest.

G. Three members shall constitute a quorum, and the concurrence of a majority of the board present and voting in any matter shall be required for a determination.

H. Members may be removed from the board for continued absence from meetings or other just cause in accordance with the procedure for removal of board or commission members set forth within Home Rule Ordinance No. 1852 of the City Charter.

I. An appeal may be taken from any final order or other final determination of the board by any party who is or may be adversely affected thereby, to the chancery court pursuant to the common writ of certiorari set out in T.C.A. § 27-8-101 within 60 days from the date such order or determination is made.

J. Each member of the board shall take an oath to faithfully perform the duties imposed upon him without fear or favor, and in full accordance with the constitution and laws of the state and the ordinances of the City of Memphis.
(Ord. No. 5446, § 3, 4-3-2012)

CHAPTER 13-41. STORMWATER ENTERPRISE FUND

Sections:

Sec. 13-41-1. Definitions.
Sec. 13-41-2. Declaration of purpose—Establishment of enterprise service area.
Sec. 13-41-3. Powers, duties and responsibilities.
Sec. 13-41-4. Organization.
Sec. 13-41-5. Establishment of SFU, SFU rate and stormwater fee—Establishment of policy regarding expenditure of enterprise revenues.
Sec. 13-41-6. Stormwater fee for single-family detached residential property.
Sec. 13-41-7. Stormwater fee for multi-family residential property.
Sec. 13-41-8. Reserved.
Sec. 13-41-9. Stormwater fee for nonresidential property.
Sec. 13-41-10. Reserved.
Sec. 13-41-11. Appeal of impervious surface calculation.
Sec. 13-41-12. Rate determinations—Compliance with bond covenants.
Sec. 13-41-13. Billing procedures—Delinquent accounts and collection procedures.
Sec. 13-41-14. Review of SFU rate.
Sec. 13-41-15. Reserved.
Sec. 13-41-16. Reserved.
Sec. 13-41-17. Expense of collection of stormwater fees.
Sec. 13-41-18. Reserved.

Sec. 13-41-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bonds means revenue bonds, notes, loans or any other debt obligations issued or incurred to finance the costs of construction, engineering, and other studies.

City means the City of Memphis.

Contributor or *user* means any person owning, operating, or otherwise responsible for property within the city which directly or indirectly discharges stormwater, surface or subsurface waters, to any portion of the stormwater system, including direct or indirect discharges to the city's stormwater drainage system, or which is directly or in directly protected by the city's flood protection system or stormwater drainage system. The term "contributor" or "user" means any person responsible for the direct or indirect discharge of stormwater (surface or subsurface waters) to the city's stormwater drainage system.

Costs of construction means costs reasonably incurred in connection with providing capital improvements to the system or any portion thereof, including but not limited to the costs of the following:

1. Acquisition of all property, real or personal, and all interests in connection therewith including all rights-of-way and easements therefor;
2. Physical construction, installation and testing including the costs of labor, services, materials, supplies and enterprise services used in connection therewith;
3. Architectural, engineering, legal and other professional services;
4. Insurance premiums during construction, to the extent not paid for by a contractor for construction and installation;
5. Any taxes or other charges which become due during construction;

6. Expenses incurred by the city or on its behalf with its approval in seeking to enforce any remedy against any contractor or subcontractor in respect of any default under a contract relating to construction;
7. Principal and interest on any bonds; and
8. Miscellaneous expenses incidental thereto.

Debt service means the amount of money necessary annually to pay the interest on outstanding debt and pay the principal of maturing debt.

Developed property means real property upon which a structure or impervious surface has been placed or constructed, thus increasing the amount of rainwater or surface water runoff.

Director means the director of the division of public works or designee.

Dwelling unit means a singular residential housing unit or apartment providing complete, independent living facilities for one or more persons including permanent provisions for living, sleeping, eating, cooking and sanitation.

Exempt property means public rights-of-way including public streets, alleys, sidewalks, and public drainage facilities.

Extension and replacement means costs of extensions, additions and capital improvements to or the renewal and replacement of capital assets or purchasing and installing new equipment for the system or land acquisition for the system and any related costs thereto or paying extraordinary maintenance and repair, including the costs of construction, or any other expenses which are not costs of operation and maintenance or debt service.

Fiscal year means a 12-month period commencing on July 1, and ending on June 30 of the succeeding year.

Flood protection system means the system of levees, floodwalls, floodgates, storm sewer gatewells, and stormwater pumping stations lying adjacent to rivers, creeks, and streams within the city, including associated control and operating equipment and facilities whether adjacent to such rivers, creeks, or streams or remotely located, which are intended to provide flood protection to properties adjacent to such rivers, creeks, and streams.

Impervious area means the number of square feet of hard-surfaced areas which either prevent or retard the entry of water into the subsurface soil, as it entered under natural conditions as undeveloped property, and/or cause water to run off the surface in greater quantities or at an increased rate of flow from that present under natural conditions as undeveloped property, including but not limited to roofs, roof extensions, patios, porches, driveways, sidewalks, concrete/asphalt pavement, gravel surfaces and athletic courts.

Implementation date means the date that the City of Memphis will begin charging the storm water fee to its customers (May 1, 2006). The fee will become due at the end of the month upon which it is charged and will be payable in the following month. For example, the first charge will be due on May 31, 2006. Depending upon the billing cycle it will appear on MLGW utility bills sometime during the month of June 2006. The fee will then be collected in the month of July 2006 when those bills are paid.

Multi-family residential property means a residential structure designed with two or more dwelling units to accommodate two or more families or groups of individuals living separately and not sharing the same living space.

Nonoperating revenues refers to revenues derived from activities other than the basic operations of the stormwater enterprise fund, but excluding interest income on bond proceeds and on contributed capital.

Nonresidential property means any property developed for commercial, industrial, governmental, or institutional use, including churches, hospitals, and other eleemosynary institutions and including multiuse properties incorporating residential uses, but excluding undeveloped property, golf courses, nurseries, and property used exclusively for agricultural purposes.

Operating budget means the annual operating budget for the stormwater enterprise fund adopted by the city council for the succeeding fiscal year.

Operations and maintenance expense means the current expenses, paid or accrued, of operation, maintenance and current repair of the system, as calculated in accordance with sound accounting practice, and includes, without limiting the generality of the foregoing, insurance premiums, administrative expenses including recordkeeping, the cost of materials and supplies used for current operations, and charges for the accumulation of appropriate reserves for current expenses not annually

incurred, but which are such as may reasonably be expected to be incurred in accordance with sound accounting practice.

Revenues means all rates, fees, assessments, rentals, civil penalties, fines, or other charges or other income received by the enterprise fund, in connection with the management and operation of the system, including amounts received from the investment or deposit of moneys in any fund or account and any amounts contributed by the city, all as calculated in accordance with sound accounting practice.

SFU rate means the dollar value periodically determined and assigned to each SFU as a charge for stormwater services, and expressed as a dollar value per SFU per month.

Single-family residential property means a detached residential structure designed as a single dwelling unit to accommodate one family or group of individuals living together and sharing the same living space, but excluding multi-class (i.e., commercial, residential, industrial, institutional etc.) properties which include single-family residential uses.

Single-family unit or *SFU* means the average impervious area of a single-family detached residential dwelling unit located within the city as periodically determined and established as provided in this chapter.

Stormwater drainage system means the system of publicly or privately owned or operated rivers, creeks, ditches, drainage channels, pipes, basins, street gutters, and lakes within the city through which or into which stormwater runoff, surface water, or subsurface water is conveyed or deposited.

Stormwater fee means the fee authorized by state law and this chapter which is established to pay operations and maintenance, extension, replacement and debt service of the stormwater drainage system.

Stormwater enterprise fund or *enterprise fund* means the enterprise fund created by this chapter to operate, maintain and improve the storm drainage system and for such other purposes as stated in this chapter.

Stormwater system or *system* means the existing stormwater facilities, stormwater drainage system, and flood protection system of the city and all improvements thereto which by this chapter are constituted as the property and responsibility of the enterprise, to be operated as an enterprise fund to, among other things; control discharges and flows necessitated by rainfall events; and incorporate methods to collect, convey, store, absorb, inhibit, treat, to prevent or reduce flooding, overdrainage, environmental degradation and water pollution or otherwise affect the quality and quantity of discharge from such system.

Total annual revenue requirements refers to the total amount of revenue required in one year to meet all expenditures incurred during that year for the financing of construction and for the operations and maintenance, including administration and renewal and replacement funding, of the stormwater drainage system, including facilities for the collection, transportation, and treatment of stormwater, and of the flood control protection system, including river levees and stormwater pumping stations.

Undeveloped property means real property that has no impervious area.
(Ord. No. 5135, § 1(part), 2005; Ord. No. 5157, § 1, 2006)

Sec. 13-41-2. Declaration of purpose—Establishment of enterprise service area.

A. The city finds, determines, and declares it to be conducive to the health, welfare, safety and convenience of the city and its residents that a stormwater service area be established within the city. Consequently, pursuant to T.C.A. §§ 68-221-1101 through 68-221-1113, a stormwater enterprise fund, to be known as "The Memphis Stormwater Enterprise Fund," is established, and it is ordained and declared that the city limits shall be and constitute the stormwater enterprise fund service area, and that the enterprise shall comprise and include elements of the city's stormwater drainage and flood protection systems which provide for the collection, treatment and disposal of stormwater, surface water, and groundwater. It is further found, determined, and declared that the elements of the stormwater enterprise fund are of benefit and provide services to all real properties within the incorporated city limits, including property not directly served by the stormwater drainage system, and that such benefits and services may include, but are not limited to, the provision of adequate systems of collection, conveyance, detention, treatment and release of stormwater; the reduction of hazard to property and life resulting from stormwater runoff and flooding; improvement in general health and welfare through reduction of undesirable

stormwater conditions and flooding; and improvement to the water quality in the stormwater and surface water system and its receiving waters.

B. It is further determined and declared to be necessary and conducive to the protection of the public health, welfare, safety and convenience of the city and its residents that charges be levied upon and collected from the owners or occupants of all lots, parcels of real estate, and buildings that discharge stormwater (surface or subsurface waters), directly or indirectly, to the city stormwater drainage system, and that the proceeds of such charges so derived be used for the purposes of operation, maintenance, repair, replacement and debt service for construction of the stormwater drainage and flood protection improvements comprising the stormwater enterprise fund.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-3. Powers, duties and responsibilities.

The stormwater enterprise fund shall have the following powers, duties, and responsibilities:

A. Prepare ordinances as needed to implement this chapter and forward the ordinances to the city council for consideration and adoption, and adopt such regulations and procedures as are required to implement this chapter and carry out its duties and responsibilities;

B. Prepare and administer an adjustment and credit manual to set guidelines under which the city will grant adjustments and credits to stormwater user fees;

C. Administer and enforce this chapter and all ordinances, regulations and procedures adopted relating to the design, construction, maintenance, operation and alteration of the stormwater drainage system, including but not limited to the quantity, quality and/or velocity of the stormwater conveyed thereby;

D. Prepare and revise a comprehensive drainage and flood protection plan for periodic review and adoption by the city council;

E. Establish and enforce regulations to protect and maintain water quality within the system in compliance with water quality standards established by state, regional and/or federal agencies as adopted or amended;

F. Prepare an annual operating budget for the enterprise fund and make recommendations regarding the financing of the cost of extending, maintaining, and replacing the system.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-4. Organization.

The stormwater enterprise fund shall be under the direction, management and control of the director of the division of public works. In that capacity, the director or his designee shall supervise the day-to-day operation of the stormwater enterprise fund, shall enforce this chapter and the provisions of all ordinances and regulations adopted pursuant to this chapter and shall carry out the policy.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-5. Establishment of SFU, SFU rate and stormwater fee—Establishment of policy regarding expenditure of enterprise revenues.

A. For purposes of this chapter, an SFU shall be equivalent to 3,147 square feet of impervious property.

B. Except as provided in this chapter, every contributor owning or occupying a single-family residential property, multi-family residential property, or a nonresidential property, other than exempt property, shall pay to the city, at the same time payment is made for other city services, a stormwater fee to be determined and billed as provided in this chapter. In the event the owner and the occupant of a particular property are not the same, the liability for payment of the stormwater fee attributable to that property shall be joint and several as to the owner and occupant. The stormwater fee shall be a monthly service fee and shall be determined by this chapter and the SFU rate which is established in this chapter and from time to time adjusted as provided in this chapter.

C. The stormwater fees provided in sections 13-41-5 through 13-41-9 shall be applied and computed for each contributor during the customary billing periods.

D. The SFU rate to be applied to residential and nonresidential properties for fiscal years 2007 through 2011 are identified below:

FY 2007*	$2.177/SFU/month
FY 2008	$2.88/SFU/month
FY 2009	$3.30/SPU/month

FY 2010	$3.64/SFU/month
FY 2011	$4.02/SFU/month
*For the purposes of this article, the rate shown for FY2007 is based upon the inclusion of the last two months of FY2006 for a total billing period of 14 months.	

E. Any changes to the stormwater fee shall be accomplished by adoption of an ordinance amending this section.

F. No revenues generated by the stormwater enterprise user fee shall be used for any purpose other than stormwater expenses.
(Ord. No. 5135, § 1(part), 2005; Ord. No. 5157, § 2, 2006)

Sec. 13-41-6. Stormwater fee for single-family detached residential property.

A. The stormwater fee for a single-family detached residential property shall be the following percentage of the SFU rate:

Impervious Area of the Property (square feet)	*Percentage of SFU Rate*
1,841 or less	58%
1,842 to 4,794	100%
4,795 or more	152%

B. As to a new single-family detached residence, the stormwater fee attributable to that residence shall commence upon the earlier of the following:

1. The issuance of a permanent water-meter;

2. If no electric-meter is issued for that development or if development has halted, on the date that the director or the director's designee determines in reasonable judgment that the development is substantially complete or has been halted for at least three months.

C. Any owner or occupant of a residential property aggrieved by the directors calculation of the stormwater fee as provided in this section may appeal such determination to the director as provided in section 13-41-11 of this chapter.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-7. Stormwater fee for multi-family residential property.

A. The stormwater fee for a non-single family detached residential property shall be the following percentage of the SFU rate multiplied by the number of dwelling units on the property:

Non-Single Residential Family Property Classification	*Percentage of SFU Rates*
Multi-family (excluding high rise multi-family, condominiums and mobile homes)	41%
Townhome/condominium	57%
Mobile home	77%
High-rise multi-family apartment	13%

(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-8. Reserved.

Sec. 13-41-9. Stormwater fee for nonresidential property.

A. The stormwater fee for nonresidential property shall be the SFU rate multiplied by the numerical factor obtained by dividing the total impervious area of a nonresidential property by the number of square feet in one SFU. The minimum fee for any nonresidential property shall be equal to one SFU rate. For newly developed nonresidential property, the fee attributable to that property shall commence or increase, for additional development to property which is already developed, upon the issuance of the certificate of occupancy for such additional development or, if no certificate of occupancy will be issued for that development or if development has halted, on the date that the director or the directors designee determines in reasonable judgment that the development is substantially complete or has been halted for at least three months.

B. For separately electric-metered occupancy units within a nonresidential property with joint users of common impervious areas, the director shall either (1) calculate and allocate the pro rata stormwater fee among the users based upon the proportionate share of the total building area for each occupancy unit, (2) calculate and allocate the stormwater fee for the property to an existing

electric meter that services the common impervious areas used by the occupants, or (3) a combination of these methods.

C. Any owner or occupant of a nonresidential property aggrieved by the director's calculation of the stormwater fee or allocation among users as provided in this section may appeal such determination to the director as provided in section 13-41-11 of this chapter.

D. An adjustment to the stormwater fee may be granted by the director who is hereby authorized to establish procedures and standards for the adjustment of fees.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-10. Reserved.

Sec. 13-41-11. Appeal of impervious surface calculation.

A. Any owner or occupant of a single-family residential property aggrieved by the initial or any subsequent determination of the stormwater fee for such property, as provided in section 13-41-6 of this chapter, may appeal such determination and calculation to the director, utilizing information supplied by the appealing owner or occupant, provided such information is verified as correct by a registered professional engineer or registered land surveyor at the owner or occupant's expense.

B. Any owner or occupant of a multi-family residential property aggrieved by the initial or any subsequent calculation of the stormwater fee, as provided in section 13-41-7 of this chapter, may appeal such calculations and allocation to the director as outlined herein.

C. Any owner or occupant of nonresidential property aggrieved by the initial or any subsequent calculation of the total impervious area of such property, calculation of the stormwater fee for such property, as provided in section 13-41-9 of this chapter, may appeal such calculations or allocation to the director. Upon approval of such appeal, the stormwater fee shall be recalculated using information obtained as provided in this section.

D. An appeal by the owner, occupant, or occupant organization of a single-family or multi-family residential property must be filed in writing to the director of public works subject to the requirements set forth in section 13-41-11(F). Following such appeal, a billing credit shall be issued by the director or his designee for billing errors confirmed by the division of public works and shall be limited to errors occurring 12 months retroactive to the date of filing of the appeal by the customer.

An appeal by the owner, occupant, or occupant organization of a nonresidential property must be filed in writing to the director of public works subject to the requirements set forth in section 13-41-11(F). Following such appeal, a billing credit shall be issued by the director or his designee for billing errors confirmed by the division of public works and shall be limited to errors occurring 12 months retroactive to the date of filling of the appeal by the customer.

E. The owner, occupant, or occupant organization of a nonresidential property, who is aggrieved: (i) by the initial or any subsequent calculation of the impervious area of the property, (ii) by the calculation of the stormwater fee, or (iii) by the allocation of such fee among occupants, may appeal such determinations, provided that such appeal must be filed in writing within 90 days after the initial billing of the stormwater fee for that property or within 90 days after any billing showing a recalculation of the stormwater fee for that property. If an appeal occurs within 90 days after the initial billing of a property, any adjustment of the stormwater fee resulting from such appeal shall be retroactive to the date of the initial billing. If an appeal occurs within 90 days after a billing showing a recalculation of the stormwater fee, any adjustment of the stormwater fee resulting from such appeal shall be retroactive to the date the recalculated bill went into effect.

F. Appeals by the owners, occupants, or occupant organizations of multifamily residential properties or nonresidential properties shall include a statement of the total property area, and/or total impervious area, as appropriate for the particular grounds for appeal. Appeals by the owners of single-family residential properties shall include a statement or data showing the actual square footage of the lot or parcel. Such information may be shown on stormwater enterprise reporting forms or on appeal forms and may be accompanied by plats, county assessor's records, or survey data. The director may request additional information from the appealing party. Based upon the information provided by the enterprise fund and appealing party, the director shall make a final calculation of the stormwater fee. The director shall notify the parties, in writing, of his or her decision within 90 days after receipt of the appeal.
(Ord. No. 5135, § 1(part), 2005; Ord. No. 5732, § 1, 11-19-2019)

Sec. 13-41-12. Rate determinations—Compliance with bond covenants.

A. In calculating the SFU rate as provided in section 13-41-5 of this chapter, the director shall include in the budgeted expense and revenue amounts sufficient funds as will ensure compliance with any and all rate covenants applicable to any outstanding bonds, notes or other obligations issued in connection with the construction and operation of the stormwater enterprise fund system.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-13. Billing procedures—Delinquent accounts and collection procedures.

A. The procedures for billing of the stormwater fees provided in sections 13-41-6 through 13-41-9 and for the collection of delinquent stormwater service fees shall be as provided in section 13-41-17.

B. Contributors who are not subject to billing by Memphis Light, Gas, and Water division shall be directly billed for stormwater services by the city. In such instances, the billing and collection of stormwater fees shall be subject to the same rules and procedures as to delinquency in payment, certification of delinquency, and property lien as provided in section 13-41-17.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-14. Review of SFU rate.

Under this chapter, the director shall review the SFU rate as conditions require and revise the rate as necessary to ensure that the system generates adequate revenues to pay total annual revenue requirements.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-15. Reserved.

Sec. 13-41-16. Reserved.

Sec. 13-41-17. Expense of collection of stormwater fees.

The approving authority shall institute an accounting system reflecting an equal distribution of total funds produced under the division based upon the respective needs of each segment of the stormwater operations and maintenance functions; including, but not limited to, stormwater drainage system maintenance; design, and construction; flood control and protection; stormwater capital improvements bond indebtedness loan repayments; direct and incidental costs to the city, including, but not limited to, administrative, technical and legal expenses; and other expenditures necessary for an effective stormwater program. Revenue generated under this division shall be used exclusively for the stormwater program.
(Ord. No. 5135, § 1(part), 2005)

Sec. 13-41-18. Reserved.

Title 14

BUILDINGS AND CONSTRUCTION

Chapters:

14-4.	Housing Code
14-5.	Electrical Code
14-6.	Building Code
14-7.	Existing Building Code
14-8.	Dangerous, Derelict or Abandoned Structures in Multifamily Housing, Commercial and Industrial Districts
14-9.	Energy Conservation Code
14-10.	Fuel Gas Code
14-11.	Residential Code
14-12.	Boiler and Unfired Pressure Vessel Code
14-13.	Mechanical Code
14-14.	Plumbing Code
14-16.	Elevators, Dumbwaiters, Escalators and Amusement Devices
14-20.	Trailers and Trailer Courts
14-24.	Reserved

CHAPTER 14-4. HOUSING CODE*

Sections:

Sec. 14-4-1. Housing code adopted by reference.

Sec. 14-4-1. Housing code adopted by reference.

The 2015 Edition of the ICC International Property Maintenance code, as locally amended, is hereby adopted by reference, a copy of said code being on file in the Office of Council Records of the Memphis City Council.
(Ord. No. 5708, 12-18-2018; Ord. No. 5811, 12-7-2021)

CHAPTER 14-5. ELECTRICAL CODE

Sections:

Sec. 14-5-1. Electrical code adopted by reference.

Sec. 14-5-1. Electrical code adopted by reference.

The 2014 Edition of the National Electric Code (NEC) is hereby adopted by reference as if set out in its entirety herein, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The local amendments, including certain amendments to the provision of the NEC and locally drafted Appendix A - Electrical Permit and Inspection Fees, as set forth in Exhibit A [on file with the city] are also adopted and together these provisions and the 2014 NEC shall become the 2018 Memphis and Shelby County Electrical Code.
(Ord. No. 5714, 12-18-2018)

CHAPTER 14-6. BUILDING CODE

Sections:

Sec. 14-6-1. Building code adopted by reference.

***Editor's note—**Ord. No. 5708, adopted Dec. 18, 2018, repealed the former Ch. 14-4 and enacted a new Ch. 14-4 as set out herein. Former Ch. 14-4, §§ 14-4-1—14-4-105, pertained to similar subject matter, and derived from the Code 1985, §§ 48-1—48-23, 48-31—48-40, 48-51—48-60, 48-76, 48-86—48-95, 48-106—48-113, 48-126—48-132, 48-146—48-150, 48-166—48-172, 48-186—48-191, 48-206, 48-208, 48-210—48-214.4; Ord. No. 4232, 1-4-1994; Ord. No. 4412, 6-4-1996; Ord. No. 4755, 4-11-2000; Ord. No. 5292, 2-3-2009; Ord. No. 5404, 7-5-2011; Ord. No. 5448, 6-5-2012.

Sec. 14-6-1. Building code adopted by reference.

The 2015 Edition of the ICC International Building Code is hereby adopted by reference, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The following Appendices of the 2015 Edition of the ICC International Building Code, or as locally drafted, are also adopted, but that any appendix not listed in this [section] is specifically not adopted: Appendix A - Building Permit, Plans and Inspection Fees, Appendix C - Group U Agriculture Building, Appendix D - Fire District, Appendix F - Rodent proofing and Appendix H - Signs.
(Ord. No. 5710, 12-18-2018)

CHAPTER 14-7. EXISTING BUILDING CODE

Sections:

Sec. 14-7-1. Existing building code adopted by reference.

Sec. 14-7-1. Existing building code adopted by reference.

The 2015 Edition of the International Code Council International Existing Building Code is hereby adopted, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The local amendments to the sections of the 2015 Edition of the International Code Council International Existing Building Code noted in the attached Exhibit A [on file with the city] are also adopted and together these provisions and the 2015 Edition of the International Code Council International Existing Building Code shall become the 2018 Memphis and Shelby County Existing Building Code.

Appendix A - Guidelines for the Seismic Retrofit of Existing Buildings and Appendix B - Supplemental Accessibility Requirements for Existing Buildings and Facilities of the 2015 Edition of the ICC International Existing Building Code are hereby specifically adopted, but that Appendix C - Guidelines for the Wind Retrofit of Existing Buildings listed in the 2015 Edition of the ICC International Existing Building Code is not adopted.
(Ord. No. 5711, 12-18-2018)

CHAPTER 14-8. DANGEROUS, DERELICT OR ABANDONED STRUCTURES IN MULTIFAMILY HOUSING, COMMERCIAL AND INDUSTRIAL DISTRICTS*

Sections:

Sec. 14-8-1. Dangerous, derelict or abandoned structures in multifamily housing, commercial and industrial districts.

Sec. 14-8-1. Dangerous, derelict or abandoned structures in multifamily housing, commercial and industrial districts.

Property maintenance inspection fees, chronic nuisance fees, demolition fees, and other property maintenance fees are established within Section 103.5 of the 2015 Edition of the ICC International Property Maintenance Code, and appendix A pertaining to boarding standards, as locally amended.

Editor's note—A copy of said ICC International Property Maintenance Code, and appendix A pertaining to boarding standards can be found on file in the Office of Council Records of the Memphis City Council.

(Ord. No. 5708, 12-18-2018)

CHAPTER 14-9. ENERGY CONSERVATION CODE

Sections:

Sec. 14-9-1. Energy conservation code adopted by reference.

Sec. 14-9-1. Energy conservation code adopted by reference.

The 2015 Edition of the ICC International Energy Conservation Code and those local amendments attached to this Joint Ordinance as Exhibit A [on file with the city], are hereby incorporated by reference as if set out herein and that no appendices from the 2015 Edition of the ICC International Energy Conservation Code are adopted.

The adoption of the 2015 Edition of the ICC International Energy Conservation Code and those local amendment attached hereto, shall be implemented through their inclusion in the appropriate section of the Memphis and Shelby County Building Code, the Memphis and Shelby County Residential Code and other Technical Codes which contains provisions that addresses the required standards for the energy efficiency of various buildings, structures and their internal support systems.

(Ord. No. 5713, 12-18-2018)

CHAPTER 14-10. FUEL GAS CODE

Sections:

Sec. 14-10-1. Fuel gas code adopted by reference.

Sec. 14-10-1. Fuel gas code adopted by reference.

The 2015 Edition of the ICC International Fuel Gas Code is hereby adopted, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The local amendments to the sections of the 2015 Edition of the ICC International Fuel Gas Code noted in the attached Exhibit A [on file with the city] are also adopted and together these provisions and the 2015 ICC Fuel Gas Code shall become the 2018 Memphis and Shelby County Fuel Gas Code.

Appendix A - Gas Permit and Inspection Fees, a locally drafted amendment, is hereby adopted into this code, but that no appendix listed in the 2015 ICC International Fuel Gas Code is adopted.

(Ord. No. 5717, 12-18-2018)

CHAPTER 14-11. RESIDENTIAL CODE

Sections:

Sec. 14-11-1. Residential code adopted by reference.

Sec. 14-11-1. Residential code adopted by reference.

The 2015 Edition of the ICC International Residential Code is hereby adopted by reference, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

***Editor's note—**Ord. No. 5708, adopted Dec. 18, 2018, repealed the former Ch. 14-8 and enacted a new Ch. 14-48 as set out herein. Former Ch. 14-8, §§ 14-8-1—14-8-12, pertained to similar subject matter, and derived from the Code 1985, § 48-215—48-226; ; Ord. No. 4126, 9-15-1992; Ord. No. 4191, 6-15-1993; Ord. No. 4588, 6-2-1998; Ord. No. 4851, 4-3-2001; Ord. No. 4961, 9-17-2002.

The 2015 Edition of the ICC International Residential Code is amended by adoption of the local amendments attached to this Joint Ordinance as Exhibit A [on file with the city].

The 2015 Edition of the ICC International Residential Code and those local amendments attached to this Joint Ordinance as Exhibit A [on file with the city] are hereby incorporated by reference as if set out herein in their entirety from the 2015 Edition of the ICC International Residential Code and that no appendices from the 2015 Edition of the ICC International Residential Code are adopted.
(Ord. No. 5712, 12-18-2018)

CHAPTER 14-12. BOILER AND UNFIRED PRESSURE VESSEL CODE

Sections:

Article 1. General Provisions

Sec. 14-12-1. Short title.
Sec. 14-12-2. Definitions.
Sec. 14-12-3. Applicability—Exceptions.
Sec. 14-12-4. Board of boiler rules—Generally.
Sec. 14-12-5. Board of boiler rules—Rules and regulations.
Sec. 14-12-6. New installations to conform to chapter—Exceptions.
Sec. 14-12-7. Maximum allowable working pressure.
Sec. 14-12-8. Right of entry to enforce chapter.

Article 2. Inspectors and Inspections Generally

Sec. 14-12-9. Appointment and qualifications of chief inspector.
Sec. 14-12-10. General powers and duties of chief inspector.
Sec. 14-12-11. Employment and qualifications of deputy inspectors.
Sec. 14-12-12. Special inspectors generally.
Sec. 14-12-13. Examination of inspectors.
Sec. 14-12-14. Replacement of inspector's certificate of appointment or commission.
Sec. 14-12-15. Suspension or revocation of inspector's appointment or commission.
Sec. 14-12-16. Inspections generally.
Sec. 14-12-17. Inspection fees.
Sec. 14-12-18. Inspection certificates.
Sec. 14-12-19. Operation without or in violation of inspection certificate.
Sec. 14-12-20. Exemptions from sections 14-12-16 through 14-12-19.
Sec. 14-12-21. Appeals from orders or acts of inspectors.

Article 3. Rules and Regulations Relating to Administration

Sec. 14-12-22. Manufacturers' data and blueprints to be submitted.
Sec. 14-12-23. Registration of existing boilers.
Sec. 14-12-24. Inspections generally.
Sec. 14-12-25. Preparation for inspection.
Sec. 14-12-26. Examination for inspector's certificate of competency.
Sec. 14-12-27. Special inspector's commission generally.
Sec. 14-12-28. Reciprocal special inspector's commission.
Sec. 14-12-29. Revocation of special inspector's certificate of competency or commission.
Sec. 14-12-30. Inspectors' conflicts of interest.
Sec. 14-12-31. Inspection reports.
Sec. 14-12-32. Reports by insurance companies—Risks written, cancelled, not renewed or suspended.
Sec. 14-12-33. Reports by insurance company—Risks refused because of defects.
Sec. 14-12-34. Defective conditions disclosed at time of external inspections.
Sec. 14-12-35. Accident reports.
Sec. 14-12-36. Inspection fee—Refusal to allow inspection or pay fee—Operation without inspection certificate.
Sec. 14-12-37. Term of inspection certificate.

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Sec. 14-12-38. Restamping.
Sec. 14-12-39. Suspension of inspection certificate.
Sec. 14-12-40. Condemnation.
Sec. 14-12-41. Permission to reinstall moved equipment.
Sec. 14-12-42. Nonstandard equipment.
Sec. 14-12-43. Reinstallation or shipment into city of used or secondhand equipment.
Sec. 14-12-44. Fittings and appliances for reinstalled equipment.
Sec. 14-12-45. Increasing safety factors.
Sec. 14-12-46. Inspection of drum heads.
Sec. 14-12-47. Removal of safety appliances—Excess load on safety valves.
Sec. 14-12-48. Boiler attendants.
Sec. 14-12-49. Bond for persons repairing or installing boilers or pressure vessels.
Sec. 14-12-50. Work permits.

Article 4. Rules and Regulations Relating to Construction, Installation, Inspection, Maintenance and Use

Sec. 14-12-51. Power boilers—New installations.
Sec. 14-12-52. Power boilers—Existing installations.
Sec. 14-12-53. Boiler runway or platform.
Sec. 14-12-54. Miniature boilers—New installations.
Sec. 14-12-55. Miniature boilers—Existing installations.
Sec. 14-12-56. Heating boilers—New installations.
Sec. 14-12-57. Existing installations.
Sec. 14-12-58. Unfired pressure vessels—New installations.
Sec. 14-12-59. Unfired pressure vessels—Existing installations.
Sec. 14-12-60. General requirements.

ARTICLE 1. GENERAL PROVISIONS

Sec. 14-12-1. Short title.

This chapter shall be known and may be cited as the "Boiler and Unfired Pressure Vessel Safety Code." (Code 1967, § 45-1; Code 1985, § 42-1)

Sec. 14-12-2. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Approved means approved by the board of boiler rules.

A.S.M.E. Boiler and Pressure Vessel Code means the Boiler and Pressure Vessel Code of the American Society of Mechanical Engineers, 1983 Edition.

Board or *board of boiler rules* means the board created by section 14-12-4 and empowered to recommend to the city council rules and regulations and amendments to the rules and regulations and interpret rules and regulations for the safe and proper construction, installation, inspection, repair and use of boilers and unfired pressure vessels in this city.

Boiler, except where the context clearly indicates otherwise, means and includes a closed vessel or vessels intended for use in heating water or other liquids or for generating steam or other vapors under pressure or vacuum by the direct application of heat from combustible fuels, electricity or nuclear energy and shall also include an unfired pressure vessel, meaning a vessel in which pressure is obtained from an external source or from an indirect application of heat.

Certificate of competency means a certificate issued to a person who has passed an examination prescribed by the board of boiler rules.

Certificate of inspection means an inspection upon which an inspection certificate may be issued.

City boiler and pressure vessel construction code is used to designate the accepted reference for construction, installation, operation and inspection of boilers and unfired pressure vessels and will be referred to as the city boiler and pressure vessel construction code, which is practically the same as the A.S.M.E. Boiler and Pressure Vessel Construction Code.

Condemned boiler or unfired pressure vessel means a boiler or unfired pressure vessel that has been inspected and declared unsafe or disqualified by legal requirements by an inspector qualified to take such action who has applied a stamping or marking designating its rejection.

Deputy inspector means any deputy or assistant to the chief inspector, as defined herein.

Director means the director of the Memphis and Shelby County office of planning and development.

Division means the Memphis and Shelby County office of planning and development.

Existing installations, insofar as the application of this chapter is concerned, means and includes any boiler or unfired pressure vessel constructed, installed, placed in operation or contracted for before April 12, 1960.

External inspection means an inspection made when a boiler or unfired pressure vessel is in operation.

Fusion welding means a process of welding metals in molten state or matter in vaporous state, without the application of mechanical pressure or blows. Such welding may be accomplished by an oxyacetylene or oxyhydrogen flame or by electric arc. Thermit welding is also classed as fusion welding.

Hot water supply boiler means a boiler furnishing hot water to be used externally to itself.

Inspector means the chief boiler inspector, any deputy inspector or a special inspector.

Internal inspection means an inspection made when a boiler or unfired pressure vessel is shut down and hand holes or manholes opened for inspection of the interior.

Locomotive boiler means a boiler mounted on a self-propelled track locomotive and used to furnish motivating power for traveling on rails. It does not include locomotive cranes, tractors or other self-propelled apparatus.

Low pressure heating boiler means a boiler operated at pressures not exceeding 15 pounds per square inch gauge steam or at pressures not exceeding 160 pounds per square inch gauge and temperatures not exceeding 250 degrees Fahrenheit for water.

Major repairs means those upon which the strength of a boiler or unfired pressure vessel would depend.

Miniature boiler applies to fired pressure vessels, fired and unfired boilers, which do not exceed the following limits:

1. Sixteen inch inside diameter;
2. Five cubic feet gross volume, exclusive of the casing and insulation;
3. Twenty square feet water heating surface;
4. One hundred pounds per square inch gauge maximum allowable working pressure.

National board means the national board of boiler and pressure vessel inspectors.

New boiler installations means and includes all boilers constructed, installed, placed in operation or contracted for after April 12, 1960.

New unfired pressure vessel installations means and includes all unfired pressure vessels constructed, installed, placed in operation or contracted for after April 12, 1960.

Nonstandard boiler or unfired pressure vessel means a boiler or unfired pressure vessel that does not bear the state stamp, the national board stamping or the stamp of any state or political subdivision which has adopted a standard of construction equivalent to that required by the board of boiler rules.

Owner or *user* means any person owning or operating any boiler or unfired pressure vessel within this city.

Portable boiler means a fired boiler which is primarily intended for temporary location and the construction and usage of which is obviously portable.

Power boiler means a closed vessel in which steam or other vapor to be used externally to itself is generated at a pressure of more than 15 pounds per square inch gauge by the application of heat.

Reinstalled boiler or unfired pressure vessel means a boiler or unfired pressure vessel removed from its original setting and reerected at the same location or erected at a new location without change of ownership.

Secondhand boiler or unfired pressure vessel means a boiler or unfired pressure vessel of which both the location and ownership have been changed after primary use.

Special inspector means an inspector holding a city commission and who is regularly employed by an insurance company authorized to insure against loss from explosion of boilers and unfired pressure vessels in this city, provided such company complies with the requirements of section 14-12-13.

Standard boiler or unfired pressure vessel means a boiler or unfired pressure vessel which bears the stamp of the city or of a state which has adopted a standard of construction equivalent to that required by the board of boiler rules or a boiler which bears the national board stamp.

Unfired pressure vessel means a vessel in which pressure is obtained from an external source or from an indirect application of heat.
(Code 1967, § 45-2; Code 1985, § 42-2; Ord. No. 1427, § 1, 8-29-1972)

Sec. 14-12-3. Applicability—Exceptions.

A. Except as otherwise specifically provided, this chapter shall apply to all boilers and unfired pressure vessels.

B. This chapter shall not apply to the following boilers and unfired pressure vessels.

1. Boilers and unfired pressure vessels under federal control;
2. Unfired pressure vessels meeting the requirements of the interstate commerce commission for shipment of liquids or gases under pressure;
3. Air tanks located on vehicles operating under the rules of other state authorities and used for carrying passengers or freight;
4. Air tanks installed on the right-of-way of railroads and used directly in the operation of trains;
5. Unfired pressure vessels having a volume of five cubic feet or less;
6. Unfired pressure vessels designed for a working pressure not exceeding 15 pounds per square inch gauge, when not located in places of public assembly;
7. Unfired pressure vessels which are under the regulation and control of the bureau of safety engineers under the city liquefied petroleum gas code.

(Code 1967, § 45-3; Code 1985, § 42-3)

Sec. 14-12-4. Board of boiler rules—Generally.

A. There is created within the office of planning and development a board of boiler rules consisting of six members who shall be appointed to the board by the mayor. At the expiration of the initial members' terms of office, they or their successors identifiable with the same interest respectively as hereinafter provided, shall be appointed for terms of four years each. The mayor may at any time remove any members of the board for inefficiency or neglect of duty in office. Upon the death or incapacity of any member the mayor shall fill the vacancy for the remainder of the vacated term with a representative of the same interests with which his or her predecessor was identified.

B. Of the six appointed members of the board of boiler rules, one shall be a practical steam operating engineer of high pressure boilers and unfired pressure vessels or any other representative of owners and users of high pressure boilers and unfired pressure vessels within the city having practical experience with boilers and unfired pressure vessels; one shall be a representative of boiler or unfired pressure vessel manufacturers within the city; one shall be a representative of a boiler insurance company licensed to do business within the city; one shall be a mechanical engineer on the faculty of a recognized engineering college within the city or a graduate mechanical engineer having equivalent experience; one shall be representative of the practical boilermakers within the city; and one shall be a representative of owners and users of low pressure boilers or pressure vessels within the city.

C. The board of boiler rules shall elect one of its members to serve as chairperson and, at the call of the chairperson, the board shall meet at least four times each year at the City Hall or other place designated by the board. No approval, decision or ruling of the board shall be effective unless supported by the vote of at least four members thereof and approved by director of planning and development.

D. The members of the board of boiler rules shall serve without salary and shall receive their actual traveling and hotel expenses, incurred while in the performance of their duties as members of the board, to be paid in the same manner as in the case of other city officers. (Code 1967, § 45-4; Code 1985, § 42-4)

Sec. 14-12-5. Board of boiler rules—Rules and regulations.

A. The board of boiler rules shall recommend to the city council the definitions, rules and regulations for the safe construction, installation, inspection and repair of boilers and unfired pressure vessels in this city. The definitions, rules and regulations so recommended shall be based upon and, at all times follow the generally accepted nationwide engineering standards, formulae and practices established and pertaining to boiler and unfired pressure vessel construction and safety, and the board may, by resolution, recommend to the city council an existing published codification thereof, known as the Boiler and Pressure Vessel Construction Code of the American Society of Mechanical Engineers, with the amendments and interpretations thereto made and approved by the Council of the Society, and may likewise recommend the amendments and interpretations subsequently made and published by the same authority.

B. Subsequent amendments to the rules and regulations recommended by the board of boiler rules to the city council shall become effective upon adoption of amendments to this chapter by the city council.
(Code 1967, § 45-5; Code 1985, § 42-5)

Sec. 14-12-6. New installations to conform to chapter—Exceptions.

No boiler or unfired pressure vessel which does not conform to the rules and regulations set forth in this chapter or amendments thereto governing new construction and installation shall be installed and operated in this city after 12 months from the date upon which the first rules and regulations under this chapter pertaining to new construction and installation shall have become effective, unless the boiler or unfired pressure vessel is of special design or construction, and is not covered by the rules and regulations, nor is in any way inconsistent with such rules and regulations, in which case a special installation and operating permit may, at its discretion, be granted by the board of boiler rules.
(Code 1967, § 45-6; Code 1985, § 42-6)

Sec. 14-12-7. Maximum allowable working pressure.

A. The maximum allowable working pressure of a boiler or unfired pressure vessel carrying the A.S.M.E. Code symbol shall be determined by the applicable sections of the codes under which it was constructed and stamped.

B. The maximum allowable working pressure of a boiler which does not carry the A.S.M.E. Code symbol shall be computed in accordance with the A.S.M.E. Power Boiler Code Suggested Rules Covering Existing Installations. The maximum allowable working pressure of an unfired pressure vessel which does not carry the A.S.M.E. Code symbol shall be computed in accordance with the A.S.M.E. Unfired Pressure Vessel Code Recommended Practice for Inspection, Repair and Allowable Working Pressure for Vessels in Service.

C. This chapter shall not be construed as in any way preventing the use or sale of a boiler or unfired pressure vessel referred to in this section, provided it has been made to conform to the rules and regulations of the board of boiler rules governing existing installations and provided, further, it has not been found upon inspection to be in an unsafe condition.
(Code 1967, § 45-7; Code 1985, § 42-7)

Sec. 14-12-8. Right of entry to enforce chapter.

The director, the chief inspector or any deputy or special inspector shall have free access, during reasonable hours, to any premises in the city where a boiler or unfired pressure vessel is being constructed or is being installed, for the purpose of ascertaining whether such boiler or unfired pressure vessel is constructed and installed in accordance with the provisions of this chapter.
(Code 1967, § 45-8; Code 1985, § 42-8)

ARTICLE 2. INSPECTORS AND INSPECTIONS GENERALLY

Sec. 14-12-9. Appointment and qualifications of chief inspector.

The chief inspector, who shall be the boiler safety engineer of the Memphis and Shelby County office of construction code enforcement, shall be a citizen of Shelby County who has had at the time of such appointment not less than ten years' practical experience in the construction, maintenance, repair or operation of high pressure boilers and unfired pressure vessels, as mechanical engineer, practical steam operating engineer, practical boilermaker or boiler inspector and who shall have passed the same kind of examination as that prescribed by this article for deputy or special inspectors.
(Code 1967, § 45-19; Code 1985, § 42-21)

Sec. 14-12-10. General powers and duties of chief inspector.

The chief inspector, if authorized by the director of planning and development is charged, directed and empowered:

A. To cause the prosecution of all violators of the provisions of this chapter;

B. To issue, suspend or revoke, for cause, inspection certificates as provided in this article;

C. To draw upon the city comptroller for funds necessary to meet the expenses authorized by this chapter, which shall include the necessary traveling expenses of the chief inspector and his or her deputies and the expenses incident to the maintenance of his or her office;

D. To take action necessary for the enforcement of the laws of the city governing the use of boilers and unfired pressure vessels to which this chapter applies and of the rules and regulations of the board of boiler rules;

E. To keep a complete record of the type, dimensions, maximum allowable working pressure,

age, location and date of the last recorded internal inspection of all boilers and unfired pressure vessels to which this chapter applies;

F. To publish and distribute, among manufacturers and others requesting them, copies of the rules and regulations adopted by the board of boiler rules.

(Code 1967, § 45-20; Code 1985, § 42-22)

Sec. 14-12-11. Employment and qualifications of deputy inspectors.

The director shall employ deputy inspectors who shall be responsible to the chief inspector and who shall have had at time of appointment not less than five years' practical experience in the construction, maintenance, repair or operation of high pressure boilers and unfired pressure vessels as a mechanical engineer, practical steam operating engineer, boilermaker or boiler inspector and who shall have passed the examination provided for in this article.

(Code 1967, § 45-21; Code 1985, § 42-23)

Sec. 14-12-12. Special inspectors generally.

A. In addition to the deputy inspectors authorized by section 14-12-11, the chief inspector shall, upon the request of any company authorized to insure against loss from explosion of boilers and unfired pressure vessels in this city, issue to any inspectors of such company commissions as special inspectors, provided that each such inspector, before receiving his or her commission, shall satisfactorily pass the examination provided for in section 14-12-13, or, in lieu of such examination, shall hold a commission or a certificate of competency as an inspector of boilers and unfired pressure vessels for a state that has a standard of examination substantially equal to that of the city or a commission as an inspector of boilers issued by the national board of boiler and pressure vessel inspectors.

B. Such special inspectors shall receive no salary from, nor shall any of their expenses be paid by, the city and the continuance of a special inspector's commission shall be conditioned upon his or her continuing in the employ of a boiler insurance company duly authorized as aforesaid and upon his or her maintenance of the standards imposed by this chapter.

C. Such special inspectors shall inspect all boilers and unfired pressure vessels insured by their respective companies and, when so inspected, the owners and users of such boilers and unfired pressure vessels shall be exempt from the payment to the city of the inspection fees provided for in section 14-12-17.

D. Each company employing such special inspectors shall, within ten days following each internal boiler or unfired pressure vessel inspection made by such inspectors, file a report of such inspection with the chief inspector upon appropriate forms as promulgated by the American Society of Mechanical Engineers. Reports of external inspection shall not be required except when such inspections disclose that the boiler or unfired pressure vessel is in a dangerous condition.

(Code 1967, § 45-22; Code 1985, § 42-24)

Sec. 14-12-13. Examination of inspectors.

The examination for chief, deputy or special inspectors shall be in writing and shall be held by the board of boiler rules or by at least two members of the board. Such examination shall be confined to questions, the answers to which will aid in determining the fitness and competency of the applicant for the intended service. In case an applicant for an inspector's appointment or commission fails to pass the examination, he or she may appeal to the board for another examination which shall be given by the board within 90 days. The records of an applicant's examination shall be accessible to the applicant and his or her employer.

(Code 1967, § 45-23; Code 1985, § 42-25)

Sec. 14-12-14. Replacement of inspector's certificate of appointment or commission.

If an inspector's certificate of appointment or commission is lost or destroyed, a new certificate or commission shall be issued in its place without another examination.

(Code 1967, § 45-24; Code 1985, § 42-26)

Sec. 14-12-15. Suspension or revocation of inspector's appointment or commission.

A. An inspector's appointment or commission may be suspended by the director after due investigation and recommendation by the board of boiler rules, for the incompetence or untrustworthiness of the holder thereof or for willful falsification of any matter or statement contained in his or her application or in a report of any inspection made by him or her. Written notice of any such suspension shall be given by the board of boiler rules within not more than ten days, to the inspector and his or her employer. A person whose appointment or

commission has been suspended shall be entitled to an appeal to the board as provided in section 14-12-21 and to be present in person or to be represented by counsel at the hearing of the appeal.

B. If the board of boiler rules has reason to believe that a commissioned inspector is no longer qualified to hold his or her appointment or commission, the board shall, upon not less than ten days' written notice to the inspector and his or her employer, hold a hearing at which such inspector and his or her employer shall have an opportunity to be heard. If, as a result of such hearing, the board shall find that such inspector is no longer qualified to hold his or her appointment or commission, the board shall recommend to the director that such appointment or commission shall be revoked and the director shall thereupon revoke such appointment or commission forthwith.

C. A person whose appointment or commission has been revoked shall be entitled to apply, after 90 days from the date of such revocation, for reinstatement of such appointment or commission.
(Code 1967, § 45-25; Code 1985, § 42-27)

Sec. 14-12-16. Inspections generally.

A. Each boiler and unfired pressure vessel used or proposed to be used within this city, except boilers or unfired pressure vessels specifically exempted therefrom, shall be thoroughly inspected as to their construction, installation and condition as follows:

1. Power boilers, meaning boilers operating at steam or vapor pressures in excess of 15 pounds per square inch gauge, shall be inspected annually both internally and externally while not under pressure and shall also be inspected annually externally while under pressure if possible. The board of boiler rules may, in its discretion, permit longer periods between inspections.

2. Low pressure steam or vapor heating boilers, hot water heating boilers and hot water supply boilers shall be inspected both internally and externally biennially where construction will permit.

3. Unfired pressure vessels subject to internal corrosion shall be inspected both internally and externally biennially where construction will permit, except that the board of boiler rules may, in its discretion, provide for longer periods between inspections.

4. Unfired pressure vessels not subject to internal corrosion shall be inspected externally at intervals set by the board of boiler rules but internal inspections shall not be required of unfired pressure vessels, the contents of which are known to be noncorrosive to the material of which the shell, head or fittings are constructed, either from the chemical composition of the contents or from evidence that the contents are adequately treated with a corrosion inhibitor, provided that such vessels are constructed in accordance with the rules and regulations of the board of boiler rules or in accordance with standards substantially equivalent to the rules and regulations of the board, in effect at the time of manufacture.

5. A grace period of two months beyond the periods specified in subsection (A)(1), (2), (3) and (4) of this section may elapse between inspections.

B. Subject to the applicable grace period provided in subsection A of this section, the rules and regulations formulated by the board applying to the inspection of unfired pressure vessels may be modified by the board to reduce or extend the interval between required inspection where the contents of the vessel or the materials of which it is constructed warrant special consideration.

C. The inspections herein required shall be made by the chief inspector, by a deputy inspector or by a special inspector.

D. If at any time a hydrostatic test shall be deemed necessary to determine the safety of a boiler or unfired pressure vessel, same shall be made, at the discretion of the inspector, by the owner or user thereof.

E. All boilers and unfired pressure vessels to be installed in this city after the 12-month period from the date upon which the rules and regulations of the board shall become effective, shall be inspected during construction as required by the applicable rules and regulations of the board by an inspector authorized to inspect boilers in this city, or, if constructed outside the city, by

an inspector holding a certificate of competency as an inspector of boilers for a state that has a standard of examination substantially equal to that of this city.
(Code 1967, § 45-26; Code 1985, § 42-28)

Sec. 14-12-17. Inspection fees.

A. The owner or user of a boiler or unfired pressure vessel required by this chapter to be inspected by the chief inspector or his or her deputy inspector shall pay directly to the chief inspector, upon completion of the inspection, fees in accordance with the following schedule:

1. *Power boilers.*

Internal Inspections

Boilers of 50 sq. ft. of heating surface or less	$5.00
Boilers over 50 sq. ft. of heating surface and less than 500 sq. ft. of heating surface	$8.00
Boilers over 500 sq. ft. of heating surface and less than 10,000 sq. ft. of heating surface	$15.00
Boilers over 10,000 sq. ft. of heating surface	$20.00

External Inspections

Boilers of 50 sq. ft. of heating surface or less	$3.00
Boilers over 50 sq. ft. of heating surface	$5.00

Not more than the equivalent of the internal and external inspection fees shall be charged or collected for any and all inspections as above of any boiler in any one year.

2. *Low-pressure heating boilers.*

Inspection of heating boilers without a manhole	$5.00
Inspection of heating boilers with a manhole	$10.00
Inspection of hot water supply boilers	$3.00

Not more than one fee shall be charged or collected for any and all inspections as above of any low-pressure boiler in any two-year period.

3. *Hydrostatic tests.* When it is necessary to make a special trip to witness the application of a hydrostatic test, an additional fee based on the scale of fees applicable to an internal inspection of the boiler or unfired pressure vessel shall be charged. All fees prescribed above shall be doubled for inspection on Saturdays, Sundays or holidays.

4. *Permits for installation of boilers, unfired pressure vessels or for alterations or repairs.* The fee for installation of boilers, unfired pressure vessels or for alterations or repairs shall be based on the contract price of the complete installation. The fee shall be $15.00 for the first $1,000.00 evaluation and $8.00 for each additional $1,000.00 evaluation or fraction thereof over $1,000.00.

5. *Biennial or required inspection of unfired pressure vessels.* Fees to be based on the maximum length of vessel times the maximum width or diameter.

Internal and/or external inspection of each unfired pressure vessel subject to inspection having a cross sectional area of 50 sq. ft. or less	$5.00
For each additional 100 sq. ft. of area in excess of 50 sq. ft.	$1.00

Provided that not more than $40.00 shall be paid per day for the actual inspection time of each inspector on any one vessel.

A group of pressure vessels, such as the rolls of a paper machine or dryer operating as a single machine or unit, shall be considered as one pressure vessel.

6. *Others.* All other inspections, including shop inspections and inspection of secondhand or used boilers or unfired pressure vessels made by the chief or deputy inspector shall be charged for at the rate of not less than $25.00 for one-half day of four hours and $55.00 for one full day of eight hours, plus all expenses, including traveling and hotel.

Secondhand means an object which has changed ownership and location after primary use.

B. The chief inspector shall transfer all inspection fees received to the comptroller.
(Code 1967, § 45-27; Code 1985, § 42-29; Ord. No. 273, § 1, 9-3-1968; Ord. No. 2349, § 1(1), 12-16-1975; Ord. No. 3022, § 1(1), 6-9-1980)

Sec. 14-12-18. Inspection certificates.

A. If, upon inspection, a boiler or unfired pressure vessel is found to comply with the rules and regulations of the board, the owner or user thereof shall pay to the city the sum of $11.00 in the case of a power boiler; $11.00 in the case of a low-pressure heating boiler, including hot water supply, coil or storage water heaters that exceed any one of the following limitations: 200,000 Btu input, 120-gallon capacity or 200 degrees Fahrenheit temperature; and the sum of $5.00 in case of an unfired pressure vessel. The chief inspector, or his or her duly authorized representative, shall issue to such owner or user an inspection certificate bearing the date of inspection and specifying the maximum pressure under which the boiler or unfired pressure vessel may be operated. Such inspection certificate shall be valid for not more than 14 months from its date except that the certificate shall be valid for a period not more than two months beyond the period set by the board in accordance with section 14-12-17(A)(1). Certificates shall be posted under glass in the room with the boiler or unfired pressure vessel inspected. If the boiler or unfired pressure vessel is not located within the building, the certificate shall be posted in a location convenient to the boiler or unfired pressure vessel inspected, or in the case of a portable boiler or unfired pressure vessel, the certificate shall be kept in a metal container to be fastened to the boiler or vessel or kept in a toolbox accompanying the boiler or unfired pressure vessel.

B. No inspection certificate issued for an insured boiler or unfired pressure vessel by a special inspector shall be valid after the boiler or unfired pressure vessel for which it was issued shall cease to be insured by a company duly authorized by this state to carry such insurance.

C. The chief inspector or his or her authorized representative may at any time suspend an inspection certificate when, in his or her opinion, the boiler or unfired pressure vessel for which it was issued cannot be operated without menace to the public safety or when the boiler or unfired pressure vessel is found not to comply with the rules and regulations herein provided. Such suspension of an inspection certificate shall continue in effect until such boiler or unfired pressure vessel shall have been made to conform to the rules and regulations of the board and until the inspection certificate shall have been reinstated.
(Code 1967, § 45-28; Code 1985, § 42-30; Ord. No. 273, § 2, 9-3-1968; Ord. No. 2349, § 1(2), 12-16-1975; Ord. No. 3022, § 1(2), 6-9-1980; Ord. No. 3152, § 1, 9-8-1981)

Sec. 14-12-19. Operation without or in violation of inspection certificate.

It is unlawful for any person to operate in this city a boiler or unfired pressure vessel under pressure without a valid inspection certificate. The operation of a boiler or unfired pressure vessel without such inspection certificate or at a pressure exceeding that specified in such inspection certificate, shall constitute a misdemeanor on the part of the owner, user or operator thereof and shall be punishable as provided in section 1-24-1 and each day of such unlawful operation shall be deemed a separate offense.
(Code 1967, § 45-29; Code 1985, § 42-31)

Sec. 14-12-20. Exemptions from sections 14-12-16 through 14-12-19.

The following boilers and unfired pressure vessels shall be exempt from the requirements of sections 14-12-16 through 14-12-19:

A. Boilers or unfired pressure vessels located on farms and used solely for agricultural purposes;

B. Steam or vapor boilers used for heating purposes carrying a pressure of not more than 15 pounds per square inch gauge and which are located in private residences or in apartment houses of less than six families;

C. Hot water heating boilers or hot water supply boilers, operated at pressures not exceeding 160 pounds per square inch gauge or temperatures not exceeding 250 degrees Fahrenheit which are located in private residences or in apartment houses of less than six families;

D. Unfired pressure vessels containing only water under pressure for domestic supply purposes, including those containing air, the compression of which serves only as a cushion or airlift

pumping system, when located in private residences or in apartment houses of less than six families.

(Code 1967, § 45-30; Code 1985, § 42-32)

Sec. 14-12-21. Appeals from orders or acts of inspectors.

Any person aggrieved by an order or act of an inspector or the chief inspector under this chapter may, within 15 days' notice thereof, appeal from such order or act to the board of boiler rules, which shall, within 30 days thereafter, hold a hearing, after having given at least ten days' written notice to all interested parties. The board shall, within 30 days after such hearing, issue an appropriate order either approving or disapproving such order or act. A copy of such order by the board shall be given to all interested parties.

(Code 1967, § 45-31; Code 1985, § 42-33)

ARTICLE 3. RULES AND REGULATIONS RELATING TO ADMINISTRATION

Sec. 14-12-22. Manufacturers' data and blueprints to be submitted.

A. Manufacturers' data reports on boilers and unfired pressure vessels which are to be operated at pressures in excess of 15 pounds per square inch gauge (unless otherwise exempted by these rules and regulations) shall be filed with the chief inspector before installation. If the boilers or unfired pressure vessels are of special design, blueprints showing details of proposed construction shall be submitted to the chief inspector and his or her approval secured before construction is started.

B. If new or used equipment is being installed by the owner or user of any plant, similar information shall be furnished the chief inspector.

(Code 1967, § 45-42; Code 1985, § 42-46)

Sec. 14-12-23. Registration of existing boilers.

Within six months from April 12, 1960, all owners or users of boilers then in use or installed ready for use in the city, shall report to the chief inspector on forms prescribed by the department, giving the location, type, capacity, age and date of installation.

(Code 1967, § 45-43; Code 1985, § 42-47)

Sec. 14-12-24. Inspections generally.

A. All power boilers shall be regularly inspected internally at least every 12 months. An external inspection shall be made annually approximately six months from the date of the internal inspection.

B. All low pressure heating boilers shall be inspected both internally and externally every two years where construction will permit.

C. All unfired pressure vessels subject to internal corrosion shall be inspected both internally and externally every two years where construction will permit.

D. All unfired pressure vessels not subject to internal corrosion shall be given a certificate inspection every three years.

(Code 1967, § 45-44; Code 1985, § 42-48)

Sec. 14-12-25. Preparation for inspection.

The owner or user shall prepare each boiler or unfired pressure vessel for internal inspection and shall prepare for and apply a hydrostatic pressure test whenever necessary, on the date specified by the chief inspector, deputy inspector or special inspector, which date shall be not less than seven days after the date of notification.

(Code 1967, § 45-45; Code 1985, § 42-49)

Sec. 14-12-26. Examination for inspector's certificate of competency.

A. Examinations for certificates of competency as inspector of boilers and unfired pressure vessels shall be held at the office of the board of boiler rules or at any location to be selected by the board, four times each year, namely, the first Wednesday of the months of March, June, September and December. Special examinations will be held when considered necessary by the board.

B. Applicants for certificate of competency as inspector of boilers and pressure vessels shall meet the requirements of the state board of boiler rules.

C. The application for examination for a certificate of competency shall be in writing upon a form to be furnished by the board, stating the school education of the applicant, a list of his or her employers, his or her period of employment and position held with each employer. Applications containing willful falsification or untruthful statements shall be rejected. If the applicant's history and experience meet with the approval of the board of boiler rules, he or she shall be given a written

examination dealing with the construction, installation, operation, maintenance and repair of boilers and unfired pressure vessels and their appurtenance, and the applicant shall be accepted or rejected on the merits of this examination. If the applicant is successful in meeting the requirements of the board, a certificate of competency will be issued by the chief inspector.

D. After the expiration of 90 days, an applicant who fails to pass the examination will be permitted to take another written examination, and his or her acceptance or rejection will be determined by the board on the basis of this examination.
(Code 1967, § 45-46; Code 1985, § 42-50; Ord. No. 1427, § 1, 8-29-1972)

Sec. 14-12-27. Special inspector's commission generally.

A. Upon the request of any company authorized to insure against loss from explosion of boilers and unfired pressure vessels in the city, a commission as a special inspector and an identifying corn mission card shall be issued by the chief inspector to an inspector in the employ of such company, provided the inspector has successfully passed the written examination and holds a certificate of competency, as set forth in section 14-12-26. Work cards expire December 31 of each year. Annual renewal shall be made upon request of the holder for a fee of $10.00.

B. Commissions issued to inspectors in the employ of such companies shall be held at the home office of the employing company. The commission and the identifying commission card shall be returned to the chief inspector when the inspector to whom the commission was issued is no longer in its employ or at the request of the chief inspector.
(Code 1967, § 45-47; Code 1985, § 42-51; Ord. No. 2349, § 1(3), 12-16-1975; Ord. No. 3022, § 1(3), 6-9-1980)

Sec. 14-12-28. Reciprocal special inspector's commission.

Upon the request of a boiler insurance company authorized to do business in this city, a commission as special inspector shall be issued by the chief inspector to an inspector in the employ of such company, provided the inspector is at least 25 years of age, has had the experience prescribed in section 14-12-26 and holds a certificate of competency or commission issued by a state which has adopted the A.S.M.E. Boiler and Unfired Pressure Vessel Construction Code and which holds a written examination similar to that required by the city. Application for a reciprocal commission shall be accompanied by a photostatic copy of the applicant's state commission or certificate of competency.
(Code 1967, § 45-48; Code 1985, § 42-52)

Sec. 14-12-29. Revocation of special inspector's certificate of competency or commission.

The certificate of competency and commission issued to a special inspector may be suspended by the director and may be revoked upon ten days' notice to the inspector and to the employer of such inspector, for incompetence or untrustworthiness; for willful falsification of any matter or statement contained in his or her application, or in the report of any inspection; or for other sufficient reasons. The holder of such certificate of competency or commission shall be entitled to a hearing before the director before the revocation thereof.
(Code 1967, § 45-49; Code 1985, § 42-53)

Sec. 14-12-30. Inspectors' conflicts of interest.

Inspectors commissioned by the city shall not be engaged in the sale of any article or device that is related to boilers or unfired pressure vessels and shall devote their full time to inspection work.
(Code 1967, § 45-50; Code 1985, § 42-54)

Sec. 14-12-31. Inspection reports.

City inspectors and special inspectors shall, within one year from the effective date of these rules for power boilers and two years for all other objects, submit to the chief inspector an inspection report on each boiler or unfired pressure vessel subject to inspection by such inspectors. Complete data shall be submitted on each nonstandard boiler or unfired pressure vessel on Form P-5 of the A.S.M.E. Code at the time of the first internal inspection. Subsequent internal or certificate inspections of those objects shall be reported on Form P-6 of the A.S.M.E. Code. On all standard boilers or unfired pressure vessels, the first and subsequent internal or certificate inspection shall be submitted on Form P-6 of the A.S.M.E. Code. The report shall be submitted within ten days of the date of the inspection and for unfired pressure vessels shall indicate the maximum period between certificate inspections. External inspections shall be re-

ported on Form P-6 immediately when hazardous conditions affecting the safety of the boiler or unfired pressure vessel are found to exist.
(Code 1967, § 45-51; Code 1985, § 42-55)

Sec. 14-12-32. Reports by insurance companies—Risks written, cancelled, not renewed or suspended.

All insurance companies shall notify the chief inspector within 30 days of all boiler or unfired pressure vessel risks written, cancelled, not renewed or suspended because of unsafe conditions.
(Code 1967, § 45-52; Code 1985, § 42-56)

Sec. 14-12-33. Reports by insurance company—Risks refused because of defects.

If an insurance inspector, upon the first inspection of a new risk, finds that the boiler or any of the appurtenances are in such condition that his or her company refuses insurance, the company shall immediately notify the chief inspector and submit a report of the defects.
(Code 1967, § 45-53; Code 1985, § 42-57)

Sec. 14-12-34. Defective conditions disclosed at time of external inspections.

If upon an external inspection, there is evidence of a leak or crack, enough of the covering of the boiler or unfired pressure vessel shall be removed to satisfy the inspector in order that he or she may determine as to the safety of the boiler or unfired pressure vessel or if the covering cannot be removed at that time, he or she may order the operation of the boiler or unfired pressure vessel stopped until such time as the covering can be removed and proper examination made.
(Code 1967, § 45-54; Code 1985, § 42-58)

Sec. 14-12-35. Accident reports.

When an accident occurs which serves to render a boiler or unfired pressure vessel inoperative, the owner or user shall immediately notify the chief inspector, and submit a detailed report of the accident. In case of serious accident, such as explosion, notice shall be given immediately by telephone, telegraph or messenger and neither the boiler or unfired pressure vessel nor any of the parts thereof shall be removed or disturbed before an inspection has been made by the chief inspector or a deputy inspector or a special inspector, unless for the purpose of saving human life.
(Code 1967, § 45-55; Code 1985, § 42-59)

Sec. 14-12-36. Inspection fee—Refusal to allow inspection or pay fee—Operation without inspection certificate.

A. If a boiler or unfired pressure vessel shall, upon inspection, be found to be suitable and to conform to these rules and regulations, the owner or user shall pay directly to the chief inspector a fee of $2.00 for each boiler or unfired pressure vessel required to be inspected under this chapter before a certificate of inspection shall be issued.

B. If the owner or user of a boiler or unfired pressure vessel required to be inspected refuses to allow an inspection to be made or refuses to pay the above fee, the certificate of inspection shall be suspended by the chief inspector until the owner or user complies with the requirements.

C. The owner or user who causes a boiler or unfired pressure vessel to be operated without possessing a valid certificate of inspection shall be subject to the penalty provided for in section 14-12-19.
(Code 1967, § 45-56; Code 1985, § 42-60)

Sec. 14-12-37. Term of inspection certificate.

An inspection certificate shall be valid for not more than 14 months unless some defect or condition affecting the safety of the boiler or unfired pressure vessel is disclosed; provided, however, that, a certificate issued for a boiler or unfired pressure vessel inspected by a special inspector shall be valid only if the boiler or unfired pressure vessel for which it was issued continues to be insured by a duly authorized insurance company.
(Code 1967, § 45-57; Code 1985, § 42-61)

Sec. 14-12-38. Restamping.

When the stamping on a boiler or unfired pressure vessel becomes indistinct, the inspector shall instruct the owner or user to have it restamped. Request for permission to restamp the boiler or unfired pressure vessel shall be made to the chief inspector and proof of the original stamping shall accompany the request authorized by the chief inspector. Restamping authorized by the chief inspector shall be done only by an inspector and shall be

identical with the original stamping, except that it will not be required to restamp the A.S.M.E. symbol. Notice of completion of such restamping shall be filed with the director by the inspector who stamped the boiler together with a facsimile of the stamping applied.
(Code 1967, § 45-58; Code 1985, § 42-62)

Sec. 14-12-39. Suspension of inspection certificate.

If, upon inspection, a boiler or unfired pressure vessel is found to be in such condition that it is unsafe to operate, the inspection certificate shall be suspended by the chief inspector, who shall be notified by a deputy inspector or special inspector. Any person causing such objects to be operated shall be guilty of a misdemeanor.
(Code 1967, § 45-59; Code 1985, § 42-63)

Sec. 14-12-40. Condemnation.

Any boiler or unfired pressure vessel having been inspected and declared unsafe by the chief or deputy inspector shall be stamped by the inspector with an arrowhead stamp having an overall length of one-half-inch and width of three-eighths inch on either side of the letters "XXX," as shown by the following facsimile, which will designate a condemned boiler or unfired pressure vessel:

XXX	XXX

(Code 1967, § 45-60; Code 1985, § 42-64)

Sec. 14-12-41. Permission to reinstall moved equipment.

If a standard or A.S.M.E. boiler or unfired pressure vessel located in this city is to be moved to another location for temporary use or repairs, application shall be made by the owner or user to the chief inspector for permission to reinstall the boiler or unfired pressure vessel.
(Code 1967, § 45-61; Code 1985, § 42-65)

Sec. 14-12-42. Nonstandard equipment.

A. A nonstandard boiler or unfired pressure vessel now in use in this city, if removed outside the boundaries of the city, cannot be brought in and reinstalled without permission of the board of boiler rules.

B. Shipment of nonstandard boilers or unfired pressure vessels into this city for use is prohibited.
(Code 1967, § 45-62; Code 1985, § 42-66)

Sec. 14-12-43. Reinstallation or shipment into city of used or secondhand equipment.

Before a used or secondhand boiler or unfired pressure vessel can be reinstalled or shipped into this city, an inspection must be made by an authorized inspector and data submitted by him or her shall be filed by the owner or user of the boiler or unfired pressure vessel with the chief inspector for his or her approval.
(Code 1967, § 45-63; Code 1985, § 42-67)

Sec. 14-12-44. Fittings and appliances for reinstalled equipment.

In any case where a stationary boiler or unfired pressure vessel is moved and reinstalled, the fittings and appliances must comply with the provisions of this chapter for new installations.
(Code 1967, § 45-64; Code 1985, § 42-68)

Sec. 14-12-45. Increasing safety factors.

The board of boiler rules authorizes an inspector to increase factors of safety if the condition of the boiler or unfired pressure vessel warrants it. If the owner or user does not concur with the inspector's decision, the owner or user may appeal to the board of boiler rules, which may request a joint inspection by the chief inspector and a deputy or special inspector. Each inspector shall render his or her report to the board of boiler rules and the board shall render the final decision, based upon the data contained in all the inspectors' reports.
(Code 1967, § 45-65; Code 1985, § 42-69)

Sec. 14-12-46. Inspection of drum heads.

For new installations, provision shall be made to permit making inspections of the drum heads of all boilers. For existing installations, heads of lower drums shall be thoroughly examined at the annual inspection and either a sufficient amount of brickwork shall be removed or inspection doors provided to enable this examination to be made.
(Code 1967, § 45-66; Code 1985, § 42-70)

Sec. 14-12-47. Removal of safety appliances—Excess load on safety valves.

A. No person, except under the direction of an inspector, shall attempt to remove or shall do any work upon any safety appliance prescribed by this chapter while a boiler or unfired pressure vessel is in operation.

Should any of these appliances be repaired during outage of a boiler or unfired pressure vessel, they must be reinstalled and in proper working order before the object is again placed in service.

B. No person shall in any manner load the safety valve or valves to maintain a working pressure in excess of that stated on the certificate of inspection.
(Code 1967, § 45-67; Code 1985, § 42-71)

Sec. 14-12-48. Boiler attendants.

Every owner or user of any boiler or steam generating apparatus, when such equipment is in use, shall have a licensed engineer of the grade required on duty at all times as provided for in section 46-12 of the city's 1967 Code of Ordinances.
(Code 1967, § 45-68; Code 1985, § 42-72)

Sec. 14-12-49. Bond for persons repairing or installing boilers or pressure vessels.

Any person making repairs, alteration or installing any boiler or pressure vessel required under this chapter to be inspected shall have at least one person in his or her employ doing such work who has on file in the chief inspector's office a bond of $500.00 which is to assure the city of the compliance of same.
(Code 1967, § 45-69; Code 1985, § 42-73)

Sec. 14-12-50. Work permits.

A. Before erecting any boiler or pressure vessel regulated by this chapter, and before making any repairs or alterations to any boiler or pressure vessel, the person doing such work shall first file an application and secure a permit for the same. Specifications for such work shall be made on blanks furnished by the chief inspector's office and shall accompany all such applications for permits.

B. For repairs being made in case of emergencies when the office of the inspector is closed, a permit shall be taken out as soon as the office is opened after the repairs have been started and the chief inspector notified of such.

C. Before installing any boiler or pressure vessel required under this chapter to be inspected, the owner or user shall first obtain a permit from the chief inspector.
(Code 1967, § 45-70; Code 1985, § 42-74)

ARTICLE 4. RULES AND REGULATIONS RELATING TO CONSTRUCTION, INSTALLATION, INSPECTION, MAINTENANCE AND USE

Sec. 14-12-51. Power boilers—New installations.

A. No power boiler, except reinstalled boilers and those exempted by these rules and regulations, shall hereafter be installed in this city unless it has been constructed, inspected and stamped in conformity with the city boiler construction code and is approved, registered and inspected in accordance with the requirements of these rules and regulations.

B. A boiler having the standard stamping of any state that has adopted a standard of construction equivalent to the standard of the city may be accepted by the chief inspector; provided however, that, the person desiring to install the boiler shall make application for the installation and shall file with this application the manufacturer's data covering the construction of the boiler in question.

C. All new boiler installations, including reinstalled boilers, shall be installed in accordance with the requirements of the latest revision of the A.S.M.E. Boiler Construction Code and these rules and regulations.

D. Upon the completion of installation and proper permits acquired, all boilers shall be inspected by the chief inspector, a deputy inspector or a special inspector. At the time of this inspection, the boilers shall be stamped with a serial number of the city followed by letters "MFS," such letters and figures to be not less than $^{5}/_{16}$ of an inch in height. Stamping shall not be concealed by lagging or paint and shall be exposed at all times.
(Code 1967, § 45-81; Code 1985, § 42-86)

Sec. 14-12-52. Power boilers—Existing installations.

A. *Application of section.* This section shall apply to existing power boiler installations.

B. *Maximum allowable working pressure for standard boilers.* The maximum allowable working pressure for standard boilers shall be determined in accordance with the applicable provision of the edition of the A.S.M.E. Code under which they were constructed and stamped.

C. *Maximum allowable working pressure for nonstandard boilers.* The maximum allowable working pressure on the shell of a nonstandard boiler or drum shall be determined by the strength of the weakest section of the

structure computed from the thickness of the plate, the tensile strength of the plate, the efficiency of the longitudinal joint or tube ligaments, the inside diameter of the outside course and the factor of safety allowable by these rules.

$$\frac{TS \times t \times E}{R \times FS} = \text{Maximum allowable working pressure in lb. per sq. in. gauge}$$

$R \times FS$

Where

TS = Ultimate tensile strength of shell plates, lb. per sq. in.

t = Minimum thickness of shell plate, in weakest course, in inch.

E = Efficiency of longitudinal joint.

For riveted construction, E shall be determined by rules given in paragraph P-181 of A.S.M.E. Boiler Construction Code for Power Boilers. For fusion welded construction, E shall be determined by rules in paragraph P-102 of A.S.M.E. Boiler Construction Code for Power Boilers.

For tube ligaments, E shall be determined by rules in paragraphs P 192 and P 193 of A.S.M.E. Boiler Construction Code for Power Boilers. For seamless construction, E shall be considered 100 percent.

R = One-half the inside diameter of the weakest course of shell or drum in inches.

FS = Factor of safety permitted.

1. *Tensile strength.* When the tensile strength of steel or wrought iron shell plates is not known, it shall be taken as 55,000 pounds per square inch for steel and 45,000 pounds per square inch for wrought iron.

2. *Crushing strength of mild steel.* The resistance to crushing of mild steel shall be taken at 95,000 pounds per square inch of cross sectional area.

3. *Strength of rivets in shear.* When computing the ultimate strength of rivets in shear, the following values in pounds per square inch of the cross sectional area of the rivet shank shall be used:

Iron rivets in single shear	38,000
Iron rivets in double shear	76,000
Steel rivets in single shear	44,000
Steel rivets in double shear	88,000

When the diameter of the rivet holes in the longitudinal joints of a boiler is not known, the diameter and cross sectional area of rivets, after driving may be selected from the following table or ascertained by cutting out one rivet in the body of the joint:

Sizes of Rivets Based on Plate Thickness

Thickness of plate	1/4″	9/32″	5/16″	11/32″	3/8″	13/32″
Diameter of rivet after driving	11/16″	11/16″	3/4″	3/4″	13/16″	13/16″
Thickness of plate	7/16″	15/32″	1/2″	9/16″	5/8″	
Diameter of rivet after driving	15/16″	15/16″	15/16″	1 1/16″	1 1/16″	

4. *Factors of safety.* The following factors of safety shall be increased by the inspector if the condition and safety of the boilers demand it.

   a. The lowest factor of safety permissible on existing installations shall be 4.5 excepting for horizontal return tubular boilers having continuous lap seams more than 12 feet in length where the factor of safety shall be eight, and when this latter type of boiler is removed from its existing setting, it shall not be reinstalled for pressures in excess of 15 pounds per square inch gauge.

   b. Reinstated or secondhand boilers shall have a minimum factor of safety of six when the longitudinal seams are of lap riveted construction and a minimum factor of safety of five when the longitudinal seams are of butt and double strap construction.

5. *Age limit of fire tube boilers.* The age limit of a horizontal return tubular, flue or cylindrical boiler having a longitudinal lap joint and operating at a pressure in excess of 50 pounds per square inch gauge shall be 30 years. A reasonable time for replacement shall be given at the discretion of the director not to exceed one year.

6. *Welded boilers.* Boilers having either longitudinal or circumferential seams of fusion welded construction shall have been constructed and stamped in accordance with the rules and regulations of the A.S.M.E. Boiler Construction Code or shall have the standard stamping of another state that has adopted a standard of construction equivalent to the standards of the A.S.M.E. Boiler Construction Code.

7. *Pressure on old boilers.* In no case shall maximum working pressure of an old boiler be increased to a greater pressure than would be allowed for a new boiler of same construction.

8. *Cast iron headers and mud drums.* The maximum allowable working pressure on a water tube boiler, the tubes of which are secured to cast iron or malleable iron headers or which have cast iron mud drums, shall not exceed 160 pounds per square inch gauge.

9. *Pressure on cast iron boilers.* The maximum allowable working pressure for any cast iron boiler, except hot water boilers, shall be 15 pounds per square inch gauge.

D. *Safety valves.* The use of weighted-lever safety valves shall be prohibited and these valves shall be replaced by direct spring-loaded pop type valves that conform to the requirements of the A.S.M.E. Boiler Construction Code for Power Boilers.

Safety valves having either the seat or disc of cast iron shall not be used.

Each boiler shall have at least one safety valve and if it has more than 500 square feet of water heating surface, it shall have two or more safety valves.

The valve or valves shall be connected to the boiler, independent of any other steam connection and attached as close as possible to the boiler without unnecessary intervening pipe or fittings. Where alteration is required to conform to this requirement, owners or users shall be allowed one year in which to complete the work.

No valve of any description shall be placed between the safety valve and the boiler nor on the escape pipe (if used) between the safety valve and the atmosphere. When an escape pipe is used, it shall be full size and fitted with an open drain to prevent water lodging in the upper part of the safety valve or escape pipe. When an elbow is placed on a safety valve escape pipe, it shall be located close to the safety valve outlet of the escape pipe, shall be securely anchored and supported. All safety valve discharges shall be so located or piped as to be carried clear from walkways or platforms used to control the main stop valves or boilers or steam headers.

The safety valve capacity of each boiler shall be such that the safety valve or valves will discharge all the steam that can be generated in the boiler without allowing the pressure to rise more than six percent above the highest pressure to which any valve is set and in no case to more than six percent above the maximum allowable working pressure.

One or more safety valves on every boiler shall be set at or below the maximum allowable working pressure. The remaining valves may be set within a range of three percent above the maximum allowable working pressure, but the range of setting of all of the safety valves on a boiler shall not exceed ten percent of the highest pressure to which any valve is set.

When two or more boilers operating at different pressures and safety valve settings are interconnected, the lower pressure boilers or interconnected piping shall be equipped with safety valves of sufficient capacity to prevent over pressure considering the generating capacity of all boilers.

In those cases where the boiler is supplied with feed water directly from pressure mains without the use of feeding apparatus (not to include return traps), no safety valve shall be set at a pressure greater than 94 percent of the lowest pressure obtained in the supply main feeding the boiler.

The relieving capacity of the safety valves on any boiler may be checked by one of the three following methods and, if found to be insufficient, additional valves shall be provided:

1. By making the accumulation test, which consist of shutting off all other steam-discharge outlets from the boiler and forcing the fires to the maximum. The safety valve capacity shall be

sufficient to prevent a pressure in excess of six percent above the maximum allowable working pressure;

2. By measuring the maximum amount of fuel that can be burned and computing the corresponding evaporative capacity (steam generating capacity) upon the basis of the heating valve of this fuel. These computations shall be made as outlined in the appendix of the A.S.M.E. Boiler Construction Code for Power Boilers;

3. By determining the maximum evaporative capacity by measuring the feed water.

When either of the methods outlined in subsection (D)(2) or (3) of this section is employed, the sum of the safety valve capacities shall be equal to or greater than the maximum evaporative capacity (maximum steam generating capacity) of the boiler.

E. *Boiler feeding and feed piping.* All boilers shall have a feed supply which will permit the boilers being fed at any time while under pressure.

A boiler having more than 500 square feet of water heating surface shall have at least two means of feeding, one of which shall be an approved feed pump, injector or inspirator. Where a source of feed directly from pressure mains is available at sufficient pressure to feed the boiler against a pressure six percent greater than the release pressure of the safety valve with the highest release setting, this may be considered one of the means.

The feed water shall be introduced into the boiler in such manner that it will not be discharged close to riveted joints of shell or furnace sheets or directly against surfaces exposed to gases at high temperature or direct radiation from the fire.

The feed piping to the boiler shall be provided with a check valve near the boiler and a valve or cock between the check valve and the boiler. When two or more boilers are fed from a common source, there shall also be a valve on the branch to each boiler between the check valve and source of supply. Whenever a globe valve is used on feed piping, the inlet shall be under the disc of the valve.

In all cases where returns are fed back to the boiler by gravity, there shall be a check valve and stop valve on each return line, the stop valve to be placed between the boiler and the check valve and both shall be located as close to the boiler as is practicable.

Where deaerating heaters are not employed, it is recommended that the temperature of the feed water be not less than 120 degrees Fahrenheit to avoid the possibility of setting up localized stress. Where deaerating heaters are employed, it is recommended that the minimum feed water temperature be not less than 215 degrees Fahrenheit so that dissolved gases may be thoroughly released.

F. *Fusible plugs.* Fire-actuated fusible plugs if used shall con form to the requirements of the A.S.M.E. Boiler Construction Code for Power Boilers.

G. *Water columns, gauge glasses and gauge cocks.* No outlet connections (except for damper regulator, low water fuel cutout, drains, steam gauges or such apparatus that does not permit the escape of an appreciable amount of steam or water therefrom) shall be placed on the piping that connects the water column to the boiler. The water column shall be provided with a valved drain of at least three-fourths-inch pipe size, the drain to be piped to a safe location.

Each boiler shall have three or more gauge cocks, located within the range of the visible length of the water glass, except when such boiler has two water glasses with independent connections to the boiler, located on the same horizontal line and not less than two feet apart.

For all installations where the water gauge glass or glasses are more than 30 feet from the boiler operating floor, it is recommended that water level indicating or recording gauges be installed at eye height from the operating floor.

H. *Steam gauges.* Each steam boiler shall have a steam gauge, with dial range not less than 1½ times the maximum allowable working pressure, connected to the steam space or to the steam connection to the water column. The steam gauge shall be connected to a siphon or equivalent device of sufficient capacity to keep the gauge tube filled with water and so arranged that the gauge cannot be shut off from the boiler except by a cock placed near the gauge and provided with a tee or lever handle arranged to be parallel to the pipe in which it is located when the cock is open.

When a steam gauge connection longer than eight feet becomes necessary, a shut-off valve may be used near the boiler provided the valve is of the outside screw and yoke type and is locked open. The line shall be ample size, with provision for free blowing.

Each boiler shall be provided with a one-quarter-inch nipple and globe valve connected to the steam space for the exclusive purpose of attaching a test gauge when the boiler is in service so that the accuracy of the boiler steam gauge may be ascertained.

I. *Stop valves.* Each steam outlet from a boiler (except safety valve connections) shall be fitted with a stop valve located as close as practicable to the boiler.

When a stop valve is so located that water can accumulate, ample drains shall be provided. The drainage shall be piped to a safe location and shall not be discharged on the top of the boiler or its setting.

When boilers provided with manholes are connected to a common steam main, the steam connection from each boiler shall be fitted with two stop valves having an ample free flow drain between them. The discharge of this drain shall be visible to the operator while manipulating the valves and shall be piped clear of the boiler setting. The stop valves shall consist preferably of one automatic nonreturn valve (set next to the boiler) and a second valve to the outside-screw and yoke type.

J. *Blow-off piping.* The construction of the setting around each blow-off pipe shall permit free expansion and contraction. Careful attention shall be given to the problem of sealing these setting openings without restricting the movement of the blow-off piping.

All blow-off piping, when exposed to furnace heat, shall be protected by fire brick or other heat resisting material so constructed that the piping may be readily inspected.

Each boiler shall have a blow-off pipe fitted with a valve or cock, in direct conflection with the lowest water space. Cocks shall be of the gland or guard type and suitable for the pressure allowed. The use of lobe valves shall not be permitted. When the maximum allowable working pressure exceeds 100 pounds per square inch gauge, each blow-off pipe shall be provided with two valves or a valve and cock, such valves and cocks to be not less than extra heavy type.

When the maximum allowable working pressure exceeds 100 pounds per square inch gauge, blow-off piping shall be not less than extra heavy from the boiler to the valve or valves and shall be run full size without use of reducers or bushings. The piping shall be wrought iron or steel and shall not be galvanized.

All fittings between the boiler and blow-off valve shall be steel. In case of renewal of blow-off pipe or fittings, they shall be installed in accordance with the rules and regulations for new installations.

K. *Repairs and renewals of boiler fittings and appliances.* Whenever repairs are made to fittings or appliances or it becomes necessary to replace them, the work shall comply with the provisions of this chapter for new installations.

L. *Stamping of existing boilers.* Each boiler shall be stamped with a serial number of the city followed by the letters "MFS," such letters and figures to be not less than $^{5}/_{16}$ inch in height. The stamping shall not be concealed by lagging or paint and shall be exposed at all times.

M. *Suggested operating practices.* It is recommended that the suggested rules of the A.S.M.E. Boiler Construction Code covering the care of power boilers and pressure vessels be used as a guide for proper and safe operating practices.
(Code 1967, § 45-82; Code 1985, § 42-87; Ord. No. 1427, § 1, 8-29-1972)

Sec. 14-12-53. Boiler runway or platform.

A. *Runway or platform.* Where necessary for safety, there shall be a steel runway or platform of standard construction installed across the tops of adjacent boilers or at some other convenient level for the purpose of affording safe access. The inspector shall notify the chief inspector of owners or users who must provide for these requirements and the chief inspector shall give written notice to the owner or user that the installation be made. The owner or user shall be allowed one year from the date of the chief inspector's notification in which to complete the work. All runways shall have at least two means of exit, each to be remotely located from the other.

B. *Exits from boiler rooms.* To lessen the hazard of being trapped within the boiler room, ash pit aisles or other locations, there shall be at least two means of exit as may be considered necessary by the chief inspector or the board of boiler rules. Each elevation shall be provided with at least two means of egress, each to be remotely located from the other.

All authorized inspectors shall notify the chief inspector of owners or users who must provide for these requirements. The chief inspector then shall give written

notice to the owner or user that the necessary work must be completed within six months from the date of notification.

C. *Conditions not covered by section.* All cases not specifically covered by this section shall be treated as new installations, or may be referred to the chief inspector for instructions concerning the requirements.
(Code 1967, § 45-83; Code 1985, § 42-88)

Sec. 14-12-54. Miniature boilers—New installations.

A. No miniature boiler, except reinstalled boilers and those exempted by these rules and regulations, shall hereafter be installed in this city unless it has been constructed, inspected and stamped in conformity with section 5 of the A.S.M.E. Boiler Construction Code and is approved, registered and inspected in accordance with these rules and regulations.

B. A miniature boiler having the standard stamping of a state that has adopted a standard of construction equivalent to the standard of construction of this state may be accepted by the chief inspector; provided however, that the person desiring to install the same shall make application for the manufacturer's data report covering the construction of the boiler in question.

C. All new installations of miniature boilers, including reinstalled boilers must be installed in accordance with the requirements of the latest revision of the A.S.M.E. Boiler Construction Code and these rules and regulations.

D. Upon completion of the installation, all miniature boilers shall be inspected by the chief inspector, a deputy inspector or a special inspector. At the time of this inspection, all miniature boilers must be stamped with the serial number of the city, followed by the letters "MFS," such letters and figures to be not less than 5/16 inch in height.
(Code 1967, § 45-84; Code 1985, § 42-89)

Sec. 14-12-55. Miniature boilers—Existing installations.

A. *Application of section.* This section shall apply to existing miniature boilers.

B. *Maximum allowable working pressure.* Rules and regulations, as adopted for power boilers applying to strength of materials and calculations to determine maximum allowable working pressure, shall be used for miniature boilers unless a special rule is stated herein. The maximum allowable working pressure on the shell of a boiler or drum shall be determined by the provisions of section 14-12-52.

C. *Construction.* The construction of miniature boilers, including factors of safety, except where otherwise specified, shall conform to that required for power boilers.

D. *Safety valves.* Each miniature boiler shall be equipped with a sealed, spring-loaded, pop type safety valve not less than one-half-inch pipe size, connected directly to the boiler.

The safety valve shall be plainly marked by the manufacturer showing name or identifying trademark, nominal diameter and pressure at which it is set to release.

The safety valve relieving capacity of each boiler shall be such that it will discharge all the steam that can be generated by the boiler without allowing the pressure to rise more than six percent above the maximum allowable working pressure.

In those cases where the boiler is supplied with feed water directly from a pressure main or system without the use of a mechanical feeding device, the safety valve shall be set to release at a pressure not in excess of 94 percent of the lowest pressure obtained in the supply main or system feeding the boiler. Return traps shall not be considered mechanical feeding devices.

E. *Gauge glass and water level indicator.* Each miniature boiler shall be equipped with a water gauge glass for determination of the water level.

The lowest permissible water level shall be at a point one-third of the height of the shell, except where the boiler is equipped with an internal furnace, in which case it shall be not less than one-third of the tube length above the top of the furnace.

For small boilers where there is insufficient space for the usual type of gauge glass, water level indicators of the glass, bull's eye type may be used.

F. *Feeding and feed water piping.* Every miniature boiler shall be provided with at least one feed pump or other mechanical feeding device except where the following conditions exist:

1. Where the boiler is connected to a water main or system having sufficient pressure to feed the boiler at any time while under pressure;

2. Where the fuel burned is such that all heat input can be discontinued instantaneously by the operation of a valve, cock or switch, thereby permitting the boiler pressure to be quickly lowered to a point where water can be introduced from the connection to the water main;

3. Where the boiler is operated without extraction of steam (closed system) in which case the boiler is filled, when cold, through the connection or opening provided in accordance with the following rule.

Each miniature boiler shall be fitted with a feed water connection which shall not be less than one-half-inch iron pipe size. The feed piping shall be provided with a check valve near the boiler and a valve or check between the check valve and the boiler.

Feed water may be introduced through the blow-off connection where the boiler is operated without extraction of steam (closed system).

Feed water shall not be introduced through the water column or gauge glass connections while the boiler is under pressure.

G. *Blow-off pipe.* Each miniature boiler shall be provided with a blow-off connection, not less than one-half-inch iron pipe size, directly connected with the lowest water space.

Blow-off piping shall not be galvanized and shall be provided with a valve or cock.

H. *Steam gauges.* Each miniature boiler shall be equipped with a steam gauge having a dial range not less than 1½ times the maximum allowable working pressure. The gauge shall be connected to the steam space or to the steam connection to the gauge glass by a brass or bronze composition siphon tube or equivalent device that will keep the gauge tube filled with water.

I. *Stop valves.* The steam piping from a miniature boiler shall be provided with a stop valve located as close to the boiler shell or drum as is practicable, except in those classes where the boiler and steam receiver are operated as a closed system.

J. *Gas burners.* For installations which are gas-fired, the burners used shall conform to the requirements of the American Gas Association, as stated in the appendix of the A.S.M.E. Boiler Construction Code, section V.

K. *Flue connection.* Each gas-fired boiler shall be equipped with at least four-inch vent pipe or flue, in no case less than the vent outlet from the boiler extended to and approved location outside the building or connected to a chimney flue. Where the horizontal run is more than ten feet the vent shall be increased to six inches. A draft hood of approved design shall be provided on each boiler.

L. *Stamping of boilers.* Each boiler shall be stamped with a serial number of the city, followed by the letters "MFS," such letters and figures to be not less than 5/16 inch in height The stamping shall not be concealed by lagging or paint and shall be exposed at all times.
(Code 1967, § 45-85; Code 1985, § 42-90)

Sec. 14-12-56. Heating boilers—New installations.

A. No heating boiler, except reinstalled boilers and those exempted by these rules and regulations, shall hereafter be installed in this city unless it has been constructed, inspected and stamped in conformity with section 4 of the A.S.M.E. Boiler Construction Code and is approved, registered and inspected in accordance with the requirements of these rules and regulations.

B. All new heating boiler installations, including reinstalled boilers, must be installed in accordance with the requirements of the latest revision of the A.S.M.E. Boiler Construction Code and these rules and regulations.

C. Upon completion of the installation, all boilers shall be inspected by the chief inspector, a deputy inspector or a special inspector. At the time of this inspection, all steel heating boilers must be stamped with the serial number of the city, followed by the letters "MFS," such letters and figures to be not less than 5/16 inch in height. All cast iron heating boilers shall have securely attached to the front of the boiler a metal tag not less than one inch in height, which shall have the serial number of the city stamped thereon.

D. It is recommended that the return water connections to all low pressure steam heating boilers supplying a gravity return heating system be so arranged as to form what is known as the "water line return" so that the water cannot be forced out of the boiler below the safe water level. This connection is shown in Figure H-3, section 4, A.S.M.E. Boiler Construction Code.
(Code 1967, § 45-86; Code 1985, § 42-91)

Sec. 14-12-57. Existing installations.

A. *Application of section.* This section shall apply to existing heating boilers.

B. *Maximum allowable working pressure in A.S.M.E. Code boilers.* The maximum allowable working pressure of a boiler built in accordance with the A.S.M.E. Code shall in no case exceed the pressure indicated by the manufacturer's identification stamped or cast upon the boiler or upon a place secured to it.

C. *Maximum allowable working pressure for noncode riveted boilers.* The maximum allowable working pressure on the shell of a noncode riveted heating boiler shall be determined in accordance with the provisions of this article for covering existing installations power boilers, except that in no case shall the maximum allowable working pressure of a steam heating boiler exceed 15 pounds or a hot water boiler exceed 160 pounds at a temperature not exceeding 250 degrees Fahrenheit.

D. *Maximum allowable working pressure for noncode welded boilers.* The maximum allowable working pressure of a noncode steel or wrought iron heating boiler of welded construction shall not exceed 15 pounds. For other than steam service the maximum allowable working pressure shall be calculated in accordance with section IV of the A.S.M.E. Code.

E. *Maximum allowable working pressure for noncode cast iron boilers.* The maximum allowable working pressure of a noncode boiler composed principally of cast iron shall not exceed 15 pounds for steam service or 30 pounds for hot water service. The maximum allowable working pressure of a noncode boiler having cast iron shell or heads and steel or wrought iron tubes shall not exceed 15 pounds for steam service or 30 pounds for water service.

F. *Fired radiators.* A radiator in which steam pressure is generated at a pressure of 15 pounds or less is considered a low pressure boiler.

G. *Procedure if operation unsafe at previously approved pressure.* If in the judgment of the inspector a steam heating boiler is unsafe for operation at the pressure previously approved, the pressure shall be reduced, proper repair made or the boiler retired from service.

H. *Safety valves.* Each steam heating boiler shall be provided with one or more officially rated safety valves of the spring-pop type adjusted and sealed to discharge at a pressure not to exceed 15 pounds per square inch. The installation, size and capacity of the safety valves shall conform to the requirements of the A.S.M.E. Heating Boiler Code.

I. *Water relief valves.* Each hot water heating boiler shall have at least one officially rated pressure relief valve set to relieve at or below the maximum allowable working pressure of the boiler. Each hot water supply boiler shall have at least one officially rated pressure temperature relief valve of the automatic-reseating type set to relieve at or below the maximum allowable working pressure of the boiler. The installation, size and capacity of the relief valves shall conform to the requirements of the A.S.M.E. Heating Boiler Code.

J. *Steam gauge.* Each steam boiler shall have a steam pressure gauge connected to the steam space of the boiler itself or on steam pipe near the boiler. The graduations of the steam gauge shall not be less than 15 pounds nor more than 30 pounds.

K. *Water gauge glass and gauge cocks.* Each steam boiler shall have at least one water gauge glass with the lowest visible part above the heating surfaces in the primary combustion chamber. When, in the judgment of an inspector, the heating surfaces above the low water line may be injured by contact with gases or high temperature the water gauge glass shall be raised until the lowest visible part of the gauge glass is above such heating surface.

Each steam boiler shall have two or more gauge cocks located within the visible length of the water gauge glass, except when such boiler is provided with two water gauge glasses.

L. *Stop valves and check valves.* If a boiler may be closed off from the heating system by closing a steam stop valve, there shall be a check valve in the condensate return line between the boiler and the system.

If any part of a heating system may be closed off from the remainder of the system by closing a steam stop valve, there shall be a check valve in the condensate return pipe between the boiler and the system.

M. *Feed water connections.* Feed water connections shall be independent of any water gauge connections and be made to the condensate return pipe or reservoir of the condensate return pump. There should be a stop valve and a check valve in the feed water line at the boiler.

N. *Return pump.* Each condensate return pump where practicable shall be provided with an automatic water level control set to maintain the water level within the limits of two gauge cocks.

O. *Repairs and renewals of fittings and appliances.* Whenever repairs are made to fittings or appliances or it becomes necessary to replace them, the work must comply with the provisions of this chapter for new installations.

P. *Stamping of existing heating boilers.* Each steel heating boiler shall be stamped with a serial number of the city, followed by the letters "MFS," such letters and figures to be not less than 5/16 inch in height. The stamping shall not be concealed by flagging or paint and shall be exposed at all times. Each cast iron heating boiler shall have securely attached to the front of the boiler a metal tag not less than one inch in height, which shall have the serial number of the city stamped thereon. (Code 1967, § 45-87; Code 1985, § 42-92; Ord. No. 1427, § 1(4), (5), 8-29-1972)

Sec. 14-12-58. Unfired pressure vessels—New installations.

A. No unfired pressure vessel, except reinstalled vessels and those exempt by these rules and regulations, shall hereafter be installed in this city unless it has been constructed, inspected and stamped in conformity with section 8 of the A.S.M.E. Boiler and Unfired Pressure Vessel Construction Code and is approved, registered and inspected in accordance with the requirements of these rules and regulations.

B. All new installation unfired pressure vessels, including reinstalled unfired pressure vessels, shall be installed in accordance with the requirements of the latest revision of the A.S.M.E. Boiler and Unfired Pressure Vessel Construction Code, section 8, and these rules and regulations.

C. An unfired pressure vessel having the standard stamping of a state that has adopted a standard of construction equivalent to the standard of these rules may be accepted by the chief inspector; provided, however, that, the person desiring to install the same shall make application for the installation and shall file with this application the manufacturer's data report covering the construction of the unfired pressure vessel in question.

D. Upon completion of the installation, all unfired pressure vessels shall be inspected by the chief inspector, a deputy inspector or a special inspector. At the time of this inspection each unfired pressure vessel shall be stamped with a serial number of the city followed by the letters "MFS," such letters and figures to be not less than 5/16 of an inch in height. The stamping shall not be concealed by lagging or paint and shall be exposed at all times.

E. Rupture discs or safety heads may be used for additional protection of pressure vessels.
(Code 1967, § 45-88; Code 1985, § 42-93)

Sec. 14-12-59. Unfired pressure vessels—Existing installations.

A. *Application of section.* This section applies to existing unfired pressure vessel installations.

B. *Maximum allowable working pressure for standard unfired pressure vessels.* The maximum allowable working pressure for standard unfired pressure vessels shall be determined in accordance with the applicable provisions of the edition of the A.S.M.E. Code under which they were construed and stamped.

C. *Maximum allowable working pressure for nonstandard unfired pressure vessels.*

1. *For internal pressure.* The maximum allowable working pressure on the shell of a nonstandard pressure vessel shall be determined by the strength of the weakest course computed from the thickness of the plate, the tensile strength of the plate, the efficiency of the longitudinal joint, the inside radius of the course and the factor of safety allowed by these rules.

TS × T × E = Maximum allowable working pressure.

R × FS = Pounds per square inch.

TS = Ultimate tensile strength of shell plate pounds per square inch. When the tensile strength is not known it shall be taken as 55,000 pounds per square inch for temperatures not exceeding 700 degrees Fahrenheit.

T = Minimum thickness of shell plate of weakest course, inches.

E = Efficiency of longitudinal joint depending upon construction.

Use valves as follows:

For Riveted Joints

Calculated riveted efficiency.

For Fusion Welded Joints

Single lap weld	40%
Double lap weld	60%
Single butt weld	50%
Double butt weld	70%
Forge weld	70%
Brazed steel	80%
Brazed copper	90%

R = Inside radius of weakest course of shell, inches, provided the thickness does not exceed ten percent of the radius. If the thickness is over ten percent of the radius, the outer radius shall be used.

FS = Factor of safety allowed by these rules.

2. *For external pressure.* The maximum allowable working pressure for cylindrical vessels subjected to external or collapsing pressure shall be determined by the rules in Paragraphs U-120 to U-138 inclusive of the A.S.M.E. Boiler and Unfired Pressure Vessel Construction Code, section 8.

D. *Factors of safety.* The minimum factor of safety shall in no case be less than four for vessels up to and including 20 years of age and shall be not less than four and one-half where the age of the vessel is more than 20 years. These factors of safety may be increased when deemed necessary by the inspector to insure the operation of the vessel within safe limits. The condition of the vessel and the particular service it is being subjected to will be the determining factor.

E. *Inspection of inaccessible parts.* Where, in the opinion of the inspector, as the result of conditions disclosed at an inspection, it is advisable to remove interior or exterior lining, covering or brick work to expose certain parts of the vessel not normally visible, the owner or user shall remove such material to permit proper inspection and the drilling of any part of the vessel where necessary to ascertain thickness.

F. *Safety appliances.* Each unfired pressure vessel shall be protected by such safety and relief valves and indicating and controlling devices as will insure its safe operation. These valves and devices shall be so constructed, located and installed that they cannot readily be rendered inoperative. The relieving capacity of safety valves shall be such as to prevent a rise of pressure in the vessel of more than ten percent above the maximum allowable working pressure taking into account the effect of static head. Safety valve discharges shall be carried to a safe place.

G. *Rupture discs.* Rupture discs or safety heads may be used for additional protection of unfired pressure vessels.

H. *Repairs and renewals of fittings and appliances.* Whenever repairs are made to fittings and appliances or it becomes necessary to replace them, the work must comply with this chapter.

I. *Stamping of existing unfired pressure vessels.* Each unfired pressure vessel shall be stamped with a serial number of the city followed by the letters "MFS," such letters and figures to be not less than 5/16 inch in height. The stamping shall not be concealed by lagging or paint and shall be exposed at all times.
(Code 1967, § 45-89; Code 1985, § 42-94)

Sec. 14-12-60. General requirements.

A. *Inspections generally.* All boilers and unfired pressure vessels, unless otherwise exempt by these rules and regulations and which are subject to regular inspection as provided for in section 14-12-24, shall be prepared for such inspection, or hydrostatic tests whenever necessary or by the owner or user when notified by the chief inspector, deputy inspector or special inspector.

The owner or user shall prepare each boiler or unfired pressure vessel for internal inspection and shall prepare for and apply the hydrostatic test whenever necessary, on the date specified by the chief inspector, deputy inspector or special inspector, which date shall not be less than seven days after the date of notification.

B. *Preparation for internal inspection.* The owner or user shall prepare a boiler for internal inspection in the following manner:

1. Water shall be drawn off and the boiler thoroughly washed.

2. All manhole and handhole plates, wash-out plugs and plugs in water column connection shall be removed, the furnace and combustion chambers thoroughly cooled and cleansed.

3. All grates of internally fired boilers shall be removed.

4. At each annual inspection, brick work shall be removed as required by the inspector in order to determine the condition of the boiler, headers, furnace, supports or other parts.

5. The steam gauge shall be removed for testing.

6. Any leakage of steam or hot water into the boiler shall be cut off by disconnecting the pipe or valve at the most convenient point.

Unfired pressure vessels shall be prepared for inspection to the extent deemed necessary by the inspector.

C. *Improper preparation for inspection.* If a boiler or unfired pressure vessel has not been properly prepared for an internal inspection or the owner or user fails to comply with the requirements for hydrostatic tests as set forth in these rules, the inspector may decline to make the inspection or test and the certificate of inspection shall be withheld until the owner or user complies with the requirements.

D. *Removal of covering to permit inspection.* If the boiler or unfired pressure vessel is jacketed so that the longitudinal seams of shells, drums or domes cannot be seen, enough of the jacketing, setting wall or other form of casing or housing shall be removed so that the size of the rivets, pitch of the rivets and other data necessary to determine the safety of the boiler or unfired pressure vessel may be obtained, provided such information cannot be determined by other means.

E. *Lap seam cracks.* The shell or drum of a boiler in which a lap seam crack is discovered along a longitudinal riveted joint shall be immediately discontinued from use. If the boiler is not more than 15 years of age, a complete new course of the original thickness may be installed at the discretion of the inspector (and after approval by the chief inspector). Patching is prohibited. (By "lap seam crack" is meant the typical crack frequently found in lap seams, extending parallel to the longitudinal joint and located either between or adjacent to rivet holes.)

F. *Hydrostatic pressure tests.* A hydrostatic pressure test, when applied to boilers or unfired pressure vessels of riveted or welded construction, except locomotive boilers, shall not exceed 1½ times the maximum allowable working pressure. Hydrostatic pressure applied to locomotive boilers shall not exceed 1¼ times the maximum allowable working pressure. During the hydrostatic pressure test, the safety valve or valves shall be removed or each valve disc shall be held down by means of a testing clamp and not by applying additional load to the spring with the compression screw. It is suggested that the minimum temperature of the water used to apply a hydrostatic test be not less than 70 degrees Fahrenheit but the maximum temperature shall not exceed 160 degrees Fahrenheit.

Note: When a hydrostatic test is to be applied to existing installations, the pressure shall be as follows:

1. For all cases involving the question of tightness, the pressures shall be equal to the release pressure of the safety valve or valves having the lowest release setting.

2. For all cases involving the question of safety, the pressure shall be equal to 1½ times the maximum allowable working pressure, except for locomotive boilers, in which case it shall be 1¼ times the maximum allowable working pressure.

G. *Low water fuel cut-offs.* All automatically-fired steam or vapor boilers shall be equipped with an automatic low-water fuel cut-off and water feeding device so constructed that the water inlet valve cannot feed water into the boiler through the float chamber, and so located as to automatically cut off the fuel supply and/or supply requisite feedwater when the surface of the water falls to the lowest safe water line. This point should be not lower than the bottom of the water glass.

Such a fuel or feedwater control device may be attached direct to a boiler or to the tapped openings provided for attaching a water glass direct to a boiler, provided that such connections from the boiler are nonferrous tees or Ys not less than one-half-inch pipe size between the boiler and the water glass so that the water glass is attached direct and as close as possible to the boilers; the straightway tapping of the Y or tee to take the water glass fittings, the side outlet of the Y or the tee to take the fuel cut-off or waterfeeding device. The ends of all nipples shall be reamed to full size diameter.

Designs embodying a float and float bowl shall have a vertical straightway drainpipe at the lowest point in the water equalizing pipe connections by which the bowl and the equalizing pipe can be flushed and the device tested.

H. *Safety appliances.* No person shall remove or tamper with any safety appliances prescribed by these rules except for the purpose of making repairs. The resetting of safety appliances shall be done in the presence of an authorized inspector.

I. *Blow-off tanks.* Blow-off piping from a power boiler or a miniature boiler shall not discharge directly into a sewer. A blow-off tank shall be used where conditions do not provide an adequate and safe open discharge.

Blow-off tanks hereafter installed, if of metal, shall have a plate thickness of not less than $^{5}/_{16}$ inch and shall be designed for a minimum working pressure of 50 pounds per square inch gauge.

The outlet from the blow-off tank shall be twice the area of the inlet pipe and made to extend internally within eight inches from the bottom of the tank.

A vent pipe at least four times the area of the inlet pipe shall lead to the outer atmosphere.

Vents shall be as direct as possible to the outer air and discharge at a safe location. There shall be no valve or other possible obstructions, such as water pockets, between the tank and the discharge end of the vent pipe.

All pipe connections between the tank and the boiler shall be as direct as possible and shall conform to Paragraph P-229, A.S.M.E. Boiler Construction Code.

For convenience in cleaning the tank, a manhole or an access opening shall be provided.

Where a blow-off tank is not vented as specified above, it shall be constructed for a pressure equal to that allowed on the boiler to which it is attached or shall be equipped with a safety valve or valves of sufficient capacity to prevent the pressure from exceeding the safe working pressure of the tank.

As an alternate to the above, blow-off facilities may conform to the provisions set forth in the pamphlet titled, "Boiler Blow-Off Equipment," published by the National Board of Boiler and Pressure Vessel Inspectors, whose address is 1155 N. High St., Columbus, Ohio.

J. *Location of blow-offs.* The discharge of safety valves, blow-off pipes and other outlets shall be located so as to prevent injury to personnel.

K. *Pressure reducing values.* Where pressure reducing valves are used, one or more relief or safety valves shall be provided on the low pressure side of the reducing valve in case the piping or equipment on the low pressure side does not meet the requirements for the full initial pressure. The relief or safety valves shall be located adjoining to or as close as possible to the reducing valve. Proper protection shall be provided to prevent injury or damage caused by the escaping steam from the discharge or relief or safety valves if vented to the atmosphere. The combined discharge capacity of the relief valves shall be such that the pressure rating of the lower pressure piping or equipment shall not be exceeded in case the reducing valve sticks open.

The use of hand-controlled by-passes around reducing valves is permissible. The by-pass, if used around a reducing valve, shall not be greater in capacity than the reducing valve unless the piping or equipment is adequately protected by relief valves or meets the requirements of the high pressure system.

It is mandatory that a pressure gauge be installed on the low pressure side of a reducing valve.

L. *Electric steam generators.* All electric steam generators shall be grounded in accordance with the city electrical code.

A suitable screen or guard shall be provided around high tension bushings and a sign posted warning of high voltage. This screen or guard shall be so located that it will be impossible for anyone working around the generator to accidentally come in contact with the high tension circuits. When adjusting safety valves, the power circuit to the generator shall be open. The generator may be under steam pressure, but the power line shall be open while the operator is making the necessary adjustments.

Each kw of electrical energy consumed by an electric steam generator operating at maximum rating shall be considered the equivalent of one square foot of heating surface of a fire tube boiler when determining the required amount of safety valve capacity.

M. *Major repairs.* Where a major repair is necessary, an inspector shall be called for consultation and advice as to the best method of making such repair. After such repair is made it shall be subject to the approval of the

inspector. Repairs to all boilers and unfired pressure vessels and their appurtenances, shall conform as nearly as practicable to the requirements of the National Board of Boiler and Pressure Vessel Inspectors.

N. *Repairs by fusion welding.* When repairs are to be made wherein fusion welding is to be used, permission shall be obtained from the chief inspector, a deputy inspector or a special inspector and the welding shall be done in accordance with the rules recommended by the National Board of Boiler and Pressure Vessel Inspectors.

O. *Riveted patches.* In applying riveted patches, the design of the patch and method of installation shall be in accordance with the rules for riveted patches recommended by the National Board of Boiler and Pressure Vessel Inspectors.

P. *Boiler room and clearance.* When boilers are replaced or new boilers installed in either existing or new buildings, a minimum height of at least three feet shall be provided between the top of the boiler proper and the ceiling.

All boilers shall be so located that two feet clearance around the boiler shall be provided for the proper operations of the boiler and its appurtenances, for the inspection of all surfaces, tubes, water walls, economizer, piping, valves and other equipment and for their necessary maintenance and repair.

Every boiler hereafter installed in a building other than an industrial building, shall be located in a separate room or compartment and when not otherwise provided, shall be enclosed by fire walls or partitions as approved with floor and ceiling of fire resistant construction.

Boiler and machinery rooms shall have proper ventilation, natural or mechanical, to insure adequate supply of fresh air to the boilers for proper combustion.

When machinery emptying poisonous or noxious gases is located or operated in such rooms special precautions shall be provided for the safety of the attendants and occupants of the building.

Q. *Shop inspections.* Any new power boiler being constructed for installation in the city shall be shop inspected in accordance with the provisions of the applicable section of the A.S.M.E. Boiler Code and shall be stamped A.S.M.E. and National Board. This shall not apply to low pressure heating boilers where shop inspection is not required by the A.S.M.E. Boiler Construction Code.

Inspections made at the request of a boiler or tank manufacturer by the chief inspector or any deputy inspector shall be charged for at the rate of $25.00 for one-half day and $55.00 for one day plus all expenses, to include traveling, hotel and incidentals. This charge shall not void the regular charge or fee for inspection or certificate when the boiler is installed.

R. *Inspection of secondhand equipment.* Charges for inspection of secondhand equipment shall be at the rate provided for in subsection Q of this section for shop inspections.

S. *Conditions not covered by rules.* In any condition not covered by these rules, the A.S.M.E. Code for new installations shall apply.
(Code 1967, § 45-90; Code 1985, § 42-95)

CHAPTER 14-13. MECHANICAL CODE

Sections:

Sec. 14-13-1. Mechanical code adopted by reference.

Sec. 14-13-1. Mechanical code adopted by reference.

The 2015 Edition of the International Code Council (ICC) International Mechanical Code is hereby adopted, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The local amendments to the sections of the 2015 Edition of the ICC Mechanical Code noted in the attached Exhibit A [on file with the city] are also adopted and together these provisions and the 2015 ICC Mechanical Code shall become the 2018 Memphis and Shelby County Mechanical Code.

Appendix A - Summary Of Permit And Inspection Fees, a locally drafted appendix, is hereby adopted into this code, but that no other appendix listed in the 2015 ICC International Mechanical Code is adopted.
(Ord. No. 5716, 12-18-2018)

CHAPTER 14-14. PLUMBING CODE

Sections:

Sec. 14-14-1. Plumbing code adopted by reference.

Sec. 14-14-1. Plumbing code adopted by reference.

The 2015 Edition of the International Code Council (ICC) International Plumbing Code is hereby adopted, a copy of said code being on file in the Office of Council Records of the Memphis City Council.

The local amendments to the sections of the 2015 Edition of the ICC International Plumbing Code noted in the attached Exhibit A [on file with the city] are also adopted and together these provisions and the 2015 ICC International Plumbing Code shall become the 2018 Memphis and Shelby County Plumbing Code.

The following appendices as provided in the 2015 Edition of the ICC International Plumbing Code are hereby adopted: Appendix B - Rate of Rainfall for various Cities, Appendix C - Structural Safety, Appendix D - Degree Day and Design Temperature, Appendix E - Sizing of Water Pipe Systems, and that locally drafted Appendix A - Plumbing Permit and Inspection Fees and Appendix H - Cross Connection, Backflow, Back Siphonage, are also adopted, but that no other appendix listed in the 2015 edition of the ICC International Plumbing Code is adopted.
(Ord. No. 5715, 12-18-2018)

CHAPTER 14-16. ELEVATORS, DUMBWAITERS, ESCALATORS AND AMUSEMENT DEVICES

Sections:

Article 1. General Provisions

Sec. 14-16-1. Definitions.
Sec. 14-16-2. Applicability.
Sec. 14-16-3. Enforcement of chapter.
Sec. 14-16-4. City inspector generally.
Sec. 14-16-5. Inspector's license.
Sec. 14-16-6. Construction permit for elevators, escalators and dumbwaiters.
Sec. 14-16-7. Supervision of installation, relocation, alteration or repair of equipment.
Sec. 14-16-8. Responsibility of person installing, relocating or altering equipment.
Sec. 14-16-9. Registration of elevators, escalators and dumbwaiters.
Sec. 14-16-10. Requirements for elevator operators.
Sec. 14-16-11. Requirements for amusement device operators.
Sec. 14-16-12. Notice of cancellation, expiration or placing of insurance on elevators.
Sec. 14-16-13. Elevator, dumbwaiter and escalator accidents.
Sec. 14-16-14. Institution of prosecutions under chapter.
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Article 2. Board of Elevators Rules

Sec. 14-16-16. Created—Composition—Appointment and terms of members.
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Sec. 14-16-20. Secretary.
Sec. 14-16-21. Meetings.
Sec. 14-16-22. Required vote and approval of decisions and rulings.
Sec. 14-16-23. General powers and duties—Rules and regulations.
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Article 3. Inspections and Tests

Sec. 14-16-25. Required inspections defined.
Sec. 14-16-26. Generally.
Sec. 14-16-27. New, relocated or altered elevators, escalators and dumbwaiters.
Sec. 14-16-28. Periodic inspection and testing of all elevators and escalators.
Sec. 14-16-29. Inspection of amusement devices.
Sec. 14-16-30. Additional inspections and tests.
Sec. 14-16-31. Inspections to be by licensed inspectors.
Sec. 14-16-32. Acceptance of elevator and escalator inspections made by licensed inspectors.
Sec. 14-16-33. Inspection reports.
Sec. 14-16-34. Guide for inspections and tests.

Article 4. Operating Permit for Elevators, Escalators and Dumbwaiters

Sec. 14-16-35. Required—Exception.
Sec. 14-16-36. Fee.
Sec. 14-16-37. Issuance.
Sec. 14-16-38. Term—Contents.
Sec. 14-16-39. Printing and framing.
Sec. 14-16-40. Posting.
Sec. 14-16-41. Revocation.
Sec. 14-16-42. Limited permits.

Article 5. General Safety and Equipment Requirements

Sec. 14-16-43. Safety code for elevators, dumbwaiters, escalators and moving walks—Adopted.
Sec. 14-16-44. Elevator—Application.
Sec. 14-16-45. Elevator Safety Code—Granting of exceptions.

Sec. 14-16-46. General requirements for elevator and dumbwaiter hoistways.
Sec. 14-16-47. Maintenance in safe operating condition—Responsibility of owner.
Sec. 14-16-48. Lighting and electrical equipment.
Sec. 14-16-49. Safety controls, guard rails and design standards for amusement devices.
Sec. 14-16-50. Use of elevators and escalators as required exits.
Sec. 14-16-51. Protection of floor openings for escalators.
Sec. 14-16-52. Portable hoists for elevators and dumbwaiters prohibited.
Sec. 14-16-53. Elevators for use of fire department.
Sec. 14-16-54. Sidewalk elevators and hoists.
Sec. 14-16-55. Authority to forbid use of unsafe devices.

Article 6. Minimum Safety Requirements for Elevators

Sec. 14-16-56. Definitions.
Sec. 14-16-57. Procedure when compliance with article increases weight of elevator.
Sec. 14-16-58. General maintenance requirements.
Sec. 14-16-59. Car and counterweight cables.
Sec. 14-16-60. Speed governor cables.
Sec. 14-16-61. Cable connections.
Sec. 14-16-62. Machines and machine safeties.
Sec. 14-16-63. Hydraulic machines.
Sec. 14-16-64. Penthouses and machine rooms.
Sec. 14-16-65. Pipes and wiring.
Sec. 14-16-66. Counterweights.
Sec. 14-16-67. Fire-resistant hoistways.
Sec. 14-16-68. Nonfire-resistant hoistways.
Sec. 14-16-69. Outside bars required for certain hoistway windows.
Sec. 14-16-70. Hoistway thoroughfares.
Sec. 14-16-71. Strength of hatch covers.
Sec. 14-16-72. Counterweight hoistways.
Sec. 14-16-73. Guard boxes for cables passing through floors outside hoistway.
Sec. 14-16-74. Guide rails.
Sec. 14-16-75. Overhead sheaves.
Sec. 14-16-76. Terminal limit switches and stopping devices for power elevators.
Sec. 14-16-77. Pits.
Sec. 14-16-78. Buffers.
Sec. 14-16-79. Hoistway doors or gates for power passenger elevators.
Sec. 14-16-80. Hoistway doors and gates for freight elevators.
Sec. 14-16-81. Hoistway doors or gates for hand-power passenger elevators.
Sec. 14-16-82. Hoistway door or gate interlocks.
Sec. 14-16-83. Hoistway door or gate electric contacts and mechanical locks.
Sec. 14-16-84. Mechanical locks (car-operated or hand-operated).
Sec. 14-16-85. Emergency releases.
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Sec. 14-16-91. Car floors.
Sec. 14-16-92. Power elevator car sides.
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Sec. 14-16-96. Car doors or gates for power passenger elevators.
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Sec. 14-16-99. Car emergency exits.
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Sec. 14-16-101. Glass in cars.
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Sec. 14-16-103. Adjusting and renewing guide shoes.
Sec. 14-16-104. Clearances between cars, counterweights and shaftways.
Sec. 14-16-105. Signal systems generally.
Sec. 14-16-106. Emergency signal.
Sec. 14-16-107. Platform elevators.
Sec. 14-16-108. Car and counterweight safeties and speed governors.
Sec. 14-16-109. Operation and control.
Sec. 14-16-110. Disconnecting devices.

ARTICLE 1. GENERAL PROVISIONS

Sec. 14-16-1. Definitions.

Except as otherwise expressly provided, the following words, wherever used in this chapter, shall have the following meanings:

Amusement device means such devices as have fixed parts or frames, in which are movable parts, which carry persons up or down or in a vertical, oblique or more or less circular direction in any plane, or which give motion or acceleration to such persons, as a mode of amusement.

Board means the city board of elevator rules.

Director means the director of Memphis and Shelby County office of planning and development.

Division means the Memphis and Shelby County office of planning and development.

Dumbwaiter means a hoisting and lowering mechanism equipped with a car which moves in guides in a substantially vertical direction, the floor area of which does not exceed nine square feet, the total compartment height of which does not exceed four feet, the capacity of which does not exceed 500 pounds, and which is used exclusively for carrying freight. The term "dumbwaiter" shall not include a dumbwaiter installation placed out of active service.

Elevator means a hoisting and lowering mechanism equipped with a car or platform which moves in guides in a substantially vertical direction and which serves two or more floors of a building or structure.

Elevator inspector means the elevator safety engineer or other safety engineer employed by Shelby County who is licensed to inspect elevators.

Escalator means a power-driven, inclined, continuous stairway used for raising or lowering passengers.

Freight elevator means an elevator used primarily for carrying freight and on which only the operator and the persons necessary for loading and unloading are permitted to ride.

Hoistway means a shaftway for the travel of one or more elevators or dumbwaiters. It includes the pit and terminates at the underside of the overhead machinery space, floor or grating, or at the underside of the roof where the hoistway does not penetrate the roof. For the purpose of this chapter, the term "elevator" and the term "dumbwaiter" shall also include their hoistways together with hoistway enclosures and hoistway doors or gates giving entrance thereto and the elevator or dumbwaiter machinery enclosures.

Inspection includes all tests as required by the rules and regulations prescribed under this chapter.

Installation placed out of active service means an elevator or dumbwaiter whose suspension ropes have been removed, whose car and counterweight rest at the bottom of the hoistway and whose hoistway doors are permanently boarded up or barricaded on the hoistway side, or an escalator whose power feed lines have been disconnected and whose top and bottom entrances have been permanently boarded up or barricaded.

Licensed elevator inspector means an elevator inspector who has been issued a license to inspect elevators, dumbwaiters and escalators as provided in this chapter.

New installation: new elevator, dumbwaiter or escalator means a complete elevator, dumbwaiter or escalator installation, the application for the permit for the installation or relocation of which is filed on or after January 1, 1961. All other elevators, dumbwaiters or escalators shall be deemed to be existing installations.

Passenger elevator means an elevator that is used to carry persons other than the operator and persons necessary for loading and unloading.

Sidewalk elevator or hoist means a freight elevator which operates between a sidewalk or other area exterior to the building and floor levels inside the building area, which has no landing opening into the building at its upper limit of travel, and is within the space on a street or public way usually intended for the sidewalk.

Terms not defined. Terms other than listed above shall have the same meaning as defined in the Elevator Safety Code referred to in section 14-16-43.
(Code 1967, § 49-1; Code 1985, § 46-1)

Sec. 14-16-2. Applicability.

This chapter is adopted for the regulation of elevators, dumbwaiters and escalators, and their hoistways, and amusement devices.
(Code 1967, § 49-2; Code 1985, § 46-2)

Sec. 14-16-3. Enforcement of chapter.

A. Except where otherwise provided, the office of planning and development shall have the power and it shall be its duty to enforce the provisions of this chapter and the rules and regulations recommended by the board of elevator rules and adopted by the city council.

B. It shall be the duty of the director of planning and development to direct the enforcement of this chapter through the personnel of the Memphis and Shelby County office of construction code enforcement.
(Code 1967, § 49-3; Code 1985, § 46-3)

Sec. 14-16-4. City inspector generally.

A. The city elevator inspector shall be either a mechanical engineer, elevator constructor or machinist, licensed elevator inspector, or an operating engineer experienced in the use, operation and repair of machinery and shall have a knowledge of the strength of the materials. He or she shall have had at least five years' practica1 experience in the erection, operation, or repair of such machinery or equipment.

B. The city elevator inspector shall be bonded by good and lawful security to insure the faithful performance of his or her duties, in the penalty of such amounts as the city council shall determine.

C. The city elevator inspector shall make inspection of all elevators, dumbwaiters, escalators and amusement devices as provided for in this chapter. He or she shall make daily, monthly and annual reports as the director of planning and development may require.
(Code 1967, § 49-4; Code 1985, § 46-4)

Sec. 14-16-5. Inspector's license.

A. No person shall be licensed as an elevator inspector to inspect elevators, escalators or new or altered dumbwaiters unless he or she is an employee of Shelby County authorized to inspect elevators, escalators, and dumbwaiters, or an employee authorized to inspect elevators, escalators, and dumbwaiters for any insurance company insuring such elevators, escalators and dumbwaiters in the city; provided, however, he or she has satisfied the board of elevator rules that he or she has had experience in inspecting elevators, dumbwaiters and escalators, has satisfactorily passed a written examination given by the board testing his or her knowledge of this chapter and the rules and regulations adopted by the board. The board may license a person as an elevator inspector without such examination, if he or she holds a license as an inspector of elevators for a state or city that has a standard of examination substantially equal to that provided for in this section. A written application for such examination and license shall be made upon a form to be supplied by the board upon request, and shall be accompanied by a statement of the applicant's experience together with an examination fee of $5.00. Such examination shall be given not more than six months from the date when the applicant makes such application. If the applicant has the experience and successfully passes the examinations herein specified, he or she shall, upon payment to the board of a license fee of $10.00, be entitled to a license as an elevator inspector as a matter of right and such licenses shall be renewable annually at a fee of $10.00.

B. There shall be no limit to the number of times an applicant may seek a license as herein provided, except that a rejected applicant may not make a new application within six months from the date on which he or she was notified that he or she has failed to qualify. A fee of $5.00 shall be paid to the board for each subsequent examination.

C. If the board has reason to believe that a licensed inspector is no longer qualified to hold his or her license, it shall give such inspector reasonable notice of the time

and place of a hearing at which the board shall inquire into the inspector's fitness and competency to act as an elevator inspector. If the board shall find that such inspector is no longer qualified to act as an inspector, it shall revoke his or her license forthwith, and such inspector shall not thereafter make any inspection required under this chapter.
(Code 1967, § 49-5; Code 1985, § 46-5; Ord. No. 2346, § 1(1), 12-16-1975; Ord. No. 3018, § 1(1), 6-9-1980)

Sec. 14-16-6. Construction permit for elevators, escalators and dumbwaiters.

A. A construction permit shall be obtained from the office of planning and development before erecting or constructing new elevators, dumbwaiters, and escalators, moving such apparatus from one hoistway to another, or before making alterations to existing equipment. The owner, or his or her authorized agent, shall submit an application for such permit accompanied by plans and specifications in duplicate, in such form as the division may prescribe. Where such plans and specifications indicate compliance with this chapter, the director shall issue a construction permit. No permit shall be required for repairs and replacements normally necessary for maintenance and made with parts of equivalent materials, strength and design.

B. A construction permit shall be issued by the division or its authorized representative for every new elevator, dumbwaiter or escalator installation or alteration before the installation thereof is started. The division or its authorized representative shall issue such permit if the plans and specifications required under subsection A of this section indicate compliance with the applicable rules and regulations of this chapter. If such plans and specifications indicate failure to comply with the applicable rules and regulations of this chapter, the division or its authorized representative shall give notice to the person filing the application of changes necessary for compliance therewith. After such changes have been made, the division or its authorized representative shall issue a construction permit. No permit shall be required for repairs or replacements normally necessary for maintenance.

C. The fee for construction permits required by this section shall be $15.00 for the first $1,000.00 evaluation based upon installation costs, and $8.00 for each additional $1,000.00 of evaluation or fraction thereof over the first $1,000.00.
(Code 1967, § 49-6; Code 1985, § 46-6; Ord. No. 276, § 1, 9-3-1968; Ord. No. 2346, § 1(2), 12-16-1975; Ord. No. 3018, § 1(2), 6-9-1980)

Sec. 14-16-7. Supervision of installation, relocation, alteration or repair of equipment.

The installation, relocation, alteration or repair of all elevators, dumbwaiters and escalators must be performed under the supervision of an electric elevator installer licensed by the city.
(Code 1967, § 49-7; Code 1985, § 46-7)

Sec. 14-16-8. Responsibility of person installing, relocating or altering equipment.

The person or firm installing, relocating or altering an elevator, dumbwaiter or escalator shall be responsible for its operation and maintenance until the operating permit therefor has been issued by the director of planning and development, except during the period when any limited operating permit, as defined in section 14-16-42 shall be in effect, and shall also be responsible for all tests of new, relocated and altered equipment until the operating permit therefor has been issued by the director.
(Code 1967, § 49-8; Code 1985, § 46-8)

Sec. 14-16-9. Registration of elevators, escalators and dumbwaiters.

The owner or lessee of every elevator, escalator, and dumbwaiter shall register with the office of planning and development each such elevator, escalator or dumbwaiter owned or operated by him or her, giving type, contract load and speed, name of manufacturer, its location and the purpose for which it is used and such other information as the division may require. Such registration shall be made on a form to be furnished by the division on request.
(Code 1967, § 49-9; Code 1985, § 46-9)

Sec. 14-16-10. Requirements for elevator operators.

A. Before any person may operate an elevator, except automatic operation and continuous pressure operation elevators, he or she shall be at least 18 years of age and properly qualified by passing an examination prescribed by the director of planning and development. No person shall employ or permit any person to operate any elevator who is not so qualified.

B. A fee of $1.00 shall be charged for each qualifying elevator operator who shall be issued an elevator operator's card. No such card will be issued unless the fee is included with the application.
(Code 1967, § 49-10; Code 1985, § 46-10)

Sec. 14-16-11. Requirements for amusement device operators.

Amusement devices shall be in the charge of competent persons of responsible age.
(Code 1967, § 49-11; Code 1985, § 46-11)

Sec. 14-16-12. Notice of cancellation, expiration or placing of insurance on elevators.

In case an insurance company cancels insurance upon any elevator or the policy expires and is not renewed, notice shall immediately be given to the city elevator inspector. An insurance company shall likewise notify the city elevator inspector immediately upon placing of insurance upon an elevator.
(Code 1967, § 49-12; Code 1985, § 46-12)

Sec. 14-16-13. Elevator, dumbwaiter and escalator accidents.

A. The owner of an elevator, dumbwaiter or escalator, or his or her duly authorized agent, shall immediately notify the director of planning and development of each and every accident to a person requiring the service of a physician or disability exceeding one day, or damage exceeding $100.00 to the elevator, dumbwaiter or escalator or its hoistway or its hoistway enclosure or doors, and shall afford the director every facility for investigating and inspecting such accident or damage. The director shall, without delay, after being notified, make an investigation and shall have placed on file a full and complete report of such accident.

B. Such report shall give in detail all material facts and information available and the cause or causes, so far as they can be determined, which shall be open to the public inspection at all reasonable hours. When an accident involves the failure or destruction of any part of the construction or the operating mechanism of such a device, the use of such device is forbidden until it has been made safe and until it has been reinspected and any repairs, changes or alterations have been approved by the director and a permit in such form as the director may prescribe has been issued. The removal of any part of the damaged construction or operating mechanism from the premises is for-bidden until permission to do so has been granted by the director.
(Code 1967, § 49-13; Code 1985, § 46-13)

Sec. 14-16-14. Institution of prosecutions under chapter.

Prosecutions for violations of the provisions of this chapter shall be instituted by the city elevator inspector or his or her duly authorized deputy.
(Code 1967, § 49-14; Code 1985, § 46-14)

Sec. 14-16-15. Penalty for violations of chapter—Continuing violations.

Any person, including the owner, agent, contractor, mechanic, or worker violating any of the terms or provisions of this chapter, or failing to obey any order of the director or the city elevator inspector issued in pursuance of the enforcement of this chapter, shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be subject to punishment as provided in section 1-24-1 and, where such violation is of continuing nature, each day such person violates any such provision or fails to conform to any such provision of this chapter or any such order of the director or of the city elevator inspector, shall be deemed a separate offense.
(Code 1967, § 49-15; Code 1985, § 46-15)

ARTICLE 2. BOARD OF ELEVATORS RULES

Sec. 14-16-16. Created—Composition—Appointment and terms of members.

A. There is created within the office of planning and development a board of elevator rules, consisting of five members who shall be appointed by the mayor and approved by the city council. At the expiration of the initial members' terms of office, they, or their successors identifiable with the same interest respectively as hereinafter provided, shall be appointed for terms of four years each.

B. Of the five appointed members of the board, one shall be a representative of the manufacturers of elevators used within the city, one shall be a representative of labor, one shall be a representative of an insurance company authorized to insure the operation of elevators within the city, one shall be a representative of owners and lessees of elevators within the city, and one shall be a representative of the public at large.
(Code 1967, § 49-25; Code 1985, § 46-27)

Sec. 14-16-17. Filling of vacancies.

Upon the death, resignation or incapacity of any member of the board, vacancies for the unexpired term shall be filled in the same manner as provided for the original appointment of members with a representative of the same interest with which his or her predecessor was identified.
(Code 1967, § 49-26; Code 1985, § 46-28)

Sec. 14-16-18. Removal of members.

The mayor may at any time remove any member of the board of elevator rules for incompetency, inefficiency or dereliction of duty.
(Code 1967, § 49-27; Code 1985, § 46-29)

Sec. 14-16-19. Election of chairperson.

The board shall elect one of its members to serve as chairperson.
(Code 1967, § 49-28; Code 1985, § 46-30)

Sec. 14-16-20. Secretary.

The elevator inspector shall serve as secretary of the board.
(Code 1967, § 49-29; Code 1985, § 46-31)

Sec. 14-16-21. Meetings.

The board shall meet at the call of the chairperson at least four times each year, and it shall have other such meetings as the director of planning and development may decide are necessary at such places as the director shall provide.
(Code 1967, § 49-30; Code 1985, § 46-32)

Sec. 14-16-22. Required vote and approval of decisions and rulings.

No approval, decision or ruling of the board shall be effective unless supported by the vote of at least three members thereof and approved by the director of planning and development.
(Code 1967, § 49-31; Code 1985, § 46-33)

Sec. 14-16-23. General powers and duties—Rules and regulations.

A. It shall be the duty of the board to license elevator inspectors as provided for in this chapter, and the board shall have the power and it shall be its duty to consult with engineering authorities and organizations studying and developing safety codes, including the American Standards Association, and to determine what rules and regulations governing the qualifications, training and duties of elevator operators and the operation, maintenance, construction, alteration and installation of elevators, dumbwaiters and escalators, and the inspection of new and existing installations are adequate, reasonable and necessary to provide for the safety of life, limb and property, and to protect the public welfare, and upon such determination the board shall recommend to the city council the adoption, amendment or repeal of rules and regulations as follows:

1. Rules and regulations for the maintenance and operation of all elevators and escalators;
2. Rules and regulations for the construction of new elevator, dumbwaiters and escalators;
3. Rules and regulations for the alteration of existing elevators, dumbwaiters and escalators;
4. Rules and regulations prescribing minimum safety requirements for all existing elevators, dumbwaiters and escalators;
5. Rules and regulations prescribing the fees for construction permits, operating permits, acceptance inspections, initial inspections and periodic inspections for new and existing elevators, dumbwaiters and escalators.

B. Before any such rule or regulation shall be recommended by the board of elevator rules to the city council, a public hearing shall be held thereon, notice of which shall be published not less than 15 days nor more than 30 days prior to the date assigned for such hearing. The rules recommended by the board shall be amended or repealed in the same manner in which they are adopted.

C. No alteration or amendment shall be made to the rules and regulations recommended by the board unless public hearings are held as provided in this section. Any person engaged in the inspection, alteration, construction, repair or operation of elevators, dumbwaiters or escalators or any owner or lessee thereof, may, from time to time, by written petition to the director of planning and development, request that rules and regulations recommended by the board under this section be altered or amended or the director himself or herself may request such alterations or amendments. The director shall refer such petition to the board for its consideration and recommendation, and the board shall hold public hear-

ings with respect to the subject matter of the petition, and shall thereafter approve or disapprove such petition and report its action to the director. Such alterations or amendments approved by the board shall become effective when approved by the city council.
(Code 1967, § 49-32; Code 1985, § 46-34)

Sec. 14-16-24. Appeals to board.

Any person aggrieved by an order or act of the inspector or chief elevator inspector or director of planning and development under this chapter may, within 15 days after notice thereof, appeal from such order or act to the board, which shall, within 30 days thereafter, hold a hearing of which at least ten days' written notice shall be given all interested parties. The board shall, within 30 days after such hearing, issue an appropriate order either approving or disapproving said order or act. A copy of such order by the board shall be served upon all interested parties.
(Code 1967, § 49-33; Code 1985, § 46-35)

ARTICLE 3. INSPECTIONS AND TESTS

Sec. 14-16-25. Required inspections defined.

The inspections required by sections 14-16-27 and 14-16-28 shall be deemed "required inspections" within the meaning of this chapter.
(Code 1967, § 49-45; Code 1985, § 46-51)

Sec. 14-16-26. Generally.

All new, altered and existing elevators, dumbwaiters and escalators, except installations placed out of active service, shall be tested and inspected in accordance with the schedule set forth in this article.
(Code 1967, § 49-44; Code 1985, § 46-52)

Sec. 14-16-27. New, relocated or altered elevators, escalators and dumbwaiters.

A. The person or firm installing, relocating or altering elevators, dumbwaiters or escalators shall notify the office of planning and development in writing at least seven days before completion of the work and shall subject the new, moved or altered portions of the equipment to the tests specified in Part IX, section 900, Rules 900.01 to 900.5 inclusive and section 901, Rule 901.1 of the Elevator Safety Code, insofar as the equipment mentioned therein is required or provided to show that such equipment conforms to the requirements specified.

B. All new, altered and relocated elevators, dumbwaiters and escalators shall be inspected for compliance with the requirements of this chapter, before the operating permit required by this chapter is issued. Such inspection shall conform to the requirements of Part IX, section 900, Rule 900.la and 900.lc and section 901, Rule 901.la of the Elevator Safety Code, insofar as the equipment mentioned therein is required or provided, to show that such equipment conforms to the requirements specified. Such inspections shall be made by an inspector licensed by the city and employed by Shelby County who shall also witness the tests specified in this section.
(Code 1967, § 49-46; Code 1985, § 46-53)

Sec. 14-16-28. Periodic inspection and testing of all elevators and escalators.

A. The owner or lessee of every passenger elevator and escalator shall cause it to be inspected and tested every sixth calendar month, and the owner or lessee of every freight elevator shall cause it to be inspected and tested every twelfth calendar month following the month in which the inspection and test required by section 14-16-27 was made; provided that, inspection and test of elevator car safeties, counterweight safeties, where provided and overspeed governors and tests of escalator safety devices shall only be required every twelfth calendar month following the month in which the inspection and test required by section 14-16-27 was made, unless the inspection indicates that it should be made at lesser intervals and provided further that any such inspection and test of a passenger elevator, freight elevator or escalator may be made within the first 15 days of the month following the calendar month during which such inspection and test is due.

B. The inspection required by this section shall be made by elevator inspectors licensed by the city.

C. Periodic inspections and tests under this section shall conform to the following requirements of the Elevator Safety Code:

1. Electric elevator—to Part IX, section 900, Rules 900.6a to 900.6i inclusive;
2. Escalators—to Part IX, section 900, Rule 900j;
3. Hydraulic elevators—to Part IX, section 901, Rule 901.2 provided that inspections and tests

of car safeties and of counterweight safeties, where provided, of elevators haying roped-hydraulic driving machines shall conform to Part IX, rules 900.6f, 900.6g and 900.6h.

(Code 1967, § 49-48; Code 1985, § 46-54)

Sec. 14-16-29. Inspection of amusement devices.

Amusement devices shall be inspected before the season or engagement period opens and/or at least once a year.

(Code 1967, § 49-49; Code 1985, § 46-55)

Sec. 14-16-30. Additional inspections and tests.

A. Car safeties, counterweight safeties where provided, overspeed governors and oil buffers of electric elevators and car safeties, counterweight safeties, where provided and overspeed governors of hydraulic elevators having roped-hydraulic driving machines, shall be tested, as required by Part IX, section 900, Rule 900.7d, of the Elevator Safety Code, once every five years following the date of the initial test required by section 14-16-27 for elevators having traction driving machines and once every two and one-half years following the date of the initial test required by such sections for elevators having drum type or roped-hydraulic drum machines. These tests shall be in lieu of one of the periodic tests of such devices required by Part IX, section 900, Rules 900.6h and 900.9i respectively, of the Elevator Safety Code.

B. Hydraulic elevator pressure tanks and piston rods of roped-hydraulic elevators shall, in addition to the periodic inspections and tests required by Part IX, section 901, Rule 901.2, of the Elevator Safety Code, be cleaned, inspected and tested once every three years, following the date of the initial tests and inspection required by section 14-16-27, as required by Part IX, section 901, Rule 901.3d of the Elevator Safety Code.

C. The inspections required by this section shall be made by an elevator inspector licensed by the city, who shall also, except as hereinafter provided, witness the tests. The tests required by this section shall be made by a person competent to perform such service, provided that where such licensed inspector is not available at the time the required tests are made, the person conducting such tests shall submit to the office of planning and development an affidavit, upon a form furnished by the division, certifying that the tests have been made and the results thereof.

D. In addition to inspections specifically provided for in this article, the director of planning and development may designate a licensed inspector in the employ of the city to make such additional inspections as may be required to enforce the provisions of this chapter. No fee shall be charged for such inspection.

(Code 1967, § 49-50; Code 1985, § 46-56)

Sec. 14-16-31. Inspections to be by licensed inspectors.

All required inspections made under the requirements of this article shall be made by, or in the presence of, inspectors qualified and licensed as prescribed in section 14-16-5, except as otherwise specifically provided.

(Code 1967, § 49-51; Code 1985, § 46-57)

Sec. 14-16-32. Acceptance of elevator and escalator inspections made by licensed inspectors.

The city elevator inspector shall have authority to accept in lieu of his or her own official inspections, except acceptance inspections, inspections of elevators and escalators made by a licensed inspector.

(Code 1967, § 49-52; Code 1985, § 46-58)

Sec. 14-16-33. Inspection reports.

A. A report of every required inspection shall be filed with the office of planning and development by the inspector making such inspection on a form approved by the division, within 20 days after the inspection or test has been completed. For the inspections required by sections 14-16-27 and 14-16-28, the report shall include all information required by the division to determine whether the elevator, dumbwaiter or escalator is in a safe operating condition and whether the owner or lessee of the elevator or escalator has complied with the rules and regulations which are applicable under the provisions of this chapter. For the inspection required by section 14-16-27, the report shall, in addition, indicate whether the elevator, dumbwaiter or escalator has been installed in accordance with the construction permit issued by the office of planning and development under this chapter and meets the requirements of the applicable rules of the elevator safety code.

B. Where an elevator is inspected by a licensed elevator inspector of a duly accredited insurance company which is the primary insurer of the conveyance and which is licensed to do business in this city, a copy of

each inspection report of such elevator shall be filed by the insurance company with the city elevator inspector within 20 days of such inspection.
(Code 1967, § 49-53; Code 1985, § 46-59)

Sec. 14-16-34. Guide for inspections and tests.

The American National Standard Practice for the Inspection of Elevators, Escalators and Moving Walks (Inspector's Manual), ANSI A17.2-1979, Fifth Edition, is adopted as a guide for making the inspection and tests required by this article.
(Code 1967, § 49-54; Code 1985, § 46-60; Ord. No. 2887, § 1, 6-26-1979)

ARTICLE 4. OPERATING PERMIT FOR ELEVATORS, ESCALATORS AND DUMBWAITERS

Sec. 14-16-35. Required—Exception.

No elevator, dumbwaiter or escalator shall be operated by the owner or lessee thereof, unless an operating permit has been issued pursuant to this article; provided, however, that, no operating permit shall be required for elevators or escalators which are located in a highly restricted area owned and operated by the United States Government.
(Code 1967, § 49-65; Code 1985, § 46-76)

Sec. 14-16-36. Fee.

The fee for operating permits required by this article shall be:

For each hand-power freight	$16.00
For each power freight or escalator	$16.00
For each passenger	$16.00

(Code 1967, § 49-66; Code 1985, § 46-77; Ord. No. 276, § 2, 9-3-1968; Ord. No. 2346, § 1(3), 12-16-1975; Ord. No. 3018, § 1(3), 6-9-1980; Ord. No. 3155, § 1, 9-8-1981)

Sec. 14-16-37. Issuance.

A. Operating permits shall be issued by the director of planning and development within the time limits hereafter specified, to the owner or lessee of every new and existing elevator, dumbwaiter and escalator where the inspection report indicates compliance with this chapter; provided that, no permit shall be issued if the fees required by this article have not been paid. Such time limits shall be 30 days for existing elevators and escalators and three days for new elevators, dumbwaiters and escalators, after the required date for filing the inspection report required by section 14-16-33, unless such time is extended by the director of planning and development.

B. If the inspection report required by section 14-16-33 indicates failure of compliance with the applicable requirements of this chapter or with the detailed plans and specifications approved by the office of planning and development under section 14-16-6, the director shall give notice to the owner or lessee or the person filing such plans and specifications of changes necessary for compliance therewith. After such changes have been made, the director shall issue an operating permit.
(Code 1967, § 49-67; Code 1985, § 46-78)

Sec. 14-16-38. Term—Contents.

The operating permit required by this article shall be issued for the period covered by the inspection required by sections 14-16-27 and 14-16-28, and shall state the contract load and speed for such elevator, dumbwaiter or escalator.
(Code 1967, § 49-68; Code 1985, § 46-79)

Sec. 14-16-39. Printing and framing.

Permits issued under this article shall be printed eight inches wide by four inches high and suitably framed in metal, with a clear transparent cover.
(Code 1967, § 49-69; Code 1985, § 46-80)

Sec. 14-16-40. Posting.

The permit required by this article shall be posted in a conspicuous location in the elevator car or cage, or in the platform and on or near the dumbwaiter or escalator.
(Code 1967, § 49-70; Code 1985, § 46-81)

Sec. 14-16-41. Revocation.

If the director of planning and development has reason to believe that any owner or lessee to whom an operating permit has been issued under this article is not complying with the applicable rules and regulations of this chapter, he or she shall so notify such owner or lessee, and shall give notice of a date for a hearing thereon to such owner or lessee. If, after such hearing, he

or she shall find that such owner or lessee is not complying with such rules and regulations, he or she shall revoke such permit.
(Code 1967, § 49-71; Code 1985, § 46-82)

Sec. 14-16-42. Limited permits.

A. The director of planning and development may permit the temporary use of any elevator, dumbwaiter or escalator for passenger or freight service during its installation or alteration, under the authority of a limited operating permit issued by him or her for each class of service. In the case of elevators, such limited permit shall not be issued until the elevator shall have been tested under contract load, and the car safety and terminal stopping equipment have been tested to determine the safety of the equipment for construction purposes and until permanent or temporary guards or enclosures are placed on the car and around the hoistway at the landing entrances on each floor. Landing-entrance guards shall be provided with locks that can be released from the hoistway side only. Automatic and continuous-pressure elevators shall not be placed in temporary operation from the landing push buttons unless door locking devices and/or interlocks required by the Elevator Safety Code are installed and operative.

B. Limited permits shall be issued for a period not to exceed 30 days and may be renewed at the discretion of the director.

C. Where a limited permit is issued, a notice bearing the information that the equipment has not been finally approved shall be conspicuously posted on, near or visible from each entrance to such elevator, dumbwaiter or escalator.
(Code 1967, § 49-72; Code 1985, § 46-83)

ARTICLE 5. GENERAL SAFETY AND EQUIPMENT REQUIREMENTS

Sec. 14-16-43. Safety code for elevators, dumbwaiters, escalators and moving walks—Adopted.

The following supplementary code shall be considered a portion of this chapter: American National Standard Safety Code for Elevators, Dumbwaiters, Escalators and Moving Walks, ANSI A17.1-1978, Ninth Edition and ANSI A17.1a-1979 Supplement, herein referred to as the "Elevator Safety Code," as approved by the Standards Committee, the Secretariats (formerly "Sponsors"), and on May 4, 1978, by the American National Standards Institute, Incorporated.
(Code 1967, § 49-83; Code 1985, § 46-101; Ord. No. 867, § 24A(2), 12-13-1969; Ord. No. 2887, § 1, 6-26-1979)

Sec. 14-16-44. Elevator—Application.

A. *Generally.* The requirements of the Elevator Safety Code adopted by section 14-16-43 shall apply to all installations of elevators, dumbwaiters and escalators, as hereinafter specified and except as otherwise provided in this chapter.

B. *New installations.* All new elevators, dumbwaiters and escalators shall be designed and installed in accordance with the requirements of the Elevator Safety Code.

C. *Relocations.* All relocations of elevators, dumbwaiters and escalators, made after January 1, 1961, shall meet the requirements of the Elevator Safety Code.

D. *Existing installations.* Existing elevators, dumbwaiters and escalators, legally installed before January 1, 1961, may be used without being reconstructed to comply with the requirements of the Elevator Safety Code, except such rules of such code as specifically refer to such installations.

E. *Alterations generally.* Existing installations may be altered to obtain the advantage of any provisions of the Elevator Safety Code, provided the safety requirements covering such provisions are met. Alterations of existing installations shall conform to Part XI of such code, or to the following exceptions:

1. Hoistway gates for freight elevators in existing buildings may be five feet six inches high with maximum two-inch openings, if approved by the city elevator inspector;

2. Permission granted by the board of elevator rules.

F. *Major combination of alterations.* When any combination of alterations or changes is made, constituting more than 50 percent of the elevator installation or hoistway construction, as determined by the office of planning and development, the entire installation shall conform to the requirements of the Elevator Safety Code.

G. *Repairs and replacements.* Repairs and replacements of damaged, broken or worn parts shall conform to the requirements of Part XI, Rule 1100.3 of the Elevator Safety Code.
(Code 1967, § 49-84; Code 1985, § 46-102)

Sec. 14-16-45. Elevator Safety Code—Granting of exceptions.

The board of elevator rules only shall have power to grant exceptions from the requirements of the code adopted by section 14-16-43, and to permit the use of other devices and methods, at its discretion, within the limitations stated in such code.
(Code 1967, § 49-85; Code 1985, § 46-103)

Sec. 14-16-46. General requirements for elevator and dumbwaiter hoistways.

A. *Generally.* Elevator and dumbwaiter hoistways shall be enclosed in accordance with the requirements of this section.

B. *Fireproof/semi-fireproof heavy timber, protected noncombustible and ordinary masonry construction.* In fireproof, semifireproof, heavy timber, protected noncombustible and ordinary masonry construction hoistways shall have noncombustible enclosures of at least two hour fire-resistance rating. Exceptions: in public buildings of heavy timber, protected noncombustible or ordinary masonry construction when not over two stories in height, enclosures of hoistways may be one-hour construction, except for enclosures in basements and cellars, which shall be two-hour noncombustible construction.

C. *Unprotected noncombustible and woodframe buildings.* In unprotected noncombustible and woodframe buildings, hoistway enclosures shall be at least one-hour noncombustible construction.

D. *Protection for openings.* All openings shall be protected with approved fire doors or approved fire windows as required. In one hour construction wooden doors at least one and three-eighths inches in thickness may be used.

E. *Emergency door.* Emergency doors in hoistways shall be provided at intervals of not over 36 feet for express elevators making long runs without stops in accordance with Rule 110.1a of the Elevator Safety Code.

F. *Roofs or tops.* Roofs or tops of hoistways which extend to the top floor of the building shall be of equal fire resistant construction as required for the roof of the building, except where an elevator is accepted as a required exit.

G. *Ventilation.* Hoistways shall be ventilated equal to one percent of the area of the hoistway which may be through the penthouse or by mechanical ventilation for existing elevators. Elevators hereafter installed shall conform to Rule 100.4 of the Elevator Safety Code.

H. *Hoistways not extending to lowest floor or to roof.* A hoistway that does not extend to the lowest floor shall be enclosed at its lowest point with a floor construction equal to the required enclosure construction. When it does not extend through or to the roof construction, it shall have a top equal to the required enclosure construction.

I. *Hoistways in existing buildings.* In buildings existing before January 1, 1961, where hoistways are not constructed as required in this chapter, the director may modify the requirements in accordance with conditions and good practice, but at least the openings shall have substantial guards or gates as specified, and shall be protected from fire communicating from floor to floor, at least by approved trap doors. Such traps shall be arranged to open and close by the action of the elevator's movement and shall form a substantial floor covering or they may be suspended in the open position provided they are supported by approved type fusible links.
(Code 1967, § 49-86; Code 1985, § 46-104)

Sec. 14-16-47. Maintenance in safe operating condition—Responsibility of owner.

A. Every elevator, escalator, dumbwaiter and amusement device shall be maintained by the owner or lessee in a safe operating condition so that it conforms to the provisions of this chapter and to rules and regulations adopted by the city council.

B. The owner or his or her duly appointed agent shall be responsible for the safe operation and proper maintenance of an elevator, dumbwaiter or escalator after the operating permit has been issued by the director of planning and development, and also during the period of effectiveness of any limited operating permit as defined

in section 14-16-42(B). The owner shall also be responsible for making all initial and periodic tests required by this chapter.
(Code 1967, § 49-87; Code 1985, § 46-105)

Sec. 14-16-48. Lighting and electrical equipment.

Lighting shall be by electricity and together with all other electrical equipment shall be in conformity with the city/county electrical code and to the National Electrical Code as approved by the American Standards Association and published by the National Board of Fire Underwriters. The disconnect switch and all electric control devices shall be located so as to be accessible at all times. All electrical equipment shall be protected from falling objects and mechanical injury.
(Code 1967, § 49-88; Code 1985, § 46-106)

Sec. 14-16-49. Safety controls, guard rails and design standards for amusement devices.

A. Amusement devices shall be equipped with approved safety controls. The cars or receptacles which persons are permitted to occupy shall have handrails of sufficient number and height or other approved appliances or safeguards, to prevent persons from being thrown therefrom or coming in contact with structural members or other obstructions.

B. In all cases the design of such devices and construction shall be equal in structural safety to the requirements for elevators for comparable members or parts.
(Code 1967, § 49-89; Code 1985, § 46-107)

Sec. 14-16-50. Use of elevators and escalators as required exits.

The use of elevators and escalators for required exits shall be permitted only when in conformity with the requirements of the city/county building code, except that no escalator will be accredited as a required means of exit which has a vertical travel of more than two stories or 35 feet.
(Code 1967, § 49-90; Code 1985, § 46-108)

Sec. 14-16-51. Protection of floor openings for escalators.

Floor openings for escalators shall be protected against the passage of flame, smoke or gases in the event of fire in accordance with requirements approved by the board of elevator rules.
(Code 1967, § 49-91; Code 1985, § 46-109)

Sec. 14-16-52. Portable hoists for elevators and dumbwaiters prohibited.

No portable power chain or cable hoist shall be installed to raise or lower an elevator car or platform, or dumbwaiter car or platform.
(Code 1967, § 49-92; Code 1985, § 46-110)

Sec. 14-16-53. Elevators for use of fire department.

In buildings equipped with one or more elevators, at least one elevator shall be kept in readiness at all times for fire department use, in event of fire.
(Code 1967, § 49-93; Code 1985, § 46-111)

Sec. 14-16-54. Sidewalk elevators and hoists.

Sidewalk elevators or hoists are prohibited and permits for the same shall not be granted except by the city council, in cases where a refusal would cause the property owner undue hardship, due to the impracticability of other installation. (Sidewalk elevators are not recommended, since their use involves accident hazards which cannot easily be eliminated. It is preferable to use freight elevators of standard type operating inside the building line.) Where permitted, they shall conform to the requirements of Part IV of the Elevator Safety Code.
(Code 1967, § 49-94; Code 1985, § 46-112)

Sec. 14-16-55. Authority to forbid use of unsafe devices.

A. The elevator inspector may forbid the use of any elevator, dumbwaiter, escalator or amusement device deemed unsafe on account of defects or of an incompetent operator, until his or her lawful orders have been complied with and he or she shall have the authority to order the power cut off from any such defective device.

B. If the inspection report required by section 14-16-33 indicates that an elevator or escalator is in an unsafe condition, so that its continued operation may be dangerous to the public safety, then the director of planning and development may, at his or her discretion,

require the owner or lessee to discontinue the use of such elevator or escalator until it has been made safe and in conformity with the rules and regulations of this chapter.
(Code 1967, § 49-95; Code 1985, § 46-113)

ARTICLE 6. MINIMUM SAFETY REQUIREMENTS FOR ELEVATORS

Sec. 14-16-56. Definitions.

For the purpose of this article, the following definitions shall apply:

Capacity is the load which the elevator is designed and equipped adequately to handle as determined by the rules and regulations of this article and/or as designated by the supervising inspector.

Capacity speed is the maximum velocity of the car in feet per minute (F.P.M.) in the up direction with capacity load in the car.

Shall means that the provisions are mandatory in all cases.

Should means that the provisions are advisory on all existing installations and that the provisions are mandatory whenever there is effected a major or substantial alteration or change in the installation.
(Code 1967, § 49-106; Code 1985, § 46-126)

Sec. 14-16-57. Procedure when compliance with article increases weight of elevator.

Where compliance with this article increases the weight of the elevator car, additional weight shall be added to the counterweight, where considered necessary by the director, in order to secure safe operation of the elevator. In every such case, all parts affected by the increased weight shall be checked to determine whether they will safely sustain the increased load and where necessary shall be reinforced or replaced with parts of adequate strength.
(Code 1967, § 49-107; Code 1985, § 46-127)

Sec. 14-16-58. General maintenance requirements.

All parts of elevators, including machines, cars, hoistways, hoistway landing opening protective devices, etc. and all appurtenances shall be maintained in a structurally sound, firmly secured and sufficient condition to perform safely the work which they are intended to do and sufficiently clean to prevent fire hazards.
(Code 1967, § 49-108; Code 1985, § 46-128)

Sec. 14-16-59. Car and counterweight cables.

A. *Material.* Cables for power elevator cars and counterweights shall be of iron or steel.

Exception: the division of public service and the supervising inspector may permit marlin covered steel cables where liability of corrosion or other hazard exists.

B. *Tags.* Wherever cables are renewed, a metal tag shall be attached to the new cables at their fastenings. On this tag shall be stated the diameter, rated ultimate strength and material of the cables, the date of the cable installation and the name of the person or firm who installs the cables.

C. *Diameter.* Hoisting cables for power elevators shall not be less than one-half-inch in diameter.

D. *Number of cables for drum machine.* No winding drum power elevator shall be used for passenger service and, when practical, for freight service, unless it is equipped with two or more hoisting cables.

E. *Splicing prohibited.* No cable shall be lengthened or repaired by splicing.

F. *Top clearances.* Whenever car or counterweight cables are replaced, the car and/or counterweight top clearances shall not be reduced below the requirements of section 14-16-104(E).

G. *Cable rating.* Safe working loads for cables shall be based on the manufacturers' rated ultimate strength of the cables and should not exceed those permitted for new elevators. In no case shall the factor of safety of cables for power elevators be less than six for freight elevators or less than seven for passenger elevators. For hand power elevators, the factor of safety for the cables shall be not less than four. In no case shall the factor of safety of new cables be less than those of the cables replaced.

H. *Cable strength.* Where the material and rated ultimate strength of cable is not known, the loads shall be limited to the loads allowed for iron cables of the same diameter.
(Code 1967, § 49-109; Code 1985, § 46-129)

Sec. 14-16-60. Speed governor cables.

A. *Material.* Cables for speed governors, when such cables are replaced, shall be of iron, steel, monel metal, phosphor bronze or covered iron or steel.

Exception: elevators with hatch covers.

B. *Diameter.* Speed governor cables shall be not less than three-eighths inch in diameter.

C. *Tiller rope.* Tiller rope may be used only for the portion of the governor cables wound on the safety drum.

D. *Tags.* New speed governor cables shall be tagged as provided in section 14-16-59(B).

E. *Clearance.* Speed governor cables shall run clear of governor jaws during normal operation of the car.

F. *Altered cable.* Wherever the diameter, construction and/or material of the speed governor cable is changed, approval of the proposed change shall be obtained from the supervising inspector and the car safety shall be retested with the altered governor cable in use before the elevator is replaced in service.
(Code 1967, § 49-110; Code 1985, § 46-130)

Sec. 14-16-61. Cable connections.

A. *Fastenings.* Cable ends, when cables are replaced, shall be fastened to the car or counterweight by spliced eyes, by return loops or by individual tapered zinc or babbitted sockets. The use of wire rope clips or claims shall be prohibited except on the inside of drums.

Exceptions:

1. Platform and sidewalk elevators;
2. Car counterweight cables or hydraulic elevators;
3. Hand power elevators.

B. *Number of wraps on drum.* All cables anchored to a winding drum shall have not less than one complete turn of cable left on the drum when the car or counterweight has reached the extreme limit of its overtravel.

C. *Reshackling for drum machines.* Hoisting and back drum counterweight cables of overhead drum machines shall be reshackled once every year, except where the cables are provided with an approved type emergency clamp device, to prevent the car from falling if the regular cable connection at the car and counterweight shall fail.

D. *Fastening drum.* The winding drum ends of car and counterweight cables shall be secured to the winding drum by clamps on the inside of the drum or as provided in subsection B of this section.
(Code 1967, § 49-111; Code 1985, § 46-131)

Sec. 14-16-62. Machines and machine safeties.

A. *Set screw fastening.* No set screw fastenings shall be used on power elevators in lieu of keys or pins on connections subject to torque or tension.

B. *Friction gearing.* No friction gearing or clutch mechanism shall be used for connecting the drum or sheaves to the main driving gear of power elevators.

C. *Cast-iron teeth.* No worn or gear having cast-iron teeth shall be used for replacement purposes on a worn and gear driven power machine.

D. *Brakes.* No power elevator machine except hydraulic machines shall be operated without brakes, which apply directly to the hoisting machines and are arranged to apply automatically by springs or gravity when the operating device is in the "STOP" position.

E. *Electrically released brakes.* All electric elevators, except electro-hydraulic elevators which are operated and/or controlled by magnetically operated contractors shall be equipped with electrically released brakes.

F. *Belt or chain drive.* No belt or chain driven power machine with a car traveling in excess of 30 feet shall be used for any passenger elevator unless the machine is equipped with an electrically released brake and a broken belt or broken chain safety switch of the non-automatic-reset type.

G. *Slack cable device.* Winding drum power machines shall be equipped with a slack cable device to apply the brake and stop the machine if the car should be obstructed while descending.

Exceptions:

1. Platform elevators with a travel not exceeding 15 feet;
2. Sidewalk elevators with a travel not exceeding 30 feet.

H. *Slack cable switches.* Slack cable switches located on the top of the car shall be of the enclosed type.

I. *Chain drive.* Chains for chain-driven machines when replaced shall be of the belt type with multiple links.

J. *Reverse phase relay.* Power elevator machine motors operated by polyphase alternating current shall be equipped with a reverse phase relay or equivalent protection.

K. *Power for hand elevator.* No electrically or mechanically driven friction gearing or clutch mechanism shall be used to operate any hand power elevator.

L. *Fuse or circuit-breaker.* No wire or other current-carrying device shall be substituted for the proper fuse or circuit breaker in an elevator circuit.
(Code 1967, § 49-112; Code 1985, § 46-132)

Sec. 14-16-63. Hydraulic machines.

A. *Gas release.* Cylinders of hydraulic elevator machines shall be provided with a means for releasing air or other gas.

B. *Relief valve.* Each positive-acting pump connected to the pressure tank of hydraulic elevators shall be equipped with a relief valve (or valves) so installed that it cannot be shut off. The relief valve shall be of sufficient size and so located as to pass the full capacity of the pump at full speed without exceeding the safe working pressure of the pump or tank.

C. *Automatic bypass.* Positive-acting elevator pumps, unless equipped with pressure regulators which control the motive power, shall be equipped with automatic by-passes.

D. *Hydrostatic test.* Pressure tanks, piping, pumps, valves, cylinders, pistons and packings of a hydraulic elevator shall be maintained to withstand successfully a hydrostatic test wherein the maximum testing pressure is 50 percent over the normal working pressure. Pressure tanks must have adequate openings for internal inspection purposes.

E. *Water-gauge glass.* Each pressure tank shall be equipped with a water-gauge glass, having brass valves and fittings attached directly to the tank and so located as to show the level of the water when the tank is more than half filled.

F. *Pressure gauge.* Each pressure tank shall be provided with a correctly indicating pressure gauge having a capacity not less than 1½ times the normal working pressure allowed in the tank.

G. *Inspection gauge.* Each pressure tank shall be provided with a one-quarter inch pipe-size valved connection for attaching an inspector's gauge while the tank is in operation.

H. *Tank guard.* Discharge tanks shall be adequately covered or screened.

I. *Packing.* All packings used in connection with a hydraulic elevator shall be maintained sufficiently tight to prevent any uncontrolled movement of the elevator.

J. *Compliance with rules.* Hydraulic elevators operated from pressure tanks where the fluid pressure is obtained by directly admitting steam, air or other gas to the tank, shall comply with all the rules covering hydraulic elevators.

K. *Water level.* The water level in a pressure tank shall be maintained at about two-thirds of the capacity of the tank.
(Code 1967, § 49-113; Code 1985, § 46-133)

Sec. 14-16-64. Penthouses and machine rooms.

A. *Access.* Safe and convenient access to penthouses and machine rooms shall be provided and maintained.

B. *Use as thoroughfare prohibited.* Elevator machine rooms and penthouses shall not be used as thoroughfares.

C. *Machine room doors.* Doors to machine rooms shall be arranged to permit the doors to be opened from within the machine room without keys.

D. *Machine guards.* When power elevator machines are not located in an elevator machine room, the machines shall be surrounded by a substantial grill enclosure at least six feet high.

Exceptions: machines located in a pump, engine or machine room in the charge of an attendant and/or in any room secured against unauthorized access. Machines located six feet or more above the floor.

E. *Light.* Permanent provision for adequate artificial light shall be made in machine rooms and penthouses. The electric light switch shall be within easy reach of the machine room entrance.

F. *Disconnect switch.* A manually operated multi-pole disconnect switch shall be provided in the machine room of every electric elevator located adjacent to and visible from the hoisting machine or motor generator set. No provision shall be made to close the disconnect switch from any other part of the building.

G. *Floor.* Penthouses used as machine rooms and machine rooms shall be provided with a floor. If metal bar grading is used for flooring, the flooring should be designed to reject a three-quarter inch round ball. If perforated sheet steel is used for flooring, the openings should be designed to reject a ball 1⅛ inch in diameter.

H. *Machine room storage.* Machine rooms shall not be utilized as general storage space and no flammable liquids shall be stored or kept in such rooms.

I. *Enclosure for machinery compartment.* When a compartment which contains machinery for operating an elevator is not separated from the hoistway by fireproof or semifireproof construction, it shall be enclosed with partitions and ceiling of not less than two-hour noncombustible construction and all openings shall be protected with approved fire doors, approved fire shutters or approved fire windows, as the case may require, except that, where one-hour construction is permitted for hoistway enclosures it may have similar construction.
(Code 1967, § 49-114; Code 1985, § 46-134)

Sec. 14-16-65. Pipes and wiring.

A. *Electric apparatus enclosure.* All live parts of electric apparatus in or connected with the elevator shaftway shall be suitably enclosed to protect against accidental contact.

B. *Electric grounds.* All machine frames, controller frames, control ropes and metal conduits shall be effectively grounded.

C. *Maximum voltage.* The maximum voltage or rated system permitted an the operating device of power elevators shall be 300 volts to ground for automatic operation, elevators having operating devices in the car and at landings and 750 direct current or 600 volts alternating current for other types of operating devices.
(Code 1967, § 49-115; Code 1985, § 46-135)

Sec. 14-16-66. Counterweights.

A. *Defective counterweight.* Broken or cracked sections of counterweights shall be replaced.

B. *Counterweight rods.* Counterweight hanger rods and/or tie rods shall firmly support and secure the counterweight section in place.

C. *Counterweight guides.* Counterweights shall run in guide rails or guide boxes and these guides shall confine the counterweights to a definite lane of travel in the hoistway and shall extend from the pit to the underside of the overhead sheave beams.

D. *Guard for counterweight cables.* Cables extending through counterweights shall be guarded by metal or fiber sleeves attached to the cables.
(Code 1967, § 49-116; Code 1985, § 46-136)

Sec. 14-16-67. Fire-resistant hoistways.

A. *When required.* Fire-resistant enclosures and doors shall be provided where required by local laws and ordinances.

B. *Non-fire-resistant materials.* No non-fire-resistant structural materials shall be added on the inside of any fire-resistant hoistway.

C. *Bevel plates.* Projections extending inward from the general surface of the shaftway and which are opposite a car entrance of a power elevator (except interlocks, door closers, door operating devices and signal devices) shall be beveled on the under side or shall be guarded with metal plates or with wood faced with metal. The angle of such bevels shall be not less than 60 degrees from the horizontal.

D. *Recesses in shaftway.* Recesses (other than windows and landing openings) in the general surface of the shaftway, which are opposite a car opening of a power elevator shall be furred out with fire-resistant materials substantially flush with the general surface of the shaftway.

Exception: elevators with car doors or gates equipped with electric contacts.

E. *Window guards.* Windows which are opposite a car opening of a power elevator shall be furred out with wire grille or expanded metal with smooth edges substantially flush with the general surface of the shaftway and the openings should reject a two inch ball.

Exception: elevators with car doors or gates equipped with electric contacts.
(Code 1967, § 49-117; Code 1985, § 46-137)

Sec. 14-16-68. Nonfire-resistant hoistways.

A. *Enclosure generally.* Where fire-resistant hoistways are not required by local laws or ordinances, hoistways shall be enclosed to a height of not less than six feet from each floor on all sides not used for landing openings and should be extended to the ceiling. Where material is stored adjacent to the hoistways the enclosure shall extend to the ceiling.

B. *Automatic trap doors.* Hoistways which are equipped with automatic trap doors for fire retardation purposes shall be enclosed as per subsection A of this section, or shall be enclosed with a substantial railing at least 42 inches high with a tow board approximately six inches high on all sides not used for landing openings. Such railings shall be located not less than 12 inches from the line of the shaftway.

C. *Height of stairway enclosure.* When an elevator is located adjacent to a stairway, all portions of the hoistway enclosure adjoining the stairway shall be not less than six feet above each stair tread (measured at the stair tread nosing) and should be extended to the ceiling.

D. *Door lintel to ceiling.* The hoistways of power elevators shall be enclosed on the sides used for loading and unloading from the door lintel to the ceiling at each floor except at the top floor.

Exceptions:

1. Elevators having car doors or gates equipped with electric contacts;
2. Freight elevators used primarily to carry automobiles, industrial trucks or industrial railroad cars and upon which only the operator and persons necessary to unload the freight are permitted to ride;
3. Sidewalk and platform elevators;
4. Hand elevators;
5. Elevators equipped with automatic trap doors.

E. *Materials.* Enclosures shall be building walls, solid or latticed partitions, grille work, metal grating, expanded metal with smooth edges or wood. Openings should be designed to reject a two inch ball unless the enclosure is located within one inch of the moving car, counterweight or a sliding door or gate, in which case the enclosure shall be adequately protected.

F. *Recesses.* Recesses (other than windows) in the hoistway enclosures which are opposite a car opening of a power elevator shall be furred out substantially flush with the general surface of the hoistway. Furring materials shall be as in subsection E of this section.

Exception: elevators having car doors or gates equipped with electric contacts.

G. *Windows.* Windows in the hoistway which are opposite a car opening of a power elevator shall be furred out as in subsection F of this section.

Exception: elevators having car doors or gates equipped with electric contacts.

H. *Projections in hoistway.* Projections in the hoistway opposite a car opening of a power elevator shall be protected as provided in section 14-16-67.
(Code 1967, § 49-118; Code 1985, § 46-138)

Sec. 14-16-69. Outside bars required for certain hoistway windows.

Windows in the hoistway enclosure less than seven floors above the sidewalk level or less than three floors above the roof of an adjacent building shall be fitted on the outside with vertical metal bars not less than five-eighths inch in diameter and spaced not more than ten inches apart.

Note: this is the usual method of indicating on the exterior of the building the location of an elevator hoistway. It serves to warn firefighters not to place ladders against such windows.
(Code 1967, § 49-119; Code 1985, § 46-139)

Sec. 14-16-70. Hoistway thoroughfares.

A. *Across hatch covers.* No thoroughfares shall be permitted across the hatch covers of a hoistway whether inside or outside of a building.

Exception: the hatch covers of a sidewalk elevator.

B. *Under hoistway.* There shall be no thoroughfares under the hoistway of any elevator unless all the following conditions exist:

1. Adequate buffers are provided;
2. The car is provided with car safeties meeting the requirements of section 14-16-108;
3. The counterweight is provided with speed governor operated safeties.

Exceptions: counterweights equipped with broken rope, instantaneous type safeties where the contact speed is not in excess of:

a. 250 f.p.m. and the counterweight is 2000 lb. or less,

b. 200 f.p.m. and the counterweight is 3000 lb. or less,

c. 160 f.p.m. and the counterweight is 4000 lb. or less,

d. 125 f.p.m. and the counterweight is 5000 lb. or less,

e. 100 f.p.m. irrespective of the weight of the counterweight.

4. There shall be a structure under the hoistway sufficiently strong to withstand without failure the impact of the car with contract load or the impact of the counterweight when either is descending at capacity speed or at governor trip ping speed where a governor operated safety is used.

C. *Through pit.* There shall be no thoroughfares through a hoistway pit.
(Code 1967, § 49-120; Code 1985, § 46-140)

Sec. 14-16-71. Strength of hatch covers.

A. Hatch covers, when closed, shall be able to support a uniformly distributed load of at least 40 pounds per square foot.

B. Sidewalk hatch covers of the hinged or vertical-lift type shall be able to support a uniformly distributed load of 300 pounds per square foot.
(Code 1967, § 49-121; Code 1985, § 46-141)

Sec. 14-16-72. Counterweight hoistways.

A. *Outside counterweight hoistway.* Hoistways for counterweights located outside of elevator hoistways shall be kept enclosed for the full height of the shaftway.

Exception: if such hoistways are located outside of the building the shaftway for the counterweight shall be guarded to a height of ten feet above the ground, with solid construction.

B. *Counterweight pit guard.* Counterweight hoistways located in the enclosed shaftway of power elevators shall be guarded from a point one foot above the pit floor to a point seven feet above the floor of its own pit or above the floor of the adjacent pit.

Exceptions:

1. When compensating chains or cables are attached to the underside of the counterweight;

2. Light weight looped chains may be used where the clearances do not permit the installation of a guard.

C. *Counterweight shaftway doors.* Doors leading to counterweight shaftways shall be kept locked.
(Code 1967, § 49-122; Code 1985, § 46-142)

Sec. 14-16-73. Guard boxes for cables passing through floors outside hoistway.

Where cables pass through floors outside of the hoistway enclosure, such cables should be guarded to a height of not less than six feet with cable guard boxes.
(Code 1967, § 49-123; Code 1985, § 46-143)

Sec. 14-16-74. Guide rails.

A. *Defective rails.* Where guide rails are sufficiently worn to prevent the proper operation of the car safety device, they shall be replaced.

B. *Length of rails.* Guide rails shall extend continuously the full length of the car and/or counterweight hoistway.
(Code 1967, § 49-124; Code 1985, § 46-144)

Sec. 14-16-75. Overhead sheaves.

Overhead sheaves of power elevators shall not be fastened to the underside of the overhead support beams by bolts in tension.

Exception: secondary and deflecting sheaves of traction type elevators.
(Code 1967, § 49-125; Code 1985, § 46-145)

Sec. 14-16-76. Terminal limit switches and stopping devices for power elevators.

A. *Limit switch construction.* Limit switches or stopping devices located or constructed in a manner which interferes with their proper operation shall be altered to function properly.

B. *Normal limit switches.* Normal terminal limit switches or stopping devices (directional limits) shall be provided on all elevators and shall be arranged to automatically stop the car and to function independent of the operating devices and also independent of such final terminal limit switches or stopping devices as required by subsection C of this section, and further, should, when traveling at any speed attained during normal operation, bring the car to rest within the overtravels, but the buffers may be compressed.

Exceptions:

1. All elevators with hand rope or rod operating devices and equipped with normal terminal limit stop balls fastened to the rope or rod which are arranged to center the operating device and, if winding drum machine equipped shall also be provided with a machine automatic normal terminal stopping device to automatically apply the brake and center the operating device.

2. All elevators with wheel or lever operating devices and with winding drum machines shall be provided with a machine automatic normal terminal limit stopping device to automatically center the directional controls and apply the brake.

3. Hydraulic elevators with a car speed in excess of 150 feet per minute shall be equipped with an automatically operated stop valve (or valves) which is operated by the movement of the car or the machine and which is independent of the normal control valve (or valves).

C. *Final limit switches.* Final terminal limit switches or stopping devices shall be provided on all electric elevators in addition to the normal terminal limits or stopping devices and shall be arranged to automatically prevent all movement of the car by the operating devices and to stop the car independent of the normal terminal limit switches or stopping devices and further, should, when traveling at any speed attained during normal operation, bring the car to rest within the overtravels, but the buffers may be compressed.

Exceptions:

1. Electro-hydraulic elevators;

2. Electric platform or sidewalk elevators having winding drum machines with a normal terminal machine automatic stopping device and also with either normal limit switches in the hoistway or with normal limit stopping devices on the operating rope, chain or rod.

D. *Location of normal and final limits.* Normal and final terminal limits or stopping devices on electric elevators may be located on the car or in the hoistway if operated by the movement of the car, or they may be located in the machine room if mounted on and operated by a stopping device automatically connected to the car with no dependence on friction as a driving means, pro vided that, on winding drum machine equipped elevators:

1. If the normal terminal limit switches are in the hoistway or on the car, the final terminal stopping devices shall be in the machine room and operated by a machine automatic stopping device;

2. If the final terminal limit switches are in the hoistway or on the car, the normal terminal stopping devices shall be in the machine room and operated by a machine automatic stopping device;

3. If operated by polyphase alternating current and the car speed is in excess of 75 feet per minute, final stopping devices should be in the machine room and operated by a machine automatic stopping device and should open the elevator service circuit.

Exception: machines with direct current brakes and direct current main line switches operated by final terminal limit switches in the hoistways.

E. *Cams for limit switches.* The cam or cams for operating limit switches shall be of sufficient length to hold the switches in the open position when the car is in contact with the overhead structure or is resting on the fully compressed buffers.

Exception: cams which operate nonautomatic reset limit switches.

F. *Magnetically operated contactors.* Electric drum type elevators which are operated and/or controlled by magnetically operated contactors and which have a capacity speed in excess of 100 feet per minute, shall have independent motor control contactors operated by the normal and final terminal limit switches.
(Code 1967, § 49-126; Code 1985, § 46-146)

Sec. 14-16-77. Pits.

A. Elevator pits shall be kept clean and dry. Water or other liquid which may accumulate in the pit shall be drained off or pumped off.

B. Elevator pits shall not be used for storage space. (Code 1967, § 49-127; Code 1985, § 46-147)

Sec. 14-16-78. Buffers.

A. *Generally.* All buffers shall be maintained in an upright position and directly under the bumper striker plates affixed to the car or counterweights. The pit striker plate shall be kept centered under the buffer in cases where the inverted buffer is attached to the counterweight.

B. *Oil buffers.* Oil buffers shall be kept continuously filled with oil to the level indicated on the reservoir.

C. *Required oil.* Whenever oil is added, oils equivalent to those recommended by the buffer manufacturer for use in the buffer shall be used.

D. *Required buffers.* Where elevator pits are not equipped with bumpers and where the depth of the pit will permit, spring bumpers with tops at least 12 inches above the bottom of the pit when compressed, shall be installed in the elevator pit.

Exception: hydraulic plunger elevators, platform elevators, sidewalk elevators, hand elevators, and all elevators with a car speed of 50 feet per minute or less. (Code 1967, § 49-128; Code 1985, § 46-148)

Sec. 14-16-79. Hoistway doors or gates for power passenger elevators.

A. *Automatic fire door.* No automatic fire door shall lock any landing opening in the shaftway enclosure from the shaftway side nor any exit leading from any hoistway landing to the outside of the building.

B. *Landing opening.* Landing openings in a required fire-resistant hoistway shall be protected by solid horizontally sliding, swinging or combination sliding and swing doors.

C. *Maximum clearance hoistway door to threshold.* For automatic operation elevators the distance between the hoistway side of the hoistway door or gate and the edge of the landing threshold should be not more than two and one-half inches. The shaftway face of each shaftway door wherein the above measurement is exceeded shall be furred out to within one-half-inch of the edge of the landing threshold or provided with equivalent protection to prevent an adult or child from standing in the space between the closed hoistway door or gate and the elevator car door or gate. (See also section 14-16-96(E))

In a non-fire-resistant hoistway, the hoistway openings shall be protected by doors, as heretofore specified or by horizontally swinging gates which will reject a two inch ball.

Doors and gates shall guard the full width and height of the landing openings.

Exception: scissors or pantograph gates, which reject a three-inch ball when closed, may be used at basement landing openings nonfire-resistant hoistways.

D. *Hoistway doors over 100 feet per minute.* Hoistway doors or gates for power passenger elevators operated in excess of 100 feet per minute shall be provided with door interlocks which conform to section 14-16-82. In addition, the hoistway doors of all hydraulic passenger elevators shall be provided with a door closer or the elevator shall be equipped with devices which will compensate for the creeping of the car away from the landing opening while the hoistway doors or gates are opened. Lever or wheel operated power elevators shall not be permitted to have mechanic interlocks for the hoistway doors or gates where the interlocks are of a type which may mechanically lock the operating device in the run position.

E. *Hoistway doors under 100 feet per minute.* Hoistway doors or gates for power passenger elevators operated at 100 feet per minute or less shall have interlocks which conform with section 14-16-82, except that on such elevators existing contacts and mechanical locks which conform with section 14-16-83, may be continued in service until either their replacement or renewal is required or else the elevator is altered.

F. *Hoistway doors locked out of service.* Hoistway doors or gates shall be arranged to be opened by hand from the shaftway side, except when locked out of service. Main exit and bottom terminal hoistway doors or gates shall not be locked out of service while the elevator is in operation.

G. *Manual or mechanical locks.* Where hoistway door or gate interlocks on mechanical locks are:

1. Manually unlocked, these locking devices shall be arranged to prevent the opening of the hoistway doors or gates from the landing side except as provided in section 14-16-89.

2. Mechanically or electrically unlocked, the locking devices shall be arranged to prevent the opening of the hoistway doors or gates from the landing side unless the car is within the landing zone, except as provided in section 14-16-89.

H. *Power hoistway doors.* Power closed hoistway doors or gates in elevators employing a type of operation which does not require an operation in the car shall be driven by a mechanism so designed and set that the force necessary to prevent the closing of the door or gate shall not exceed 30 pounds and further, that the hoistway door or gate, plus the car door or gate, plus all parts rigidly connected thereto, shall not develop a kinetic energy in excess of seven foot pounds, computed for the average closing speed or shall be provided with other suitable protecting measures.

I. *Hoistway door vision panels.* Hoistway doors provided with vision panels shall have the openings protected with clear wire glass in cases where the hoistway is of fire-resistant construction, and in all other cases with either clear wire glass or may be protected by wire grille screens of not less than number 13 steel wire gauge or metal gratings of equivalent strength which are designed to reject a two-inch ball.
(Code 1967, § 49-129; Code 1985, § 46-149)

Sec. 14-16-80. Hoistway doors and gates for freight elevators.

A. *Generally.* Each landing opening in a freight elevator hoistway shall be continuously equipped with a properly working door or gate.

Where fire-resistant hoistways are required by local laws and ordinances, the landing door shall be either:

1. Automatic fire doors which are kept normally open, but which are closed automatically by the action of heat, provided hoistway gates equipped with locking devices meeting the requirements of section 14-16-86, are installed in addition to the doors; or

2. Nonautomatic fire doors without hoistway gates, provided the doors are provided with locking devices meeting the requirements of section 14-16-86(A) or (B).

Exception: the upper landing of sidewalk elevators.

B. *Maximum opening of gate.* Hoistway gates made of grille, lattice or other openwork shall be designed to reject a ball two inches in diameter.

C. *Maximum clearance from hoistway door to threshold.* Hoistway doors and gates shall be located within four inches of the edge of the landing threshold.

Exceptions:

1. Elevators provided with car gates equipped as required by section 14-16-97;

2. Top landing doors or gates;

3. Hand elevators.

D. *Guides.* Hoistway doors and gates of the sliding type shall operate in guides or rails.

E. *Width and height of doors.* Hoistway doors should guard the full width and height of the landing opening.

F. *Minimum size of gates.* Hoistway gates shall guard the full width of the landing opening and shall extend from within two inches of the landing threshold to a height of not less than five feet six inches above the threshold.

Exceptions:

1. The top landing gates, where the head room makes it impractical to install gates five feet six inches high, may extend from within two inches of the landing threshold to a height of not less than 42 inches above the threshold if set back at least 12 inches from the threshold.

2. Landing openings of freight elevators may be equipped with gates which extend from within two inches of the landing threshold to a height of at least 42 inches if set back at least 12 inches from the edge of the threshold or shall be guarded as specified in Rule 124 of the Elevator Safety Code.

3. The bottom landing of hand sidewalk elevators may be equipped with single bar gates 42 inches high if set back at least 12 inches from the edge of the landing threshold.

G. *Self-closing gates.* Manually opened self-closing gates shall be of the vertically sliding type only and shall be permitted only on power elevators which can be operated from the car only and on hand-power elevators.

H. *Full automatic gates.* Full automatic gates shall be permitted only at terminal landings on power freight elevators which can be operated only from the car and which have a capacity speed not in excess of 100 feet per minute and at all landings of power freight elevators which can be operated only from the car and which have a capacity speed not in excess of 100 feet per minute and used primarily for carrying automobiles and on hand elevators.

Exception: existing full automatic gates on freight elevators which can be operated only from the car and having a capacity speed not exceeding 100 feet per minute may be retained in use at all landings provided that such gates shall, when renewed or replaced, be subject to the restrictions provided in this subsection.

I. *Closing automatic gates.* Full automatic gates shall not be closed by the direct mechanical action of the car, but may be retarded, while closing, by the car.

J. *Vision panel requirements.* Hoistway doors provided with vision panels shall have the openings protected with clear wire glass in cases where the hoistway is of fire-resistant construction and in all other cases with either clear wire glass or may be protected by wire grille screens of not less than number 13 steel wire gauge or metal gratings of equivalent strength which are designated to reject a two-inch ball.
(Code 1967, § 49-130; Code 1985, § 46-150)

Sec. 14-16-81. Hoistway doors or gates for hand-power passenger elevators.

A. *Generally.* Hoistway doors or gates for hand-power passenger elevators shall meet the requirements of section 14-16-80.

B. *Sign.* The word "elevator" shall be conspicuously displayed on the landing side of the doors if they are not equipped with interlocks.

C. *Interlocks.* Hoistway doors for hand-power passenger elevators shall be equipped with interlocks unless:

1. Hoistway gates which close when the car leaves the landing are installed in addition to the hoistway doors; or
2. The hoistway doors are made in two parts, one above the other, the lower part extending approximately 30 inches above the floor and arranged to be opened only after the upper part has been opened and which will be closed by the closing of the upper part; or
3. The hoistway doors are equipped with two spring locks or latches, one located not less than six feet above the door.

(Code 1967, § 49-131; Code 1985, § 46-151)

Sec. 14-16-82. Hoistway door or gate interlocks.

A. *Recognized systems.* This chapter recognizes two systems of hoistway door or gate interlocks:

1. The door unit system in which the interlock is arranged to prevent the operation of the elevator machine by the operating device, in a direction to move the car away from the landing, unless the hoistway door or gate at that landing at which the car is stopping or is at rest, is locked in closed position;
2. The hoistway unit system, in which the interlocks are arranged to prevent the operation of the elevator machine by the operating device unless all doors or gates are locked in closed position.

With either of the above systems, the interlocks shall prevent the opening of the hoistway doors from the landing side, except as permitted by section 14-16-89, unless the car is at rest within the landing zone or coasting through the landing zone with its operating device in the stop position.

Exception: the interlock shall not prevent the operation of the car by the operating device with the hoistway door or gate open when the emergency release is in temporary use, nor when the car is being moved within the leveling zone by a car leveling device.

Note: no electrically released, gravity or spring applied rope gripper or lock to prevent the movement of the operating rope or rod shall be recognized as a component device in any interlock system, except where the elevator may be operated only from the car and when the operating devices are inaccessible from the landing side of the hoistway doors or gates when the same are in the closed position.

B. *Door system.* The door unit system may be used only where there is a regular operator on the car and where the car can be operated only from inside the car.

C. *Manual hoistway doors.* Power operated elevators where the hoistway doors are not equipped with a door closer and/or no operator is required on the car shall have hoistway doors considered in the closed position only when the door is within three-eighths inch of the lock jamb (or the edge of the opposite door in cases where bi-parting doors are used).

D. *Power closed hoistway door.* For power elevators which are operated only from the car: hoistway doors equipped with door closers shall be considered closed (and the car may be started) when the door is within four inches of the lock jamb (or the face of the opposite door in cases where bi-parting doors are used), if from this position and any other up to the fully closed position, as defined in subsection C of this section, the door (or doors, if bi-parting) cannot be opened from the landing side to create a door opening more than four inches wide, provided that the door closer will eventually close the door (or doors, if bi-parting) as defined in subsection C of this section.

E. *Functioning of interlocks.* The interlocks for the hoistway doors shall function so that the doors shall be in the closed position as defined in subsection C or D of this section, before the car may be operated by the operating device to move the car away from the landing except as provided in subsection H of this section.

F. *Contacts.* Interlock contacts shall be positively opened and the functioning of the interlock to prevent the movement of the car by the operating devices shall not be solely dependent on the action of a spring or springs, nor gravity, nor upon the closing of an electric circuit. If an electric circuit is used its interruption shall prevent the movement of the car by the operating devices.

G. *Interlocks inaccessible.* Interlocks shall be so located as to be normally inaccessible from the landing side of the closed hoistway doors or gates.

H. *Hoistway interlocks minimum of 100 feet per minute.* Hoistway doors or gates for power elevators with a contact speed not in excess of 100 feet per minute may have the interlock service arranged to permit the car to be operated away from the landing a distance of not over 12 inches before the locking operation takes place, provided the following requirements are met:

1. If the locking operation fails to take place as specified, further movement of the car will open the operating circuit;
2. The car cannot be started by the operating devices until the hoistway door is closed;
3. The car platform is equipped with a substantial vertical face flush with its outer edge and extending at least 12 inches below the car platform.

I. *Existing power hoistway doors.* On existing power opened and/or closed hoistway doors equipped with door closers and interlocks which do not meet the requirements of subsection D of this section, hoistway doors shall be considered in the closed position and the car may be started only when the door is within three-quarters inch of the lock jamb (or the edge of the opposite door, if bi-parting doors), provided that the closer will eventually close the door (or doors, if bi-parting) as defined in subsection C of this section.

Note: no new application which conforms with subsection I of this section will be allowed.
(Code 1967, § 49-132; Code 1985, § 46-152)

Sec. 14-16-83. Hoistway door or gate electric contacts and mechanical locks.

A. *Recognized systems.* This chapter recognizes two systems of hoistway door or gate electric contacts:

1. The door unit system, in which the contact is arranged to prevent the operation of the car by the operating devices unless the hoistway door or gate at which the car is standing is closed in position to be locked;
2. The hoistway unit system, in which the contacts are arranged to prevent the operation of the car by the operating devices unless all the hoistway doors or gates are closed in position to be locked.

Exception: the opening of the contact shall not prevent the operation of the car by the operating device when the emergency release is in temporary use, nor when the car is being moved within the leveling zone by a car-leveling device.

Note: no electrically released gravity or spring applied rope gripper or lock to prevent the movement of the operating rope or rod shall be recognized as a component device in any hoistway door or gate electric contact system, except where the elevator may be operated only for the car and when the operating devices are inaccessible from the landing side of the hoistway doors or gates when the same are in the closed position.

B. *Door unit system.* The door unit system may be used only when there is a regular operator on the car and where the car can be operated only from inside the car.

C. *Sliding hoistway doors.* Sliding hoistway doors or gates provided with contacts and mechanical locks shall be considered in the closed position when within two inches of full closure (and the car may be started), provided the mechanical locks are equipped with double hook or multiple hook latches which are arranged to prevent opening the doors or gates more than two inches after the car has left the landing zone.

Note: mechanical locks which are not provided with the double hook or multiple hook latches are acceptable only if they are of a type that have the hoistway door or gate locked in the closed position before the contact circuit is closed.

D. *Swinging or combination hoistway doors.* Swinging or combination slide and swing hoistway doors or gates provided with contacts and mechanical locks shall be considered in the closed position when within one inch of full closure (and the car may be started), provided the mechanical locks are equipped with double or multiple hook latches which are arranged to prevent opening the hoistway doors or gates more than one inch after the car has left the landing zone.

E. *Design of hoistway electric contacts.* Hoistway door or gate electric contacts shall be designed so that they are positively opened by the locking bar, or by a level, or by some other device attached to and operated by the door or gate. The functioning of a hoistway door or gate electric contact to prevent the movement of the car by the operating devices shall not be dependent solely on the action of a spring or springs, nor solely on gravity, nor shall it be dependent on the closing of an electric circuit. If springs are used, they shall be in compression. The interruption of the electric circuit shall prevent the movement of the car by the operating devices.

F. *Inaccessible contacts and locks.* Contacts and mechanical locks shall be so located as to be normally inaccessible from the landing side of the closed hoistway doors or gates.

G. *Mechanical locks for hoistway doors.* Mechanical locks shall prevent the opening of the hoistway doors or gates from the landing side unless the car is within the landing zone, except as permitted by subsections C and D of this section and except by emergency keys, if provided, as permitted by section 14-16-89.
(Code 1967, § 49-133; Code 1985, § 46-153)

Sec. 14-16-84. Mechanical locks (car-operated or hand-operated).

A. Mechanical locks shall be constructed with double hook or multiple hook latches.

Exceptions:

1. Mechanical locks which are constructed as defined in the note under section 14-16-83(C);

2. Mechanical locks for gravity closed gates may have single hook latches.

B. Mechanical locks shall be so located or so guarded as to be normally inaccessible from the landing side of the closed hoistway door or gate.

C. Mechanical locks shall meet the requirements of section 14-16-83(G).
(Code 1967, § 49-134; Code 1985, § 46-154)

Sec. 14-16-85. Emergency releases.

Emergency releases are not required, but where provided shall meet the following requirements:

A. They shall be equipped with a break-glass cover and a means for breaking the glass.

B. They shall be equipped with continuous pressure type buttons or switches.

C. They shall not function when the car can be moved by operating devices located at the landing.
(Code 1967, § 49-135; Code 1985, § 46-155)

Sec. 14-16-86. Freight elevator hoistway door or gate locking devices.

A. *Locking devices for automatic, CPPB.* For automatic or continuous pressure operation, electric or electrohydraulic elevators, locking devices shall meet the following requirements:

1. Vertical sliding hoistway doors or gates:
   a. If the capacity speed is in excess of 150 feet per minute shall be equipped with interlocks which conform to section 14-16-82(A)(2).
   b. If the capacity speed is not in excess of 150 feet per minute shall be equipped with interlocks which conform to section 820(A)(2) or with hoistway door electric contacts and mechanical locks which conform to section 14-16-83(A)(2).
2. Horizontal slide or swing or combination slide and swing hoistway doors or gates shall be equipped with interlocks which conform to section 14-16-82(A)(2).

Exception: where the capacity speed is not in excess of 100 feet per minute existing contacts and mechanical locks (provided same conform to section 14-16-83(A)(2)), may be continued in service until such time as their renewal or replacement is required or until the elevator is altered.

B. *Interlock requirements for manual or power hoistway doors.* For power elevators which are operated only from the car, manually or power operated hoistway doors or gates shall be equipped with interlocks which meet the requirements of section 14-16-82, or shall be equipped with electric contacts and mechanical locks which meet the requirements of section 14-16-83.

C. *Mechanical locks for self-closing and fully automatic hoistway gates.* For power elevators operated only from the car and for hand elevators, manually opened, self-closing and fully automatic vertically sliding hoistway gates shall be equipped with mechanical locks which meet the requirements of section 14-16-84.
(Code 1967, § 49-136; Code 1985, § 46-156)

Sec. 14-16-87. Gate or door counterweights.

A. All gate or door counterweights shall operate in guides or boxes from which they cannot be dislodged.

B. The bottoms of all guides or boxes shall be constructed to retain the counterweight if the counterweight means of suspension breaks. Car door or gate counterweight guides shall be guarded on their car enclosure side.
(Code 1967, § 49-137; Code 1985, § 46-157)

Sec. 14-16-88. Landing threshold for passenger and freight elevators.

A. *Maintenance.* Landing thresholds and ramps leading to landing thresholds shall be maintained so that persons will not readily slip or trip thereon.

B. *Tracks.* All tracks on a landing threshold shall have the tops of the rails substantially flush with the landing threshold.

C. *Landing lighting.* Landings shall be properly illuminated.
(Code 1967, § 49-138; Code 1985, § 46-158)

Sec. 14-16-89. Service and emergency keys for hoistway doors or gates.

Service and emergency keys are not required, but where provided they shall meet the following requirements:

A. Service keys shall be given only to authorized persons and may open any or all the hoistway doors or gates only when the car is within the landing zone of the door which is arranged to be opened by the service key.

B. Emergency keys shall be kept in a break-glass case adjacent to the elevator opening nearest to the main entrance to the building or shall be kept by the superintendent or person in charge of the building in a location where they are not accessible to unauthorized persons.

C. Emergency keys shall be of a type not readily duplicated and may open any hoistway doors or gates which are arranged to be opened by the emergency key regardless of the position of the car in the hoistway.
(Code 1967, § 49-139; Code 1985, § 46-159)

Sec. 14-16-90. Car slings and platform frames.

A. Elevator car slings shall be rectangular and platform frames shall be substantially level.

B. All power elevators shall have steel car frames and outside platform frames of steel.

Exceptions:

1. Elevators having their hoist ropes attached at or below the car platform may have wood frames and wood outside platform frames if a steel suspension beam of approved size, to which the hoist ropes are attached, is installed below the platform.

2. Existing wood car frames and platforms with wood outside frames having the hoist ropes attached to the car crosshead may be retained in use provided a steel beam of approved size is installed under the car platform extending the full width of the car and secured by "U" bolts or other approved means passing over the top of the crossheads or are provided with steel tierods of an approved size extending continuously over the top of the crosshead and bolted underneath the side members of the car platform or unless other approved means are provided to prevent separation of the platform from the crosshead.

3. When existing wood car frames and platforms are replaced or removed, the new car frames and the outside platform frames shall be of steel.

4. Platform elevators having a rise of 15 feet or less.

(Code 1967, § 49-140; Code 1985, § 46-160)

Sec. 14-16-91. Car floors.

A. Elevator car floors shall be maintained so that persons will not readily slip or trip thereon.

B. Where tracks are located on an elevator car floor the tops of the rails shall be substantially flush with the general surface of the car floor.
(Code 1967, § 49-141; Code 1985, § 46-161)

Sec. 14-16-92. Power elevator car sides.

A. *Generally.* Elevator car sides of solid or openwork, wood or metal construction shall be provided on all sides of passenger or freight power elevators which are not used for loading or unloading except sidewalk and platform elevators. If of openwork construction, openings should be designed to reject a two-inch ball, unless the enclosure is located within, one inch of the hoistway wall or the counterweight, in which case the enclosure shall be protected by a mesh which should reject a one-half-inch ball.

B. *Height.* Power freight elevator car enclosures should extend to a height of not less than six feet above the car floor and in no case shall they be less than 66 inches high. All power passenger elevator car enclosures shall extend from the car floor to the car top. That portion of the car enclosure which is in front of the counterweight shall extend to the car top or to the top of the crosshead where no car top is provided.
(Code 1967, § 49-142; Code 1985, § 46-162)

Sec. 14-16-93. Power elevator car tops.

Power passenger elevators shall be equipped with a solid or openwork car top which will reject a 1½-inch ball. Car tops shall be constructed to sustain a load of not less than 150 pounds applied at any place on the car top.
(Code 1967, § 49-143; Code 1985, § 46-163)

Sec. 14-16-94. Power operated sidewalk elevator tops.

Power operated sidewalk elevators shall be provided with either flat metal tops of metal frames or arched metal bows of sufficient strength to open the hatch covers, or be provided with a device that will stop the car before a person riding on the car platform could be injured, if the hatch cover is not in the open position when the car is operated in the up direction.
(Code 1967, § 49-144; Code 1985, § 46-164)

Sec. 14-16-95. Cars to have only one compartment.

Elevator cars shall not have more than one compartment.
(Code 1967, § 49-145; Code 1985, § 46-165)

Sec. 14-16-96. Car doors or gates for power passenger elevators.

A. *Requirements when provided with electric contacts.* Car doors or gates provided with car door or gate electric contacts shall protect each entrance of a power passenger elevator car, shall be arranged to guard the full width of the opening and shall extend from within two inches of, and up to a height of not less than six feet above the car platform flooring.

B. *Scissor or pantograph gate.* Car gates of the scissors or pantograph type on automatic operation elevators shall not be opened under power for spice in excess of nine inches from the full closure position.

C. *Driving mechanism when operator not used.* Power closed car doors or gates, in elevators employing a type of operation which does not require a operator in the car, shall be driven by a mechanism designed and set that the force necessary to prevent the closing of the door or gate shall not exceed 30 pounds and further, that the car door or gate, plus the hoistway door or gate, plus all parts rigid connected thereto shall not develop a kinetic energy in excess of seven foot pounds computed the average closing speed, or shall be provided with other suitable protecting measures.

D. *Relationship to hoistway doors.* For automatic operation passenger elevators having power closed or automatically released self-closing car doors or gates, and manually closed or self-closing hoistway doors, the closing of the car door or gate shall be prevented unless the hoistway door is closed in a position to be locked.

E. *Maximum clearance from car gate to hoistway gate for automatic or CPPB.* For automatic operation or continuous pressure operation, the minimum clearance space between the car doors or gates and the hoistway doors or gates shall not exceed 5½ inches. Where this distance is exceeded the hoistway doors or gates shall be altered to comply with section 14-16-79(C).

F. *New or replaced gates.* Where existing car gates are replaced or new gates installed, the gates shall be constructed to reject a three-inch ball.

G. *Sliding doors.* Sliding car doors may be solid, may be provided with open grille or bars which should be designed to reject a two-inch ball or may be provided with glass or open grille vision panels. Grilles, bars or vision panels may extend the full height of the car door panel. Clear wire or laminated glass shall be used for glass vision panel replacements.
(Code 1967, § 49-146; Code 1985, § 46-166)

Sec. 14-16-97. Car doors or gates for power freight elevators.

A. *Generally.* A car door or gate provided with a car door or gate electric contact shall be provided at each entrance to a power freight elevator where the construction does not comply with any of the following:

1. Section 14-16-67(D) or (E);
2. Section 14-16-68(D), (F) and (G);
3. Section 14-16-80(C);
4. Section 14-16-104(C).

Car doors or gates equipped with car doors or gate electric contacts shall be provided at each entrance to power elevators having automatic operation.

B. *Self-closing mechanically locked gate.* A self-closing mechanically locked car gate or door may be provided to guard the opening in the elevator car adjacent to the side of a hoistway which has but one landing opening; provided that, the elevator machine is not equipped with an electrically released brake and that the car speed is 75 feet per minute or less.

C. *Horizontal or vertical sliding gates.* Car doors or gates for power freight elevators shall be of the horizontally or vertically sliding type, shall guard the full width of the car opening and should extend from within two inches of and up to six feet above the car platform flooring.

D. *Collapsible gates.* Collapsible car gates for power freight elevators should be designed to reject a four and one-half-inch ball when the gate is fully closed.

E. *Sliding doors.* Sliding car doors may be solid, or may be provided with open grille or bars which should be designed to reject a two-inch ball or may be provided with glass or grille vision panels. Grilles, bars or vision panels may extend the full height of the door panel. Clear wire or laminated glass shall be used for glass vision panel replacements.

F. *Replacing or installing gates.* Where new car gates are installed or existing gates replaced, they shall comply with the dimensions specified in subsections C and D of this section.
(Code 1967, § 49-147; Code 1985, § 46-167)

Sec. 14-16-98. Car door or gate electric contacts.

A. *Arrangement.* Car door or gate electric contacts shall be arranged to prevent the starting of the car by the operating device unless the car door or gate is within two inches of full closure.

Exceptions:

1. The contact when the car door or gate is opened shall not prevent the starting of the car by the operating device if the emergency release is in

temporary use, nor prevent the movement of the car within the leveling zone by the car leveling device.

2. Automatic operation elevators may be operated with an open car gate if there is no passenger in the car, provided the elevator car is equipped with a floating platform and all safety requirements for this type of control and construction are complied with. See section 14-16-109(I).

3. In cases where both the car door or gate is equipped with a closer, and the hoistway door or gate is equipped with a door closer complying with section 14-16-82(D), and the elevator is operated only from the car, the contact may permit the starting of the elevator by the operating device when the car door or gate is within four inches of full closure.

B. *Functioning.* Car door or gate electric contacts shall be positively opened and the functioning of the contact to prevent the starting of the car shall not be solely dependent upon the action of a spring or springs, nor upon gravity, nor upon the closing of an electric circuit. If an electric circuit is used its interruption shall prevent the starting of the car by the operating devices.

C. *When prohibited.* Car door or gate electric contacts shall not be permitted on power elevators equipped with machines with mechanically released brakes.

D. *Rope gripper or lock.* No electrically released, gravity or spring applied rope gripper or lock to prevent the movement of the operating rope or rod shall be recognized as a component device in any car or gate electric contact system, except where the elevator may be operated only from the car and when the operating devices are inaccessible from the landing side of the hoistway doors or gates when the same are in the closed position.
(Code 1967, § 49-148; Code 1985, § 46-168)

Sec. 14-16-99. Car emergency exits.

A. *Required.* Each elevator car equipped with a top shall be provided with either a car top or car side emergency exit.

B. *Dimension for top exits.* Top emergency exit openings, where provided, should be not less than 14 inches by 22 inches. Where new exit openings are installed, they shall, where space conditions permit, conform to the dimensions specified.

C. *Opening top exits.* Top emergency exit covers, where provided, shall be arranged so that the exit covers may be opened by hand from either the inside or the top side of the car.

D. *Opening side exits.* Side emergency exit panels, where provided, shall open inwardly and shall be arranged to be opened by hand from either the inside or the outside of the car or may be equipped with lock and removable key which shall be kept either in the car or in the emergency hoistway door key case at all times, and also with the lock arranged to be opened by hand from the outside of the car.

E. *Electric contacts on side exits.* Side emergency exit panels, where provided, on automatic or continuous-pressure operated elevators, shall be provided with electric contacts which shall be arranged to prevent the operation of the car by the operating devices when the exit panel is open.

F. *Dimension for side exits.* Side emergency exit openings, where provided, should be not less than 16 inches wide and no fixed obstruction in the hoistway which blocks up the opening shall be permitted. Where new exit openings are installed, they shall conform to the dimensions specified where space conditions permit.
(Code 1967, § 49-149; Code 1985, § 46-169)

Sec. 14-16-100. Car lighting.

A. Elevator cars shall be adequately illuminated at all times when in use.

B. Elevator car lighting or hoisting lighting circuit switches shall be located on the car, in the hoistway or adjacent to the hoistway.
(Code 1967, § 49-150; Code 1985, § 46-170)

Sec. 14-16-101. Glass in cars.

No piece of glass, unless laminated or otherwise shatterproof should exceed one square foot in area when located in the cab of the car.
(Code 1967, § 49-151; Code 1985, § 46-171)

Sec. 14-16-102. Aprons for cars equipped with car-leveling devices.

A. Each elevator car equipped with car-leveling devices that operate the car when the hoistway doors or gates are open shall have the car platform provided with a substantial vertical face, flush with the edge of the car

platform adjacent to the hoistway opening and extending a sufficient distance below the car platform so that no horizontal opening in the hoistway occurs when the car may be moved by the car-leveling devices.

B. Elevator cars equipped with inching or teaser devices that operate the car when the hoistway doors or gates are open shall have the car platform provided with a vertical face as defined in subsection A of this section.
(Code 1967, § 49-152; Code 1985, § 46-172)

Sec. 14-16-103. Adjusting and renewing guide shoes.

When guide shoes are sufficiently worn so as to cause any material reduction in the clearances mentioned in section 14-16-104(A), (B) and (D), the guide shoes shall be adjusted or rebabbitted or renewed depending upon the type of guide shoes furnished.
(Code 1967, § 49-153; Code 1985, § 46-173)

Sec. 14-16-104. Clearances between cars, counterweights and shaftways.

A. *Between car and hoistway car and counterweight.* There shall be maintained a clearance of not less than one-half-inch between the sides of the car and the shaftway enclosure and not less than one-half-inch clearance between the car and its counterweights.

B. *Between car and landing threshold.* There shall be maintained a clearance of not less than one-half-inch between car platforms and landing thresholds for elevators using steel guide rails with side post construction, and three-fourths inch for elevators with wood guide rails or corner post construction. This clearance shall be maintained so as not to exceed 1½ inches.

C. *Between hoistway and open edge of car.* The clearance between the shaftway enclosure and the open edges of the car platform should not exceed five inches, except where the hoistway doors are installed wholly within the hoistway; in which case the maximum clearance should not exceed 7½ inches. Car doors or gates equipped as required in section 14-16-97, shall be installed where this above clearance exceeds 5½ inches.

D. *Between two cars.* If two or more adjacent cars are operated in the same shaftway the horizontal clearance between cars should not be less than two inches.

E. *Overhead clearances.*

1. The distance between the top of the elevator car sling and any obstruction directly above it when the car floor is level with the top landing shall be equal to or be greater than the sum of the following:
   a. The distance between the counterweight and its buffer;
   b. The maximum stroke of the counterweight buffer;
   c. Six inches.
2. The distance between the top of the counterweight and any obstruction directly above it when the car floor is level with the top landing shall be equal to or greater than the sum of the following:
   a. The distance between the top of the buffer and its striker plate on the car;
   b. The maximum stroke of the car buffer;
   c. Six inches.
3. For cars traveling faster than 250 feet per minute add this item to each of the above sums: one-half of the stroke of the buffer used.

Note: this item may be omitted if provision is made to eliminate the jump of the car or counterweight, if its top clearance is being considered, at buffer engagement.

F. *Reducing overhead clearance.* No structure or apparatus shall be installed either on the top of the car, or extending upwards above the top of the car, or extending downwards from the top of the hoistway which would reduce the over-travel clearances; unless prior to installation an investigation is made and permission is given by the department of labor, supervising inspector.

G. *Compressed counterweight buffer.* When the counterweight is resting on its fully compressed bumper, no equipment attached to the elevator car or car frame shall strike the overhead construction.
(Code 1967, § 49-154; Code 1985, § 46-174)

Sec. 14-16-105. Signal systems generally.

Each power freight or passenger elevator or each grouping of elevators shall be provided with a signal system by means of which signals can be given from any landing whenever an elevator is desired at that landing.

Exceptions:

A. Signal-operation elevators;

B. Automatic-operation elevators;

C. Continuous-pressure-operation elevators;

D. Power elevators which are scheduled to stop at each floor.

(Code 1967, § 49-155; Code 1985, § 46-175)

Sec. 14-16-106. Emergency signal.

Each automatic operation or continuous-pressure-operation elevator shall be equipped with either an emergency signal that can be operated from within the car and which is clearly audible outside the hoistway or shall be equipped with a telephone located in the car and connected to a central exchange or to a private exchange which is continuously attended.

(Code 1967, § 49-156; Code 1985, § 46-176)

Sec. 14-16-107. Platform elevators.

A. No platform elevator shall be used for passenger service.

B. No platform elevator with a travel in excess of 15 feet shall be permitted unless it complies with all the requirements of the freight elevator.

(Code 1967, § 49-157; Code 1985, § 46-177)

Sec. 14-16-108. Car and counterweight safeties and speed governors.

A. *Car safeties.* Each elevator suspended by cables shall be equipped with a mechanically applied car safety (or safeties), which should be attached below the car floor and capable of stopping and sustaining the car together with its contract load.

Exceptions:

1. Power freight-elevators and all platform elevators with a total rise not exceeding 15 feet;
2. Hand freight-elevators with a total rise not exceeding 30 feet;
3. Sidewalk elevators with a total rise not exceeding 30 feet.

B. *Governor for power freight elevators.* All power freight elevator cars where the capacity-speed is in excess of 100 feet per minute shall have the car safeties in conformity with subsection D of this section applied by speed governor devices.

Exception: rope geared hydraulic elevators.

C. *Broken rope safeties.* All power freight elevator cars with a capacity speed not in excess of 100 feet per minute and all hand-power elevator cars, subject to the requirements of subsection A of this section, may be equipped with broken rope type car safeties located either in the safety-plank beneath the car platform or in the crosshead of the car sling or on the stiles of the car sling.

When new car safeties are installed or existing car safeties replaced, they shall, subject to the requirement of subsection A of this section, be applied by speed governors.

Exception: existing broken-rope instantaneous type car safeties on rope geared hydraulic elevators may be retained in operation without governors irrespective of the car speed.

D. *Accessible safeties.* Four types of safeties are acceptable:

1. Type I (Instantaneous) which shall be limited to a capacity speed not in excess of 150 feet per minute, except as provided in subsection C of this section;
2. Type W.C. (Wedge Clamp) with constant retarding force;
3. Type G.W.C. (Gradual Wedge Clamp) with gradual increasing retarding force;
4. Type F.G.C (Flexible Guide Clamp) with constant retarding force.

E. *Pawl type safeties.* Pawl type safeties applying to a rack guide are permitted only on hand freight-elevators and only on power freight-elevators where the capacity-speed is not in excess of 50 feet per minute, where also the capacity is not in excess of 2,000 pounds; and where also, no person other than the operator is permitted to ride.

F. *Lubrication for safeties.* Car safeties shall be kept well lubricated and operating freely.

G. *Adjustment of car safeties.* Car safeties shall be adjusted to work together and the application of the safeties shall not cause the car platform to become out of level more than one-half-inch per foot measured in any direction.

H. *Setting of governors.* Speed governors shall be set to apply either at not less than 15 percent over the capacity speed or at not more than 40 percent over

capacity speed except that no speed governor shall be required to be set to apply at less than 175 feet per minute.

I. *Releasing car safeties.* Car safeties may be arranged to release by raising the elevator car but when the car safeties are applied no decrease in the tension of the governor cable or motion of the car in the descending direction shall release the car safeties.

J. *Governor location.* Governors shall be located where their full movement is unobstructed and nothing shall be stored or permitted to remain near the governors which might interfere with their operation.

K. *Testing car safety and governor.* Every car safety and its speed governor shall be tested in accordance with the requirements of the ASA Safety Code for Elevators.

L. *Repainting governors and safeties.* No speed governor and no car safety shall be repainted unless they are retested as required by subsection K of this section. (Code 1967, § 49-158; Code 1985, § 46-178)

Sec. 14-16-109. Operation and control.

A. *Operating devices accessible for hoistway.* Power elevators operated by ropes, cables, rods or any other devices which are accessible from the outside of the hoistway shall either:

1. Have these operating devices made inaccessible from the outside of the hoistway; or
2. Be equipped with all automatic operation equipment and operating device safeguards required by subsection (I)(2) of this section.

B. *Wheel or lever operating devices.* Wheel or lever operating devices shall be provided with up and down position indicators on the operating device.

C. *Hand-rope cable sheave guard.* Sheaves for hand-rope cables shall be equipped with guards to prevent the ropes from leaving the sheaves or the hand-rope cable tension shall be automatically maintained.

Overhead tension weights for hand-ropes shall be secured by cables or chains fastened to the weights and to a suitable anchorage. Hand-rope cables shall be kept smooth, clean, free of oil or grease and without projecting wires.

D. *Car switch operating device.* All operating devices of car switch operating elevators shall automatically return to the stop position when pressure is released.

E. *More than one operating system.* Elevators equipped with more than one operating system shall have the operating systems interlocked to allow the use of only one operating system at a time.

Exception: automatic operation elevators.

F. *Emergency stop switch.* Electro-hydraulic and electric elevators which have an elevator machine provided with an electrically released brake shall be provided with an emergency stop switch in the car and this switch should be of a type in which the contacts are mechanically opened and not solely spring opened.

Exceptions:

1. Automatic operation elevators equipped with a stop button so marked, in the car;
2. Sidewalk or platform elevators.

G. *Defective contacts.* Contacts which are badly pitted, burned, cracked or broken or which indicate a condition leading to possible fusing together of the contacts shall be renewed.

H. *Circuit breaker connected to fire alarm system.* No circuit breaker operated automatically by a fire alarm system shall interrupt the operating circuit of a passenger elevator.

I. *Automatic operation elevator.* Automatic operation elevators shall conform with the following:

1. If the car has started for a given landing, no impulse can be given to send the car in the reverse direction.
2. The car cannot be started by the operating devices unless the car door or gate is closed and is equipped with a contact as provided in section 14-16-98(A) and all hoistway doors or gates are closed and are equipped with either interlocks or with contacts and car operated mechanical locks and as required by either section 14-16-79(D) or (E) or section 14-16-86(A).

Exception: floating platform construction may be used on passenger elevators to permit the car to be operated from the landing buttons with the car gate open and no passenger in the car, under the following conditions:

a. The entire side of the hoistway opposite a car opening, including the doors, sills, lintels and spandrels shall be substantially flush (within tolerance of one-quarter inch).

b. The operation of the car from the car buttons shall be prevented unless the platform is depressed and the car gate is closed.

c. A weight of 30 pounds placed anywhere in the form shall cause it to function.

d. The platform shall be so constructed that there is no pocket or recess to catch refuse or dirt under the platform or no horizontal opening at the car sides where refuse or dirt may block the car platform in its depressed position.

e. The entire platform area within the car and the car threshold shall float.

f. There are no handrails in the car.

g. Hoistway door interlocks are provided as required by section 14-16-82(A)(2).

J. *C.P.P.B. operation.* Continuous-pressure operation shall not be used for elevators unless they are provided with all safety devices required for automatic operation.

K. *Overload circuit breaker.* If an overload circuit breaker is used for a direct-current elevator the opening of the motor circuit and the opening of the brake circuit shall occur simultaneously.

L. *Centering rope on rope or rod operating device.* Each power elevator operated by a hand rope or rod operating device shall be provided with a centering rope which will insure the operating mechanism being placed in the stop position when it is desired to stop the car, and the car shall be equipped with an operating rope car lock arranged to engage (at all landings) stop buttons on the operating rope or rod. The centering rope shall be so located as to be available to the operator for the full travel of the car.

Exceptions:

1. Electric elevators equipped with electrically released brakes and emergency stop switches in the car;

2. Electric elevators equipped with electrically released brakes and hoistway door or gate interlocks or electric contacts or with car door or gate electric contacts;

3. Sidewalk elevators.

M. *Sequence relay.* Electric elevators equipped with electric brakes and operated by hand cables, levers or wheel operating devices, shall, if provided with car emergency switches, car door or gate electric contacts or hoistway door or gate interlocks or electric contacts, have the operating and control circuits so arranged that in the case of failure of power or the opening of the car or hoistway door or gate interlock or contact circuits of the opening of the car emergency switch while the car is running, it will be necessary to return the operating device to the off position before the car can again be started.
(Code 1967, § 49-159; Code 1985, § 46-179)

Sec. 14-16-110. Disconnecting devices.

All new and relocated elevators shall be provided with a disconnecting means for automatic operation or continuous pressure operation elevators an all buildings exceeding 55 feet in height as follows: there shall be provided in the elevator car or at the starter's station for each automatic operation elevator or continuous pressure operation elevator a means to disconnect the elevator from the landing operating devices. The means provided shall be accessible only to authorized persons.
(Code 1967, § 49-160; Code 1985, § 46-180)

CHAPTER 14-20. TRAILERS AND TRAILER COURTS*

Sections:

Article 1. General Provisions

Sec. 14-20-1. Definitions.
Sec. 14-20-2. Trailer owners and occupants subject to city ordinances and rules.
Sec. 14-20-3. Parking or storing trailers outside trailer court.
Sec. 14-20-4. Rules and regulations of health department.
Sec. 14-20-5. Conflicts between chapter and other ordinances and laws.
Sec. 14-20-6. Violation of chapter, rules or regulations.

Article 2. Trailer Courts

Sec. 14-20-7. Permit—Fee.

***Charter reference—**Authority to regulate trailer camps, § 864.

State law reference—Mobile homes, T.C.A. §§ 55-4-401 et seq., 68-126-101 et seq.

Sec. 14-20-8. Approval of plans.
Sec. 14-20-9. Inspections.
Sec. 14-20-10. Management.
Sec. 14-20-11. Guest registration.
Sec. 14-20-12. Service buildings required.
Sec. 14-20-13. Water supply.
Sec. 14-20-14. Sewage disposal.
Sec. 14-20-15. Garbage and refuse disposal.
Sec. 14-20-16. Report of communicable diseases.

ARTICLE 1. GENERAL PROVISIONS

Sec. 14-20-1. Definitions.

For the purposes of this chapter, the following definitions shall apply:

Service building means a building maintained by trailer court management to provide toilet facilities for male and female, laundry facilities and to provide shower facilities for use by occupants of trailers without such facilities.

Trailer or trailer coach means any vehicle used or so constructed as to permit its being used, as a conveyance upon the public streets or highways and duly licensable as such and constructed in such a manner as will permit occupancy thereof as a dwelling or sleeping place for one or more persons, provided that this definition shall not include transport trucks or vans equipped with sleeping space for a driver or drivers.

Trailer court means any plot of ground within the city upon which two or more trailer coaches, occupied for dwelling or sleeping purposes, are located.
(Code 1967, § 39-1; Code 1985, § 37-1)

Sec. 14-20-2. Trailer owners and occupants subject to city ordinances and rules.

Immediately upon arrival within the city limits, the owner and occupants of any trailer shall be subject to all the laws, ordinances, rules and regulations of the city and any violation thereof shall constitute a misdemeanor.
(Code 1967, § 39-2; Code 1985, § 37-2)

Sec. 14-20-3. Parking or storing trailers outside trailer court.

The parking or storage of trailer coaches shall not be permitted on any premises within the city not operating as a trailer court under a valid permit. This section shall not apply to the owner of such vehicle if he or she is a bona fide resident of the city and possesses sufficient space on his or her premises to park or store the unoccupied trailer coach and if such parking or storage is approved in writing by the health department and is not in violation of any city ordinance.
(Code 1967, § 39-3; Code 1985, § 37-3)

Sec. 14-20-4. Rules and regulations of health department.

The health department is empowered to formulate from time to time and to enforce any rules and regulations that such department may deem advisable governing the operation of trailers and trailer courts, bearing on any matters of sanitation or housing.
(Code 1967, § 39-4; Code 1985, § 37-4)

Sec. 14-20-5. Conflicts between chapter and other ordinances and laws.

In any case where a provision of this chapter is found to be in conflict with a provision of any private or public act or ordinance or code, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail.
(Code 1967, § 39-5; Code 1985, § 37-5)

Sec. 14-20-6. Violation of chapter, rules or regulations.

Any person who violates the provisions of this chapter or the rules and regulations adopted pursuant thereto, or fails to perform the reasonable requirements of the health department or health officer after receipt of 30 days' written notice of such requirements, shall be subject to punishment as provided in section 1-24-1 for each offense and each day of continued violation after conviction shall constitute a separate offense.
(Code 1967, § 39-6; Code 1985, § 37-6)

ARTICLE 2. TRAILER COURTS

Sec. 14-20-7. Permit—Fee.

A. No trailer court shall be established or maintained by any person within the city without a valid current permit from the health department issued in the name of the current manager. The department is authorized to issue and to suspend or revoke permits upon written

notice of reasonable cause to secure abatement of unsanitary conditions and compliance with health rules and regulations.

B. Before a permit is issued by the health department, an annual permit fee of $150.00 shall be paid to the city and county health department. Such fee shall be due on January 1 of each calendar year and shall be paid by January 31.
(Code 1967, § 39-17; Code 1985, § 37-21; Ord. No. 349, § 1, 12-31-1968; Ord. No. 2955, § 1(1), (2), 12-11-1979)

Sec. 14-20-8. Approval of plans.

Such scale, detailed plans as may be required by the health department shall be submitted for review and approval before construction and operation of a trailer court. Such plans shall show provisions and arrangement facilities to comply with this chapter and with other codes and regulations involved.
(Code 1967, § 39-18; Code 1985, § 37-22)

Sec. 14-20-9. Inspections.

The health department is authorized and directed to make inspections of trailer courts and to enter at reasonable times upon the trailer court property to investigate compliance with health rules and regulations.
(Code 1967, § 39-19; Code 1985, § 37-23)

Sec. 14-20-10. Management.

The active manager or owner of a trailer court shall be capable and responsible for the proper sanitation of the premises and shall provide full-time competent employees to maintain and operate the establishment in a satisfactory condition at all times.
(Code 1967, § 39-20; Code 1985, § 37-24)

Sec. 14-20-11. Guest registration.

The owner or occupant of a trailer shall promptly register with the owner or manager of the trailer court when the vehicle is parked therein. The owner shall enter upon such register his or her date of arrival, name in full and the individual names of the persons in his or her party, license number of the vehicle and the state in which such vehicle was licensed, and the last permanent address of the owner of such vehicle; and, upon leaving, he or she shall enter the date of his or her departure.
(Code 1967, § 39-21; Code 1985, § 37-25)

Sec. 14-20-12. Service buildings required.

Each trailer court that accepts a dependent trailer coach for parking shall be provided with one or more service buildings.
(Code 1967, § 39-22; Code 1985, § 37-26)

Sec. 14-20-13. Water supply.

An accessible, adequate, safe and potable supply of water shall be provided in each trailer court, capable of furnishing a minimum of 125 gallons per day per trailer coach space. Where a public supply of water of such quality is available, connection shall be made thereto and its supply shall be used exclusively. The development of an independent water supply to serve the trailer court shall be made only after express approval has been granted by the health department.
(Code 1967, § 39-23; Code 1985, § 37-27)

Sec. 14-20-14. Sewage disposal.

Trailer courts shall be served by a public sewer system, if available, or by a private disposal system which has the approval of the health department. Each trailer coach space shall be provided with a satisfactory sewer connection. All sewage disposal apparatus, including appurtenances thereto, shall be provided, maintained and operated so as not to create a nuisance or health hazard.
(Code 1967, § 39-24; Code 1985, § 37-28)

Sec. 14-20-15. Garbage and refuse disposal.

A. One central station for storage of garbage receptacles and rubbish shall be provided in detail at every trailer court as follows: an area, basin, platform or rack constructed of concrete or similar material as to be permanently enduring, nonabsorbing, washable and cleanable in all its parts and equipped with a properly constructed drain connecting with the sanitary sewer, having a retaining wall not less than four inches in height entirely surrounding its outside circumference and of sufficient size to store and clean all of the garbage receptacles without contaminating adjacent

surfaces. Vehicle washing stations shall be similarly constructed but may be modified to specifically accommodate vehicles.

B. Standard garbage receptacles shall be supplied by the management of ample number to accommodate all the garbage, ashes and household refuse inside the cans, allowing the covers to fit properly at all times and at no time shall garbage, ashes or other refuse be dumped upon the ground on any part of the premises. Garbage receptacles shall be conveniently placed and readily accessible to all the patrons and employees of the establishment.
(Code 1967, § 39-25; Code 1985, § 37-29)

Sec. 14-20-16. Report of communicable diseases.

It shall be the duty of the owner or manager of a trailer court to promptly report to the health department all cases or suspected cases of communicable disease occurring within the court.
(Code 1967, § 39-27; Code 1985, § 37-30)

CHAPTER 14-24. RESERVED

Editor's note—Ord. No. 5459, § 16, adopted July 17, 2012, repealed Ch. 14.24, §§ 14-24-1—14-24-9, which pertained to landmarks preservation. For prior history, see Code Comparative Table. See section 8.4 of the Memphis and Shelby County Unified Development Code.

TITLE 15

UNIFIED DEVELOPMENT CODE

The Unified Development Code is currently being amended by the County and can be found here: http://www.shelbycountytn.gov/index.aspx?NID=924

CODE COMPARATIVE TABLE

1967 CODE

This table gives the location within this Code of those sections of the 1967 Code which are included herein. Sections of the 1967 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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This table gives the location within this Code of those sections of the 1985 Code, as supplemented, which are included herein. Sections of the 1985 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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***Note—**The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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